

Message 1 of 1299

CA CEO Contact Info

Sender	karen.denne@enron.com
Recipients	['karen.denne@enron.com', 'syamane@marathon-com.com', 'janel.guerrero@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3193.

Here's the info I have from the biz cards I collected yesterday (Ahhhhnold didn't have one...)

Pat -- Would you please add to my rolodex? Also, if you have any phone messages this week from CEOs w/ assistant names and numbers, pls route to this distribution. thx. kd

Sun Microsystems Piper Cole Vice President Global Public Policy 901 San Antonio Road, UPAL01-554 Palo Alto, CA 94303-4900 phone: 650-336-6633 fax: 650-336-0835 piper.cole@sun.com www.sun.com/policy

Exocus Communications, Inc. Casey Beyer Director, Government and Industry Relations 2831 Mission College Boulevard Santa Clara, CA 95054 phone: 408-346-2474 cell: 408-464-8126 fax: 408-346-2420 casey.beyer@exodus.net

Thomas E. Patterson Sidley Austin Brown & Wood 555 West Fifth Street Los Angeles, CA 90013 phone: 213-896-6037 fax: 213-896-6600 tpatterson@sidley.com

Eric Moses Assistant Deputy Mayor Office of the Mayor Los Angeles, CA 90012 phone: 213-847-3574 pager: 213-350-9416 fax: 213-485-1286 emoses@mayor.lacity.org

Robert A. Day Chairman/CEO Trust Company of the West 865 South Figueroa Street Los Angeles, CA 90017 phone: 213-244-0004 fax: 213-244-0588

200 Park Avenue New York, New York 10166 phone: 212-771-4004 fax: 212-771-4001

Bruce Karatz Chairman & CEO KB Home 10990 Wilshire Blvd. Los Angeles, CA 90024 phone: 310-231-4000 fax: 310-231-4290 designated contact: Larry Gotlieb (political affairs) 310-231-4000

Robert V. Sinnott Managing Partner - Energy Investments Kayne Anderson 1800 Avenue of the Stars Second Floor Los Angeles, CA 90067 phone: 310-284-5508 fax: 310-284-6490 rsinnott@kayne.com

Kenneth T. Lombard President Magic Johnson Theatres/Johnson Development Corporation 9100 Wilshire Boulevard, suite 710 East Beverly Hills, CA 90212 phone: 310-247-1994 fax: 310-247-0733 klombard@johnsondevelopmentcorp.com

Kenneth T. Lombard President Los Angeles Board of Water and Power Commissioners Department of Water and Power City of Los Angeles 111 N. Hope Street, room 1555 Los Angeles, CA 90012 phone: 213-367-1356

Selim Zilkha selim@zilkha.com

Message 2 of 1299

Draft of Ken's itinerary

Sender	rosalee.fleming@enron.com
Recipients	['richard.shapiro@enron.com', 'susan.landwehr@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11956.

I know Bev is working on other meetings, but this is what I think we have= =20 thus far.

D R A F T

ITINERARY FOR KLL AUSTIN/CALIFORNIA

WEDNESDAY, MAY 2, 2001

7:15 a.m. - Depart for Austin from Enron Aviation 17630 Chanhute Road, 281-443-3744 Falcon 900 EX (N5737) PILOTS: Don Martin and Darvin Mitchell PASSENGERS: K. Lay, Dick Weekley, Jodie Jiles, Charles Miller, Jeff=20 Dasovich, Mike Tribolet FOOD: Breakfast on board

7:45 a.m. - Arrive Austin Bergstrom International, FBO Signature FSO (512) 476-5451

Carey van to take you to Four Seasons (512) 929-5009 Conf. # 062895

8:15 a.m. - Executive Committee Meeting of the Governor=01,s Business Council to Four Seasons Hotel 9:00 98 San Jacinto Blvd. 512/478-4500 Boardroom 516

General Meeting: 8:45 a.m. - Registration and Breakfast to Ballroom A 9:10 a.m.

9:10 a.m. - Chairman=01,s Report to Welcome 9:30 Ratification of Executive Committee Action(s) Election of Directors

9:30 a.m. - Energy Panel to =20 10:15=20

10:15 a.m. - Carey van to take you to the hangar and return to wait for others as directed at Governor=01,s Business Council.

10:45 a.m. - Depart for Los Angeles, CA. PASSENGERS: K. Lay, Jeff Dasovich, Mike Tribolet FOOD: Fruit & Cheese tray and lunch on board

11:22 a.m. - Arrive Los Angeles International, FBO Garrett AV. SVCS 310-568-3901

Carey sedan to take you to the Beverly Hilton, Conf. #01521191, 310-275-4153

12:15 p.m. - Arrive at The Beverly Hilton=20 to 9876 Wilshire Blvd. 1:30 Beverly Hills, CA 90210 Join Governors=01, luncheon and political overview in progress Versailles Room

1:45 p.m. - Breakout Sessions to Session 2: The Energy Crisis and Its Impact in the States 3:00 Royal Suite

3:00 p.m. - Carey sedan to take you to Rosemead, CA. =20 4:00 p.m. - Meeting with John Bryson, Chairman and CEO Edison International 2244 Walnut Grove Avenue Rosemead, CA 91770 Contact: Maddie Peters 626-302-2267

5:00 p.m. - Carey to drive you to Los Angeles International

6:00 p.m. - Depart for Sacramento, CA Passengers: K. Lay, Jeff Dasovich =20 6:50 p.m. - Arrive Sacramento International, FBO General Aviation 916-874-0720

Carey Sedan to drive you to the hotel, con# WA111260-1/2 916-485-7268

Overnight: The Hyatt Regency Sacramento 1209 L Street Sacramento, CA 95814 Phone: 916-443-1234 Fax: 916-321-3799

Pilots overnight: Residence Inn Marriott, 916-920-9111

THURSDAY, MAY 3, 2001

8:00 a.m. - Meeting with David Freeman to your suite at the Hyatt Regency=20 10:00 w/Steve Kean Contact: Robin at 916-322-6988

Sedan to take you to the Capitol or as directed

10:30 a.m. - Meeting with Jim Brulte Capitol =01) Room 305 in the restored section Contact: Susan Mahea=20 916-445-3688 =20 11:00 a.m. - Meeting with Senator John Burton Room 205 Scheduler: Linda 916-445-1412

12:00 noon - Possible lunch with Assembly Member David Cox Scheduler: Cheyene =01) 916-319-2005

1:00 p.m. - Meeting with House Speaker Robert Hertzberg 916-319-2040

2:00 p.m. - Meeting with John Campbell Room 2174 Contact: Matt Back 916-319-2535

6:00 p.m. - Depart for San Francisco (estimated) PASSENGERS: K. Lay, Steve Kean, Jeff Dasovich

6:20 p.m. - Arrive San Francisco International, FBO Signature Flight Support 650-877-6800 Carey sedan to take you to the hotel and Steve to Hyatt Regency. 415-468-7550

Overnight: =20 The Park Hyatt San Francisco 333 Battery Street San Francisco, CA 94111 Phone: 415-392-1234 Fax: 415-421-2433

Pilots overnight: Airport Marriott, 650-692-9100

FRIDAY, MAY 4, 2001

9:00 a.m. - Meeting with Bob Glynn, Chairman, CEO & President PG&E One Market Street, Spear Tower Suite 2400
Contact: Michelle 415-267-7110 =20 10:00 a.m. - Possible visit to Enron office 101 California St., Suite 1950

10:30 a.m. - Carey to take you to the airport

11:00 a.m. - Depart for Houston PASSENGERS: K. Lay, Steve Kean FOOD: Sandwich tray

4:06 p.m. - Arrive Houston

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*******Information required by FERC, Docket No. EL00-95-027, et al.**

Sender	alan.comnes@enron.com
Recipients	['jeff.richter@enron.com', 'christian.yoder@enron.com', 'paul.kaufman@enron.com']
File	dasovich-j/all_documents/11095.

This arrived today. This FERC data request is due Monday April 16 and requests "copies of all short-term and long-term bilateral contracts for electricity which such seller has entered into with DWR subsequent to the December 15 Order."

I am inquiring with Jeff Richter and Christian Yoder to get the necessary data. If you have information that would be responsive to this request, please call me ASAP.

Alan Comnes

95 FERC ? 61,058

FEDERAL ENERGY REGULATORY COMMISSION WASHINGTON, D.C. 20426

April 12, 2001

Docket Nos. EL00-95-027 and EL00-98-026 To: Companies Listed On The Attachment

Dear Sir/Madam:

On December 15, 2000, the Commission issued an order in this proceeding directing remedies to address dysfunctions in spot markets operated in California and to ensure just and reasonable wholesale power rates by public utility sellers in California. San Diego Gas & Electric Co., et al., 93 FERC ? 61,294 (2000). Several of the key elements of that order were intended to remove barriers to entering into long-term contracts. The Commission now seeks information to determine how successful efforts have been to fashion long-term contracts and to reduce reliance on spot markets. In addition, we note that at a hearing held by the Committee on Government Reform of the United States House of Representatives on April 10, 2001, in Sacramento, California, the Committee requested that the Commission provide information on bilateral contracts for sales to the California Department of Water Resources (DWR), which has been negotiating such contracts with suppliers on behalf of end-users in California.

The Commission directs each supplier listed on the Attachment to file by the close of business, April 16, 2001, copies of all short-term and long-term bilateral contracts for electricity which such seller has entered into with DWR subsequent to the December 15 Order. The Commission will treat these contracts as confidential, unless the supplier waives such confidential treatment. However, the Commission intends to provide copies of the contracts to the Committee on Government Reform under confidential seal. To the extent any responsive contracts have already been filed with the

Commission, in unredacted form, suppliers may substitute a reference to the Docket No. assigned to the Docket Nos. EL00-95-027 and EL00-98-026 - 2 -

pertinent document rather than submitting a copy of the document. If a seller has not entered into any such bilateral contracts with DWR, it should file a letter so stating by the close of business, April 16, 2001.

By direction of the Commission.

David P. Boergers, Secretary.

Attachment

ATTACHMENT

Aaron Thomas AES NewEnergy, Inc. 100 Pine St Ste 3300 San Francisco , CA 94111-5219

F. Mitchell Dutton, Esq. American Electric Power Service Corp. 1 Riverside Plaza, 15th Floor Columbus, OH 43215

Laurie J. Hamilton Vice President-Regulatory Services Aquila Energy Marketing Corp. C/O Utilicorp United 10700 East 350 Hwy. Kansas City, MO 64138

John D. McGrane Attorney for Arizona Public Service Company Morgan, Lewis & Bockius LLP 1800 M Street, NW Washington, DC 20036-5869

Cheryl Feik Ryan Attorney for Avista Corporation VanNess Feldman 1050 Thomas Jefferson Street, NW Washington, DC 20007-3877

Dave Dickson Vice President Trading and Marketing Avista Energy, Inc. 201 W. North River Drive, Suite 610 Spokane, WA 99201

Doug Little Vice President, Trade Policy & Market Development Powerex Corp. 666 Burrard Street, Suite 1400 Vancouver, BC Canada, V6C 2X8

Joel D Newton Dynegy Power Marketing, Inc. 805 15th St NW, Suite 510A Washington, DC 20005-2279

Morten Helle California Polar Power Brokers, LLC 150 Spear Street, Suite 725 San Francisco, CA 94105

Philip M. Fantle Cargill-Alliant LLC 12700 Whitewater Drive Minnetonka, MN 55343

Harvey J Reed Director Constellation Power Source Inc. Suite 500 111 Market Place Baltimore , MD 21202-4035

Robert Reilley, Vice President Coral Power, L.L.C. 2 Houston Center 909 Fannin Street, Suite 700 Houston , TX 77010-1016

Martha A. Spikes Director, Vice President and Secretary Edison Mission Energy Marketing & Trading, Inc. 18101 Van Karmen Avenue, Suite 1700 Irvine, CA 92612-1046

Dani Jo Merryman Edison Source 13191 Crossroads Parkway North Suite 405 City of Industry, CA 91746

Tony Soto, Jr. El Paso Electric Company 123 West Mills Street El Paso, TX 79901

Sheila Nagel El Paso Merchant Energy, L.P. 1001 Louisiana St Houston , TX 77002-5089

Gregory W Jones, Esq. El Paso Energy Corporation 1001 Louisiana St Houston, TX 77002-5089

Ronald N Carroll, Esq. Attorney for Enron Energy Services, Inc., Enron Energy Marketing Corp., and Enron Power Marketing, Inc. Bracewell & Patterson, L.L.P. 2000 K St NW Ste 500 Washington, DC 20006-1809

Alexandre B Makler, Esq. Calpine Corporation / Geysers Power Company, LLC 6700 Koll Center Pkwy Suite 200 Pleasanton , CA 94566-7060

Victoria Huynh Assistant Controller Hafslund Energy Trading, LLC 101 Elliot Ave., Suite 510 Seattle, WA 98119

James R. Thompson Attorney Idaho Power Company 1221 West Idaho Street Boise, ID 83707

Steven F. Dalhoff Manager, Regulatory Affairs Illinova Energy Partners, Inc. C/O Dynegy Inc. 1000 Louisiana Street, Suite 5800 Houston, TX 77002

Kelly Funderburk Counsel For Koch Energy Trading, Inc. 20 Greenway Plaza Houston, TX 77046-3327

Jeffrey M. Jakubiak Attorney for Mirant California, L.L.C. Troutman Sanders LLP 401 9th Street, NW Suite 1000 Washington DC 20004

Joseph P. Limone Assistant Secretary and General Counsel Merchant Energy Group of the Americas, Inc. 151 West Street, Suite 300 Annapolis, MD 21401

Kim Tucker Manager of CAISO & CALPX Operations MIECO Inc. 301 East Ocean Boulevard, Suite 1100 Long Beach, CA 90802-4828

William F McCoy Morgan Stanley & Co., Inc. 1221 Avenue of the Americas, Fl 27 New York , NY 10020-1001

Connie Westadt Associate General Counsel Nevada Power Company and Sierra Pacific Power Company 6100 Neil Road Reno, NV 89511

Kermit R Kubitz, Esq. Pacific Gas and Electric Company 77 Beale Street San Francisco , CA 94120

Donald N. Furman PacifiCorp Hydro Resources Department 825 NE Multnomah Street, Suite 1500 Portland , OR 97232-2135

Peter Meier PG&E National Energy Group, Inc. 7500 Old Georgetown Road Bethesda, MD 20814-6161

Marlene Huntsinger Portland General Electric Company 121 SW Salmon Street, 3WTC0305 Portland , OR 97204-2901

Jesse A. Dillon, Esq. PPL Services Corporation Two North Ninth Street Allentown, PA 18101

Marjorie R. Philips, Esq. Exelon Power Team 300 Exelon Way Kennett Square, PA 19348

Roger D Eklund Public Service Company of New Mexico Alvarado Square, MS 0920 Albuquerque, NM 87158-0001

William R Maurer, Esq. Attorney for Puget Sound Energy Perkins Coie LLP One Bellevue Center 411 108th Avenue NE, Suite 1800 Bellevue, WA 98004-8420

Michael G Briggs Senior Counsel Reliant Energy Inc. 801 Pennsylvania Ave NW Ste 620 Washington , DC 20004-2615

James F. Walsh San Diego Gas & Electric Co. 101 Ash Street San Diego, CA 92101

Don P Garber Sempra Energy Trading Corp. 101 Ash St, HQ13D San Diego, CA 92101-3017

Sierra Pacific Industries Bob Ellery, Director of Energy Resources P.O. Box 496028 Redding, California 96049-6028

Michael D. Mackness Senior Attorney Southern California Edison Company 2244 Walnut Grove Ave. Rosemead, CA 91770

David J. Meyer Vice President and General Counsel Statoil Energy, Inc. 2800 Eisenhower Ave. Alexandria, VA 22314

Wanda M. Schiller General Counsel Strategic Energy LLC Two Gateway Center Pittsburgh, PA 15222

Bill Craig Manager, Operations Tr

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Jobs for Haas Alumni 12/7/00

Sender	owner-alumnijobs@haas.berkeley.edu
Recipients	[]
File	dasovich-j/all_documents/4419.

JOBS FOR HAAS ALUMNI

Welcome to the Alumni jobs weekly email announcement. The companies listed below have come to us seeking the caliber and talent of professionals we are all proud to be associated with and to have as alumni of the Haas School. Please also consider listing your own company's job openings. Submit all job openings to: recruitalumni@haas.berkeley.edu. Please be sure and include Location, Title, Company, Degree, and contact information. Feel free to tell your peers and colleagues about this great opportunity to post a job that reaches some of the brightest and best talent in the world.

If you need assistance in your job search you can utilize the services of the Haas Alumni Career Advisor for more information contact morel@haas.berkeley.edu

THIS SPECIAL ALUMNI COMMUNICATION IS BROUGHT TO YOU, IN PART, BY SUPPORT FROM THE HAAS SCHOOL ANNUAL FUND. <http://www.haas.berkeley.edu/alumni/>

1. LOCATION: San Francisco, CA

TITLE: Implementation Specialists (3 openings), Leadership System Venture & Research and Marketing Associate, Leadership System Venture

COMPANY: Partners In School Innovation

DEGREE: MBA/MEd combination a plus

2. LOCATION: Mountain View, CA

TITLE: Product Manager & Solutions Marketing Manager

COMPANY: ValiCert

DEGREE: BA/BS, MBA a plus

3. LOCATION: San Francisco, CA

TITLE: Consultant / Senior Consultant

COMPANY: BDC Advisors, LLC

DEGREE: Masters degree in business, healthcare, accounting, or a related field of study

4. LOCATION: San Mateo, CA

TITLE: Business Intelligence Consultant

COMPANY: Blue Martini Software

DEGREE: B.S., M.S., M.B.A. or Ph.D. from an accredited institution

5. LOCATION: Berkeley, CA

TITLE: Business Development, Corporate Marketing, & Product Marketing

COMPANY: Consilient

DEGREE: A Bachelor's degree is mandatory, MBA preferred.

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Click Here To Register Now! <http://www.alumniconnections.com/olc/pub/HAA/>

6. LOCATION: Santa Clara, CA

TITLE: Retail Channel Development Manager, Program Manager, Business Development Manager, Product management, E-Commerce Strategy, Brand Strategy, Broadband Services Product Manager, & PC-OEM/VAR Channel Development Manager

COMPANY: Covad Communications

DEGREE: MBA preferred

7. LOCATION: San Mateo, CA

TITLE: Product Manager of Software Applications

COMPANY: Enkata Technologies

DEGREE: MBA preferred

8. LOCATION: San Bruno, CA

TITLE: Financial Systems Consultant, Director of Business Development, Director of IT, Channel Sales Manager, & CRM Systems Administrator

COMPANY: Inleague.com

DEGREE: BA/BS

9. LOCATION: Foster City, CA

TITLE: Dir./Sr. Product Manager, Product Marketing Manager, & Client Services Consultant II

COMPANY: eALITY

DEGREE: undergraduate business or technical degree and/or MBA is desired

10. LOCATION: na

TITLE: Director of Business Development

COMPANY: Homeconditioning.com

DEGREE: na

REMEMBER THE HOLIDAY SEASON IS ABOUT "OTHERS". DO YOUR PART TO HELP.

11. LOCATION: Merrimack, NH

TITLE: Senior Product Manager

COMPANY: ELLACOYA NETWORKS

DEGREE: Minimum BA or equiv.

12. LOCATION: San Francisco, CA

TITLE: FX Manager

COMPANY: na

DEGREE: Bachelors Degree in Business or Finance. MBA preferred.

13. LOCATION: Redwood City, CA

TITLE: Accounting Manager

COMPANY: Liquid Audio, Inc.

DEGREE: BA/BS, CPA and/or MBA preferred

14. LOCATION: Palo Alto, California

TITLE: Strategic Planning Associate Product Manager - Application Service Provider and Hosting Services Director of Channel Marketing Director of Product Marketing - Desktop Business Development Manager

COMPANY: VMware, Inc.

DEGREE: MBA or equivalent degree preferred, varies.

1. LOCATION: San Francisco, CA

TITLE: Implementation Specialists (3 openings), Leadership System Venture & Research and Marketing Associate, Leadership System Venture

COMPANY: Partners In School Innovation

DEGREE: MBA/MEd combination a plus

Organization Description The mission of Partners In School Innovation is to work in partnerships with public schools in high-poverty areas in the San Francisco Bay Area, most serving mainly children of color and second-language learners, to enable them to achieve educational equity through school-based reform. In our core program, Partners works for 5-7 years with schools committed to pursuing ambitious whole-school reform efforts focused first on improving student literacy. Partners is a results-oriented, entrepreneurial organization. We are currently engaged in a major expansion, from 8 partner schools to 34 partner schools over the next few years. As part of that growth, we have launched a new school Leadership System Venture to enable schools to increase student achievement by supporting improved teacher practice and professionalism, and increased capacity for organizational improvement. For more information: www.partnersinschools.org.

Job Title: Implementation Specialist, Leadership System Venture (3 openings) (MNC-589) Job Description Working closely with the Venture Director and a highly interdependent team, as well as the leaders in our pilot schools, the Implementation Specialist will contribute his/her expertise to refining the design and supporting its implementation in individual pilot schools and districts. This includes the systems and processes through which teachers and others work to achieve continuously improving student, teacher, teacher team, and school performance; it also includes the assessment-oriented student information systems used by people at each of these levels. In addition, the Implementation Specialist will contribute to the design of Partners' service approach for helping partner schools and districts to implement and gain the benefit of the new school leadership system. Qualifications ? Substantial experience in face-to-face support for the design and implementation of change efforts in schools and districts; track record of effective client relations in consulting, partnering, or other support role ? Demonstrated ability to work creatively and productively, both individually and as a member of a team, in an assignment with ambitious aspirations and ambiguity about how best to meet them ? Substantial experience (2-4 years) in the development and analysis of management systems ? Experience in the selection, adaptation, and use of school assessment data management (or similar) software ? Project-management skills and experience ? MBA/MEd combination a plus

Compensation Salary commensurate with experience. Competitive benefits.

Job Title: Research and Marketing Associate, Leadership System Venture (MNC-590) Job Description Working closely with the Venture Director and a highly interdependent team, the Research and Marketing Associate will contribute his/her expertise to our R&D effort to refine our design and support its implementation, specifically through conducting research into our system design and its implementation in pilots, research on other re

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SVMG Environmental Newsletter

Sender	mbruce@svmg.org
Recipients	['mbruce@svmg.org']
File	dasovich-j/all_documents/12840.

Hello Environmental Committee Members:

The following items may be of interest to you, members of your organization or your employees. Please forward to anyone you know who may find value in this information. Some events and opportunities for involvement have come up with very short notice. Please check dates for upcoming events.

As always, if you know of events or have topic suggestions you would like to have included here, please let me know.

MB *****

On Friday, May 11, the BAAQMD hosted a workshop to review the proposed changes to the emergency generator regulations. This public workshop provided the BAAQMD an opportunity to describe in detail the proposed regulation and the regulated community an opportunity to ask questions and provide feedback.

The new requiements will include: * Simple permit requirement for any emergency generator engine larger than 50hp * 100 annual run hours for test, maintanance and reliability * Unlimited run hours for "emergency" power generation * Record keeping requirements

There are exeptions and other details. For more information, please see the attachments, the BAAQMD staff report and other information items referenced below.

Steve Motzko of Solectron has created a short Power Point presentation that summarizes the BAAQMD regulation. (see the third attachment)

I have included my notes from the workshop as well (fourth attachment"May11Notes")

The final draft regulation is scheduled to be presented to the BAAQMD board for approval on June 20 and if approved will be effective July 1. Please read the attachments for more detail.

Here is a link to the BAAQMD Standby Generator Application Instructions:

<http://www.baaqmd.gov/permit/standby.htm>

The BAAQMD draft regulation and 34 page staff report can be accessed in PDF files at:

<http://www.baaqmd.gov/ruledev/reg-pmt/r0201ws2.htm> Here is a link to the California Air Resources Board "Statewide Portable Equipment Registration Program Fact Sheet" for mobile sources: <http://www.arb.ca.gov/perp/factshe3.htm>

Interesting Information and Business Resource:

CleanEdge.com

CleanEdge.com is the web presence for Clean Edge, Inc., founded in 2000 by Ron Pernick and Joel Makower. Clean Edge was founded on the belief that clean technologies are poised for dramatic growth in a manner that will offer significant and tangible economic, environmental, and social benefits. Many of these technologies offer solutions to such pressing issues as energy shortages, resource scarcity, and climate change, while creating economic opportunities for entrepreneurs and investors. Clean Edge strives to be a catalyst for clean-tech investors and innovators through a variety of products and services. The website will feature the latest news on clean technology, track the stock prices of leading clean-tech firms, and subscribe to the free twice-monthly e-letter CLEANWATCH. You will be able to download a free report entitled "The Clean-Tech Market Authority." The website is located at www.cleantech.com

For more information, contact Joel Makower at 510.451.6611 or makower@cleanedge.com

***** LOCAL EVENTS

"Photovoltaics: Proven Solutions for the Energy Crisis" a presentation by Janice Lin, Director of Business Development, PowerLight Corporation

DATE: Tuesday, May 22, 1:30-3:00 p.m. LOCATION: Leininger Center (Okayama Room) San Jose

Bay Area Action+Peninsula Conservation Center Foundation (BAA+PCCF) presents

A Community Forum on Energy

Tuesday, May 22, 7:00 p.m. FREE Admission

Have you been wondering what's really going on with the energy crisis? Curious about Bush's energy policy? Then join us for the Peninsula Environmental Forum on Tuesday, May 22 at 7 p.m. at the Peninsula Conservation Center. The forum will provide a conceptual overview of our global energy challenges, why it is important to support the development of renewable energy, and practical advice on how we can act now to reduce energy consumption.

Speakers:

Craig Diamond is Director of Business Development in the Environment Division of the Electric Power Research Institute. He is also on the Board of Directors of BAA+PCCF. He has ten years of experience in environmental policy and strategic environmental consulting, and has worked at an internet startup company. Craig has a Masters in Public Policy from the University of Michigan, and an undergraduate degree in biology from Tufts University.

Dan Lieberman is Program Manager for Green Pricing and Energy Efficiency at the non-profit Center for Resource Solutions. Prior to joining CRS, Dan worked as Energy Product Manager at Utility.com, an internet-based green power marketer. Dan has a decade of experience in resource efficiency issues, including positions at local, state, and federal agencies. He received MBA and Master of Public Affairs degrees from The University of Texas at Austin.

The Peninsula Environmental Forum is a monthly event held at the Peninsula Conservation Center, located at 3921 E. Bayshore Rd., Palo Alto. For more information on the energy forum, contact David Coale at 650.962.9876 ext. 309. For more information on the Peninsula Environmental Forum series, contact Peter Drekmeier at 650.962.9876 ext. 302.

Information on the Web

The California Energy Commission: <http://www.flexyourpower.ca.gov>

Energy Efficiency and Renewable Energy Network: <http://www.eren.doe.gov/consumerinfo>

Energy Efficiency Guidebook: <http://www.pstvnrg.com/xina/guide.html>

American Council for an Energy-Efficient Economy: <http://www.aceee.org>

The Center for Resource Solutions: <http://www.resource-solutions.org>

Electric Power Research Institute: <http://www.epri.com>

The City of Palo Alto Utilities: <http://www.cpau.com>

We hope to see you there!

-- Tricia Born Director, Business Environmental Network (BEN) Bay Area Action + Peninsula Conservation Center Foundation 3921 East Bayshore Road Palo Alto, CA 94303 650.962.9876 ext. 308 650.962.8234 fax ben@pccf.org

***** Greenbelt Outings

The first attachment is a listing of various coordinated outings to fantastic scenic, agricultural or open space places in the Bay Area. Many of these would be great fun for the whole family. The schedule of events is June through August.

In Situ and On-Site Bioremediation, Sixth International Symposium, Sponsored by Batelle, the IT Group, Regenis, Geomatrix, Parsons, and NAVFAC

DATE: June 4-7, 2001 LOCATION: Sheraton Hotel and Marina, San Diego, CA COST: \$895 Industry, \$850 Government/University, \$375 Full-time Students

This Symposium will focus on the use of biological processes to remediate soil, groundwater, and sediment contamination and to treat industrial waste. Bringing together international leaders in site remediation from government agencies, universities, and private organizations, the Symposium provides a unique forum to facilitate technology transfer and integrate recent developments in fundamental research with innovative engineering applications. Program highlights include 625 platform and poster presentations, 55 technical sessions, set of abstracts provided to each registrant, 9 technical short courses and 40 exhibitors. Program details can be found at www.battelle.org/biosymp.

Register by phone at 1.800.783.6338.

Demand Response and Energy Efficiency Opportunities - An On-line "Web Cast" seminar

Silicon Energy present a webcast seminar, produced on behalf of SVMG's collaboration with Natural Resources Defense C

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RE: FW: ANNOUNCEMENT: Notice of Press Conference today

Sender	mark.palmer@enron.com
Recipients	['steven.kean@enron.com', 'richard.shapiro@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/3970.

Here's the suit filed against the generators. Reporter says our suit will look the same.

Mark ----- Forwarded by Mark Palmer/Corp/Enron on 11/29/2000 10:53 AM -----

"Leopold, Jason" <Jason.Leopold@dowjones.com> 11/29/2000 10:47 AM

To: "'Mark.Palmer@enron.com'" <Mark.Palmer@enron.com> cc: Subject: RE: FW: ANNOUNCEMENT: Notice of Press Conference today

James C. Krause, Esq., SBN 066478 Ralph B. Kalfayan, Esq., SBN 133464 Patrick N. Keegan, Esq., SBN 167698
Stephen W. Poirier, Esq. SBN 200868 KRAUSE & KALFAYAN 1010 Second Avenue, Suite 1750 San Diego, CA 92101
Tel: (619) 232-0331 Fax: (619) 232-4019

Attorneys for Plaintiff (Additional Counsel on Signature Page)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN DIEGO

PAMELA R. GORDON, on behalf of) Case No. herself and all others similarly situated,)) CLASS ACTION COMPLAINT
FOR) VIOLATIONS OF CALIFORNIA Plaintiff,) BUSINESS AND PROFESSIONS CODE) 0016720, ET SEQ. AND
0017200 ET SEQ. vs.) ANTITRUST and UNFAIR BUSINESS) PRACTICES RELIANT ENERGY, INC.; SOUTHERN)
COMPANY; NRG ENERGY; DYNEGY,) INC.; AES CORPORATION; WILLIAMS) ENERGY; DUKE ENERGY NORTH)
AMERICA; and DOES 1 through 100,) Inclusive)) Defendants.) _____)

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FIRST CAUSE OF ACTION 15 Violation of Sections 16720 and 16726 of the California Business and Professions Code
Trust In Restraint of Trade or Commerce in Violation of the Antitrust Act SECOND CAUSE OF ACTION 18 For Violations
of the Unfair Trade Practices Act Based Upon Violations of the Antitrust Act

THIRD CAUSE OF ACTION 19 For Violations of the Unfair Trade Practices Act Based Upon Defendants' Unfair Business
Acts and Practices

FOURTH CAUSE OF ACTION 20 Violations of the Consumers Legal Remedies Act

VI. PRAYER FOR RELIEF 21

Plaintiff hereby alleges on information and belief based upon the investigation made by and through her attorneys, as follows: I. NATURE OF THE CASE

1. This is a class action seeking redress under the law of California for defendants' conduct in the market for wholesale electricity. During the spring and summer of 2000, a group of electricity generators and traders, including defendants, exercising market power, unlawfully manipulated the California wholesale electricity market, resulting in grossly inflated wholesale electricity prices throughout the state and much of the Western United States. Defendants accomplished this result by, inter alia, improperly using confidential real time generator capacity, use, and maintenance data, and transmission system flow data to "game" the wholesale electricity market, by withholding electrical generating capacity from the California Power Exchange's forward markets, by improperly parking power with affiliates in other states which was later resold in California at inflated rates, by scheduling previously unplanned plant outages to coincide with other plants' planned maintenance shutdowns, and by scheduling transmission flows to cause or exacerbate congestion. 2. The improper use of confidential real time data was in violation of the California Tariff by which defendants are authorized to sell wholesale electricity within California. 3. By engaging in said unfair business practices, defendants have directly and severely damaged purchasers of electricity supplied through the California Power Exchange. As noted in the August 30, 2000 San Diego Union Tribune: "The utility bills of all [electric] ratepayers in San Diego are exorbitant. . . . Rates that were 3 cents per kilowatt hour have risen to 19 cents per kilowatt hour in just three months -- nothing short of confiscatory rates." 4. In its November 1, 2000 Order, the Federal Energy Regulatory Commission ("FERC") expressly found that electricity prices in California have been maintained at "unjust and unreasonable" levels during the relevant period, though it determined that it did not have the authority to mandate refunds or other retroactive relief with respect thereto. In its November 22, 2000 response to the November 1st FERC order, the California Public Utilities Commission (CPUC) concluded that due to market manipulation by wholesale energy producers and traders, customers of electricity supplied through the California Power Exchange had been overcharged more than \$4 billion dollars during the summer of 2000. In its November 22nd response to the November 1st FERC order, even the California Independent System Operator (CAISO) which manages California's transmission system infrastructure, known as the "power grid", found that the summer 2000 prices resulted from the exercise of intolerable levels of market power by generators and traders. II. VENUE

5. Venue is proper because defendants each transact business in the State of California and because the damages caused by defendants' unlawful manipulation of the price of wholesale electricity occurred in San Diego County. III. PARTIES

6. Plaintiff Pamela R. Gordon is an adult resident living in San Diego, California. Plaintiff Pamela R. Gordon is a retail electricity customer of SDG&E, and has been forced to pay rates for electricity during the Class Period (defined infra) that are unjust and unfair and that have been artificially inflated by defendants' misconduct. Moreover, plaintiff Pamela R. Gordon was born with no lymph nodes in her legs which results in a lack of circulation. Exposure to high temperatures will cause plaintiff Pamela R. Gordon's legs to swell, which can lead to possible severe health consequences. As a result of

her condition, plaintiff Pamela R. Gordon must maintain her home at temperatures of not more than 67 degrees at night and 71 degrees during the day. Plaintiff Pamela R. Gordon is unable to terminate her electricity service and has been forced to pay unjust and unfair rates for electricity from SDG&E as a result of defendants' misconduct. Specifically, plaintiff Pamela R. Gordon was charged and/or paid the following rates for electricity by SDG&E during the Class Period: // // // // //

Dates Total Electric Charges

5-26 to 6-27-00 \$180.92

6-27 to 7-27-00 \$226.67

7-28 to 8-28-00 \$311.84

8-28 to 9-27-00 \$143.48

9-27 to 10-26-00 \$84.71

7. Plaintiff was charged less for electricity per kWh prior to the Class Period and the inception of Defendants' wrongful conduct:

Dates Total Electric Charges

3-29 to 4-27-00 \$100.50

8. Defendant Reliant Energy (hereinafter "Reliant") is a Houston, Texas based public corporation doing business in the state of California as Reliant Energy Services. It is a generator and trader of wholesale electricity which is ultimately sold to California consumers, including plaintiff and the class, and is a WSCC member. Reliant operates five electricity generating plants in California which supply wholesale electricity to the California Power Exchange. 9. Defendant Southern Company (hereinafter "Southern") is an Atlanta, Georgia based public corporation doing business in the state of California as Southern Energy, Inc. It is a generator and trader of wholesale electricity which is ultimately sold to California consumers, including plaintiff and the class, and is a WSCC member. Southern Energy operates six electricity generating plants in California which supply wholesale electricity to the California Power Exchange. 10. Defendant Dynegy, Inc. (hereinafter "Dynegy") is a Houston, Texas based public corporation doing b

Message 7 of 1299

Enron Mentions - 06/06/2001

Sender	sharonda.stephens@enron.com
Recipients	['sharonda.stephens@enron.com']
File	dasovich-j/all_documents/10751.

USA: Enron to cut one-fifth of jobs at broadband unit. Reuters English News Service, 04/06/2001 UK: London timecharter fixtures. Reuters English News Service, 04/06/2001 USA: RESEARCH ALERT-Morgan starts Dynegy as buy. Reuters English News Service, 04/06/2001 NYMEX Analysis CNNfn: Before Hours, 04/06/2001 CONSULTANTS HIRED FOR GAS PLANTS STUDY South Florida Sun-Sentinel, 04/06/2001 Trojan Nuclear Plant; Notice of Docketing of Materials License No. SNM-2509, Amendment Application for the Trojan Independent Spent Fuel Storage Installation Federal Register, 04/06/2001 APPROVE ENRON POWER PLANT PUT POLLUTION ISSUE IN PERSPECTIVE South Florida Sun-Sentinel, 04/06/2001 Haleywest L.L.C., et al.; Electric Rate and Corporate Regulation Filings Federal Register, 04/06/2001

Verizon to Pitch Movies-on-Demand to Studios, Variety Says Bloomberg, 04/06/2001

USA: Enron to cut one-fifth of jobs at broadband unit.

04/06/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, April 6 (Reuters) - Energy trading giant Enron Corp. said on Friday it will eliminate some 250, or roughly 20 percent, of the jobs at its broadband telecommunications unit, detailing a move which it has previously described as an internal redeployment of staff. Enron Broadband Services spokeswoman Kelly Kimberly said the company is cutting jobs at the unit, which now employs 1,150 people, because it has completed the build-out of its 18,000-mile (29,000 km) fiber-optic network and because of slow demand for streaming media products delivered to personal computers. "The network is substantially complete now, so that means fewer people are required for technical positions," she said. The job cuts also reflect Enron Broadband's decision to play a less active role in the market for streaming media services, such as video of corporate events delivered to personal computers, where demand had been slower than expected, she said. However, Kimberly said Enron Broadband will continue to pursue entertainment-on-demand services actively. Kimberly said employees whose jobs are being eliminated will be eligible for redeployment to other positions at Enron Broadband Services or other Enron units, although there could be some involuntary terminations. Previously Enron officials had dismissed rumors about job cuts at Enron Broadband Services and had spoken instead of an internal redeployment of staff within the unit without detailing its impact on overall employment there. The company's stock, which peaked at just above \$90 last year and was trading in the \$80s as recently as mid-February, has recently fallen into the \$50s in line with broader weakness in the stock market and among technology and telecommunications stocks in particular. On Friday it was up 95 cents at \$56.65. Since early last year Enron has been building a high-speed broadband communications network that it plans to use as a base to build a bandwidth marketing and trading business similar to its huge natural gas and electricity trading operation. Excitement among investors about the broadband business and about Enron's success in developing a strong Internet-based trading platform for energy and other commodities drove an 87 percent rise in the company's share price last year, outpacing a gain of 54 percent for the S&P utilities index. Kimberly said Enron's bandwidth trading operation is continuing to perform strongly, with more than 500 trades carried out in the first quarter, exceeding the total for all of 2000. Despite the jobs cuts at Enron Broadband, she said, the unit is recruiting to fill some other positions.

UK: London timecharter fixtures.

04/06/2001 Reuters English News Service (C) Reuters Limited 2001.

LONDON, April 6 (Reuters) - Bulk Atalanta - (built 1990) 149,512 dwt 13.25 on 44 ndas delivery retroactive Cape Passero in direct continuation Apr 25/30 3-5 months trading redelivery world-wide \$13,200 daily Enron. Golden Disa - (built 1999) 75,200 dwt delivery Qingdao spot trip via Australia plus Mideast Gulf redelivery passing Muscat outbound \$11,250 daily ETA. Bergen Trader - (built 2000) 75,000 dwt delivery Kosichang Apr 10/20 3-5 months trading redelivery world-wide \$11,600 daily Swiss Marine. Rutland Glen - (built 1999) 73,700 dwt delivery Cape Passero Apr 10/20 trip via east coast South America redelivery Skaw-Cape Passero \$12,000 daily Azure. Pacific Paradise - (built 1993) 73,600 dwt delivery Koshichang Apr 21/22 trip and redelivery Continent \$13,500 daily Matinc. Endless - (built 1999) 73,400 dwt delivery Porto Vesme prompt trip via east coast South America redelivery Far East \$11,500 daily Transfield. Mass Merit - (built 1993) 69,620 dwt delivery U.S. Gulf Apr 15/25 trip and redelivery Taiwan \$10,750 daily plus \$190,000 ballast bonus Taho. Menites - (built 1981) 64,896 dwt delivery Ghent Apr 10/15 trip via Brazil redelivery Antwerp approximately \$10,000 daily Pan Ocean. Atlantic Savior - (built 1983) 64,754 dwt delivery Cape Passero Apr 10/15 trans-Atlantic round voyage redelivery West Mediterranean-Continent range \$10,000 daily T and E.

USA: RESEARCH ALERT-Morgan starts Dynegy as buy.

04/06/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, April 6 (Reuters) - J.P. Morgan said Friday that analyst Anatol Feygin had initiated coverage of Dynegy Inc. as a long term buy with a price target of \$63 a share. He said the company has provided "defensive earnings growth through a top tier wholesale energy player" that is "second only to Enron ." Dynegy's asset-light strategy allows the company to follow Enron's lead, with a favorable risk/reward profile with 73 percent of EBIT coming from non-regulated "merchant energy" opportunities, he said. "We project Dynegy's long-term earnings growth rate at 22 percent," he added. The analyst attributed Dynegy's "retreat from the \$57 level to the California power crisis, which has been a major stumbling block for the stock and should hinder near-term performance. It casts doubt on the very dynamic that Dynegy is a play on, and usurps management time and talent. "Although fundamentally we see it as more of a nuisance - a few credit/collection issues (with) little to no earnings risk, and a delay, not a derailment of the deregulation process - the resolution of the Golden State debacle is to us the key catalyst for an upgrade." Dynegy shares were off 94 cents at

\$49.98 in early New York Stock Exchange trading.

Business NYMEX Analysis Jack Cafferty

04/06/2001 CNNfn: Before Hours (c) Copyright Federal Document Clearing House. All Rights Reserved.

JACK CAFFERTY, CNNfn ANCHOR, BEFORE HOURS: On March 20, Vincent Viola was voted in as the new chairman of the New Mercantile Exchange. He takes over during a time of change and challenge for the NYMEX. Mr. Viola is here now to talk about his new position and the task ahead. Congratulations on the ascension to the throne down there. VINCENT VIOLA, NYMEX CHAIRMAN: Thank you, Jack. CAFFERTY: Job one is? VIOLA: Making sure that the exchange is postured to fulfill it's purpose as a magnificently liquid and efficient pricing mechanism, and a stable, global counterparty for mediation of credit and risk on the products that we pursue to trade on the exchange. CAFFERTY: And to do it with an eye on making a profit. VIOLA: Yes, exactly. CAFFERTY: Which is a little bit different assignment than it's been down there. VIOLA: Yes, exactly, the fact that our business model now, by virtue of the fact that we seek to make and provide profit to our shareholders compels us to start to act and function like a business. CAFFERTY: Now last year, you did incur losses down there of about almost \$3 million. Tell me a little bit about why that

Message 8 of 1299

RE: Party	
Sender	cameron@perfect.com
Recipients	['psellers@pacbell.net', 'srogers@jamcracker.com', 'scottwl@hotmail.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11102.

FYI on attire for Scott's birthday dinner next Friday night (of which you must attend)...

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Rogers, Sarah [mailto:srogers@jamcracker.com] Sent: Friday, April 13, 2001 2:58 PM To: 'Cameron Sellers' Cc: 'Scott Laughlin' Subject: RE: Party

OK. Please inform Prentice and Jeff of this rule. Anyone not in compliance will be referred to only as "the riff-raff" over dinner.

Fondly, Sarah E. Rogers

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Friday, April 13, 2001 3:02 PM To: 'Rogers, Sarah' Cc: 'Scott Laughlin' Subject: RE: Party

Definitely dress up. What I am is what I wear.

Signed,

Birthday Boy's Beloved

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Rogers, Sarah [mailto:srogers@jamcracker.com] Sent: Friday, April 13, 2001 2:52 PM To: Scott Laughlin (E-mail); Cameron Sellers (E-mail) Subject: Party

Let me start off by thanking Scott for going with me to the New Yorker thing - that and the Oriental "massage" parlor afterwards were great!

Secondly, Alison and I were thinking that it might be fun to get somewhat dressed up for the party on Friday, since it is THE social event of the season. What do you guys think? I'm not talking black-tie, but I am looking for an excuse to wear a skirt or dress. But I leave it up to the birthday boy and the birthday boy's beloved.

Please advise.

Sarah Rogers Solutions Marketing Jamcracker, Inc. 19000 Homestead Rd. Cupertino, CA 95014 p: 408-725-4301 f: 408-725-4310

www.jamcracker.com - Sounds like a job for Jamcracker.

More about the Jamcracker solution: www.jamcracker.com/solution/s1.shtml

Jamcracker in the news: www.jamcracker.com/news/n1.shtml

Message 9 of 1299

RE: bluegrass

Sender	cameron@perfect.com
Recipients	['psellers@pacbell.net', 'stacy@mslsearch.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3523.

I suggest we meet at La Ginestra at 6:30 tomorrow night (its right next door so we'll be able to run over when it looks like we need to). We should leave the city at 6pm and I told Molly that we would pick her up. Whoever gets there first get a table for 7 (if Don is coming, Stacy).

Can't wait!!

-C

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Stacy Miller Azcarate [<mailto:stacy@mslsearch.com>] Sent: Monday, May 07, 2001 2:55 PM To: Cameron Sellers
Subject: RE: bluegrass

Yes. Let's go to La Ginestra right next door before. Say 7:30? It's fabulous Italian Food...

-----Original Message-----

From: Cameron Sellers [<mailto:cameron@perfect.com>] Sent: Monday, May 07, 2001 2:57 PM To: 'Stacy Miller Azcarate'
Subject: RE: bluegrass

Cool!!! It's at 8:30 on Thursday and you can call to reserve tickets if you want (415-388-2820) but I am pretty sure it won't sell out. They are a new band, but a bunch of people we know that are really good.

I can't wait to see you!! Is there a good place to go to dinner before hand that you recommend?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Stacy Miller Azcarate [<mailto:stacy@mslsearch.com>] Sent: Monday, May 07, 2001 2:49 PM To: Cameron Sellers
Subject: RE: bluegrass

Yes. yes. Yes. What time?

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Monday, May 07, 2001 2:48 PM To: 'Stacy Miller Azcarate'
Subject: bluegrass

Not sure if you are interested, but there is a fun bluegrass band playing at Sweetwater this Thursday night. Since you are in the area it would be great to see you!! Can you join us????

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 10 of 1299

FW: bluegrass

Sender	cameron@perfect.com
Recipients	[psellers@pacbell.net', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3572.

Let's go to dinner at this place my friend Stacy recommends (that is right next to Sweetwater). She lives there and I trust her food advice. I am trying to Molly and Sean to go also. Then I will make reservations for 8. How does that sound to you guys?

PP, thanks for the call with the info last week.

BTW, who's in the band besides Ed and Steve?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Stacy Miller Azcarate [mailto:stacy@mslsearch.com] Sent: Monday, May 07, 2001 2:55 PM To: Cameron Sellers
Subject: RE: bluegrass

Yes. Let's go to La Ginestra right next door before. Say 7:30? It's fabulous Italian Food... -----Original Message----- From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Monday, May 07, 2001 2:57 PM To: 'Stacy Miller Azcarate' Subject: RE: bluegrass

Cool!!! It's at 8:30 on Thursday and you can call to reserve tickets if you want (415-388-2820) but I am pretty sure it won't sell out. They are a new band, but a bunch of people we know that are really good. I can't wait to see you!! Is there a good place to go to dinner before hand that you recommend?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Stacy Miller Azcarate [mailto:stacy@mslsearch.com] Sent: Monday, May 07, 2001 2:49 PM To: Cameron Sellers
Subject: RE: bluegrass

Yes. yes. Yes. What time? -----Original Message----- From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Monday, May 07, 2001 2:48 PM To: 'Stacy Miller Azcarate' Subject: bluegrass

Not sure if you are interested, but there is a fun bluegrass band playing at Sweetwater this Thursday night. Since you are in the area it would be great to see you!! Can you join us????

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 11 of 1299

Re: Ken Lay Meetings in CA

Sender	joseph.alamo@enron.com
Recipients	['rosalee.fleming@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11603.

Rosalee, per Jeff Dasovich, please find following the contact information for those referenced:

Governor Davis (916) 445-4633 House Speaker Robert Hertzberg (916) 319-2040; District office (Van Nuys [Southern CA]): (818) 904-3840 House Republican member John Campbell (916) 319-2070; District office (Irvine [Southern CA]): (949) 863-7070 House Minority Leader David Cox (916) 319-2005; District office (also Sacramento): (916) 349-1995 Senate Majority Leader John Burton (916) 445-1412; District office (San Francisco): (415) 557-1300 Senate Minority Leader Jim Brulte (916) 445-3688; District office (Rancho Cucamonga): (909) 466-9096

Hope this helps! If you need any clarification, please do not hesitate to contact me at (415) 782-7841.

Thanks, Joseph Alamo Sr. Admin. Assistant Government Affairs - The Americas San Francisco CA

----- Forwarded by Joseph Alamo/NA/Enron on 04/25/2001 03:14

PM ----- From: Jeff Dasovich on 04/25/2001 04:48 PM CDT Sent by: Jeff Dasovich To: Rosalee Fleming/Corp/Enron@ENRON cc: skean@enron.com, Richard Shapiro/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Joseph Alamo/NA/Enron@Enron

Subject: Re: Ken Lay Meetings in CA

Rosalee: Thanks very much for helping arrange the meetings. Here is the list thus far. There may be additions. I've also suggested dates for the meetings.

May 3rd in Sacramento (after the meeting with David Freeman):

Governor Davis (he spends a lot of time in Los Angeles and you may find that he prefers to meet there). House Speaker Robert Hertzberg House Republican member John Campbell (Republican's point person on energy issues) House Minority Leader David Cox Senate Majority Leader John Burton Senate Minority Leader Jim Brulte

May 4th--Morning, in Los Angeles John Bryson, CEO Edison International Governor Davis (unless the meeting occurs on the 3rd in Sacramento)

May 4th--Afternoon, in San Francisco Bob Glynn, CEO PG&E

Joseph Alamo from our office will provide you with the phone numbers for John Campbell, David Cox, John Burton, and Jim Brulte. I assume that your office has the numbers for John Bryson and Bob Glynn. If you do not have the numbers, let me know and I will get them for you. Thanks again for your help.

Best, Jeff

Rosalee Fleming 04/25/2001 03:09 PM

To: Janel Guerrero/Corp/Enron@Enron cc: Jeff Dasovich/NA/Enron@Enron Subject: Re: Ken Lay Meetings in CA

We will do it. Maureen and I have already talked about the Freeman meeting and we are making Steve hotel reservations, wherever we put Ken.

Rosie

Janel Guerrero 04/25/2001 02:19 PM To: Jeff Dasovich/NA/Enron@Enron, Rosalee Fleming/Corp/Enron@ENRON cc: Subject: Ken Lay Meetings in CA

Since Steve Kean is planning to accompany Ken on his meetings next week in CA, please be sure to cc Maureen McVicker on all meetings that are scheduled so she can manage Steve's calendar.

Thanks.

Message 12 of 1299

RE: you and me

Sender	cameron@perfect.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/8287.

Now that's special. I'll go if Red Buttons goes.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Thursday, January 11, 2001 12:53 PM To: Cameron Sellers Subject: RE: you and me

The playboy mansion?

Cameron

Sellers To: ""Jeff.Dasovich@enron.com""

<cameron@perf <Jeff.Dasovich@enron.com>

ect.com> cc:

Subject: RE: you and me

01/11/2001

02:22 PM

I think that is a great idea. It would be great. Fun mix of people too. Where should we have it??? I think it should not be at our house in Napa, but someplace a little more special.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Thursday, January 11, 2001 10:29 AM To: Cameron Sellers Subject: Re: you and me

P.S. Nice use of "birthday" as the segue to the deal.

Speaking of birthdays, Prentice has informed me that, despite my protestations (being a very low-key sort of guy), there "must" be some party for my birthday this year (which I'm still opposed to--and I may be in Houston that MONTH anyway).

I was thinking (cuz I hate spotlights), that it might be fun and interesting, since your Dad and I are both hitting interesting birthdays this year, if we had a joint party---double the people, double the fun. (I don't know if he'd rather have a solo party for his, though.) And since my dad's met your dad, but our mom's ain't been in the mix, I thought it might be a good (and hopefully safe) atmosphere to get them together in.

Am I smoking crack on the whole idea?

Cameron

Sellers To: ""Jeff.Dasovich@enron.com""

<cameron@perf <Jeff.Dasovich@enron.com>

ect.com> cc:

Subject: you and me

01/11/2001

12:16 PM

Sorry for surprising you this morning!! Nothing wrong with being comfortable in your birthday suit.

Speaking of birthdays, I think we should have a goal to get my company acquired by your company by May 30, 2001.
Good goal, huh??

I want to talk to you about the details I have been thinking about while you were gone. When should we talk?? Let's set up a meeting so we make sure to move this all forward.

Welcome back.

-C

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 13 of 1299

POWER conference sponsorship by ENRON

Sender	borenste@haas.berkeley.edu
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5547.

Hi Jeff:

I'm sending this as a separate email from the last in part because I want to emphasize that the invitation to be a discussant is in no way connected to Enron's decision to be a conference sponsor or not.

The email I sent you in November on sponsoring is below. Can you let me know as soon as possible (like in the next week) if Enron would like to be a sponsor.

Severin

Severin Borenstein

E.T. Grether Professor of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California 2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508 <http://www.ucei.org>

Email: borenste@haas.berkeley.edu WWW: <http://haas.berkeley.edu/~borenste>

From borenste@Haas.Berkeley.EDU Wed Jan 31 11:01:07 2001 Date: Wed, 29 Nov 2000 11:31:09 -0800 (PST) From: Severin Borenstein <borenste@Haas.Berkeley.EDU> To: Jeffrey Dasovich <jeff.dasovich@enron.com> Subject: POWER Conference Sponsorship by Enron

Dear Jeff:

I am writing to ask Enron to become a sponsor of the annual POWER research conference on electricity restructuring, which will take place this year on March 16, 2001 in Berkeley. This will be POWER's sixth annual electricity research conference. Last year's conference was quite successful, with attendance of nearly 150 and a number of papers that were discussed widely and were influential in electricity policy. Information on past programs and the plans for this year at our website: http://www.ucei.org/power_conf.html . We already have received submissions from top researchers for this year's

conference. We anticipate another very strong program of active electricity restructuring researchers and practitioners.

As in the past, we plan to include about 8 papers on the program. The presentations will be organized by topic and the papers will be discussed by both researchers and practitioner. Past programs have been very successful in stimulating discussion that included both researchers and practitioners.

The cost to Enron to become a sponsor would be \$10,000. As a sponsor, Enron would be listed on the front of the conference program and in the pre-conference mailing. In addition, Enron could send up to 5 people to the conference at no additional cost.

The annual POWER conferences on electricity restructuring have been very well received by industry, policy, and academic participants. With the broad and growing interest in deregulation of electricity markets, we have every reason to anticipate that this year's conference will be just as successful. We hope that Enron will decide to become a sponsor of the conference.

I can be contacted by phone at 510-642-5145, by fax at 510-643-5180, or by e-mail at borenste@haas.berkeley.edu. I look forward to talking with you soon about this.

Sincerely,

Severin

Severin Borenstein Co-Director, Program on Workable Energy Regulation

E.T. Grether Professor of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California 2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508 <http://www.ucei.berkeley.edu/ucei>

Email: borenste@haas.berkeley.edu WWW: <http://haas.berkeley.edu/~borenste>

Message 14 of 1299

RE: Global Government Affairs Weekly Conference Call

Sender	ginger.dernehl@enron.com
Recipients	['stacey.bolton@enron.com', 'ann.hill@enron.com', 'ginger.dernehl@enron.com']
File	dasovich-j/inbox/957.

Reminder!!!!!!

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: =09Dernehl, Ginger =20 Sent:=09Monday, November 12, 2001 11:58 AM To:=09Hill, Jo Ann; Bolton, Stacey; Keeler, Jeff; Alamo, Joseph; Allegretti= , Daniel; Allen, Joe; Alvarez, Ray; Assad, Sergio; Assaf, Lisa; Ausenhus, K= ara; Barnes, Lynnette; Bellas, Kirsten; Bestard, Jose; Binns, Darran; Bolto= n, Scott; Boston, Roy; Braz, Gisele; Buerger, Rubena; Burns, Stephen; Canov= as, Guillermo; Cantrell, Rebecca W.; Comnes, Alan; Connor, Joe; Cooney, Car= olyn; Cooper, Adam N; Crowther, Mark; Dasovich, Jeff; Davies, Philip; Dawso= n, Paul; Decker, Larry; Dernehl, Ginger; Dressler, Jean; Elms, Nick; Fitzgi= bbon, Tom; Floris, Vinio; Frank, Robert; Fromer, Howard; Fulton, Donna; Got= tfredson, Bryan; Grimes, Michael; Guerrero, Janel; Haizmann, Jan; Hamilton,= Allison; Hardy Jr, John; Hartfield, Rita; Hawkins, Bernadette; Hemstock, R= obert; Hennemeyer, Paul; Hetrick, Nancy; Hoatson, Tom; Huertas, Alfredo; Hu= eter, Barbara A.; Hughes, Llewelyn; Hunter, Bevin; Huson, Margaret; Ibrahim= , Amr; Imai, Makiko; Kaufman, Paul; Kean, Steven J.; Keenan, Amber; Keene, = Patrick; Kimura, Takashi; Kingerski, Harry; Kishigami, Kikumi; Knight, Laur= ie; Landwehr, Susan M.; Lassere, Donald; Lawner, Leslie; Lawrence, Linda L.= ; Leibman, Lara; Leonardo, Sam; Levy, Alberto; Lindberg, Susan; Linnell, El= izabeth; Long, Chris; Mara, Susan; Maurer, Luiz; McVicker, Maureen; Migden,= Janine; Milano, Pamela; Miller, Terri; Montovano, Steve; Nersesian, Carin;= Neustaedter, Robert; Nicolay, Christi L.; Nord, Sue; Noske, Linda J.; Novo= sel, Sarah; O'connell, Earlene; Ogenyi, Gloria; Palmer, Germain; Perez, Car= men; Perez,

Gus; Perrino, Dave; Petrochko, Mona L.; Pharms, Melinda; Reis, = Jose Lucio; Reyna, Margo; Rishe, Frank; Rizzo, Helen; Roan, Michael; Robert= son, Linda; Robinson, Marchris; Rodriquez, Andy; Ryall, Jean; Sampaio, Fred= ; Shapiro, Richard; Shelk, John; Shortridge, Pat; Staines, Dan; Steffes, Ja= mes D.; Stephens, Sharonda; Stransky, Joan; Stroup, Kerry; Stubbings, Randy= ; Styles, Peter; Sullivan, Kathleen; Sullivan, Lora; Thome, Jennifer; Tiber= i, Fino; Twiggs, Thane; Van Biert, Teun; Walton, Steve; Warner, Geriann; Wa= tanabe, Mika; Wood, Doug; Yeung, Charles; Yoho, Lisa
Subject:=09FW: Global Government Affairs Weekly Conference Call

My apologies, there has been a slight change in the dial information that i= s listed below. Please note changed items in red:

Date:=09=09Weekly on Friday's

Time:=09=0910:30 AM (CST)

Number:=091-800-745-1000 (domestic#) =09=09801-977-0648 (int'l) =09=098533407 (participant passcode) =09=09
Thanks!

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: =09Dernehl, Ginger =20 Sent:=09Monday, November 12, 2001 9:58 AM To:=09Alamo, Joseph; Allegretti, Daniel; Allen, Joe; Alvarez, Ray; Assad, S= ergio; Assaf, Lisa; Ausenhus, Kara; Barnes, Lynnette; Bellas, Kirsten; Best= ard, Jose; Binns, Darran; Bolton, Scott; Boston, Roy; Braz, Gisele; Buerger= , Rubena; Burns, Stephen; Canovas, Guillermo; Cantrell, Rebecca W.; Comnes,= Alan; Connor, Joe; Cooney, Carolyn; Cooper, Adam N; Crowther, Mark; Dasovi= ch, Jeff; Davies, Philip; Dawson, Paul; Decker, Larry; Dernehl, Ginger; Dre= ssler, Jean; Elms, Nick; Fitzgibbon, Tom; Floris, Vinio; Frank, Robert; Fro= mer, Howard; Fulton, Donna; Gottfredson, Bryan; Grimes, Michael; Guerrero, = Janel; Haizmann, Jan; Hamilton, Allison; Hardy Jr, John; Hartfield, Rita; H= awkins, Bernadette; Hemstock, Robert; Hennemeyer, Paul; Hetrick, Nancy; Hoa= tson, Tom; Huertas, Alfredo; Hueter, Barbara A.; Hughes, Llewelyn; Hunter, = Bevin; Huson, Margaret; Ibrahim, Amr; Imai, Makiko; Kaufman, Paul; Kean, St= even J.; Keenan, Amber; Keene, Patrick; Kimura, Takashi; Kingerski, Harry; = Kishigami, Kikumi; Knight, Laurie; Landwehr, Susan M.; Lassere, Donald; Law= ner, Leslie; Lawrence, Linda L.; Leibman, Lara; Leonardo, Sam; Levy, Albert= o; Lindberg, Susan; Linnell, Elizabeth; Long, Chris; Mara, Susan; Maurer, L= uiz; McVicker, Maureen; Migden, Janine; Milano, Pamela; Miller, Terri; Mont= ovano, Steve; Nersesian, Carin; Neustaedter, Robert; Nicolay, Christi L.; N= ord, Sue; Noske, Linda J.; Novosel, Sarah; O'connell, Earlene; Ogenyi, Glor= ia; Palmer, Germain; Perez, Carmen; Perez, Gus; Perrino, Dave; Petrochko, M= ona L.; Pharms, Melinda; Reis, Jose Lucio; Reyna, Margo; Rishe, Frank; Rizz= o, Helen; Roan, Michael; Robertson, Linda; Robinson, Marchris; Rodriquez, A= ndy; Ryall, Jean; Sampaio, Fred; Shapiro, Richard; Shelk, John; Shortridge,= Pat; Staines, Dan; Steffes, James D.; Stephens, Sharonda; Stransky, Joan; = Stroup, Kerry; Stubbings, Randy; Styles, Peter; Sullivan, Kathleen; Sulliva= n, Lora; Thome, Jennifer; Tiberi, Fino; Twiggs, Thane; Van Biert, Teun; Wal= ton, Steve; Warner, Geriann; Watanabe, Mika; Wood, Doug; Yeung, Charles; Yo= ho, Lisa Subject:=09Global Government Affairs Weekly Conference Call

Global Government Affairs will have a weekly call that will take place as f= ollows:

Date:=09=09Weekly on Friday's

Time:=09=0910:30 AM (CST)

Number:=091-800-745-1000 (domestic#) =09=09614-410-1515 (int'l) =09=098533407 (participant passcode) =09=097751
(host code - Rick only)

Thanks!=09=09

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 15 of 1299

FW: PUC Rate Proposal Disaster! Please call and fax PUC

Sender	jeff.dasovich@enron.com
Recipients	['karen.denne@enron.com', 'janel.guerrero@enron.com', 'skean@enron.com']
File	dasovich-j/all_documents/12310.

FYI. Silicon Valley Manufacturing Group ain't happy about the rate increas= e=20 (surprise). ----- Forwarded by Jeff Dasovich/NA/Enron on 05/10/2001 04:56 PM -----

=09"Carla Reddick" <creddick@svmg.org> =0905/10/2001 04:44 PM =09Please respond to creddick =09=09=20 =09=09
To: <creddick@svmg.org> =09=09 cc:=20 =09=09 Subject: FW: PUC Rate Proposal Disaster! Please call and fax
PUC=20 Commissioners Brown, Duque and Lynch (info below)

SVMG Member Companies:

We URGENTLY REQUEST YOUR SUPPORT in sending a strong message today and tomorrow to the PUC that the proposed rate proposal is unacceptable to SVMG employers, its workers and families. We have only until 6 pm this evening to submit formal comments for the proposed rate structure just this morning. A brief analysis is below. Please call or fax the following Public Utilities Commissioners IMMEDIATELY with our urgent message. Please and let me know if you and your organization have done so.

Also, don't forget to avail yourself of one last opportunity to directly meet with the PUC at a public hearing regarding this rate proposal at the Doubletree Hotel tomorrow (Friday May 12, 2001) at 3:00, 2050 Gateway Place. To participate you must arrive early and sign-in to speak. A membe= r of the Public Advisor's Office will be there for assistance. To get more advice about participation at the hearing contact the PUC's Public Advisory Office at 415-703-2782.

Thank you for your help at this critical time.

Justin Bradley Director of Energy Programs 408 501 7852

***** Geoffrey Brown - Phone 415 703 1407; Fax 415 703 1294 (Perhaps the key swin= g vote, most important focus of advocacy)

Henry M. Duque - Phone 415 703 3700; Fax 415 703 3352; (Historically on sid= e of business but needs encouragement)

Carl Wood - Phone 415 703 2440; Fax 415 703 2532 (Most anti-business votin= g record; probably intractable)

President Loretta Lynch - 415 703 2444; Fax 415 703 1758 (Unlikely to change vote from public stance but worth a try based on past relationships and connection to Gov. Davis)

The PUC unveiled their proposal with the following rate allocations:

Residential customers are protected with an average rate increase of 17%, Small commercial users 45% Large energy users up to from 50 to 75%.

This does not include the 1 cent rate increase proposed in January which would increase the large energy users rate by 100%. A fair and proportiona= l rate increase would be an average increase of 34% for all customers. President Lynch admitted that this may not be enough, and that additional rate increases could be required in the future. In protecting the residential rate classes, the PUC is shifting approximately \$1 Billion from the residential rates to all other customer classes.

It is important that we all SVMG member companies communicate to our PUC Commissioners the danger of protecting residential rates where the use of power is more discretionary and flexible than for employers. Unfairly high business rates decrease productive electricity use with subsequent loss of goods and services and JOBS. Protecting the residential rate class is bad policy because it guts the incentive for many residents to conserve.

SVMG understands that prices must rise significantly to accommodate the cost of electricity. It is regrettable. But any plan must be equitable and proportional between all rate classes with no cross subsidization.

The SVMG press release from this morning is below. The PUC release is in the link below.

The PUC release. http://www.cpuc.ca.gov/PUBLISHED/NEWS_RELEASE/6967.htm

***** P.U.C. IS A.W.O.L. ON PROPOSED RATE INCREASE=01,S EFFECT ON THE ECONOMY AND EFFORTS FOR RESIDENTIAL CONSERVATION

For Immediate Release: Contact: Michelle Montague-Bruno May 10, 2001 (408) 501-7853

=01&The disproportional rate increases proposed by the PUC will devastate the state and potentially the nation=01,s economy,=018 said Carl Guardino, president and CEO of the Silicon Valley Manufacturing Group, in response to electricity rate increases being suggested by the Public Utilities Commission (PUC) and its President Loretta Lynch.

The PUC president=01,s proposal has three critical flaws: 1. It undermines the Governor and the Legislature=01,s conservation plan,= which already tilts heavily toward residential customers, because the PUC proposal provides individuals with no incentives to conserve. 2. It is devastating to California=01,s economy; which will cripple California companies and every working family that depends on a healthy business climate to maintain jobs. 3. Coupled with the economic downturn California employers already face, this Commission is either insensitive or ignorant to the further loss of jobs this proposal could create.

=01&The PUC may think that by shielding residential customers from paying our proportionate share that they are doing everyone a favor; yet it=01,s pretty hard to pay your bills when a disproportionate plan forces your employer out of business or out of California,=018 said Guardino.

Yesterday, the PUC proposed raising rates for some employers by 50 to 75 percent, which would be the second increase handed to the industrial business community this year. For many employers, the recently proposed rate increases will equate to a 100 percent increase in electric bills in less than five months.

=01&This is irresponsible behavior at a time when the state=01,s economy is already reeling from an economic downturn that has hurt employers and lost jobs for working families,=018 said Guardino.

=01&Many companies, including Roche Pharmaceuticals, have had very aggressive energy reduction programs in place for several years, which will continue. To further cut consumption - in order to pay for a non-proportional and destructive rate increase -- for some employers, could mean cutting into their workforce, or leaving the area all together,=018 said Dr. James Woody, President of Roche Pharmaceuticals R&D in Palo Alto and Chairman of the Board of the Silicon Valley Manufacturing Group. =01&We want to do our fair share in paying for rate increases, but the disproportionate nature of this proposal could be devastating to employers. We need a rate structure that will allow employers to thrive and help pull us out of this economic downturn.=018

The Silicon Valley Manufacturing Group understands and acknowledges the need to raise electric rates to help minimize blackouts, which will protect the public=01,s health and safety. However, to achieve desired conservation and fairness, it is essential that all Californians share proportionally in rate adjustments.

=01&Proportional rate increases should be implemented with no rate shifting between classes of energy users. Member companies of SVMG are committed to being part of the solution, as we work together to conserve power, retain our workforce and ensure a healthy economy,=018 said Guardino.

=01&Apparently, the PUC is out of touch with working families, conservation or jobs in California,=018 said Guardino. =01&It=01,s a naive proposal. It assumes we can put a firewall between working families and jobs their employers provide; but instead this notion threatens the livelihoods of California workers and businesses.=018

Message 16 of 1299

Re: Air Force Contact on Direct Access

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'karen.denne@enron.com', 'janel.guerrero@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/10033.

FYI. Bill Gang of EES Federal Solutions has been working actively with the Air Force in California. I've participated in weekly calls with them in the effort to get them energized about DA. Turns out they're precluded by law from lobbying. But they seem to have other ways of being influential. I've put Scott Govenar in contact with them and he's keeping them in the DA Coalition loop. Bill/Scott is this guy familiar to you? Bill any suggestions on how we might best target them in our efforts to get groups energized? Bill: Perhaps you could phone Janel Guerrero directly to discuss? Her number is: 713.853.9104 (is that right Janel)?

Best, Jeff

Susan J Mara 03/15/2001 05:43 PM

To: Janel Guerrero/Corp/Enron@Enron cc: James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Karen Denne/Corp/Enron@Enron, Linda Robertson/NA/Enron@Enron, Mark Palmer/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron Subject: Re: Air Force Contact on Direct Access

I think a Ken letter is a great idea. I'll ask him about participating in the Coalition.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Janel Guerrero 03/15/2001 03:34 PM

To: Susan J Mara/NA/Enron@ENRON cc: James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Karen Denne/Corp/Enron@Enron, Linda Robertson/NA/Enron@Enron, Mark Palmer/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron Subject: Re: Air Force Contact on Direct Access

This is great Sue. I would like to loop him into our non-business target with a letter from Ken. Do you also see them having a role in the Direct Access Coalition? I'll let you work that end.

Susan J Mara 03/15/2001 05:29 PM

To: James D Steffes/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Mark Palmer/Corp/Enron@ENRON, Karen Denne/Corp/Enron@ENRON, Linda Robertson/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron cc: Subject: Air Force Contact on Direct Access

let's see how we can use this guy. He is already communicating with Scott Governor -- I'll forward that email next.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/15/2001 03:27 PM -----

Wells Bill LtCol HQ AFCEA/ULT <Bill.Wells@tyndall.af.mil> 03/14/2001 08:48 AM

To: Susan.J.Mara@enron.com cc: Subject: RE: FW: SBX 27 -- Direct Access Language Proposed by Bowen

Thanks - that is what I had assumed.

One of your e-mails was forwarded to me by my people at Edwards AFB. As the lead utility counsel for one of the larger purchasers of electricity in the state, I am obviously very interested in this subject. Keeping the direct access option is important to us, not just to keep the state honest on price shifting between customer classes, but also for reasons of reliability and power composition. As a Federal agency, we have a goal to meet on renewable power, and this will be difficult if not impossible to do if we do not have some degree of choice in the composition of our electricity.

Bill C. Wells, Lt Col, USAF Chief, Utility Litigation Team DSN 523-6347; 850-283-6347

Note new e-mail address: bill.wells@tyndall.af.mil

-----Original Message-----

From: Susan.J.Mara@enron.com [mailto:Susan.J.Mara@enron.com] Sent: Tuesday, March 13, 2001 5:14 PM To: Wells Bill LtCol HQ AFCEA/ULT Cc: Govenar Scott (E-mail); smara@enron.com Subject: Re: FW: SBX 27 -- Direct Access Language Proposed by Bowen

I'm not sure how you got my name, but I believe that the proposed language has not yet been officially introduced. It's being circulated for comments now.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Wells Bill LtCol

HQ AFCEA/ULT To: smara@enron.com

<Bill.Wells@tynda cc: "Govenar Scott (E-mail)" ll.af.mil> <sgovenar@govadv.com>

Subject: FW: SBX 27 -- Direct Access 03/13/2001 02:21 Language Proposed by Bowen

PM

I apologize for being dense, but when I checked the version of SBX 27 on the legislative web site, it is nothing like what is discussed in your e-mail. Is there an amendment (or several of them) that I have missed and that are not showing on the site (which shows no movement since the bill was introduced)? I have attached an RTF file of the version of the bill I found on the website at:

http://info.sen.ca.gov/pub/bill/sen/sb_0001-0050/sbx1_27_bill_20010131_intro_duced.html

Please give me a call if you have a minute to discuss this situation.

Bill C. Wells, Lt Col, USAF Chief, Utility Litigation Team DSN 523-6347; 850-283-6347

Note new e-mail address: bill.wells@tyndall.af.mil

- Subject: FW: SBX 27 -- Direct Access Language Proposed by Bowen

-----Orig From: wgang@enron.com [mailto:wgang@enron.com] Sent: Friday, March 02, 2001 8:44 AM To: Leo.Weaver@edwards.af.mil Subject: SBX 27 -- Direct Access Language Proposed by Bowen

Things are looking up! If this passes, we should be in pretty good shape. Note the part that says we can operate as we wish up to June 1!

Bill ----- Forwarded by William Gang/HOU/EES on 03/02/2001 08:42 AM -----

Susan J Mara@ENRON 03/01/2001 06:43 PM

To: cc: Subject: SBX 27 -- Direct Access Language Proposed by Bowen

This is an OK bill. Not well drafted. It's also overly complicated and proscriptive.

Deletes the offensive part of ABX 1. It allows anybody to do whatever they want until June 1 (section 2 d) On June 1, - res and small commercial customers can get in a cue and get DA up to the # of MWs that are added through load growth. (Section 2 e) -- Larger customers would pay an exit fee. (section 2 f) -- DA customers would be a entrance fee to return to IOU service (Section 2 g)

There is also a confusing section (2 c) that says a retail customer is only stuck with CDWR for the proportion of power that CDWR provides. The way it reads, if CDWR is providing 40% of the IOUs' power, the retail customer can get DA for 60% of its load. I doubt that will fly -- too difficult to keep track of and ISO will oppose (only one scheduling coordinator/meter)

A conference call and meeting is scheduled with parties tomorrow on this language.

Will keep you apprised.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/01/2001 04:28 PM -----

Scott Govenar

<sgovenar@gov To:

adv.com> cc:

Subject:

03/01/2001

04:02 PM

Attached, please find the proposed amendments to SBX 27 (Bowen) relating to direct access. There will be a direct access coalition conference call tomorrow to discuss current events as well as the new language.

(See attached file: SB27Xlanguage.doc)

(See attached file: SBX27 (text).rtf)

Message 17 of 1299

Re: FW: Enron Contacts

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/all_documents/12377.

I am swamped. Please call me from your car when you start driving to the City (preferably when you're close to the City so that I can get some more of this work done).

Cameron Sellers <cameron@perfect.com> 05/11/2001 04:07 PM To: "Jeff.Dasovich@enron.com" <Jeff.Dasovich@enron.com> cc: Subject: FW: Enron Contacts

I am trying to get in touch with you about the dome and some other stuff. I have attached the contact info for the people we have started talking to at Enron. We are in the process of putting a demo together. Maybe you can look into this a little before our dinner next week??

?

I hope we see you on Sunday (PP mentioned you might come to Napa for mommy's day)?

?

CALL ME!!

?

Cameron Sellers

Vice President, Business Development

PERFECT

1860 Embarcadero Road - Suite 210

Palo Alto, CA 94303

cameron@perfect.com

650.798.3366 (direct dial)

650.269.3366 (cell)

650.858.1095 (fax)

?

-----Original Message-----

From: David Young=20 Sent: Friday, May 11, 2001 2:04 PM To: Cameron Sellers Subject: Enron Contacts

?

Hi Cameron,

?

The 3 key players we have met with so far at Enron are:

?

John Gillespie- Sr Director Global Strategic Sourcing

713-646-6222??? john.gillespie@enron.com

?

Derryl Cleaveland - Sr Director Global Strategic Sourcing

713-646-7024??? derryl.cleaveland@enron.com

?

Steve Hotte - VP/CIO Enron Gas & Pipeline Group

713-853-6719??? steve.hott@enron.com

?

A decision maker in this might also be George Wassaf, Managing Director=20 eSupply & Procurement, who is John Gillespie's boss.? I started this journe= y=20 at Enron by contacting George, who put me on to John G.? John is responsibl= e=20 for implementing systems for the GSS unit.? George's contact info is:?=20 713-646-7531??? george.wasaff@enron.com

?

Another top level exec we need to meet?is Enron's CTO, Philippe Bibi, who i= s=20 also the CEO of Enron Online.? He is the proud owner of Enron's proprietary= =20 sourcing systems - DealBench (auction/exchange) and ibuyit.com (indirect=20 procurement through catalog management).? Implementing a solution for=20 EnronOnline might be a separate opportunity from the Global Strategic=20 Sourcing opportunity.? If your contact at Enron has any connection with=20 Philippe, a warm introduction to him would be most helpful.

?

Thanks,

David M. Young Manager- Enterprise Sales Perfect Commerce, Inc. 1860 Embarcadero Rd., Suite 210 Palo Alto CA? 94303 Tel: 650-798-3356 Email: dyoung@perfect.com

"Sourcing - the identification, evaluation, negotiation, and configuration = of=20 supply partners - is the single largest opportunity for an organization to= =20 impact the cost, structure, and overall efficiency of its supply chain."?? = --=20 Aberdeen Group, Inc.

? - image001.jpg

Message 18 of 1299

Energy Issues

Sender	miyung.buster@enron.com
Recipients	['bhansen@lhom.com', 'rob.bradley@enron.com', 'joseph.alamo@enron.com', 'angela.wilson@enron.com']
File	dasovich-j/all_documents/29040.

Please see the following articles:

Sac Bee, Tues, 7/24: Transmission lines project draws bidders Sac Bee, Tues, 7/24: Dan Walters: Blame game over California's energy crisis= s=20 will continue for years (Enron mentioned) Sac Bee, Tues, 7/24: Initiative effort seeks to lower natural-gas prices Sac Bee, Tues, 7/24: Daniel Weintraub: There's no shame in doing nothing fo= r=20 Edison (Editorial) SD Union, Mon, 7/23: State consultants don't see need for more rate hikes= =20 SD Union, Mon, 7/23: Senate committee told Morgan Stanley destroyed power= =20 records=20 SD Union, Tues, 7/24: News briefs on the California power crisis SD Union, Mon, 7/23: State sells surplus power at a loss=20 LA Times, Tues, 7/24: Rush for Power Plant in Chino Raises Concerns LA Times, Tues, 7/24: Surplus Power Sold at a Loss LA Times, Tues, 7/24: Pacific Gas Gets 4-Month Extension on Filing Plan SF Chron, Tues, 7/24: State sells surplus electricity at a loss=20 BUY HIGH, SELL LOW: \$14 million deficit=20 SF Chron, Tues, 7/24: San Diego tries to undo the damage=20 THE PLAN: Regional public power=20 SF Chron, Tues, 7/24: 13 plans submitted to alleviate power transmission=20 bottleneck=20 SF Chron, Tues, 7/24: Developments in California's energy crisis=20 Mercury News, Tues, 7/24: Figures show state lost big on extra power=20 Mercury News, Tues, 7/24: Temperatures likely to rise all week=20 Individual.com (AP), Tues, 7/24: Wholesale Competition Contributed to Trend= =20 of Lower Power Prices, According to New EPSA Study=20

Transmission lines project draws bidders By Dale Kasler Bee Staff Writer (Published July 24, 2001)=20 Aiming to ease one of the festering problems in California's energy crisis,= =20 13 companies and public agencies have bid for the right to widen a notorious= s=20 bottleneck in the state's transmission lines, federal officials said Monday= .=20 The bidders range from the East Bay Municipal Utility District to wholesale= =20 power generators such as Mirant Corp., Calpine Corp. and Williams Cos. Some= =20 independent experts argue that if a generator wins the bid, it could use it= s=20 control over those transmission lines to manipulate the electricity market.= =20 The bottleneck is Path 15, a narrow 90-mile stretch of power lines near Los= =20 Banos that carries electricity between Northern and Southern California. It= =20 has less transmission capacity than other portions of the power grid, which= =20 has led to blackouts.=20 In January, Northern California suffered power outages in part because Path= =20 15 couldn't deliver the surplus electricity that was available in Southern= =20 California. The proposed expansion would add 1,500 megawatts of capacity.= =20 "It's a very big issue; there's been a lot of congestion," said Severin=20 Borenstein of the University of California Energy Institute.=20 In addition, the Independent System Operator, which manages the power grid,= =20 estimates the congestion generated by Path 15 added an estimated \$221.7=20 million to California's power bill in a 16-month period that ended in=20 December.=20 Borenstein said he believes there are considerable hidden costs as well,=20 because the bottleneck has created an incentive for sellers to withhold=20 power. Path 15 effectively cuts California into two separate markets, makin= g=20 it easier for sellers to manipulate each submarket to raise prices, he said= .=20 Pacific Gas and Electric Co., which owns the existing Path 15 transmission= =20 lines, already has been conducting environmental studies with an eye toward= =20 widening the path. To speed things along, the federal government in May ask= ed=20 for bids on the project, which sparked proposals from generators and others= .=20 Borenstein said having a generator widen Path 15 could bring new problems.= =20 Whoever builds the additional power lines owns them and can charge "tolls" = to=20 companies that use the lines to transmit electricity. A power generator cou= ld=20 deliberately withhold supplies, thereby increasing the congestion on Path 1= 5,=20 and increase the tolls, Borenstein said.=20 PG&E is among those bidding to widen the path. So is its sister company, an= =20 unregulated entity called PG&E National Energy Group. Other bidders include= a=20 partnership led by Sempra Energy Resources, an unregulated sister company o= f=20 San Diego Gas & Electric Co.=20 The federal government estimates it will take \$300 million and three or fou= r=20 years to widen Path 15. The costs are ultimately paid by utility customers.= =20 U.S. Energy Secretary Spencer Abraham, speaking to reporters in Los Angeles= =20 on Monday, called the expansion of Path 15 "a critical component in solving= =20 the long-term power crisis in this state."=20

The Bee's Dale Kasler can be reached at (916)321-1066 or dkasler@sacbee.com =20 <<mailto:dkasler@sacbee.com>>. =20 Bee news services contributed to this report.

Dan Walters: Blame game over California's energy crisis will continue for= =20 years

(Published July 24, 2001)=20 The wrestling match between politicians and Enron Corp. moved into a more= =20 intense arena over the weekend when a state Senate investigating committee= =20 sought contempt penalties because the huge energy company has refused to tu= rn=20 over internal documents.=20 Although Houston-based Enron owns no major power plants in California, it h= as=20 adopted the toughest stance of all energy companies against the multiple=20 investigations of why wholesale energy prices spiked so high. And it has=20 become, in turn, a whipping boy for California politicians.=20 At one point last spring, state Attorney General Bill Lockyer said he wante= d=20 criminal charges against Enron and its chairman, Kenneth Lay. "I would love= =20 to personally escort Lay to an 8-by-10 cell that he could share with a=20 tattooed dude who says, 'Hi, my name is Spike, honey,' " Lockyer said. With= =20 less colorful language, Gov. Gray Davis has often castigated Texas-based=20 companies as price gougers -- even though Texas firms have been fairly mino= r=20 suppliers to California.=20 Some of it is just buzzword politics. Lockyer and Davis know that=20 Californians dislike anything associated with Texas, and Lay has been one o= f=20 President Bush's major political supporters. Enron, meanwhile, cites the=20 rhetoric as evidence that Lockyer, Davis and legislative investigators are= =20 interested less in finding the truth than in seeking scapegoats. Enron also= =20 filed a lawsuit challenging the legality of the Senate's subpoenas of tradi= ng=20 data.=20 Most other energy companies have complied with the demands, creating=20 Sacramento repositories of the data under elaborate confidentiality=20 agreements worked out with the special Senate committee headed by Sen. Jose= ph=20 Dunn, D-Santa Ana. But Enron has refused, and on Saturday, Dunn submitted a= =20 report asking the Senate for "an appropriate coercive sanction."=20 Does Enron have something to hide? Or does it sincerely believe that what's= =20 happening in California is political scapegoating? Are the companies' fears= =20 about the confidentiality of the data sought by the Senate justified? Would= =20 data be selectively leaked to show the firms in the worst light? Would data= =20 be used by competitors? Or could the information find its way into the hand= s=20 of class-action attorneys?=20 Dunn, a prominent trial attorney himself, insists that confidentiality will= =20 be protected and that the information being sought is only for legislative= =20 purposes. But Enron and the other companies have some reason to be wary of= =20 turnin

Message 19 of 1299

Enron Mentions

Sender	m..schmidt@enron.com
Recipients	[]
File	dasovich-j/deleted_items/1860.

Enron Names Special Committee To Examine Transactions Dow Jones News Service, 10/31/01

Enron says SEC opens formal inquiry into related-party transactions AFX News, 10/31/01

Enron Says SEC Informal Inquiry Now a Formal Investigation Bloomberg, 10/31/01

Key Enron Employees Aren't Jumping Ship, Recruiters Say Dow Jones Energy Service, 10/31/01

Houston, We Have A Problem: How Much Is Enron Worth? Dow Jones News Service, 10/31/01 Enron's stock jumps amid takeover speculation Associated Press Newswires, 10/31/01 USA: Few signs of domino effect among Enron's peers. Reuters English News Service, 10/31/01

Waste Management Will Start Pulp And Paper Trading Tomorrow Bloomberg, 10/31/01

Enron ends 10-day skid with 25% jump CBSMarketWatch.com, 10/31/01

Enron's stock jumps amid takeover speculation Associated Press Newswires, 10/31/01 Class Action Lawsuit Commenced Against Enron Corp. By The Law Offices of Ma= rc S. Henzel PR Newswire, 10/31/01 Some Enron Trading Customers Tighten Credit Reins, Cut Trades Bloomberg, 10/31/01

USA: Enron rebounds, but investors seek more disclosure. Reuters English News Service, 10/31/01

Waiting for Balance Sheets Amid Enron's Debacle: David Wilson Bloomberg, 10/31/01

Enron Shares Rise, Rebounding From Nine-Year Low (Update3) Bloomberg, 10/31/01

Enron Names Special Committee To Examine Transactions

10/31/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- Enron Corp. (ENE) created a Special Committee to examine deals related to the Security and Exchange Commission investigation into transactions involving Enron's former chief financial officer, which has now turned into a formal investigation. The energy-trading company also named William Powers Jr. to its board, making him in charge of the Special Committee, the company said in a press release Wednesday.

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Enron says SEC opens formal inquiry into related-party transactions

10/31/2001 AFX News (c) 2001 by AFP-Extel News Ltd

HOUSTON (AFX) - Enron Corp said the Securities and Exchange Commission has opened a formal inquiry into the company's transactions with entities connected with related parties. In a statement, Enron said "the SEC has opened a formal investigation into certain of the matters that were the subject of recent press reports and that previously were the subject of its informal inquiry." Earlier this month, Enron announced a charge of 1.01 bln usd, or 1.11 usd per share, and an incremental 1.2 bln usd reduction in stockholders' equity, related to the unwinding of investments with the related LJM partnership. The SEC requested the company provide information on these related-party transactions days later, and the company dismissed its chief financial officer, Andrew Fastow, for his involvement in running the LJM partnerships. In today's statement, the company announced the election of William Powers Jr to the board, effective immediately. Powers, who is dean of the University of Texas School of Law, will chair a Special Committee to examine and take any appropriate actions with respect to transactions between Enron and entities connected to related parties, it said. In addition to reviewing the transactions in question, the Special Committee is charged with communicating with the SEC and recommending any other actions it deems appropriate. "I have asked the Board to take this action to address fully and forthrightly investors' questions and concerns," said Enron chairman and chief executive officer Kenneth Lay. "Responding to the SEC offers us an additional opportunity to achieve this same goal for investors, and we will cooperate fully. We will also make every appropriate public disclosure during the course of the SEC's investigation." 20 pav/

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Enron Says SEC Informal Inquiry Now a Formal Investigation 2001-10-31 17:37 (New York)

Enron Says SEC Informal Inquiry Now a Formal Investigation

Houston, Oct. 31 (Bloomberg) -- Enron Corp. said an informal inquiry by the Securities and Exchange Commission is now a formal investigation, and the Houston-based company's board is appointing a special committee to address allegations related to partnerships run by its former chief financial officer.

William Powers Jr., dean of the University of Texas law school, will chair a committee to handle the SEC's requests for information about the partnership, Enron said.

--Andy Pratt in the Princeton newsroom at (609) 750-4657 or

Key Enron Employees Aren't Jumping Ship, Recruiters Say By Michael Rieke Of DOW JONES NEWSWIRE

10/31/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- Enron Corp.'s (ENE) current problems aren't sending its key employees running for the door, according to two executive recruiters. While employees at Enron's underperforming units are shopping around for new jobs, those working for its core wholesale energy trading and retail energy units seem content, the recruiters told Dow Jones Newswires. "We've been getting resumes from their international group over the last year," said Bruce

Peterson, managing director for Korn Ferry in Houston. "But= its been a very well-known fact that they're getting out of those business= es."=20 Another Houston recruiter, who didn't want to be identified, said he has go= tten "a flood" of resumes from employees at Enron's natural gas and power a= ssets in South America.=20 Employees at Enron's broadband unit are also sending out resumes, said the = recruiter. That business has brought the company losses of more than \$100 m= illion this year despite hundreds of layoffs. Enron continues to cut costs = in its telecom business.=20 Neither recruiter has seen many resumes from Enron's big moneymakers - the = wholesale energy trading group and the retail energy services group.=20 Some of the lower-level employees of those units have sent out resumes but = Peterson said he hasn't seen higher-level executives in the job market. How= ever, he attached a caveat to that statement.=20 "Quite a few of the senior people at Enron have left over the last 6-12 mon= ths," he said.=20 When Enron's share price was flying high last year and early this year, som= e of Enron's top executives cashed out their stock options and left the com= pany.=20 Those executives included Cliff Baxter, former vice chairman and chief stra= tegy officer; Ken Rice, former head of Enron Capital and Trade as well as f= ormer chief executive of Enron Broadband Services; Kevin Hannon, former pre= sident of Enron Broadband Services; and Lou Pai, former chairman and chief = executive of Enron Energy Services.=20 The lure of cashing out lucrative stock options won't cost Enron any more e= mployees any time soon. The company's share price has fallen too far too qu= ickly, leaving the options underwater.=20 The company's shares traded as high as \$80 early this year. By July the pri= ce had dropped to around \$50, leaving employees with options that were virt= ually worthless. So Enron told employees it would issue new options in Augu= st.=20 But the company's share price continued to fall as more and more bad news c= ame out. The new options issued in August, when the share prices were aroun= d \$40, are now underwater also.=20 Now that the options are out of the money, Enron employees are more vulnera= ble to the lure of other companies, Peterson said.=20 Enron could face another problem in keeping key people. Its employees work = under two-year contracts. If they leave Enron before their contracts expire= s, a noncompete clause could prevent them for working for a competitor.=20 Some of th

Message 20 of 1299

FIA assignment: Monday pm?

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'guinney@haas.berkeley.edu']
File	dasovich-j/notes_inbox/5289.

How about talking Monday pm?

There were a ridiculous amount of handouts again on Thursday, some of which directly related to next week's assignments. I thought the quiz was straight forward enough.

Mark - my mom and I were going to go to the Pottery Barn Kids in Corte Madera on Saturday, so perhaps we could stop by your house to drop off copies of the handouts on our way in or out. Send me directions again to your house if you would.

I'm not sure how we can get copies to you Jeff. I could drop them off to your place in SF if that works. Let me know.

Thanks, CV

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Mark Guinney [mailto:Mark_Guinney@watsonwyatt.com] Sent: Friday, February 16, 2001 8:58 AM To: Anil Sama; cvavrek@deloitte.com; Guinney@haas.berkeley.edu; Jeff_Dasovich@enron.com Subject: Re[2]: FIA assignment

Was the case materials handed out in class? If so, any care to fax it to me. Fax #415-733-4190.

Thanks

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator _____ Subject: Re: FIA assignment Author:
asama@yahoo.com (Anil Sama) Date: 02/16/2001 1:55 PM

Jeff, Mark:

Wondering where you were yesterday. Hope you didn't forget about the in-class quiz!

The next HW and writeup due next week seems like a heavy one. Do most of you have Monday off? I'll take a look at the case/HW Sa/Su, and prefer a meeting / conf call anytime Monday. Perhaps PM in the city if folks are working that day? Sunday PM (after 7) works for me too.

-Anil

--- "Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> wrote:

Congrats crew - we got a 9 on case #2. When is everyone available between now and Wed pm to talk about case #3 and the other homework? - cv Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105 phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Do You Yahoo!? Get personalized email addresses from Yahoo! Mail - only \$35 a year! <http://personal.mail.yahoo.com/> - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 21 of 1299

Re: FIA assignment: Monday pm?

Sender	jeff.dasovich@enron.com
Recipients	['jeff_dasovich@enron.com', 'cvavrek@deloitte.com', 'asama@yahoo.com', 'guinney@haas.berkeley.edu']
File	dasovich-j/all_documents/9229.

Got everything off of Izio. I'll start messing with it and report back tomorrow. If others want to do the same, have at it, and we can compare notes.

Best, Jeff

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> 02/16/2001 10:21 PM

To: Mark Guinney <Mark_Guinney@watsonwyatt.com>, Anil Sama <asama@yahoo.com>, Guinney@haas.berkeley.edu, Jeff_Dasovich@enron.com cc: Subject: FIA assignment: Monday pm?

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Thanks, CV

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

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Thanks

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_____ Reply Separator _____ Subject: Re: FIA assignment Author: asama@yahoo.com (Anil Sama) Date: 02/16/2001 1:55 PM

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Congrats crew - we got a 9 on case #2. When is everyone available between now and Wed pm to talk about case #3 and the other homework? - cv Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105 phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

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Message 22 of 1299

Enron Mentions

Sender	courtney.votaw@enron.com
Recipients	[]
File	dasovich-j/inbox/1487.

KENNETH LAY: THE SHOES ARE DROPPING BusinessWeek- 11/05/01 STOCKWATCH Enron shares resume fall, down 8 pct as SEC opens investigation AFX News- 11/01/01 USA: RESEARCH ALERT-Merrill lowers Enron rating. Reuters English News Service- 11/01/01 USA: UPDATE 1-Enron says gets \$1 billion in secured credit. Reuters English News Service- 11/01/01 Credit Suisse Says Citigroup Is Its Top Pick Dow Jones News Service- 11/01/01 Cohen, Milstein, Hausfeld & Toll, P.L.L.C. Files Class Action Suit Against = Enron Corporation Business Wire- 11/01/01 Enron Obtains \$1 Billion in Financing to Bolster Credit Facilities Dow Jones Business News- 11/01/01 Enron: EnronOnline Trading Volume Above Average Wed Dow Jones Energy Service- 11/01/01 USA: UPDATE 1-Before The Bell - Futures up with Microsoft. Reuters English News Service- 11/01/01 Enron stock price plunges again Associated Press Newswires- 11/01/01 Enron

Misled Investors about Overvalued Assets and Off-Balance Sheet Deals = -- ENE PrimeZone Media Network- 11/01/01 Inside Money TAKEOVER TALK INVIGORATES ENRON STOCK Orlando Sentinel- 11/01/01 Enron Gets New Bank Loans But Its Bonds Fall Further Capital Markets Report- 11/01/01 Enron Gets \$1 Bln Loan to Boost Cash, Credit rating (Update3) Bloomberg- 11/01/01 BG India: To Extend Enron Oil, Gas Field Operator Talks Dow Jones Energy Service- 11/01/01 INDIAN FINANCIAL INSTITUTIONS FAIL TO RESOLVE DABHOL POWER ISSUE Asia Pulse- 11/01/01 India: SCI to inject more funds into Greenfield Shipping Business Line (The Hindu)- 11/01/01 Mariner Energy sells pipelines The Daily Deal- 11/01/01 Enron and the curse of Drexel=20 CBS.MarketWatch.com- 11/01/01

In Business This Week: HEADLINER KENNETH LAY: THE SHOES ARE DROPPING By Stephanie Anderson Forest in Dallas=20 Edited by Monica Roman

11/05/2001 BusinessWeek 50 (Copyright 2001 McGraw-Hill, Inc.) When Enron CEO Jeffrey Skilling resigned abruptly in August after six months on the job, longtime Chairman Kenneth Lay assured investors that "there's no other shoe to fall." So much for the warning. On Oct. 16, the Houston-based energy giant reported its first quarterly loss in more than four years after taking \$1.01 billion in write-offs. It also disclosed a surprising \$1.2 billion charge to shareholder equity to help unravel complex transactions between Enron and partnerships that until recently had been overseen by former Chief Financial Officer Andrew Fastow. Then, on Oct. 22, Enron revealed that the Securities & Exchange Commission is probing those Fastow-related transactions. Two days later, Enron promoted Jeff McMahon to CFO and announced that Fastow will take a leave of absence. The setbacks have Lay, who has reclaimed the CEO post, scrambling. He must get operations back on track, fend off shareholder lawsuits, and, above all, rebuild credibility with investors.

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STOCKWATCH Enron shares resume fall, down 8 pct as SEC opens investigation

11/01/2001 AFX News (c) 2001 by AFP-Extel News Ltd NEW YORK (AFX) - Enron Corp shares were sharply lower, down more than 8 pct= at midsession, as investors continued to fear that the company's dealings = with the LJM partnership could bring heavy financial reprisals following the opening of a formal inquiry by the Securities and Exchange Commission, dealers said.=20 At 11.55 am, Enron was down 1.35 usd, or 9.57 pct, to 12.55. The DJIA rose 61.23 points to 9,136.44, the S&P 500 gained 8.76 points to 1=,068.40 points, the Nasdaq composite climbed 23.02 points to 1,713.40.=20 Yesterday, Enron announced the election of William Powers Jr to the board, = to chair a Special Committee that will examine and take any appropriate actions with respect to transactions between Enron and entities connected to related parties.=20 In addition to reviewing the transactions in question, the Special Committee = is charged with communicating with the SEC and recommending any other actions it deems appropriate.=20 While the investigation might take time to draw a conclusion, the immediate= cash crunch Enron has been facing is expected to be resolved, said Merrill Lynch analyst Duane Grubert.=20 One step in that direction came following Enron's announcement that JP Morgan and Salomon Smith Barney Inc have executed commitment letters to provide= 1 bln usd in secured credit lines supported by the company's Northern Natural Gas and Transwestern Pipeline assets.=20 Over time, Enron has several other options to raise cash, including cutting= its 400 mln usd per year dividend, cutting back on its 1500 mln usd of capital spending, and monetizing its July 2002 right to convert debt into 11.5= million shares of EOG, said Grubert.=20 The danger for the company now is that a "real or fabricated confidence crisis by Enron's counterparties threatens near term strength of the merchant = segment. Competitors could get mean, and could prematurely shun Enron, while trying to steal market share," he said.=20 blms/aw For more information and to contact AFX: www.afxnews.com and www.afxpress.com

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USA: RESEARCH ALERT-Merrill lowers Enron rating.

11/01/2001 Reuters English News Service (C) Reuters Limited 2001. NEW YORK, Nov 1 (Reuters) - Merrill Lynch on Thursday said it lowered both = its mid-term and long-term ratings for Enron Corp. , the No. 1 buyer and seller of natural gas, to "neutral," from "accumulate" and "buy," respectively, due to uncertainty about the U.S. Securities and Exchange Commission's investigation into the company's financial dealings.=20 Analyst Donato Eassey said in a research note that while he "has not altered his view of Enron's fundamentals or its ability to weather the long term = storm," he believes the noise surrounding the SEC's investigation will overpower any earnings analysis. "Ultimate outcome and underlying fundamentals aside, we believe significant= pressure and uncertainty will remain on Enron until the

investigation concludes," Eassey said. "The Houston-based company, whose stock has been sent into a tailspin by the probe, said on Wednesday the informal inquiry by the SEC had become a full-scale investigation of the company's finances. The stock slumped \$1.34, or nearly 10 percent, to \$12.56 in Thursday morning New York Stock Exchange trade. In the past week and a half, the stock has dropped to nine-year lows while losing \$17 billion in market value.

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USA: UPDATE 1-Enron says gets \$1 billion in secured credit.

11/01/2001 Reuters English News Service (C) Reuters Limited 2001. NEW YORK, Nov 1 (Reuters) - Enron Corp., facing a probe by U.S. regulators into its financial dealings, on Thursday said it obtained \$1 billion in secured credit lines to bolster investor confidence. Enron said J.P. Morgan, the investment banking arm of J.P. Morgan Chase & Co., and Citigroup Inc. unit Salomon Smith Barney Inc. will provide the credit, which will be secured by Enron's Northern Natural Gas Company and Transwestern Pipeline Co. assets. The proceeds will be used to supplement short-term liquidity and to refinance maturing obligations, Enron said. The commitments are subject to customary terms and conditions, including final due diligence, the company said. The announcement came shortly before opening trade on the New York Stock Exchange, where Enron shares plunged \$1.60, or 11.5 percent, to \$12.30. Earlier Thursday, brokerage house Merrill Lynch & Co. cut its rating on Enron to "Neutral/Neutral" from "Accumulate/Buy." The Securities and Exchange Commission said late Wednesday it was making an informal inquiry into Enron transactions a full-scale investigation.

Message 23 of 1299

HELP -- CEO email

Sender	joseph.alamo@enron.com
Recipients	['karen.denne@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/12893.

Steve Kirshch CEO Propel 1010 Rincon Circle San Jose CA 95131

ph. 408.571.6317 fax: 408.577.1070 e-mail: stk@propel.com

Vivek Ranadive CEO Tibco ph. 650.846.5001 e-mail: ranadive@tibco.com

Kenneth Oshman President & CEO Echelon 415 Oakmead Parkway Sunnyvale CA 94085 ph. 408.938.5244 fax 408.328.3805 e-mail: keno@echelon.com

John Doerr ph. 650.233.3353 e-mail: jdoerr@kpcb.com

----- Forwarded by Joseph Alamo/NA/Enron on 05/22/2001 11:37

AM ----- From: Jeff Dasovich on 05/22/2001 10:53 AM CDT Sent by: Jeff Dasovich To: Karen Denne/Corp/Enron@ENRON cc: Joseph Alamo/NA/Enron@Enron

Subject: HELP -- CEO email

I'll have Joseph clean up the letter and send you the email/fax #'s etc. for the list, for the cards that I gathered.

Best, Jeff

----- Forwarded by Jeff Dasovich/NA/Enron on 05/22/2001 10:51 AM -----

Karen Denne 05/22/2001 12:45 AM

To: Jeff Dasovich/NA/Enron@ENRON cc: Subject: HELP -- CEO email

Jeff -- Thanks for your phone message. I'm stuck and need your help. My Microsoft Word isn't working, and I want to send something out to the ceos asap tuesday. Can you clean up the letter? I'm fine w/ your edits (for the signature line, add "name, title") Pls send me the final letter so I can detach. i've left a message for steve and will wait to send until i hear from

him.

I'm didn't collect biz cards from everyone at the CEO meetings, and I need email and/or fax numbers for:

Tony Ridder Steve Kirsch Ken Oshman Fred Anderson Dan Scheinman Vivek Ranadive John Doerr Ray Irani

Can you send me the info from their cards? Call me if you have any questions. THANK YOU!!!

kd

Message 24 of 1299

RE: you & me & ian

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11075.

I'd love to talk but I never see you. I assume you are doing the big catholic thing for easter (not). I, of course, will be in San Diego.

Just give me some nights that work for you in the next couple weeks...

Have a good weekend!!

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Thursday, April 12, 2001 4:57 PM To: Cameron Sellers Subject: Re: you & me & ian

let's talk and figure out a time. i'm off for school now. Best, jeff

Cameron

Sellers To: "'Jeff.Dasovich@enron.com'"

<cameron@perf <Jeff.Dasovich@enron.com>

ect.com> cc:

Subject: you & me & ian

04/12/2001

05:44 PM

I would love for you to meet our new VP of Professional Services (who is, incidentally, now for all intents and purposes running our company). I think you will love him. He is very interested in the idea of working with Enron and I want you to meet him. Can we set up a dinner for the three of us sometime in the next couple weeks? I know your schedule is busy with school, so why don't you tell me a couple nights that work (other than Mondays) and I will make it work on our end. Please oh please.

Love,

Your Pal Cameron

P.S. Going to Colleen's new (to me) place for some wine tonight. I'll tell her hello for you?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 25 of 1299

10% OFF + Holiday Gift Guide

Sender	wine_enthusiast_1.um.a.5.6@webmail.wineenthusiast.net
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/inbox/1636.

Dear Wine Enthusiast,

This past week, we experienced technical difficulties with our email service and the email you received may not have functioned properly. We sincerely apologize for this inconvenience. We welcome you to come back and browse our wonderful holiday entertaining and gift collection with the added bonus of 10% OFF* until 11/30/01. Please remember to use the code E21A when ordering.

Thank you and happy holidays.

Visit us at - <http://webmail.wineenthusiast.net/UM/T.asp?A5.6.4.1.50456>

Order online or call 1-800-356-8466 Use code E21A at checkout

THE ESSENTIALS FOR HOLIDAY ENTERTAINING & GIFT GUIDE Plus 10% OFF until 11/30/01

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ONE OF A KIND GIFTS Monogram these wonderful items to add a personal touch Click here - <http://webmail.wineenthusiast.net/UM/T.asp?A5.6.4.4.50456>

WINE LOOPS AND CHARMS FOR EVERY OCCASSION Click here - <http://webmail.wineenthusiast.net/UM/T.asp?A5.6.4.5.50456>

DELECTABLE CULINARY DELIGHTS Click here - <http://webmail.wineenthusiast.net/UM/T.asp?A5.6.4.6.50456>

COMPACT CELLARS - ESSENTIAL FOR ENTERTAINING Click here - <http://webmail.wineenthusiast.net/UM/T.asp?A5.6.4.7.50456>

*This offer expires on 11/30/01 and cannot be combined with any other offer.

You are receiving the email because you have subscribed to Enthusiast Essentials. If you would like to remove yourself from this list, please click: <http://webmail.wineenthusiast.net/UM/U.asp?B5.6.6.50456> and you will be removed immediately! Thank you!

Message 26 of 1299

FREE Gift with Purchase of \$250

Sender	wine_enthusiast_1.um.a.5.23@webmail.wineenthusiast.net
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/deleted_items/2082.

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Message 27 of 1299

RE: FW: Rocky Grass Academy Waiting List

Sender	cameron@perfect.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/10202.

Face is a little better. I worked from home yesterday because I looked like a freak.

I leave for Chicago tomorrow around 4pm and get back Thursday night.

ROI is attached. Please tell me anything you can at first bluch. We can talk about it in more detail in mexico. Hey...its better than hanging out with Aunt Bobbie and Uncle Glenn!!

<<perfect roi model.XLS>>

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [<mailto:Jeff.Dasovich@enron.com>] Sent: Tuesday, March 20, 2001 3:19 PM To: Cameron Sellers Subject: Re: FW: Rocky Grass Academy Waiting List

Hey babe. I called you last nite re: ROI model, but only got the answering machine. Forward along to me and I'll take a peek and get back to you. How's the face doing? When do you leave on travel?

Cameron

Sellers To: ""PP"" <psellers@pacbell.net>, ""Scott <cameron@perf Laughlin"" <scottwl@hotmail.com>, ect.com> ""Jeff.Dasovich@enron.com""

<Jeff.Dasovich@enron.com>

03/20/2001 cc:

05:12 PM Subject: FW: Rocky Grass Academy Waiting List

FYI

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Matthew Bretz [mailto:circlex@earthlink.net] Sent: Monday, March 19, 2001 11:06 PM To: sally@bluegrass.com Subject: Rocky Grass Academy Waiting List

Hiya,

Sorry to be a pest but.... Can you get any idea from Steve's past experience whether the rest of my friends who are on witing lists are liable to get into their workshops? Scott Laughlin Mandolin Jeff Dasovitch Guitar Prentiss Sellars Banjo

Thanks,

Matty

- perfect roi model.XLS

Message 28 of 1299

FW: SFSU Cogen Relocation - Gas Metering

Sender	geoff.pollard@enron.com
Recipients	['john.larsen@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/interconnection/10.

Jeff, I am seeking your advice/assistance on an issue with PG&E at San Francisco State University. The attached message indicates that PG&E in unable to meet our schedule requirements for the installation of meters on our generator relocation project at SFSU. We have been working since April to try and ensure this problem would not occur. PG&E has consistently either not responded or been slow to respond. When we did hear back from them, they always assured us that there would be no problem, but they never made firm committments in their responses. Even now they are not providing firm dates.

The delays they are causing will create substantial customer satisfaction problems, and subjects us to Liquidated Damages of \$850 per day.

I have a call into Bob Kinert at PG&E to inform him of our mutual customer satisfaction issue. I am hoping he will be able to take action to improve the schedule. What steps do you reccommend if Bob is of little or no assistance?

Thanks for your timely support.

Geoff Geoff Pollard, PE Account Manager UC/CSU Program Enron Energy Services 925-543-3763

-----Original Message-----

From: Larsen, John Sent: Thursday, December 09, 1999 11:22 AM To: Pollard, Geoff Subject: FW: SFSU Cogen Relocation - Gas Metering

Geoff, I guess now would be the time for you to implement your plan. John E. Larsen Enron Energy Services 12647 Alcosta Blvd., Suite 500 San Ramon, California 94583

925-543-3827 925-543-3550 FAX john_larsen@enron.com

-----Original Message-----

From: "Feiling, Mark" <MAF0@pge.com <mailto:MAF0@pge.com>>@ENRON@EES Sent: Thursday, December 09, 1999 4:55 PM To: Larsen, John Subject: RE: SFSU Cogen Relocation - Gas Metering

John, I received a message from our gas planning department that they have not received approval from our general office, they expect it within the next two weeks . Estimating still has the job and will release it as soon as they get the word. I do not believe we will meet your date of December 20th it will be more like the 15th of January. I apologize for the delay we are working as fast as we can with the resources that we have. Thanks, Mark

From: John Larsen[SMTP:John_Larsen@enron.com] <mailto:[SMTP:John_Larsen@enron.com]> Sent: Wednesday, November 03, 1999 11:20 AM To: Feiling, Mark Subject: RE: SFSU Cogen Relocation - Gas Metering Mark, We still have not received anything from you regarding the gas metering engineering for the reinstallation of the Waukesha at the SFSU Central Plant. Will the meter that you removed from Verducci be reused? Are you still scheduled for installation the week of November 14, 1999? Thanks Mark. John E. Larsen 925-543-3827 Enron Energy Services West 925-543-3550 FAX 12647 Alcosta Blvd., Suite 500 John_Larsen@enron.com San Ramon, California 94583 -----Original Message----- From: "Feiling, Mark" <MAF0@pge.com <mailto:MAF0@pge.com>>@ENRON@EES Sent: Thursday, October 28, 1999 6:51 PM To: Larsen, John Subject: RE: SFSU Cogen Relocation - Gas Metering _

Message 29 of 1299

Re:	
Sender	madeleinet@earthlink.net
Recipients	[jdasovic@enron.com]
File	dasovich-j/personal/9.

Jeff: Great! Give me just a couple of days to confirm the exact date. Go ahead and write Lari to see when she is available as she'll probably be the hardest person to juggle around.

Now here is a question for you....Rob has been wanting to go up to RRR and check it out but he'd probably be 1/2 day on the beach as other non-riders have been with us in the past. Would this be ok with you or shall I schedule with him for another time? I'm easy either way. Besides Rob the only other people could possibly be Jeff or Alice as the girls (Nora, Kari, Pat) are hot on the summer show circuit. I could always ask, just let me know.

Would you like me to call the B&B we stayed at and get their availability? What is the name?

Madeleine

jdasovic@enron.com wrote:

29th/30th works best for me. those other dates, if they open up, i think would work, too. i'm really sorry i missed you guys yesterday. when kair asked way back when, i had a conflict on that day. fine with me if we ask others, though it's sort of fun when it's small, with like-minded folks. you're call. let me know and i'll write lari a note pronto. sorry to see carl move. best, jeff Madeleine Todd <madeleinet@earthlink.net> on 06/12/2000 03:09:44 PM To: jdasovic@enron.com cc: Subject: Re: I am so sorry for the delay! I wanted to make sure I had a better idea of my schedule. I am thinking the following..either the weekend of the 8th, 9th; the 29th or 30th. I may go to Chicago the 15th or 22nd which I'll know about within the next couple of days thus one more weekend may open up. What are your thoughts? Do you want to check Lari's schedule? Anyone else we should ask? We missed you on Sunday. The whole gang was there minus Lisa. Carl leaves in 2 weeks. They decided to move because he felt his career with the City would never go where he wanted it to go. I can explain the rest later. Madeleine jdasovic@enron.com wrote: > Hello out there. Hello? > > Madeleine Todd <madeleinet@earthlink.net> on 06/05/2000 11:01:26 PM > > To: Jeff Dasovich <jdasovic@enron.com> > cc: > Subject: Re: > > Jeff: > Well June appears to be shot already! I had to move a couple of things into > the > weekend of the 23 & 24th. Did you have your heart set on June? Could you do > something in July? What days were you thinking Fri, Sat and Sunday? Keep me > posted. > > Carl's sudden move is a mystery to me. I thought he was going to wait a few > years > to move to SD but then I got Kari's e-mail. I know he and Carol have had

> their eye > on SD for sometime. I guess we'll find out on the 11th! > Keep me posted on RRR, > Madeleine > > Jeff Dasovich wrote: > > > Hi Darlin': > > I'm back. Have we picked a weekend to ride with Lari? What's this about > Carl > > moving????? I thought he just bought a house? > > > Signed, > > Confused > > -- > > Madeleine Todd Executive Recruiting > 1329 Taylor Street, Suite 114 > San Francisco, CA 94108-1047 > phone: 415-441-7010 > fax: 415-441-7173 > email: madeleinet@earthlink.net -- Madeleine Todd Executive Recruiting 1329 Taylor Street, Suite 114 San Francisco, CA 94108-1047 phone: 415-441-7010 fax: 415-441-7173 email: madeleinet@earthlink.net

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Madeleine Todd Executive Recruiting 1329 Taylor Street, Suite 114 San Francisco, CA 94108-1047 phone: 415-441-7010 fax: 415-441-7173 email: madeleinet@earthlink.net

Message 30 of 1299

RE: Friday

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com', 'amccauley@portera.com', 'amy.hood@gs.com', 'srogers@jamcracker.com']
File	dasovich-j/all_documents/11209.

That's the ticket on the recipe. I can give you some more ideas if you like. Please let Prentice and me know what we can do to pitch in.

Best, Jeff

"Rogers, Sarah" <srogers@jamcracker.com> 04/17/2001 03:53 PM

To: "'Cameron Sellers'" <cameron@perfect.com>, "Alison McCauley (E-mail)" <amccauley@portera.com>, "Amy Hood (E-mail)" <Amy.Hood@gs.com>, "Mari Nayvelt (E-mail)" <mnayvelt@yahoo.com> cc: "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com> Subject: RE: Friday

I plan to be booting everyone out of my house before/upon my return from the airport, if you catch my drift, but perhaps we can place some people in Amy Hood's upstairs abode to slave away? Or you can just come at 5:30 or 6? I've told people to come at 7:30, I think, but I am pretty flexible on that.

Amy Hood will provide salad plates, and I think my regular dinner plates are big enough to fit pasta and steak/potatoes/radish salad (which is really a garnish anyway). Does that work?

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Tuesday, April 17, 2001 1:57 PM To: 'Rogers, Sarah'; Cameron Sellers; Alison McCauley (E-mail); Amy Hood (E-mail); Mari Nayvelt (E-mail) Cc: 'Jeff.Dasovich@enron.com' Subject: RE: Friday

I think it all sounds great. I can probably be at your house around 2pm or so. It looks like you might be off to the airport, but we can coordinate and hopefully someone else might be around. I can make the dressing on Thursday night. I would also be happy to make anything on Thursday that I can. I'll look at the recipes tonight and let you know what I can do ahead of time.

The only thing missing that the birthday boy requested is truffle pasta (and Jeff this is where you come in). This might be very easy and if it is I will take care of it and serve it before the steaks. If I can do it then you might even drop an appetizer (or we'll never get to the cake). Jeff, can you help me with this pasta? Essentially he wants a light truffle pasta like we had everywhere in Tuscany. We have those truffles in jars - any idea what to do with them. We also have truffle oil. If all else fails, I am prepared to cook some fettuccini, slice up one of a truffles, mix in some olive oil and truffle oil and toss. What do you think??

What time are we tell the non-preparers to come??

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Rogers, Sarah [mailto:srogers@jamcracker.com] Sent: Tuesday, April 17, 2001 1:26 PM To: Cameron Sellers (E-mail); Alison McCauley (E-mail); Amy Hood (E-mail); Mari Nayvelt (E-mail) Subject: Friday

Chicks,

Friday approaches. Alison has graciously volunteered to deal with flowers, and Amy H is going to make a cake. Here is my suggested menu:

Champagne/wine/cocktails (I have) Savory biscotti to dip into medium-bodied red wine (from Martha Stewart) Smoked salmon nori stacks (from Martha Stewart) Moroccan salmon on bamboo skewers (from Martha Stewart) Fancy-looking crudites presented nicely in glasses and whatnot with buttermilk dip (from Martha Stewart) Iceberg wedges with roquefort dressing (Cameron's mom's recipe) Steak with wasabi mashed potatoes and daikon radish salad (April 2001 Bon Appetit) Cake (Amy) Port/champagne/etc (I have some)

I am going to go to the grocery store on Thurs afternoon and could potentially make the biscotti then. I have picked things that I think will look impressive but not be impossible to get done (a) relatively quickly and (b) ahead of time. I think the mashed potatoes can also be done ahead of time.

I may have a conference call on Fri from 9-11, but I hope to put it on mute while I chop things. I will have to do some work and also pick up Bob at the airport at 2:30, but any help is welcomed (either in person or on your own separately). Let me know what your plan is and what you'd be interested in doing, as well as any questions or concerns you have about le menu.

This will be soooooooooo fun!

SER

Sarah Rogers Solutions Marketing Jamcracker, Inc. 19000 Homestead Rd. Cupertino, CA 95014 p: 408-725-4301 f: 408-725-4310

www.jamcracker.com - Sounds like a job for Jamcracker.

More about the Jamcracker solution: www.jamcracker.com/solution/s1.shtml

Jamcracker in the news: www.jamcracker.com/news/n1.shtml

Message 31 of 1299

RE: Friday

Sender	amy.hood@gs.com
Recipients	['jeff.dasovich@enron.com', 'cameron@perfect.com', 'amccauley@portera.com', 'srogers@jamcracker.com']
File	dasovich-j/all_documents/11211.

Everyone is welcome at my humble abode to chop/dice/cut whatever they please whenever they please - I will not be there, but will leave a key if you guys are interested in using the space - just let me know and it is all yours as sadly I apparently am expected to work that day.

Amy Hood

-----Original Message-----

From: Rogers, Sarah [mailto:srogers@jamcracker.com] Sent: Tuesday, April 17, 2001 1:54 PM To: 'Cameron Sellers'; Alison McCauley (E-mail); Amy Hood (E-mail); Mari Nayvelt (E-mail) Cc: 'Jeff.Dasovich@enron.com' Subject: RE: Friday

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Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

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From: Rogers, Sarah [mailto:srogers@jamcracker.com] Sent: Tuesday, April 17, 2001 1:26 PM To: Cameron Sellers (E-mail); Alison McCauley (E-mail); Amy Hood (E-mail); Mari Nayvelt (E-mail) Subject: Friday

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Sarah Rogers Solutions Marketing Jamcracker, Inc. 19000 Homestead Rd. Cupertino, CA 95014 p: 408-725-4301 f: 408-725-4310

www.jamcracker.com - Sounds like a job for Jamcracker.

More about the Jamcracker solution: www.jamcracker.com/solution/s1.shtml

Jamcracker in the news: www.jamcracker.com/news/n1.shtml

Message 32 of 1299

FW: Comments on OFO Settlement

Sender	salleyoo@dwt.com
Recipients	[jeff.dasovich@enron.com', 'gworster@txuenergy.com', 'lindseyhowdowning@dwt.com', 'jweil@aglet.org']
File	dasovich-j/all_documents/195.

Please let me know at your earliest convenience, whether the comments, declaration and matrix meet with your approval. As noted below, PG&E will be signing the comments on behalf of all consenting OFO Settlement parties.

Salle E. Yoo Davis Wright Tremain One Embarcadero Center, Suite 600 San Francisco, CA 94111 Tel. 415 276-6564; Fax 415 276-6599 salleyoo@dwt.com

-----Original Message----- From: Yoo, Salle Sent: Wednesday, November 17, 1999 2:32 PM To: 'Amirault, Paul'; 'Craig Chancellor'; 'Gerald Worster'; 'Grant Kolling'; 'James Weil'; 'Jeff Dasovich'; 'John Leslie'; 'Marcel Hawiger'; 'Mark Baldwin'; 'Mark Pocha'; 'Michael Rochman'; 'Raveen Maan'; 'Rich Hall'; 'Ron Oechsler'; 'Tom Solberg'; 'Timothy J Hamilton'; 'plg@cpuc.ca.gov'; 'mark.c.moench@wgp.twc.com'; 'mday@gmssr.com'; 'jmct@gmssr.com' Cc: How-Downing, Lindsey Subject: FW: Comments on OFO Settlement Enclosed is a copy of the proposed Comments of the Settlement Parties in Support of the OFO Settlement. ("Comments") The Comments address the specific issues raised by ALJ Biren at the last prehearing conference as laid out below in our previous email. I am also attaching a copy of the Declaration of Dan Thomas (addressing how the Settlement is in the public interest) and the matrix developed by PG&E that compares the terms of the OFO Settlement to those in the Gas Accord. In order to expedite the process, PG&E has suggested that it, as a representative of all settlement parties, be the sole signatory to the Comments. Therefore, please review the enclosed documents, provide any revisions and an indication of your assent/dissent to having PG&E sign the document on your behalf by end of business tomorrow (Thursday, November 18). The deadline for filing the Comments in Monday, November 22. If you have any questions, please do not hesitate to call. Salle E. Yoo Davis Wright Tremain One Embarcadero Center, Suite 600 San Francisco, CA 94111 Tel. 415 276-6564; Fax 415 276-6599 salleyoo@dwt.com <<Comments_OFO.doc>> <<dft-dec.doc>> <<chart.doc>> -----Original Message----- From: Yoo, Salle Sent: Monday, November 15, 1999 11:16 AM To: 'Amirault, Paul'; 'Ben Ledene'; 'Craig Chancellor'; 'Grant Kolling'; 'Jeff Dasovich'; 'John Leslie'; 'Marcel Hawiger'; 'Mark Pocha'; 'Michael Rochman'; 'Raveen Maan'; 'Ron Oechsler'; 'Tom Solberg'; 'Rich Hall'; 'Mark Baldwin'; 'Timothy J Hamilton'; 'pgg4@pge.com' Cc: 'Katie Elder'; How-Downing, Lindsey Subject: Comments on OFO Settlement CONFIDENTIAL AND PRIVILEGED COMMUNICATION SUBJECT TO CPUC RULE 51 As you recall, at the prehearing conference, Judge Biren directed the OFO settlement parties to provide her with additional information regarding the OFO settlement. Friday, Nov.12, Patrick Golden and I had a follow-up conversation with Judge Biren to confirm the procedure by which she desires to receive the information. As a result of the call, Patrick and I suggest that the OFO settlement parties file joint "Comments Supporting Settlement" on Nov 22, along with any other party which may file comments on the settlement. Our comments would encompass the following: 1) The settlement is in the public interest as attested by an attached declaration. 2) The settlement does not constitute a change in the basic Gas Accord settlement; it merely refines implementation details on the Gas Accord. As a result, no hearings are necessary on the settlement. 3) Neither SB1602 nor 1421 impact immediate Commission approval of the settlement. 4) The settlement is intended to be a final, not an interim, settlement. With respect to Judge Biren's request for declarations (which she reconfirmed despite agreeing that Rule 51 does not require declarations), Patrick and I discussed having the settling parties provide one declaration from PG&E outlining the reasons why the settlement is in the public interest, and having the PG&E declarant be authorized to state that the following parties authorize him to state that they support his declaration. Judge Biren confirmed that any replies to our comments would be due along with all other reply comments on the settlement. If you have any comments or suggestions on this approach, please let either Salle Yoo or me know ASAP. Lindsey How-Downing Davis Wright Tremain LLP One Embarcadero, Suite 600 San Francisco, California 94111 Phone 415-276-6512 Fax 415-276-6599 Email lindseyhowdowning@dwt.com

- Comments_OFO.doc - dft-dec.doc - chart.doc

Message 33 of 1299

Re:RE: Group Project

Sender	jeff.dasovich@enron.com
Recipients	['sama@haas.berkeley.edu', 'mark_guinney@watsonwyatt.com', 'cvavrek@deloitte.com', 'jdasovic@enron.com']
File	dasovich-j/sent/3673.

We can discuss and decide over the break.

Best, Jeff

"Mark Guinney" <Mark_Guinney@watsonwyatt.com> 03/14/2001 09:35 AM

To: "Vavrek; Carolyn (US - San Francisco)" <cvavrek@deloitte.com>, "vavrek@haas.berkeley.edu" <vavrek@haas.berkeley.edu>, "sama@haas.berkeley.edu" <sama@haas.berkeley.edu>, "jdasovic@enron.com" <jdasovic@enron.com> cc: Subject: Re:RE: Group Project

Anil,

Questions for you: Is Zircom in an easily definable industry so we can make comparable studies and valuations? Is their much public history of the firm? Will such an acquisition have a significant influence on Intel's earnings (my guess is no since Zircom's latest annual revenue was only \$500 million versus Intel's \$20+ billion revenue)? Can we make reasonable future estimates of Zircom's financial statements and business lines?

I, for one, have little knowledge or confidence in myself of analyzing a tech company. Given the fact that Anil is the only person in the industry from our group we would be heavily reliant on him to give us strategic insight on the companies and their businesses. My preference- an industry that is relatively more stable and simple for all of us to understand. While we don't have to do Amazon specifically, I would like an industry or company that won't require an immersion of readings just to understand the product, sales distribution, clients, distributors, etc. Remember, we have to make guestimates about the future of the industry and predict sales, costs, etc. The nice thing about Amazon (or a similar company) is that it is merely an Internet twist on an industry with a very long history and an easy to understand business model. Webvan could be another example.

Another idea: Trying to value Fidelity Investments- a private company. The nice thing about this exercise is that there is a lot of data on comparable companies (T. Rowe Price, Zurich Scudder, Franklin Templeton) and some public information on Fidelity. A good portion of our valuation would be based on assumptions which means that as long as we can support our assumptions we can't be wrong.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

_____Reply Separator_____ Subject: RE: Group Project Author: cvavrek@deloitte.com (Vavrek; Carolyn (US - San Francisco)) Date: 03/14/2001 1:03 PM

My vote is for analyzing the Intel purchase because we have access to some inside info, Anil is well versed in this industry (I assume) so we could do some good comps analysis and it seems like the right size case for us. We could easily send Sarah the link Anil sent us and say that we are going to analyze this acquisition. I am also open to the Amazon analysis, although I am not as excited about analyzing such a popular issue.

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Mark Guinney [mailto:Mark_Guinney@watsonwyatt.com] Sent: Tuesday, March 13, 2001 5:11 PM To: vavrek@haas.berkeley.edu; sama@haas.berkeley.edu; jdasovic@enron.com Subject: Group Project

I was just brainstorming on potential projects. I thought that an interesting and fairly relevant topic could be a current evaluation of Amazon.com and how the projected revenues & profits relate to the current stock price. We could also provide some historical perspective on all realistic Amazon's stock price was a year or two ago relative to a discounted cash flow. I can fairly easily get my hands on some Wall Street analyst research reports that could provide us with some insights and hints as to what Wall Street is expecting. Most of our time can be spent creating a discounted cash flow model similar to what we have been doing in class. Since the jury is still out on Amazon's business model, I think it would make for some interesting debate in class when we present our model.

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Enron Mentions - 05/20/01

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New Mix Needed to Fuel Energy Future Los Angeles Times, 05/20/01

Developing Energy Bill Ignites Power Scramble The Washington Post, 05/20/01

Few flip the switch on electricity trial / Pilot program previews deregulation Houston Chronicle, 05/20/01

Electric deregulation fails to excite residential customers Associated Press Newswires, 05/20/01

Qatar Oil Min: Talks Progressing On Gas Exports To Kuwait Dow Jones Energy Service, 05/20/01

IRAN: OPEC unlikely to alter output at June meet-Qatar. Reuters English News Service, 05/20/01

India: Enron serves termination notice The Hindu, 05/20/01

India: Centre to wash its hands off DPC? The Hindu, 05/20/01

India: Notice improper, says Deshmukh The Hindu, 05/20/01

Business; Financial Desk JAMES FLANIGAN New Mix Needed to Fuel Energy Future JAMES FLANIGAN

05/20/2001 Los Angeles Times Home Edition C-1 Copyright 2001 / The Times Mirror Company

For all the debates about President Bush's national energy policy, the issues are more simple than complicated. The most basic fact pushing the new policy is an Energy Department projection that U.S. use of electricity will grow seven times faster in the next two decades than it has in the last 10 years. And, of necessity, that growth will have to be satisfied with a different mix of fuels. Today 52% of the nation's electric power is generated by burning coal and 16% comes from burning natural gas. But natural gas is the growth element, projected to supply 33% of U.S. electricity 20 years from now. Coal will continue to be the largest factor in electricity generation, the Bush plan states, but its role will decline because of environmental considerations. Techniques already in use--such as turning coal to gas before burning--can eliminate most of the polluting sulfur and nitrogen oxides. But coal's inefficient combustion generates high levels of carbon dioxide and accompanying concerns about global warming, so its use will be in relative decline. That's why the energy policy talks of increasing the use of nuclear power, which supplies 20% of U.S. electricity. And that's also why the heart of the program supports exploration for natural gas and the building of pipelines to increase the availability of that efficient, relatively clean fuel. Why is energy use projected to rise faster than it has in the recent past? Because the use of computer networks that today control the functioning of most institutions in society--companies, schools, government--is already increasing. Such

networks demand electric power that is far more reliable than ever before. And those demands have pushed the infrastructure of transmission lines and other facilities to the breaking point. So a major thrust of the new policy is to support the modernizing of transmission systems and other infrastructure. The plan's very existence is positive, business people say. It's an antidote to local bickering. "We now have a plan about energy expansion, so a national dialogue can begin," says Mark Stevens, head of strategic planning for Fluor Corp., a major engineering and construction company based in Aliso Viejo in Orange County. The new policy offers a stark contrast to the past. During the last major energy crisis, which began with the 1973 oil embargo, government policy aimed to allocate scarce resources. Utilities were restricted from burning natural gas to produce electricity, for example. Now the aim is to increase production of fuels and energy. A sure consequence will be lower prices for oil and natural gas within a few years, energy experts say. From current levels of \$4 to \$5 per thousand cubic feet, natural gas "will be selling for \$3 to \$4 by 2003," says Thomas Robinson of Cambridge Energy Research Associates. Such price levels, however, still will be more than double those of most years in the last decade. So the businesses of exploration, production and delivery of natural gas will remain brisk. Current U.S. consumption of natural gas is nearly 23 trillion cubic feet a year, up 21% from a decade ago. Pushed by such demand, industry is investing in major projects--such as the natural gas pipeline from Prudhoe Bay in northern Alaska down through Canada, on which design and engineering are underway. Oil field and gas service companies such as Halliburton Co. and BJ Services Co. have been working flat out for more than a year. Companies that survived lean years when oil and natural gas prices were low, such as Global Marine Inc., now are thriving. Under the Bush proposals, exploration for natural gas in the Rocky Mountains and other land areas would increase. That would mean even more work for drilling and production companies such as Helmerich & Payne Inc., Noble Affiliates Inc. and Noble Drilling Corp., which have been reaping higher sales and earnings after half a decade of lean times. Imports of natural gas will grow. Mexico's natural gas, now being flared as it comes up with oil in the Bay of Campeche, surely will find its way north to markets in the U.S. and northern Mexico, either as liquefied natural gas or through pipelines that will be constructed. A main thrust of the Bush proposals will be to modernize and expand electric transmission lines. And here again the new policy is focused on programs already underway. The Federal Energy Regulatory Commission is working to set up new kinds of private companies, called regional transmission organizations, that would buy transmission lines from investor-owned and municipal utilities and ultimately meld them into a national grid. Such RTOs, financed by institutional investors, would increase the flow of electricity across the country and, in theory, eliminate bottlenecks. That would enhance the growing practice of many utilities and companies such as Enron Corp. of trading electricity in financial futures markets. PG&E Corp. and Sempra Energy, the holding companies for two of California's three big investor-owned utilities, operate large power trading businesses. But legislation would be required to establish RTOs and to acquire local transmission lines, and that issue should lead to pitched battles in Congress. With its devotion to infrastructure, the White House energy plan is certain to give increased work to engineering and construction companies--Fluor, Bechtel Group Inc., Jacobs Engineering Group Inc., URS Corp. and Washington Group International Inc.--that already have heavy backlogs. "We'll be hiring engineers," says Fluor's Stevens--if he can find them. The numbers of engineering graduates from U.S. universities have been declining, but as a result of opportunities presented by the Bush energy program, enrollments in engineering schools could increase. Or U.S. companies could draw on engineering expertise at their subsidiaries in Asia and Europe, where engineering graduates still are in abundance. Bush's energy plan, if most of its proposals win approval in Congress, would serve as a catalyst for investment in electric power generation and oil and natural gas production, as well as research on coal, nuclear and, to a lesser extent, wind and solar power and other forms of renewable energy. Such investment always has a ripple effect on other industries. Even in the 1970s, this brought surpluses and lower prices for energy, which benefited companies in sectors as diverse as chemicals, food processing and tourism. That is this plan's aim also, as we look ahead to "interesting times," in the Chinese proverb's ambivalent phrase, for U.S. energy prospects and the economy. * James Flanigan can be reached at jim.flanigan@latimes.com. (BEGIN TEXT OF INFOBOX / INFOGRAPHIC) Energy Disparity Fuel sources for electricity in California and other states contrast sharply. California burns less

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Enron Mentions - 4/30/01

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UK: UPDATE 1-Scot Power in talks to buy Portland-sources Reuters, 04/30/01

India State Panel Set Up To Rework Dahbol Power Pact Dow Jones, 04/30/01

SURVEY - ENERGY & UTILITY REVIEW: US edges closer to new energy policy Financial Times, 04/30/01

ENERGY & UTILITY REVIEW: Move to build a stronger base on alternative cleaner power Financial Times, 4/30/01

BRAZIL: UPDATE 1-Petrobras to buy Enron stakes in Brazil gas firms Reuters, 04/30/01

Petrobras to Buy Enron's Stake in CEG, CEG-Rio Gas Distributors Bloomberg, 04/30/01

Brazil/Petrobras/CEG -2: Price Tag Seen About \$200 Mln Bloomberg, 04/30/01

Brazil Petrobras Seen Paying \$240M For CEG Stake Dow Jones, 04/30/01

Brazil's Petrobras Agrees to Buy Enron's Stake in Natural Gas Distributor CEG Dow Jones, 04/30/01

Brazil Petrobras To Buy Enron's Stake In Gas Co CEG Dow Jones, 04/30/01

Foreign bids for Saudi gas projects passed on to Fahd's petroleum council Agence France-Presse, 04/30/01

UK: FACTBOX-LME membership changes over last 15 years Reuters, 04/30/01

GOLDEN TRIANGLE RESOURCES NL: Progress Report - Other (Part B : Section 02 Of 02) Australian Stock Exchange Company Announcements, 04/30/01

eZoka adds up for SMEs M2 Presswire, 04/30/01

Atlantic Quay Watch Bloomberg, 04/30/01

UK: UPDATE 1-Scot Power in talks to buy Portland-sources By Andrew Callus 04/30/2001 Reuters English News Service (C) Reuters Limited 2001. LONDON, April 30 (Reuters) - Scottish Power Plc has held talks with Enron Corp about buying its Portland, Oregon-based power utility Portland General, a good geographic fit for the British group's existing U.S. arm PacifiCorp, industry sources said on Monday. "It's an obvious one and, yes, there have been discussions," said one source speaking after the official breakdown last week of energy trader Enron's talks to sell Portland to Nevada-based utility Sierra Pacific Resources Corp . PacifiCorp operates in six U.S. states including Oregon, and has its headquarters in Portland, the state capital. Utility holding company Sierra had been preparing to pay about \$2 billion for Portland and assume \$1 billion in debt. But the deal ran into trouble as the U.S. West Coast power crisis unfolded earlier this year, and talks were officially called off last Thursday. Reports that Britain's biggest utility may step in for Portland's 700,000 customer base and 2,000 megawatts of generating capacity surfaced at the weekend in Britain's Observer newspaper. PacifiCorp faces its own power crisis fallout, including \$1 million a day buying-in costs resulting from the failure of one of its generators. The problems have helped depress Scottish Power's share price to a point where it now registers five percent UK sector underperformance over the past two years. And analysts said Portland has a significant exposure to current high U.S. power prices, with only about 2,000 megawatts of its own generating capacity but 3,700 megawatts of peak demand to satisfy. U.S. utility acquisitions are always fraught with regulatory difficulties and in this case an additional regulatory complication is that Portland owns a decommissioning nuclear power station. COST SAVING OPPORTUNITIES Nevertheless, Scottish Power has said it intends to expand further in the U.S. to exploit opportunities for merger cost savings in a highly fragmented market - The group's English rival National Grid Group was able to take out 40 percent of New England utility EUA's cost base by merging it with neighbouring power group NEES last year. Its current weak share price and lack of cash after the PacifiCorp buy has hindered development, but in March it made clear it might sell its UK water business, Southern Water. The proceeds are earmarked for acquisition purposes, and industry sources have put the price sought at 1.7-1.8 billion pounds (\$2.4-2.6 billion). Enel of Italy has confirmed an interest. On Monday,

Scottish Power was tightlipped. "We do not comment on market speculation," said a spokesman. But analysts said Portland was an obvious choice, given that it serves mainly the city of Portland and its surrounding area, in the middle of one of PacifiCorp's key markets. "It's hard to see them finding a better company to buy in terms of geographic fit and potential cost savings," said Peter Atherton of Schroder Salomon Smith Barney, who released a note last week pointing out the opportunity. But he is wary of the move. "On the surface selling Southern Water and acquiring PGE (Portland)... would appear attractive for SPW," said the research note. "However the loss of Southern Water's predictable earnings profile would, at least short term, put pressure on earnings and dividend cover." Scottish Power will face questions about Portland and Southern Water at its annual results presentations on Thursday this week. Analysts predict pretax profit before goodwill amortisation and exceptional items of 612-643 million pounds for the year to March 2001 down from 736 million a year earlier. Lower wholesale prices and regulatory price cuts on retail and distribution in the UK will more than offset the effect of a complete full year contribution from PacifiCorp, which only fed into Scottish Power's profits for four months in the previous year. A change to accounting practices which alters the way deferred taxation is treated will also account for about 40 million pounds of the profit fall, analysts said, with higher telecoms losses also a factor.

India State Panel Set Up To Rework Dabhol Power Pact

04/30/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW DELHI -(Dow Jones)- India's Maharashtra state government Monday appointed a nine-member committee to renegotiate the controversial power purchase agreement with the U.S. energy major Enron Corp.'s (ENE) Indian unit Dabhol Power Co., the Press Trust of India reported Monday. The government has asked the committee, headed by former federal Home Secretary Madhav Godbole, to attempt to negotiate a revised agreement within a month, the PTI said. The committee's goals are to bring down the power tariff and allow the sale of excess power to the federal government or its utilities, the PTI said. A restructure of Dabhol's stakeholding may also be on the agenda. The \$3 billion, 2,184-megawatt Dabhol project has been mired in financial disputes after the Maharashtra State Electricity Board, its main customer, failed to pay several bills. The project has the largest single foreign investment in India. Texas-based Enron has a 65% stake in Dabhol Power, and is the project's largest shareholder. Other shareholders include the MSEB with 15% and General Electric Co. (GE) and Bechtel Enterprises (X.BTL) with 10% each. -By Himendra Kumar, Dow Jones Newswires; 91-11-461-9427; himendra.kumar@dowjones.com

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SURVEY - ENERGY & UTILITY REVIEW: US edges closer to new energy policy: The recent power crisis in California has raised American awareness of the situation and the Bush administration seems to be more committed to the problem, writes David Buchan Financial Times, Apr 30, 2001 By DAVID BUCHAN The US is striving towards some kind of energy policy. When it eventually gets one, the impact on the rest of the world will be considerable. The long-term health of the world's biggest economy, depends on resolution of its domestic energy problems. It also has an impact on the market and climate generally as the world's biggest importer of oil and emitter of greenhouse gases. The US is also home to the world's largest private energy sector, but also has a government prone to use energy as a weapon of foreign policy. Through sanctions, Washington has kept its own companies

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TR Daily, 08 May, 2001

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Looks like a good court decision on the reciprocal access issue for=20 interconnection agreements.

Do we know what's meant by "advanced services" in the amendment to the Tauz= in=20 Bill requiring ILEC sale of advanced services at wholesale prices for three= =20 years? =20

Sue Nord, Sr. Director Government Affairs 713 345-4196

----- Forwarded by Sue Nord/NA/Enron on 05/09/2001 08:16 AM -----

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Telecommunications Reports presents....

TR DAILY May 8, 2001

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***** AS COMMERCE COMMITTEE VOTE NEARS ON HR 1542, BELLS SPAR WITH CLECs, IXCs OVER 'SUBSTITUTE'

Bell company interests predict the Internet Freedom and Broadband Deployment Act, HR 1542, will clear the House Energy and Commerce Committee by a comfortable margin tomorrow. Opponents, however, hope that enough amendments and opposition will surface to dampen Congress's enthusiasm for broadband "relief" legislation.

"It looks like it will pass," U.S. Telecom Association interim President and Chief Executive Officer Gary S. Lytle told TR today after a press briefing to review the legislation. "It should get somewhere in the mid to high 30s," he said, referring to the number of members on the 57-person panel that USTA predicts will vote for the bill at tomorrow's markup session. The bill cleared the telecommunications and the Internet subcommittee last month by a 19-14 vote (TR, April 30).

Meanwhile, a "substitute" version of HR 1542 that began circulating late last night (Monday) has sparked another round of bickering between Bell company interests and members of the competitive local exchange carrier and interexchange carrier industries. The substitute, released by Commerce Committee Chairman W.J. (Billy) Tauzin (R., La.), incorporates the four amendments that were approved by the telecom subcommittee. It also adds new language regarding FCC rules

on ILECs' resale of advanced services and "line sharing" and new definitions for "Internet backbone services" and "Internet access service."

H. Russell Frisby Jr., president of the Competitive Telecommunications Association, said the new provisions would make the legislation "go from bad to worse under the guise of compromise." The new definition of "Internet backbone services" is too broad, he said, as it would include too many services in a deregulated regime.

Mr. Frisby also pointed to language that purportedly would preserve CLECs' ability to implement line sharing. The FCC's line-sharing rules permit CLECs to offer data services over the high-frequency portion of a line while the ILEC continues to provide voice services over the lower-frequency portion. But Mr. Frisby said the substitute bill would invalidate later FCC orders that "put the meat on the bones" of the line-sharing mandates.

According to a copy of the substitute draft, the FCC's rules on line sharing would remain intact, but ILECs wouldn't be required to provide access to the high-frequency portion of the loop at the remote terminal -- a provision that another critic agrees would "undercut" the Commission's line-sharing rules. "If line sharing is not allowed through remote terminals, then 35% of consumers will be denied residential broadband competition because of this bill," the CLEC source said.

That claim, however, was disputed by Thomas J. Tauke, senior vice president-public policy and external affairs for Verizon Communications, Inc. Speaking with reporters at the USTA press briefing, Mr. Tauke said the bill's new line-sharing language would have a "minimal effect" on CLECs in Verizon's service territory because "very few of them use" line sharing. For Verizon, the substitute language would eliminate the "economic and practical problems of providing for line sharing when we have fiber in the local loop," he said.

Rep. Tauzin's substitute bill also has new language requiring ILECs to continue reselling advanced services at wholesale rates for as many as three years after enactment of the bill. The original version of the bill would have given ILECs an immediate exemption from resale obligations.

Committee staffers were said to be working out last-minute details on another amendment that's expected to be offered tomorrow by Reps. Cliff Stearns (R., Fla.), Bobby L. Rush (D., Ill.), and Thomas C. Sawyer (D., Ohio). According to sources, the amendment would give ILECs immediate regulatory relief. But it would require ILECs to make about 70% of their central offices DSL (digital subscriber line)-ready by a date certain, most likely within three years of enactment.

Mr. Tauke said Verizon would oppose any DSL buildout requirements, saying "it's good public policy not to have a buildout provision in this legislation." The government should mandate buildout requirements "only when the market isn't working," he said.

Many of the same amendments that were withdrawn during the telecom subcommittee's review are being teed up for tomorrow, including several from Rep. Tom Davis III (R., Va.) and one from Rep. Anna Eshoo (D., Calif.) to require Bell companies to continue filing service-quality and accounting reports at the FCC. Rep. Tauzin has said he would address FCC "enforcement" issues at tomorrow's markup session, but he may not tackle those issues through legislation.

Asked by TR whether Rep. Tauzin planned to offer an FCC enforcement amendment to HR 1542, spokesman Ken Johnson said today, "I can only confirm that Reps. Tauzin and [Rep. Fred Upton (R., Mich.)] will offer an

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Enron Mentions

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Enron Replaces Fastow as Finance Chief --- McMahon Takes Over Post; Move Follows Concerns Over Partnership Deals The Wall Street Journal, 10/25/01 Enron Ousts Finance Chief As S.E.C. Looks at Dealings The New York Times, 10/25/01 Pressured Enron Ousts CFO The Washington Post, 10/25/01 Enron replaces CFO to reassure investors Houston Chronicle, 10/25/01 FRONT PAGE - FIRST SECTION - Enron replaces finance chief. Financial Times (U.K.

edition), 10/25/01 COMPANIES & FINANCE THE AMERICAS - 'Sell' note issued on Enron shares. Financial Times (U.K. edition), 10/25/01 LEX COLUMN - Enron. Financial Times (U.K. edition), 10/25/01 Enron Corp. Cut to 'Market Perform' at Banc of America Bloomberg, 10/25/01

Baring Asset Management's McClen on Enron: Investor Comments Bloomberg, 10/25/01

Enron ousts CFO amid partnership questions Associated Press Newswires, 10/25/01 Enron fires CFO to quell unrest: Stock meltdown National Post, 10/25/01

Enron replaces CFO Fastow in wake of LJM probe; appoints McMahon AFX News, 10/25/01 ENRON: Embattled chief financial officer ousted Chicago Tribune, 10/25/01 Enron Ousts CFO Amid SEC Probe Los Angeles Times, 10/25/01 Shell-Shocked Enron Parts With CFO TheStreet.com, 10/25/01 Phew! Enron Stinks RealMoney.com, 10/25/01 Small-Stock Focus: Russell 2000 Ekes Out Increase; Adtran, Arris Group Post= Gains The Wall Street Journal, 10/25/01 U.S. directors to be graded by activist: The 'bond' treatment (Toronto edit= ion headline.); Directors to get the bond treatment: Members of boards to b= e graded by shareholder activists (All but Toronto edition headline.) National Post, 10/25/01 UK: U.S. stocks drift in Europe as wary tone persists. Reuters English News Service, 10/25/01 WORLD STOCK MARKETS - Wall St favours US tech stocks over blue chips AMERIC= AS. Financial Times (U.K. edition), 10/25/01 Enron replaces CFO Andy Fastow CBSMarketWatch, 10/25/01 USA: UPDATE 1-Beleaguered Enron names new CFO. Reuters English News Service, 10/24/01

USA: Utility stocks drop on slipping expectations. Reuters English News Service, 10/24/01 Berger & Montague Alleges Enron Misled Investors About Overvalued Assets An= d Off-Balance Sheet Deals PR Newswire, 10/24/01

Enron Replaces Fastow as Finance Chief --- McMahon Takes Over Post; Move Fo= llows Concerns Over Partnership Deals By Rebecca Smith and John R. Emshwiller Staff Reporters of The Wall Street Journal

10/25/2001 The Wall Street Journal A3 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Enron Corp. replaced its embattled chief financial officer, Andrew S. Fastow, capping a tumultuous day in which the huge energy company saw its stock = price again fall sharply and help pull down the share prices of other major= energy-trading companies.=20 Investors appeared worried that Enron's recent woes could have a destabiliz= ing effect on the energy-trading market. The Houston energy powerhouse, wit= h annualized revenue topping \$150 billion and assets of more than \$60 billi= on, handles transactions representing roughly one-quarter of the nation's t= raded-electricity and natural-gas volumes. In less than two years of operat= ion, its EnronOnline trading platform has become a central marketplace for = the energy business and already has handled more than \$880 billion in trans= actions. "Enron makes the market. Make no mistake about that," said Merrill Lynch an= alyst Donato Eassey. "There's not a trader out there that doesn't use Enron= Online." As such, Enron enters into thousands of transactions every day in = which the company's credit-worthiness is critical. Enron said its business = operations were functioning normally yesterday. The company also has consis= tently said it is financially strong and liquid.=20 Enron said its new chief financial officer is Jeffrey McMahon, the 40-year= old head of the company's industrial-markets division. His selection may be= intended, in part, to raise the company's credibility. People familiar wit= h the matter say Mr. McMahon left his job as treasurer last year after voic= ing concerns within the company about Mr. Fastow's role in running two limi= ted partnerships that were involved in billions of dollars worth of transac= tions with Enron. Internal partnership documents indicate Mr. Fastow and po= ssibly a handful of associates made millions of dollars from the partnershi= ps. Mr. Fastow severed his ties with those partnerships in July in the face= of increasing conflict-of-interest concerns being expressed by Wall Street= analysts and major Enron investors. On Monday, Enron announced that the Se= curities and Exchange Commission was looking into the Fastow-related transa= ctions.=20 While Enron as recently as Tuesday strongly defended Mr. Fastow, as well as= the company's dealings with the partnerships, controversy over those arran= gements clearly played a role in the executive's departure. "In my continue= d discussions with the financial community, it became clear to me that rest= oring investor confidence would require us to replace Andy as CFO," said Ch= airman and Chief Executive Kenneth Lay in a prepared statement.=20 Enron said Mr. Fastow "will be on a leave of absence from the company." He = couldn't be reached for comment.=20 It remains to be seen how much Mr. Fastow's removal will assuage an increas= ingly restive investment community. The action came after the 4 p.m. market= close and followed a day in which Enron's stock once again plunged. As of = 4 p.m. in New York Stock Exchange composite trading, Enron shares were at \$= 16.41, down \$3.38, or 17%. It topped the Big Board's most active list at ne= arly 76 million shares, more than twice the volume of the second-most-activ= e stock. Several trades yesterday involved blocks of 800,000 shares or more= , possibly indicating

that some institutional holders are souring on Enron = stock.=20 Enron's shares are down about 50% from the beginning of last week. Earlier = this year, the stock was above \$80 a share.=20 In an apparent ripple effect, the stocks of other energy-trading companies,= which do business with Enron, also fell sharply yesterday. For instance, D= ynegy Inc. shares on the Big Board were off \$5.45, or 13%, at \$37.26. A num= ber of the energy companies hit by the selloff have business strategies muc= h different than Enron's, which rely heavily on complex and highly structur= ed investment vehicles.=20 Prudential Securities analyst Carol Coale said Mr. Fastow's departure could= be seen as evidence that "management does care" about investor concerns. H= owever, she adds, the move also could be viewed by some investors, coming a= s it did two days after the announcement of the SEC inquiry, as "an admissi= on of guilt." Ms. Coale yesterday issued a sell recommendation on Enron lar= gely because of uncertainties about the company's extremely complex financi= al structure.=20 Enron has consistently denied any wrongdoing in its Fastow-related dealings= .=20 Worries and rumors about Enron's financial strength could be found in the s= tock market yesterday. Goldman Sachs analyst David Fleischer said he heard = people voice concerns about a possible "death spiral" in which increasing c= redit concerns about Enron would decrease the number of people willing to d= o business with the company, which would in turn weaken its finances and le= ad to further business reductions. Mr. Fleischer, a longtime fan who still = has a buy recommendation on the company, said he hasn't yet seen any eviden= ce of such a problem.=20 However, Mr. Fleischer said, Enron needs to disclose more information about= its myriad of financial transactions with related partnerships and other e= ntities. Enron is facing a problem with "trust and credibility. It's not ea= sy to regain something as basic as trust," he said.

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Others reactions to PG&E bankruptcy

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----- Forwarded by Jeff Dasovich/NA/Enron on 04/06/2001 05:25 PM -----

Jean Munoz <jmunoz@mcnallytemple.com> 04/06/2001 06:05 PM

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Following are reactions from:

IBEW Duke Reliant Semptra Fitch

FYI, Jan reacted on behalf of IEP during a media teleconference earlier today, and also by a statewide satellite feed.

Thanks - Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

IBEW Statement on PG&E Bankruptcy

PR Newswire 04/06/01, 5:02p (Copyright , 2001, PR Newswire)

WASHINGTON, April 6 /PRNewswire/ -- In response to the bankruptcy announcement made by Pacific Gas and Electric, Edwin D. Hill, International President of the International Brotherhood of Electrical Workers (IBEW), issued the following statement.

"Pacific Gas and Electric's filing for bankruptcy could make a dire situation in California even worse. On behalf of the 13,500 IBEW Local Union 1245 members employed by PG&E and the public they serve, we believe it is imperative that constructive action be taken now.

"Specifically, we call on the Federal Energy Regulatory Commission (FERC) to stop dragging its feet and impose price controls on the wholesale electricity market in California. It is obvious that price gouging by wholesale suppliers has bled dry the investor-owned utilities and precipitated this crisis. The state has purchased power in an effort to prop up the system, but it too has paid the same inflated prices. This only threatens California's budget surplus and places an unfair burden on taxpayers while doing nothing to address the root of the problem.

"We also believe that it is time for government and industry to work together to jump start projects to improve the interconnected transmission grid in the Western states so that power can be quickly and efficiently moved to where it is needed. Prompt action on such projects could have helped alleviate the current problems, and they should commence with all due speed.

"Another factor that has driven the crisis is the lack of adequate generation facilities to power the growth of California and other Western states. We urge the Western Governors Association to take the lead in helping to chart a course that will bring more facilities on line and provide short and long term solutions to these difficulties.

"Even though we have been assured that PG&E employees will still be paid, and we know that their pensions are protected by law, we will fight to ensure that our collective bargaining rights are honored during this process. We will work with our Local Union 1245, utility management, Governor Davis and all other parties to restore sanity and reliability to California's gas and electricity systems."

SOURCE International Brotherhood of Electrical Workers

/CONTACT: Jim Spellane of the International Brotherhood of Electrical Workers, 202-728-6014/

Duke Energy Statement Regarding Pacific Gas & Electric Company Filing for Chapter 11 Reorganization

PR Newswire 04/06/01, 4:34p (Copyright , 2001, PR Newswire)

CHARLOTTE, N.C., April 6 /PRNewswire/ -- Duke Energy Corporation (NYSE: DUK) today issued the following statement:

We regret that the collective actions to mitigate Pacific Gas & Electric's (PG&E) financial crisis were unsuccessful in keeping it from filing for Chapter 11 reorganization. However, the Chapter 11 filing provides a defined process to collect our past receivables and keep PG&E in business going forward.

Duke Energy had taken a number of aggressive steps to limit its financial exposure to uncertainties in California's energy market, including the potential bankruptcy of the state's investor-owned

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Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	[]
File	dasovich-j/all_documents/10621.

Enron Gets Electricity Contract The Wall Street Journal, 04/04/01

Energy Companies Use Sports to Win Market Share PR Newswire, 04/04/01

ITALY: ANALYSIS-Power competition makes little headway in Spain. Reuters English News Service, 04/04/01

V-SPAN Acquires Peer Digital to Form Largest Independent Video Collaboration and Broadband Conferencing Service Provider Business Wire, 04/04/01

UK: BP,Exxon,Shell may pip Total in Saudi deals-industry. Reuters English News Service, 04/04/01

Sierra Pacific's cold feet may ruin PGE's consolidation chances Associated Press Newswires, 04/04/01

World's Largest Energy Companies Attend TIBCO Software's Energy Technology And Trading Conference PR Newswire, 04/04/01

India: Food court at Tidel Park Business Line (The Hindu), 04/04/01

India: 'Dabhol bill can be adjusted against MSEB rebate' Business Line (The Hindu), 04/04/01

Dec guarantee not to be honoured Business Standard, 04/04/01

Enron Gets Electricity Contract

04/04/2001 The Wall Street Journal (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -- Enron Corp. said it signed an agreement to provide more than \$600 million of electricity to J.C. Penney Co. The energy concern said it will provide electricity to 1,250 J.C. Penney retail locations in 50 states. The Dallas retailer said the move will protect it from volatile energy prices. The companies declined to comment on the length of the contract. In 4 p.m. New York Stock Exchange composite trading, Enron fell \$2.51 to \$54.07 and J.C Penney fell four cents to \$15.55.

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Energy Companies Use Sports to Win Market Share

04/04/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

BOULDER, Colo., April 4 /PRNewswire/ -- As umpires shout "Play Ball!" and the first pitch is thrown at Enron Field, Cinergy Field, and Edison Field, the biggest winners of the day may not be the teams on the field. No matter what the final score is, the stadium sponsors will have won significant marketing and branding advantages over their competitors. Or so goes the thinking in the war rooms of an increasing number of utility companies. Ballparks, racetracks, and even local playgrounds have become new arenas for energy industry competition. As never before, energy companies are sponsoring golf tournaments; major and minor league baseball, football, basketball, and hockey teams; college sports; soccer matches; local events; horse racing, and even the Olympics. The list is nearly as long as the Cinergy Indianapolis marathon. Sport marketing -- the corporate sponsorship of a sporting event or team for the purpose of marketing a product or service -- is big business worldwide. In 2000, U.S. corporations alone spent \$5.92 billion on sport sponsorships, up 16% from 1999. "Energy companies represent one of the fastest-growing segments of the sport sponsorship market," says Matthew Joyce, an energy industry analyst at E Source and co-author of a new report on sport sponsorship. "Under pressure to differentiate themselves in a changing energy marketplace, many utilities and competitive energy service providers are turning to sport marketing to link their products and services with popular sporting events and teams," adds Joyce. These firms are sponsoring sports to increase name recognition, improve sales, and demonstrate good corporate citizenship, as well as to accomplish a host of other goals. Sports hold a universal appeal -- the desire to play is inherently human. Few other elements of society command the passion or participation engendered by sports. "In one form or another, sports encompass nearly the entire demographic spectrum. It taps into people's emotions, making it an especially attractive marketing vehicle," adds the report's co-author, Melissa Tuck, also of E Source. Though multi-million-dollar stadium naming agreements grab headlines, many firms are achieving their marketing objectives through less expensive, lower-profile sponsorships such as donating land for local sports fields, refurbishing parks, sponsoring youth sport clinics, and supporting charity events. But at every level of competition, energy companies are striving to create connections that will give rise to business relationships that fans will love and their rivals will hate. The just-published report from E Source, "Playing to Win: Sport Marketing for ESPs," examines sport marketing efforts across the energy industry -- from major stadium and arena naming deals to corporate sponsorship of grassroots sporting events. It pinpoints factors that determine whether energy service providers should consider sport marketing as an integral part of their strategic marketing plan and outlines criteria for determining whether a given sponsorship is having the desired effect. For more information on this and other E Source research contact Matthew Joyce at 720-548-5676. Media contact: Jim Keener at 720-548-5624. E Source, a trademark of FT Energy, Inc., is an energy information and consulting service providing organizations with unbiased, independent analysis of retail energy markets, services, and technologies. E Source clients include more than 400 electric and gas utilities and other energy service providers, large corporate and institutional energy users, government agencies, energy service companies, manufacturers, consultants, research institutions, and other organizations in more than three-dozen countries worldwide. To see the FT Energy press room, which includes information on how to receive press releases and other information, please visit <http://www.ftenergy.com/press.asp>.

/CONTACT: Jim Keener of FT Energy, Inc., 720-548-5624, jkeener@ftenergy.com, for E Source/ 07:57 EDT

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ITALY: ANALYSIS-Power competition makes little headway in Spain. By Dominique Magada

04/04/2001 Reuters English News Service (C) Reuters Limited 2001.

VENICE, Italy, April 4 (Reuters) - Spain has not yet introduced fair competition in its power market which is still dominated by domestic utilities, new entrants to the Spanish market said this week. "The impact of the opening of the market to competition in Spain has been close to nothing," Steven Taylor, origination manager at independent power producer (IPP) Cinergy Global Power in Spain, told an energy conference. "There are 20 new entrants in Spain and they haven't had much impact on generation or supply." Among new entrants other than his company, he mentioned U.S. firms TXU Europe, AES Corporation and Enron, German RWE, Electricidad de Portugal, Intergen and Belgian Electrabel. French utility Electricite de France, which is also keen to buy a stake in the Spanish power sector, has been selling electricity to Spain since before liberalisation. Taylor said reasons for the lack of competition in the Spanish market include the lengthy process for new plants' planning permission, difficulties in securing gas supply contracts for new plants and the lack of regulatory intervention in the market place. "We need a regulator with more teeth to regulate the market," he said. LACK OF GAS COMPETITION A BIG PROBLEM He added that another issue is the lack of liquidity in the gas market and the absence so far of gas-to-gas competition which makes it hard for new entrants to secure supplies. "A number of plants

have received planning permission but are not secure deals for the supply of gas to the plants," said Tony Taylor, Director of fuel procurement at IPP Intergen, a Shell-Bechtel joint venture, also involved in Spain. Gas markets in Europe were liberalised last August when the EU Gas Directive came into force. The sector is gradually opening starting with large industrial consumers

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Enron Mentions - 05/02/01

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File	dasovich-j/all_documents/11983.

Enron Vice Chairman J. Clifford Baxter To Resign Dow Jones News Service, 05/02/2001

India State Panel Invites Enron Unit For Talks May 5 Dow Jones, 05/02/01

ATS Announces First Half Results PR Newswire, 05/02/01

Saudi Gas Proj Consortia Seen Selected 2H May -Sources Dow Jones Energy Service, 05/02/2001

Corporate Bond Alert: WorldCom, Household Finance, AIG to Sell Bloomberg, 05/02/01

Enron Vice Chairman Baxter Resigns; No Successor Is Planned Blommborg, 05/02/01

Enron Vice Chairman J. Clifford Baxter To Resign

05/02/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- Enron Corp. (EBE) Vice Chairman J. Clifford Baxter is resigning from the company to spend more time with his family. In a press release Wednesday, the energy and communications company said Baxter will continue working for Enron as a consultant. Baxter joined Enron in 1991 and was chairman and chief executive of Enron North America before being named chief strategy officer for Enron in June 2000 and vice chairman in October. Company Web site: <http://www.enron.com> -Susan Willetts; Dow Jones Newswires; 201-938-5388

India State Panel Invites Enron Unit For Talks May 5

05/02/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW DELHI -(Dow Jones)- India's Maharashtra state government has formally asked U.S. energy major Enron Corp.'s (ENE) Indian unit Dabhol Power Co. to appoint a team to renegotiate the power purchase agreement with the state government's expert committee Saturday, the United News of India reported Wednesday. "We have formally requested the DPC president to send a team for renegotiation. We will be awaiting their response to commence the talks on May 5," UNI quoted the state's Energy Secretary V.M. Lal as saying after his meeting with officials of the Maharashtra State Electricity Board and the nine-member expert panel. The \$3 billion, 2,184-megawatt DPC project in Maharashtra has been mired in financial disputes after the MSEB, its main customer, failed to pay several bills. The project has the largest single foreign investment in India. The Maharashtra state government has asked the committee to try to negotiate a revised agreement within a month. The committee's goals are to lower the power tariff and allow the sale of excess power to the federal government or its utilities. A restructure of the DPC's stakeholding may also be on the agenda. Texas-based Enron has a 65% stake in the DPC, and is the project's largest shareholder. Other shareholders include the MSEB with 15%, and General Electric Co. (GE) and Bechtel Enterprises (X.BTL) with 10% each. -By Himendra Kumar, Dow Jones Newswires; 91-11-461-9427; himendra.kumar@dowjones.com

ATS Announces First Half Results

05/02/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

CALGARY, May 2 /PRNewswire/ - Applied Terravision Systems Inc. (ATS) (CDNX: TER) is pleased to announce its first half results for the six-month period ended March 31, 2001. ATS's revenues for the first half increased to \$17.868 million,

28.3 percent higher than the \$13.925 million recorded for the first half of fiscal 2000. Gross Margin revenues increased 40.1 percent to \$17.191 million from \$12.214 million during the first half of fiscal year 2000. EBITDA (Earnings Before Interest, Taxes, Depreciation and Amortization and Extraordinary Items) for the six month period-ended March 31, 2001 was \$2.204 million or \$0.07 per share, an increase of 355.6 percent, compared to EBITDA for the period-ended March 31, 2000, which was \$0.484 million or \$0.02 per share. Cash flow from operations, prior to changes in non-cash working capital, for the six-month period-ended March 31, 2001 was \$1.067 million or \$0.03 per share, as compared to the same period-ended March 31, 2000 when the cash flow from operations, prior to changes in non-cash working capital, was \$0.264 million or \$0.01 per share. Net income before tax, amortization of goodwill and extraordinary items for the first six months of fiscal 2001 was \$0.656 million or \$0.02 per share, an increase of 249.6 percent, compared to net a loss before tax and amortization of goodwill of \$0.453 million for the corresponding period in fiscal 2000. After amortization of goodwill and allowance for United States income tax the company had a net income before extraordinary items of \$0.141 million or \$0.00 per share in the first six months of fiscal 2001 as compared to a loss of \$0.879 million or \$0.03 per share in the prior year period. FORWARD LOOKING STATEMENTS

In the interest of providing ATS shareholders and potential investors with information regarding the Corporation, including management's assessment of the Corporation's future plans and operations, this presentation contains forward-looking information that represents the Corporation's internal projections, expectations or beliefs concerning future operating results and various components thereof of the Corporation's future economic performance. The projections, estimates and beliefs contained in such forward-looking statements necessarily involve known and unknown risks and uncertainties which may cause the Corporation's actual performance and financial results in future periods to differ materially from any estimates or projections of future performance or results expressed or implied by such forward-looking statements. Accordingly, shareholders and potential investors are cautioned that events or circumstances could cause actual results to differ materially from those contemplated. Companies continue to take advantage of ATS's Application Service Provider (ASP) and Business Function Outsourcing (BFO) eSolution business offerings. ASP subscription fees and associated revenues from ATS's intellectual property delivered on its ASP platform for the first half of fiscal 2001 increased 127.9 percent to \$11.605 million from \$5.093 million for the first half of fiscal 2000. These revenues comprised 64.9 percent of total revenues during the first half of fiscal 2001 as compared to 36.6 percent during the first half of fiscal 2000. BFO services generated \$1.376 million in revenues for the first quarter of fiscal 2001, comprising 7.7 percent of total revenues during this period, whereas ATS recorded no BFO revenues during the first half of fiscal 2000. During the first six months of fiscal 2001 the ATS reoccurring revenue base (which includes maintenance, ASP Subscription Fees and BFO Contracts) increased 37.0 percent to \$7.728 million from \$5.642 million for the same period in 2000 while professional services revenues increased 66.8 percent to \$10.332 million from \$6.196 million during the same period. As anticipated, increased ASP and BFO sales offset reduced license fee revenues as customers move to ATS's reoccurring subscription fee business model. License fee revenues declined by 57.2 percent to \$0.888 million from \$2.074 million during the same six months of fiscal 2000. ATS's ASP centers continue to demonstrate value to new and existing customers. Stylus Exploration Inc., of Calgary, moved their business information systems to an ATS managed data center. Lyco Energy of Dallas entered into an agreement with ATS to utilize the Dallas BFO / ASP center. Additionally four non-operated interest companies began using ATS's BFO centers, two in Canada and two in the U.S. ATS's e-Solutions allow these customers to shift their non-core business functions and information technology needs to ATS so they can devote their time and attention to their core business functions of oil and gas exploration and production. ATS continues

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Enron Mentions

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S&P Lowers Enron Credit Linked Notes Trust Ratings; On Watch Neg PR Newswire, 11/07/01

DJ CNBC's FABER REPORT: Enron/Dynegy Deal Talk Dow Jones, 11/07/01

Enron in Talks With Dynegy That May Include Merger, CNBC Says Bloomberg, 11/07/01

WSJ: Dynegy In Talks To Put About \$2B Into Enron Now Dow Jones News Service, 11/07/01 Enron Shares Fall on Concern About Finding Investors (Update2) Bloomberg, 11/07/01

Enron Credit-Linked Note Ratings Reduced 6 Days Late (Update2) Bloomberg, 11/07/01

Former SEC Chairman Levitt (Transcript of Interview) Bloomberg, 11/07/01

USA: U.S. FERC watching Enron's impact on energy markets. Reuters English News Service, 11/07/01 Apache Unwinds Most Gas Hedges; Cites Enron Uncertainty Dow Jones News Service, 11/07/01 USA: Enron shares fall below \$8 - set new nine-year low. Reuters English News Service, 11/07/01 Enron's stock drops 25 percent Associated Press Newswires, 11/07/01 Rabin & Peckel LLP Commences Class Action Against Enron Corporation and Certain of Its Officers and Directors, Alleging Violations of Federal Securities Laws Business Wire, 11/07/01

Enron's power company in India calls off Singapore meeting after Indian lenders file lawsuit Associated Press Newswires, 11/07/01 USA: El Paso says it does not expect Enron bankruptcy. Reuters English News Service, 11/07/01

Energy traders are icing out Enron Shares trade at 9-year lows for 2nd straight day=20 CBS.MarketWatch.com, 11/07/01

Legal Group Plans Suit to Void California Power Contracts Bloomberg, 11/07/01

S&P Lowers Enron Credit Linked Notes Trust Ratings; On Watch Neg

11/07/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

NEW YORK, Nov. 7 /PRNewswire/ -- Standard & Poor's today lowered its ratings on Enron Credit Linked Notes Trusts' credit linked notes and placed them on CreditWatch with negative implications (see list).=20 The lowered ratings reflect the Nov. 1, 2001 rating action taken on Enron Corp., which was based on Standard & Poor's belief that Enron's plan to employ asset sales and other means to repair its damaged balance sheet will be insufficient to restore its long-term credit quality to the historical triple-B-plus level. The CreditWatch placements recognize the uncertainties that surround the company and its credit quality in the short run due to the possibility of further unanticipated developments in the capital markets. These synthetic issues utilize a credit default swap that references Enron's senior unsecured debt and therefore the rating on the credit-linked notes will reflect the current senior unsecured rating of Enron.

OUTSTANDING RATINGS LOWERED AND PLACED ON CREDITWATCH NEGATIVE=20 Enron Credit Linked Notes Trust=20 US\$500 million credit linked notes=20 Rating=20 To From=20 Notes BBB/Watch Neg BBB+=20 Enron Credit Linked Notes Trust II=20 US\$500 million credit linked notes=20 Rating=20 To From=20 Notes BBB/Watch Neg BBB+=20 Enron Euro Credit Linked Notes Trust=20 EUR200 million credit linked notes=20 Rating=20 To From=20 Notes BBB/Watch Neg BBB+=20 Enron Sterling Credit Linked Notes Trust=20 GBP125 million credit linked notes=20 Rating=20 To From=20 Notes BBB/Watch Neg BBB+

/CONTACT: Mary Ryan, New York, +1-212-438-2090, or Frank J. Trick, New York, +1-212-438-1108, both for Standard & Poor's/ 11:47 EST=20 Copyright ? 2000 Dow Jones & Company, Inc. All Rights Reserved. =09

DJ CNBC's FABER REPORT: Enron/Dynegy Deal Talk 2001-11-07 14:56 (New York)

The following is a transcript of a report aired Wednesday by CNBC reporter David Faber:=20 =20 Enron is in discussions with Dynegy about a range of options that include= a merger of the two companies.=20

While such an outcome is only one of a number of options being discussed, sources close to the talks tell me such an outcome is being considered.=20 Enron is trying to raise equity capital and restore confidence amid the complete collapse of its stock price.=20

Today, the Houston-based energy trading concern's shares have fallen another 25%, while its bonds, perhaps a better barometer of the market's concerns about credit quality, have shed roughly ten points.=20

Enron will not comment. But sources close to the situation tell me the company continues to speak with a handful of private equity firms about an investment. Those talks are still in the early stages.=20 Talks with Dynegy, a cross-town rival of Enron's that also markets and trades energy, have progressed at a faster pace.=20

Dynegy is unlike Enron in that it owns more hard assets, many of which came along with the acquisition of Illnova, completed in 2000. While many potential acquirers have shied away from Enron due to continued concern about unknown liabilities the company may have, Dynegy is very familiar with its energy trading business.

Dynegy is the number two player in the U.S. energy trading market and would clearly become the dominant player were it to merge with or acquire Enron. A Dynegy spokesman declined comment.

While Dynegy has off-balance sheet financings that are similar to Enron's, those financings are not guaranteed by the parent. It is such guarantees that have concerned Enron investors along with a series of questionable investments.

Given the massive decline in Enron's stock price, Dynegy now has a market value that is twice that of Enron.

That decline in Enron's stock price would make any equity infusion heavily dilutive, if private equity firms were to choose to invest in Enron they would likely do so in the form of a security that converted to equity and paid a dividend.

Still, because Enron now has a market value of only \$5.3 billion, the roughly \$2 billion it may want represents an enormous percentage of its overall equity value.

Hence, discussion with Dynegy may have taken on the form of a merger, rather than a strategic investment.

Enron in Talks With Dynegy That May Include Merger, CNBC Says 2001-11-07 13:39 (New York)

Houston, Nov. 7 (Bloomberg) -- Enron Corp. is talking with rival energy company Dynegy Inc. about a number of options, including merger, to help it raise equity capital and restore confidence, financial news network CNBC reported. Spokesmen for Dynegy and Enron declined to comment.

WSJ: Dynegy In Talks To Put About \$2B Into Enron Now By Robin Sidel

11/07/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

Of The Wall Street Journal

NEW YORK -(Dow Jones)- Dynegy Inc. (DYN) is in advanced discussions to infuse about \$2 billion into Enron Corp. (ENE) in a transaction that may lead to a full-blown merger between the two companies, sources familiar with the matter told The Wall Street Journal. A formal transaction could be unveiled as early as Thursday, these people said. The situation is very fluid and is subject to change, these people noted. (This report and related background will be available at the Journals' Web site, WSJ.com.) Enron has been rocked by last month's disclosure of a \$1.2 billion reduction in its equity base partly tied to financial dealings with company partnerships headed by Enron's former chief financial officer. Last month, it reported a third-quarter loss of \$618 million. The Securities and Exchange Commission has launched a formal investigation into the matter. Last week, Enron secured \$1 billion in new credit lines, using gas-pipeline assets as collateral. Enron needs the infusion in part because its previously announced plans to raise cash through the sale of power assets is going more slowly than expected. Mostly, though, it needs to restore its credibility with Wall Street at a time when its access to the financing markets is drying up. Enron shares recently traded down \$1.57, or 16%, at \$8.10

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Enron Mentions

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Bandwidth Market: Trade For DS3 Capacity Nets High Price Dow Jones Energy Service, 07/24/01 USA: Northeast utilities on track to form RTO - PJM chief. Reuters English News Service, 07/24/01 EnergyBusinessWatch Releases Two-Part Interview With FERC Chairman Curt Hebert PR Newswire, 07/24/01 Natural Gas Project Decision Due Soon-Venezuelan Official Dow Jones Energy Service, 07/24/01

USA: Black Hills signs deal for 273-MW Nevada power plant. Reuters English News Service, 07/24/01

German Energy Blue Chips E.On, RWE Return To Form Dow Jones International News, 07/24/01 Black Hills To Buy Nev. Power Complex From Enron Dow Jones News Service, 07/24/01

INDIA: U.S. looks "beyond sanctions" at ties with India. Reuters English News Service, 07/24/01

Allegheny Energy to split up Hagerstown utility to create company for power generation; Permission for IPO sought; Remaining company to distribute energy to retail customers The Baltimore Sun, 07/24/01

FERC Should Oversee All Utilities, Lawmaker Says (Update1) Bloomberg, 07/24/01

Energy Generators Fall With Gas, Electricity Prices (Update1) Bloomberg, 07/24/01

Black Hills to Purchase Generation Complex From Enron (Update1) Bloomberg, 07/24/01

Dan Walters: Blame game over California's energy crisis will continue for years Sacramento Bee, 07/24/01

Bandwidth Market: Trade For DS3 Capacity Nets High Price

07/24/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- A direct trade done Tuesday for DS3 bandwidth between Seattle and Vancouver, B.C., brought one of the highest prices ever recorded in the market. The deal, priced at two cents a DS0 mile a month, will start as soon as the circuit can be provisioned, said a trader. Direct trades are done by the counterparties themselves without an intermediary like a broker. Another direct deal was done for DS3 bandwidth between Seattle and Los Angeles for a three-month contract that also will start as soon as the circuit is provisioned. The price was \$0.0075/DS0 mile/month. One other trade was done Tuesday for DS3 bandwidth in calendar year 2002 between New York and Dallas through Enron Corp. pooling points at \$0.0015/DS0 mile/month. Pooling points are network interconnection sites where title to bandwidth is transferred. They are also used to monitor quality of service. -By Michael Rieke and Erwin Seba, Dow Jones Newswires, 713-547-9207, 713-547-9214; michael.rieke@wsj.com, erwin.seba@dowjones.

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USA: Northeast utilities on track to form RTO - PJM chief.

07/24/2001 Reuters English News Service (C) Reuters Limited 2001.

WASHINGTON, July 24 (Reuters) - With the help of a federal mediator, Northeast electricity transmission grid operators are on track to combine their assets under a common roof, Phillip Harris, chairman of the PJM Interconnection, told reporters on Tuesday. "I think that's do-able," Harris said, referring to the Federal Energy Regulatory Commission's July 11 rule ordering the New York Independent System Operator, PJM, PJM West and New England Independent System Operator to form a single regional transmission organization (RTO). All the entities convened Monday in a closed-door hearing before FERC Administrative Law Judge Peter Young to begin 45 days of negotiations to hammer out the formation of the single Northeast RTO. "We can't solve all of the issues, but we can come up with a plan" during that time, Harris said. RTOs are not likely to be discussed at the FERC commissioners' meeting on Wednesday, Harris said. No RTO issues are on the agenda for the final FERC meeting before commissioners take a month-long break, an agency spokeswoman said. The focus of the Wednesday meeting will be refunds for California and other Western states that claim power wholesalers overcharged them during the past year. RTOs have become a priority for FERC, which is looking for ways to make the nation's patchwork transmission grid more seamless to overcome bottlenecks in moving power between regions. FERC recently proposed combining transmission operators into four RTOs to be formed in the Northeast, Southeast, Midwest and West. "Whether the magic number is four or 10 is somewhat problematic," Harris said. FERC has praised the PJM system - which serves much of Pennsylvania, New Jersey and Maryland - as a model for nationwide RTO building. The agency has also turned down New York ISO and Northeast ISO requests to maintain their status as free-standing independent system operators. PJM has what it takes to make a nationwide model, Harris said. "The technology is there to make it happen," he said. PJM Interconnection uses a complex computer model and locational marginal pricing to calculate prices based on supply, demand and congestion at each node on the grid. PJM could apply its model to a larger RTO, Harris said, because "it's hard to find something bigger than what we're doing." PJM operates about 8,000 miles of transmission lines in Pennsylvania, New Jersey and Maryland, Washington D.C., and part of

Delaware. It also coordinates the flow of about 60,000 megawatts of generation across those wires. Last week, residential electricity provider NewPower Holdings Inc. complained to FERC about the installed capacity charges in the PJM system. The company said the PJM charges were "unjust and unreasonable" and discriminated against new market players. NewPower told FERC it was unfair that companies owning generation plants in the region do not have to pay the installed capacity charge, but NewPower and others that don't own generating plants must pay high capacity rates.

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EnergyBusinessWatch Releases Two-Part Interview With FERC Chairman Curt Hebert

07/24/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

WASHINGTON, July 24 /PRNewswire/ -- FERC Chairman Curt Hebert, in one of his most wide-ranging interviews since he was named to head the agency six months ago, told EnergyBusinessWatch in a two part series while California may still see some blackouts in August the state now appears to have passed a danger point. "We're not too worried about credit here, but we were certainly getting the blame when the prices were high," Hebert said. "The fact that prices are down and they have been down since the very hour the mitigation plan went into effect shows the forward thinking, the ability to get things under control of this commission and the hard working staff." Hebert sat down with EBW Executive Editor Howard Buskirk July 20 to talk about his six months as chairman, what he views as his legacy so far and his plans for the future. High on his list is a FERC that is now more responsive to markets. "A couple years back at FERC, even though they were talking about markets, they were very much in their infancy in trying to understand how they work," he said. "I would say that FERC now has certainly moved beyond its adolescence and trying to act more like an adult ... Hopefully that means that there's less regulation in the future." Hebert also warned that the commission must make certain it does not turn off Wall Street, since the financial community will need to be behind commission initiatives to get the right investments. "You can't do anything in this business without the confidence of Wall Street," Hebert told EBW. "If anyone thinks we can turn this industry around and we can have adequate supply and we can have adequate deliverability without the confidence of Wall Street they are absolutely wrong. They haven't done their homework and they don't understand history." Hebert also touched in the most detail yet on the controversial article in "The New York Times" in whi

Message 43 of 1299

TAR&L MEETING - 2/5/01/AGENDA

Sender	angie.buis@enron.com
Recipients	['wayne.gardner@enron.com', 'beth.wapner@enron.com', 'kathleen.noble@enron.com', 'james.ginty@enron.com', 'ali...]
File	dasovich-j/all_documents/8752.

As many of you may be aware, it was decided in last week's TAR&L meeting to reschedule from Thursday, February 1 to Monday, February 5, 2001 from 8:30 a.m. to 11:30 a.m. This meeting will be held in EB 4325 (same as last week). A light breakfast will be provided.

The dial-in information is as follows:

International Participants: 1-805-240-9463, passcode 449834 Domestic Participants: 1-888-232-3866, passcode 449834

Host/Houston (Gardner): 1-888-232-3866, passcode 860073 (host only)

Listed below is the agenda provided by Wayne Gardner. Should you have any questions or requirements, please do not hesitate to contact me at extension 37097.

Thank you!

Angie Buis Senior Administrative Assistant EBS Tax (713) 853-7097

----- Forwarded by Angie Buis/Enron Communications on 01/31/01 02:21 PM -----

Wayne Gardner 01/31/01 02:07 PM

To: Angie Buis/Enron Communications@Enron Communications cc: Subject: TARL

I. Report from Singapore--developments in overall strategy

1. Turn-over Fee issues 2. Pioneer Status 3. Licensing

II. Japan

A. Entity, Tax and Management issues

1. Commercial and Operational implications of outside counsel advice, including -- operational constraints to avoid requirement to establish a branch or attracting tax

2. Any additional or follow-up inquiries

B. Licensing

1. Time-line and responsibilities for preparing applications

2. Open issues regarding EBS "yakkans", including --which business activities require filed tariffs --what form filing should take--i.e., the full Master or in the form of responses to the Ministry form

3. Commercial implications of filing yakkans -- commercial and regulatory flexibility of changing yakkans --dealing with parties' conflicting yakkans

III. Other Jurisdictions

A. Korea

--status of Hanaro and required regulatory work

IV. Status of BMC Network

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 44 of 1299

RE: Merry Xmas?

Sender	cameron@perfect.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/notes_inbox/4424.

I will see you tonight. I am going to dinner with the illustrious Jessica, but will be home later...

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, April 10, 2001 12:34 PM To: Cameron Sellers Subject: RE: Merry Xmas?

where've we been? where've you been? really only stay at my house on school nites (monday/thursday). will be chez toi tonite. would LOVE to go back this weekend (it's gorgeous---TONS of iris, apple blossoms, wild flowers, etc.), but alas, we promised you're folks we'd plant tomatoes this weekend. I'm going to put down nice gravely rock around the beds, so it looks more like Italy, or France or something and we don't get all the weeds. Sorry about S.D., but it will be super nice down there. Be sure to go to Black's Beach. And golf and Torrey Pines. See you tonite?

Cameron

Sellers To: ""Jeff.Dasovich@enron.com""

<cameron@perf <Jeff.Dasovich@enron.com>

ect.com> cc:

Subject: RE: Merry Xmas?

04/10/2001

02:35 PM

Where have you been - I haven't seen you guys at all. Staying at your house a little more these days?? When are you going back up to the dome? We are leaving Friday for San Diego to spend the easter holiday (yeah, whatever) with Scotty's mom.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, April 10, 2001 12:28 PM To: Cameron Sellers Subject: RE: Merry Xmas?

Not a problem. Just couldn't believe that they screwed it up so much. There's 3 ft of new power at Squaw!!!!

Message 45 of 1299

RE: Grand total is....!

Sender	cameron@perfect.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/notes_inbox/4375.

Yes and I was around last night when you didn't show up. I waited all night.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, April 11, 2001 12:30 PM To: Cameron Sellers Subject: RE: Grand total is....!

You're kidding. You mean they've double billed us? Can you find you're credit card bill? They can find each and every receipt, who signed it, etc., so that we can make sure they don't screw us. I'll bring my stuff over tonite. If they've double billed us, I'm going to suggest that they owe us a comp up there. No worries, though. They've got the paper work, and if we've paid twice, they're just going to need to credit my card. No big deal. Just a hassle having to deal with 'em. You around tonite?

Cameron

Sellers To: ""Jeff.Dasovich@enron.com""

<cameron@perf <Jeff.Dasovich@enron.com>, Cameron Sellers ect.com> <cameron@perfect.com>, scottwl@hotmail.com cc:

04/11/2001 Subject: RE: Grand total is....! 01:53 PM

We definitely need to see the paperwork since we already paid a bill of at least that much so far. Don't worry, though we will make sure that you don't get stuck with anything and work it all out.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, April 11, 2001 11:25 AM To: cameron@perfect.com; scottwl@hotmail.com Subject: Grand total is....!

Hi. I've got all the paperwork. The bill (on my bill) for you guys is \$740. I'll get you the paperwork tonite. Sorry for the mix-up (should I ask Squaw for a discount due to all the mess!?!?).

Best, Jeff

Message 46 of 1299

Fw: Enron's Secrets Revealed

Sender	susan.mara@enron.com
Recipients	['karen.denne@enron.com', 'mark.palmer@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11602.

Shall we buy this?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/30/2001 09:44 AM -----

"Dan Douglass" <douglass@energyattorney.com> 07/30/2001 08:38 AM

To: "Sue Mara" <susan.j.mara@enron.com> cc: Subject: Fw: Enron's Secrets Revealed

Sue, the attached was somehow sent to me....thought you might enjoy it!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com ----- Original Message ----- From: "Global Change Associates" <pfusaro@nirvanasoft.com> To: <edasilv@enron.com> Sent: Friday, July 27, 2001 9:13 PM Subject: Enron's Secrets Revealed

How has Enron managed to achieve such success while other energy firms have struggled to deal with the changing market landscape?

Global Change Associates is pleased to announce the publication of a new corporate profile entitled, "Enron 2001: An Inside View". This objective study takes an insider's look at Enron, specifically, how the firm operates and the keys to its success. Much of the information provided comes from first hand accounts and covers areas such as:

? The firm's structure and operations ? The recruitment and training of new employees ? How Enron empowers and compensates its employees ? The keys to structuring Enron type "risk free" transactions ? How to negotiate with Enron ? Why Enron occasionally forgives counterparty obligations ? Is the Enron model right for your organization?

Enron 2001: An Inside View is a unique publication. It provides valuable insight into the firm's operations and analyzes its successes and failures. For those firms dealing directly with Enron, or thinking about adopting some of Enron's business practices, it is an invaluable, must have tool.

This innovative study is available for purchase at \$995.00.

For a detailed Table of Contents please open the attached file, Enron2001TOC. To order please go to www.global-change.com, click on "Reports" or complete the attached order form and fax to 212-625-8810.

For more information on this product please contact Alan M. Herbst at 212-625-1711 or via email at info@global-change.com.

To be removed from this distribution list, please reply with the word REMOVE in the subject line.

- Enron 2001TOC.pdf - Enron2001Order.pdf

Message 47 of 1299

RE: you and me

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/all_documents/8284.

The playboy mansion?

Cameron Sellers <cameron@perfect.com> 01/11/2001 02:22 PM

To: "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com> cc: Subject: RE: you and me

I think that is a great idea. It would be great. Fun mix of people too. Where should we have it??? I think it should not be at our house in Napa, but someplace a little more special.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Thursday, January 11, 2001 10:29 AM To: Cameron Sellers Subject: Re: you and me

P.S. Nice use of "birthday" as the segue to the deal.

Speaking of birthdays, Prentice has informed me that, despite my protestations (being a very low-key sort of guy), there "must" be some party for my birthday this year (which I'm still opposed to--and I may be in Houston that MONTH anyway).

I was thinking (cuz I hate spotlights), that it might be fun and interesting, since your Dad and I are both hitting interesting birthdays this year, if we had a joint party---double the people, double the fun. (I don't know if he'd rather have a solo party for his, though.) And since my dad's met your dad, but our mom's ain't been in the mix, I thought it might be a good (and hopefully safe) atmosphere to get them together in.

Am I smoking crack on the whole idea?

Cameron

Sellers To: "'Jeff.Dasovich@enron.com'"

<cameron@perf <Jeff.Dasovich@enron.com>

ect.com> cc:

Subject: you and me

01/11/2001

12:16 PM

Sorry for surprising you this morning!! Nothing wrong with being comfortable in your birthday suit.

Speaking of birthdays, I think we should have a goal to get my company acquired by your company by May 30, 2001. Good goal, huh??

I want to talk to you about the details I have been thinking about while you were gone. When should we talk?? Let's set up a meeting so we make sure to move this all forward.

Welcome back.

-C

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 48 of 1299

FW: Enron/EnronOnline	
Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28841.

How soon can you call me about this????

?

Cameron Sellers

Vice President, Business Development

PERFECT

1860 Embarcadero Road - Suite 210

Palo Alto, CA 94303

cameron@perfect.com

650.798.3366 (direct dial)

650.269.3366 (cell)

650.858.1095 (fax)

?

-----Original Message-----

From: David Young Sent: Tuesday, July 17, 2001 12:08 PM To: James McCormick; Cameron Sellers; Ian Sullivan
Subject: Enron/EnronOnline Importance: High

?

James, Cameron, Ian,

?

I got a call this morning from Marc Eichmann, a DealBench Product Manager at Enron Net Works. He got my contact info from Ken Sommers, one of the Procurement Managers in EES, who has been pushing to get our solutions implemented.

?

Marc is meeting today with a team of directors to determine how to go forward in providing reverse auction and RFQ functionality to the various Enron business. They realize that DealBench does not provide the breadth of functionality required to get acceptance by the buyers/dealmakers for daily use. Thus they are trying to determine whether to put the time and resources into developing DealBench further or to strike a deal with a third party vendor to enhance their platform.

?

The project is in its early stages.? Their timeline is 2-3 months before implementation.? Enron business units would be the primary users of the software, but?they would eventually want to sell this service out to all users of EnronOnline.? Marc said they would want to be able to open up the code and conjoin our software with theirs.?

?

He wants us to basically hand it away.? I discussed our standard Enterprise pricing and the Charter Program offer we have given to GSS and EES, and he still felt this was beyond their budget.? He emphasized how much business volume runs through EnronOnline and how good an opportunity this would be for us.? I told him I would like to have our VP Business Development speak with him to discuss any further business relationship and pricing details.? Marc can be reached at 713-345-8422 or marc.eichmann@enron.com.?

?

I've tried to followup with Ken Sommers and Eugene Ribaudo to get a feel for how we might be able to proceed with a sale directly?to EES versus a marriage with DealBench.? Ken is out of town this week, but hopefully will respond to my voice mail and email.? Let me know how to proceed.

?

Thanks,

David M. Young Manager- Enterprise Sales Perfect Commerce, Inc. 1860 Embarcadero Rd., Suite 210 Palo Alto CA?
94303 Tel: 650-798-3356 Email: dyoung@perfect.com

"Sourcing - the identification, evaluation, negotiation, and configuration of supply partners - is the single largest opportunity for an organization to impact the cost, structure, and overall efficiency of its supply chain."?? -- Aberdeen Group, Inc.

? - image001.jpg

Message 49 of 1299

Re: E220 Case #1

Sender	jeff.dasovich@enron.com
Recipients	['jjackson@haas.berkeley.edu', 'kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu']
File	dasovich-j/all_documents/1305.

Greetings. Kim's stuff looks pretty good to me. There's a pretty high likelihood though that I won't be in class Monday or Tuesday either. That means I can't turn in whatever it is we're turning in tomorrow (if I sound clueless, it might be because he ran out of handouts in the first class describing how the cases would work, and there's nothing posted on the site--apologies). I can do the write-up for next week.

Kimberly Kupiecki <kkupiecki@arpartners.com> on 09/09/2000 09:02:50 PM To: dwindham@uclink4.berkeley.edu, jjackson@haas.berkeley.edu, jdasovic@enron.com cc: Subject: Re: E220 Case #1

Hello fellow E220 mates,

Attached are my attempts at Q1 and Q3. I will not be in class Mon or Tues.

Jeff, can you hand the case in?

I am happy to take a crack at the other questions, let me know if you would like me to help out there.

The xcel file is a little messy, it was really just a work sheet to play around with the numbers, but you are welcome to it. In terms of format, since there is no guidance, I say we do it however we want. We could answer the questions in prose style, for example. The write up should be no more than a page and a half - but that is just my humble opinion.

Cheers,

At 12:40 PM 9/9/00, jdasovic@enron.com wrote:

Greetings folks. We should decide how we want to handle. One thing I'm not clear on and that I couldn't find in the syllabus is, what's the format for the write up? If we're called on to discuss, do we simply discuss orally, some sort of simplistic PP slides, spreadsheets, other? Anyway to discuss between now and Monday, or do we want to just take Dylan up on his offer? Best, Jeff Kimberly Kupiecki <kkupiecki@arpartners.com> on 09/07/2000 06:56:44 PM To: jdasovic@enron.com cc: dwindham@uclink4.berkeley.edu, kupiecki@haas.berkeley.edu, jjackson@haas.berkeley.edu Subject: Re: E220 Case #1 Hello all, I will take a look at the case tonight. Divvying is fine with me. At 03:22 PM 9/7/00, jdasovic@enron.com wrote: >would seem useful if we all contribute in some manner, but i'm open to >suggestions. perhaps we could divvy up the questions. > > > >Dylan Windham <dwindham@uclink4.berkeley.edu> on 09/07/2000 04:50:31 PM > >To: dasovich@haas.berkeley.edu, kupiecki@haas.berkeley.edu, > jjackson@haas.berkeley.edu >cc: >Subject: E220 Case #1 > > > >Hello, > >I have started to look at the case assignment for Monday. Since, I will be >out of town the following week I will volunteer to write this one up. I >don't know how he want to divvy up the work (by Questions or everyone does >it all), but let me know. I have already made a spreadsheet with the >combined cash flow statement that I will send to you tomorrow. Let me know >how we want to handle this. > >--Dylan > > >Ofc. Dylan H. Windham >Threat Management/Domestic Violence Unit >University of California Police - Berkeley >Room 1 Sproul Hall >Berkeley, CA 94720 >(510) 642-1606 Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

- E220 Case 5-1 Northrop.xls - E220 Case 5-1Northrop.doc

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 50 of 1299

[Fwd: name blank]

Sender	madeleinet@earthlink.net
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/personal/31.

FYI...looks bleak for riding with Lari in January. I get tired just looking at her schedule! Madeleine

--

Madeleine Todd Executive Recruiting 1329 Taylor Street, Suite 114 San Francisco, CA 94108-1047 phone: 415-441-7010 fax: 415-441-7173 email: madeleinet@earthlink.net

Received: from mail.mcn.org (mail.mcn.org [204.189.12.25]) by emu.prod.itd.earthlink.net (8.9.3/8.9.3) with ESMTP id OAA11551 for <madeleinet@earthlink.net>; Tue, 16 Nov 1999 14:32:17 -0800 (PST) Received: from rjiredff (ha-1e-men-p2-m04.mcn.org [204.189.5.88]) by mail.mcn.org (8.9.0/8.9.3) with SMTP id OAA23653 for <madeleinet@earthlink.net>; Tue, 16 Nov 1999 14:32:14 -0800 (PST) Message-Id: <4.1.19991116095959.00954180@mail.mcn.org> X-Sender: larishea@mail.mcn.org X-Mailer: QUALCOMM Windows Eudora Pro Version 4.1 Date: Tue, 16 Nov 1999 10:17:59 -0800 To: Madeleine Todd <madeleinet@earthlink.net> From: Lari Shea <larishea@horse-vacation.com> Subject: Re: name blank In-Reply-To: <3830FE61.C2129E63@earthlink.net> References: <4.1.19991115194613.00994a70@mail.mcn.org> Mime-Version: 1.0 Content-Type: text/plain; charset="us-ascii" X-Mozilla-Status2: 00000000

Hi Madeleine,

Have a great time in Chili..... Just a thought,my daughter, Kyala, has a friend who's family runs a river fishing and horseback riding vacation place in Argentina....email Ky a <amiga@northcoast.com> to ask how to contact them, if you are interested.

I'd love for you folks to come up again in January, although I will only be here for a few days out of the month. However, Helene could "lead" your ride, and I'll bet Harvey would like to join you. I'll be on the millenium trek from Jan 13th on. I'm here from FEB 10th to 22nd, then gone for another couple weeks. I'm planning for "special" rides once a month for the next

year....would love to have you and yours be here for as many of them as possible!

Here's the info for them...

Rates: \$195 per day/arrange your own lodging & meals/ bring your own lunch/ English or Western horses available/ join other compatible RRR riders. Sign up for as many/few days each weekend as you like. Carpool information from San Francisco Bay area available.

Also available: 3 (\$75.00) or 4 hour (\$100) rides. If you would prefer to have a "private" excursion, just whomever is in your group with a guide, surcharge of \$25 (3 hours), \$35 (4 hours, or \$45 (all day) applies.

Thanksgiving Get-Together: November 26, Nov 27 1999

Y-2-K Millenium Bash December 31, 1999, Jan 1, 2000 , Jan 2, 2000

Valentine's for Singles, Couples, & "Others" February 13, 14 , 2000

Spring is Mendocino Weekend April 8, 9, 2000

Wild Iris, Full Moon Weekend May 20, 21, 2000

Escape to the Redwoods Weekend June 10, 11, 2000

Mendocino Music Festival Weekend July 22, 23, 2000

Beach and Redwoods Weekend August 26, 27, 2000

Fall Frolic Weekend October 7, 8, 2000

Full Moon Mushroom Madness Weekend November 11, 12, 2000

Thanksgiving Get-Together November 25, 26, 2000

New Year's Bash December 30, 31, 2000

I'm off to Zimbabwe for my "foster" daughter's wedding on Dec 6th....will be gone til nearly New Year's Eve. Then to Florida for a family weekend, and leaving Jan 14 for New Zealand. So.....have a great holiday...hope to catch you some time over the winter....and if not we'll certainly ride together in the Spring.

Cheers,

Lari

Lari Shea <http://www.horse-vacation.com> Ricochet Ridge Ranch 707-964-7669 ranch phone 24201 North Highway One 707-964-9669 office ph/fax Fort Bragg, CA 95437 707-202-0187 fax Riding Vacations on the Mendocino Coast with lodging at unique B&B Inns International Riding Vacations Akhal Teke and Russian Orlov/cross horses for sale At stud: RRR Russia

Message 51 of 1299

RE: AReM/WPTF Comments on Draft Decisions Regarding PX Credit and

Sender	susan.mara@enron.com
Recipients	['robert.williams@enron.com', 'jeff.dasovich@enron.com', 'harry.kingerski@enron.com', 'james.steffes@enron.com...]
File	dasovich-j/notes_inbox/12383.

Robert,

We should talk to Mike Day about it -- we need to preserve our rights for future litigation, but perhaps we only need to file for rehearing to do that. I'll give Mike a call.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Robert C Williams/ENRON@enronXgate 06/22/2001 07:49 AM

To: Susan J Mara/NA/Enron@ENRON cc: Steven J Kean/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES, Paul Kaufman/ENRON@enronXgate Subject: RE: AReM/WPTF Comments on Draft Decisions Regarding PX Credit and Direct Access

Given the negativity toward Enron at the CPUC, should we not file comments if these express our position?

-----Original Message-----

From: Mara, Susan Sent: Friday, June 22, 2001 9:47 AM To: Williams, Robert C. Cc: Kean, Steven; Dasovich, Jeff; Steffes, James; Kingerski, Harry; Sharp, Vicki; Curry, Wanda; Kaufman, Paul Subject: AReM/WPTF Comments on Draft Decisions Regarding PX Credit and Direct Access

Dan Douglass has drafted joint comments for two coalitions in which Enron is a member -- Alliance for Retail Energy Markets and Western Power Trading Forum. Robert, feel free to contact Dan directly with your comments. Let me know your thoughts as well. I am out of the office at a WPTF meeting. Dan is here as well. If you need to contact me, you can leave me a message on my office phone or try my cell (415 -- 902-4108), but I'm not sure the cell is working all the time.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/22/2001 07:35 AM -----

"Dan Douglass" <douglass@energyattorney.com> 06/20/2001 10:59 PM To: "ARM" <arem@electric.com> cc: Subject: Comments on Draft Decisions Regarding PX Credit and Direct Access

Attached for your review and comment is my first draft of comments to be filed on Monday with regard to the draft decisions of ALJ Barnett and Commissioner Bilas. Please review it carefully, as I have thrown in everything I can think of on a rush basis, and it may require some significant editing. Pay particular attention to Section V dealing with Bilas' request for parties to discuss alternatives to DA suspension. The draft offers a compromise to the DWR's concerns, as expressed in the Angelides memo. Also, notice that Section VI urges the Commission to bifurcate the DA and PX credit issues, acting quickly on the first, if it must, but more leisurely on the PX credit subject.

Finally, I have a suggestion in the form of a question. How would AReM members feel about making this a joint filing with WPTF? There is cross-membership between the two groups and the same issues would be raised in the separate filings which I am otherwise prepared to draft. This draft would requires some modifications so as to refer to the "Joint Parties" as opposed to solely mentioning AReM, and I might add a section dealing more explicitly with WPTF's contribution to getting the zero minimum bill stipulation signed in the first place. Otherwise, the document would stay much as it is (subject to your input over the next few days, of course). Please let me know what you think asap, as I am already working on a WPTF draft. Incidentally, I will also be filing comments on behalf of ABAG which will support the positions taken in the attached document, but I am not proposing that ABAG also be a party to this filing. Thanks for your help! Comments as soon as possible would be very much appreciated!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com << File: file:///C:/Program Files/Common Files/Microsoft Shared/Stationery"> <STYLE>BODY { MARGIN-TOP: 25px; FONT-SIZE: 10pt; MARGIN-LEFT: 25px; COLOR: #000000; FONT-FAMILY: Arial, Helvetica } P.msoNormal { MARGIN-TOP: 0px; FONT-SIZE: 10pt; MARGIN-LEFT: 0px; COLOR: #ffffcc; FONT-FAMILY: Helvetica, mailto:douglass@energyattorney.com >>

- Blank Bkgrd.gif << File: Blank Bkgrd.gif >> - 6-25-01 AReM Comments - Draft 1.doc << File: 6-25-01 AReM Comments - Draft 1.doc >>

Message 52 of 1299

Fwd: Draft of Enron White Paper on California markets

Sender	mary.hain@enron.com
Recipients	['jdasovic@ees.enron.com', 't.briggs@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/860.

I have attached Seabron's draft of the Section 206 white paper. Although I have not read it yet, I'm sending it because so many of you asked to see it. If you wish to have a conference call about this let me know. Or you can just E-mail your comments to me.

To: <mary.hain@enron.com> cc: Subject: Fwd: Draft White Paper

Please find attached an Acrobat version of a Preliminary Draft white paper. If you have any difficulties receiving or using the attached file, please do not hesitate to call me.

Regards,

Kevin Wellenius

Frontier Economics, Inc. Two Brattle Square Cambridge, MA 02138 (617) 354-0060 (617) 354-0640 FAX

www.frontier-economics.com

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- 00-10-07 SA Draft Enron White Paper.PDF

----- Forwarded by Mary Hain/HOU/ECT on 10/06/2000 02:50 PM

Enron Capital & Trade Resources Corp.

From: "Ronald Carroll" <rcarroll@bracepatt.com> 10/06/2000 02:12 PM

To: <mary.hain@enron.com> cc: Subject: Fwd: Draft of Enron White Paper on California markets

Mary, I've attached Seabron's draft of the White Paper. Per your request, Seabron added a section on governance; I have not reviewed this particular section to see if I have any additional thoughts or comments, although I agree with Seabron that we should probably discuss the need for this section next week. I have received the Acrobat version by separate email and will forward it to you separately. Finally, I will send the pleading that will accompany the White Paper to you on Monday. Ron Received: from mcafee.bracepatt.com by bracepatt.com; Fri, 06 Oct 2000 15:41:25 -0500 Received: FROM kes.ici.net BY mcafee.bracepatt.com ; Fri Oct 06 15:41:40 2000 -0500 X-Proxy: keymaster.bracepatt.com protected Received: from SeabLaptop ([38.167.130.101]) by kes.ici.net (8.8.8/8.8.8) with SMTP id QAA06374 for <rcarroll@bracepatt.com>; Fri, 6 Oct 2000 16:36:10 -0400 (EDT) From: "Seabron Adamson" <seabron.adamson@frontier-economics.com> To: "Ronald Carroll" <rcarroll@bracepatt.com> Subject: Draft of Enron White Paper on California markets Date: Fri, 6 Oct 2000 16:36:22 -0400 Message-ID: <NDBBJDNDALMDFFFCOAEBEELMCEAA.seabron.adamson@frontier-economics.com> MIME-Version: 1.0 Content-Type: multipart/mixed; boundary="-----=_NextPart_000_0000_01C02FB3.902E9FC0" X-Priority: 3 (Normal) X-MSMail-Priority: Normal X-Mailer: Microsoft Outlook IMO, Build 9.0.2416 (9.0.2910.0) Importance: Normal In-Reply-To: <s9dc83b5.062@bracepatt.com> X-MimeOLE: Produced By Microsoft MimeOLE V5.00.2314.1300

Ron:

Please find attached a first draft of the Enron white paper on further California market reforms.

I have added a short section on governance as discussed, although I am not convinced that it has a great role or that the comments of Carl or I are very insightful on this issue. Perhaps we should discuss it further next week.

Give me a call if you need anything else. There may be problems with the Word version (Word always causes problems) so I will email you an Acrobat version as well in a few minutes.

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

- 00-10-07 SA Draft Enron White Paper.doc

Message 53 of 1299

RE: Australian visit

Sender jeff.dasovich@enron.com

Recipients ['sabine.schnittger@frontier-economics.com', 'susan.j.mara@enron.com', 'jeff.dasovich@enron.com']

File dasovich-j/sent/11821.

It's about 90% certain that I'm out of the office on the 3rd. Thank you, Sue, for helping out.

Best, Jeff

"Sabine Schnittger" <Sabine.Schnittger@frontiereconomics.com> 06/29/2001 09:43 AM Please respond to Sabine.Schnittger

To: <Susan.J.Mara@enron.com> cc: <jeff.dasovich@enron.com> Subject: RE: Australian visit

Thanks for your time, Sue.

I hope I am not causing confusion - we also emailed Jeff Dasovich to ask if he had time to talk with the Australians - he said he was going to see what he could do.

If you or Mr Dasovich might have time to give these guys a market participant's view that would be great - at the moment they are only seeing the CPUC, the CAISO and PG&E.

Would you maybe have time to talk to them on Tuesday, July 3rd? They could meet anytime between 1.00PM up to 4.00PM and then they need to head off to the airport. Maybe they could take either of you out for lunch?

Best wishes,

Sabine.

-----Original Message----- From: Susan.J.Mara@enron.com [mailto: Susan.J.Mara@enron.com] Sent: Thursday, 28 June 2001 6:43 PM To: Sabine.Schnittger@frontier-economics.com Subject: Re: Australian visit Whoops. Forgot to back to you on this. Do you have a date? Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 "Sabine Schnittger" <Sabine.Schnittger@frontierecon To: "Sue Mara" <smara@enron.com> omics.com> cc: Subject: Australian visit 06/18/2001 09:01 AM Please respond to Sabine.Schnittger Dear Sue, Hope you are well; no doubt the ongoing saga in California is keeping you busy. I am writing to ask whether you might be available to meet (maybe for an hour/hour and a half max) with an Australian colleague of ours and three advisors to the Treasurer of the state of New South Wales (Sydney, Australia) to give

them a market participant's perspective on about events in the California electricity market and the implications for deregulation/regulatory policy for electricity. Basically the four are advisors to the Minister of Energy and are being sent across to the US to get a feel for what went on and how to avoid similar disasters in the National Electricity Market (NEM) in Australia. By way of background I should say that New South Wales is a party to the NEM, and is in the process of deciding in which direction the reform process should be taken forward. The team would therefore be very interested in Enron's views on such issues as regulatory policy with respect to retail rates, market power, encouraging investment (including grid investment), but also any other issues that Enron considers to be important in the light of the California experience. The group consists of Bill Frewen (Senior Ministerial Advisor State Owned Corporations to the NSW Treasurer), Peter Shields (Senior Economist, Market Implementation Group, NSW Treasury), Mark Duffy (Economics/IR Consultant to the MIG, NSW Treasury) and Danny Price (Principal, Frontier-Economics, Consultant to the MIG, NSW Treasury). If you - or someone else that might have a view on California market reform - might have time to talk to them that would be very much appreciated. Many thanks, Sabine.

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- winmail.dat

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RE: Meeting with Perfect Commerce

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/sent_items/316.

babe, if they get back to me with a date that week, i think that you ought to just have the meeting, understanding that the meeting with execs may not have occured yet. nevertheless, you'll have a darned good idea by that time whether its working well or it's a flop, non?

anywho, let's see what response i get back. maybe they'll want to push back.

her hair looked really good (it was pretty all over the place previously). now, with a few professional flourishes, she look even more gorgeous (if that's possible).

best, Jeff

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Thursday, September 27, 2001 11:26 AM To: Dasovich, Jeff Subject: FW: Meeting with Perfect Commerce

OK, so the oct 15th date is a little too early. The pilot review with execs at enron is at the end of the month. SO, we should target early November for this meeting. Can you help facilitate that?

What did you think of PP's hair. I was shocked. It looked really good!

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Ian Sullivan Sent: Wednesday, September 26, 2001 6:44 PM To: Cameron Sellers Subject: RE: Meeting with Perfect Commerce

We are tentatively scheduled for a Pilot Review with the VP of EES on 10/30 in Houston, so early Nov. for this meeting is probably the best bet. -----Original Message----- From: Cameron Sellers Sent: Wednesday, September 26, 2001 2:09 PM To: Ian Sullivan Subject: FW: Meeting with Perfect Commerce

I pushed this date way out. We can easily push it out more. Jeff fully understands that we want to schedule this meeting after the pilot has been completed (not get in the way, see the real value of the system first...etc.). My question to you is when is the pilot scheduled to be completed so I have a time frame on when these discussions might take place.

Thanks, Cameron

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Dasovich, Jeff [mailto:Jeff.Dasovich@ENRON.com] Sent: Wednesday, September 26, 2001 1:57 PM To: Greg Piper (Enron); Brad Richter (Enron) Subject: Meeting with Perfect Commerce

Greg: Good talking to you. Congratulations on your new role. Sounds exciting (in addition to exhausting).

Based on our call, I contacted Perfect Commerce. The two folks from their shop that will be in Houston are:

Ian Sullivan SVP, Professional Services and all implementation of the product

Cameron Sellers VP, Business Development

They'd like to meet sometime during the week of October 15th. Let me know if that works for you and Brad. Or if you'd like to contact them directly, just let me know and I'll get you their numbers/emails.

I ran across Perfect when I was doing an MBA project-we were required to find a company that we could consult to on e-commerce strategy.

I've since found out that Perfect's doing a pilot with EES-acting as the e-procurement platform for products tied to EES' outsourcing deals. From what I hear it's going well, and EES is enthusiastic.

The technology is very interesting: soup to nuts e-procurement platform developed by Paul Milgrom (global auction guru and economist at Stanford). Glad you guys can meet with them. I think it's definitely worth the time-the technology may fit very well with Networks.

Best, Jeff

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26 January, 2001 TR State NewsWire

Sender	gbrandon@tr.com
Recipients	['cwall@tr.com']
File	dasovich-j/all_documents/8630.

STATES UTAH -- Bill repealing merger of agencies goes to Gov. Leavitt LA. -- PSC to seek reconsideration of allowing AT&T to sue commissioners

TEXAS -- PUC to enroll Lifeline customers automatically WIS. -- Bill would bar passing on costs of city-owned cable TV to nonsubscribers MASSACHUSETTS -- WorldCom joins AT&T call for Verizon to cut UNE rates TEXAS -- SW Bell performance measurement penalties total almost \$2.6 million NEW YORK -- Meeting set to organize opposition against Verizon DSL WASHINGTON -- Bill would extend ban on mandatory local measured service IOWA -- Legislator takes aim at telemarketers MISSOURI -- PSC approves asset transfer from SWBT to SBC Services OHIO -- PUC sets schedule for considering unresolved OSS issues

FUTURE OF REGULATION UTAH Bill repealing merger of agencies goes to Gov. Leavitt

The Legislature has approved HB 184 to repeal a controversial measure (HB 320) approved by the Utah Legislature last year to fold the Committee of Consumer Services into the Division of Public Utilities. (1/24/00 a.m.) HB 184 passed through both chambers within two days. Absent repeal, HB 320, which wasn't scheduled to take effect until July 1, would combine and rename the entities as the Office of Public Advocate.

Rep. David Ure (R., District 53), who sponsored HB 320, now is sponsoring the bill to repeal it. The legislative staff told TR he decided the time isn't right to overhaul the structure of the state's utility regulatory apparatus given current concerns about adequate supplies of electricity in the West. Questar Gas Co. had pushed for HB 320 last year.

The DPU is charged with representing the public interest before the Public Service Commission and ensuring that all utility customers have access to safe and reliable service at reasonable prices. The Committee of Consumer Services represents residential, small commercial, and agricultural consumers before the commission.

Because HB 320 would combine the two missions into a single entity, interest groups were concerned the bill would decrease the amount of information available to the PSC when making decisions.

Consumer group opposition to HB 320 during the 2000 legislative session persuaded Gov. Michael O. Leavitt (R.) to call for a review of the law after the session concluded in March. Leavitt allowed the bill to become law without signing it.

SECTION 251/252 LOUISIANA PSC to seek reconsideration of allowing AT&T to sue commissioners

The Public Service Commission has decided to ask the U.S. Court of Appeals for the Fifth Circuit (New Orleans) to reconsider its Jan. 16 ruling that the 11th Amendment doesn't protect the PSC from a lawsuit filed by AT&T Corp, a commission staff member told TR. (1/18/01 p.m.) The PSC has 45 days from Jan. 16 to file for rehearing, the staff member said.

In 1997 AT&T filed suit against the PSC over an interconnection agreement the commission arbitrated between AT&T and BellSouth Telecommunications, Inc. AT&T alleged that the agreement favored BellSouth and that the PSC's arbitration didn't comply with sections 251 and 252 of the Telecommunications Act of 1996. In addition, AT&T brought a suit against the five commissioners under the Ex parte Young doctrine, seeking relief from any arbitration determination that didn't comply with sections 251 and 252 of the Act.

Reversing the district court's ruling against AT&T, the appeals court maintained that the PSC waived its 11th Amendment sovereign immunity by voluntarily accepting and fulfilling its assigned role in the federal regulation of local competition under the federal Telecommunications Act of 1996. Furthermore, the appeals court ruled that AT&T's suit against the individual commissioners could proceed even if the PSC were protected under the 11th Amendment. (Case no. 99-30421, AT&T Communications v. BellSouth Telecommunications Inc.; Louisiana Public Service Commission; Don Owen; Irma Muse Dixon; Dale Sittig; James M. Field; Jack A. Blossman)

UNIVERSAL SERVICE TEXAS PUC to enroll Lifeline customers automatically

The Public Utility Commission yesterday approved rules allowing eligible customers to be enrolled in the Lifeline program automatically. (8/21/00 a.m.) The rules require the PUC to work with local telephone companies and the Department of Human Services to set up the Lifeline Automatic Enrollment Program.

The department will identify customers who are eligible for the program and provide their names to the local telephone companies. The program is scheduled to begin March 1. (Project no. 21329)

VIDEO WISCONSIN Bill would bar passing on costs of city-owned cable TV to nonsubscribers

A bill introduced in the Senate would prohibit a municipality that owns and operates a cable TV system from passing on the cost of the system to nonsubscribers. The prohibition wouldn't apply to a municipality that began operating a cable TV system before the legislation's effective date.

A municipality that began operating a cable TV system on or after the legislation's effective date would be allowed to pass on to nonsubscribers only the costs of public, educational, and governmental access channels and the costs of debt service on public improvement bonds for the construction, renovation, or expansion of the municipality's cable TV system.

A municipality that owns and operates a cable TV system would have to maintain records that include (1) the cost of franchise fees, pole rentals, and all other expenses that the municipality would incur if it were a nonmunicipal cable TV operator that had been granted a franchise and (2) the amount, source, and cost of working capital used for the municipality's cable TV system.

SB 23 has been referred to the Senate Committee on Health, Utilities, Veterans, and Military Affairs. Sen. Rodney Moen (D., District 31) introduced it.

SECTION 251/252 MASSACHUSETTS WorldCom joins AT&T call for Verizon to cut UNE rates

WorldCom, Inc., has asked the Department of Telecommunications and Energy to force Verizon New England, Inc., to reduce its unbundled network element (UNE) rates to "levels that reflect forward-looking economic costs." The WorldCom request came in a letter supporting AT&T Corp.'s petition for lower Verizon UNE rates.

AT&T's petition had urged the DTE to withdraw its support for Verizon's application to the FCC for authority to enter the interLATA (local access and transport area) market in Massachusetts unless Verizon reduced its rates. WorldCom and AT&T assert that neither the rates Verizon submitted in July nor the revised rates it submitted in October are low enough to "allow economically viable competition via the UNE-platform." (1/3/00 a.m.)

WorldCom said the "most efficient and straightforward approach" to promoting local competition is "to order that specific reduced rates be put in place and to make clear that those rates will act as a ceiling in pending and future rate cases." (DTE 01-20)

LONG DISTANCE TEXAS SW Bell performance measurement penalties total almost \$2.6 million

Southwestern Bell Telephone Co. has paid almost \$2.6 million to the Public Utility Commission for failing to meet performance measurements established in its compliance monitoring proceeding from January 2000 through November 2000, the PUC staff told TR. The proceeding aims to ensure SW Bell's compliance with the market entry requirements of section 271 of the federal Telecommunications Act of 1996.

In June 2000 the FCC granted SW Bell authority to enter the Texas interLATA service market. (Project nos. 20000, 20400, and 21000)

ADVANCED SERVICES NEW YORK Meeting set to organize opposition against Verizon DSL

Silicon Alley Station and the New Networks Institute are sponsoring a Feb. 5 meeting in Manhattan to discuss the "slow" rollout of digital subscriber line (DSL) service

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Sara Beckman Receives UC Berkeley's Distinguished Teaching Award

Sender	owner-eveningmba@haas.berkeley.edu
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File	dasovich-j/all_documents/11448.

Haas NewsWire April 23, 2001

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Sara Beckman Receives UC Berkeley's Distinguished Teaching Award Undergrads Create Solutions at the E-Business Case Competition UC Berkeley Teams Take Part in Two Real Estate Challenges Haas Experts on the Challenges to the Economy at the Faculty Alumni Colloquium Haas Celebrates the End of the Year Graduating MBA Student Debrief with Dean Tyson Faculty News Haas in the News Happening at Haas Haas Celebrations

SARA BECKMAN RECEIVES UC BERKELEY'S DISTINGUISHED TEACHING AWARD Sara Beckman, senior lecturer at the Haas School, is one of four recipients of this year's Distinguished Teaching Award, UC Berkeley's highest prize for teaching. ?

The recipients will be honored in a ceremony on Wednesday, April 25, at 5:00 p.m. in Zellerbach Playhouse. The entire UC Berkeley community is invited to attend.

Beckman has been with the Haas School of Business since 1988 and has taught courses in three of the Haas School's four degree programs -- undergraduate, full-time MBA, and Evening MBA -- and in executive development. Beckman currently teaches Operations Management and New Product Development in the MBA program.

In 1995, Beckman and engineering Professor Alice Agogino introduced the course Managing the New Product Development Process (BA290A/ME290P) to be taught jointly to business and engineering students. This course has been the most popular course at the Haas School for at least the past two years. Beckman continues to co-teach the course with Professor Agogino; the course is cross-listed with the College of Engineering. In the last two years, it has also involved Leslie Spear from the California College of Arts and Crafts. The highlight of this course is the New Product Tradeshaw, which takes place at the end of the semester and allows the students to display their prototypes to the public.

Beckman has received excellent course evaluations from the students in all of her courses. She has been a member of Club 6 for every semester she has taught at Haas. Club 6 membership requires a median student evaluation rating of at least 6 on a scale of 1 to 7.

Beckman earned her undergraduate degree in industrial engineering with distinction at Stanford University. She also earned two Master's degrees -- in industrial engineering/engineering management and in statistics -- and a doctoral degree at Stanford University. Before coming to Haas, Beckman worked at Booz, Allen & Hamilton and managed several technology initiatives and programs at Hewlett Packard. From 1991 to 1997, Beckman took leadership of the Management of Technology (MOT) program. In 1998, she became co-director with Marketing Chair Russell Winer of the reorganized and expanded Fisher Center for the Strategic Use of Information Technology (FCSUIT). FCSUIT's objective is to integrate the Haas School's various efforts in e-business.

Previous winners of the Distinguished Teaching Award at Haas include Richard Lyons, Andrew Shogan, Laura D'Andrea Tyson, and M. Frances Van Loo.

Beckman is joined this year by three other recipients: Carolyn Bertozzi, assistant professor of chemistry; Seda Chavdarian, lecturer in the French Department; and Ronald Gronsky, professor of material science and engineering.

The Distinguished Teaching Award is given by the Committee on Teaching, a committee of the Berkeley division of the Academic Senate. A reception in the Alumni House's Toll Room follows the ceremony.

UNDERGRADS CREATE SOLUTIONS AT THE E-BUSINESS CASE COMPETITION The second annual E-Business Case Competition wrapped up last week with a final competition on Monday night. Undergraduate students from across the Berkeley campus formed teams and came up with solutions to an Internet strategy problem for Cisco Systems.

"The second annual E-Business Case Competition once again provided a venue for showcasing the incredible talents of Haas and UC Berkeley undergraduates in addressing a real-world business issue in a pressure-packed setting," says Dan Himelstein, undergraduate program director. "Not only was it a great night for everybody involved in putting together and participating in this competition to hold their heads high, it was also a lot of fun."

The members of the winning team were David Chan, industrial engineering and operations research; Christine Cho, business administration; Lisa Mou, economics; and Aryn Saleh, industrial engineering and operations research.

The team's solution addressed how Cisco Systems can use the Internet to help its channel partners focus on their core competencies and create a competitive advantage using a "triangular channel solution" that revolved around the development of a comprehensive and interactive "myCisco" web site for use by Cisco, its channel partners/resellers, and

end users. The site would provide a set of integrated electronic marketplace online applications that would deliver better information and better product and service solutions in a more efficient, effective, and profitable manner.

Each member of the winning team received a \$100 gift certificate from Cisco, \$1000 for the team to share from the Schlinger Family Foundation, t-shirts donated by Deloitte Consulting, and a crystal commemorative plaque. The other finalist teams received \$350 for the team to share from the Schlinger Family Foundation, t-shirts donated by Deloitte Consulting, and a crystal plaque to each member of the team.

Representatives from the Schlinger Family Foundation, Cisco Systems, and Deloitte Consulting came to hear the final presentations and meet the participating students.

UC BERKELEY TEAMS TAKE PART IN TWO REAL ESTATE CHALLENGES Two teams of UC Berkeley graduate students have been working feverishly on plans to present at National Association of Industrial and Office Properties (NAIOP) Challenge and the Bank of America Low-Income Housing Challenge competitions this spring.

NAIOP Real Estate Development Challenge The NAIOP Real Estate Development Challenge is a competition between graduate students at UC Berkeley and Stanford that is sponsored by the San Francisco Bay Area chapter of the National Association of Industrial and Office Properties. Teams of five students are given an actual site, for which they must propose the best use, design, financing, and marketing of a commercial real estate project.

UC Berkeley's 2001 NAIOP Team includes Aimee Einstein, MBA 02; Jonathan Fearn, Masters of City Planning 01; Chiendao Glasgow, Masters of Architecture 01; Maria Iniguez, MBA 01; and Sara Williams, MBA 02. UC Berkeley's team won the competition last year bringing the decade-long battle with Stanford to a tie, five wins for each university.

Proposals are judged by a nine-member jury of real estate professionals in the areas of development, finance, property management, brokerage, and local government. This year's site is on Mare Island, a former naval base in Vallejo, California. Final proposals are presented at an annual luncheon in May, with hundreds of NAIOP members in attendance. The winning team gets to keep the prized Golden Shovel (a close cousin of the Big Game Axe) for one year.

Final presentations take place Thursday, May 3, beginning at 11:30 a.m., at the Olympic Club in San Francisco. Tickets are \$30 for UC Berkeley faculty and students to attend the lunch and the presentation (this is a discounted price offered to faculty and students). There is no charge if you are just attending the presentation.

Bank of America Low Income Housing Challenge Sponsored by Bank of America, the BofA Low-Income Housing Challenge is a competition among several west coast graduate schools, where

Message 57 of 1299

Enron Mentions

Sender	courtney.votaw@enron.com
Recipients	[]
File	dasovich-j/inbox/708.

Stocks Close Higher As Investors Cheer Earnings News Dow Jones Business News- 10/22/01 Enron Faces Holder Suit From Fincl Chief Pacts Dow Jones News Service- 10/22/01 Shapiro Haber & Urmy Files Class Action on Behalf of Purchasers of Enron Corporation Stock (NYSE: ENE) in The Period From July 13, 2001 Through October 16, 2001 PR Newswire- 10/22/01 Enron Board Approved Partnerships Run by Chief Financial Officer PR Newswire- 10/22/01 USA: UPDATE 3-SEC looks into Enron deals, stock slides 20 pct. Reuters English News Service- 10/22/01 Enron shares plunge 20 percent after acknowledging SEC inquiry Associated Press Newswires- 10/22/01 STOCKWATCH Enron lower after SEC questions transactions; AG Edwards downgrades AFX News- 10/22/01 Enron Corp. Information requested by SEC. Regulatory News Service- 10/22/01 Enron Shares Slide as SEC Seeks Information on Deals With CFO's Partnership Dow Jones Business News- 10/22/01 Enron Says SEC Asks About Related-Party Transactions (Update8) Bloomberg- 10/22/01 UniPrime Signs Letter of Intent for Wind Energy Park Project Business Wire- 10/22/01

Stocks Close Higher As Investors Cheer Earnings News By Peter Edmonston

10/22/2001 Dow Jones Business News (Copyright (c) 2001, Dow Jones & Company, Inc.) The Wall Street Journal Online Stocks rallied sharply Monday despite the widening anthrax scare, as a batch of better-than-expected quarterly earnings reports cheered investors. The Dow Jones Industrial Average gained 172.92, or 1.9%, to close at 9377.03 after gaining 40.89 points Friday. The Nasdaq Composite Index rose 36.75, or 2.2%, to 1708.06 after climbing 18.59 points in the previous session. Other major stock indexes gained ground Monday. The Standard & Poor's 500-stock index added 16.42 to 1089.90, the New York Stock Exchange Composite Index rose 7.13 to 561.45, and the Russell 2000 Index gained 4.80 to 430.50. Bonds were mixed and the dollar strengthened. The stock market's gains were tempered briefly by news that a postal worker in Washington, D.C., was diagnosed with anthrax contracted by inhalation. Additionally, two other postal workers in Washington have died and their deaths are being investigated to determine if they died of that same ailment. But stocks took the anthrax reports in stride, suggesting a new and surprising level of confidence among market participants, some analysts said Monday. "The market is really shrugging off this news," said Mark Donahoe, a managing director at U.S. Bancorp Piper Jaffray. Upbeat earnings news from American Express, released Monday afternoon, seemed to give stocks an additional lift. Investors may be shifting their focus away from concerns about anthrax exposure and U.S. military maneuvers in Afghanistan to take a closer look at quarterly earnings results, said Steven Kroll Sr., managing director at Monness, Crespi & Hardt. The uncertainty on the global front "looks like it is going to be a long, drawn-out affair," Mr. Kroll said. "I think stocks will revert back to being earnings-driven." Although dismal by ordinary standards, last week's flood of quarterly earnings reports got a reasonably upbeat reception from investors, who seem to have approached them with extremely low expectations. "The markets acted pretty well last week in light of some very ugly earnings," said Mr. Donahoe of U.S. Bancorp. That resilience might be giving hope to investors this week, he added. Still, investors will be carefully sifting through quarterly results in the coming week to get a fix on how the fourth quarter is shaping up, Mr. Kroll argued. Third-quarter earnings showed several pockets of strength on Monday, with big companies such as Minnesota Mining and Manufacturing and U.S. Steel posting results that met or topped analysts' estimates. The Dow industrials got an additional boost shortly after 2 p.m. EDT when index component American Express reported earnings that, excluding certain items, beat Wall Street previously lowered estimates. The financial-services concern posted net income of \$298 million, or 22 cents a share, down 60% from \$737 million, or 54 cents a share, a year earlier. Excluding charges related to a corporate restructuring and the September 11 attacks, American Express said it would have earned \$595 million, or 45 cents a share, for the latest quarter. Analysts had been expecting earnings of 30 cents a share, according to Thomson Financial/First Call. Shares of American Express surged after the quarterly earnings release, closing up 3.4% at \$30.32. Chip stocks helped lead the Nasdaq composite higher, with the Philadelphia semiconductor index gaining 5.4%. The rally seemed to be a continuation of Friday's gains in the sector, sparked by positive earnings news from KLA-Tencor. U.S. Steel, the nation's No. 1 steelmaker, said it swung to a third-quarter loss from a profit a year earlier, hurt by oversupply and a weak economy. But excluding charges related to the closure of one mill and damage at another, U.S. Steel said its loss was much narrower than what was forecast by analysts surveyed by Thomson Financial/First Call. Shares of U.S. Steel rose 9.7% to \$14.74. Investors also sent 3M shares nearly 5% higher after the maker of chemical and adhesive products squeaked by Wall Street estimates, despite a 21% decline in net income. And oil producers Conoco and USX-Marathon Group handily beat analysts' forecasts. But not all the earnings news was cheery. Local phone company SBC Communications recorded net income that was slightly below estimates. Shares of SBC, a component of the Dow industrials, fell 5.1% to \$41.40. Meanwhile, the outlook for corporate profits in the fourth quarter seems discouraging, some analysts noted. On Monday, 3M guided Wall Street's earnings expectations lower for the upcoming quarter, and a top executive at U.S. Steel told analysts that the company's fourth quarter would be "difficult." Companies "are meeting third quarter expectations, but they are talking down the fourth quarter," said Mr. Kroll of Monness Crespi & Hardt. He said that some of the rise in Monday's markets might be a carryover from Friday's buying activity related to the expiration of U.S. stock option and index option contracts, an event known as "double witching." One of the hardest-hit stocks on Monday was Enron, an energy concern that said that the Securities and Exchange Commission was seeking information about certain complex transactions it undertook with a limited partnership organized by its chief financial officer. Shares of Enron plunged 21% to \$20.65. Overseas, stocks closed higher. London's Financial Times-Stock Exchange 100-Share Index gained 1.1%, while Frankfurt's Xetra DAX index rose 2%. Earlier in the day, Japan's Nikkei 225 average closed with a gain of 0.3%, but Hong Kong's Hang Seng Index ended 0.3% lower. In economic news, the Conference Board reported that its index of leading indicators for the month fell 0.5% in September, matching the estimates of economists surveyed by Thomson Global Markets. The index -- a composite of measurements aimed at forecasting likely changes in the economy -- included some data gathered after the Sept. 11 attacks. The decline, which was the index's largest one-month drop since January 1996, confirmed that the widespread weakness in the U.S.

economy is deepening, the Conference Board said. Falling stock prices and rising initial unemployment claims were two of the index components that contributed most negatively to the September reading. In August, the leading-indicators index slipped 0.1%, less than the previous estimate of a 0.3% decline. Even so, the back-to-back declines paint a bleak economic picture, said Conference Board economist Ken Goldstein. The two-month decline in the index suggests that the already-weak economy is likely to remain weak into next year, Mr. G

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Enron's Skilling Cites Stock-Price Plunge As Main Reason for Leaving CEO Post The Wall Street Journal, 08/16/01

Enron's Lay to Name Two to Chairman's Office, Newspaper Reports Bloomberg, 08/16/01

Veritas Software, Vitesse Decline Amid Tech Slump, Energy Surge The Wall Street Journal, 08/16/01 Houston-Area Energy Giant Plans to Quickly Fill CEO Position Houston Chronicle - Texas, 08/16/01 Enron's Skilling Cites Stock-Price Plunge as Main Reason for Leaving CEO Post Dow Jones Business News, 08/16/01 Enron's Skilling says resigned due to plummeting share price AFX News, 08/16/01 After a tumultuous six months as the energy company's president and CEO, Jeffrey Skilling says "No mas," tendering his resignation. Redherring.com, 08/16/01 Enron shares decline after CEO resigns National Post, 08/16/01 Shares Fall, With the Nasdaq Closing at a 4-Month Low The New York Times, 08/16/01 Skilling quits, jolts Enron The Times of India, 08/16/01 World Watch The Wall Street Journal, 08/16/01 Markets / Your Money Enron Stock Hits 52-Week Low on Skilling's Exit Reaction: Some analysts, however, reaffirm their confidence in the energy trader's bold strategy. Los Angeles Times, 08/16/01 USA: Enron reels as heir-apparent Skilling exits. Reuters English News Service, 08/15/01 Bandwidth Market: Price For OC48 Package Shifts Downward Dow Jones Energy Service, 08/15/01 Enron's CEO Skilling Departs, Testing Enron Again Dow Jones News Service, 08/15/01

Historic status for pipelines resisted Houston Chronicle, 08/15/01

Enron plans to quickly fill top positions Houston Chronicle, 08/15/01

CHINA: ANALYSIS-India investors seen gaining from U.S. policy shift. Reuters English News Service, 08/16/01 INDIA: Belgium's Tractabel pulls out of India - paper. Reuters English News Service, 08/16/01 TERMS OF REFERENCE FOR INDIA'S ENRON PROBE TO BE FINALISED Asia Pulse, 08/16/01

Enron's Former CEO Says He Failed in Some Businesses, CNBC Says Bloomberg, 08/16/01

Enron's Skilling Cites Stock-Price Plunge As Main Reason for Leaving CEO Post By John R. Emshwiller Staff Reporter of The Wall Street Journal

08/16/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Jeffrey K. Skilling said that the pressure he felt from Enron Corp.'s plummeting stock price was the main reason he decided to resign Tuesday as the energy giant's chief executive officer after only about six months in the job. In an interview yesterday, the 47-year-old Mr. Skilling elaborated on his decision to leave Houston-based Enron. On Tuesday, Mr. Skilling insisted he had resigned for "personal reasons" unrelated to Enron's business activities. In the interview, he reiterated that he wasn't under any pressure to resign from the company's board or Chairman Kenneth Lay, who has resumed the CEO's duties at the nation's biggest energy trader. However, yesterday Mr. Skilling said that his "personal reasons" were deeply enmeshed with feelings that he had failed in a crucial business area during his brief tenure as CEO. Calling the company's stock performance a "kind of ultimate score card," Mr. Skilling noted that Enron's share price had fallen by some 50% this year. Mr. Skilling said he took that stock-price drop very personally. "I put a lot of pressure on myself" for that decline, he said. "I felt I must not be communicating well enough" with investors. He felt this particularly given Enron's strong financial results over the past several quarters, based largely on growing volumes in its trading

business, which covers a range of items, including electricity, pulp and paper. If the stock price had remained up "I don't think I would have felt the pressure to leave," he said. In January, Enron topped \$84 a share in New York Stock Exchange composite trading. It closed Tuesday, before the announcement of Mr. Skilling's resignation, at \$42.93 a share. As of 4 p.m. yesterday, Enron traded at \$40.25, after falling below \$37 during the day. Mr. Skilling, who had been at Enron 11 years, said the depressed stock price was particularly tough to explain to fellow Enron employees, many of whom are shareholders. "People would say 'What is going on with the stock, Jeff?' I would have to say I didn't know. It has been frustrating," said Mr. Skilling. The self-portrait offered by Mr. Skilling in the interview is rather different from the widely held image of him as an ambitious, bright and thick-skinned business strategist whose long-held goal had been becoming Enron CEO. Mr. Skilling said that the "final straw" in his decision to leave had come on a visit last week to England in connection with the deaths of three Enron workers in a power-plant accident there. That trip helped reinforce "how tenuous life is," said Mr. Skilling, who has three children from a previous marriage and recently became engaged. While Mr. Skilling said Enron is in "great shape," his departure raised anxiety in the investment community. Merrill Lynch, for instance, lowered its rating on Enron to neutral from buy based on "uncertainty" created by the resignation. Yesterday, an Enron spokesman confirmed that Mr. Lay plans to name two executives to the existing "office of the chairman" within the next few days or weeks. The spokesman said Mr. Lay hadn't yet revealed whom the two would be. The office of the chairman had consisted of Mr. Lay and Mr. Skilling.

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Enron's Lay to Name Two to Chairman's Office, Newspaper Reports 2001-08-16 08:41 (New York)

Houston, Aug. 16 (Bloomberg) -- Enron Corp. Chairman Kenneth Lay plans to name two company executives to the "office of the chairman" as soon as the next few days, the Wall Street Journal reported, citing an unnamed Enron spokesman. The appointments follow the resignation Tuesday of Jeffrey Skilling as chief executive. Lay took back his job as CEO of the biggest energy trader. Skilling had said he resigned for personal reasons. Pressure from Enron's falling stock price also contributed to his decision, he said in an interview with the Journal. Skilling joined Enron in 1990 and became chief executive in February. "I felt I must not be communicating well enough" with investors, he said, according to the newspaper. Houston-based Enron's shares had fallen 48 percent this year before Skilling stepped down, though second-quarter profit rose 40 percent from a year earlier, and revenue had almost tripled. The "final straw," showing "how tenuous life is," happened last week on a trip to England related to the deaths of three Enron workers in a power-plant explosion, Skilling said in the newspaper interview. Enron's stock fell \$2.68, or 6.2 percent, to \$40.25 yesterday.

Abreast of the Market Veritas Software, Vitesse Decline Amid Tech Slump, Energy Surge By Robert O'Brien Dow Jones Newswires

08/16/2001 The Wall Street Journal C2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -- Energy stocks found reason to rally, but weakness in technology issues caused market averages to fade in another thinly traded summer session. BEA Systems hit a 52-week low as investors reacted to the downbeat forecast that accompanied the San Jose, Calif., software maker's fiscal second-quarter results Tuesday. BEA Systems fell \$1.56, or 8.4%, to \$17.04 in Nasdaq Stock Market trading. At best, reaction to the earnings results in the group drew an inconsequential response. Semiconductor-equipment maker Applied Materials finished nine cents higher at 43.74 on Nasdaq, while Nvidia, a maker of three-dimensional graphics processors, rose 10 cents, to 85.95 on Nasdaq, after its quarterly profit statement. In a more accurate gauge of investor caution, companies about to record quarterly results faded. Brocade Communications, a maker of data-storage software products, ease

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The State Consultants' Stock Buys Questioned Energy: State official urges conflict of interest probe into purchases of shares in power firms. Los Angeles Times, 07/17/01 UK: LME disciplines Enron Metals, accepts settlement. Reuters English News Service, 07/17/01 LME Fines Enron \$264,000 for 'Serious' Rule Breaches (Update2) Bloomberg, 07/17/01 Communications Company Terremark Issues Warns Investors about Losses KRTBN Knight-Ridder Tribune Business News: The Miami Herald - Florida, 07/17/01 Calif Senator: Enron Contempt Charge Seen Dropped Tue Dow Jones Energy Service, 07/16/01 SMARTMONEY.COM: One Year and Counting (Their Losses) Dow Jones News Service, 07/16/01 AReM Says Sweet Bailout Deal for Edison Eliminates Competitors, Rebuilds Monopoly and Keeps Consumers Hostage PR Newswire, 07/16/01 Dutch Power Mkt Pressure On Watchdog, Generators, Mounts Dow Jones Energy Service, 07/16/01 U.S. Northwest Power Claims Put Utilities at Odds, Paper Says Bloomberg, 07/16/01 India Rejects Enron Proposal for NTPC to Buy Dabhol, Paper Says Bloomberg, 07/16/01

California; Metro Desk The State Consultants' Stock Buys Questioned Energy: State official urges conflict of interest probe into purchases of shares in power firms. JEFFREY L. RABIN; ERIC BAILEY TIMES STAFF WRITERS

07/17/2001 Los Angeles Times Home Edition B-7 Copyright 2001 / The Times Mirror Company

Secretary of State Bill Jones on Monday urged California's attorney general to investigate possible conflict of interest violations by consultants hired to help the Davis administration navigate the energy crisis. Jones, a Republican candidate for governor, said at a Los Angeles news conference that Atty. Gen. Bill Lockyer and the state Fair Political Practices Commission should determine whether seven of the consultants have conflicts of interest because they own stock in one or more energy companies. He also asked the state's chief law enforcement officer to immediately determine whether the governor's office violated state law by exempting 21 of the 45 consultants from financial disclosure requirements. "I am gravely concerned that a cloud of illegality and collusion exists at the highest level of our state government due to the actions and the conscious policy of secrecy of Gov. Davis," Jones said. That brought a sharp retort from the governor's spokesman, Steve Maviglio, who attacked Jones for engaging in campaign politics. "The secretary of state has a five-person team bankrolled by the taxpayers attempting to dig up dirt for political reasons," Maviglio charged. "This is politics pure and simple being played by a candidate desperate to get his name in the paper," Maviglio said. If there are any violations of the law, he added, "they're going to be addressed." The secretary of state's entry into the energy controversy poses yet another headache for Davis as he prepares to run for a second term next year. Already, the GOP and some power producers have begun airing commercials critical of Davis' handling of the power crunch, forcing the governor to dip into his own campaign funds to fight back. Jones, as the state's chief elections officer, contends that his concerns are not just political. He noted that he appoints one of the five members of the Fair Political Practices Commission, which enforces campaign finance and conflict of interest laws. Among other things, Jones questioned why Vikram Budhraj, head of the Electric Power Group, a Pasadena energy consulting firm, bought stock in Edison International and Dynegy Corp. in the days before he went to work for the state. Budhraj was hired under a \$6.2-million contract between his firm and the state Department of Water Resources that was signed on Jan. 18. Like two dozens of the consultants hired by the state, he did not complete a financial disclosure statement until last week, more than six months after he went to work for the department, which now buys power for the state's three largest utilities. The financial disclosure statement filed by Budhraj last Thursday shows that he bought between \$10,000 and \$100,000 worth of Dynegy stock on Jan. 11. Six days later, he bought between \$10,000 and \$100,000 of Edison stock. That was the same day that Davis declared a state of emergency because of the energy crisis and ordered the Department of Water Resources to begin buying power on behalf of the state's financially troubled major utilities. On Jan. 22, Budhraj again bought between \$10,000 and \$100,000 of Edison stock. On his disclosure statement, he indicated that he began work for the state Jan. 25 and sold the stock on Jan. 29--the first opportunity he had to divest his holdings. Jones told reporters that Budhraj's investments in Edison grew by 44% to 47%, while his Dynegy investment increased 28% in that brief period. Budhraj was also on retainer as a consultant to Edison International, earning more than \$100,000 in the year before becoming a contractor for the state. Maviglio said Budhraj wrote a letter to DWR Deputy Director Ray Hart saying he had no dealings with Edison International. He also was not involved in any long-term contracting with Edison. Any profits Budhraj made from the stock are irrelevant because the stock was sold by the time he was on the job, Maviglio said. Another consultant, Bernard Barretto, who describes himself as an energy trader/scheduler for the state, disclosed last week that he purchased stock in power producer Enron Corp. But no date or amount of the purchase was listed. Financial disclosure forms filed last week by five other consultants show they all own stock in Calpine Corp., a major California-based power wholesaler. Energy trader Elaine L. Griffin bought between \$10,000 and \$100,000 worth of

Calpine stock on Feb. 1. Her contract with the state began Feb. 20. Griffin's newly completed economic disclosure statement does not show her selling the stock. Herman Leung, who went to work as an electricity scheduler in March, bought between \$2,000 and \$10,000 worth of Calpine stock on Jan. 22. Schedulers William F. Mead, Peggy Cheng and Constantine Louie also disclosed that they own stock in Calpine. Mead, in fact, said his holdings ranged between \$100,000 and \$1 million. But their forms contain an important omission: The consultants do not say when they purchased the shares. Oscar Hidalgo, a Water Resources spokesman, said the agency's attorney is reviewing all the past purchases to ensure that no laws were violated by contractors buying power or negotiating long-term contracts with companies in which they held stock. "We're reviewing all that to see if [there were] any problems with any past negotiations," Hidalgo said. "We're looking at all the records in past buys or trades so we understand who exactly did what." He said it's a "very big task" that will take weeks to complete. In the meantime, those contractors who have disclosed stock ownership have been recused from working with generators in which they have a financial interest. The governor's spokesman said several of the contractors who own stock in Calpine are not traders, and thus do not have direct dealings with the company. "If you own Calpine stock and aren't doing any business with Calpine, then you're fine," Maviglio said. Calpine is one of a number of firms that negotiated long-term contracts with the state and that have come under fire from critics who say they will saddle consumers with artificially high electricity costs for years to come. For weeks, Jones has been sharply critical of the administration's failure to require its consultants to file conflict of interest forms, which must be completed within 30 days of a person starting work. The governor's spokesman said the administration was told by the sta

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Sac Bee, Wed, 6/27: Here's a switch: Generator praised for pricing, efficiency

Sac Bee, Wed, 6/27: PG&E given OK for cleanups

SD Union, Wed, 6/27: State gets \$4.3 billion loan to buy energy

SD Union, Wed, 6/27: New border plants will take toll on air quality

LA Times, Wed, 6/27: New Plant to Generate Electricity--and Hope

LA Times, Wed, 6/27: Edison Delays Sale of \$1.2 Billion in Bonds

LA Times, Wed, 6/27: Union Seeks to Return to Reliant Power Plant

LA Times, Wed, 6/27: Retired PG&E Executives Seek Full Pensions in Bankruptcy Case

SF Chron, Wed, 6/27: 600-megawatt plant OKd in San Jose council reversal

SF Chron, Wed, 6/27: California to justify its claim of \$9 billion in overcharges

SF Chron, Wed, 6/27: Cheaper electricity won't trim bills Rate increase to pay off big state debts takes effect next month

SF Chron, Wed, 6/27: Duke buys ads to deny claim of workers Firm not allowed to speak at hearing

SF Chron, Wed, 6/27: News briefs on California's power crisis

SF Chron, Wed, 6/27: State to take delivery of cheap electricity L.A. selling at cost, Bakersfield plant opening early

Mercury News, Wed, 6/27: New plants, voltage plan may help reduce blackouts

Mercury News, Wed, 6/27: Utilities await OK to reduce voltage

Mercury News, Wed, 6/27: PUC should keep consumers plugged in to power choices

Individual.com (PRnewswire), Wed, 6/27: Retail Energy Supporters Urge the PUC not to Suspend Direct Access Business Organizations, Energy Service Providers, Direct Access Customers Support Continuing Focus on Legislative Solution to Maintain Retail Choice

WSJ, Wed, 6/27: California Secures Loan of \$4.3 Billion for Power

Here's a switch: Generator praised for pricing, efficiency By Dale Kasler Bee Staff Writer (Published June 27, 2001) SAN JOSE -- If the power generators profiting from California's energy crisis are a reckless band of megawatt cowboys, as their critics claim, then Calpine Corp. bills itself as the guy in the white hat. Unlike many of its rivals, this fast-growing power plant builder and operator hasn't been accused by federal regulators of overcharging California for electricity. Gov. Gray Davis, who routinely accuses generators of price gouging, exempts the San Jose-based company from his criticism. He further praises Calpine's efforts to build thousands of megawatts' worth of new power plants, enough to make a significant dent in California's energy shortage. Known for its relatively clean-burning plants, Calpine even gets support from some environmentalists. "They have made a clear commitment to invest in California's future," said Davis spokesman Steve Maviglio. "Their pricing has been far more reasonable than any other generator." Taking a dig at Calpine's Texas-based rivals, he said Calpine "took a different tack from the Joe Bobs of the world," an apparent reference to executive Joe Bob Perkins of Houston's Reliant Energy Inc. In some respects, Calpine seems quaint when compared with its swashbuckling competitors. Rather than cash in on the lucrative but flighty spot market for power, Calpine builds comparatively efficient plants and sells the energy via stable, long-term contracts, such as its contract to deliver power to Sacramento from its just-completed plant in Sutter County. When the Federal Energy Regulatory Commission ordered several generators to refund more than \$124 million to California because of overcharging, it left Calpine off the list. However, Calpine is participating in the FERC-sponsored settlement talks under way in Washington that could result in generators making refunds to California. The company wouldn't comment on those talks but takes great pains to separate its behavior from the conduct of other generators. "We're not a speculator in this business," said Pete Cartwright, the company's 71-year-old founder, president and chief executive. "We're not in it to speculate on high prices. To that extent, I think we're distinct from all of the others." But Calpine isn't building plants out of charity. Although its stock price has suffered lately because of investor skittishness about the energy crisis, the company's financial performance hasn't missed a beat. Calpine's profits jumped five-fold to \$94.8 million in the first quarter of this year. Revenue soared to \$1.23 billion from \$235 million. And despite its disdain for speculation, Calpine is arguably the most daring power plant builder in the business. Coming from seemingly out of nowhere, Calpine has embarked on what experts believe is the most ambitious power-plant construction program in U.S. history. The company currently operates about 7,100 megawatts of power plant generation in 30 states; its plan is to operate 70,000 megawatts in five years. That would make Calpine the largest supplier of electricity in the United States, and probably the world, said company spokesman Bill Highlander. Although Calpine has run into problems in some locations -- including San Jose, where opposition arose to its proposed plant in the Coyote Valley -- it has generally found smooth sailing. "There are others doing this," Cartwright said. "But somebody has to be No. 1. So we decided it would be us." One of the first U.S. power companies to seize on deregulation of the wholesale electricity business, it has concentrated on the United States, while rivals have built plants around the world. "Many of our competitors were off building plants in China and Indonesia; we elected to focus at home," Cartwright said. "That's given us a real jump on our competition." The ambitious nationwide blueprint includes building plants that will produce about 11,000 megawatts of new power in California. That would bring Calpine's total capacity in California to more than 12,000 megawatts, enough to power about 9 million homes. That would make Calpine the largest power generator in the state, eclipsing Pacific Gas and Electric Co. The company is adding 60 employees to its 90-employee construction-management office in Folsom. Calpine's 500-megawatt plant in Sutter County, which has its formal opening in July, has already begun generating power for the state Department of Water Resources and has sold under contract about a third of its electricity to the Sacramento Municipal Utility District. Calpine's reach is extending far beyond California. Its new plant in Middletown, N.Y., scheduled to open in 2004, will be Calpine's fifth in that state. It's developing its second and third plants in Florida and is doubling its number of Texas plants to 10. There will be plants in Goldendale, Wash., and Oxford, Conn., and Calgary, Alberta, and points in between. The company also is building a \$624 million natural gas pipeline into Southern California from New Mexico in a joint venture with pipeline operator Kinder Morgan Energy Partners, a move that could dramatically ease California's natural gas shortage. A second phase of the project, to cost \$1.1 billion, would extend the

line into Northern California. Calpine's profile is growing in other ways. In Houston, where it runs a trading desk, it's building a 32-story office tower in the "power corridor" downtown, taking its place in the skyline among such power titans as Enron Corp. Cartwright said Calpine can handle its phenomenal growth just fine. "We determined that the market would support that many megawatts, that we had the organization and the project opportunities and the financing and the equipment to make it happen," he said. "It

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#7 Ranking for Haas School is Best Ever in Latest US News Business

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This should help Prentice's chances for employment come the Fall. You guys should have a HUGE phone bill on your room charges. Please fax me a copy of the bill. I will cover all phone charges. Also, please forward to me what I owe you for the plane flight and golf and our share of dinners, drinks, guacamole, etc.

We played spades at the airport. My team lost.....again. My losing streak now ties DiMaggio's hitting streak.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 04/03/2001 10:51 AM -----

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To: haasnewswire@haas.berkeley.edu cc: Subject: #7 Ranking for Haas School is Best Ever in Latest US News Business School Survey

Haas NewsWire April 2, 2001 ***Pick up your tickets for CEO Exchange from 12:30 to 2:00 any day this week in the Haas courtyard.*** CONTENTS #7 Ranking for Haas School is Best Ever in Latest US News Business School Survey The Economy in Crisis: Five Haas Experts Comment on the State of the Economy Classes Start Today for New Master's in Financial Engineering Degree at Haas Sharing our Strengths: The Haas/Boalt Connection Haas Advisory Board Convenes for Semi-Annual Meeting Haas in the News Happening at Haas Haas Celebrations #7 RANKING FOR HAAS SCHOOL IS BEST EVER IN LATEST US NEWS BUSINESS SCHOOL SURVEY The Haas School of Business was ranked the 7th best business school in the United States in the latest annual survey of American graduate schools by US News and World Report magazine. This is the best showing ever by the school in the history of the US News ranking, which was released Friday.

US News also ranked the Haas School's Evening MBA Program the 8th best in the country, unchanged from last year. The full-time MBA Program was number 10 in last year's ranking, up from 14th place the year before.

The rankings appear in the April 9 issue; copies are available on newsstands today. The rankings and related stories are also available on line at <http://www.usnews.com/usnews/edu/beyond/bchome.htm>.

"We are always pleased when a ranking reflects the reality we live every day, which is that the Haas School is a world-class institution, with faculty and students who are extraordinarily innovative and accomplished and, consequently, very much in demand by every type of major business and academic organization, everywhere on earth," said Jay Stowsky, associate dean for school affairs and initiatives.

Several specialty programs at Haas were also ranked among the top 10 nationwide in a part of the US News survey that is based on the opinions of deans and MBA Program heads. They include: finance (10th); general management (8th); entrepreneurship (10th); marketing (8th); quantitative analysis (8th); and nonprofit organizations (7th).

In addition, the Haas School's graduate program in health management was ranked the 7th best program in the country.

The full-time MBA program ranking is based on a weighted average of eight measures of academic quality that fall into three major categories: reputation (40 percent); placement success (35 percent); and student selectivity (25 percent).

The US News Top 10 Full-Time MBA Programs 1. Stanford 2. Harvard 3. Northwestern/Kellogg 4. Wharton 5. MIT/Sloan 6. Columbia 7. Berkeley/Haas 8. Duke/Fuqua 9. Chicago 10. Michigan

The US News Top 10 Part-Time MBA Programs 1. NYU/Stern 2. Chicago 3. Northwestern/Kellogg 4. DePaul 5. Georgia State 6. UCLA/Anderson 7. Michigan 8. Berkeley/Haas 9. USC 10. Babson THE ECONOMY IN CRISIS: FIVE HAAS EXPERTS COMMENT ON THE STATE OF THE ECONOMY The Haas School community will have the opportunity to hear Haas experts speak on the state of the economy. "The Economy in Crisis: A Panel Discussion with Haas School Experts," takes place Wednesday, April 4, from 2:00 p.m. to 3:30 p.m. in Arthur Andersen Auditorium. All Haas students, faculty, alumni, and staff are invited to attend.

The panel of speakers includes: Andrew Rose, the Bernard T. Rocca Jr. Professor of International Trade, director of the Clausen Center for International Business and Policy, research associate at the National Bureau of Economic Research, and a research fellow in the Center for Economic Policy Research. Ken Rosen, the California State Professor of Real Estate and Urban Economics and the chairman of the Fisher Center for Real Estate and Urban Economics. Janet Yellen, the Eugene E. and Catherine M. Trefethen Professor of Business Administration, former Chair of the Council of Economic Advisors under President Clinton, and former governor, Board of Governors of the Federal Reserve System. James Wilcox, the Kruttschnitt Professor of Financial Institutions, former chief economist at the Office of the Comptroller of the Currency, and former economist, Federal Reserve Board. Dean Laura Tyson, the Class of 1939 Professor of Economics and Business Administration, former chairman of the National Economic Council and former chairman of the President's Council of Economic Advisors. Dean Tyson also plans to address the issues surrounding graduating into a turbulent job market, including an assessment of various industry sectors. The session will be open to questions from the audience after opening remarks. CLASSES START TODAY FOR NEW MASTER'S IN FINANCIAL ENGINEERING DEGREE AT HAAS For 49 students classes start today for the Master's in Financial Engineering (MFE), a new graduate degree program at the Haas School of Business. Of the 49 students, 6 are taking the program to earn a concurrent degree with the MBA program, combining the in-depth study of financial economics and the dynamics of markets with the general management education of the MBA program.

The class of 2002 is represented by an international group of highly educated scientists and professionals: The inaugural class represents 19 countries: 7 students come from China, 6 come from Canada, 5 from Korea, and 5 come from five different European countries. Also represented are South America (Chile and Colombia), Africa (Zimbabwe), and Southeast Asia (India and Indonesia), as well as Taiwan, Hong Kong, Russia, and the Republic of Georgia. Top professions include finance (25%), engineering (18%), and research & development (11%) 18% hold a Ph.D. and 25% hold a master's degree in another field. One fourth of the class performed in the top percentile of the GMAT. The Haas MFE is the first such degree program in the United States that is offered entirely under the auspices of a business school. It is also the first US program to require its students to take a three-month internship at a top financial firm as part of the learning experience. The Haas MFE program will prepare candidates with superior analytical skills for a growing niche of quantitative finance careers.

MFE candidates will train for positions as risk managers, investment bankers, asset managers, derivatives traders, and developers of specialized securities at the world's leading commercial and investment banks, insurance companies, and corporate and public treasury departments.

Founding sponsors include some of the world's top financial firms, namely AIG Inc., Barclays Global Investors, BARRA Inc., Gifford Fong Associates, Goldman Sachs & Co., First Union Bank, KMV LLC, MBIA Inc., Morgan Stanley Dean Witter, Quantal International Inc., The Dean Witter Foundation, and WR Hambrecht + Co., LLC. Sponsoring firms will be accepting interns from the programs.

"We're seeing tremendous interest among talented individuals coming from technical b

Message 62 of 1299

PG&E stakeholders meeting for the 2001 PG&E Transmission Expansion

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/notes_inbox/11607.

FYI Energy Committee Members:

PG&E is hosting its fifth stakeholders meeting for the 2001 PG&E Transmission Expansion Plan on September 17 and 18, 2001 in San Francisco, CA. The purpose of this meeting is to present the study group with the draft 2001 expansion plan. The fifth stakeholder meeting has been divided into two days: Sept. 17 to present Bay Area Plans and Sept 18 to present non-Bay Area Plans.

Date: Monday , Sept 17, 2001 Subject: Stakeholders Meeting #5 - "PG&E 2001 Electric Grid Expansion Plan - Bay Area Plans" Time: 10:00 a.m. to 4:00 p.m. Location: 77 Beale Street, Conference Room 308 San Francisco, CA 94177

Date: Monday , Sept 18, 2001 Subject: Stakeholders Meeting #5 - "PG&E 2001 Electric Grid Expansion Plan - Non-Bay Area Plans" Time: 10:00 a.m. to 4:00 p.m. Location: 77 Beale Street, Conference Room 308 San Francisco, CA 94177

In order to ensure enough handouts please email or call your RSVP to Ledy Torres (dst2@pge.com or 415-973-1392) by Monday, September 10, 2001. If you have any additional questions about this meeting, please contact Mark Esguerra (pme8@pge.com or 415-973-4380). An agenda and handouts will be sent out soon.

Regards, Mark Esguerra PG&E-Electric Transmission Planning Mail Code N3B P.O. Box 770000 San Francisco, CA 94177

Email: pme8@pge.com Phone: 415-973-4380

Message 63 of 1299

CERA Western Energy Roundtable - 4/26

Sender	jennifer.thome@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11308.

=09Jeff: =09 =09Are you aware of this roundtable? A friend who works at the CERA office= in=20 Cambridge just got me in touch with Michael Zenker (who is leading this=20 roundtable) and he mentioned it. =20 =09 =09Were you planning on going? Do you think it is worth me looking into go= ing? =09 =09Jennifer

=09 =09

=09 =09 =09Western Energy Roundtable April 26, 2001 | San Francisco=20 =09 =09 CERA is pleased to announce a Member Executive Roundtable session in San=20 Francisco on April 26, 2001. These meetings will feature presentations and= =20 interactive discussions with experts from CERA's Western Energy team.=20

Enrollment Form PDF Enrollment Form

=09 =09 =09 =09Schedule=20 =09 =0912:30=01)1:30 pm Luncheon =091:30=01)5:30 pm Session =09 =09Topics=20 =09 =09Western Power and Gas Markets Outlook?=20 =09Power and Gas Infrastructure: ?When will Relief Come? A Look Ahead Throug= h=20 2005?=20 =09California's Power Crisis: Update, Implications, and Market Outcomes =09 =09Speakers=20 =09 =09Michael Zenker, Director, Western Energy=20 =09Ed Small, Director, North American Gas =09Jennifer Snyder, Director, North American Gas =09Peter Moritzburke, Associate, Western Energy =09Bryan Sanderson, Associate, North American Gas =09 =09Location and Accomodations=20 =09 =09The Parc 55 Hotel 55 Cyril Magnin Street Market at Fifth San Francisco, CA 94102 =09Tel.: +1 415 392 8000 Fax: +1 415 403 6602 =09Please

contact the hotel directly for room reservations. =09 =09Enrollment=20 =09 =09To enroll, please complete enrollment form and fax to CERA Registration:

CERA? 20 University Road Cambridge, MA 02138 USA

Fax: +1 617 498 9176 Tel.: +1 617 497 6446 x 800 e-mail: register@cera.com?=20 =09Dates and locations of events are subject to change. Client eligibility = is=20 determined by service level. For more information about eligibility, please= =20 contact CERA Registration. =09? =09RELATED ATTACHMENTS PDF Enrollment Form

=09 =09

Message 64 of 1299

Direct Report Mtg in November (Activity)

Sender	ginger.dernehl@enron.com
Recipients	['lora.sullivan@enron.com', 'geriann.warner@enron.com', 'ginger.dernehl@enron.com', 'j..noske@enron.com', 'd.....
File	dasovich-j/inbox/492.

Hi Everyone,

The budget meeting will soon be upon us and I want to keep everyone informed as to what will take place. Day of arrival, November 7th there is nothing planned; everyone is on their own for dinner. Thursday, November 8, the meeting will begin @ 8:00 AM and will conclude by 1:00 PM. I will inform you later as to the meeting location. After the meeting on Thursday there will be an afternoon of activities available. Please note what is available and let me know of your activity choice. Friday, November 9 the meeting will begin @ 8:00 AM and conclude by 3:00 PM, so please make your travel arrangements accordingly.

Golf (I have tee times for 1:32, 1:40 & 1:48 PM) Spa Services (If interested, I can fax you what services they offer) Horse Back Riding (I can fax schedule and rates if interested) Tennis (I have information I can fax if interested)

Transportation:

Airport transportation from the Colorado Springs Airport is available through the Broadmoor Transportation Service. Please call 719-577-5769 to make your transportation arrangements. Airport transportation is b reservation only.

Fares: \$16.00/each way (20-30 min travel time)

Thanks and I will keep in touch.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: Dernehl, Ginger Sent: Monday, October 01, 2001 10:09 AM To: Steffes, James D.; Yoho, Lisa; Nord, Sue; Robertson, Linda; Migden, Janine; Montovano, Steve; Hemstock, Robert; Kaufman, Paul; Ryall, Jean; Assad, Sergio; Kingerski, Harry; Ibrahim, Amr; Dasovich, Jeff; Nicolay, Christi L.; Novosel, Sarah; Linnell, Elizabeth; Petrochko, Mona L. Cc: Dernehl, Ginger; Noske, Linda J.; Warner, Geriann; Sullivan, Lora; Knight, Laurie; Bellas, Kirsten; Sietzema, Linda; Hunter, Bevin; Braz, Gisele; Buerger, Rubena; Stransky, Joan; Alamo, Joseph; Hawkins, Bernadette; Perez, Carmen Subject: Reminder:Direct Report Mtg in November

REMNDER!!!!!!

The next "Budget/Priority" Meeting will take place as follows:

Dates: Arrive evening of Wednesday, Nov. 7, 2001 Meeting Thursday, Nov. 8, 2001 --- 8:00 AM - 1:00 PM Meeting Friday, Nov. 9, 2001--- 8:00 AM - 3:00 PM

Location: The Broadmoor One Lake Avenue Colorado Springs, CO 80906 719-634-7711

Thanks and please call if you have any questions.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 65 of 1299

Re:RE: Here it is...

Sender	mark_guinney@watsonwyatt.com
Recipients	['jeff.dasovich@enron.com', 'anil.sama@intel.com', 'cvavrek@deloitte.com']
File	dasovich-j/notes_inbox/3920.

I sent a reply a few hours ago. I wonder if there is a problem with my e-mail.

I'm driving. If you need a ride, let me know and I can meet you on Market and Beale.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator
<SMTP:anil.sama@intel.com> Date: 04/26/2001 5:07 PM Subject: RE: Here it is... Author: "Sama; Anil"

Haven't heard from Mark yet... Am waiting to hear before printing and emailing to Tasker...

Mark, Jeff: Are any of you driving over to campus from the city?

-----Original Message-----

From: Vavrek, Carolyn (US - San Francisco) [mailto:cvavrek@deloitte.com] Sent: Thursday, April 26, 2001 12:45 PM To: Sama, Anil; 'Guinney, Mark'; 'Jeff.Dasovich@enron.com' Subject: RE: Here it is...

Looks great to me (although the slide animation did not work on my machine so I can't comment on that)!

If we are all in agreement, someone needs to e-mail Sarah a copy and print one out for her. Can you do that Anil once you get an okay from Jeff and Mark? Thanks for all the hard work.

See everyone around 5:30pm in Jimmy Bean's. - cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Sama, Anil [mailto:anil.sama@intel.com] Sent: Thursday, April 26, 2001 11:41 AM To: 'Carolyn Vavrek'; 'Guinney, Mark'; 'Jeff.Dasovich@enron.com' Subject: Here it is...

Hi Team,

Here's the final cut.

I added hyperlinks to DCF sheets in backup as well as to trading comps and deal comps in the backup. And animation for slide turns.

Also, be sure to preview the 3-legged stool slide I added after valuations in slide presentation mode with sound enabled... Totally OK to remove it if any of you don't like it...

<<E222_Mark_Quaker_presentation1.ZIP>>

Any Qs, call me on my cell: 916 600 1245.

-Anil

This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 66 of 1299

FW: Adjustment Bid Market Update

Sender	jwu@apx.com
Recipients	['alp@ncpa.com', 'jstremel@apx.com', 'anders.glader@greenmountain.com', 'ed@apx.com', 'altomczyk@wptf.org', 'm...]
File	dasovich-j/notes_inbox/4987.

-----Original Message----- From: Michael Heinrich Sent: Monday, March 12, 2001 4:17 PM To: Jacquelyn Wu Subject: Adjustment Bid Market Update <<...>> 5201 Great America Parkway, Suite 522 Santa Clara, CA 95054 408 517-2100 408 517-2985 fax March 12, 2001 Dear Colleague, Thank you for your participation and support in resolving our problems this summer regarding congestion management in the California market. As we have indicated, we believe that this problem is costing us millions of dollars today and continued pro rata schedule cuts as a method of congestion management will continue to reduce energy supply this summer and escalate substantially to well over \$100,000,000 in replacement energy costs. As you suggested, we presented our solution of operating an adjustment bid market to manage congestion to the CAISO Board of Governors on February 28, 2001. Following that meeting we were requested to work with the CAISO staff to develop a resolution to be presented at the next Board meeting on March 15, 2001. The CAISO staff will be presenting their solution described as "Market Stabilization Plan/Interim Market Redesign" in a effort to resolve this and other problems. While the CAISO plan may have long-term benefits, it has been brought forward without the benefit of full stakeholder airing and we believe that it will be difficult to complete all software and systems work in time to have benefit this summer. In addition, it will require significant participant re-education. We are also very concerned about the amount of time remaining to complete this process along with the risks and costs associated with its implementation. Therefore, APX will finalize its offer for the solution that we described to you on February 21 as an alternative to the CAISO staff plan during the upcoming CAISO Board of Governors meeting. We know that our solution can be implemented in time, that it will improve adequate supply and that it will save millions of dollars this summer. We have heard from many of you that you support this market as a viable way of mitigating the high cost of congestion in the coming months. WE ARE ASKING FOR YOUR SUPPORT OF THIS PLAN WITH the CAISO Board of Governors on March 15, 2001. Sincerely, Michael L. Heinrich John Stremel Vice President Vice President Automated Power Exchange Automated Power Exchange Mike Michael L. Heinrich Vice President Automated Power Exchange 5201 Great America Parkway Suite 522 Santa Clara, CA 95054 408-517-2100 Direct: 408-517-2159 Mobile: 408-393-1092 e-mail: mheinrich@apx.com www.apx.com

Message 67 of 1299

Fwd: FW: ASME Distributed Power April 24-25 Portland, OR

Sender	todoc1@aol.com
Recipients	['gss@uci.edu', 'jb@nfcrc.uci.edu', 'lboward@powerinnovators.com']
File	dasovich-j/notes_inbox/5272.

To DPCA members:

Attached please find an invitation to the DPCA membership to attend ASME Distributed Power Conference in Portland, OR.

Tod O'Connor Return-Path: <merwin_brown@nrel.gov> Received: from rly-zc03.mx.aol.com (rly-zc03.mail.aol.com [172.31.33.3]) by air-zc05.mail.aol.com (v77_r1.21) with ESMTP; Tue, 20 Feb 2001 12:06:25 -0500 Received: from smtp.nrel.gov (tcplink.nrel.gov [192.33.19.48]) by rly-zc03.mx.aol.com (v77_r1.21) with ESMTP; Tue, 20 Feb 2001 12:06:00 -0500 Received: by smtp with Internet Mail Service (5.5.2650.21) id <FJQ6AM6K>; Tue, 20 Feb 2001 10:05:41 -0700 Message-ID: <2FCE8613B36ED2118EB800805F6F05AF02FC70DC@nt-comm6> From: "Brown, Merwin"

<merwin_brown@nrel.gov> To: "Thomas (Tod) D. O'Connor (E-mail)" <todoc1@aol.com> Subject: FW: ASME Distributed Power April 24-25 Portland, OR Date: Tue, 20 Feb 2001 10:05:38 -0700 MIME-Version: 1.0 X-Mailer: Internet Mail Service (5.5.2650.21) Content-Type: multipart/mixed; boundary="----=_NextPart_000_01C09B5F.597F6636"

Tod Would you want to distribute to DPCA members?

Merwin Brown Market Sector Manager, Electricity and Natural Gas Markets National Renewable Energy Laboratory MS 1732 1617 Cole Blvd Golden, CO 80401-3393 303 275 4364 Voice 303 275 3059 Fax merwin_brown@nrel.gov

-----Original Message-----

From: Tom La Berge [mailto:tomlaberge@uswest.net] Sent: Friday, February 16, 2001 12:32 PM To: merwin_brown@nrel.gov Subject: ASME Distributed Power April 24-25 Portland,OR

Merwin

David Hoffman gave me your name as someone who may know vendors that are interested in a space at the up coming ASME Distributed Power Conference (Please see conference information below). If so, please pass this on to them, or have them get in touch with me.

Thank you, Tom La Berge

T. La Berge & Company 3118 NE Davis ST. Portland, OR, 97232 USA tel: 503-232-8965 fax: 513-232-6049
tomlaberge@Qwest.net

DISTRIBUTED POWER CONFERENCE SPONSORED BY ASME OREGON SECTION

WHEN: April 24 and 25, 2001 WHERE: Portland, Oregon TOPICS INCLUDED: Fuel Cells, Co-Generation, Micro Turbines, Environmental, Regulatory Issues, Regional Energy, Utility Interconnection, Venture Capital.

For details and registration go to <http://www.asme-distributed-power.com/>

Who Should Attend? The intended audience includes managers, engineers, regulatory personnel, and the general public. All people wishing to have a general understanding of smaller, "in-the-fence" power generating facilities will want to attend this conference.

Participants will gain a basic understanding of the various generating technologies commonly used, what is involved in completing a successful project and a better appreciation of the current regional energy picture

Register by February 20, 2001 for \$350.00 (\$400.00 after)

Vendor Display Space is Still Available: Vendors: Buy two tickets and get a free display space. Or, buy a vendor display space and get two free tickets to the conference. (The cost of display space is buying two conference tickets.) For information and to reserve your display space please contact Tom La Berge at 503-232-8965 or e-mail tomlaberge@quest.net .

Who We Are The Oregon Section ASME (American Society of Mechanical Engineers) is a volunteer, non-profit, professional organization. This conference will promote and enhance the technical competency of attendees and contribute to the well-being of the community.

- tomlaberge.vcf

Message 68 of 1299

DWR rate component at the CPUC

Sender	christopher.calger@enron.com
Recipients	['tracy.ngo@enron.com', 'christian.yoder@enron.com', 'elizabeth.sager@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/10245.

Christian,

Can we get Pat / John to review this this morning. I think it is very bullish for DWR, but I would appreciate his review in the event we want to comment - comments are due this afternoon.

Thanks,

Chris ----- Forwarded by Christopher F Calger/PDX/ECT on 03/21/2001 08:00 AM ----- From: Jeff Dasovich@ENRON on 03/20/2001 07:33 PM CST Sent by: Jeff Dasovich@ENRON To: Christopher F Calger/PDX/ECT@ECT cc: Subject: DWR rate component at the CPUC

Some more info on the issue from Jeanne. ----- Forwarded by Jeff Dasovich/NA/Enron on 03/20/2001 07:33 PM -----

Susan J Mara 03/20/2001 06:52 PM

To: Michael Tribolet/ENRON@enronXgate, Janel Guerrero/Corp/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Gordon Savage/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Tamara Johnson/HOU/EES@EES, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron cc: Jeff Dasovich/NA/Enron@Enron Subject: FW: A.00-11-038 et al. ruling of 3/19/2001

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/20/2001 04:51 PM -----

JBennett <JBennett@GMSSR.com> 03/20/2001 04:45 PM

To: "Bob Frank (E-mail)" <robert.frank@enron.com>, "Christian Yoder (E-mail)" <christian.yoder@enron.com>, "Harry Kingerski (E-mail)" <Harry.Kingerski@enron.com>, "Jeff Dasovich (Business Fax)" <IMCEAFAX-Jeff+20Dasovich+40+2B1+20+28415+29+20782-7854@GMSSR.com>, "Sue Mara (E-mail)" <smara@enron.com>, "Tamara Johnson (E-mail)" <tjohnso8@enron.com> cc: "acomnes@enron.com" <acomnes@enron.com> Subject: FW: A.00-11-038 et al. ruling of 3/19/2001

Attached is a ruling by ALJ DeUlloa issued yesterday pertaining to the calculation of the California Procurement Adjustment. A draft decision was suppose to be release on such on Friday, March 16th. It was not, and now we know why. On March 14th, the Department of Water Resources wrote to the Commission to give the commission its views on how the CPA should be calculated. In his ruling of yesterday DeUlloa stated that he would wait to issue the PD so as to take into account DWR's submission. He also provided parties until tomorrow to file comments on the DWR letter (which is attached to the ruling).

Not surprising, DWR has a different view of the world than the UDCs do when it comes to calculating the CPA. The UDCs view the CPA as residual amount left over from the generation component of their bundled rate on 1/5/01 after the cost of their retained generation (including QFs and bilateral contracts) are subtracted out. DWR views the CPA as a rate (i.e., a cent per kWh) which would be paid to DWR by the UDCs every month. It is DWR's view that a Total Generation Related Rate must be calculated which is a blended average of the cost of the UDC retained generation and the cost of the "net short" power. From this total rate (e.g., 5 cent) the cost of the UDC retained generation (e.g., 2 cent) would be subtracted and the remainder (i.e., 3 cent per kwh) would be the CPA. This CPA would be subject to further allocation by the Commission to determine the Fixed Department of Water Resources Set-Aside. DWR is not asking that such allocation be done now.

DWR's view of the world would place it in a sounder financial position, making it a more viable purchaser of electricity for California, but would place the UDCs in more dire straights.

Please let me know by tomorrow at noon if you want to comment on the DWR proposal.

Jeanne Bennett

-----Original Message----- <<CPUC01-#93188-v1-A0011038_et_al__DeUlloa_Ruling_.doc>>

- CPUC01-#93188-v1-A0011038_et_al__DeUlloa_Ruling_.doc

Message 69 of 1299

RE: AReM/WPTF Updated Draft Filing Concerning the Proposed Decisi

Sender	mday@gmssr.com
Recipients	['harry.kingerski@enron.com', 'jdasovic@enron.com', 'robert.c.williams@enron.com']
File	dasovich-j/notes_inbox/12363.

Here is my view on the comments. The ARM comments cover most of the territory we would want to cover, but they do not spend enough time explaining that the Barnett conclusion about "credits only not cash" is the result of a flawed interpretation of the original stipulation. The comments also do not raise the points in Bob Williams' email from two days ago, namely that the conclusion that only credits are available is counter to the course of performance and practice by the parties, and that the decision is procedurally flawed for providing relief beyond that requested in the Edison petition, thereby denying the other parties due process. These elements could be added to the comments.

Secondly, however, the comments tee up very clearly the fact that we have an outstanding complaint on these issues and say that the decision could hurt our chances for recovery. Bob had recommended that we down play these issues to avoid enticing our enemies at the Commission. The ARM comments explicitly indicate that this order will prejudice our complaint case, which I do not believe we would want to admit in any event.

In conclusion: the ARM comments should not be used as the sole vehicle all the above changes are made. If the changes are made, we can go with those comments. Otherwise, I would suggest sticking with the comments we are preparing, adding more information about our due process objections and arguing strongly for a bifurcation of the issues. This would both support ARM and allow us to make a more focused pitch to defer the cash or credit issue.

Please call me at 415-279-0702 to let me know how you would like to proceed. Mike Day

-----Original Message-----

From: Harry.Kingerski@enron.com [mailto:Harry.Kingerski@enron.com] Sent: Friday, June 22, 2001 2:05 PM To: mday@gmssr.com Subject: AReM/WPTF Updated Draft Filing Concerning the Proposed Decisions on Direct Access and the PX Credit

----- Forwarded by Harry Kingerski/NA/Enron on 06/22/2001 04:04 PM -----

Susan J Mara

To: Robert C Williams/Enron@EnronXGate 06/22/2001 cc: Steven J Kean/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, 10:02 AM James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES, Paul Kaufman/Enron@EnronXGate

Subject: AReM/WPTF Updated Draft Filing Concerning the Proposed Decisions on Direct Access and the PX Credit

Here is the updated draft of joint WPTF and AReM comments.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/22/2001 07:58 AM -----

"Dan Douglass"

<douglass@earthlink.net> To: "Tamara Johnson" <tjohnso8@enron.com>, "Robert Berry" <berry@apx.com>, "Denise Cazalet Purdum" <dpurdum@apx.com>, "Ed Cazalet" <ed@cazalet.com>, "Bill Ross" <billr@calpine.com>, "Bob 06/21/2001 Anderson" <Bob_Anderson@apses.com>, "Carolyn Baker" 07:17 PM <cabaker@duke-energy.com>, "Charles Miessner" <camieesn@newwestenergy.com>, "Corby Gardiner" <jcgardin@newwestenergy.com>, "Curt Hatton" <curt.hatton@neg.pge.com>, "Curtis Kebler" <curtis_i_kebler@reliantenergy.com>, "Gary Ackerman" <foothillservices@mindspring.com>, "George Vaughn" <gavaughn@duke-energy.com>, "Greg Blue" <gtbl@dynegy.com>, "Jack Pigott" <jackp@calpine.com>, "Janie Mollon" <jsmollon@newwestenergy.com>, "Jeff Dasovich" <jeff.dasovich@enron.com>, "Joe Paul" <jmpa@dynegy.com>, "Nam Nguyen" <nam.nguyen@powersrc.com>, "Randy Hickok" <rjhickok@duke-energy.com>, "Rob Nichol" <rsnichol@newwestenergy.com>, "Roger Pelote" <roger.pelote@williams.com>, "Steve Huhman" <steve.huhman@mirant.com>, "Sue Mara"

<susan_j_mara@enron.com>, "Vicki Sandler" <vicki_sandler@apses.com>, "ARM" <arem@electric.com> cc:

Subject: Draft Filing Concerning the Proposed Decisions on Direct Access and the PX Credit

Attached for your review and comment is a proposed Joint Filing to be made by the Alliance for Retail Energy Markets and the Western Power Trading Forum concerning the draft decisions of ALJ Barnett and Commissioner Bilas.

Comments would be appreciated as soon as possible, as this filing must be made on Monday.? Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 Tel:?? (818) 596-2201 Fax:?(818) 346-6502 douglass@energyattorney.com

(See attached file: Blank Bkgrd.gif) (See attached file: 6-25-01 Joint Comments - Draft 1.doc)

Message 70 of 1299

Re: Follow up with Alpert's Office

Sender	eric.letke@enron.com
Recipients	['sandra.mccubbin@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4848.

Sandy, need to discuss this w/ you ASAP. No answer on your cell phone. Can you please page me at 888-766-4103 or call at 713-853-5676. Thanx. ----- Forwarded by Eric Letke/DUB/EES on 03/20/2001 02:46 PM

Enron Energy Services

From: Marty Sunde 03/20/2001 09:25 AM Phone No: 713 853-7797 Phone 888-953-9478 SkyTel Pager EB 889

To: Jeff Dasovich/NA/Enron@Enron, Eric Letke/DUB/EES@EES, Sandra McCubbin/NA/Enron@Enron cc: Subject: Re: Follow up with Alpert's Office

Jeff and Eric, I have NO problem trying to get letters for support of Direct Access. Eric, if we can get those to support Jeff and Sandi, this is wonderful.

Also, I had asked Eric to check with Alpert's office to register our follow on phone number and offer to try to correct the aggravated customers. Eric, if you can provide a status on all of these as you make progress, that's appreciated.

----- Forwarded by Marty Sunde/HOU/EES on 03/20/2001 09:13 AM ----- From: Jeff Dasovich@ENRON on 03/19/2001 07:57 PM Sent by: Jeff Dasovich@ENRON To: Marty Sunde/HOU/EES@EES cc: Eric Letke/DUB/EES@EES, Heidi Messick/EFS/EES@EES, Sandra McCubbin/NA/Enron@ENRON Subject: Re: Follow up with Alpert's Office

Marty: Thanks for the information.

Getting Eric's contact information to Alpert's office is in motion. Regarding attempt to follow-up with those who called Alpert's office to complain, I wasn't clear on that action. Likely makes sense for Eric to coordinate with Sandi to make the contact with Alpert's office. Letters are an attempt to influence Alpert to 1) fix the Direct Access prohibition and 2) ensure that DA customers don't get saddled with the DWR costs.

Let me know if this approach works.

Best, Jeff

Marty Sunde@EES 03/19/2001 07:02 PM

To: Jeff Dasovich/Na/Enron@ENRON cc: Eric Letke/DUB/EES@EES, Heidi Messick/EFS/EES@EES, Sandra McCubbin/NA/Enron@Enron Subject: Re: Follow up with Alpert's Office

All I asked Eric to do was: ensure that there was an Enron contact if another complaint came in. find out from Alpert's office if we could call back a few of those who called to complain to find out what they perceived, correct the misperception, apologize.

From: Jeff Dasovich@ENRON on 03/19/2001 04:20 PM Sent by: Jeff Dasovich@ENRON To: Scott Govenar <sgovenar@govadv.com>, Eric Letke/DUB/EES@EES, Sandra McCubbin/NA/Enron@Enron, hgovenar@govadv.com, Susan J Mara/NA/Enron@ENRON, mpalmer@enron.com, Karen Denne/Corp/Enron@ENRON, Janel Guerrero/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, MDay@GMSSR.com, ken@kdscommunications.com, Marty Sunde/HOU/EES@EES cc: Subject: Follow up with Alpert's Office

Thanks, Scott.

Scott/Hedy/Sandi/Bev: Erik Letke heads up the retail marketing effort underway in San Diego. Marty Sunde wants Alpert to have an EES commercial contact that she can talk to in the event she has further questions, etc., He'd like Erki to be the contact person. Erik could you copy your vitals (title, contact info) to Scott and Hedy Govenar and Sandi McCubbin so they can forward along to Alpert?

Erik, seems that it would be useful if the customer letters to Alpert could make the following points (folks please weigh in and add/subtract/modify if needed):

The customer's glad to have had the option to take Direct Access service from Enron because having the opportunity to take advantage of the offer has made the customer better off. Direct Access is an extremely important option that customers need, want and should have going forward. Any "solution" that the Legislature comes up with must therefore include the continuation of Direct Access for all customers. As such, the Legislature should immediately fix AB 1X to make sure that Direct Access remains a permanent fixture of California's energy strategy. Direct Access customers should not be forced to pay for DWR's power purchase costs, since Direct Access customers aren't benefitting from those purchases.

Best, Jeff

Scott Govenar <sgovenar@govadv.com> 03/19/2001 04:01 PM

To: Jeff Dasovich <jdasovic@enron.com> cc: Subject: Dede

As discussed, customers should send letters to Dede as follows:

The Honorable Dede Alpert California State Senate State Capitol, Room 5050 Sacramento, CA 95814

Interested companies should copy: "Honorable Members of the California State Legislature" and fax or mail me a copy for further distribution. My fax is (916) 448-0816 and my address is 1127 11th Street, Suite #400, Sacramento, CA 95814.

Scott

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Enron Mentions - 07/06/01

Sender	sharonda.stephens@enron.com
Recipients	[ann.schmidt@enron.com]
File	dasovich-j/all_documents/28342.

LME Base Metals:Aluminum Ends Officials Dn On Fresh Sales Dow Jones Commodities Service, 07/06/01

ENTERPRISE INTERVIEW: India's salesman to the investing world AsiaWeek, 07/06/01

India: Dabhol delay: RCF turns to BG Business Line (The Hindu), 7/06/01 `Reduce government debt by Rs 2000 crore The Economic Times, 07/06/01 RCF plans to ink supply pact with British Gas Business Standard, 07/06/01 Economics fuels power solution in California Price relief gains political support Chicago Tribune, 07/06/01 COMPANY NEWS ENERGY PROVIDER IS PLANNING TWO ACQUISITIONS The New York Times, 07/06/01 Business Brief -- NewPower Holdings

Inc.: Division to Acquire Assets Of AES's Power Direct Unit The Wall Street Journal, 07/06/01

Regional: Enron in talks with Gulf LNG producers Middle East Economic Digest, 07/06/2001

News Highlights: Chang Hwa Bk 1H Pretax Pft NT\$1.46B Dow Jones International News, 07/06/01

Dabhol Project Vexes Foreign Firms --- If Enron's Dispute in India Isn't Resolved, Other Investments Could Suffer ---
Regulators and Courts Throw in a New Twist The Asian Wall Street Journal, 07/06/01

Enron May Spin Off Enron Wind Unit This Year, Reuters Reports Bloomberg, 07/06/01

Davis Appeals Order to Release Calif. Power Contracts (Update2) Bloomberg, 07/06/01

NewPower to Acquire Customers From AES and DTE Energy (Update2) Bloomberg, 07/06/01

LME Base Metals:Aluminum Ends Officials Dn On Fresh Sales

07/06/2001 Dow Jones Commodities Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

LONDON -(Dow Jones)- London Metal Exchange three-month aluminum ended officials lower Friday from Thursday's late kerb, on heavy fresh speculator selling in Asian trade and an unexpected stock build, dealers said. (LME three-month prices in dollars a metric ton at officials, with the previous late kerb close in brackets. Comex copper at 1324 GMT in cents a pound, with the previous close in brackets.) Copper 1,562.50 (1,560.00) Tin 4,537.50 (4,535.00) Aluminum 1,449.50 (1,451.50) Zinc 886.25 (884.50) Nickel 5,975.00 (5,962.50) Lead 459.50 (450.50) Comex Sep Copper 70.25 (70.85) The Asian selloff forced aluminum down to a one-year low at \$1,434/ton, and after some early forward buying interest in the pre-market in London, the market took a further blow as LME stock movements were released. Aluminum stocks rose 1,450 tons Friday, bringing total stocks to 626,550 tons. "It (the stock increase) was fairly unexpected, but it exposes the slackening demand that has characterized this market for the last six months," said one LME dealer. The move kept aluminum prices depressed for much of the morning, before more forward and bank buying emerged in the first two rings to pull prices off the lows for officials. Aluminum's early falls pulled the already nervous copper market to a two-year low at \$1,552/ton, and although the latter's stock rise was much more considerable, it had been expected, dealers said. Copper stocks in LME warehouses have risen by over 50,000 tons in the last two weeks, and a number of dealers are still insistent that another 30,000-40,000 tons will be seen in the coming two weeks. Unconfirmed reports have said major trade house Enron is behind the stock build, in an effort to reduce the market's nearby supply tightness and alleviate the large short positions they are thought to have built up on the July-for-a-week spread. However, the stock builds are only having a limited effect in easing the tightness. "Everyone knows what they (Enron) are up to, and won't lend until they're really hurting," one LME floor dealer said. Spreads were also a focus of the tin market, where prices slumped to an eight-year low at \$4,490/ton, after the cash-to-three-month spread reverted to a \$25/ton contango Friday morning from a \$60/ton backwardation at the beginning of the week. The move was caused by heavy lending of the nearby spreads and rolling forward to September, a tin dealer said. "I think we've seen the last of the tightness for a couple of months," he added. -By David Elliott, Dow Jones Newswires; 44 207 842 9353; david.elliott@dowjones.com

ENTERPRISE INTERVIEW: India's salesman to the investing world

07/06/2001 AsiaWeek Copyright (C) 2001; Source: World Reporter (TM) - Asia Intelligence Wire

Convincing foreign investors that his country is a good place to do business is a tough sell. But Delhi's finance minister insists that despite a few high-profile setbacks his country offers the world's best returns Indian finance minister Yashwant Sinha has had a roller-coaster year. In February, he delighted foreign investors with a reformist, pro-business budget. But days later, confidence was rocked by a stock market crash and insider trading scandal. Then New Delhi's first major privatization, of the BALCO aluminum plant, sparked a crippling two-month strike by workers. Worse, India's biggest and once most trumpeted foreign investment, Enron Corp's \$3-billion Dabhol power project, remains at a standstill following claims the Maharashtra state government defaulted on payments. A U.S.-led \$1.6-billion power project near Madras is stalled over financing. Recently, during a road show to Hong Kong and Singapore, Sinha spoke with Executive Editor Richard Hornik, Managing Editor Zoher F. Abdoolcarim and Senior Editor Cesar Bacani. Extracts from their conversation: Can India really compete for investment? We have completely opened up the Indian market. I know that China and other countries have been receiving large foreign direct investments, but let's not forget that they started much earlier on the reform path. The problem is one of perception. We have the challenging task of explaining the new India to the world.

Don't you also have the task of explaining it to the Indian people? Isn't there a resentment of foreign companies left over from the colonial era? Every government has pursued the same reform path, including welcoming foreign direct investment. There has [also] been a very marked change from what you referred to as the colonial past. The increasing realization is that it is not Western multinationals that are causing problems. It is competition from other developing countries. There seems to be disquiet among investors, though, about high-profile cases such as Enron and BALCO. BALCO had nothing to do with foreign investment. It was a 100% government company, and we decided to sell 51% along with management control. There was some resistance, but fortunately that has been resolved. In the case of Enron, I have clearly sent out a message to both the Maharashtra government and [Enron] that they had to sit down in the spirit of constructive cooperation and find a solution. Let's not [interpret] a commercial dispute involving one company as being a major disincentive for foreign investment. What are you doing to increase governance in the financial world? I have told Parliament three things: That we shall adopt international best practices so that the scope of mischief is reduced further; that we must strengthen the market regulator; and that we want to corporatize the stock exchanges, which are run by the brokers, so there can be no conflict of interest. In India, can what is manufactured by foreign-owned firms be sold locally? Absolutely. And because of its sheer size, India's middle class of 250-300 million consumers is almost like a middle-sized [developed] country. In terms of purchasing power parity, India is considered to be the world's third largest economy. Another advantage for investors] is that we have a judicial system that does justice to Indians and foreigners alike. But it's slow - very slow. When you say slow, there are courts of appeal from primary courts to the High Court

Message 72 of 1299

Re: FW: Enron Demo Recap

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/all_documents/13396.

Hi. I am completely buried. This is is blown. I'll be in town tonite and=20 tomorrow nite and we can discuss more then if you like. Just let me know.

Best, Jeff

=09Cameron Sellers <cameron@perfect.com> =0906/04/2001 02:56 PM =09=09=20 =09=09 To:
"Jeff.Dasovich@enron.com" <Jeff.Dasovich@enron.com> =09=09 cc:=20 =09=09 Subject: FW: Enron Demo Recap

Hope you guys had a wonderful weekend at the dome.? Is the deck completely=20 finished now??? Vegas was awesome, of course.? I ended up a couple hundred = or=20 so.? Craps was king.

?

On the business side=01(WE MUST CLOSE THIS DEAL WITH ENRON.? This is SO=20 important for us.? It looks like things really went well and they have our=20 pilot proposal.? Is there ANYTHING you can do??? Anything to get to someone=20 who is a part of this group and just say random great things about us or he= lp=20 move it forward.? We have to close two deals before the next board meeting = (4=20 weeks out) or we have to downsize again.? It won=01,t be pretty.? Is there=20 anyone you know or who might know someone to help this out?? Maybe you get=20 Lay to put a little pressure on.? Ha!

?

Back to the personal=01(PP wanted to have a steak dinner to try out the kni= ves=20 early this week.? How about tomorrow night?? I=01,ll make a nice mushroom s= auce??

?

Cameron Sellers

Vice President, Business Development

PERFECT

1860 Embarcadero Road - Suite 210

Palo Alto, CA 94303

cameron@perfect.com

650.798.3366 (direct dial)

650.269.3366 (cell)

650.858.1095 (fax)

?

-----Original Message-----

From: Ian Sullivan=20 Sent: Friday, June 01, 2001 8:48 AM To: Cameron Sellers Subject: FW: Enron Demo Recap

?

FYI on the Enron mtg...? I'll catch up with Jeff early next week, talk to h= im=20 about the mtg, and strategize on next steps.? I think we have a legitimate= =20 chance to do something with this group at Enron, and need to assess where= =20 Jeff can help without complicating the decision-making process in the=20 near-term.

?

-----Original Message-----

From: David Young=20 Subject: Enron Demo Recap

Here's a recap of our demo meeting with Enron's Global Strategic Sourcing= =20 group on Tuesday...

?

Demo went well.? In attendance for Perfect were Ian, James M and David Y.? =20 Enron's attendees were:

- John Gillespie - Sr Director GSS - Platforms & Processes (decision maker) - Pam Tragesser - GSS Operations Mgr (asst to Derryl C - Sr Dir GSS -=20 Operations) - John Will - Director Sourcing - Pipe Valves & Fittings - Craig Brown - Director Sourcing - Chemicals, Oils & Lubricants - Shirley Jo Dickens-Wilson - Enron Transportation Services Procurement Mgr - Eugene Ribaldo - Enron Energy Services Procurement Mgr - ibuyit.com team= =20 lead - Ken Sommers - Enron Energy Services Procurement Mgr

?

Despite only having 1 hour to present, Ian competently ran through a compan= y=20 and feature overview, then blasted through a demo of PS2 and PPD.? We did n= ot=20 get to show PI.? They all bought in that this was a sophisticated sourcing= =20 tool, that it followed their processes and would help streamline their=20 operation.? Only negatives we heard was that the \$1M price tag was a show= =20 stopper, and that they were trying to minimize RFQs and focus on release=20 against agreements.? With 2000 revs at over \$100B, and a spend to match tha= t,=20 their ROI would be tremendous.? =20

?

Shirley Jo said that her primary use of this system would be for any purcha= se=20 over \$50k, which requires 3 bids.? She does not feel that she has enough of= =20 these events to justify implementation in her ETS group.? =20

?

Their current processes are basically pen, paper, phone and fax.? They do u= se=20 RFQ templates and Excel spreadsheets.? They also model Total Cost of=20 Ownership - evaluating the total lifecycle of materials.

?

They are using their homegrown auction platform, DealBench, and were trying to compare this against our system. Their transaction fees for using the DealBench system are minor, so our pricing looks high, but that would be comparing apples against oranges. I will address this in the cover letter on the pilot proposal we will send.

?

Questions that came up included:

- What is the difference between maverick spend in Procurement vs Sourcing? Ian responded Perfect reduces maverick spend during the sourcing cycle by standardizing company best practices and providing visibility/accountability of vendor selection criteria.

- How does the optimization calculation work? Ian gave basic explanation of input variables and ranking/scoring. Don't feel we need to elaborate on this at this point, possibly in future.

- Can we utilize a hands-on demo to play with the system? We suggested a pilot, but also said that it might be possible to work something out over Webex just to test drive a little more before moving into a pilot.

?

We agreed that the next step is for us to send a pilot proposal and they will get together either Friday or sometime next week to review the proposal, discuss their opinions and determine the next step. ?

?

I sent the Pilot Proposal and cover letter out today by email after final approval by Ian. I will followup on Monday to find out what their evaluation gameplan is and to suggest meetings so that we can get ROI inputs to allow James to workup an ROI proposal.

?

David M. Young Manager- Enterprise Sales Perfect Commerce, Inc. 1860 Embarcadero Rd., Suite 210 Palo Alto CA 94303 Tel: 650-798-3356 Email: dyoung@perfect.com

"Sourcing - the identification, evaluation, negotiation, and configuration of supply partners - is the single largest opportunity for an organization to impact the cost, structure, and overall efficiency of its supply chain." -- Aberdeen Group, Inc.

? - image001.jpg

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Re: TR Daily, February 05, 2001

Sender	sue.nord@enron.com
Recipients	['barbara.hueter@enron.com', 'donald_lassere@enron.net']
File	dasovich-j/all_documents/9030.

Thanks, Allison! ----- Forwarded by Sue Nord/NA/Enron on 02/09/2001 03:43 PM -----

=09Allison Navin =0902/09/2001 10:08 AM =09=09 =09=09 To: Stephen D Burns/Corp/Enron@ENRON, Sue Nord/NA/Enron@Enron, Scott =09 Bolton/Enron Communications@Enron Communications =09=09 cc: =09=09 Subject: Re: TR Daily, February 05, 2001

The report is attached. The date on the cover of the report says February, 2000, but it is in fact February, 2001.

=09Stephen D Burns =0902/06/2001 03:30 PM =09=09=09=09 To: Allison Navin/Corp/Enron@ENRON =09=09 cc: =09=09 Subject: TR Daily, February 05, 2001

Can you?

----- Forwarded by Stephen D Burns/Corp/Enron on 02/06/2001 02:29 PM -----

=09Sue Nord =0902/06/2001 01:31 PM =09=09=20 =09=09 To: Stephen D Burns/Corp/Enron@ENRON, Scott Bolton/Enron=20 Communications@Enron Communications =09=09 cc:=20 =09=09 Subject: TR Daily, February 05, 2001

Would Allison be available to track down a copy of the consumer groups repo= rt?

----- Forwarded by Sue Nord/NA/Enron on 02/06/2001 01:30 PM -----

=09"Telecommunications Reports International, Inc." <trnews@tr.com> =09Sent by: root@chrivh40.cch.com
=0902/05/2001 06:03 PM =09=09=20 =09=09 To: "Telecommunications Reports International, Inc." <tr_news_letter=
@cch.com> =09=09 cc:=20 =09=09 Subject: TR Daily, February 05, 2001

Telecommunications Reports presents....

TR DAILY February 5, 2001

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***** FRUSTRATED JUDGES FOCUS ON BACKGROUND IN 'AVERAGE SCHEDULE' CASE

Appeals court judges today vented their exasperation at the inability of attorneys to explain how universal service support for each small, "average schedule" company is determined. The attorney representing the FCC bore the brunt of the judges' frustrations and, at times, caustic comments on that issue.

But on the legal issues, the lawyer representing the National Exchange Carrier Association, Inc., in its challenge to an FCC decision seemed to take the harder hits. The U.S. Court of Appeals in Washington must decide whether the FCC acted "arbitrarily and capriciously" in prescribing a 6.5% increase in "average schedule" universal service support.

"Average schedule" companies use formulas derived by NECA and approved by the FCC to approximate their per-loop costs of providing service. This is in contrast to so-called "cost companies," which perform studies to calculate their actual per-loop costs.

The case marks the first time that NECA, which the FCC has charged with updating the formula used by "average schedule" companies to calculate universal service support, has asked the court to review an FCC order, NECA attorney

Richard A. Askoff pointed out during oral arguments this morning.

The judges spent as much time seeking information on how the "average schedule" mechanism works as they did questioning attorneys about their legal arguments. Judge David S. Tatel asked for clarification of how the "average schedule" formula was applied to individual companies.

After FCC attorney Laurel Bergold spent nearly all her allotted time in an unsuccessful attempt to clarify that aspect of the case, Chief Judge Harry T. Edwards commented, "We get hard things from the FCC, but this [case] is bizarre."

Mr. Askoff apparently cleared up the matter for the judges during his rebuttal arguments. He explained that certain data (such as the number of loops per exchange) is plugged into the "average schedule" formula to determine a given carrier's amount of support.

But Mr. Askoff faced some tough questions from Judge Douglas H. Ginsburg regarding NECA's argument that it hadn't received proper notice of the FCC's intention to prescribe the 6.5% adjustment. Judge Ginsburg wondered what NECA would have said to the FCC, if it had received notice, that it didn't say in advocating a 33% increase in universal service support for "average schedule" carriers.

Mr. Askoff said NECA would have discussed the "fallacy" of the FCC's belief that universal service support should be tied to growth in the number of local loops. Judge Edwards replied that NECA already had made that argument before the FCC.

The case ("National Exchange Carrier Association, Inc., v. FCC," no. 00- 1055) stems from an FCC decision to reject NECA's proposed "average schedule" universal service formula for 1998-1999.

***** CLECs WANT RECORD ON PACIFIC BELL InterLATA SERVICE BID
'REFRESHED'

The California Office of Ratepayer Advocates, several trade associations representing competitive local exchange carriers (CLECs), and nine individual CLECs have asked the state Public Utilities Commission to "refresh" its record on Pacific Bell's compliance with federally mandated market-opening standards before deciding whether the telco has met those standards.

In a joint petition filed Friday, Feb. 2, they argued that the record in the proceeding was "too stale" for the commission to reach credible conclusions about Pacific Bell's compliance with the market-opening mandates by May 24--the date the commission is scheduled to issue a final decision.

Compliance with a 14-point competitive "checklist" of market-opening moves outlined in section 271 of the federal Telecommunications Act of 1996 is a prerequisite to Bell companies' receiving FCC authorization to provide in-region interLATA (local access and transport area) service. The FCC is required to consult with relevant state commissions and the Justice Department before ruling on a Bell company's section 271 application. Bell companies typically try to convince the state regulators of their compliance before submitting an application to the FCC.

The joint petitioners told the California commission that the record in the proceeding could be supplemented "in a relatively prompt and efficient manner."

If "Pacific Bell intends to include updated or other additional information in its application to be filed with the FCC, then it should make that information available to the [California commission]"

Message 74 of 1299

15 January 2001, TR Daily

Sender	root@chrivh40.cch.com
Recipients	[]
File	dasovich-j/all_documents/8325.

Telecommunications Reports presents....

TR DAILY January 15, 2001

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`CREATIVE FINANCING' RECOMMENDED TO MEET ASIAN DEMAND FOR NETWORKS

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GOVERNMENT TELECOM OFFERINGS WON'T SPEED ADVANCED SERVICE ROLLOUT, PFF PAPER SAYS

<http://www.tr.com/online/trd/2001/td011501/Td011501-04.htm>

NEWS IN BRIEF <http://www.tr.com/online/trd/2001/td011501/Td011501-05.htm>

***** WorldCom TO PAY \$88M TO END LAWSUIT ALLEGING OVERCHARGES

WorldCom Corp., has agreed to pay \$88 million to customers who claim they were overcharged for direct-dialed calls. The proposed settlement ends a class-action lawsuit brought by subscribers who complained that MCI WorldCom, Inc. (now WorldCom) misled them about the conditions under which it would charge them higher nonsubscriber rates for domestic and international calls.

While the company admits no wrongdoing, it has agreed to compensate customers for the higher charges on calls placed between Feb. 5, 1996, and Oct. 15, 2000. Under the terms of the settlement, WorldCom also agreed not to raise "casual calling" rates for nonsubscribers this year. Daniel Girard, an attorney who represents the subscribers, said that a letter regarding the settlement would be sent to 5 million people who may be eligible for reimbursement.

The U.S. District Court for the southern district of Illinois will decide at a March 29 hearing whether to approve the terms of the settlement in the case ("In re MCI Non-Subscriber Telephone Rates Litigation," docket no. 1275).

In the lawsuit, the subscribers claimed that MCI didn't provide sufficiently clear tariff information describing when it would charge them the higher nonsubscriber rates and surcharges for placing direct-dialed calls. The tariff stated that customers who remain "presubscribed to MCI after [their] account(s) are removed from MCI's billing system" would be charged nonsubscriber rates.

In 1998, the FCC found that the tariff was "too confusing" (TR, Nov. 19, 1998). The FCC's decision "opened the door" for the lawsuit and resulting settlement, Mr. Girard said.

***** QWEST CITES IMPROVED SERVICE, ANNOUNCES LINE-SHARING PACTS

Qwest Communications, Inc., says it improved its service to end-user customers and other carriers in 2000 in key areas--including those that have come under fire from consumers and state regulators.

Qwest filled almost 98% of its service orders on time, Afshin Mohebbi, Qwest's president-worldwide operations, told reporters during a conference call today. Ninety-five percent of local service repairs were completed on time, Qwest's best performance in this category since 1996, he said. He also cited reductions in the percentage of customers whose service was out for more than 24 hours and a decrease in "held or delayed" orders.

Qwest today also unveiled permanent line-sharing agreements with MULTIBAND Communications, Inc., New Edge Networks, NorthPoint Communications, Inc., and Contact Communications. Line-sharing agreements enable competitors to use the high-frequency portion of the loop for data transmission while Qwest continues to provide voice service over the low-frequency portion. Permanent line-sharing agreements now are available to all wholesale customers, Mr. Mohebbi said.

In other long-term plans, Qwest will seek the FCC's approval to offer interLATA (local access and transport area) services in at least one state by year-end; it plans to initiate state-level proceedings in several others, Mr. Mohebbi said. He said Qwest hoped to obtain approval in all of the states in its service area by the end of next year.

Under section 271 of the Telecommunications Act of 1996, a Bell company must obtain FCC permission before providing in-region interLATA services. The FCC must consult with the relevant state commissions as well as the Justice Department to ensure that the Bell company has sufficiently opened its markets to competition.

***** PORTUGAL TELECOM AIMS TO EXPAND BRAZILIAN HOLDINGS

Portugal Telecom SGPS SA plans to expand its Brazilian presence by acquiring wireless operator Global Telecom SA, which operates networks in the Parana and Santa Catarina states. Those states are neighbors to Sao Paulo, where Portugal Telecom already offers wireless service through its Brazilian subsidiary, Telesp Celular Participacoes SA (TCP).

Under an agreement announced today, TCP will pay \$556 million in cash and assume \$654 million in debt to acquire Global Telecom from its current owners--Japan's KDDI Corp., Argentina's ITX Corp., and Brazil's Inepar SA Industria e Construcoes.

Global Telecom's territory has 15 million "pops" (potential customers), of which the carrier has captured 463,000 subscribers. TCP has about 4 million subscribers. The combination of the two requires the approval of Brazil's telecom regulator, Anatel. TCP intends to pay for the transaction with its cash reserves and debt financing.

The announcement of the agreement prompted Moody's Investors Service to place the debt ratings of Portugal Telecom on review for possible downgrade. By acquiring Global Telecom, Portugal Telecom would take "advantage of a unique investment opportunity in a high-growth wireless business," Moody's said in a statement. But "the magnitude of the investment may constrain the financial ratios" of Portugal Telecom, Moody's said, "as well as expose it to a higher risk operating environment."

***** 'CREATIVE FINANCING' RECOMMENDED TO MEET ASIAN DEMAND FOR NETWORKS

Future telecom infrastructure projects in Asia will require "creative financing solutions" if development is to keep pace with demand, a Washington, D.C.-based international telecom lawyer said today. The greatest obstacle to meeting Asia's demand for Internet and other telecom networks is "meeting the communications sector's demand for capital," according to Glenn S. Gerstell, a Milbank, Tweed, Hadley & McCloy LLP partner.

Speaking at the Pacific Telecommunications Council's conference in Hawaii, Mr. Gerstell presented a "white paper" describing the benefits and drawbacks of various financing methods--and how a combination of approaches can secure needed financing in spite of the reluctance of financial institutions to take risks in less developed nations.

"Techniques for Financing Telecoms and Interne

Message 75 of 1299

16 January, 2001 TR State NewsWire

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STATES WISCONSIN -- Gov. Thompson nominates Garvin to PSC GEORGIA -- BellSouth, AT&T agree to \$19 million access charge reduction CALIFORNIA -- Group appeals to Davis; says taxpayers shouldn't foot Duque's legal bill MISSOURI -- Bill would require election of PSC commissioners MISSISSIPPI -- Bill seeks to prevent 'slamming' MONT.-- Bill requiring carriers to aid telemarketing probes moves to House floor OKLAHOMA -- SW Bell expands UNE discount list KENTUCKY -- PSC to revisit N11 dialing codes CONNECTICUT -- Lawmakers consider telecom consumer protection bills CONNECTICUT -- Bill would make Siting Council follow local zoning regs NEW HAMPSHIRE -- PUC mulls fines for two rural ILECs and their officers NORTH DAKOTA -- Bill would require carriers to develop high-usage policy

REGIONAL Second workshop set on Qwest market entry bid Qwest says it's improving customer service

STATE & LOCAL GOVERNMENT WISCONSIN Gov. Thompson nominates Garvin to PSC

Gov. Tommy Thompson (R.) has nominated Robert Garvin to the Public Service Commission to fill the vacancy that will be created when John H. Farrow, who has asked not to be reappointed when his term expires March 1, steps down. The nomination is subject to Senate confirmation.

Garvin has been an executive assistant at the PSC since June 1998, responsible for managing the commission's daily operations and providing legal and policy advice on a variety of regulatory matters. Previously, he was the commission's staff attorney and legislative liaison.

Gov. Thompson also reappointed Ave Bie as chairwoman of the three-member commission. She's serving a term that expires in 2005.

CUSTOMER-AFFECTING GEORGIA BellSouth, AT&T agree to \$19 million access charge reduction

The Public Service Commission announced that BellSouth Telecommunications, Inc., has agreed to reduce its access charges by \$19 million. The reduction follows private negotiations between BellSouth and AT&T Corp. Beginning July 1, 2001, Georgia will have "among the lowest regional Bell operating company rates in the nation," the PSC stated.

STATE & LOCAL GOVERNMENT CALIFORNIA Group appeals to Davis; says taxpayers shouldn't foot Duque's legal bill

The Foundation for Taxpayer and Consumer Rights has asked Gov. Gray Davis (D.) to intervene and reverse a Public Utilities Commission decision that taxpayers should pay Public Utilities Commissioner Henry Duque's (R.) legal fees defending against conflict-of-interest charges. The foundation filed a lawsuit in late December in San Francisco County Superior Court seeking to remove Duque from office.

The complaint alleges that Duque owned stock in a company regulated by the PUC, Nextel Communications, Inc., in violation of a state law prohibiting commissioners from holding stock in the companies they regulate. (1/2/01 p.m.)

The foundation said a Public Records Act request revealed that PUC President Loretta Lynch (D.) decided that taxpayer money should be used for Duque's legal defense. (12/11/00 a.m.) The foundation says there's no legal requirement that the commission pay Duque's legal fees. "The PUC should not be committing public resources to defend Mr. Duque for illegal acts clearly outside the scope of his public duties," it said.

The foundation also pointed to a Nov. 29 opinion issued by state Attorney General Bill Lockyer (D.) that cleared the way for the foundation's lawsuit. In that opinion, Lockyer concluded, "It would, therefore, appear that the defendant's office became vacant immediately upon his acquisition of the 700 shares of Nextel on May 12, 1999. The fact that the defendant subsequently disposed of the prohibited interest is immaterial and did not operate to restore him to the vacated office."

Under California law, the AG must approve all quo warranto lawsuits filed by private individuals in the name of the state of California. Quo warranto lawsuits are civil actions filed in an attempt to force a public official to forfeit an office for

misconduct. (12/6/00 a.m.)

FUTURE OF REGULATION MISSOURI Bill would require election of PSC commissioners

Sen. Doyle Childers (R., District 29) has introduced a resolution that would provide for the election of nine members to the Public Service Commission, one from each U.S. congressional district. Currently, the governor appoints the PSC's four members.

SJR 6 has been referred to the Senate Financial and Governmental Organization, Veterans' Affairs, and Elections Committee.

CUSTOMER-AFFECTING MISSISSIPPI Bill seeks to prevent 'slamming'

Rep. Stephen Holland (D., District 16) has introduced a bill that would prohibit telecom companies from changing a consumer's service provider without authorization. HB 785 would require a company to receive written authorization from the consumer, toll-free electronic authorization from the telephone number in question, or oral authorization from an independent third party before changing a subscriber's service. The service provider also would have to send the subscriber written verification of the change within 30 days.

A customer who paid service charges after an unauthorized change of service had occurred would be able to inform his or her authorized carrier of the situation. The authorized company then could ask the allegedly unauthorized company for evidence confirming the consumer's request to switch providers.

The allegedly unauthorized service provider would have to respond within 10 days either by sending a confirmation of the subscriber's request to change companies or compensating the subscriber in an amount equal to what the subscriber paid to the unauthorized company.

HB 785 would allow the Public Service Commission to ask the attorney general to review potential slamming violations. The AG could order a civil penalty of up to \$2,000 for each violation. The PSC would have to promulgate rules to enact the legislation.

HB 785 has been referred to the House Public Utilities Committee.

CUSTOMER-AFFECTING MONTANA Bill requiring carriers to aid telemarketing probes moves to House floor

The House Business and Labor Committee has passed a bill that would require local exchange carriers (LECs) and interexchange carriers (IXCs) to cooperate with Department of Commerce investigations of alleged violations of the state's Telemarketing Registration and Fraud Prevention Act. The bill (HB 84) has passed its second reading in the House by a 58-41 vote. It now advances to the House floor to be considered for passage to the Senate.

HB 84, which was sponsored by Rep. Trudi Schmidt (D., District 42), originally would have applied only to LECs, but the Business and Labor Committee amended the bill to apply to IXCs as well. (12/4/00 p.m.)

The telemarketing act prohibits sellers or telemarketers from engaging in acts such as (1) requesting a fee to remove derogatory information from or to improve a person's credit history; (2) using threatening, intimidating, or profane language; or (3) behaving in a manner that a reasonable person would consider annoying, abusive, or harassing.

SECTION 251/252 OKLAHOMA SW Bell expands UNE discount list

Southwestern Bell Telephone Co. has expanded the discount unbundled network element (UNE) items available for lease to competitors in Oklahoma on a nondiscriminatory basis. The company expanded its list during negotiations with the state Corporation Commission regarding its alternative regulation rules. At that time, SW Bell agreed to discounts on a list of unbundled network elements that are needed most by competitors.

The expanded list of discounts is included in an interconnection agreement SW Bell negotiated with Logix Communications Enterprises, Inc. The agreement calls for discounts of up to 25% on the nonrecurring charges on UNEs designed to bring the rates charged in Oklahoma in li

Message 76 of 1299

Energy Issues-Wed

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File	dasovich-j/all_documents/12957.

Please see the following articles:

Sac Bee, Wed, 5/23: New views emerging on power: More elected officials=20 support the concept of planned blackouts.

Sac Bee, Wed, 5/23: Californians' priorities for solving the crisis are=20 outlined in a Field Poll

Sac Bee, Wed, 5/23: Utility seeks OK of diesel use to avoid outages

Sac Bee, Wed, 5/23: Lawsuit wants to cap cost of power

Sac Bee, Wed, 5/23: All spin, no juice: Energy debate shifts from policy to= =20 politics

SD Union, Wed, 5/23: Majority supports energy price caps, new nuclear plant= s

SF Chron, (AP)Wed, 5/23: Burton, Hertzberg demand FERC puts price caps on= =20 electricity=20

SF Chron, Wed, 5/23: Nuclear power's California comeback=20 FIELD POLL: Majority wants new plants built=20

SF Chron , Wed, 5/22: Lawsuit asks court to order energy price caps=20

SF Chron , Wed, 5/22: Energy crisis not real, state's residents say=20 But poll results show most expect more blackouts=20

SF Chron, Wed, 5/23: Supervisor sees energy up on S.F. rooftops=20 Sunniest areas would have solar panels=20

Mercury News, Wed, 5/23: California economy braces for \$5.7 billion electri= c=20 rate hike=20

OC Register, Wed, 5/23: Blackouts may come with early warning=20

OC Register , Wed, 5/23: Controller questions electricity cost=20

OC Register, Wed, 5/23: Rate increase to hit harder than thought

Energy Insight, Wed, 5/23: Giving FERC expanded eminent domain power a hot= =20 button

Individual.com, Wed, 5/23: Energy Shortages, Price Caps and Windfall Profit= =20 Taxes Lessons Never Learned

Individual.com, Wed, 5/23: California Religious Leaders Set Bush Energy Pla= n=20 Against "Biblical Standards of Stewardship, Justice" at Federal Building Ra= lly

New views emerging on power: More elected officials support the concept of= =20 planned blackouts. By John Hill Bee Capitol Bureau (Published May 23, 2001)=20 If Californians are to be left in the dark, they should at least know when = to=20 break out the candles or send the workers home.=20 That's the growing sentiment among a range of elected officials, including= =20 Gov. Gray Davis, who are pushing the idea of planning power blackouts and= =20 giving businesses and residents ample warning.=20 On Tuesday, the Democratic governor's office said Davis supports longer=20 public notice than the 24 hours called for under a proposal by the Californ= ia=20 Independent System Operator, which runs the state's power grid.=20 Assemblyman Mike Briggs, R-Fresno, introduced a bill that would lay out a= =20 blackout schedule for the summer. Businesses could make plans for the=20 possible blackout days and also be assured that on all other days the light= s=20 would stay on.=20 Briggs called his plan an improvement on the existing system in which "ever= y=20 day is a potential blackout day."=20 A Senate committee, meanwhile, discussed planned blackouts as part of a=20 strategy to gain leverage over electricity generators by declaring that the= =20 state will not pay above a certain amount for power. The state would ask=20 Washington and Oregon to join the so-called "buyers'

cartel."=20 If the power generators refused to sell at the lower prices, the state would= d=20 gut it out with planned blackouts.=20 "Let's use the blackouts against the generators," Michael Shames, head of t= he=20 San Diego-based Utility Consumers' Action Network, told the Energy, Utiliti= es=20 and Communications Committee. But Shames and others stressed the need for= =20 warnings of at least 12 hours and blackouts no longer than 90 minutes.=20 "Absent that management of blackouts, we don't see how the buyers' cartel= =20 could work," Shames said.=20 On a visit to Chicago on Monday, Davis said he talked to officials about th= e=20 city's system for giving the public warning days before possible power=20 blackouts, with definite notice right before.=20 "There is no reason to keep that secret from the public when their safety i= s=20 likely to be jeopardized," Davis told reporters Tuesday. The governor said = he=20 plans to meet in the next few days with managers at ISO to explore the idea= =20 of a system like Chicago's.=20 The grid operator announced Monday that it will try to give the public at= =20 least a half-hour notice of outages, but many officials said Tuesday the=20 public needs even more warning. Davis aides said the governor's plan will g= o=20 beyond ISO's.=20 There are potential pitfalls. Criminals might make their own plans, taking= =20 advantage of deactivated alarms. And some say that a schedule of blackouts= =20 might increase the number of outages.=20 If people have been warned that a blackout is coming, and a last-minute=20 supply of electricity makes it unnecessary, grid managers would have to=20 decide whether to call it off, said Dorothy Rothrock, vice president of the= =20 California Manufacturers & Technology Association.=20 If they did, it would add uncertainty to future warnings, she said, possibl= y=20 leading them to order unnecessary blackouts.=20 "Obviously, there are trade-offs," Rothrock said.=20 Still, the idea of planning blackouts seems to be gaining ground as a way f= or=20 the state to get back some control of the energy crisis, sorely lacking in= =20 recent months.=20 "It would help us as Californians to say, 'The hell with you, George Bush,= =20 we're going to handle this ourselves,' " said Jim Overman, 68, of Elk Grove= .=20 Overman said he has been burning up the phone lines trying to persuade anyo= ne=20 who will listen that scheduled blackouts will make everyone's lives easier.= =20 Briggs said he has been told by constituents, including irrigators and food= =20 processors, that scheduled blackouts are the way to go.=20 Irrigators would know that they shouldn't plan on getting water on a day th= at=20 their electronic gates might be closed.=20 Businesses could tell workers to stay home on a blackout day, or arrange fo= r=20 backup power generators, he said.=20 "We would be very interested in it," said Ed Yates, senior vice president o= f=20 the California League of Food Processors.=20 Power blackouts are chaotic for processing plants, Yates said, requiring so= me=20 plants to be re-sterilized and shutting down operations for more than a day= .=20 Some processors might choose to close on days when they faced a blackout, h= e=20 said, losing revenue but avoiding the loss of thousands of pounds of food.= =20 "It doesn't solve the problem, but it helps manage a very difficult=20 situation," he said.=20 Briggs said that his plan would result in possible blackout days every two= =20 weeks. The plan would assume that a certain number of customers would have = to=20 turned off to keep the grid operating. If the electricity shortage went abo= ve=20 that amount, people might still face unanticipated blackouts, Briggs said.= =20 One question is public safety. Some are queasy about burglars knowing when= =20 blackouts will occur. But pluses include the ability to arrange for tempora= ry=20 stop signs at road intersections, or families being able to arrange for a= =20 sick relative to be moved.=20 "If the police have only five minutes notice, they can't get to difficult= =20 intersections to direct traffic, they can't help paramedics, fire departmen= ts=20 and ambulances get where they have to be," Davis said.=20 The manufacturers' association and other business groups haven't endorsed t= he=20 idea yet, but say it's worth a look.=20 "It's preferable to random, rolling blackouts," Rothrock said.=20

The Bee's John Hill can be reached at (916) 326-5543 or jhill@sacbee.com.

Californians' priorities for solving the crisis are outlined in a

Message 77 of 1299

FERC in the News: USA: UPDATE 1-FERC adopts plan to monitor Calif.

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File dasovich-j/all_documents/11635.

Here are the best clips on the FERC's Wednesday actions as of Wednesday evening. The decisions are to be out on Thursday. However the press release (attached) has some details I did not hear at the meeting.

Alan Comnes

----- Forwarded by Alan Comnes/PDX/ECT on 04/25/2001 10:30

PM -----

djcustomclips@djinteractive.com on 04/25/2001 10:26:25 PM Please respond to nobody@mail1.djnr.com To: 301882@mailman.enron.com cc:

Subject: FERC in the News: USA: UPDATE 1-FERC adopts plan to monitor Calif. power market.

USA: UPDATE 1-FERC adopts plan to monitor Calif. power market. By Patrick Connole and Tom Doggett

04/26/2001 Reuters English News Service (C) Reuters Limited 2001.

WASHINGTON, April 25 (Reuters) - A split U.S. Federal Energy Regulatory Commission approved on Wednesday a plan to stabilize California's volatile power market and stem market abuses.

Under the plan, set to take effect in late May and last for one year, price relief measures will be imposed on California's wholesale power sales during severe energy shortages. The three-member commission split sharply on the plan, voting 2-1 for an order that the majority believe will prevent power costs from soaring out of control in California this summer.

Wholesale power prices have jumped tenfold in California in the past year, the result of growing demand from the state's 34 million residents following a decade that saw no major power plants added to its electric system.

FERC Chairman Curtis Hebert, a Republican, and Democrat Linda Breathitt supported the order. Democrat William Massey dissented despite 10 hours of talks aimed at reaching a consensus.

"California consumers can rest assured that the commission has been attentive to their problems, and has worked tirelessly to ensure that they receive necessary relief in a manner that does not compound current problems or undermine longer-term solutions," Hebert said.

DISSENTING VOTE

Massey said that by limiting price relief to declared power emergencies, FERC's actions would fall short of solving the severe problems plaguing the California market.

"The evidence is pervasive that the problem exists 24 hours a day, seven days a week. Now is not the time for half-a-loaf solutions," Massey said.

Under the plan, price mitigation would be triggered whenever the California Independent System Operator (ISO) declares a power emergency.

The ISO, which manages most of the state's power grid, uses a three-stage alert system, with a Stage One called when power reserves drop to within seven percent of actual demand on the grid.

As demand eats further into the supply cushion, Stage Two and Stage Three alerts are declared, with Stage Three indicating rolling blackouts may be required to avoid overloading the grid and triggering far more widespread outages.

California has ordered rolling blackouts four days so far this year, with state energy officials predicting more are likely this summer when air conditioning pushes demand to its annual peak.

FINDING A FAIR PRICE

The mitigation and monitoring plan's central element will require generators to offer available power in real time using a "proxy" price established a day ahead of actual delivery, FERC said.

The proxy price reflects the "marginal cost of the highest-cost generator" asked to supply power to the grid.

This price will vary daily according to demand, the price of fuel used by generators - such as natural gas - and the cost of complying with environmental standards.

However, generators could charge more than the proxy price if they can justify the higher cost when FERC reviews their sales records, which they are required to submit at the end of each month. If those costs cannot be justified, FERC can

order the generator to refund the buyer.

FERC said all generators in California, even those not subject to the commission's price regulations, are required to sell into the ISO's real time price market as a condition of their use of the ISO's interstate transmission lines.

Hydro-electric facilities were exempted from the plan because of their generation limitations, which fluctuate according to reservoir levels and the competing needs of others for those same water resources.

REGIONAL SOLUTION

The commission emphasized that the only real solution to the power supply problems affecting the western markets was to forge a regional response.

Toward this goal, FERC said California ISO would need to file a plan to form a regional transmission organization (RTO) by June 1, or forfeit the so-called crutch of FERC's price-relief plan.

Among the many measures contained in the order, FERC told California utilities to coordinate any temporary shutdowns of generating plants with the ISO to ensure the state has adequate electric supplies at all times.

The order also formally opened an investigation by commission staff into possible abusive wholesale practices behind power sales throughout the Western region.

FERC said the plan would expire in 2002 as the California power crisis eases. The state's rush to build new power plants is expected to put an additional 4,000 to 6,000 megawatts on the grid by next summer, enough to supply up to six million homes.

Folder Name: FERC in the News Relevance Score on Scale of 100: 96

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Subject: FERC: AP NewsBriefs: Wednesday, April 25, 2001

AP NewsBriefs: Wednesday, April 25, 2001

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Bush Comments About Taiwan Causes Stir

TAIPEI, Taiwan (AP) - President Bush's bold comments about Taiwan provoked quick reactions of concern Thursday in Asia, where a war between China and Taiwan could devastate the region. Bush told The Associated Press on Wednesday that U.S. military force is "certainly an option" if China strikes Taiwan. He later said that America has an obligation to defend Taiwan if China attacks. China had no immediate comment about Bush's comments, and Taiwan's Foreign Ministry was also silent. Grafts Can Restore Sexual Function

DANA POINT, Calif. (AP) - Salvaging a nerve from the ankle, surgeons have found they can rewire the penis so men achieve erections and have sex after operations to remove their cancerous prostate glands. Doctors say the nerve grafts are not as good as the original nerves, but they do allow some men to regain sexual function when they otherwise would be undoubtedly left impotent. "It seems to have promise, certainly over doing nothing," said Dr. Joseph J. Disa, a plastic surgeon who performs the surgery at Memorial Sloan-Kettering Cancer Center in New York City.

Africa Ministers OK AIDS Drugs Plan

ABUJA, Nigeria (AP) - African ministers agreed on a draft declaration Wednesday calling on their countries to import and produce their own generic AIDS drugs and to boost spending dramatically on AIDS programs to fight the pandemic. African heads of state are expected to sign the document Thursday at the start

Message 78 of 1299

POWER Conference Sponsorship by Enron

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Dear Jeff:

I am writing to ask Enron to become a sponsor of the annual POWER research conference on electricity restructuring, which will take place this year on March 16, 2001 in Berkeley. This will be POWER's sixth annual electricity research conference. Last year's conference was quite successful, with attendance of nearly 150 and a number of papers that were discussed widely and were influential in electricity policy. Information on past programs and the plans for this year at our website: http://www.ucei.org/power_conf.html . We already have received submissions from top researchers for this year's conference. We anticipate another very strong program of active electricity restructuring researchers and practitioners.

As in the past, we plan to include about 8 papers on the program. The presentations will be organized by topic and the papers will be discussed by both researchers and practitioner. Past programs have been very successful in stimulating discussion that included both researchers and practitioners.

The cost to Enron to become a sponsor would be \$10,000. As a sponsor, Enron would be listed on the front of the conference program and in the pre-conference mailing. In addition, Enron could send up to 5 people to the conference at no additional cost.

The annual POWER conferences on electricity restructuring have been very well received by industry, policy, and academic participants. With the broad and growing interest in deregulation of electricity markets, we have every reason to anticipate that this year's conference will be just as successful. We hope that Enron will decide to become a sponsor of the conference.

I can be contacted by phone at 510-642-5145, by fax at 510-643-5180, or by e-mail at borenste@haas.berkeley.edu. I look forward to talking with you soon about this.

Sincerely,

Severin

Severin Borenstein Co-Director, Program on Workable Energy Regulation

E.T. Grether Professor of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California 2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508 <http://www.ucei.berkeley.edu/ucei>

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Message 79 of 1299

DWR rate component at the CPUC

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Some more info on the issue from Jeanne. ----- Forwarded by Jeff Dasovich/NA/Enron on 03/20/2001 07:33 PM -----

Susan J Mara 03/20/2001 06:52 PM

To: Michael Tribolet/ENRON@enronXgate, Janel Guerrero/Corp/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Gordon Savage/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Tamara Johnson/HOU/EES@EES, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron cc: Jeff Dasovich/NA/Enron@Enron Subject: FW: A.00-11-038 et al. ruling of 3/19/2001

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/20/2001 04:51 PM -----

JBennett <JBennett@GMSSR.com> 03/20/2001 04:45 PM

To: "Bob Frank (E-mail)" <robert.frank@enron.com>, "Christian Yoder (E-mail)" <christian.yoder@enron.com>, "Harry Kingerski (E-mail)" <Harry.Kingerski@enron.com>, "Jeff Dasovich (Business Fax)" <IMCEAFAX-Jeff+20Dasovich+40+2B1+20+28415+29+20782-7854@GMSSR.com>, "Sue Mara (E-mail)" <smara@enron.com>, "Tamara Johnson (E-mail)" <tjohnso8@enron.com> cc: "acomnes@enron.com" <acomnes@enron.com> Subject: FW: A.00-11-038 et al. ruling of 3/19/2001

Attached is a ruling by ALJ DeUlloa issued yesterday pertaining to the calculation of the California Procurement Adjustment. A draft decision was suppose to be release on such on Friday, March 16th. It was not, and now we know why. On March 14th, the Department of Water Resources wrote to the Commission to give the commission its views on how the CPA should be calculated. In his ruling of yesterday DeUlloa stated that he would wait to issue the PD so as to take into account DWR's submission. He also provided parties until tomorrow to file comments on the DWR letter (which is attached to the ruling).

Not surprising, DWR has a different view of the world than the UDCs do when it comes to calculating the CPA. The UDCs view the CPA as residual amount left over from the generation component of their bundled rate on 1/5/01 after the cost of their retained generation (including QFs and bilateral contracts) are subtracted out. DWR views the CPA as a rate (i.e., a cent per kWh) which would be paid to DWR by the UDCs every month. It is DWR's view that a Total Generation Related Rate must be calculated which is a blended average of the cost of the UDC retained generation and the cost of the "net short" power. From this total rate (e.g., 5 cent) the cost of the UDC retained generation (e.g., 2 cent) would be subtracted and the remainder (i.e., 3 cent per kwh) would be the CPA. This CPA would be subject to further allocation by the Commission to determine the Fixed Department of Water Resources Set-Aside. DWR is not asking that such allocation be done now.

DWR's view of the world would place it in a sounder financial position, making it a more viable purchaser of electricity for California, but would place the UDCs in more dire straights.

Please let me know by tomorrow at noon if you want to comment on the DWR proposal.

Jeanne Bennett

-----Original Message----- <<CPUC01-#93188-v1-A0011038_et_al__DeUlloa_Ruling_.doc>>

- CPUC01-#93188-v1-A0011038_et_al__DeUlloa_Ruling_.doc

Message 80 of 1299

FW: Global Government Affairs Weekly Conference Call

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Just a reminder.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: =09Dernehl, Ginger =20 Sent:=09Monday, November 12, 2001 9:58 AM To:=09Alamo, Joseph; Allegretti, Daniel; Allen, Joe; Alvarez, Ray; Assad, S= ergio; Assaf, Lisa; Ausenhus, Kara; Barnes, Lynnette; Bellas, Kirsten; Best= ard, Jose; Binns, Darran; Bolton, Scott; Boston, Roy; Braz, Gisele; Buerger= , Rubena; Burns, Stephen; Canovas, Guillermo; Cantrell, Rebecca W.; Comnes,= Alan; Connor, Joe; Cooney, Carolyn; Cooper, Adam N; Crowther, Mark; Dasovi= ch, Jeff; Davies, Philip; Dawson, Paul; Decker, Larry; Dernehl, Ginger; Dre= ssler, Jean; Elms, Nick; Fitzgibbon, Tom; Floris, Vinio; Frank, Robert; Fro= mer, Howard; Fulton, Donna; Gottfredson, Bryan; Grimes, Michael; Guerrero, = Janel; Haizmann, Jan; Hamilton, Allison; Hardy Jr, John; Hartfield, Rita; H= awkins, Bernadette; Hemstock, Robert; Hennemeyer, Paul; Hetrick, Nancy; Hoa= tson, Tom; Huertas, Alfredo; Hueter, Barbara A.; Hughes, Llewelyn; Hunter, = Bevin; Huson, Margaret; Ibrahim, Amr; Imai, Makiko; Kaufman, Paul; Kean, St= even J.; Keenan, Amber; Keene, Patrick; Kimura, Takashi; Kingerski, Harry; = Kishigami, Kikumi; Knight, Laurie; Landwehr, Susan M.; Lassere, Donald; Law= ner, Leslie; Lawrence, Linda L.; Leibman, Lara; Leonardo, Sam; Levy, Albert= o; Lindberg, Susan; Linnell, Elizabeth; Long, Chris; Mara, Susan; Maurer, L= uiz; McVicker, Maureen; Migden, Janine; Milano, Pamela; Miller, Terri; Mont= ovano, Steve; Nersesian, Carin; Neustaedter, Robert; Nicolay, Christi L.; N= ord, Sue; Noske, Linda J.; Novosel, Sarah; O'connell, Earlene; Ogenyi, Glor= ia; Palmer, Germain; Perez, Carmen; Perez, Gus; Perrino, Dave; Petrochko, M= ona L.; Pharms, Melinda; Reis, Jose Lucio; Reyna, Margo; Rishe, Frank; Rizz= o, Helen; Roan, Michael; Robertson, Linda; Robinson, Marchris; Rodriquez, A= ndy; Ryall, Jean; Sampaio, Fred; Shapiro, Richard; Shelk, John; Shortridge,= Pat; Staines, Dan; Steffes, James D.; Stephens, Sharonda; Stransky, Joan; = Stroup, Kerry; Stubbings, Randy; Styles, Peter; Sullivan, Kathleen; Sulliva= n, Lora; Thome, Jennifer; Tiberi, Fino; Twiggs, Thane; Van Biert, Teun; Wal= ton, Steve; Warner, Geriann; Watanabe, Mika; Wood, Doug; Yeung, Charles; Yo= ho, Lisa Subject:=09Global Government Affairs Weekly Conference Call

Global Government Affairs will have a weekly call that will take place as f= ollows:

Date:=09=09Weekly on Friday's

Time:=09=0910:30 AM (CST)

Number:=091-800-745-1000 (domestic#) =09=09614-410-1515 (int'l) =09=098533407 (participant passcode) =09=097751 (host code - Rick only)

Thanks!=09=09

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

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Davis Press Conference

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File	dasovich-j/all_documents/10677.

----- Forwarded by Jeff Dasovich/NA/Enron on 04/04/2001 10:59 PM -----

Jean Munoz <jmunoz@mcnallytemple.com> 04/04/2001 08:51 PM

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As you may have heard, Governor Davis intends to hold a press conference Thursday evening at 6:05 PST to deliver "an important live address on energy ... will speak in detail about California's energy emergency and make an important announcement." ?He has requested five minutes during evening newscasts to make his remarks.

While there is no way to know specifics, we've heard rumor that his remarks will include the following:

1. Discussion of rate increases 2. State's conservation efforts 3. Blame FERC for crisis 4. Point out what a great job he is doing

IEP is prepared to react immediately to the Governor's remarks if needed. ?

Below are two Dow Jones stories on the press conference, and a memo that was released by Davis' top financial adviser, Joe Fichera.

We'll keep you posted -- but please alert me or Katie if you hear anything.

Thanks, Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

Calif Gov To Make 'Important' Energy Announcement Thurs ???? Updated: Wednesday, April 4, 2001 08:17 AM?ET ????
? (This article was originally published Wednesday)

By Jason Leopold

OF DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--In a highly unusual move, California Gov. Gray Davis Tuesday requested radio and television stations in the state to clear five minutes of time Thursday evening so he can make an important announcement regarding the state's energy crisis.

Davis is expected to deliver a speech at 6:05 p.m. PST and will likely talk about the state's conservation efforts, a 4,000 megawatt shortfall expected next month, the need to bring new generation online, recent rate hikes ordered by the California Public Utilities Commission, and the possibility for further rate increases this summer to keep the state's three investor-owned utilities solvent, sources close to Davis told Dow Jones Newswires.

The source said Davis is not expected to discuss a final agreement to buy the power lines owned by PG&E Corp. (PCG, news, msgs), unit Pacific Gas & Electric, Edison International's (EIX, news, msgs) unit, Southern California Edison, and Sempra Energy's (SRE, news, msgs) unit, San Diego Gas & Electric.

Davis' press secretary, Steve Maviglio, would not comment on Davis' speech.

In a memo to the media, Davis' office said the governor will "deliver an important live address on energy from his office in Sacramento. During this historic address to the people of California, the governor will speak in detail about California's energy emergency and make an important announcement."

The last time a California governor interrupted a broadcast schedules was in 1992, when Republican Gov. Pete Wilson delivered a speech about the state's budget problems, a spokesman in Davis' office said.

But Davis' staff said "this is the first time in recent memory that a Governor has asked for time statewide to deliver a live address to the people of California."

-By Jason Leopold; Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

Calif Gov Staff To Speak To Analysts About Energy Crisis ?? ?? Updated: Wednesday, April 4, 2001 05:37 PM?ET ??? ?
LOS ANGELES (Dow Jones)--California Gov. Gray Davis' advisers will speak to Wall Street analysts Thursday following a live state address on the state's energy crisis, according to an email sent to the financial community and obtained by Dow Jones Newswires.

Daivs' staff, in a highly unusual move, asked radio and television broadcasters to clear five minutes of air time Thursday night so Davis can make an "important announcement" about the state's months-long energy crisis.

Sources close to the governor said Davis will discuss the state's conser

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12 January 2001, TR Daily

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Telecommunications Reports presents....

TR DAILY January 12, 2001

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****See Monday's TR for an On the Record interview with Benjamin H. Dickens and John A. Prendergast of the Washington law firm of Blooston, Mordkofsky, Dickens, Duffy & Prendergast. They'll discuss opportunities for paging carriers to compete in the alarm monitoring industry.****

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COMMISSIONERS SPLIT ON CONDITIONS IMPOSED ON AOL-TIME WARNER MERGER

One of the FCC's last major actions during the tenure of Chairman William E. Kennard marks the agency's first effort to oversee Internet "instant messaging" services. The move last night came as the FCC announced its long-awaited decision to clear the merger of America Online, Inc., and Time Warner, Inc.

All five Commissioners voted to approve the merger-related application, but the majority's vote to attach conditions as competitive safeguards prompted sharp criticism from the person widely expected to succeed Mr. Kennard.

Commissioner Michael K. Powell warned that the FCC was taking a "substantial leap" by declaring broad jurisdiction over the Internet. And Commissioner Harold Furchtgott-Roth reiterated his strong view that the FCC lacks authority to extract conditions through its public interest reviews of merger-related license transfers.

The FCC's merger conditions mandate that the combined company-- known as AOL Time Warner, Inc.--allow all customers to choose Internet service from any unaffiliated ISP that has a contract with the merged company to use its cable TV facilities. Customers must be able to have their chosen ISPs provide their "first screen" when they go online, without going through an AOL Time Warner-affiliated ISP as an intermediary.

The merged company must allow unaffiliated ISPs to have direct billing relationships with its subscribers. And it may not discriminate in favor of its affiliated ISP in terms of caching services, customer technical support, multicasting capabilities, address management, or other technical functions.

The FCC also indicated its concern that, without conditions, AOL Time Warner would be able to leverage its dominance in text-based instant messaging (IM) into the nontext-based IM market. As a condition of the merger approval, therefore, the FCC prohibited AOL Time Warner from offering any new advanced, IM-based high-speed service (AIHS), feature, or enhancement that includes one- or two- way streaming video communications using a "names and presence directory" (NPD).

The prohibition could be lifted, however, if AOL Time Warner demonstrated that it had complied with certain safeguards.

Commissioner Powell said the majority had "given in too much to their collective imaginations" in imposing the IM conditions. In a separate statement, he said he was unwilling to join them in making the "substantial leap" to find that the FCC "has jurisdiction to regulate virtually every Internet product."

Neither the record nor anticompetitive theory supports mandating IM interoperability, Mr. Powell said. "No competent antitrust authority, to my mind, would conclude intervention was necessary, nor do I believe such an analysis would withstand judicial review," he said.

During a press briefing this morning, Mr. Kennard insisted that the IM conditions were "very narrowly tailored and minimally intrusive." Although he wouldn't speak directly to Mr. Powell's criticism, the chairman said, "At the end of the day, I felt--and my two other colleagues felt--that in order to protect consumers we had to impose some conditions." For more details, see Monday's TR.

***** KENNARD SUBMITS RESIGNATION, PLANS TO LEAVE FCC POST FOR THINK TANK

FCC Chairman William E. Kennard has submitted his resignation to the White House, effective Jan. 19, and will take a temporary senior fellow position at the Aspen Institute, a think tank in Washington.

Ending a three-year term as the nation's top telecommunications regulator, Mr. Kennard made his resignation public during a press conference this morning to discuss the FCC's approval of the merger America Online, Inc.-Time Warner, Inc. merger (see story above). At the Aspen Institute, Mr. Kennard will be advisory board chairman of the Communications and Society Program.

Although his term on the Commission does not expire until the end of June, Mr. Kennard said, "Our work is complete, and it's time for me to go."

Most industry observers predict that President-elect George W. Bush will appoint FCC Commissioner Michael K. Powell chairman. In one scenario some see as likely, President Bush could nominate Texas Public Utility Commission Chairman Patrick H. Wood III to be an FCC commissioner to succeed Mr. Kennard. After Mr. Wood had been confirmed and dealt with federal communications industry issues for a while, he could be named chairman of the agency, leaving Mr. Powell free to accept another appointment, possibly in the Justice Department, these sources say.

Mr. Kennard has been FCC chairman since 1997; he was the Commission's general counsel from 1993-1997. Previously, he was a partner at the law firm of Verner, Lipfert, Bernhard, McPherson & Hand and counsel to the agency's reigns as interim chairman.

***** FCC TRANSITION TEAM LEANS HEAVILY ON COMMON CARRIER REPRESENTATIVES

President-elect George W. Bush has begun rounding out the "transition advisory team" that will work with the incoming administration on critical FCC issues, including the selection of a new chairman. Earlier this week a handful of telecom policy advocates were added to the FCC team, which in its current form is top-heavy with common carrier service interests, observers note.

Overall, the FCC group had 31 members as of late today, inc

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Enron Mentions - 05/03/01

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ENRON PLANT HEARING PLANNED FOR TONIGHT South Florida Sun-Sentinel, 05/03/01

Would buying boycott help lower California's electricity bill? Associated Press Newswires, 05/03/01

INDIA: Indian banks appeal to govt to help end Enron row Reuters, 05/03/01

DNC: Special Interests Write Bush Energy Policy PR Newswire, 05/03/01

UK: INTERVIEW-Innogy starts trading power in mainland Europe Reuters, 05/03/01

Mosaic Group posts strong first quarter results Canada NewsWire, 05/03/01

European Phone Companies' Outlook Brightens: Rates of Return Bloomberg, 05/03/01

UK:Corporates warm to charms of credit derivatives Reuters, 05/03/01

Allegheny Energy buys three power plants Associated Press, 05/03/01

Allegheny Energy Buys Midwest Capacity From Enron Unit Dow Jones, 05/03/01

Allegheny Energy Supply Completes Purchase of Midwest Assets; Adds 1,700 MW to Growing Generation Fleet Business Wire, 05/03/01

SSB Cuts Forecast For Power Profitability In 2002, Beyond Dow Jones, 05/03/01

Fitch Affs Northern Border; Rtg Outlook To Stable From Negative Business Wire, 05/03/01

INDIA: UPDATE 1-Enron to meet govt panel over Indian project Reuters, 05/03/01

India State Panel's Sat Meet With Enron Unit Postponed Dow Jones, 05/03/01

EnergieKontor Secures Enron Deal For Spain, Germany Projs Dow Jones, 05/03/01 The Bottom Line: Scottish Power Looks To Refine Focus Dow Jones, 05/03/01

LOCAL ENRON PLANT HEARING PLANNED FOR TONIGHT Staff Reports

05/03/2001 South Florida Sun-Sentinel Broward Metro 3B (Copyright 2001 by the Sun-Sentinel)

Pompano Beach A town meeting will be held tonight on Enron Corp.'s power plant proposal for Pompano Beach. Called by Commissioner Kay McGinn, the meeting will be open to anyone who wants to speak. The City Commission is to vote Tuesday on whether to approve a zoning variance for the project. The meeting will be held at 7 p.m. at the Pompano Beach Civic Center, 1801 NE 6th St.

Would buying boycott help lower California's electricity bill? By MICHAEL LIEDTKE AP Business Writer

05/03/2001 Associated Press Newswires Copyright 2001. The Associated Press. All Rights Reserved. SAN FRANCISCO (AP) - There's a limit to how much people will pay for most things in life. If the cost scares off enough buyers, prices eventually fall. So what would happen if this textbook example from Economics 101 were applied to California's electricity crisis? What if the state officials struggling to maintain energy supplies simply refused to buy power above a certain price and accepted more blackouts this summer? The question would have been absurd just a few months ago and even now the notion seems surreal, given the possible consequences. Inviting even more blackouts inevitably would hurt businesses and frustrate consumers, threatening to further depress California's already slumping economy - the sixth largest in the world. But desperate times require drastic measures, according to the economists, lawmakers and activists who believe the state will be better off sitting in the dark than buying electricity at any price during a summer shortage likely to produce recurring blackouts anyway. "It's better to use (blackouts) and break the (wholesale energy) cartel than simply to suffer

them," said Michael Shames, executive director of the Utility Consumer Action Network, a San Diego watchdog group. Refusing to buy enough power to keep the lights on "would be like playing with fire," counters Wells Fargo & Co. chief economist Sung Won Sohn. "Blackouts aren't a just matter of inconvenience or being too hot or cold. They cost businesses a lot of money." Buying electricity at the last minute to meet the state's power needs already has cost the California government \$5.7 billion in the past 3 1/2 months. The state energy bill for 2001 could reach \$50 billion, in money otherwise spent on education, public safety and health care, Shames said. Faced with the prospect of a significant budget deficit, some lawmakers think it's time for California to take a stand against the power wholesalers - many of whom are based outside the state. This Tuesday, the state Senate Energy Committee will consider authorizing the state to refuse to buy power above certain prices. Current law requires state electricity managers to avoid blackouts by buying all available power at any cost. "We have been over a barrel in so many ways," said Sen. Dede Alpert, D-Coronado, who sponsored SB73x. "Maybe there's a point in the market where (we) just say no and go with the planned blackout strategy instead." Economists give the bill little chance of succeeding. "It's never going to happen. It's not a viable option," said University of California at Berkeley Professor Severin Borenstein, one of the energy experts who have studied the idea. The business lost during blackouts would mean more layoffs in a state already skittish over the technology downturn and the looming Hollywood writers strike, economists say. Other ripple effects include diminished gasoline supplies, leading to even higher prices at the pump, and distribution headaches that could leave store shelves bare. And some consumers - the elderly and the infirm, for example, need power at any price. Without electricity, Manteca resident Betty Jarzemkoski said she wouldn't be able to help her ailing husband to get out of his motorized bed at home. "It would be a real hardship for us," said Jarzemkoski, 78. "I'm on a fixed income so I hope they can figure out something to bring down prices. But we need power." Despite such concerns, the concept of a buyer's boycott hasn't been flatly ruled out - at least publicly - by Gov. Gray Davis as he struggles to reduce the state's staggering electricity bill. The state is spending as much as \$90 million per day to meet California's electricity needs and the bleeding is sure to get worse. When the summer heat increases demand and tightens supplies, California might spend more than \$1 billion each week, state officials estimate. Extended blackouts pose an even greater cost, economists say. When Northern California suffered rolling blackouts for several hours Jan. 18-19, the economic losses totaled \$2.3 billion, mostly from lost profits and wages, estimated the Los Angeles Economic Development Corp. Multiply that over several weeks across the entire state, and it becomes apparent why it makes more sense for California to continue buying power at inflated prices, even if leaves the state with deep debts and a ruined credit rating, economists argue. As it is, California probably won't be able to round up enough power at any price on some days this summer, making some blackouts a virtual certainty. The blackouts will reduce the state's economic output by \$2 billion to \$16 billion, according to a study released last month by the Bay Area Economic Forum. The resolve of the state's politicians and ratepayers would be sorely tested for a boycott to succeed, much in the way that labor strikes boil down to whether workers or management can withstand more financial pain. "Politicians aren't going to willingly turn out the lights because politicians want to get re-elected," said Borenstein, director of the University of California's energy institute. "As soon as people start losing their jobs because the power is off, the public will get tired of the blackouts real quick." Still, Californians might tolerate an increase in blackouts if they understand why the state chose to pursue such a drastic course, said Stanford economics Professor Frank Wolak, who heads the Independent System Operator's market surveillance committee. "This isn't something you could do without an enormous public rel

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Energy Issues

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File	dasovich-j/all_documents/28711.

Please see the following articles:

Sac Bee, Fri, 7/13: Lawmakers vow a vote on Edison
Sac Bee, Fri, 7/13: No outcry to ease clean-air process
Sac Bee, Fri, 7/13: State lawmakers lobby for refund on energy purchases
Sac Bee, Fri, 7/13: Energy conflicts revealed=20 SD Union,
Thurs, 7/12: Judge says California owed 'hundreds of millions of= 20 dollars' =01) not billions
SD Union, Thurs, 7/12: Southern California gas fights FERC over routine=20 decision that may cost millions
LA Times, Fri, 7/13: Options Debated

in Edison Rescue LA Times, Fri, 7/13: Developer Pulls Plug on Power Plant in Chula Vista LA Times, Fri, 7/13: Some State Energy Consultants Own Generators' Stock LA Times, Fri, 7/13: Plan Uses Public in Refund Demand SF Chron, Fri, 7/13: 2 sides face off at EPA hearing on regulating energy=20 plant emissions=20 SF Chron, Fri, 7/13: 7 California advisers own energy stocks=20 Secretary of state calls for investigation=20 SF Chron, Fri, 7/13: PG&E customers get a payback for conservation=20 Nearly one-third earn rebates for cutting electricity use 20%=20 SF Chron, Fri, 7/13: Judge spells out opposition to power refund claim=20 Opinion says \$8.9 billion in alleged overcharges for electricity 'cannot be=20 substantiated' SF Chron, Fri, 7/13: News briefs on the California power crisis SF Chron, Fri, 7/13: Wholesale prices drop by largest amount in 28 months Mercury News, Fri, 7/13: Power rebate generates shockingly high interest=20 Mercury News, Fri, 7/13: Settlement talks unsuccessful=20 OC Register, Fri, 7/13: Rate hike may hit businesses=20 Wash. Post, Fri, 7/13: Judge Rejects Power Refunds For California=20 WSJ, Fri, 7/13: Mediator Questions California's Claims To Power Refunds

Lawmakers vow a vote on Edison=20 By Kevin Yamamura and Emily Bazar Bee Capitol Bureau (Published July 13, 2001)=20 Facing a looming deadline and pressure from the governor, legislative leaders=20 said Thursday they will push for a vote next week on a revised plan to save=20 Southern California Edison from bankruptcy court.=20 Under competing proposals from each house of the state Legislature, large=20 businesses would pay for the majority of Edison's \$3.5 billion debt and power=20 generators would be pressed to accept less than they are owed for past energy=20 purchases.=20 A vote next week would come three months after Gov. Gray Davis first struck=20 an agreement with Edison. His original arrangement would have the state=20 purchase the company's transmission lines for \$2.76 billion and use a portion=20 of consumer rates to help pay off Edison's debt.=20 But lawmakers roundly criticized the Democratic governor's agreement in=20 subsequent weeks and floated alternatives soon afterward. Lawmakers=20 acknowledged that the latest alternatives are still under negotiation.=20 The governor's agreement with Edison has an Aug. 15 deadline, which falls=20 toward the end of the Legislature's summer recess. Because the monthlong=20 break is scheduled to begin next Friday, lawmakers plan to vote before then=20 .=20 The Assembly could vote on a proposal as early as Saturday.=20 Davis on Tuesday threatened to call a special session to keep legislators in=20 Sacramento if they do not approve the Edison plan before the break. But=20 Senate President Pro Tem John Burton, D-San Francisco, challenged that=20 threat, saying, "Only the Legislature can keep the Legislature here."=20 Senate Democrats are studying a plan by Sen. Byron Sher, D-Palo Alto, that=20 would have large businesses pay off most of Edison's debt and force=20 generators to reduce by 30 percent the amount they are owed by the utility.=20 That would leave about \$1.2 billion in debt, for which Edison itself would be=20 responsible without relying on ratepayers, Sher said.=20 His plan also gives the state the option to purchase Edison's transmission=20 lines for book value -- less than half the price Davis offered to pay.=20 Burton said his house will vote on a version of Sher's proposal next week.=20 Burton said he prefers Sher's version because large businesses and industrial=20 users, not consumers or small businesses, would be responsible for paying=20 the majority of Edison's debt. He reiterated that businesses were among the most=20 ardent advocates for electricity deregulation.=20 "We're trying to do something legislatively that protects the people and=20 isn't a bailout for the utility," Burton said. "I don't think it's fair that=20 small users pay for any of (the debt)."

=20 While the Senate toils over Sher's proposals, members of the Assembly are=20 drafting their own version of a plan. Their version, too, would separate=20 users into large and small categories, according to Paul Hefner, a spokesman=20 for Assembly Speaker Robert Hertzberg, D-Sherman Oaks.=20 Under the plan, electricity for small users -- some residential and=20 small-business customers -- would come from the cheapest sources -- Edison's=20 own power plants and renewable energy sources known as "qualifying=20 facilities." Larger users would pay more because they would obtain power from=20 the long-term contracts that have been signed by the state Department of=20 Water Resources.=20 Ultimately, as the amount of electricity supplied by the long-term contracts=20 declines over the course of several years and the overall supply increases,=20 costs to large businesses are expected to decline as they buy more power on=20 the open market, presumably at lower prices.=20 The plan envisions a portion of business and residential rates dedicated to=20 reducing Edison's debt for at least the first year, with businesses picking=20 up more of the burden in future years. Like the Senate plan, the state would=20 have an option to buy transmission lines.=20

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<<mailto:kyamamura@sacbee.com>>.=20

No outcry to ease clean-air process By Chris Bowman Bee Staff Writer (Published July 13, 2001)=20 The Bush administration did not receive much sympathy from California at a= =20 hearing Thursday about its concerns that some environmental rules make it= =20 hard for industry to meet demands for electricity and gasoline.=20 No owners of California power plants testified in Sacramento at the second = of=20 four public hearings examining whether clean air rules unnecessarily impede= d=20 energy production.=20 President Bush ordered the 90-day review by the U.S. Environmental Protecti= on=20 Agency in May as part of his national energy policy.=20 As for California's gasoline producers, a few representatives called for=20 streamlining and clarifying the EPA rules, but not relaxing them.=20 At issue are federal Clean Air Act regulations collectively called "new=20 source review" that apply to businesses looking to build or expand=20 refineries, power plants and other sites that generate air pollution. The= =20 rules call for installation of the best-available pollution-control hardwar= e,=20 plus smog-cutting measures that more than offset the added air emissions.= =20 California's smog officials saw the lack of industry protest Thursday as=20 evidence that rules do not need major fixing.=20 "The system is working," Peter Venturini, a state Air Resources Board=20 official, said at the hearing, which was attended mostly by industry=20 representatives and environmentalists.=20 Venturini said smog-forming emissions from businesses in the state have=20 declined 50 percent the past 20 years despite a 40 percent increase in=20 population and commensurate industry growth.=20 "That tells us we can have a h

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Bingaman, Senate Energy Chief, Will Block Bush Plan (Update1) Bloomberg, 06/05/01

USA: TECO breaks ground on 599-MW Arkansas power plant. Reuters English News Service, 06/05/01

Reuters to Provide Its Customers With EnronOnline Quotes Business Wire, 06/05/01

UK: Intl bonds-Telecoms suffer despite positive market. Reuters English News Service, 06/05/01

Natural gas generators considered to ease electricity demand, prices Associated Press Newswires, 06/05/01

Waste Management to Start Trading Pulp and Paper (Update1) Bloomberg, 06/05/01

Profile: Power Play, Who's to Blame for the Energy Crisis?; Lowell Bergman, "Frontline" correspondent, Laura Holson and Joseph Kahn, The New York Times, discuss the energy crisis ABC News: Nightline, 06/04/01

Bingaman, Senate Energy Chief, Will Block Bush Plan (Update1) 2001-06-05 10:50 (New York)

Bingaman, Senate Energy Chief, Will Block Bush Plan (Update1)

(Adds company names in fourth paragraph and details about contributions in paragraph 23.)

Washington, June 5 (Bloomberg) -- President George W. Bush delivered his energy plan to Senator Frank Murkowski last month, expecting the Alaska Republican to push it more or less intact through the Senate and on to passage by the House. Now the package intended to boost oil and gas production and ease some pollution controls is in the hands of Jeff Bingaman. The New Mexico Democrat disagrees with Bush's approach and wants to start fresh negotiations on what U.S. policy should be. Bingaman, 57, who's spent most of his 19 years in the Senate out of the spotlight, will become chairman of the Energy and Natural Resources Committee when Democrats take control of the Senate later this week. Bush wants to make it easier for companies like Enron Corp., Exxon Mobil Corp. and BP Plc, to build power plants and pipelines by easing regulations, and he's opposed to regulating the carbon dioxide emissions blamed for global warming. Bingaman has introduced legislation to cut emissions to curb global warming. The president's proposal to drill in the Arctic National Wildlife Refuge, in trouble even with Republicans in charge, is dead as long as Democrats have control. Bingaman has no plans to consider it. Bush opposes caps on energy prices; Bingaman is cosponsor of legislation to impose caps on wholesale energy prices in California although, according to a spokesman, he'd prefer the Federal Energy Regulatory

Commission do that on its own.

Seeking Consensus

Bingaman says rather than offer his own plan now, he'll try to sit down with Republicans and negotiate something both sides can agree on. There is already agreement on some proposals, such offering tax credits to encourage domestic drilling and the use by business of renewable energy technology, such as wind-powered turbines. "Obviously, I'm going to work for consensus," he said. "There's nothing about much of these issues that should be partisan." Bingaman says he hasn't decided whether to push a single, comprehensive energy bill or move issues separately. Democrats may insist on separate bills for political purposes, said Tim Evans, a senior energy analyst at IFR Pegasus. "They'll say, 'Let's get all of the most vulnerable Republicans on record supporting drilling and see if they get re-elected,'" he said. Whatever his decision, Bingaman won't meet Murkowski's goal to have a bill for Bush to sign on July 4. "I'm not anxious to have some artificial deadline so that we can have a bill-signing ceremony on a holiday," Bingaman said. "I don't think that's the way to legislate."

Visionary or Do-Nothing?

Throughout his career, Bingaman has made a practice of taking time to study an issue before acting. "He's something of a visionary," said Bruce Black, a former law partner who became a federal judge in New Mexico after Bingaman recommended his nomination. "He sees trends." Opponents see inaction. "He doesn't accumulate much in the way of negatives by not doing much," said John Dendahl, chairman of the Republican Party of New Mexico. Bingaman is a politician who doesn't stray from party positions, Dendahl said. "He's not a maverick. He's always been when the chips are down a straight Democratic voter." In 2000, Bingaman voted with the party leadership 87 percent of the time on votes in which the two parties took opposing positions, according to data compiled by Congressional Quarterly.

Fundraising Success

In the Senate, Bingaman's strategy has been to home in on issues that have been neglected, such as school accountability and defense research that has civilian uses, work with others, and not hog the credit. "He wouldn't try to beat it to the front of the class," said Ben Alexander, a Bingaman fundraiser. That approach appears to have worked: Republicans haven't been able to budge Bingaman from his Senate seat by appealing to New Mexicans' distrust of party-line politicians. With Alexander's help, Bingaman built a campaign fund that's helped him fend off rivals. He raised \$2.7 million for his 2000 re-election bid compared with his Republican challenger's \$669,000. The \$295,527 Bingaman got from oil and gas companies and electric utilities made him the industry's sixth-largest congressional recipient in last year's elections, according to the Center for Responsive Politics. The oil and gas industry gave \$32.6 million overall last year in campaign contributions. The top contributor, Enron, a pipeline and energy-trading firm, gave \$2.4 million. Exxon, the world's largest publicly traded oil company, followed with \$1.4 million and BP, the third largest publicly traded oil company, donated \$1.3 million, according to the Center for Responsive Politics.

Comparison With Murkowski

Environmentalists said Bingaman will balance conservation and production concerns better than Murkowski. "Murkowski wants to jam through an agenda" to boost production, said Alyssondra Campaigne, legislative director of the National Resources Defense Council. Bingaman "tends to be more studious and thorough." As chairman, Murkowski has pushed a comprehensive bill that includes tax incentives to promote the use of alternative energy and opening 1.5 million acres of the 19-million acres of the Alaska refuge to oil and gas exploration. Bingaman has proposed leasing land in the Gulf of Mexico for oil production, and that concerns environmentalists. "It would put too much at risk in coastal resources," the NRDC's Campaigne said.

USA: TECO breaks ground on 599-MW Arkansas power plant.

06/05/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, June 5 (Reuters) - TECO Energy subsidiary TECO Power Services held a groundbreaking ceremony Tuesday on its 599-megawatt natural gas-fired power plant in Dell, Ark. Actual construction on the Dell Power Station began in March, the company said in a statement. One megawatt provides enough electricity for about 1,000 average homes, therefore the Dell plant will provide enough electricity for about 600,000 homes. National Energy Production Corp. (NEPCO), a subsidiary of Houston-based energy giant Enron Corp. , is building the plant. The Dell plant, along with a

sister plant, the McAdams station in Kosciusko, Miss., are designed to interconnect with the Entergy transmission system. Both will sell electricity to wholesale customers in the Southeast and Midwest, TECO said. Dell is expected to begin commercial operation in the second half of 2002. Tampa, Fla.-based TECO Energy units include Tampa Electric, Peoples Gas System, TECO Transport, TECO Coal, TECO Coalbed Methane, TECO Propane Ventures

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=DJ Enron Turns Internal Credit-Risk Tool Into New Product Dow Jones, 04/04/01

Duke, Enron Get 1st-Qtr Profit Boost From California: Outlook Bloomberg, 04/04/01

Edison, PG&E File to End Williams's Open-Market Sales (Update1) Bloomberg, 04/04/01

Enron Europe Pres Sees NETA Boosting Trade Volumes Dow Jones News Service, 04/04/01

CANADA: Enron calls on Ontario to open power market quickly. Reuters English News Service, 04/04/01

BG Group: UK Court Rules In Favor Of Co Against Enron Unit Dow Jones International News, 04/04/01

GERMANY: Enron starts online quotes for German gas market. Reuters English News Service, 04/04/01

BG to get back 51 mln stg as House of Lords finds against Enron's Teesside Gas AFX News, 04/04/01

Utilities' merger faces challenge The Oregonian, 04/04/01

Wholesale market bright for PGE The Oregonian, 04/04/01

=DJ Enron Turns Internal Credit-Risk Tool Into New Product 2001-04-04 17:19 (New York)

By Christina Cheddar Of DOW JONES NEWSWIRES

NEW YORK (Dow Jones)--With the number of corporate bankruptcies on the rise, knowing the creditworthiness of one's customers is becoming more and more important. For Enron Corp. (ENE), the world's largest energy trading company, keeping track of credit risk has always been part of doing business. That became even more true with the company's launch of EnronOnline, its Internet-based commodities trading network. In order to deal with the accelerated volume and speed of transactions on EnronOnline, the company developed a tool to help its own commercial traders manage the credit risk. Early last year, Enron rolled out this tool, Enron Credit, on a limited basis. Gradually, the company expanded its use and scope. Last month, the company re-launched Enron Credit in its current format. Enron Credit tracks more than 10,000 companies, giving each a rating known as the "Enron cost of credit." The rating is expressed as an interest rate. The Web site also provides news, a company's expected chance of bankruptcy and other related information. While much of this information is free to registered users, Enron also has turned the product into a new revenue stream. Users may download data into a spreadsheet and receive periodic updates for a fee. The site also can sell a user a "digital bankruptcy swap," which is a way to hedge against credit exposure. The price of the swap is determined by a rating Enron's staff assigns to a company and the amount of credit exposure a company needs to protect against. For a supplier, the main advantage of a swap is that if a customer is unable to pay due to bankruptcy, the supplier will be paid immediately. According to Enron Europe President John Sherriff, the goal of Enron Credit is to create a more efficient credit market by increasing trading liquidity. The tool is important because "in just a short amount of time, a company's credit can go from stellar to bad literally overnight." At present, some analysts haven't factored in revenue from Enron Credit into their earnings models. However, as the commodity markets Enron trades in mature, it is possible the need for products such as Enron Credit could increase. -By Christina Cheddar, Dow Jones Newswires; 201-938-5166;

Duke, Enron Get 1st-Qtr Profit Boost From California: Outlook 2001-04-04 17:21 (New York)

Duke, Enron Get 1st-Qtr Profit Boost From California: Outlook

Houston, April 4 (Bloomberg) -- Duke Energy Corp., Enron Corp. and other power sellers continued to reap the benefits of California's electricity shortage in the first quarter, with some bringing in record profits, analysts said. Duke, which owns generation in California that can light more than 3 million homes, had an 18 percent increase in per-share profit, forecasters say. Earnings at Enron, which sells electricity and natural gas in California and helps companies protect themselves from the risks of energy price movements, rose about 13 percent, analysts estimated. Jeffrey Skilling, chief executive of Houston-based Enron, said demand is rising for the Houston-based company's business of helping companies cut energy costs by reducing consumption and finding lower-priced suppliers. "We're seeing the positive effect of the chaos going on out in California," Skilling told investors in March. California officials and consumers have criticized energy suppliers for profiting from their crisis. Power prices in the state averaged nine times higher in the quarter than a year earlier because a shortage of power plants limited supplies, and generators demanded higher payments to offset the risk of selling to the state's near-bankrupt utilities. Most of the big suppliers sell electricity worldwide and insist California is a small part of total sales. Dynegy Inc., which for example, has said California power sales accounted for about 15 percent of last year's profit in marketing and trading.

Higher Prices

Dynegy said on Monday that first-quarter profit rose to 40 cents a share from 26 cents a year earlier because of increased demand and higher energy prices. The Houston-based company was expected to earn 31 cents. San Jose, California-based Calpine Corp. said Thursday it earned almost twice as much as it had forecast to analysts in the quarter, helped by sales in California. Calpine said it made 20 cents to 25 cents a share, about three times as much as it earned a year earlier. Atlanta-based Mirant Corp. said March 14 it would earn 46 cents to 48 cents a share in the quarter, more than twice as much as expected, because of gains in its natural gas and electricity business in the U.S. West. Avista Corp., which also sells energy in the western U.S., said in March it would earn 33 cents to 35 cents a share in the quarter, more than the 30-cent average estimate of analysts polled by First Call/Thomson Financial. Enron said in March it expected to earn \$1.70 to \$1.75 this year, but wouldn't break out first-quarter estimates. First Call estimates are that Enron will make 45 cents a share, up from 40 cents a year earlier.

Seeking Payments

Enron's shares fell 30 percent in the quarter, partly on concern about debts owed by customers in California. Investors questioned whether Enron and others would be paid for power and gas they delivered to the utilities owned by PG&E Corp. and Edison International. The utilities have more than \$14 billion in debt because regulators wouldn't allow them to pass on all of soaring power-buying costs to consumers. Prices jumped as high as \$3,000 a megawatt-hour in December -- about 100 times normal levels -- because of the power shortage, cold weather and high natural-gas prices. California regulators approved a \$4.8 billion annual rate increase on March 27 to help PG&E and Edison pay the bills. The rise isn't expected to cover all the power-buying costs. PG&E and Edison have delayed reporting fourth-quarter earnings because of their financial problems and haven't said when they'll report first-quarter results. Several suppliers agreed during the first quarter to sell electricity to California, which is buying on behalf of nearly bankrupt PG&E and Edison. The contracts' average price is less than half the average price utilities paid last year, but more than double the average price in 1999. In the fourth quarter, power suppliers, including Duke and Reliant, set aside money for bills they might not be able to collect from California customers. Duke offered in March to take less money if given guarantees of payment for the power it sold.

Summer Boost

California could endure blackouts this summer if more generation isn't built quickly. Generators may see even bigger profits th

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USA: UPDATE 1-Calif. bankruptcy ripples through utilities shares. Reuters English News Service, 04/06/2001

Pacific Gas and Electric Company Files for Chapter 11 Reorganization Business Wire, 04/06/2001 Transwestern Pipeline Company; Notice of Application Federal Register, 04/06/2001

USA: UPDATE 1-Calif. bankruptcy ripples through utilities shares.

04/06/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, April 6 (Reuters) - Shares of utilities companies paused, plummeted then pared losses after news on Friday that Pacific Gas & Electric, California's largest investor-owned utility, filed for voluntary bankruptcy, a victim the state's flawed deregulation law. Trade in shares of parent company PG&E Corp. were halted before the filing. When trading resumed, they fell 37.96 percent to \$7.06, off \$4.32, below its modern stock low of \$8.50. Shares in Edison International, California's other financially strapped utility, lost almost 30 percent of its value to trade down \$3.72 at \$8.92. Stocks of wholesale power suppliers with money owed to them at risk as a result of the California power crisis also fell sharply on the news but recovered slightly in later trade. "California is a problem that's going to be with us for quite some time, but these guys are going to benefit from the fact that rates were increased there recently and going forward they will benefit from power prices that are high relative to historical norms and eventually they are going to get paid on some of these receivables as well," said Dain Rauscher Wessels analyst Mark Easterbrook. Easterbrook said Duke Energy Corp., Dynegy Corp., Reliant Energy Inc. and Williams Cos. Inc. each had outstanding amounts of \$100 million or more owing to them as a result of the California power crisis, including a significant but as yet unquantified portions owed by Pacific Gas & Electric. Duke was down 4.74 percent or \$2.01 at 40.39 while Dynegy was off \$2.27 or 4.46 percent to 48.65, up from its low of \$46.35. "The market has taken than \$1 billion - more than threefold - off Dynegy's market capitalization even though its exposure to reserves is \$265 million," said James Yanello, analyst at UBS Warburg. Williams Cos. was down 96 cents or 2.32 percent lower at \$40.89 but off its low of \$39.60. "Enron, Williams and El Paso's exposure is very limited," said Yanello. Enron Corp. shares were down 2.6 percent or \$1.45 at \$54.25, off its low of \$53.20. "It's unfortunate that the state's largest utility was forced to turn to the court for a resolution. Solutions to the state's energy crisis have been available for months that would have avoided this scenario, but Governor Davis and the legislature lack the bold leadership to take swift, decisive action," spokesman Vance Meyer said. El Paso shares moved off its intraday low of \$63.03 to trade up 7 cents at \$63.10. Reliant Energy edged back up to \$43.51 or down 4.06 percent or \$1.84 after hitting an intraday low of \$42.65. (-Janet McGurty, New York Equities, +1 212 859 1765 janet.mcgurty@reuters.com). Copyright , 2000 Dow Jones & Company, Inc. All Rights Reserved.

Pacific Gas and Electric Company Files for Chapter 11 Reorganization

04/06/2001 Business Wire (Copyright (c) 2001, Business Wire)

SAN FRANCISCO--(BUSINESS WIRE)--April 6, 2001--Pacific Gas and Electric Company, the utility unit of PG&E Corporation (NYSE: PCG), today filed for reorganization under Chapter 11 of the U.S. Bankruptcy Code in San Francisco bankruptcy court. The company said it is taking this action in light of its unreimbursed energy costs which are now increasing by more than \$300 million per month, continuing CPUC decisions that economically disadvantage the company, and the now unmistakable fact that negotiations with Governor Gray Davis and his representatives are going nowhere. Neither PG&E Corporation nor any of its other subsidiaries, including its National Energy Group, have filed for Chapter 11 reorganization or are affected by the utility's filing. "We chose to file for Chapter 11 reorganization affirmatively because we expect the court will provide the venue needed to reach a solution, which thus far the State and the State's regulators have been unable to achieve," said Robert D. Glynn, Jr., Chairman of Pacific Gas and Electric Company. "The regulatory and political processes have failed us, and now we are turning to the court." Glynn added, "Our objective is to move through the Chapter 11 reorganization process as quickly as possible, without disruption to our operations or

inconvenience to our customers. Throughout this crisis, our 20,000 employees have been and remain committed to providing safe and reliable service to the 13 million Californians who depend on us to deliver their gas and electricity." Pacific Gas and Electric Company decided to file for the protection of Chapter 11 primarily due to:

- Failure by the state to assume the full procurement responsibility for Pacific Gas and Electric's "net open position" as was provided under AB1X. This has the result of increasing financial exposure to unreimbursed wholesale energy procurement costs, which the utility estimates to be approximately \$300 million or more per month.
- The impact of actions by the California Public Utilities Commission (CPUC) on March 27, 2001, and April 3, 2001, that created new payment obligations for the company and undermined its ability to return to financial viability.
- Lack of progress in negotiations with the state to provide recovery of \$9 billion in wholesale power purchases made by the utility since June 2000, which have not been recoverable in frozen rates.
- The adoption by the CPUC of an illegal and retroactive accounting change that would appear to eliminate our true uncollected wholesale costs.

"In addition, despite Pacific Gas & Electric's best efforts to work with the State of California to reach a consensual, responsible, fair and comprehensive solution to California's energy crisis, no agreement has been reached with the Governor and the Governor's representatives have dramatically slowed the pace and the progress of discussions over the past month. "Furthermore since last fall, we have filed comprehensive plans for resolving this matter with the CPUC, but they have not acted affirmatively on them," said Glynn. On October 4, 2000, Pacific Gas and Electric sought emergency rate action by the CPUC. In November 2000, we filed our rate stabilization plan, which, if adopted, would have increased electric prices by an initial 25 percent, compared with the 46 percent recently adopted by the CPUC. Neither request was acted upon. Had the state acted at that time:

- Pacific Gas and Electric would have been kept creditworthy;
- Pacific Gas and Electric would have been able to enter into long-term power purchase contracts at prices lower than those announced by the state;
- The state would not have had to almost exhaust the state's budget surplus by spending billions of dollars to purchase power for the utility's customers;
- The state would not now need to issue billions of dollars in bonds to cover these power purchases; and
- The state would not now be advancing a proposal to spend billions of dollars to purchase the state's three investor-owned utility's electric transmission systems.

"This year, the state has spent more than \$3 billion on power purchases and, with the CPUC, has arranged to be reimbursed for these expenses," noted Glynn. "In contrast, since June Pacific Gas and Electric Company has spent \$9 billion in excess of revenues to pay for power for its customers and exhausted its ability to continue borrowing, but there has been no prog

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Enron Mentions

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SEC Seeks Information on Enron Dealings With Partnerships Recently Run by F= astow The Wall Street Journal, 10/23/01 Where Did the Value Go at Enron? New York Times, 10/23/01 FRONT PAGE - FIRST SECTION: SEC probes Enron over financial dealings=20 Financial Times; Oct 23, 2001 COMPANIES & FINANCE THE AMERICAS: Group full of surprises after failing to = open up=20 Financial Times; Oct 23, 2001 Enron Discloses SEC Inquiry=20 The Washington Post, Oct 23, 2001

Enron Suffers After Unclear Disclosure, New York Times Says Bloomberg, 10/23/01

SEC asks Enron for investing data Houston Chronicle, 10/23/01

Minnesota Mining and GM Climb In a Rally That Builds Late in Day The Wall Street Journal, 10/23/01 WORLD STOCK MARKETS: Wall St bargain hunters counter earnings gloom AMERICA= S=20 Financial Times; Oct 23, 2001 Milberg Weiss Announces Class Action Suit Against Enron Corp. Business Wire, 10/22/01 Enron To Host Conference Call Tues 9:30 am EDT Dow Jones News Service, 10/22/01 Janus Had Biggest Enron Stake at End of 2nd-Quarter (Update1) Bloomberg, 10/22/01

Enron Says SEC Asks About Related-Party Transactions (Update9) Bloomberg, 10/22/01

Trusts Keeping Enron Off Balance TheStreet.com, 10/22/01

Why Enron's Writedown Unnerves Some Investors TheStreet.com, 10/22/01

SEC Seeks Information on Enron Dealings With Partnerships Recently Run by Fastow By Rebecca Smith and John R. Emshwiller Staff Reporters of The Wall Street Journal

10/23/2001 The Wall Street Journal A3 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Enron Corp. said it has been contacted by the Securities and Exchange Commission seeking information on the energy giant's controversial dealings with partnerships that were set up and run until recently by its chief financial officer, Andrew S. Fastow. Following Enron's announcement yesterday morning of the SEC inquiry, the company's stock took another big slide, falling more than 20% in New York Stock Exchange trading. As of 4 p.m., Enron shares were trading at \$20.65, off \$5.40, knocking about \$4 billion off Enron's market capitalization. Volume topped the Big Board's most-active list at about 36 million shares. A week ago, Enron stock was trading at about \$33 a share. Subsequently, the company announced a \$1.01 billion third-quarter write-off that produced a \$618 million loss. Analysts also voiced concerns yesterday about possible other bad news lurking amid Enron's vast and extremely complex operations. The company has dealings with a number of related entities. Under certain circumstances, if Enron's credit rating and stock price fall far enough, the company would be obligated to issue tens of millions of additional shares to these entities, diluting the holdings of current shareholders. Enron has previously acknowledged the provisions but said its business is strong and it feels confident that there will be no defaults. In a statement, Enron Chairman and Chief Executive Kenneth Lay said the company "will cooperate fully" with the SEC inquiry and "look(s) forward to the opportunity to put any concern about these transactions to rest." Enron has consistently said that it believes its dealings with the Fastow-related partnerships were proper and properly disclosed. The company has said it put billions of dollars of assets and stock into partnership-related transactions as a way to hedge against fluctuating market conditions. The SEC inquiry came from the agency's Fort Worth, Texas, regional office. According to a person familiar with the matter, this would indicate that the inquiry comes from the SEC's enforcement arm, as opposed to its corporate-finance section. The participation of the enforcement branch would indicate that the agency is looking into whether there were possible violations of securities law. However, enforcement-branch inquiries often don't produce any allegations of wrongdoing. It also appears that the SEC hasn't yet taken the step of launching a formal investigation, which would be a sign that the agency believes securities laws might have been violated. The SEC declined to comment. Certainly, there have been questions and concerns about those partnership transactions, which contributed to a \$1.2 billion reduction in shareholder equity last week as part of Enron's efforts to unwind the deals. Mr. Fastow, who has declined repeated interview requests, resigned from the partnerships, known as LJM Cayman LP and LJM2 Co-Investment LP, in late July in the face of rising conflict-of-interest concerns by Wall Street analysts and major company investors. Since then, internal partnership documents have shown that Mr. Fastow and perhaps a handful of Enron associates made millions of dollars last year in fees and capital increases as general partner of the LJM2, the larger of the two partnerships. Mr. Fastow's partnership arrangement caused some unhappiness inside Enron, according to people familiar with the matter. For instance, these people say, sometime after the creation of the partnerships in 1999, Enron Treasurer Jeffrey McMahon went to company president Jeffrey Skilling and complained about potential conflicts of interest posed by Mr. Fastow's activities. Mr. Skilling didn't share Mr. McMahon's concern, these people say, and Mr. McMahon requested and received reassignment to another post. Mr. Skilling resigned as Enron president and chief executive in mid-August, citing personal reasons and the fall in Enron's stock price, which peaked at about \$90 a share last year. Mr. McMahon and Mr. Skilling haven't responded to repeated interview requests. Investors are also

concerned about potential problems arising in Enron's dealings with other related entities. In some cases, Enron could be required to issue large amounts of stock to noteholders in some of the entities if certain so-called double trigger provisions occur. For example, last July Enron helped create the Marlin Water Trust II, which sold \$915 million in notes that are due July 15, 2003. However, Enron can be considered in default, in advance of that date, if its stock price falls below \$34.13 for three trading days and its senior debt is downgraded to below investment grade by either Moody's Investors Service or Standard & Poor's. Currently, Enron debt is still investment-grade at both ratings agencies and would have to be lowered by several notches to fall into a noninvestment grade category. Last week, Moody's put Enron on review for a possible downgrade. However, observers believe that even if Moody's lowers Enron's rating, the company will still be investment-grade.

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October 23, 2001 Where Did the Value Go at Enron? By FLOYD NORRIS New York Times What really went on in some of the most opaque transactions with insiders ever seen? Wall Street has been puzzling over that since Enron (news/quote</redirect=/marketwatch/redirect.ctx?MW=3Dhttp://custom.marketwatch.com/custom/nyt-com=/html-companyprofile.asp&symb=3DENE>) released its quarterly earnings a week ago. Yesterday shares in Enron plunged \$5.40, to \$20.65, after the company said that the Securities and Exchange Commission was looking into the transactions. The reaction was in some ways puzzling. Given the questions that have been raised since the earnings announcement - some of them prominently featured in The Wall Street Journal - it was likely that the S.E.C. would begin a preliminary inquiry. Whether it will go farther than that is not clear, but if nothing else the slide in Enron shares over the last week shows the hazards that can confront a company that allows word of a major reduction in its balance sheet value to dribble out.

Message 89 of 1299

Economist Letter

Sender rob.bradley@enron.com

Recipients ['dtheroux@independent.org', 'jeff.dasovich@enron.com']

File dasovich-j/all_documents/13225.

There might be some interest around here to help fund an anti-price cap letter or survey from members of the American Economics Association on price caps and what to do about the California power crisis. I believe you have done this sort of thing before on some other economics issues.

Do you want to price this out and test the waters to see if some others want to join in an effort?

- Rob

Robert L. Bradley Jr. Director, Public Policy Analysis Enron Corp. P.O Box 1188, Room 4741c [1400 Smith Street 77002] Houston, Texas 77251-1188

(P) 713-853-3062 (F) 713-646-4702

Assistant: Joan Stransky 713-853-7431 jstrans@enron.com

Message 90 of 1299

Class Registration

Sender jeff.dasovich@enron.com

Recipients ['tj@haas.berkeley.edu', 'dimeff@haas.berkeley.edu']

File dasovich-j/sent/4215.

Greetings TJ: Well I'm in a pickle. The memo you sent said we had from 11:30 AM to 10:00PM on 4.19, and from 7 AM to 9 AM on 4.20. But the documentation I received from Telebears said from 1 PM on 4.19 to 1 PM on 4.20. All that aside, I have obviously missed the times, it's my fault, and I apologize.

I spoke with Diane this morning and she suggested that I throw myself at the mercy of the court by writing you an email with my picks. Here they are:

Class Control # My Priority Units Competitive Strategy 09441 1 3 Negotiations 09514 2 3 Non-Profit Boards 09787 3 1 Financial Institutions and Markets 09472 4 3 Leadership and Change 09520 5 3

I'd like to take 7 units (2, 3-unit classes and the 1-unit class).

Sorry for the mix-up. Thanks very much for you help. If you have any questions, don't hesitate to contact me at 415.782.7822.

Best, Jeff

Message 91 of 1299

CIBO's NOx XIV/Permitting Hotel Extension

Sender	gail@cibo.org
Recipients	['jallen2@enron.com', 'jra4@cornell.edu', 'john_adams@fwc.com', 'jahoyt@tlna.com']
File	dasovich-j/all_documents/9332.

CIBO's NOx Control XIV Conference and Permitting Workshop is almost here -- March 12-15, 2001 in San Diego, CA.? The Radisson Hotel Mission Valley has extended the cut-off date until Friday, February 23rd.? This is your last chance to get a hotel room at the CIBO rate of \$105 single/double.? If you still need to make hotel room reservations, please call the hotel at 619-260-0111 or 1-800-333-3333.? Please be sure to mention "CIBO" when making your room reservations. If you would like more information about these meetings or would like to register on-line, please check out our web site at <www.cibo.org> or you can call our office at 703-250-9042. The agenda is full of interesting speakers; the tours will be great; the exhibit booths are filled and we have added some table top exhibits for sale so please call our office if you are interested. See you in San Diego!!

Gail Bessette Council of Industrial Boiler Owners 6035 Burke Centre Parkway, Suite 360 Burke, VA 22015-3757 Phone: 703-250-9042 * Fax: 703-239-9042WWW: <<http://www.cibo.org>>

Message 92 of 1299

RE: B-to-B

Sender	mike@perfect.com
Recipients	['jdasovic@enron.com', 'cameron@perfect.com', 'jeff.dasovich@enron.com']
File	dasovich-j/mba__e_commerce/21.

Cameron,

Will do....

Jeff, if you want to chat, I'll be happy to meet with you....in person or via phone. I've spent the past year and a half in the B-to-B space focusing on automated and electronic procurement processes.

My number is 650-858-1920.

Best Regards,

Mike D.

-----Original Message-----

From: Cameron Sellers Sent: Monday, March 20, 2000 1:12 PM To: Mike Davenport Cc: 'Jeff Dasovich'; 'Jeff.Dasovich@enron.com' Subject: FW:

The contact at Haas is Jeff Dasovich and his email address is Jeff.Dasovich@enron.com.

His work phone number (daytime) is: (415) 782-7822

Could you please send him the PRD as soon as you get it from Cheryl tomorrow.

Thank you so much!!

Cameron

Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.858.7719 (direct dial) 650.858.1095 (fax) 650.208.9455 (cell)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Monday, March 20, 2000 12:14 PM To: cameron@perfect.com Subject: RE:

already got the MRD. Just need the PRD. Tomorrow's just dandy.

Message 93 of 1299

Updated PRD...

Sender	mike@perfect.com
Recipients	['jdasovic@enron.com', 'cameron@perfect.com', 'jeff.dasovich@enron.com']
File	dasovich-j/mba__e_commerce/20.

Jeff,

Sorry for the delay in the sending the PRD. If you still want to chat tomorrow, feel free to give me a call. I am scheduled in multiple meetings throughout the day but will return your call if I am not at my desk.

My number is 650-858-1920.

Best Regards,

Mike Davenport

-----Original Message-----

From: Cameron Sellers Sent: Monday, March 20, 2000 1:12 PM To: Mike Davenport Cc: 'Jeff Dasovich'; 'Jeff.Dasovich@enron.com' Subject: FW:

The contact at Haas is Jeff Dasovich and his email address is Jeff.Dasovich@enron.com.

His work phone number (daytime) is: (415) 782-7822

Could you please send him the PRD as soon as you get it from Cheryl tomorrow.

Thank you so much!!

Cameron

Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.858.7719 (direct dial) 650.858.1095 (fax) 650.208.9455 (cell)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Monday, March 20, 2000 12:14 PM To: cameron@perfect.com Subject: RE:

already got the MRD. Just need the PRD. Tomorrow's just dandy.

- PRD Final Version 1.0.0.doc

Message 94 of 1299

Re: Class Registration

Sender	tj@haas.berkeley.edu
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4109.

No pickle at all. I have your e-mail

AND

will you please register tonight sometime between 7 pm and midnight, open hours. Or, at the latest 7-8 am on Monday morning.

TJ

At 03:40 PM 4/20/01 -0500, you wrote:

Greetings TJ: Well I'm in a pickle. The memo you sent said we had from 11:30 AM to 10:00PM on 4.19, and from 7 AM to 9 AM on 4.20. But the documentation I received from Telebears said from 1 PM on 4.19 to 1 PM on 4.20. All that aside, I have obviously missed the times, it's my fault, and I apologize. I spoke with Diane this morning and she suggested that I throw myself at the mercy of the court by writing you an email with my picks. Here they are: Class Control # My Priority Units Competitive Strategy 09441 1 3 Negotiations 09514 2 3 Non-Profit Boards 09787 3 1 Financial Institutions and Markets 09472 4 3 Leadership and Change 09520 5 3 I'd like to take 7 units (2, 3-unit classes and the 1-unit class). Sorry for the mix-up. Thanks very much for you help. If you have any questions, don't hesitate to contact me at 415.782.7822. Best, Jeff

Message 95 of 1299

Re: Still nothing on the gas meeting?

Sender	jeff.dasovich@enron.com
Recipients	['scott_sullivan@enron.com', 'joseph.alamo@enron.com']
File	dasovich-j/sent/4745.

Greetings. Forgive the delays. The meeting can largely be summarized by the CEC presentation. I'll have Joseph email it to you. In a nut shell, there's more interstate pipeline coming to the California border than there is INTRAsate capacity to take it from the California border to the consumer/business. The CEC's forecasts show that things will be tight in California. The thrust of the workshop is that, just like power plants, intrastate pipeline capacity is lagging demand in California and California needs to make a concerted effort at revitalizing the in-state gas infrastructure and do it quickly. Hope this is helpful, and again, sorry for the delay.

Best, Jeff

Joseph Alamo 05/29/2001 12:01 PM

To: Jeff Dasovich/NA/Enron cc: Subject: Still nothing on the gas meeting?

Jeffrey.....????? ----- Forwarded by Joseph Alamo/NA/Enron on 05/29/2001 10:00 AM -----

From: Scott Sullivan/Western Region/The Bentley Company@Exchange on 05/29/2001 11:54 AM CDT To: Joseph

Alamo/NA/Enron@Enron cc:

Subject: Still nothing on the gas meeting?

R. Scott Sullivan Account Manager Enron Energy Services 12467 Alcosta Blvd. Suite 500 San Ramon, CA 94583 direct: (925) 543-3870 cell: (707) 631-5668 fax: (925) 543-0050 pager: (877) 348-8934 pager e-mail: 8773488934@skytel.com scott_sullivan@enron.com

"Failure is the opportunity to begin again, more intelligently." - Henry Ford

Message 96 of 1299

Re: California in the Dark - CERA Alert

Sender	lora.sullivan@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4858.

Jeff -- I originally contacted Mr. Yergin -- see address below:

Mr. Daniel Yergin c/o CERA Cambridge Energy Research Associates 20 University Road Cambridge, MA 02138-5756
617-497-6446 617-576-6848 (fax) DanielYergin@CERA.com Ass=01,t: Jerry 202-463-8222 (DC office phone)
202-363-5323 202-363-3443

Lora

=09Jeff Dasovich =09Sent by: Jeff Dasovich =0903/20/2001 10:59 AM =09=09 =09=09 To: Lora
Sullivan/Corp/Enron@ENRON, Ginger Dernehl/NA/Enron@Enron, E= lizabeth=20 Linnell/NA/Enron@Enron =09=09
cc:=20 =09=09 Subject: Re: California in the Dark - CERA Alert

Is it possible to get a login ID and password to get into the CERA site?

Best, Jeff

=09Lora Sullivan =0903/20/2001 07:46 AM =09=09=20 =09=09 To: Linda Robertson/NA/Enron@ENRON, Tom
Briggs/NA/Enron@Enron, Jeff= =20 Dasovich/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron =09=09 cc:=20
=09=09 Subject: California in the Dark - CERA Alert

Title: California in the Dark URL: <http://www20.cera.com/eprofile?u=3D35&m=3D2302>

In a recent Washington Post op-ed piece, Dan Yergin and Larry Makovich=20 discuss the continued mess of California's
electric power problems. Rather= =20 than fixing the flaws, the current policies from Sacramento are moving=20 California
down the road to an expensive public power setup and higher prices=20 for consumers and businesses. And the
shortage is going to get worse this= =20 summer.

end

Follow above URL for full report.

E-mail Category: Alert CERA Knowledge Area(s): Global Energy,

Message 97 of 1299

Free Food and Booze during 2/13 Break

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/all_documents/8934.

OK, perhaps not the booze, unless you're up for a keg of O'Doul's, but definitely the pizza and soft drinks. Just a reminder that I am facilitating an Evening MBA Career Services Planning Session next Tuesday, 2/13 in the Career Center Conference Room (S420) during class break.

Last week John Morel received some good feedback regarding how the Career Center can cater to the needs of EvMBA students. I would like to continue on that path with those of you who weren't able to attend on 1/31. Input from both sessions will assist John and the account managers structure and prioritize programs to meet our career-related needs (e.g., EvMBA Resume Book, on-campus company visits during class breaks, networking events at a student's company, internships, etc.). Since John will not be attending, please direct any questions specifically for him using the contact info below.

Of course, if you cannot attend, feel free to send me your comments and recommendations. Following is a link to the Career Center in case you're not familiar with its offerings:

<http://www.haas.berkeley.edu/careercenter/mba.html>

See you next Tues.,

Albert Demery EvMBA Class of 2003

415.277.4007 direct 415.217.8668 fax 415.505.5948 mobile Mailto:ademery@ixl.com

John Morel Associate Director of Career Services Evening MBA's and MBA Alumni Haas School of Business University of California, Berkeley 420 Student Services Building # 1900 Berkeley, California 94720 Ph (510) 642-7731 Fax (510) 642-9387 morel@haas.berkeley.edu <http://www.haas.berkeley.edu/careercenter/mba.html>

Message 98 of 1299

Re:Financial Info Analysis

Sender	mark_guinney@watsonwyatt.com
Recipients	[jdasovic@enron.com], 'chin@haas.berkeley.edu', 'cvavrek@deloitte.com']
File	dasovich-j/notes_inbox/5559.

Congratulations. Question: If you delivered on Friday then what is your excuse for missing Thursday class? Actually, I'm surprised it took so long. Glad to hear you are well and back home.

Our group includes: Anil, Ted Chin, you, Jeff Dasovich, and me.

Will be starting the first assignment tonight.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator _____ Subject: Financial Info Analysis Author: "Vavrek; Carolyn (US - San Francisco)" <SMTP:cvavrek@deloitte.com> Date: 01/30/2001 5:05 PM

Hi guys - Well, my little bundle of joy arrived in the world on Friday am. Her name is Zo% Nicole and she is very sweet. I am finally home from the hospital (I had to have an emergency c-section so they kept me longer than expected).

I was wondering if you formed a group for FIA class? I just e-mailed the instructor that I would miss class this week and asked to be excused from the first assignment. I would like to stay on track after that, starting with Case Write-Up #2. What is your plan for this class and these case write-ups?

- cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

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Message 99 of 1299

Teleconference: CALIFORNIA POWER CRISIS UPDATE

Sender	jennifer.rudolph@enron.com
Recipients	['ca.team@enron.com', 'mary.rose@enron.com']
File	dasovich-j/all_documents/12596.

If anyone is interested, the call-in information is listed below in red (thanks, Mary Sue, for the lead!)

----- Forwarded by Jennifer Rudolph/HOU/EES on 05/16/2001=

=20 09:11 AM -----

Mary Sue Rose 05/16/2001 09:06 AM To: Jennifer Rudolph/HOU/EES@EES cc: =20 Subject: Teleconference: CALIFORNIA POWER CRISIS UPDATE

FYI

Teleconference:

CALIFORNIA POWER CRISIS UPDATE Wednesday, May 16, 2001 2:00PM (New York Time)

Dear Client:

Moody=01,s has scheduled a teleconference to discuss the California power= =20 crisis including : Moody=01,s recent downgrade of California=01,s Gener= al=20 Obligation bond rating; update on the State=01,s Power Purchase Revenue = Bonds=20 and the credit position of SCE and PGE. Renee Boicourt, Managing Director= ,=20 Public Finance Group and the lead credit analysts for California, Ray Murp= hy=20 and Tim Blake , AJ Sabatelle, lead credit analyst for PGE and SCE and , Da= n=20 Aschenbach, Senior Vice President, Infrastructure Finance Group will=20 participate in the call.

Key highlights of the discussion will include:

California Power Crisis Update State of California General Obligation Credit Update PGE and SCE credit update State Power Purchase Revenue Bonds

The analysts will provide a 20-minute presentation and afterwards respond t= o=20 questions from investors.

To participate in the teleconference, please dial in 5 minutes prior to the= =20 start of the call.

The dial in numbers are:

US & Canada: (888) 921-6949 Outside US: (712)-271-3641 Password: California

If you are unable to participate in the live call, a replay will be availab= le=20 through June 16, 2001 by dialing: US & Canada: 800-944-3543 Outside US: 402-998-1738 (No password is necessary).

For more information, contact Jennifer Davis at 212-553-7905.

Message 100 of 1299

Re:	
Sender	madeleinet@earthlink.net
Recipients	[jdasovic@enron.com]
File	dasovich-j/all_documents/582.

I am so sorry for the delay! I wanted to make sure I had a better idea of my schedule. I am thinking the following..either the weekend of the 8th, 9th; the 29th or 30th. I may go to Chicago the 15th or 22nd which I'll know about within the next couple of days thus one more weekend may open up. What are your thoughts? Do you want to check Lari's schedule? Anyone else we should ask?

We missed you on Sunday. The whole gang was there minus Lisa. Carl leaves in 2 weeks. They decided to move because he felt his career with the City would never go where he wanted it to go. I can explain the rest later.

Madeleine

jdasovic@enron.com wrote:

Hello out there. Hello? Madeleine Todd <madeleinet@earthlink.net> on 06/05/2000 11:01:26 PM To: Jeff Dasovich <jdasovic@enron.com> cc: Subject: Re: Jeff: Well June appears to be shot already! I had to move a couple of things into the weekend of the 23 & 24th. Did you have your heart set on June? Could you do something in July? What days were you thinking Fri, Sat and Sunday? Keep me posted. Carl's sudden move is a mystery to me. I thought he was going to wait a few years to move to SD but then I got Kari's e-mail. I know he and Carol have had their eye on SD for sometime. I guess we'll find out on the 11th! Keep me posted on RRR, Madeleine Jeff Dasovich wrote: > Hi Darlin': > I'm back. Have we picked a weekend to ride with Lari? What's this about Carl > moving????? I thought he just bought a house? > > Signed, > Confused -- Madeleine Todd Executive Recruiting 1329 Taylor Street, Suite 114 San Francisco, CA 94108-1047 phone: 415-441-7010 fax: 415-441-7173 email: madeleinet@earthlink.net

--

Madeleine Todd Executive Recruiting 1329 Taylor Street, Suite 114 San Francisco, CA 94108-1047 phone: 415-441-7010 fax: 415-441-7173 email: madeleinet@earthlink.net

Message 101 of 1299

Government Affairs-The Americas Dept. Meeting - December 8, 2000	
Sender	ginger.dernehl@enron.com
Recipients	['alberto.levy@enron.com', 'assad@elektro.com.br', 'alan.comnes@enron.com']
File	dasovich-j/all_documents/4022.

The next Government Affairs-The Americas meeting will soon be upon us. Dinner at Ruggles Restaurant, Enron Field, Thursday, December 7 will begin at 7:00pm and will be casual dress. For those of you staying at the Doubletree, there is shuttle service available from the hotel. Please contact the Concierge desk 25 minutes before departure to request the shuttle service. The address for the restaurant is: 333 Crawford Street, Houston, TX 77002 (713)259-8080.

The department meeting on Friday, December 8 will begin at 8:30am and conclude by 3:00pm and will take place at the Doubletree Hotel in the De Zavala room (please see attached agenda). It's Friday, so casual dress is required! A continental breakfast will be available beginning at 7:30am for all the early birds.

One last thing, the room block will be cut off by close of business tomorrow, Thursday, November 30. Please make your room reservation if you haven't done so already.

Look forward to seeing everyone next week and please call me with any questions.

gngr 713-853-7751

----- Forwarded by Ginger Dernehl/NA/Enron on 11/29/2000 02:56 PM -----

Ginger Dernehl 10/30/2000 12:05 PM

Government Affairs-The Americas Dept. Meeting - December 8, 2000

The next Government Affairs-The Americas meeting will be held in Houston, TX at the DoubleTree Hotel on Friday, December 8, 2000. A block of rooms has been reserved under "Enron Corp - Government Affairs" and each individual is required to make their own reservation. The group dinner will be held on Thursday, December 7 at Ruggles Restaurant, Enron Field at 7:00pm. Please let me know of your plans to attend the dinner and meeting by Wednesday, November 15.

Hotel information below:

DoubleTree Hotel 400 Dallas Street Houston, TX 77002 713-759-0202 Phone # 713-654-0727 Fax#

Additional information regarding the meeting will follow, but please remember to make your reservation and call me if you have any questions.

gngr 713-853-7751

Message 102 of 1299

TARL Agenda for Wednesday March 14

Sender	wayne.gardner@enron.com
Recipients	['alisa.christensen@enron.com', 'beth.wapner@enron.com']
File	dasovich-j/all_documents/9793.

The details of the time and place for the meeting are forthcoming (as soon as my assistant arranges everything).

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532 ----- Forwarded by Wayne Gardner/Enron Communications on 09/03/2001 11:25

Wayne Gardner 09/03/2001 11:17

To: Alisa Christensen/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, David DeGabriele/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, James Ginty/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jeff Dasovich/NA/Enron@ENRON, Lara Leibman/Enron Communications@Enron Communications, Michelle Hicks/Enron Communications@Enron Communications, Mike Dahlke/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Paul Racicot/Enron Communications@Enron Communications, Rajen Shah/LON/ECT@ECT, Richard Anderson/Enron Communications@Enron Communications, Robbi Rossi/Enron Communications, Sue Nord/NA/Enron@ENRON, Vicky Gregorcyk/Enron Communications@Enron Communications, Xi Xi/Enron Communications cc: Subject: TARL Agenda for Wednesday March 14

Below is the proposed agenda for the next TARL meeting:

1. Discussion of Singapore license fee response from IDA (All)
2. Follow-up on preliminary tax analysis of trading Hong Kong bandwidth through other trading desk entities (Wayne Gardner)
3. Licensing of EBS L.P. for trading Canadian bandwidth (Sue Nord)

4. Status of bandwidth trading in Latin America. (Sue Nord and Wayne Gardner)

5. Licensing the US and UK trading desks (in addition to the Singapore desk) to trade in Asia and Latin America. (Jan Haizmann and Sue Nord)

As always, comments are welcome.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 103 of 1299

Newly Revised Home Depot Memo - REVIEW AGAIN

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5394.

I just got changes from Anil that showed me the message I sent last night did not pick up my final version of the document for some entirely bizarre reason (perhaps I had the file open when I attached the document and it only sent the most recently saved version?).? Here is the file again - please review and let me know if okay to finalize.

Sorry for this confusion!

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Mark Guinney [mailto:Mark_Guinney@watsonwyatt.com] Sent: Thursday, February 08, 2001 6:27 AM To: Jeff.Dasovich@enron.com; cvavrek@deloitte.com Cc: asama@yahoo.com Subject: Re[2]: Home Depot Memo - Revised

I don't think it frees up any money.? The footnote is only indicating that they have \$50 million in lease obligations for the upcoming year.? I may be missing something but what this would potentially affect is the asset turnover and leverage ratios since non-capitalized leases are off-balance sheet items and so don't get included in the Total Assets category.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA? 94104 (415) 733-4487 ph. (415) 733-4190 fax

_____.Reply Separator_____ Subject:??? Re: Home Depot Memo - Revised Author: Jeff.Dasovich@enron.com Date:?????? 02/08/2001 11:13 AM

Gang: Quick question.? Does the lease-buy-back free up \$50M of funds for 1987? Mark, is that captured in the 1987 cash flows?? Don't think that should change our recommendation, but ran across it in the case and was wondering if we captured it.

Best, Jeff - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law.? - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

?

? - memo on home depot.doc

Message 104 of 1299

Trading in Asia	
Sender	wayne.gardner@enron.com
Recipients	['alisa.christensen@enron.com', 'beth.wapner@enron.com']
File	dasovich-j/notes_inbox/5382.

FYI

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532 ----- Forwarded by Wayne Gardner/Enron Communications on 08/02/2001 18:28

Wayne Gardner 08/02/2001 09:24

To: Paul Racicot/Enron Communications@Enron Communications cc: James Ginty/Enron Communications@Enron Communications Subject: Trading in Asia

Paul, as we discussed this morning, Regulatory is telling us that it is likely that we will be able to establish a regional trading desk in Singapore that will hold all the licenses necessary to trade in all of the priority countries in Asia. Regulatory expects to receive confirmation next week that the 1% annual Singapore telecom license fee will apply only to Singapore bandwidth. Given that Asia trading will be centralized in Singapore, we want to make sure that the activities of traders outside of Singapore do not cause the Singapore trading operations to be subject to tax outside of Singapore. In this regard, Asia traders should keep in mind the following general rules:

Traders that regularly engage in the execution of trades outside of Singapore will create a taxable presence outside of Singapore that will likely result in double taxation. Traders that regularly engage in the negotiation of trades outside of Singapore will create a significant risk that local tax authorities will assert that such activities created a taxable presence outside of Singapore that would likely result in double taxation. EBS Tax would want to monitor such a situation very closely, so please let us know immediately if these circumstances arise. Traders engaging only in the solicitation of business and the provision of product information (including pricing) outside of Singapore will not create a taxable presence outside of Singapore. In this regard, please note that even if traders restrict themselves to business solicitation, a large scale presence in any given country could attract the attention of the tax authorities who may adopt aggressive positions with regard to the creation of a taxable presence.

When in doubt as to the application of these general rules to a specific situation, please do not hesitate to call.

Thanks.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 105 of 1299

RE: Job candidates for Enron	
Sender	jeff.dasovich@enron.com
Recipients	['James Bushnell', 'borenste@haas.berkeley.edu']
File	dasovich-j/sent_items/2317.

Thanks. If we ever get out of this mess, you can rest assured that I'll help out. Can you remind again right after the first of the year, at which time we should have a better idea of where this ship is heading? Thanks.

Best, Jeff

-----Original Message-----

From: Severin Borenstein [mailto:borenste@haas.berkeley.edu] Sent: Friday, November 23, 2001 9:02 PM To: Dasovich, Jeff Cc: James Bushnell Subject: Job candidates for Enron

Hi Jeff:

I'm not sure if hiring is an issue these days for you, but I wanted to let you know that Jim Bushnell and I will be again teaching a course at Berkeley this spring called "Energy Market Strategies and Policies." The course is cross-listed between the Haas School of Business and the Energy & Resources Group (ERG) at UC Berkeley.

The course is currently limited to 42 students, but it is already over-subscribed, so we are trying to move it to a larger classroom. We'll have mostly MBA students from Haas, but also about a dozen masters students from ERG. There are also usually at least a few PhD students. The students in the class are were very smart -- many of them already have experience in the energy industries -- and we believe the course puts them in a position to immediately contribute to any energy-related organization that they would join. You can see a copy of last year's course syllabus at <http://www.haas.berkeley.edu/~borenste/EnergyMarketsSyllabus.pdf>

Many of these students are interested in either summer or permanent employment starting as early as May. If you have openings that you would like to advertise to these students, please let me know. We will be setting up a webpage with job announcements in energy-related organizations. If you send me a job description (or the URL for it), I can add it to the webpage.

Talk to you soon, Severin

Severin Borenstein

E.T. Grether Professor of Business Director Administration and Public Policy U.C. Energy Institute Economic Analysis & Policy Group 2539 Channing Way Haas School of Business Berkeley, CA 94720-5180 University of California (p) 510-642-5145 Berkeley, CA 94720-1900 (main line) 510-642-9588 (p) 510-642-3689 <http://www.ucei.org> (f) 707-885-2508

Email: borenste@haas.berkeley.edu WWW: <http://haas.berkeley.edu/~borenste>

Message 106 of 1299

Re: Follow up conference call

Sender	jeff.dasovich@enron.com
Recipients	[' wanda.curry@enron.com ', ' diann.huddleson@enron.com ', ' harry.kingerski@enron.com ', ' evan.hughes@enron.com ']
File	dasovich-j/all_documents/11976.

I apologize, but I can't make this call, though I'm confident that you folks can handle it. I'm available Friday afternoon (though I don't that will work for Jim Steffes). Let me know.

Best, Jeff

Wanda Curry@EES 05/02/2001 10:07 AM

To: Robert C Williams/ENRON@enronXgate, Harry Kingerski/NA/Enron@Enron, Michael Tribolet/ENRON@enronXgate, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Evan Hughes/HOU/EES@EES, Diann Huddleson/HOU/EES@EES, Mary Lynne Ruffer/HOU/EES@EES cc: Subject: Follow up conference call

I have sent Janet Covington the participant list as requested per her e-mail below. She has agreed to set up the conference call for Thursday, May 3rd at 3 PM central time. Please reserve this time. I will forward each of you the spreadsheet we receive from them today. I will let you know if I think we should get together to review the spreadsheet prior to the call.

Thanks,

Wanda Curry ----- Forwarded by Wanda Curry/HOU/EES on 05/02/2001 09:58 AM -----

Diann Huddleson 05/02/2001 08:01 AM To: Wanda Curry/HOU/EES@EES cc: Subject: Follow up conference call

Wanda, I spoke with Janet after you forwarded her voice mail. I told her we would provide the participant list this morning. Let me know if you want me to do that.

----- Forwarded by Diann Huddleson/HOU/EES on 05/02/2001

08:00 AM -----

Janet.Covington@sce.com on 05/01/2001 03:46:06 PM To: dhuddles@enron.com cc: Subject: Follow up conference call

Hi Diann,

I just left a phone message for Wanda as I didn't have her email and was supposed to coordinate the follow up call with her. Anyway, we are still working on preparing the account examples demonstrating the change in methodology and should have those to you by tomorrow. In the meantime, I wanted to go ahead and arrange the follow up call for this Thursday 5/3 at 1pm PST. That would be 3pm your time. Can you please let me know the email addresses for your participants so I can get a notice out to them.

I had yourself, Wanda Curry, Evan Hughes, Jeff Dodson, Bob Williams, Jim Doth, and Martin Curtilan? Not sure of the spelling. Please let me know so I can send out the meeting notice out with the call in details.

Thanks Much.

Janet L. Covington Account Manager ESP/AMS Services Division SSID Administration Bldg., First Floor 7300 Fenwick Lane Westminster, CA 92683 Phone: 714-895-0198 (54198) Fax: 714-895-0347 (54347) covingjl@sce.com

Message 107 of 1299

CHANGE #2 TO TAR&L MEETING-CANCELLATION

Sender	angie.buis@enron.com
Recipients	['wayne.gardner@enron.com', 'donald.lassere@enron.com', 'sue.nord@enron.com', 'michelle.hicks@enron.com']
File	dasovich-j/all_documents/3997.

Ladies & Gentlemen:

I apologize for the confusion regarding this meeting but we are now going to call off Monday's meeting (12/4) and just stick to the one already scheduled for Thursday, December 7th. This meeting will be held in 43C1 and the call in numbers remain the same as listed below.

Once again, there will be no November 30th or December 4th TAR&L meeting. Please call me at 37097 if I may be of further assistance.

----- Forwarded by Angie Buis/Enron Communications on 11/29/00 12:43 PM -----

Due to the unavailability of several players, we would like to move the November 30th TAR&L meeting to Monday, December 4th, 8:30-noon in conference room EB14C1. Please advise if you are unable to attend at this time.

Thank you!

Angie Buis x-37097 ----- Forwarded by Angie Buis/Enron Communications on 11/28/00 08:38 AM -----

Angie Buis 11/27/00 02:40 PM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron

Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Ban Sharma/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Richard Anderson/Enron Communications@Enron Communications cc: Wayne Gardner/Enron Communications@Enron Communications Subject: TAR&L MEETING - NOVEMBER 30TH

The next TAR&L meeting will take place on Thursday, November 30, 8:30 a.m. to 12:00 noon, in conference room EB43C1. Breakfast will be provided. The call-in information is listed below.

International Participants: (304) 345-7526 Domestic Participants: (888) 271-0949 Passcode: 589792

Host (Houston) number: (888) 271-0949 Passcode: 281574

I have arranged for 4 domestic and 2 international ports. Should extra ports be required, all the person will need to do is dial the appropriate number listed above.

Additionally, we have scheduled another TAR&L meeting for Thursday, December 7th, same location, time and dial in numbers.

Should you have questions regarding any of the above, please do not hesitate to call me at extension 37097.

Thanks.

Angie Buis EBS-Tax

Message 108 of 1299

Your Order Confirmation

Sender	orders@acteva.com
Recipients	['jdasovic@enron.com']
File	dasovich-j/notes_inbox/447.

Thanks for using Acteva for your recent order! This message contains a summary of your online transaction completed on September 14, 2000. Please keep this as your order confirmation.

What: LOTTERY REGISTRATION: THE 2000 LEADING EDGE TECHNOLOGY CONFERENCE

Qty: 1 registration for "Saturday Ticket" at \$0.00 each For: Jeffrey Dasovich

Total Purchase Amount: No Charge Date Of Event: Sep 22, 2000 to Sep 23 2000 Time: 5:00 PM to 7:00 PM Location: Haas School of Business, University of California, Berkeley, Berkeley, CA, 94720

Directions: <http://www.theleadingedge.org/2000/gettingthere.html>

Reservation Reminder:

Transaction Number: 96550 Order Number: 8131QKCM20009141651 Credit Card Confirmation Code: No Charge

Leading Edge 2000 - Haas School of Business Purchase/Refund Policy: Please contact the Event Organizer for refund policy.

Acteva's Purchase/refund policy: Refunds and cancellations are provided only at the discretion of the organization hosting or sponsoring this event. Acteva, Inc. issues credits only when directed to do so by the sponsoring organization. Contact the sponsoring organization for further details.

Although the event organizer sets the basic refund policy, in the event of cancellation, Acteva works closely with the organizer to assure you of an appropriate credit, exchange, or refund.

Organizer Contact Information: Leading Edge 2000 - Haas School of Business Haas School of Business #1900, Attn: Darin Boyd Berkeley, CA, 94720

Return to the event listing: <http://www.acteva.com/booking.cfm?binid=1&bevoid=8131>

Want to invite friends or colleagues to this event? Click this URL to email them an invitation message:
http://www.acteva.com/services/previte/invite_friend.cfm?txnumber=96550

Or forward this URL to them: <http://www.acteva.com/booking.cfm?binid=1&bevoid=8131>

If you have any questions regarding your order, contact Acteva's Customer Service Department at service@acteva.com or call them toll free at (877) 855-8646. Please refer to the transaction number above.

From time to time you may receive emails from Leading Edge 2000 - Haas School of Business. If you do not wish to receive these emails, send a message to removeme@acteva.com, and we will remove you from the list.

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<http://www.acteva.com> info@acteva.com (877) 849-8646 (415)401-2200

Message 109 of 1299

Message from Mike Heinrich: Congestion Management Through Market s

Sender	btardio@apx.com
Recipients	[' david-bobo@hlp.com ', ' hharris@coral-energy.com ', ' bbowman@coral-energy.com ', ' mheinrich@apx.com ']
File	dasovich-j/notes_inbox/5296.

<<...>>

5201 Great America Parkway, Suite 522 Santa Clara, CA 95054 408 517-2100 408 517-2985 fax

Dear Colleague,

As your may be aware, we have invited you and your company to an extremely important meeting on February 21, 2001 at the APX headquarters in Santa Clara to discuss a solution to the critical problem we have today in our California market regarding congestion management and CAISO schedule cuts. This problem is costing us millions of dollars today and continued pro-rata schedule cuts as a method of congestion management will escalate substantially to well over \$100,000,000 and could even rise above that before the end of this year.

Since the California Power Exchange no longer operates an adjustment bid portfolio market to manage congestion, APX has discussed the potential of operating a similar market with the CAISO. Technically, our solution is sound and the CAISO endorses this market. APX is uniquely capable of developing this market as an interim solution until the California ISO settles on its longer term congestion reform methodology. Without this market, we all stand to lose millions of dollars by having schedules cut by the CAISO because there are no other short term alternatives to congestion management. The investment we will require from you to develop this interim solution will be minor compared to the financial impact without it.

We are asking you to attend this meeting and to confirm your desire to see such a solution provided by APX. Ultimately we will seek financial commitments prior to developing the solution but believe it is feasible to have it in place well before the summer season. Due to its interim nature we will seek a flat fixed fee such that its planned abandonment will not negatively impact APX with the more permanent change to congestion management that will eventually be implemented by the CAISO.

The attached agenda provides an updated outline of our planned activities. These include a brief introduction and review of why this is important to California market participants and the impact of doing nothing, an overview of how such a market will work, and a presentation by the CAISO regarding integration issues with current CAISO congestion management procedures.

We welcome your participation in this most important meeting next week and look forward to your commitment to a successful resolution of this situation.

Sincerely,

Michael L. Heinrich John Stremel Vice President Vice President

<<Agenda 02_15_2001.doc>> Barbara Tardio Department Administrator Automated Power Exchange 5201 Great America Parkway Suite 522 Santa Clara CA 95054 408 517-2153 425 940-7850 (e-fax)

- Agenda 02_15_2001.doc

Message 110 of 1299

Draft response to CMUA paper

Sender	jeff.dasovich@enron.com
Recipients	['paul.kaufman@enron.com', 'harry.kingerski@enron.com', 'karen.denne@enron.com']
File	dasovich-j/sent/771.

----- Forwarded by Jeff Dasovich/NA/Enron on 10/25/2000 12:22 PM -----

Mary Hain@ECT 10/25/2000 11:01 AM

To: James D Steffes/NA/Enron@Enron, jdasovic@ees.enron.com, Mona Petrochko, Susan J Mara/SFO/EES@EES, Sarah Novosel/Corp/Enron@ENRON, Joe Hartsoe@Enron, Dennis Benevides, Tim Belden/HOU/ECT@ECT, Cooper Richey/PDX/ECT@ECT, Robert Badeer/HOU/ECT@ECT, Jeff Richter/HOU/ECT@ECT cc: Subject: Draft response to CMUA paper

The attached draft answers the California Municipal Utilities Association complaint that California markets are not workably competitive and therefore FERC should establish cost-based rates. In its complaint, CMUA argued that the market isn't workably competitive because the prices were higher this summer than in previous years even in hours where demand was no higher. Seabron's paper shows that high prices have resulted from a number of unrelated structural and market design factors and increasing attempts at regulatory intervention. Our answer is due at FERC tomorrow so please get me your comments ASAP. ----- Forwarded by Mary Hain/HOU/ECT on 10/25/2000 08:48 AM

Enron Capital & Trade Resources Corp.

From: "Sabine Schnittger" <Sabine.Schnittger@frontier-economics.com> 10/25/2000 08:23 AM

To: "Mary C Hain" <mary.hain@enron.com> cc: Subject: Draft response to CMUA paper

Mary:

Please find attached a first draft of Enron's response to the CMUA, please let us know your comments.

Seabron can be contacted on his cell-phone (617 513 5904) this morning, but will be in the office at noon. Alternatively, you could pass on comments to me.

Are you or is one of our staff able to assist us with a reference to the claim that hydro water levels were low in California this year?

Best wishes,

Sabine.

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

Sabine Schnittger Managing Consultant Frontier Economics Two Brattle Square Cambridge, MA 02138 Office tel: (617) 354-0060 Office fax: (617) 354-0640 Mobile: (617) 480-5992 Email: sabine.schnittger@frontier-economics.com
<http://www.frontier-economics.com>

- 00-10-26-SA-SS draft.doc

Message 111 of 1299

AReM/WPTF Comments on Draft Decisions Regarding PX Credit and

Sender	susan.mara@enron.com
Recipients	[' robert.williams@enron.com ', ' steven.kean@enron.com ', ' jeff.dasovich@enron.com ', ' james.steffes@enron.com ']
File	dasovich-j/all_documents/28049.

Dan Douglass has drafted joint comments for two coalitions in which Enron is a member -- Alliance for Retail Energy Markets and Western Power Trading Forum. Robert, feel free to contact Dan directly with your comments. Let me know your thoughts as well. I am out of the office at a WPTF meeting. Dan is here as well. If you need to contact me, you can leave me a message on my office phone or try my cell (415 -- 902-4108), but I'm not sure the cell is working all the time.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/22/2001 07:35 AM -----

"Dan Douglass" <douglass@energyattorney.com> 06/20/2001 10:59 PM

To: "ARM" <arem@electric.com> cc: Subject: Comments on Draft Decisions Regarding PX Credit and Direct Access

Attached for your review and comment is my first draft of comments to be filed on Monday with regard to the draft decisions of ALJ Barnett and Commissioner Bilas.? Please review it carefully, as I have thrown in everything I can think of on a rush basis, and it may require some significant editing.? Pay particular attention to Section V dealing with Bilas' request for parties to discuss alternatives to DA suspension.? The draft offers a compromise to the DWR's concerns, as expressed in the Angelides memo.? Also, notice that Section VI urges the Commission to bifurcate the DA and PX credit issues, acting quickly on the first, if it must, but more leisurely on the PX credit subject. ? Finally, I have a suggestion?in the form of a question.? How would AReM members feel about making this a joint filing with WPTF?? There is cross-membership between the two groups and the same issues would be raised in the separate filings which I am otherwise prepared to draft.? This draft would requires some modifications so as to refer to the "Joint Parties" as opposed to solely mentioning AReM, and I might? add a section dealing more explicitly with WPTF's contribution to getting the zero minimum bill stipulation signed in the first place.? Otherwise, the document would stay much as it is (subject to your input over the next few days, of course).? Please let me know what you think asap, as I am already working on a WPTF draft.? Incidentally, I will also be filing comments on behalf of ABAG which will support the positions taken in the attached document, but I am not proposing that ABAG also be a party to this filing.? Thanks for your help!? Comments as soon as possible would be very much appreciated! ? Dan ? ? Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 Tel:?? (818) 596-2201 Fax:? (818) 346-6502 douglass@energyattorney.com

?

- Blank Bkgrd.gif - 6-25-01 AReM Comments - Draft 1.doc

Message 112 of 1299

HD Case: Proposed Plan

Sender	cvavrek@deloitte.com
Recipients	['mark_guinney@watsonwyatt.com', 'chin@haas.berkeley.edu', 'sama@haas.berkeley.edu']
File	dasovich-j/all_documents/8896.

I just spoke live with Mark about the case write-up.? Hope the following works for everyone.?

I will take a shot at comparing the following for questions (a) and (b):

(1) Home Depot's strategy (low margin, high turnover, high service, best quality products) with their financial ratios. (2)

Home Depot's strategy with Hechinger's (upscale stores with high profit margins) by comparing their financial ratios.

(Understand that I have not had the benefit of attending the last two classes, but hope to watch them on video tape before I send out my answers.)

Mark has already addressed question (c), we just need to make clear in the memo the assumptions he used.? Mark - perhaps you could write those up so we can drop them into the memo?

The other big issue is with Home Depot's expansion strategy - should they continue to build the 9 new stores, and if so, how should they finance the expansion?? They could use their line of credit or go to the equity market.? Obviously with the line of credit we need to make sure that they can cover the interest expense and with the equity market we need to be careful of their depressed stock price.? Can someone else volunteer to look at the expansion efforts and financing (question d)?

I am going to work on this today and hope to e-mail it out by 9am tomorrow.? Can we set a time on Wednesday to discuss this live??

- Carolyn

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Mark Guinney [mailto:Mark_Guinney@watsonwyatt.com] Sent: Monday, February 05, 2001 5:36 PM To: Vavrek; Carolyn (US - San Francisco); chin@haas.berkeley.edu; sama@haas.berkeley.edu; Jeff.Dasovich@enron.com Subject: Home Depot Spreadsheet (revised)

Jeff was kind enough to show me where to get the additional balance sheet items I needed to finish the financial ratio time sheet analysis (I missed the selected financial statement table).? Please see the revised spreadsheet that has both the financial ratios and the pro forma cash flow statement for the next fiscal year.

?

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA? 94104 (415) 733-4487 ph. (415) 733-4190 fax

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Message 113 of 1299

Re: Final Version-Manifesto

Sender	john_chandley@lecg.com
Recipients	['teece@haas.berkeley.edu', 'tom_campbell@law.stanford.edu', 'tyson@haas.berkeley.edu']
File	dasovich-j/all_documents/8538.

Bill Hogan will convey to you are strong concern over the unnecessary criticism of the Governor, on page 4 of the Summary, Assuming this is removed/fixed, I would like to be included as a supporter.

I have two or three other minor "fixes" where the current text could be read as inconsistent with the main points in the Manifesto. See attached.

Regards, John Chandley

(See attached file: Manifesto-final version -- jc edits.doc)

William W. Hogan John F. Kennedy School of Government Harvard University 79 John F. Kennedy Street Cambridge, MA 02138 617-495-1317 (o) 617-495-1635 (f) email: william_hogan@harvard.edu web page: www.whogan.com or <http://ksgwww.harvard.edu/people/whogan>

David Teece <teece@Haas.Berkeley.EDU> on 01/24/2001 11:56:11 AM

To: tyson@haas.berkeley.edu, tom_campbell@law.stanford.edu, shmuel@euler.berkeley.edu, willrichm@aol.com, george_barker@lecg.com, cdanner@wilkandassociates.com, gilbert@econ.berkeley.edu, scott_harvey@lecg.com, jscadding@wilkandassociates.com, spiller@haas.berkeley.edu, mwilk@wilkandassociates.com, phillip_mcleod@lecg.com, berk@haas.berkeley.edu, john_chandley@lecg.com, jdasovic@enron.com, lfried@uclink.berkeley.edu, william_hogan@harvard.edu, rmichaels@fullerton.edu, richard.rumelt@anderson.ucla.edu, rschmidt@lecg.com, pverleger@compuserve.com, joseph.mullinix@ucop.edu, steven@stoft.com cc: peter.gosselin@latimes.com

Subject: Final Version-Manifesto

TO:?? Colleagues

SUBJECT:? Final Version

I've done my best to include your very helpful comments.? The document now also contains a summary.

I would like your endorsement, by noon PST (Wednesday) if possible.? A number of you have already indicated you would sign it.? Also, Tom Campbell has indicated he will try to recruit Ken Arrow.? I believe one of you agreed to recruit Dan McFadden.? Laura is working on Larry Summers.? Solow would be a great addition, too.

Can we agree on the following division of labor from here out:

1.? Recruiting others:? All

2.? Media representatives:? Campbell, Tyson, Spiller, Verlerger, Wilk, Teece, and Hogan (This is by no means meant to preclude anyone contacting the media after we go public.)

??? On media, we are giving the LA Times a 24-hour exclusive.? We won't release to other media sources until 9:00 AM Thursday.

Many thanks for your involvement and endorsements.

(See attached file: Manifesto-final version.doc)

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930 University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826 <http://haas.berkeley.edu/~imio>

- Manifesto-final version -- jc edits.doc - Manifesto-final version.doc

Message 114 of 1299

Revised Agenda for next TAR&L meeting

Sender	wayne.gardner@enron.com
Recipients	['sue.nord@enron.com', 'michelle.hicks@enron.com', 'donald.lassere@enron.com']
File	dasovich-j/eci/2.

1. Based on discussions from the 11/8 meeting, step through a specific US/Japan trading example for bandwidth purchased and resold by the US trading desk, specifically determining what the US trading desk can and cannot do with respect to each piece of the international capacity segment (see attached file).

2. Time permitting, step through a US/Japan trading example for bandwidth purchased and resold by the Singapore trading desk, specifically determining what a hypothetical Singapore trading desk could and could not do with respect to each piece of the international capacity segment.

3. Develop a prioritized plan of action specifying steps, accountabilities, format, and timeline for each area of responsibility to work together to provide necessary input for traders for each of the following jurisdictions:

Europe Japan Hong Kong Australia Singapore Taiwan Korea Brazil Mexico Argentina Chile Venezuela Colombia

4. Review and discuss Dave Merrill's note on Korea.

5. Time permitting, step through a specific US/Korea trading example as in point one above.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532 ----- Forwarded by Wayne Gardner/Enron Communications on 13/11/2000 19:52

Wayne Gardner 10/11/2000 16:43

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, Alisa Christensen/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications cc: Subject: Draft Agenda for next TAR&L meeting - Comments welcome

1. Based on discussions from the 11/8 meeting, step through a specific US/Japan trading example, specifically determining what the US trading desk can and cannot do with respect to each piece of the international capacity segment (see attached file).

2. Review and discuss Dave Merrill's note on Korea.

3. Step through a specific US/Korea trading example as in point one above.

4. Time permitting, step through a US/Japan trading example, specifically determining what a hypothetical Singapore trading desk could and could not do with respect to each piece of the international capacity segment.

5. Time permitting, determine the best general trading structure for Asia and highlight specific problem areas that need to be identified with respect to the structure.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 115 of 1299

TAR&L Meeting - Location and dial in numbers 11/15/00

Sender	angie.buis@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/notes_inbox/1653.

I'm sorry, Jeff, I didn't see your name on the distribution list of an email regarding this meeting. Here's the information below. ----- Forwarded by Angie Buis/Enron Communications on 11/14/00 02:14 PM -----

Angie Buis 11/14/00 09:22 AM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, Alisa Christensen/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications cc: Wayne Gardner/Enron Communications@Enron Communications Subject: TAR&L Meeting - Location and dial in numbers 11/15/00

The next TAR&L meeting will be held Wednesday, November 15, 8:30-12:00 noon in 3AC120. (This is the ground floor of Three Allen Center, in the new Accounting area.)

For those calling in domestically, please dial 1-888-476-3762, passcode 560271. For those calling in internationally, please dial 1-517-267-1046, passcode 560271

The Host dial in is the same as the domestic dial in, and your passcode is 669866.

Breakfast will be provided.

If you have any questions, please contact me at 37097.

Angie Buis EBS Tax

Wayne Gardner 10/11/2000 16:43

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, Alisa Christensen/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications cc: Subject: Draft Agenda for next TAR&L meeting - Comments welcome

1. Based on discussions from the 11/8 meeting, step through a specific US/Japan trading example, specifically determining what the US trading desk can and cannot do with respect to each piece of the international capacity segment (see attached file).
2. Review and discuss Dave Merrill's note on Korea.
3. Step through a specific US/Korea trading example as in point one above.
4. Time permitting, step through a US/Japan trading example, specifically determining what a hypothetical Singapore trading desk could and could not do with respect to each piece of the international capacity segment.
5. Time permitting, determine the best general trading structure for Asia and highlight specific problem areas that need to be identified with respect to the structure.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 116 of 1299

NEWS: Windfall Profits --passes Senate

Sender	jennifer.rudolph@enron.com
Recipients	['ca.team@enron.com']
File	dasovich-j/all_documents/12165.

* from Govt Affairs

----- Forwarded by Jennifer Rudolph/HOU/EES on 05/08/2001

12:48 PM -----

Susan J Mara@ENRON 05/08/2001 11:52 AM

This bill now goes to the Assembly. The Assembly has its own bill -- 128X, which is working its way through Committee. The Senate bill has an \$80 benchmark (above which the 100% tax applies) and the Assembly bill has a \$60 benchmark

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/08/2001 09:48 AM -----

"Chris Micheli" <cmicheli@carpentersnodgrass.com> 05/07/2001 07:16 PM

To:

SB 1x passed the State Senate late this afternoon by a vote of 25-12. Senator Soto spoke in support arguing that the money should be returned to taxpayers. The flate rate of the refundable tax credit will be determined by the FTB. Senator Scott said that FERC has failed to act. This bill will regulate the price of electricity in CA. He said that the PUC will be allowed to review and adjust the base price for the tax, and that the PUC could allow additional exemptions (is this an unconstitutional delegation of authority?). Also, a long-term contract arrangements are exempt from the bill. Senator Morrow spoke in opposition. He said that the bill is not about relief. Rather, it redistributes wealth and should be changed to refund the money to consumers. Senator Battin spoke in opposition. He cited the planned Intergent plant in North Palm Springs. This bill does not solve the crisis. It just discourages generators from building in this state. Senator Dunn said that emergency steps must be taken and that he supports this bill. Otherwise, CA's wealth will go out of the state, primarily to Texas. Senator Polanco spoke in support and said that ratepayers are being gouged. Billions in profits have been reaped by generators. Senator McClintock spoke in opposition and said that power plants are not being built here and that this bill will stop the construction of plants in CA. Senator Peace spoke in support and said that FERC has failed to enforce the law. Senator Perata spoke in support and said that generators have gotten caught red-handed and now need to pay a penalty. Senator Haynes spoke in opposition and said that the constitution will be violated by this bill and that companies will sell to other states, rather than California. Senator Bowen spoke in support of the bill. She asked why we should have the welcome mat our to CA when these companies are charging 300% more in their prices then just a year or two ago. She also indicated that the Legislative Counsel has given them an opinion that this bill is constitutional because it only applies to the electrons flowing into the state. Whatever that means? No Republicans voted for the bill. No Democrats voted against it. Final vote was 25-12. However, if the Assembly or Senate adjourns the Special Session without passing this bill and/or AB 128x, then both measures will die.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 117 of 1299

RE: Group Project

Sender	jeff.dasovich@enron.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff.dasovich@enron.com', 'cvavrek@deloitte.com']
File	dasovich-j/all_documents/9768.

i won't be in class tonite. i'm open, too, but to tell you the truth, mark, the thought of comparing us and european accounting standards/practices makes me break out in a rash. if there's any way that we can focus on strategy, valuation, or other sorts of financial analyses that we've focused on in the course, that would be preferable from my perspective.

best, Jeff

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> 03/07/2001 08:13 PM

To: Mark Guinney <Mark_Guinney@watsonwyatt.com>, Jeff.Dasovich@enron.com cc: asama@yahoo.com Subject: RE: Group Project

either day works for me and i am open to anything for the group project if we do look at aol/tw we should probably limit our scope to a relatively specific issue i'll think about this some more and perhaps we can talk at the end of break tomorrow (say around 8-ish)

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Mark Guinney [mailto:Mark_Guinney@watsonwyatt.com] Sent: Tuesday, March 06, 2001 7:28 AM To: Jeff.Dasovich@enron.com; cvavrek@deloitte.com Cc: asama@yahoo.com Subject: Re:Group Project

The Enron idea is intriguing but could be extremely difficult to do. If most of the Wall Street analysts are having difficulty seeing through the financial statements than what chance do we have?

AOL/Time Merger is a good idea. Also, we can look at a foreign company like Daimler and see how their financial statements change as they have to convert to US GAAP and what this tells us about their foreign accounting.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

_____ Reply Separator _____ Subject: Group Project Author:
Jeff.Dasovich@enron.com Date: 03/06/2001 12:29 PM

No rush, but thought I'd throw this out there just to get the ball rolling:

Looks at this point like any of the presentation dates work for me, so I don't necessarily have a preference. Options for project (and I'm really just throwing stuff out there to stimulate thought): Analyze AOL/Time Warner merger My company, Enron, is accused by some analysts of being nothing more than a Merrill-Lynch, or a Morgan-Stanley, or a Goldman-Sachs, etc. These analysts claim that we should therefore trade at multiples that are in line with the investment houses. We differ in that view (for a lot of reasons that I won't go into here). Might be interesting to analyze strategies, differences, etc.

Anyway, just some thoughts to get the ball rolling. I'm open to just about anything.

Best, Jeff - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 118 of 1299

Re: HD Case: Proposed Plan

Sender	jeff.dasovich@enron.com
Recipients	[jeff.dasovich@enron.com, 'chin@haas.berkeley.edu', 'cvavrek@deloitte.com']
File	dasovich-j/sent/3107.

Thanks, Carolyn. I can take a crack at the expansion questions, though someone else may want to also take a look at it, just to keep me honest. I'll try to distribute first thing in the AM tomorrow.

Best, Jeff

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> 02/06/2001 02:01 PM

To: Mark Guinney <Mark_Guinney@watsonwyatt.com>, chin@haas.berkeley.edu, sama@haas.berkeley.edu, Jeff.Dasovich@enron.com cc: Subject: HD Case: Proposed Plan

I just spoke live with Mark about the case write-up. Hope the following works for everyone. I will take a shot at comparing the following for questions (a) and (b): (1) Home Depot's strategy (low margin, high turnover, high service, best quality products) with their financial ratios. (2) Home Depot's strategy with Hechinger's (upscale stores with high profit margins) by comparing their financial ratios. (Understand that I have not had the benefit of attending the last two classes, but hope to watch them on video tape before I send out my answers.) Mark has already addressed question (c), we just need to make clear in the memo the assumptions he used. Mark - perhaps you could write those up so we can drop them into the memo? The other big issue is with Home Depot's expansion strategy - should they continue to build the 9 new stores, and if so, how should they finance the expansion? They could use their line of credit or go to the equity market. Obviously with the line of credit we need to make sure that they can cover the interest expense and with the equity market we need to be careful of their depressed stock price. Can someone else volunteer to look at the expansion efforts and financing (question d)? I am going to work on this today and hope to e-mail it out by 9am tomorrow. Can we set a time on Wednesday to discuss this live? - Carolyn

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105 phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Mark Guinney [mailto:Mark_Guinney@watsonwyatt.com] Sent: Monday, February 05, 2001 5:36 PM To: Vavrek; Carolyn (US - San Francisco); chin@haas.berkeley.edu; sama@haas.berkeley.edu; Jeff.Dasovich@enron.com Subject: Home Depot Spreadsheet (revised)

Jeff was kind enough to show me where to get the additional balance sheet items I needed to finish the financial ratio time sheet analysis (I missed the selected financial statement table). Please see the revised spreadsheet that has both the financial ratios and the pro forma cash flow statement for the next fiscal year.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

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Message 119 of 1299

Case 3

Sender	cvavrek@deloitte.com
Recipients	[asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff_dasovich@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/9265.

I like the numbers too.? Anil - I got the same answer you did, but decided in the write-up to only contemplate the ad campaign change in perpetuity, consistent with Jeff's write-up.? I substituted Mark's answer to the last question for Jeff's and added an attachment, hopefully showing the crux of our number crunching.? Let me know if you think we should attach additional or different details from the spreadsheets (especially for the third question).? Otherwise I think we are done with this one. - cv ? ?

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com -----Original Message----- From: Anil Sama [mailto:asama@yahoo.com] Sent: Monday, February 19, 2001 7:40 PM To: Vavrek, Carolyn (US - San Francisco); Jeff.Dasovich@enron.com; Mark Guinney Cc: asama@yahoo.com; Jeff_Dasovich@enron.com Subject: RE: Answers

Hi Team,

I ran my own numbers this morning, and verified what you guys have sent out. I think we can use Mark's or Jeff's write-up as is. Just have one clarification re: Q2 - my?spreadsheet shows that if we increase ad expenses for five years only '94-'98 (as opposed to in perpetuity), then the stock price ends up being 22.73 v/s Mark's 22.20. I do get 22.20 if?I also increase the 6th year ('99) expenses to 27% - perhaps this was an oversight - can someone pls confirm?

For Q5, merely changing terminal growth to 4%, and WACC to 10% gets us to an \$80 stock price.?But?4% in perpetuity is probably unrealistic?

Re: the last question, I agree with Mark's analysis - firms that have huge R&D cycles and patent protection over 17 years etc. e.g. pharmas would be good candidates for foreacsting over a longer term horizon.

Rest looks great - you guys are awesome!!

-Anil

? "Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> wrote:

got your messages + attachments and mark's - WOW + THANKS!! also calc'd it all myself will review + compare + send around comments -cv Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Sunday, February 18, 2001 8:26 PM To: Mark Guinney Cc: asama@yahoo.com; cvavrek@deloitte.com; Jeff.Dasovich@enron.com; Jeff_Dasovich@enron.com Subject: Re: Answers

Since it seems like folks may have only been sporadically receiving my emails, please let me know if you receive the memos and accompanying spreadsheets that I just sent.? Thanks.

Best, Jeff

This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law.? If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Do You Yahoo!? - Get personalized email addresses from Yahoo! Mail Personal Address - only \$35 a year! - case 3 jeffs write up.doc

Message 120 of 1299

Re: Teams	
Sender	kkupiecki@arpartners.com
Recipients	['jjackson@haas.berkeley.edu', 'jcjal02@aol.com', 'dwindham@uclink4.berkeley.edu', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/1953.

Hi Jeff,

I am easy, it just gets difficult to coordinate the more people you have, it may be better of for her to find a smaller group, but if she has her sights set on us, that's fine with me.

At 05:15 PM 9/28/00, Jeff.Dasovich@enron.com wrote:

See my note and Christine's response. Thoughts? Suggestions? Jimmie, apparently she's had a crush on you ever since she heard you say, "Cash-sucking machine." ----- Forwarded by Jeff Dasovich/NA/Enron on 09/28/2000 07:11 PM ----- Christine Piesco <christine.piesco@o To: Jeff.Dasovich@enron.com racle.com> cc: Subject: Re: Teams 09/28/2000 06:23 PM Jeff, Sorry, I should have mentioned when we spoke that Prof Aceves already said it would be OK to join a group with 4, making it 5. He knew that would be the case. He suggested I pick a group, rather than him just randomly choosing one to assign me to. You seemed nice based on my initial reaction to meeting you, which is why I approached you about it. If the group has reservations based on my past group's experience, please let them know that the situation arose because I was out of the country for a week and a half without email access, and therefore wasn't able to contribute to two weeks of assignments. I had let Prof Aceves know about this planned business-related absence even before the course started, so he didn't penalize me. He forgot that I was the person who had sent him that note when my group approached him to let him know I hadn't contributed to two assignments. He said based on that, he would speak to the group to put me back in it if I wanted, or I could join another group. I hadn't had any conflicts whatsoever with the other group, I just had been out of communication, but I felt that given what had happened starting with a fresh group would be easier. In my opinion, it was just unfortunate that this trip happened two weeks into the class, before I could prove myself to my old group. If you can communicate both of these things to your other group members, I really would like to join you all. My alternative at this point would be to do the next assignment individually, since I wouldn't be able to find another group until two weeks from now, and then have the professor assign me to one. I greatly appreciate your help. If I can join you all, please let me know as soon as possible so I can make sure I contribute to the next assignment. Thanks, Christine Jeff.Dasovich@enron.com wrote: > Christine: > > My apologies. My schedule melted down after we talked on Monday. Here's > where folks came out. There's some concern about size. We're supposed to > be no larger than 3, but we lobbied Aceves and he apparently Ok'd our > "oversized" group. The other folks in the group--who talked to him > originally--are pretty sure that five will violate the rules. Folks > wondered if there were other groups that are smaller than ours that you > could hook up with. Sorry about that---it's a wrinkle that I didn't think > about when we spoke. If it gets real ugly trying to find a smaller group, > let me know. Fortunately there's not another team case due for two weeks. > > Best, > Jeff -- Christine Piesco Industrials Account Manager Oracle Corporation 500 Oracle Parkway Redwood Shores, CA 94065 Phone: (650) 506-3640 Fax: (650) 633-3753 christine.piesco@oracle.com (See attached file: christine.piesco.vcf)

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 121 of 1299

Re: Teams	
Sender	jeff.dasovich@enron.com
Recipients	['kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu']
File	dasovich-j/all_documents/1991.

OK gang, she's hell bent, and I've spent about as much time as I'm willing on this. Sorry about the hassle---Jimmie, if you hadn't used that colorful language, we wouldn't be in this mess. Anyway, unless I hear strong protests in the next 30 minutes, I'm writing back to say she can join (and has to do the next case all by her lonesome on the team's behalf as payback). Lemme know.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 10/02/2000 04:21 PM -----

Christine Piesco <christine.piesco@oracle.com> 10/02/2000 02:39 PM

To: Jeff.Dasovich@enron.com cc: Subject: Re: Teams

Jeff,

I appreciate your help. I sent a note to the Prof last week letting him know your concerns and asking him to verify once more that a group size of 5 was OK. I got his response today that it was. Apparently, my old group was the only one with 3, most of the others have at least 4. If there really is a lot of resistance I will ask the Professor to assign me randomly to a group. I would simply prefer to join one that I chose. I appreciate you're group's helping me out of this awkward spot, if they decide to let me in. Let me know,

Thanks, Christine

Jeff.Dasovich@enron.com wrote:

Hi Christine: Yes, forwarded the email you sent last week. Here's where folks came out. First, we think that the folks in your first group are mean. Second, it's a real challenge managing a group of four and there's concern that five will break the camel's back. Suggestion came up that it might be much more manageable if you could try to link up with a smaller group first. If there's a problem finding a smaller group, then we could try to do five and hope the ship don't sink? Sound reasonable? Best, Jeff Christine Piesco <christine.piesco@o To:

Jeff.Dasovich@enron.com

racle.com> cc: Subject: Re: Teams 10/02/2000 01:14 PM Jeff, Have you had a chance to convey what I said to the group, and can I join? Professor Aceves was aware that I talked to you about joining your group, and he sent me an email asking to confirm that I was now in a group. I'd certainly like to be! As you know, I want to make sure I am in one to do the next assignment with. Please let me know, so that if I am joining your group I can make the meetings and contribute to the next case. I do really appreciate your help. :) Thanks, Christine Jeff.Dasovich@enron.com wrote: > Christine: > > My apologies. My schedule melted down after we talked on Monday. Here's > where folks came out. There's some concern about size. We're supposed to > be no larger than 3, but we lobbied Aceves and he apparently Ok'd our > "oversized" group. The other folks in the group--who talked to him > originally--are pretty sure that five will violate the rules. Folks > wondered if there were other groups that are smaller than ours that you > could hook up with. Sorry about that---it's a wrinkle that I didn't think > about when we spoke. If it gets real ugly trying to find a smaller group, > let me know. Fortunately there's not another team case due for two weeks. > > Best, > Jeff -- Christine Piesco Industrials Account Manager Oracle Corporation 500 Oracle Parkway Redwood Shores, CA 94065 Phone: (650) 506-3640 Fax: (650) 633-3753 christine.piesco@oracle.com (See attached file: christine.piesco.vcf)

-- Christine Piesco Industrials Account Manager Oracle Corporation 500 Oracle Parkway Redwood Shores, CA 94065
Phone: (650) 506-3640 Fax: (650) 633-3753 christine.piesco@oracle.com

- christine.piesco.vcf

Message 122 of 1299

Re:RE: OAT Valuation Model

Sender	jeff.dasovich@enron.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff.dasovich@enron.com', 'cvavrek@deloitte.com']
File	dasovich-j/sent/4146.

Our schedules make it messy. I can come over tomorrow during the break if Anil and Carolyn want to meet. Mark, if you want to hunker down with the model tomorrow, you should feel free. The only thing about Thursday is that Carolyn's got a

commitment with Dian. Can we talk about meeting this weekend? I can be flexible.

Best, Jeff

"Guinney, Mark" <Mark_Guinney@watsonwyatt.com> 04/16/2001 01:31 PM

To: "\"Anil Sama\" " <asama@yahoo.com>, "\"Vavrek; Carolyn (US - San Francisco)\" " <cvavrek@deloitte.com>,
"\"Jeff.Dasovich@enron.com\" " <Jeff.Dasovich@enron.com> cc: Subject: Re:RE: OAT Valuation Model

Guys,

We are not going to be able to meet during the week since we all have class every day of the week. We'll have to talk on Thursday and again Sat. or Sun. Come prepared so we can be efficient.

Later

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345
California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator _____ Subject: RE: OAT Valuation Model Author: "Anil
Sama" <SMTP:asama@yahoo.com> Date: 04/16/2001 5:24 PM

Nice job Jeff!

I can meet Tuesday evening, Sat PM, or Sunday.

-Anil

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> wrote:

Jeff - Thanks for putting so much work into this. Excellent job!

I agree that we should figure out when we can meet again. I can meet tonight, during break on Tuesday and basically anytime on Saturday or Sunday. During break on Thursday I volunteered to help Diane with a new student's reception, but I can cancel that if need be. What does everyone else's schedule look like?

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@ENRON.com [mailto:Jeff.Dasovich@ENRON.com] Sent: Monday, April 16, 2001 8:56 AM To:
'asama@yahoo.com'; 'Mark Guinney'; Cvavrek Subject: OAT Valuation Model

----- Forwarded by Jeff Dasovich/NA/Enron on 04/16/2001 10:53 AM -----

Jeff Dasovich

Sent by: Jeff To: "Sama, Anil"

Dasovich cc: "'asama@yahoo.com'" , Jeff.Dasovich@enron.com, "'Mark Guinney'"

04/16/2001 Subject: OAT Valuation Model(Document link: 10:52 AM Jeff Dasovich)

OK folks. It's about 80% of the way there. My brains are oozing out looking at cells, so I want to get this around so Mark can get started on refining assumptions and other folks can examine as well. I'll continue to check it and de-bug it. Mark, you and I should talk, too. (You'll note that at this point, the valuation is in the \$30s, so there's work to do.) Apologies in advance for any errors (and I'm sure they're there).

If anyone has any questions on the model, just let me know.

I think we ought to get together to meet this week as much as possible to start getting the power point presentation together. And perhaps we should think about meeting this weekend?

In the meantime, I'm pulling together the data on Buffet (Berkshire Hathaway) stock performance, etc., and will also do the financial ratios, including Dupont, for OAT.

Does this work for folks? Other thoughts?

Best, Jeff (See attached file: OAT Valuation 0416.xls)

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Do You Yahoo!? Yahoo! Mail Personal Address <<http://personal.mail.yahoo.com/?refer=maillyfoot>> - Get email at your own domain with Yahoo! Mail.

Message 123 of 1299

FW: DealBench

Sender	cameron@perfect.com
Recipients	['Ian Sullivan', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/27949.

OK, it looks like DealBench has hit our radar screen hard here. Can you help me get a meeting set up with the right people??

Look like the strat sourcing group in Houston is requesting a "sand box" to play in to test out our product. Did you ever get a chance to put in a good word there?

David Hoffman wrote me and said he really enjoyed spending time with you and said you were such a smart and thoughtful guy. Thought you might like the compliment. I am going to check out his house as a wedding site on Thursday with Colleen and then go have dinner with Lianne. Any chance you guys want to come along?

Write back soon...

-C

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: David Young Sent: Tuesday, June 19, 2001 4:44 PM To: Cameron Sellers Cc: Ian Sullivan Subject: FW: DealBench

Cameron (cc: Ian),

See my response below to the email from David Hurwitz today regarding DealBench. My contact at DealBench is: Suresh Raghavan, Principal (also Director of Enron Net Works) 713-853-4217 suresh.raghavan@dealbench.com I'll leave DealBench in your hands, but please keep me advised as it relates to Enron. Let me know if I can be of any help. Thanks, David

-----Original Message-----

From: David Hurwitz To: A - Execs; David Young; Jim Fleming Sent: 6/19/01 9:55 AM Subject: DealBench

FYI: Just got a direct mail piece from DealBench, LLC, a wholly owned Enron company. They are selling themselves as a complete RFP and auction system.

dh <https://www.dealbench.com/> <<DealBench.url>>

David H, Here's a wrapup of my meeting with DealBench two weeks ago. I left a voicemail for Cameron yesterday asking her how to proceed with them, as this would become a BizDev deal with a perceived competitor. On another note, the 2 EES Proc Mgrs that Jim F and I met with a couple of weeks ago, mentioned that they have an initiative on the table to run a reverse auction by July 15, and that they are considering BayBuilder. They said they don't care about the DealBench platform, it doesn't meet their needs and DealBench isn't giving any better deal to Enron's business units than they would to anyone else off the street. Ian and I are trying to schedule a meeting next Tuesday with Proc Mgrs from several business units along with John Gillespie from GSS in order to demo Perfect Insight and discuss our Early Adopter Program. David Young -----Original Message----- From: David Young Sent: Friday, June 08, 2001 12:35 PM To: Jim Fleming; James Brackenrig Subject: EnronOnline / DealBench

Met for 45 min w Suresh Raghavan to discuss DealBench (Enron's proprietary auction platform) and the potential for Perfect to provide complementary solutions to their customers through EnronOnline and beyond. We agreed that the purpose of our discussions would not be to have him sponsor us to the Global Strategic Sourcing unit, but only to consider Perfect as a bus dev deal. We would need to price ourselves as an ASP for them, but with the liquidity they have (supposedly like \$1B per day traded through EnronOnline), this should be a no-brainer. Suresh is the Principal of DealBench, as well as a Director of Enron Net Works. DealBench is one of many business units under the Enron Wholesale Services / Enron Net Works group, including EnronOnline, ClickPaper, MetalMarkets, and other wholesale marketplace services. DealBench has 3 primary offerings: * Auctioning/RFQ management * Deal Rooms with complex negotiations tools * Data Rooms for sharing of secure documents such as CADs, blue prints, etc for M&A due diligence.

We discussed the basic functionality and sophisticated math behind Perfect, and he felt that it was worth considering further as a complementary service offering for the DealBench platform. He would like to arrange a demo for him and some of his managers for the end of June or early July.

Message 124 of 1299

Re: Teams	
Sender	jeff.dasovich@enron.com
Recipients	['jeff.dasovich@enron.com', 'kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu', 'jcjal02@aol.com']
File	dasovich-j/all_documents/1954.

Ditto. I vote that we suggest to Christine that 5's too darned unwieldy and that she look for another, smaller group. And if she's unable to find one then we can talk.

Kimberly Kupiecki <kkupiecki@arpartners.com> 10/02/2000 11:19 AM

To: Jeff.Dasovich@enron.com cc: dwindham@uclink4.berkeley.edu, jjackson@haas.berkeley.edu, jcjal02@aol.com
Subject: Re: Teams

Hi Jeff,

I am easy, it just gets difficult to coordinate the more people you have, it may be better of for her to find a smaller group, but if she has her sights set on us, that's fine with me.

At 05:15 PM 9/28/00, Jeff.Dasovich@enron.com wrote:

See my note and Christine's response. Thoughts? Suggestions? Jimmie, apparently she's had a crush on you ever since she heard you say, "Cash-sucking machine." ----- Forwarded by Jeff Dasovich/NA/Enron on 09/28/2000 07:11 PM ----- Christine Piesco <christine.piesco@o To: Jeff.Dasovich@enron.com racle.com> cc: Subject: Re: Teams 09/28/2000 06:23 PM Jeff, Sorry, I should have mentioned when we spoke that Prof Aceves already said it would be OK to join a group with 4, making it 5. He knew that would be the case. He suggested I pick a group, rather than him just randomly choosing one to assign me to. You seemed nice based on my initial reaction to meeting you, which is why I approached you about it. If the group has reservations based on my past group's experience, please let them know that the situation arose because I was out of the country for a week and a half without email access, and therefore wasn't able to contribute to two weeks of assignments. I had let Prof Aceves know about this planned business-related absence even before the course started, so he didn't penalize me. He forgot that I was the person who had sent him that note when my group approached him to let him know I hadn't contributed to two

assignments. He said based on that, he would speak to the group to put me back in it if I wanted, or I could join another group. I hadn't had any conflicts whatsoever with the other group, I just had been out of communication, but I felt that given what had happened starting with a fresh group would be easier. In my opinion, it was just unfortunate that this trip happened two weeks into the class, before I could prove myself to my old group. If you can communicate both of these things to your other group members, I really would like to join you all. My alternative at this point would be to do the next assignment individually, since I wouldn't be able to find another group until two weeks from now, and then have the professor assign me to one. I greatly appreciate your help. If I can join you all, please let me know as soon as possible so I can make sure I contribute to the next assignment. Thanks, Christine Jeff.Dasovich@enron.com wrote: > Christine: > > My apologies. My schedule melted down after we talked on Monday. Here's > where folks came out. There's some concern about size. We're supposed to > be no larger than 3, but we lobbied Aceves and he apparently Ok'd our > "oversized" group. The other folks in the group--who talked to him > originally--are pretty sure that five will violate the rules. Folks > wondered if there were other groups that are smaller than ours that you > could hook up with. Sorry about that---it's a wrinkle that I didn't think > about when we spoke. If it gets real ugly trying to find a smaller group, > let me know. Fortunately there's not another team case due for two weeks. > > Best, > Jeff -- Christine Piesco Industrials Account Manager Oracle Corporation 500 Oracle Parkway Redwood Shores, CA 94065 Phone: (650) 506-3640 Fax: (650) 633-3753 christine.piesco@oracle.com (See attached file: christine.piesco.vcf)

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 125 of 1299

Re: [Fwd: FW: DIRECT ACCESS AMENDMENT], the underlying e-mail

Sender	linda.robertson@enron.com
Recipients	['susan.mara@enron.com', 'jeff.dasovich@enron.com', 'paul.kaufman@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/12444.

John Shelk is going to investigate the status of this amendment in the context of the Barton bill. However, we want to raise with you our initial strong reaction to this amendment. We are highly troubled that this amendment is being pursued at the Federal level. We believe that we run the risk of hurting our push for negawatts, let alone getting a very negative vote on direct access itself. We will do some quiet soundings. But at this point, we believe there is enormous downside risk to this strategy. We are calling NYMEX to find out what they are thinking.

Susan J Mara 05/14/2001 01:35 PM

To: Linda Robertson/NA/Enron@ENRON cc: James D Steffes/NA/Enron@ENRON, Jeff Dasovich/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Ray Alvarez/NA/Enron@ENRON, Richard Shapiro/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@ENRON Subject: [Fwd: FW: DIRECT ACCESS AMENDMENT], the underlying e-mail

Whoops! Here are the underlying e-mails

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/14/2001 10:31 AM -----

Scott Govenar <sgovenar@govadv.com> 05/14/2001 09:26 AM

To: Jeff Dasovich <jdasovic@enron.com>, Sandra McCubbin <Sandra.McCubbin@enron.com>, Susan J Mara <smara@enron.com>, Mike Day <MDay@GMSSR.com> cc: Subject: [Fwd: FW: DIRECT ACCESS AMENDMENT]

What do we think?

----- Message from "Mark Seetin" <nymex2@unidial.com> on Fri, 11 May 2001 16:35:15 -0400 ----- To: "Scott Govenar" <SGovenar@govadv.com> Subject: FW: DIRECT ACCESS AMENDMENT Scott,

Chairman Barton has told us he would support a direct access amendment when the full committee marks up the bill next week. Radanovich and Chris Cox have expressed strong interest in sponsoring it. We are suggesting language which bypasses the CPUC -- with federal preemption of course. Coan the California DA folks press the congressional delegation focusing on Radanovich and Cox?? What are your thoughts? -----Original Message----- From: Charlie DeWitt

[mailto:nymex4@unidial.com] Sent: Friday, May 11, 2001 11:31 AM To: tricia.geringer@mail.house.gov; royce.reinecke@mail.house.gov Cc: Mark Seetin Subject: DIRECT ACCESS AMENDMENT

Dear Tricia and Royce, thanks for hearing us out on the issue of direct access. Congressman Radanovich is welcome to offer an amendment on this issue next week. The following language is based on some language we tried to have inserted at the State level. Unfortunately, AB1X passed in January prohibits direct access and competition among sellers for buyers of electricity. Without a free market for electricity and with all electricity purchases going through a state-mandated exchange, the taxpayers of California are left with paying the bill for electricity: DRAFT LANGUAGE FOR DIRECT ACCESS IMPLEMENTATION Not later than thirty days after enactment, the Independent System Operator ("ISO"), shall submit to the Federal Energy Regulatory Commission ("FERC") a transmission congestion relief program that incorporates physical rights to firm transmission through congestable interfaces. Such rights will confer on users the right to access transmission through the interfaces without incurring congestion fees. The rights will provide access for periods judged to serve direct access market participants of up to one year. Initial provision of these rights will be through an annual auction overseen by the ISO. The rights will be resalable. Not later than thirty days after enactment, the program will implement direct access for large non-residential users of electric power. The program will require large industrial, commercial and other non-residential users of electricity to fulfill their electric power needs by contracting with non-investor owned utility ("IOU") sources in accordance with the following schedule: 90 days after enactment: 1 megawatt and greater loads 180 days after enactment: 300 kilowatt and greater loads 270 days after enactment: 100 kilowatt and greater loads 360 days after enactment: 70 kilowatt and greater loads. This program will permit large industrial, commercial, and other non-residential users of electricity to voluntarily enter into contracts to fulfill any portion of their own electric power needs through direct contracting with non-IOU sources.

Charlie DeWitt Associate, Government Affairs New York Mercantile Exchange 1331 Pennsylvania Avenue, NW Suite 550-S Washington, DC 20004 ph. (202) 662-8771 fax (202) 662-8765 nymex4@unidial.com

Message 126 of 1299

Re: CAISO Notice: Market Notice re: Credit Issues -- ONE ISSUE

Sender	jubran.whalan@enron.com
Recipients	['susan.mara@enron.com', 'tamara.johnson@enron.com', 'dennis.benevides@enron.com']
File	dasovich-j/all_documents/11154.

More directly, does this mean DWR can determine that the market price we are other market participants settle at does not work for them or California and only decide to pay the portion they find is reasonable after the fact? If so I don't think this answers all of the credit concerns. I am not sure DWR is a creditworthy party to Enron either, nor do I think Enron want to take that risk for balancing, load curtailment and trading?

Jubran

Susan J Mara@ENRON 04/16/2001 11:13 AM To: Christian Yoder/HOU/ECT@ECT, gfergus@brobeck.com, jalexander@gibbs-bruns.com, James D Steffes/NA/Enron@Enron, Ray Alvarez/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Michael Tribolet/ENRON@enronXgate, Steve C Hall/PDX/ECT@ECT, Jubran Whalan/HOU/EES@EES, Neil Bresnan/HOU/EES@EES, Tim Belden/HOU/ECT@ECT, Harry Kingerski/NA/Enron@Enron, Tamara Johnson/HOU/EES@EES cc: Subject: CAISO Notice: Market Notice re: Credit Issues -- ONE ISSUE

The one issue with this is the statement in the e-mail below that looks as if DWR unilaterally decides reasonableness after the fact. I will follow up with the ISO on this.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 04/16/2001 09:11 AM -----

Susan J Mara 04/16/2001 09:06 AM

To: Christian Yoder/HOU/ECT@ECT, gfergus@brobeck.com, jalexander@gibbs-bruns.com, James D Steffes/NA/Enron@Enron, Ray Alvarez/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Michael Tribolet/ENRON@enronXgate, Steve C Hall/PDX/ECT@ECT, Jubran Whalan/HOU/EES@EES, Neil Bresnan/HOU/EES@EES, Tim Belden/HOU/ECT@ECT, Harry Kingerski/NA/Enron@Enron cc: Subject: CAISO Notice: Market Notice re: Credit Issues

FERC finally got resolved what CA could not. I believe this also takes care of our credit issue on the ISO's demand response programs.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 04/16/2001 08:47 AM -----

"Fuller, Don" <DFuller@caiso.com> Sent by: "Happ, Susan" <SHapp@caiso.com> 04/13/2001 04:21 PM

To: ISO Market Participants
<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO Notice: Market Notice re: Credit Issues

Market Notice re Credit Issues

In response to the FERC order of April 6, 2001 re the issue of creditworthiness, the California Department of Water Resources (DWR) has authorized the ISO to make the following statement. To the extent (and only to the extent) that a purchase is not otherwise paid by any party or payable by another party meeting the credit standards set forth in the ISO Tariff (another "Qualified Party"), DWR will assume financial responsibility for all purchases by the ISO in its ancillary services and imbalance energy markets based on bids or other offers determined to be reasonable. Such determination of reasonableness will be made by DWR on a case by case basis and communicated to the ISO. All bids into the ancillary services and imbalance energy markets will be deemed to be contingent on the acceptance of financial responsibility by DWR, to the extent not paid or payable by another Qualified Party. Unless a supplier is otherwise notified, any bid accepted by the ISO will be deemed to have the financial support of another Qualified Party or DWR as specified in this notice. In addition to the foregoing, DWR will assume financial responsibility for all purchases resulting from the issuance by the ISO of emergency dispatch instructions, to the extent not paid or payable by another Qualified Party. Payment for such purchases shall be made according to the rate specified in the ISO Tariff for emergency dispatch instructions. The ISO and/or DWR reserve the right to rescind or modify the foregoing arrangements at any time and for any reason, including a successful rehearing or appeal from the April 6 order.

As the FERC determined in its February 14 order that DWR is a creditworthy counterparty, the ISO believes that the foregoing arrangements meet the requirements of FERC's April 6 Order. Accordingly, the ISO expects that suppliers will honor their obligations under the ISO Tariff and related agreements to respond to ISO dispatch instructions.

Don Fuller Director, Client Relations California ISO Phone: 916-608-7055 E-Mail: dfuller@caiso.com

Message 127 of 1299

YOU ARE INVITED: "Why are Public Schools Failing and What Can Be

Sender	djtheroux@independent.org
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/12585.

Dear Jeff,

For decades, reformers have promised to improve the public schools, but recent newspaper headlines show that many schools have gotten worse:

* "Threshold lowered on exit exams -- State OKs high school standard below what was originally proposed" * "'Abysmal' exit test results for 9th-graders -- Most flunk if 70% is a passing grade" * "Small wars plague the schools -- Teachers,

district, mayor embroiled" * "Schools Add Security in Reaction to Violence"

Why have efforts to improve the public school system been such failures? Which reforms are more likely to overcome the political obstacles to improve education? Which reforms best ensure that schools will be held accountable to parents? Which reform proposals have the greatest potential for fostering educational excellence?

To explore these and related question, the Independent Policy Forum will feature two noted education experts: Richard Vedder (author, CAN TEACHERS OWN THEIR OWN SCHOOLS?) and John Merrifield (author, THE SCHOOL CHOICE WARS). The program will be held the evening of Thursday, July 5th, from 6:30 to 8:30 p.m., at the Independent Institute's conference center in Oakland, California.

For your review, I am adding below an invitation with further details on the program. Because seating is limited, please make your reservations as soon as possible. For further information, please contact me or the Institute's Events Coordinator, Ms. Nichelle Beardsley, at 510-632-1366 x118.

We hope to see you on July 5th.

Sincerely,

David J. Theroux Founder and President The Independent Institute 100 Swan Way Oakland, CA 95621-1428
510-632-1366 Phone 510-568-6040 Fax DTheroux@independent.org <http://www.independent.org>

WHY ARE THE PUBLIC SCHOOLS FAILING AND WHAT CAN BE DONE? - Next Independent Policy Forum (July 5, 2001)

American children learn less than they did 30 years ago, and even where there are signs of improvement, they are small. Many high school graduates -- 90 percent of whom attended government-operated public schools -- lack the skills needed in today's knowledge-intensive workplace. Further, many students fail to graduate. (The dropout rate in California is 32 percent overall, and 45 percent for immigrants.) Parents and educators have long recognized the shortcomings of the public school system, but their efforts to reform it have failed. Are school vouchers and charter schools the answer? What about teacher-owned schools? What other reforms might make schools more innovative and accountable to parents? Please join us as education experts RICHARD VEDDER and JOHN MERRIFIELD examine new strategies for achieving educational excellence.

SPEAKERS:

-- RICHARD VEDDER, Senior Fellow, The Independent Institute; Professor of Economics, Ohio University; author, CAN TEACHERS OWN THEIR OWN SCHOOLS?

-- JOHN MERRIFIELD, Senior Research Associate; The Education Policy Institute; Professor of Economics, University of Texas, San Antonio; author, THE SCHOOL CHOICE WARS

WHEN: Thursday, July 5, 2001 Reception and book signing: 6:30 p.m. Program: 7:00 - 8:30 p.m.

WHERE: The Independent Institute Conference Center 100 Swan Way Oakland, CA 94621-1428 For a map and directions, see http://www.independent.org/tii/tii_info/about.html#map

TICKETS: \$30.00 per person: includes one copy of Richard Vedder's book, CAN TEACHERS OWN THEIR OWN SCHOOLS?, OR John Merrifield's book, THE SCHOOL CHOICE WARS, OR admission without a book is \$10 per person (\$7 for Independent Institute Associate Members)

Praise for Richard Vedder's book, CAN TEACHERS OWN THEIR OWN SCHOOLS?

"Vedder suggests for-profit schools owned and operated by teachers and school administrators would offer a promising alternative to the present public school system." -- SCHOOL REFORM NEWS

"Nobody yet has found a foolproof formula for revitalizing American K-12 education. So let's be humble enough -- and empirical enough -- to try as many tantalizing approaches as we can. In that spirit, I commend Richard Vedder's pioneering ideas." -- CHESTER E. FINN, JR., former Assistant Secretary, U.S. Department of Education

For more information about CAN TEACHERS OWN THEIR OWN SCHOOLS? see http://independent.org/tii/catalog_pr/policy_schools.html.

Praise for John Merrifield's book, THE SCHOOL CHOICE WARS

"Professor Merrifield asks this question: what is meant by and what is the intended consequence of reforms bearing such labels as vouchers, school choice, charter schools, privatization, and competition? This book brilliantly and clearly exposes the superficiality and extraordinary fuzziness of those labels." -- SEYMOUR B. SARASON, author, CHARTER SCHOOLS: Another Flawed Educational Reform?

For more about this event, see <http://www.independent.org/tii/forums/010705ipf.html>.

Message 128 of 1299

FW: CFO.com's - Today's CFOs on the Move - Assessing the Human Toll

Sender	nancy.sellers@robertmondavi.com
Recipients	['cameron@perfect.com', 'jeff_dasovich@enron.com', 'psellers@haas.berkeley.edu']
File	dasovich-j/inbox/159.

Please note the blurb about Bill Harris. Paragraph starts "Officials at Palo Alto..." Prentice - maybe you should give him a call of congrats and job opps.!!

-----Original Message-----

From: Newsletters@cfo.com [mailto:Newsletters@cfo.com] Sent: Thursday, September 13, 2001 8:42 AM To: nancy.sellers@robertmondavi.com Subject: CFO.com's - Today's CFOs on the Move - Assessing the Human Toll
<http://www.cfo.com>

CFO.com's Today's CFOs on the Move

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Thursday, September 20, 11:00 a.m. EDT

Panelists:

- Vladimir Cole, CFO.com, Product Manager(Moderator) - David Barnes, Best Buy, Director Financial Planning - Mark Stimpson, Adaytum, Vice President Product Marketing - Jack Maynard, Aberdeen Group, Research Director

<http://ad.2clk.net/eclk;3298040;1729382256984211925;6350089;58539;;38099>

Thursday, September 13, 2001 TODAY'S CFOs ON THE MOVE Assessing the Human Toll

By CFO Staff

Though Tuesday's events touched almost every American, some in the US business community were hit especially hard by the loss of friends and colleagues. At least two CFOs were killed in the terrorist attacks.

Waltham, Mass.-based E-business software maker Netegrity Inc. reported that CFO James Hayden was a passenger on the United Airlines Flight 175 that crashed into the World Trade Center Tuesday morning. Hayden, 47, was credited with helping Netegrity become one of the more highly valued companies in the tech industry. He is survived by his wife and two children. Netegrity plans to start a memorial fund in his name.

MRV Communications Inc. lost CFO and vice president of finance and administration Edmund Glazer, who was aboard the Los Angeles-bound American Airlines Flight 11, which crashed into the other tower of the WTO. Glazer is survived by his wife and young son.

In other CFO news, Jack Nichols III joined Atlanta-based startup Incanta Inc. as CFO. Incanta makes streamlining applications for broadband providers. Nichols joins Incanta from NetSchools, an E-learning company. Incanta is a venture-backed company started in 1999.

Officials at Palo Alto, Calif.-based biopharmaceutical company XenoPort Inc. appointed William Harris CFO. Harris joins the startup from Coulter Pharmaceuticals Inc., where he was CFO until Coulter's acquisition by Corixa Corp. in December 2000.

Read On! For More CFOs on the Move...

http://www.cfo.com/CFO/CDA_Templates/Page_Templates/Pge_Archives_Home/1,4645,0|1|3|92,00.html

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This email was sent to: nancy.sellers@robertmondavi.com

Message 129 of 1299

Wood Ruling on Retroactivity Issues - IMPORTANT

Sender	douglass@energyattorney.com
Recipients	['johnson.tamara@enron.com', 'susan.mara@enron.com', 'sandler.vicki@enron.com']
File	dasovich-j/inbox/778.

Commissioner Wood is not letting go of the retroactive direct access suspension issue. Attached for your information is a ruling issued Tuesday which calls for parties to file comments by November 2 (and reply comments on November 8) on the following questions:

It is noted that statistics from the utilities' monthly filings (see attached Appendix A)[1] show that commencing on or about July 1, 2001, there has been an increase in customers switching to direct access. This information further highlights the concerns about cost-shifting and the need to minimize the significant impacts to bundled electric customers who will likely be left with more costs.[2] These cost-shifting issues are part of the Commission's consideration in determining whether there should be an earlier suspension date and what this date should be.

Accordingly, in this Assigned Commissioner's Ruling, the following issues are presented for comment by interested parties:

1. Why should or shouldn't the Commission choose an earlier date (than after September 20, 2001) for suspending the right to acquire direct access service?
2. If the Commission should choose an earlier date, why should or shouldn't the Commission consider the July 1, 2001 suspension as set forth in the June 15 and August 27 Draft Decisions of ALJ Barnett? If not July 1, 2001, what other date or dates should the Commission consider and why?
3. Are there alternatives to suspending direct access as of a date before September 20, 2001, that would still alleviate cost-shifting problems? What are the pros and cons of these alternatives? Can the Commission adopt any such proposed alternative without new legislation?
4. What effect, if any, should be given to renewals of contracts originally entered into prior to the effective date of the Commission's suspension of direct access?
5. What effect, if any, should be given to provisions in contracts ("add-on provisions") that allow the buyer to add more facilities to be served after the date on which direct access is suspended?
6. Are there any other types of contract provisions that the Commission should consider in terms of applying the suspension as set forth in D.01-09-060 or the Commission's consideration of an early suspension date?
7. If any party has in its possession any of the following, please provide:
 - a. Copies of various types of contracts executed or agreements entered into between electric service providers and direct access customers.[3]
 - b. Copies of various types of contracts or agreements offered but not executed or entered into between electric service providers and direct access customers.[4]
 - c. Copies of blank direct access contracts, not otherwise provided in 7a or 7b.
8. For electric service providers:
 - a. How many contracts have you executed or entered into with direct access customers between January 17, 2001 and September 20, 2001? How much load is contracted for in each of these contracts? Please provide the information by dates of execution.
 - b. What percentage of your total direct access contracts contains any renewal provision? What percentage of your total direct access contracts contains any add-on provision?

[1] The information contained in Appendix A is taken from Statewide Summaries in the Direct Access Implementation Activities Reports from January 15, 2001 to October 15, 2001, that is publicly available on the CPUC website. The summaries were produced from information filed by the utilities on a monthly basis. (See Opinion Extending Certain Monthly Reporting Requirements [D.00-12-036] (2000) ___ Cal.P.U.C.2d ___.)

[2] The general magnitude of potential cost shifting can be seen by referring to DWR's most recent revenue requirement draft submission, dated October 19, 2001, of which official notice is taken. The revenue requirement from ratepayers contained in DWR's most recent submission is \$10.189 billion for the twenty-four calendar months of 2001 and 2002.

[3] Information about the customer (e.g., name, address, etc.) and pricing may be redacted from these copies. Date of execution or signing should not be redacted.

[4] Information about the customer (e.g., name, address, etc.) and pricing may be redacted from these copies. Any information regarding the dates of the offer should not be redacted.

Finally, Wood says that it is his, "current plan that a decision regarding the above will be issued based on the written comments filed by the parties. If any party believes that an evidentiary hearing is needed, it must make such a request in its comments. The requesting party must set forth in detail what material factual issues are in dispute, why those facts are material, and what evidence would be presented in an evidentiary hearing on such issues."

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
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Dan

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Enron Mentions

Sender	ann.schmidt@enron.com
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INDIA: UPDATE 1-India state panel head to resume Enron talks. Reuters English News Service, 05/23/01

Dutch NMa To Decide On Import Capacity Complaints By Sept Dow Jones International News, 05/23/01

Michael Capellas, John Mendelsohn, MD, & Jeffrey Skilling to Speak at Houston Technology Forum May 29 PR Newswire, 05/23/01

Clean Power Group Comments on Report of The National Energy Policy Development Group PR Newswire, 05/23/01

UK: ANALYSIS-Spanish power trade hots up after slow start. Reuters English News Service, 05/23/01

Indian Official in Enron Talks Retracts Resignation (Update5) Bloomberg, 05/23/01

INDIA: UPDATE 1-India state panel head to resume Enron talks.

05/23/2001 Reuters English News Service (C) Reuters Limited 2001.

BOMBAY, May 23 (Reuters) - India's Maharashtra state averted a crisis on Wednesday when it persuaded the head of a panel renegotiating U.S. energy giant Enron's troubled Dabhol power project to remain in his job. Madhav Godbole, who quit earlier on Wednesday, said he was returning after the state cabinet unanimously rejected his offer to resign. "They have bestowed confidence in me," he told Reuters. Godbole's resignation over remarks made against him by a senior

politician had created a stir and looked likely to derail efforts to resolve a raging row between Houston-based Enron Corp. and the Maharashtra State Electricity Board (MSEB). Enron's \$2.9 billion project in the western state of Maharashtra is widely seen as a test case for India's plans to privatise its power sector. Godbole was heading a committee to renegotiate the contract between Dabhol Power Company (DPC), owned 65 percent by Enron, and state utility Maharashtra State Electricity Board (MSEB), which has been embroiled in dispute for over six months. The dispute was sparked off last month when MSEB began defaulting on monthly payments to DPC, which is building the 2,184 megawatts power plant in the state. The first phase of 740 MW of the project is already up and running, while the second phase of 1,444 MW is slated to be completed next month. After months of wrangling over a payments dispute with the cash-strapped state electricity board, DPC last Saturday issued a preliminary notice to terminate its contract to sell power to the utility. Dabhol's termination notice was widely seen as a first step by Enron to pull out of the power project. MSEB is planning to retaliate by imposing a fine of four billion rupees (\$85.16 million) on the power firm. Godhole was appointed last month to resolve this dispute. The next meeting of the committee, which was due to meet with DPC officials on Wednesday, may be held next Tuesday, he said. Meanwhile, a senior banker told Reuters that local lenders to DPC were planning to seek the help of the federal government in ensuring that foreign lenders did not invoke guarantees that they have issued. The Business Standard newspaper said the losses of the local lenders would amount to nearly 30 billion rupees if the guarantees were invoked. (\$1=46.97 Indian rupees).

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Dutch NMa To Decide On Import Capacity Complaints By Sept

05/23/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

AMSTERDAM -(Dow Jones)- Dutch competition authority NMa doesn't expect to reach a decision on complaints filed by several large market parties on the way cross-border electricity transportation capacity is allocated before the end of August, a commission on the subject said Wednesday during a hearing. The commission needs to hear the response to these complaints from Sep, or Nea, as the umbrella association for Dutch electricity generators is now called, before it can make a decision on the matter. A representative of Nea said the organization couldn't respond on Wednesday as it "needs more time to prepare." Several large parties in the Dutch energy market Wednesday appeared before the commission to elaborate on previously submitted complaints on the way cross-border electricity transport capacity is currently allocated. The complaints heard by the commission showed grave concerns that existing mechanisms are driving up electricity prices and hampering the development of a free market instead of fostering it, as the Dutch government had aimed to do. At the hearing in The Hague, Cecile Gommans of the antitrust regulator NMa, who heads the committee on the subject, said complaints focus on the privileged position Nea members have in the allocation of import capacity and the rules for the auctions through which the remaining capacity is distributed in the markets. Three out of the four Nea members are owned by German and Belgian companies who control the interconnectors on the other side of the Dutch border. As such, half of the proceeds from such auctions accrue to the parent companies of the Nea members. Of the 3,900 megawatts of total import capacity available, over 900 MW are reserved for Nea. Other participants for whom the capacity available to them is therefore limited feel the market mechanism has failed to deliver access to imported power on equal terms. The complaints on the way auctions of import capacity are conducted are mostly on entering conditions for parties who want to bid. Smaller parties feel rigid rules for that are practically excluding them from the auctions. The capacity auctions are held by the TenneT Auction Office, a wholly-owned subsidiary of Dutch grid operator TenneT. The complaints submitted NMa include those from Enron Corp. (ENE), Dutch energy intensive consumer group VEMW and Dutch chemicals industry association VNCI. After Nea's response, which is scheduled for mid-June, the NMa expects to decide on the complaints "within 10 weeks", Gommans said. -By Arent Jan Hesselink, Dow Jones Newswires, 0031 20 6260770, arentjan.hesselink@dowjones.com -0- 23/05/01 14-27G

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Michael Capellas, John Mendelsohn, MD, & Jeffrey Skilling to Speak at Houston Technology Forum May 29

05/23/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

Prominent Business Leaders to Discuss Technology Trends Affecting Houston's Future HOUSTON, May 23 /PRNewswire/ -- Houston Technology Center (HTC) announced today that Michael Capellas, chairman and CEO of Compaq; John Mendelsohn, MD, president of University of Texas M. D. Anderson Cancer Center; and Jeffrey Skilling,

president and CEO of ENRON, will be the featured speakers at the Houston Technology Forum moderated by Lloyd Bentsen III, chairman of HTC, and scheduled for May 29, from 10:45 a.m. - 1:30 p.m., at the Hyatt Regency Houston. The event is being presented by HTC in conjunction with the American Marketing Association (AMA) and the Business Marketing Association (BMA). "We are very fortunate to have four such outstanding speakers at this premier technology event," said Paul Frison, president and CEO of HTC. "Anyone involved in Houston's key technology sectors -- energy, information technology, life sciences and NASA-originated technologies -- will greatly benefit from their knowledge." The speakers will address the present and future technology trends in their respective industries and in Houston overall. They will also participate in a panel discussion during the Q&A segment of the forum. The Houston Technology Forum is one of Houston's premier technology events. The forum provides participants with the opportunity to listen to industry experts and network with over 1,000 leaders of Houston's business community. The Houston Technology Forum is being underwritten by the following sponsors: Visionary Arthur Andersen LLP www.andersen.com BLUE LANCE www.bluelance.com Compaq www.compaq.com COMSYS

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Job candidates for Enron

Sender	borenste@haas.berkeley.edu
Recipients	['jimb@ieor.berkeley.edu', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/916.

Hi Jeff:

I'm not sure if hiring is an issue these days for you, but I wanted to let you know that Jim Bushnell and I will be again teaching a course at Berkeley this spring called "Energy Market Strategies and Policies." The course is cross-listed between the Haas School of Business and the Energy & Resources Group (ERG) at UC Berkeley.

The course is currently limited to 42 students, but it is already over-subscribed, so we are trying to move it to a larger classroom. We'll have mostly MBA students from Haas, but also about a dozen masters students from ERG. There are also usually at least a few PhD students. The students in the class are were very smart -- many of them already have experience in the energy industries -- and we believe the course puts them in a position to immediately contribute to any energy-related organization that they would join. You can see a copy of last year's course syllabus at <http://www.haas.berkeley.edu/~borenste/EnergyMarketsSyllabus.pdf>

Many of these students are interested in either summer or permanent employment starting as early as May. If you have openings that you would like to advertise to these students, please let me know. We will be setting up a webpage with job announcements in energy-related organizations. If you send me a job description (or the URL for it), I can add it to the webpage.

Talk to you soon, Severin

Severin Borenstein

E.T. Grether Professor of Business Director Administration and Public Policy U.C. Energy Institute Economic Analysis & Policy Group 2539 Channing Way Haas School of Business Berkeley, CA 94720-5180 University of California (p) 510-642-5145 Berkeley, CA 94720-1900 (main line) 510-642-9588 (p) 510-642-3689 <http://www.ucei.org> (f) 707-885-2508

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Follow up conference call**Sender** wanda.curry@enron.com**Recipients** ['harry.kingerski@enron.com', 'robert.williams@enron.com']**File** dasovich-j/all_documents/11965.

I have sent Janet Covington the participant list as requested per her e-mail below. She has agreed to set up the conference call for Thursday, May 3rd at 3 PM central time. Please reserve this time. I will forward each of you the spreadsheet we receive from them today. I will let you know if I think we should get together to review the spreadsheet prior to the call.

Thanks,

Wanda Curry ----- Forwarded by Wanda Curry/HOU/EES on 05/02/2001 09:58 AM -----

Diann Huddleson 05/02/2001 08:01 AM To: Wanda Curry/HOU/EES@EES cc: Subject: Follow up conference call

Wanda, I spoke with Janet after you forwarded her voice mail. I told her we would provide the participant list this morning. Let me know if you want me to do that.

----- Forwarded by Diann Huddleson/HOU/EES on 05/02/2001

08:00 AM -----

Janet.Covington@sce.com on 05/01/2001 03:46:06 PM To: dhuddles@enron.com cc: Subject: Follow up conference call

Hi Diann,

I just left a phone message for Wanda as I didn't have her email and was supposed to coordinate the follow up call with her. Anyway, we are still working on preparing the account examples demonstrating the change in methodology and should have those to you by tomorrow. In the meantime, I wanted to go ahead and arrange the follow up call for this Thursday 5/3 at 1pm PST. That would be 3pm your time. Can you please let me know the email addresses for your participants so I can get a notice out to them.

I had yourself, Wanda Curry, Evan Hughes, Jeff Dodson, Bob Williams, Jim Doth, and Martin Curtilan? Not sure of the spelling. Please let me know so I can send out the meeting notice out with the call in details.

Thanks Much.

Janet L. Covington Account Manager ESP/AMS Services Division SSID Administration Bldg., First Floor 7300 Fenwick Lane Westminster, CA 92683 Phone: 714-895-0198 (54198) Fax: 714-895-0347 (54347) covingjl@sce.com

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Speaker Hertzberg Names Committee To Handle Energy Crisis. Members**Sender** jeff.dasovich@enron.com**Recipients** ['richard.shapiro@enron.com', 'skean@enron.com', 'james.steffes@enron.com']**File** dasovich-j/all_documents/8236.

FYI. It's been reported that the legislative committee intends to subpoena generators and marketers to testify before the committee, though nothing in this press release mentions any subpoenas.

Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 01/08/2001 10:26 PM -----

"Katie Kaplan" <kaplan@iepa.com> 01/08/2001 06:00 PM Please respond to kaplan

To: "John Larrea" <john.g.larrea@williams.com>, "Douglas Kerner" <DKK@eslawfirm.com>, "Andy Brown" <ABB@eslawfirm.com>, "B Brown Andy" <andybrwn@earthlink.net>, "Bob Weisenmiller" <rbw@mrwassoc.com>, "Jan Smutny-Jones" <smutny@iepa.com>, "Jean Munoz" <jmunoz@mcnallytemple.com>, "Jeff Dasovich" <Jeff.Dasovich@enron.com>, "John Stout" <John_H_Stout@reliantenergy.com>, "Julee Malinowski-Ball" <jmball@ns.net>, "Karen Edson" <kedson@ns.net>, "Kassandra Gough" <kgough@calpine.com>, "Katie Kaplan" <kaplan@iepa.com>, "Kristin Vellandi" <kvellandi@pstrategies.com>, "Marty Wilson" <mwilson@pstrategies.com>, "McNally Ray" <rmcnally@mcnallytemple.com>, "Norton Kelli" <knorton@mcnallytemple.com>, "Paula Hall-Collins" <paula.hall-collins@williams.com>, "Richard Hyde" <rwhyde@duke-energy.com>, "Stephanie-Newell" <stephanie-newell@reliantenergy.com>, "Sue Mara" <smara@enron.com>, "Tom Ross" <tross@mcnallytemple.com>, "Susan J Mara" <Susan_J_Mara@enron.com>, "Scott Noll" <snoll@thermoecotek.com>, "Randy Hickok" <rjhickok@duke-energy.com>, "Lynn Lednick" <lale@dynegy.com>, "Kent Fickett" <kfickett@usgen.com>, "Kate Castillo" <ccastillo@riobravo-gm.com>, "Jim Willey" <elliottsa@earthlink.net>, "Frank DeRosa" <frank.derosa@gen.pge.com>, "Eileen Koch" <eileenk@calpine.com>, "Dave Parquet" <dparque@ect.enron.com>, "Curtis Kebler" <curtis_l_kebler@reliantenergy.com>, "Mark Smith" <Mark.J.Smith@fpl.com>, "Carolyn Baker" <cabaker@duke-energy.com>, "Cody Carter" <cody.carter@williams.com>, "Curt Hatton" <curt.hatton@gen.pge.com>, "Eric Eisenman" <eric.eisenman@neg.pge.com>, "Greg Blue" <gtbl@dynegy.com>, "Jeff Dasovich" <jdasovic@enron.com>, "Kent Palmerton" <kent.palmerton@williams.com>, "Rob Lamkin" <rllamkin@seiworldwide.com>, "Roger Pelote" <roger.pelote@williams.com>, "Sue Mara" <smara@ect.enron.com>, "William Hall" <wfhall2@duke-energy.com>, "Ted Cortopassi" <TCortopassi@ogden-energy.com>, "Rich Dyer" <Rich_dyer@ogden-energy.com>, "Lucian Fox" <lucian_fox@ogden-energy.com>, "Alex Sugaoka" <Alex.sugaoka@uaecorp.com>, "Bill Adams" <sangorgon@aol.com>, "Bill Carlson" <wcarlson@wm.com>, "Bill Woods" <billw@calpine.com>, "Bob Ellery" <bellery@spi-ind.com>, "Bob Escalante" <rescalante@riobravo-gm.com>, "Dean Gosselin" <dean_gosselin@fpl.com>, "Doug Fernley" <fernley.doug@epenergy.com>, "Doug Levitt" <SDL@calwind.com>, "Duane Nelsen" <dnelsen@gwfpower.com>, "Ed Maddox" <emaddox@seawestwindpower.com>, "Ed Tomeo" <ed.tomeo@uaecorp.com>, "Frank Misseldine" <fmisseldine@caithnessenergy.com>, "Hap Boyd" <hap.boyd@enron.com>, "Jack Pigott" <jackp@calpine.com>, "Joe Greco" <joe.greco@uaecorp.com>, "Joe Ronan" <joer@calpine.com>, "Jonathan Weisgall" <jweisgall@aol.com>, "Ken Hoffman" <khoffman@caithnessenergy.com>, "Ken Salvagno" <kbssac@aol.com>, "Marty McFadden" <marty_mcfadden@ogden-energy.com>, "Milt Schultz" <bfpjv@c-zone.net>, "Nam Nguyen" <nam.nguyen@powersrc.com>, "Paul Wood" <paul_wood@ogden-energy.com>, "Paula Soos" <paula_soos@ogden-energy.com>, "Pete Levitt" <Pete@calwind.com>, "Robert Frees" <freesrj@apci.com>, "Ross Ain" <ain@worldnet.att.net>, "Steve Iliff" <siliff@riobravo-gm.com>, "Steve Ponder" <steve_ponder@fpl.com>, "Thomas Heller" <hellertj@apci.com>, "Tony Wetzel" <twetzel@thermoecotek.com>, "Ward Scobee" <wscobee@caithnessenergy.com>, "Wayne Kawamoto" <wkawamoto@wm.com> cc: "Carol H Hudson" <Chudson@iepa.com>, "Steven Kelly" <steven@iepa.com> Subject: Speaker Hertzberg Names Committee To Handle Energy Crisis. Members Will Organize Statewide Public Hearings, Examine Financial Practices and Craft Policy.

For Immediate Release: January 8, 2001 Contact: Paul Hefner Phone: (916) 319-2408

Speaker Hertzberg Names Committee To Handle Energy Crisis. Members Will Organize Statewide Public Hearings, Examine Financial Practices and Craft Policy.

SACRAMENTO - Working quickly to address the state's energy crisis, Assembly Speaker Robert M. Hertzberg (D-Van Nuys) and Assembly Minority Leader Bill Campbell (R-Villa Park) announced today the formation of a new committee that will hold public hearings across the state, shape legislation and probe financial practices among utilities and generators.

"The public deserves to know what went wrong. They deserve to know where the money went. They deserve answers, and we are going to get them," Speaker Hertzberg said. "In addition, members of the committee will hold hearings around the state to assess the impact of this crisis in every region of California."

"I applaud the Speaker's decision to form a special committee to address the energy crisis," said Minority Leader Campbell (R-Villa Park). "He has indicated a desire to make the committee bi-partisan and Republicans look forward to working cooperatively to resolve the significant energy crisis that California faces."

Aside from shaping the state's energy policy during the special session, the Assembly Committee on Energy Costs and Availability will hold public hearings across the state, seeking comment from ratepayers, small-business owners and

consumers on how the energy crunch is affecting them.

"This committee's first priority regarding the setting of rates for electric power will be price stability," said Assemblymember Roderick D. Wright (D-South Central Los Angeles), who Speaker Hertzberg named as Chairman of the Assembly Committee on Energy Costs and Availability. "This deregulation experiment has been risky and expensive, and has put the economic well-being of this state in jeopardy."

The committee will work with the staff of the Speaker's Office of Oversight to determine how utility companies have spent the money they received for their stranded costs, and what generators have done with their dramatic influx of cash.

"The public has a right to know where that money has gone," said Assemblymember Darrell Steinburg. "We will conduct a thorough investigation to determine just that."

The Speaker noted that David Wiggs, who helped restructure the Los Angeles Department of Water and Power in 1997, has been retained as an advisor to the committee. Wiggs will help the committee sort through market reforms and oversight of past utility spending. Wiggs is a retired chairman of El Paso Electric Co. and an experienced advisor for issues related to the electric utility industry. He is largely credited for leading El Paso Electric through a multi-year bankruptcy proceeding.

"There is no doubt that the state's consumers are faced with the most serious energy crisis in decades," said Assembly Speaker pro Tem Fred Keeley (D- Boulder Creek). "We are focused on market reforms, demand responsiveness measures and measures to stabilize the energy supplies. Consumers will only genuinely be protected from increasing energy prices when substantive reforms of the market place are adopted and take hold. Specifically we must, through legislative and regulatory actions, reform the way electricity is bought and sold and the way we contract for power on a long-term basis."

Speaker Hertzberg named the following additional members to the new committee:

Assemblymember Anthony Pescetti (R-Rancho Cordova) (Vice-chair) Assembly Speaker pro Tem Fred Keeley (D-Boulder Creek) Assemblymember Darrell Steinberg (D-Sacramento) Assemblymember Juan Vargas (D-National City) Assemblymember Jenny Oropeza (D-Long Beach) As

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CMTA Legislative Weekly - 07/05/01

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Legislative Weekly=20 July 5, 2001=20 Issue 27, Volume 3=20

A weekly publication from the=20 California Manufacturers & Technology Association=20 detailing legislative and regulatory developments in Sacramento

A DEDICATED REVENUE STREAM=20 Department of Water Resources Wants Money to Flow Their Way=20

Six months ago Department of Water Resources took over power purchasing=20 responsibility from the nearly insolvent investor-owned utilities. The=20 general fund was first tapped, then a short-term loan allowed the purchasin= g=20 to continue.? Now the state needs to issue \$13.4 billion in bonds authorize= d=20 in SBX1 31 (Burton D-San Francisco), to be paid back by utility ratepayers= =20 for more than a decade.=20

On July 12 the CPUC must decide how much of utility rates should be siphone= d=20 off to pay off the bonds and the ongoing costs of power being purchased on= =20 the spot market and under short and long term power contracts signed by DWR= .=20 This =01&dedicated revenue stream=018 (DRS) will be based on the latest ana= lysis by=20 utility and administration financial experts. The big question is whether= =20 current rates are high enough to cover all utility generation costs (nuclea= r,=20 qualifying facilities, hydro, etc.), DWR power costs, and all the other=20 elements of rates

(public purpose charges, transmission and distribution, etc.). Many assumptions about the spot market, the effects of the FERC price mitigation order and the level of customer demand enter into the calculation of the DRS. Wholesale spot prices have recently dropped, but there still could be a shortfall that would need to be made up in higher rates or with more borrowing to push off repayment to the future.

In related news, last week the CPUC nearly ordered the suspension of direct access in order to ensure that customers would not be able to leave utility service and thus escape the payment of bond and DWR power costs. Customer groups were able to persuade regulators to put off the decision pending legislation that could clarify a direct access customer's obligation to pay a fair share of these costs. To that end, ABX2 10 (Hertzberg D-Van Nuys) is being amended to make the bonds secured by the DRS rather than DWR contracts, thus creating more regulatory flexibility regarding the terms of direct access, and SBX2 27 (Bowen D-Marina del Rey) and ABX2 42 (Kelley R-Idyllwild) are the competing vehicles for how exit fees should be calculated.

LOCKYER CONVENES NEW GRAND JURY ON ALLEGED PRICE GOUGING

California Attorney General Bill Lockyer appointed 19 new members to a Sacramento County Grand Jury this week to consider the growing volume of evidence from both sides on the continuing investigations of alleged price gouging by power generators. The Grand Jury to be convened later this week will be issuing subpoenas for testimony and documents and is expected to be impaneled for several months.

In a related development, Lt. Governor Cruz Bustamante and Assemblywoman Barbara Matthews reportedly will introduce two new whistleblower acts to the state capitol on Thursday from a San Diego power plant. Recent testimony from three employees before a legislative committee investigating charges of wrongdoing on the part of a San Diego power plant claimed their employer, Duke Energy, manipulated the supply of electricity from the plant to increase the company's profits. In response, generators have produced documents showing they were simply following the direction from the State Independent System Operator to modify their electricity output.

WINDFALL PROFITS TAX LEGISLATION TO BE CONSIDERED

SBX2 1 (Soto D-Pomona) would impose a windfall profits tax on electrical power generators and is scheduled for hearing on Monday, July 9th in the Assembly Revenue and Taxation Committee. CMTA opposes the bill.

SBX2 1 pertains to all types of electricity generation including co-generation produced and sold by manufacturers and generation by other qualified facilities such as bio-mass and solar plants. It causes the excess profit to be confiscated by the state from a middleman in the supply chain: a 100% tax. This revenue is then distributed to individual taxpayer but not to business taxpayers (who paid the middleman the excess in the first place).

The bill is a state-imposed price cap. Excess profit is defined as anything exceeding a cost-based rate established by the PUC on a plant-by-plant basis. If enacted, SBX2 1 would have almost no effect on merchant generators, as most of them have entered into contracts with the state that pass on the cost of any increased taxes to the state. Furthermore, this legislation would violate federal law which preempts state law in this area. In accordance with the 1979 federal law, the PUC has set the price at which co-generators and other QFs can sell their energy. It is the cost that the utility would have charged had it performed the sale. This formula was devised to encourage manufacturers to build on-site generation and sell excess power for public use. This formula did not guarantee a profit for such generators but gave them an incentive to build generation facilities and operate efficiently. Changing the formula would result in manufacturers refusing to build more generation facilities and increased litigation costs until the courts wipe away SBX2 1 (Soto).

LIABILITY FOR ELECTRICAL NON-GENERATION

CMTA strongly opposed ABX2 51 (Reyes D-Fresno) which would make any retail or wholesale operator of an electric generation facility strictly liable for any damages proximately caused by that generator's reduction or discontinuance of service for economic reasons.

Neither negligence nor intent must be proven in order to establish strict liability. Under this legislation, a generator could be held strictly liable for damages that resulted if electricity supplies were curtailed when the generator was temporarily shut down to perform routine maintenance, unscheduled maintenance or due to other external

business factors (i.e. the= =20 high cost of fuel).? ABX2 51 also would make it difficult for a generator t= o=20 permanently close a facility, even if the facility was not operating=20 profitably.=20

Generators are only one component of many that work together to provide=20 reliable electricity supplies throughout the State.? However, ABX2 51 would= =20 result in generators shouldering the responsibility for all damages,=20 liability and responsibility for electricity shortages.=20

Amendments were taken to remove co-generation from the bill.? However, CMTA= =20 will continue to oppose the measure on the principal that imposing strict= =20 liability on generators will only discourage generators from siting new=20 facilities and selling their electricity within the State.=20

The measure passed from the Assembly Judiciary Committee on July 2 and next= =20 will be heard in the Assembly Energy Costs and Availability Committee. ?=20

STREAMLINING THE PIPELINE PERMITTING PROCESS=20

The CMTA is supporting ABX2 47 (Diaz D-San Jose) which would increase the= =20 financial threshold necessary to obtain a Public Utilities Commission (PUC)= =20 Certificate of Public Convenience and Necessity (CPCN) from \$50 million to= =20 \$100 million.? Increasing this threshold will allow for expedited=20 construction of new natural gas pipelines and will help to shore up the=20 infrastructure needed to increase the State's natural gas capacity.

The measu

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19 January, 2001 TR State NewsWire

Sender	gbrandon@tr.com
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File	dasovich-j/all_documents/8361.

STATES NEW JERSEY -- Bill sets market share test for promoting local competition INDIANA -- URC to investigate Ameritech service quality MISSOURI -- Bill targets Web sites that force computers to dial long distance numbers MONTANA -- Committee OKs Uniform Electronic Transactions Act INDIANA -- URC gives interim approval to parts of Ameritech UNE tariff CALIFORNIA -- PUC approves interim performance assessment plan OREGON -- PUC wants contested cases to go to state appeals court MONTANA -- Senate passes bill keeping '911' fund interest 'in the system' INDIANA -- URC seeks comment on scope of UNE proceeding ARKANSAS -- Rep. Hunt seeks to clarify computer crime law OHIO -- PUC to hold hearings on '614' area code relief proposals

SECTION 251/252 NEW JERSEY Bill sets market share test for promoting local competition

Sen. Robert W. Singer (R., District 30) has introduced SB 1522 to "establish conditions necessary for genuine competition to develop in the local exchange telephone market." The measure lays out standards and procedures that would apply to each incumbent local exchange carrier (ILEC) until its market share in its local service territory declined to 50% or below.

The Board of Public Utilities would have to hold a "cost-of-service" hearing within 45 days of the law's effective date to determine an ILEC's actual service costs, including costs of providing unbundled network elements to competitors. In analyzing costs, the BPU would have to use "parameters consistent with those established by the FCC."

The BPU would have to hold subsequent cost-of-service hearings every two years to provide for appropriate rate adjustments. After each hearing, the ILECs would have to file new rate tariffs with the BPU to reflect "actual costs of service, plus an authorized rate of return up to a maximum of 10%." The bill includes provisions to make sure "ILECs offer to lease network elements to competing local exchange carriers [CLECs]" and "otherwise conduct their business in nondiscriminatory ways with regard to CLECs."

"Immediately following" the law's effective date, the BPU would have to order full testing of the ILEC's operations support systems (OSSs). The board couldn't certify an OSS as functional unless the testing "unequivocally" demonstrated that it

met the same standards as required for systems used for switched interexchange service. The OSS would have to pass a 90-day commercial availability test before certification.

After the initial hearing, switched access rates would have to be reduced to cost. Unless cost data supported higher rates, the BPU would have to set access rates at no higher than \$.008 per minute for local switching charges and \$.00175 per minute for originating and terminating nontraffic-sensitive switched usage rates.

Another provision of the bill deems local calls to Internet service provider to be "local call[s] for reciprocal compensation purposes."

The bill aims to protect consumers by directing the BPU to establish a universal service fund (USF) that would be funded by all telephone service providers. The USF would provide discounted service for eligible schools and libraries and provide support for service in high-cost areas. The measure would require creation of a Lifeline service program.

The BPU would have to develop comprehensive performance standards, reporting requirements, service quality measurements, and enforcement mechanisms to ensure that service isn't degraded, and competitors aren't disadvantaged in the competitive marketplace.

SB 1522 has been referred to the Commerce Committee. An identical version (AB 3122) sponsored by Assemblywoman Rose Marie Heck (R., District 38) has been introduced in the Assembly. The text of SB 1522 is available at http://www.njleg.state.nj.us/2000/Bills/s2000/1522_i1.htm.

CUSTOMER-AFFECTING INDIANA URC to investigate Ameritech service quality

The Utility Regulatory Commission yesterday opened a formal investigation of Ameritech-Indiana's service quality. The commission acknowledged that the company's service quality has improved during the last few months but said it's concerned that during 2000 the company didn't meet service quality standards required by law. The URC said its investigation will require Ameritech to "convince the commission why enforcement action should not be taken."

According to the URC, Ameritech doesn't comply with the state law requirement to restore all service outages within 24 hours of the time they're reported. (170 IAC 7-1.1-11(E)(1)) Ameritech managed to comply with the requirement just 85.3% of the time during the first quarter of 2000, 81.4% of the time during the second quarter, and 66.2% during the third quarter.

The URC said Ameritech's performance falls short of compliance with the state law requirement that it fulfill at least 90% of all requests for new primary service in any month within 5 days. (170 IAC 7-1.1-11(A)(2)) Ameritech complied with the standard 86% of the time during first quarter 2000, 85.5% during the second quarter, and 88.6% during the third quarter.

It said Ameritech also fails to meet the standard requiring it to make all reasonable efforts to provide adequate personnel so that under normal operating conditions, at least 80% of calls to business office and repair service are answered within 20 seconds after the beginning of a ring, the URC said. Ameritech's average response to answer phone calls in 2000 ranged from a low of 62.5 seconds in January to a high of 222.7 seconds in August, it said.

INTERNET MISSOURI Bill targets Web sites that force computers to dial long distance numbers

Sen. John Loudon (R., District 7) has proposed a bill to prohibit Web site operators from causing users' computers to dial long distance numbers without informing the users. SB 70 would add a new section to Chapter 570, RSMo.

Web site operators who violated the new section could be charged with a "class A" misdemeanor if related long distance charges were \$150 or less. If the charges totaled more than \$150, the Web site operator could be charged with a "class C" felony.

SB 70 has been referred to the Civil and Criminal Jurisprudence Committee. Its text is available at <http://www.senate.state.mo.us/01info/billtext/intro/SB070.htm>.

INTERNET MONTANA Committee OKs Uniform Electronic Transactions Act

The state House Business and Labor Committee has approved a Uniform Electronic Transaction Act to prohibit anyone from denying legal effect or enforceability to a record or signature solely because it's in electronic form. (1/3/01 p.m.)

Each government agency would be able to determine whether and to what extent it would send and accept electronic records and electronic signatures. The committee amended the bill to state that government agencies wouldn't be limited to specific types of technologies.

HB 234 states that electronic signatures would be valid only if all parties agreed to conduct a transaction electronically. If a party agreed to conduct one transaction by electronic means, the party could refuse to conduct other transactions electronically. This right to opt out of electronic transactions couldn't be waived.

Secretary of State Mike Cooney (D.) is the sponsor of HB 234, which awaits consideration on the House floor.

SECTION 251/252 INDIANA URC gives interim approval to parts of Ameritech UNE tariff

The Utility Regulatory Commission yesterday gave interim approval to the terms and conditions portion of Ameritech-Indiana's proposed unbundled network element (UNE) tariff. The interim approval is subject to challenge in a formal pleading by any competitive local exchange carrier, other party to the case, or the commission's own motion to investigate a specific term or condition. The URC gave final approval, however, to the tariff

Message 136 of 1299

Regulatory Analysis of Peering Arrangements

Sender	wayne.gardner@enron.com
Recipients	['alisa.christensen@enron.com', 'xi.xi@enron.com', 'beth.wapner@enron.com']
File	dasovich-j/all_documents/8242.

Xi Xi, Thank you for your note. The reason that regulatory, legal, and tax need to analyze peering arrangements is that it appears that EBS may use such arrangements to effectively provision IP transport and IP transit obligations (see attached note from Gunnar Frey).

Do you believe what Gunnar contemplates in his note falls within the definition of a peering arrangement set forth in your note?

I think the basic questions are best framed in concrete terms:

If a US customer with an office in Sao Paulo were to pay EBS, Inc., to provide IP transport from Sao Paulo to the US, would EBS Inc. be required to establish a Brazilian entity with a Brazilian telecom license to provide the IP transport?

If the answer to the foregoing question is yes, would it matter whether the IP transport were provisioned through the purchase of private line capacity from Sao Paulo to Miami or via the peering arrangement described below with Impsat?

If the answer to the foregoing question is no, would EBS' licensed Brazilian entity have to be a party to the Impsat peering arrangement?

Regards,

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532 ----- Forwarded by Wayne Gardner/Enron Communications on 09/01/2001 08:19

Gunnar Frey 26/12/2000 17:55

To: Wayne Gardner/Enron Communications@Enron Communications cc: Donald Lassere/Enron Communications@Enron Communications, Arshak Sarkissian/Enron Communications@Enron Communications Subject: Re: BMC Software

Wayne,

You may have surmised this already but for the BMC Sao Paulo E-1 I am planning to use Impsat Fiber Network. I wrote you about this company at the end of November and proposed this scenario. I think last time we spoke you said you thought we should be able to do this without creating a foreign entity or tax liability. Is that still true. Thanks,

Wayne,

Arshak and I have been working to reach an agreement with Impsat Fiber Networks. Impsat has an extensive network in 8 countries in Latin America as well as a pop in Miami. We have been discussing a peering/transit agreement whereby one of our customers could connect to an Impsat port in Latin America for IP transit to the EIN. As we envision this now, we would swap Impsat a dedicated 45mbps port to our network for one into their network. The connection between the two networks will take place in Miami. If an EBS customer wanted IP capacity back to the US they could connect to any Impsat port in Latin America. The customer would pay Impsat a port connection fee at every point where they connected to Impsat in Latin America. EBS's customer would pay EBS USA for the capacity (e.g. 8 mbps).

The reverse would be true for an Impsat customer in the US. The Impsat customer could connect to an EIN port for a fee that would be paid directly to EBS but any charges for capacity would be paid to Impsat. The Impsat customer could use the EIN for transport between EBS pops and an EBS customer could have transit between Impsat's pops. We would expect the EBS customer's Latin America requirement to be part of a larger VBN deal with components in the US and, possibly, other continents.

Would this scenario create a tax liability for EBS in Latin America? Impsat is incorporated in Delaware and trades on the NASDAQ. Their hqs are in Argentina. I welcome anyone's comments. Thanks,

Gunnar Frey Enron Broadband Services Global Bandwidth Risk Management Tel: (713) 853 - 4375; Fax: (713) 646 - 8795

Gunnar Frey Enron Broadband Services Global Bandwidth Risk Management Tel: (713) 853 - 4375; Fax: (713) 646 - 8795

<http://www.enron.net/>

----- Forwarded by Wayne Gardner/Enron Communications on 09/01/2001 08:19

Xi Xi 08/01/2001 19:43

To: Wayne Gardner/Enron Communications@Enron Communications cc: Alisa Christensen/Enron Communications@Enron Communications, Angie Buis/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, David DeGabriele/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Derenda Plunkett/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Gerry Willis/Enron Communications@Enron Communications, James Ginty/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jeff Dasovich/NA/Enron@ENRON, Lara Leibman/Enron Communications@Enron Communications, Malini Mallikarjun/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Michael.Norris@enron.com, Michelle Hicks/Enron Communications@Enron Communications, Mike Dahlke/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Rajen Shah/LON/ECT@ECT, Richard Anderson/Enron Communications@Enron Communications, Robbi Rossi/Enron Communications@Enron Communications, Sue Nord/NA/Enron@ENRON Subject: Re: Proposed Tarl Agenda - Meeting for 9 am Thursday, January 11 (location/call-in to be announced)

Wayne,

This my response to your question.

What is the regulatory analysis of peering arrangements?

Peering is an act of establishing a relationship to pass Internet traffic between one national internet backbone provider to another national provider. Peering is currently not subject to any industry-specific regulations and is governed by commercial requirements. The reason that peering is not regulated by Federal Communications Commission or any other agency is mainly due to two factors:

1) data traffic has not been subjected to the same stringent regulation as voice traffic

2) history of Internet -- Since it was the National Science Foundation (NSF) who founded the first backbone to encourage the exchange of information between different scientists and researchers, the open environment for peering was essential to the rapid growth of the Internet. Currently, most of the Internet traffic is exchanged through private pooling instead of the public Network Access Point (NAP). With private peering, traffic can be exchanged in the same city, which avoids the

classic syndrome in which traffic that originates and terminates in Houston would have to travel through NY or even India.

Please note that peering is not to be confused with Interconnection in the PSTN, which are very cumbersome and expensive.

May I also ask for what reason are you bringing up the topic of peering, is there a deal involving this topic ?

Please let me know if you have any questions.

Xi Xi

Wayne Gardner 01/08/01 11:12 AM

To: Alisa Christensen/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, David DeGabriele/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Derenda Plunkett/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Gerry Willis/Enron Communications@Enron Communications, James Ginty/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jeff Dasovich/NA/Enron@ENRON, Lara Leibman/Enron Communications@Enron Communications, Malini Mallikarjun/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Michael.Norris@enron.com, Michelle Hicks/Enron Communications@Enron Communications, Mike Dahlke/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Rajen Shah/LON/ECT@ECT, Richard Anderson/Enron Communications@Enron Communications, Robbi Rossi/Enron Communications@Enron Communications, Sue Nord/NA/Enron@ENRON, Xi Xi/Enron Communications cc: Angie

Message 137 of 1299

Enron Mentions

Sender m..schmidt@enron.com

Recipients []

File dasovich-j/deleted_items/1867.

Fitch Places Marlin Water Trust II & Osprey Trust I on Rtg Watch Bloomberg, 10/26/01 2001-10-26 15:00 (New York)

Enron's Debt Falls As Company Draws Down On Bank Loans Capital Markets Report, 10/26/01 Enron Sues Microsoft Over Failed Broadband Services Deal Dow Jones Energy Service, 10/26/01 ENRON UNIT TAKES HEAT POWER GROUP SAYS ENERGY FIRM FAILED BOND REQUIREMENTS The Boston Globe, 10/26/01 FRONT PAGE - COMPANIES & MARKETS: Enron's explanations fail to quell critics' concerns Financial Times; Oct 26, 2001

Enron Bonds Fall as Company Taps \$3 Bln Credit Line (Update3) Bloomberg, 10/26/01

Weiss & Yourman Law Office Announces Class Action Lawsuit Against Enron Corp. Business Wire, 10/26/01

Fitch Places Marlin Water Trust II & Osprey Trust I on Rtg Watch 2001-10-26 15:00 (New York)

Fitch Places Marlin Water Trust II & Osprey Trust I on Rtg Watch Neg

Fitch-NY-October 26, 2001: Fitch has placed the ratings of Marlin Water Trust II's (Marlin II's) approximately \$915 million senior secured notes due 2003, and Osprey Trust's (Osprey's) approximately \$2.4 billion senior secured notes due 2003 on Rating Watch Negative. The Marlin II notes and the Osprey notes are currently rated 'BBB'. This rating action follows the placing of Enron Corp.'s ratings on Rating Watch Negative by Fitch.

The rating of the Marlin II notes is supported by an overfund account (pre-funded interest) and equity commitment from Enron in the form of mandatorily convertible preferred stock. The overfund account is invested in Enron debt securities (rated 'BBB+', Rating Watch Negative), with payments used to service interest to noteholders. Payment of principal ultimately relies on Enron's obligation to remarket mandatorily convertible preferred securities. Fitch currently rates

Enron's preferred securities 'BBB-', Rating Watch Negative. In addition, the transaction also benefits from rights under a \$125 million loan to Azurix Europe Limited, rated 'BBB+' by Fitch.

Similarly, the rating of the Osprey I notes is based on the support from the assets in the share trust used to support interest payments and an equity commitment from Enron to remarket mandatorily convertible preferred stock to fund principal payments. The mandatorily convertible preferred stock has been issued and is being held in the share trust. The assets in the share trust supporting interest payments include Enron unsecured obligations (the overfund account) as well as quarterly dividend payments on the mandatorily convertible preferred stock.

While various sources of repayment exist, such as sale or liquidation of the underlying assets or an equity offering, in each case primary credit support is derived from the Enron obligation to remarket mandatorily convertible preferred stock if an amount sufficient to repay the notes has not been deposited with the trustee the 120-day prior to the maturity date, which is one of the Note Trigger Events. In the event that the issuance of the preferred stock yields less than the amount required to redeem the senior notes, Enron is required to deliver additional shares. If Enron cannot or does not deliver on this obligation, subject to certain standstill periods, then the amount of the deficiency becomes a payment obligation of Enron, representing a general unsecured claim. Additional Note Trigger Events include a downgrade of Enron's senior unsecured debt below investment grade by any of the major rating agencies in conjunction with specified declines in Enron's closing stock price over three consecutive trading days, as well as customary events of default under the notes. It is important to note that Enron has not verified that the underlying assets have adequate market value to fully pay down the associated debt.

Fitch will continue to monitor these transactions in conjunction with the ratings of Enron, Corp. and will update investors as appropriate.

Enron's Debt Falls As Company Draws Down On Bank Loans

10/26/2001 Capital Markets Report (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- Enron Corp.'s (ENE) bond and bank debt was quoted lower early Friday following the Houston energy giant's decision Thursday to draw down about \$3 billion on its bank loan facilities. Late Thursday, Enron said it had taken action to dispel uncertainty in the financial community. Specifically, the company said it drew on its committed lines of credit to provide cash liquidity in excess of \$1 billion. Enron's 6.4% bonds which come due in July 2006 were hovering just below 80 cents on the dollar, down from around 82 cents on Thursday. Trading activity in investment-grade bank debt like that of Enron's isn't as active as the market for leveraged loans made to companies with less than investment-grade ratings. But fixed-income sources noted some offers Friday for Enron's bank debt at around 94 cents on the dollar, still well-above distressed levels. They add that banks may want to try to sell Enron's bank debt, which is now funded following the drawdown, but at a coupon that was negotiated several months ago. That was well before Enron ran into its current market turmoil. Last week, the company reported a \$618 million third quarter loss and \$1.2 billion reduction in shareholder equity. The company has said that the Securities and Exchange Commission is conducting an inquiry into transactions it did with Andrew S. Fastow, its former chief financial officer who was replaced on Wednesday. Moody's Investors Service rates Enron's senior unsecured debt at Baa1, though it's on review for a possible downgrade. Fitch Inc. and Standard & Poor's both rate the debt triple-B-plus. Fitch also has Enron's debt on review for a possible downgrade, while S&P changed Enron's credit outlook to negative from stable. Enron's stock was trading at around \$15.87, down 48 cents at around 12.20 p.m. EDT. Among the Enron bank debt that comes due in May 2002 is a \$1.75 billion 364-day commercial paper backstop facility. The company also has a \$1.25 billion revolving facility that's due in April 2005, according to Loan Pricing Corp. in New York. One distressed debt investor said some of the bank debt comes with a low coupon of around 55 basis points over the London Interbank Offered Rate. Banks, the investor said, "are funding it and not getting paid for the risk at Libor plus 55, even though it comes due in May '02," the investor said. Another fixed-income official said that trading desks may start to kick the tires on Enron's bank debt, given the run of fallen angels, or investment-grade companies that have been downgraded to below investment-grade status, within the last year. Among such companies are Lucent Technologies Inc. (LU) and Xerox Corp. (XRX) "As soon as banks have a piece of paper they never expected to be funded, it really changes their perception and some just want to get this stuff off their books," this person said. Some banks, though, may not be active seller of Enron's debt given that banks' business with big investment-grade companies is relationship-driven. "Banks are not very quick to pull out of a relationship like that," the fixed income official said.

-By Joe Niedzielski, Dow Jones Newswires, 201-938-2039; joe.niedzielski@dowjones.com

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Enron Sues Microsoft Over Failed Broadband Services Deal By Michael Rieke Of DOW JONES NEWSWIRES

10/26/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- In a July conference call with analysts when Jeff Skilling was still chief executive of Enron Corp. (ENE), he threw out a ray of hope for his company's foundering broadband business. Enron Broadband Services had just signed a long-term deal to provide bandwidth for MSN, Microsoft Corp.'s (MSFT) online Internet service, S

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FW: Enron Dumps CFO Amid Conflict Questions

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Recipients	['jeff_dasovich@enron.com', 'eldon@direcpc.com', 'psellers@haas.berkeley.edu']
File	dasovich-j/deleted_items/762.

You guys sure are in the news a lot!! I think you should take over - it's the only way out

-----Original Message-----

From: CFO.com_Newsletters@cfo.com [mailto:CFO.com_Newsletters@cfo.com] Sent: Thursday, October 25, 2001 9:09 AM To: nancy.sellers@robertmondavi.com Subject: Enron Dumps CFO Amid Conflict Questions

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Thursday, October 25, 2001 Circuit Breaker: Enron Dumps CFO Amid Conflict Questions

By Stephen Taub

Enron Corp. is set to replace CFO Andrew Fastow. As CFO.com reported in a story earlier this week, Fastow's role in a limited partnership has raised concerns about a conflict of interest.

Fastow is succeeded by Jeff McMahon, who had been serving as chairman and CEO of Enron's Industrial Markets group. From 1998 to 2000, McMahon was Enron's treasurer. He resigned that post in part because he disapproved of Fastow's role in running two partnerships, according to The Wall Street Journal.

"In my continued discussions with the financial community, it became clear to me that restoring investor confidence would require us to replace Andy as CFO," said Kenneth L. Lay, Enron chairman and CEO, in a statement.

McMahon, 40, joined Enron in 1994 and spent three years in the London office as CFO for the company's European operations. Upon returning to the United States, McMahon assumed the post of EVP of finance and treasurer for Enron Corp. In 2000, he was named president and COO of Enron Net Works, where he focused on E-commerce activities.

As reported on Friday, The Wall Street Journal said a limited partnership organized by Fastow, who has been Enron's CFO since 1997, racked up millions of dollars in profits from transactions conducted with the energy company.

On Monday, Enron said the Securities and Exchange Commission requested information regarding certain related party transactions.

On October 16, Enron stunned Wall Street when it announced that it would take a \$1.01 billion after-tax charge for the September 30 quarter.

Since the announcement, Enron's share price has more than halved.

Fastow's dismissal seems to be an about-face for Enron. In a conference call Tuesday, Lay said the partnerships were fully disclosed and took steps to assure that there was no conflict as Fastow played both roles. Enron has since dissolved the partnerships.

"Obviously, the board and even the lawyers and auditors realized that there would be an apparent conflict of interest there and the board prescribed certain methods for it to be dealt with ... so Enron would never be compromised," Lay said in published accounts. "We are very concerned [at] the way Andy's character has been loosely thrown about in certain articles, as well as the company's reputation."

Predictably, on Wednesday at least two law firms - Stull, Stull & Brody and Bernstein Liebhard & Lifshitz, L.L.P. - filed class-action suits against Enron, Lay, Fastow, and Jeffrey K. Skilling, the former Enron chief executive who resigned in August.

The suits allege that the defendants issued false and misleading information that materially misstated the company's condition and prospects to the investing public. Moreover, the suits argue that the company failed to disclose material information necessary to make its prior statements not misleading.

The complaints charge that Enron issued a series of statements concerning its business, financial results, and operations which failed to disclose, among other things:

- * The company's Broadband Services Division was experiencing declining demand for bandwidth, and the company's efforts to create a trading market for bandwidth were not meeting with success, as many of the market participants were not creditworthy.
- * The company's operating results were materially overstated, since Enron failed to write down in a timely fashion the value of its investments with certain limited partnerships - the partnerships that were managed by Fastow.
- * Enron was failing to write down impaired assets on a timely basis in accordance with GAAP.

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The results of CFO's survey will be used in a December Technology Report that will examine the change management issues that surround implementations of this type of software in organizations. All responses will only be used in the aggregate. Your input is important, please take a moment and participate. Thank you!
<http://charts.cfo.com/cfomag/bpsurvey1.html>

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This email was sent to:nancy.sellers@robertmondavi.com

For example, the need to conform to social norms leads survey subjects to overstate their socially desirable behaviors (e.g., use of condoms) and to underreport their socially undesirable behaviors (e.g., sharing needles).

Surveys generally remind individuals of unsafe behaviors they may have practiced. However, subjects may find it difficult to remember whether or how often they have engaged in these behaviors -- either because the survey mentioned several such behaviors or because the individuals have not engaged in such behaviors often or recently. Difficulty in accessing this information leads to skewed survey responses.

Based on these findings, the authors developed new guidelines for social marketers and public health officials to increase the effectiveness of AIDS prevention campaigns.

HAAS PROGRAM ATTRACTS NON-BUSINESS STUDENTS FROM ACROSS THE US The Haas School has enrolled a group of 64 undergraduates from institutions around the globe to participate in the Business for Arts, Sciences, and Engineering (BASE) program, run by the Undergraduate Program Office. This summer's program started on July 9 and will run through August 17.

BASE is an intensive, six-week educational experience geared towards non-business majors. Now in its fourth year, the goal of BASE is to give non-business students an opportunity to learn the fundamentals of business with a stimulating mix of theory and practice. Many of the students attending BASE are from Cal and the other UC campuses, but more than half of the students come from schools outside the UC system. Stanford, Dartmouth, Brown, and the University of Toronto are among the 24 schools with students in the program.

BASE students enroll in three courses: Finance and Financial Accounting (BA 120) taught by Vic Stanton, Marketing (BA 160) taught by Trudy Kehret-Ward, and Human Resource Management (BA 150) taught by Holly Schroth. Outside the classroom, the program focuses on practical applications of knowledge -- the students take field trips to Goldman Sachs, Cisco, and Accenture. There are also career workshops and mock interviews to prepare students for the job market. ? ? For more information, please refer to the program's web site at http://haas.berkeley.edu/Undergrad/BASE_.html.

CED CREATES CUSTOM PROGRAMS FOR LOS ALAMOS NATIONAL LAB The Center for Executive Development at the Haas School delivered its first one-day custom executive program on High-Tech Marketing and Opportunity Recognition for Los Alamos National Laboratories on Monday, June 18.

"This course is part of the Management of Technology (MOT) Program's overall effort to make Haas an integral partner in new business development based on technologies developed at the Los Alamos Lab," says Drew Isaacs, executive director of MOT. Other successful aspects of this collaboration include MOT summer internships at the lab for Haas students, and a planned series of courses on business fundamentals for later this year and early next year.

This executive program was designed to provide engineers and scientists with a strategic overview of the business skills needed for successful high-tech entrepreneurship and new venture creation. The program was held in Los Alamos, New Mexico. The course, limited to 25 participants, was oversubscribed and is likely to be repeated later this year.

For information on custom executive programs at Haas, contact the Center for Executive Development at 510-642-4735, e-mail execdev@haas.berkeley.edu or visit the web site <http://www.haas.berkeley.edu/ced>.

HAAS E-MAIL IS AVAILABLE ON THE WEB Haas students, faculty, and staff can now check their Haas e-mail through any Internet browser, anywhere in the world through Haas' new WebMail service. ? To use Haas WebMail, go to <http://www.haas.berkeley.edu/HCS>, click on My Haas WebMail, and enter your user name and password. This is a pilot program for the Haas community.

FACULTY NEWS IYER WINS MARKETING SCIENCE AWARD Assistant Professor Ganesh Iyer received the prestigious John D.C. Little Award for the best paper in Marketing Science written in 2000 for his article, "Markets for Product Modification Information," Marketing Science, Vol. 19 (2000), No. 3, pp. 203-225. This was the lead article in the issue in which it appeared. Iyer's coauthor on this article was David Soberman, an assistant professor at INSEAD, France. ?

O'BRIEN JOINS THE FACULTY John O'Brien, executive director of the Master's in Financial Engineering program, has been appointed Adjunct Professor at Haas, effective July 1, 2001. O'Brien joined Haas in July 2000 to help establish the MFE Program. He has over three decades of experience in finance. He was managing director of the Client Service Group at Credit Suisse Asset Management and helped launch CSAM's entry into e-commerce. In the early 80s, he co-founded

Leland O'Brien Rubinstein Associates, Inc., with Haas finance professors Hayne Leland and Mark Rubinstein. He served as chairman and CEO there until 1997.

HAAS IN THE NEWS Dean Laura Tyson wrote an opinion piece on globalization? for The New York Times titled "The New Laws of Nations" published on July 14.

Carl Shapiro, the Transamerica Professor of Business Strategy and the director of the Institute of Business and Economics Research, appeared in the Wash

Message 140 of 1299

WPTF Friday Deliver Unto Us A Burrito

Sender	foothi19@idt.net
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File	dasovich-j/all_documents/29372.

THE FRIDAY BURRITO "...more fun than a fortune cookie, and at least as accurate."

=01&Are those folks smoking crack?=018 he asked in an outrage. My friend, = 0l=01, Dave in Houston, has trouble understanding the workings of our power business here in California. In fact, so do I. Yesterday=01,s Joint Senate/Assembly Committee on Energy and Natural Resources did nothing to improve either Dave=01,s or my understanding of the national embarrassment California is perpetrating with electricity deregulation.

=01&The next thing you know, they will be taking property, and forcing utilities to build power plants and transmission,=018 he mused between sips of Dixie longneck beer and chomps of jalapeno peppers. =01&Come to think of it, Dave, they did say something about that. Yeah,=018 I recalled, =01&Senator Peace was expounding on his favorite idea which is forcing the ISO or the utilities to build peakers, and not let the market build them. I can=01,t remember if that was before or after he suggested to EOB Chairman Kahn that the ISO and the PX should be folded into State agencies under the direction of the Electric Oversight Board.=018

I know what you are thinking right now. The next thing you know California will have regulated retail rates. That recipe should be out of the PUC=01,s oven sometime next week.

=01&Well, the power marketers are jiggling the system, bidding up to the ISO=01,s bid cap. There is no way you can tell me that a generator planned to make \$750/MWH in its pro forma,=018 Dave added. =01&So you agree with Herr (Hair) Peace! You don=01,t believe in markets,=018 I retorted. = =01&Oh, I believe in them, but I remember when I was short on a 300 MW trade, and without any notice or advanced warning, the price in the Midwest market went against me,=018 Dave recalled. =01&I called everyone who I tra= ded with, and they had nothing. I finally called XXXXX, and I asked what will it cost for 50 MW?=018

=01&Why didn=01,t you ask for 300?=018 I wondered. =01&I didn=01,t want to= show him my position. You get hosed when you show the buyer your position. Ask for 50, first,=018 Dave chided.

=01&What happened?=018 =01&Oh, they offered to sell for \$150/MWH. I said I= =01,d take it, and then said I needed another fifty. He asked \$300. I took that, and he priced the next 50 MW at \$600,=018 lamented Dave. =01&He just wanted to see how far he could push me. That=01,s what I mean when I say the traders are jiggling it.=018

=01&But Dave, you old communist, your forgetting the trading function is what mitigates the risk. The traders are the in between people who guess at the price. Sometimes they guess right, and sometimes they guess wrong. But the damage, or the reward, is on their book, not passed on to the ultimate consumer. It has nothing to do with the marginal cost of a generating plant.=018

And there you have it. Put in a price cap, and the traders have a target for which to shoot. I can=01,t prove the following, yet, but I=01,I= I wager with any of you that as the price cap level dips down, the average trading price climbs even as the so-called =01&dysfunctional=018 price spik= es are eliminated. Consumers get hosed, and the fundamental economic principle is upheld, which is, one can never be made better off with the imposition of an additional constraint.

I feel better already. Here is what is on our short agenda this week.

Things in the Mailbag

Things in the People=01,s Republic of California

@@@ The ISO Replies to the EOB Report @@@ Reflections on a Day of Senate Hearings @@@ PUC Issues Oil on Functioning of Wholesale Market

Odds & Ends (!)

Things in the Mailbag

It has been awhile since we put the mail feedbag on and had a munch. Here is what my friends have been writing me.

FPL Energy=01,s Steve Ponder was only too quick to tell me, =01&Please Gary= , no more whining about your computer. How old are you?? Is this the year you get the AARP letter??? A very depressing moment. Do you really not know how to spell Morro Bay??? Please let us know what is going on with your son's hockey team?? Don't forget the cigars for Moron??? Bay!!!!=018

It is good to have friends like Steve. They make the pain of separation so much easier. And Steve, when you FPL guys get that Entergy merger sorted out, in a dozen years or so, you let us know. I want to participate in the name selection for the new entity. How about Fentergy PLus?

Next, from the PX=01,s Mark Hoppe, who writes, =01&As you've heard from others, I don't know quite how you manage to knock out all this material each week. The burrito is informative, humorous and usually contains a sprinkle of irony, tragedy (ISO Drama). Though you are usually neutral regarding the PX, you are not unduly negative which I appreciate. I think we do a pretty good job over here and so often people in the industry forget the amount effort and challenge it took the PX to successfully open this market.=018

Thanks, Mark. I just want you to know that my ability to write this stuff every week is not constrained by the facts or evidence. I have learned from watching Herr (Hair?) Peace, that as long as you can talk (write, too) fast, and have conviction in your statements, regardless of how groundless they may be, you will have a willing and eager audience.

A few weeks ago, I received from the PX=01,s Jennifer Sherwood a note, which she wants you to know are her opinions, not necessarily the PX=01,s. It=01,s okay, Jennifer. I paid George,yesterday, the \$20 I owed him for that sham Rose Bowl bet, (remember?, Stanford lost) and your opinions are cool with us. =01&Just curious - has anyone been comparing high unleaded prices to high CA electricity prices? What I mean is, we are up in arms about how we should protect the unfortunate San Diego consumer who can't afford to keep the AC on. But what about the inflated unleaded gas prices the whole country has seen over the last few months? No effort is made by the government to shield the consumer from how much it costs to fill their gas tank. No mention is made of those who can't afford to drive to the grocery store because they can't afford the extra 15 or 20 cents a gallon. The costs are passed along to the consumer without pause. Granted there are differences between the unleaded market and the electricity market in terms of demand-side responsiveness, but then again is it that much different to say, =01+I can't drive today because gas is too expensive=01, vs. =01+I can't turn up the AC today because it's too expensive.=01,=018

Finally, from one of our [secret] Washington readers, and I am not telling who, I received the following: =01&I ... broke down and listened to the [ISO Governing Board] discussion and vote. Ugh! I too noted that the "speak fast" was applied to everyone but Herr Peace. My goodness, what a mess we have. I loved Jerry's picture in USA Today -- it spoke volumes. My sources at FERC tell me, though, that we should keep an eye out for {FERC Chairman} Hoecker to do something really ... [Censored] ... for political reasons. Given no Commission meetings til September, the only way to act is by unanimous consent, so I would hope he can't do all that much.=018

Things in the People=01,s Republic of California

@@@ The ISO Replies to the EOB Report

Several of you people commented to me that the ISO=01,s reply to the PUC/EOB report was very good. I decided to excerpt the best sections of it for the Burrito. The full document can be found on the ISO=01,s website.

=01&... the [PUC/EOB] Report asserts that the suspected activities of certain generators on June 13 created frequency instability leading to the Bay Area blackouts the following day. In fact, the events of June 13 and June 14 were completely

indep

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Re: Proposed Agenda for 12/7/00 Meeting @ 0830

Sender	david.merrill@enron.com
Recipients	['wayne.gardner@enron.com', 'donald.lassere@enron.com', 'sue.nord@enron.com', 'michelle.hicks@enron.com']
File	dasovich-j/all_documents/4317.

Wayne - to remind, there are two operational issues that had been on the agenda that keep getting deferred : the Singapore license entity and a regulatory issue in Korea. The deferral of the Singapore one defers our license application and our timeline for Singapore. I told the commercial team we hoped to deal with it in this week's call, but that even then the license would slip to January, with Singapore processing time. So we need to try to decide the entity this week or next, either in this call, or by e-mail, or in a separate call - - whatever is the most efficient way. Otherwise with the holidays we may lose an additional month. What is the best mechanism to decide this?

In Singapore, if we can see our way clear to go with the already established entity, of course that would be simpler, but I defer to the group's judgment.

For the Korea question, perhaps all we need to do is agree to ask Kim and Chang to look at it (including mine and Jan Haizman's and Jae-Moo Lee's thoughts) and give us their advice. If legal authorizes that I can get some material worked up to send.

I will be on the Thursday call from the beginning unless I am in the air in which case I will join around 60-90 minutes into the call.

Thanks.

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, Richard Anderson/Enron Communications@Enron Communications, James Ginty/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications, Ban Sharma/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jeff Dasovich/NA/Enron@ENRON, Mike Dahlke/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Michael Grimes/AP/Enron@Enron, Bill White/Enron Communications@Enron Communications, Kristin Albrecht/Enron Communications@Enron Communications cc: Angie Buis/Enron Communications@Enron Communications

Subject: Proposed Agenda for 12/7/00 Meeting @ 0830

1. Review attached note to confirm that we are restricted to one option (the "Regulatory Structure") from a regulatory standpoint with respect to the trading of Japanese bandwidth.
2. Determine whether there are similar restrictions in Singapore or Hong Kong requiring us to adopt a similar Regulatory Structure.
3. Review the tax costs and risks arising from the Regulatory Structure and describe the steps that must be taken to manage the tax risks.
4. Given the foregoing, determine what specific steps are necessary to implement the Regulatory Structure and manage the concomitant tax, legal, accounting, and credit risks.
5. Review what steps, if any, are necessary to permit bandwidth trading by the US (and UK?) trading desks of bandwidth terminating in Australia.

6. Time permitting, determine whether regulatory considerations require that we adopt a structure similar to the Regulatory Structure in Mexico, Brazil, or Argentina.

7. Time permitting, review what steps, if any, are necessary to permit bandwidth trading by the US (and the UK?) trading desks of bandwidth terminating in Canada.

Questions and comments are invited. Thanks.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532 ----- Forwarded by Wayne Gardner/Enron Communications on 05/12/2000 08:28

Wayne Gardner 17/11/2000 18:12

To: Sue Nord/NA/Enron cc: James Ginty/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Japan Trading

Dear Sue, Because of the important role of Japan in the trading business of EBS, I want to make sure I understand very clearly our regulatory options. For the sake of simplicity, I limit the discussion below to trading of segments between Japan and the US on the grounds that the Japanese principles that apply to any other trading of international segments would be identical. The discussion is further limited to the purchase of IPLCs because that is the standard form of telecom capacity available for purchase out of Japan. Finally, based on input from Regulatory, the discussion assumes that the purchased IPLCs are divided into half-circuits. The Japan half-circuit terminates in Japan and in the middle of the Pacific. The US half-circuit terminates in the middle of the Pacific (picking up where the Japan half-circuit terminates) and in the US.

I. Our only option from a regulatory standpoint: We understand that the only option from a regulatory perspective is as follows: EBS Networks YK ("YK") purchases the Japan half-circuits because it has an ST2 license and switch in Japan through which it will route ALL trades. EBS Trading L.P. ("Trading") purchases the US half-circuits only. Each of Trading and YK can resell their respective half-circuits in the form of capacity under the EBS Master Services Agreement (the "Master") to others, who may be resellers or end-users.

II. Tax consequences of structuring trades in accordance with this option: At best, the tax consequences of the foregoing are that half of the earnings on Japan to US trading will be subject to 42% immediate Japan income tax (with no ability to defer the cash payment of tax with Enron's US tax loss carryforward). In addition there may be significant exposure to US income tax (we are in the midst of quantifying this risk and evaluating potential ways around it) which would incrementally increase the effective income tax rate to 62%. If instead Trading undertook all the Trading activity, virtually all of the earnings of Japan to US trading would be subject to a single rate of US income tax (35%) and the payment of such tax could be deferred for a significant period of time due to Enron's large US tax loss carryforward.

III. The following options have been ruled out by Regulatory for the following reasons:

Unworkable Option 1: Trading does not acquire an ST2 license. Trading buys US and Japan half-circuits directly and resells them in the form of capacity under the Master to others, who may be resellers or end-users.

This option is illegal from a regulatory standpoint even though YK has an ST2 license. Japanese telecom regs provide that a reseller of Japanese IPLC capacity must hold an ST2 license directly. In other words, the regulations provide that no affiliate of the YK licensee may resell IPLCs unless that affiliate itself acquires a license. Moreover, Trading cannot claim that it is not engaged in resale activities that require an ST2 license. Japanese telecom regulations treat the resale of capacity under the Master as a resale of the underlying IPLC.

Unworkable Option 2: Trading does not acquire an ST2 license. YK purchases the Japan half-circuits. Trading purchases the US half-circuits. YK then resells the Japan half-circuits to Trading. Trading then resells the entire circuits under the Master to others, who may be resellers or end-users.

For the reasons set forth under Option 1, this option is illegal from a regulatory standpoint, even if the sale from the YK to Trading and the subsequent resale by Trading occur in tandem one immediately after the other.

Unworkable Option 3: EBS Trading L.P. forms a wholly-owned US special purpose vehicle ("SPV") which obta

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Cisco and the Internet: the Second Annual E-Business Case

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Haas NewsWire April 9, 2001

CEO Exchange is Wednesday, April 11 at 5:30 p.m. If you still need a ticket, stop by S550 between 10:00 a.m. and 5:00 p.m. Tuesday, April 10.

CONTENTS

Cisco and the Internet: the Second Annual E-Business Case Competition Submit Your Suggestions for the First Annual Haas Staff Award The Future of Digital Music Ninth Annual Youth Venture Capital Competition at Haas Distinguished Faculty and Alumni Discuss Global Issues UC Berkeley Symposium in Tokyo: Technology and Entrepreneurship Haas in the News Happening at Haas Haas Celebrations

CISCO AND THE INTERNET: THE SECOND ANNUAL E-BUSINESS CASE COMPETITION Predicting the future of high-tech companies may be tricky business, but UC Berkeley students are up to the task. Next Monday, April 16, five teams of UC Berkeley students (both undergraduate and graduate students) will make their best case for the future of Cisco Systems' use of the Internet at the E-Business Case Competition. The event takes place at 5:30 p.m. in the Arthur Andersen Auditorium.

Cisco Systems and Deloitte Consulting created this case to give students an opportunity to recommend solutions to Cisco for using the Internet to help its channel partners focus on their core-competencies and create a competitive advantage. In addition to the judges from Cisco, Deloitte Consulting, and the Haas School, the audience will vote for the winning team out of the 5 finalists. Over \$2,500 in cash awards will be given to the finalists. The Haas School of Business, Cisco Systems, Deloitte Consulting, and the Schlinger Family Foundation sponsor the event.

The final teams were chosen from more than 20 submissions to the undergraduate program office. Each team is composed of UC Berkeley students from any field of study and must include at least one non-Haas major. The finalists teams are: Aleksey Strygin, Mark Khavkin, Jane Knop, and Inna Garilova Nancy Lan, Melissa Wong, and Darien Shanske David Chan, Aryn Saleh, Christine Cho, and Lisa Mou Vincent Chiu, Martin Lanner, Albert Lai, and Ryan Mickle Christian Milan, Shirley Gou, Kitty Cheung, and Ruby Shih The competition and the reception that follows offer an opportunity to meet representatives from Cisco Systems and Deloitte Consulting. The entire UC Berkeley community is welcome to attend the final presentation night. A Palm Pilot will be raffled off at the end of the event.

SUBMIT YOUR SUGGESTIONS FOR THE FIRST HAAS STAFF AWARDS Inaugurated by Dean Laura Tyson to recognize the tremendous contribution of the staff at the Haas School, the 2000-2001 Outstanding Staff Awards will be presented at the End of the Year Party on May 4, 2001. Members of the Haas community are invited make nominations. The deadline for nominations is Wednesday, April 25, 2001.

The guidelines for nomination are: Performs at a level above and beyond normal job requirements. Significantly improves customer service or increases customer satisfaction. Significantly improves a work process or increases the efficiency of a procedure. Takes initiative to reduce organizational barriers through such activities as mentoring and voluntarily assisting coworkers. Works to foster collaboration, communication, and cooperation among colleagues. Contributes to and demonstrates a commitment to the purpose and values of Haas. The guidelines for the award and the form for submission are available at <http://www.haas.berkeley.edu/news/outstandingstaff.html>.

THE FUTURE OF DIGITAL MUSIC The Management of Technology Program is joining Boalt Hall for a roundtable discussion on "Digital Music and Copyright Issues" on Wednesday, April 18, from 4:00 p.m. to 6:30 p.m. in the Arthur Andersen Auditorium.

"This year's Digital Music Conference is taking place in a different landscape for both Napster and peer services than last year's conference," says Drew Isaacs, executive director of MOT. "Although the 'shutting down' of Napster has had limited

effect on the swapping of free music files on the Internet, it has brought to universal awareness the complex business and legal environment for digital music publishing and distribution.? This is the core issue to be examined at this year's event."

The event is free and open to the UC Berkeley community. The panel includes Robin Gross, Electronic Frontier Foundation; Gerd Leonhard, Licensemusic.com; Milt Olin, Napster; Barry Simmons, Simons and Stern; John Simson, Recording Industry Association of America; Carol Smith, Listen.com; and Peter Menell, executive director of the Berkeley Center for Law and Technology, as the moderator.

NINTH ANNUAL YOUTH VENTURE CAPITAL COMPETITION AT HAAS The Haas School's extremely successful youth outreach program, Young Entrepreneurs at Haas (YEAH), is holding its ninth annual Venture Capital Competition on Saturday, April 28, from 8:00 a.m. to 1:00 p.m. in Wells Fargo Room. This competition brings students from local middle and high schools to Haas to present their business plans to a volunteer "venture capital" board.

YEAH allocates over \$10,000 to top performers for business startup or educational costs through this competition. The competition offers participating youth a chance to demonstrate their new skills, pitch their business ideas to a panel, and compete for grants of up to \$500 for business startup or college costs.

YEAH is an academic preparation program for educationally disadvantaged middle and high school students who express an interest in business. With the support of 40 MBA volunteer mentor/business coaches, YEAH teaches teens how to develop their business ideas, draft business plans, and turn their ideas into entrepreneurial opportunities. The program also introduces youth to the stock market, the global economy, and teaches them how to improve test taking and study skills that are critical to admission to the UC system.

Due to increased public and private funding, the YEAH Program has tripled in size to reach more than 170 youth from middle schools and high schools in the Oakland, Berkeley, Emery, and West Contra Costa Unified School Districts this year. For more information on YEAH, visit www.haas.berkeley.edu/yeah.

The organizers are still looking for a few more volunteer panelists. Please contact Ajuah Helton at 510-643-0923 for more information.

DISTINGUISHED FACULTY AND ALUMNI DISCUSS GLOBAL ISSUES The annual Faculty Alumni Colloquium on May 5 features Haas faculty and alumni discussing current economic issues and global management trends in the new economy.

Keynote speaker Patricia C. Dunn, BA 75, will speak on "Investment Management in an Era of Individual Retirement Planning." Dunn is global chief executive of Barclay's Global Investors and chairman of the firm's Global Management Committee. Dunn is also a member of the Haas School of Business Dean's Advisory Board.

There will be two faculty panel sessions, each with two concurrent panels. The morning session offers "Does the New Economy Need a New Anti-Trust" by Michael Katz and "The National and Bay Area Economic and Real Estate Outlook" by Ken Rosen. During the afternoon session, Severin Borenstein will speak on "The California Electricity Crisis: Are Policymakers Learning the Right Lessons?" and Homi Bahrami will discuss "Managing the Knowledge Worker."

Dunn joins a distinguished list of prior keynoters for the Colloquium, a day-long event that enables alumni to come back to campus and interact with current faculty. Past speakers include Alex Mandl, MBA 69, chairman and CEO of Teligent; Roger Siboni, BS 76, president & CEO, E.piphany; Arun Sarin, MBA 78, then CEO of InfoSpace; Laura D'Andrea

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Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	[]
File	dasovich-j/all_documents/10613.

USA: BP plans to build U.S. LNG import terminals. Reuters English News Service, 04/03/01

USA: CMS gets okay to expand Louisiana LNG terminal 40 pct. Reuters English News Service, 04/03/01

USA: Enron unit, J.C. Penney sign \$600 mln energy deal. Reuters English News Service, 04/03/01

Enron Wins \$600 Million J.C. Penney Energy Contract (Update2) Bloomberg, 04/03/01

Enron, JC Penney in energy management deal; to buy 600 mln usd of commodities AFX News, 04/03/01

Endesa, Enersis To Test Powerline Technology In Chile Dow Jones International News, 04/03/01

Williams 1st-Qtr Profit to Beat Forecast on Trading (Update3) Bloomberg, 04/03/01

Ariba's Failed Agile Purchase the Latest to Founder on Economy Bloomberg, 04/03/01

USA: BP plans to build U.S. LNG import terminals.

04/03/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, April 3 (Reuters) - Oil giant BP Amoco Plc said on Tuesday it has tentative plans to build up to three new import terminals for liquefied natural gas (LNG) to help meet growing demand for natural gas in the United States. "We are looking at probably two or three opportunitiesto bring LNG into both the East Coast and potentially the West Coast as well," Tony Fountain, president of BP North America Gas & Power told reporters at a Ziff Energy conference in Houston. "The driver for us in LNG is the tremendous market opportunity in North America, but we've obviously got great (natural gas) reserves and resources around the world," he said. Fountain said Mexico was among potential sites that BP was considering for an LNG terminal to meet demand for natural gas on the U.S. West Coast. He declined to give specific details on locations or timing, saying only that BP's plans envisaged construction of the new terminals during the current decade. BP is already involved in LNG production in Trinidad and Fountain said the company is currently exploring the possibility of producing LNG in Egypt and other locations around the world. Strong U.S. natural gas prices have led to renewed interest in LNG, with companies such as El Paso Corp. and Enron Corp. drawing up plans for new import terminals. Until recently the high cost of cooling and transporting natural gas in liquid form made investment in new import facilities uneconomical. The U.S. currently has four LNG import terminals that were built more than 20 years ago. Two of them are currently receiving LNG cargoes and the other two are scheduled to resume operations in the next one to three years.

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USA: CMS gets okay to expand Louisiana LNG terminal 40 pct. By Spencer Swartz

04/03/2001 Reuters English News Service (C) Reuters Limited 2001.

SAN FRANCISCO, April 3 (Reuters) - CMS Energy Corp. said Tuesday it has received final approval from the federal government to boost its liquefied natural gas (LNG) terminal capacity in Louisiana, already the largest in the U.S., by over 40 percent. Michigan-based CMS's decision to add 300 million cubic feet a day (mmcf) of gas capacity at its Lake Charles terminal, the largest of two U.S. LNG terminals in operation, comes amid record high gas prices as traditional sources of gas from places like Texas and the Gulf of Mexico cannot keep pace with rising demand. The decision by the Federal Energy Regulatory Commission (FERC) will allow the company's Trunkline LNG unit to begin immediately making modifications at its LNG terminal and to have the new capacity on line by June of this year, the company said in a statement. With FERC approval, CMS will expand the Lake Charles terminal from its current send out capacity of 700 mmcf to a peak capacity of 1 billion cubic feet a day (bcfd), CMS said. CMS also said it was evaluating whether to add another 200 to 300 mmcf of send out capacity at the LNG terminal, a company spokesman said. The modifications to the CMS Trunkline LNG facility, which will not impact current terminal operations, will eliminate bottlenecks in the regasification process, the company said. In 2000, there were 55 LNG tanker ships unloaded at the Lake Charles terminal, and CMS said it expects the level LNG shipments to be higher in 2001. NEW WEST COAST MARKET? High prices for traditional gas supplies have lent further momentum to the prospects for increased use of LNG, traditionally just about one percent of overall U.S. gas use due largely to high transportation and liquefaction costs. LNG's costly liquefaction process involves super-cooling and injecting gas into spherical high-pressure tanks for onshore storage or shipment on board special LNG carriers. Some analysts have estimated LNG could rise to around five percent of overall gas use in the U.S. in the coming years, as well as attracting Asia-Pacific LNG to the energy-starved West Coast. U.S imports of LNG, mainly to New England, the largest consumer of gas, usually have usually come from Algeria, Trinidad, Nigeria and Qatar in recent years. But as high gas prices on the U.S West Coast face vast gas resources in the Asia Pacific region, the paradigm

appears to be shifting. In late March, Chevron Corp. said it was studying plans that could allow it to start shipping LNG to the U.S. West Coast by 2005 if the project is economically viable. Chevron said it would look at supplying the LNG from its gas holdings in Australia. El Paso Corp. also said in March it had tentatively agreed to begin purchasing LNG in 2005 in hopes of shipping it to California or Mexico. Under this plan, LNG would be purchased from a Phillips Petroleum Co. plant near Darwin, Australia. **TERMINAL INTEREST** In January, energy giant Enron Corp. said it was looking into developing a new LNG import terminal in the Bahamas, connected by a 90-mile (145 km) pipeline to Florida. This plan could begin commercial service by the end of 2004 if all regulatory permits are approved. Cabot LNG, a unit of Belgian-based energy services company Tractebel, operates the other active U.S. LNG terminal at Everett, Mass., near Boston. The company is in the process of more than doubling its vaporization capacity from 435 mmcf/d to more than 1 bcf by the end of this year. The two other U.S. LNG import terminals, in Cove Point, Md., and Elba Island, Ga., idled years ago for lack of demand, are expected to reopen in one to three years, a move that would put all four of the country's LNG terminals back to work for the first time since 1982.

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USA: Enron unit, J.C. Penney sign \$600 mln energy deal.

04/03/2001 Reuters English News Service (C) Reuters Limited 2001.

SAN FRANCISCO, April 3 (Reuters) - A unit of energy giant Enron Corp. and J.C. Penney , one of the nation's largest retailers, on Tuesday said they have signed a \$600 million energy services deal in a bid to lower the retailer's energy costs and firm up its profit margins. Under the agreement, Enron Energy Services (EES) will manage and purchase the supply of energy-related commodities, like electricity and natural gas, at more than 1,250 J.C. Penney locations in all 50 U.S. states. EES will also replace or update energy equipment to reduce consumption and create additional savings for J.C. Penney, Enron said in a statement. The deal comes a day after EES signed a long-term energy management agreement for all of upscale retailer Saks Inc.'s facilities. Under that agreement, EES will supply all of Saks' store locations, which total over 300, its distribution facilities, and administrative offices with electricity and natural gas. Although no time frame was given for either the J.C. Penney or Saks deal, Enron has said that contracts typically run between five and 10 years. To date, EES manages ener

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Enron Mentions- 11/14/01

Sender	courtney.votaw@enron.com
Recipients	[]
File	dasovich-j/inbox/1674.

USA: Enron says recent woes to hurt profitability. Reuters English News Service, 11/14/01 USA: Enron traders seen riding out storm, cuts likely. Reuters English News Service, 11/14/01 USA: Arbs tread lightly on Enron-Dynegy deal. Reuters English News Service, 11/14/01 USA: UPDATE 1-Enron CEO Lay admits to errors with mea culpa. Reuters English News Service, 11/14/01 Enron Receives Dynegy \$1.5B Cash Infusion Tues. >DYN ENE Dow Jones News Service, 11/14/01 USA: Enron queried by EPA on oil pipeline spills. Reuters English News Service, 11/14/01 Enron to Sell Off Money-Losing Assets In Bid to Restore Its Financial Health Dow Jones Business News, 11/14/01 Cohen, Milstein, Hausfeld & Toll, P.L.L.C. Announces that Class Action Suits Against Enron Corporation Have Expanded their Class Periods Business Wire, 11/14/01 Enron Says 4th-Qtr Earnings Cut by Lost Business (Update6) Bloomberg, 11/14/01

Cauley Geller Bowman & Coates, LLP Expands Class Period in Class Action Lawsuit Against Enron Corp. Business Wire, 11/14/01

Fitch: Cinergy's Rating Outlook Negative Business Wire, 11/14/01

USA: Enron says recent woes to hurt profitability.

11/14/2001 Reuters English News Service (C) Reuters Limited 2001. HOUSTON, Nov 14 (Reuters) - Troubled energy trading giant Enron Corp. , which agreed last week to a buyout by smaller rival Dynegy Inc. , said on Wednesday it expects

its recent woes to have a "temporary but negative impact" on fourth-quarter profitability. Enron executives said in a conference call with analysts and investors that fourth-quarter results would also be adversely affected by severance costs and other restructuring costs. It did not provide further details, but said it expects to issue fourth-quarter earnings guidance in two to three weeks. Enron also said it is seeking an additional \$500 million to \$1 billion in private equity to help rebuild confidence in the company and keep its core trading operations afloat in the nine months before the acquisition by Dynegy is expected to close. Enron, the nation's biggest buyer and seller of natural gas and electricity, agreed on Friday to be bought by Dynegy for about \$9 billion in stock after investor unease over the company's business deals sapped its finances to the point of near-collapse. Enron has been under the gun from Wall Street since mid-October when it said shareholder equity had been cut by \$1.2 billion because of off-balance sheet deals with partnerships run by former Chief Financial Officer Andrew Fastow, who was later replaced. The deals are under investigation by U.S. regulators.

Copyright ? 2000 Dow Jones & Company, Inc. All Rights Reserved. USA: Enron traders seen riding out storm, cuts likely. By Scott DiSavino

11/14/2001 Reuters English News Service (C) Reuters Limited 2001. NEW YORK, Nov 14 (Reuters) - Traders at Enron Corp., atop the energy trading world, are avidly being pursued by rivals but are holding out to see if there is a good deal awaiting them in the proposed buyout by Dynegy Inc. While a number of jobs are expected to go after the near collapse of North America's biggest energy trader, the new owners are expected to pull out all the stops to keep Enron's top traders - seen as the company's key assets. "I know (traders) are getting a ton of calls, but I don't think there is going to be a mass exodus from the trading floor," said Joe Baker, president of Houston-based Search Consultants International, a recruitment company that serves the energy and power marketing industry. Enron, known for turning out some of the industry's most aggressive traders, also has a reputation as a tough training ground for newcomers, handsomely rewarding those who "make their numbers" and quickly showing non-performers the door. Traders at other energy firms said experienced traders can earn six-figures salaries before annual bonuses, paid sometime between the beginning of January and the middle of March. A company recruiting traders before the bonus is paid would have to pay a larger sign on bonus. "The majority of the key traders are going to wait and see what kind of situation develops ... everyone's got their eyes open," Baker said. "Most people want to stick around to see what kind of bonus they are going to get." WAIT AND SEE Energy traders are clearly worried about the \$9 billion takeover announced last week, an opportunity for Dynegy to chop head count. "There's a lot of overlap at both firms. I don't think there will be enough room for everyone," a trader at another Texas-based energy firm said. Enron is the nation's biggest buyer and seller of natural gas and electricity. Dynegy is about a fifth as big as Enron measured in terms of revenue. Despite the job uncertainty hanging over their heads, traders said they could not name a single Enron or Dynegy trader actively scouting out a new employer. "Everyone seems to be waiting to see what happens. There are only a few trader jobs open in the country right now. Those positions will likely be filled pretty quickly if this merger goes through," another trader said. "Some (traders) are going to be looking for work no matter whether they're laid off or leave on their own," the trader added. So far, it is mostly Enron support staff who are polishing off their resumes. Enron said Wednesday in an analyst meeting the company expects to take a charge for severance in the fourth quarter. However, no job cut numbers were discussed. Baker said the support staff feels their jobs are the ones most threatened by the proposed Dynegy merger. Dynegy is buying Enron for its trading operation and has said it is confident the best will stick around. Upon completion of the merger, the combined company, to be called Dynegy Inc., is expected to have revenues exceeding \$200 billion and \$90 billion in assets. Dynegy agreed to buy its larger cross-town rival after Enron investors lost faith in the company whose stock plummeted following its disclosure of off-balance sheet deals with partnerships run by its former chief financial officer. The stock was off 8 cents, or 0.8 percent, at \$9.92 a share at the close on New York Stock Exchange trade Wednesday, well below its 52-week high of \$84.88. Meanwhile, Dynegy stock fell \$1.58, or 0.7 percent, to \$46.20 a share. - Scott DiSavino, New York Power Desk, +646-223-6072, fax +646-223-6079, e-mail scott.disavino@reuters.com and Nigel Hunt, Los Angeles bureau +213-955-6752.

Copyright ? 2000 Dow Jones & Company, Inc. All Rights Reserved. USA: Arbs tread lightly on Enron-Dynegy deal. By Dane Hamilton

11/14/2001 Reuters English News Service (C) Reuters Limited 2001. NEW YORK, Nov 14 (Reuters) - Merger arbitrageurs say they're treading lightly in betting over prospects for the \$9 billion stock-swap takeover of Houston energy trader Enron Corp. by rival Dynegy Inc. . These market pros, who bet on the likelihood a merger will be completed, say big questions about Enron's financial condition raise doubts about the deal and make them shy about risking heavy bets. Wednesday's

conference call between Enron officials and investors did little to assuage that, they say. "People are very nervous about Enron," said one arb at a major New York brokerage. "They aren't sure if Enron is actually earning anything." Arbs who think a deal will eventually be completed may "short" the acquirer and buy target stock, reasoning that the acquirer's stock will fall and the target will rise on completion. But in recent days, Enron's stock has languished, while Dynegy's stock has gained more than 40 percent, although it was close to the same level a month ago. Some arbs said Dynegy's stock may have risen because it could gain valuable pipeline assets whether or not a deal is completed. Enron said it granted Dynegy an option to buy its Northern Natural Gas pipeline system fo

Message 145 of 1299

Award-Winning Orpheus Chamber Orchestra to Hold Teaching Residency

Sender	haasnews@haas.berkeley.edu
Recipients	['haasnewswire@haas.berkeley.edu']
File	dasovich-j/inbox/929.

Haas NewsWire November 26, 2001

Due to the winter holiday, the Haas NewsWire will suspend publication after the December 10, 2001 issue. Publication will resume with the January 14, 2002 issue.

CONTENTS * Award-Winning Orpheus Chamber Orchestra to Hold Teaching Residency * Dean Tyson to Deliver Final State of the School Address on Wednesday, November 28 * Very Popular "Fundamentals of Business" Course Opens Haas to Berkeley Graduate Students * Haas Joins in Launching of National Organization to Increase Women in Business Leadership * Staff News * Haas in the News * Happening at Haas * Haas Celebrations

AWARD-WINNING ORPHEUS CHAMBER ORCHESTRA TO HOLD TEACHING RESIDENCY The Grammy Award-winning Orpheus Chamber Orchestra will hold a one-day teaching residency at the Haas School on November 29th. Orpheus, the only chamber orchestra in the world that consistently rehearses, performs, and records without a conductor, has garnered attention from the corporate sector for its unique approaches to creativity, innovation, and self-management.

Orpheus will showcase its innovative approach to leadership for of a group of Haas MBA students on Thursday from 1:00 p.m. to 5:00 p.m. at the International House auditorium. Tickets to the event were awarded to MBA students through a lottery process. Morgan Stanley is sponsoring the event at Haas. The firm also sponsored an Orpheus residency at Hitotsubashi University in Tokyo in June 2001.

The program will include presentations by Dean Laura Tyson; Harvey Seifter, executive director of Orpheus Chamber Orchestra and author of "Leadership Ensemble"; lecturer Terry Pearce; and David Pottruck, co-CEO of Charles Schwab. John McGeehan, managing director and chief administrative officer for Morgan Stanley Japan Limited will also be in attendance.

Central to the distinctive personality of Orpheus is its unusual process of sharing and rotating leadership roles. The "Orpheus Process" is built on individual responsibility, shared leadership, and workplace democracy. The process has enabled the orchestra to unleash the talent, vision, creativity, and leadership potential of each member of the group.

For every work, an elected committee of musicians selects a concertmaster and each instrumental section chooses a representative. These chosen representatives (the "core group") are responsible for forming the initial concept of the piece and developing an overall interpretive approach to the music before the entire orchestra comes together to rehearse. The core also structures the rehearsal process for the entire orchestra, which provides clear leadership while insuring that every member has a real stake in the artistic outcome of every piece performed by the orchestra. The results of the process have produced 28 years of sustained excellence at the highest level of international accomplishment.

The main focus of the residency at Haas will be to demonstrate the Orpheus Process in action as the orchestra rehearses the first movement of Haydn's Symphony No. 63 in C Major in "real time," showing by example their work process from

core preparations to final product. The applications of the Orpheus Process to the business world will be framed in the introduction and reinforced through a question-and-answer and discussion period with the students and presenters.

DEAN TYSON TO DELIVER FINAL STATE OF THE SCHOOL ADDRESS ON WEDNESDAY, NOVEMBER 28 Dean Tyson will give the final state of the school address of her tenure as dean on November 28. The speech will be given twice that day, once during the day at 12:45 p.m. and once in the evening at 7:45 p.m., in the Arthur Andersen Auditorium. Dean Tyson will take questions from the audience at the end of the speech. All students, faculty, and staff are welcome to attend.

VERY POPULAR "FUNDAMENTALS OF BUSINESS" COURSE OPENS HAAS TO BERKELEY GRADUATE STUDENTS For the first time, the Haas School is offering a graduate-level business course specifically designed for non-business school students at UC Berkeley who want exposure to fundamental knowledge of management and business. "Fundamentals of Business" (BA 296-10) will introduce Berkeley graduate students to the basics of business.

So far, the course appears quite popular, with almost every seat taken during the pre-enrollment process. Of the 102 students currently pre-enrolled, the largest segment (18 students) comes from the College of Engineering. The remainder come from a variety of graduate programs at Berkeley.

"For years there has been high demand for Haas courses outside the school," says Andy Shogan, associate dean for instruction. "Graduate students don't have time to take several business courses to learn management, finance, and marketing. This course will satisfy that demand and expose the students to more topics."

Fundamentals of Business is a broad survey course for graduate students designed to provide a comprehensive introduction to the study of business and modern management techniques such as data gathering, analysis, and decision-making. The class meets in the Arthur Andersen Auditorium on Wednesdays from 6:00 p.m. to 9:00 p.m.

The format of the course is three five-week modules taught by a team of instructors with different functional areas of expertise. The modules are: "Managing People in Organizations" taught by Nancy Euske, "Accounting and Finance" taught by Victor Stanton, "Delighting Customers: Marketing and Strategy" taught by David Robinson.

At the end of each of the three modules, there will be an exam on the following Monday. The course is open to graduate students only from departments other than the Haas School. No prerequisite coursework is required, but a familiarity with basic economics is helpful. For more information visit <http://www.haas.berkeley.edu/~robinson/BA296/>.

Haas also offers an undergraduate business survey course, BA 10, which is a prerequisite for the business major.

HAAS JOINS IN LAUNCHING OF NATIONAL ORGANIZATION TO INCREASE WOMEN IN BUSINESS LEADERSHIP A new national nonprofit organization designed to increase the number of women business owners and business leaders was announced on November 6 during the group's first board meeting at the University of Michigan Business School. Ilse Evans, executive director of MBA Admissions and Career Services, and David Downes, director of the Full-Time MBA program, are founding board members.

The organization, whose name and headquarters have yet to be determined, is an alliance of educational institutions, businesses, and nonprofit groups. The organization will work to increase women's access to education and business networks, support women financially in their business education, raise awareness of the impact women can make on business and society, and encourage and support research on relevant topics.

"One of the key barriers to access to business education is the lack of awareness and knowledge women have about the value and flexibility of business careers and education," says Jeanne M. Wilt, executive director of the new organization and assistant dean for admissions and career development at the University of Michigan Business School.

Over the next three years, the organization plans to substantially expand its membership of business schools and companies, serve alumnae of member schools and develop strategic partnerships with other key organizations that work with women and girls. It aims to raise \$20 million by 2004 to support its work.

Business members of the new group include Dell, Deloitte Consulting, Gol

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Joining the Haas Network: New MBA, Undergraduate, and Ph.D.

Sender	haasnews@haas.berkeley.edu
Recipients	['haasnewswire@haas.berkeley.edu']
File	dasovich-j/deleted_items/1053.

Haas NewsWire August 27, 2001

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Joining the Haas Network: New MBA, Undergraduate, and Ph.D. Students Arrive at Haas Chancellor Berdahl Appoints Ben Hermalin Interim Dean All the 2001 YEAH Graduates Pursue Higher Education The Haas School Welcomes New Faculty New Staff Haas in the News Happening at Haas Haas Celebrations

JOINING THE HAAS NETWORK: NEW MBA, UNDERGRADUATE, AND PH.D. STUDENTS ARRIVE AT HAAS

The Haas School is bubbling with activity this week as the new school year begins and incoming classes of students in four degree programs settle into their new routines. In keeping with tradition, the Undergraduate, Evening MBA, MBA, and Ph.D. programs have worked hard to admit select groups of students.

"I am thrilled with the outstanding students we have admitted for this fall's entering class," says Pete Johnson, acting co-director of admissions for the full-time MBA program. "They are a talented and diverse group of people who bring a wealth of experiences with them to Haas."

The full-time MBA class of 2003 includes 238 students, selected from an applicant pool of 3,259. Thirty-five percent of the new first-years are international students, representing 31 different countries. Seventy-four percent are bilingual and 62% are trilingual.

On average, the members of the new MBA class have 5 years of professional work experience, and they bring a wealth of knowledge and experience to the Haas community. The class includes a producer from Fox Sports and NBC TV, a freelance director of plays and musicals, a design engineer from Porsche, and a former writer for "Let's Go" travel books. On the extracurricular side, the class includes members of the Peruvian National Rowing Team; the Kyoto University Ballroom Dancing Team; the 1994 National Taekwondo Champion; a four-time state cycling champion; and the winner of a 1999 New York Film Festival producer award for best drama.

The new Evening MBA students distinguish themselves by their strong educational backgrounds. The Evening MBA class of 116 students represents 13 countries and the students have, on average, 7.1 years of post-university work experience. Thirty-five percent of the students hold Masters degrees and 9% have Ph.D.s. Thirty-three percent of the class is bilingual and 25% is trilingual.

"This was a particularly competitive applicant pool, with a 60% increase in applications from last year," says Diane Dimeff, executive director of the Evening MBA Program. "We broke our previous record for applications by 30%, so we are especially excited about this group of new students and the depth and breadth of experience they bring to the classroom."

The Evening MBA class includes a former submarine officer; the chief of Otorhinolaryngology (ear, nose, and throat specialist) at the Veterans Affairs Medical Center in San Francisco; a California water resources manager; an associate treasury program manager for the state of California; a researcher who helped establish a clinical program to provide experimental medicine for a viral liver disease; a competitive swimmer; a student who helped pay his way through school by fighting forest fires for two summers; and a student who interned in a high-pressure French restaurant in Paris.

As one of the most popular undergraduate majors on campus, the Haas Undergraduate program always attracts the cream of the crop of continuing Cal and incoming transfer students. This year, off the 1,150 applicants to the Undergraduate Program, 214 have enrolled. Seventy-nine of the students transferred to UC Berkeley. For the UC Berkeley admits, the average GPA was 3.59.

In the Ph.D. program 467 people applied to the program, but only 39 were admitted. Sixteen new Ph.D. students were enrolled, bringing the total for the program to 80. The average GMAT for the students is 730 and the average GPA is 3.82. There are 11 men and six women in the class. Ten of the students are international, hailing from eight different countries. "We have students from Asia, Europe, South America, New Zealand, and the US," says Jan Price Greenough, associate director of the Ph.D. Program. "They have compiled an impressive scholastic and professional record. We are very excited about their potential and promise and look forward to a very good class."

CHANCELLOR BERDAHL APPOINTS BEN HERMALIN INTERIM DEAN

When Dean Laura Tyson announced that she would resign on December 31, 2001, Chancellor Robert Berdahl immediately announced that he would appoint Ben Hermalin as interim dean while the university runs a national search for a new dean of the Haas School.

Associate Dean Ben Hermalin has been an integral part of Dean Tyson's administration at Haas since he was appointed associate dean in 1999. "Ben has worked closely with me and the rest of the Dean's Office on all of our initiatives, from the Pilot Program to the new degree programs," says Tyson. "He has won the loyalty and support of both faculty and staff through his unique combination of boundless energy, fairness, attention to detail, intelligence, and good humor. He is committed to the well-being of the Haas School and has been an effective advocate for its interests on the campus."

Hermalin, 39, is the Willis H. Booth Professor of Banking and Finance and has been with the Haas School since 1988. He has a joint appointment with the Department of Economics and is a co-founder and director of the private online academic publishing company Bepress.

As associate dean Hermalin oversees all faculty recruitment and retention as well as merit raises and promotions for the Haas faculty. Working with Dean Tyson, Hermalin has helped to get permission from the campus administration to recruit more faculty members in a given year than is normally allowed and to meet competitive offers to current faculty. "Dean Tyson has built a good team, a strong organization, and an excellent staff. I hope to provide continuity and continue the school's initiatives," says Hermalin of his future role as interim dean.

"Haas is very fortunate to have someone of Ben's stature, experience, and dedication willing to serve as interim dean," says Michael Katz, the Edward J. and Mollie Arnold Professor of Business Administration. "His ability to be equally comfortable in a three-piece suit and a Hawaiian shirt makes him ideally suited to face the diverse challenges of leading the school."

His recent research has focused on telecom pricing with Katz. This fall he will teach a Ph.D. course in the economics department called, "Mechanism Design and Agency Theory." Hermalin holds a BA in Economics from Princeton and a Ph.D. in economics from the Massachusetts Institute of Technology. He is also on the Editorial Board for the American Economic Review and is co-editor of the Berkeley Electronic Journals in Economic Analysis & Policy.

"Ben is an excellent squash player," says Dwight Jaffee, professor of banking and finance. "My hope is that his deanly duties will slow him down so that I can win more often."

Tyson and Hermalin will work together throughout the fall with Andy Shogan, Jay Stowsky, and the school's professional staff to make the 2001-2002 academic year a successful one for the Haas School.

ALL OF THE 2001 YEAH GRADUATES PURSUE HIGHER EDUCATION

In another sign of continuing success for the Young Entrepreneurs At Haas (YEAH) program all ten of the 2001 graduating high school seniors from the Young Entrepreneurs Program are continuing their education.

"Our YEP students have taken to heart the principles and real-life lessons of entrepreneurship and finance, and followed their interest toward higher education," says Oscar Wolters-Duran, direct

Message 147 of 1299

Nov. 21 AReM Conf Call @ 11 am PST

Sender	bill.chen@aesmail.com
Recipients	[plotkin.norman@enron.com', "douglass'.dan@enron.com"]
File	dasovich-j/inbox/902.

All,

Here's the dial-in info for our call tomorrow morning @ 11 am PST re. the UDCs' Joint Proposal to Implement DA Suspension:

212.364.2900 *9966170* (room #)

Norm, moving forward, the AReM members decided it would be very beneficial to have you on all of our calls and for the entire duration of the call. So, if your schedule permits on such short notice, please join us tomorrow.

Thanks.

Bill ~~~~~ William H. Chen AES NewEnergy, Inc. 2175 N. California Blvd., Ste. 300 Walnut Creek, CA 94596 925.287.4703 direct 925.287.4500 main 925.287.4501 fax bill.chen@aesmail.com
<mailto:bill.chen@aesmail.com>

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Global Government Affairs Dept. Conf. Call

Sender	ginger.dernehl@enron.com
Recipients	['daniel.allegretti@enron.com', 'joseph.alamo@enron.com', 'joe.allen@enron.com']
File	dasovich-j/all_documents/29061.

I have rescheduled the Global Government Affairs Conference call to Thursday, July 26 @ 4:00 PM (CDT). This call was originally scheduled for this past Friday, July 20. See details below:

Date: Thursday, July 26

Time: 4:00 PM (CDT)

Number: 1-800-283-1805 (domestic) 703-736-7385 (international) (there is no pass code for this call)

Also, there are a limited number of lines for this call. For those in the bigger offices, please try and gather in a conference room to take this call.

Thanks and please don't hesitate to call me if you have any questions.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 149 of 1299

RE: FW: 3/20 field update from Ian, Kevin, David H., James B.

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/10267.

Sure. But, we are also talking about the ROI model. OK??

Make sure you tell Karen about academy awards. She left a message on the machine. Also, tell David and Nina and anyone Karen wants to bring is fine. Just let me know about how many people.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, March 21, 2001 10:48 AM To: Cameron Sellers Subject: Re: FW: 3/20 field update from Ian, Kevin, David H., James B.

Class on Thursday. Something that we can talk about in Mexico?

Message 150 of 1299

you & me & ian

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11031.

I would love for you to meet our new VP of Professional Services (who is, incidentally, now for all intents and purposes running our company). I think you will love him. He is very interested in the idea of working with Enron and I want you to meet him. Can we set up a dinner for the three of us sometime in the next couple weeks? I know your schedule is busy with school, so why don't you tell me a couple nights that work (other than Mondays) and I will make it work on our end. Please oh please.

Love,

Your Pal Cameron

P.S. Going to Colleen's new (to me) place for some wine tonight. I'll tell her hello for you!

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 151 of 1299

Digital Power Demand: JP Morgan Report

Sender	rob.bradley@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/644.

Here is another source--best that we let others do our quoting for a consensus.

- Rob

Robert L. Bradley Jr. Director, Public Policy Analysis Enron Corp. P.O Box 1188, Room 4724a [1400 Smith Street 77002] Houston, Texas 77251-1188

(P) 713-853-3062 (F) 713-646-4702

Assistant: Joan Stransky 713-853-4702 jstrans@enron.com ----- Forwarded by Rob Bradley/Corp/Enron on 09/26/2000 02:15 PM -----

Rob Bradley 09/25/2000 10:31 AM

To: Margaret Carson/Corp/Enron@ENRON, James D Steffes/NA/Enron@Enron cc: Mark Palmer/Corp/Enron@ENRON, Steven J Kean/NA/Enron@Enron Subject: Digital Power Demand: JP Morgan Report

The JP Morgan report below gives further credence to the Mills/Huber thesis of digital-age power growth. The in-the-trenches story is different from some of the academic studies by the conservation mavens.

- Rob

- jp morgan.pdf

Message 152 of 1299

SCE Holds Financial Status Call Tomorrow

Sender	susan.mara@enron.com
Recipients	['james.steffes@enron.com', 'richard.shapiro@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/13249.

ROSEMEAD, Calif., May 31 -- Tomorrow, Southern California Edison (SCE) will hold an "invitation-only" telephone conference call for holders of SCE's 5-7/8% senior unsecured notes and maturing commercial paper. Although two-way participation in the telephone call is limited to holders of SCE 5-7/8% notes and SCE commercial paper only, all other interested parties are invited to participate in a "listen-only mode" through a simultaneous webcast on the company's Web site. Subject: "Update on the California Electricity Crisis" When: Friday, June 1 Time: 1:30 p.m. PDT Web site: www.edisoninvestor.com In addition to the "live" simulcast, telephone replays will be available through Friday, June 15 at the following numbers: (877) 693-4277 - for callers in the U.S. (402) 220-0042 - for international callers. Please use pin number 5038.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 153 of 1299

RE: FW: 3/20 field update from Ian, Kevin, David H., James B.

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/all_documents/10269.

Yes, we'll be talking about ROI, too. I'll let Karen know. Figure that she'll likely bring a couple of people. Mind if I ask Trish and John?

Cameron Sellers <cameron@perfect.com> 03/21/2001 12:57 PM

To: "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com> cc: Subject: RE: FW: 3/20 field update from Ian, Kevin, David H., James B.

Sure. But, we are also talking about the ROI model. OK??

Make sure you tell Karen about academy awards. She left a message on the machine. Also, tell David and Nina and anyone Karen wants to bring is fine. Just let me know about how many people.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, March 21, 2001 10:48 AM To: Cameron Sellers Subject: Re: FW: 3/20 field update from Ian, Kevin, David H., James B.

Class on Thursday. Something that we can talk about in Mexico?

Message 154 of 1299

FYI -- interesting article to read

Sender	scott.bolton@enron.com
Recipients	['sue.nord@enron.com', 'lara.leibman@enron.com', 'donald.lassere@enron.com']
File	dasovich-j/notes_inbox/5141.

Good article on BW Trading and other aspects of Enron. Of particular note is the mention that EBS is a CLEC in many states - the first time I have seen this kind of mention. Cheers. ----- Forwarded by Scott Bolton/Enron Communications on 03/01/01 08:57 AM

Tracy Cooper 02/28/01 03:24 PM

To: Scott Bolton/Enron Communications@Enron Communications cc: Subject: FYI -- interesting article to read

Tracy J. Cooper Enron Broadband Services Legal Department (503) 886-0283

----- Forwarded by Tracy Cooper/Enron Communications on 02/28/01 03:24 PM

bsmith@daywireless.com 02/28/01 02:53 PM Please respond to bsmith

To: Tracy Cooper/Enron Communications@Enron Communications cc: Subject: Re: Hey Brian

<http://www.telecomclick.com/newsarticle.asp?newsarticleid=133259>

Tracy,

Here's that article I was talking about. It's a pretty good one. I'll get you that other info you requested this weekend.

Regards,

Brian C. Smith Day Wireless Systems 234 NW 14th Portland, OR 97209-2603

tel. 503-228-9292 fax. 503-228-2439 cell. 503-209-5359 www.daywireless.com

Message 155 of 1299

Re: FW: Rocky Grass Academy Waiting List

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/all_documents/10198.

Hey babe. I called you last nite re: ROI model, but only got the answering machine. Forward along to me and I'll take a peek and get back to you. How's the face doing? When do you leave on travel?

Cameron Sellers <cameron@perfect.com> 03/20/2001 05:12 PM

To: ""PP"" <psellers@pacbell.net>, ""Scott Laughlin"" <scottwl@hotmail.com>, ""Jeff.Dasovich@enron.com"" <Jeff.Dasovich@enron.com> cc: Subject: FW: Rocky Grass Academy Waiting List

FYI

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Matthew Bretz [mailto:circlex@earthlink.net] Sent: Monday, March 19, 2001 11:06 PM To: sally@bluegrass.com
Subject: Rocky Grass Academy Waiting List

Hiya,

Sorry to be a pest but.... Can you get any idea from Steve's past experience whether the rest of my friends who are on waiting lists are liable to get into their workshops? Scott Laughlin Mandolin Jeff Dasovitch Guitar Prentiss Sellars Banjo

Thanks,

Matty

Message 156 of 1299

An Inbound Message For You Has Been Quarantined

Sender	admin.enron@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/2077.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: douglass@earthlink.net Date: Mon, 26 Nov 2001 22:57:43 -0800 Subject: Re: FW: Attachment Type: Scenarios/Incoming/Inbound PIF Catcher: A filename matching the file mask was detected: 'searchurl.mp3.pif'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 157 of 1299

CHANGES TO CEA PHONE SYSTEM

Sender	peter@cea.sfex.com
Recipients	['victor.browner@enron.com', 'joan_heredia@urscorp.com', 'jdasovic@enron.com', 'peter@cea.sfex.com']
File	dasovich-j/notes_inbox/41.

I just wanted to let you know that starting on September 5th, CEA's phones will be answered by an automatic system. This is being done so that we can free up Carin to focus more on office management and client services. As a result, when you dial the CEA number (415-421-4213) you will hear a recorded message asking you to enter the three digit extension of the person you are trying to reach. If you do not know the extension, you can select an option that puts you into the company directory. If you know the extension, you can enter the three digits as soon as you hear the voice from the automated system (i.e., you don't have to wait). For your information, here are the three digit extensions for everyone at CEA:

Carin D'Oliva - 101 Kirk Marckwald - 102 Peter Okurowski - 103 Darcy Whaley - 104 Andreas Merkl - 105 Tisha Mercado - 107 Darcy Wheelles - 109 John Claussen - 110 Jill Kaufman Johnson - 113 Lauren Johnson - 114

Peter Okurowski Senior Associate California Environmental Associates 423 Washington Street, Third Floor San Francisco, CA 94111

Tel (415) 421-4213 x103 Fax (415) 982-7989 Cell (415) 999-0418 <http://www.ceaconsulting.com>
peter@ceaconsulting.com

Message 158 of 1299

Re: Lost Demand

Sender	jeff.dasovich@enron.com
Recipients	['rob.bradley@enron.com', 'margaret.carson@enron.com']
File	dasovich-j/sent/363.

Agreed. Also, Margaret, do we have numbers on what portion of GDP and California's "GDP" the tech sector represents?

Best, Jeff

Rob Bradley 09/24/2000 11:51 AM

To: Jeff Dasovich/NA/Enron@Enron cc: Margaret Carson/Corp/Enron@Enron Subject: Re: Lost Demand

I think it will be extra important to add "lost demand" from brownouts and blackouts to consumption to get the real growth rate of power demand this year. There was an increment of this for 1999 given the problems in New York City and Chicago and maybe elsewhere.

- Rob

Robert L. Bradley Jr. Director, Public Policy Analysis Enron Corp. P.O Box 1188, Room 4724a [1400 Smith Street 77002] Houston, Texas 77251-1188

(P) 713-853-3062 (F) 713-646-4702

Assistant: Joan Stransky 713-853-4702 jstrans@enron.com

Jeff Dasovich 09/22/2000 06:24 PM

To: Simon Shih/Graphics/Enron@ENRON cc: Jeff Dasovich/SFO/EES@EES@ENRON, Margaret Carson/Corp/Enron@ENRON, Rob Bradley/Corp/Enron@ENRON Subject: Re:

Thank you very much for the tech data. Margaret, is there data out there regarding the California utilities performance (i.e., how many rolling blackouts, etc. v. national average)? Thanks again.

Message 159 of 1299

Attorneys

Sender	jeff.dasovich@enron.com
Recipients	['richard.sanders@enron.com']
File	dasovich-j/sent/12159.

You get this? Scott said that it bounced back to him the first time.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 07/26/2001 07:16 PM -----

"Scott Govenar" <sgovenar@govadv.com> 07/26/2001 06:27 PM Please respond to sgovenar

To: <richard.sanders@enron.com>, "Susan J Mara" <smara@enron.com>, "Jeff Dasovich" <jdasovic@enron.com>, "Paul Kaufman" <paul.kaufman@enron.com>, "Steven Kean" <Steven.J.Kean@enron.com> cc: "Hedy Govenar"

<hgovenar@govadv.com> Subject: Attorneys

As we discussed on yesterday's conference call, the following attorneys are experts on the California Public Records Act, which is the applicable Act for retrieving information from the California Legislature. The first two names were provided by the California Newspaper Association (Enron was not mentioned) and the third name comes from our associate Mark Harris. We often work with the fourth attorney on other issues and he does have some experience in this area however he should be used primarily if the other attorney's do not work out.

Charity Kenyon Riegels, Campos & Kenyon (916) 779-7100

Karl Olson Levy, Ram, Olson & Rossi (415) 433-4949

Kevin Culhane Hansen, Boyd, Culhane & Watson (916) 444-2550

Phil Recht Mayer, Brown & Platt (213) 229-9500

Message 160 of 1299

Fisher CITM Conference on Enabling eBusiness Transformation

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu', 'mota@haas.berkeley.edu']
File	dasovich-j/all_documents/12536.

Dear Evening MBA Student, ? CITM's next all-day conference on enabling eBusiness transformation will take place on May 22, 2001 at the Wells Fargo room. The keynote speaker is Steve Ellis, EVP, Wells Fargo Wholesale Internet Solutions Group. Also on the agenda: Jrgen Lutz, eProcurement, Bayer AG, and Mark V. Klopp, Managing Director, Digital Business Ventures, Eastman Chemical Company, Jeffrey Kristol, Corp. Director E-Business Applications, Danzas AEI Corp, Mark E. Atkins, President and CEO, Vality Technology, Herbert M. Osher, Vice President of Product Marketing, Anysoft, and Dr. Aviva Lev-Ari, former Director of Information Analytics, Perot Systems. ? We can accommodate a limited number of Evening MBA students at the special discount price of \$150 instead of the regular \$950; if interested in attending please e-mail Ana L. Mota at citm@haas.berkeley.edu. For complete conference information and registration, visit the CITM's home page. ? -- Arie

Arie Segev, Professor and Director Fisher Center for Information Technology & Market Place Transformation Haas School of Business The University of California Berkeley, CA 94720-1900 <http://haas.berkeley.edu/citm/> Tel: 510-642-4731 Fax: 510-642-2826 (Alternate: 510-642-4700)

Message 161 of 1299

Re: Conference Call on Interconnection Agreements-Internal

Sender	jeff.dasovich@enron.com
Recipients	['joseph.alamo@enron.com']
File	dasovich-j/all_documents/4686.

----- Forwarded by Jeff Dasovich/NA/Enron on 12/13/2000 12:58 PM -----

Richard Anderson@ENRON COMMUNICATIONS 12/13/2000 09:07 AM

To: Mona L Petrochko/NA/Enron@ENRON cc: Jeff Dasovich/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron Subject: Re: Conference Call on Interconnection Agreements-Internal

Regrettably, I am tied up in another meeting from 1:45 to 3:30 PST today. Could we reschedule the second part of this meeting to a later time or date?

Thanks, Richard D. Anderson Director of Taxes Enron Broadband Services, Inc. 713-345-7729 (Houston office through 12/15, no voice mail) 503-886-0335 (Portland office and messages) 503-425-6005 (fax) richard_anderson@enron.net

Mona L Petrochko@ENRON 12/12/00 03:21 PM

To: Sue Nord/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Jeff Dasovich/NA/Enron@Enron, Richard Anderson/Enron Communications@Enron Communications cc: Subject: Conference Call on Interconnection Agreements-Internal

It seems that 2 p.m. p.s.t. works best for all for a conference call. The call-in number is 888-311-9051 passcode is 60396.

The agenda would be to discuss:

1. interconnection agreements
2. tax implications of c-corp vs. llp

Message 162 of 1299

FW: A.00-11-038, A. 00-11-056, A. 00-10-028

Sender	jbenett@gmssr.com
Recipients	['harry.kingerski@enron.com', 'jdasovic@enron.com', 'james_d_steffes@enron.com']
File	dasovich-j/notes_inbox/12169.

-----Original Message-----

From: Warner, Christopher (Law) [mailto:CJW5@pge.com] Sent: Tuesday, July 03, 2001 4:45 PM To: 'abb@eslawfirm.com'; 'ad046@detroit.freenet.org'; Attached is a motion filed by PG&E on Tuesday, July 3rd in which PG&E requests that the Commission, no later than July 19th, place a market value on their hydroelectric (and other remaining generating) assets and order that such market value be used for the purposes of determining PG&E's retained generation revenue requirement. Responses to the motion are due by July 12th. Please advise if Enron wants to respond.

Jeanne

Subject: A.00-11-038, A. 00-11-056, A. 00-10-028

Enclosed please find MOTION OF PACIFIC GAS AND ELECTRIC COMPANY TO ESTABLISH FINAL MARKET VALUATION OF NON-NUCLEAR GENERATING ASSETS PURSUANT TO PUBLIC11 UTILITIES CODE SECTION 376 filed July 3, 2001 by Pacific Gas and Electric Company in A. 00-11-038, A. 00-11-056, A.00-10-028. Hard copy service was made by United States mail on parties listed on the official service list this date also. Thank you.

<<PGEURGmotion7-3elec.doc>> Christopher J. Warner Pacific Gas & Electric Company P.O. Box 7442 San Francisco, CA 94120 Telephone: 415-973-6695 Facsimile: 415-972-5220 Email: cjw5@pge.com

Martie Way 30177

- PGEURGmotion7-3elec.doc

Message 163 of 1299

Government Affairs-The Americas: Department Meeting

Sender	ginger.dernehl@enron.com
Recipients	['alberto.levy@enron.com', 'assad@elektro.com.br', 'alan.comnes@enron.com']
File	dasovich-j/notes_inbox/5501.

Woodlands, here we come again!!!! The next Government Affairs-The Americas meeting is scheduled for Friday, March 9 at 8:00am and should conclude by 5:00pm. For those staying overnight, I have a block of rooms reserved and I will be

putting a rooming list together for the conference center. Please do not call the conference center directly for reservations. I will need to know by Wednesday, February 7 of your plans to attend this meeting and if you will require overnight accommodations (pls indicate # of nights needed).

The location of the meeting will be:

The Woodlands Resort 2301 North Millbend Drive The Woodlands, TX 77380 Phone# 281-367-1100 Fax# 281-364-6274
Check-In time is 3:00pm Check-Out time is 12:00pm

The Woodlands Resort provides transportation service to and from the airport on a scheduled basis from 6:00am - 10:00pm at a cost of \$32.00 per person, per trip. Reservations must be made a minimum of 24 hours in advance for both arrivals and departures. If you have an interest in using this service, please call the transportation desk at 281-364-6256.

The agenda for the meeting is still a work in progress and I will forward it to everyone once it is finalized.

Thanks and please don't hesitate to call me if you have any questions.

gngr 713-853-7751

Message 164 of 1299

Re: Contact with Prominent UC Berkeley Energy Economist

Sender	riccardo.bortolotti@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/1032.

Jeff,

thanks a lot for exceeding expectations .

Regards,

R

Jeff Dasovich@EES 31/08/2000 16:49 To: fgobbo@luiss.it, Riccardo Bortolotti/LON/ECT@ECT, borenste@haas.berkeley.edu cc:

Subject: Contact with Prominent UC Berkeley Energy Economist

Greetings Dr. Gobbo:

If my memory serves, you should have arrived back in Italy, or will return soon. Since we met, I have spoken with Severin Borenstein, who is intimately involved with California's electricity restructuring (melodrama?) and a renowned energy economist at UC Berkeley. Severin has offered to serve as a contact for you as you continue to take on the formidable task of restructuring your country's electric industry. I've included his contact information below. And, of course, if there is ever anything I can do for you, do not hesitate to contact me.

All the best, Jeff

Severin Borenstein

E.T. Grether Professor of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California 2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508 <http://www.ucei.berkeley.edu/ucei>

Email: borenste@haas.berkeley.edu WWW: <http://haas.berkeley.edu/~borenste>

Message 165 of 1299

NWE Proposed Language to ABX2 82 -- Need to know if we support

Sender	susan.mara@enron.com
Recipients	['robert.williams@enron.com', 'jeff.dasovich@enron.com', 'sgovenar@govadv.com', 'wanda.curry@enron.com', 'harr...]
File	dasovich-j/notes_inbox/11838.

New West is proposing these amendments to the bad bill AB XX 82. Its view is that it wants to start getting Some interest in the PX credit issue to see if they can get it into a bill. They acknowledge that AB XX 82 is a bad bill. We will be having a teleconf on this tomorrow with all the ESP consolidated billers.

So far, I've told New West that it would likely be better for them, if Enron stays away from formally supporting this, given the target on our face in the Legislature. More important, I need to know if EES would like to see some PX credit language in legislation.

I have some questions about the approach New West took in modifying the legislation, so, I have a call into them.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/17/2001 01:05 PM -----

jsmollon@newwestenergy.com 07/16/2001 11:11 AM

To: <jsmollon@newwestenergy.com>, <douglass@energyattorney.com>, <davef@abag.ca.gov>, <athomas@newenergy.com>, <Bob_Anderson@apses.com>, <kennethm@abag.ca.gov>, <susan_j_mara@enron.com>, <jerryf@abag.ca.gov>, <merilyn_ferrara@apses.com> cc: Subject: NWE Proposed Language to ABX2 82

<<NWE Proposed Language for ABx2 82.doc>>

Thank you, Janie Mollon Manager Legislative and Regulatory Affairs 602-629-7758 FAX 602-629-7773

- NWE Proposed Language for ABx2 82.doc

Message 166 of 1299

An Inbound Message For You Has Been Quarantined

Sender	admin.enron@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/inbox/532.

You have received this message because someone has attempted to send you an e-mail from outside of Enron with an attachment type that Enron does not allow into our messaging environment. Your e-mail has been quarantined and is being held at the MailSweeper server.

Sender: sloggans@ahmassoc.com Date: Tue, 9 Oct 2001 19:46:16 -0400 (EDT) Subject: If amount of total Attachment Type: Scenarios/Incoming/Inbound COM Catcher: A filename matching the file mask was detected: 'hours.com'. Scenarios/Incoming/Inbound DOC Catcher: A filename matching the file mask was detected: '000810 design study.doc'. Scenarios/Incoming/Inbound Image Catcher: 'Selected'. Scenarios/Incoming/Inbound Image Catcher: 'Selected'.

If the intended email is of valid business-related content and you believe it requires Enron resources to retrieve it, you may call your Help Desk and ask to have it released from quarantine and delivered to your e-mail Inbox. Your message will be scanned and checked for viruses prior to requested release. If it contains a virus or there is reason to suspect it is malicious code, it will not be delivered.

North American Resolution Center: 713 853 1411 European Resolution Center: 0044 207 78 36777 EES Help Desk: 888 853 9797 ETS Solution Center: 713 345 4745 (Houston) or 402 398 7454 (Omaha)

Please DO NOT reply to this address as it is not a monitored system mailbox.

Message 167 of 1299

Background for Enron Solution to California's Electricity

Sender	jeff.dasovich@enron.com
Recipients	['skean@enron.com', 'karen.denne@enron.com', 'sjensen@amgen.com', 'ksharer@amgen.com']
File	dasovich-j/sent/4569.

Hello Sarah: My name is Jeff Dasovich. I work for Enron in Enron's San Francisco office. Last Friday, the Chairman of our company, Ken Lay, met with Kevin Sharer and other CEOs from California to discuss the energy crisis in California and the need to develop as soon as possible a comprehensive solution to the problem. Mr. Sharer asked for some additional background on the issues and the solution and asked that you be contact person. That information is attached. If you have any questions, don't hesitate to contact me at 415.782.7822 or on my pager at 888.916.7184.

Best regards, Jeff Dasovich

Jeff Dasovich Senior Director Enron Corp 101 California Street Suite 1950 San Francisco, CA 94111 ----- Forwarded by Jeff Dasovich/NA/Enron on 05/14/2001 12:11 PM -----

Jeff Dasovich Sent by: Jeff Dasovich 05/11/2001 08:32 PM

To: scott.mcnealy@engeng.sun.com, piper.cole@sun.com cc: Kenneth Lay/Corp/Enron@ENRON, skean@enron.com, Karen Denne/Corp/Enron@ENRON Subject: Background for Enron Solution to California's Electricity Crisis--Follow up from Meeting on 5.10.01

Attached is additional background on the solution that Ken Lay discussed today and that Enron is proposing as a comprehensive solution to California's electricity crisis. If you have any questions, don't hesitate to contact me at 415.782.7822 or on my pager at 888.916.7184.

Best regards, Jeff

Message 168 of 1299

PG&E Stakeholders Meeting Agenda

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/deleted_items/1740.

SVMG ENERGY COMMITTEE MEMBERS:

Stakeholders,

This is a reminder that PG&E is hosting its fifth stakeholders meeting for the 2001 PG&E Transmission Expansion Plan on September 17 and 18, 2001 in San Francisco, CA. The purpose of this meeting is to present the study group with project proposals and alternatives to be included in the expansion plan. The fifth stakeholders meeting has been divided into two days: Sept. 17 to present Bay Area Project Proposals and Sept 18 to present non-Bay Area Project Proposals.

Date: Monday , Sept 17, 2001 Subject: Stakeholders Meeting #5 (Day 1) - "PG&E 2001 Electric Grid Expansion Plan - Bay Area Project Proposals" Time: 10:00 a.m. to 4:00 p.m. Location: 77 Beale Street, Conference Room 308 San Francisco, CA 94177

Date: Monday , Sept 18, 2001 Subject: Stakeholders Meeting #5 (Day 2) - "PG&E 2001 Electric Grid Expansion Plan - Non-Bay Area Project Proposals" Time: 10:00 a.m. to 4:00 p.m. Location: 77 Beale Street, Conference Room 308 San

Francisco, CA 94177

Attached is the agenda for the meeting. If you have any additional questions about this meeting, please contact Mark Esguerra (pme8@pge.com or 415-973-4380).

Regards, Mark Esguerra PG&E-Electric Transmission Planning Mail Code N3B P.O. Box 770000 San Francisco, CA 94177

Email: pme8@pge.com Phone: 415-973-4380

Message 169 of 1299

RE: Merry Xmas?

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/all_documents/10889.

where've we been? where've you been? really only stay at my house on school nites (monday/thursday). will be chez toi tonite. would LOVE to go back this weekend (it's gorgeous---TONS of iris, apple blossoms, wild flowers, etc.), but alas, we promised you're folks we'd plant tomatoes this weekend. I'm going to put down nice gravely rock around the beds, so it looks more like Italy, or France or something and we don't get all the weeds. Sorry about S.D., but it will be super nice down there. Be sure to go to Black's Beach. And golf and Torrey Pines. See you tonite?

Cameron Sellers <cameron@perfect.com> 04/10/2001 02:35 PM

To: "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com> cc: Subject: RE: Merry Xmas?

Where have you been - I haven't seen you guys at all. Staying at your house a little more these days?? When are you going back up to the dome? We are leaving Friday for San Diego to spend the easter holiday (yeah, whatever) with Scotty's mom.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, April 10, 2001 12:28 PM To: Cameron Sellers Subject: RE: Merry Xmas?

Not a problem. Just couldn't believe that they screwed it up so much. There's 3 ft of new power at Squaw!!!!

Message 170 of 1299

International Consulting Projects - Not IBD but ???

Sender	teunisse@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/deleted_items/1005.

Need an interesting project for independent study or for a course project? Consider looking into the Environmental Enterprise Corp. They match MBA student teams with environmental entrepreneurs in Latin America. They have posted available projects on www.ecofinance.net/eec. <<http://www.ecofinance.net/eec.html>>html
<<http://www.ecofinance.net/eec.html>>. Typical assignments are business plan development or marketing strategies. Travel to the client/country is not required, but not discouraged either (if you have the time and money.)

This information is sent to you without Haas endorsement/approval. If you pursue this you will need to find a Haas faculty member who will accept this project as fulfillment for the requirements for their course(s). This is being sent to you only to make you aware of a potential source of projects that might fit your needs.

For further information please contact:

Amy Sprague New Ventures / Environmental Enterprise Corps World Resources Institute 10 "G" Street, NE Suite 800
Washington, DC 20002 (202) 729-7669 amys@wri.org www.ecofinance.net/eec. <<http://www.ecofinance.net/eec.html>>
html <<http://www.ecofinance.net/eec.html>>

Sebastian Teunissen Executive Director Clausen Center for International Business and Policy Haas School of Business
University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228
<<http://www.haas.berkeley.edu/HaasGlobal>>

Message 171 of 1299

Re: Contact with Prominent UC Berkeley Energy Economist

Sender	jeff.dasovich@enron.com
Recipients	['riccardo.bortolotti@enron.com']
File	dasovich-j/sent/161.

My pleasure. Sounds like he's got a big job---glad that Enron can help....

Riccardo Bortolotti@ECT 09/04/2000 03:33 PM To: Jeff Dasovich/SFO/EES@EES cc: Subject: Re: Contact with Prominent UC Berkeley Energy Economist

Jeff,

thanks a lot for exceeding expectations .

Regards,

R

Jeff Dasovich@EES 31/08/2000 16:49 To: fgobbo@luiss.it, Riccardo Bortolotti/LON/ECT@ECT, borenste@haas.berkeley.edu cc:

Subject: Contact with Prominent UC Berkeley Energy Economist

Greetings Dr. Gobbo:

If my memory serves, you should have arrived back in Italy, or will return soon. Since we met, I have spoken with Severin Borenstein, who is intimately involved with California's electricity restructuring (melodrama?) and a renowned energy economist at UC Berkeley. Severin has offered to serve as a contact for you as you continue to take on the formidable task of restructuring your country's electric industry. I've included his contact information below. And, of course, if there is ever anything I can do for you, do not hesitate to contact me.

All the best, Jeff

Severin Borenstein

E.T. Grether Professor of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California 2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508 <http://www.ucei.berkeley.edu/ucei>

Email: borenste@haas.berkeley.edu WWW: <http://haas.berkeley.edu/~borenste>

Message 172 of 1299

RE: Grand total is....!

Sender	jeff.dasovich@enron.com
Recipients	[cameron@perfect.com]
File	dasovich-j/all_documents/10975.

You're kidding. You mean they've double billed us? Can you find you're credit card bill? They can find each and every receipt, who signed it, etc., so that we can make sure they don't screw us. I'll bring my stuff over tonite. If they've double billed us, I'm going to suggest that they owe us a comp up there. No worries, though. They've got the paper work, and if we've paid twice, they're just going to need to credit my card. No big deal. Just a hassle having to deal with 'em. You around tonite?

Cameron Sellers <cameron@perfect.com> 04/11/2001 01:53 PM

To: "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com>, Cameron Sellers <cameron@perfect.com>, scottwl@hotmail.com cc: Subject: RE: Grand total is....!

We definitely need to see the paperwork since we already paid a bill of at least that much so far. Don't worry, though we will make sure that you don't get stuck with anything and work it all out.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, April 11, 2001 11:25 AM To: cameron@perfect.com; scottwl@hotmail.com Subject: Grand total is....!

Hi. I've got all the paperwork. The bill (on my bill) for you guys is \$740. I'll get you the paperwork tonite. Sorry for the mix-up (should I ask Squaw for a discount due to all the mess!?!?).

Best, Jeff

Message 173 of 1299

CSU Fresno 115kV Substation Status

Sender	rob.cone@enron.com
Recipients	[jeff.dasovich@enron.com', 'dinah.baharin@enron.com', 'richard.crevelt@enron.com', 'chris.weber@enron.com', '...
File	dasovich-j/all_documents/326.

Team

Listed below is a brief description on the status for the Project.

? EIP Associates is currently working on the CEQA Initial Draft Study. The draft will be complete on February 11th, 2000. At this point it will be in our hands for review and comment. I have scheduled for our review period to take no longer than one week. So please be prepared, the Study will be coming to you on February 14th. I want to get this Study out to public review ASAP! ? EES will be sending out an Request for Proposal (RFP) to three contractors this week to obtain costs to compare to the PG&E numbers received in their Detailed Study. The RFP will contain various sketches and documents detailing the following scopes of work. The overbuilding of the existing 12kV line to accommodate a 115kV circuit from the PG&E Herndon - Bullard Sub. to the new CSUF Sub. The installation of an underground 115kV circuit from the PG&E Herndon - Bullard Sub. to the new CSUF Sub. The yard work at the PG&E Herndon - Bullard Sub. ? Developing a strategy for the upcoming meeting with PG&E to go over the Detailed Study. I am shooting for this meeting to take place during the last week of February. I will be working with all of you in the mean time to make sure all bases are covered and that a

correct, thorough agenda is developed.

I hope this gives everyone an idea of where we stand. Feel free to call or respond back with any questions or comments.

Rob Cone

Project Manager Enron Energy Services 12647 Alcosta Blvd., Suite 500 San Ramon, CA 94583 Ph:925.543.3701,
Fax:925.543.3550 Pager:888.397.5826

Message 174 of 1299

Re: DRAFT talking points for California PUC Hearings on the

Sender	richard.shapiro@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/6019.

Looks good w/ comments from Harry and Sue. Thanks!

From: Jeff Dasovich on 12/26/2000 03:15 PM Sent by: Jeff Dasovich To: Jeff Dasovich/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Dennis Benevides/HOU/EES@EES, Eric Letke/DUB/EES@EES, George McClellan/HOU/ECT@ECT, Harry Kingerski/NA/Enron@ENRON, James D Steffes/NA/Enron@ENRON, Jennifer Rudolph/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Kevin McGowan/Corp/Enron@ENRON, Lisa Yoho/NA/Enron@ENRON, Lysa Akin/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@ENRON, Roger Yang/SFO/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Scott Stoness/HOU/EES@EES, skean@enron.com, Stuart Staley/LON/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES, MDay@GMSSR.com, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Mike D Smith/HOU/EES@EES cc:

Subject: DRAFT talking points for California PUC Hearings on the 27th/28th

Attached is a draft of the talking points for the Commission's hearings. Few points: Our time is likely to be limited to 5-10 minutes. Mike Day, our outside counsel, will make the presentation on our behalf. Mike Day is fleshing out the legal details of our presentation and he will forward that along for folks review later today. Comments can be forwarded to me via email, pager (888.916.7184), voicemail (415.782.7822), or home (415.621.8317). We will finalize the message points on tomorrow's daily call (10 AM CST). The call in number is 800.713.8600. Code is 80435. The Commission's hearings begin tomorrow at 10 AM (PST).

Message 175 of 1299

DRAFT talking points for California PUC Hearings on the 27th/28th

Sender	jeff.dasovich@enron.com
Recipients	['mpalmer@enron.com', 'karen.denne@enron.com']
File	dasovich-j/sent/2757.

----- Forwarded by Jeff Dasovich/NA/Enron on 12/26/2000 03:20 PM -----

Jeff Dasovich Sent by: Jeff Dasovich 12/26/2000 03:15 PM

To: Jeff Dasovich/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Dennis Benevides/HOU/EES@EES, Eric Letke/DUB/EES@EES, George McClellan/HOU/ECT@ECT, Harry Kingerski/NA/Enron@ENRON, James D Steffes/NA/Enron@ENRON, Jennifer Rudolph/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Kevin McGowan/Corp/Enron@ENRON, Lisa Yoho/NA/Enron@ENRON, Lysa Akin/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@ENRON, Roger

Yang/SFO/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Scott Stoness/HOU/EES@EES, skean@enron.com, Stuart Staley/LON/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES, MDay@GMSSR.com, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Mike D Smith/HOU/EES@EES cc: Subject: DRAFT talking points for California PUC Hearings on the 27th/28th

Attached is a draft of the talking points for the Commission's hearings. Few points: Our time is likely to be limited to 5-10 minutes. Mike Day, our outside counsel, will make the presentation on our behalf. Mike Day is fleshing out the legal details of our presentation and he will forward that along for folks review later today. Comments can be forwarded to me via email, pager (888.916.7184), voicemail (415.782.7822), or home (415.621.8317). We will finalize the message points on tomorrow's daily call (10 AM CST). The call in number is 800.713.8600. Code is 80435. The Commission's hearings begin tomorrow at 10 AM (PST).

Message 176 of 1299

CAISO Notice: New CPUC subpoena

Sender	susan.mara@enron.com
Recipients	['christian.yoder@enron.com', 'carroll@bracepatt.com', 'richard.sanders@enron.com']
File	dasovich-j/all_documents/28075.

The latest

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/22/2001 10:58 PM -----

CRCommunications <CRCommunications@caiso.com> 06/22/2001 04:53 PM Please respond to "Sole, Jeanne"

To: ISO Market Participants

<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO Notice: CPUC subpoena

Market Participants and Scheduling Coordinators:

The CA ISO received today a subpoena from the California Public Utilities Commission (CPUC). The subpoena is attached. The subpoena requires a response by July 2. Concerns related to the subpoena should be directed directly to the California Public Utilities Commission. The CPUC contact related to the subpoena is Robert Cagen who can be reached at (415) 703-2197. The ISO would appreciate being notified also of any concerns. The ISO contacts are Jeanne Sol, at jsol@caiso.com <mailto:jsol@caiso.com> and Norma Formanek at <mailto:nformanek@fbm.com> nformanek@fbm.com both of whom should be copied on correspondence.

Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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- CPUC Subp 0622.pdf

Message 177 of 1299

FW: 3/20 field update from Ian, Kevin, David H., James B.

Sender	cameron@perfect.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/10263.

Here's the update from the Enron meeting. Let's talk when I get back from Chicago. Will you be around Thursday night?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Ian Sullivan Sent: Tuesday, March 20, 2001 8:47 PM To: A - All Subject: 3/20 field update from Ian, Kevin, David H., James B.

*

ENRON * Summary - outstanding meeting with a world-class F500 company, these people understand Strategic Sourcing, there are multiple opportunities within this account, nice work by David Young to get us in front of the right people * Derry's group (50 people) handles Strategic Sourcing (SS) across 8 major spend categories for the company (IT/Telco, Pipes/Valves/Fittings, Admin Svcs, Travel & Entertainment, etc...) * They currently run a very sophisticated, off-line SS process but... have ZERO tools to manage this process on-line and are desperate for better information pre and post sourcing events * Their SS process is slow (the target for each sourcing event is 90 days, although many run beyond this) and they are frustrated by the lack of information available from their SAP system * Our solution was a direct hit with their needs - the marriage of Perfect Buyer/Supplier to speed up their req2select process was compelling, the PPD was a hit (as usual), and Perfect Insight will be huge win for them * Next steps - they want us to come back and show the product with some of their info (custom demo), we will also hit other areas of the company identified in the mtg as potential users of our solution

Message 178 of 1299

Accenture offering Practice job interview experience Plus \$\$\$

Sender	owner-evmba_social@haas.berkeley.edu
Recipients	[evmba_social@haas.berkeley.edu]
File	dasovich-j/all_documents/11287.

To follow is a message regarding practice interviews offered by Accenture. THIS IS NOT AN AVENUE TO A JOB WITH ACCENTURE, rather, you're helping the company to develop their interview process and train their recruiters. So if you volunteer, please don't put the press on these people . . .

Accenture is looking for seven individuals to serve as experienced practice interviewees at our San Francisco office on Thursday, May 24th. The session will be held from 1pm-5pm, and lunch will be served. In addition to earning \$50, participants will be reimbursed for their travel expenses to and from the session.

Participants will: Meet with Accenture executives to conduct practice interviews. Receive feedback from real interviewers. Get paid \$50 plus round trip transportation expenses.

Criteria : Individuals in any master's degree program with a 3.0 GPA and 2+ years of work experience.

Interested students should email resumes to Christina Roemer at christina.roemer@accenture.com. Resumes will be reviewed and potential participants will be contacted via telephone. Then a confirmation for participation will be sent via email with specific information regarding the session.

NOTE: These interviews are for PRACTICE PURPOSES ONLY and have no bearing on future interviewing and/or employment opportunities with Accenture.

Christina Roemer Accenture - St. Charles, IL People Enablement - Training Operations, Conduct & Support Phone: 1.630.444.5449 VPN: 49/45449 Email: christina.roemer@accenture.com

It's a great chance to buff up your skills-- Jenny

Account Representative, MBA Recruiting Haas School of Business, UC Berkeley T 510-643-4212 F 510-643-5257 E rowe@haas.berkeley.edu

SanFran Grad.doc

Message 179 of 1299

Re: Address Information you requested

Sender	joseph.alamo@enron.com
Recipients	['adamk@sheltercorp.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/4020.

hey, Adam!

My name is Joseph and I'm assistant to Jeff Dasovich, who forwarded your e-mail to me, as well as Mona Petrochko, both of whom are directors here in the San Francisco office.

Please note our address as follows, which applies to Jeff, Mona and myself:

Enron Corp. 101 California Street Suite 1950 San Francisco CA 94111

Jeff's phone: 415.782.7822 e-mail: jeff.dasovich@enron.com

Mona's phone: 415.782.7821 e-mail: mona.l.petrochko@enron.com

my phone: 415.782.7841 e-mail: joseph.alamo@enron.com

Our fax number: 415.782.7854

Adam, I hope this helps, and if you have any more questions or need any more info, please do not hesitate to contact me. (Are you new?? Welcome aboard, fellow Admin!)

Thanks,

Joseph Alamo Sr. Administrative Assistant Government Affairs - The Americas San Francisco CA

----- Forwarded by Joseph Alamo/NA/Enron on 11/29/2000 02:01

PM ----- From: Jeff Dasovich on 11/29/2000 03:43 PM CST Sent by: Jeff Dasovich To: Joseph Alamo/NA/Enron@Enron cc:

Subject: Re: Address Information

Can you get this kind person the info? Thanks very much.

"ADAM KRISTENSEN" <adamk@sheltercorp.com> 11/29/2000 03:32 PM

To: jeff.dasovich@enron.com cc: Subject: Address Information

Mr. Dasovich,

Hello, my name is Adam, and I work as an administrative assistant to Ms. Susan Landwehr in Enron's Minneapolis satellite office. She has asked me to compile an address list of several of her colleagues, including yourself.

Unfortunately, I have been unable to find your street address or that of your coworker, Mona Petrochko. If you could email this information back to me, it would be much appreciated. Thanks.

Adam Kristensen ENRON Corp.

Message 180 of 1299

Save the Date- July 9 for a Roundtable on Water/Energy/Public

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/notes_inbox/12372.

FYI Energy Committee Members

Interested folks:

The Board of Directors of the Silicon Valley Pollution Prevention Center invites you to join them for a roundtable discussion of creating sustainable water and energy systems which protect public health.

The Roundtable will begin at 3:00 PM and adjourn at 5:30 PM. Registration will begin at 2:30 PM in the lobby of the Santa Clara Valley Water District Board Room, 5700 Almaden Expressway, San Jose, CA (408 265-2600)

The agenda for the Roundtable is as follows: 2:30 to 3:00 PM Registration and refreshments in SCVWD Lobby 3:00 to 3:10 PM Welcome and Introductory remarks: Stan Williams, SCVWD CEO and President, SV P2 Center & Ted Smith VP SVP2Center 3:10 to 3:20 PM Goals and Guideline: Dennis Church, Facilitator 3:20 to 3:50 PM Energy Systems Discussion: Peter Melhus, PG & E Policy Consultant 3:50 to 4:00 PM Respondent and Q & A 4:00 to 4:20 PM Water Systems Discussion: Steve Ritchie, Director URS Water Div. (former CALFED Manager & SFRWQCB Exec Officer) 4:20 to 4:30 PM Respondent and Q&A 4:30 to 4:50 PM Public Health Discussion of Water & Energy Systems: Lauren Zeiss, CA Department of Health Services (invited) 4:50 to 5:00 PM Respondent and Q & A 5:00 to 5:20 PM Roundtable Discussion and Next Steps: Dennis Church, Facilitator 5:20 to 5:30 PM Closing Remarks: Stan Williams, President/Ted Smith VP SVP2Center

We hope you will be able to attend and participate in this timely and important discussion. Please respond to this e-mail of your ability and intentions for attendance. Thanks!

Patrick T. Ferraro, Executive Director The Silicon Valley Pollution Prevention Center 351 Brookwood Drive, San Jose, CA 95116-2742 Ph: 408 291-0131 Fax: 408 294-1239 E-mail: SVP2CENTER@aol.co, Web Site: www.svp2center.org

Message 181 of 1299

Re:More Nagging About the Project

Sender	jeff.dasovich@enron.com
Recipients	['jeff.dasovich@enron.com', 'mark_guinney@watsonwyatt.com', 'cvavrek@deloitte.com', 'asama@yahoo.com']
File	dasovich-j/all_documents/9942.

I'm having the same problem. She states on the izio site that that the cases are in the reader. they ain't. if anyone has them and could fax them to me at 415.782.7854, would be greatly appreciated.

Best, Jeff

Also, I like both ideas--Anil's and Mark's. I think that we could discuss at break and write it up then and turn in at beginning of second half of class. I'd lean a bit toward the Amazon suggestion, but could go either way.

"Mark Guinney" <Mark_Guinney@watsonwyatt.com> 03/14/2001 07:39 AM

To: "Jeff.Dasovich@enron.com" <Jeff.Dasovich@enron.com>, "cvavrek@deloitte.com" <cvavrek@deloitte.com> cc: "asama@yahoo.com" <asama@yahoo.com>, "Jeff_Dasovich@enron.com" <Jeff_Dasovich@enron.com> Subject: Re:More Nagging About the Project

Where did we get the readings for Thursday? I can't seem to find them anywhere. Can someone please fax me a copy? My fax number is (415) 733-4190.

Thanks

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator _____ Subject: More Nagging About the Project Author: Jeff.Dasovich@enron.com Date: 03/13/2001 8:18 PM

Greetings:

Sounds like I'm glad that I missed the quiz last week.

Hate to be a nag, but we've got to turn in what we're doing for our project on Thursday. I propose doing a nice, clean merger, which would allow us to do both comparative analysis (who are these companies?) and merger/valuation analysis. Mark and I talked last night and I pleaded again not to do strict accounting stuff, but if that's what folks would like to do, I can certainly suck it up. Any thoughts?

Best, Jeff

Message 182 of 1299

CAISO Notice: Subpoena from the CPUC

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'christian.yoder@enron.com', 'richard.sanders@enron.com']
File	dasovich-j/all_documents/13140.

The newest subpoena.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/29/2001 11:08 AM -----

CRCommunications <CRCommunications@caiso.com> 05/25/2001 04:48 PM

To: ISO Market Participants
<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO Notice: Subpoena from the CPUC

Market Participants and Scheduling Coordinators:

The CA ISO received today a subpoena from the California Public Utilities Commission (CPUC). The subpoena is attached. The subpoena requires a response by June 4. The subpoena provides that "information provided by Respondent pursuant to this subpoena duces tecum will be considered confidential by the California Public Utilities Commission". Concerns related to the subpoena should be directed directly to the California Public Utilities Commission. The CPUC contact related to the subpoena is Robert Cagen who can be reached at (415) 703-2197. The ISO would appreciate being notified also of any concerns. The ISO contacts are Jeanne Sol, at jsol@caiso.com <mailto:jsol@caiso.com> and Norma Formanek at <mailto:nformanek@fbm.com> nformanek@fbm.com both of whom should be copied on correspondence.

Jeanne M. Sol, Regulatory Counsel California ISO (916) 608-7144

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Message 183 of 1299

Fwd: Direct Marketing conference

Sender	rwiner@stern.nyu.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/inbox/955.

Date: Wed, 28 Nov 2001 16:08:12 -0500 To: mba02@haas.berkeley.edu, evening@haas.berkeley.edu From: Russell Winer <rwiner@stern.nyu.edu> Subject: Direct Marketing conference Cc: Tulin *** DELETE IF YOU ARE NOT INTERESTED IN DIRECT MARKETING*** The Direct Marketing Educational Foundation has an annual conference bringing together MBA students from top programs and leading Direct Marketing professionals. This year, the program will be held Feb. 1-3 in New York. The program is intended for MBA students who have serious career interests in direct marketing but who have not yet had a significant amount of experience in the field. More information is provided in the attached document. In the past, we have sent 2 and sometimes 3 students to the program. This e-mail is being sent to second year Haas full-time MBA students and evening program students. I would prefer that the latter applicants be at least in the second year of the program. If you are interested in attending and can commit to the dates, please send me a one-page resume and a one-paragraph statement of how you would benefit from the program. The due date for getting this information to me is Monday, Dec. 3. Please send it to my NYU e-mail address (I'm on leave here this academic year), rwiner@stern.nyu.edu. Russ Winer Professor Russ Winer J. Gary Shansby Professor of Marketing Strategy Haas School of Business, UC-Berkeley Visiting Professor of Marketing Stern School of Business New York University rwiner@stern.nyu.edu Phone: 212.998.0517 Fax: 212.995.4006

Professor Russ Winer Visiting Professor of Marketing Stern School of Business, Room 8-90 New York University 44 West 4th Street New York, NY 10012 rwiner@stern.nyu.edu Phone: 212.998.0517 Fax: 212.995.4006

Message 184 of 1299

Re: E220 Case #1

Sender	jeff.dasovich@enron.com
Recipients	['jjackson@haas.berkeley.edu', 'kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu']
File	dasovich-j/sent/221.

Greetings folks. We should decide how we want to handle. One thing I'm not clear on and that I couldn't find in the syllabus is, what's the format for the write up? If we're called on to discuss, do we simply discuss orally, some sort of simplistic PP slides, spreadsheets, other? Anyway to discuss between now and Monday, or do we want to just take Dylan up on his offer?

Best, Jeff

Kimberly Kupiecki <kkupiecki@arpartners.com> on 09/07/2000 06:56:44 PM To: jdasovic@enron.com cc: dwindham@uclink4.berkeley.edu, kupiecki@haas.berkeley.edu, jjackson@haas.berkeley.edu Subject: Re: E220 Case #1

Hello all,

I will take a look at the case tonight.

Divvying is fine with me.

At 03:22 PM 9/7/00, jdasovic@enron.com wrote:

would seem useful if we all contribute in some manner, but i'm open to suggestions. perhaps we could divvy up the questions. Dylan Windham <dwindham@uclink4.berkeley.edu> on 09/07/2000 04:50:31 PM To: dasovich@haas.berkeley.edu, kupiecki@haas.berkeley.edu, jjackson@haas.berkeley.edu cc: Subject: E220 Case #1 Hello, I have started to look at the case assignment for Monday. Since, I will be out of town the following week I will volunteer to write this one up. I don't know how he want to divvy up the work (by Questions or everyone does it all), but let me know. I have already made a spreadsheet with the combined cash flow statement that I will send to you tomorrow. Let me know how we want to handle this. --Dylan Ofc. Dylan H. Windham Threat Management/Domestic Violence Unit University of California Police - Berkeley Room 1 Sproul Hall Berkeley, CA 94720 (510) 642-1606

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 185 of 1299

Status of Revised draft of White Paper

Sender	mary.hain@enron.com
Recipients	['susan.mara@enron.com', 'mhenry@bracepatt.com', 'seabron.adamson@frontier-economics.com', 'mona.petrochko@enr...]
File	dasovich-j/all_documents/2498.

Tim gave some final comments to Seab this morning and is getting together some data for him. Tim will provide the data shortly (today). Then the paper will be ready for filing. So please get any other comments to me NOW. Thanks.

----- Forwarded by Mary Hain/HOU/ECT on 10/19/2000 08:51 AM

Enron Capital & Trade Resources Corp.

From: "Seabron Adamson" <seabron.adamson@frontier-economics.com> 10/18/2000 04:16 PM

To: <Mary.Hain@enron.com> cc: <tim.belden@enron.com>, <rcarroll@bracepatt.com> Subject: Revised draft of White Paper

Mary, Tim and Ron:

Dear all:

OK. I think we have all of Tim's comments and suggestions in. I wanted to make sure this got out while folks were still there. Please see the sections we discussed this morning. I have concentrated on the analysis and not the typos so be on the lookout.

I will be in my office in the morning if anyone needs to reach me, or try my cellphone (617) 513-5904.

All the best,

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

- 00-10-18-SA Draft Enron White Paper.doc

*Message 186 of 1299***GA Department Meeting, Friday, March 9**

Sender	ginger.dernehl@enron.com
Recipients	['cruane@quinngillespie.com', 'robert.bruce@enron.com', 'donna.lowry@enron.com']
File	dasovich-j/all_documents/9408.

Please read this e:mail. Important detailed information provided.

Hi everyone:

I want to follow-up with each of you on some details for the upcoming Government Affairs-The Americas meeting on Friday, March 9. First thing, your contacts for this upcoming meeting will be Linda Noske (x36082) & Geriann Warner (x35036). After Tuesday, February 27, I will be out of the office and unavailable until Monday, March 12. (Aloha!)

The meeting will take place at the Woodlands Resort in the "Lakeside Room" on Friday, March 9. A continental breakfast will be available at 7:30am with the meeting beginning promptly at 8:00am and concluding by 3:00pm (see attached agenda).

The Woodlands Resort 2301 North Millbend Drive The Woodlands, TX 77380 Phone# 281-367-1100 Fax# 281-364-6274 Check-In time is 3:00pm Check-Out time is 12:00pm (see attached map)

For those of you who will be staying overnight, as an overnight guest at The Woodlands Resort, you are entitled to dinner the evening of March 8th and breakfast the next morning at the Woodlands Dining Room. You must let the server know that your meal should be charged to the Enron master account. This service is part of the meeting package that Enron has agreed to. If you have any questions, please feel free to call Linda or Geriann.

The Woodlands Resort provides transportation to and from the airport. Assistants/Coordinators, please schedule any transportation with the resort directly, their number is 281-364-6256. PARKING: Valet parking is not available, you will need to park in a parking lot on site.

ATTIRE: Friday Casual

Below, you will find a list of names with date of arrival/departure for those needing overnight accommodations. Please check this list for accuracy and get back with me ASAP if changes are needed.

gngr 713-853-7751

*Message 187 of 1299***Re: DRAFT talking points for California PUC Hearings on the**

Sender	scott.stoness@enron.com
Recipients	['jeff.dasovich@enron.com', 'roger.yang@enron.com', 'dennis.benevides@enron.com', 'harry.kingerski@enron.com']
File	dasovich-j/all_documents/7956.

2 challenges I see We do not want the "rate freeze" to end but we do want a interim rate increase. What about a temporary tax as a solution. We like taxes in our contracts - flow through. And it does not require ending rate freeze I think the front part could be stonger with references to AB1890??

From: Jeff Dasovich@ENRON on 12/26/2000 03:15 PM Sent by: Jeff Dasovich@ENRON To: Jeff Dasovich/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Dennis Benevides/HOU/EES@EES, Eric Letke/DUB/EES@EES, George McClellan/HOU/ECT@ECT, Harry Kingerski/NA/Enron@ENRON, James D Steffes/NA/Enron@ENRON, Jennifer Rudolph/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Kevin McGowan/Corp/Enron@ENRON, Lisa Yoho/NA/Enron@ENRON, Lysa Akin/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@ENRON, Roger

Yang/SFO/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Scott Stoness/HOU/EES@EES, skean@enron.com, Stuart Staley/LON/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES, MDay@GMSSR.com, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Mike D Smith/HOU/EES@EES cc: Subject: DRAFT talking points for California PUC Hearings on the 27th/28th

Attached is a draft of the talking points for the Commission's hearings. Few points: Our time is likely to be limited to 5-10 minutes. Mike Day, our outside counsel, will make the presentation on our behalf. Mike Day is fleshing out the legal details of our presentation and he will forward that along for folks review later today. Comments can be forwarded to me via email, pager (888.916.7184), voicemail (415.782.7822), or home (415.621.8317). We will finalize the message points on tomorrow's daily call (10 AM CST). The call in number is 800.713.8600. Code is 80435. The Commission's hearings begin tomorrow at 10 AM (PST).

Message 188 of 1299

Reminder: CSFB Hosting Lunch/Conference Call with Chief UK Power

Sender	neil.stein@csfb.com
Recipients	[]
File	dasovich-j/all_documents/28199.

Good Morning,

As a reminder, CSFB will be hosting a lunch with Callum McCarthy-Chief Executive of the UK Office of Gas and Electricity Markets (OFGEM).

In his position, McCarthy serves as the chief power and gas regulatory in the UK.

Day: Friday, June 29 Time: 12 pm Place: CSFB NY Offices, 27th floor, 11 Madison Avenue

You can also listen in via conference call:

Domestic listeners dial-in: 800 683-1575 International: 973 321-2004

The presentation will most likely begin at about 12.15.

Digital replay available: domestic - 888 264-3165; international: 402 220-0140 - pin code for both: 7352 The call will be operator assisted; listeners will be muted; open for Q&A.

Please let us know if you would like to attend.

Regards,

Neil Stein 212/325-4217

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Message 189 of 1299

Re: Credit Link Notes - California Disclosure

Sender	richard.shapiro@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/11645.

Can you review and comment back to me? Thanks. ----- Forwarded by Richard Shapiro/NA/Enron on 04/26/2001 10:34 AM -----

Dan Boyle 04/26/2001 10:33 AM To: James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron cc:

Subject: Re: Credit Link Notes - California Disclosure

Jim and Rick:

Please see the attached emails and comments from Vicky. Please give me a call, appreciate your help.

Dan O. Boyle Enron Global Finance Office: 713-853-1532 Mobile: 713-417-3532 ----- Forwarded by Dan Boyle/Corp/Enron on 04/26/2001 10:31 AM -----

Vicki Sharp@EES 04/26/2001 10:28 AM

To: Dan Boyle/Corp/Enron@ENRON cc: Paula Rieker/Enron@EnronXGate@ENRON, Mark Koenig/Corp/Enron@ENRON, Gareth Bahlmann/Enron@EnronXGate@ENRON, Tim DeSpain/HOU/ECT@ECT@ENRON, Rex Rogers/Enron@EnronXGate@ENRON Subject: Re: Credit Link Notes - California Disclosure

I would like someone from the regulatory group to bless this . I would recommend Jim Steffes or Rick Shapiro.

Dan Boyle@ENRON 04/26/2001 09:13 AM To: Paula Rieker/Enron@EnronXGate cc: Mark Koenig/Corp/Enron@ENRON, Gareth Bahlmann/Enron@EnronXGate, Tim DeSpain/HOU/ECT@ECT, Rex Rogers/Enron@EnronXGate, Vicki Sharp/HOU/EES@EES Subject: Credit Link Notes - California Disclosure

Paula:

Attached is a draft of the proposed disclosure relating to California for the Credit Linked Note offering memorandum.

While the concept of the disclosure was proposed by Salomon and Milbank, the enclosed draft has been fully reviewed and edited by Vicky Sharp, Rex Rogers, Ron Astin, Gareth Bahlmann, Tim De Spain and me. Before returning the draft to Salomon, I wanted your group to review as well.

Please let me know if you have any questions, we would like to get this back to Salomon by the end of the day if possible.

Thanks

Dan O. Boyle Enron Global Finance Office: 713-853-1532 Mobile: 713-417-3532

Message 190 of 1299

Re: California

Sender	jeff.dasovich@enron.com
Recipients	[seabron.adamson@frontier-economics.com]
File	dasovich-j/all_documents/28184.

I'll see what i can do and get back to you.

Best, Jeff

"Seabron Adamson" <seabron.adamson@frontiereconomics.com> 06/27/2001 10:01 AM Please respond to seabron.adamson

To: <Jeff.Dasovich@enron.com> cc: Subject: California

Jeff:

One of my senior colleagues is visiting San Francisco on July 2nd and 3rd, with two senior members of the government of New South Wales (Australia) in tow. Frontier are advising the NSW government on their electric restructuring process. My colleague Danny Price is a real star on power markets - he has worked on it for longer than I have even.

Inevitably, these people are interested in understanding the California meltdown. We have scheduled for them to meet a range of folks in California, including two of the CPUC Comissioners, Lorreta Lynch's chief of staff, Cal ISO, PG&E, one of the generators, etc. They are forewarned that the CPUC and Davis's office will be all political bluster.

Any chance they might catch up with someone from Enron for an hour? Could buy you a nice lunch on Monday July 2nd? Enron has a substntial operation in Australia but I guess that is a bit out of your balliwick.

I realize this is a very late (and unusual request) so I completely understand if it is inconvenient or impossible.

Cheers

Seabron

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

Message 191 of 1299

nan	
Sender	jeff.dasovich@enron.com
Recipients	['schub@socrates.berkeley.edu', 'tyson@haas.berkeley.edu']
File	dasovich-j/all_documents/12143.

Greetings Laura and Marybeth:

Laura: If you have the time and the inclination, I'd like to spend a half-hour briefing you on the energy situation. I apologize for the brevity of this note, but can fill you in more if you think that there's value in chatting.

In a nutshell, there's a concerted effort underway----one last big push----to try to get a comprehensive solution in place for California that works for the majority of constituencies (i.e., broad coalition right and left of center).

The deal would be bi-partisan.

If successful, the deal would:

Put rates in place that reflect and cover costs, repay debts, send the right price signals for efficiency, but fall short of "shock therapy." Return the utility to creditworthiness as a result of the new rates. Use the minimum amount of State- and utility-backed bonds to finance the solution Turn the procurement role back over to the utilities (and away from the State) once creditworthiness is established---3-6 months following the rate changes. Establish the competitive market structure that California was promised but never got---consumer choice for all customers; 18-24 months later, large industrial would

be required to procure electricity needs from the market. NOT include government takeovers of the industry (e.g., sale of utility transmission assets to the State would not be part of any deal). Include a contribution from large players, e.g., utilities and suppliers. Resolve the myriad lawsuits, investigations, etc.

Those involved still believe that there is a need for a group of "wise persons" to help get the deal done. L. Summers is willing; others are being considered. Your name has come up. But that issue can be addressed later. The goal of a phone call would be to bring you up to speed on the events, which are breaking quickly.

Hope all is well and hope to talk to you soon. Congratulations on Haas' #7 ranking in US News and World Report.

Best, Jeff

Office 415.782.7822 Pager 888.916.7184 Home 415.621.8317 Cell 415.505.6633

Message 192 of 1299

Electronic Mail Retention	
Sender	susan.mara@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/29151.

Can you help me with this? I can never get Sanders to respond. Could you try to get an answer for me?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/26/2001 01:39 PM -----

Susan J Mara 07/25/2001 01:38 PM

To: Richard B Sanders/Enron@EnronXGate cc: James D Steffes/Enron@EnronXGate, Richard Shapiro/Enron@EnronXGate, Joseph Alamo/NA/Enron@Enron Subject: Electronic Mail Retention

Richard,

Several months ago, I was notified by you that my e-mails were being collected. Therefore, I kept doing what I've been doing all along since I joined Enron -- saving those emails I need for my job and deleting others. Given this new notice from you, I am confused about what to do. I do not have enough guidance. I get hundreds of emails every day. I respond to many of them. Do I save all email receipts and responses? Do I save a subset? What is the basis for saving some and deleting others? Can't my trash file and my e-mail system just be stored by IT centrally in Houston? Please respond.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/25/2001 01:31 PM -----

Mark Haedicke and Richard Sanders Sent by: Enron Announcements 07/25/2001 01:19 PM

To: Individuals Exempted from Retention Policy cc: Subject: Electronic Mail Retention

This is a reminder that due to the various proceedings ongoing in California, please do not delete any email or electronic data that relates to the Company's past, current or future business in California. Deletion of such data could subject both you and the Company to allegations of deliberate destruction of evidence, contempt of court, and civil and criminal penalties. To preserve such data, please have your assistant create a folder entitled "California Data" and move all emails and other data to that folder. Thank you for your cooperation. If you have any questions, please contact Richard Sanders at x35587 or Mark Haedicke at x36544.

Message 193 of 1299

DPCA Congressional Distributed Power Day

Sender	todoc1@aol.com
Recipients	['spencermgt@aol.com', 'kduggan@capstoneturbine.com', 'solaradc@bellatlantic.net', 'gwilliams@sempra.com', 'gss...]
File	dasovich-j/all_documents/12771.

To DPCA Friends and members:

By now you have received Dan Dessanti's email to you telling about the Congressional Distributed Power Day scheduled on June 6 (please see attached Announcement). For those of you who received this message at least twice or some reason did not receive Dan's email I apologize. We are still trying to update our mailing list.

DPCA has retained Burson-Marstellar to provide logistical guidance and assistance in the event planning. To highlight the value of this event, they will also craft and generate the proper messages to the public, Congress and the energy market on the value of distributed energy and the importance it should provide in the President's National Energy Strategy. Therefore, I have been asked by Burson to contact old, current and potential DPCA members to provide them (please use the cc's on this email) information on your respective involvement and activity in the development and use of distributed energy.

Such information should include, where relevant : 1. DE mission; 2. types of DE technologies, products, systems you manufacture, develop, deploy; 3. amount of private investment to develop these technologies, 4. collaborative projects - size and customers served, 5. number of customers served, product volume sold or deployed, nationally and internationally, 6. where you and your customers are located.

Also please provide Burson with copies of press announcements pertaining to your Distributed Energy activity across the country and the Public Affairs Contact for your respective organizations and companies.

The Burson- Marstellar contact is Greg Larson. He can be reached at 916-341-1000. His Fax number is 916-341-1000

Finally, if your organization is not a member and would like to join DPCA, and participate in this event and similar ones throughout the year please fill out the attached form ASAP. On behalf of the Executive Committee of DPCA we look forward to seeing you on June 6.

Thank You Tod O'Connor 818-883-1038 (o) 818-317-9804 (cell)

- me.announcementfinal.doc

Message 194 of 1299

A Special Offer for Wine Lovers!

Sender	mondavi.um.a.5.14@webmail.wineenthusiast.net
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/inbox/850.

Dear Friend,

Happy Holidays. At The Wine Enthusiast we're committed to offering you the finest selection of wine cellars and unique wine accessories. We also love to let you in on opportunities for new adventures in wine.

Our friends at Robert Mondavi have graciously extended a special offer for membership in their wine club, Robert Mondavi Ensemble. Ensemble provides access to limited, pre-release and library vintages from this world-renowned winemaker at special member prices. In addition, you'll enjoy member benefits at Robert Mondavi Winery, including special pricing, VIP tours and invitations to exclusive Ensemble events.

As an Ensemble member, you will receive four Seasonal Shipments per year that each include 2-5 bottles of wine. The special Ensemble price is \$75 to \$100 per shipment after applying your 15% member discount (plus shipping and applicable tax). Join Ensemble on or before December 31, 2001, and Robert Mondavi will include two elegant wineglasses with your first shipment.

You are invited to review the current and past shipments of Robert Mondavi Ensemble to see the quality and variety of wines offered.

Visit Ensemble Online - <http://webmail.wineenthusiast.net/UM/T.asp?A5.14.8.1.50456> View Current Shipments -
<http://webmail.wineenthusiast.net/UM/T.asp?A5.14.8.2.50456> View Past Shipments -
<http://webmail.wineenthusiast.net/UM/T.asp?A5.14.8.3.50456>

Enjoy the member benefits of Robert Mondavi Ensemble, or give someone close to you a holiday gift that lasts year-round. Visit Ensemble Online or call the Ensemble Concierge at 1.888.766.6328, ext. 3490 for more information on this special offer.

Wishing you and your loved ones a safe and joyous holiday season.

By law, Robert Mondavi can only ship to recipients in the following states: CA, CO, IA, ID, IL, MN, MO, ND, NE, NM, OR, WA, WI and WV. Some restrictions and limits may apply. Void where prohibited by law.

You are receiving the email because you have subscribed to this list. If you would like to remove yourself from this list, please click: <http://webmail.wineenthusiast.net/UM/U.asp?B5.14.14.50456> and you will be removed immediately! Thank you!

Message 195 of 1299

Boston Pacific Statistical Research Project

Sender	mary.hain@enron.com
Recipients	['susan.mara@enron.com', 'jdasovic@ees.enron.com', 'mona.petrochko@enron.com']
File	dasovich-j/notes_inbox/622.

If you thought I ignored any of your communications last week, I did it because I was on vacation. I'm back! I'll catch up as soon as I can.

Read attached draft from EPSA. ----- Forwarded by Mary Hain/HOU/ECT on 09/25/2000 03:37 PM

Enron Capital & Trade Resources Corp.

From: "Jackie Gallagher" <JGallagher@epsa.org> 09/25/2000 01:03 PM

To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jhartso@enron.com>, <mary.hain@enron.com>, <sarah.novosel@enron.com>, <tom.hoatson@enron.com> cc: Subject: Boston Pacific Statistical Research Project

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketing Working Group

FROM: Don Santa, Regulatory Affairs Committee Chair Joe Hartsoe, Power Marketing Working Group Chair Julie Simon, Vice President of Policy Mark Bennett, Senior Manager of Policy

DATE: September 25, 2000

RE: Boston Pacific Statistical Research Project

Attached you will find a draft of a statistical research project, "A First Look at Price Spikes, Price Caps, and Their Effect on the Emergence of a Fully Competitive Electricity Market," prepared by Boston Pacific Company, Inc. The project was

commissioned by both EPSA and several members, all of whom had input into the development of the project. The goal of the project is to provide some statistical background for the concerns surrounding the high electricity prices in California this summer.

Please review the attached document so we can discuss it on our weekly Power Marketers conference call and distribute the final product to FERC by the end of the week. The call will be held on Wednesday, September 27th at 11:00 a.m. To access the call, dial 1-800-937-6563 and ask for the Julie Simon/EPSA call. If you have any questions, please contact Julie Simon at 202-789-7200 or jsimon@epsa.org.

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760
Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

- KEY POINTS 9_22_2000.doc - Appendix One.xls - California PJM and NE Tables revised.xls

Message 196 of 1299

Fisher CITM Workshop on Enabling eBusiness (EEB): eBusiness

Sender	segev@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu', 'citm@haas.berkeley.edu']
File	dasovich-j/inbox/1493.

Dear Evening MBA Student, The Fisher Center for Information Technology and Marketplace Transformation (CITM) is offering the next Enabling eBusiness (EEB) program, a workshop on November 7, 2001. The theme of this half-day workshop is "eBusiness Transformation in Banking." We can accommodate a limited number of Evening MBA students at a special rate of \$50 subject to space availability. If you would like to attend the event please e-mail your request to citm@haas.berkeley.edu preferably by noon tomorrow. Include the following information:

Name: Company: Your Job Title: Contact (if different than the e-mail address of your message): eBusiness/Technology related background (1 paragraph):

Program attached below. -- Arie

--

Arie Segev, Professor and Director Fisher Center for Information Technology & Market Place Transformation Haas School of Business The University of California Berkeley, CA 94720-1900 <http://haas.berkeley.edu/citm/> Tel: 510-642-4731 Fax: 510-642-2826 (Alternate: 510-642-4700) The Fisher Center for Information Technology & Marketplace Transformation Haas School of Business University of California - Berkeley

Invites you to a Workshop

eBusiness Transformation in Banking

November 7, 2001 Noon to 4:30PM

Faculty Club, University of California - Berkeley

Workshop Agenda

11:30am ? noon Registration

Noon - 1:00pm Lunch

1:00- 1:15pm Welcome and Overview

Professor Arie Segev, Director, CITM Phillip Gordon, Executive Director, CITM 1:15-2:15pm eBusiness Transformation: The Case of Trade-e Vs. e-Trade* *No relationship to the actual company e-Trade Professor Arie Segev, Director, CITM

2:15-2:45pm Q&A with speaker and panel

2:45-3:00pm Short Break

3:00 - 4:00pm eBusiness - IS in the Enabling Role Erwin Martinez, CIO, Silicon Valley Bank

4:00-4:30pm Q&A with speaker and panel

4:30 ? 5:30pm Reception

For biographies, registration and other up-to-date information, visit our Web site <http://haas.berkeley.edu/citm>, e-mail citm@haas.berkeley.edu, or call (510) 643-5316.

Message 197 of 1299

POWER conference on electricity restructuring

Sender	borenste@haas.berkeley.edu
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/8749.

Hi Jeff:

March seems a long ways away right now, but we are trying to put together the program for the sixth annual POWER Conference on Electricity Industry Restructuring, which will be March 16 in Berkeley. The conference is divided into 4 sessions, each with two papers. We would like to invite you to be a discussant in the fourth session (program below). It would involve just a 10 minute discussion of one or both papers and then participating in the Q&A. Would you be interested?

Severin

Severin Borenstein

E.T. Grether Professor of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California 2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508 <http://www.ucei.org>

Email: borenste@haas.berkeley.edu WWW: <http://haas.berkeley.edu/~borenste>

Session #1

Greg Crawford (Duke) , Joe Crespo (UNC), and Helen Tauchen (UNC). "Bidding Asymmetries in Multi-Unit Auctions: Implications of Bid Function Equilibria in the British Spot Market for Electricity."

Steven Puller (UC Berkeley). "Pricing and Firm Conduct in California's Deregulated Electricity Market."

Discussants: Peter Carmon (U of Maryland), Anjali Sheffrin (California ISO)

Session #2

Frank Wolak (Stanford). "Identification and Estimation of Cost Functions Using Observed Bid Data: An Application to Electricity Markets."

Jeffrey Lien (Maryland). "Forward Contracts and the Curse of Market Power."

Discussants: Richard Green (University of Hull, UK),

Session #3

James Bushnell and Erin Mansur (UCEI), "The Impact of Retail Price Deregulation on Electricity Consumption in San Diego"

Julie Berry Cullen (Michigan), Leora Friedberg (Virginia) and Catherine Wolfram (UC Berkeley). "Consumption and Home Energy Costs: How Prevalent is the 'Heat or Eat' Decision?"

Discussants:

Session #4

Paul Joskow (MIT) and Edward Kahn (Analysis Group). "A Quantitative Analysis of Pricing Behavior in California's Wholesale Electricity Market During Summer 2000."

Dallas Burtraw, Karen Palmer, Ranjit Bhavirkar, and Anthony Paul (Resources for the Future). "Electricity Restructuring and the Cost of Pollution Reduction."

Discussants:

Message 198 of 1299

RTO Filing Conference Call Schedule UPDATE

Sender	bernadette.hawkins@enron.com
Recipients	['dan.staines@enron.com', 'jeff.brown@enron.com', 'joe.connor@enron.com']
File	dasovich-j/notes_inbox/1008.

FYI - If you would like to participate. ----- Forwarded by Bernadette Hawkins/Corp/Enron on 10/17/2000 04:59 PM -----

"Jackie Gallagher" <JGallagher@epsa.org> 10/17/2000 11:05 AM

To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jhartso@enron.com>, <mary.hain@enron.com>, <sarah.novosel@enron.com>, <tom.hoatson@enron.com> cc: Subject: RTO Filing Conference Call Schedule UPDATE

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketers Working Group

FROM: Don Santa, Regulatory Affairs Committee Chair Joe Hartsoe, Power Marketing Working Group Chair Julie Simon, Vice President of Policy Mark Bennett, Senior Manager of Policy Erin Perrigo, Manager of Policy

DATE: October 17, 2000

RE: RTO Filing Conference Call Schedule UPDATE

In the light of the flurry of recent filings, we have revised the RTO conference call schedule. Since PJM made its RTO filing on October 11th, and RTO West has made public its intent to file its substantive RTO proposal one week after the October 16th deadline, we will discuss the PJM filing on Friday in place of RTO West. We will schedule a call on RTO West and any other significant filings that may be made for Friday, October 27th. A schedule for those calls will follow.

Friday, October 20 ? 1:30 PM PJM - Filing available at www.pjm.com, under the "Documents" link, then under "FERC Filings"

? 2:30 PM SPP/Entergy -SPP's filing available at www.spp.org; Entergy's filing available at www.entergy.com, under "Company Information," then under "Transmission Business"

? 3:30 PM Desert STAR - Filing will be available at www.dstarnet.com

Monday, October 23 ? 10:00 AM Grid South Transco - Filing available at www.gridsouth.com, under "FERC Filing Documents"

? 11:00 AM Grid Florida - Filing available at www.flatransco.com, under "Filing Documents"

? 12:00 AM Southern Gridco - will be at www.southernco.com later this week

To access the calls, dial 1-800-937-6563 and ask for the Julie Simon/EPSA call. If you have any questions, please contact Julie Simon at 202-789-7200 or jsimon@epsa.org.

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760
Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

Message 199 of 1299

DOE-NARUC North American Summit announces new speakers and an

Sender	ginger.dernehl@enron.com
Recipients	['allison.navin@enron.com', 'aleck.dadson@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/all_documents/3361.

FYI

gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 11/10/2000 03:39 PM -----

"North American Summit Team" <ibarreto@caem.org> 11/10/2000 03:11 PM Please respond to ibarreto

To: "Energy Restructuring Stakeholders" <ibarreto@caem.org> cc: Subject: DOE-NARUC North American Summit announces new speakers and an online bulletin board

[[MAPI 1.0 storage : 5416 in winmail.dat]]

NARUC and DOE are the hosting the North American Summit on Harmonizing Business Practices in Energy Restructuring in Dallas, Texas, on November 29 to December 1. This email is an update on recent developments in the Summit.

Newly confirmed speakers include Commissioner Linda Breathitt, Federal Energy Regulatory Commission; Rep. Joe Barton (R-Texas), chairman of the House Energy and Power Subcommittee; Phil Sharp, Lecturer in Public Policy, Kennedy School of Government, Harvard University; Kurt Yaeger, president and CEO, Electric Power Research Institute; Bob Anderson, commissioner, Montana Public Service Commission; Karen O'Neill, vice president for new markets, GreenMountain.com; Steve Ward, public advocate, Maine Attorney General's office; Donato Eassay, vice president, securities research and economics, Merrill Lynch; Rick Rumbarger, president and CEO, PowerTrust.com; Kathleen Magruder, Vice President, Government Affairs, The New Power Company (a joint venture of IBM, Enron, and AOL)

We have established a bulletin board for the Summit. You can access the bulletin board through the following link: <http://www.energymarkets.org/cgi-bin/Ultimate.cgi?action=intro>. The Forums in this board will permit you to ask questions or raise issues for the speakers on each of the panels at the Summit.

You can register for the Summit at <http://www.energymarkets.org/registration.htm>.

Information on reserving a room at the Adams Mark is at http://www.energymarkets.org/city_site.htm.

Please forward this email to colleagues who may be interested in the subject of the Summit.

Thanks!

Isabel Barreto North American Summit Coordinator Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 Voicemail and Fax: (703) 234-3373 E-mail: ibarreto@caem.org
<http://www.caem.org>

Thanks!

Isabel Barreto North American Summit Coordinator Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 Voicemail and Fax: (703) 234-3373 E-mail: ibarreto@caem.org
<http://www.caem.org>

- winmail.dat

Message 200 of 1299

FERC Investigation on California

Sender	sarah.novosel@enron.com
Recipients	[jeff.dasovich@enron.com', 'richard.shapiro@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/807.

This is just a rumor, but we heard on the EPSA call today that Scott Miller is trying to get his report on the California part of his investigation to the Commissioners by Friday of this week.

Also, the EPSA/Boston Pacific paper continues to be revised, but EPSA wants to get it to FERC as soon as possible (but if Scott completes his report by Friday it may not be in time for Scott's report), so they have asked us to review the report and Executive Summary and get comments back to them for a conference call on Friday. Since we will be at FERC during the EPSA call, we will need to get any comments we may have to Julie by Thursday evening or Friday morning.

Thanks everyone.

Sarah

----- Forwarded by Sarah Novosel/Corp/Enron on 10/04/2000

11:06 AM -----

"Jackie Gallagher" <JGallagher@epsa.org> on 10/04/2000 09:35:45 AM To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jhartso@enron.com>, <mary.hain@enron.com>, <sarah.novosel@enron.com>, <tom.hoatson@enron.com> cc:

Subject: Boston Pacific Statistical Research Project

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketing Working Group

FROM: Don Santa, Regulatory Affairs Committee Chair Joe Hartsoe, Power Marketing Working Group Chair Julie Simon, Vice President of Policy Mark Bennett, Senior Manager of Policy

DATE: October 4, 2000

RE: Boston Pacific Statistical Research Project

Attached is the latest draft of the full Boston Pacific statistical research project, reflecting the comments made by EPSA members. Both clean and redlined versions are attached. There are two major changes in the project: 1) the seven-page summary is the Executive Summary of the report; and 2) all cost estimates for new peakers have been removed.

Please review the documents so we can discuss them on a conference call on Friday, October 6th at 11:00 a.m. EST and then release it to Scott Miller for the FERC investigation. Please dial 1-800-937-6563 and ask for the Julie Simon/EPSA call. If you have any questions or comments, please contact Julie Simon at 202-789-7200 or jsimon@epsa.org before the Friday call.

Attachments

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760 Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

- California PJM and NE Tables revised2.xls - 10-4-2000 Full Draft-No Blackline.doc - 10-4-2000 Full Draft.doc

Message 201 of 1299

CSFB report	
Sender	jeff.dasovich@enron.com
Recipients	['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/sent/3007.

----- Forwarded by Jeff Dasovich/NA/Enron on 01/25/2001 09:47 AM -----

Michael Tribolet 01/25/2001 09:08 AM

To: Susan J Mara/NA/Enron@ENRON, Harry Kingerski/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Tim Belden/HOU/ECT@ECT, Paul Kaufman/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, Christian Yoder/HOU/ECT@ECT, Christopher F Calger/PDX/ECT@ECT, Vicki Sharp/HOU/EES@EES, Mike D Smith/HOU/EES@EES, Elizabeth Sager/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Leslie Lawner/NA/Enron@Enron, mday@gmsr.com, Joe Hartsoe/Corp/Enron@ENRON, Steven J Kean/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, jklauber@llgm.com, Ceklund@llgm.com cc: Subject: CSFB report

FYI

Credit Suisse First Boston <Paul_Patterson@xmr3.com> 01/25/2001 07:33 AM

To: chip.schneider@enron.com cc: Subject: Governor Gives Limited Information on Auction

Credit Suisse First Boston Paul Patterson Good morning, Here are some of the recent developments in the California power crisis: ? Yesterday evening, Governor Davis revealed preliminary results of the DWR's auction for long-term forward power contracts. 39 bidders participated, with an average weighted bid of \$0.069 per kWh excluding "Super Peak" periods. ? However, the governor did not discuss the quantity of power actually bid, the breakdown between offers for base-load, peak, and off-peak power, or provisions for ancillary services. In our opinion, these are exceedingly important issues that need to be known to adequately determine the "success" of any auction. ? Republican Assembly leader Bill Campbell is reportedly working on an alternative bill to Speaker Hertzberg's proposed bill. Reportedly Campbell's bill would call for the state to arrange long-term contracts for the utilities, in exchange for the option to purchase ownership stakes. ? We believe that the actual results of the long-term contract auctions should be a key point of focus for investors and may help determine what headroom, if any, the utilities could have. We believe that investors should remain aware of the high risk still associated with shares of PCG (\$9.94, Hold) and EIX (\$9.63, Hold).

Paul Patterson, 212-325-5876 Neil Stein, 212-325-4217 Wen-Wen Chen, 212-538-0223 Emily Lao Chua, 212-325-1982

If you would prefer not to receive further messages from this sender, please click on the following e-mail link and send a message with or without any text: [Mailto:K-8-62573-297576-2-410-US2-34108E44@xmr3.com](mailto:K-8-62573-297576-2-410-US2-34108E44@xmr3.com) You will receive one additional e-mail message confirming your removal - ppp012501.pdf

Message 202 of 1299

A free community forum on energy	
Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/notes_inbox/3214.

SVMG ENERGY COMMITTEE MEMBERS & LIAISON REPRESENTATIVES - FYI

Bay Area Action+Peninsula Conservation Center Foundation (BAA+PCCF) presents

A Community Forum on Energy

Tuesday, May 22, 7:00 p.m. FREE Admission

Have you been wondering what's really going on with the energy crisis? Curious about Bush's energy policy (announced this morning)? Then join us for the Peninsula Environmental Forum on Tuesday, May 22 at 7 p.m. at the Peninsula Conservation Center. The forum will provide a conceptual overview of our global energy challenges, why it is important to support the development of renewable energy, and practical advice on how we can act now to reduce energy consumption.

Speakers:

Craig Diamond is Director of Business Development in the Environment Division of the Electric Power Research Institute. He is also on the Board of Directors of BAA+PCCF. He has ten years of experience in environmental policy and strategic environmental consulting, and has worked at an internet startup company. Craig has a Masters in Public Policy from the University of Michigan, and an undergraduate degree in biology from Tufts University.

Dan Lieberman is Program Manager for Green Pricing and Energy Efficiency at the non-profit Center for Resource Solutions. Prior to joining CRS, Dan worked as Energy Product Manager at Utility.com, an internet-based green power marketer. Dan has a decade of experience in resource efficiency issues, including positions at local, state, and federal agencies. He received MBA and Master of Public Affairs degrees from The University of Texas at Austin.

The Peninsula Environmental Forum is a monthly event held at the Peninsula Conservation Center, located at 3921 E. Bayshore Rd., Palo Alto. For more information on the energy forum, contact David Coale at 650.962.9876 ext. 309. For more information on the Peninsula Environmental Forum series, contact Peter Drekmeier at 650.962.9876 ext. 302.

Information on the Web

The California Energy Commission: <http://www.flexyourpower.ca.gov>

Energy Efficiency and Renewable Energy Network: <http://www.eren.doe.gov/consumerinfo>

Energy Efficiency Guidebook: <http://www.pstvnrg.com/xina/guide.html>

American Council for an Energy-Efficient Economy: <http://www.aceee.org>

The Center for Resource Solutions: <http://www.resource-solutions.org>

Electric Power Research Institute: <http://www.epri.com>

The City of Palo Alto Utilities: <http://www.cpau.com>

We hope to see you there!

-- Tricia Born Director, Business Environmental Network (BEN) Bay Area Action + Peninsula Conservation Center Foundation 3921 East Bayshore Road Palo Alto, CA 94303 650.962.9876 ext. 308 650.962.8234 fax ben@pccf.org

Message 203 of 1299

RE: WGA's SCHEDULES for the Week of June 4 - 8, 2001

Sender	susan.mara@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/13460.

Here's the response.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/07/2001 09:39 AM -----

=09Paul Kaufman/ENRON@enronXgate =0906/07/2001 09:31 AM =09=09=20 =09=09 To: Susan J Mara/NA/Enron@ENRON =09=09 cc:=20 =09=09 Subject: RE: WGA's SCHEDULES for the Week of June 4 - 8, 2001

She's been sponsoring the Commissioner's breakfast for the past several=20 years. It turns out that the breakfast did not occur. To be truthful, I= =20 didn't think twice about her attending as neither you, Alan nor Jeff=20 expressed any interest. =20

-----Original Message-----

From: Mara, Susan =20 Sent: Monday, June 04, 2001 6:16 PM To: Kaufman, Paul Subject: WGA's SCHEDULES for the Week of June 4 - 8, 2001

Just so I know, why was Sandi able to go to this? She doesn't do any work a= t=20 the CPUC? It seems as if people who do CPUC work or who do broad policy=20 issues related to PUCs should go.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/04/2001 06:14 PM -----

=09Joseph Alamo 06/04/2001 03:08 PM =09 To: Paul Kaufman/ENRON@enronXgate= , Susan=20 J Mara/NA/Enron, Sandra McCubbin/NA/Enron, Mona L Petrochko/NA/Enron, Jeff= =20 Dasovich/NA/Enron, Alan Comnes/ENRON@enronXgate cc: Ginger Dernehl/NA/Enro= n,=20 Lysa Akin/ENRON@enronXgate, Carmen Perez/ENRON_DEVELOPMENT@ENRON_DEVELOPMEN= T =20 Subject: WGA's SCHEDULES for the Week of June 4 - 8, 2001

Western Government Affairs WEEKLY SCHEDULES For the Week of June 4 - 8, 2001

Paul Kaufman

Mon 6/4 Blaine, Washington for Western PSC Commissioners Meeting Tue 6/5 Travel to Cincinnati, Ohio for NLIEC Meeting Wed 6/6 Cincinnati, Ohio for NLIEC Meeting Thur 6/7 Portland OR office=20 Fri 6/8 Portland OR office

Sue Mara

Mon 6/4 IEP Meeting, Sacramento CA (10:30 a.m. =01) 3:00 p.m.) Tue 6/5 San Francisco CA office (leave at 4:30 p.m.) Wed 6/6 San Francisco CA office Thur 6/7 San Francisco CA office=20 Fri 6/8 San Francisco CA office

Jeff Dasovich

Mon 6/4 Sacramento CA Tue 6/5 Sacramento CA/San Francisco CA office* Wed 6/6 San Francisco CA office* Thur 6/7 San Francisco CA office* Fri 6/8 San Francisco CA office*

Sandi McCubbin

Mon 6/4 Blaine, Washington for Western PSC Commissioners Meeting=20 Tue 6/5 Blaine, Washington for Western PSC Commissioners Meeting Wed 6/6 Sacramento CA Thur 6/7 Sacramento CA Fri 6/8 San Francisco CA office=20

Mona Petrochko

Mon 6/4 Tampa FL; travel back to SF, p.m. Tue 6/5 San Francisco CA Wed 6/6 San Francisco CA Thur 6/7 San Francisco CA Fri 6/8 San Francisco CA

Alan Comnes

Mon 6/4 Portland OR office Tue 6/5 Portland OR office Wed 6/6 Portland OR office Thur 6/7 Portland OR office Fri 6/8 Portland OR office

Message 204 of 1299

FW: MEDIA GROK: Mutiny on the Good Ship Lucent

Sender	cameron@perfect.com
Recipients	['psellers@pacbell.net', 'psellers@haas.berkeley.edu', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/1113.

THIS IS WHERE YOU SHOULD WORK WHEN YOU GRADUATE!! CONTACT THEM IMMEDIATELY!!!!

Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: TheStandard.com [mailto:media_grok@reply.thestandard.com] Sent: Tuesday, October 24, 2000 8:46 AM To: cameron@perfect.com Subject: MEDIA GROK: Mutiny on the Good Ship Lucent

Groovin' Peer-to-Peer They may not be able to tell you what it is, exactly, but they agree it's going to be really big. The man who invented Lotus Notes is back in the news after three years in deep stealth mode with his new company, Groove Networks. Groove will be taking the wraps off today at Internet World, and outlets ran stories about Ray Ozzie's new thing. It's a platform for peer-to-peer communications - so the reporters describing it sounded collectively like the blind men with the elephant. Among the sound bites they collected from analysts: "Ray Ozzie is Napsterizing Notes" (Michael Schrage in the New York Times); "This could be the next killer application for the Internet" (Esther Dyson in the Wall Street Journal); "Has the potential of being the AOL instant messaging of the business community" (David Marshak in the Boston Globe). Most outlets waited until today to run their Groove stories, but Techweb posted yesterday noon. Consequently their story was filled out with quotes from patent filings and the comments of anonymous sources, one of whom spoke "before he realized his nondisclosure agreement had not expired." Reporter Barbara Darrow got on-the-record comments from analyst Judith Hurwitz and from Dan Bricklin, one of the fathers of the spreadsheet (and Ozzie's former boss). Groove's software will be available for free download starting today, and most of the coverage centered on the give-it-away business model. The Wall Street Journal's William M. Bulkeley alone detailed the version Groove plans to sell to businesses. The Globe's Hiawatha Bray quoted an Aberdeen Group analyst thus: "It's a successful technology in my estimation, but the business model is a little less secure." * Keith Dawson

The King of Groove <http://www.thestandard.com/article/display/0,1151,19601,00.html?nl=mg> Groove Gets It On <http://www.techweb.com/wire/story/TWB20001023S0006>

Lotus Notes Developer to Introduce a New Internet Tool <http://www.nytimes.com/2000/10/24/technology/24GROO.html> (Registration required.) Groups in Groove http://www.boston.com/dailyglobe2/298/business/Groups_in_Groove+.shtml Lotus Notes Creator Will Unveil Long-Awaited Network Software <http://interactive.wsj.com/articles/SB972337082458627346.htm> (Paid subscription required.) Groove Should Do Wonders for Peer-to-Peer Computing <http://www0.mercurycenter.com/svtech/columns/front/docs/dg102400.htm>

Message 205 of 1299

IMPORTANT! New Accounts Payable System

Sender	april.hrach@enron.com
Recipients	['pbray@newpower.com', 'rob.bakondy@enron.com', 'joseph.alamo@enron.com']
File	dasovich-j/all_documents/12142.

Hi All-

Enron has decided to outsource our accounts payable department and also implement a whole new system for paying invoices. What this means to all of us is you may receive email(s) from iBuyit Payables. These are very important emails! These are invoices that need to be paid. Any ENA people receiving invoices should automatically assume they go to me.

As for Sue's group I think any invoices you receive will need to go to Joseph. If you are unsure please let he or I know and we can figure out which one of us should get the invoice.

Here is the irritating part: You can not just forward the iBuyit Payables email to me/him. You must click onto the first link in the email (see example below). Then log on to the iBuyit Payables system using your P00# and log-on password (these are the same P00# and password you use to access eHRonline). At this point you will be at your iBuyit Payables in-box. I pasted a copy of my in-box below as an example. There are boxes to check if you want to forward the invoice. If you check them all then click on 'Quick Forward' a forward box will appear. Type in mine, or Joseph's (if it's his invoice) last name in the 'last name' box, then click search. From there you can click 'Forward'. I will not only ensure the invoice is paid, but also give the vendor the correct information for future invoices.

Please bare with me during this time. This whole process isn't going to be very much fun for any of us. However, I have made it my priority to have this new invoice situation organized as quickly as possible. If anyone has any questions please let me know. On one last note: All paper invoices should still be given directly to me then I can send them to A/P for scanning.

Thanks, April Hrach Administrative Coordinator Phone: 415-782-7825 Fax: 415-782-7851

EXAMPLE EMAIL:

Please do not reply to this e-mail.

You are receiving this message because an invoice requiring coding, issue resolution, or approval has been submitted to your iBuyit Payables in-box. This requires your action through iBuyit Payables.

To launch iBuyit Payables, click on the link below: <http://iBuyitPayables.enron.com> (This is the link you need to click on)

Note: Log into iBuyitPayables using the same Employee PID (P-Number) and Password you use to enter the eHRonline system and/or SAP.

First time iBuyit Payables user? For training materials, click on the link below:

http://sap.enron.com/sap_doclib/user/file_list.asp?cabinet_id=265

Need help? Please contact the ISC Call Center at (713) 345-4727.

EXAMPLE iBuyit Payables in-box:

Records Returned: 2 Page 1 of 1: ???

Forward Invoice Number	Company Number	Vendor Invoice	Due Date	Resolution Type	Invoice Amount	Invoice Status
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5-735-88723	0413	FEDERAL EXPRESS	03/16/2001	Miscellaneous	175.21	
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8717	0011	MERIDIAN CYBER SOLUTIONS	05/15/2001	Needs Coding/Approval	1034.97	
------	------	--------------------------	------------	-----------------------	---------	--

Message 206 of 1299

Re: FERC Investigation on California

Sender	jeff.dasovich@enron.com
Recipients	['sarah.novosel@enron.com', 'mary.hain@enron.com', 'joe.hartsoe@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/2077.

Thanks, Sarah. Question: Could we, and should we, attempt to pre-empt the FERC report and try to get press coverage of the BP paper before FERC releases the results of its investigation?

Sarah Novosel 10/04/2000 11:58 AM

To: Richard Shapiro/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Susan J Mara/SFO/EES@EES, Mona L Petrochko/SFO/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Mary

Hain/HOU/ECT@ECT, Paul Kaufman/PDX/ECT@ECT cc: Subject: FERC Investigation on California

This is just a rumor, but we heard on the EPSA call today that Scott Miller is trying to get his report on the California part of his investigation to the Commissioners by Friday of this week.

Also, the EPSA/Boston Pacific paper continues to be revised, but EPSA wants to get it to FERC as soon as possible (but if Scott completes his report by Friday it may not be in time for Scott's report), so they have asked us to review the report and Executive Summary and get comments back to them for a conference call on Friday. Since we will be at FERC during the EPSA call, we will need to get any comments we may have to Julie by Thursday evening or Friday morning.

Thanks everyone.

Sarah

----- Forwarded by Sarah Novosel/Corp/Enron on 10/04/2000

11:06 AM -----

"Jackie Gallagher" <JGallagher@epsa.org> on 10/04/2000 09:35:45 AM To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jhartso@enron.com>, <mary.hain@enron.com>, <sarah.novosel@enron.com>, <tom.heatson@enron.com> cc:

Subject: Boston Pacific Statistical Research Project

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketing Working Group

FROM: Don Santa, Regulatory Affairs Committee Chair Joe Hartsoe, Power Marketing Working Group Chair Julie Simon, Vice President of Policy Mark Bennett, Senior Manager of Policy

DATE: October 4, 2000

RE: Boston Pacific Statistical Research Project

Attached is the latest draft of the full Boston Pacific statistical research project, reflecting the comments made by EPSA members. Both clean and redlined versions are attached. There are two major changes in the project: 1) the seven-page summary is the Executive Summary of the report; and 2) all cost estimates for new peakers have been removed.

Please review the documents so we can discuss them on a conference call on Friday, October 6th at 11:00 a.m. EST and then release it to Scott Miller for the FERC investigation. Please dial 1-800-937-6563 and ask for the Julie Simon/EPSA call. If you have any questions or comments, please contact Julie Simon at 202-789-7200 or jsimon@epsa.org before the Friday call.

Attachments

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760 Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

Message 207 of 1299

*****IMPORTANT***TAR&L MEETING CHANGE**

Sender	sue.nord@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/notes_inbox/1977.

----- Forwarded by Sue Nord/NA/Enron on 11/28/2000 10:41 AM -----

Angie Buis@ENRON COMMUNICATIONS 11/28/2000 08:43 AM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Ban Sharma/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Richard Anderson/Enron Communications@Enron Communications cc: Wayne Gardner/Enron Communications@Enron Communications Subject: ***IMPORTANT***TAR&L MEETING CHANGE

Due to the unavailability of several players, we would like to move the November 30th TAR&L meeting to Monday, December 4th, 8:30-noon in conference room EB14C1. Please advise if you are unable to attend at this time.

Thank you!

Angie Buis x-37097 ----- Forwarded by Angie Buis/Enron Communications on 11/28/00 08:38 AM -----

Angie Buis 11/27/00 02:40 PM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Ban Sharma/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Richard Anderson/Enron Communications@Enron Communications cc: Wayne Gardner/Enron Communications@Enron Communications Subject: TAR&L MEETING - NOVEMBER 30TH

The next TAR&L meeting will take place on Thursday, November 30, 8:30 a.m. to 12:00 noon, in conference room EB43C1. Breakfast will be provided. The call-in information is listed below.

International Participants: (304) 345-7526 Domestic Participants: (888) 271-0949 Passcode: 589792

Host (Houston) number: (888) 271-0949 Passcode: 281574

I have arranged for 4 domestic and 2 international ports. Should extra ports be required, all the person will need to do is dial the appropriate number listed above.

Additionally, we have scheduled another TAR&L meeting for Thursday, December 7th, same location, time and dial in numbers.

Should you have questions regarding any of the above, please do not hesitate to call me at extension 37097.

Thanks.

Angie Buis EBS-Tax

Message 208 of 1299

New Study Ranks State Progress on Restructuring

Sender	owner-red_index_private_sector@caem.org
Recipients	['red_index_private_sector@caem.org']
File	dasovich-j/all_documents/383.

The Center for the Advancement of Energy Markets has issued the Retail Energy Deregulation Index 2000 (RED Index).

The RED Index shows that * Pennsylvania and New York, with scores of 59 and 58 out of 100, respectively, lead the nation in customer choice. * California, the pioneer in electric restructuring, surprisingly ranks only 11th, with a score of 34. * Texas, a relative newcomer to restructuring, leads the South with a score of 45 and a ranking of seventh in the nation. * The national average score is 18, but that rises to 20.4 when weighted by sales volume and 23.3 when weighted by revenue.

The Center for the Advancement of Energy Markets (CAEM) is an independent, nonprofit think tank whose mission is to promote an effective transition from the monopoly model of regulation to the competitive or customer choice model. Ken Malloy, President of CAEM and primary author of the RED Index, has been a public official with the Federal Energy Regulatory Commission, the Illinois Commerce Commission, and the U.S. Department of Energy.

Is there a correlation between states with higher electric prices and states' progress toward restructuring? There is a stronger movement in states that rank higher in average price, since all contiguous states scoring in the top 10 for price also were in the top 20 in the RED Index. But this movement is no confined to high priced states. Nevada, Montana, and Texas all are below average states on price but are ranked in the top 10 on the RED Index.

RED Index 2000 is a 90-page study that measures the progress states have made in moving from the monopoly model of public utility regulation to the competitive model. A RED Index score of 0 represents the monopoly model and a score of 100 represents complete and effective implementation of the competitive model. The index focuses on retail competition and currently only covers electric restructuring, and will be updated twice a year.

CAEM developed the RED Index by identifying 18 key attributes that are the foundation for an effective transition to competition. These attributes were weighted and scores were assigned to the different options that states have regarding that attribute. CAEM then conducted research to determine the option chosen by each state on each of the 18 attributes. The index scores were then calculated based on the methodology and research.

CAEM provides the RED Index at no fee to state public utility commissions, state energy offices, consumer organizations, governmental agencies, educational, and nonprofit, public interest organizations. CAEM funds the study by charging a fee of \$495 to private sector companies.

Private sector organizations can order a copy from redindex@caem.org, through the center website at www.caem.org, or by calling 703-250-1580.

Please feel free to contact me with any questions.

Ken Malloy President Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 o 703-250-1580 h 703-239-8862 f 248-928-5040 e kmalloy@caem.org

[[KENMAL~1.VCF : 4119 in winmail.dat]]

- winmail.dat

Message 209 of 1299

*****IMPORTANT***TAR&L MEETING CHANGE**

Sender	lara.leibman@enron.com
Recipients	[' angie.buis@enron.com ', ' mike.dahlke@enron.com ', ' jeff.dasovich@enron.com ']
File	dasovich-j/notes_inbox/2030.

Jeff and Mike,

Please disregard my last message (except for the apology) and respond to Angie's request below. Thanks very much.

Lara

----- Forwarded by Lara Leibman/Enron Communications on 11/29/00 11:42 AM

Angie Buis 11/28/00 08:43 AM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Ban Sharma/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Richard Anderson/Enron Communications@Enron Communications cc: Wayne Gardner/Enron Communications@Enron Communications Subject: ***IMPORTANT***TAR&L MEETING CHANGE

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Angie Buis 11/27/00 02:40 PM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Ban Sharma/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Richard Anderson/Enron Communications@Enron Communications cc: Wayne Gardner/Enron Communications@Enron Communications Subject: TAR&L MEETING - NOVEMBER 30TH

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Host (Houston) number: (888) 271-0949 Passcode: 281574

I have arranged for 4 domestic and 2 international ports. Should extra ports be required, all the person will need to do is dial the appropriate number listed above.

Additionally, we have scheduled another TAR&L meeting for Thursday, December 7th, same location, time and dial in numbers.

Should you have questions regarding any of the above, please do not hesitate to call me at extension 37097.

Thanks.

Angie Buis EBS-Tax

Message 210 of 1299

Fw: Conference at Berkeley

Sender	mark.schroeder@enron.com
Recipients	['susan.mara@enron.com', 'steven.kean@enron.com', 'kyran.hanks@enron.com', 'richard.shapiro@enron.com']
File	dasovich-j/notes_inbox/301.

Second piece of the Littlechild story. mcs ----- Forwarded by Mark Schroeder/LON/ECT on 08/09/2000 10:12 -----

Enron Capital & Trade Resources Corp.

From: "Stephen Littlechild" <littlechild@tanworth.mercianet.co.uk> 08/09/2000 10:02

To: "Ralph Hodge" <ralph.hodge@enron.com> cc: "Mark Schroeder" <mark.schroeder@enron.com>, "Kyran Hanks" <Kyran.Hanks@enron.com>

Subject: Fw: Conference at Berkeley

Ralph per my separate email on retail electricity competition Stephen ----- Original Message ----- From: Severin Borenstein <borenste@Haas.Berkeley.EDU> To: Stephen Littlechild <littlechild@tanworth.mercianet.co.uk> Sent: Friday, September 08, 2000 1:19 AM Subject: Conference at Berkeley

Hi Stephen: I'm on the organizing committee of a conference that is being put on by the Goldman School of Public Policy on electricity deregulation. Unlike the annual UCEI conference, this will not be papers presented by researchers, but rather very short introductions (e.g., 5 min), followed by round-table discussions and then questions from the audience. It will probably take place on monday November 13, though it could get moved to thursday Nov 17. I've been asked to invite you to participate in this conference, and I'd really like to encourage you to do so. Also invited will be FERC Commissioner Hoecker, CalPUC President Loretta Lynch, and U.S. Representatives Markey and Largent. They are also trying to get the CEOs of Enron, Duke Power, and a couple other producers. Carl Shapiro will be on one of the panels, as will I. I realize that this is a long way to travel for a one-day conference. I'm hoping that you have other invites in the U.S. you could piece together with it. Also, I'd like to invite you to give a seminar here at UCEI while you are in town. There is a lot going on in CA in electricity and a lot of research on the subject. Besides all those you know of here, Catherine Wolfram has moved this year from Harvard to Berkeley, so is also now here permanently. If this doesn't work out, I hope we can make it happen another time. In addition, it is looking likely that UCEI will receive funding from the state to open a Center for the Study of Electricity Markets, which would allow us to invite a number of visitors at the same time to do research here at Berkeley. If that comes through, perhaps we could arrange a longer visit in Berkeley? I look forward to hearing from you. Severin

*Severin Borenstein E.T. Grether Professor
of Business Administration and Public Policy Director Haas School of Business U.C. Energy Institute University of California
2539 Channing Way Berkeley, CA 94720-1900 Berkeley, CA 94720-5180 (p) 510-642-3689 (p) 510-642-5145 (f) 707-885-2508
http://www.ucei.berkeley.edu/ucei Email: borenste@haas.berkeley.edu WWW: http://haas.berkeley.edu/~borenste*

Message 211 of 1299

FW: Save the date!--May 22nd Conference Invitation

Sender	cameron@perfect.com
Recipients	['citm@haas.berkeley.edu', 'psellers@pacbell.net', 'psellers@haas.berkeley.edu', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5228.

Are you guys going to this??

?

Cameron Sellers

Vice President, Business Development

PERFECT

1860 Embarcadero Road - Suite 210

Palo Alto, CA 94303

cameron@perfect.com

650.798.3366 (direct dial)

650.269.3366 (cell)

650.858.1095 (fax)

?

-----Original Message-----

From: Kevin Surace Sent: Friday, February 16, 2001 3:55 PM To: A - Execs Subject: FW: Save the date!--May 22nd Conference Invitation

?

?FYI

?

?-----Original Message----- From: Fisher Center for IT & Marketplace Transformation [mailto:citm@Haas.Berkeley.EDU] Sent: Friday, February 16, 2001 3:35 PM To: citm@haas.berkeley.edu Cc: citm@haas.berkeley.edu Subject: Save the date!--May 22nd Conference Invitation

Dear Executive,

The Center for Information Technology & Marketplace Transformation (CITM) at the Haas School of Business is a world-famous research organization that explores the links between ecommerce, technology, and business strategy and processes.? For more information about CITM, please see:

www.haas.berkeley.edu/citm

CITM recently began a new project, "Enabling eBusiness," that studies the migration to the Internet of companies across all industries.? Surveys and field studies at user and vendor companies and interaction with industry organizations and other research institutions will provide insight into, and case studies on, such topics as aligning business and IT strategy, best practices, build vs. buy, and organization structures.?

To kick off the Enabling Ebusiness project, CITM held a major conference Dec. 6, 2000 with experts from industry and academia who focussed on the opportunities presented by Ebusiness, strategies for achieving them and for overcoming legacies (technologies, processes, people and organizations).? The keynote speaker was George Surdu, Director of Information Technology Services for the Ford Motor Company, one of the sponsors of CITM.

The conference was very well received and it is apparent that these issues are of interest to many companies.? Therefore, CITM is offering another conference on May 22, from 9 - 5 with a reception following in the early evening.? Our keynote speaker will be Steve Ellis, EVP of Wells Fargo's Wholesale Internet Solutions Group.? Also on the agenda: J_rgen Lutz, eProcurement, Bayer AG Leverkusen, and Mark V. Klopp, Managing Director, Digital Business Ventures, Eastman Chemical Company.? We expect other interesting speakers making for an absorbing and rewarding day.

Conference registration fee:\$950 early registration; \$1250 after May 7 If you are interested in attending, please send an email to

citm@haas.berkeley.edu

containing the following information

Last name:

First name:

Title:

Company:

Street Address:

City:

State:

Zip:

Email:

Phone:

Fax:

If you can't attend, but would like to continue receiving information on future CITM events, please note that in your email and give us the same information.

If you have any questions, or want more information about the conference or CITM, send an email to citm@haas.berkeley.edu or call 510-643-5316 - May 22 save the date invite.pdf - ATT07758.txt - image001.jpg

Message 212 of 1299

FW: EIX, PCG: Edison Fights Lien Request; Conservation Measures

Sender	james.steffes@enron.com
Recipients	['alan.comnes@enron.com', 'steven.kean@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4964.

FYI.

Jim

----- Forwarded by James D Steffes/NA/Enron on 03/14/2001 09:01 AM -----

=09Chip Schneider/ENRON@enronXgate =0903/14/2001 08:42 AM =09=09=20 =09=09 To: Rick Buy/ENRON@enronXgate, David Gorte/ENRON@enronXgate, William= S=20 Bradford/ENRON@enronXgate, Christopher F Calger/PDX/ECT@ECT, W David=20 Duran/HOU/ECT@ECT, Terry W Donovan/HOU/ECT@ECT, George=20 Schaefer/HPL/Enron@Enron, Greg Blair/Corp/Enron@Enron, James D=20 Steffes/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT =09=09 cc:=20 =09=09 Subject: FW: EIX, PCG: Edison Fights Lien Request; Conservation Meas= ures=20 Introduced

The tail is beginning to wag the dog. Although the QFs represent only about 3000MW of capacity, the gas (and then coal) QFs have the least ability to withstand a further delay in payment, given their relative lack of liquidity and high level of fixed obligations (O&M, debt) and unreimbursed fuel expenses. The legislature needs to move quickly to stem the tide.

-----Original Message-----

From: Paul Patterson <Paul_Patterson@xmr3.com>@ENRON
[mailto:IMCEANOTES-Paul+20Patterson+20+3CPaul+5FPatterson+40xmr3+2Ecom+3E+4=0ENRON@ENRON.com]=20 Sent: Wednesday, March 14, 2001 6:37 AM To: Schneider, Chip Subject: EIX, PCG: Edison Fights Lien Request; Conservation Measures=20 Introduced

Credit Suisse First Boston Paul Patterson Good morning, -Yesterday, Edison International indicated that Caithness, a QF, is seeking a lien on an Edison asset that would give it a secured claim in the event of bankruptcy. Edison stated that it would fight any U.S. court decision in favor of Caithness, which could come as early as tomorrow. -Because of their dire financial situation, we believe that QFs like Caithness pose the greatest risk of filing an involuntary

bankruptcy petiti= on=20 against PG&E and Edison International. -Last week, state legislators modified SB47X, the draft bill to lower QF=20 prices, in an effort to speed its passage. Reportedly, legislators are tryi= ng=20 to lower average QF prices to \$0.079 per kWh. The CPUC is unlikely to decid= e=20 on revenue allocation until the bill is passed. -This week, California moved forward with demand- and supply-side programs,= =20 including the governor=01,s plan to give a 20% rebate to customers that red= uce=20 power consumption by 20%. Also, three Western governors made another reques= t=20 to FERC to cap wholesale prices. -Although Governor Davis and the utilities continue to negotiate a utility= =20 recovery plan, it is unclear if the state legislature will pass such a plan= .=20 Therefore, we suggest that investors avoid EIX (\$14.88, Hold) and PCG=20 (\$14.24, Hold), unless they have a high tolerance for risk and volatility.

Please call us with any questions you may have. Regards, Paul Patterson, 212-325-5876 Neil Stein, 212-325-4217 Wen-Wen Chen, 212-538-0223 Emily Lao Chua, 212-325-1982

If you would prefer not to receive further messages from this sender, pleas= e=20 click on the following link and confirm your request: Mailto:K-2-62573-617300-2-151-US2-AB27313B@xmr3.com You will receive one additional e-mail message confirming your removal.

- ppp031401.pdf

Message 213 of 1299

Bill Perry	
Sender	cameron@perfect.com
Recipients	['scottwl@hotmail.com', 'nancy.sellers@robertmondavi.com', 'eldon@direcpc.com']
File	dasovich-j/all_documents/28322.

I am sorry I could not call you earlier to talk about this; I have been in Washington D.C. the last few days with my CEO for meetings.

First of all I want to say that I am very, very sorry that you have had to deal with the Bill Perry issue in any way. I think it is entirely inappropriate to involve either of you and I am sure it has caused you distress. I am also sorry that I went onto Bill Perry=01,s property last weekend and I promise to NEVER go on Bill Perry=01,s property again.

Last weekend the 6 of us took the usual hike around the Johansson=01,s prop= erty and ended up on Roseman Creek road next to Bill Perry=01,s property with th= e observation deck. Scott has never seen the deck and has heard a lot about it so I (in not my best judgment) thought it would be ok to quickly go up t= o the deck and check it out for a couple minutes and come right back. We did not intend on hanging out on the deck or spending more than a couple of minutes. All I wanted to do was show Scotty where it was and what it looke= d like. Kent and Scott had been talking about building one on our property and I wanted them to see it. We went in the middle of the day and we did not bring any drinks, bottles, cigarettes, or food. We purposely went out there with nothing, spent a couple of minutes and came right back. I am no= t saying that this was right (because it was still trespassing), but we did not go out there as we had in the past.

Then, on Sunday, Bill Perry came (unannounced) to the dome and started yelling at me. He called me horrible names and said he was calling the Sheriff. I only spoke nicely to him and apologized repeatedly. I also promised him that I would never go onto his property again. He embarrassed me and said bad things about me and both of you regarding things that are not even related to this event. He also said that people continue to go on his deck and disrespect his property. This is when I knew that it is not just us that has used his deck. I have not been on his property in two years and I know Prentice and Jeff haven=01,t either. He complained that things have still be mistreated and he blamed me for things that I could no= t have done. I know that what I did was not right and I tried to let him see that I was sincere about never going there again, but he would not listen.

I know that I have to deal with this issue. I assume you have the name of the Sheriff so I can speak with him (and I hope you referred him immediatel= y to me). You should not have been called in this matter and that is VERY upsetting to me. You did not trespass. Trespassing is not a crime that is against another person=01,s property, but rather against another person. T= here is no reason why you should be involved. I am a 32 year old adult, full capable of being responsible for my

own actions. I may make mistakes, but it is not your responsibility to answer for those mistakes and I am sorry that you have been put in this position.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 214 of 1299

FW: EIX, PCG: Governor Announces Forward Contracts; CPUC to Discuss	
Sender	jeff.dasovich@enron.com
Recipients	['angela.schwarz@enron.com', 'beverly.aden@enron.com', '=20', 'alan.comnes@enron.com']
File	dasovich-j/all_documents/9688.

----- Forwarded by Jeff Dasovich/NA/Enron on 03/06/2001 12:42 PM -----

=09Alan Comnes@ECT =0903/06/2001 12:00 PM =09=09=20 =09=09 To: Tim Belden/HOU/ECT@ECT, Robert Badeer/HOU/ECT@ECT, Chris H=20 Foster/HOU/ECT@ECT =09=09 cc: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Mary= =20 Hain/HOU/ECT@ECT, Steve C Hall/PDX/ECT@ECT =09=09 Subject: FW: EIX, PCG: Governor Announces Forward Contracts; CPUC to= Discuss=20 Revenue Allocation

FYI. Davis is including the CalPX BFM contracts that he seized a while bac= k=20 and is valuing them at some undisclosed amount.

GAC ----- Forwarded by Alan Comnes/PDX/ECT on 03/06/2001 09:47= =20 AM ----- From: Chip Schneider/ENRON@enronXgate on 03/06/2001 08:00 AM CST To: William S Bradford/ENRON@enronXgate, Michael Tribolet/ENRON@enronXgate,= =20 James D Steffes/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, John=20 Neslage/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Christopher F=20 Calger/PDX/ECT@ECT, W David Duran/HOU/ECT@ECT, Greg Blair/Corp/Enron@Enron,= =20 George Schaefer/NA/Enron@Enron, Terry W Donovan/HOU/ECT@ECT cc: =20

Subject: FW: EIX, PCG: Governor Announces Forward Contracts; CPUC to Discus= s=20 Revenue Allocation

-----Original Message-----

From: Paul Patterson <Paul_Patterson@xmr3.com>@ENRON=20 [mailto:IMCEANOTES-Paul+20Patterson+20+3CPaul+5FPatterson+40xmr3+2Ecom+3E+4= 0ENRON@ENRON.com]=20 Sent: Tuesday, March 06, 2001 7:13 AM To: Schneider, Chip Subject: EIX, PCG: Governor Announces Forward Contracts; CPUC to Discuss=20 Revenue Allocation

Credit Suisse First Boston Paul Patterson Good morning, Recent developments in California's power crisis:

-Yesterday, Governor Davis announced that the DWR has signed 40 contracts f= or=20 8,886 MW per year, over the next 10 years and at an average price of \$69 pe= r=20 mWh. The DWR also has agreements in =01&principle=018 to cover 65-70% of it= s net=20 short power position this summer. -We remain cautious on the power purchase agreements, given past results of= =20 the state=01,s power auctions. At least two generators have indicated that,= =20 while they have signed MOUs with the DWR, the agreements are not definitive= =20 and issues still need to be resolved. -Also yesterday, District Court Judge Lew scheduled a trial date of July 31= =20 for Edison=01,s lawsuit against the CPUC. -On Thursday, the CPUC will address several utility issues. Of particular= =20 importance is the allocation of customer revenues to the DWR. The method of= =20 allocation is expected to determine whether the DWR or the utilities are at= =20 greater risk for undercollection. -We believe many uncertainties still remain. It is unclear when the state= =01,s=20 conceptual agreements with the utilities and the generators will be finaliz= ed=20 in addition to how the legislature will receive the agreements. -Consequently, we believe that investors should avoid EIX (\$15.21, Hold) an= d=20 PCG (\$14.75, Hold), unless they have a high tolerance for risk and volatili= ty.

Please call us with any questions you may have. Regards, Paul Patterson, 212-325-5876 Neil Stein, 212-325-4217 Wen-Wen Chen, 212-538-0223 Emily Lao Chua, 212-325-1982

If you would prefer not to receive further messages from this sender, please click on the following link and confirm your request: [Mailto:K-2-62573-539027-2-151-US2-1F3DDD56@xmr3.com](mailto:K-2-62573-539027-2-151-US2-1F3DDD56@xmr3.com) You will receive one additional e-mail message confirming your removal.

- ppp030601.pdf

Message 215 of 1299

Re: Minutes from call with City of Fresno, Attorney	
Sender	andrew.wu@enron.com
Recipients	['geoff.pollard@enron.com', 'richard.crevelt@enron.com', 'rob.cone@enron.com', 'dirk.vanulden@enron.com']
File	dasovich-j/csu_fresno/2.

Rob--

We should probably tread carefully in this area. My understanding is that University is the lead agency for permitting, and if the mitigated negative declaration you provided to me is the final one, then I don't know if the City has the authority to require a conditional use permit other than the negative declaration that the University obtained (prepared?). However, if the neg dec was only preliminary, then the City has the opportunity to provide comments, and I suppose it's theoretically possible that the City could seek an injunction. I don't know if the City has separate rules, but I do know that under Fresno County rules, items that have a utility or quasi-utility purpose are oftentimes exempt from the CUP process (unless I suppose that the CEQA study requires it).

I think we should let the University take the lead on this because if it turns out that the City is going to inject itself in the permitting process then we don't want get in the middle of yet another delay-causing dispute.

Let me know how I can help.

AW

From: Rob Cone/Western Region/The Bentley Company@Exchange on 04/18/2000 02:47 PM CDT To: Richard Crevelt/Western Region/The Bentley Company@Exchange, Dirk vanUlden/Western Region/The Bentley Company@Exchange, Geoff Pollard/Western Region/The Bentley Company@Exchange, Andrew Wu/HOU/EES@EES, Jeff Dasovich/SFO/EES@EES cc: Subject: Minutes from call with City of Fresno, Attorney

I received a phone call today from David Hale, City Attorney, with the City of Fresno. The following items below are issues that David brought up regarding the CSU Fresno Project. They are centered around the CEQA document that was provided to them.

? David can not make recommendations and/or comments to the City's Team with the scope of the 115kV line from the PG&E Herndon/Bullard Sub. to the CSU Fresno Sub. not being fully defined. i.e. overhead or under ground, PG&E or CSU Fresno owning the line. ? David has numerous issues either way should PG&E owns the line or CSU Fresno. ? David is investigating whether or not there is a public utility easement located at Bullard. He indicated that the likelihood is high that there is. ? If PG&E installs and owns the line then there are set of rules that the City has in place for this work to be conducted by a public utility governed by the CPUC. The easement issues are broad under this scenario. ? David indicated that should PG&E install and own the 115kV line, that an encroachment permit will not suffice. He indicated that a Conditional Use Permit would need to be utilized. ? David stated that should CSU Fresno want to install and own the 115kV line that this is an area that is "convoluted and complex". There would be a tremendous amount of legal issues around this. i.e. can the City grant this easement to the University? With the line being dedicated to the University what does that mean? Does CSUF have a legal right to this easement? ? It sounds like the City has never dealt with this type of issue and does not have set of rules and/or regulations dealing with this. ? David stated that he might be in the next meeting with the University, EES, and Fresno.

I will advise everyone should there be any other developments in this area prior to the upcoming meeting with the City. Let me know if you have any comments or questions.

Rob Cone

Project Manager Enron Energy Services 12647 Alcosta Blvd., Suite 500 San Ramon, CA 94583 Ph:925.543.3701,
Fax:925.543.3550 Pager:888.397.5826

Message 216 of 1299

Re: Commission Oil Hearings

Sender	michael.alexander@sce.com
Recipients	['mday@gmssr.com', 'jeff.dasovich@enron.com', 'paulamirault@aec.ca', 'jdasovic@enron.com', 'burkee@cts.com']
File	dasovich-j/all_documents/12698.

I have just asked the CPUC for time to speak on Edison's behalf. I am still drafting our response (just got permission/instructions from my management) We intend to support the settlement, but suggest that, in light of the delays which have occurred in implementation, and the drastic changes which have occurred in California's energy markets, and the infrastructure proceeding that is on-going, in particular, how much additional take-away capacity is required to support the proposed interstate pipeline expansions, it may be appropriate to renegotiate some of the details of the settlement and/or for the Commission to take additional testimony/evidence.

-- Michael S. Alexander Southern California Edison Energy Supply and Management (ES&M) 626-302-2029
626-302-3254 (fax)

Jeff.Dasovich @enron.com To: Tom Beach <tomb@crossborderenergy.com> cc: burkee@cts.com, jdasovic@enron.com, 05/15/2001 MDay@GMSSR.com, Michael.Alexander@sce.com, 08:51 AM paulAmirault@aec.ca, rick.counihan@greenmountain.com Subject: Re: Commission Oil Hearings

Enron will very vigorously support the CS and I would hope that we could get as many people as possible to do the same. Let's face it, California's gas industry is a mess for the same reasons the electricity industry is a mess (despite, and perhaps contrary to, the substantially more narrow reasoning offered by the Brattle Group). The CS is a well-thought-out, well-designed program for moving forward; unlike the "interim," which takes two steps back. Can we split up the names of all the people who signed on and call them and try to get them to show up in support?

Best, Jeff

Tom Beach

<tomb@crossbordere To: Michael.Alexander@sce.com, nergy.com> MDay@GMSSR.com, burkee@cts.com, jdasovic@enron.com,

05/14/2001 11:37 rick.counihan@greenmountain.com, PM paulAmirault@aec.ca

cc:

Subject: Re: Commission Oil Hearings

Watson has asked for time to speak. I'm planning to continue to support the CS. It brings some greater stability and certainty to SoCalGas' noncore rates. The allocation of backbone capacity might improve shippers' certainty of being able to move gas through Topock and Wheeler Ridge. In the short term, it's hard to say how much that might help prices, but I doubt that it would make them worse. In the longer term, if new generation on the PG&E and Kern / Mojave systems, plus the North Baja and Questar lines, actually reduce SoCalGas' throughput, then a SoCalGas city-gate market might be pretty competitive. Finally, the CS removes SoCalGas' favorite argument in favor of the peaking rate.

So what are Edison and Enron going to do?

Tom

----- Original Message -----

From: <Michael.Alexander@sce.com> To: <MDay@GMSSR.com>; <burkee@cts.com>; <jdasovic@enron.com>; <rick.counihan@greenmountain.com>; <paulAmirault@aec.ca>; <tomb@crossborderenergy.com> Sent: Monday, May 14, 2001 7:26 PM Subject: Commission Oil Hearings

I was just wondering what any of you guys are thinking about doing at the Gas Oil meeting next Tuesday. Are any of you planning on making a presentation? If so, do you intend to support the settlement as filed,

or

are there modifications you think are appropriate given the way SoCalGas has handled its system in the past few months? Michael P.S. FYI, I am out of town, so I am not available by phone until Monday. -- Michael S. Alexander Southern California Edison Energy Supply and Management (ES&M) 626-302-2029 626-302-3254 (fax)

Message 217 of 1299

Re: California "Fact Sheet"

Sender	james.steffes@enron.com
Recipients	['jdasovic@enron.com', 'mona.petrochko@enron.com', 'paul.kaufman@enron.com', 'sarah.novosel@enron.com']
File	dasovich-j/all_documents/1107.

Sarah --

Looks fine. Did Craig Roach contribute?

I wonder if we should highlight the Interconnection problems we are having with new generation? I know that most of the delays are Siting related, but it is unclear to me if the ISO or the local utility is the right point of contact. This would help us nationally and gives FERC an "answer" - enforce your Interconnection policies!!

Also, this doesn't mention any possible market flaws. Do we think that some exist? Are any of the AS markets manipulated? EPSA needs to make sure that it takes an honest approach to this situation or its credibility will be destroyed. Has Craig Roach looked into this?

Jim

Sarah Novosel@ENRON 09/05/2000 02:39 PM To: James D Steffes/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Joe Hartsoe@Enron, Mona L Petrochko/SFO/EES@EES, jdasovic@ees.enron.com, Richard Shapiro/HOU/EES@EES, Mary Hain/HOU/ECT@ECT, Susan J Mara/SFO/EES@EES cc: Subject: California "Fact Sheet"

Here is EPSA's "Fact Sheet" on California. We're discussing it at the EPSA power marketers' weekly conference call tomorrow. We're also considering having EPSA submit this Fact Sheet to the CPUC in response to the data requests sent by the CPUC (responses are due on Friday). If you have any comments or suggested changes, please let me know (as soon as possible) in case EPSA submits this paper to the CPUC.

Thanks

Sarah ----- Forwarded by Sarah Novosel/Corp/Enron on 09/05/2000 03:30 PM -----

"Jackie Gallagher" <JGallagher@epsa.org> on 08/30/2000 01:20:16 PM To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jhartso@enron.com>, <mary.hain@enron.com>, <sarah.novosel@enron.com>, <tom.hoatson@enron.com> cc:

Subject: California "Fact Sheet"

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketing Working Group

FROM: Donald Santa, Regulatory Affairs Committee Chair Joe Hartsoe, Power Marketing Working Group Chair Julie Simon, Vice President of Policy

DATE: August 30, 2000

RE: California "Fact Sheet"

At our meetings last week with FERC, we had a great deal of valuable factual information and policy suggestions, but they were not pulled together as a cohesive story. Based on materials provided by various companies, we have drafted the attached fact sheet entitled "California: The Real Story." It is an effort to pull together the most compelling pieces of information and policy arguments as a "leave-behind" for FERC staff and other regulators and to form the basis for any testimony at the upcoming congressional hearings.

The paper includes factual information pulled from a number of sources and Jackie Gallagher, EPSA's Research Assistant, is attempting to verify and cite as many facts as possible. To make the message convincing, we need "chapter and verse" on our facts. Please review the material carefully to be sure it is accurate and compelling. Any assistance in verifying these facts, or providing others that do a better job of telling our story, will be appreciated. You can e-mail to Jackie at jgallagher@epsa.org.

We will discuss the paper during our conference call next Wednesday, September 6 at 11:00 a.m. (EDT). To access the call, dial 1-800-937-6563 and ask for the Julie Simon/EPSA call. If you have any questions or suggestions before Wednesday, please contact Julie Simon at 202-789-7200.

Attachment

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760
Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

- CALIFORNIA2.doc

Message 218 of 1299

EPSA study attributes lower electricity prices to competition

Sender	jmunoz@mcnallytemple.com
Recipients	[andybrwn@earthlink.net] , abb@eslawfirm.com , cabaker@duke-energy.com
File	dasovich-j/all_documents/29005.

Wholesale Competition Contributed to Trend of Lower Power Prices, According to New EPSA Study

PR Newswire 07/23/01, 1:00p (Copyright , 2001, PR Newswire)

WASHINGTON, July 23 /PRNewswire/ -- Calls for a return to cost-plus rate regulation in the wake of the California power crisis are misplaced, according to an independent study released today that found that competitive markets contributed to a 36 percent decline in retail electricity prices among surveyed utilities.

"That decrease is in sharp contrast to the increases that consumers experienced in the days of solely cost-plus rate regulation," said Electric Power Supply Association President Lynne H. Church, who released the findings during a media luncheon in conjunction with the group's summer membership meeting. "This analysis is evidence that we should continue to move forward toward more competition in order to apply downward pressure on prices."

The study: "Assessing the 'Good Old Days' of Cost-Plus Regulation," analyzed sales data for 60 of the nation's investor-owned utilities during 1985-1999, when traditional cost-plus rate regulation began evolving toward more competition. Complete sales figures for 2000 were not yet available when the study was completed. The study was commissioned by EPSA and conducted by Craig Roach, Ph.D, principal of Boston Pacific Co.

"In the wake of the California power crisis, some people have expressed a longing for a return to the 'good' old days of cost-plus regulation, but those days were far from good," Roach said. "People seem to forget that, in the days of cost-plus regulation between 1970 and 1985, inflation-adjusted electricity prices actually increased 25 percent for residential customers and increased 86 percent for industrial/commercial customers."

"So much for the good old days," Church said. "The price increases under cost-plus regulation were precisely what drove the start of electricity competition in the early and mid-1980s."

During the 1985-1999 period, according to the analysis, inflation-adjusted electricity prices decreased an average 30 percent for residential customers and 36 percent for industrial/commercial customers.

"We should not allow the problems in California to cast a false shadow on competition," Church said. "The evidence presented in this study makes it clear that it would be counterproductive and unwise to go back to the old ways."

"It is important to understand that what happened in California resulted, in part, from market rules that prohibited basic risk management," Roach said. "Specifically, utilities were required to take on the risk of selling at a fixed price to customers, but not allowed to manage that risk by arranging contracts with fixed-price suppliers or use other risk management tools. Managing risk appropriately benefits consumers, and risk management is more efficient and effective in a truly competitive regime."

"This study bolsters our belief that the Federal Energy Regulatory Commission should continue to move expeditiously toward more efficient wholesale markets, states should continue to move quickly toward opening their retail power markets, and Congress should quickly adopt comprehensive legislation to help them along," Church said.

Note: A copy of the complete study is available at www.bostonpacific.com/powerprices.

EPSA is the national trade association representing independent power producers and power marketers active in U.S. and global power markets. As suppliers of reliable, clean, competitively priced electricity, EPSA members seek to bring the benefits of competition to all electricity customers.

Contact: Mark Stultz, 202-628-8200 Audrey Duff, 202-354-8205

/CONTACT: Mark Stultz of Electric Power Supply Association, +1-202-628-8200; or Audrey Duff, +1-202-354-8205, for Electric Power Supply Association/

/Web site: <http://www.epsa.org>

<http://www.bostonpacific.com/powerprices> /

Message 219 of 1299

Re: Recommend Oppose of SB 78xx

Sender	susan.mara@enron.com
Recipients	['sgovenar@govadv.com', 'hgovenar@govadv.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28990.

I couldn't get my computer to pull AB 189 from home. I did talk to Counihan. His view is that the bill does not repeal the operative provisions of AB 1890 for DA, Sec 365. As I mentioned it does repeal the whereas part, Sec 330. He agrees, however, that as soon as it passes, the CPUC will implement ABX 1 and vote to kill DA. AReM put out a press statement on the senate passage of AB 2X78. I think you may have received it.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Jeff Dasovich Sent by: Jeff Dasovich 07/20/2001 10:28 PM

To: Susan J Mara/NA/Enron@ENRON cc: Scott Govenar <sgovenar@govadv.com>, hgovenar@govadv.com Subject: Re: Recommend Oppose of SB 78xx

I realize that this note is likely stale, but, FYI, Ms Cassandra's is mistaken. SB 78 ain't silent on DA. It kills it, period.

I sure hope that ARM is seriously opposed to the bill.

Best, Jeff

Susan J Mara 07/20/2001 02:14 PM

To: sgovenar@govadv.com cc: Jeff Dasovich/NA/Enron@Enron Subject: Recommend Oppose of SB 78xx

Aren't we opposing ABXX 78?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/20/2001 12:12 PM -----

Kassandra Gough <kgough@calpine.com> 07/20/2001 12:09 PM

To: "arem@electric.com" <arem@electric.com> cc: Subject: Recommend Oppose of SB 78xx

Hi everyone,

I know that AREM is not opposing SB 78xx (Polanco/Sher) because it is silent on direct access; however, I want to recommend that the position be changed to oppose. I have spoken with Norm and he asked that I send this out for comment. Please look at the bill and specifically Section 13, on Page 35 (see below). I believe that if this bill were to become law direct access in SCE's, PG&E's and SDG&E territories (I believe the section stands alone so it wouldn't matter if PG&E accepted the same deal or not) would be dead. In summary, the bill would essentially allow any IOU to go back into the generation business and require the CPUC to approve rates that are sufficient to cover their reasonable cost of operation, investment and provide for a reasonable rate of return (I don't believe this is cost-based rates). The CPUC is given broad latitude over conducting proceedings, issuing orders or anything else that may be necessary to accomplish the goal of assuring that service provided by IOU's is adequate. Section 13 will kill competition, eliminate direct access and create new stranded costs. And, to add insult to injury the State Power Authority may be their partners in crime. As to the politics of the bill it was just amended to be a majority vote bill. Burton has said it is this bill or nothing. SCE is opposing the bill but there are several lobbyist who think this is all an ambush and SCE would love this bill.

Please comment on my above analysis. I would love to be wrong on this one.

Kassandra Gough Government and Legislative Manager Calpine SEC. 13. Section 454.10 is added to the Public Utilities Code, to read: 454.10. (a) In order to assure that the service provided by electrical corporations is adequate, the commission may require each electrical corporation that provides distribution service to make direct investments in electric generation facilities whose output is dedicated to serve the customers connected to its distribution grid. (b) After a hearing, the commission shall approve rates sufficient to enable the electrical corporation to recover its reasonable costs of operation, its reasonable investment in the electric generation facilities and a reasonable return on its investment, in accordance with Section 451. (c) An electric corporation may meet the obligation described in this section by entering into projects for electric generation facilities jointly with the California Consumer Power and Conservation Financing Authority. (d) The commission may conduct proceedings, enter orders and undertake such actions as it considers necessary or appropriate to carry out the provisions of this section. <<sb 78xx -Polanco.pdf>>

- sb 78xx -Polanco.pdf

Message 220 of 1299

CMTA TAX/GR & Generators: Windfall Profits tax Thurs. meeting

Sender	jeff.dasovich@enron.com
Recipients	['richard.shapiro@enron.com', 'skean@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/12035.

----- Forwarded by Jeff Dasovich/NA/Enron on 05/04/2001 09:45 AM -----

Pam Ross <pross@cmta.net> 05/02/2001 05:23 PM Please respond to pross

To: undisclosed-recipients;; cc: Subject: CMTA TAX/GR & Generators: Windfall Profits tax Thurs. meeting changed to Friday

TO: Cassandra Gough--Calpine Chris Micheli--Carpenter Snodgrass Carolyn Baker--Duke Energy Anne Kelly--Duke Energy David Parquet--Enron Jeff Dasovitch--Enron Tom Allen--Mirant John Stout--Reliant Energy Scott Sadler--Reliant Energy Fred Pownal--Kahl/Pownall Advocates Fred Main--California Chamber of Commerce Greg Turner--Cal Tax Katie Kaplan--IEP Matt Sutton--AEA CMTA Energy Committee CMTA Tax Committee CMTA Government Relations Committee

FROM: Carrie-Lee Coke/Pam Ross

RE: Friday, May 4 meeting at 1:30 pm in the CMTA conference room to discuss Windfall Profits Tax bills

Due to a scheduling conflict, we are changing our Thursday, 2:00 pm meeting to Friday, May 4 at 1:30 pm.

As most of you are aware, CMTA is opposing legislation designed to impose a Windfall Profits Tax on electricity generator companies. The bills are SBX1 1 (Soto) and ABX1 128 (Corbett). Please note that the Soto bill pertains to co-generators as well as entities exclusively in the power business. That means that many of you would be directly effected. The other primary basis for opposition is that the bills would inhibit electrical supply. Please also note that, to the extent that SBX1 1 (Soto) were operative, it would impose the "windfall cost" on business taxpayers who would fund the credit given to personal income tax taxpayers.

You are invited to our lobbying strategy meeting which will be here at CMTA's offices at 980 9th Street, Suite 2200 on Friday, May 4 at 1:30 pm. Please RSVP to Pam Ross at 916-498-3320 or pross@cmta.net.

There is a call in number as follows: Access number: 1-888-727-8686 Conference ID: 900 1325# TO: Cassandra Gough--Calpine Chris Micheli--Carpenter Snodgrass Carolyn Baker--Duke Energy Anne Kelly--Duke Energy David Parquet--Enron Jeff Dasovitch--Enron Tom Allen--Mirant John Stout--Reliant Energy Scott Sadler--Reliant Energy Fred Pownal--Kahl/Pownall Advocates Fred Main--California Chamber of Commerce Greg Turner--Cal Tax Katie Kaplan--IEP Matt Sutton--AEA CMTA Energy Committee CMTA Tax Committee CMTA Government Relations Committee FROM: Carrie-Lee Coke/Pam Ross RE: Friday, May 4 meeting at 1:30 pm in the CMTA conference room to discuss Windfall Profits Tax bills Due to a scheduling conflict, we are changing our Thursday, 2:00 pm meeting to Friday, May 4 at 1:30 pm. As most of you are aware, CMTA is opposing legislation designed to impose a Windfall Profits Tax on electricity generator companies. The bills are SBX1 1 (Soto) and ABX1 128 (Corbett). Please note that the Soto bill pertains to co-generators as well as entities exclusively in the power business. That means that many of you would be directly effected. The other primary basis for opposition is that the bills would inhibit electrical supply. Please also note that, to the extent that SBX1 1 (Soto) were operative, it would impose the "windfall cost" on business taxpayers who would fund the credit given to personal income tax taxpayers. You are invited to our lobbying strategy meeting which will be here at CMTA's offices at 980 9th Street, Suite 2200 on Friday, May 4 at 1:30 pm. Please RSVP to Pam Ross at 916-498-3320 or pross@cmta.net. There is a call in number as follows: Access number: 1-888-727-8686 Conference ID: 900 1325#

Message 221 of 1299

Re: California "Fact Sheet"

Sender	mary.hain@enron.com
Recipients	['james.steffes@enron.com', 'mona.petrochko@enron.com', 'paul.kaufman@enron.com', 'sarah.novosel@enron.com']
File	dasovich-j/notes_inbox/230.

On interconnection, I think our approach has been that the ISO should be the party you have an interconnection contract with, not the utility.

James D Steffes@EES 09/06/2000 05:29 AM To: Sarah Novosel/Corp/Enron@ENRON cc: Paul Kaufman/PDX/ECT@ECT@ENRON, Joe Hartsoe@Enron, Mona L Petrochko/SFO/EES, jdasovic, Richard Shapiro/HOU/EES, Mary Hain/HOU/ECT@ECT@ENRON, Susan J Mara/SFO/EES, tim belden Subject: Re: California "Fact Sheet"

Sarah --

Looks fine. Did Craig Roach contribute?

I wonder if we should highlight the Interconnection problems we are having with new generation? I know that most of the delays are Siting related, but it is unclear to me if the ISO or the local utility is the right point of contact. This would help us nationally and gives FERC an "answer" - enforce your Interconnection policies!!

Also, this doesn't mention any possible market flaws. Do we think that some exist? Are any of the AS markets manipulated? EPSA needs to make sure that it takes an honest approach to this situation or its credibility will be destroyed. Has Craig Roach looked into this?

Jim

Sarah Novosel@ENRON 09/05/2000 02:39 PM To: James D Steffes/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Joe Hartsoe@Enron, Mona L Petrochko/SFO/EES@EES, jdasovic@ees.enron.com, Richard Shapiro/HOU/EES@EES, Mary Hain/HOU/ECT@ECT, Susan J Mara/SFO/EES@EES cc: Subject: California "Fact Sheet"

Here is EPSA's "Fact Sheet" on California. We're discussing it at the EPSA power marketers' weekly conference call tomorrow. We're also considering having EPSA submit this Fact Sheet to the CPUC in response to the data requests sent by the CPUC (responses are due on Friday). If you have any comments or suggested changes, please let me know (as soon as possible) in case EPSA submits this paper to the CPUC.

Thanks

Sarah ----- Forwarded by Sarah Novosel/Corp/Enron on 09/05/2000 03:30 PM -----

"Jackie Gallagher" <JGallagher@epsa.org> on 08/30/2000 01:20:16 PM To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jhartso@enron.com>, <mary.hain@enron.com>, <sarah.novosel@enron.com>, <tom.hoatson@enron.com> cc:

Subject: California "Fact Sheet"

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketing Working Group

FROM: Donald Santa, Regulatory Affairs Committee Chair Joe Hartsoe, Power Marketing Working Group Chair Julie Simon, Vice President of Policy

DATE: August 30, 2000

RE: California "Fact Sheet"

At our meetings last week with FERC, we had a great deal of valuable factual information and policy suggestions, but they were not pulled together as a cohesive story. Based on materials provided by various companies, we have drafted the attached fact sheet entitled "California: The Real Story." It is an effort to pull together the most compelling pieces of information and policy arguments as a "leave-behind" for FERC staff and other regulators and to form the basis for any testimony at the upcoming congressional hearings.

The paper includes factual information pulled from a number of sources and Jackie Gallagher, EPSA's Research Assistant, is attempting to verify and cite as many facts as possible. To make the message convincing, we need "chapter and verse" on our facts. Please review the material carefully to be sure it is accurate and compelling. Any assistance in verifying these facts, or providing others that do a better job of telling our story, will be appreciated. You can e-mail to Jackie at jgallagher@epsa.org.

We will discuss the paper during our conference call next Wednesday, September 6 at 11:00 a.m. (EDT). To access the call, dial 1-800-937-6563 and ask for the Julie Simon/EPSA call. If you have any questions or suggestions before Wednesday, please contact Julie Simon at 202-789-7200.

Attachment

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760 Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

- CALIFORNIA2.doc

Message 222 of 1299

Weekly California Update Conference Call

Sender	ginger.dernehl@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/deleted_items/582.

gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 07/16/2001 01:22 PM -----

=09Ginger Dernehl 06/18/2001 12:55 PM =09 To: Alan Comnes/Enron@EnronXGate= e, Andre Cangucu/Enron@EnronXGate, Andrew S Fastow/Enron@EnronXGate, cbone@= wyattfirm.com, ceklund@llgm.com, Christian Yoder/Enron@EnronXGate, Christop= her F Calger/Enron@EnronXGate, Cliff Baxter/Enron@EnronXGate, Dan Leff/HOU/= EES@EES, David W Delaine/Enron@EnronXGate, Donald M Black/Enron@EnronXGate, Eli= zabeth Tilney/HOU/EES@EES, Eric Letke/HOU/EES@EES, Gordon Savage/HOU/EES@EE= S, Greg Wolfe/Enron@EnronXGate, Harold G Buchanan/HOU/EES@EES, Harry Kinger= ski/NA/Enron@Enron, jklauber@llgm.com, James D Steffes/NA/Enron@Enron, Jame= s Derrick/Enron@EnronXGate, Jeff Dasovich/NA/Enron@Enron, Jennifer Rudolph/= HOU/EES@EES, Jeremy Blachman/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Joh= n J Lavorato/Enron@EnronXGate, Karen Denne/Corp/Enron@ENRON, Keith Holst/En= ron@EnronXGate, Linda Robertson/NA/Enron@ENRON, Karen S Owens@ees@EES, Mark= E Haedicke/Enron@EnronXGate, Mark Koenig/Enron@EnronXGate, Mark Metts/Enro= n@EnronXGate, Mark Palmer/Corp/Enron@ENRON, Mark S Muller/HOU/EES@EES, Mart= y Sunde/HOU/EES@EES, Marty Sunde/HOU/EES@EES, Michael P Moran/Enron@EnronXG= ate, Michael Tribolet/ENRON@enronXgate, Mike D Smith/HOU/EES@EES, Mike Grig= sby/Enron@EnronXGate, Mitchell Taylor/Enron@EnronXGate, Paul Kaufman/Enron@= EnronXGate, Phillip K Allen/Enron@EnronXGate, Richard B Sanders/Enron@Enron= XGate, Richard Causey/Enron@EnronXGate, Richard Shapiro/NA/Enron@Enron, Ric= k Buy/Enron@EnronXGate, Robert Badeer/Enron@EnronXGate, Robert Johnston/Enr= on@EnronXGate, Robert Williams/ENRON@enronxgate, Sarah Novosel/Corp/Enron@E= NRON, Scott Stoness/HOU/EES@EES, Shari Stack/HOU/ECT@ECT, Shelia Benke/Enro= n@EnronXGate, Shelley Corman/Enron@EnronXGate, Stephen Swain/Enron@EnronXGa= te, Steve C Hall/ENRON@enronXgate, Steven J Kean/NA/Enron@Enron, Susan J Ma= ra/NA/Enron@ENRON, Tamara Johnson/HOU/EES@EES, Thomas E White/HOU/EES@EES, = Tim Belden/Enron@EnronXGate, Travis McCullough/Enron@EnronXGate, Vicki Shar= p/HOU/EES@EES, Wanda Curry/HOU/EES@EES, Wendy Conwell/Enron@EnronXGate, Wil= liam S Bradford/Enron@EnronXGate, Janel Guerrero/Corp/Enron@Enron, Janel G= uerrero/Corp/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Jennifer Thome/N= A/Enron@Enron, Elizabeth Linnell/NA/Enron@Enron, Miyung Buster/ENRON_DEVELO= PMENT@ENRON_DEVELOPMENT cc: Anna Mehrer/Enron@EnronXGate, Bernadette Hawki= ns/Corp/Enron@ENRON, Beverly Aden/HOU/EES@EES, Binky Davidson/HOU/EES@EES, = Bridget Maronge/Enron@EnronXGate, Carol Moffett/HOU/EES@EES, Cindy Derecske= y/Corp/Enron@Enron, Debra Davidson/Enron@EnronXGate, Dolores Fisher/Enron@E= nronXGate, Emy Geraldo/Enron@EnronXGate, Esmeralda Hinojosa/HOU/EES@EES, Gi= nger Dernehl/NA/Enron@Enron, Jan M King/Enron@EnronXGate, Janette Elbertson= /Enron@EnronXGate, Joseph Alamo/NA/Enron@Enron, Karen K Heathman/Enron@Enro= nXGate, Kathryn Sheppard/Enron@EnronXGate, Kay Chapman/HOU/EES@EES, Kimberl= y Hillis/Enron@EnronXGate, Leasa Lopez/HOU/EES@EES, Leticia Botello/HOU/EES= @EES, Lora Sullivan/Corp/Enron@ENRON, Lysa Akin/Enron@EnronXGate, Maureen M= cVicker/NA/Enron@Enron, Mercy Gil/Enron@EnronXGate, Mollie Gustafson/Enron@= EnronXGate, Paula Warren/HOU/EES@EES, Robert Hermann/Enron@EnronXGate, Rosa= linda Tijerina/HOU/EES@EES, Rosario Boling/Enron@EnronXGate, Rubena Buerger= /ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Ruth Ann Brown/HOU/EES@EES, Ruth Mann= /Enron@EnronXGate, Sharon Purswell/Enron@EnronXGate, Sharron Westbrook/Enro= n@EnronXGate, Stephanie Harris/Enron@EnronXGate, Stephanie Truss/Enron@Enro= nXGate, Susan Skarness/Enron@EnronXGate, Twanda Sweet/Enron@EnronXGate, vsc= ruggs@wyattfirm.com, Jody Underwood/NA/Enron@Enron Subject: Weekly Califor= nia Update Conference Call=09

The Government Affairs group continues to have a weekly California update conference call every Monday at 10:30 am (CDT). However, we have decided to change the passcode information to ensure Enron privacy. Please make note of the new passcode on your schedules.

Date: Weekly on Monday's

Time: 10:30 am (CDT)

Number: 1-800-998-2462 (domestic) 9703-736-7230 passcode (5330893)

Location: EB4701

Also, if you feel there is someone within Enron that should get this change notice, please feel free to forward this information to them.

Thanks and call me if you have any questions.

gngr 713-853-7751

Message 223 of 1299

RE: Time Warner

Sender mark_guinney@watsonwyatt.com

Recipients ['jeff.dasovich@enron.com', 'dwindham@uclink4.berkeley.edu', 'jjackson@haas.berkeley.edu', 'jcjal02@aol.com', ...]

File dasovich-j/all_documents/11826.

Since the case asked us to evaluate this from Munro's point of view, it is his job to examine the potential the deals in the best interest of Time's shareholders. Therefore, in my opinion we will have to incorporate the after-tax value to the Time shareholder as one piece of the puzzle. The difficulty with the tax implications to the shareholder is that we do not know the average shareholder's cost basis. It should just be a mention in our memo.

As I mention in a previous e-mail, there is no tax implication to the corporation except for the leverage and tax shield. Unless we completely recreate the DCF I don't think we can accurately quantify the tax shield advantage especially since we don't know how the additional leverage will alter the WACC, i.e. what is the optimal WACC of the combined company. Another complication is the difficulty in recreating the DCF is the timing and tax implications of the asset sales which we know to be around \$3.5 billion.

Our professor doesn't seem to require any advanced calculations. We are probably all right with some approximations.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator Subject: Re: Time Warner Author: "Dylan Windham"
<SMTP:dwindham@uclink4.berkeley.edu> Date: 04/29/2001 12:29 AM

Jeff:

I have been looking at your numbers and I have a few questions.

1). If we look at this from the stand point of the Time shareholder's, we do not really need to worry about the make-up of Time-Paramount after the merger. Since this is an all cash deal, the purchase price will be given to Time's shareholders. This amount needs to be above the DCF of the Time-Warner deal for us to suggest it.

2). As for the taxes maybe Mark can shed some light on the issue. During the acquisition phase the only taxes that will be paid will be the capital gains paid by Time Shareholders. Paramount will not pay taxes on the purchase. Paramount's tax position will improve due to the increased debt payments. Looking at it from Time shareholder's we really don't care do we? Maybe I am wrong.

Otherwise everything looked good. I like the common sized balance sheet. I should be home all day tomorrow. Call me at 925-362-0210 and let me know how I can pitch in.

Dylan

At 08:55 PM 4/28/01 -0500, Jeff.Dasovich@enron.com wrote:

OK Gang: Well, I've been crunching numbers all day, and haven't yet gotten to the writing. I've attached Dylan's original responses for reference. Figure it'll be a memo from Time's CEO to the Time Board. I've leaving now for Mendocino, but will be back early tomorrow to finish this up. Please check out the spreadsheet. The case is sort of confusing?how do Time's analysts value Time at \$189-212, when they're trading at 109 the day before the announcement of the deal with Warner. That doesn't jive. Are they saying that, absent synergies, the combined Time/Warner is worth the enterprise value of Time at 189-212 plus the enterprise value of Warner at \$63-71 (again, the analysts valuation)? That just seems ridiculous, give where they're trading. Anyway, here's where my analysis is heading----tell me if I'm smoking crack. The deal isn't really \$175 per share. It's \$175 LESS the taxes that will have to paid (since it's a purchase deal) PLUS the value of the tax shield created by the net increase of \$8.9B in new debt that Paramount will take on. Does this seem right? Could folks look at my spreadsheet? I've got it conceptually set up, but I'm not quite sure how to calculate the taxes paid under the purchase method or the value of the tax shield (assuming that this is correct. If I'm just completely out of it with this angle, just let me know. In any case, seems that there's some value in the tax-free (Time-Warner) versus the taxable (Time-Paramount) deals. Presumably, we could take the total enterprise value of Time-Warner (nontaxed) and compared it to the total enterprise of Paramount-Time (taxed) and compare the two. I've got a hunch that the Time-Warner number may win the day, but I haven't gotten that far in the crunching yet. In any case, I'll be back around Noon tomorrow and will crank the puppy out. Best, Jeff (See attached file: Timewar_Jeff Calculations.xls)(See attached file: TimeWarner.doc)

Message 224 of 1299

FW: Article 2/Conf. Call - Sent on Behalf of Jeff Dodd

Sender	vicki.sharp@enron.com
Recipients	['susan.mara@enron.com', 'mike.smith@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28452.

Mike , sue and Jeff, Can you please track this down ASAP and get an assessment of this. Jeff, I assume you will get our lobbyists involved. Lets schedule a call to discuss strategy, etc. ----- Forwarded by Vicki Sharp/HOU/EES on 07/09/2001 03:10 PM ----- From: Barbara N Gray/ENRON@enronXgate on 07/09/2001 03:06 PM To: Vicki Sharp/HOU/EES@EES cc: Subject: FW: Article 2/Conf. Call - Sent on Behalf of Jeff Dodd

Vicki, I continue to work with "industry groups" on the proposed revisions to Article 2 of the UCC.....in connection therewith, I received the following with respect to CALIFORNIA consumers relating to choice of law proposed legislation being proposed in California. I am unsure what types of transactions, if any EES pursues in CA, but am passing this on to you just in case.....a fate worse than death....to be within the clutches of left coast consumer law!!!!!! Hope all is well with and family bng -----Original Message----- From: Kaye Caldwell <KCaldwell-IA@ix.netcom.com>@ENRON [mailto:IMCEANOTES-Kaye+20Caldwell+20+3CKCaldwell-IA+40ix+2Enetcom+2Ecom+3E+40 ENRON@ENRON.com] Sent: Sunday, July 08, 2001 7:30 PM To: SHADDIX, PEGGY; 'msbarranco@tpandh.com'; 'rberger@winston.com'; 'lebreannan@msn.com'; 'K.Buford@motorola.com'; 'David.B.Cade@GM.com'; 'ctc5@chrysler.com'; 'Susan_Carnahan@hp.com'; 'jcherry@snds.com'; 'david.crane@autodesk.com'; 'DaviesToddE@JDCORP.DEERE.com'; 'dcd1952@bellatlantic.com'; 'rfrank@enron.com'; 'egillas@ect.enron.com'; 'bgray@ect.enron.com'; 'Bguge@californiasteel.com'; 'gdhailey@venable.com'; 'ejh@whdlaw.com'; 'hillman@law.mail.cornell.edu'; 'lhoriszny@bwauto.com'; 'huddlesone@aol.com'; 'olivia.iannicelli@nissan-usa.com'; 'joek@bsa.org'; 'ckeeton@fbtlaw.com'; 'akoblentz@nada.org'; 'dland@affi.com'; 'clockwood@aiaam.org'; 'macdug@aol.com'; 'whannassoc@aol.com'; 'Jen_Morris@hp.com'; 'dreiter@724.com'; 'law@nam.org'; 'drobbins@mpaa.org'; 'msheriff@lsnlaw.com'; 'cla_silcox@nema.org'; 'hollyt@prestongates.com'; DODD, JEFF Subject: Re: Article 2/Conf. Call - Sent on Behalf of Jeff Dodd

Those of you that are concerned about the changes to Article 1 (Change #6 in Holly's memo) regarding choice of law might like to know about California AB 256, see text below. It makes all non-California choice of law clauses ineffective in electronic contracts with California consumers, and we think it may be expanded to all consumer contracts (due to E-SIGN issues). We have a working group of people opposing the bill, which has passed the Assembly and is in the Senate. THIS BILL IS QUITE LIKELY TO PASS. So if you're concerned please help us stop it! Among numerous other problems, I think it would force all companies that sell goods to California consumers with an express warranty to provide local repair facilities or contract for local repair services (ie, it overturns the Zeos case). If you want to participate in the opposition working group please let me know. (KCaldwell-IA@ix.netcom.com.) - Kaye Caldwell ===== Text of AB 256 ===== 1799.207. Notwithstanding any other provision of law, if a consumer in this state enters a consumer contract or other transaction for the purchase or lease of goods or services primarily for personal, family, or household purposes and the consumer contract or other agreement documenting the transaction is created, generated, sent, communicated, received, or stored by electronic means, all of the following apply: (a) The consumer contract or transaction shall be governed by California law. (b) For the purpose of applying the provisions of this part, the consumer contract or transaction shall be deemed to have been made or to have occurred at the individual's residence. (c) Any action arising from or connected with the consumer contract or transaction that is commenced against the consumer shall be filed in the county or judicial district in which the consumer resided at the time the transaction was entered or resides at the time action is filed. (d) This section may not be waived or varied by agreement. Any waiver of this section is void and unenforceable as contrary to public policy. ===== End of Text of AB 256 =====

Kaye Caldwell, California Policy Director Internet Alliance <http://www.internetalliance.org> E-mail:

KCaldwell-IA@ix.netcom.com Phone: (916) 486-6334, (202) 783-8677 Fax: (916) 313-3746, (202) 478-1804

Message 225 of 1299

Re: DRAFT talking points for California PUC Hearings on the

Sender	steven.kean@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/7966.

This is very good work. You make all the points we need to make without spraining anything in the process. You have been doing a superb job under very difficult circumstances.

On another note: I don't know if you received my page, but the meeting with Davis was cancelled so I flew back to Houston. We are trying to get another time, perhaps as early as this week. Davis did meet with Greenspan and Summers, both of whom we had briefed extensively. ----- Forwarded by Steven J Kean/NA/Enron on 12/27/2000 10:23 AM -----

Jeff Dasovich Sent by: Jeff Dasovich 12/26/2000 07:05 PM

To: Susan J Mara/NA/Enron@ENRON cc: Alan Comnes/PDX/ECT@ECT, Dennis Benevides/HOU/EES@EES, Eric Letke/DUB/EES@EES, George McClellan/HOU/ECT@ECT, Harry Kingerski/NA/Enron@ENRON, James D Steffes/NA/Enron@ENRON, Jennifer Rudolph/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Kevin McGowan/Corp/Enron@ENRON, Lisa Yoho/NA/Enron@ENRON, Lysa Akin/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, MDay@GMSSR.com, Mike D Smith/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@ENRON, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Roger Yang/SFO/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Scott Stoness/HOU/EES@EES, skean@enron.com, Stuart Staley/LON/ECT@ECT, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES Subject: Re: DRAFT talking points for California PUC Hearings on the 27th/28th

You're right, Sue. Rates can't go up w/out declaring the rate freeze over in some fashion---trying to finesse it. Thanks very much for the comments. Harry also had a good comment---don't specify the amount of rate increase in our comments; rather note that the rate increase needs to be well-reasoned and based on facts and evidence. Will make that change.

Susan J Mara 12/26/2000 06:43 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Alan Comnes/PDX/ECT@ECT, Dennis Benevides/HOU/EES@EES, Eric Letke/DUB/EES@EES, George McClellan/HOU/ECT@ECT, Harry Kingerski/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Jennifer Rudolph/HOU/EES@EES, Joe Hartsoe/Corp/Enron@Enron, Kevin McGowan/Corp/Enron@Enron, Lisa Yoho/NA/Enron@Enron, Lysa Akin/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, MDay@GMSSR.com, Mike D Smith/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Roger Yang/SFO/EES@EES, Sandra McCubbin/NA/Enron@Enron, Sarah Novosel/Corp/Enron@Enron, Scott Stoness/HOU/EES@EES, skean@enron.com, Stuart Staley/LON/ECT@ECT, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES Subject: Re: DRAFT talking points for California PUC Hearings on the 27th/28th

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Message 226 of 1299

Legislative Support

Sender	paul.kaufman@enron.com
Recipients	['susan.mara@enron.com', 'mday@gmssr.com', 'jeff.dasovich@enron.com', 'sandra.mccubbin@enron.com']
File	dasovich-j/all_documents/12582.

Mike:

I regret that we had a difficult call yesterday. We greatly appreciate the good work that you do and the commitment you and your firm have to our company. Moreover, I recognize that the legislature is a difficult environment and that there is substantial pressure on you and Sandy. I also recognize that needs and demands can change quickly and, at times, our RCR process can be difficult!

All that said, however, the Government Affairs group has an obligation to use our internal and external resources in the best and most cost-effective manner. The RCR process helps us satisfy that obligation..

From our conversation yesterday and a later call with Sandy, it appears that there is some confusion on how we will use the RCR process to contract for legal support for our legislative efforts. Hopefully this e-mail will clarify the process so there is no confusion in the future and so that you can feel comfortable you are undertaking work that is authorized and for which we have a budget.

1. To begin, it appears from your e-mail yesterday that Goodin, MacBride has billings as of May 11 for approximately \$10,000 on direct access, windfall profits, the "Global Settlement," and Power Plant Siting. With respect to this work, I recognize that there may have been confusion about our budgeting and RCR approval process. These billings will be included in the RCR-approval requests discussed below.

2As we discussed yesterday, the work associated with the billings in May was conducted without any RCR approval or any budget in place. As you know we terminated the two legislative retainers at the end of April. No RCRs were filed to cover the matters on which work was completed in May.

I did receive a budget on legislative matters on May 8. However, a decision was made only yesterday to proceed on a specific matter-by-matter basis. The work in May should not have been undertaken while we considered whether to proceed with an overall legislative budget or proceed with specific RCRs. In short, the proposed budget was not RCR approval.

In the future, any work undertaken by Goodin MacBride should only be conducted pursuant to an approved RCR. If an emergency arises--i.e., an issue arises that could not have been contemplated, we can get emergency approval for work necessary to respond to the emergency. Please contact me in the event of an emergency. I can be reached through my office line--503.464.7945, pager--888.916.2262, or cell phone 503.539.4733. If I can't be reached, please contact Jim Steffes. Jim's pager number is 888.906.9676. Note that both Jim and I wear the pager at all times and respond immediately to messages left on the pager.

3. Pending RCR approval for the matters identified below, I have asked Goodin MacBride to participate in the Direct Access coalition meetings taking place today and tomorrow. In a discussion with Sandy yesterday, I agreed that Goodin MacBride should participate in a telephonic conference on the Calderon bill.

4. To the maximum extent possible, you should include Leslie Lawner in future Direct Access Coalition meetings, conference calls, legislative drafting efforts, etc.

5. If there is any confusion on whether there is RCR approval for a particular matter, please contact me before undertaking an assignment. If I am unavailable, please contact Jim Steffes.

6. Today, Sandy is filing several RCRs for legislative support on Direct Access, Siting, Windfalls Profits, and the Global Settlement. They will be considered at next Monday's RCR conference call. If they are approved, Sandy will manage the Goodin MacBride assignments associated with Direct Access, Siting, and Windfalls Profits.

7. Jeff Dasovich will manage all work associated with the Global Settlement, whether it is legislative or not. This does not mean that Sandy cannot give assignments to Goodin MacBride that involve the Global Settlement; it simply means that before that work begins Jeff must approve the work.

This particular issue is a critical matter for our company. Jeff is involved in the strategy and business calls concerning this matter and is working on a daily basis with Jim Steffes, Rick Shapiro and Steve Kean to develop our position and advocate that position in the settlement discussions. We must ensure that our Sacramento efforts are fully coordinated with our strategy and business interests (as they develop through the settlement discussions). To avoid any confusion on the scope of Jeff's responsibility, I consider all legislation addressing the Edison MOU, any future MOUs with Sempra, and "Plan B," to be part of the Global Settlement.

Please contact me if you have any questions regarding any of the above. Again, we appreciate your hard work and commitment to our efforts.

Paul Kaufman

Message 227 of 1299

RE: EnronOnline Article

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11827.

thanks

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, July 17, 2001 5:43 PM To: Cameron Sellers Subject: EnronOnline Article

USA: INTERVIEW-EnronOnline sees volume growth, CEO says.

By Gelu Sulugiuc

07/17/2001

Reuters English News Service

(C) Reuters Limited 2001.

NEW YORK, July 17 (Reuters) - As most players in a shrinking pool of online energy trading platforms struggle to stay alive, leader EnronOnline has a simple philosophy: If it ain't broke, don't fix it.

The Internet arm of the energy marketing and trading giant Enron Corp. , EnronOnline predicts it will increase its volume and says it can coexist with the IntercontinentalExchange (ICE), the chief executive of Enron Networks told Reuters on Tuesday.

The innovative company is always evaluating its business environment, ready to remold itself according to market demands, but it is not pursuing mergers or acquisitions for now, according to Greg Piper.

"I would never say never, but we're not proactively looking at acquiring an ownership position in any other exchange platform," Piper said.

With an average of \$3.5 billion in trades every day, EnronOnline enjoys the highest volume of all energy electronic platforms. Most energy trading platforms launched last year have failed to generate profits.

Its closest rival is ICE, which routinely exceeds \$1 billion a day. But while ICE is a many-to-many exchange that matches bids and offers, on EnronOnline one can only trade with Enron.

"It's a tool that supercharges our market-making business," Piper said.

Enron is the No. 1 natural gas and electricity marketer in the United States. About 60 percent of its transactions are captured through the electronic platform.

"As long as we show good prices to our customers, our volumes will continue to grow," Piper said.

The company is looking to grow online volume in products such as metals, steel, weather, petrochemicals and plastics.

"We're trying to remain the leader in energy and help our other markets get more traction," Piper said. "There is a huge amount of growth that we haven't even tapped into yet."

Piper said he is not worried about ICE's recent success. The Atlanta-based exchange recently took over London's International Petroleum Exchange and plans to transfer its open-outcry business online, significantly boosting its trade volumes.

"Maybe six to 12 months from now, the story might be a lot different," Piper said. "But right now, there is room for the both of us."

He added that Enron traders do not shy away from trading on ICE. Many of the energy giants that founded ICE and provide most of its liquidity are also Enron's biggest clients.

"Enron will seek out a good deal on ICE when there is one," Piper said.

INNOVATION KEY TO SUCCESS

Recognized as one of the most innovative companies in the United States, Enron is constantly evaluating its position in the market and thinking of ways to become more successful.

"The right thing to do in November 1999 was to launch EnronOnline," Piper said. "But we look at it every day and if it made sense to do something different, you can bet that Enron would do it and we wouldn't be emotional about it."

One of the company's advantages is the fact that its software is a flexible application that allows EnronOnline to easily go in an out of different markets and regions. It constantly adds new products to its trading arsenal.

But Piper said that EnronOnline has no plans to turn itself in a many-to-many exchange.

"We want to focus in providing our markets to others," he said. "In the near term, we're not changing that."

The company is considering licensing the application itself, but would not elaborate on who wants it and how much Enron would ask for it.

EnronOnline has been so successful that even its competitors take their hats off.

"I've been hearing for two years now that a one-to-many exchange wouldn't work, but Enron just keeps proving people wrong," said Frank Getman, chief executive of online energy exchange HoustonStreet.

"If you're willing to make tight two-way markets and be the best price in the market, then people will continue to use your site."

Enron's stock rose 41 cents to \$49.53 a share on Tuesday in trading on the New York Stock Exchange.

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Message 228 of 1299

Re: Re[2]: HD Case: Proposed Plan

Sender	asama@yahoo.com
Recipients	['chin@haas.berkeley.edu', 'sama@haas.berkeley.edu', 'jeff.dasovich@enron.com', 'mark_guinney@watsonwyatt.com']...
File	dasovich-j/notes_inbox/5422.

All,

I was thinking along similar lines - HD should moderate growth in the coming year - only invest in opening 2-3 new stores in locations with the highest estimated ROI, or perhaps those that are?the most complete (since there is some construction in progress already) to reduce any incremental expense.? Focus instead on improving operating efficiencies which have been steadily deteriorating to increase investor confidence/stock price. Then expand via another public offering at a later date.?

Sarah had asked in class to look?into whether HD was going to be able to make payroll in the coming year. I tried to do this assuming no expansion (freeze all construction in progress). Using Mark's spreadsheet and backing out the new store acquisition costs, and reducing inventories that would have been part of the new stores, this still leaves a cash need from financing of \$25.8 mil in order to meet operational ! needs. So they?are going to need to tap into credit lines for at least

this amount regardless.

I will be in class tonight. If you have a conf call, could we do it at 7:30? If we do, please send across details before 5PM, or else you can just leave me a voice mail on my cell at 916 600 1245 and I'll retrieve it during break...

-Anil

? Mark Guinney <Mark_Guinney@watsonwyatt.com> wrote: Jeff, I assume you can coordinate a conference call from work. Call me at home: 415-388-2548.

Excellent points and I was thinking along similar lines. Questions I have:

How do you know that LT debt gives more advantageous terms? We have no yield curve info nor do we know their credit rating. At what point does their borrowing exceed their covenants? Is our strategy to not raise the required \$66million or to stop/slow PPE spending so that the \$66m is not needed?

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator _____ Subject: Re: HD Case: Proposed Plan Author:
Jeff.Dasovich@enron.com Date: 02/07/2001 ! 11:25 AM

Hi folks:

Since we have only one page, the write up for number 4 will have to be very brief. Before writing it, though, I wanted to offer a few bullets regarding what angle we might take, and let folks respond, comment, counter, etc. before writing it up. I'll clean and beef up once we've agreed to the approach we'd like to take to question #4. Finally, I can work from my office on this this evening, which means that I can use the conference call capability of my office phone to patch everyone in if we'd like to do a conference call. If that's what folks would like to do, I'd prefer to do the call at around 7 PM. Just let me know.

Best, Jeff

The question for #4 is:

Stock price is down 23%, significant debt has already been tapped to support massive growth and covenants on that debt restrict taking on a lot more debt.

What should HD do w.r.t. current operations and future growth strategy? !! n the near term focus less on growth and more on getting margins and EBIT growth back in line with results from previous years. (Management's Letter to Shareholders alludes to this, but it's difficult to determine whether management is just paying lip service to the need to capitalize on the growth spurt and grown earnings, or continue on the growth effort.)

With respect to funding future (more moderate growth), the company does have some room to increase long-term debt (e.g., current ratio for 1986 = 2.26). It seems that HD would get better terms and have increased flexibility by issuing additional debt rather than relying on lines of credit. As such, HD ought to look those sources of funding and fill in any "funding gaps" with funds from the line of credit.

Given the significant drop in stock price, HD is likely better off in the near term 1) moderating growth, 2) improving performance to generate cash internally, and 3) using! long-term debt issuance to provide the funds needed. Once performance and stock price improves, then HD should consider a stock issuance.

How can company improve operating performance? Reduce selling, store operating expenses and pre-opening expenses Improve receivables turnover Improve inventory turnover Improve per store/sales Consider closing poor-performing stores All of which will improve margins

Should company change its strategy? If so how? Shift from meteoric growth to moderate, targeted growth, and focus on generating positive cash flow from operations Focus on improving performance at existing stores; specifically focus on controlling costs and asset turnover and productivity Consider another debt issuance rather than rely extensively on credit line in order to decrease cost of funds and increase flexibilit

Do You Yahoo!? Yahoo! Auctions - Buy the things you want at great prices.

Message 229 of 1299

Re: DRAFT talking points for California PUC Hearings on the

Sender	jeff.dasovich@enron.com
Recipients	['james.steffes@enron.com']
File	dasovich-j/sent/2763.

Thanks. Good points. Will make sure that we have "bad guys" issued covered. You have a great holiday with your family and a safe and happy New Year.

Best, Jeff

James D Steffes 12/27/2000 09:29 AM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Re: DRAFT talking points for California PUC Hearings on the 27th/28th
Jeff --

Your notes look great. Best of luck today with the Hearings. Only items not included would be (1) information from the PX / ISO and (2) governance at the PX / ISO. I don't think these will be appropriate at these hearings.

Finally, I think that if the Hearings begin to devolve into a "who are the bad guys", what are you proposing Mike Day respond? Do we have any messages for this situation (however unlikely)?

Jim

----- Forwarded by James D Steffes/NA/Enron on 12/27/2000 09:26 AM -----

Jeff Dasovich Sent by: Jeff Dasovich 12/26/2000 07:05 PM

To: Susan J Mara/NA/Enron@ENRON cc: Alan Comnes/PDX/ECT@ECT, Dennis Benevides/HOU/EES@EES, Eric Letke/DUB/EES@EES, George McClellan/HOU/ECT@ECT, Harry Kingerski/NA/Enron@ENRON, James D Steffes/NA/Enron@ENRON, Jennifer Rudolph/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Kevin McGowan/Corp/Enron@ENRON, Lisa Yoho/NA/Enron@ENRON, Lysa Akin/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, MDay@GMSSR.com, Mike D Smith/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@ENRON, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Roger Yang/SFO/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Scott Stoness/HOU/EES@EES, skean@enron.com, Stuart Staley/LON/ECT@ECT, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES Subject: Re: DRAFT talking points for California PUC Hearings on the 27th/28th

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To: Jeff Dasovich/NA/Enron@Enron cc: Alan Comnes/PDX/ECT@ECT, Dennis Benevides/HOU/EES@EES, Eric Letke/DUB/EES@EES, George McClellan/HOU/ECT@ECT, Harry Kingerski/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Jennifer Rudolph/HOU/EES@EES, Joe Hartsoe/Corp/Enron@Enron, Kevin McGowan/Corp/Enron@Enron, Lisa Yoho/NA/Enron@Enron, Lysa Akin/PDX/ECT@ECT, Mary Hain/HOU/ECT@ECT, MDay@GMSSR.com, Mike D Smith/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Roger Yang/SFO/EES@EES, Sandra McCubbin/NA/Enron@Enron, Sarah Novosel/Corp/Enron@Enron, Scott Stoness/HOU/EES@EES, skean@enron.com, Stuart Staley/LON/ECT@ECT, Vicki Sharp/HOU/EES@EES, Wanda Curry/HOU/EES@EES Subject: Re: DRAFT talking

points for California PUC Hearings on the 27th/28th

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Jeff Dasovich Sent by: Jeff Dasovich 12/26/2000 01:15 PM

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Message 230 of 1299

Government Affairs-The Americas Dept. Meeting - December 8, 2000

Sender	ginger.dernehl@enron.com
Recipients	['alberto.levy@enron.com', 'assad@elektro.com.br', 'alan.comnes@enron.com']
File	dasovich-j/notes_inbox/1960.

If you have not responded to me regarding your attendance at the above referenced meeting, please do so by 12:00pm (noon) tomorrow.

The meeting on December 8, is scheduled to begin at 8:30am and conclude by no later than 4:00pm (maybe even earlier). Hope this helps in flight schedules..

gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 11/27/2000 03:34 PM -----

Ginger Dernehl 10/30/2000 12:05 PM

To: assad@elektro.com.br, Alberto Levy/SA/Enron@Enron, Aleck Dadson/TOR/ECT@ECT, Allison Navin/Corp/Enron@ENRON, Amy Fabian/Corp/Enron@ENRON, Barbara A Hueter/NA/Enron@Enron, Bernadette Hawkins/Corp/Enron@ENRON, Bill Moore/NA/Enron@Enron, cristinah@elektro.com.br, Carlos Gustavo Azevedo/SA/Enron@Enron, Carmen Perez/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Carolyn Cooney/Corp/Enron@ENRON, Charles Yeung/HOU/ECT@ECT, Chauncey Hood/NA/Enron@ENRON, Chris Long/Corp/Enron@ENRON, Christi L Nicolay/HOU/ECT@ECT, Cynthia Sandherr/Corp/Enron@ENRON, Damon Harvey/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Dan Staines/HOU/ECT@ECT, Daniel Allegretti/NA/Enron@Enron, Donald Lassere/NA/Enron@Enron, Donna Fulton/Corp/Enron@ENRON, Eidy

Catala/TRANSREDES@TRANSREDES, Elizabeth Linnell/NA/Enron@Enron, Frank Rishe/HOU/EES@EES, Geriann Warner/NA/Enron@Enron, Ginger Dernehl/NA/Enron@Enron, Gisele S Braz/SA/Enron@Enron, Gloria Ogenyi/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Guillermo Canovas/SA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Howard Fromer/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Janine Migden/DUB/EES@EES, Javier Pantoja/TRANSREDES@TRANSREDES, Jean R Dressler/NA/Enron@Enron, Jeff Brown/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Jeffrey Keeler/Corp/Enron@ENRON, Joao Paixao/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Joe Allen/NA/Enron@Enron, Joe Connor/NA/Enron@Enron, Joe Hartsoe/Corp/Enron@ENRON, Joe Hillings/Corp/Enron@ENRON, Jose Bestard/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Joseph Alamo/NA/Enron@Enron, Kathleen Sullivan/NA/Enron@ENRON, Kerry Stroup/DUB/EES@EES, Kikumi Kishigami/NA/Enron@Enron, Kirsten Bellas/NA/Enron@Enron, Lara Leibman/NA/Enron@Enron, Laurie Knight/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, Lindsay Meade/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Lisa Yoho/HOU/EES@EES, Lora Sullivan/Corp/Enron@ENRON, Luiz Maurer/SA/Enron@Enron, Lysa Akin/PDX/ECT@ECT, Marchris Robinson/NA/Enron@Enron, Marcia A Linton/NA/Enron@Enron, Marcie Milner/Corp/Enron@ENRON, Mary Hain/HOU/ECT@ECT, Maureen McVicker/NA/Enron@Enron, Mona L Petrochko/NA/Enron@Enron, Nancy Hetrick/NA/Enron@Enron, Patrick Keene/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Ray Alvarez/TRANSREDES@TRANSREDES, Ricardo Charvel/NA/Enron@Enron, Richard Ingersoll/HOU/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Robert Frank/NA/Enron@Enron, Robert Hemstock/CAL/ECT@ECT, Robert Neustaedter/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robin Kittel/NA/Enron@Enron, Ron McNamara/NA/Enron@Enron, Roy Boston/HOU/EES@EES, Rubena Buerger/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Sandra McCubbin/NA/Enron@Enron, Sarah Novosel/Corp/Enron@ENRON, Scott Bolton/Enron Communications@Enron Communications, Sergio Assad/SA/Enron@Enron, Stephen D Burns/Corp/Enron@ENRON, Steve Montovano/NA/Enron@Enron, Steve Walton/HOU/ECT@ECT, Steven J Kean/NA/Enron@Enron, Sue Nord/NA/Enron@Enron, Susan J Mara/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Terri Miller/HOU/EES@EES, Thane Twiggs/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Tom Briggs/NA/Enron@Enron, Tom Chapman/HOU/ECT@ECT, Tom Delaney/Corp/Enron@ENRON, Tom Hoatson/HOU/EES@EES, Tracy Cooper/Enron Communications@Enron Communications, Valeria Lima/SA/Enron@Enron, Vinio Floris/Corp/Enron@Enron, Xi Xi/Enron Communications@Enron Communications cc: Miyung Buster/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Elizabeth Linnell/NA/Enron@Enron, Lynnette Barnes/NA/Enron@Enron, Stephanie McMurray/NA/Enron@Enron, Linda L Lawrence/NA/Enron@Enron, Earlene O'Connell/NA/Enron@Enron, Margo Reyna/NA/Enron@Enron, Eric Benson/ET&S/Enron@ENRON, John Neslage/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Gia Maisashvili/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, James D Steffes/NA/Enron@Enron, Marcia A Linton/NA/Enron@Enron, Margaret Carson/Corp/Enron@ENRON, Joan Stransky/Corp/Enron@ENRON, Rob Bradley/Corp/Enron@ENRON, Jeffrey Keeler/Corp/Enron@ENRON, Stacey Bolton/NA/Enron@Enron, Mary Schoen/NA/Enron@Enron Subject: Government Affairs-The Americas Dept. Meeting - December 8, 2000

The next Government Affairs-The Americas meeting will be held in Houston, TX at the DoubleTree Hotel on Friday, December 8, 2000. A block of rooms has been reserved under "Enron Corp - Government Affairs" and each individual is required to make their own reservation. The group dinner will be held on Thursday, December 7 at Ruggles Restaurant, Enron Field at 7:00pm. Please let me know of your plans to attend the dinner and meeting by Wednesday, November 15.

Hotel information below:

DoubleTree Hotel 400 Dallas Street Houston, TX 77002 713-759-0202 Phone # 713-654-0727 Fax#

Additional information regarding the meeting will follow, but please remember to make your reservation and call me if you have any questions.

gngr 713-853-7751

Message 231 of 1299

IntelliBytes - April Issue

Sender	sue.nord@enron.com
Recipients	['barbara.hueter@enron.com', 'donald_lassere@enron.net', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11829.

Sue Nord, Sr. Director Government Affairs 713 345-4196

----- Forwarded by Sue Nord/NA/Enron on 04/27/2001 02:53 PM -----

Rita Hartfield@ENRON COMMUNICATIONS 04/24/2001 12:53 PM

To: Anthony Gilmore/Enron Communications@Enron Communications, Anthony Mends/Enron Communications@Enron Communications, Bob Felix/Enron Communications@Enron Communications, Bob Hennig/Enron Communications@Enron Communications, Bobby Robertson/Enron Communications@Enron Communications, Brad Nebergall/Enron Communications@Enron Communications, Brad Richter/Enron Communications@Enron Communications, Brandon Luna/Enron Communications@Enron Communications, Brian Spector/Enron Communications@Enron Communications, Bryan Burnett/Enron Communications@Enron Communications, Carin Andre/Enron Communications@Enron Communications, Dale Surbey/Enron Communications@Enron Communications, David Cox/Enron Communications@Enron Communications, Diane Hetzel/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Ed Smida/Enron Communications@Enron Communications, Edward Hlopak Jr/Enron Communications@Enron Communications, Elizabeth Linnell/NA/Enron@ENRON, Ellen Fowler/Enron Communications@Enron Communications, Everett Plante/Enron Communications@Enron Communications, Frank Bay/Enron Communications@Enron Communications, Frank McGuinness/Enron Communications@Enron Communications, Harry Kingerski/NA/Enron@ENRON, Jeff Donahue/Enron Communications@Enron Communications, Jesse Morris/Enron Communications@Enron Communications, Jim Crowder/Enron Communications@Enron Communications, Jim Fallon/Enron Communications@Enron Communications, Jim Lowe/Enron Communications@Enron Communications, John Echols/Enron Communications@Enron Communications, John Neslage/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jon Thomsen/Enron Communications@Enron Communications, Kellie Metcalf/Enron Communications@Enron Communications, Kelly Kimberly/Enron Communications@Enron Communications, Ken Rice/Enron Communications@Enron Communications, Kevin Garland/Enron Communications@Enron Communications, Kevin Hannon/Enron Communications@Enron Communications, Kim Godfrey/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Lou Casari/Enron Communications@Enron Communications, Margo Reyna/NA/Enron@ENRON, Mark Dypiangco/Enron Communications@Enron Communications, Mark Gandy/Enron Communications@Enron Communications, Mark Russ/Enron Communications@Enron Communications, Mark Solana/Enron Communications@Enron Communications, Mark Wadlington/Enron Communications@Enron Communications, Matt Harris/Enron Communications@Enron Communications, Merat Bagha/Enron Communications@Enron Communications, Michele Nezi Marvin/Enron Communications@Enron Communications, Mike Golden/Enron Communications@Enron Communications, Norman Levine/Enron Communications@Enron Communications, Patrick Hickey/Enron Communications@Enron Communications, Paul Racicot/Enron Communications@Enron Communications, Phil Markwart/Enron Communications@Enron Communications, Raj Thapar/Enron Communications@Enron Communications, Randall Hicks/Enron Communications@Enron Communications, Richard DiMichele/Enron Communications@Enron Communications, Richard Shapiro/NA/Enron@ENRON, Rob Bradley/Corp/Enron@Enron, Rob Callihan/Enron Communications@Enron Communications, Rockey Storie/Enron Communications@Enron Communications, Russell Woody/Enron Communications@Enron Communications, Scott Bolton/Enron Communications@Enron Communications, Scott Manuel/Enron Communications@Enron Communications, Scott Yeager/Enron Communications@Enron Communications, Sheila Kahanek/Enron Communications@Enron Communications, Shelly Mansfield/Enron Communications@Enron Communications, Sherron Watkins/Enron Communications@Enron Communications, Steve Iyer/Enron Communications@Enron Communications, Steve Pearlman/Enron Communications@Enron Communications,

Steven Sheldon/Enron Communications@Enron Communications, Stewart Seeligson/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Ted Seitz/Enron Communications@Enron Communications, Terrie James/Enron Communications@Enron Communications, Tom Wei/Enron Communications@Enron Communications cc: Subject: IntelliBytes - April Issue

Each issue of IntelliBytes is a concise summary of a broadband industry topic. April's issue is titled "Broadband 2001 according to JP Morgan and McKinsey". It contains information on operating and capital expenditures involved in deploying xDSL and cable modems, the changing mix of Internet traffic, and projection of U.S. CDN revenues to the consumer and business market.

For those on the EBS LAN, you may view historic issues of IntelliBytes by choosing "Browse the Spotlight" from wEBSource. The Spotlight symbol will appear, from the circle titled "Business Development" choose "Market Research & Intelligence", then choose "IntelliBytes". A listing of the available issues will appear. To view February's issue on Interactive TV and/or March's issue on Cable vs DBS in their proper format, select "Fetch" under the Functions tab.

Historic issues of IntelliBytes will soon be available via the Market Intelligence community page of wEBSource.

For those on the Corp LAN, I have attached the February and March issues of IntelliBytes.

Rita Hartfield Phone: 713-853-5854 Cell: 713-304-5428 Fax: 713-646-8861 rita_hartfield@enron.net

Message 232 of 1299

nan	
Sender	richard.costigan@asm.ca.gov
Recipients	[]
File	dasovich-j/all_documents/12947.

Daily Agenda Wednesday, May 23, 2001

Today's Events... * 10 a.m., SACRAMENTO Sen. Jack O'Connell announces candidacy for superintendent of public instruction, Department of Education, 721 Capitol Mall. Contact: Gale Kaufman, 916-443-7817. * 10:30 a.m., SACRAMENTO Assembly Republicans hold news conference to propose alternative to Gov. Gray Davis' plan to buy Southern California Edison's transmission lines, Capitol, room 126. Contact: James Fisfis, 916-319-2005. * 1 p.m., SACRAMENTO Assemblyman Anthony Pescetti meets with seniors from Tenth District for A.A.R.P. senior rally, Capitol, room 127. Contact: Monica Azevedo, 916-362-4161

In the news... * SJ Mercury News, Nissenbaum: Californians want nuclear power. <http://www0.mercurycenter.com/premium/local/docs/powerpoll23.htm> * SacBee, Walters: Budget bust looms; Burton considers higher reserve. http://www.capitolalert.com/news/capalert09_20010523.html * LA Times, Tamaki: Senate slices Davis budget. <http://www.latimes.com/news/state/20010523/t000043211.html>

In committee... * VARIOUS BILLS. Appropriations. 9:30am, room 4202. (Squawk Box 90.3, Assembly TV, CH. 7) * VARIOUS BILLS. Education. 1:30pm or upon adjournment of Appropriations, room 4202. (Squawk Box 90.3, Assembly TV, CH. 7) * VARIOUS BILLS. Local Government. 1:30pm, room 126. (Squawk Box 91.5)

Today on the floor... * Assembly check-in session. * Senate check-in session.

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

Message 233 of 1299

FW: Investor Conference Call 8/2/01

Sender	susan.mara@enron.com
Recipients	['michael.tribolet@enron.com', 'james.steffes@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/29169.

Verry interesting.....

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/26/2001 04:29 PM -----

"Manuel, Erica" <Erica.Manuel@edelman.com> 07/26/2001 04:16 PM

To: "Allen, Stevan" <stevan.allen@edelman.com>, AReM <arem@electric.com>, "Douglas Oglesby (E-mail) (E-mail)" <doado@chevron.com>, "Fairchild, Tracy" <tracy.fairchild@edelman.com>, Frank <rott1@aol.com>, "Joseph Alamo (E-mail) (E-mail)" <jalamo@enron.com>, "Manuel, Erica" <Erica.Manuel@edelman.com>, Megan Beiser <megan.beiser@edelman.com>, Norm Plotkin <nplotkin@rcsis.com>, "Warner, Jami" <jami.warner@edelman.com> cc: Subject: FW: Investor Conference Call 8/2/01

This is something we'll all probably want to listen in on. FYI.

-----Original Message-----

From: Philip Angelides, Calif State Treasurer [mailto:philip_angelides@treasurer.ca.gov] Sent: Thursday, July 26, 2001 4:14 PM To: Subject: Investor Conference Call 8/2/01

As part of the continuing efforts of the California State Treasurer's Office to provide information to investors regarding the Department of Water Resources ("DWR") Power Purchase Program, we will be hosting an investor conference call in New York. Our East Coast based investors will be able to attend in person at 270 Park Avenue, between 47th and 48th streets, 49th Floor in New York on Thursday, August 2 at 2:00 P.M. EST.

This meeting presents an opportunity to update investors on the DWR Power Purchase Program and respond to your questions. Tim Gage, Director of the Department of Finance; and Tom Hannigan, Director of the Department of Water Resources will join me in the presentation which will be followed by a question and answer session.

If you plan to attend in person, please RSVP to Janis Williams via e-mail at jwilliams@treasurer.ca.gov no later than 11:00 A.M. EST, Tuesday, July 31. For those investors unable to attend, the call-in information is as follows:

Conference Telephone Number: (800) 946-0741 Conference Call Title: California State Treasurer Investor Call

Replay Information Replay Telephone Number: (888) 203-1112 Replay Access Code: 451552 (Replay is available after 5:00 P.M. (EST) August 2, 2001 through midnight (PDT) August 12, 2001)

Thank you for your continued interest in the State of California and the DWR Power Supply Revenue Bond Program.

Philip Angelides State Treasurer

Message 234 of 1299

Here's my changes-- DASOVICH ADDITION NEEDED

Sender	susan.mara@enron.com
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File	dasovich-j/all_documents/12976.

Jim,

Here are my proposed changes to what you have said -- in color.

Here is the language keeping DA alive -- the decision is attached (it's short)

D01-03-009, page 6 , March 7, 2001 "Finally, due to pending legislation which would alter Section 80110, we shall stay action on implementation of the suspension of direct access under Water Code Section 80110 until further order."

Jeff, Please fill in the discussion of the MOU below (bullet 5).

The term "Surcharge" is only applicable until the end of the AB1890 rate freeze (which will end no later than March.31.02 and may end earlier if (a) federal court finds in PG&E/SCE favor or (b) California legislature mandates an earlier end-date or (c) the CPUC decides to actually complete its proceeding to value the retained assets and calculate an end to the rate freeze, which would take months. Surcharge is a "term of art" to get around the problems of the AB1890 rate freeze. At the end of the AB1890 rate freeze, it is my understanding that the CPUC will modify fully the rate structure and level to ensure full cost recovery on a going forward basis (therefore Utility Retained Generation, QF expense, CDWR current expenses (both energy purchase and financing costs will be included). Some members of the CPUC signaled in the May 5 decision (noted below) that they intended to investigate "bottoms up" rate making -- this is preferred by AReM and many others. Theoretically, it would clearly separate generation-procurement-retail sales functions from other charges, such as T and D. DA customers would only be charged for T & D etc. -- not the other. If done correctly, even charges included now in T & D, such as some ISO-related functions, would be moved out to make the T&D charges pure wires charges. This approach would be preferred. Any "bottoms up" proceeding would take months and unlikely to be concluded before the end of this year. Other outstanding costs will include (1) Utility Undercollection from May.00 until when no additional CA-ISO costs are applied or until rates cover costs and (2) CDWR costs beginning Jan.17.01 until the end of AB1890 rate freeze or the end of DWR's purchasing activities. Understanding how all these costs will be recovered and by whom will most likely (80% probability) be decided by the Legislature with some decision-making by the CPUC. If the Legislature does not take this up, it will be decided by the bankruptcy court or federal court. Utility Undercollection Bypass - 25% So far, the Legislature has done nothing to address the utility undercollection (except for San Diego, which has a balancing account but no way to collect it yet). SCE's MOU does address this by (INSERT BY JEFF). The MOU has received bad reviews by the Legislature but Enron has been supporting it with some changes and a bi-partisan group of Legislators has been analyzing it and intends to propose amendments. Probability that utility undercollection is dealt with by the Legislature -- 50% Various bills in the Legislature have been introduced to delete the language in AB1X 1 that gave the CPUC the right to terminate DA. A diverse group of business interests called the Direct Access Coalition has been pushing for this and for a bill that takes care of DWR's potential stranded cost problem but provides flexibility for direct access. Our current assessment is as follows: Bypass allowed for payment of DWR costs Jan.17.01 thru rate freeze end - 80% probability for people who never were on Utility Service, 50% for people who used Utility Service post Jan.17.01 but build self-gen or incorporate energy efficiency/load management; also, 50% chance for 60-90 day amnesty period for people to select direct access and 50% chance for free direct access (without surcharge or exit fee) for those who switch while DWR has a "net short" position. CDWR Net Unavoidable Bypass - 10% for people who used Utility Service post Jan.17.01, 80% for others.

LEGISLATION IMPACTING THIS DECISION

There are three key direct access bills being considered (the Bowen bill - SB2x27, the Kelley bill - AB2x42, and the Battin bill - SB2x??).

The Bowen bill would remove the DA suspension authority granted in AB1x1 and replace it with the following (1) if a customer has not bought from an electric utility on or after Jan.17.01 there are no charges [except there may be an entrance fee to use the electric utility going forward] and (2) if a customer wants to switch from an electric utility to an ESP they must pay "to the department any uncollected amounts equivalent to the department's net unavoidable cost of power procurement, including any financing costs, attributable to that customer" to ensure the satisfaction of any power purchase obligation or bond obligation to serve "that customer". The recovery period shall be coincident with the terms of bonds issued to finance the purchases. The CPUC has 90 days from the effective date to notify customers of their obligations.

The Kelley bill would remove the DA suspension authority granted in AB1x1 and replace it with the following (1) if a customer has not bought from an electric utility on or after Jan.17.01 there are no charges, (2) every customer is allowed to buy from an ESP a % of their load equal to the amount served by Utility Retained Generation (not CDWR purchases)

with no charges, (3) after the effective date, any customer that buys from the electric utility and wants to switch must pay "to ensure satisfaction of any power purchase obligation or bond obligation incurred by the department" with the following constraints - (a) for res and small commercial customers, if DA load is less than load growth or (b) to self gen customers, if the customer has given 180 days prior notification or (c) if the customer has given DWR 12 months' advance written notice (then only a fee equal to 12 months unavoidable costs). The CPUC has 30 days from the effective date to notify customers of their obligations.

The Battin bill would ... still reviewing

Keep in mind that all of these bills are in flux. As described above, the DA Coalition is pushing hard for a "good" direct access bill that provides some flexibility and has its own language that it is floating. Even with exit fees, the Coalition's proposed language would require DWR to base the fee on a calculation of its actual costs from losing the load. Enron is also pushing to make direct access part of any compromise settlement and the Republicans have taken the same approach.

CPUC DECISIONS IMPACTING THIS

March 7 Decision Implementing ABX 1 -- decided not begin the process to terminate direct access

May 5 Order - DA doesn't pay DWR expenses going forward and the 3 cent surcharge does not apply to DA customers. Good for bypass of these costs. We expect the utilities to file Petitions to Modify the decision to argue that they cannot implement it -- they will likely seek to have the charge apply to DA Customers and then put the same amount in the credit. Given the problems we all have with the negative credit and the utilities' notion of a zero bill, there will be much opposition to the utilities' proposal. The utilities chance of success on this is less than 50%.

Proposed action -- Alliance for Retail Energy Markets (AReM) will begin pushing to stop charging the current 1 cent surcharge to DA customers (to be consistent with the May 5 decision). Chance of success is 60%.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax: (415) 782-7854

Message 235 of 1299

IEP Press Call Friday, 1pm PST	
Sender	jeff.dasovich@enron.com
Recipients	['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/all_documents/10358.

----- Forwarded by Jeff Dasovich/NA/Enron on 03/23/2001 10:38 AM -----

=09Jean Munoz <jmunoz@mcnallytemple.com> =0903/22/2001 06:46 PM =09=09=20 =09=09 To: Katie Kaplan <kaplan@iepa.com>, "Andy Brown (E-mail)"=20 <ABB@eslawfirm.com>, "B Brown Andy (E-mail)" <andybrwn@earthlink.net>,=20 "Baker Carolyn (E-mail)" <cabaker@duke-energy.com>, "Bob Escalante=20 (E-mail)" <rescalante@riobravo-gm.com>, "Bob Weisenmiller (E-mail)"=20 <rbw@mrwassoc.com>, "Curtis Kebler (E-mail)"=20 <curtis_l_kebler@reliantenergy.com>, "Douglas Kerner (E-mail)"=20 <DKK@eslawfirm.com>, "Greg Blue (E-mail)" <gtbl@dynegy.com>, "Jan=20 Smutny-Jones (E-mail)" <smutny@iepa.com>, "Jeff Dasovich (E-mail)"=20 <Jeff.Dasovich@enron.com>, "Joe Ronan (E-mail)" <joer@calpine.com>, "Joh= n=20 Larrea (E-mail)" <john.g.larrea@williams.com>, "John Stout (E-mail)"=20 <John_H_Stout@reliantenergy.com>, "Julee Malinowski-Ball (E-mail)"=20 <jmball@ns.net>, "Kassandra Gough (E-mail)" <kgough@calpine.com>, "kent= =20 Palmerton (E-mail)" <kent.palmerton@williams.com>, "Kristin Vellandi=20 (E-mail)" <kvellandi@pstrategies.com>, "Lynn Lednický (E-mail)"=20 <lale@dynegy.com>, "Marty Wilson (E-mail)" <mwilson@pstrategies.com>,=20 "McNally Ray (E-mail)" <rmcnally@mcnallytemple.com>, "Nam Nguyen'=20 (E-mail)" <nam.nguyen@powersrc.com>, "Norton Kelli (E-mail)"=20 <norton@mcnallytemple.com>, "Paula Hall-Collins (E-mail)"=20 <paula.hall-collins@williams.com>, "Pigott Jack (E-mail)"=20 <jackp@calpine.com>, "Richard Hyde (E-mail)" <rw Hyde@duke-energy.com>,=20 "Rob

Lamkin (E-mail)" <rlamkin@seiworldwide.com>, "Roger Pelote=20 (E-mail)" <roger.pelote@williams.com>, "Stephanie-Newell (E-mail)"=20 <stephanie-newell@reliantenergy.com>, "Sue Mara (E-mail)"=20 <smara@enron.com>, "Theo Pahos (E-mail)" <tpahos@ppallc.com>, "Tom Ross= 20 (E-mail)" <tross@mcnallytemple.com>, "Carol H Hudson (E-mail)"=20 <Chudson@iepa.com>, steven kelly <steven@iepa.com>, "Anne Kelly (E-mail)"= 20 <kelly@hnks.com>, "Chuck Cole (E-mail)" <ccole@advocation-inc.com>=,20 "Delany Hunter (E-mail)" <dhunter@smithandkempton.com>, "DJ Smith=20 (E-mail)" <djsmith@smithandkempton.com>, "Hedy Govenar (E-mail)"=20 <hgovenar@acom2.com>, <mmoretti@mccabeandcompany.net>, "Maureen OHaren=20 (E-mail)" <Oharen@hmot.com>, "Mike Monagan (E-mail)" <mrmonagan@aol.com>= ,=20 "Phil Isenberg (E-mail)" <isenberg@hmot.com>, "Robert Ross (E-mail)"=20 <robbiz@cwo.com>, "Ron Tom (E-mail)" <Rtom@govadv.com>, "Scott Govenar= 20 (E-mail)" <sgovenar@govadv.com>, "Susan McCabe (E-mail)"=20 <sfmccabe@mindspring.com>, <rtemple@mcnallytemple.com>=,20 <megan.beiser@edelman.com>, <tracy.fairchild@edelman.com>=,20 <deborah.fiorito@dynegy.com>, <tcwillia@duke-energy.com>, <mstultz@epsa.org= ,=20 <lchurch@epsa.org>, <sadlersa@earthlink.net> =09=09 cc:=20 =09=09 Subject: IEP Press Call Friday, 1pm PST

IEP will conduct a press call Friday March 23 @ 1pm. Feel free to listen i= n!

Thanks, Jean

--=20 Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

Contact: Jean=20 Munoz = =20 FOR IMMEDIATE RELEASE =20 916-447-8186 = =20 March 22, 2001

WEEKLY POWER UPDATE

SACRAMENTO =01. Jan Smutny-Jones, Executive Director of the Independent Ene= rgy=20 Producers Association, will brief members of the media on California?s=20 rapidly changing electric market during a teleconference Friday, March 23 a= t=20 1:00 p.m.

What: Press Availability Teleconference =20 When: Friday, March 23, 2001 1:00 p.m. PST

Call In #: 1-800-374-2393 Conference I.D: Independent Energy Producers (IEP)

Who: Jan Smutny-Jones, Executive Director of the Independent Energy= =20 Producers Association

#

Message 236 of 1299

State Department FACT SHEET - CHEMICAL - BIOLOGICAL AGENTS

Sender	teunisse@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'mba02@haas.berkeley.edu', 'undergrd@haas.berkeley.edu']
File	dasovich-j/inbox/661.

Dear Haas Community,

Please find below a State Department Fact Sheet on Chemical and Biological agents. In light of yesterday's event at Haas I thought it might be useful for you to have this information. Please note the intended audience is Americans living overseas.

Sebastian

U.S. Department of State Washington, D.C.

FACT SHEET CHEMICAL - BIOLOGICAL AGENTS

The recent terrorist threats and confirmed cases of exposure to anthrax have caused an increase in anxiety over the possibility of chemical and biological attacks (CBA). Currently, the method of delivery of anthrax has been by letter or package. While the risk of such attacks is limited, it cannot be excluded. As always, the Department will promptly share with American citizens overseas any credible information about threats to their safety. Americans should stay informed and be prepared for any eventuality.

In 1999, the Department of Defense announced its intention to commence the Family and Force Protection Initiative (FFPI) in order to provide enhanced protection to the dependents of U.S. military service members and to civilian Department of Defense (DOD) employees and their families. This program was first implemented for U.S. Forces Korea.

The Department of State has had a chemical and biological countermeasure program since 1998, when it began to deploy chemical antidotes and antibiotics to selected posts abroad. While we have no information to indicate there is an imminent threat from use of anthrax or other biological agents as a weapon against our overseas missions at this time, the Department is expanding its countermeasure program. As a precaution, the Department requested our missions overseas to stock a three-day supply of the antibiotic ciprofloxacin for all individuals who work in or frequent the missions.

This small supply of ciprofloxacin is being pre-positioned to ensure rapid access to this protective antibiotic for our employees in case of an Anthrax exposure in an overseas USG facility and would allow the mission sufficient time to provide access to care for all individuals exposed while securing additional supplies of antibiotics. Once an exposure is suspected, all individuals who had been exposed in our workplace would be provided antibiotics pending a full investigation of the exposure. This would include any private American citizen present in the facility at the time of exposure.

Again, if the Department becomes aware of any specific and credible threat to the safety and security of American citizens abroad, that information will be provided to them promptly.

Exposures to CBA that occur outside USG facilities would require the involvement of local public health authorities who would provide information and if necessary, protective antibiotics to the general public. Ciprofloxacin and other antibiotics effective against Anthrax, including doxycycline and amoxicillin are available with a prescription in most pharmacies throughout the world.

The Centers for Disease Control and Prevention (CDC) is the lead government agency on infectious diseases, including chemical/biological agents (CBA). For detailed information on CBA, including Anthrax, inquirers are referred to the CDC Internet home page at <http://www.cdc.gov>. The CDC's international travelers hotline telephone number is 1-877-FYI-TRIP (1-877-394-8747); fax: 1-888-CDC-FAXX (1-888-232-3299).

As always, American citizens should review their own personal security situations and take those precautions they deem appropriate to ensure their well-being.

Some general information on chemical-biological agents (CBA) follows:

A. Biological agents can be dispersed by an aerosol spray that must be inhaled. However, these agents can also be used to contaminate food, water and other products. Attention to basic food hygiene when traveling abroad is very important.

A. Some chemical agents may be volatile--evaporating rapidly to form clouds of agent. Others may be persistent. These agents may act directly on the skin, lungs, eyes, respiratory tract or be absorbed through your skin and lungs causing injury. Choking and nerve agents damage the soft tissue in these organs.

A. When properly used, appropriate masks are effective protection to prevent the inhalation of either biological or chemical agents; however this assumes an adequate warning. Gas masks alone do not protect against agents that act through skin absorption. Those who wish to acquire protective equipment for personal use should contact commercial vendors.

A. There is an incubation period after exposure to biological agents. It is essential that you seek appropriate care for illnesses acquired while traveling abroad to assure prompt diagnosis and treatment.

A. One of the biological warfare agents is the spore-forming bacterium that causes Anthrax, an acute infectious disease. It should be noted, however, that effective dispersal of the Anthrax bacteria is difficult.

* Anthrax is treatable if that treatment is initiated promptly after exposure. The post-exposure treatment consists of certain antibiotics administered in combination with the vaccine.

* An anthrax vaccine that confers protective immunity does exist, but is not readily available to private parties. Efficacy and safety of use of this vaccine for persons under 18 or over 65 and pregnant women have not been determined. * * The anthrax vaccine is produced exclusively by Biopart under contract to the Department of Defense. Virtually all vaccine produced in the United States is under Defense Department contract primarily for military use and a small number of other official government uses.

* For additional information, please consult your health care provider or local health authority.

October 2001

***** See http://travel.state.gov/travel_warnings.html for State Department Travel Warnings ***** To change your subscription, go to http://www.state.gov/www/listservs_cms.html <>

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POSITIONS FOR PAID SUMMER INSTRUCTORS WITH YEAH

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Young Entrepreneurs at Haas (YEAH) Young Entrepreneurs (YE) Program

Young Entrepreneurs (YE) is a two-year academic preparation program for Bay= =20 Area ninth and tenth grade students, based at the Haas campus. ? YE introduc= es=20 students to business and entrepreneurship, the stock market and global=20 economics, and strengthens students=01, college planning and study skills.

Job Openings: One (1) YE I Summer BUSINESS INSTRUCTOR One (1) YE II Summer STOCK MARKET INSTRUCTOR
Both positions are paid

BUSINESS INSTRUCTOR July 23-August 6, 2001 (Monday-Friday, 8:00 am -5:00 pm=) STOCK MARKET INSTRUCTOR? July 30-August 10, 2001 (Monday-Friday, 8:00 am=20 -5:00 pm)

Position requirements: ????????20-30 hours of planning prior to summer session;=20 ????????10 instructional days according to dates outlined; ????????90-minute =01&closeout=018 evaluation meeting after summer intensiv= e;

Job Description YE SUMMER INSTRUCTORS- ????????collaborate with YEAH staff to formulate summer curriculum 10-day= =20 unit plans; ????????teach a ten-day summer workshop to 40 13- to 15-year-olds (supporte= d=20 by YEAH staff); ????????evaluate student achievement during and after the workshop; -???????= ? BUSINESS INSTRUCTOR teaches business plan writing, PowerPoint presentation= =20 creation, presentation skills, and academic planning based on NFTE youth=20 entrepreneurship curriculum; =01)???????STOCK MARKET INSTRUCTOR teaches on = stock=20 market basics, mock on-line stock trading, global economics, and academic= =20 planning based on NCEE economic education curriculum;

Instructors must have: ????????Previous exposure to business plan development for small businesses= =20 (BUSINESS INSTRUCTOR) or stock market/global economics topics (STOCK MARKET= =20 INSTRUCTOR); ????????General knowledge about business practices, entrepreneurship, and = =20 economics; ????????Desire to work with diverse, dynamic, energetic group of high schoo= l=20 students;

Interested applicants should submit resumes to YEAH office, Faculty Wing=20 F410.?? Indicate position for which you are applying.?? Please direct any= 20 questions to Ajuah Helton, YE Program Manager, by phone (510) 643-0923, or= 20 email helton@haas.berkeley.edu. ?

Ajuah Helton Young Entrepreneurs at Haas A Pre-College Academic Preparation Program for Middle and High School Youth= 20 Haas School of Business, University of California Berkeley, California 94720-1900

(510) 643-0923 (office) (510) 643-1418 (fax)

www.haas.berkeley.edu/ebop/ changing to www.haas.berkeley.edu/yeah

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Enron Mentions

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Enron, and on, and on: Enron's Indian troubles: The world's biggest power trader cannot shake off its Indian headache
The Economist, 04/21/01

Hines will add to skyline Houston Chronicle, 04/20/01

EDP in Talks to Buy Brazil's Elektro From Enron, Diario Says Bloomberg, 04/20/01

PORTUGUESE PRESS: EDP In Talks to Buy Brazil's Elektro Dow Jones International News, 04/20/01

INDIA: Enron may sell majority stake in India unit - paper. Reuters English News Service, 04/20/01

INDIA PRESS: Enron May Sell Majority Stake In Dabhol Dow Jones Asian Equities Report, 04/20/01

Enron plans to sell majority stake in Indian power venture Agence France-Presse, 04/20/01

Enron plans to shed majority DPC stake Business Standard, 04/20/01

Gas Diversification: Long-term Contracts are not the Best Polish News Bulletin, 04/20/01

Enron Dumps Romania Venture. The Oil Daily, 04/20/01

Energy Services Firms, Utilities Continue to Log BigQuarterly Earnings. The Oil Daily, 04/20/01

USA: ICE power, gas trading volumes soar. Reuters English News Service, 04/19/01

Enron Renews Efforts to Sell Stake in Indian Unit, Paper Says Bloomberg, 04/19/01

Business Enron, and on, and on: Enron's Indian troubles: The world's biggest power trader cannot shake off its Indian headache

04/21/2001 The Economist Copyright (C) 2001 The Economist; Source: World Reporter (TM) - FT McCarthy

IT IS the world's largest trader of energy, and this week it announced a glowing set of first-quarter results, with revenue quadrupling and profits up 20%. But Texas-based Enron Corp cannot seem to shake off its Indian headache. For the umpteenth time in six years, it has become locked in a dispute over its power project at Dabhol, in the Indian state of Maharashtra. And again, the dispute is with its sole customer, the Maharashtra State Electricity Board (MSEB). A government-committee report published on April 12th recommends renegotiation of the project to reduce the price of its electricity, even though this has already been renegotiated once, in 1996, shortly after construction work started. To "protect its rights", Enron has started arbitration proceedings against the authorities and has issued a "political force majeure" notice against the MSEB. Perhaps most important of all, Enron has asked the finance ministry to honour a financial guarantee that the ministry provided for the project, in order to recoup \$47m that the MSEB failed to pay for power in December and January. The MSEB has lodged an \$86m counter-claim against Enron for failing to build up

generation to full load quickly enough on one day in January. Suspicions that the MSEB is trying to avoid paying its dues prompted Richard Celeste, America's ambassador to India, to suggest that Maharashtra was "taking refuge behind legalities". The mood is not yet calm enough to negotiate a way out - although there is some talk of the state or a private investor buying out Enron, which is losing interest in owning power plants in poor countries. Enron's force majeure notice as good as accuses the state government of slowing the project for political reasons. Enron says that it is willing to discuss the report, but that there is no basis for proper talks until Maharashtra restructures the MSEB's parlous finances and thus gives the project a chance of surviving its planned 20-year life without further crises. Government officials are repeating accusations thrown around in the mid-1990s that Enron is behaving arrogantly. But India too has much to lose. Suresh Prabhu, India's power minister, insists that the dispute does not reflect any "anti-foreign-investment attitudes". However, if it is not resolved soon, it could do further harm to India's already blighted image as a destination for foreign direct investment (FDI). India has long hoped to attract up to \$10 billion of FDI a year, but it peaked in 1997-98 at \$3.6 billion and last year was down to \$2.1 billion. That compares dismally with other Asian countries. The shortfall is due mainly to India's failure to turn large infrastructure proposals into actual projects. Plans for power and oil-refining projects with nearly \$20 billion of FDI have been approved in the past decade, for instance, but only \$1.6 billion has actually been invested - and a large amount of that went to Dabhol.

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April 20, 2001 Houston Chronicle Hines will add to skyline 32-story tower to be downtown near Jones Hall By RALPH BIVINS Copyright 2001 Houston Chronicle The Hines real estate development firm is preparing to make another mark on the downtown Houston skyline with the creation of a 32-story office tower. Hines will begin construction in July on Texas Avenue near Jones Hall, the Alley Theater, Chase Tower and the Houston Chronicle building. Over the last 30 years, Hines has developed a number of major buildings downtown. "We are tremendously excited to add our 10th signature building to the downtown Houston skyline," said Charlie Baughn, executive president of Hines. The 689,000-square-foot building will be named after the main tenant, the Calpine Corp., a San Jose, Calif., company that produces electricity. Calpine has agreed to lease 300,000 square feet. It has not been determined whether the building will be christened Calpine Plaza, Calpine Center or some other variation on the Calpine name. The tower is scheduled to be complete in the fourth quarter of 2003. A parking garage on the block will be torn down, but the historic Lancaster Hotel, the Longhorn Cafe and Clive's restaurant will be retained. The building will cover about three-fourths of the block, said Larry Margolis, project manager for Hines. Houston-based Hines is developing the building in partnership with Prime Asset Management, which also owns the nearby 75-story Chase Tower. Prime Asset is led by Lebanese billionaire Rafik Hariri. Shaped like an oval with a flattened side, the tower will be wrapped in an exterior of rose-tinted granite with bluish windows. A granite-paved pedestrian plaza will be built at the corner of Texas and Milam, leading into the entrance at 717 Texas Ave. The project is designed by Hellmuth, Obata & Kassabaum, the architecture firm that did Enron Field for the Houston Astros. Seven levels will be devoted to an enclosed parking garage with 900 spaces. Above the parking garage will be 24 floors of office space, with about 26,500 square feet of space per floor. Calpine will be moving about 1,100 employees into the building. The company now has its workers in three downtown buildings: Bank of America Tower, Wells Fargo Plaza and Pennzoil Place. Calpine's choices for office space in downtown Houston were slim. The prime "Class A" space in downtown is more than 96 percent occupied, and large blocks of top-quality vacant space are nonexistent. The downtown office market has made a comeback from the 1980s, when more than one-third of its office space was vacant. For more than a decade after the Texaco Heritage Plaza was completed in 1986, downtown had no new buildings. And no new space was needed. With no new construction, the vacancy numbers turned around. At the end of 1993, the overall downtown vacancy rate was 22.43 percent. By the end of this year's first quarter, downtown vacancy had fallen to 6.3 percent, according to the CB Richard Ellis realty firm, and rental rates are climbing. The Calpine building will join other significant downtown towers under construction: ? The 36-story Century Development tower at 1000 Main, near Foley's. It will have 783,000 square feet of office space and 50,000-square feet of retail space. Reliant Resources will be the primary tenant. The Gensler architecture firm designed the building, which is to op

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another person to add to the list

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Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/20/2001 10:33 AM -----

Minal Dalia@EES 06/19/2001 12:08 PM

To: Susan J Mara/NA/Enron@ENRON cc: Subject: Re: Proposed Decisions of the CPUC on PX Credit and Suspending Direct Access

Susan,

Can you please add me to your distribution list for news pertaining to CA.

Thank you

Minal

Susan J Mara@ENRON 06/18/2001 03:43 PM To: Alan Comnes/PDX/ECT@ECT, Angela Schwarz/HOU/EES@EES, Beverly Aden/HOU/EES@EES, Bill Votaw/HOU/EES@EES, Brenda Barreda/HOU/EES@EES, Carol Moffett/HOU/EES@EES, Cathy Corbin/HOU/EES@EES, Chris H Foster/HOU/ECT@ECT, Christina Liscano/HOU/EES@EES, Christopher F Calger/PDX/ECT@ECT, Craig H Sutter/HOU/EES@EES, Dan Leff/HOU/EES@EES, Debora Whitehead/HOU/EES@EES, Dennis Benevides/HOU/EES@EES, Don Black/HOU/EES@EES, Douglas Huth/HOU/EES@EES, Edward Sacks/Corp/Enron@ENRON, Eric Melvin/HOU/EES@EES, Erika Dupre/HOU/EES@EES, Evan Hughes/HOU/EES@EES, Fran Deltoro/HOU/EES@EES, Gayle W Muench/HOU/EES@EES, Ginger Dernehl/NA/Enron@ENRON, Gordon Savage/HOU/EES@EES, Harold G Buchanan/HOU/EES@EES, Harry Kingerski/NA/Enron@ENRON, James D Steffes/NA/Enron@ENRON, James W Lewis/HOU/EES@EES, James Wright/Western Region/The Bentley Company@Exchange, Jeff Messina/HOU/EES@EES, Jeremy Blachman/HOU/EES@EES, Jess Hewitt/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Karen Denne/Corp/Enron@ENRON, Kathy Bass/HOU/EES@EES, Kathy Dodgen/HOU/EES@EES, Ken Gustafson/HOU/EES@EES, Kevin Hughes/HOU/EES@EES, Leasa Lopez/HOU/EES@EES, Leticia Botello/HOU/EES@EES, Mark S Muller/HOU/EES@EES, Marsha Suggs/HOU/EES@EES, Marty Sunde/HOU/EES@EES, Meredith M Eggleston/HOU/EES@EES, Michael Etringer/HOU/ECT@ECT, Michael Mann/HOU/EES@EES, Michelle D Cisneros/HOU/ECT@ECT, mpalmer@enron.com, Neil Bresnan/HOU/EES@EES, Neil Hong/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Richard L Zdunkewicz/HOU/EES@EES, Richard Leibert/HOU/EES@EES, Richard Shapiro/NA/Enron@ENRON, Rita Hennessy/NA/Enron@ENRON, Robert Badeer/HOU/ECT@ECT, Rosalinda Tijerina/HOU/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Scott Gahn/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Sharon Dick/HOU/EES@EES, skean@enron.com, Susan J Mara/NA/Enron@ENRON, Tanya Leslie/HOU/EES@EES, Tasha Lair/HOU/EES@EES, Ted Murphy/HOU/ECT@ECT, Terri Greenlee/NA/Enron@ENRON, Tim Belden/HOU/ECT@ECT, Tony Spruiell/HOU/EES@EES, Vicki Sharp/HOU/EES@EES, Vladimir Gorny/HOU/ECT@ECT, Wanda Curry/HOU/EES@EES, William S Bradford/HOU/ECT@ECT, Jubran Whalan/HOU/EES@EES, triley@enron.com, Richard B Sanders/HOU/ECT@ECT, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, dwatkiss@bracepatt.com, rcarroll@bracepatt.com, Donna Fulton/Corp/Enron@ENRON, gfergus@brobeck.com, Bruno Gaillard/EU/Enron@Enron, Linda Robertson/NA/Enron@ENRON, Ren, Lazure/Western Region/The Bentley Company@Exchange, Michael Tribolet/Corp/Enron@Enron, Phillip K Allen/HOU/ECT@ECT, Christian Yoder/HOU/ECT@ECT, jklauber@llgm.com, Tamara Johnson/HOU/EES@EES, Greg Wolfe/HOU/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Dirk vanUlden/Western Region/The Bentley Company@Exchange, Steve Walker/SFO/EES@EES, James Wright/Western Region/The Bentley Company@Exchange, Mike D Smith/HOU/EES@EES, Richard Shapiro/NA/Enron@Enron, Leslie

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cc: Subject: Proposed Decisions of the CPUC on PX Credit and Suspending Direct Access

Two proposed decisions were issued by hard copy and received today. Jim Steffes' office in Houston has a copy.

Both decisions eliminate the requirement that the utilities provide cash refunds to the direct access customers for the negative PX Credit as of January 5, 2000. On other points they differ.

The decision by Assigned Commissioner Wood is adversarial to direct access and suspends direct access. If adopted, direct access would be suspended July 1, 2001, except for written contracts executed prior to July 1, 2001. On the PX Credit, he says that the cash payment is not required and leaves open the notion that the bill credit would continue.

The alternate decision by Commissioner Bilas does not suspend direct access but asks for ideas on how to provide DA given ABX 1 and the concerns of the state's Dept of Finance when providing comments on the draft decision. Bilas has a finding of fact that "direct access is a necessary component of restoration of functional electricity markets." On the PX credit, Bilas' proposed decision would end the cash payment but begin a process to modify the PX credit decision (D.99-06-058) and to adopt a bottoms-up calculation for direct access customers. He asks for comments in 20 days and reply comments in 5 days. With a bottoms-up calculation, direct access customers would pay only wires charges and public purpose charges and pay no charge for power purchases.

Comments on the draft decision are due next Monday, June 25.

Enron and its coalitions will actively support the Bilas alternate and seek the third vote needed to ensure passage.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

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Enron Mentions - 04/16/01

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Sierra Pacific Suspends Dividend Because of Energy Crisis in Western States The Wall Street Journal, 04/16/01

Wind Farms May Reap Profit as Britain Looks to Add Renewable Energy Sources --- Seek Profits Out of Thin Air As Britain Pursues Renewable Energy The Wall Street Journal, 04/16/01

Internet Rumor Mill Changes Layoff Process --- Companies Scramble to Keep Their Plans Off the Web The Wall Street Journal, 04/16/01

Time Seems Bright for Solar Power / Big companies bring financial clout to field The San Francisco Chronicle, 04/16/01

Small Tech Rally Precedes Earnings Reports from Silicon Valley San Jose Mercury News - California, 04/16/01

A REBUKE FROM ENRON'S BOSS Business Week, 04/16/01

BUSH TAPS DEFENSE INC. AGAIN Business Week, 04/16/01

Godbole panel report a boost for MSEB The Times of India, 04/16/01

TUs gear up for April 25 Maharashtra bandh The Times of India, 04/16/01

It happens only in Indiya Business Standard, 04/16/01

NAPSTER-LIKE THREAT PUTS MOVIE INDUSTRY ON GUARD DIVX LETS USERS COPY AND TRADE FILMS
ONLINE Chicago Tribune, 04/16/01

Enron Restarts MTBE Plant. The Oil Daily, 04/16/01

Panel Suggests Enron Solutions. The Oil Daily, 04/16/01

Sierra Pacific Suspends Dividend Because of Energy Crisis in Western States By Rhonda L. Rundle Staff Reporter of The
Wall Street Journal

04/16/2001 The Wall Street Journal B4 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Sierra Pacific Resources, which owns two Nevada utilities, said it suspended its quarterly dividend, citing high power costs and other fallout from the energy crisis afflicting the Western part of the U.S. The utility holding company said it still hopes to complete a \$2 billion agreement to purchase Enron Corp.'s Portland General Electric unit. The transaction, which will also include the assumption of \$1 billion in debt, has been delayed partly because of a new California law that has blocked Sierra Pacific from raising funds through planned sales of certain power-generating assets. Sierra Pacific has paid a quarterly dividend of 25 cents in recent quarters. Suspension of the payout will save "less than \$20 million -- but every dollar counts at times like this," said Mark Ruelle, senior vice president and chief financial officer. The dividend policy will be reviewed again at the next board meeting, set for May 21, the company said. Sierra Pacific, based in Las Vegas, said it is continuing several cost-control programs that were recently undertaken to reduce expenses. The cutbacks are mainly in the area of administrative expenses and include elimination this year of incentive pay for executive staff. Sierra Pacific, like utility owners in other Western states, has been hit by rising energy costs. Sierra Pacific has said it incurred an unanticipated expense of \$889 million in 2000 to purchase fuel and electricity on the open market. That produced a full-year 2000 loss of \$39.8 million, or 51 cents a share. "There is no question that both our utilities in Las Vegas and the Tahoe region are exposed to the same general market conditions as all of the western U.S.," Mr. Ruelle said. The impact on Sierra Pacific has been moderated somewhat by power contracts that were secured before the latest runup in prices. "Our contracted prices for fuel and purchased power are favorable compared to current prices, but still above what we can recover through utility rates," he said. Sierra Pacific got some relief in February when the Nevada Public Utilities Commission approved a 17% rate increase, equal to about \$300 million of additional revenue. Now the Nevada legislature is considering a proposed new law that would restore stability to the state's electricity markets, Mr. Ruelle said. The measure would reinstate an old regulatory provision that assures utilities of eventual recovery of any fuel and power purchase costs that exceed current rates. Sierra Pacific's agreement to purchase Portland General Electric from Enron was reached in November 1999. Enron's chief executive, Jeffrey Skilling, said last month that there is only a "5% probability" that the sale will go through. But Mr. Ruelle said Friday that Sierra Pacific is "continuing to work toward the deal and to address the difficulty in securing necessary regulatory approvals given the underlying dislocations in the markets." Sierra Pacific has agreements to sell seven of its nine power plants, and related assets, to various power generators for an aggregate of \$1.8 billion. The sales have been blocked partly by the new California law, which prohibits the sale of power plants that serve California customers. Sierra Pacific's Sierra Pacific Power Co. unit has a small service territory in the Lake Tahoe area of California. The parent company's "financial profile" looks much different without the sale of those plants, Mr. Ruelle said.

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Wind Farms May Reap Profit as Britain Looks to Add Renewable Energy Sources --- Seek Profits Out of Thin Air As
Britain Pursues Renewable Energy By Geoffrey T. Smith Dow Jones Newswires

04/16/2001 The Wall Street Journal (Copyright (c) 2001, Dow Jones & Company, Inc.)

Ten years ago, Peter Edwards, a dairy farmer in Cornwall, sold his cattle to raise money to establish the United Kingdom's first wind farm intended to produce electricity. It wasn't competitive and did nothing to lessen the country's dependence on fossil fuels -- not the most encouraging vision of the future. Today, many farmers might willingly change places with him. As livestock farming staggers from crisis to crisis, wind farming is showing strength. Last week, in a landmark move, the Crown Estates, which holds the U.K. seabed in trust for the country, issued seabed leases for 13 offshore wind-farm

projects to companies traditionally associated with fossil-fuel energy. The projects, which could attract up to GBP 1.6 billion (\$2.3 billion) of investments, according to the British Wind Energy Association, will allow for the installation of 1,500 megawatts of generation capacity along Britain's coast by 2004. That would meet the electricity needs of 1.1 million households, according to BWEA estimates. The projects -- seven in the Irish Sea and six in the North Sea -- are the first concerted effort in the U.K. to raise the contribution of renewable power sources, other than hydropower, to the energy mix. For the wind industry, going offshore is a test of technology and viability. Larger numbers of more-powerful turbines, driven by higher wind speeds, could yield economies of scale. Offshore winds also are more constant than those onshore, which could help offset wind power's major drawback: unpredictability. Such projects no longer are the preserve of companies on the fringe of the energy sector. Among those awarded leases were units of Innogy PLC, Powergen PLC, Scottish Power PLC, Enron Corp. and TXU Europe. Under terms of the government's Renewables Obligation, all public electricity suppliers must get some of their power from renewable generation sources by 2003. The amount will probably start at 5% or more, rising to 10% by 2010. Via a system of tradable "green certificates," companies can trade surplus renewable power on the open market with suppliers who can't meet the obligation by themselves. The emphasis of U.K. policy-makers for the past 10 years has been on bringing prices down, rather than encouraging green energy to become competitive. As a result, the role of wind in the U.K. has been restricted to blowing the emissions of coal and gas-fired plants across the North Sea, forcing Norway and Germany to cope with the environmental impact. In countries with more government subsidies, more wind farms have flourishe

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Enron Mentions

Sender	m..schmidt@enron.com
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File	dasovich-j/deleted_items/1869.

Fitch Puts Enron On Rating Watch Negative Bloomberg, 10/25/01

STOCKWATCH Enron higher after dismissing CFO Fastow AFX News, 10/25/01

DJ Concerned Energy Cos Make Few Changes In Enron Dealings 2001-10-25 14:13 (New York)

Calif Guarantees Allow Williams To Book Power Revenues Dow Jones Energy Service, 10/25/01 Stocks Expected to Open Lower, Hurt By Weak Economic News Dow Jones Business News, 10/25/01

Kaplan Fox Seeks To Recover Losses For Investors Who Purchased E Bloomberg, 10/25/01

Enron CNBC: Squawk Box, 10/25/01

Fitch Puts Enron On Rating Watch Negative 2001-10-25 13:49 (New York)

Fitch Puts Enron On Rating Watch Negative

Fitch-NY-October 25, 2001: Fitch places the following Enron securities on Rating Watch Negative: senior unsecured debt `BBB+`; subordinated debt `BBB`; preferred stock `BBB-`; and commercial paper `F2'. Pipeline subsidiary `A-` rated senior unsecured debt at Northern Natural Gas Co. and Transwestern Pipeline Co., are also placed on Rating Watch Negative.

The rating action primarily relates to the negative capital market reaction to recent disclosures by the company. The loss of investor and counterparty confidence, if it continues, would impair Enron's financial flexibility and access to capital markets, therefore, impacting its ability to conduct its business. On Oct. 16, 2001, Enron announced a \$1 billion after-tax charge to earnings to be taken in the third quarter of 2001 and a reduction of balance sheet equity by \$1.2 billion relating to the unwinding of structured transactions. Since that time, there have been several damaging news reports on the company and its management. More importantly, investors have voiced concerns. Enron's common stock price has plummeted and spreads on its debt have widened.

The company has attempted to quell rumors and has publicly stated that it has adequate liquidity to conduct its business. Approximately \$1.5 billion of unused liquidity is available under committed bank lines.

An additional concern is that certain structured transactions of the company including Marlin Water Trust II and Osprey could unwind. While various sources of repayment exist, such as the sale or liquidation of underlying assets, or an equity offering, primary credit support is derived from the Enron obligation to remarket mandatorily convertible preferred stock if an amount sufficient to repay the notes has not been deposited with the trustee 120 days prior to the maturity date or upon a note trigger event. In the event that the issuance of the preferred stock yields less than the amount required to redeem the senior notes in either case, Enron is required to deliver additional shares. If Enron cannot or does not deliver on its obligation, then the amount of the deficiency becomes a payment obligation of Enron, representing a general unsecured claim. While trigger events include a downgrade of Enron's senior unsecured debt below investment grade by one of the major rating agencies in conjunction with specified declines in Enron's closing stock price over three consecutive trading days, Enron would have a forbearance period of 60 days as long as an attempt was being made to register the shares. The total amount of Marlin and Osprey debt is approximately \$3.2 billion. Enron has not verified that the underlying assets have adequate market value to fully pay down the associated debt.

While capital market uncertainties have escalated, Fitch has no information to indicate that there are any fundamental problems with Enron's core wholesale, retail, and pipeline businesses. Fitch expects to be in contact with the company on a continuing basis to both monitor ongoing events and address strategic, longer-term issues.

STOCKWATCH Enron higher after dismissing CFO Fastow

10/25/2001 AFX News (c) 2001 by AFP-Extel News Ltd

NEW YORK (AFX) - Share of Enron were higher in opening trade, after the company dismissed its chief financial officer, Andrew Fastow, due to his past involvement in running two partnerships, in which Enron had invested, dealers said. At 9.56 am, Enron was up 1.13 usd, or 6.95 pct, at 17.55. The DJIA was down 138.60 points at 9,207.52, the S&P 500 index was down 15.95 pts at 1,069.00 and the Nasdaq composite down 39.02 at 1,692.52. Enron said it named Jeff McMahon CFO to replace Fastow, after announcing Monday that the Securities and Exchange Commission is looking into the Fastow-related transactions. "In my continued discussions with the financial community, it became clear to me that restoring investor confidence would require us to replace Andy as CFO," said chief executive Kenneth Lay in a statement. Enron shares have fallen sharply in recent days on concerns over financial transactions made with the two partnerships, LJM Cayman LP and LJM2 Co-Investment LP, which analysts said could affect future earnings and which have prompted class action suits against the company. McMahon, who had been serving as chairman and CEO of Enron's Industrial Markets group, had quit his job as treasurer last year, after voicing concerns within the company about Fastow's role in running the two partnerships, according to the Wall Street Journal. This morning, Salomon Smith Barney analyst Raymond Niles downgraded Enron to "buy- speculative," from "buy-high risk", to reflect his concerns that "lingering uncertainty over financial practices may begin to impair Enron's commercial operations." "This is the least likely outcome, in our view, but one whose likelihood has increased over the last week as questions continue to be asked," he said. ng/lj For more information and to contact AFX: www.afxnews.com and www.afxpress.com

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=DJ Concerned Energy Cos Make Few Changes In Enron Dealings 2001-10-25 14:13 (New York)

By Mark Golden, Kristen McNamara, Jon Kamp and John Edmiston Of DOW JONES NEWSWIRES

NEW YORK (Dow Jones)--Energy trading companies have concerns about the credit quality of troubled Enron Corp. (ENE), but they have made almost no changes in policies concerning the top trader of North American power and gas, the companies said Thursday.

The concerns have arisen because Enron, which accounts for about a quarter of the trade in the country's power and gas markets, has seen its share price fall by a third this week due to uncertainties about its extremely complex financial structure.

Moody's has put Enron's credit on watch for possible downgrade, and some of the company's debt is trading like junk bonds in the secondary market this week.

"We have made no changes to our credit policy concerning Enron," said John Sousa, chief spokesmann for Dynegy Inc. (DYN). "It's business as usual."

Williams Cos. (WMB) spokesman Jim Gipson said that his company, too, has made no changes and has no concerns about Enron's credit. Another Top 10 power and gas trading company, Aquila (ILA), has also left Enron credit unchanged.

Other companies expressed concern, though they've taken little if any action.

"Like everyone else in the marketplace, we're proceeding with caution," said Lora Kinner, director of credit for Tractebel Energy Marketing, the North American subsidiary of the Belgian company Tractebel S.A.

Kinner said the company is just looking for more information and doesn't expect to make any drastic changes.

Calif Guarantees Allow Williams To Book Power Revenues By Andrew Dowell Of DOW JONES NEWSWIREs

10/25/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- Clarifications by California as to what electricity transactions the state will back enabled Williams Cos. (WMB) to book \$180 million in power sales from the previous period as third-quarter revenues, the company said Thursday. The revenues came from power William

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Re: IEP Press Call Friday, 1pm PST

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Great. Hey, is there a call-in # for the press call?

Jean Munoz <jmunoz@mcnallytemple.com> 03/23/2001 10:47 AM

To: <Jeff.Dasovich@enron.com> cc: Subject: Re: IEP Press Call Friday, 1pm PST

I'm having a blast! Jean

on 3/23/01 8:39 AM, Jeff.Dasovich@enron.com at Jeff.Dasovich@enron.com wrote:

Greetings Jean. How might one listen in. Are we having fun yet? Best, Jeff Jean Munoz <jmunoz@mcnallyt To: Katie Kaplan <kaplan@iepa.com>, "Andy emple.com" <ABB@eslawfirm.com>, "B Brown Andy (E-mail)" <andybrwn@earthlink.net>, "Baker 03/22/2001 06:46 Carolyn (E-mail)" <cabaker@duke-energy.com>, PM "Bob Escalante (E-mail)" <rescalante@riobravo-gm.com>, "Bob Weisenmiller (E-mail)" <rbw@mrwassoc.com>, "Curtis Kebler (E-mail)" <curtis_l_kebler@reliantenergy.com>, "Douglas Kerner (E-mail)" <DKK@eslawfirm.com>, "Greg Blue (E-mail)" <gtbl@dynegy.com>, "Jan Smutny-Jones (E-mail)" <smutny@iepa.com>, "Jeff Dasovich (E-mail)" <Jeff.Dasovich@enron.com>, "Joe Ronan (E-mail)" <joer@calpine.com>, "John Larrea (E-mail)" <john.g.larrea@williams.com>, "John Stout (E-mail)" <John_H_Stout@reliantenergy.com>, "Julee Malinowski-Ball (E-mail)" <jmball@ns.net>, "Kassandra Gough (E-mail)" <kgough@calpine.com>, "kent Palmerton (E-mail)" <kent.palmerton@williams.com>, "Kristin Vellandi (E-mail)" <kvellandi@pstrategies.com>, "Lynn Lednický (E-mail)" <lale@dynegy.com>, "Marty Wilson (E-mail)" <mwilson@pstrategies.com>, "McNally Ray (E-mail)" <rmcnally@mcnallytemple.com>, "Nam Nguyen' (E-mail)" <nam.nguyen@powersrc.com>, "Norton Kelli (E-mail)" <norton@mcnallytemple.com>, "Paula Hall-Collins (E-mail)" <paula.hall-collins@williams.com>, "Pigott Jack (E-mail)" <jackp@calpine.com>, "Richard Hyde (E-mail)" <rw Hyde@duke-energy.com>, "Rob Lamkin (E-mail)" <rlamkin@seiworlwide.com>, "Roger Pelote (E-mail)" <roger.pelote@williams.com>, "Stephanie-Newell (E-mail)" <stephanie-newell@reliantenergy.com>, "Sue Mara (E-mail)" <smara@enron.com>, "Theo Pahos (E-mail)" <tpahos@ppallc.com>, "Tom Ross (E-mail)" <tross@mcnallytemple.com>, "Carol H Hudson (E-mail)" <Chudson@iepa.com>, steven kelly <steven@iepa.com>, "Anne Kelly (E-mail)" <kelly@hnks.com>, "Chuck Cole (E-mail)" <ccole@advocation-inc.com>, "Delany Hunter (E-mail)" <dhunter@smithandkempton.com>, "DJ Smith (E-mail)" <djsmith@smithandkempton.com>, "Hedy Govenar (E-mail)" <hgovenar@acom2.com>, <mmoretti@mccabeandcompany.net>, "Maureen OHaren (E-mail)" <Oharen@hmot.com>, "Mike Monagan (E-mail)" <mmonagan@aol.com>, "Phil Isenberg (E-mail)" <isenberg@hmot.com>, "Robert Ross (E-mail)" <robbiz@cwo.com>, "Ron Tom (E-mail)" <Rtom@govadv.com>, "Scott Govenar (E-mail)" <sgovenar@govadv.com>, "Susan McCabe (E-mail)"

<sfmccabe@mindspring.com>, <rtemple@mcnallytemple.com>, <megan.beiser@edelman.com>, <tracy.fairchild@edelman.com>, <deborah.fiorito@dynegy.com>, <tcwillia@duke-energy.com>, <mstultz@epsa.org>, <lchurch@epsa.org>, <sadlersa@earthlink.net> cc: Subject: IEP Press Call Friday, 1pm PST IEP will conduct a press call Friday March 23 @ 1pm. Feel free to listen in! Thanks, Jean -- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

Contact: Jean Munoz FOR IMMEDIATE RELEASE 916-447-8186 March 22, 2001 WEEKLY POWER UPDATE SACRAMENTO ' Jan Smutny-Jones, Executive Director of the Independent Energy Producers Association, will brief members of the media on California's rapidly changing electric market during a teleconference Friday, March 23 at 1:00 p.m. What: Press Availability Teleconference When: Friday, March 23, 2001 1:00 p.m. PST Call In #: 1-800-374-2393 Conference I.D: Independent Energy Producers (IEP) Who: Jan Smutny-Jones, Executive Director of the Independent Energy Producers Association # # #

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Media Coverage of Direct Access News Conference--SJ mercury news

Sender	susan.mara@enron.com
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Some AReM members met with the SJ Mercury News Editorial Board and the editorial below is the result

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/27/2001 01:28 PM -----

"Fairchild, Tracy" <tracy.fairchild@edelman.com> 06/27/2001 12:27 PM

To: "Allen, Stevan" <stevan.allen@edelman.com>, AReM <arem@electric.com>, "Douglas Oglesby (E-mail) (E-mail)" <doao@chevron.com>, "Erica Manuel (E-mail)" <erica.manuel@edelman.com>, "Fairchild, Tracy" <tracy.fairchild@edelman.com>, "Jeffrey Hanson (E-mail) (E-mail)" <jeff.hanson@phaser.com>, "Joseph Alamo (E-mail) (E-mail)" <jalamo@enron.com>, Megan Beiser <megan.beiser@edelman.com>, "Robert Morgan' (E-mail)" <rmorgan@newenergy.com>, "Warner, Jami" <jami.warner@edelman.com> cc: "Warner, Jami" <jami.warner@edelman.com> Subject: Media Coverage of Direct Access News Conference

Hello AReMers:

Below you will find the list of media outlets that covered our news conference yesterday. In addition to media present at the conference, we also had 12 reporters listening in via teleconference (only six asked questions). I am attaching the stories that we have already found; we'll send more as they are published today and throughout the week.

The SJ Merc editorial also ran today (it's excellent) and we're keeping an eye out for the Bee editorial and the possibility that Bill Stall of the LA Times may write on this issue. He was at the conference but has made only neutral comments about whether he'll write anything.

Orange County Register--Kate Berry Wall Street Journal--Rebecca Smith, John Emshwiller and Mitchel Benson Associated Press--Karen Gaudette San Jose Mercury News--John Woolfork, Mike Bazeley North County Times--Dennis Devine San Diego Union Tribune--Ed Mendel San Francisco Chronicle--Greg Lucas, Bernadette Tansey (this story will probably run on Friday) Los Angeles Times--Bill Stall Bloomberg News--Daniel Taub California Energy Markets--JA Savage Electric Power Daily--Ethan Howland Restructuring Today--George Spencer Natural Gas Intelligence--Richard Nemec Capitol Public Radio (NPR) KFBK Radio--Mike Ward PacSat News Satellite

<<NGI Daily 2001June27.pdf>> <<rt010627.pdf>>

Even better than expected Published Wednesday, June 27, 2001, in the San Jose Mercury News EDITORIAL

The opinion of the Mercury News PUC should keep consumers plugged in to power choices AT the beginning, the restructured California electricity market was supposed to include competition among sellers of electricity -- offering green

power or cheaper power -- not just competition among generators. As things played out, retail competition was nearly smothered. Now, with the state buying electricity on behalf of utilities, it could take a further blow. State officials are leery of letting customers go to other suppliers now that the state will buy huge amounts of electricity over the next decade. The Public Utilities Commission Thursday might suspend "direct access," the ability of consumers large and small to cut their own deals with electricity suppliers, instead of being forced to buy through the state/utilities. The PUC should leave it alone. Instead, the Legislature should continue discussing ways of revitalizing direct access without leaving the state with long-term contracts and not enough customers. Ultimately, the state should get out of the electricity business. Keeping retail competition alive is one avenue of escape.

***** There's a slightly negative zinger at the very end, but overall a balanced story. Published Wednesday, June 27, 2001, in the San Jose Mercury News CALIFORNIA'S ENERGY CRISIS PUC likely to call a halt to shopping for power BY MICHAEL BAZELEY <mailto:mbazeley@sjmercury.com>

AND JOHN WOOLFOLK <mailto:jwoolfolk@sjmercury.com> Mercury News State regulators Thursday are expected to pull the plug on electricity deregulation's core feature: the ability of customers to shop around for alternative power. After July 1, residential and business customers would no longer be allowed to shop for a new electricity provider under a measure expected to be approved by the California Public Utilities Commission. State leaders fear that after stepping in and buying premium-priced power to avoid blackouts this year, big businesses will flee for a better deal, sticking small consumers with the government's energy bill. Those consumers would then face higher rates, causing even more to flee. "You create a death spiral," said Sen. Debra Bowen, D-Redondo Beach. Business leaders, alternative energy providers and some state officials are desperately trying to head off the move, saying they've saved a bundle on energy through the "direct access" option of bypassing the major utilities. "While we're coping with the rate increase, we think direct access is the best way for us to manage the cost of energy," said Dominic DiMare, legislative advocate of the California Chamber of Commerce. "It leads to market discipline as well as innovation," DiMare said. Supporters argue the state, which approved a record \$13.4 billion in bonds to cover power costs, can guarantee payment without killing off customer choice. They backed an alternative proposal Tuesday by utilities Commissioner Richard Bilas in which customers would pay a charge to cover the state's energy bonds, regardless of their electricity provider. Customers already pay similar charges to cover an array of costs from nuclear decommissioning to conservation programs. "It still gives people the opportunity to buy energy that might not necessarily be cheaper, but that meets their needs more," said Rick Counihan, spokesman for Green Mountain Energy, which markets power from renewable sources such as solar and wind. But even Bilas gives his proposal long odds of approval, saying "If I were a betting man" he'd say his plan "would go down." The ability to shop for power was the impetus for the state's 1996 deregulation bill. The architects of deregulation -- led by business groups -- believed that if customers could buy power directly from producers, it would promote competition and drive down prices. It never happened. Wholesale power costs soared, and that, along with a host of other issues, drove companies out of the state, forcing tens of thousands of consumers back into the arms of utilities. Now, though, with significantly higher electric rates going into effect this month, choice is looking more attractive than ever to big businesses. Joined by alternative power companies, they are trying to push a bill through the Legislature that would set up a framework for continued choice. "Manufacturers live and die by the ability to cut costs," said Gino DiCaro, spokesman for the California Manufacturers and Technology Association. "If they have an opportunity to save money, we don't feel there's any reason that should be taken away." That type of freedom raises a host of thorny issues. The state is now buying power on behalf of utilities and entering into dozens of long-term power contracts. If businesses and residential users flee the system, the state could be left with a surplus of costly power and fewer users to pay for it. That, in turn, could mean higher rates for the remaining users. Bowen is trying to address these issues in a bill that would make customers pay when they leave the system. Her bill also would allow users to go into the market only during annual enrollment periods, and it would limit the amount of power that could be bought on the open market. Business groups are fighting those provisions.

Contact Michael Bazeley at mbazeley@sjmercury.com <mail

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POWER POINTS:Great News! Long-Term Contracts Jeopardized Dow Jones Energy Service, 05/18/01

Options Report: Investors Sell Options As Flat Mkt Looms Capital Markets Report, 05/18/01

Shell "Pleased" On Selection For Saudi Gas Projects 1 & 3 Dow Jones Energy Service, 05/18/01

USA: U.S. pleased American firms win Saudi natgas deals. Reuters English News Service, 05/18/01

UK: Shell says happy to participate in Saudi gas venture. Reuters English News Service, 05/18/01

Saudi To Announce Gas Proj 1 & 3 Leaders By Jun 5-Source Dow Jones Energy Service, 05/18/01

Shell, Exxon Score Big in Historic Saudi Gas Initiative, Energy Intelligence Group Reports PR Newswire, 05/18/01

Saudi Arabia Selects International Oil Companies for Three Major Projects Dow Jones Business News, 05/18/01

Saudi Arabia Picks Foreign Partners for Gas Projects (Update4) Bloomberg, 05/18/01

POWER POINTS:Great News! Long-Term Contracts Jeopardized By Mark Golden

05/18/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

A Dow Jones Newswires Column

NEW YORK -(Dow Jones)- Those looking for even the slightest bit of good news for the state of California can find it in Friday's San Jose Mercury News. "California is in danger of losing more than 40% of the power it has lined up in long-term contracts," says the lead of a major article, because Republicans in the state legislature didn't back the \$12.5 billion bond deal last week. Getting out of most of those contracts would be the best thing to happen to California in a long time. Since the state went on its long-term buying binge, forward prices for power in the western U.S. have been falling steadily. Gov. Gray Davis announced \$43 billion in purchases lasting up to 20 years on March 5. Contracts for summer power at Palo Verde, Ariz., a key western trading hub that feeds a lot of power into California, have fallen to \$390 a megawatt-hour from a high of \$600/MWh in late March. Further out, power for 2004-2006 at mid-Columbia River, a key trading hub north of California, has fallen from \$58/MWh in February to \$49/MWh today. Companies like Calpine Corp. (CPN) and Dynegy (DYN) that took advantage of the state's buying binge are looking pretty fat and happy. In fact, they have affectionately started calling the governor Gravy Days. Enron Corp. (ENE), which has been selling aggressively for two months, according to traders, is looking like a genius as usual. Generators that held out, like Reliant Energy (REI) and Duke Energy (DUK), may be sorry that they did. It's been a long time since those long on western power have felt serious pain in the markets, but that time has come. Power generators may not make as much profit this summer as last, and power traders that have taken long speculative positions may liquidate supplies for far less than they bought them. As was seen in the eastern U.S. power markets last summer, long positions can turn out just as painful as short positions. For California, the good news is that maybe spot purchasing costs this summer won't be as bad as once expected. The bad news is that the state government is by far the biggest "long" in the bearish forward market. It's safe to say that the \$43 billion in contracts signed in March have declined in value by 15%, or \$6.5 billion. That's almost as big of a financial disaster going forward as everything that has gone on since last summer until now. Granted, this is a sort of damned-if-you-do-damned-if-you-don't situation. Barring the utilities from the forward market during the first three years of deregulation was one of the most expensive public policy mistakes in U.S. history. California should do some forward purchasing now, and it's such a behemoth that it will move the market up when it does so. And, when it gets done buying, prices will come down simply because it stopped. But that's a footnote to the mismanagement of the financial side of the energy crisis. Early this year, when the state started down the path of mega-purchasing, there was no shortage of advice not to do so. Long-term prices were embedded with too much of today's supply-demand imbalance. The state would have been much better off dealing with the imbalance first - since it would have to do that anyway - and gradually securing

forward power as declining prices reflected the improving situation. Since then, the state has done a great job of crushing demand. Electric usage is already down 9% from where it was expected to be thanks to a conservation efforts and a slowing economy, and people haven't even seen their 30% higher bills yet. Similar reduction has been seen in power consumption in other western states and in natural gas usage nationally. This is likely what has been behind much of the downturn in forward power prices in the West. This column started with a false "good news" lead. It would be great for the state if, after the state's credit rating sinks further, sellers exercised their option to tear up the five- and ten-year contracts. But they won't do that. The prices are too good from the sellers' perspective. Calpine, which has signed three such contracts for the state, said immediately that it has no intention of reneging on its agreements. And Gary Ackerman, director of the sellers' association, told the Mercury News that he didn't expect power companies in general to back out of the deals. But there may be some real good news for California. The Davis administration hired dozens of people that have little or no experience in energy trading to purchase billions of dollars of power. Perhaps they are quick learners. This week presented an excellent opportunity for the state to pick up what it needs - summer power for this year only - on sale. Low prices in the daily market Monday and Tuesday drove the summer contract prices down to \$325/MWh, which is cheap by recent standards. The contract price moved up to \$390/MWh, but the state took advantage of the opportunity while the window was open. "The week's condition in the market place helped. We were able to procure some energy for June through September," said state spokesman Oscar Hidalgo. And, hey, there were no blackouts this week. -By Mark Golden, Dow Jones Newswires; 201-938-4604; mark.golden@dowjones.com

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Options Report: Investors Sell Options As Flat Mkt Looms By Kopin Tan Of DOW JONES NEWSWIREs

05/18/2001 Capital Markets Report (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- Options volatility, already at its lowest level in some months, edged down further amid the busy trading of Expiration Friday. But while lower volatility typically means reduced and more attractive premium for option buyers, many investors continued to sell options. With market observers expecting stocks to be flat or range-bound for a while as the economy gropes toward a recovery, these investors were selling options to generate income upfront and hoping the sold contracts will expire unexercised. Many investors sold out-of-the-money calls as part of strategies like covered call writing to help lower their cost of buying stock and the break-even points for their investments. In Ericsson Telephone Co., for instance, the June 7.50 calls traded more than 29,000 contracts, with much of Friday's volume accounted for by investors selling these out-of-the-money contracts. Investors, who earn about \$25 for each contract sold, likely were selling these as part of their covered call writing strategies. Ericsson's American depository receipts most recently gained 43 cents to \$6.83. At the Chicago Board Options Exchange, the June 7.50 calls rose 15 cents to 30 cents on volume of 19,967 contracts, compared with open inter

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California and Energy Providers in Talks Over Electric Fees The New York Times, 06/26/01

Taking No Chances; Disaster-Conscious Firms Treat Global Warming as a Reality The Washington Post, 06/26/01

Conflict of Interest Los Angeles Times, 06/26/01

India Flagging Asset Sales Risk Lower Moody's Outlook (Update2) Bloomberg, 06/26/01

SMARTMONEY.COM: California Dreamin' Dow Jones News Service, 06/25/01

Much Calif Power Price Gouging Beyond FERC's Reach -ISO Dow Jones Energy Service, 06/25/01

Oregon House May Vote Monday On Electricity Deregulation Dow Jones Energy Service, 06/25/01

USA: Fresh look at wind energy blows to US from Europe. Reuters English News Service, 06/25/01

USA: UPDATE 3-Some \$15 billion at stake in US power refund talks. Reuters English News Service, 06/25/01

USA: FPL starts wind farm to power 10,500 Wisc. homes. Reuters English News Service, 06/25/01

USA: Calif says power refund demand will top \$9 billion. Reuters English News Service, 06/25/01

Business/Financial Desk; Section C California and Energy Providers in Talks Over Electric Fees By JOSEPH KAHN

06/26/2001 The New York Times Page 7, Column 1 c. 2001 New York Times Company

WASHINGTON, June 25 -- For the first time since the end of the Clinton administration, California and the companies that sell it electricity sat at the same table today to try to resolve a multibillion-dollar feud over the state's energy bills. California is demanding that power companies refund as much as \$9 billion for what it says were overcharges, while power companies say that the state's nearly insolvent utilities owe them billions of dollars. City and state officials from across the West are also participating in the negotiations. The Federal Energy Regulatory Commission convened the talks, which are scheduled to last up to two weeks. The sessions are the first since top Clinton administration officials tried and failed to broker a settlement to California's electricity crisis in their waning days in office. "The time to put California's past energy problems to rest and structure a new arrangement for California's energy future is now," said Curtis Wagner, an administrative law judge for the energy commission who is presiding over the settlement talks. The proceeding, which was standing-room-only on opening day, attracted scores of people representing multiple sides in the dispute. The main participants are electricity generating companies, electric utilities, and public officials from state and local governments and regulatory agencies. Mr. Wagner urged the public officials and companies involved to reach an agreement on how much California and other states in the Western grid should have paid for power over the last year, when California's partly deregulated market broke down. He said that if they failed to do so by July 10, he would recommend a solution to the energy agency's five commissioners, who would then have the option of imposing a settlement. Wholesale power costs in California, which totaled \$7 billion in 1999, soared to about \$27 billion last year and, by some state estimates, could double again this year. The higher costs, which have not been fully passed along to consumers, have rendered California's two main utility companies unable to pay their bills and forced the state to buy power in their place. The opening bid by Gov. Gray Davis, who set out his views in a letter sent to the energy commission today, is that the leading electricity generators should refund about \$9 billion that "they have overcharged the people of the state of California." Michael Kahn, chairman of the California Independent System Operator, is leading the state delegation. Generating companies have dismissed that figure as grossly inflated. They acknowledge that prices are high. But they say the charges are linked to shortages of natural gas, a crucial fuel for electricity generation, and were set fairly in a free market. The companies also contend that a large proportion of what they have billed California is a credit premium justified because wobbly utilities owe them as much as \$15 billion. Reliant Energy, Duke Energy, the Williams Companies, the Enron Corporation and the Mirant Corporation are among the major sellers of electricity in the Western region. The energy commission, which has the duty of determining "just and reasonable" electricity prices under a New Deal-era law, long ago found that the California market had become dysfunctional and that prices were unjustified. But the agency has struggled to come up with a method for determining fair rates, changing its method three times in recent months. So far, the agency has identified about \$125 million in potential overcharges. But that number was reached using a restrictive method that the agency has since abandoned. Last week, the agency adopted a new price control regime that is intended to limit price spikes throughout the West. If the controls it is using now were retroactively applied to electricity sales made over the last year, the generators would be asked to refund much more money. By some estimates, the refunds could total more than \$1 billion but seem likely to fall well short of the \$9 billion California is seeking.

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Financial Taking No Chances; Disaster-Conscious Firms Treat Global Warming as a Reality Greg Schneider Washington Post Staff Writer

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After two unusually warm winters melted profits at his natural gas distributing company in Dallas, Robert W. Best decided he needed protection. So he spent \$4.9 million on a new tool called weather insurance. If global warming causes the customers of his Atmos Energy Co. to continue using less gas to heat their homes, the policy will pay out cash to offset the

company's operating losses. That's the kind of practical response beginning to take place throughout U.S. industry as business leaders face up to the prospect of climate change. While the Bush administration debates other governments about whether man-made pollution causes global warming -- and, if so, who should take responsibility -- many industries are trying to cope with the realities of extreme weather. Insurance companies have begun hiring meteorologists to reassess the risk of natural disasters. Farmers are planting different types of crops and looking for crisis-proof seeds. Great Lakes shipping companies are petitioning Congress for dredging to compensate for falling water levels. Colorado ski resorts are discounting tickets to bring people back to the slopes after two sweaty winters. These changes are incremental, not massive shifts in operations. But over time, those incremental reactions could add up to a major adaptation to "climate change's pervasive and growing impacts over the next century," said Nick Sundt, a scientist with the U.S. Global Change Research Program in Washington. "I don't know for sure about global warming, but I do know the past 15 or 20 years have been warmer than normal," said Best, the chairman, president and chief executive of Atmos. "Some people will claim it's the natural cycle, but for us it doesn't really matter. . . . We've got to do something to protect ourselves." Atmos, which distributes natural gas in 11 states, including Virginia, began investing in weather insurance a year ago. The winter that began in November 1998 and the one that followed were both more than 15 percent warmer than usual across the company's entire market, Best said. He read about weather insurance in a trade journal and bought it through energy broker Enron Corp. If temperatures had been warmer than average last

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Dabhol lenders to vote today on PPA PPPPA termination Business Standard, 05/16/01

Enron to suspend investments of 600 mln usd in Brazil energy sector AFX News, 05/15/01

USA: Semptra unit to boost natgas delivery to California. Reuters English News Service, 05/15/01

Enron Urges Reforms In Japan Electricity Market-Nikkei Dow Jones International News, 05/15/01

Enron Agrees to Provide Market Data to NGX PR Newswire, 05/15/01

UAE To Seek New Partners If Enron Exits Dolphin Gas Proj Dow Jones International News, 05/15/01

Enron Should Sell Utility to Oregon, Lawmaker Argues (Update2) Bloomberg, 05/15/01

Enron to Provide Gas Prices to NGX, Drops Lawsuit (Update1) Bloomberg, 05/15/01

Dabhol lenders to vote today on PPA PPPPA termination Our Banking Bureau Mumbai

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The 25-odd lenders to the Dabhol power project will vote today on whether the Enron-promoted Dabhol Power Company (DPC) should be allowed to serve a preliminary PPA termination notice to the Maharashtra State Electricity Board (MSEB). The voting will take place through conference calls criss-crossing the globe at 6.30 pm, Indian Standard Time. Even though the three Indian lenders_ the Industrial Development Bank of India (IDBI), the State Bank of India (SBI) and ICICI_ have decided to vote against the proposition, they will not be able to block the move. Technically, the proposal can be passed if four per cent of lenders are in favour of the termination notice. In effect, it will be passed if one of the 25 lenders casts its vote in favour of it. So, it's almost a foregone conclusion that DPC will be asked to issue its termination notice. Multilateral agency J-Exim, which has provided guarantees, will not participate in the exercise. Barring J-Exim, other financial intermediaries including global arrangers ABN Amro, Citi, ANZIB, CSFB and other banks and OPIC will cast their votes tomorrow. "In the first round, Indian lenders put their foot down and refused to give clearance to the termination notice. Thistime around they will not be able to block the move any more. The Indian lenders alone cannot save the controversial \$3 billion as some of the foreign lenders are in favour of issuing the termination notice," said a source. The

Indian lenders are in favour of completing the project without any time and cost over-run. They have disbursed about 80 per cent of their Rs 1,500 crore worth of loan commitments to phase II of the project, 93 per cent of which is complete. The trial run is expected to commence in June. The board of the Dabhol Power Company has already authorised Enron India managing director, K Wade Cline, to serve a termination notice as and when he deems fit. At a meeting of the lenders last month in London, the foreign lenders were keen that the termination notice be served in the face of defaults by the Maharashtra State Electricity Board (MSEB) and the Union government's refusal to honour the counter-guarantee of Rs 102 crore for the December bill. The domestic lenders are not covered by the counter-guarantee if the contract is terminated. The foreign lenders are covered by the counter-guarantee.

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Enron to suspend investments of 600 mln usd in Brazil energy sector

05/15/2001 AFX News (c) 2001 by AFP-Extel News Ltd

SAO PAULO (AFX) - Enron Corp will suspend investments of 600 mln usd in the Brazilian energy sector, news agency JB Online quoted Enron vice-president and Eletricidade e Servicos SA Elektro chairman Orlando Gonzales as saying. Of the total investment, 500 mln usd was to be assigned to the expansion of the thermoelectric plant Cuiaba II in the state of Mato Grosso, and in the construction of Rogen in the state of Rio de Janeiro, with the remainder to be invested in unit Elektro, it said. "There are no clear regulations for the sector. Regulatory issues are holding back investments," JB Online quoted Gonzales as saying. Gonzales said the decision to suspend the investments may be reconsidered if the energy sector regulator Aneel establishes clearer regulations. mg/as For more information and to contact AFX: www.afxnews.com and www.afxpress.com

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USA: Sempra unit to boost natgas delivery to California.

05/15/2001 Reuters English News Service (C) Reuters Limited 2001.

SAN FRANCISCO, May 15 (Reuters) - Southern California Gas Co. (SCG) said in a statement on Tuesday it will add around 200 million cubic feet a day, or about six percent, to its pipeline system by the end of the year in order to meet the surge in demand for gas-fired power generation. Today's announcement comes two months after SCG, a unit of Sempra Energy , proposed to increase capacity on its system by 175 mmcf, or five percent. Both projects will add around 11 percent of new gas capacity to its transmission system this year, the company said in a statement. In its latest proposal, called the Kramer Junction Interconnect, SCG said it would build a 32-mile pipeline link to the Kern-Mojave pipeline system that will allow it to deliver around 200 mmcf into its system. The new capacity would be enough to drive three 500-megawatt power plants or enough gas to serve 1.4 million residential customers a day, the statement said. SCG, the nation's largest gas utility with more 18 million consumers in central and Southern California, said utilization of its intrastate transmission system in the past nine months had jumped from 75 percent to over 95 percent, due largely to the rise in gas-fired power generation. The company's announcement is the latest in several proposals to expand gas pipeline capacity to California, where demand for gas is expected to jump because of the number of gas-fired power plants being built or scheduled for construction. Gas is already used to generate about a third of California's electricity. And since April 1999, the state has approved 13 major gas-fired power plant projects with a combined generation capacity of more than 8,900 megawatts. Nine gas-fired power plants, with a total generation capacity of more than 6,000 megawatts, are under construction. Over the past two months plans to build or expand gas lines serving California have been announced by Enron unit Transwestern, Williams Cos' Kern River Transmission, El Paso Corp. units El Paso Natural Gas Co. and Mohave Pipeline Co., Pacific Gas & Electric Corp. unit National Energy Group, Questar Corp. , Calpine Corp. , and Kinder Morgan .

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Enron Urges Reforms In Japan Electricity Market-Nikkei

05/15/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

TOKYO (Nikkei)--Asserting that cuts in electricity prices will help Japanese companies save as much as Y4 trillion, major U.S. energy firm Enron Corp. (ENE) on Tuesday urged Japanese power firms to revamp the electricity market by

separating operations such as power generation, transmission and distribution, The Nihon Keizai Shimbun reported. Enron's 10-point proposal also calls for the construction of more power plants and full-scale deregulation of retail electricity, including sales to households. If such measures are carried out and electricity prices fall to match the levels of other industrialized nations, Japan's industrial sector could trim its costs by Y4 trillion, Enron said. At a seminar on power industry deregulation hosted by Enron, the company asserted that Japan's deregulation in such areas as wholesale electricity auctions in 1996 and bulk retail sales last year has not brought significant benefits to end-users. New suppliers entering the market only

Message 247 of 1299

Enron Mentions - 04/09/01

Sender	ann.schmidt@enron.com
Recipients	[]
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Bankruptcy won't be felt here: Hydro California firm owes\$200 million to B.C. Winnipeg Free Press, 04/09/01

Enron Broadband to Cut Jobs. The Oil Daily, 04/09/01

PG&E Parent Files for Bankruptcy to Recover \$9 Billion in Costs. The Oil Daily, 04/09/01

Enron India Moves To Protect Dabhol From Political Action Dow Jones International News, 04/09/01

Enron sends political force majeure notice to Indian electricity board AFX News, 04/09/01

INDIA: Enron's Indian unit cites political force majeure. Reuters English News Service, 04/09/01

Enron affiliate up for contract also up for sale Houston Chronicle, 04/09/01

City Bankruptcy won't be felt here: Hydro California firm owes\$200 million to B.C. Staff Reporter

04/09/2001 Winnipeg Free Press Metro a4 All material Copyright (c) Bell Globemedia Publishing Inc. and its licensors. All rights reserved.

While Manitoba Hydro earns more than \$1 million a day through electricity exports to the U.S., officials say the collapse of California's Pacific Gas & Electric will not affect its operations. "There's no direct impact," spokesman Glenn Schneider said yesterday. PG&E last week became the biggest public utility in U.S. history to file for bankruptcy. It owes more than \$200 million to B.C. Hydro and \$28 million to Calgary-based Enron Canada Corp. Manitoba Hydro doesn't export power to the west coast. But it does do a lot of business in the U.S. Exports resulted in record revenues of \$376 million for Manitoba Hydro in the last fiscal year. And sales to the United States for the first six months of the current year totaled \$261 million, compared to \$203 million for the same period last year. It's anticipated that Manitoba Hydro will soon sign a deal with Xcel, formerly known as Northern States Power. The deal, worth over a billion dollars, would see Hydro supply Minnesota and other Midwestern states with 500 megawatts, which represents about 10 per cent of Hydro's maximum capacity. "We're still working out some of the legal language but there's no apparent roadblocks," Schneider said. He said forecasters in Minnesota predict demand for hydroelectricity will be strong for the next 10 to 15 years. In the meantime, Schneider said Manitoba Hydro has contacted some California-based companies to see if they'd be interested in relocating to Manitoba where they are assured of cheap, reliable power. "There's been some nibbles but it's a long-term process," he said.

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Enron Broadband to Cut Jobs.

04/09/2001 The Oil Daily (c) 2001 Energy Intelligence Group. All rights reserved.

Energy trading giant Enron said Friday it will eliminate some 250, or roughly 20%, of the jobs at its broadband telecommunications unit, detailing a move that it has previously described as an internal redeployment of staff. Enron Broadband Services spokeswoman Kelly Kimberly said the company is cutting jobs at the unit, which now employs 1,150

people, because it has completed the building of its 18,000-mile fiber-optic network and because of slow demand for streaming media products delivered to personal computers, such as video of corporate events. The job cuts also reflect Enron Broadband's decision to play a less-active role in streaming media services. However, Kimberly said Enron Broadband will continue to pursue entertainment-on-demand services actively. Kimberly said employees whose jobs are being eliminated will be eligible for redeployment to other positions at Enron Broadband Services or other Enron units, although some could lose their jobs. (c) Copyright 2001. The Oil Daily Co. For more information, call 800-999-2718 (in U.S.) or 202-662-0700 (outside U.S.).

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PG&E Parent Files for Bankruptcy to Recover \$9 Billion in Costs.

04/09/2001 The Oil Daily (c) 2001 Energy Intelligence Group. All rights reserved.

After months of warnings about its precarious financial situation, Pacific Gas and Electric, the utility unit of PG&E Corp., on Friday filed for reorganization under Chapter 11 of the US Bankruptcy Code. Company executives said during a teleconference they believe the bankruptcy court will provide a fair and stable venue for resolving the financial crisis caused by more than \$9 billion in uncollected costs for power purchases. Under California's flawed deregulation plan, wholesale power costs move with the market, but the resale price to consumers is at a fixed rate. "The regulatory and political processes have failed us, and now we are turning to the court," said Robert D. Glynn Jr., chairman of both PG&E Corp. and the utility. Even though the state in January took over the power purchase function from Pacific Gas & Electric and Southern California Edison, the electric utility subsidiary of Edison International, Pacific Gas & Electric continues to accrue unreimbursed costs at the rate of \$300 million per month from purchases made by the California Independent System Operator on its behalf. In addition, Pacific Gas & Electric said continuing decisions by the California Public Utilities Commission (CPUC) have left the company at an economic disadvantage because of their failure to address the unrecovered costs issue. CPUC orders imposed new payment obligations on the company and thereby undermined its ability to return to financial viability. The CPUC also adopted what Pacific Gas & Electric described as "an illegal and retroactive accounting change that would appear to eliminate our true uncollected wholesale costs." Finally, the company said it recognized "the now unmistakable fact that negotiations with Gov. Gray Davis and his representatives are going nowhere." Glynn and Gordon R. Smith, president and chief executive of the utility, said they watched Davis' televised speech Thursday night, but they heard nothing that encouraged them that the state was going to address the unrecovered costs issue. The governor proposed a rate increase of up to 34.5%, but said those customers whose consumption dropped or remained flat likely would see no increase in their bills. The action would affect customers of San Diego Gas & Electric, which is financially healthy, as well as Pacific Gas & Electric and Southern California Edison. Davis presented his plan as an alternative to the rate hike proposed last month by the California Public Utilities Commission, which is seeking boosts of more than 40%. Trading in PG&E common stock was halted shortly before the bankruptcy announcement was made. At that time, PG&E was off only 2¢ to \$11.36. When trading resumed, PG&E plunged to less than \$7/share. Edison International took a big hit, falling more than 35% to \$8 shortly before the close of trading. Edison said it has no plans to put its utility into bankruptcy. Major power suppliers to California also saw their stocks dive initially, but most recovered some of the losses before the end of trading. Duke Energy, Dynegy, Enron, Mirant, Reliant Energy, and Williams Cos. were off between 2%-5%. El Paso actually was up slightly. Barbara Shook. (c) Copyright 2001. The Oil Daily Co. For more information, call 800-999-2718 (in U.S.) or 202-662-0700 (outside U.S.).

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Enron India Moves To Protect Dabhol From Political Action

04/09/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW DELHI -(Dow Jones)- In a new twist in the ongoing saga between the Dabhol Power Co. and India's Maharashtra State Electricity Board, the company Monday sent the Board a notice of political force majeure to enforce its rights under a 1995 power purchase agreement between the two parties. "I can confirm that Dab

Message 248 of 1299

Enron Mentions - 06/25/01

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The State Power Regulators to Determine State Refunds Energy: Generators and California officials will work together for 15 days to solve the huge mathematical problem. Los Angeles Times, 06/25/01

THE ENERGY CRUNCH / \$9 billion showdown over power / State delegation seeking refunds The San Francisco Chronicle, 06/25/01

California Power Suppliers May Have to Refund Billions. The Oil Daily, 06/25/01

Californians Get Rude to Enron Executives. The Oil Daily, 06/25/01

Power Plays: Beaten-down energy stocks look attractive Barron's, 06/25/01

SURVEY - POLAND - Why overseas energy investors are failing to generate high returns. Financial Times, 06/25/01

India: L&T seeks 51 pc stake in Vijaynagar power project Business Line (The Hindu), 06/25/01

Rolls charged up on power generation The Economic Times, 06/25/01

California; Metro Desk The State Power Regulators to Determine State Refunds Energy: Generators and California officials will work together for 15 days to solve the huge mathematical problem. MEGAN GARVEY TIMES STAFF WRITER

06/25/2001 Los Angeles Times Home Edition B-7 Copyright 2001 / The Times Mirror Company

WASHINGTON -- Starting today, federal power regulators will begin trying to solve one of the riddles of the energy crisis: How much of a refund will California get? One thing seems clear: The reduction will be a lot more than the \$125-million refund ordered to date, in all likelihood soaring to more than \$1 billion. Over the next 15 days--the Federal Energy Regulatory Commission is mandating no weekends off--warring representatives from power companies and the state of California will sit at the same table in a government conference room while a FERC task force wrestles the question to the ground. The task is to determine the price that power would have cost if FERC's decision to impose soft caps had been made not last week, but last fall. It is a daunting mathematical problem, factoring in hourly charges during the last eight months. To come up with a total, federal regulators, state electricity officials and power generators must determine what the highest price for a megawatt should have been under the soft price caps now in effect. Then they have to figure out which companies--if any--were charging more. Under the recent FERC ruling, the price of electricity during any given hour cannot exceed the actual cost of generating the least efficient--or most expensive--power coming into the grid. Curtis L. Wagner, the 72-year-old chief judge for FERC who is overseeing negotiations on California's overcharges, said of this morning's events: "It will be a zoo." Wagner, who headed into the weekend with three inches of documents to sort through, explained that Gov. Gray Davis wants \$9 billion knocked off the amount the power generators charged California. "I don't really think it's that high," said Wagner, predicting the refund will be more than \$1 billion but probably far from \$9 billion. "We have folks trying to do some adding now and some work on what the number should be," he said. Wagner said the money at stake will be the most he has worked on in his nearly three-decade career at the agency. Until recently, the likelihood of massive refunds seemed nil. Although California lawmakers--led by Davis--had demanded relief for costs that ran as high as 10 times or more than the rates a year ago, FERC officials had not agreed. And their minds seemed set. When FERC first proposed remedies for the California price increases late last year, commissioners said: "Refunds may be an inferior remedy from a market perspective and not the fundamental solution to any problems occurring in California markets." To date, FERC has ordered \$125 million in refunds for alleged overcharges in January and February. But with the recent appointment of two new commissioners by President Bush--Republicans Patrick H. Wood III of Texas and Nora M. Brownell of Pennsylvania--FERC's position softened, leading to the price mitigation ordered last week. Now FERC is taking a closer look at the prices already charged. California lawmakers have pegged overcharges at nearly \$9 billion since the California market went haywire last summer--a number that comes from a study done by Cal-ISO, the operator

of California's electricity grid. Cal-ISO officials acknowledged last week that the study might have significant flaws. Among companies that may be required to reduce their bills are energy giants Enron Corp., Mirant Corp., Duke Energy Corp., Williams Cos. and Reliant Energy Inc.--all of which are expected to have representatives at the negotiations. The companies have hotly disputed the amount of overcharges alleged by Davis and other California lawmakers and point out that they have yet to be paid for the vast majority of electricity sold in the state in recent months. Today, Wagner said he plans to make opening statements to the media. After that, he said he hasn't determined how much of the wangling will be done behind closed doors. If the parties don't come to an agreement in 15 days, Wagner will have seven days to make a recommendation on refunds to FERC's five commissioners. It is a process that may be repeated down the road if Sen. Barbara Boxer (D-Calif.) and other California politicians get their way. Boxer has introduced legislation that would give FERC retroactive power to order refunds--all the way back to July 2000, when San Diego first faced huge spikes in electricity costs.

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NEWS THE ENERGY CRUNCH / \$9 billion showdown over power / State delegation seeking refunds Lynda Gledhill, Christian Berthelsen Chronicle Staff Writers

06/25/2001 The San Francisco Chronicle FINAL A.1 (Copyright 2001)

A critical showdown in California's energy crisis starts this morning, as state officials meet with energy companies to demand \$9 billion in refunds. A 15-day settlement conference, ordered as part of the Federal Energy Regulatory Commission's decision last week to put price controls on wholesale electricity prices, will bring together the parties that have been squabbling for the past year. "We are going to Washington with one goal, and that is to bring back \$9 billion," Gov. Gray Davis told reporters yesterday. "The fact is that people have taken advantage of the market, gamed the system and ripped people off." But Davis' crusade may be dampened by challenges to the study the state used to arrive at the \$9 billion figure and by a FERC mediator's prediction that California will walk away with less than it is demanding. The Democratic governor's figure is based on an update of a March study by the California Independent System Operator, which manages the state's power grid. Some energy experts argue the study is flawed, but the ISO stood firm behind its methodology yesterday. Curtis L. Wagner Jr., the FERC administrative law judge who will oversee the meeting, said in an interview with The Chronicle yesterday that he was optimistic a settlement would be reached. Wagner said the \$9 billion "seems a little high. And the generators' numbers seem low. We'll probably come out somewhere in between." The veteran mediator, who spent yesterday reviewing spreadsheets submitted by the parties, said he will look at applying last week's commission price control order back to October. "I think we should put the refund issue to rest," Wagner said. "I'm sure we can agree on a structure that is fair to everybody." Enron Corp, Reliant Energy Inc., Duke Energy Corp., Williams Cos., Dynegy Inc. and Mirant Corp. are among the companies facing allegations of illegally overcharging California. The companies say the high prices were a result of the high costs of natural gas used to gene

Message 249 of 1299

Re: Public Affairs Committee Conference Call Wednesday at 10:00

Sender	jeff.dasovich@enron.com
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----- Forwarded by Jeff Dasovich/NA/Enron on 03/19/2001 08:34 PM -----

=09Jean Munoz <jmunoz@mcnallytemple.com> =0903/19/2001 08:25 PM =09=09=20 =09=09 To: Katie Kaplan <kaplan@iepa.com>, "Andy Brown (E-mail)"=20 <ABB@eslawfirm.com>, "B Brown Andy (E-mail)" <andybrwn@earthlink.net>=20 "Baker Carolyn (E-mail)" <cabaker@duke-energy.com>, "Bob Escalante=20 (E-mail)" <rescalante@riobravo-gm.com>, "Bob Weisenmiller (E-mail)"=20 <rbw@mrwassoc.com>, "Curtis Kebler (E-mail)"=20 <curtis_l_kebler@reliantenergy.com>, "Douglas Kerner (E-mail)"=20 <DKK@eslawfirm.com>, "Greg Blue (E-mail)" <gtbl@dynegy.com>, "Jan=20 Smutny-Jones (E-mail)" <smutny@iepa.com>, "Jeff Dasovich (E-mail)"=20 <Jeff.Dasovich@enron.com>, "Joe Ronan (E-mail)" <joer@calpine.com>, "Joh= n=20 Larrea (E-mail)"

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Attached (and below) is a copy of the PR memo for this week's Public Affair= s=20 Committee Conference Call. ?Katie will be sending out additional informatio= n=20 related to the call later today.

Thanks, Jean

--=20 Jean Munoz McNally Temple Associates 916-447-8186 916-447-6326 (fx)

March 20, 2001

PR UPDATE

To: ???IEP PR Committee Fr: ???Ray McNally, Richard Temple, Jean Munoz, Tom Ross Re: ???PR Update

Key Messages

? When it comes to the upcoming Senate Hearings all we are asking for are:= =20 ?Facts, Fairness and Accountability=20 ? This crisis can only be solved if we all work together to find solutions= =20 that increase supply and reduce demand ? IEP members are investing billions of private-sector dollars to buy,=20 modernize and build power plants in California=20 ? Long term contracts are the way to protect consumers, and stabilize price= s=20 ? We need to create a stable regulatory and political environment ? California is not an island =01. and we import far more than we export=20

Target Briefings

? State Senate and Assembly Republican and Democrat Caucuses =01. Once Seei= ng=20 the light is revised

Collateral Materials

? California Journal Ad April =01. "We're working around the clock to keep = the=20 lights on" ? California Journal Ad May =01. Proposed theme: We're part of the solution= =01.=20 working to keep the lights on this summer.=20 ? Seeing the Light Update (now called "Powerful Ideas") =01. Draft one bein= g=20 circulated for approval. ?Once complete will distribute to capitol press=20 corps, statewide media, legislature, key federal policy makers ? Weekly distributions =01. SB 39x, outage standards ? Web-site =01. www.turnonthetruth.com, continue to update

Earned Media

? Teleconference briefings with press =01. On Fridays, or as needed ? Statewide and national media outreach =01. Ongoing ? Editorial Board Meetings =01. Proposed Topics: outage coordination and=20 maintenance standards; solutions need to increase supply and reduce demand,= =20 California First. Targeting: Sacramento Bee, LA Times, San Francisco=20 Chronicle, San Jose Mercury News, Alameda News Group, San Diego Union Tribu= ne ? "Powerful Solutions" briefing for reporters and editorial boards ??? ? Response to Senate Investigation =01. available to respond to TV and radi= o=20 media at press conference, and issued statement (IEP reaction covered by:= =20 ?KFBK am 1530; Metro Networks Radio; KCRA, NBC- 3; ?KTXL FOX-40; KXTV ABC= =20 -10, National Public Radio, Associated Press, Sacramento Bee) ??? ? Response to San Francisco Chronicle article =01. Op-ed drafted to be subm= itted=20 on behalf of the California Manufacturers and Technology Association. ?Lett= er=20 to the editor to be submitted on behalf of IEP.=20

Proposed Activities to Defend Industry

? Message training prior to Senate Investigative Hearing ? One on one meetings with key supporters ? Media tours of power plants ? Editorial board meetings

Media Contacts 3/12 d 3/19 (partial list):

? KFBK am 1530, Mike Ward ? Metro Networks Radio, Don Andrews ? KCRA, NBC- 3, Kevin Riggs ? KTXL FOX-40 ? KXTV ABC d10 ? KPIX, CH. 5 San Francisco ? National Public Radio, Capitol Morning Report, Mike Montgomery ? Craig Rose, San Diego Union Tribune ? David Ward, Bloomberg ? Dan Weintraub, Sacramento Bee ? George Spencer, Restructuring Today ? Jeff Barber, McGraw Hill ? Gretchen Wenner, Business Journal ? Don Thompson, Associated Press ? Jennifer Coleman, Associated Press ? Jennifer Warren, Los Angeles Times ? KGO Radio, San Francisco ? Leslie Burkman, Riverside Press Enterprise ? Jeff McDonald, San Diego Union Tribune ? Mike Taugher, Contra Costa Times ? Greg Lucas, San Francisco Chronicle ? Jennifer Bjorhus, San Jose Mercury News ? Phil Yost, San Jose Mercu

Message 250 of 1299

Enron Mentions

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File	dasovich-j/all_documents/10392.

Enron stock surges on executive's assurances Associated Press Newswires, 03/23/01

USA: Cinergy buys two U.S. Southeast power plants from Enron. Reuters English News Service, 03/23/01

USA: UPDATE 1-Enron seeks to assuage investor fears of broadband. Reuters English News Service, 03/23/01

Enron Teleconf.: Core Business Highlights and Outlook Bloomberg, 03/23/01

Cinergy Capital & Trading Completes Acquisition of Merchant Bloomberg, 03/23/01

Enron Says Portland General Sale Probably Won't Close (Update2) Bloomberg, 03/23/01

Enron stock surges on executive's assurances

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HOUSTON (AP) - Shares of Enron Corp. surged nearly 8 percent Friday as chief executive officer Jeffrey Skilling assured analysts there are no layoffs planned for the company's broadband division. Enron shares began plunging this week because of layoff rumors, setting a 52-week low of \$51.51 before rebounding. Houston-based Enron closed up \$4.38 Friday to \$59.40 on the New York Stock Exchange. Skilling called the company's stock price drop to the low-\$50 range "just crazy." The rumors surfaced after some staffing changes were made at the broadband division, which Skilling said should perform better than expected this quarter. The conference call came a day after Enron repeated its expectation of earning between \$1.70 and \$1.75 per share. The consensus of analysts surveyed by First Call/Thomson Financial is \$1.74 per share. On the Net: <http://www.enron.com>

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USA: Cinergy buys two U.S. Southeast power plants from Enron.

03/23/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, March 23 (Reuters) - Cinergy Capital & Trading Inc., a unit of Cincinnati, Ohio-based Cinergy Corp. , said Friday it completed the acquisition of two merchant generating facilities in the Southeast from Enron North America. The two companies announced in December, 2000 they had signed a definitive agreement subject to regulatory approvals, which have now been received, Cinergy said in a statement. Financial terms of the transaction were not disclosed. The plants are the 494-megawatt (MW) Brownsville generation facility in Haywood County, Tennessee and the 504-MW Caledonia generation facility in Lowndes County, Mississippi. Both are natural gas-fired units. Cinergy Corp., owns, operates or has under development over 21,000 MW of generation. The company provides service to about 1.5 million electric and about 500,000 natural gas customers in Ohio, Indiana and Kentucky. Houston-based energy giant Enron Corp. produces electricity and natural gas, develops, constructs and operates energy facilities worldwide, and delivers physical commodities and financial and risk management services to customers around the world. - New York Power Desk, 212 859-1627, fax 212 859-1758, e-mail Eileen.Moustakis@reuters.com.

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USA: UPDATE 1-Enron seeks to assuage investor fears of broadband. By C. Bryson Hull

03/23/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, March 23 (Reuters) - Enron Corp.'s top executive set out on Friday to assuage investor fears about trouble in the company's broadband unit, assuring Wall Street that the nascent business was on track to meet its targets. Enron president and chief executive Jeff Skilling told analysts on a conference call that the broadband unit, which has been the subject of false layoff rumors, is in good shape and would actually benefit from the current weak market for bandwidth capacity. "My expectation is that we will see over 400, maybe over 500 transactions this quarter, which shows this business is absolutely developing. It is ahead of plans," Skilling said. If expectations are met, Enron will have cut roughly twice as many deals for the first quarter of 2001 as it did in the fourth quarter of 2000, when it performed 236 transactions, Skilling said. In all of 2000, Enron cut 321 broadband deals, he said. Enron has said it expects a sevenfold increase in bandwidth transactions in 2001 compared with last year. The conference call followed two hard days for Enron's stock which lost about 8 percent of its value and dropped under \$59 for the first time since January 2000. Investors, already pushing the stock price up before Skilling's midday call, reacted favorably to his comments on Friday as shares closed at \$59.40, up \$4.31 - nearly eight percent higher. "It seems to me that there have been a lot of little negatives developments along the way and these have taken their toll on the stock, in fact I think the stock has clearly overreacted," UBS Warburg analyst Ron Barone said. LONG BANDWIDTH SUPPLY A BONUS - A long supply of bandwidth capacity and a weak telecom market translates to a savings of about \$500 million in capital costs Enron laid out to develop its bandwidth network this year, Skilling said. "We will not have to make as ... large an investment in our network as we had expected because we are going to have access to third-party networks much more easily than we could have possibly expected," he said. "There is a huge amount of capacity out there and people are desperate to sell capacity for cash," Skilling said. That should translate to a \$500 million drop in Enron Broadband Services' (EBS) 2001 capital budget of \$750 million. Commerzbank Securities analyst Andre Meade said growing liquidity and access is a good sign for Enron's bandwidth trading business. "If prices fall, Enron is largely agnostic because there is just a big a need to optimize the price of fiber transport when prices are falling as when prices are rising," Meade said. Meade said he was not certain whether some of the shrinking capital outlay might be related to Enron's broadband content business, which suffered a blow three weeks

ago with the collapse of its 20-year-exclusive video on demand deal with Blockbuster Inc.. BROADBAND RUMORS FUELED STOCK DROP Some analysts have attributed two consecutive days of price drops in Enron's stock to false rumors of layoffs at EBS and the market's devaluation of that unit in light of weakness in the technology and telecom sectors. Skilling reiterated earlier denials of layoff talk, which Enron says was prompted by a shift of personnel inside EBS. "Enron had a very specific purpose on the conference call which was to dispel rumors about their bandwidth unit and they said they are not true," Salomon Smith Barney analyst Ray Niles said. Niles said the broadband numbers Skilling gave look in line with reaching the target of a sevenfold increase, which "would fully validate the potential of the market," Niles said. Skilling addressed lingering concerns over payment problems at its Dabhol power plant, the California power crisis and reaffirmed Enron's projected earnings per share of \$1.70-\$1.75 in 2001. "Our credit exposure in California has actually dropped, so regardless of what happens in California the \$1.70-1.75 numbers I think look great," Skilling said. On Dabhol, Skilling reiterated his view that India's national government would continue to honor its contract to back power payments if the Maharashtra state government did not.

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Enron Teleconf.: Core Business Highlights and Outlook 2001-03-23 15:07 (New York)

Houston, March 23, 2001 (Bloomberg) -- Jeffrey Skilling, chief executive of Enron Corp., speaks on a teleconference about the performance of the company's core businesses, the outlook for the sale of Portland General Electric Co. and Enron's 2001 financial forecast. R

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Enron Mentions

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USA: Transwestern plans expansion at Ariz. compressor stations. Reuters English News Service, 03/29/01

Enron Unit Files Application For \$93M Expansion Project Dow Jones News Service, 03/29/01

El Paso's Calif Gas Play Was Smart,Not Crooked -Analysts Dow Jones Energy Service, 03/29/01

USA: Maytag farms out energy buying to TXU in 5-year deal. Reuters English News Service, 03/29/01

EPA's Next Challenge: What to Do About Lead Emissions (Update1) Bloomberg, 03/29/01

Enron team trying to keep ahead of MS 150 pack Houston Chronicle, 03/29/01

USA: Transwestern plans expansion at Ariz. compressor stations.

03/29/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, March 29 (Reuters) Transwestern Pipeline Co. (TW), a unit of Enron , said in a statement on Thursday it planned to install new compression at four existing stations in Arizona to boost gas deliveries to energy-starved California. The company said it had filed an application with the Federal Energy Regulatory Commission (FERC) to expand its system by 150 million cubic feet per day (mmcf/d) of incremental firm capacity. TW's total capacity to the California border will increase to 1.24 billion cubic feet per day (bcfd). The \$93 million project is expected to be in service by June 2002. "This expansion is a start in meeting the increased demand in California and represents additional capacity that can be brought on-line by next summer. Transwestern also plans a more extensive expansion in the future," said Stan Horton, chairman of Enron Transportation Services Company.

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Enron Unit Files Application For \$93M Expansion Project

03/29/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- Enron Corp.'s (ENE) Transwestern Pipeline Co. unit filed an application with the Federal Energy Regulatory Commission for a \$93 million expansion project, expected to be in service by June 2002. In a press release Thursday, the company said it would install new compression at four existing stations in Arizona to expand the system by 150 million cubic feet per day, or MMcf/d, of incremental firm capacity. Transwestern Pipeline's total capacity to the California border will increase to 1.24 billion cubic feet per day. Transwestern Pipeline consists of about 2,500 miles of pipeline with 1.7 Bcf/d of peak capacity. Shares of Enron closed at \$55.31, down \$2.79, or 4.8% on Nasdaq volume of 5.7 million shares. Average daily volume is 4.2 million shares. Enron, which had 2000 revenue of \$101 billion, markets electricity and natural gas. Company Web site <http://www.enron.com> -Karen M. Chow; Dow Jones Newswires; 201-938-5400

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El Paso's Calif Gas Play Was Smart,Not Crooked -Analysts By John Edmiston

03/29/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

OF DOW JONES NEWSWIRES

HOUSTON -(Dow Jones)- When El Paso Merchant Energy bought up most of the capacity on a key natural gas pipeline to California, it was taking a "gamble" on higher profits, not trying to corner a market, analysts said. The auction in which El Paso Merchant Energy bought the capacity from fellow El Paso Corp. (EPG) affiliate El Paso Natural Gas was legitimate, and supply and demand factors proved the decision sound, they said. "El Paso took a gamble on its pipeline capacity, and the fundamentals worked out to support their trading position," said Kyle Cooper, an energy analyst with Salomon Smith Barney in Houston. California officials, struggling to cope with soaring power prices that have been driven higher in part by spiking prices of natural gas, see things differently. The El Paso pipeline is one of only two main links feeding energy from the Southwest's natural gas storage pools into California, and state officials contend the Houston-based energy company was trying to manipulate the price of gas in the state when it bought up capacity in an auction early last year. Natural gas in southern California has traded much higher than gas in northern California in recent months. At their highest, in December, the price of gas in southern California spiked to \$60 per million British thermal units, six times the cost of gas at the other end of the pipeline in Texas. Prices spiked again in February and March and remain much higher than the price of gas in producing regions. The U.S. Federal Energy Regulatory Commission Wednesday rejected a complaint from the California Public Utilities Commission alleging that El Paso Natural Gas skewed the bidding process for critical natural gas pipeline capacity into California. But the commission ordered an administrative hearing to address concerns that El Paso controls too much pipeline capacity and is driving up prices at the California border. The California Legislature was to examine the allegations in its own series of hearings next week. On Monday, The New York Times weighed in, reporting that sealed documents filed with FERC suggest El Paso sought to increase its profits by manipulating natural gas price spreads between its supply basins in Texas and New Mexico and the California energy markets. Charlie Sanchez of Gelber & Associates in Houston said it's unlikely any wrongdoing will be uncovered. "This market has become so complicated that many don't know the objectively correct answer to the questions at hand," Sanchez said. "It's likely the forces at work will be deemed perfectly legal." El Paso spokesman Aaron Woods referred requests for comment to previous denials of manipulation.

Charges Are Political - Analyst

California's charges against are politically motivated, said Ron Barone, an analyst with of UBS/PaineWebber Inc. in New York. "California needs more pipeline capacity, more power plants, less finger-pointing and less resistance to rate hikes that would immediately trigger a demand response," Barone said. The state's gas-transportation shortfall wasn't always apparent. Before last year, capacity into California was considered oversupplied, El Paso executives say: Demand didn't cover available capacity, so the company discounted its prices. California entities have failed to bid realistically to renew capacity in auctions over the past three-and-a-half years, Barone said, even when cost of that capacity was substantially below the rates allowed by regulations. For years the capacity on El Paso's line to California never made money, Cooper said. As a result, there was little incentive for anyone to build new pipelines. Demand from power generators has pushed up the state's appetite for gas. According to John Somerhalder, president of El Paso's Pipeline Group, requests for gas capacity on pipeline expansions into California are running more than 12 times what they were a year ago. "El Paso had the foresight to take a calculated risk on the value of that capacity and it worked in their favor," Cooper said. "If those fundamentals - a normal winter and excess demand and lessened storage capacity across the country - hadn't worked

out, they'd have lost that 8 cents Dynegy was willing to pay them." El Paso Merchant Energy reported year 2000 earnings before interest and taxes of \$563 million, nearly a six-fold increase from adjusted earnings before interest and taxes the year before. El Paso has said that it couldn't take advantage of the price spikes allegedly produced by market manipulation, because it began hedging its risk in the middle of last year by selling its gas forward to third parties. By the end of the year, it was nearly 90% hedged, Barone said. "This hedging capacity is proof that once El Paso actually had ca

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Enron Mentions - 4/27/01

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Poland-Norway Gas Deal Might Hit Mkt Liberalization Dow Jones Energy Service, 04/27/01 Peoples Energy Reports Second Quarter Results Reaffirms Fiscal 2001 Estimate PR Newswire, 04/27/01 Report: Enron official given authority to end power project in India Associated Press Newswires, 04/27/01 State employees' retirement funds benefitting from power crisis Associated Press Newswires, 04/27/01 DHABOL BOARD EMPOWERED TO END POWER CONTRACT WITH INDIAN STATE Asia Pulse, 04/27/01 NO ADVERSE FALLOUT TO COME FROM ENRON DECISION: INDIAN MINISTER Asia Pulse, 04/27/01 India: Starving oneself to stuff others? Business Line, 04/27/01 HEADING The Times of India News Service, 04/27/01

Success of state bandh isolate BJP The Times of India, 04/27/01

Additional power for Delhi promises Prabhu The Times of India, 04/27/01

Enron ready to pull out, but lenders say wait The Times of India, 04/27/01

India's single largest foreign investor threatens to pull out Agence France-Presse, 04/27/01

Indian Utility Pays \$28 Million March Bill To Enron The New York Times, 04/27/01

DAILY BRIEFING The Atlanta Constitution, 04/27/01

Business Brief -- Enron Corp.: Sale of Utility Subsidiary To Sierra Pacific Is Canceled The Wall Street Journal, 04/27/01

Indian State to Pay Enron for March Supply Asian Wall Street Journal, 04/27/01

Colombia Suspends Isagen Sale Pending Court Ruling, Papers Say Bloomberg, 04/27/01

Poland-Norway Gas Deal Might Hit Mkt Liberalization By Joe Harper Of DOW JONES NEWSWIRE

04/27/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

WARSAW -(Dow Jones)- Poland will limit its chances of developing a flexible and diversified gas market if the government goes ahead with a long-awaited gas import deal with Norwegian and Danish companies, said a participant at the Power in Poland conference in Warsaw this week. "Entering into long-term guaranteed take-or-pay contracts with Norwegian and Danish partners would result in the incumbent contract holders having an incentive to delay domestic gas market liberalization at any cost," said Jarek Astramowicz, president of Enron Poland, the Polish unit of the U.S.'s Enron Corp. (ENE). The incumbent contract holder - Poland's gas monopoly Polskie Gornictwo Naftowe i Gazownictwo (R.PGN), or PGNiG - said recently it will sign a long-term, guaranteed take-or-pay contract with Norway's state oil company Statoil AS (Y.DNS) and Danish state-owned oil and gas utility DONG in May. The three parties are negotiating a trade deal that could see between five and eight billion cubic meters (bcm) a year exported from Norway and Denmark to Poland by 2007. According to Polish press reports Statoil reportedly wants financial guarantees from the Polish government before signing any sales agreement with PGNiG. The Norwegians also said they need to sell at least eight bcm of gas a year to Poland to make the project financially viable, while the Polish side has said it wants to import only 5 bcm a year. PGNiG president Andrzej Lipko said this week PGNiG and Statoil were "negotiating intensively," but didn't say when a deal might be signed. Astramowicz said the deal would reduce the Polish side's room for maneuver in future gas importation and corner Poland

into accepting gas at higher prices than it could find on E.U. markets when the Polish and E.U. grids are fully interconnected. Enron, like other traders, operates best in markets where there is greater liquidity, and the Norway deal would dry up considerable amounts of potential liquidity. Astramowicz added that the Polish market would be oversupplied if the deal goes ahead, pushing up end-user prices. And it's the projected increases in demand for gas in Poland over the next 10 years that presents the major problem. Barbara Litak-Zarebska, Deputy Treasury Minister, said this week gas demand projections were largely based on an expected rapid shift from coal-powered to gas-powered electricity generation in Poland. Poland's Economy Ministry estimates the country's current annual gas consumption at 10.5bcm-11 bcm, and expects this total to reach 18.4 bcm by 2010, including 6.1 bcm to be consumed by the newly constructed, gas fired power plants. Astramowicz said this projection was too high, claiming the power sector was likely to take only 2.5bcm-3.5 bcm by 2010. "Furthermore, power generated from gas cannot compete with power generated by coal-fired power plants in price terms. Therefore, this source of increase in gas demand will not materialize in the near future," he said. As an alternative to the Norway deal Astramowicz pointed to western European gas trading hubs already offering flexible gas supply contracts with terms of up to ten years. "For example, competitively priced gas supplies based on the contracts executed in Zeebrugge (Belgium) or Emden (Germany) are already reaching customers in eastern Germany today and, as Polish gas consumption grows, could easily be used to source any additional gas supplies needed for customers in Poland," said Astramowicz. He also pointed to potential import price advantages from the E.U. He said gas imported from the E.U. would cost about \$135/1000cm, against a price on the current Yamal contract of \$120/1000cm and a Norwegian gas price (including the estimated transmission charge to the Polish border of \$20/1000cm), of \$150/1000cm. PGNiG's Lipko said that imported Russian gas prices would not be \$30 cheaper than Norwegian supplies once a pipeline linking the two countries had been built. By Joe Harper, Dow Jones Newswires; 48-22 622-2766; joe.harper@dowjones.com

Peoples Energy Reports Second Quarter Results Reaffirms Fiscal 2001 Estimate

04/27/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

CHICAGO, April 27 /PRNewswire/ -- Peoples Energy (NYSE: PGL) reported today that its second quarter earnings for the three month period ended March 31, 2001 were \$62.5 million, or \$1.77 per share, up from \$57.4 million, or \$1.62 per share for the same period a year ago. For the most recent six month period, earnings were \$98.8 million or \$2.80 per share, compared to \$87.0 million, or \$2.45 per share for the same period last year. Quarterly and fiscal year-to-date results were positively impacted by weather that was colder than the prior year periods by 19% and 23%, respectively, offset by the negative impact of gas prices that were at record levels. The combined effect of these two factors is reflected in current accounts receivable balances, which are significantly higher than a year ago. The company has implemented several flexible payment programs and is actively pursuing collection of past due amounts. "We are pleased with the results from our gas distribution business despite challenging circumstances and with the continuing growth from our diversified business segments," said Richard E. Terry, chairman and chief executive officer. "We are reaffirming our earlier fiscal 2001 earnings estimate of \$3.05 to \$3.15 per share, assuming normal weather and planned utility performance for the rest of the year. The South Texas oil and gas property acquisition that we announced today will add \$.10 to \$.15 per share to that projection." Peoples Energy reported second quarter and fiscal year-to-date results for its primary business segments: Gas Distribution. Operating income was \$101.6 million for the second quarter and \$180.0 million for the six month period, as compared to \$98.9 million and \$156.3 million, respectively, in the prior year. The increases were mainly due to colder weather, reduced depreciation expense, and the positive effects of pension benefit accounting, offset by increases in the provision for uncollectible accounts and customer conservation

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Gov's Proclamation	
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----- Forwarded by Jeff Dasovich/NA/Enron on 01/03/2001 04:05 PM -----

"Julee Malinowski-Ball" <jmball@ns.net> 01/03/2001 02:24 PM Please respond to "Julee Malinowski-Ball"

To: <kaplan@iepa.com>, "Jean Munoz" <jmunoz@mcnallytemple.com>, "Norton Kelli" <knorton@mcnallytemple.com>, "Rob Lamkin" <rllamkin@seiworldwide.com>, "kent Palmerton" <kent.palmerton@williams.com>, "Bob Escalante" <rescalante@riobravo-gm.com>, "Carolyn Baker" <cabaker@duke-energy.com>, "Curtis Kebler" <curtis_l_kebler@reliantenergy.com>, "David Parquet" <dparque@ect.enron.com>, "Greg Blue" <gtbl@dynegy.com>, "Jack Pigott" <jackp@calpine.com>, "Jeff Dasovich" <Jeff.Dasovich@enron.com>, "Joe Ronan" <joer@calpine.com>, "John Stout" <john_h_stout@reliantenergy.com>, "Kassandra Gough" <kgough@calpine.com>, "Lynn Lednicky" <lale@dynegy.com>, "Nam Nguyen" <nam.nguyen@powersrc.com>, "Richard Hyde" <rwhyde@duke-energy.com>, "Roger Pelote" <roger.pelote@williams.com>, "Stephanie Newell" <stephanie-newell@reliantenergy.com>, "Sue Mara" <smara@enron.com>, "Tony Wetzel" <twetzel@thermoecotek.com>, "William Hall" <wfhall2@duke-energy.com> cc: "Susan McCabe" <sfmccabe@mindspring.com>, "Scott Govenar" <sgovenar@govadv.com>, "Ron Tom" <thackbarth@govadv.com>, "Robert Ross" <robbiz@cwo.com>, "Phil Isenberg" <Isenberg@HMOT.com>, "Mike Monagan" <mmonagan@aol.com>, "Maureen OHaren" <Oharen@HMOT.com>, "Marie Moretti" <marie_moretti@msn.com>, "Jenn Paulsen" <paulsen@HMOT.com>, "Jamie Parker" <jparker@HMOT.com>, "Hedy Govenar" <hgovenar@acom2.com>, "DJ Smith" <djsmith@smithandkempston.com>, "Delany Hunter" <dhunter@smithandkempston.com>, "Cary Rudman" <cjrudman@softcom.net>, "Bev Hansen" <bhansen@lhom.com>, "Anne Kelly" <kelly@hnks.com>, "Chuck Cole" <ccole@advocation-inc.com>, "Jan Smutny Jones" <smutny@iepa.com>, "Steven Kelley" <steven@iepa.com> Subject: Re: Republican Caucus Energy Briefing

OFFICE OF THE GOVERNOR

PR01: 02 FOR IMMEDIATE RELEASE January 3, 2001

GOVERNOR DAVIS CALLS SPECIAL LEGISLATIVE SESSION ON ENERGY

SACRAMENTO - Governor Gray Davis today issued a proclamation requiring the legislature to convene a special session to pass legislation addressing California's energy crisis.

According to the guidelines of the proclamation, the session will focus on legislation that:

Affects the availability, consumption, and use of energy; Governs the finances and organization of the California Independent System Operator (ISO) and the California Power Exchange (PX); Addresses the operation, maintenance, and finances of California power generators and utilities; Affects the wholesale and retail markets for energy supplies, capacity, and reliability; and Protects the health and safety of Californians with respect to power-generating facilities and transmission facilities. "In response to the Federal Energy Regulatory Commission's (FERC) failure to meet its obligations, I am taking the extraordinary step of calling the California Legislature into a concurrent Extraordinary Session to immediately address the energy situation in our state," said Governor Davis. "I will call them to do at least the following: Replace the so-called stakeholders on the ISO Board with Californians who are more concerned about affordable prices and reliability of power and; re-establish the authority for the state to inspect private power plants to assure the coordination of maintenance and operating schedules; and provide low-interest financing for new peaking facilities or re-powering old ones to make them cleaner and more efficient in return for committing their power to Californians at guaranteed low rates."

Governor Davis used his constitutional power to call for the special session (Section 3(b) Article IV). The session will begin on January 3, 2001. Each house of the legislature will be responsible for the scheduling of hearings and the calendar for the session.

Governor Davis called a special session on education in 1999, and the legislature passed a series of sweeping initiatives to improve academic performance and accountability.

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---- GOVERNOR GRAY DAVIS ? SACRAMENTO, CALIFORNIA 95814 ? (916) 445-2841

----- Original Message -----

From: Katie Kaplan <kaplan@iepa.com> To: Jean Munoz <jmunoz@mcnallytemple.com>; Norton Kelli <knorton@mcnallytemple.com>; Rob Lamkin <rlamkin@seeworldwide.com>; Julee Malinowski-Ball <jmball@ns.net>; kent Palmerton <kent.palmerton@williams.com>; Bob Escalante <rescalante@riobravo-gm.com>; Carolyn Baker <cabaker@duke-energy.com>; Curtis Kebler <curtis_l_kebler@reliantenergy.com>; David Parquet <dparque@ect.enron.com>; Greg Blue <gtbl@dynegy.com>; Jack Pigott <jackp@calpine.com>; Jeff Dasovich <Jeff.Dasovich@enron.com>; Joe Ronan <joer@calpine.com>; John Stout <john_h_stout@reliantenergy.com>; Cassandra Gough <kgough@calpine.com>; Lynn Lednicki <lale@dynegy.com>; Nam Nguyen <nam.nguyen@powersrc.com>; Richard Hyde <rwhyde@duke-energy.com>; Robert Lamkin <rlamkin@seeworldwide.com>; Roger Pelote <roger.pelote@williams.com>; Stephanie Newell <stephanie-newell@reliantenergy.com>; Sue Mara <smara@enron.com>; Tony Cc: Susan McCabe <sfmccabe@mindspring.com>; Scott Govenar <sgovenar@govadv.com>; Ron Tom <thackbarth@govadv.com>; Robert Ross <robbiz@cwo.com>; Phil Isenberg <Isenberg@HMOT.com>; Mike Monagan <mrmonagan@aol.com>; Maureen OHaren <Oharen@HMOT.com>; Marie Moretti <marie_moretti@msn.com>; Jenn Paulsen <paulsen@HMOT.com>; Jamie Parker <jparker@HMOT.com>; Hedy Govenar <hgovenar@acom2.com>; DJ Smith <djsmith@smithandkempton.com>; Delany Hunter <dhunter@smithandkempton.com>; Cary Rudman <cjrudman@softcom.net>; Bev Hansen <bhansen@lhom.com>; Anne Kelly <kelly@hnks.com>; Chuck Cole <ccole@advocation-inc.com>; Jan Smutny Jones <smutny@iepa.com>; Steven Kelley <steven@iepa.com> Sent: Thursday, December 28, 2000 3:37 PM Subject: RE: Republican Caucus Energy Briefing

Thank you to those who have responded to the below e-mail. We are now aware

of several companies who have been invited to speak. If you have been invited and have not responded to Julee please do so as soon as possible. In order to ensure a clear, concise, and informative message that will not be duplicated by the various speakers IEP will hold a conference call on Wednesday, January 3rd at 10:00 a.m. to discuss the meeting. The call in information is: 1-877-322-9654 The code is: 111756 If anyone has any materials they are planning to present or distribute please send me a copy so that we can have the information available in our upcoming meetings. Thanks for your attention to this matter and Happy New Year! Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499 -----Original Message----- From: Julee Malinowski-Ball [mailto:jmball@ns.net] Sent: Wednesday, December 27, 2000 1:18 PM To: kent Palmerton; Bill Carlson; Bill Woods; Bob Ellery; Bob Escalante; Carolyn Baker; Curtis Kebler; David Keane; David Parquet; Dean Gosselin; Duane Nelson; Ed Tomeo; Frank DeRosa; Greg Blue; Hap Boyd; Jack Pigott;

Jeff

Dasovich; Jim Willey; Joe Greco; Joe Ronan; John Stout; Jonathan Weisgall; Cassandra Gough; Ken Hoffman; Kent Fickett; Lynn Lednicki; Marty McFadden; Nam Nguyen; Paula Soos; Richard Hyde; Robert Lamkin; Roger Pelote;

Stephanie

Newell; Steve Ponder; Steven Kelley; Sue Mara; Tandy McMannes; Tony

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Trond Aschehoug; William Hall Cc: Susan McCabe; Scott Govenar; Ron Tom; Robert Ross; Phil Isenberg; Mike Monagan; Maureen OHaren; Marie Moretti; Cassandra Gough; Jenn Paul

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Enron Mentions - 04/14/01

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Energy giants join wind bandwagon National Post, 04/14/01

The Hindu-Editorial: Time for negotiations The Hindu, 04/14/01

Dizzying offers create deregulation muddle Houston Chronicle, 04/14/01

Enron controversy to dampen investor confidence in India: envoy Agence France-Presse, 04/14/01

Pacific Gas & Electric owes us \$570 million, Enron says Deseret News, 04/14/01

Financial Post: News Energy giants join wind bandwagon Diane Francis Financial Post

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Times are grim for farmers, caught between sagging prices, subsidies and livestock diseases. But the energy crunch may provide North America's farmers with another, lucrative line of work. Wind power has suddenly become viable and massive new projects have been announced both on and offshore. In January, the Bonneville Power Administration (a hydro-electric utility operating in the Pacific Northwest) said it will buy 1,000 megawatts of wind energy by 2003. That's enough to supply a city of 500,000 people. Just before that announcement, another utility, FPL (Florida Power & Light) Energy, announced plans to build the largest "wind farm" in the world with turbines in Oregon and Washington, enough for 70,000 homes. Last year, Texas-based Enron Corp., an energy conglomerate, had just finished 700 turbines in California, western Texas, Minnesota and Iowa. A handful of Canadian entities have announced small-scale projects within the past few months. What has changed is that wind power can be generated economically without subsidies, thanks to high fuel prices. What has also changed is that the wind power technology has improved dramatically. Equipment is less noisy and more attractive. Turbines have gone up 20-fold in price, but can produce 120 times more power than a generation ago. Another concern was that the fast-moving blades of wind turbines were killing birds. But newer designs are slower in speed and therefore less lethal. North America is way behind Europe in alternative energy, mostly because it is blessed with cheap, plentiful hydrocarbon sources. Only 1.5% of environmentally activist California's power needs are generated from wind turbines while Denmark and Germany depend on windpower for 6% of their supplies. Washington would like 5% of U.S. electricity generated from wind by 2020. But it already makes sense. Fuel costs are so high the wind business is even profitable for small, independent farmers and landowners in breezy parts (read prairies) of the United States and Canada. By harnessing the wind, they can enhance their cash flow, keep their own lights burning brightly and look after the neighbours or the local power grid, too. Most significantly, in February, the world's biggest oil giant -- Royal Dutch Shell Group -- waded in with an announcement it will construct a wind mega-project or two. But Shell is going to create wind farms offshore, away from urban development and political objections. "Wind energy is set to be the major new offshore industry of the next generation," Shell said in February. "We believe that by deploying Shell's world-class commercial, technical and financial capabilities to large and challenging projects we are confident that we can become a major player in the global wind energy sector," David Jones, executive vice-president of Shell's wind energy business, said at a conference. "Wind is the most competitive of the renewable energy sources when comparing costs with conventional fuels," said Mr. Jones. "Wind energy production is expected to increase rapidly as it moves offshore to achieve wind farms of greater scale." The company is evaluating offshore sites in North America and Europe and is also involved in turbine manufacture. It operates small pilot projects in Europe capable of meeting the needs of only a few thousand consumers. Sir Mark Moody-Stuart, Shell's chairman, underscored the shift in energy sources from hydrocarbons to wind, biomass and other renewables. He maintained this is merely the continuation of a steady trend based on consumer demands. "The energy industry evolves giving products the customers want. In the last century, there was mostly coal used, with few liquids, then liquids replaced coal, then gas came along after World War II. History shows there has been a steady de-carbonization of fuel from wood to coal to oil and gas," he said in a panel I attended in February at the World Economic Forum in Davos, Switzerland. The world "must take the climactic threat seriously" by using hydrocarbons more efficiently. "We think we can make money at the moment out of wind, some out of biomass, but not photovoltaics [batteries]," he added. "We want to meet the aspirations and needs of our customers and society. It's both a commercial challenge and a commercial imperative. We're just starting [wind power] offshore, where people cannot object." As for biomass, Shell has also been amassing forested acreage around the world which will eventually be the feedstock for fuel production from plant life. "Wind indeed is ready for prime time," Ralph Cavanagh, energy program director for the Natural Resources Defense Council, an environmental group based in New York, said recently. Another environmentalist, Worldwatch Institute's Seth Dunn, pointed in an interview to a study by Shell showing that "by 2050, over 50% of primary energy supply comes from renewables."

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The Hindu-Editorial: Time for negotiations

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THE CYCLE OF claims and counter-claims between the Maharashtra State Electricity Board (MSEB) and the Dabhol Power Company (DPC) has reached a point where the only way the imbroglio can be resolved is by renegotiations. The process of both parties slapping claims on each other helps neither even as it leaves unaddressed the basic problems in the project. The conciliation and arbitration process that has begun is also unlikely to provide any answers to the larger questions because it is about a specific issue - the decision of the Central Government not to honour a counter-guarantee on a demand of Rs. 102 crores by the DPC because the MSEB's own claim of Rs. 400 crores has not been settled - rather than about the deep flaws in the power purchase agreement itself. With the Godbole Committee calling for renegotiation to bring down the cost of Dabhol power, the Government of Maharashtra will now have to shed its ambivalence about where it stands on the project. While DPC has always been aggressive in asserting its rights, it cannot but be aware that it will be impossible for it to do business in the face of hostile public opinion and the increasingly ambivalent attitudes of the State and Central Governments as well. Given that in the U.S. the Enron Corporation itself has begun to exit from the energy production business and focus on the more profitable activity of energy trading this should be an additional factor working in favour of a renegotiated contract. But the question is how much such renegotiations will yield, for the fundamental problems of the Dabhol project were and still are about a very high capital cost, dollar-denominated tariffs and a contract for supply of liquefied natural gas (LNG) which will (after the implementation of the second phase) make DPC power all the more expensive if the plant were to operate at less than 80 per cent capacity. The Godbole Committee has not recommended scrapping the larger and more expensive Phase-II of the project and more disappointing for the State Government is that it has refused to bear

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'Seasoned Trader' Moving Up To Head Enron Broadband Dow Jones Energy Service, 07/17/01 BANDWIDTH BEAT: Enron Readies For Life After Watermelon Dow Jones Energy Service, 07/17/10 USA: UPDATE 1-Waxman urges probe of White House aide Rove. Reuters English News Service, 07/17/01 US Rep: White House Obligated To Seek DOJ Review Of Rove Dow Jones International News, 07/17/01 PSC OKs permit for power plant plans in Lowndes County Associated Press Newswires, 07/17/01 USA: INTERVIEW-EnronOnline sees volume growth, CEO says. Reuters English News Service, 07/17/01 Texans Raise \$500,000 for American Red Cross Relief Effort PR Newswire, 07/17/01 Terms of reference in Dabhol power inquiry may be difficult to frame THE TIMES OF INDIA, Tuesday, July 17, 2001

Maharashtra strives to avoid embarrassment in Dabhol deal , Sanjay Jog THE FINANCIAL EXPRESS, Tuesday, July 17, 2001=20

'Seasoned Trader' Moving Up To Head Enron Broadband By Erwin Seba Of DOW JONES NEWSWIREs

07/17/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- An executive described as "a seasoned trader" will le= ad=20 Enron Corp.'s (ENE) telecommunications unit after its current chief executi= ve=20 takes a different position within corporation in the next two weeks.=20 James Fallon, president and chief operating officer, will lead Enron=20 Broadband Services after it becomes part of Enron's Wholesale Services Grou= p. Broadband Services Senior Vice President Kelly Kimberly told Dow Jones=20 Newswires Fallon will lead the organization after Kenneth Rice, chairman an= d=20 chief executive, moves to a corporate job at Enron.=20 Fallon was unavailable to talk to Dow Jones for this story.=20 One broker said Fallon's selection indicated Enron isn't backing away from= =20 developing the bandwidth market.=20 "Jim Fallon is a seasoned trader," the broker said. "He made a killing in t= he=20 power markets. He has a huge reputation for making money."=20 The broker speculated that Fallon may increase the number of traders Enron= =20 has in the bandwidth market. Broadband Services has announced plans to=20 reassign and possibly layoff non-trader employees in the coming two weeks.= =20 An analyst said Fallon's appointment indicates future growth for Enron's=20 bandwidth business.=20 "I think Fallon is someone who wouldn't be there if it isn't a good=20 opportunity," said Raymond Niles, director of power and

merchant energy=20 research with Salomon Smith Barney.=20 In his new role, Fallon will report to Mark Frevert, chairman and chief=20 executive of Enron Wholesale Services, and Greg Whalley, president and chief=20 operating officer of Wholesale Services.=20 Rice previously reported to Kenneth Lay, corporate chairman and chief=20 executive.=20 Before becoming president of Broadband Services, Fallon was managing direct= or=20 of global trading and risk management for the unit.=20 From 1993 to 1999, he worked in Enron North America's wholesale energy=20 business rising from the position of associate to managing director, leadin= g=20 the power trading business.=20 Before coming to Enron, Fallon was a nuclear operations engineer for Genera= l=20 Electric, a systems engineer at W.R. Grace and a certified public accountan= t=20 for Price Waterhouse.=20 Fallon earned a bachelor's degree in marine engineering from the=20 Massachusetts Maritime Academy, a master's degree in accounting from=20 Northeastern University and a master's in business administration from=20 Columbia University.=20 Fallon takes over a unit that lost \$102 million in the second quarter of th= is=20 year and is going through a restructuring to reduce losses at the same time= =20 bandwidth prices continue to plummet.=20 -By Erwin Seba, Dow Jones Newswires; 713-547-9214; erwin.seba@dowjones.com

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BANDWIDTH BEAT: Enron Readies For Life After Watermelon By Michael Rieke

07/17/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

A Dow Jones Newswires Column=20

HOUSTON -(Dow Jones)- Listen. Do you hear that giant sucking sound? It's th= e=20 watermelon being sucked out of the bandwidth market. Two years ago this month, Jeff Skilling, now chief executive and president = of=20 Enron Corp. (ENE), told Dow Jones Newswires that the Internet high-bandwidth= h=20 area of the telecommunications market was growing faster than the wholesale= =20 energy market.=20 "Enron is positioned in the heart of that watermelon," he said.=20 Skilling's watermelon hype has been replaced by talk of burn rate. Last wee= k=20 during a conference call with analysts, he said Enron must reduce its=20 operating expenses, because losses at Enron Broadband Services exploded to= =20 \$102 million in the second quarter from \$8 million in the same period last= =20 year.=20 Skilling promised to cut expenses quickly. Enron is closing the broadband= =20 services office in Portland, Ore. It will redeploy some of those employees= =20 and lay off others.=20 An Enron spokeswoman said Monday that Ken Rice, chairman and chief executiv= e=20 of the broadband unit, would move to an as-yet undetermined corporate job i= n=20 two weeks.=20 In addition to trimming bandwidth losses, Enron's taking a step that could= =20 trim their visibility.=20 Enron reports results from Wholesale Services, Retail Energy Services,=20 Transportation and Distribution, and Broadband Services. No longer. As of t= he=20 third quarter of this year, Enron Broadband Services will become a business= =20 unit within Enron Wholesale Services. That move will "make it easier for=20 Enron to hide the losses," one analyst said.=20 For reporting purposes, Enron will treat broadband as it treats wholesale= =20 markets for weather, metals, lumber and steel. In second quarter results=20 released last week, Enron said it more than doubled delivered volumes in ea= ch=20 of those commodities, but it didn't give information on income from any of= =20 them.=20 If the company's broadband business had been lumped into Wholesale Services= =20 in the second quarter, the company could have said simply and accurately th= at=20 delivered volumes in broadband increased more than sevenfold during the=20 second quarter. The broadband losses of \$102 million before interest and=20 taxes could have been rolled into the wholesale business income of \$802=20 million, leaving still-impressive income of \$700 million for the quarter.= =20 Cutbacks Par For The Course=20

Enron isn't alone in looking for ways to cut expenses in the broadband=20 sector. Telecom carriers and equipment makers have been laying off thousand= s=20 of employees this year in an effort to cut billions of dollars in losses.= =20 "It's not pretty out there," a consultant said.=20 Keith Shoemaker, a senior trader at Aquila Energy Corp. (ILA), has left the= =20 company's broadband unit for its energy business. There isn't enough real= =20 trading now in bandwidth to require the services of a senior trader, Sushil= =20 Nelson, general manager of Aquila's broadband unit, told Dow Jones Newswire= s.=20 "If you look at total sales of any network companies, the real sales - by= =20 carriers on down the chain - are a fraction of what they were a year ago,"= =20 said Harold Kamins, a managing director for Morgan Stanley Dean Witter. As = a=20 result, trading has diminished at least the same amount.=20 A liquid market for bandwidth trading is now expected to be six to 18 month= s=20 away, according to predictions by Enron's Skilling, Aquila's Nelson and=20 others.=20 There's still a future for commodity trading in telecom, because companies= =20 want to avoid big capital outlays for laying and lighting networks and want= =20 to preserve cash, said Ciara Ryan, leader of Arthur Andersen's bandwidth=20 trading team.=20 R

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Over 600 Students in Four Programs to Graduate from Haas this

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Haas NewsWire May 14, 2001

During the summer, Haas NewsWire will be published monthly. Weekly publication will resume on August 27.

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Over 600 Students in Four Programs to Graduate from Haas this Sunday Management of Technology Receives \$1.5 Million Endowment for Summer Internship Program California's Slumping Economy Faces Multi-Year Recovery, says Researchers UC Berkeley Teams Win Two Real Estate Challenges Haas Begins a Summer of Major Conferences Haas Celebrates a Year of Accomplishments New Staff at Haas Haas in the News?? Haas Celebrations

OVER 600 STUDENTS IN FOUR PROGRAMS TO GRADUATE FROM HAAS THIS SUNDAY On Sunday, May 20, 636 students representing four of the Haas School's academic programs will march through the Greek Theatre to commence their new roles as Haas alumni.

The Haas School will be conferring degrees to 290 undergraduate students, 233 full-time MBAs, 106 Evening MBAs, and 7 Ph.D.s at this year's commencement ceremony. David Pottruck, co-CEO of Charles Schwab Corp., will deliver the commencement address. Dean Laura Tyson will be master of ceremonies. The student speakers are Theodore Liaw (undergraduate), David Theodore Marron (Evening MBA), and Patrick De Neale (MBA).

The Haas graduation ceremonies on May 20 begin at 9:00 a.m. in the Greek Theatre. They will be followed by a reception on Kleeberger Field from 11:30 a.m. to 1:30 p.m. Students get two free tickets to the reception. (Graduates are admitted free.) Students may pick up extra tickets (\$5 each) in their program offices before Friday or at the door for the event. Children under 5 are admitted free.

New graduates looking to stay connected with the Haas School should visit <http://www.haas.berkeley.edu/alumni/newgrads/index.html> to learn more about the Haas Alumni Network.

MANAGEMENT OF TECHNOLOGY (MOT) RECEIVES \$1.5 MILLION ENDOWMENT FOR SUMMER INTERNSHIP PROGRAM With the financial backing of a leading Silicon Valley venture capital firm, the Haas School of Business, the College of Engineering, and the School of Information Management and Systems are launching an innovative program that blends academic training in entrepreneurship with hands-on industry experience at Silicon Valley startups.?

The Mayfield Fund, a top-tier venture capital firm headquartered in Menlo Park, California, has committed \$1.5 million to fund the new program at UC Berkeley, to be called the UC Berkeley Mayfield Fellows Program. The new program will be administered by the Management of Technology Program (MOT), a partnership created in 1988 by the above three units of the UC Berkeley campus. Under the UC Berkeley Mayfield Fellows Program, graduate students selected from the College of Engineering, the Haas School of Business, and the School of Information Management and Systems work as summer interns at venture-backed high tech firms in Silicon Valley.?

"I don't believe any other university offers its graduate students such rigorous training in starting new high-tech ventures, from both a business and a technology perspective," explains Richard Newton, dean of the College of Engineering.? "Add to that the opportunity to work directly for the CEO of a high-tech startup as part of the academic experience, and we have created something truly extraordinary for our students."

The first group of UC Berkeley Mayfield Fellows was announced this week, four each from the College of Engineering and the Haas School, all with extensive technical training and previous work experience in high tech. The names of the fellows will be announced at a later date. In addition to the summer internships, UC Berkeley Mayfield Fellows participate in

intensive classroom work, intended to blend the practical experience gained through their internships with the challenge and growth of a series of graduate seminars on technology and entrepreneurship.

"The UC Berkeley Mayfield Fellows Program is a great example of the way in which we're succeeding at blending hands-on industry experience at Silicon Valley companies into the Haas academic experience," says Andrew Isaacs, executive director of MOT. "The joint MOT-Lester Center collaboration on this program makes this new venture all the more exciting."

The Mayfield Fund has made the \$1.5 million commitment to UC Berkeley as part of its support of the Center for Information Technology Research in the Interest of Society (CITRIS), being created within UC as a focal point to apply advances in information technology to the solution of society's most critical needs. "Mayfield is excited by the opportunity to participate with UC Berkeley in a program that will enrich the entrepreneurial experience for graduate students," said Michael Levinthal, Mayfield Fund general partner. "The continual success of startups that have flowed from UC Berkeley to the Bay Area and beyond is exceptional, and Mayfield is proud of our association with this process."

CALIFORNIA'S SLUMPING ECONOMY FACES MULTI-YEAR RECOVERY, SAYS RESEARCHERS As California's prosperous glow begins to tarnish, the state as a whole faces sharply escalating unemployment rates, a leveling off or decline in home prices, rising office vacancies, and reduced construction over the next two to three years. These are the conclusions of Professor Dwight Jaffee and California economist Cynthia Kroll of the Fisher Center for Real Estate and Urban Economics.

In the center's recently released Spring 2001 Research Report, Jaffee and Kroll point to the vulnerability of California, and particularly of the San Francisco Bay Area, as the US economy slows. The authors look at the state's experience in past recessions and conclude that a two to three year adjustment period is likely before the state resumes expansion.

Jaffee and Kroll point out that the major stock price adjustments that occurred earlier this year reflected real changes in the economic factors driving California's economy. Driven by expansion of dot-com and high tech sectors, computer programming employment alone grew by over 90,000 jobs in 2000, with much of this increase found in the San Francisco Bay Area. The bursting of the dot-com bubble and subsequent lay-off announcements leave this sector -- and the Bay Area -- particularly vulnerable.

The real estate market will also feel the effects in coming months, and the impact on the office real estate market is likely to be substantial. In fact, prices have already begun to decline in this sector. San Francisco's SoMa (South of Market) district, which has recently put on the market many offices geared toward dot-com-type firms, is most likely to suffer as a wave of these companies goes out of business.

The authors argue that office rent's could drop substantially -- at least 10% in San Francisco's downtown area and perhaps as much as 50% in the areas most heavily affected by the dot-com bust. Dropping rents could temper the rise in vacancies. Companies that were previously forced out of the market by sky-high lease prices are now looking at reduced rates.

The residential real estate market will also be affected by the economic adjustment. Kroll and Jaffee expect the high-end residential real estate market, previously fueled by stock market gains, to contract the most as the crop of dot-com employees who found their way to quick wealth sell their newly overpriced homes. Lower- and mid-range markets will see more moderate price adjustments.

Based on past history, the researchers maintain that job losses and declining real estate prices could continue for two to three years. They point out that in the longer ter

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US-Based Enron Corp Expands Pulp And Paper Ops In Asia Dow Jones Commodities Service, 03/29/01

COMMITTEE TO SUBMIT REPORT ON POWER SECTOR TO INDIAN STATE GOVT Asia Pulse, 03/29/01

Life goes on... The Times of India, 03/29/01

\$10-m aid gives much-needed fillip The Times of India, 03/29/01

ENRON'S TOKYO UNIT SUBMITS PLAN FOR AOMORI POWER PLANT Asia Pulse, 03/29/01

Qantas Hones A Killer Instinct Australian Financial Review, 03/29/01

MSEB to pay Rs 113 cr Feb bill `under protest' Business Standard, 03/29/01

Lay Gets \$7 Million Bonus. The Oil Daily, 03/9/01

Enron Doing Great, Skilling Says. The Oil Daily, 03/29/01 Houstonians receive e-commerce awards Houston Chronicle, 03/29/01

COMPANIES & FINANCE THE AMERICAS: US climate exchange ready to start trading Financial Times; Mar 29, 2001

Power project may get a boost The energy crisis may prompt a new state board to reverse its predecessor's ruling on a Southwest Riverside County line.

US-Based Enron Corp Expands Pulp And Paper Ops In Asia

03/29/2001 Dow Jones Commodities Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

SINGAPORE -(Dow Jones)- Enron Corp. (ENE), one of the world's leading energy and communications companies based in Texas, is expanding its pulp and paper operations in Asia. The power and energy giant is busy setting up offices in Asia that will provide price risk management tools for the Asian pulp and paper industry, a senior Enron official told Dow Jones Newswires Thursday, on the sidelines of an industry gathering in Singapore. "Asia accounts for 30% of the (world's pulp and paper) market. You can't ignore it," he said. In January this year, Enron opened shop in Singapore and Japan. Japan is one of Asia's biggest paper producers and consumers. He said that Enron is eyeing to set up shop in India, China and South Korea as these countries have "big market potential." China and South Korea are among the top three biggest paper consumers in Asia. India is regarded by most analysts as one of the fastest growing newsprint consumers in the region. The official declined to comment further on specific expansion plans and targets. Meanwhile, he said that their customers in Singapore and Japan have logged on the www.clickpaper.com - a business-to-business portal for pulp, paper and wood products - that was built by Enron. www.clickpaper.com is an Internet-based market for buying and selling pulp, paper and wood products. In the last three years, the company was able to establish a foothold in the American and European pulp and paper markets. While the company is well known as a major supplier of natural gas and electricity, it started to branch out to the pulp and paper business in 1997, as it is one of the biggest consumers of natural gas and electricity in the U.S. Aside from providing price risk management tools, Enron's offices in the U.S. are also involved in buying, selling and producing newsprint.

-By Prime Sarmiento, Dow Jones Newswires; 65-4214803, prime.sarmiento@dowjones.com

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COMMITTEE TO SUBMIT REPORT ON POWER SECTOR TO INDIAN STATE GOVT

03/29/2001 Asia Pulse (c) Copyright 2001 Asia Pulse PTE Ltd.

MUMBAI, March 29 Asia Pulse - The Godbole Committee, set up to review Enron promoted Dabhol Power Company's (DPC) 2,184 MW power project and the entire power scenario in the western state of Maharashtra, will submit part one of its report on April 10 to the state government. "The committee will finalise its report on April nine and submit it to the government the next day," MSEB sources told PTI here today. According to the committee's schedule, it would first submit the report on DPC's project and then commence on part two, comprising study and remedies to improve Maharashtra's entire power scenario. The sources also did not rule out a possibility of the report being tabled in the current session of the on-going state legislature. The six-member committee, set up by the Maharashtra government last month, has almost finalised its report today and met financial institutions including International Development Finance Corporation Ltd. In its over a month-long sittings, the committee discussed the state's review proposal with several energy experts including Abhay Mehta, author of the controversial book "Power Play", which depicted the alleged irregularities in the Enron deal. Another major presentation, made before the review panel was that by the Enron India Chief, K Wade Cline, and the DPC Managing Director, Neil McGregor. (PTI) 29-03 1941

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Life goes on...

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SALAM MUMBAI/ Malavika Sanghvi And Pepsi fights with Coke and Coke fights with Thums Up and Sprite fights with all of them and what difference does it make in your life? As they say in Punjab, "Ki pharak painda?" And BPL fights with Orange and Videocon fights with Godrej and Bbujbal with Thackeray and Sonia with Vajpayee and how on earth does it affect you? Amar Singh versus Mani Shankar Aiyer, Ram Jethmalani versus Soli Sorabjee and Justice Anand, Rohit Bal versus Abu and Sandeep and what did it matter, what was changed or as the kids say these days, what goes of your dad? O & M fights with Lintas, Brajesh Mishra fights with J K Jain, and MTV fights with Channel V. In the end, does it make a whit of difference to your life? Star versus Zee and Sony versus Nine Gold and who cares in the long run? Who gives a damn? And Jaya Jaitley versus Aniruddha Bahal and Mamta versus Jyoti Basu, and the CBI versus Vincent George and what difference? India versus Pakistan, Tamil Nadu versus Karanataka, MG Damani versus Anand Rathi, Gavaskar versus Raj Singh Dungarpur, Azharuddin versus Manoj Prabhakar versus Kapil Dev, and Sushma versus FTV and Sharad Yadav versus Laloo Yadav and Ramkrishna Hegde versus Deve Gowda, and IBM versus Macintosh... and where does it all lead? Hotmail against Yahoo and Ted versus Rupert and India versus Pakistan and so many words of attrition and reams of newsprint and Mamta versus everyone and who cares... What is it really but phookat entertainment, or as they say in the trains, timepass? Enron versus MSEB, Time versus Newsweek, Hrithik versus Shah Rukh, Scindia versus Angre -- and your life goes on, not enhanced by any of this. Oh no, possibly even worsened, but only a little. Yashwant against NK Singh, MF Husain against Sabavala, Thapar against everyone shouting in the well of the House and in the end what does the man on the street gain from any of this? Dominos versus Smokin' Joe's, Delhi versus Mumbai, Dom Perignon versus Veuve, Dior versus Gucci, Oberoi versus Taj, Jayalalitha versus Karunanidhi, the BJP versus the Congress, Philips versus Aiwa where does it all lead? Calcutta traders against Mumbai punters, Mallya against Chabbria, Vilasrao against Govindrao, Jayaprada against Renuka has it made any difference any difference at all to the man on the street? Gladiator versus Crouching Tiger, the police versus Bharat Shah, Salman versus Subhash Ghai -- did it really matter? Olive versus Indigo, Wranglers versus Lee, Nike versus Reebok. The rich get richer, the poor get poorer, the multinationals line their pockets and the man on the street. His life doesn't change, it doesn't matter one way or the other, it just goes on and on...

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\$10-m aid gives much-needed fillip

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VADODARA: The Kalpasar project, Gujarat's dream project to turn Gulf of Khambhat into

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Cauley Geller Bowman & Coates, LLP Announces Class Action Lawsuit Against Enron Corp. on Behalf of Investors PR Newswire- 10/23/01

Heading up --- Trade body to go ahead with conference in Qatar The Toronto Star- 10/23/01

Inside Money SEC INQUIRY OF ENRON RATTLES STOCK Orlando Sentinel- 10/23/01

Enron Keeps Analysts Happy as Investors Flee: Call of the Day Bloomberg- 10/23/01

Enron Asks Citigroup for \$750 Mln Loan, People Say (Update1) Bloomberg- 10/23/01

How Enron Blew It Texas Monthly- November 2001 Edition

Enron Fails to Smooth Things Over TheStreet.com- 10/23/01

Stocks=20 More Static For Enron=20 Forbes.com- 10/23/01

AES Says Indian State Interfering In Ops, Complains To PM Dow Jones International News- 10/23/01

U.S.-based AES Corp. complains about harassment from Indian state government Associated Press Newswires- 10/23/01

Cauley Geller Bowman & Coates, LLP Announces Class Action Lawsuit Against Enron Corp. on Behalf of Investors

10/23/2001 PR Newswire (Copyright (c) 2001, PR Newswire) LITTLE ROCK, Ark., Oct. 23 /PRNewswire/ -- The Law Firm of Cauley Geller Bowman & Coates, LLP announced today that a class action has been filed in the United States District Court for the Southern District of Texas, Houston Division on behalf of purchasers of Enron Corp. ("Enron" or the "Company") = (NYSE: ENE) common stock during the period between January 18, 2000 and October 17, 2001, inclusive (the "Class Period"). A copy of the complaint filed in this action is available from the Court, or can be viewed on the firm's website at <http://www.classlawyer.com/pr/enron.pdf>. The complaint charges that Enron and certain of its officers and directors = violated Sections 10(b) and 20(a) of the Securities Exchange Act of 1934, and Rule 10b-5 promulgated thereunder, by issuing a series of material misrepresentations to the market between January 18, 2000 and October 17, 2001, = thereby artificially inflating the price of Enron common stock. Specifically, the complaint alleges that Enron issued a series of statements concerning its business, financial results and operations which failed to disclose (= i) that the Company's Broadband Services Division was experiencing declining demand for bandwidth and the Company's efforts to create a trading market for bandwidth were not meeting with success as many of the market participants were not creditworthy; (ii) that the Company's operating results were = materially overstated as a result of the Company failing to timely write-down the value of its investments with certain limited partnerships which were managed by the Company's chief financial officer; and (iii) that Enron was failing to write-down impaired assets on a timely basis in accordance with GAAP. On October 16, 2001, Enron surprised the market by announcing that the Company was taking non-recurring charges of \$1.01 billion after-tax, or a (\$1.11) loss per diluted share, in the third quarter of 2001, the period = ending September 30, 2001. Subsequently, Enron revealed that a material portion of the charge related to the unwinding of investments with certain limited partnerships which were controlled by Enron's chief financial officer = and that the Company would be eliminating more than \$1 billion in shareholder equity as a result of its unwinding of the investments. As this news began to be assimilated by the market, the price of Enron common stock dropped= significantly. During the Class Period, Enron insiders disposed of over \$7= 3 million of their personally-held Enron common stock to unsuspecting investors. If you bought Enron common stock between January 18, 2000 and October 17, 2001, inclusive, and you wish to serve as lead plaintiff, you must move the = Court no later than December 21, 2001. If you are a member of this class, you can join this class action online at http://www.classlawyer.com/sign_up.html. Any member of the purported class may move the Court to serve as lead

plaintiff through Cauley Geller Bowman & Coates, LLP or other counsel of = their choice, or may choose to do nothing and remain an absent class member= .=20 Cauley Geller Bowman & Coates, LLP has substantial experience representing = investors in securities fraud class action lawsuits such as this. The firm = has offices in Florida, Arkansas and California, but represents investors t= hroughout the nation. If you have any questions about how you may be able t= o recover for your losses, or if you would like to consider serving as one = of the lead plaintiffs in this lawsuit, you are encouraged to call or e-mai= l the Firm or visit the Firm's website at www.classlawyer.com . CAULEY GELL= ER BOWMAN & COATES, LLP=20 Investor Relations Department:=20 Jackie Addison, Sue Null or Charlie Gastineau=20 P.O. Box 25438=20 Little Rock, AR 72221-5438=20 Toll Free: 1-888-551-9944=20 E-mail: info@classlawyer.com=20 Contacts: (for media)=20 Charlie Gastineau or Sue Null=20 1-888-551-9944=20 MAKE YOUR OPINION COUNT - Click Here=20 <http://tbutton.prnewswire.com/prn/11690X34851784>

/CONTACT: Charlie Gastineau or Sue Null of Cauley Geller Bowman & Coates, L= LP, +1-888-551-9944/ 11:37 EDT=20

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BUSINESS Heading up --- Trade body to go ahead with conference in Qatar FROM THE STAR'S WIRE SERVICES; AP PHOTO

10/23/2001 The Toronto Star Ontario E02 Copyright (c) 2001 The Toronto Star World Trade Organization chief Mike Moore says the 142-country body will go= ahead with a key conference in Qatar from Nov. 9-13 that he hopes will giv= e a major boost to the ailing global economy.=20 The announcement at a news briefing yesterday in Doha, Qatar, ended weeks o= f uncertainty over the meeting's venue, which had been thrown into question= by security fears, mounting international concern over terrorism and a sur= ge of anti-Western feeling in Muslim countries since the start of U.S. atta= cks on Afghanistan. "If something seismic or catastrophic happens, we will reconsider, but we a= re planning to come here in just over two weeks' time," Moore said.=20 The focus of the conference will be efforts to launch a new round of negoti= ations among all member countries to remove many of the remaining barriers = to free global trade.=20 3M's profit sags=20 Minnesota Mining & Manufacturing Co. says third-quarter profit fell 21 per = cent as a slumping global economy reduced sales and workforce cuts increase= d expenses.=20 Profit fell to \$394 million (U.S.), or 99 cents a share, from \$499 million,= or \$1.25, in the year-ago quarter. Sales fell 7.1 per cent to \$3.97 billio= n from \$4.27 billion, the company added in a statement yesterday.=20 3M, which makes products that range from Post-It Notes to circuit boards, h= as been eliminating 5,000 workers and cutting costs to cope with slowing sa= les.=20 Copper plunges=20 Copper fell in London yesterday, nearing the lowest price in almost 15 year= s, on expectations for slowing demand from users such as electronics makers= and construction companies.=20 Copper for delivery in three months fell as much as \$8 (U.S.) to \$1,366 a t= onne on the London Metal Exchange, where prices are down 25 per cent this y= ear. A move through the 1999 intraday low of \$1,365 will mark the lowest pr= ice since February, 1987.=20 Enron information sought=20 Houston-based energy-trading giant Enron Corp. says the U.S. Securities and= Exchange Commission has sought information on company transactions with li= mited partnerships that were managed by an Enron senior officer.=20 In a statement yesterday, Enron said it will provide the federal regulatory= agency with information in response to an inquiry last week.=20 The transactions to "hedge certain merchant investments and other assets" t= ook place in 1999 and 2000,

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Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	[]
File	dasovich-j/all_documents/28682.

Layoffs Possible As Enron Reduces Broadband Burn Rate Dow Jones Energy Service, 07/12/01

USA: Losses widen to \$102 million for Enron Broadband. Reuters English News Service, 07/12/01

Enron's 2nd-Qtr Profit Rises 40% on Electricity Sales (Update5) Bloomberg, 07/12/01

Enron's Skilling Sees California Energy Crisis Easing (Update2) Bloomberg, 07/12/01

Jeff Skilling Interview CNBC, 07/12/01

Enron Expects To Cash In On New U.S. Federal Mandate For Open Wholesale Power Markets CNNfn: Market Coverage - Morning, 07/12/01

Jeff Skilling Interview Bloomberg Information TV, 07/12/01

USA: INTERVIEW-Enron chief sees California problems fading. Reuters English News Service, 07/12/01

Enron CEO:Foreseeable Business Prospects Remain Excellent Dow Jones News Service, 07/12/01

Enron 2Q Net Rises 40% As Trading Revenue Soars Dow Jones News Service, 07/12/01

USA: UPDATE 3-Enron quarterly earnings rise, beat estimates. Reuters English News Service, 07/12/01

Enron reports earnings increase of almost 40 percent Associated Press Newswires, 07/12/01

Venture capital chasing next big - and little - thing in energy Associated Press Newswires, 07/12/01

A Volt From Blue, U.S. Grid Rules Get Power Co's Abuzz Dow Jones Energy Service, 07/12/01

Marlin Water Trust II Taps Euro And Dollar Bond Markets Capital Markets Report, 07/12/01

FERC Power Grid Orders Will Open Markets for Traders (Update2) Bloomberg, 07/12/01

Enron CEO Skilling on California Crisis, FERC Talks: Comment Bloomberg, 07/12/01

Enron Chief Executive Sees California's Energy Crisis Easing Bloomberg, 07/12/01

FERC Transmission Decision Will Open Power Markets for Traders Bloomberg, 07/12/01

California Not Due Cash Refunds for Power Purchases (Update1) Bloomberg, 07/12/01

Layoffs Possible As Enron Reduces Broadband Burn Rate By Erwin Seba Of DOW JONES NEWSWIREs

07/12/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- Enron Broadband Services executives said staff redeployments, including possible layoffs and an office closure were part of the plans to reduce losses at the telecommunications unit of Enron Corp. (ENE). The news came shortly after Enron President and Chief Executive Jeffrey Skilling told an investor call Thursday morning that Broadband Services lost \$102 million in the second quarter of this year. "We've got to get that burn rate down," Skilling said. "And we will get the burn rate down in the next two weeks." Broadband Services Senior Vice President Kelly Kimberly said Enron hadn't yet determined the exact number of the unit's approximately 1,000 employees to be redeployed. "We will be moving some commercial support people to corporate," Kimberly said. "There will be redeployments. There may be some severances." Commercial support employees are in departments like human resources and legal support offices. Also, the unit will close its Portland, Ore., office, but its back-up network operations center (NOC) there will remain in operation. Portland employees will be offered redeployment in Houston or other offices. Those who do not accept redeployment will be offered severance packages, Kimberly said. EBS's primary NOC is in northeast Houston, one of the areas hardest hit by Tropical Storm Allison. In spite of heavy rains and flooding last month, the Houston NOC continued functioning. However, Enron officials did activate the Portland NOC in case the Houston center could not remain open. This is the second redeployment of Broadband Services employees this year. The earlier redeployment was attributed by executives to the transition from building the EBS optical fiber network to operating the network. Revenues Victim Of Crash In Telecom Prices Skilling blamed the crash of telecommunications prices for the decline in revenues in the second quarter. "There is a meltdown out there," Skilling said during the conference call. Skilling said many potential counterparties among carriers can do only short-term deals in the bandwidth market because their creditworthiness is so weak. The company believes it will be one or two years before the bandwidth market gets to the point Enron had expected it to be this year, Skilling said. Enron is the primary market maker in the bandwidth arena. Skilling and Kimberly said the company will continue to develop the commoditized market. That leadership has left Enron feeling increasingly lonely in recent weeks, said an industry analyst. "Enron was trying to move this market fast," said William Bandt of Arthur Andersen L.L.P. "They've been working to get out at the front of this market. Sometimes that's like being at the end of the high-dive board all by yourself." Overall, Enron is in good financial shape because of its core

energy industry. For the second quarter this year, Enron reported net income, excluding non-recurring items, of \$404 million on revenues of \$50.1 billion. In the second quarter of 2000, the company reported net income of \$289 million on net revenues of \$16.9 billion. The earnings per diluted share for the quarter is 45 cents compared with 34 cents a year ago. Skilling said the company expects to achieve \$1.80 in recurring earnings per diluted share this year. Broadband Services reported a loss of \$102 million in the second quarter on \$16 million in revenues before interest and taxes. In the same period of 2000, the unit reported revenues of \$151 million and a loss before interest and taxes of \$8 million. EBS had 759 transactions in the second quarter 2001 compared with 23 in the second quarter of 2000. The company added 45 new customers in the second quarter, giving it a total of 165 customers, Skilling said. Carriers and network services providers made up more than 70% of Enron's broadband customers and accounted for about one-third of its transactions, he said. In the second quarter of this year, the company delivered 98,478 terabytes of data compared with 13,692 a year ago. For the year so far, EBS has delivered 141,878 terabytes of data compared with 19,697 in same period a year ago. Broadband Services has a goal of delivering 570,000 terabytes this year. Enron has signed a long-term contract with MSN to provide broadband services, Skilling said. The deal will allow MSN to provision and pay for bandwidth as it's needed. The company will give more information on that deal later, -By Erwin Seba, Dow Jones Newswires, 713-547-9214 erwin.seba@dowjones.com

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USA: Losses widen to \$102 million for Enron Broadband. By C. Bryson Hull

07/12/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, July 12 (Reuters) - The revenue rug got pulled out from under Enron Corp.'s broadband division in the second quarter, leading to a wider-than-expected loss inside the nascent unit, the company said on Thursday. Enron Broadband lost \$102 million on revenue of \$16 million in the second quarter. In the year-ago quarter, when the telecom sector was much stronger, the unit brought in \$151 million in revenue and lost just \$8 million. The losses and the shrinking revenue opportunities caused by severe weakness in the telecommunications market led Enron President and Chief Executive Jeff Skilling to announce a restructuring that will include an unspecified amount of job cuts within Enron Broadband Services. "This quarter was the absolute evidence that there is a serious problem in the telecom industry," Skilling told Reuters in an interview. "Revenue opportunities just dried up. People are not contracting." The telecom and Internet network carriers that are Enron Broadband's target customers are suffering from credit problems and other financial difficulties preventing them from entering into the long-term

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guest list so far

Sender	cameron@perfect.com
Recipients	['nancy.sellers@mondavi.com', 'scottwl@hotmail.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/1939.

Sure Thing:

Jeff Prentice Cameron Scott Carter (Friday night only) Colleen Silva Chris Shea Cristina Shea Miriam Renee Lanam Doug Sinclair Mike Herring Lisa Herring Steve Pottier David Hoffman Heidi Hoffman

Maybe:

Avram Seagle Allison Seagle Ed Neff Lizanne Jensen Ken Jensen Sean Molly Mom Dad

No Answer Yet:

Bill Growney Buddy Arnheim Celise Andre Denis & Lynn Liz Sellers John Whiting Cary & Leslie Riddles

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 261 of 1299

RE: colleen

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com', 'psellers@pacbell.net']
File	dasovich-j/sent_items/80.

Thanks for the invite, but I have class. She have a job yet?

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Monday, September 17, 2001 12:28 PM To: 'PP'; Dasovich, Jeff Subject: colleen

Colleen is coming over for dinner next Tuesday and we are going to make some lavish dinner from gourmet recipes. Let me know if you guys want to be there so we can plan and get enough for you.

-C

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interesting

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3506.

This looks pretty good =01) we should try it. Might be too involved for the dome=01(

[http://www.sfgate.com/cgi-bin/article.cgi?file=3D/baytv/archive/1999/10/04/=SHO W265RECIPE1.DTL](http://www.sfgate.com/cgi-bin/article.cgi?file=3D/baytv/archive/1999/10/04/=SHO%20W265RECIPE1.DTL)
<[http://www.sfgate.com/cgi-bin/article.cgi?file=3D/baytv/archive/1999/10/04=/SH OW265RECIPE1.DTL](http://www.sfgate.com/cgi-bin/article.cgi?file=3D/baytv/archive/1999/10/04=/SH%20W265RECIPE1.DTL)>

By the way =01) where have you been? You haven=01,t answered emails!!

How about setting up the dinner for next week? Any night that looks ok (no= t great, but just ok)??

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FW: Rocky Grass Academy Waiting List

Sender	cameron@perfect.com
Recipients	['psellers@pacbell.net', 'scottwl@hotmail.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4834.

FYI

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-----Original Message-----

From: Matthew Bretz [mailto:circlex@earthlink.net] Sent: Monday, March 19, 2001 11:06 PM To: sally@bluegrass.com
Subject: Rocky Grass Academy Waiting List

Hiya,

Sorry to be a pest but.... Can you get any idea from Steve's past experience whether the rest of my friends who are on waiting lists are liable to get into their workshops? Scott Laughlin Mandolin Jeff Dasovitch Guitar Prentiss Sellars Banjo

Thanks,

Matty

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SDG&E Advice Letters

Sender	douglass@energyattorney.com
Recipients	['tjohnso8@enron.com', 'susan_j_mara@enron.com', 'robert.neustaedter@enron.com']
File	dasovich-j/notes_inbox/11850.

Attached is a summary of three recent SDG&E letters. Pay particular attention to 1345-E, in which SDG&E is allocating its remaining overcollected URG revenues to the benefit of AB 265 customers, rather than to the large customers to whom these revenues were originally allocated. AL 1346-E is also interesting, in that it has the utility's ratepayers reimbursing the State for its costs of negotiating and implementing the MOU. Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel:?? (818) 596-2201 Fax:?? (818) 346-6502 douglass@energyattorney.com Dan - 7-17-01 SDG&E AL Summary Chart.doc

Message 265 of 1299

October 17 Energy Committee Meeting

Sender	aleupp@svmg.org
Recipients	['jbradley@svmg.org']
File	dasovich-j/inbox/557.

Good afternoon committee members:

Attached find the agenda for our October 17 Committee Meeting where we expect an informative and worthwhile discussion with Dr. R Sean Randolph, President of the Bay Area Economic Forum. Please remember to confirm your attendance at this meeting so our host can prepare for your participation. We will be meeting again at AMD in Sunnyvale from 3-5pm. Confirm your attendance by responding to this e-mail or calling 408-501-7870. Thank you.

Best regards,

Alex M. Leupp Associate Director, Energy Programs Silicon Valley Manufacturing Group 226 Airport Pkwy. Suite 190 San Jose, CA 95110 408.501.7870 (ph.) 408.501.7864 (fax)

Message 266 of 1299

Re: CSU Fresno, PG&E Ieter

Sender	andrew.wu@enron.com
Recipients	['dirk.vanulden@enron.com', 'chris.weber@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/interconnection/4.

Here are my comments in revision mode.

AW

From: Chris Weber/Western Region/The Bentley Company@Exchange on 01/17/2000 05:43 PM CST To: Andrew Wu/HOU/EES@EES, Jeff Dasovich/SFO/EES@EES, Dirk vanUlden/Western Region/The Bentley Company@Exchange cc: Subject: Re: CSU Fresno, PG&E Ieter

Attached is a draft letter to PG&E concerning the CSU Fresno project. Please comment and send back to me by 4:30pm. You can track comments if you want. We would like to fax/mail this letter today. Thanks,

Chris Weber Project Administrator Enron Energy Services 12647 Alcosta Blvd, Suite 500 San Ramon, CA 94583 Ph: (925) 543-3816, Fax: (925) 543-3550 chris_s_weber@enron.com

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trucks

Sender	cameron@perfect.com
Recipients	['timmi@universal-net.com', 'rory@carmelnet.com', 'scotty@enron.com', 'dad@enron.com', 'mom@enron.com']
File	dasovich-j/inbox/934.

Not sure if you guys heard about these anti-abortion trucks, but I had not. I saw two of these trucks this morning and they are so disgusting that I believe it is borderline harassment or obscenity. It's difficult because I believe so strongly in free speech, but this really was upsetting. You can check out their web site at <http://www.abortionno.org/>

<<http://www.abortionno.org/>> From there you can get into the pictures and truck campaign. It's really unbelievable.

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Message 268 of 1299

Re: Vivienne Anne Kupiecki, May 19, 2001

Sender	kkupiecki@arpartners.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/2888.

Hi Jeff,

Seems like a million years since we last spoke. Hope all is well with you. Did you finish up the semester okay??

We are doing fine - Vivie came a little early, but we were expecting that. I am very glad for the time off work and school - it's much needed with the little one.

Here are some one week old pics - she is already a star.

At 11:44 AM 5/22/01, you wrote:

Congratulations sweetie: Everything OK? So glad to hear. All the best to all three of you. Best, Jeff

- Inblac~1.zip

Kimberly Kupiecki Director A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

201 Baldwin Ave San Mateo, California 94401

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RE:

Sender	jeff.dasovich@enron.com
Recipients	['dafb@stanford.edu', 'grosston@stanford.edu']
File	dasovich-j/sent_items/68.

Jeff Dasovich Enron Corp 101 California Street, Suite 1950 San Francisco, CA 94111

-----Original Message-----

From: Gregory L. Rosston [mailto:grosston@stanford.edu] Sent: Friday, September 14, 2001 1:21 PM To: (Recipient list suppressed) Cc: dafna Baldwin Subject:

The Stanford Institute for Economic Policy Research (SIEPR) and Hoover are putting on a conference on Electricity on Oct 18-19 (see attached agenda). We would like to invite you, so please send your address to Dafna Baldwin, dafb@stanford.edu.

Thanks.

Greg

Gregory L. Rosston Deputy Director Stanford Institute for Economic Policy Research Stanford, CA 94305 650-566-9211 f 707-922-0185

Message 270 of 1299

RE: metronome

Sender	jeff.dasovich@enron.com
Recipients	['psellers@pacbell.net', 'cameron@perfect.com', 'scottwl@hotmail.com']
File	dasovich-j/sent_items/62.

I think it would be great for us to have one. Man, it's tough using that thing. You gals sounded great from Prentice's bedroom when you were doing the final cuts. Are we getting a copy? Might be nice to have a copy of the "raw" tape.

Best, Jeff

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Thursday, September 13, 2001 12:04 PM To: 'Scotty'; 'PP'; Dasovich, Jeff Subject: metronome

It looks like someone better get me a metronome for Christmas.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 271 of 1299

RE: Airport arrival for SCE meeting

Sender	jeff.dasovich@enron.com
Recipients	['michael.etringer@enron.com']
File	dasovich-j/sent_items/61.

Burbank's the ticket. Can you get there direct? If not, let's do LAX, but Burbank is preferable. Less of a zoo.

Best, Jeff

-----Original Message-----

From: Etringer, Michael Sent: Thursday, September 13, 2001 3:15 PM To: Parquet, David; Dasovich, Jeff Subject: Airport arrival for SCE meeting

Which airport will you be arriving at next Thursday? I will likely fly in the night before and have you pick me up at my hotel.

Mike

Mike Etringer 503.464.3836 (w) Enron North America 503.701.4516 (c) West Power Origination 503.464.3740 (fax) 121 SW Salmon Street 3WTC0306 michael.etringer@enron.com Portland, OR 97232

Message 272 of 1299

Possible energy liability issue

Sender	cmicheli@carpentersnodgrass.com
Recipients	['steven@iepa.com', 'smccabe@mccabeandcompany.net', 'smara@enron.com']
File	dasovich-j/all_documents/13267.

If you are not familiar with AB 36 (Steinberg) and SB 11 (Escutia), they deal with protective orders and limit the use of them.? These bills are a top priority of the business community to defeat.? Right now, they apply to cases of financial fraud, environmental hazard, product liability, and unfair insurance practices. However, please be aware that the plaintiffs' bar is planning to amend the bills to also apply to energy practices by generators. AB 36 is on the Assembly Floor; SB 11 is pending on the Senate Floor. ?

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 273 of 1299

Campaign Leadership Call (CHANGE)

Sender	ginger.dernehl@enron.com
Recipients	['jody.underwood@enron.com', 'janel.guerrero@enron.com', 'mark.palmer@enron.com', 'linda.noske@enron.com', 'ly...']
File	dasovich-j/all_documents/29109.

It has been decided that this call will now take place on a bi-weekly basis. Below are the dates for the upcoming calls, so please mark your calendars accordingly.

Dates for Upcoming Leadership Calls:

Monday, July 30 Monday, August 13 & 27 Monday, September 10 & 24 Monday, October 8 & 22 Monday, November 5 & 19 Monday, December 3, 17 & 31

Time for Upcoming Leadership Calls: 10:00 AM (CDT)

Number: 1-800-998-2462 pass code 5316376

Also, as a reminder, these calls are mandatory. If you are unable to attend please let both Rick & I know.

Thanks and please call if you have any questions.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

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Meetings in San Francisco

Sender	kurt.lindahl@enron.com
Recipients	['jody.crook@enron.com', 'gary.gentry@enron.com', 'michael.mcgarra@enron.com']
File	dasovich-j/notes_inbox/3339.

David/Sam/Sandi/Jeff,

I want to thank you for taking the time to meet with Mike, Gary and I last week at your offices in San Francisco. The meetings were very informative and will certainly help us in our strategy development. I sent out the weekly report to all of you this morning and will keep you on the list, unless you request to be removed. I hope that our team can call upon you from time to time for advice and assistance.

I was short of cards, so for those that didn't get my contact details, please see below:

Kurt Lindahl Director, Commercial, Global LNG P.O. Box 1188 Houston, Tx. 77251-1188

713 345 2703 (O) 713 646 7768 (F) 713 515 2759 (M)

Kurt.Lindahl@enron.com - email

Regards,

Kurt Lindahl

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IEP Media Schedule 5/17

Sender	jmunoz@mcnallytemple.com
Recipients	['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com']
File	dasovich-j/all_documents/12663.

Following are IEP media activities planned for Thursday May 17:

9:30 AM FOX News Ch. Interview Tentatively scheduled to appear on "Neil Cavuto" or "Fox Report"

10:00 AM Los Angeles Media Briefing Millennium Biltmore Hotel 506 South Grand Avenue Heinsbergen Room

Topic: ?Briefing of "Powerful Ideas"

12:00 Noon Statewide Media Teleconference 1-800-374-2393 Pass Code: ?Independent Energy Producers

Feel free to listen in ...

3:00 PM Orange County Register Editorial Board Meeting

IEP will also be monitoring the Senator Dunn Investigative hearings on Friday in Irvine from 9am - 5pm.

We'll keep you posted ...

Thanks, Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

?

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Message 276 of 1299

FW: Prentice turns 30!!!

Sender	cameron@perfect.com
Recipients	['nancy.sellers@mondavi.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/4447.

We can subtract them. At least that leaves more beds!!!!

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: LizAnne Jensen [mailto:ljensen@westcoastweathervanes.com] Sent: Friday, December 08, 2000 6:03 PM To: Cameron Sellers Subject: RE: Prentice turns 30!!!

Hi Cameron: Thanks for the invitation. We were really hoping to make it but things are looking too hectic around here (trying to get holiday vane out to customers) for us to get out of town. Thanks for thinking of us and please wish Prentice a very happy birthday. Hope you guys have a great time. LizAnne

Message 277 of 1299

Assembly Tax Suspense File

Sender	cmicheli@carpentersnodgrass.com
Recipients	['thayes@dtus.com', 'tom.sheehy@sen.ca.gov', 'val.dolcini@gov.ca.gov', 'will.smith@asm.ca.gov', 'virginia.gat...']
File	dasovich-j/all_documents/11035.

Assembly Rev & Tax Cmte Chair Ellen Corbett has decided that there will be a suspense file in her committee, with the same threshold as the Appropriations Committee (i.e., \$150,000 fiscal impact).? You may recall that former chair Johan Klehs had a similar rule, but it was discarded in 1995 and has not been used since then.? An exception to this rule will be measures that gain revenue (such as AB 128x, the excess profits tax on energy generators).? Therefore, as all tax bills have at least that much fiscal impact, all bills will go to suspense.? How many will come of is another question.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 278 of 1299

REMINDER: Next Meeting of the CA Energy Working Group; Monday,

Sender	enron-owner@lists.qgadc.com
Recipients	[carin.nersesian@enron.com', 'enron@lists.qgadc.com', 'bessie.hiler@enron.com', 'linda.robertson@enron.com']
File	dasovich-j/notes_inbox/4134.

REMINDER: The next meeting of the CA Energy Working Group is Monday, April 23, 2001 @ 4:00 PM (EDT) (3:00 PM CDT) . This meeting and all future meetings will take place at Enron, 1775 Eye Street, NW, Suite 800, Large Conference Room.

If you cannot attend in person, please participate via teleconference: 800-713-8600; code 6261 (This number will not change so you can make a permanent note of it on your calendars.)

Linda Robertson advises the importance of attending these Monday meetings. If you are unable to participate because of a scheduling conflict, please advise Linda.

Any questions, contact, Lora Sullivan Federal Government Affairs Representative Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006 202-466-9142 202-828-3372 (fax) email: lora.sullivan@enron.com

Message 279 of 1299

RE: casbah

Sender	cameron@perfect.com
Recipients	[creativewisdom@home.com', 'jdasovic@enron.com']
File	dasovich-j/mba__e_commerce/23.

Thanks for your help with Jeff. His email address is : jdasovic@enron.com Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.858.7719 (direct dial) 650.858.1095 (fax) 650.208.9455 (cell)

-----Original Message-----

From: Louis Lalonde [mailto:creativewisdom@home.com] Sent: Thursday, March 09, 2000 5:03 PM To: b2b@perfect.com Subject: casbah

In case this wasn't posted before...they have a customer already...the race is on.

LP

Vendor Casbah (<http://www.casbahcorp.com>) will develop online auctions for the PetroleumPlace.com, an upstream oil and gas Net market. The auctions will let users place real-time bids via the Web that will compete equally with live, in-person, trading floor auctions.

Message 280 of 1299

FW: Conference Call Today September 10th at 5:00 p.m. central

Sender	jeff.dasovich@enron.com
Recipients	[j..kean@enron.com', 'd..steffes@enron.com']
File	dasovich-j/sent_items/35.

FYI: To update what we've learned today regarding possibility of Senate going forward on Wed. with contempt. At this point, appears they intend to go forward.

Best, Jeff

-----Original Message-----

From: Sweet, Twanda On Behalf Of Sanders, Richard B. Sent: Monday, September 10, 2001 12:51 PM To: Dasovich, Jeff; Shapiro, Richard; 'sbishop@gibbs-bruns.com'; 'mlk@pkns.com' Cc: Dernehl, Ginger Subject: Conference Call Today September 10th at 5:00 p.m. central

Please note that a call is scheduled today at 5:00 p.m. central time to discuss California issues. The dial-in number is 800-998-2462 passcode 5525128.

Twanda Sweet Sr. Administrative Assistant Enron Wholesale Services 1400 Smith Street, EB 3822 Houston, Texas 77002 (713) 853-9402 (713) 646-3490 fax twanda.sweet@enron.com

Message 281 of 1299

sean

Sender	cameron@perfect.com
Recipients	['jdasovic@enron.com', 'psellers@pacbell.net', 'psellers@haas.berkeley.edu']
File	dasovich-j/all_documents/8940.

PP =01) I know you said that you didn=01,t have reservations for dinner on Valentine=01,s Day and hopefully you still don=01,t and hopefully you both = don=01,t feel strongly about doing something alone on the night of Valentine=01,s Da= y. It=01,s Sean=01,s birthday and Molly just told me that no one can ever do a= nything on his birthday because they go to dinner and stuff. We were thinking of having a small get-together (just us and any good single friends that he has) on February 14th and making a special dinner just for him (might be a lot of lentils). Could you guys do that with us?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 282 of 1299

Conference Call today 2/9/01 at 11:15am PST

Sender	jeff.dasovich@enron.com
Recipients	['mday@gmssr.com']
File	dasovich-j/sent/3160.

----- Forwarded by Jeff Dasovich/NA/Enron on 02/09/2001 12:26 PM -----

Michele Curtis/Western Region/The Bentley Company@Exchange 02/09/2001 12:29 PM

To: Jeff Dasovich/NA/Enron@Enron, Mark Gutheinz <mgutheinz@calstate.edu>@SMTP@Exchange, pdrohan@calstate.edu@SMTP@Exchange cc: Tom Riley/Western Region/The Bentley Company@Exchange, jstroh@calstate.edu@SMTP@Exchange Subject: Conference Call today 2/9/01 at 11:15am PST

Please join Tom Riley in a conference call today re: FB27X. The call is scheduled for 11:15am PST. To join the call, please use the following:

call in number: 888-329-7124 passcode: 46150

If you experience any trouble with the call, please call the MCI Conference Center at 1-800-475-4700 and refer to confirmation number 2663402.

Thanks, Michele 925-543-3716

Message 283 of 1299

RE: Grand total is....!

Sender	cameron@perfect.com
Recipients	['cameron@perfect.com', 'scottwl@hotmail.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4383.

We definitely need to see the paperwork since we already paid a bill of at least that much so far. Don't worry, though we will make sure that you don't get stuck with anything and work it all out.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, April 11, 2001 11:25 AM To: cameron@perfect.com; scottwl@hotmail.com Subject: Grand total is....!

Hi. I've got all the paperwork. The bill (on my bill) for you guys is \$740. I'll get you the paperwork tonite. Sorry for the mix-up (should I ask Squaw for a discount due to all the mess!?!?).

Best, Jeff

Message 284 of 1299

Re: California in the Dark - CERA Alert

Sender	lora.sullivan@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/10153.

Jeff --

In the dark ages when I first signed up I think I went through Elizabeth Linnell for access code. I tracked down these websites. Perhaps they will help. But first -- I'd go through Elizabeth's group!

<http://www20.cera.com/client/updateaccount> <http://www20.cera.com/client/forgot>

Lora Sullivan Federal Government Affairs Representative Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006 202-466-9142 202-828-3372 (fax) email: lora.sullivan@enron.com

Jeff Dasovich Sent by: Jeff Dasovich 03/20/2001 11:30 AM

To: Lora Sullivan/Corp/Enron@ENRON cc: Subject: Re: California in the Dark - CERA Alert

We're a client, so I'm assuming internally we have access codes for folks to use. I'm trying to get one. Worry not; I'll track it down. Thanks very much for the info.

Best, Jeff

Message 285 of 1299

Map and Directions for Energy Committee Meeting

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/notes_inbox/3630.

Energy Committee Members: Our Energy Committee Meetings will be hosted by Motorola for the month of May. The address of the Motorola Location is as follows:

Motorola 1150 Kifer Rd Sunnyvale, CA 94086

A map is attached.

The meeting room is the main conference center on the first floor, directly off the lobby. Motorola will have signs directing everyone to the meeting room.

Parking is in the rear of the Building.

Melanie Meisburger is the receptionist in this building. She has offered to be a contact person if directions are needed or if anyone has questions. Her number is 749-0510

Mike Brown Manager Facilities Support Motorola, San Jose 3041 Orchard Parkway San Jose, Ca. 95134-2017
408-383-7545 Fax: 408-434-0356 E-mail: GMB002@email.mot.com Conservation . . . key to solving the energy crisis

- mqmapgend.gif

Message 286 of 1299

Global Government Affairs December Department Meeting

Sender	ginger.dernehl@enron.com
Recipients	['daniel.allegretti@enron.com', 'joseph.alamo@enron.com', 'joe.allen@enron.com']
File	dasovich-j/deleted_items/1950.

I want to update everyone on the next Global Government Affairs Department Meeting. It will take place as previously scheduled. See below for details:

Location: The Woodlands Country Club 2301 North Millbend Drive The Woodlands, TX 77380 281-367-1100

Date: December 6, 2001 (Departmental Dinner at the The Woodlands Country Club) Time: 6:30 PM (CST)

Date: December 7, 2001 (Department Meeting) Time: 8:00 AM - 4:00 PM

I have a block of rooms reserved for overnight guests. Please let me know of your plans to attend, the date you will be arriving, and I will reserve a room for you.

I will update everyone with more details as soon as I get them.

Thanks and look forward to seeing everyone next month.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 287 of 1299

FW: hi baby girl

Sender	cameron@perfect.com
Recipients	['psellers@pacbell.net', 'scottwl@hotmail.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3518.

Colleen and I have been trying to figure out a date for dinner and I thought it might be nice if we all had dinner together at our house next week (Colleen and I will cook - don't be scared). We figured out Thursday works for us both, so I hope it works for all of you. Scotty, I realize you might not be at home until 8:30 or so, but that's ok.

OK??

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Colleen Silva [mailto:Csilva@redsky.com] Sent: Wednesday, May 09, 2001 12:00 PM To: 'Cameron Sellers'
Subject: RE: hi baby girl

yes yes yes! next thursday is perfect, but not too expensive.... trying to conserve money in case i get laid off, ouch ouch ouch, but a real possibility, wow!

Message 288 of 1299

FINAL VERSION

Sender	teece@haas.berkeley.edu
Recipients	['peter.gosselin@latimes.com', 'tom_campbell@law.stanford.edu', 'tyson@haas.berkeley.edu']
File	dasovich-j/all_documents/8625.

Dear Colleagues,

Here is the FINAL version of the manifesto. This version includes some additions and deletions to bring on Paul Joskow and Janet Yellen, and hopefully Severin Borenstein as well. Also attached is a list of endorsements Pablo and I have secured. If you are not on the list and wish to be added, please let us know.

Critically, let us know if you wish to be removed. We are picking up new endorse by the hour and will release by 9:00 am (PST) tomorrow.

David Teece and Pablo Spiller

- Manifesto DJT 1-25-01.doc - endorsee list 12501.doc

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930
University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826
<http://haas.berkeley.edu/~imio>

Message 289 of 1299

Material for Senate hearing - market 'manipulation'

Sender	seabron.adamson@frontier-economics.com
Recipients	['jeff.dasovich@enron.com', 'david.parquet@enron.com', 'james.d.steffes@enron.com', 'elizabeth.linnell@enron.c...]
File	dasovich-j/notes_inbox/5584.

Please see attached. More detail has been provided on this as we thought there was a high probability of detailed questions...

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

- 01-01-29-SS Briefing note on market power.doc

Message 290 of 1299

Re: Open Letter

Sender	jeff.dasovich@enron.com
Recipients	['rob.bradley@enron.com']
File	dasovich-j/all_documents/13397.

Thanks, but ain't gonna happen this week. We'll have to wait till he gets back.

Best, Jeff

Rob Bradley 06/04/2001 08:02 AM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Open Letter

Can I put this ball in your court in case you want to move forward?

- Rob

----- Forwarded by Rob Bradley/Corp/Enron on 06/04/2001 08:01 AM -----

David Theroux <DTheroux@independent.org> 06/03/2001 03:54 PM

To: rbradle@enron.com (Rob Bradley) cc: Subject: Hello

Dear Rob,

I will be out of the country for two weeks starting this coming Saturday. As a result, if you are interested in our doing an Open Letter of energy price controls, please let me know ASAP.

Best regards,

David -- David J. Theroux Founder and President The Independent Institute 100 Swan Way Oakland, CA 94621-1428 510-632-1366 Phone 510-568-6040 Fax DTheroux@independent.org <http://www.independent.org>

Message 291 of 1299

FIA presentation

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff_dasovich@enron.com']
File	dasovich-j/all_documents/11467.

I was wondering if Mark has everything he needs to finalize a good draft of the presentation.? Also, I think we need to speak live again before Thursday to flush out our comments.? Who is available when?? Perhaps we can do an early morning meeting downtown (Wednesday 7am-ish) or that night at Berkeley during break and after for those who don't have class?

-cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

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Message 292 of 1299

Proposed AB 128x Amendments

Sender	cmicheli@carpentersnodgrass.com
Recipients	['steven@iepa.com', 'smccabe@mccabeandcompany.net', 'smara@enron.com']
File	dasovich-j/all_documents/12050.

Assemblywoman Corbett will likely propose amendments at Monday's Rev & Tax Cmte hearing on her AB 128x. Apparently, the amendments will require that the PUC set a "fair price" for electricity.? Any charges above that fair price?will be subject to the proposed excess profits tax. Also of interest is that the excess profits tax would attempt to apply to out-of-state companies that sell energy into California.? They are going to try to impute nexus to the out-of-state generators by arguing that they are deriving economic benefit from selling into California and that creates nexus. Finally, it appears that the Suspense File will not be invoked in this case because that policy only applies to Regular Session bills. Obviously, AB 128x is a Special Session bill. ?

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 293 of 1299

SoCalGas

Sender	douglass@energyattorney.com
Recipients	['tjohnso8@enron.com', 'susan_j_mara@enron.com', 'robert.neustaedter@enron.com']
File	dasovich-j/all_documents/28801.

Attached for your information is a summary of an advice letter filed on =20 Friday by SoCalGas proposing to permit telecommunications carriers and cab= le=20 TV companies to place fiber optic cable in SoCalGas=01, active gas pipelin=

es.? =20 ? Didn't Mona Petrochko go to an Enron telcom subsidiary?? She might be =20 interested in this, if she has not seen it already.? I am not sure what he = r=20 new email address may be, so ask that this be forwarded to her or whomever =20 else may be appropriate.? Thanks! ? Dan ? p.s.? Also attached is the summary I sent you on July 12.? I just realized =20 the date was never changed at the top of it.? The summaries are all the = =20 same.? Only the top date has been revised. ?

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 Tel:?? (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com - 7-16-01 SoCalGas AL Summary Chart.doc - 7-12-01 SoCalGas AL Summary Chart.doc

Message 294 of 1299

Re: your mail

Sender	saceves@att.net
Recipients	['jdasovic@enron.com']
File	dasovich-j/notes_inbox/578.

Greetings Jeff, Sorry for the delay in responding. I would call TJ at Haas (510) 643-0435 and have her help you get to the right person. Kindly, Salvador

-- Salvador D. Aceves Assistant Professor, Accounting Director, Executive Education School of Business and Management University of San Francisco 2130 Fulton Street San Francisco, CA 94117 Tel (415) 422-6263 fax (415) 422-2502 e-mail: acevess@usfca.edu

Greetings professor: Sorry to bother you with this. Sad to say that things were working well,
but

now, for some reason, Izio won't let me in, saying that my password is not correct (the one they sent me). When I try to have them send me a new one,

I receive nothing.>

? Is there someone I should contact to try and resolve? Second, I've been informed that I will be travelling on business on December 11th, which conflicts with the final.?Is it possible to take the final the preceding week, or on the 13th or 14th?? Apologies for any inconvenience. Best, Jeff

Message 295 of 1299

RE:

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/1069.

Yes, we will go to the Sheas, but probably not until around 9pm. When are you guys going???

Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Friday, October 20, 2000 8:37 AM To: cameron@perfect.com Subject:

Thanks so much for the gifts. Very sweet. Sorry I was rushed, but I've got a big bad finance midterm on Tuesday that I ain't ready for and work's nuts. But I really want to hear more about the trip. Sounds like it was a blast.

You looked lovely in the pictures, all dressed up a la l'Italienne, and you look lovely in your everyday sweatshirt and jeans, too. (Don't sweat it.)

Prentice and I were planning on going to the Shea's tonite. You guys going?

Also, I'd love to talk to you this weekend if possible about Prentice's bday festivities.

Message 296 of 1299

FW: Committee on Ways and Means

Sender	sgreenberg@realenergy.com
Recipients	['dcashdan@realenergy.com', 'rpaul@realenergy.com', 'tocchionero@agcc.org', 'al_figueria@vflet.com', 'athomas@...]
File	dasovich-j/notes_inbox/12615.

Please fax a support letter (draft letter attached) to the Members of the Ways and Means Committee as well as the authors, HR 778 Cunningham, and HR 1045 Wilson and Issa. These are important measures that 1) recognize CHP in buildings as an energy efficiency measure and create valuable tax incentives for DER among other things. There will be hearings on these bills in Ways and Means on Tue and Wed June 12 and 13. Please call if you have any questions.

Steven A. Greenberg

Sr. Energy Officer RealEnergy, Inc. 300 Capitol Mall, Suite 120 Sacramento, CA 95814

916-325-2500 916-325-0451 fax

www.realenergy.com

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- Committee on Ways and Means.doc - HR 788 & 1045 Support Letter.doc - HR 1045 ISSA and Wilson Bill.pdf - HR 778.pdf

Message 297 of 1299

Re: you & me & ian

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/sent/4118.

let's talk and figure out a time. i'm off for school now. Best, jeff

=09Cameron Sellers <cameron@perfect.com> =0904/12/2001 05:44 PM =09=09=20 =09=09 To:

"Jeff.Dasovich@enron.com" <Jeff.Dasovich@enron.com> =09=09 cc:=20 =09=09 Subject: you & me & ian

I would love for you to meet our new VP of Professional Services (who is, incidentally, now for all intents and purposes running our company). I think you will love him. He is very interested in the idea of working with Enron and I want you to meet him. Can we set up a dinner for the three of us sometime in the next couple weeks? I know your schedule is busy with school, so why don't you tell me a couple nights that work (other than Mondays) and I will make it work on our end. Please oh please.

Love,

Your Pal Cameron=20

P.S. Going to Colleen=01,s new (to me) place for some wine tonight. I=01,= ll tell her hello for you=01(

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 298 of 1299

RE: UC/CSU Customer Complaint -- Quail Ridge Research Station

Sender	jeff.dasovich@enron.com
Recipients	[d..steffes@enron.com]
File	dasovich-j/sent_items/2109.

Well, we had the right person handling the call, that's for sure.

Best, Jeff

-----Original Message-----

From: Steffes, James D. Sent: Tuesday, October 30, 2001 5:09 PM To: Riley, Tom; Smith, Mike; Hughes, Evan Cc: Mara, Susan; Dasovich, Jeff Subject: UC/CSU Customer Complaint -- Quail Ridge Research Station

Tom --

I received a call today from the CPUC (came through the main Enron number) - a CPUC staffer named Joyce at 415-703-2199 (no one was interested in giving the last names).

Someone named Dan at the Quail Ridge Research Station (7001 Hwy 128 Napa, CA 94558) called the CPUC to complain that he was inappropriately switched from PG&E to Enron. It's a strange situation - the Universities own the bldg and land but a Trust pays the bills. He says that "the facility isn't anywhere near the campus."

The PG&E account number is ZNL8242005. His phone number is 503-752-0873.

I told him that we would look into this and get back by end of business Thursday.

The CPUC staffer is Joyce at 415-703-2199 (no one was interested in giving the last names).

My guess is that UC/CSU listed this account on a switch request but didn't ask Dan. What should we do??

Jim

Message 299 of 1299

Global Photon

Sender	jtobin@mofo.com
Recipients	[jdasovic@enron.com', 'stamnitz@globalphoton.com', 'jcountee@mofo.com']
File	dasovich-j/all_documents/605.

Jeff:

It looks like Tim Stamnitz, CEO of Global Photon, could schedule a meeting at 3PM on either July 5 or 6 at their office in San Diego.(One American Plaza, 600 West Broadway, Suite 1200, San Diego, CA 92101.

I could attend either of these times as well. We will need to finalize the NDA before financials are disclosed, so probably that will all happen at the meeting if we get the NDA worked out over this coming week.

As I indicated, I will be in Denver next week, but can get voicemail and email.

Jim

James M. Tobin Morrison & Foerster 425 Market Street San Francisco, CA 94105

(415) 268-7678 (415) 276-7678 (facsimile) jtobin@mofo.com (email)

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Message 300 of 1299

Re: you and me

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/all_documents/8281.

You know, generally, when I'm up in the morning, hanging around, getting=20 ready to start the day, I can't see any reason to put clothes on. I am muc= h=20 more comfortable that way. Always been that way.

Good goal. It would be easiest for me to have the meeting in SF. Next=20 week's fine for me. Monday's a day off for me. You? Or we could set=20 something up in the morning next week. Just let me know.

=09Cameron Sellers <cameron@perfect.com> =0901/11/2001 12:16 PM =09=09=20 =09=09 To:
"Jeff.Dasovich@enron.com" <Jeff.Dasovich@enron.com> =09=09 cc:=20 =09=09 Subject: you and me

Sorry for surprising you this morning!! Nothing wrong with being comfortable in your birthday suit.

Speaking of birthdays, I think we should have a goal to get my company acquired by your company by May 30, 2001. Good goal, huh??

I want to talk to you about the details I have been thinking about while yo= u were gone. When should we talk?? Let=01,s set up a meeting so we make sur= e to move this all forward.

Welcome back.

-C

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 301 of 1299

FW: ThirdAge is acquired

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/2879.

I have put in the request with the band and I will let you know what I hear back. I also told them their would be room to stay there. Mike & Lisa and Sean & Molly can come. I told them there would be room also. What is our total limit on people??

Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Mike Herring [mailto:mikeh@ThirdAge.com] Sent: Tuesday, October 31, 2000 2:58 PM To: Cameron Sellers
Subject: RE: ThirdAge is acquired

We will definitely come! We will get a baby sitter and come for the weekend, let us know if we should rent a house or condo or something. I am happy the merger is announced, it has been hurting my football-picking-ability. Mike At 10:40 AM 10/31/00 -0800, you wrote:

I saw that this morning. Congratulations!!! I assume you are crazily busy right now... Can you guys come for Prentice's 30th birthday party in December? Jeff is renting a place in Stinson beach for the weekend of the 15th and 16th. It would be great if you guys could come (even for part of it). Let me

know...

Love to you all!! Cameron

Message 302 of 1299

AB 128x Passed

Sender	cmicheli@carpentersnodgrass.com
Recipients	['steven@iepa.com', 'smccabe@mccabeandcompany.net', 'smara@enron.com']
File	dasovich-j/all_documents/12145.

The 7 pages of amendments were adopted.? Please check the Assembly Website tomorrow morning, as the bill should be in print then. AB 128x passed unanimously from the Assembly policy committee by a vote of 5-0.? Cedillo was not there.? The 2 Republicans did not vote.? Voting for the measure were Corbett, Alquist, Aroner, Koretz, and Thomson. Speaking in support of the bill were Jean Ross (CA Budget Project - a liberal think tank), Lenny Goldberg (who commented that he is "hopeful that the bill is constitutional"), CalPIRG, CA Labor Federation, and Women's Energy Group. Assemblywoman Alquist asked to be a co-author of the bill.? Assemblyman Wyland said that he believes that consumers are being gouged, but that he could not vote for this bill. Speaking in opposition were:? CMTA, Intergen, BP Amoco, California Chamber, and IEP. The bill next goes to a hearing at Assembly Appropriations Cmte, scheduled for next Wednesday (5/16). However, if the Assembly and/or Senate shuts down the Special Session tonight (which is the rumor), this bill and SB 1x will die.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 303 of 1299

FYI--DSL Economics

Sender	sue.nord@enron.com
Recipients	['tracy.cooper@enron.com', 'scott.bolton@enron.com', 'ricardo.charvel@enron.com']
File	dasovich-j/all_documents/4273.

----- Forwarded by Sue Nord/NA/Enron on 12/05/2000 09:42 AM -----

James D Steffes 12/04/2000 06:18 PM

To: Sue Nord/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron cc: Subject: DSL Economics

FYI. Information from EBS on DSL Economics.

At prices under \$50/month (for DSL and ISP service), the article says that payback is only 12 months [Don't follow this necessarily because \$600 first year Capex with only \$600 of fees].

Clearly if you add on installation and potentially internal wiring fixes (moving a phone jack to the TV set) this only makes it harder to work.

Also, interesting to note that Cable Modems are at least 10x faster than ADSL (why not go that route)?

Jim

----- Forwarded by James D Steffes/NA/Enron on 12/04/2000 06:10 PM -----

Rita Hartfield@ENRON COMMUNICATIONS 12/04/2000 11:07 AM

To: James D Steffes/NA/Enron@Enron cc: Anthony Mends/Enron Communications@Enron Communications Subject: DSL Economics

Jim, attached is a summary of the ADSL market including the required capital expenditures required per subscriber.

If you have any additional questions, please call me at ext. 35854.

Rita Hartfield Phone: 713-853-5854 Cell: 713-304-5428 Fax: 713-646-8861 rita_hartfield@enron.net

Message 304 of 1299

Two sections for CPUC repsonses

Sender	mona.petrochko@enron.com
Recipients	['sarah.novosel@enron.com', 'james.steffes@enron.com', 'west.ga@enron.com']
File	dasovich-j/all_documents/1205.

FYI. Haven't reviewed it yet. Please review and comment. Thanks.

----- Forwarded by Mona L Petrochko/SFO/EES on 09/07/2000

11:50 AM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 09/07/2000 10:00:56 AM To: "Mona L Petrochko" <mpetroch@enron.com> cc: Subject: Two sections for CPUC repsonses

Mona:

I saw the email about the delay. We have attached some draft material for some of the questions anyway. I will call you in a bit to go through it.

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

- 00-09-07 SA Seab additions.doc - 00-09-07 SS Sabine additions.doc

Message 305 of 1299

Re: Location of WPTF Board Meeting on Monday, Sept 11, at 1pm

Sender	douglass@arterhadden.com
Recipients	['robert_anderson@apses.com', 'berry@apx.com', 'barbara_klemstine@apses.com']
File	dasovich-j/notes_inbox/232.

FYI, the Arter & Hadden office is all of 2.9 miles from the airport, so it's a very short cab ride.? If anyone is driving and needs directions, please let me know.? Our office has a small conference room which might not be large enough for all the Board attendees, so we are meeting a few floors down, in a larger room which the building makes available to tenants.? As Gary noted, it is called the Boardroom, and is located on the fourth floor.? We'll bring in some sandwich menus and order out for a late lunch.? Look forward to seeing you. ? Dan ?

"Gary Ackerman" <foothill@lmi.net> 09/05/00 02:09PM >>>

Folks,

We have a venue and location for our new Board meeting.? Arter & Hadden has offered their office space.

Dan wrote me:

"Gary, our office is at 402 West Broadway.? Phone is (619) 238-0001 and fax is (619) 238-8333.? The room is called "The Boardroom" and it's on the 4th floor.? Arter & Hadden will pick up the charge, in thanks for all the work which comes our direction from WPTF.? Do you want to start with a lunch?? Or would you prefer to assume people will have lunched and just have snacks and drinks?"

I told Dan we would appreciate a late lunch, at 2 pm.? The meeting will start at 1 pm.

The dial-in number is 712-257-3178 PC 39908

Okay, That's it.

gba

Message 306 of 1299

RE: Market Participant Conference Call

Sender	jeff.dasovich@enron.com
Recipients	['karen.denne@enron.com']
File	dasovich-j/sent_items/1935.

Not quite sure why you're on this. I think you can pass.

Thanks for message re: Sanders.

Best, Jeff

-----Original Message-----

From: Denne, Karen Sent: Sunday, August 26, 2001 5:33 PM To: Dasovich, Jeff Subject: FW: Market Participant Conference Call Importance: High

Do you know what this call is for? And should I be on it? thx. kd

-----Original Message-----

From: Perrino, Dave Sent: Sun 8/26/2001 5:25 PM To: Vann. Prater; Tom Broderick; Teresabrown; delaneyassoc@home.com; dwoodfin@reliant.com; Denne, Karen; shea@dynegy.com; deb@a-klaw.com; steve.huhman@mirant.com; glenn Cc: Subject: Market Participant Conference Call

Dear All,

I apologize for the late notice on this message, hopefully we'll be able to get some of you on the call.

This call is being held to discuss in advance of the DSTAR Advisory Meeting on Wed Aug 29 our comments as they relate to Appendix P and how we want to strategically address the problems with the TOs removing several key items, including the "right-of-first refusal language.

Call in particulars:

Time: 9:00 AM PDT, 11:00 AM CDT

Phone:.422.7171, ParticipantCode 937022.

Kind Regards,

Dave

David F. Perrino Director, Government Affairs Enron Corporation 101 California Street, Suite 1950 San Francisco, CA 94111 Phone: 415.782.7801 Fax: 415.782.7854 Mobile: 415.794.8740

Message 307 of 1299

RE: Drunken Brothers

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com', 'scottwl@hotmail.com', 'psellers@haas.berkeley.edu']
File	dasovich-j/all_documents/3530.

B.O. you hearing any reviews? i think it opened this week, or last week? And I think Cameron's got it right, you guys on the 29th, me and P. Dub-yah on the 6th. Hey, I saw the menu that Nancy sent around. Is she cooking on her own birthday?

Ol' Easy Goin'

Cameron Sellers <cameron@perfect.com> 11/16/2000 12:26 PM

To: "'Scott Laughlin'" <scottwl@hotmail.com>, jdasovic@enron.com cc: PSellers@haas.berkeley.edu Subject: RE: Drunken Brothers

I am pretty sure our date is the 29th. They are going on the 6th.

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Scott Laughlin [mailto:scottwl@hotmail.com] Sent: Thursday, November 16, 2000 10:01 AM To: jdasovic@enron.com Cc: PSellers@haas.berkeley.edu; cameron@perfect.com Subject: Drunken Brothers

Hey, I'm just wondering, when are we slated to go see Woody, Sean, Nick and the boys? It's coming up, no?

Hope all's well,

B.O.

Get Your Private, Free E-mail from MSN Hotmail at <http://www.hotmail.com>.

Share information about yourself, create your own public profile at <http://profiles.msn.com>.

Message 308 of 1299

FW: DWR Contracts (August 2001)

Sender	lysa.tracy@enron.com
Recipients	['dave.perrino@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/160.

Jeff - contracts are copied, and are being sent via UPS Overnight tonight. Dave, I'll drop the receipt in today's mail!

Lysa

-----Original Message-----

From: Comnes, Alan Sent: Monday, August 27, 2001 10:19 AM To: Tracy, Lysa Subject: RE: DWR Contracts (August 2001)

Lysa,

These contracts are in my inbox. Please come by and copy them for Jeff if you have not done so already.

Dave, or Lysa:

The contracts came with a receipt. Do either of you need it for an expense report?

GAC

-----Original Message-----

From: Perrino, Dave Sent: Monday, August 20, 2001 2:48 PM To: Comnes, Alan; Lysa Tracy (E-mail) Cc: Rosman, Stewart; Dasovich, Jeff Subject: DWR Contracts (August 2001)

Alan/Lysa,

Stewart Rosman had requested I find the DWR August energy and fuel contracts as announced in an August 17 press release. With Lysa's assistance we have sent the processing fee and appropriate courier fees to DWR. I am expecting that Stewart will be receiving these materials on Wednesday (8/22).

The purpose of this message is to ask that once Stewart receives these contracts and gives you (Alan) a copy, that you please make another copy and send it to Jeff Dasovich in our San Francisco Office.

Thanks,

Dave

David F. Perrino Director, Government Affairs Enron Corporation 101 California Street, Suite 1950 San Francisco, CA 94111 Phone: 415.782.7801 Fax: 415.782.7854 Mobile: 415.794.8740

Message 309 of 1299

Dual Auction Restructuring

Sender	michael.etringer@enron.com
Recipients	['jbloom@whitecase.com', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/554.

Jerry,

First off I would like to again commend you on your presentation yesterday. It would be an understatement to say that the last year's worth events have been amazing at best.

As we discussed at lunch, Enron has developed a unique approach to QF contract restructuring. The main premise is that of conducting a dual auction to determine, on a completely voluntary and open process, the QF buyout economics and the market clearing price for replacement energy. As discussed yesterday, I am enclosing copies of the presentations made to PG&E and SCE on this topic. I would be very interested in your feedback on this concept and on the presentations provided. I must footnote that the economic shown in the presentations are Enron estimates. Individual feedback, particularly in this area would be appreciated.

Jeff Dasovitch out of our SF office has been working with me on this proposal and will likely be contacting you within the next day to further discuss this idea as well as the benefits and possible strategies for initiating such an auction process.

Thanks for your time and look forward to hearing from you.

Best Regards, Mike

Mike Etringer 503.464.3836 (w) Enron North America 503.701.4516 (c) West Power Origination 503.464.3740 (fax) 121 SW Salmon Street 3WTC0306 michael.etringer@enron.com Portland, OR 97232

Message 310 of 1299

RE: Directions

Sender	cameron@perfect.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/4517.

I will send this out. Yes, we can talk tonight. When will you be at the house?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Monday, December 11, 2000 11:02 AM To: cameron@perfect.com; scotttwl@hotmail.com; psellers@Haas.Berkeley.EDU Subject: Directions

Can we do a little planning tonite for this weekend?

Cameron:

Here are the directions to the place in Stinson. Can you email to your invites? Did you invite John E?

We have the place from 5 PM on Friday evening till 10 AM on Sunday morning.

Address: 11 Sonoma Patio Stinson Beach

If you're coming from the City and take Panoramic over Mt. Tam, then when you hit Highway One, make a right and head north toward town. Go through town and make a left on Calle del Arroyo. If you see the lagoon on your left, you've gone too far. After making a left on Calle del Arroyo, make a left on Sonoma.

If you're coming from points North, then you'll be heading south on Highway One toward Stinson. After you've passed the lagoon on your right, you'll eventually come to Calle del Arroyo. If you arrive in the town of Stinson Beach, you've gone too far. Make a right on Calle del Arroyo, then a left on Sonoma.

Message 311 of 1299

FW: Great job!

Sender	cameron@perfect.com
Recipients	['psellers@haas.berkeley.edu', 'hopper@perfect.com'; Elizabeth Sloan", 'nancy.sellers@mondavi.com', 'eldon@int...
File	dasovich-j/all_documents/1826.

I will be in print for the first time =01) the October 9th issues of eWeek = and=20 Internet Week.? I have been officially launched as a spokesperson.? It was = a=20 little scary on the first one, but now its actually fun.? You just have to = be=20 so aware of what you are saying, but still sound enthusiastic and lively.? =20 The first part doesn=01,t come naturally for me.

?

Cameron Sellers

Vice President, Business Development

PERFECT.COM

1860 Embarcadero Road - Suite 210

Palo Alto, CA 94303

cameron@perfect.com

650.798.3366 (direct dial)

650.269.3366 (cell)

650.858.1095 (fax)

?

-----Original Message-----

From: Sarah Bracken [mailto:sbracken@exchange.hornigroup.com] Sent: Wednesday, September 27, 2000 12:44 PM To: 'cameron@perfect.com' Cc: 'hopper@perfect.com'; Elizabeth Sloan Subject: Great job!

?

Cameron,

?

Great job on the calls today. I thought the InternetWeek call was especial= y=20 good in that Chuck was so interested and interactive! I am thrilled as well that we have two= =20 confirmed hits in eWeek and InternetWeek for their Oct. 9th issues.

?

I sent both customer and analyst contact information along to both Jeff and= =20 Chuck, along with the UI screen shots that Jane sent over, so we should be all set.

?

Talk to you soon -

Sarah

?

Sarah Bracken

The Horn Group, Inc.=20 E-Public Relations for E-Business=20 415/905-4020=20 sbracken@horngroup.com=20

?

? - image001.jpg

Message 312 of 1299

Design of long-term contractual mechanism for California

Sender	seabron.adamson@frontier-economics.com
Recipients	['jdasovic@enron.com', 'jsteffe@enron.com', 'acomnes@enron.com']
File	dasovich-j/notes_inbox/5821.

Is there any detail available about how this long-term contractual mechanism being neogotiated might work? I ask because we have heard about interest in a similar mechanism that was adopted in Australia, in New South Wales. My colleagues in Australia are the main restructuring advisors to the NSW government. Details of this mechanism are in the public domain, i documents available from the NSW Treasury.

If they design it properly it is possible that you could still have some form of retail competition, if the hedge moves with the customer. This was a big design issue in Australia. Otherwise, it looks like a political fudge that will stymie the development of the market for years to come.

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

Message 313 of 1299

Transmission OII - PG&E Filing

Sender	douglass@energyattorney.com
Recipients	['dpurdum@apx.com', 'ed@cazalet.com', 'berry@apx.com', 'tjohnso8@enron.com']
File	dasovich-j/notes_inbox/12164.

Attached is the prehearing conference statement issued by PG&E in the =20 Transmission OII proceeding.? The utility suggests that there are no =20 projects which should be considered.? Their direct quote is: ? "...it does not appear that PG&E has any transmission projects appropriate= =20 for inclusion in this fall=01,s hearings.? While the Los Banos-Gates 500 = kV=20 Transmission Project (the =01&Path 15 Project=018) raises issues of statew= ide=20 importance and has progressed to the point where a preferred route has bee= n=20 identified and a detailed cost estimate prepared, that project is the=20 subject of a pending conditional CPCN application (A.01-04-012).? There is= =20 no need for the Commission to conduct a duplicative analysis of the Path 1= 5=20 project as part of the instant investigation.? The only other transmissio= n=20 projects PG&E currently plans that may require a CPCN =01) the Vaca-Lakevi= lle=20 230 kV Project in Sonoma and Napa Counties, the Jefferson-Martin 230 kV=20 project in San Francisco, the Fresno Long-Term project, and the Bay Area 5= 00=20 kV substation project =01) are all longer-term, locally- or regionally-foc= used=20

projects not planned to be operational until 2004, 2005, 2006, and 2007, = 20 respectively." ? Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. ? Suite 244 Woodland Hills, CA 91367 Tel: ?? (818) 596-2201 Fax: ? (818) 346-6502 douglass@energyattorney.com - PHC Stmt_07_03_01.doc

Message 314 of 1299

FW: New Memembers of EWS - Portland

Sender	alan.comnes@enron.com
Recipients	['susan.mara@enron.com', 'dave.perrino@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/67.

FYI -----Original Message----- From: Davidson, Debra On Behalf Of Richter, Jeff Sent: Thursday, August 30, 2001 3:39 PM To: DL-Portland World Trade Center Subject: New Memembers of EWS - Portland

I would like to welcome Tim Coffing, Gordon Savage, and David Frost to the EWS - Portland team.

Tim Coffing is a second year analyst in Enron's analyst/associate program. He spent his first rotation within the EES division of Enron. Tim is in the process of moving to Portland where his responsibilities will include managing the intra-month EWS positions and integrating them into the wholesale cash desks.

Gordon Savage comes to us from EES where he was a director in the Utility Risk Management (URM) group in Houston. Gordon is in the process of moving to Portland where he will be working with Steve Swain on the EWS - West URM portfolio.

David Frost is an associate in Enron's analyst/associate program. He spent his last rotation within Enron Broadband Services here in Portland and will be working with Steve Swain and Gordon Savage on the EWS - West URM portfolio.

Feel free to introduce yourself to Tim, Gordon, and David so they can become more familiar with the different groups on the floor.

Jeff Richter 503.464.3917 (w-pdx) Enron North America 503.701.6488 (c) West Power Services 503.464.3740 (fax) 121 SW Salmon Street 3WTC0306 jeff.richter@enron.com Portland, Oregon 97204

Message 315 of 1299

RE: Assignment for Thursday

Sender	jeff.dasovich@enron.com
Recipients	['Anil Sama; Vavrek', 'Carolyn (US - San Francisco);', 'cvavrek@deloitte.com']
File	dasovich-j/all_documents/10659.

Thanks. See you tomorrow.

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> 04/04/2001 03:43 PM

To: Jeff.Dasovich@enron.com cc: Subject: RE: Assignment for Thursday

i think there is no prep 4 thurs those other asgnts were dropped hope u had fun in mexico thanks 4 the files - cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, April 04, 2001 10:27 AM To: Jeff.Dasovich@enron.com Cc: Anil Sama; Vavrek, Carolyn (US - San Francisco); Jeff.Dasovich@enron.com; Jeff_Dasovich@enron.com; Mark Guinney Subject: Assignment for Thursday

Greetings:

Are we supposed to do the reading and the Oracle and Legal Services cases for Thursday? Syllabus says yes, but I gather from Tasker's Izio not that we'll be in the computer center all class doing modeling. (I'd email her, but she doesn't get my emails apparently.) Anyone have a clue?

Best, Jeff

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Message 316 of 1299

Re: Draft program

Sender	hcameron@uclink.berkeley.edu
Recipients	['whederman@columbiaenergygroup.com', 'gramlr@pjm.com']
File	dasovich-j/all_documents/907.

Dear All,

After listening to the various viewpoints and concerns expressed in our last conference call, I believe that the panel options listed in Option 3 of Rob's draft might be most effective in producing the type of discourse that we are seeking.

I propose that we schedule a conference call for this Friday afternoon, September 1, at 4PM EDT. I mentioned that I have reserved the Krutch Theater (max.capacity 375) for the week of November 13-17. I have since been informed that I can only hold the whole week through Wednesday, September 6, therefore, it will be important to narrow the options down very soon if we can.

Best wishes, Heather

At 06:44 AM 8/30/00 -0400, gramlr@pjm.com wrote:

Shall we try to talk again Monday? I think I will talk to Borenstein to see what the Haas folks have in mind. I tried to capture everyone's comments. Allen, you might want to explain

more

about your panel suggestions since I didn't do them justice. As you'll see I took the liberty of offering a new characterization of the panels that I didn't bring up on the call. Everything on there is offered as a strawman to be criticized and changed. Rob <<Draft program.doc>> Rob Gramlich PJM Market Monitoring Unit (610) 666-4291 gramlr@pjm.com

Heather Cameron, Events Coordinator The Richard & Rhoda Goldman School of Public Policy University of California, Berkeley 2607 Hearst Avenue Berkeley, CA 94720 Tel: 510-642-9437 Fax: 510-643-9657 GSPP home page: <http://gspp.berkeley.edu>

Message 317 of 1299

Material for EOB pleading

Sender	mary.hain@enron.com
Recipients	['susan.mara@enron.com', 'mhenry@bracepatt.com', 'carrn@bracepatt.com', 'mona.petrochko@enron.com', 'jdasovic...']
File	dasovich-j/notes_inbox/434.

Attached is a draft response to the economics arguments made by the Electricity Oversight Board. Please let me know if you have any problems with these. These arguments need a little wordsmithing but they are sound. -----

Forwarded by Mary Hain/HOU/ECT on 09/14/2000 10:31 AM

Enron Capital & Trade Resources Corp.

From: "Seabron Adamson" <seabron.adamson@frontier-economics.com> 09/14/2000 10:11 AM

To: <mhenry@bracepatt.com>, <rcarroll@bracepatt.com> cc: <mary.hain@enron.com> Subject: Material for EOB pleading

Please see attached. If you have any question please phone me on the number below. You can also try my cellphone 513-5904.

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

- 00-09-13 SA Material for EOB pleading.doc

Message 318 of 1299

San Francisco's Outlook Migration

Sender	april.hrach@enron.com
Recipients	['rob.bakondy@enron.com', 'victor.browner@enron.com', 'kelly.brodbeck@enron.com']
File	dasovich-j/notes_inbox/11775.

Hey All-

Please read the following email and let me know if you have any questions.

Thanks, April Hrach Administrative Coordinator Phone: 415-782-7825 Fax: 415-782-7851 ----- Forwarded by April Hrach/SF/ECT on 07/19/2001 01:55 PM -----

Wilma Blesman/ENRON@enronXgate 07/19/2001 12:41 PM

To: April Hrach/SF/ECT@ECT, Gary Bode/ENRON@enronxgate, Dalak Malik/ENRON@enronxgate, Deborah Kelly/ENRON@enronxgate, Christina Albers/ENRON@enronXgate, Jason Chumley/ENRON@enronXgate cc: Cyndi Wulfson/ENRON@enronXgate Subject: San Francisco's Outlook Migration

April,

My plans are to visit your office the week of July 30th. We have 20 people that need to be migrated. I would like to migrate 10 people on Monday and 10 people on Tuesday. Migrations are done at night, therefore, Tuesday and Wednesday morning I will configure everyone's Outlook. The rest of the time I'll be training everyone and setting everything up to best fit people's needs.

A copy of the NA Email Retention / Policy is attached.

However, due to legal issues we are currently experiencing with the San Francisco office, this will not go into affect yet. We will not purge anyone's Lotus Notes mailboxes. Notes will be available to you for referencing.

Only 30 days worth of information will be transferred from Notes to Outlook. Once on Outlook, we will still hold off on purging. Nevertheless, when the legal issues clear, we will reinforce our policy.

Thank you for your time,

Wilma Bleshman Enron Networks 713-853-1562

Message 319 of 1299

RE: honduras

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com', 'psellers@pacbell.net']
File	dasovich-j/sent_items/665.

Interesting.

Question 1: Please explain the following line from your note: "I really need to get certified for diving."

Question 2: How hot is it down there?

Question 3: Cheap is good, but if you're going to travel that far to dive, is the diving good there, or is there another place (like Beliz) where the diving is supposed to be killer?

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Wednesday, October 17, 2001 7:24 PM To: Dasovich, Jeff; 'PP' Subject: honduras

I asked PP if she was interested in going to Honduras between xmas and new years this year. I really need to get certified for diving and the diving there is extremely cheap, but reliable (its an American outfit and all PADI). PP thought she might be interested in going and doing it with me. So, first I wanted to know what you thought of the whole thing. Then, if you are into it at all I will look into flight opportunities (staying down there and the scuba course and single dives are all very cheap, but the flight would be the most expensive). And, last, do you have miles on continental and are they miles that PP can take advantage of also? I think Continental goes to San Salvador which is a common connecting city. So, you might luck out on flight costs and the whole trip would not be too bad. What do you think?

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 320 of 1299

Re: Enron's Response to IRF Solicitation

Sender	lyle.white@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/9037.

Jeff, I'm working with the California Resturant Association on a member program. Their Government Affairs Person, Jot Condi has asked for our help. Would you review his concern and let me know what steps, if any we can take. Feel free to contact Jot directly at 916-431-2724.

----- Forwarded by Lyle White/HOU/EES on 02/10/2001 09:24 AM

"Pete White" <PWHITE1@irf.com> on 02/09/2001 11:59:00 AM To: lwhite6@enron.com, NBRAND1@irf.com cc: Subject: Re: Enron's Response to IRF Solicitation

Lyle,

Thanks for the quick response. Please send your Terms and Conditions to my attention.

Peter White Director of Materials International Rectifier El Segundo Facility 222 Kansas St El Segundo Ca 90245

Lyle White <lwhite6@enron.com> 02/09/01 09:24AM >>>

----- Forwarded by Lyle White/HOU/EES on 02/09/2001 11:08 AM

Lyle White 02/09/2001 10:58 AM

To: Nbrand1@irf.com, pwhite@irf.com cc: Subject: Enron's Response to IRF Solicitation

I received your letter to discuss options with Enron. Based on latest developments it will be important to discuss options as soon as possible. If Senate Bill 27X does not pass, or it compromises to favor only accounts under 500 kW, then there is a short window of opportunity to commit to direct access before AB 1x is enacted.

I will have a contract for review in the next few days, but in the meantime, please feel free to call me at the following:

Lyle White Enron Energy Services 602-795-5786 / office 602-614-1143 / cell

Message 321 of 1299

SR Technics Palmdale Grand Opening, 3/22

Sender	jeff.dasovich@enron.com
Recipients	['sandra.mccubbin@enron.com', 'james.steffes@enron.com']
File	dasovich-j/sent/3569.

FYI. ----- Forwarded by Jeff Dasovich/NA/Enron on 03/12/2001 09:37 AM -----

Ed Ghalib/Western Region/The Bentley Company@Exchange 03/09/2001 11:47 AM

To: Joseph Alamo/NA/Enron@Enron cc: Jeff Dasovich/NA/Enron@Enron, Terry Stelter/Western Region/The Bentley Company@Exchange Subject: SR Technics Palmdale Grand Opening, 3/22

Joseph,

Per our telephone conversation, attached is the draft program for the activities scheduled for our client's Grand Opening which will be attended by Governor Gray Davis and other Government VIP's. As I told you, my company, The Bentley Company (Architecture/Engineering/Construction company within EES), was responsible for a prominent part of this facility's construction (involving the conversion of a large Boeing factory that SR Technics acquired with much involvement

from the Governor's office) and Enron/Bentley will be part of the Grand Opening through possible sponsorship of some event(s), full page ad in the souvenir program, Enron name brand recognition through banners, etc. I am working out the details of our involvement with the event coordinator right now. I suspect Enron governmental affairs would like involvement given the relatively high exposure this event will garner politically and through the news media (please refer to the attachment).

Please contact me ASAP at 661-609-4886 to discuss.

Regards,

Ed Ghalib, S.E. Director, Client Management

email: ed_ghalib@enron.com voice: 714.434.1800, ext 310 mobile: 661.609.4886

ENRON/Bentley 611 Anton Blvd., Suite 700 Costa Mesa, CA 92626

Message 322 of 1299

riding mendocino	
Sender	afinch@iasco.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/27782.

Hi Jeff,

Madeleine asked that I forward this to you at this email address. Looks like we may have a small group going to Mendocino in September (maybes for Pat Scatena, Madeleine and Nora, and my husband and I are definitely going). Let me know if you are interested.

I heard back from Ricochet Ridge (from Lari's executive assistant) that the weekend of September 21-23 (Friday through Sunday) would work best for them to host an advanced group.

We should probably confirm as soon as possible, and start looking for accommodations, given that September is a popular time in Mendocino.

Her prices this year are \$195.00 per person for an all-day ride (they generally start at 9ish and finish at around 3:30 or 4:00). We provide our own lunch, or for \$10 more per person, the ranch will pack us lunch. Four-hour rides are \$125.00, and can include beach, redwoods or both. The all-day rides are great, because you can go a little farther and get a nice lunch break, usually with a view. But another option would be to do a four-hour ride each day, selecting either beach or forest, to reduce the cost somewhat.

Please let me know if you can make it, and what days you would like to ride (Friday, Saturday and/or Sunday), and whether you prefer the all-day or four-hour option. When I know general numbers, we can decide if we would like to get a house (if any are available) or if a hotel/B&B option would work better.

Amy Gustafson Finch General Counsel IASCO 1633 Old Bayshore Hwy #280 Burlingame, CA 94010 (650) 259-8400 x104 (ph) (650) 259-8404 (fax) afinch@iasco.com

Message 323 of 1299

Summary of AB 128x Amendments	
Sender	cmicheli@carpentersnodgrass.com
Recipients	['teresa_casazza@aeaanet.org', 'rexhime@cbpa.com', 'sglobby@pacbell.net']
File	dasovich-j/all_documents/12070.

The following author's amendments are expected in committee on Monday afternoon (actual Leg Counsel language is supposed to come back Monday morning): 1.? The tax will be on excess gross receipts from electrical energy distribution. 2. The tax will be imposed on the person making the first sale of electrical power in or into CA for consumer consumption. 3. The tax will be based upon the amount by which the gross receipts from the sale exceed the amount that would have been received if the sale had been made at a specified "base price" (to be determined by the PUC). 4.? There will be a rebuttable presumption that the base price represents a fair sales price. 5.? There will be a withholding mechanism of this excess tax from the purchasers, other than purchasers who are residential consumers or small business users. 6.? It will require sellers to file annual tax returns to report the tax on excess gross receipts and pay any remaining taxes due. 7.? It will allow sellers to file a claim for refund in an attempt to rebut the presumption that the base price was a fair sales price. 8.? Provide certain nexus standards to California to provide the basis to impose tax liability. 9. Include a 5-year sunset date. No opposition has been received by the Rev & Tax Cmte as of Wednesday of this week.? Therefore, no opposition (or support) will be listed in the committee's analysis.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

*Message 324 of 1299***FW: Mexico OnLine**

Sender	cameron@perfect.com
Recipients	['psellers@haas.berkeley.edu', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/679.

Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: JanelB3@aol.com [mailto:JanelB3@aol.com] Sent: Wednesday, September 27, 2000 1:10 PM To: cameron@perfect.com Subject: Re: Mexico OnLine

Dear Cameron The dates you requested are open. As you have recognized from our website, we have a lush, lovely, peaceful garden oasis in an authentic historical pueblo that is also gaining interest as home to many artists and others interested in living in a most unique environment. Our aim is to provide a memorable experience with modern facilities that also reflect the beauty and comfort of Mexican rustic design. Our casitas have kitchens, baths and covered patios that afford privacy and a renewing atmosphere. Great care has been taken to provide service and comfort. Our prime season is approaching so it is well advised to book early. We have a number of inquiries for the dates you requested. The rates as described are \$80 USD per night for the casita .which is separate and very private. The weekly rate is \$450 USD. To hold a reservation we require a 50% deposit when you have your exact dates. Let us know what they are and I will mail instructions. If this is your first time to this area or if there are any questions you might have, please feel free to write. and I will do my best to answer. Our community site for up to date events is www.todossantos.cc Mil gracias for your inquiry. Linda Macfarlane for Las Palmas Casitas

*Message 325 of 1299***Layman's Summary of EPMI's FERC White Paper**

Sender	mary.hain@enron.com
Recipients	['susan.mara@enron.com', 'carrn@bracepatt.com', 'mona.petrochko@enron.com', 'jdasovic@ees.enron.com']
File	dasovich-j/all_documents/2576.

The attached bullets give real-life examples that people will understand. I also told Karen Denne to reference the bullets at the beginning of our motion if she needs to know what we're requesting at FERC. Please notify Karen and me if you see any problems with the message. ----- Forwarded by Mary Hain/HOU/ECT on 10/20/2000 02:25 PM

Enron Capital & Trade Resources Corp.

From: "Seabron Adamson" <seabron.adamson@frontier-economics.com> 10/20/2000 02:08 PM

To: <Mary.Hain@enron.com> cc: <kdenne@enron.com> Subject: Layman's Summary of FERC White Paper

Mary:

Please find attached a bried one page summary of the FERC White Paper, as discussed. I have tried to make it simple and with analogies that are comprehensible to the press, etc.

Seab

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

- 00-10-20 SA Summary of White Paper on Completing California's Power Markets.doc

Message 326 of 1299

Re: you and me

Sender	jeff.dasovich@enron.com
Recipients	[cameron@perfect.com]
File	dasovich-j/all_documents/8282.

P.S. Nice use of "birthday" as the segue to the deal. =20

Speaking of birthdays, Prentice has informed me that, despite my=20 protestations (being a very low-key sort of guy), there "must" be some part= y=20 for my birthday this year (which I'm still opposed to--and I may be in=20 Houston that MONTH anyway). =20

I was thinking (cuz I hate spotlights), that it might be fun and interestin= g,=20 since your Dad and I are both hitting interesting birthdays this year, if w= e=20 had a joint party---double the people, double the fun. (I don't know if he= 'd=20 rather have a solo party for his, though.) And since my dad's met your dad= ,=20 but our mom's ain't been in the mix, I though it might be a good (and=20 hopefully safe) atmosphere to get them together in. =20

Am I smoking crack on the whole idea?

=09Cameron Sellers <cameron@perfect.com> =0901/11/2001 12:16 PM =09=09=20 =09=09 To:
"Jeff.Dasovich@enron.com" <Jeff.Dasovich@enron.com> =09=09 cc:=20 =09=09 Subject: you and me

Sorry for surprising you this morning!! Nothing wrong with being comfortable in your birthday suit.

Speaking of birthdays, I think we should have a goal to get my company acquired by your company by May 30, 2001. Good goal, huh??

I want to talk to you about the details I have been thinking about while yo= u were gone. When should we talk?? Let=01,s set up a meeting so we make sur= e to move this all forward.

Welcome back.

-C

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 327 of 1299

RE: Notional NP15 5-year Price

Sender jeff.dasovich@enron.com

Recipients ['paul.kaufman@enron.com', 'susan.mara@enron.com', 'jeff.shields@enron.com']

File dasovich-j/sent_items/351.

No problem here. That price is making DWR's contracts look worse and worse every day. Poor California. Jeff, if you have questions or want to discuss further, don't hesitate to call me or Sue, though Paul can likely answer most questions.

Best, Jeff

-----Original Message-----

From: Kaufman, Paul Sent: Friday, September 28, 2001 10:34 AM To: Shields, Jeff Cc: Dasovich, Jeff; Mara, Susan Subject: RE: Notional NP15 5-year Price

I don't see an issue with this. I've cc'd Jeff Dasovich and Sue Mara to check in with them (while I can see California's pulse on the monitor, they actually have their hand on California's throat)!!!

-----Original Message-----

From: Shields, Jeff Sent: Thursday, September 27, 2001 1:44 PM To: Kaufman, Paul Cc: Calger, Christopher F. Subject: FW: Notional NP15 5-year Price

Mike & Paul,

I have been asked by a consultant to the San Francisco Local Agency Formation Commission to provide a notional number for a 400 MW power supply at NP-15 starting 01-01-02 for 5 years. I had Jeffrey Oh price this but I do not want to send a term sheet until I am sure your OK with this. The situation is that LAFCO has initiated a "30,000 ft. level feasibility study of a measure that is on the ballot to form a new muni in San Francisco and Brisbane.

Jeff

-----Original Message-----

From: Oh, Jeffrey Sent: Thursday, September 27, 2001 1:29 PM To: Shields, Jeff Subject: Notional NP15 5-year Price

The price for 7x24 power for NP15 for Jan-02 through Dec-06, 400 MW, is \$35.85.

Jeffrey Oh Enron North America 503.464.7789 121 SW Salmon Street 503.708.1760 (cell) 3WTC 0306 503.464.3740 (fax) Portland, OR 97204 Jeffrey.Oh@Enron.com

Message 328 of 1299

RE: meeting with Enron

Sender jeff.dasovich@enron.com

Recipients ['cameron@perfect.com']

File dasovich-j/sent_items/213.

This won't work. Try again, please.

KIDDING! Looks great. Thanks. I'll forward along to Greg and Brad and get back to you soon as I know something.

Toodles, Jeff

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Friday, September 21, 2001 6:56 PM To: Dasovich, Jeff
Subject: meeting with Enron

Jeff,

It was great to talk to you today. Thank you so much for taking the time to hear about our latest developments. As I said earlier, we are very interested in talking to your folks in the Net Works group at Enron. The pilot we are implementing for the Enron Energy Services group is going extremely well. We've been on site now for about two weeks and have pretty much completed our user training sessions. Everyone at Enron is very pleased with the success of the project so far.

I think the best thing would be to schedule a meeting for sometime in mid-October. That way, the Pilot Program will be completely implemented and we will have more feedback on the use of our application. How about the week of October 15th? Anytime that week will work with us and, as I told you earlier, we are in Houston very frequently.

The people who would be a part of the discussion would be Ian Sullivan (who heads up all implementation and professional services) and myself.

If anyone would like more information about Perfect Commerce prior to the meeting I would be more than happy to send that over. Just let me know.

Look forward to hearing from you.

Best regards,

Cameron

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

Message 329 of 1299

Request for Confidential Information from The Attorney General

Sender	terri_l_ponce_de_leon@calpx.com
Recipients	['market_participant_cd2@calpx.com', 'px_marketing_services@calpx.com', 'market_participant_ab1@calpx.com']
File	dasovich-j/all_documents/2427.

Sent on behalf of Sandi Thompson

To All California Power Exchange Participants:

Notice is hereby provided pursuant to Section 19.3.4 of the California Power Exchange Tariff that the Attorney General for the State of California (AG), as part of an ongoing investigation of California markets, has requested information that may be confidential under Section 19.3.2 of the Tariff. Such information is detailed in the attached subpoena. The California Power Exchange will provide such information no later than Wednesday, October 25, 2000. If you desire to assert a claim of privilege or confidentiality pursuant to legal authority, the California Power Exchange will include your written assertion of that claim together with its submittal to the AG, provided that it is timely received. Your written statement should be directed to the AG as follows:

Bill Lockyer, Attorney General Attn: Richard Rochman, Deputy Attorney General 455 Golden Gate Avenue, Suite 11000 San Francisco, CA 94102-7004

Please deliver your statement to the California Power Exchange as follows:

Karen Koyano California Power Exchange 1000 S. Fremont Avenue Unit 20 Alhambra, CA 91801 626.537.3173 facsimile

Any written statement must be received no later than Friday, October 20, 2000, 5:00 p.m. Pacific Daylight Time, to be included with any information delivered to the AG. You are also free to take any other legal action you may deem appropriate in the circumstances of this inquiry.

Thank you.

(See attached file: calpxsubpoena1 AG 10-3-00.doc) (See attached file: AG Confidentiality Ltr 10-13-00.doc)

- calpxsubpoena1 AG 10-3-00.doc - AG Confidentiality Ltr 10-13-00.doc

Message 330 of 1299

Independent Institute Price Cap Protest Letter from Economists

Sender	rob.bradley@enron.com
Recipients	['steven.kean@enron.com', 'richard.shapiro@enron.com', 'janel.guerrero@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11642.

David Theroux at the Independent Institute in Oakland, California became concerned over Enron's involvement in this project, so he has decided to fund the project internally.

He anticipates that the letters will go out to economists around the country when the school year starts (just several weeks away in some places) and hopes to complete the project by October. They got around 540 economists for their health care price cap letter. It will be interesting to see how many signatures they get for electricity price caps. I sent him our draft letter, and he is massaging the language between wholesale price decontrol and the use of real-time pricing at retail.

I offered the use of our university contacts to help gather signatures, but I don't know if he will even want in-kind help. Anyway, we can do something else with the \$30,000 that we were going to try to funnel to them.

- Rob

-----Original Message-----

From: David Theroux <DTheroux@independent.org>@ENRON

[mailto:IMCEANOTES-David+20Theroux+20+3CDTheroux+40independent+2Eorg+3E+40ENRO N@ENRON.com] Sent: Thursday, July 19, 2001 3:44 PM To: rbradle@enron.com (Ropb Bradley) Subject: Hello

Dear Rob,

We have been pursuing the possibility of addressing the matter of price controls as they pertain to electricity markets as we have done in the past with our other Open Letters.

But in doing so, we would only pursue the matter independently without the involvement or support of any businesses or other organizations in this or related fields.

Best regards,

David -- David J. Theroux Founder and President The Independent Institute 100 Swan Way Oakland, CA 94621-1428
510-632-1366 Phone 510-568-6040 Fax DTheroux@independent.org <http://www.independent.org>

Message 331 of 1299

Re: Mike Day Invoices

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com']
File	dasovich-j/all_documents/10044.

I'm assuming that since it's the middle of March, that it's only fair that he should get paid for services rendered in January, but maybe I'm missing something.

Susan J Mara 03/15/2001 05:59 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Mike Day Invoices

Do you understand all the big deal about the paying Mike fast?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/15/2001 03:57 PM -----

Eric Benson 03/15/2001 11:32 AM

To: Paul Kaufman/PDX/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Joseph Alamo/NA/Enron@Enron cc: Subject: Mike Day Invoices

Paul, Sue and Joseph -

I wanted to give you all a quick update on the Mike Day invoices. I have the invoice for January and understand from Joseph that he has the invoice for the special session which once reviewed, coded and approved Joseph will overnight to Houston. I called Larry Dallman in accounting and Larry confirmed that Goodin, MacBride is currently on a Net 7 payment term. Larry said that he could expedite payment for the January and special session invoices for same day pay. Accounting will call me when the checks are ready to be picked up and I will fed ex payment to Mr. Day's attention once I have the checks. Larry and I agreed that it would be best to wait to send the invoices at one time (this will make it easier for accounting).

Paul - As you and I discussed, I will send an email to Mr. Day once I have received the invoices to advise him when to expect payment and I will confirm that he should be the recipient once I have the checks. I'll make sure to copy you, Sue and Joseph so we all stay on the same page.

Please advise of any questions, comments or concerns.

Eric 713-853-1711

Message 332 of 1299

Re: Two sections for CPUC repsonses

Sender	mona.petrochko@enron.com
Recipients	['susan.mara@enron.com', 'jeff.dasovich@enron.com', 'seabron.adamson@frontier-economics.com', 'james.steffes@e...']
File	dasovich-j/all_documents/1241.

I've reviewed the drafts, and I think it is good work. The report of the MSC of the ISO has come out with some of its fixes to the market structure issues very closely parallels alot of our points. I am at the hearing in San Diego today where that will be the topic discussed. Will call at the lunch break. I really like highlighting how much development of retail markets will alieviate some of the problems, especially since that is something that is within the Commission's authority to fix.

Question on market power: Do we want to highlight the myriad of other causes of higher than short-run marginal costs? ie. low hydro, NOX credits

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 09/07/2000 10:00:56 AM To: "Mona L Petrochko" <mpetroch@enron.com> cc: Subject: Two sections for CPUC repsonses

Mona:

I saw the email about the delay. We have attached some draft material for some of the questions anyway. I will call you in a bit to go through it.

Seab

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

- 00-09-07 SA Seab additions.doc - 00-09-07 SS Sabine additions.doc

Message 333 of 1299

RE: Group Project--E221

Sender	tasker@haas.berkeley.edu
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff.dasovich@enron.com', 'cvavrek@deloitte.com']
File	dasovich-j/all_documents/10238.

Hi Carolyn, Anil, Mark & Jeff - I'm really sorry but I don't know what happened to Jeff's email. I have no recollection of receiving it, and I can't find it anywhere, so I have no idea what happened. A little disconcerting... Anyhow - my apologies! Thanks Carolyn for forwarding it along.

At 04:13 PM 3/20/2001 -0800, Vavrek, Carolyn (US - San Francisco) wrote:

I did not see our names on your list. Please see Jeff's e-mail sent to you last Friday. Sorry for any confusion. Thanks, Carolyn
Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105 phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com -----Original Message----- From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Friday, March 16, 2001 11:03 AM To: tasker@haas.berkeley.edu Cc: Anil Sama; Mark Guinney; Cvavrek Subject: Group Project--E221 Greetings Professor: Our group consists of Jeff Dasovich, Mark Guinney, Anil Sama and Carolyn Vavrek. We propose to examine the recently failed acquisition by Coke of Quaker Oats: Why merge? What was the value? Upside? Downside? Why did it go bust? Should it have gone through? What's up with this Buffet guy, anyway? If you have any concerns with this proposal, please let us know. Finally, if possible, we'd like to present on Thursday, April 26th. Best, Jeff This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 334 of 1299

RE: Dual Auction Restructuring

Sender	jeff.dasovich@enron.com
Recipients	['michael.etringer@enron.com']
File	dasovich-j/sent_items/617.

Well, I guess my good friend Jerry's a little to busy these days. I'm going to contact another lawyer who represents some big QFs and then loop back with Jerry.

Best, Jeff

-----Original Message-----

From: Etringer, Michael Sent: Wednesday, October 10, 2001 3:40 PM To: 'jbloom@whitecase.com' Cc: Dasovich, Jeff
Subject: Dual Auction Restructuring

Jerry,

First off I would like to again commend you on your presentation yesterday. It would be an understatement to say that the last year's worth events have been amazing at best.

As we discussed at lunch, Enron has developed a unique approach to QF contract restructuring. The main premise is that of conducting a dual auction to determine, on a completely voluntary and open process, the QF buyout economics and the market clearing price for replacement energy. As discussed yesterday, I am enclosing copies of the presentations made to PG&E and SCE on this topic. I would be very interested in your feedback on this concept and on the presentations provided. I must footnote that the economic shown in the presentations are Enron estimates. Individual feedback, particularly in this area would be appreciated.

Jeff Dasovitch out of our SF office has been working with me on this proposal and will likely be contacting you within the next day to further discuss this idea as well as the benefits and possible strategies for initiating such an auction process.

Thanks for your time and look forward to hearing from you.

Best Regards, Mike

<< File: Dual Auction PG&E.ppt >> << File: Dual Auction SCE.ppt >> Mike Etringer 503.464.3836 (w) Enron North America 503.701.4516 (c) West Power Origination 503.464.3740 (fax) 121 SW Salmon Street 3WTC0306
michael.etringer@enron.com Portland, OR 97232

Message 335 of 1299

California "Top Five" list

Sender	sarah.novosel@enron.com
Recipients	['mary.hain@enron.com', 'seabron.adamson@frontiereconomics.com', 'jdasovic@ees.enron.com', 'james.steffes@enro...']
File	dasovich-j/notes_inbox/461.

Jim Steffes asked me to call Seabron Adamson to get his take on what a "Top 5" list should include for California. Seabron sent me the attached list, which, as you will notice, is just his first cut on this. I thought it might be helpful for everyone for the conference call today -- but please remember that this is really just a first attempt at putting the problems down on paper.

Sarah

----- Forwarded by Sarah Novosel/Corp/Enron on 09/15/2000

11:39 AM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 09/13/2000 02:32:30 PM To: <snovose@enron.com> cc:

Subject: California "Top Five" list

Sarah:

Please find attached a "top five" list on California market reform, as requested, with some annotations on why I think these changes would be beneficial etc. It is quite rough - not much more than a brain dump really - but can serve as a basis for discussion.

Have a look and see what you think. Perhaps we should set up a call to discuss sometime later this week?

Seabron

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

- 00-09-12 SA California market reform top five list.doc

Message 336 of 1299

Reminder: Tickets to the Giants Game 5/13

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/all_documents/11115.

* Delete if not interested in the Giants game on 5/13 *

Thank you to all who have responded so far.? Please double check your name and ticket order on the attached file.?

Others, please let me know by Monday at noon if you are interested in tickets.? I will finalize the order with the Giants box office on Monday and contact only those who are interested with further details.

Thank you, Carolyn

<<giants tickets.xls>> ?-----Original Message----- From: ? Vavrek, Carolyn (US - San Francisco)? Sent:?? Thursday, April 12, 2001 10:43 AM To:????? 'eveningmba@haas.berkeley.edu' Subject:??????? Giants Game - May 13th - Please Respond ASAP

To celebrate the end of another semester (and the Program for some), I looked into purchasing a block of tickets to a SF Giants game at Pac Bell Park.? We have the opportunity to purchase up to 90 tickets at \$16/ticket for the game against the New York Mets on Sunday, May 13th at 1:05pm.? Seats are in the View Reserved Area (i.e., upper deck).

* * Please let me know ASAP how many tickets you would like. * *?

Feel free to invite friends and family as well.? I will place the order based on your initial response, so only respond if you are definitely interested.?

GO GIANTS!

- Carolyn

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

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- giants tickets.xls

Message 337 of 1299

Level Setting Meeting for the California Markets Focus Group

Sender	leticia.botello@enron.com
Recipients	['vicki.sharp@enron.com', 'scott.stoness@enron.com', 'james.lewis@enron.com', 'dan.leff@enron.com', 'dennis.be...]
File	dasovich-j/notes_inbox/6102.

Call in # for the referenced meeting is:

1-800-713-8600 Pass Code# 80435

Note: 10:00 a.m. - 11:00 a.m. (Houston Time)

Please call me if you have any questions.

Thank You

Leticia Botello x-58752

----- Forwarded by Leticia Botello/HOU/EES on 12/15/2000

09:09 AM -----

Wanda Curry 12/14/2000 04:01 PM

To: Dennis Benevides/HOU/EES@EES, James W Lewis/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Don Black/HOU/EES@EES, Tony Spruiell/HOU/EES@EES, Mike M Smith/HOU/EES@EES, Meredith M Eggleston/HOU/EES@EES, Neil Hong/HOU/EES@EES, Evan Hughes/HOU/EES@EES, Neil Bresnan/HOU/EES@EES, Jess Hewitt/HOU/EES@EES, Vladimir Gorny/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Eric Melvin/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Gayle W Muench/HOU/EES@EES cc: Marty Sunde/HOU/EES@EES, Dan Leff/HOU/EES@EES, Vicki Sharp/HOU/EES@EES, Kevin Hughes/HOU/EES@EES, Jeremy Blachman/HOU/EES@EES, Harold G Buchanan/HOU/EES@EES, Mark S Muller/HOU/EES@EES Subject: Level Setting Meeting for the California Markets Focus Group

A California Markets Focus Group meeting will be held daily starting tomorrow, December 15th. Please plan to attend this meeting starting at 10:00 a.m. to be held in conference room EB 2868.

This will be a level setting meeting to determine what topics should be reviewed with the group on a daily basis. This forum will also allow for an overview of changes in market prices, positions and identify strategies. The recurring time and location of these daily meetings will be determined tomorrow as well.

Participation by you (or your pre-identified representative) in these meetings on a daily basis is critical. We will be preparing a report for the EES G-9 daily and your input is required.

Any questions, please call Wanda Curry @ x-33411.

Thanks

Message 338 of 1299

RE: Group Project--E221

Sender	jeff.dasovich@enron.com
Recipients	['jeff.dasovich@enron.com', 'mark_guinney@watsonwyatt.com', 'cvavrek@deloitte.com', 'asama@yahoo.com']
File	dasovich-j/all_documents/10210.

Professor Tasker:

I have the distinct (and sinking) feeling that you may not be getting emails that I've sent to you, since over the last 3 weeks I've sent a few and haven't heard back. Is the haas account the correct address?

Best, Jeff

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> 03/20/2001 06:13 PM

To: tasker@haas.berkeley.edu cc: Anil Sama <asama@yahoo.com>, Mark Guinney <Mark_Guinney@watsonwyatt.com>, Jeff.Dasovich@enron.com Subject: RE: Group Project--E221

I did not see our names on your list. Please see Jeff's e-mail sent to you last Friday. Sorry for any confusion. Thanks, Carolyn

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Friday, March 16, 2001 11:03 AM To: tasker@haas.berkeley.edu Cc: Anil Sama; Mark Guinney; Cvavrek Subject: Group Project--E221

Greetings Professor:

Our group consists of Jeff Dasovich, Mark Guinney, Anil Sama and Carolyn Vavrek.

We propose to examine the recently failed acquisition by Coke of Quaker Oats: Why merge? What was the value? Upside? Downside? Why did it go bust? Should it have gone through? What's up with this Buffet guy, anyway?

If you have any concerns with this proposal, please let us know.

Finally, if possible, we'd like to present on Thursday, April 26th.

Best, Jeff

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Message 339 of 1299

Re: FW: Mexico OnLine

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com', 'psellers@haas.berkeley.edu']
File	dasovich-j/all_documents/1828.

Cool. This is in Baja? Can we get pictures?

Cameron Sellers <cameron@perfect.com> 09/27/2000 03:26 PM

To: "Prentice (Berkeley)" <psellers@haas.berkeley.edu> cc: "Jeff.Dasovich@enron.com" <Jeff.Dasovich@enron.com>
Subject: FW: Mexico OnLine

Cameron Sellers Vice President, Business Development PERFECT.COM 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: JanelB3@aol.com [mailto:JanelB3@aol.com] Sent: Wednesday, September 27, 2000 1:10 PM To: cameron@perfect.com Subject: Re: Mexico OnLine

Dear Cameron The dates you requested are open. As you have recognized from our website, we have a lush, lovely, peaceful garden oasis in an authentic historical pueblo that is also gaining interest as home to many artists and others interested in living in a most unique environment. Our aim is to provide a memorable experience with modern facilities that also reflect the beauty and comfort of Mexican rustic design. Our casitas have kitchens, baths and covered patios that afford privacy and a renewing atmosphere. Great care has been taken to provide service and comfort. Our prime season is approaching so it is well advised to book early. We have a number of inquiries for the dates you requested. The rates as described are \$80 USD per night for the casita .which is separate and very private. The weekly rate is \$450 USD. To hold a reservation we require a 50% deposit when you have your exact dates. Let us know what they are and I will mail instructions. If this is your first time to this area or if there are any questions you might have, please fell free to write. and I will do my best to answer. Our community site for up to date events is www.todosantos.cc Mil gracias for your inquiry. Linda Macfarlane for Las Palmas Casitas

Message 340 of 1299

CRIME ALERT

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['faculty@haas.berkeley.edu', 'staff@haas.berkeley.edu']
File	dasovich-j/all_documents/1646.

To All,

A hard copy of the following crime alert was delivered by UCPD with the request to send it to everyone.

STRONG ARM ROBBERY Central Campus

"On Sunday, September 17, 2000 at about 9:00 p.m., a strong arm robbery occurred on the Esplanade between Sather Tower and Doe Library on the Berkeley campus.

The victim was an 18 year old male UCB student. he was walking from the Unit III Residence Halls to Doe Library when he was approached by 5-6 individuals. Suspect #1 asked, 'Where is Building 1B?' The victim replied that he did not know. As the victim backed away, Suspect #1 hit him on the right side of his face and knocked him to the ground. The victim felt his backpack being pulled away and grabbed for it, but was knocked down again. The victim saw the other suspects approaching, so he released his backpack and ran into Doe Library to report the crime. A witness saw the crime occur and said the suspects fled in a southeast direction towards Stephens Hall. The victim received scrapes and bruises, but was not seriously hurt. His backpack and contents were taken.

The robbers were all described as African-American men: #1 was 17-29 years old, about 5'-9" tall, about 140 pounds, thin build, black hair in cornrowed cut, goatee, wearing a black t-shirt with white lettering and black pants. #2 and #3 were 17-29 years old, medium height and weight, black hair, wearing white 5-shirts. #4 and #5 were 17-29 years old, medium height and medium build, black hair, wearing dark t-shirts.

Anyone with information about this case should immediately call the University of California Police Department Detective Kenneth Moody (510) 642-3184.

As with any emergency situation, if you see suspicious activity, call 9-911, from a campus phone."

Patsy Shaughnessy Facilities Manager Haas School of Business S545 Student Services Bldg. University of California Berkeley, CA 94720-1900

Tel: (510) 642-4617 Fax: (510) 642-4700

Message 341 of 1299

Summary Annual Reports

Sender	corporate.benefits@enron.com
Recipients	[all.america@enron.com]
File	dasovich-j/all_documents/260.

Enron Benefit Plans Summary Annual Report

The basic financial and insurance information along with file attached provides a Summary Annual Report for the Enron Benefit Plans. The annual report for each plan has been filed with the Internal Revenue Service, as required by the Employee Retirement Income Security Act of 1974 (ERISA).

NOTE: You may receive a report for a benefit plan in which you are not a participant or under which you are not entitled. Entitlement to benefits under any of the plans is based on the provisions of each plan.

Your Rights to Additional Information

You have the right to receive, upon request, a copy of the full annual report, or any part thereof, for any plan. For insured plans, insurance information (including any sales commissions paid by insurance carriers) is shown in the annual reports.

To obtain a copy of the full annual report, or any part thereof, for any plan, write or call:

Enron Corp 1400 Smith Street Houston, TX 77002-7311

(713) 853-6161

You also have the right to receive from the plan administrator, on request and at no charge, a statement of the assets and liabilities of the plan and accompanying notes, or a statement of income and expenses of the plan and accompanying notes, or both. If you request a copy of the full annual report from the plan administrator, these two statements and accompanying notes will be included as part of that report.

You also have the legally protected right to examine the annual report at the main office of the plan (Enron Corp., 1400 Smith Street, Houston, TX 77002-7311) and at the U.S. Department of Labor in Washington, D.C., or to obtain a copy from the U.S. Department of Labor upon payment of copying costs. Requests to the Department should be addressed to: Public Disclosure Room, N-5638, Pension and Welfare Benefits Administration, U.S. Department of Labor, 200 Constitution Avenue, N.W., Washington, D.C. 20210.

Message 342 of 1299

RE: Cal Journal Ad #2

Sender	abb@eslawfirm.com
Recipients	['tross@mcnallytemple.com', 'steven@iepa.com', 'smara@enron.com', 'kaplan@iepa.com', 'chudson@iepa.com']
File	dasovich-j/all_documents/8124.

I think the sentence that say "immediately drive down the wholesale-cost of power" needs to be reworked. It should change the blended retail rate downward, but I'd expect the spot market--particularly this summer's--to be thinner & more volatile. ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 mailto:abb@eslawfirm.com

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-----Original Message-----

From: Katie Kaplan [mailto:kaplan@iepa.com] Sent: Wednesday, January 03, 2001 6:37 PM To: Tom Ross; Sue Mara; Stephanie-Newell; Rob Lamkin; Richard Hyde; Pigott Jack; Paula Hall-Collins; Norton Kelli; McNally Ray; Marty Wilson; Lynn Lednick; Kristin Vellandi; kent Palmerton; Katie Kaplan; Kassandra Gough; Karen Edson; Julee Malinowski-Ball; John Stout; Joe Ronan; Jeff Dasovich; Jean Munoz; Jan Smutny-Jones; Greg Blue; Curtis Kebler; Bob Weisenmiller; Baker Carolyn; B Brown Andy; Andy Brown; Douglas Kerner; John Larrea Cc: Carol H Hudson; Steven Kelly Subject: FW: Cal Journal Ad #2 Importance: High

Here is the second Cal Journal ad. Please take a look and get any comments back to me by 3:00 tomorrow (Thursday January 4th). Please let me know if you can't open it.

Thanks

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

Message 343 of 1299

Re: Campaign Leadership Call "Mandatory"

Sender	ginger.dernehl@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/all_documents/10482.

Jeff,

Here is the int'l dial # for this call:

703-736-7385

Also, Rick knows you are on vacation this week (no charge!)

gngr 713-853-7751

Jeff Dasovich Sent by: Jeff Dasovich 03/28/2001 09:04 PM

To: Ginger Dernehl/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron cc: Subject: Re: Campaign Leadership Call "Mandatory"

Rick:

My apologies. The family events here in Mexico have conflicted with the calls. But I will be on the call tomorrow. (Anything to save \$25!)

One thing. I'm not sure that I can dial into an 800 number here in Mexico. Ginger: Could I possibly call you at 4:30 and have you conference me in to the 800 number?

Best, Jeff

Ginger Dernehl 03/28/2001 11:46 AM

To: Mark Palmer/Corp/Enron@ENRON, James D Steffes/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Howard Fromer/NA/Enron@Enron, Joe Hartsoe/Corp/Enron@ENRON, Linda Robertson/NA/Enron@ENRON, Richard Shapiro/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Daniel Allegretti/NA/Enron@Enron cc: Cindy Derecskey/Corp/Enron@Enron, Marcia A Linton/NA/Enron@Enron, Linda J Noske/HOU/ECT@ECT, Lysa Akin/PDX/ECT@ECT, Joseph Alamo/NA/Enron@Enron, Bernadette Hawkins/Corp/Enron@ENRON, Lora Sullivan/Corp/Enron@ENRON, Terri Miller/NA/Enron@Enron, Ginger Dernehl/NA/Enron@Enron Subject: Campaign Leadership Call "Mandatory"

Message from Rick:

The Campaign Leadership Call, which takes place daily at 4:30pm CST, is "Mandatory". If you are unable to attend, it will be necessary for you to have someone participate on the call in your behalf. Please notify Rick or myself, if you are unable to participate and let us know who will be participating for you. A fine of \$25.00 will be assessed to those who do not participate or have someone participate for them. The monies collected will go to a charity of the group's choice.

Thanks and please don't hesitate to call me if you have any questions.

gngr 713-853-7751

Message 344 of 1299

Re: California SB 23X

Sender	james.steffes@enron.com
Recipients	['jeff.dasovich@enron.com', 'daniel.allegretti@enron.com', 'jeff.ader@enron.com', 'robert.davis@enron.com']
File	dasovich-j/notes_inbox/3613.

I think that we should be careful. Private label activity can occur with a city today in California if the Muncipal government agrees. I would not want to try and "thread the needle" on a very specific muni language right now in CA - too much activity.

Jim

From: Jeff Dasovich on 05/04/2001 04:36 PM Sent by: Jeff Dasovich To: Robert Davis/Western Region/The Bentley Company@Exchange@EES cc: Daniel Allegretti/NA/Enron@ENRON, Jeff Ader/HOU/EES@EES, Richard Shapiro/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Susan J Mara/NA/Enron@ENRON, James D Steffes/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Karen Denne/Corp/Enron@ENRON

Subject: Re: California SB 23X

Thanks for the note. We'll need to to discuss this a bit further, since it could be a very sensitive issue for us (e.g., "Enron's answer to the electricity crisis in municipalization). If spun right, could provide an interesting opportunity, however.

Best, Jeff

Robert Davis/Western Region/The Bentley Company@Exchange 05/04/2001 04:08 PM

To: Jeff Dasovich/NA/Enron@Enron, Jeff Ader/HOU/EES@EES, Daniel Allegretti/NA/Enron@Enron cc: Subject: California SB 23X

Gentlemen,

California State Senator Nell Soto (D-Ontario Dist.32) has authored SB 23 X which is intended to streamline the formation of public power districts in California.

Here is an opportunity for Enron to get involved and flex some muscle and win on several fronts. I think Enron is uniquely qualified to work with municipalities to provide private labeled products or services that will create a winning situation for all parties involved (including the IOUs).

I am extremely interested in working on such an effort and would very much enjoy sharing my ideas in more detail at any time. Please feel free to contact me.

Thanks all,

Robert Davis, Account Manager Enron Energy Services 611 Anton Blvd. Suite 700 Costa Mesa, CA 92626 Phones: Office 714-434-1800 ext.455 Cell 714-267-0968 Pager 888-935-2143

Message 345 of 1299

RE: Governor's Birthday party invite

Sender	kent.fickett@neg.pge.com
Recipients	['john.g.larrea@williams.com', 'nam.nguyen@powersrc.com', 'jmball@ns.net', 'william_carlson@wastemanagement.co...]
File	dasovich-j/notes_inbox/2291.

No invite here.

I thought Gray was too old for birthdays!

Maybe IEP should give him a nice big candle to light the cake.

Kent

-----Original Message-----

From: Julee Malinowski-Ball [mailto:jmball@ns.net] Sent: Wednesday, December 06, 2000 8:44 AM To: Nam Nguyen; Bill Carlson; Bill Woods; Bob Ellery; Bob Escalante; Carolyn Baker; Curtis Kebler; David Keane; David Parquet; Dean Gosselin; Duane Nelson; Ed Tomeo; Frank DeRosa; Greg Blue; Hap Boyd; iep@iepa.com; Jack Pigott; Jeff Dasovich; Jim Willey; Joe Greco; Joe Ronan; John Stout; Jonathan Weisgall; Kassandra Gough; Ken Hoffman; Kent Fickett; Lynn Lednicky; Marty McFadden; Paula Soos; Richard Hyde; Robert Lamkin; Roger Pelote; Stephanie Newell; Steve Ponder; Steven Kelley; Sue Mara; Tandy McMannes; Tony Wetzels; Trond Aschehoug; William Hall Cc: john.g.larrea@williams.com Subject: Fw: Governor's Birthday party invite

See below.

----- Original Message -----

From: Larrea, John <mailto:John.g.Larrea@williams.com> To: 'Julee <mailto:jmball@ns.net> Malinowski-Ball' Sent: Wednesday, December 06, 2000 7:56 AM Subject: Governor's Birthday party invite

Julee, Williams received a faxed invitation to the Governor's Birthday party at Haim Saben's house about a week and a half ago. Do you know if any other generators or marketers in IEP received the invite? Who in IEP would know?

John G. Larrea Governmental Relations 850 Stillwater Road, Suite 150 West Sacramento, CA 95605 (916) 376-3650 (916) 376-3610 (916) 616-7062 mobile john.g.larrea@williams.com

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Message 346 of 1299

RE: Bluegrass Weekend at Sierra Club Lodge

Sender	cameron@perfect.com
Recipients	['jdasovic@enron.com', 'psellers@pacbell.net', 'scottwl@hotmail.com']
File	dasovich-j/all_documents/8449.

I think we should definitely go. I could not go up until Friday. Please make reservations!!!

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Prentice Sellers [mailto:psellers@pacbell.net] Sent: Monday, January 22, 2001 6:34 PM To: Cameron Sellers; jdasovic@enron.com; Scott Laughlin Subject: Bluegrass Weekend at Sierra Club Lodge

In case it's not on your calendars, the bluegrass weekend at the Sierra Club's Claire Tappan Lodge is:

March 16-18

It's \$46 per person per night Includes 3 meals

If we're going to go, I think we should make reservations right away. If so, do we plan on getting up there Friday night? I can make the reservations if you let me know.

I haven't found any info yet on the free one...

Here's some info I copied from the Claire Tappan Lodge website: <http://www.sierraclub.org/outings/lodges/ctl/index.asp>

Clair Tappaan is located at 7000 feet, 45 minutes drive west of Reno - 1 mile from Sugar Bowl. The living room has an enormous stone fireplace. There is a library, a large communal dinning room, a social lounge, and a hot tub. The lodge maintains 10 to 12 kilometers of groomed cross-country ski trails and offers excellent instruction in both Nordic track and telemark techniques. Top quality cross-country skis and snowshoes are also available to rent at very reasonable rates.

Guests needs to provide their own pillow, toiletries, towel, sleeping bag or comparable linens, and bathing suit if they wish to use the hot tub. We ask guests to choose a house chore to do each day they eat at the lodge.

March 16-18: Blue Grass Weekend. Calling amateurs and proffesionals alike to a weekend of great jam sessions in the afternoons and a performance by the Donner Peak Pickers in the evening. The Pickers are a fantastic bunch of widely-experienced musicians playing traditional Bluegrass with superb instrumental craftsmanship.

Message 347 of 1299

RE: REVISED Merged Leg Document

Sender	lys@a-klaw.com
Recipients	['dhunter@s-k-w.com', 'ann.cohn@sce.com', 'brbarkovich@earthlink.net']
File	dasovich-j/notes_inbox/12093.

We are very close to sending out a redline.? Apologies for the delay.? Thank you.

Regards,

Linda Y. Sherif, Esq. Alcantar & Kahl, LLP 120 Montgomery Street, Ste.2200 San Francisco, CA 94111 (415) 421-4143 (415) 989-1263 (Fax)

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-----Original Message-----

From: Delaney Hunter [mailto:dhunter@s-k-w.com] Sent: Monday, July 09, 2001 1:10 PM To: Ann.Cohn@sce.com; 'Barbara Barkovich (E-mail)'; 'Dorothy Rothrock (E-mail)'; 'John Fielder (E-mail)'; 'Phil Isenberg (E-mail)'; 'Jeff Dasovich (E-mail)'; 'Keith McCrea (E-mail)'; 'Linda Sherif (E-mail)'; 'Linda Sherif (E-mail 2)'; 'Gary Schoonyan (E-mail)'; 'John White (E-mail)'; Dominic DiMare (E-mail) Subject: REVISED Merged Leg Document

Folks- Sorry for the delay --- major computer problems over here. I have used Ann's document and added the changes I made as a template. It is in redline and the questions are highlighted as well. Please look over it carefully and if there is language you are going to provide please do it post haste.

WE WILL NOT HAVE A 2:00 CALL --- I think most folks are just too damn busy. So, if there is a question, problem, disagreement, etc on language please work it out amongst yourselves and send me new language if applicable. Remember this is due to Rick BY 5:00 PM TODAY!!!!

Call me with questions, Delaney

Message 348 of 1299

Re: TAR&L MEETING - NOVEMBER 30TH

Sender	lara.leibman@enron.com
Recipients	['angie.buis@enron.com', 'mike.dahlke@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/2029.

Angie,

Please add Jeff Dasovich and Mike Dahlke to the e-mail distribution list for these meetings. Thanks!

Jeff and Mike,

I apologize for not forwarding this information in time as I was in DC until now and did not have access to this information. I have 2 laptops and happened to have the other one with me. I hope you were both able to make the call somehow.

Regards,

Lara

Angie Buis 11/27/00 02:40 PM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Ban Sharma/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jane Wilson/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Richard Anderson/Enron Communications@Enron Communications cc: Wayne Gardner/Enron Communications@Enron Communications Subject: TAR&L MEETING - NOVEMBER 30TH

The next TAR&L meeting will take place on Thursday, November 30, 8:30 a.m. to 12:00 noon, in conference room EB43C1. Breakfast will be provided. The call-in information is listed below.

International Participants: (304) 345-7526 Domestic Participants: (888) 271-0949 Passcode: 589792

Host (Houston) number: (888) 271-0949 Passcode: 281574

I have arranged for 4 domestic and 2 international ports. Should extra ports be required, all the person will need to do is dial the appropriate number listed above.

Additionally, we have scheduled another TAR&L meeting for Thursday, December 7th, same location, time and dial in numbers.

Should you have questions regarding any of the above, please do not hesitate to call me at extension 37097.

Thanks.

Angie Buis EBS-Tax

Message 349 of 1299

Re:NETSCAPE

Sender	mark_guinney@watsonwyatt.com
Recipients	['bradykw@aol.com', 'jcjal02@aol.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11132.

Hey kids,

My two cents. No problems with the model or the assumptions. I thought it would be interesting to look at a 3-stage model where the growth of the company has extremely fast growth in the beginning, and then a slower growth before the terminal valuation stage (zero growth). Under this model, to justify a \$28 stock price, Netscape would have to grow 60% annually for the first 5 years, and 30% for the next 5 years. Thinking big picture, it would not be out of the ordinary for Netscape to be generating \$1 billion in revenue after 10 years of growth. Netscape would probably be able to generate such revenue but not without branching into other services or products, most of which would not have been developed in 1996, i.e. Netscapes stock price includes the optionality of future services and products that they haven't even generated yet.

I was dubious then as I am now that Netscape could be worth so much with a single and free product. We will need to address in our memo the likelihood that Netscape could leverage their early success into other profitable ventures.

My simple adjustments to the model are attached.

PS Jeff- You asked for an example of the agency dilemma. A good example of this can be demonstrated by the largest (at the time) leveraged buyout of RJR Nabisco where the company was generating a lot of free cash flow that was being spent on perquisites- company jets, golf tournaments, etc. This was because management had different goals than shareholders. Since management could not find profitable investments, instead of giving the FCF back to shareholders, they spent it on themselves. When management has minimal ownership in the company, they frequently do things that are in their own best interests and not necessarily in the best interests of the shareholders like implementing poison pills.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

- Netscape.xls

Message 350 of 1299

Fwd: FW: H.Res.650

Sender	rcarroll@bracepatt.com
Recipients	['jdasovic@enron.com', 'mary.hain@enron.com', 'smara@enron.com']
File	dasovich-j/notes_inbox/1180.

FYI Received: from mcafee.bracepatt.com by bracepatt.com; Thu, 26 Oct 2000 10:54:46 -0500 Received: FROM indus.house.gov BY mcafee.bracepatt.com ; Thu Oct 26 10:54:03 2000 -0500 X-Proxy: keymaster.bracepatt.com protected Received: (from smap@localhost) by indus.house.gov (8.9.1b+Sun/8.9.1) id LAA29439; Thu, 26 Oct 2000 11:29:06 -0400 (EDT) X-Authentication-Warning: indus.house.gov: smap set sender to <Paige.Anderson@mail.house.gov> SIZE=46789 using -f Received: from ims04.house.gov(143.231.32.180) by indus via smap id xma029432; Thu, 26 Oct 00 11:29:01 -0400 Received: by ims04.house.gov with Internet Mail Service (5.5.2650.21) id <VT3DTZHY>; Thu, 26 Oct 2000 11:46:18 -0400 Message-ID: <D9407929EA99D211B4760008C7A4A7880652FA97@hrm01.house.gov> From: "Anderson, Paige" <Paige.Anderson@mail.house.gov> To: "Anderson, Paige" <Paige.Anderson@mail.house.gov> Subject: FW: H.Res.650 Date: Thu, 26 Oct 2000 11:46:09 -0400 X-Mailer: Internet Mail Service (5.5.2650.21)

Rep. Bilbray introduced HRes 650 yesterday afternoon, and it will be on the floor under suspensions later today. It simply expresses the Sense of Congress that FERC should release it's completed report on the California electricity market before Novemeber 1.

In discussions with FERC, we know the report is complete, but several dates ranging from Nov. 1 to Nov. 9 have been given on the release of the report. It is the opinion of Rep. Bilbray that the report should be made public sooner, rather than later. So many of the interested parties are in limbo...waiting for the release of the report...that is just makes sense to release it now, so everyone has the opportunity to examine, analyze, and react to their findings.

As you read the resolution, you will see it's simple and to the point...we don't pre-judge the report in any way. Please let me know if you have any questions or concerns. Thank you! Paige Anderson Legislative Assistant Office of Congressman Brian Bilbray 1530 Longworth HOB Washington, DC 20515 202-225-2040; 202-225-2948 (fax)

<<BILBRA_063.PDF>>

- BILBRA_063.PDF

Message 351 of 1299

Re: Appeal Rights

Sender	jeff.dasovich@enron.com
Recipients	['iris.waser@enron.com', 'adelligatti@brobeck.com', 'mday@gmssr.com']
File	dasovich-j/all_documents/7997.

----- Forwarded by Jeff Dasovich/NA/Enron on 12/28/2000 06:53 PM -----

Robert C Williams@ENRON_DEVELOPMENT 12/28/2000 04:18 PM

To: Stephanie Truss/NA/Enron@ENRON cc: mmolland@brobeck.com@ENRON, adelligatti@brobeck.com@ENRON, iris.waser@enron.com@ENRON, Jeff Dasovich@EES, Mike D Smith@EES, mday@gmssr.com, mmolland@brobeck.com, Vicki Sharp@EES Subject: Re: Appeal Rights

At Jeff's and several of your suggestion, this call has been postponed to tomorrow at 10:30 CST immediately following the regular call. The call-in number is 1-800-713-8600; passcode 80435. Thank you.

Stephanie Truss @ ENRON 12/28/2000 01:51 PM

To: Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Jeff Dasovich@EES@ENRON_DEVELOPMENT, mday@gmsr.com@ENRON_DEVELOPMENT, Vicki Sharp@EES@ENRON_DEVELOPMENT, Mike D Smith@EES@ENRON_DEVELOPMENT, mmolland@brobeck.com cc: adelligatti@brobeck.com, iris.waser@enron.com

Subject: Re: Appeal Rights

The conference call has been scheduled for today, December 28, 2000 at 7:00 p.m. CST. The call-in number is (800) 991-9019, passcode: 6045742, confirmation: 3335288. Should you have any questions regarding this information, please call me at (713) 345-5965. Thank you.

Robert C Williams@ENRON_DEVELOPMENT 12/28/2000 11:52 AM To: Jeff Dasovich@EES, mday@gmsr.com, Vicki Sharp@EES, Mike D Smith@EES cc: Stephanie Truss@ENRON

Subject: Appeal Rights

Mike Day,

I have asked my assistant to set up a conference call for this evening to discuss preserving our arguments and rights of appeal, both generally and specifically (with respect to the negative CTC issue), during and after the present hearing. I know that we covered some of this in our previous call, and that a record on due process is being made, but I'd like for all of us to explore whether there is anything else we should be doing now, and what, if anything, we will need to do after the proceeding is concluded. I will see if Larry Mollman from Brobeck can join us as well for the state court litigation perspective. Stephanie will circulate the call-in information. Thanks.

Message 352 of 1299

RE:	
Sender	jeff.dasovich@enron.com
Recipients	['nancy.sellers@robertmondavi.com']
File	dasovich-j/all_documents/947.

god bless you.

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> on 08/31/2000 01:01:33 PM To: "jdasovic@enron.com" <jdasovic@enron.com> cc: Subject: RE:

Amber's address:? 25664 Carmel Knolls Road, Carmel, CA 93923.? She is 20 years old on Sunday!.

I wrote you because I am not sure if Prentice is getting e-mails.

Remember that some of your stuff might still be outside if I don't remember to bring it in.? There is also a folder of pick sheets to take up to the dome and leave on my desk, so we have them when any of us are up there.

-----Original Message-----

From:?? jdasovic@enron.com [SMTP:jdasovic@enron.com] Sent:?? Thursday, August 31, 2000 8:02 AM To:???? Nancy.Sellers@RobertMondavi.com Subject:????????? Re:

We'll send a card.? She's 19?? Well, if we have to, we'll take some tomatoes.....Taking the suit and (if Prentice permits) Annie, too.

Could you discuss with Eldon whether you guys want to do the Dome road while my is doing my road at the end of the month??? He's going to fax me the estimate based on his visit when we were all up there last.? To be honest, the deck's got me pretty darned gun-shy about "projects" and this guy is really nice and I want to work with him for years to come.? He's pretty willing to do whatever you folks want, i.e., from Yugo-style road to Rolls Royce-style road.? And if you want to take a pass, that's of course great, too.? I just want to make sure it doesn't turn in to a cluster-you-know-what....Just let me know.

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> on 08/31/2000 09:53:11 AM

To:?? "Prentice @ Berkeley" <PSellers@haas.berkeley.edu>, "Jeff ????? Dasovich" <Jeff_Dasovich@enron.com> cc:
Subject:

I don't know if Prentice will get the e-mail, Jeff - so could you try to help make sure this happens.? Sunday is Amber's birthday.? Since we will be at the Cubs game it would be great if you guys could send her a card.

When you come to get your stuff, take all the tomatoes you want with you! Are you going to take Annie?

Nancy (707) 251-4870 (phone) (707) 265-5446 (fax) "Plus je bois, mieux je chante"

Message 353 of 1299

DOE-NARUC North American Summit announces new speakers and an

Sender	ibarroto@caem.org
Recipients	['ibarroto@caem.org']
File	dasovich-j/notes_inbox/1606.

[[MAPI 1.0 storage : 5419 in winmail.dat]]

NARUC and DOE are the hosting the North American Summit on Harmonizing Business Practices in Energy Restructuring in Dallas, Texas, on November 29 to December 1. This email is an update on recent developments in the Summit.

Newly confirmed speakers include Commissioner Linda Breathitt, Federal Energy Regulatory Commission; Rep. Joe Barton (R-Texas), chairman of the House Energy and Power Subcommittee; Phil Sharp, Lecturer in Public Policy, Kennedy School of Government, Harvard University; Kurt Yaeger, president and CEO, Electric Power Research Institute; Bob Anderson, commissioner, Montana Public Service Commission; Karen O'Neill, vice president for new markets, GreenMountain.com; Steve Ward, public advocate, Maine Attorney General's office; Donato Eassay, vice president, securities research and economics, Merrill Lynch; Rick Rumbarger, president and CEO, PowerTrust.com; Kathleen Magruder, Vice President, Government Affairs, The New Power Company (a joint venture of IBM, Enron, and AOL)

We have established a bulletin board for the Summit. You can access the bulletin board through the following link: <http://www.energymarkets.org/cgi-bin/Ultimate.cgi?action=intro>. The Forums in this board will permit you to ask questions or raise issues for the speakers on each of the panels at the Summit.

You can register for the Summit at <http://www.energymarkets.org/registration.htm>.

Information on reserving a room a the Adams Mark is at http://www.energymarkets.org/city_site.htm.

Please forward this email to colleagues who may be interested in the subject of the Summit.

Thanks!

Isabel Barreto North American Summit Coordinator Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 Voicemail and Fax: (703) 234-3373 E-mail: ibarroto@caem.org
<http://www.caem.org>

Thanks!

Isabel Barreto North American Summit Coordinator Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 Voicemail and Fax: (703) 234-3373 E-mail: ibarroto@caem.org
<http://www.caem.org>

- winmail.dat

Message 354 of 1299

PG&E/SCE filing	
Sender	james.steffes@enron.com
Recipients	[paul.kaufman@enron.com, 'susan.mara@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/2489.

If you had not seen this, it looks like the utilities are now trying to "help" FERC find the guilty.

What do people thin about beginning to quietly discuss with members of the California state house that the damages of the summer are not (or don't need to) being charged to end use customers. The utilities are doing a really good job of wrapping themselves with little households. In fact, TURN signed on to this pleading.

While San Diego customers are harmed, other consumers in California are just fine. Utility shareholders are taking it on the chin. We need to make sure that policymakers (especially FERC) recognize that in making any kind of refund the real choice is between Power Marketer shareholders and Utility shareholders. Jim

----- Forwarded by James D Steffes/NA/Enron on 10/18/2000 11:24 AM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> 10/17/2000 04:39 PM

To: <Mary.Hain@enron.com>, <James.D.Steffes@enron.com> cc: Subject: PG&E/SCE filing

Mary and Jim:

Did you see in the PG&E/SCE filing that the two companies have kindly volunteered (p. 32) to "assist the Commission in developing a full record and in undertaking the rigorous analysis needed to fix the problems in the California markets and determine refund responsibility". How kind and public-spirited of them. More seriously, I would expect that they already have a full economic analysis going on prices, damages, etc.

Seab

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

Message 355 of 1299

Haas CEO Exchange	
Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu']
File	dasovich-j/all_documents/10444.

Tickets for Haas CEO Exchange with HP's Fiorina and Cisco's Chambers

Available April 2

Tickets will be available April 2 to hear two of Silicon Valley's most high-powered CEOs: Hewlett Packard's Carly Fiorina and Cisco Systems' John Chambers speak at an event hosted by the Haas School on April 11 at Zellerbach Hall. The event will be taped for the PBS television series CEO Exchange.

The show will be introduced by Dean Laura Tyson and moderated by CNN's Jeff Greenfield. Students will have a opportunity to ask the CEOs questions at the end of the program. A raffle and a reception will follow the taping of the show.

The event is free and open to all Haas students. Tickets are required and will be available to Evening MBA students at the Evening MBA office during the week of April 2, 2000.

Wednesday, April 11, seating begins at 5:30, doors close at 5:45 pm Place: Zellerbach Hall on the UC Berkeley campus
AT Kearney, the exclusive sponsor of CEO Exchange, will raffle off two Pen Cam Trios by AIPTEK to the students at the end of the taping. The Pen Cam is a three-in-one camera: it's a PC camera, a digital camera, and a digital camcorder. You can view it at http://www.aiptek.com/Products_PenCam-Trio.htm.

HOLD ON TO YOUR TICKETS! You will need them for admission to the show, for the raffle, and for admission to the catered reception with the speakers and special guests that takes place after the show at the new Haas Pavilion.

For AT Kearney, the show's exclusive sponsor, CEO Exchange presents a unique opportunity to meet and network with business students and graduates at top schools. AT Kearney's new CEO, Dietmar Ostermann, will attend the show and the reception. He will be joined by members of his senior management staff and Haas alumni working at AT Kearney.

For more information on CEO Exchange, go to
<http://haas.berkeley.edu/groups/pubs/news/articles/CEOexchange41101.html>

This event is organized by the Haas School's Marketing & Communications Office.

We'll see you there. Ute Frey Associate Director Marketing & Communications Haas School of Business University of California Berkeley, CA 94720-1900 Phone 1-510-642-0342 Fax 1-510-642-4700 <http://www.haas.berkeley.edu>

Message 356 of 1299

Learn What the Elections Mean for Pennsylvania's Environment and

Sender	pennfuture@pennfuture.org
Recipients	[]
File	dasovich-j/notes_inbox/1111.

Learn What the Elections Mean for Pennsylvania's Environment and Economy. PennFuture's November 13th Luncheon featuring State Treasurer Barbara Hafer, Auditor Bob Casey, Jr., and Professor and Pollster Terry Madonna is rapidly approaching!

Reserve your seat now for this exciting review of the 2000 elections.

Barbara Hafer and Bob Casey, Jr. are considered to be frontrunners for their party's gubernatorial nomination in 2002. Hear their post-election reactions and predictions for Pennsylvania's Future.

Professor Madonna, Pennsylvania's best-known and widely respected pollster, will provide his analysis of the 2000 election.

Luncheon Program November 13, 2000 at Noon Crown Plaza - Harrisburg 23 South Second Street \$100.00 per ticket

Pre-Luncheon Reception with the Speakers Noon November 13, 2000 - 11 a.m. to Noon Crown Plaza - Harrisburg 23 South Second Street \$500.00 per ticket, includes luncheon

Please R.S.V.P. by November 1, 2000 Respond to this email; call 717-214-7920/1-800-321-7775; or fax a copy of the reply at the bottom of this email to:

Citizens for Pennsylvania's Future 212 Locust Street, Suite 410 Harrisburg, PA 17101-1510 717-214-7927 (fax)

Contributions to PennFuture (less the cost of the event) are tax deductible.

You are receiving this message as someone interested in energy and environment issues - it is not intended as spam. If you prefer not to receive event notices from PennFuture, please reply to this message with "no events" in the subject. To be removed from all distribution lists, type "remove all" in the subject.

PennFuture Luncheon Program

PLEASE RESERVE _____ LUNCHEON PLACES AT \$100.00 EACH

PLEASE RESERVE _____ RECEPTION AND LUNCHEON PLACES AT \$500.00 EACH

() CHECK HERE FOR VEGETARIAN MEAL

ENCLOSED IS MY CHECK FOR \$ _____

YOUR NAME _____

YOUR PHONE NUMBER _____

MASTERCARD OR VISA _____

_____ EXP. DATE _____

(SIGNATURE)

Message 357 of 1299

Invitation to Participate

Sender	msimpson@shugollresearch.com
Recipients	[]
File	dasovich-j/notes_inbox/5714.

Lexis-Nexis has been a trusted source of real-time and archival information for 28 years. Continuing the Lexis-Nexis tradition of providing the most comprehensive and credible information in the marketplace, the nexis.comSM Web interface was released to our corporate subscribers in Fall 2000. To determine the applicability of this interface for graduate schools of business, Lexis-Nexis has entered into a pilot program with select leading business schools. As a pilot program participant at The University of California - Berkeley, Haas School of Business, Lexis Nexis has provided you with unlimited access to its nexis.com service. All they want in return is your opinion on how well the nexis.com service meets your expectations.

To best understand how the nexis.com service meets your needs, Lexis-Nexis has chosen an independent market research firm, Shugoll Research, to conduct a research study with pilot program participants like yourself. This is strictly market research and there is absolutely no sales effort involved. The research will be used to identify ways that the nexis.com service can be improved.

We urge you to participate in this research which will take place on February 12, 2001. All qualified participants will receive a cash honorarium as a token of our appreciation for their time and opinions. All of your answers will be kept strictly confidential.

If you are interested in participating, or simply learning more about this important research, please contact Shugoll Research one of two ways:

1. E-mail Shugoll Research at research@shugollresearch.com. Please include your first name, a telephone number and the best time of day to reach you so a representative from Shugoll Research can contact you. 2. Call Shugoll Research toll free at 800-322-4499 and identify yourself as someone who has been invited to participate in the nexis.com research.

If you have any questions or concerns, please contact your school's liaison, Gary Peete, at (510) 643-6471 or gpeete@library.berkeley.edu. Thank you in advance for your participation in this very important research.

Shugoll Research 7475 Wisconsin Ave. Suite 200 Bethesda, MD 20814 (800) 322-4499 www.shugollresearch.com

Message 358 of 1299

Gary Ackerman Letter re "Edison's Agony" -- LA Times

Sender	susan.mara@enron.com
Recipients	['karen.denne@enron.com', 'mark.palmer@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3286.

Gary's letter responding to a series on "poor Edison" in the LA Times. I reviewed it in advance -- looked good to me.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/16/2001 08:27 AM -----

Gary Ackerman <foothillservices@mindspring.com> 05/15/2001 11:36 PM Please respond to foothillservices

To: letters@latimes.com cc: Subject: Letter in re "Edison's Agony"

To the Editor;

The series of articles published last week by Ms. Cleeland called "Edison's Agony" continues your unbroken string of balanced and informative reporting on the California energy crisis. My group of merchant generators and power marketers include many pre-competition Edison employees, and employees from other utilities as well. We are sympathetic to the situation of those who currently serve under the Edison banner.

We note, however, that something is amiss in your series, and only lightly touched. That is, the role of SCE in advancing the legislation and policies in favor of competition in California.

It was SCE, and its CEO Mr. Bryson who masterminded the state deregulation legislation. Although SCE's Mr. Bryson objected vigorously to forced sales of power plants, and asked for long terms power purchase contracts, those lost battles gave way to winning the stranded-cost-recovery war.

SCE did well in adopting to the new reality, until the wholesale rates flew up, and left the utility unable to recover its costs. SCE made a deliberate calculation in May of 2000 to leave its customers unprotected from cost shocks. There was no hedging undertaken for future power purchases when the wholesale forward prices exceeded SCE's historical generation component of rates. As a result, the debts piled up.

Empathize with career employees of SCE, and with dedicated, hard working linemen who are always ready to serve at the cost of their private pleasures. But please, get it right. Much of this misery was the avoidable direct consequence of actions taken by, not avoided, by the SCE management team.

Gary B. Ackerman Executive Director Western Power Trading Forum 6155 Almaden Expy, Suite 230 San Jose, CA 95120
650-324-3250

Message 359 of 1299

RE:

Sender	jeff.dasovich@enron.com
Recipients	['nancy.sellers@robertmondavi.com']
File	dasovich-j/sent/81.

That's fine if you don't want to do the road, but please tell Eldon and I'll tell Jeff (my road guy).

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> on 08/31/2000 10:08:52 AM To: "jdasovic@enron.com" <jdasovic@enron.com> cc: Subject: RE:

We really cannot do the road at this point.

Amber's address:? 25664 Carmel Knolls Road, Carmel, CA 93923.? She is 20 years old on Sunday!.

I wrote you because I am not sure if Prentice is getting e-mails.

Remember that some of your stuff might still be outside if I don't remember to bring it in.? There is also a folder of pick sheets to take up to the dome and leave on my desk, so we have them when any of us are up there.

-----Original Message-----

From:?? jdasovic@enron.com [SMTP:jdasovic@enron.com] Sent:?? Thursday, August 31, 2000 8:02 AM To:???? Nancy.Sellers@RobertMondavi.com Subject:??????? Re:

We'll send a card.? She's 19?? Well, if we have to, we'll take some tomatoes.....Taking the suit and (if Prentice permits) Annie, too.

Could you discuss with Eldon whether you guys want to do the Dome road while my is doing my road at the end of the month??? He's going to fax me the estimate based on his visit when we were all up there last.? To be honest, the deck's got me pretty darned gun-shy about "projects" and this guy is really nice and I want to work with him for years to come.? He's pretty willing to do whatever you folks want, i.e., from Yugo-style road to Rolls Royce-style road.? And if you want to take a pass, that's of course great, too.? I just want to make sure it doesn't turn in to a cluster-you-know-what....Just let me know.

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> on 08/31/2000 09:53:11 AM

To:?? "Prentice @ Berkeley" <PSellers@haas.berkeley.edu>, "Jeff ????? Dasovich" <Jeff_Dasovich@enron.com> cc: Subject:

I don't know if Prentice will get the e-mail, Jeff - so could you try to help make sure this happens.? Sunday is Amber's birthday.? Since we will be at the Cubs game it would be great if you guys could send her a card.

When you come to get your stuff, take all the tomatoes you want with you! Are you going to take Annie?

Nancy (707) 251-4870 (phone) (707) 265-5446 (fax) "Plus je bois, mieux je chante"

Message 360 of 1299

Re: URGENT!!! I-6 penalty charges

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'nancy.hetrick@enron.com', 'diann.huddleson@enron.com']
File	dasovich-j/all_documents/8874.

I've heard nothing about any relief granted. I will check and get back to you.

Nancy Hetrick 02/06/2001 06:55 AM

To: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON cc: Diann Huddleson/HOU/EES@EES Subject: URGENT!!! I-6 penalty charges

Can we get some information on this as soon as possible. We are getting calls from customers, etc., and we need the information in order to make the necessary decisions on billing. Please include Diann Huddleson on any responses.

Thanks. ----- Forwarded by Nancy Hetrick/NA/Enron on 02/06/2001 06:52 AM -----

From: Nancy Hetrick 02/04/2001 06:28 AM

To: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON cc:

Subject: I-6 penalty charges

Do we have anything on this? Thanks.

----- Forwarded by Nancy Hetrick/NA/Enron on 02/04/2001

06:28 AM -----

Diann Huddleson@EES 02/02/2001 04:42 PM To: Nancy Hetrick/NA/Enron@Enron cc: Evan Hughes/HOU/EES@EES

Subject: I-6 penalty charges

Nancy, do you know anything about a Order from CA Governor on I6 rate relief? If the customers are being granted some relief, I need to know so we can exempt these charges from the bills.

Thanks. ----- Forwarded by Diann Huddleson/HOU/EES on 02/02/2001 04:41 PM ----- From: Leonard Pettis/Western Region/The Bentley Company@Exchange on 02/02/2001 04:13 PM To: Diann Huddleson/HOU/EES@EES cc: Tom Riley/Western Region/The Bentley Company@Exchange Subject: I-6 penalty charges

Diann, per Tom's request I have copied the SR in an e-mail to you. Let me know if you need additional information.

SR Customer (Tim Ball) received January invoice for delivered service 11/20 -12/20 2000 with interruptible penalty charges. He wants know should he pay the full amount or deduct the penalty and pay for the delivered services? This is according to his interpretation of the California governor's order on I6 rate relief Len Pettis CEM Enron Energy Services 611 Anton Boulevard Suite 700 Costa Mesa, CA 92626

Toll Free 800-522-1802 x 242 Voice 714-429-8166 Pager 877-452-1224 Pager e-mail 8774521224@skytel.com e-mail lpettis@enron.com

Message 361 of 1299

Fisher CITM's eBusiness Conference next week

Sender	segev@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu', 'citm@haas.berkeley.edu']
File	dasovich-j/inbox/1028.

Dear Evening MBA Student,

The Fisher Center for Information Technology and Marketplace Transformation (CITM) is offering the next Enabling eBusiness (EEB) conference on December 18, 2001. We can accommodate a limited number of MBA students subject to space availability. We can accommodate a limited number of Evening MBA students at a special rate of \$50 (instead of the the regular fee of \$300) subject to space availability. If you would like to attend the event please e-mail your request to <mailto:citm@haas.berkeley.edu> citm@haas.berkeley.edu ASAP Include the following information:

Name: Company: Your Job Title: Contact (if different than the e-mail address of your message): eBusiness/Technology related background (1 paragraph):

-- Arie

Arie Segev, Professor and Director Fisher Center for Information Technology & Market Place Transformation (CITM) Haas School of Business The University of California Berkeley, CA 94720-1900 <http://haas.berkeley.edu/citm> Tel: 510-642-4731 Fax: 510-642-2826 (Alternate: 510-642-4700)

The Fisher Center for Information Technology & Marketplace Transformation Haas School of Business University of California - Berkeley

Invites you to a one day Conference

Implementing an eBusiness December 18, 2001 10:00am to 4:00PM Wells Fargo Room, Haas School of Business, University of California - Berkeley

The regular fee for this event is \$300; discounts are available for small companies, start-ups, Haas Alumni, students, members of CommerceNet and NAPM/S. CITM Sponsors are eligible for free admission.

Conference Agenda

10:00am 10:30am Registration

10:30am 10:45am Welcome and Overview

Professor Arie Segev, Director, CITM

Phillip Gordon, Executive Director, CITM

10:45am Noon Nestle eBusiness overview

Nick Riso, VP, eBusiness, Nestle USA

Noon - 1:00pm Lunch

1:00-2:15pm Implementing an eBusiness for Procurement

Klaus D. Haidacher, Director of Operations, click2procure.com, Siemens Procurement & Logistics Services

2:15 - 2:30pm Break

2:30-3:00pm Q&A with speaker and panel

3:00-4:00pm Reception

For biographies, registration and other up-to-date information, visit our Web site <<http://haas.berkeley.edu/citm>>
<http://haas.berkeley.edu/citm>

Message 362 of 1299

RE: Cal Journal Ad #2

Sender	abb@eslawfirm.com
Recipients	['tross@mcnallytemple.com', 'kaplan@iepa.com', 'smara@enron.com']
File	dasovich-j/notes_inbox/5898.

same issue for me. if you change wholesale-cost to retail rates I'm fine. Wholesale market will become thinnner & more volatile, but it will help stablize retail rates to consumers. Focus on the opportunity for utilities to lower their costs, not what the market will do. ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 <mailto:abb@eslawfirm.com>

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-----Original Message-----

From: Katie Kaplan [<mailto:kaplan@iepa.com>] Sent: Friday, January 05, 2001 9:11 AM To: Tom Ross; Sue Mara; Stephanie-Newell; Rob Lamkin; Richard Hyde; Pigott Jack; Paula Hall-Collins; Norton Kelli; McNally Ray; Marty Wilson; Lynn Lednický; Kristin Vellandi; kent Palmerton; Katie Kaplan; Kassandra Gough; Karen Edson; Julee Malinowski-Ball;

John Stout; Joe Ronan; Jeff Dasovich; Jean Munoz; Jan Smutny-Jones; Greg Blue; Curtis Kebler; Bob Weisenmiller; Baker Carolyn; B Brown Andy; Andy Brown; Douglas Kerner; John Larrea Subject: FW: Cal Journal Ad #2

Attached please find the final California Journal ad for the Feb issue. We did our best to incorporate all of the changes. Thanks,

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

-----Original Message-----

From: Jean Munoz [mailto:jmunoz@mcnallytemple.com] Sent: Friday, January 05, 2001 8:48 AM To: kaplan@iepa.com Subject: FW: Cal Journal Ad #2

From: Keri Lanier <klanierart@mcnallytemple.com> Organization: MTA Reply-To: klanierart@mcnallytemple.com Date: Wed, 03 Jan 2001 16:32:27 -0800 To: knorton@mcnallytemple.com, jmunoz@mcnallytemple.com Subject: Cal Journal Ad #2

Message 363 of 1299

ATTENTION GRADUATE STUDENTS

Sender	msimpson@shugollresearch.com
Recipients	[]
File	dasovich-j/all_documents/8926.

As a pilot program participant at The University of California - Berkeley, Haas School of Business, Lexis Nexis has provided you with unlimited access to its nexis.com service. All they want in return is your opinion on how well the nexis.com service meets your expectations.

About the Research To best understand how the nexis.com service meets your needs, Lexis-Nexis has chosen an independent market research firm, Shugoll Research, to conduct a research study with pilot program participants like yourself. This is strictly market research and there is absolutely no sales effort involved. The research will be used to identify ways that the nexis.com service can be improved. If you have any questions or concerns regarding this research, please contact your school's liaison, Gary Peete, at (510) 643-6471 or gpeete@library.berkeley.edu.

This research will take place on February 12, 2001. All qualified participants will receive an honorarium as a token of our appreciation for their time and opinions. All of your answers will be kept strictly confidential.

How to Participate If you are interested in participating, or simply learning more about this important research, please contact Shugoll Research one of two ways:

1. E-mail Shugoll Research at research@shugollresearch.com. Please include your first name, a telephone number and the best time of day to reach you so a representative from Shugoll Research can contact you.
2. Call Shugoll Research toll free at 800-322-4499 and identify yourself as someone who has been invited to participate in the nexis.com research.

About Pilot Program Lexis-Nexis has been a trusted source of real-time and archival information for 28 years. Continuing the Lexis-Nexis tradition of providing the most comprehensive and credible information in the marketplace, the nexis.comSM Web interface was released to our corporate subscribers in Fall 2000. To determine the applicability of this interface for graduate schools of business, Lexis-Nexis has entered into a pilot program with select leading business schools. You should have received a user identification number, to access the Nexis.com service.

Thank you in advance for your participation in this very important research.

Shugoll Research 7475 Wisconsin Ave. Suite 200 Bethesda, MD 20814 (301) 656-0310 x109 www.shugollresearch.com

*Message 364 of 1299***Fw: A.98-07-026 et al. - Joint Petition of SCE, PG&E, and SDG&E**

Sender	douglass@energyattorney.com
Recipients	['kennethm@abag.ca.gov', 'steve.huhman@mirant.com', 'susan_j_mara@enron.com', 'vicki_sandler@apses.com', 'jerr...]
File	dasovich-j/all_documents/28571.

Attached for your information is a joint petition for modification of the 1998 Revenue Adjustment Proceeding ("RAP") decision filed today by SCE, PG&E and SDG&E. The utilities request that, on an expedited basis, the Commission limit the scope of the PX Credit audit which WPTF obtained in a negotiated settlement in the 1998 RAP proceeding to remaining year 2000 calculations and thereafter order that the audit be terminated. They state that the audit is both irrelevant and costly and that "common sense demands" the Commission reconsider the decision.

They ask that comments in opposition be filed by August 3, reply comments on August 10 and a Commission decision at its meeting scheduled for August 23. They also ask the Commission to waive the period provided in Rule 77.7 for comments and reply comments on a draft decision in order that the decision become final immediately.

The filing states that there have been dramatic changes in energy markets, the number of DA customers has declined significantly and that ratepayers should not have to pay for the audit. Of course, they don't mention that the reason for the decline in DA customers is their own failure to pay the PX Credit. It is instead attributed to the "dysfunctional restructuring scheme and concomitant rise in wholesale energy prices." They justify their request legally by stating that their filing demonstrates that there are "significant new facts" and a "material change in conditions." The third criteria for reopening or modifying a Commission decision, a basic misconception of law or fact by the Commission, is not alleged to have occurred.

They also state that DA penetration will continue to decline because "Assembly Bills X1-1 and X1-6 have effectively reregulated the market."

Attached to the filing are declarations from the three ESP members of the Audit Committee, Bob Anderson of APSES, Aaron Thomas of AES NewEnergy and Marilyn Semro of Seattle City Light Department, in support of the utilities' petition. I have not reviewed the specific wording changes to the RAP decision to determine if there are any problems with the proposed modifications.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com

- 7-10-01 RAP Joint Petition.PDF

*Message 365 of 1299***Your Order Confirmation**

Sender	orders@acteva.com
Recipients	['jdasovic@enron.com']
File	dasovich-j/all_documents/1630.

Thanks for using Acteva for your recent order! This message contains a summary of your online transaction completed on September 21, 2000. Please keep this as your order confirmation.

What: THE 3RD ANNUAL LEADING EDGE CONFERENCE

Qty: 1 ticket for "Saturday Session" at \$50.00 each For: Jeffrey Dasovich

Total Purchase Amount: \$50.00 Date Of Event: Sep 22, 2000 to Sep 23 2000 Time: 5:00 PM to 7:00 PM Location: Haas School of Business, University of California, Berkeley, Berkeley, CA, 94720

Directions: http://www.theleadingedge.org/angel/getting_here.htm

Reservation Reminder:

Transaction Number: 100241 Order Number: 8379RLOJ2000921142056 Credit Card Confirmation Code: 074859 Card Used: VISA (Acteva will appear on your credit card statement).

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Although the event organizer sets the basic refund policy, in the event of cancellation, Acteva works closely with the organizer to assure you of an appropriate credit, exchange, or refund.

Organizer Contact Information: Leading Edge 2000 - Haas School of Business Haas School of Business #1900, Attn: Darin Boyd Berkeley, CA, 94720

Return to the event listing: <http://www.acteva.com/booking.cfm?binid=1&bevoid=8379>

If you have any questions regarding your order, contact Acteva's Customer Service Department at service@acteva.com or call them toll free at (877) 855-8646. Please refer to the transaction number above.

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To list your own activities on Acteva, set up an account at <http://www.acteva.com/evax>

Online Payment and Registration brought to you by Acteva, Inc.

<http://www.acteva.com> info@acteva.com (877) 849-8646 (415)401-2200

Message 366 of 1299

Re: PUC Seeks Help-Rolling Blackouts in California

Sender	richard.shapiro@enron.com
Recipients	janel.guerrero@enron.com , jeff.dasovich@enron.com , harry.kingerski@enron.com , james.steffes@enron.com ...
File	dasovich-j/all_documents/11157.

Blackouts at baseball games are bad- play ceases and people get angry...in the dark.

From: Jeff Dasovich on 04/16/2001 12:42 PM PDT Sent by: Jeff Dasovich To: Richard Shapiro, James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Paul Kaufman/PDX/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron cc:

Subject: Re: PUC Seeks Help-Rolling Blackouts in California

FYI.

"Laura Goldseth" <lgoldseth@svmg.org> 04/16/2001 10:49 AM

To: <lgoldseth@svmg.org> cc: Subject: PUC Seeks Help-Rolling Blackouts in California

Energy Committee Representatives...please read the following as it may be something we would like to influence.

-----Original Message-----

From: Elizabeth Treanor [mailto:etreanor@orc-sac.com] Sent: Thursday, April 12, 2001 2:52 PM To: Elizabeth Treanor
Subject: PUC Seeks ORC Help-Rolling Blackouts in California Importance: High

April 12, 2001

To: ORC Western Occupational Safety and Health Group

From: Elizabeth A. Treanor

Subject: Consultants on Power Outages

This is a little out of our realm, but ORC received a call from a strategic planner with the Public Utilities Commission, who informed us that because of the energy shortage in California, there will be rolling blackouts this summer. The PUC is looking for consultants who can provide information in the following areas:

1. Impact of power outages on chemical processes
2. Impact of power outages on biomedical processes.
3. Impact of power outages at public events (and who understands current regulations with regard to ballparks).

The PUC is seeking to bypass the state contracting procedures and finalize contracts within the next few weeks. They asked ORC for names of consultants with expertise in the above areas. When ORC volunteered that power outages can have a significant impact on manufacturing operations as well, they thanked us for sharing but they are interested in direct impacts on health or safety.

If you have any suggestions for the PUC, please provide them to me ASAP; the PUC requested a response by April 16, 2001.

Thank you.

-- Elizabeth A. Treanor <etreanor@orc-sac.com> ORC Inc. <<http://www.orc-sac.com>> 400 Capitol Mall, Ste. 1545
Sacramento, CA 95814 (916) 447-3102 (916) 447-3127 FAX

Message 367 of 1299

NEWS: Windfall Profits Tax

Sender	jennifer.rudolph@enron.com
Recipients	['ca.team@enron.com']
File	dasovich-j/all_documents/12117.

----- Forwarded by Jennifer Rudolph/HOU/EES on 05/07/2001

02:18 PM -----

Susan J Mara@ENRON 05/07/2001 02:15 PM

This morning Assemblywoman Ellen Corbett held a press conference on her AB 128x. Several print journalists and 3 TV cameras were present at the conference. Also of interest is that the Senate tax consultants and Burton's staff were at the event. Assemblywoman Hannah-Beth Jackson showed up late and gave a few quotes to the media present. A spokesman from Mirant also gave a few interviews after the press conference. According to Corbett's staff, they expect to handout the bill amendments at the hearing. Among Corbett's comments to the media present: "This bill is not a negotiating tool. I'm very serious about this bill. I want to see it through the process. The Governor will sign a bill like this." The following amendments are to be presented at the committee hearing today as follows: AB 128X 1) Creates a Tax on Excess Gross Receipts from Electrical Energy Distribution (called a "tax on excess greed") 2) Imposes a tax on the first sale of electricity by generators and middlemen. 3) Establishes as the measure for the tax, the amount by which the gross receipts exceed a

specified price ("the base price"). The measure of tax is called the excess gross receipts. 4) Creates a 3-tier system of rates as follows: a) Sales price more than the base price but not more than 150% of the base price, tax rate = 50% b) Sales price more than 150% of the base price but not more than 200% of the base price, tax rate = 70% c) Sales price more than 200% of the base price, tax rate = 90% 5) Creates a rebuttable presumption that the base price represents a fair sales price. 6) Adds a mechanism to require withholding of the tax by purchasers. Residential consumers and small business are exempt. 7) Requires sellers to file annual tax returns to report the tax on excess gross receipts and pay any remaining tax due. 8) The measure sunsets after five (5) years. There will be a report after today's Assembly Rev & Tax Cmte hearing. As opposed to SB 1x that returns the taxes raised to ratepayers, AB 128x would "repay" the State's General Fund.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA 95814 (916) 447-2251
FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 368 of 1299

RE: Here it is...

Sender	jeff.dasovich@enron.com
Recipients	['jeff.dasovich@enron.com', 'anil.sama@intel.com', 'cvavrek@deloitte.com']
File	dasovich-j/sent/4352.

Don't have my car here. Planned on taking BART, but if possible, might be useful to carpool--give us additional time to discuss the presentation. I'm game.

Best, Jeff

"Sama, Anil" <anil.sama@intel.com> 04/26/2001 04:07 PM

To: "'Vavrek, Carolyn (US - San Francisco)'" <cvavrek@deloitte.com>, "Sama, Anil" <anil.sama@intel.com>, "'Guinney, Mark'" <Mark_Guinney@watsonwyatt.com>, "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com> cc: Subject: RE: Here it is...

Haven't heard from Mark yet... Am waiting to hear before printing and emailing to Tasker...

Mark, Jeff: Are any of you driving over to campus from the city?

-----Original Message-----

From: Vavrek, Carolyn (US - San Francisco) [mailto:cvavrek@deloitte.com] Sent: Thursday, April 26, 2001 12:45 PM To: Sama, Anil; 'Guinney, Mark'; 'Jeff.Dasovich@enron.com' Subject: RE: Here it is...

Looks great to me (although the slide animation did not work on my machine so I can't comment on that)!

If we are all in agreement, someone needs to e-mail Sarah a copy and print one out for her. Can you do that Anil once you get an okay from Jeff and Mark? Thanks for all the hard work.

See everyone around 5:30pm in Jimmy Bean's. - cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Sama, Anil [mailto:anil.sama@intel.com] Sent: Thursday, April 26, 2001 11:41 AM To: 'Carolyn Vavrek'; 'Guinney, Mark'; 'Jeff.Dasovich@enron.com' Subject: Here it is...

Hi Team,

Here's the final cut.

I added hyperlinks to DCF sheets in backup as well as to trading comps and deal comps in the backup. And animation for slide turns.

Also, be sure to preview the 3-legged stool slide I added after valuations in slide presentation mode with sound enabled... Totally OK to remove it if any of you don't like it...

<<E222_Mark_Quaker_presentation1.ZIP>>

Any Qs, call me on my cell: 916 600 1245.

-Anil

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Message 369 of 1299

FW: EIX, PCG: Federal Debate on Western Power Crisis Continues

Sender	michael.tribolet@enron.com
Recipients	['susan.mara@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/2882.

-----Original Message-----

From: Schneider, Chip =20 Sent: Tuesday, May 29, 2001 7:49 AM To: Shapiro, Richard; Tribolet, Michael; Steffes, James
Subject: FW: EIX, PCG: Federal Debate on Western Power Crisis Continues

FYI. -----Original Message----- From: Paul Patterson <Paul_Patterson@xmr3.com>@ENRON=20
[mailto:IMCEANOTES-Paul+20Patterson+20+3CPaul+5FPatterson+40xmr3+2Ecom+3E+4= 0EN
RON@ENRON.com]=20 Sent: Tuesday, May 29, 2001 7:47 AM To: Schneider, Chip Subject: EIX, PCG: Federal Debate
on Western Power Crisis Continues

Credit Suisse First Boston Paul Patterson Good morning, to debate amendments to HR 1647, a California emergency relief bill. At the= =20 core of the debate is a proposal to require western generators to commit 80= %=20 of their output to long-term bilateral contracts. ? Apparently, talks stalled because of conflicting information related to t= he=20 amount of power already under contract. In addition there appears to be=20 questions over the 80% benchmark and the length of the contracts. ? The current willingness of House Republicans to consider a compromise=20 amendment is apparently linked to the impending power shift in the Senate t= o=20 the Democratic caucus. The House Committee Chair, Rep. Tauzin, hopes to bri= ng=20 the bill to a vote soon after June 11. ? Separately, some key California Assembly Democrats are proposing another= =20 plan to rescue Edison and PG&E. Under the plan, the state=01,s largest=20 commercial ratepayers would assume responsibility for most of the state=01,= s net=20 short power position as well as repayment of the utilities=01, undercollect= ion.=20 The level of support for the proposal is still unclear. ? We believe that the next few weeks will be critical in determining whethe= r=20 California can reach a political solution to avert another utility=20 bankruptcy. At present, a single viable solution has not yet appeared. =20 Consequently, we recommend that only investors with high risk tolerance=20 should consider investing in the California utilities.

Please call us with any questions. Regards, Paul Patterson, 212-325-5876 Neil Stein, 212-325-4217 Wen-Wen Chen, 212-538-0223

If you would prefer not to receive further messages from this sender, pleas= e=20 click on the following link and confirm your request: Mailto:K-0-62573-1598574-2-172-US2-8395B9CF@xmr3.com You will receive one additional e-mail message confirming your removal.

- ppp052901.pdf

Message 370 of 1299

RE: PowerPoint info

Sender	cvavrek@deloitte.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11445.

Apology not necessary! However, you are very kind to consider my perspective on the group and project. I am certainly a bit frustrated with how this project is turning out. We should have "white boarded" our ideas and reached consensus in the very beginning I think. It would have saved all of us time. I'm counting on Mark to drive this home for us smoothly.

But, at the end of the day, I am pleased with how much I learned in Tasker's class, which is the ultimate point anyway.

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Monday, April 23, 2001 10:05 AM To: Vavrek, Carolyn (US - San Francisco) Subject: Re: PowerPoint info

Carolyn:

I wanted to apologize for the way the group dynamic has shaped up. It's clear to me that you're a bit frustrated, and if I've contributed, I apologize.

You've done the most work on this project, your contribution has been very significant, and I personally am not satisfied about the way that the stuff you've pulled together (and your views) have been included. At some point, though, it gets tough beating one's head against the wall. Seems to me that, in a group, everyone should have some of their views included---that's what groups and compromises are all about. After all, it's school. We've made a lot of sacrifices to do it, and the point is to learn.

Anyway, I hope you'll still comment on the presentation, and I'm glad that you've agreed to do part of it on Thursday. For my part, I felt that I pushed yesterday about as much as I'm prepared to push and at this point, I'll put the ratios tables together, offer a few edits, but don't see much use going to the mat.

Overall, I think it'll be an okay presentation, though getting there has been, well, bumpy.

But thanks very much for all the work you did. It was important, and the presentation is better off for it.

Best, Jeff

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Message 371 of 1299

fuel storage tanks

Sender	margaret.huson@enron.com
Recipients	['david.loosley@enron.com', 'janel.guerrero@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11670.

Diesel Fuel Storage Tanks in Los Angeles

I pieced together some initial information on the prospect of installing diesel fuel storage tanks in the Los Angeles area. Much depends on the location of the storage facility as well as on the type (i.e. above or below ground) and size of the facility. Listed below are a few agencies that have a hand in overseeing fuel storage tanks.

Fire Department The Fire Department requires permits and review of plans for fuel storage facilities. One of three permits applies - division 4, division 5 or special permit - depending on the facility (above ground, below ground, quantity stored, area of storage facilities, etc). The permit paperwork looks quite comprehensive including a range of information from ownership to geological/groundwater measurements. However, once the application is complete, the Los Angeles Fire Department said they usually turn the permit around in a day. The proper fire department to contact depends on the location of the site. [LAFD - 213-485-7543]

Los Angeles County Industrial Waste permits are only required for tanks that discharge waste, so for storage, no permit is required. However, the County approves fuel storage for either a spill containment plan or double walled + leak sensor construction. Underground storage of hazardous materials is of concern to the County, but it is unclear where the fire department leaves off and the county picks up. In cities where the fire department does not process permits for fuel storage, the County plays a larger role. [LA County Environmental Programs - 626-458-3517]

California EPA License/permit processes seem to have been passed down to local levels, though I believe that EPA has installation and/or engineering requirements for fuel tanks. I was not able to reach a contact, but I was advised to speak with the Engineering Unit - 916-341-5775.

Zoning & Building Requirements Zoning restrictions exist in Los Angeles and building permits are required as in any facility. Narrowing the location or locations under consideration for the tanks will help the information search.

My initial impression is that this is a comprehensive process, but not necessarily any worse than other cities. The process is unlikely to change - for better or worse - any time real soon.

Please contact me with any questions or if you need more in-depth information - x5-2431 or Margaret.Huson@enron.com.

Regards, Maggy Huson Government Affairs

Message 372 of 1299

Tickets for Fiorina & Chambers at Haas CEO Exchange

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu', 'dimeff@haas.berkeley.edu', 'tj@haas.berkeley.edu', 'benson@haas.berkeley.edu...]
File	dasovich-j/all_documents/10563.

Haas CEO Exchange Tickets Available Now

Starting today, tickets are available for the CEO Exchange with HP's Carly =20 Fiorina and Cisco's CEO John Chambers on April 11 at Zellerbach Hall. ? Plea= se=20 pick up your ticket at the desk of the Evening MBA Program Office this week= =20 (one ticket per student please).

The Show: CEO Exchange takes place on Wednesday, April 11, at Zellerbach Hall. Seatin= g=20 begins at 5:30 p.m. (doors close at 5:45 p.m.; no seating is allowed after= =20 taping has begun). The show will be introduced by Dean Laura Tyson and=20 moderated by CNN=01,s Jeff Greenfield. It will air on PBS stations on or af= ter=20 October 1, 2002.

You will have the opportunity to ask questions of the CEOs toward the end o= f=20 the show. Both your questions and the answers will be recorded on camera. Y= ou=20 will be part of a television audience, so please look your best (business= =20 casual or business wear please).=20

The Raffle: The show at Zellerbach concludes with a raffle of two Pen Cams (a PC camera= ,=20 a digital camera, and a digital camcorder in one -- courtesy of AT Kearney)= =20 and Haas Gear. Please make sure that an usher takes your ticket stub before= =20 the show and hold on to your tickets for the raffle.

The Reception: Please join Dean Tyson, the speakers, Jeff Greenfield, and the CEO of AT=20 Kearney, Dietmar Ostermann, at a catered reception at the Club Room of the= 20 new Haas Pavilion following the show. The Haas Pavilion is the new stadium= 20 just west of Zellerbach Hall.=20

The event is free and open to all Haas students. However you will need a=20 ticket for admission to the show and to the reception.=20

Location: Zellerbach Hall is located near Bancroft Way and Telegraph Avenue, a=20 five-minute walk from Haas. Parking will be tight just before the show, so= 20 please leave your cars at Haas, if you can, or use other forms of=20 transportation. For more information on CEO Exchange, go to=20 <http://haas.berkeley.edu/groups/pubs/news/articles/CEOexchange41101.html>.

This event is organized by the Haas School's Marketing & Communications=20 Office. AT Kearney is the exclusive sponsor of the show.

We'll see you there. Ute Frey

Ute S. Frey Associate Director Marketing & Communications Haas School of Business????????? University of California????????? Berkeley, CA 94720-1900??????????? Phone 1-510-642-0342 Fax 1-510-642-4700
<http://www.haas.berkeley.edu>

Message 373 of 1299

glossary revision

Sender	abb@eslawfirm.com
Recipients	['kelly@hnks.com', 'dkk@eslawfirm.com', 'bhansen@lhom.com', 'cjrudman@softcom.net', 'abb@eslawfirm.com', 'stev...]
File	dasovich-j/all_documents/8125.

ABB suggested revisions of the glossary in MS Word redline. ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 <mailto:abb@eslawfirm.com>

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-----Original Message-----

From: Katie Kaplan [<mailto:kaplan@iepa.com>] Sent: Wednesday, January 03, 2001 5:53 PM To: Anne Kelly; Bev Hansen; Cary Rudman; Chuck Cole; Delany Hunter; DJ Smith; Hedy Govenar; Jamie Parker; Jan Smutny-Jones; Jean Munoz; Jen Paulsen; John Larrea; Julee Malinowski-Ball; Cassandra Gough; Katie Kaplan; marie moretti; Maureen OHaren; McNally Ray; Mike Monagan; Norton Kelli; Phil Isenberg; Robert Ross; Ron Tom; Scott Govenar; Susan McCabe; Tom Ross Cc: Carol H Hudson; Steven Kelly; Douglas Kerner; Andy Brown; B Brown Andy; Baker Carolyn; Bob Weisenmiller; Curtis Kebler; Greg Blue; Jeff Dasovich; Joe Ronan; John Stout; Karen Edson; kent Palmerton; Kristin Vellandi; Lynn Lednick; Marty Wilson; Paula Hall-Collins; Pigott Jack; Richard Hyde; Rob Lamkin; Stephanie-Newell; Sue Mara Subject: Here is the Energy briefing agenda for the Republican Caucus and FAQ Importance: High

Greetings: For those of you attending the Republican Caucus briefing tomorrow it is in room 126 and runs from 9-noon (from what we understand it will be close quarters so arrive early if you have been invited to speak). This meeting is open to those who have been invited only.

Attached please find the agenda. IEP will be handing out the Seeing the Light document, Power Up, and the editorial from the Bee today. We will be following up with the FAQ's with a letter to each attendee on Friday.

I have also attached the Final FAQ and Glossary of Terms. Please let us know by 2:00 tomorrow if you have any changes or additions to these documents.

Thanks! Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

- abbrev.Glossary of Terms.doc

Message 374 of 1299

URGENT!!! I-6 penalty charges

Sender	jeff.dasovich@enron.com
Recipients	['mday@gmsr.com', 'jbennett@gmsr.com']
File	dasovich-j/sent/3094.

Mike, Jeanne: Have you heard anything about any relief on penalties that the PUC might have recently granted interruptible customers? (Recall that Loretta has refused to allow folks on interruptible to get off those contracts.) Could you let me know as soon as you find something out? Thanks.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 02/06/2001 11:09 AM -----

Nancy Hetrick 02/06/2001 06:55 AM

To: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON cc: Diann Huddleson/HOU/EES@EES Subject: URGENT!!! I-6 penalty charges

Can we get some information on this as soon as possible. We are getting calls from customers, etc., and we need the information in order to make the necessary decisions on billing. Please include Diann Huddleson on any responses. Thanks. ----- Forwarded by Nancy Hetrick/NA/Enron on 02/06/2001 06:52 AM -----

From: Nancy Hetrick 02/04/2001 06:28 AM

To: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON cc:

Subject: I-6 penalty charges

Do we have anything on this? Thanks.

----- Forwarded by Nancy Hetrick/NA/Enron on 02/04/2001

06:28 AM -----

Diann Huddleson@EES 02/02/2001 04:42 PM To: Nancy Hetrick/NA/Enron@Enron cc: Evan Hughes/HOU/EES@EES

Subject: I-6 penalty charges

Nancy, do you know anything about a Order from CA Governor on I6 rate relief? If the customers are being granted some relief, I need to know so we can exempt these charges from the bills.

Thanks. ----- Forwarded by Diann Huddleson/HOU/EES on 02/02/2001 04:41 PM ----- From: Leonard Pettis/Western Region/The Bentley Company@Exchange on 02/02/2001 04:13 PM To: Diann Huddleson/HOU/EES@EES cc: Tom Riley/Western Region/The Bentley Company@Exchange Subject: I-6 penalty charges

Diann, per Tom's request I have copied the SR in an e-mail to you. Let me know if you need additional information.

SR Customer (Tim Ball) received January invoice for delivered service 11/20 -12/20 2000 with interruptible penalty charges. He wants know should he pay the full amount or deduct the penalty and pay for the delivered services? This is according to his interpretation of the California governor's order on I6 rate relief Len Pettis CEM Enron Energy Services

611 Anton Boulevard Suite 700 Costa Mesa, CA 92626

Toll Free 800-522-1802 x 242 Voice 714-429-8166 Pager 877-452-1224 Pager e-mail 8774521224@skytel.com e-mail lpettis@enron.com

Message 375 of 1299

AB 2xx to Suspense

Sender	cmicheli@carpentersnodgrass.com
Recipients	['wbrown@lhom.com', 'sglobby@pacbell.net', 'teresa_casazza@aeonet.org']
File	dasovich-j/all_documents/13025.

Assemblywoman Ellen Corbett took up AB 2xx this morning in the Assembly Appropriations Committee.? Although it raises revenue and is not subject to the Suspense File rule, Migden sent the bill to Suspense (to be voted upon next Wednesday, May 30). Corbett said that Californians "have suffered long enough from greedy energy sellers." She explained the bill and the 3-tier structure of the profits tax.? She said that "excessively greedy profits will be returned to the people through the General Fund." She said that the results of this greed is that budget cuts are being forced to be made.? She argues that California is a good place for the generators to do business.? According to Dept. of Finance, this bill could raise \$6 billion. Lenny Goldberg, on behalf of TURN, UCAN, and CTRA, spoke in support of the bill. Speaking in opposition were Fred Main (California Chamber) and Carrie Lee Coke (CMTA). Assemblywoman Goldberg inquired why businesses are opposed to this bill because they are suffering under higher energy prices. Assemblywoman Thom said that "a fair, healthy profit is permitted" under this bill. Assemblywoman Alquist is a supporter of the bill.? She said that the business community should back the Legislature to enact this bill. Assemblyman Ashburn asked about the base price (\$60).? He suggested amendments for long-term contracts.? He also argued more generation and supply is needed. Assemblyman Wright said that the bill will result in a reduction in output.? He stated that he would vote no on this bill. Assemblywoman Pavley said that FERC has failed to do its job.? Reasonable profits are being allowed under this bill. Assemblywoman Wiggins said that there is public clamor for this bill.? She asked for an explanation of the rebuttable presumption language. Assemblywoman Daucher asked whether the Governor has a position on this bill.? Dept. of Finance said no.? Corbett said that the Governor has indicated he might support a measure along these lines. Possible amendments to this bill were suggested to the author by Assemblywoman Migden, including: 1.? Exempt new power plants constructed in this state. 2.? Exempt long-term contracts (state only or all???) 3.? Raise the base price from \$60 to \$100 4.? Exempt QFs from the bill From what I understand, this bill was to go out today (and not to Suspense) if these amendments were made.? However, Corbett has not agreed to them yet.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 376 of 1299

RE: Bluegrass Weekend at Sierra Club Lodge

Sender	scottwl@hotmail.com
Recipients	['jdasovic@enron.com', 'cameron@perfect.com', 'psellers@pacbell.net']
File	dasovich-j/all_documents/8461.

I just penned it in my new, leather calender that Cameron gave to me so that I might become a little more organized. Do you think we might be able to snowboard (ski) instead of cross-country ski?

From: Cameron Sellers <cameron@perfect.com> To: 'Prentice Sellers' <psellers@pacbell.net>, jdasovic@enron.com, Scott Laughlin <scottwl@hotmail.com> Subject: RE: Bluegrass Weekend at Sierra Club Lodge Date: Tue, 23 Jan 2001 08:38:18 -0800 I think we should definitely go. I could not go up until Friday. Please make reservations!!! Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com

650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax) -----Original Message----- From: Prentice Sellers [mailto:psellers@pacbell.net] Sent: Monday, January 22, 2001 6:34 PM To: Cameron Sellers; jdasovic@enron.com; Scott Laughlin Subject: Bluegrass Weekend at Sierra Club Lodge In case it's not on your calendars, the bluegrass weekend at the Sierra Club's Claire Tappan Lodge is: March 16-18 It's \$46 per person per night Includes 3 meals If we're going to go, I think we should make reservations right away. If so, do we plan on getting up there Friday night? I can make the reservations if you let me know. I haven't found any info yet on the free one... Here's some info I copied from the Claire Tappan Lodge website: <http://www.sierraclub.org/outings/lodges/ctl/index.asp> Clair Tappaan is located at 7000 feet, 45 minutes drive west of Reno - 1 mile from Sugar Bowl. The living room has an enormous stone fireplace. There is a library, a large communal dinning room, a social lounge, and a hot tub. The lodge maintains 10 to 12 kilometers of groomed cross-country ski trails and offers excellent instruction in both Nordic track and telemark techniques. Top quality cross-country skis and snowshoes are also available to rent at very reasonable rates. Guests needs to provide their own pillow, toiletries, towel, sleeping bag or comparable linens, and bathing suit if they wish to use the hot tub. We ask guests to choose a house chore to do each day they eat at the lodge. March 16-18: Blue Grass Weekend. Calling amateurs and proffesionals alike to a weekend of great jam sessions in the afternoons and a performance by the Donner Peak Pickers in the evening. The Pickers are a fantastic bunch of widely-experienced musicians playing traditional Bluegrass with superb instrumental craftsmanship.

Get your FREE download of MSN Explorer at <http://explorer.msn.com>

Message 377 of 1299

Campaign Leadership Call (Another Change!!!!!!)	
Sender	ginger.dernehl@enron.com
Recipients	['janel.guerrero@enron.com', 'mark.palmer@enron.com', 'cindy.derecskey@enron.com', 'marcia.linton@enron.com', ...]
File	dasovich-j/all_documents/10549.

Please make note of the new schedule for the Campaign Leadership Call:

Call will now take place on Monday's & Thursday's @ 4:30 PM (CDT). The next call is scheduled for Thursday, April 5.

Don't hesitate to call me if you have any questions.

gngr

----- Forwarded by Ginger Dernehl/NA/Enron on 04/02/2001

04:35 PM -----

Ginger Dernehl 03/26/2001 02:05 PM To: Mark Palmer/Corp/Enron@ENRON, James D Steffes/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Howard Fromer/NA/Enron@Enron, Joe Hartsoe/Corp/Enron@ENRON, Linda Robertson/NA/Enron@ENRON, Richard Shapiro/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Daniel Allegretti/NA/Enron@Enron cc: Cindy Derecskey/Corp/Enron@Enron, Marcia A Linton/NA/Enron@Enron, Linda J Noske/HOU/ECT@ECT, Lysa Akin/PDX/ECT@ECT, Joseph Alamo/NA/Enron@Enron, Bernadette Hawkins/Corp/Enron@ENRON, Lora Sullivan/Corp/Enron@ENRON, Ginger Dernehl/NA/Enron@Enron, Terri Miller/NA/Enron@Enron

Subject: (Change in time of call) Campaign Leadership Call

Please make note of the change in time of the "Campaign Leadership Call" . Beginning Tuesday, March 27, 2001 the call will take place daily at 4:30pm CST instead of 11:30am CST. The dial in number and location for this call will remain the same.

Thanks and please call if you have any questions.

gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 03/26/2001 01:14 PM -----

Ginger Dernehl 03/23/2001 05:22 PM

To: Mark Palmer/Corp/Enron@ENRON, James D Steffes/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Howard Fromer/NA/Enron@Enron, Joe Hartsoe/Corp/Enron@ENRON, Linda Robertson/NA/Enron@ENRON, Richard Shapiro/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Daniel Allegretti/NA/Enron@Enron cc: Cindy Derecskey/Corp/Enron@Enron, Marcia A Linton/NA/Enron@Enron, Linda J Noske/HOU/ECT@ECT, Lysa Akin/PDX/ECT@ECT, Joseph Alamo/NA/Enron@Enron, Bernadette Hawkins/Corp/Enron@ENRON, Lora Sullivan/Corp/Enron@ENRON, Ginger Dernehl/NA/Enron@Enron, Terri Miller/NA/Enron@Enron Subject: Campaign Leadership Call

Beginning Monday, March 26, 2001 there will be a daily "Campaign Leadership Call". This conference call was referenced in a memo sent via e:mail by Rick this afternoon, Friday, March 23. Please remember to mark your calendars accordingly.

Date: Daily, beginning Monday, March 26, 2001

Time: 11:30am - 12:00pm (CST) call to last 1/2 hour

Number: 1-800-283-1805

Location: EB4701 (for those in Houston)

Feel free to call me if you have any additional questions or concerns.

gngr 713-853-7751

Message 378 of 1299

Re: glossary revision

Sender	rbw@mrwassoc.com
Recipients	['kelly@hnks.com', 'dkk@eslawfirm.com', 'bhansen@lhom.com', 'abb@eslawfirm.com', 'steven@iepa.com', 'kaplan@ie...]
File	dasovich-j/notes_inbox/5923.

Andy -- great job. A few small edits.

Bob

At 07:40 PM 1/3/01 -0800, Andy Brown wrote:

ABB suggested revisions of the glossary in MS Word redline. ABB Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 <mailto:abb@eslawfirm.com> CONFIDENTIALITY NOTICE: This communication and any accompanying document(s) are confidential and privileged. They are intended for the sole use of the addressee. If you receive this transmission in error, you are advised that any disclosure, copying, distribution, or the taking of any action in reliance upon the communication is strictly prohibited. Moreover, any such inadvertent disclosure shall not compromise or waive the attorney-client privilege as to this communication or otherwise. If you have received this communication in error, please contact the sender at the internet address indicated or by telephone at (916)447-2166. Thank you. -----Original Message----- From: Katie Kaplan [<mailto:kaplan@iepa.com>] Sent: Wednesday, January 03, 2001 5:53 PM To: Anne Kelly; Bev Hansen; Cary Rudman; Chuck Cole; Delany Hunter; DJ Smith; Hedy Govenar; Jamie Parker; Jan Smutny-Jones; Jean Munoz; Jen Paulsen; John Larrea; Julee Malinowski-Ball; Cassandra Gough; Katie Kaplan; marie moretti; Maureen OHaren; McNally Ray; Mike Monagan; Norton Kelli; Phil Isenberg; Robert Ross; Ron Tom; Scott Govenar; Susan McCabe; Tom Ross Cc: Carol H Hudson; Steven Kelly; Douglas Kerner; Andy Brown; B Brown Andy; Baker Carolyn; Bob Weisenmiller; Curtis Kebler; Greg Blue; Jeff Dasovich; Joe Ronan; John Stout; Karen Edson; kent Palmerton; Kristin Vellandi; Lynn Lednicky; Marty Wilson; Paula Hall-Collins; Pigott Jack; Richard Hyde; Rob Lamkin; Stephanie-Newell; Sue Mara Subject: Here is the Energy briefing agenda for the Republican Caucus and FAQ Importance: High Greetings: For those of you attending the Republican Caucus briefing tomorrow it is in room 126 and runs from 9-noon (from what we understand it will be close quarters so arrive early if you have been invited to speak). This meeting is open to those who have been invited only. Attached please find the agenda. IEP will be handing out the Seeing the Light document, Power Up, and the editorial from the Bee today. We will be following up with the FAQ's with a letter to each attendee on Friday. I have also attached the Final FAQ and Glossary of Terms. Please let us know by 2:00 tomorrow if you have any changes or additions to these documents. Thanks! Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

- abb rbwrev.Glossary of Terms.doc

Message 379 of 1299

Edson + Modisette merger with Public Policy Advocates	
Sender	julee@ppallc.com
Recipients	['ccole@advocation-inc.com', 'sgovenar@govadv.com', 'e-mail <.alex@enron.com>', 'e-mail <.bill@enron.com>', 'mno...]
File	dasovich-j/inbox/901.

Thought you all might like to know about our recent merger.

Julee Malinowski-Ball

-----Original Message-----

From: Julee Ball Sent: Tuesday, November 20, 2001 12:07 PM To: Jan Smutny Jones (E-mail); Steven Kelley (E-mail); Katie Kaplan (E-mail); 'chudson@iepa.com' Subject:

Dave and I wanted to inform you and IEP of the recent merger between Edson + Modisette and another highly reputable Sacramento consulting/advocacy firm, Public Policy Advocates.

As you well know, Edson + Modisette has experienced some major changes this year, with the retirement of Karen Edson and the departure of one of our long-time consultants, Cece Martin. These changes also created a new opportunity for us to partner with others that can improve our capabilities.

The merger has given Dave and I and our clients the ability to draw upon additional people, many with valuable skills, and additional resources. Public Policy Advocates is a long-standing firm in Sacramento, founded and headed by Fred Taugher, who among other things was the Director of the Assembly Rules Committee for many years and come this January celebrates 40 years of experience in public policy. Fred gives us a new dimension of political access and strength we have never had before. There are also three other advocates in the firm that IEP could call upon if needed: Amy Zajac and Steve Cruz who each have ten years of experience in the Capitol, and Jennifer Wada who cut her teeth in public policy arena during this year's energy crisis. There will also be additional support staff, and other resources that we can draw upon.

What hasn't changed is my concentration on energy issues both in the Legislative and regulatory arenas.

Public Policy Advocates has a long client list which, if you are interested, you can see on the Secretary of State's web site at

http://cal-access.ss.ca.gov/lobbyist/detail_firm.asp?ID=1147315&SESSION=2001

Although our old phone numbers and addresses will work until the end of the year, our new contact information is the following:

Public Policy Advocates Dave Modisette - Vice President Julee Malinowski-Ball, Senior Associate 1015 K Street Sacramento CA 95814 916-441-0702 FAX-441-3549 dave@ppallc.com julee@ppallc.com

In short, I believe the merger of Edson + Modisette and PPA will have significant benefits, in terms of influence, and access, and availability of additional resources.

As IEP contemplates its agenda for the second half of the legislative session, I greatly hope you include our new team in your plans.

Should you have any questions, please do not hesitate to call me.

Julee Malinowski-Ball Senior Associate Public Policy Advocates 1015 K Street Sacramento CA 95814 916-441-0702 FAX-441-3549 julee@ppallc.com

Message 380 of 1299

Sept. 5 - I-House - Understanding and Misunderstanding Japanese

Sender	teunisse@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'mba02@haas.berkeley.edu', 'undergrd@haas.berkeley.edu']
File	dasovich-j/deleted_items/974.

SPECIAL EVENT AT UC BERKELEY's INTERNATIONAL HOUSE Glenn Fukushima speaking on... "Understanding and Misunderstanding Japanese Styles of Communication"

Wednesday, Sept. 5 5:00 - 6:00 pm International House, Chevron Auditorium 2299 Piedmont Avenue at Bancroft Way

FREE / NO RSVP necessary

In celebration of the 50th anniversary of the signing of the Peace Treaty with Japan, International House welcomes Mr. Glen Fukushima, who will deliver a presentation entitled "Understanding and Misunderstanding Japanese Styles of Communication" on Wednesday, September 5, from 5:00 to 6:30 pm in the I-House Chevron Auditorium, 2299 Piedmont Avenue at Bancroft Way in Berkeley. This presentation is FREE to I-House residents, members, alumni, and the general public.

Between corporations and individuals in the US and Japan, there are a plethora of cases where what one side says is not fully understood, or sometimes completely misunderstood, by the other side. This is disturbing given the numerous articles, books conferences, symposia, and studies that have proliferated during the past 50 years explaining the two countries to one and other. Of course, historical, political, economic, social, cultural and psychological differences can impede effective communication between Americans and Japanese. But beyond this, the languages of the two countries are so dissimilar that finding exact conceptual equivalents can be impossible, even with the help of the best interpreters. These are among the cross-cultural challenges Mr. Fukushima will address in his talk. Don't miss this opportunity to explore and discuss the reasons for and solutions to cross cultural differences that touch us here at International House and across the campus.

Glen Fukushima is the leader of Japan operations for Cadence Design Systems in Silicon Valley. A native of California, Fukushima was educated at Stanford University, Harvard University Graduate School of Arts and Sciences, Harvard Business School and Harvard Law School. Fukushima's publications include Nichi-Bei Keizai Masatsu no Seijigaku (The Politics of US-Japan Economic Friction), winner of the 9th Masayoshi Ohira Memorial Prize in 1993. His writings have appeared in the New York Times, Washington Post, Wall Street Journal, Los Angeles Times, International Herald Tribune, Japan Times and many more.

For more information about this event or about International House, call (510) 642-9460.

Sebastian Teunissen Executive Director Clausen Center for International Business and Policy Haas School of Business
University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228
<<http://www.haas.berkeley.edu/HaasGlobal>>

Message 381 of 1299

Crain's Article - California Utility's Revamp is no Threat to

Sender	susan.landwehr@enron.com
Recipients	['susan.mara@enron.com', 'janel.guerrero@enron.com', 'jeff.dasovich@enron.com', 'paul.kaufman@enron.com', 'jam...']
File	dasovich-j/all_documents/13368.

FYI--Midwest Generation is the renamed So Cal sub (started out as Edison Mission Energy) that was formed to purchase the coal fired plants from Com Ed,now Exelon. They are obligated to provide power to Com Ed/Exelon through power supply contracts into the year 2004. ----- Forwarded by Susan M Landwehr/NA/Enron on 06/05/2001 04:24 AM -----

"Freddi L. Greenberg" <flgreenberg@flglaw.com> 06/04/2001 03:25 PM

To: Joe.Bizzano@nrgenergy.com, Jane Cahill <jane.cahill@neg.pge.com>, Jerry Erjavec <gerjavec@indeck-energy.com>, Susan.M.Landwehr@enron.com, Melissa Lavinson <Melissa.Lavinson@neg.pge.com>, "Jana M. Martin" <jmartin@TENASKA.com>, John Stauffacher <JJST@dynegy.com>, Dick Suslick <rjsuslick@wpspower.com>, Doug Oglesby <doao@chevron.com>, "Samantha Slater" <SSLATER@epsa.org>, Greg Pakela <gapa@dynegy.com>, Jennifer Chamberlain <jnnc@chevron.com>, Mike Malloy <mmalloy@utilicorp.com>, Priya Devaguptapu <priyad@calpine.com>, Doug McFarlan <dmcfarlan@mwgen.com>, Steve Brick <steve.brick@neg.pge.com>, Barbara Hueter <bhueter@enron.com>, Jim Orlando <jorlando@coral-energy.com>, Janine.Migden@enron.com, Gary_Edwards@dom.com, Bob.Lewis@mirant.com, Donald.Lassere@enron.com, D.Anderson@pecorp.com cc: Subject: Crain's Article - California Utility's Revamp is no Threat to Illinois

Letters to the Editor June 04, 2001 CALIF. UTILITY'S REVAMP IS NO THREAT TO ILLINOIS

Crain's does readers a disservice in an editorial by stoking groundless fears that electricity supplied by Midwest Generation is somehow threatened by a debt refinancing of Edison International, our ultimate parent company ("Feds must ensure Illinois isn't singed in Calif. crisis," May 28).

Midwest Generation, based in Chicago, stands on its own financially and has its own set of lenders and covenants that would prevent financial consequences related to the California energy crisis. Our contracts to provide electricity to ComEd give us the strongest possible financial incentive to invest in our plants.

Under the refinancing approved by the Federal Energy Regulatory Commission, the stock of Edison Mission Energy would be used as collateral by its parent, Edison International, to achieve favorable terms for the refinanced debt. Edison International also owns the Southern California Edison utility, which has been plunged into well-documented financial hardship.

Midwest Generation stock would not be used as collateral. In fact, the refinancing actually provides yet another layer of insulation between Midwest Generation and Edison International.

Georgia Nelson President Midwest Generation Chicago

Thank you,

Jennie Peebles Assistant to Freddi L. Greenberg Office of Freddi L. Greenberg 1603 Orrington Avenue Suite 1050 Evanston, Illinois 60201-5000 p. 847-864-4010 f. 847-864-4037 flgreenberg@flglaw.com

Message 382 of 1299

FW: where does our energy come from?

Sender	jeff.dasovich@enron.com
Recipients	['sgovenar@govadv.com', 'hgovenar@govadv.com']
File	dasovich-j/sent/11913.

FYI. Could you please forward to Bev? More arrows for our quiver in trying to get out the truth.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 07/10/2001 09:22 AM -----

Subject: FW: where does our energy come from?

-----Original Message-----

From: Curt Pringle [mailto:Curt@curtpringle.com] Sent: Monday, July 09, 2001 6:23 PM Subject: where does our energy come from?

Assemblyman Bill Leonard's most recent e-newsletter contained the following information. I think it is very interesting to consider in light of the present energy situation in California and the comments of our present Governor.

Regards, Curt

Who Really Powers California? Governor Davis has made no secret that he believes that swashbuckling, cattle rustling, energy barons from Texas are to blame for our energy crisis. While Texas power companies make for good bad guys in the Governor's transparent Kabuki theater of blame, Leonard Letter readers may be interested to see who really provides power to Californians. The following list illustrates what percentage of our power supply each group of generators provides. (Editor's note: these percentages have been rounded up resulting in slightly more than 100%)

18%- Pacific Gas and Electric (California) 15%- Southern California Edison (California) 11%- Imported power from the Northwest (including Canada) 10%- Los Angeles Department of Water and Power (California) 10%- Imported power from the Southwest 7%- State and Federal Agencies 6%- AES power company 5%- Municipal Utilities and Irrigation Districts 5%- Reliant power company 4%- Duke power company 4%- Southern power company 4%- Dynegy power company 1%- Sacramento Municipal Utility District (California) 1%- Calpine power company 1%- San Diego Gas and Electric (California)

It should be noted that of this list, only Dynegy and Reliant are from Texas. These two companies represent a total of 9% of California's energy portfolio. By comparison, Georgia-based Southern (Mirant), Virginia's AES, and North Carolina's Duke Energy, have a 14% share of our energy portfolio.

This list does not focus on who is gaming the market. However, every provider listed benefited from skyrocketing energy prices. In trying to identify those power producers who used market power to ring up high profits on Californians, we should include ALL power producers in our investigations. State and federal agencies, independent power companies, utilities, municipal utilities, and even local irrigation districts could all be guilty of gouging consumers. Davis's focusing on only those companies from Texas does everyone in this state a disservice and is a misrepresentation of fact.

Curt Pringle Curt Pringle & Assoc. 2532 Dupont Drive Irvine, CA 92612

(949) 474-4090 (949) 474-4082 fax

Message 383 of 1299

RE: myths vs facts

Sender	abb@eslawfirm.com
Recipients	['tross@mcnallytemple.com', 'steven@iepa.com', 'smutny@iepa.com', 'smara@enron.com', 'jmball@ns.net', 'kaplan@...]
File	dasovich-j/notes_inbox/6052.

Here's my cut at it. ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 mailto:abb@eslawfirm.com

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-----Original Message-----

From: Julee Malinowski-Ball [mailto:jmball@ns.net] Sent: Wednesday, December 20, 2000 11:18 AM To: Tom Ross; Sue Mara; Stephanie Newell; Robert Weisenmiller; Rob Lamkin; Richard Hyde; Ray McNally; Paula Hall-Collins; kent

Palmerton; Kelli Norton; Cassandra Gough; John Stout; Joe Ronan; Jeff Dasovich; Jean Munoz; Jack Pigott; Greg Blue; Doug Kerner; Curtis Kebler; Carolyn Baker; Andy Brown; Lynn Lednicki Cc: Jan Smutny Jones; Steven Kelley; Katie Kaplan Subject: myths vs facts

Date: 12/20/00 To: IEP PR Group From: Julee Malinowski-Ball, Edson + Modisette RE: MYTHS VS FACTS

In response to Andy Brown's suggestion for additional fact sheets, I am working on a "Myths vs Facts" paper and would like your recommendations (I'm going to leave the gas issues fact sheet to someone else). Because we already have a general restructuring and IEP solutions Frequently Asked Questions being finalized, this fact sheet should focus on those persistent myths that don't help us or the restructuring cause generally.

Attached is my top "myths" list. Please take some time to give me what your top 10 "myths" are, and if you have time, include what points we need to hit on in the "Facts."

THANKS.

Julee Malinowski-Ball Senior Associate Edson + Modsette 916-552-7070 FAX-552-7075 jmball@ns.net

Myths and Facts of Electric Restructuring

-- AB 1890 deregulated California' electricity industry. [FACT: is was restructured and explain how]

-- Utilities were forced to sell their power plants. [FACT:

-- Electricity rates have increased since electric restructuring passed in 1996. [FACT: Rates are capped]

-- Long-term deals will lock in overly high rates.

-- Power generating companies are refusing to sell power into California.

-- Power generating companies are out-of-state price gougers. [FACT: There are many in-state generators which also include the utilities, their affiliates and the munis. Out-of-state generators include Arizona Public Service, the federal government, BC hydro, etc]

- Myths vs Facts_abbrev1.doc

Message 384 of 1299

RE: Reservation Confirmation

Sender	eldon@interx.net
Recipients	['nancy.sellers@mondavi.com', 'cameron@perfect.com', 'psellers@haas.berkeley.edu']
File	dasovich-j/all_documents/7944.

Do you have a place to stay on the 1st? And how do the rest of us get back to the airport if you're not coming back until a day later? Maybe there's a limo or bus that goes from Beverly Hills to Burbank. Also, how and when are you arriving on the 24th? I remember that it's just a few minutes from the time we arrive. Scott told me some time ago, but I can't find any notes on that that I wrote down at the time.

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Friday, December 22, 2000 12:22 PM To: 'eldon@interx.net' Cc: 'Mom'; 'Prentice (Berkeley)'; 'Jeff.Dasovich@enron.com' Subject: RE: Reservation Confirmation

I want the hotel for the night of the 31st. Thank you. Scott and I have flights leaving on the 30th and returning on the 2nd. Yipeeee!!!

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Eldon Sellers [mailto:eldon@interx.net] Sent: Thursday, December 21, 2000 3:10 PM To: Cameron Sellers (E-mail); Cameron Sellers; Eldon (E-mail); Eldon Sellers (E-mail); Nancy Sellers (E-mail); Jeffrey Dasovich (E-mail); Prentice Sellers (E-mail); Prentice Sellers (E-mail 2); Scott Laughlin (E-mail) Subject: FW: Reservation Confirmation

<< File: Reservation Confirmation.txt >> This is what I received from the Westwood Marquis which has undergone a renovation. (I replied and told them to correct the address.) Let me know if this is OK. I don't know if we can find a cheaper place, but if you think this rate is too high I can try. Also, I made reservations to go to Burbank on Dec. 31 using Southwest Airlines and leaving from Oakland at 10:40 am, arriving at 11:40. Returning on Jan. 1 at 8:15 pm and arriving at 9:20. However, I learned from Cameron that all but your mother and I will be going on Dec. 30 so I will cancel that part of the reservation. I don't know what your plans are for returning so I will not be making any other reservations unless I hear from you. I originally made the returning reservation at the time I did so that if we came back to the house on Monday to watch football games and play games we would have some time to do that. If we don't do that we could possibly get an earlier flight back. Your mother doesn't want to come back too late, so your mother and I couldn't possibly watch a movie if Hef has one planned for later, but you might consider that possibility. Our check-in time at the W is 3:00 pm, possibly earlier. I assume you got my message left on the answering machine that everyone has been invited to the party.

-----Original Message-----

From: whotels@whotels.com [mailto:whotels@whotels.com] Sent: Wednesday, December 20, 2000 6:08 PM To: ELDON@interx.net Subject: Reservation Confirmation

Message 385 of 1299

Important Project Announcements from the Center for the Advancement

Sender	ljackson@caem.org
Recipients	['ljackson@caem.org']
File	dasovich-j/all_documents/13303.

[IMAGE]

The California Electricity Crisis has resulted in an avalanche of opportunity for the Center for the Advancement of Energy Markets (CAEM) to provide its views on energy restructuring. Below you will find links to some of our recent documents.

In May, CAEM issued an update to the RED Index 2001 that now includes the 13 provinces and territories of Canada. The RED Index is a scorecard on the progress states are making in electricity restructuring. RED Index Update for Canada. USA Today did a full page spread using CAEM's RED Index to give a summary of activity in the top 25 states. USA Today Article. The Governor of Pennsylvania included the RED Index Rank of Pennsylvania in his State-of-the-State Address. Pennsylvania GovernorThe NY PSC issued a Press Release on the RED Index. NY Commission

CAEM is pleased to announce the formation of a public-private sector project called the Distributed Energy Task Force. At the request of important members of Congress, CAEM will be assessing opportunities for promotion of distributed energy technologies and matching those opportunities with policy instruments, i.e., tax incentives, funds for R&D etc. For a copy of the project description and participation information, email a request to jwimberly@caem.org.

In February, CAEM sponsored a meeting of the newly formed Leadership Council on Energy Restructuring, an umbrella group of industry executives and public sector officials who support the development of a coherent strategy on energy restructuring. Leadership Council Document

In April, CAEM filed comments with the FTC on the proceeding that was initiated at the request of House Energy and Commerce Committee Chairman Billy Tauzin on the impact of States restructuring. CAEM FTC Comments

In March, CAEM held its first meeting of the DISCO of the Future Forum. We =20 have posted several documents from that Forum. DISCO Forum Documents

Last Sunday, the Philadelphia Inquirer published the views of CAEM on =20 President Bush=01,s Energy Plan.
Philadelphia Inquirer Article

In January, CAEM appeared on CNN to discuss the California Crisis. CNN Li= nk

Feel free to forward this email to colleagues who may be interested in the= =20 Center's activities.? For other information and documents, please visit o= ur=20 website at <http://www.caem.org>

Please let us know if we can be of assistance to you in your efforts on =20 energy restructuring.

If you do not wish to receive updates on CAEM=01,s Activity, please reply w= ith =20 the word "remove" in the subject line. Thank you. ?

Ken Malloy President Center for the Advancement of Energy Markets 5765-F Burke Center Parkway (PMB333) Burke, VA 22015-2233 o 703-250-1580 f? 248-928-5040 e kmalloy@caem.org w <http://www.caem.org>

? - new logo16.bmp

Message 386 of 1299

Utilities, Electric: Deregulation: SoCal Ed To Consider Litigation

Sender	miyung.buster@enron.com
Recipients	[' steven.kean@enron.com ', ' nicholas.o'day@enron.com ', ' filuntz@aol.com ', ' liz@luntz.com ']
File	dasovich-j/all_documents/1911.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 09/29/2000 03:12 PM

djcustomclips@djinteractive.com 09/26/2000 02:00 PM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: SoCal Ed To Consider Litigation To Recover Power Costs

[IMAGE] SoCal Ed To Consider Litigation To Recover Power Costs ? 09/26/2000 Dow Jones Energy Service (Copyright (c) 2000, Dow Jones&Company, Inc.)

LOS ANGELES -(Dow Jones)- Southern California Edison said if the state's Public Utilities Commission doesn't allow the utility to recover about \$2 billion in unpaid power costs when a state imposed rate freeze is lifted it will consider litigation to ensure recovery of electricity costs, according to a filing made late Monday with the Security and Exchange Commission.

"The CPUC has denied requests by (Southern California Edison) and other California utility companies to allow recovery of the transition revenue account undercollections after the end of the statutory rate freeze," the SEC filing states. "These decisions pre-dated the unforeseen run-up in wholesale market prices beyond the level of prices that should have been produced by functioning competitive markets."

SoCal Edison consumers are currently paying a fixed rate for electricity as required by the state's landmark 1996 deregulation law, which is far below the 20 cent/KWh wholesale rate SoCal Edison pays to procure the power from energy producers. As a result, the company's debt is growing by several million dollars a day.

If the company is unable to recoup the money from its ratepayers, shareholders would be responsible for the costs, said SoCal Edison chief financial officer John Scilacci.

The company would go to court seeking authority to have its customers pay back the debt, if required, rather than hold its shareholders liable, Scilacci said.

SoCal Edison said in the SEC filing that it has used "virtually all of its CPUC-authorized capacity for short-term borrowing."

The utility is restructuring its loan arrangements to allow for additional "short-term borrowing capacity to meet its liquidity needs."

The utility has recently received a negative rating from several Wall Street debt rating agencies.

-By Jason Leopold; Dow Jones Newswires; 323-658-3874;jason.leopold@dowjones.com

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 95

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 387 of 1299

RE: OAT Valuation Model

Sender	jeff.dasovich@enron.com
Recipients	['asama@yahoo.com']
File	dasovich-j/all_documents/11171.

Having worked with you on the Perfect project, I now know that your power point skills are legendary. Would you mind volunteering to coordinate putting all the stuff in to power point?

Anil Sama <asama@yahoo.com> 04/16/2001 04:24 PM

To: "Vavrek, Carolyn \ (US - San Francisco)" <cvavrek@deloitte.com>, Jeff.Dasovich@enron.com, "Mark Guinney" <Mark_Guinney@watsonwyatt.com> cc: Subject: RE: OAT Valuation Model

Nice job Jeff! I can meet Tuesday evening, Sat PM, or Sunday. -Anil "Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> wrote: Jeff - Thanks for putting so much work into this. Excellent job!

I agree that we should figure out when we can meet again. I can meet tonight, during break on Tuesday and basically anytime on Saturday or Sunday. During break on Thursday I volunteered to help Diane with a new student's reception, but I can cancel that if need be. What does everyone else's schedule look like?

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@ENRON.com [mailto:Jeff.Dasovich@ENRON.com] Sent: Monday, April 16, 2001 8:56 AM To: 'asama@yahoo.com'; 'Mark Guinney'; Cvavrek Subject: OAT Valuation Model

----- Forwarded by Jeff Dasovich/NA/Enron! on 04/16/2001 10:53 AM -----

Jeff Dasovich

Sent by: Jeff To: "Sama, Anil"

Dasovich cc: "asama@yahoo.com", Jeff.Dasovich@enron.com, "Mark Guinney"

04/16/2001 Subject: OAT Valuation Model(Document link: 10:52 AM Jeff Dasovich)

OK folks. It's about 80% of the way there. My brains are oozing out looking at cells, so I want to get this around so Mark can get started on refining assumptions and other folks can examine as well. I'll continue to check it and de-bug it. Mark, you and I should talk, too. (You'll note that at this point, the valuation is in the \$30s, so there's work to do.) Apologies in

advance for any errors (and I'm sure they're there).

If anyone has any questions on the model, just let me know.

I think we ought to get together to meet this week as much as possible to start getting the power point presentation together. And perhaps we should think about meeting this weekend?

In the meantime, I'm pulling together the data on Buffet (Berkshire Hathaway) stock performance, etc., and will also do the financial ratios, including Dupont, for OAT.

Does this work for folks? Other thoughts?

Best, Jeff (See attached file: OAT Valuation 0416.xls)

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Message 388 of 1299

FW: FERC Orders Cost-Based Price Caps for California

Sender	james.steffes@enron.com
Recipients	['=20', 'jeff.dasovich@enron.com', 'robert.neustaedter@enron.com']
File	dasovich-j/notes_inbox/3786.

----- Forwarded by James D Steffes/NA/Enron on 04/30/2001=

=20 04:56 PM -----

James D Steffes 04/26/2001 07:55 PM To: Janel Guerrero/Corp/Enron@Enron cc: =20

Subject: FW: FERC Orders Cost-Based Price Caps for California

Janel --

Pls include this CERA study in Lay's California briefing book. =20

Also, in the study CERA mentions another study we should include (pls ask =20 Joan Stransky to get it from CERA) - Beyond California's Crisis: Impact, =20 Solutions, and Lessons.

Jim

----- Forwarded by James D Steffes/NA/Enron on 04/26/2001=

=20 07:52 PM ----- From: Chip Schneider/ENRON@enronXgate on 04/26/2001 05:06 PM To: Christopher F Calger/PDX/ECT@ECT, Tim Belden/HOU/ECT@ECT, Greg =20 Wolfe/HOU/ECT@ECT, James D Steffes/NA/Enron@Enron cc: =20

Subject: FW: FERC Orders Cost-Based Price Caps for California

CERA report, followed by CSFB report.

-----Original Message-----

From: Paul Patterson <Paul_Patterson@xmr3.com>@ENRON=20

[mailto:IMCEANOTES-Paul+20Patterson+20+3CPaul+5FPatterson+40xmr3+2Ecom+3E+4= 0EN

RON@ENRON.com]=20 Sent: Thursday, April 26, 2001 7:34 AM To: Schneider, Chip Subject: FERC Orders Cost-Based Price Caps for California

Credit Suisse First Boston Paul Patterson Good morning, ? Last night, FERC voted 2-to-1 to approve a California market mitigation= =20 order, which will impose cost-based wholesale price restrictions in=20 California, during periods of Stage 1, 2, and 3 emergencies. The caps will = be=20 in effect from May 1, 2001 to May 1, 2002 and determined on a day-ahead bas= is=20 by the California ISO, based on generators=01, marginal costs. ? Sellers with participating generator agreements will be required to offer= =20 all available power in the real time market. All generators, including thos= e=20 not regulated by FERC, will be required to sell into the ISO as a condition= =20 for using the ISO=01,s interstate transmission lines. ? The order only focuses on wholesale prices in California. It directs the= =20 ISO to file an RTO proposal by June 1 and the utilities to adopt demand=20 reduction mechanisms. It also establishes an agency investigation into=20 potentially unreasonable prices in the Northwest region. ? We view FERC=01,s order as a relatively mild one and would caution invest= ors=20 not to expect overly large reductions in California=01,s power prices, alth= ough=20 some decline should occur. ? Although we believe most generators would still earn quite attractive=20 returns, clearly the marginal cost approach of the least efficient plant wi= ll=20 advantage lower-cost base load plants over higher-cost peakers.

Please call us with any questions. Regards, Paul Patterson, 212-325-5876 Neil Stein, 212-325-4217 Wen-Wen Chen, 212-538-0223

If you would prefer not to receive further messages from this sender, pleas= e=20 click on the following link and confirm your request: Mailto:K-0-62573-1170290-2-165-US2-F7D90303@xmr3.com You will receive one additional e-mail message confirming your removal.

- ppp042601.pdf

Message 389 of 1299

Re: FINAL VERSION

Sender	spiller@haas.berkeley.edu
Recipients	['john_chandley@lecg.com', 'tyson@haas.berkeley.edu', 'tom_campbell@law.stanford.edu', 'teece@haas.berkeley.ed...]
File	dasovich-j/all_documents/8644.

colleagues:

we are less than 2 hrs short of the press conference. i just got to the computer and saw all these e-mails. i will suggest we take our local nobel prize winner's suggestion and go, for the time being, as is. we simply do not have the time to incorporate changes without violating the need for consensus. We will release the manifesto at 11am PST, at the press conference that is going to take place here at haas. Those of you from the east coast, feel free to release it at any time. Those in the west coast, i would suggest that we do not release it until 11am, but feel free to talk to whoever you want about it.

The version of the manifesto that is going to be released is the version that we sent yesterday afternoon incorporating the excellent comments by paul. also is the version that includes the list of endorsees as of the time.

if you haven't received the copy, please let me know.

thanks.

pablo

At 11:54 AM 1/26/01 -0500, John_Chandley@LECG.com wrote:

1. Is the document out? Or are we still making changes? 2. Is the "embargo" over? 3. When can we get the final, final, final for further distribution? John David Teece <teece@Haas.Berkeley.EDU> on 01/25/2001 05:54:00 PM To: tyson@haas.berkeley.edu, tom_campbell@law.stanford.edu, shmuel@euler.berkeley.edu, willrichm@aol.com, george_barker@lecg.com, cdanner@wilkandassociates.com, gilbert@econ.berkeley.edu, yellen@haas.berkeley.edu, scott_harvey@lecg.com, jscadding@wilkandassociates.com, spiller@haas.berkeley.edu, mwilk@wilkandassociates.com,

phillip_mcleod@lecg.com, berk@haas.berkeley.edu, john_chandley@lecg.com, jdasovic@enron.com, lfried@uclink.berkeley.edu, william_hogan@harvard.edu, rmichaels@fullerton.edu, borenste@haas.berkeley.edu, richard.rumelt@anderson.ucla.edu, rschmidt@lecg.com, pverleger@compuserve.com, pjoskow@mit.edu, jim.sweeney@stanford.edu, joseph.mullinix@ucop.edu, mcfadden@econ.berkeley.edu, steven@stoft.com, jim.sweeney@stanford.edu cc: peter.gosselin@latimes.com Subject: FINAL VERSION Dear Colleagues, Here is the FINAL version of the manifesto. This version includes some additions and deletions to bring on Paul Joskow and Janet Yellen, and hopefully Severin Borenstein as well. Also attached is a list of endorsements Pablo and I have secured. If you are not on the list and wish to be added, please let us know. Critically, let us know if you wish to be removed. We are picking up new endorse by the hour and will release by 9:00 am (PST) tomorrow. David Teece and Pablo Spiller (See attached file: Manifesto DJT 1-25-01.doc) (See attached file: endorsee list 12501.doc) ===== David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930 University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826 http://haas.berkeley.edu/~imio
=====

Message 390 of 1299

FW: A.00-11-038 et al. ABAG POWER Petition for Modification of D.

Sender	harry.kingerski@enron.com
Recipients	['james.steffes@enron.com', 'susan.mara@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11884.

-----Original Message-----

From: Kingerski, Harry Sent: Monday, July 16, 2001 5:06 PM To: 'JBennett <JBennett@GMSSR.com>@ENRON'; Jeff Dasovich (E-mail); Jim Steffes (E-mail); Sue Mara (E-mail) Subject: RE: A.00-11-038 et al. ABAG POWER Petition for Modification of D. 01-05-064

I think ABAG has a good point and the principle is one we are also trying to establish - if you weren't using DWR power, you shouldn't have to pay for it. But I wonder if Enron's endorsement of ABAG's petition wouldn't contaminate it. I think we should let them win on the merits of their own argument and use their success (if it occurs) as precedent for our position on similar issues.

Also, there is some downside if they win. Our customers were on the utility for those 3 months, and are now off - the direct opposite of the situation ABAG is in. So if they escape the burden of the 3 month surcharge, it would (should) be reimposed on customers who were on the utility at that time - which in theory could include our customers, even though they are back on DA and otherwise exempt from the surcharge.

So while I think we want them to win, like always, its hard to figure if that's good or bad so let's just stay out.

-----Original Message-----

From: JBennett <JBennett@GMSSR.com>@ENRON
[mailto:IMCEANOTES-JBennett+20+3CJBennett+40GMSSR+2Ecom+3E+40ENRON@ENRON.com] Sent: Monday, July 16, 2001 11:43 AM To: Kingerski, Harry; Jeff Dasovich (E-mail); Jim Steffes (E-mail); Sue Mara (E-mail) Subject: FW: A.00-11-038 et al. ABAG POWER Petition for Modification of D. 01-05-064 Importance: High

Attached is a petition for modification of Decision 01-05-064 (the rate design decision) filed by the Association of Bay Area Governments. The Petition requests that the decision be modified to exempt customers which were direct access for the period of March through May 2001 from the 12 month procurement surcharge which is designed to allow the utilities to collect the three cent increase authorized by the March decision which then did not go into effect until June (i.e., collect the revenues foregone due to the time lag in implementation).

Given the fact that most of Enron's customers were on bundled service during the March-June time frame, I do not believe that the requested modification would provide them any benefit. Let me know if I am wrong on this and if Enron wants to chime in in support of ABAG's petition.

Jeanne Bennett

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Friday, July 13, 2001 5:31 PM To: Subject: Re: A.00-11-038 et al. ABAG POWER Petition for Modification of D.01-05-064 Importance: High

Attached for your information is a copy of the Petition for Modification of D.01-05-064 filed today by ABAG POWER. Copies have also been sent to all parties on the service list by U.S. Mail.

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com

- 7-13-01 Petition for Modification of D.01-05-064 - Final.doc << File: 7-13-01 Petition for Modification of D.01-05-064 - Final.doc >>

Message 391 of 1299

New Interest Rates and Loan Consolidation

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu, 'evstaff@haas.berkeley.edu']
File	dasovich-j/all_documents/13484.

Delete if you are an international student or a domestic student not interested in Federal financial aid.

The interest rates on Federal education loans are variable and change on July 1, based on the 91-day T-Bill rate from the last Treasury auction in May plus a statutory percentage add-on (1.7% in-school, 2.3% in repayment). That auction was on May 29, 2001, with a rate of 3.688%, which rounds to 3.69%. According to the formula, the new applicable interest rates are as follows effective July 1:

In-School Rate Repayment Rate Direct Loans 5.39% 5.99%

Thus, interest rates have dropped by 2.2% and are lower than they have been in many years. Students who have not yet consolidated their federal loans should consider consolidating after July 1 in order to lock in these low rates, even (especially) if they are still in school. Consolidation is an optional process wherein the rate is a weighted average interest rate of the loans being consolidated, rounded up to the nearest 1/8th of one percent. This interest rate becomes fixed for the life of the consolidated loan.

According to Mark Kantrowitz, publisher of FinAid.com, "a student with \$16,000 in debt who consolidates at 6.0% (5.99% rounded up to the nearest 1/8th of a point) will save \$2,233.52 over the lifetime of the loan compared with consolidating at 8.25% (8.19% rounded up to the nearest 1/8th of a point). If the student consolidates while still in school to take advantage of the in-school rate, the rate used will be 5.5% (5.39% rounded up to the nearest 1/8th of a point), and will yield an additional savings of \$478.93 for a total savings \$2,712.45 over the lifetime of the loan.

"Caveat: It is possible that the Fed will continue to cut interest rates and that this will continue to be reflected in auction results, so that next May the rates will be even lower. But there is also the risk that the Fed rate cuts will end, and that the rates next May will be higher. Given that the current rates are the lowest in many years and the savings already substantial, the safest course of action is to consolidate after July 1, 2001 and before June 30, 2002."

However, if you are planning to consolidate I would suggest doing so before September 30, 2001 to take advantage of an additional 0.8% interest rate reduction. Refer to the first attached Word file for details on this and the consolidation process.

It is not too late to apply for 2001-2002 federal student loans If you are a U.S. citizen or permanent resident and are interested in borrowing a 5.39% Direct Loan, you may still apply by following the instructions in the second attached Word file.

This may seem complicated to you, but the attachments really do answer your questions, so please read them thoroughly before e-mailing me.

Regards- debi

- Loan Consolidation Eve June 2001.doc - 2001 haas fafsa guide eve.doc

debi fidler Director of Financial Aid for MBA Programs Haas School of Business, S420C University of California, Berkeley
Berkeley, CA 94720-1900 voice (510) 643-1680 fax (510) 643-6659

Message 392 of 1299

RE: IEP Ad Copy for March California Journal

Sender	abb@eslawfirm.com
Recipients	['tpahos@ppallc.com', 'sgovenar@govadv.com', 'rtom@govadv.com', 'kaplan@iepa.com', 'roger.pelote@williams.com']...
File	dasovich-j/all_documents/8435.

I'd suggest keeping the distinction b/w what the membership is doing ("our members are investing ...") and what IEP is doing. There's a couple of lines that muddle the distinction and make it sound like the association is building things. ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 <mailto:abb@eslawfirm.com>

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-----Original Message-----

From: Katie Kaplan [<mailto:kaplan@iepa.com>] Sent: Monday, January 22, 2001 6:01 PM To: Theo Pahos; Roger Pelote; Andy Brown; B Brown Andy; Baker Carolyn; Bob Escalante; Bob Weisenmiller; Curtis Kebler; Douglas Kerner; Greg Blue; Jan Smutny-Jones; Jean Munoz; Jeff Dasovich; Joe Ronan; John Larrea; John Stout; Julee Malinowski-Ball; Cassandra Gough; Katie Kaplan; kent Palmerton; Kristin Vellandi; Lynn Lednicki; Marty Wilson; McNally Ray; 'Nam Nguyen'; Norton Kelli; Paula Hall-Collins; Pigott Jack; Richard Hyde; Rob Lamkin; Stephanie-Newell; Sue Mara; Tom Ross Cc: Susan McCabe; Scott Govenar; Ron Tom; Robert Ross; Phil Isenberg; Mike Monagan; Maureen OHaren; marie moretti; Hedy Govenar; DJ Smith; Delany Hunter; Chuck Cole; Anne Kelly Subject: IEP Ad Copy for March California Journal

Greetings: In all of the craziness this morning with getting items out I neglected to attach the below Ad copy for the March California Journal. This is just the copy and as soon as it is approved we will send out the full ad copy with graphics. Please review this and keeping with our 48-hour review period please send any comments back to me by 9:00 a.m. PST on Thursday, January 25, 2001. Thank you for taking the time to review this. Please let me know if you have any questions.

Under Construction [headline]

No major power plants have been built in California for the past ten years. While population has increased 16% and the peak demand for electricity has Surged 15% (33% in Silicon Valley), power generation has inched up only 2%.

But things are changing.

Our member companies have already invested billions of dollars to buy and modernize California's vintage power plants, many of which date back to the Korean War. We're spending billions more to build new plants. (Six are already under construction. Three more have been approved. Eleven more are under review.)

Instead of risking tax money, we're using private-sector dollars to build and run our plants - to power California's economy into the future with clean, reliable and affordable electricity.

We're part of the solution.

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

Message 393 of 1299

RE: Draft program

Sender	jeff.dasovich@enron.com
Recipients	['gramlr@pjm.com']
File	dasovich-j/sent/87.

Do you mind if I meet with Carl and Severin and Rich next time I'm over at Haas to discuss this a bit with them?

gramlr@pjm.com on 08/31/2000 07:27:25 AM To: hcameron@uclink.berkeley.edu, gramlr@pjm.com, whederman@columbiaenergygroup.com, doornbos@socrates.berkeley.edu, amosher@appanet.org, lfried@uclink.berkeley.edu, jeff.dasovich@enron.com cc: Subject: RE: Draft program

Tomorrow at 4 EDT sounds good to me but I'm not sure we're ready. I'd like to make sure all of our sponsors like the idea of coordinating with IBER and UCEI. What say you, sponsors? The co-sponsorship decision affects our decisions on place, topics, and speakers, because IBER and UCEI would need to get involved right away.

I spoke with Borenstein last night. Shapiro's initial idea was exactly what we're planning. They appreciate and respect the fact that we've done most of the legwork. They'd like to be part of it and it sounds like they would consider it a favor if we included them. IBER has a subgroup called the Competition Policy Center which is a program meant to exploit the incredible concentration of antitrust economists at UC Berkeley. I can certainly imagine ways the school could benefit from a stronger connection with CPC and UCEI, who are so widely respected and are doing public policy. If Lee thinks its worth potentially losing a bit of limelight on this conference for the long run benefits of building resources and connections on campus, I'm all for it. Rob

-----Original Message----- From: Heather Cameron [SMTP:hcameron@uclink.berkeley.edu] Sent: Wednesday, August 30, 2000 6:48 PM To: gramlr@pjm.com; whederman@columbiaenergygroup.com; doornbos@socrates.berkeley.edu; amosher@appanet.org; lfried@uclink.berkeley.edu; jeff.dasovich@enron.com Subject: Re: Draft program Dear All, After listening to the various viewpoints and concerns expressed in our last conference call, I believe that the panel options listed in Option 3 of Rob's draft might be most effective in producing the type of discourse that we are seeking. I propose that we schedule a conference call for this Friday afternoon, September 1, at 4PM EDT. I mentioned that I have reserved the Krutch Theater (max.capacity 375) for the week of November 13-17. I have since been informed that I can only hold the whole week through Wednesday, September 6, therefore, it will be important to narrow the options down very soon if we can. Best wishes, Heather At 06:44 AM 8/30/00 -0400, gramlr@pjm.com wrote: >Shall we try to talk again Monday? I think I will talk to Borenstein to

see

>what the Haas folks have in mind. > >I tried to capture everyone's comments. Allen, you might want to explain more >about your panel suggestions since I didn't do them justice. As you'll

see I

>took the liberty of offering a new characterization of the panels that I >didn't >bring up on the call. Everything on there is offered as a strawman to be >criticized and changed. >Rob <<Draft program.doc>> > >Rob Gramlich >PJM Market Monitoring Unit >(610) 666-4291 >gramlr@pjm.com > > Heather Cameron, Events Coordinator The Richard & Rhoda Goldman School of Public Policy University of California, Berkeley 2607 Hearst Avenue Berkeley, CA 94720 Tel: 510-642-9437 Fax: 510-643-9657 GSPP home page: <http://gspp.berkeley.edu>

Message 394 of 1299

Re: Outline memo for paper on rules changes in other markets

Sender	robert.hemstock@enron.com
Recipients	['steven.kean@enron.com', 'aleck.dadson@enron.com', 'seabron.adamson@frontier-economics.com', 'richard.shapiro...']
File	dasovich-j/all_documents/3769.

Seab/Sabine,

Sorry for the delay in getting back to you on this important issue. The three rule changes or designs in other markets you describe look very good and are right on point. I would like to add two more to your list, namely:

1) Price caps in California

Attached is a one page memo from my colleague in California, Jeff Dasovich. Consistent with Jeff's first two points, Steve Kean has told me that in addition to chasing existing power supplies out of the state, price caps, and the uncertainty surrounding them, chase new generation away. The turbine market is a worldwide market. Firms will have difficulty committing their own capital (and borrowing from others) if they propose to put facilities in jurisdictions where rates are capped or pricing is based on something other than the operation of the market. Several generators, including Dynegy and Calpine, have said they will look for other homes for the turbines they have ordered. I have a Nov 10, 2000 Megawatt Daily article that quotes Enron and Calpine as saying that price caps in California drove both companies to withdraw proposed plants.

I recognize there is presently no price cap proposal in Alberta but I think we can draw the connection between interference through caps and interference through other forms of administrative intervention that are being considered in Alberta such as: 1) price discrimination on imports, or 2) the latest proposal I heard today from the Power Pool which is capping import offers into the Power Pool at Mid-C prices plus transmission costs.

2) FERC Staff Report on Midwest that apparently states on pages 2-15 that some market participants believe that developers sited new generation in the Midwest because there were no price caps (see attached FERC Report).

As we discussed, I will be using this information in upcoming meetings (this Friday is the next one) with the Power Pool and the Alberta Gov't in support of Enron's arguments that policy makers in Alberta must "stay the course" through the higher priced periods, failing which they will make things much worse.

In view of the fact it is U.S. Thanksgiving could you please give me a sense of Sabine's timing on this.

Regards,

Rob

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 11/20/2000 10:39:39 AM To: <Robert.Hemstock@enron.com> cc: "Sabine Schnittger" <sabine.schnittger@frontier-economics.com>, "Kevin. Wellenius" <kevin.wellenius@frontier-economics.com> Subject: Outline memo for paper on rules changes in other markets

Rob:

Please see attached. Can we discuss later today?

Seab

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

- 00-11-20 SA Memo on paper with rule change example paper outline.doc

Message 395 of 1299

Re[2]: HD Case: Proposed Plan

Sender	mark_guinney@watsonwyatt.com
Recipients	['cvavrek@deloitte.com', 'chin@haas.berkeley.edu', 'sama@haas.berkeley.edu', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/8929.

Jeff, I assume you can coordinate a conference call from work. Call me at home: 415-388-2548.

Excellent points and I was thinking along similar lines. Questions I have:

How do you know that LT debt gives more advantageous terms? We have no yield curve info nor do we know their credit rating. At what point does their borrowing exceed their covenants? Is our strategy to not raise the required \$66million or to stop/slow PPE spending so that the \$66m is not needed?

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

_____Reply Separator_____ Subject: Re: HD Case: Proposed Plan Author: Jeff.Dasovich@enron.com Date: 02/07/2001 11:25 AM

Hi folks:

Since we have only one page, the write up for number 4 will have to be very brief. Before writing it, though, I wanted to offer a few bullets regarding what angle we might take, and let folks respond, comment, counter, etc. before writing it up. I'll clean and beef up once we've agreed to the approach we'd like to take to question #4. Finally, I can work from my office on this this evening, which means that I can use the conference call capability of my office phone to patch everyone in if we'd like to do a conference call. If that's what folks would like to do, I'd prefer to do the call at around 7 PM. Just let me know.

Best, Jeff

The question for #4 is:

Stock price is down 23%, significant debt has already been tapped to support massive growth and covenants on that debt restrict taking on a lot more debt.

What should HD do w.r.t. current operations and future growth strategy? In the near term focus less on growth and more on getting margins and EBIT growth back in line with results from previous years. (Management's Letter to Shareholders alludes to this, but it's difficult to determine whether management is just paying lip service to the need to capitalize on the growth spurt and grown earnings, or continue on the growth effort.)

With respect to funding future (more moderate growth), the company does have some room to increase long-term debt (e.g., current ratio for 1986 = 2.26). It seems that HD would get better terms and have increased flexibility by issuing additional debt rather than relying on lines of credit. As such, HD ought to look those sources of funding and fill in any "funding gaps" with funds from the line of credit.

Given the significant drop in stock price, HD is likely better off in the near term 1) moderating growth, 2) improving performance to generate cash internally, and 3) using long-term debt issuance to provide the funds needed. Once performance and stock price improves, then HD should consider a stock issuance.

How can company improve operating performance? Reduce selling, store operating expenses and pre-opening expenses Improve receivables turnover Improve inventory turnover Improve per store/sales Consider closing poor-performing stores

All of which will improve margins

Should company change its strategy? If so how? Shift from meteoric growth to moderate, targeted growth, and focus on generating positive cash flow from operations Focus on improving performance at existing stores; specifically focus on controlling costs and asset turnover and productivity Consider another debt issuance rather than rely extensively on credit line in order to decrease cost of funds and increase flexibility

Message 396 of 1299

RE: Meeting with Perfect Commerce

Sender	jeff.dasovich@enron.com
Recipients	['cameron@perfect.com']
File	dasovich-j/sent_items/714.

give me 3 dates (very soon) and promise that you won't cancel, change, modify, reschedule, delay, postpone, or amend. I'll find out which one works.

when you leaving for NYC? the movie sounded VERY funny (from the riotous laughter i heard). and those menus really do look good--maybe you could get by by giving your mom that piece of things (with your OK, of course) and that would make her feel like she's got a chunk of the event and it could leave you guys with the freedom to do all the other stuff. just a thought.

i'm very excited but not altogether hungry.

best, Jeff

-----Original Message-----

From: Cameron Sellers [mailto:cameron@perfect.com] Sent: Monday, October 22, 2001 1:48 PM To: Dasovich, Jeff
Subject: RE: Meeting with Perfect Commerce

Have you heard anything back on potential dates to meet. I am in NY until November 11th, so any date after that would be great!

Sorry you couldn't watch the movie last night - it was pretty funny.

Hope you are excited about the meat pie for dinner. Won't that be a treat???

-C

Cameron Sellers Vice President, Business Development PERFECT 1860 Embarcadero Road - Suite 210 Palo Alto, CA 94303 cameron@perfect.com 650.798.3366 (direct dial) 650.269.3366 (cell) 650.858.1095 (fax)

-----Original Message-----

From: Dasovich, Jeff [mailto:Jeff.Dasovich@ENRON.com] Sent: Wednesday, September 26, 2001 1:57 PM To: Piper, Greg; Richter, Brad Subject: Meeting with Perfect Commerce

Greg: Good talking to you. Congratulations on your new role. Sounds exciting (in addition to exhausting).

Based on our call, I contacted Perfect Commerce. The two folks from their shop that will be in Houston are:

Ian Sullivan SVP, Professional Services and all implementation of the product

Cameron Sellers VP, Business Development

They'd like to meet sometime during the week of October 15th. Let me know if that works for you and Brad. Or if you'd like to contact them directly, just let me know and I'll get you their numbers/emails.

I ran across Perfect when I was doing an MBA project--we were required to find a company that we could consult to on e-commerce strategy.

I've since found out that Perfect's doing a pilot with EES--acting as the e-procurement platform for products tied to EES' outsourcing deals. From what I hear it's going well, and EES is enthusiastic.

The technology is very interesting: soup to nuts e-procurement platform developed by Paul Milgrom (global auction guru and economist at Stanford). Glad you guys can meet with them. I think it's definitely worth the time--the technology may fit very well with Networks.

Best, Jeff

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Message 397 of 1299

NEWS: Summary of SB 1x hearing 4-30 -- Windfall Profits Tax

Sender	jennifer.rudolph@enron.com
Recipients	[ca.team@enron.com]
File	dasovich-j/all_documents/12000.

* from Govt Affairs * hearing was Mon, Apr 30

----- Forwarded by Jennifer Rudolph/HOU/EES on 05/03/2001

10:41 AM -----

Susan J Mara@ENRON 05/01/2001 07:30 PM

----- Forwarded by Susan J Mara/NA/Enron on 05/01/2001 05:27 PM -----

"Chris Micheli" <cmicheli@carpentersnodgrass.com> 04/30/2001 06:19 PM

As you may know, SB 1x (Soto/Scott) passed the Senate Appropriations Committee by an initial vote of 7-3 (the bare minimum). Senator Soto said that the Legislature must make a "bold proposition" with this bill. She said that this experience is "like no consumer has been gouged before." The Legislature must cap rates. This bill guarantees a generous profit to generators. Senator Scott said that these generator profits have been gained off of consumers. According to FERC, over \$500 million in excess profits have been reaped. Californians have been "royally mistreated" by generators. This "money has left the state (to Texas and other places)." This bill is the only solution. The PUC can change the \$80 rate. Based upon the January Field Poll, Californians support this concept. We have to "stand up to the generators and say no more." Supporters were: TURN and CTRA (Lenny Goldberg). Lenny said that the FERC will not give any relief to CA ratepayers, so the Legislature has to. This bill needs to be combined with the power authority by Senator Burton to hold prices down. Other supporters of the bill included: Congress of CA Seniors; CalPIRG; CA Consumer Federation; CA Labor Federation; SEIU; Public Power Now. SEIU (public employee union) said that this bill is "the only way to put caps on rates." Opponents were CMTA ("this is the wrong medicine for solving the problem"); WSPA (does nothing to resolve the shortage of energy; we should be doing bills to stimulate greater investment in supply); InterGen said that they are looking at California market, but will not build with this bill out there. CA Wind Energy Assn (QFs oppose this bill because the rate is too low); and IEP (most productive answer to our problem is the build power plants). Senator Battin said that the price cap is lower than some of the Governor's long-term contracts at \$86 per hour. Senator Scott said that the munis are, indeed, covered by the bill. He also said that the PUC can change the rates contained in this bill. Scott also said that the PUC can exempt renewables under the bill. Senator Bowen stated that the \$80 figure should be removed from the bill

("this price may be inappropriate"). She suggested using the "FERC proxy price." She suggested that they look at an exemption for contracts with the state. She saw no reason to exempt the renewables because they would make a bundle with an \$80 cap. Senator Poochigian said he was concerned about the majority vote issue (because this bill is allegedly revenue neutral). Scott said all of the money raised by the bill will go to ratepayers. He said that Legislative Counsel gave him an opinion (I don't know if it is written or verbal) that this scheme was permitted. Poochigian said it was ironic that the PUC was being given the authority to set rates under this bill. Senator Scott stated that they would take as an author's amendment to exclude all long-term contracts from the provisions of this bill. Next stop for the bill is the Senate Floor.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA 95814 (916) 447-2251
FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 398 of 1299

FW: Power Authority info

Sender	alan.comnes@enron.com
Recipients	['paul.kaufman@enron.com', 'susan.mara@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/212.

We should talk to commercial people and amongst our group to see if/how we should cover this new found agency. GAC

-----Original Message-----

From: Susan R. Schneider [mailto:schneider@rsvl.net] Sent: Saturday, September 15, 2001 12:22 AM To: schneider@rsvl.net Subject: Power Authority info

5061 Knightswood Way Granite Bay, CA 95746 Phone (916) 797-3106 A California Limited Liability Company

How to have information about the new California Power Authority delivered directly to your e-mail address<?xml:namespace prefix = o ns = "urn:schemas-microsoft-com:office:office" />

QUICKLY, CONVENIENTLY, AND ECONOMICALLY

The California Power and Conservation Financing Authority (the "Power Authority") is an important new player in California's energy markets. Created by the State Legislature with \$5 billion in bonding authorization, the Power Authority has the ability to acquire generation, transmission, and demand-side resources to lower electricity prices to consumers.

The Authority plans to procure up to 3,000 MW of resources for operation next summer, with a longer-term target of close to 5,000 MW (greater than the peak demand of San Diego Gas and Electric). Already, the Authority has received proposals for over 115 generation and conservation/load management projects, and competitive RFPs are planned in the near future for central-station and on-site photovoltaics, central-station solar thermal plants, fuel cells, and micro-turbine resources. A proposed Bolivian LNG project could also make the Authority a major gas-market participant (up to 1.5 Bcf/d).

Clearly, this new agency will have a significant impact on California's energy markets. The pace of activities will be very fast, and staying informed will be critical for anyone in the energy industry.

Generally, that will require multiple trips to Sacramento, numerous hours attending Power Authority meetings, and downloading and wading through technical and other documents. Phoenix Consulting is offering an economical and efficient alternative - a new service, California Power Authority Letter (CAL-PAL), that can save you that time and effort by sending timely, critical information directly to your e-mail address with no effort at all on your part.

Modeled after our popular KNOW THE ISO reporting/analysis service, CAL-PAL service will include:

(1) Advance notice of important Power Authority decisions; (2) Concise, accurate, plain-English reports about Power Authority meetings and documents (e.g., competitive RFPs), within 2 days; and (3) Free Phoenix Consulting services, such as information and advice about Power Authority issues or other aspects of California electricity and natural gas markets.

ALL THIS IS INCLUDED IN THE CAL-PAL SERVICE PACKAGE FOR LESS EACH MONTH THAN THE COST OF A SINGLE HOUR OF CONSULTING SERVICES.

Finding out more is quick and easy

To receive additional information about CAL-PAL service no cost or obligation to you, just click on the "Reply" and "Send" commands on your computer screen. We'll send you promptly a full description of CAL-PAL features, along with cost and other subscription information.

I look forward to hearing from you, and to being your "eyes and ears" at the Power Authority.

Susan Schneider Principal, Phoenix Consulting (916) 797-3106 office (916) 804-9514 cellphone

Message 399 of 1299

RE: Draft program

Sender	lfried@uclink4.berkeley.edu
Recipients	['hcameron@uclink.berkeley.edu', 'gramlr@pjm.com']
File	dasovich-j/notes_inbox/140.

I'm sorry that I can't make a conference call at this time, but if others can please go ahead without me and I'll catch up. Yes, I'm in favor on balance. I'd like GSPP (through Heather and Annette) to retain primary administrative control of all publicity.

Lee

-----Original Message-----

From: gramlr@pjm.com [mailto:gramlr@pjm.com] Sent: Thursday, August 31, 2000 5:27 AM To: hcameron@uclink.berkeley.edu; gramlr@pjm.com; whederman@columbiaenergygroup.com; doornbos@socrates.berkeley.edu; amosher@appanet.org; lfried@uclink.berkeley.edu; jeff.dasovich@enron.com Subject: RE: Draft program

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-----Original Message----- From: Heather Cameron [SMTP:hcameron@uclink.berkeley.edu] Sent: Wednesday, August 30, 2000 6:48 PM To: gramlr@pjm.com; whederman@columbiaenergygroup.com; doornbos@socrates.berkeley.edu; amosher@appanet.org; lfried@uclink.berkeley.edu; jeff.dasovich@enron.com Subject: Re: Draft program Dear All, After listening to the various viewpoints and concerns expressed in our last conference call, I believe that the panel options listed in Option 3 of Rob's draft might be most effective in producing the type of discourse that we are seeking. I propose that we schedule a conference call for this Friday afternoon, September 1, at 4PM EDT. I mentioned that I have reserved the Krutch Theater (max.capacity 375) for the week of November 13-17. I have since been informed that I can only hold the whole week through Wednesday, September 6, therefore, it will be important to narrow the options down very soon if we can. Best wishes, Heather At 06:44 AM 8/30/00 -0400, gramlr@pjm.com wrote: >Shall we try to talk again Monday? I think I will talk to Borenstein to see

>what the Haas folks have in mind. > >I tried to capture everyone's comments. Allen, you might want to explain more >about your panel suggestions since I didn't do them justice. As you'll

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>took the liberty of offering a new characterization of the panels that I >didn't >bring up on the call. Everything on there is offered as a strawman to be >criticized and changed. >Rob <<Draft program.doc>> > >Rob Gramlich >PJM Market Monitoring Unit >(610) 666-4291 >gramlr@pjm.com > > Heather Cameron, Events Coordinator The Richard & Rhoda Goldman School of Public Policy University of California, Berkeley 2607 Hearst Avenue Berkeley, CA 94720 Tel: 510-642-9437 Fax: 510-643-9657 GSPP home page: <http://gspp.berkeley.edu>

Message 400 of 1299

Re: CAISO Notice: Market Notice re: Credit Issues

Sender	steve.hall@enron.com
Recipients	['susan.mara@enron.com', 'jalexander@gibbs-bruns.com', 'christian.yoder@enron.com', 'gfergus@brobeck.com']
File	dasovich-j/all_documents/11148.

By agreeing to pay only for "reasonable" offers, DWR left itself a loophole big enough to drive a truck through:

"DWR will assume financial responsibility for all purchases by the ISO in its ancillary services and imbalance energy markets based bids or other offers determined to be reasonable. Such determination of reasonableness will be made by DWR on a case by case basis and communicated to the ISO." (Emphasis added.)

Susan J Mara@ENRON 04/16/2001 09:06 AM To: Christian Yoder/HOU/ECT@ECT, gfergus@brobeck.com, jalexander@gibbs-bruns.com, James D Steffes/NA/Enron@Enron, Ray Alvarez/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Alan Comnes/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Michael Tribolet/ENRON@enronXgate, Steve C Hall/PDX/ECT@ECT, Jubran Whalan/HOU/EES@EES, Neil Bresnan/HOU/EES@EES, Tim Belden/HOU/ECT@ECT, Harry Kingerski/NA/Enron@Enron cc:

Subject: CAISO Notice: Market Notice re: Credit Issues

FERC finally got resolved what CA could not. I believe this also takes care of our credit issue on the ISO's demand response programs.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 04/16/2001 08:47 AM -----

"Fuller, Don" <DFuller@caiso.com> Sent by: "Happ, Susan" <SHapp@caiso.com> 04/13/2001 04:21 PM

To: ISO Market Participants

<IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISO+20MARKET+20PARTICIPANTS@caiso.com> cc: Subject: CAISO Notice: Market Notice re: Credit Issues

Market Notice re Credit Issues

In response to the FERC order of April 6, 2001 re the issue of creditworthiness, the California Department of Water Resources (DWR) has authorized the ISO to make the following statement. To the extent (and only to the extent) that a purchase is not otherwise paid by any party or payable by another party meeting the credit standards set forth in the ISO Tariff (another "Qualified Party"), DWR will assume financial responsibility for all purchases by the ISO in its ancillary services and imbalance energy markets based on bids or other offers determined to be reasonable. Such determination of reasonableness will be made by DWR on a case by case basis and communicated to the ISO. All bids into the ancillary services and imbalance energy markets will be deemed to be contingent on the acceptance of financial responsibility by DWR, to the extent not paid or payable by another Qualified Party. Unless a supplier is otherwise notified, any bid accepted by the ISO will be deemed to have the financial support of another Qualified Party or DWR as specified in this notice. In addition to the foregoing, DWR will assume financial responsibility for all purchases resulting from the issuance

by the ISO of emergency dispatch instructions, to the extent not paid or payable by another Qualified Party. Payment for such purchases shall be made according to the rate specified in the ISO Tariff for emergency dispatch instructions. The ISO and/or DWR reserve the right to rescind or modify the foregoing arrangements at any time and for any reason, including a successful rehearing or appeal from the April 6 order.

As the FERC determined in its February 14 order that DWR is a creditworthy counterparty, the ISO believes that the foregoing arrangements meet the requirements of FERC's April 6 Order. Accordingly, the ISO expects that suppliers will honor their obligations under the ISO Tariff and related agreements to respond to ISO dispatch instructions.

Don Fuller Director, Client Relations California ISO Phone: 916-608-7055 E-Mail: dfuller@caiso.com

Message 401 of 1299

PG&E Files Emergency Motion re URG Valuation

Sender	douglass@energyattorney.com
Recipients	[dpurdum@apx.com, 'ed@cazalet.com', 'berry@apx.com', 'tjohnso8@enron.com']
File	dasovich-j/all_documents/28301.

PG&E has filed the attached, Motion to Establish Final Market Valuation of Non-Nuclear Generating Assets Pursuant to Public Utilities Code Section 367. The motion requests that the Commission consolidate in the docket used for the recent rate stabilization decision the existing record of PG&E's remaining major non-nuclear generating asset market valuation proceedings and immediately adopt a final market valuation for all of PG&E's remaining non-nuclear generating assets. The market valuation dockets that would be consolidated in this proceeding include A.99-09-053 (hydroelectric assets); A.00-05-031 (Kern); and A.00-05-034 (Humboldt Bay).

The utility requests that this be done prior to establishing the revenue requirements and rates for PG&E's retained generating assets pursuant to the June 15 Chief ALJ's Ruling. That ruling set a hearing schedule for determining the revenue requirements of the three utilities related to retained generation, QFs, bilateral contracts, and ancillary services. PG&E asks that the Commission rule on its Motion as soon as possible and no later than July 19, so that PG&E and interested parties have the benefit of the ruling prior to the beginning of hearings on July 23, 2001.

PG&E argues that since the Commission has not completed market valuations for PG&E's generating assets, it therefore may not legally determine the value of those assets for ratemaking purposes until such time as those market valuations are complete. In fact, there has been no action whatsoever in PG&E's hydroelectric market valuation proceeding since January 22, when the Chief ALJ issued a ruling canceling a prehearing conference and public participation hearings, and extending the comment period on the draft environmental impact report.

The utility stresses that Section 367(b) of the PU Code requires the Commission to market value the utilities' generation assets no later than December 31, 2001, and that it has to be, based on appraisal, sale or other divestiture. They also note that AB 6 from the Legislature's First Extraordinary Session modified Section 377 to prohibit PG&E from selling any of its existing generating assets until at least January 1, 2006, and requires that those assets be dedicated for the benefit of California ratepayers. Since AB 6X precludes the Commission from valuing PG&E's generating assets by sale or divestiture, appraisal is the only lawful method.

PG&E concludes that effective January 1, 2002, its non-nuclear retained generation must be reflected in utility rates on the same basis as the market value determined for purposes of AB 1890 stranded cost computations. Therefore, the market valuations adopted by the Commission will have to be included in the consideration of URG ratemaking in this proceeding. The motion says that the valuations are also essential prerequisites to the determination of any amounts that might be made available under the current rate structure for payment to the DWR as provided for in AB 1X. PG&E concludes that market valuation of its retained generating assets is an essential

prerequisite to establishing their revenue requirement, which is = =20 hardly illogical.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 Tel:?? (818)
596-2201 Fax:? (818) 346-6502 douglass@energyattorney.com - 7-3-01 PG&E URG Motion.doc

Message 402 of 1299

Re: Background for Enron Solution to California's Electricity

Sender	karen.denne@enron.com
Recipients	['piper.cole@sun.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3383.

Piper -- Ken Lay will be in town on Thursday morning, and we'd like to have a meeting. It would be helpful to have a California CEO host the meeting and encourage other CEOs to attend. Do you think Scott would reconsider? In the event we find another venue, I'll be sure to pass along the information to you and Scott.

Thanks so much for your help.

Karen

Piper Cole -- VP Global Public Policy <Piper.Cole@sun.com> on 05/14/2001 12:15:12 PM Please respond to Piper Cole -- VP Global Public Policy <Piper.Cole@sun.com> To: piper.cole@sun.com, Jeff.Dasovich@enron.com, Piper.Cole@sun.com cc: Karen.Denne@enron.com

Subject: Re: Background for Enron Solution to California's Electricity Crisis--Follow up from Meeting on 5.10.01

Any update on a meeting or conference call on Thursday?

Piper

Date: Mon, 14 May 2001 10:12:10 -0700 (PDT) From: Piper Cole -- VP Global Public Policy <Piper.Cole@sun.com>
Subject: Re: Background for Enron Solution to California's Electricity Crisis--Follow up from Meeting on 5.10.01 To: piper.cole@sun.com, Jeff.Dasovich@enron.com Cc: Karen.Denne@enron.com MIME-Version: 1.0 Content-MD5: 5xj62t01/dxaF3DU/5w20g==

I forwarded it to him--you had "eng" twice--it should be only once.

Piper

From: Jeff.Dasovich@enron.com Subject: Background for Enron Solution to California's Electricity Crisis--Follow up from Meeting on 5.10.01 To: piper.cole@sun.com Cc: Karen.Denne@enron.com Date: Mon, 14 May 2001 12:07:10 -0500
X-MIMETrack: Serialize by Router on ENE-MTA01/Enron(Release 5.0.6 |December 14, 2000) at 05/14/2001 12:02:08 PM
MIME-Version: 1.0 Content-Disposition: inline

Hi Piper: The email I sent on Friday to Scott McNealy's address (listed below) got bounced back to me. Just wanted to make sure that you folks received the materials.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 05/14/2001 12:05 PM -----

Jeff Dasovich Sent by: Jeff To: scott.mcnealy@engeng.sun.com, Dasovich piper.cole@sun.com cc: Kenneth Lay/Corp/Enron@ENRON, skean@enron.com, Karen Denne/Corp/Enron@ENRON 05/11/2001 Subject: Background for Enron Solution to 08:32 PM California's Electricity Crisis--Follow up from Meeting on 5.10.01

Attached is additional background on the solution that Ken Lay discussed today and that Enron is proposing as a comprehensive solution to California's electricity crisis. If you have any questions, don't hesitate to contact me at 415.782.7822 or on my pager at 888.916.7184.

Best regards, Jeff (See attached file: California Electricity Solution 0510.doc)

/ _____ ^ Piper Cole / _____ \\ \\ Vice President, Global Public Policy / _____ \\ \\ Sun Microsystems, Inc. / _____ / V / / 901
San Antonio Road, MS PAL1-554 / _____ / / V ^ Palo Alto, CA 94303 \\ _____ V ^ / / \\ _____ / / ^ / Phone: 650/336-6633
\\ _____ / \\ \\ Fax: 650/336-0835 \\ _____ \\ \\ E-Mail: piper.cole@sun.com \\ _____ V http://www.sun.com/policy

/ _____ ^ Piper Cole / _____ \\ \\ Vice President, Global Public Policy / _____ \\ \\ Sun Microsystems, Inc. / _____ / V / / 901
San Antonio Road, MS PAL1-554 / _____ / / V ^ Palo Alto, CA 94303 \\ _____ V ^ / / \\ _____ / / ^ / Phone: 650/336-6633
\\ _____ / \\ \\ Fax: 650/336-0835 \\ _____ \\ \\ E-Mail: piper.cole@sun.com \\ _____ V http://www.sun.com/policy

Message 403 of 1299

Dan Walters' article from the Sacramento Bee, November 26, 2000.

Sender	joseph.alamo@enron.com
Recipients	['sandra.mccubbin@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/2045.

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Dan Walters: A power crisis imperils Davis (Published Nov. 26, 2000) Gov. Gray Davis would appear to be living a charmed political life. California's economy is soaring, the state's tax coffers -- and Davis' own re-election treasury -- are bulging, voters are in a complacent mood, and there have been none of the devastating disasters that plagued the state during the early 1990s. There is, however, a very dark cloud casting a shadow over Davis' governorship: the prospect of rolling blackouts as demand for electric power exceeds supply, accompanied by tremendous increases in Californians' power bills. And how Davis handles this incipient crisis could be the hallmark of his first term -- and, potentially, a re-election issue in 2002. San Diego utility customers were hit hard last summer as their local utility emerged from the mandatory rate freeze imposed by the state's 1996 utility deregulation scheme. Davis and the Legislature responded, in effect, by buying some time. They enacted legislation rolling back power bills temporarily, but leaving it unclear whether ratepayers, taxpayers, San Diego Gas and Electric Co. or power suppliers would eventually eat the wholesale costs that led to the spikes. Clearly, Davis was hoping that the Federal Energy Regulatory Commission (FERC) would step in and force the suppliers to refund hundreds of millions of dollars to SDG&E and its ratepayers. And that, Davis and other politicians hoped, would also forestall a similar, but much larger crisis looming for customers of Southern California Edison and Pacific Gas and Electric Co., the state's two largest private utilities. The two are still operating under the rate freeze, but have acquired at least \$5 billion in unanticipated wholesale power costs that they want to pass on to their ratepayers. Politically, FERC intervention would be the most palatable of the alternatives because it would place the financial onus on mostly out-of-state corporations that have little political standing. California politicians have been demonizing the power suppliers, saying they took advantage of the deregulation program's auction process to drive up costs far beyond reason. The problem for Davis and others is that FERC is not cooperating, pointedly refusing to intervene in a way that the governor wanted. Davis ripped into the FERC response during a hearing earlier this month, accusing it of "gutting (California's) ability to protect consumers" and proposing "new and completely untried market rules, making guinea pigs of California consumers in yet another reckless deregulation experiment." Davis wants to appoint himself as the California utility customer's best friend, hinting that he may lead a "ratepayer revolt" if FERC continues to refuse to order refunds from suppliers and new price controls. But it's unclear what he can do concretely, since he's on record as approving the overall thrust of deregulation and since many of the business interests he has cultivated to obtain his re-election funds have benefited from having power suppliers compete for their business. Doing nothing could mean that when Southern California Edison and PG&E emerge from the rate freeze, they will raise rates dramatically, just as Davis is seeking re-election in 2002. The utilities seem to be offering Davis a deal: allow them to begin raising rates now to recover their "stranded costs" for wholesale power and they will avoid sticker-shock raises in 2002. Another option would be for Davis to spend some of the state's billions of surplus dollars to either ease the impact on ratepayers or put the state into the power supply business itself. The only certainty is that unless FERC reverses itself, Davis will remain on the hook for whatever

happens -- the sort of unpredictable situation that he hates to encounter. DAN WALTERS' column appears daily except Saturday. Mail: P.O. Box 15779, Sacramento, 95852; phone: (916) 321-1195; fax: (916) 444-7838; e-mail: dwalters@sacbee.com

Message 404 of 1299

BELLS URGE FCC TO EASE SEC. 271 BARRIERS ON INFORMATION SERVICES

Sender	margo.reyna@enron.com
Recipients	['sue.nord@enron.com', 'tracy.cooper@enron.com', 'scott.bolton@enron.com']
File	dasovich-j/notes_inbox/2248.

FYI...

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 12/05/2000 02:50 PM -----

djcustomclips@djinteractive.com 12/05/2000 10:09 AM Please respond to nobody

To: 68484@WCTOPICS.djnr.com cc: Subject: Telecom Services: Information Services, U.S.: BELLS URGE FCC TO EASE SEC. 271 BARRIERS ON ...

BELLS URGE FCC TO EASE SEC. 271 BARRIERS ON INFORMATION SERVICES

12/04/2000 Communications Daily (c) Copyright 2000 Warren Communications News, Inc. All Rights Reserved. Congress made it clear that information services are exempt from regulatory restraints of Sec. 271 so FCC should ease its restrictions, Bell companies told Commission in comments Nov. 29. Bells urged agency to revise rules that have kept them from offering Internet access and other information services on interLATA basis. At very least, Qwest suggested, FCC should allow Bells to offer information services when they lease transmission component from other carriers. FCC is in definitional dispute over whether information services can be defined as "telecommunications services" -- and thus subject to Sec. 271 barriers (CD Nov 29 p1). It has categorized them that way, which has kept Bells from offering information services across LATA lines. However, in response to court appeal by Verizon and Qwest, FCC asked for and got remand so it could reconsider issue. Qwest argued in its comments that definitions were clear: Telecommunications is defined in Telecom Act as transmission of information without changing form or content, and since information services change content, then can't be considered telecom. Fact that information services often include transmission components doesn't turn them into telecom services, Qwest said. At very least, Commission should rule that Bells can provide InterLATA information services if they don't use their own transmission component, Qwest said: "There is no theory under which the BOCs can be prohibited from providing these services when the transmission component is acquired from another carrier." FCC initially ruled that ban on interLATA services didn't apply to information services, then changed its mind, Verizon said. Agency "had it right" first time and later decision "was inconsistent with the definitions in the Act," Verizon said. BellSouth agreed: "Because Congress neither defined the term 'interLATA service' to include 'information services' nor expressly included 'information services' in Section 271's prohibition, a BOC's offering of an information service using interLATA telecommunications does not implicate Section 271's prohibitions." CompTel called Bells' arguments "self-serving," saying those companies have argued on both sides of issue in recent years, depending on whether it helped or hindered them. For example, CompTel said, BellSouth argued in 1997 that out-of-region interLATA services included out-of-region information services. CompTel said argument was made to gain exemption from separate affiliate requirement. Similar argument was made by Ameritech in another case, CompTel said. Assn. urged FCC not to let Bells stir up concerns of other Internet providers by saying issue could lead to regulation of all ISPs. "Congress intended to include 'information services' within the definition of 'interLATA services' in order to prevent the BOCs from abusing their local market power," CompTel said. -- Edie Herman

Folder Name: Telecom Services: Information Services, U.S. Relevance Score on Scale of 100: 69

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 405 of 1299

Jeff Byron Joins Enerwise Global Technologies

Sender	jbyron@aol.com
Recipients	['dbld@chevron.com', 'jbyron@aol.com', 'whitallen@surepowercorp.com']
File	dasovich-j/all_documents/12048.

I=01,m very excited to have joined a new company (Enerwise Global Technolog= ies) and wanted to pass along some information about it. I start next week and will be in Philadelphia for most of the week getting "oriented." I will ha= ve an office in Redwood City where I will be Director of Business Development for the West Coast. However, I don=01,t have a new email or business phone number just yet. I will send you all that when I have it.

I=01,ve enjoyed working with you in the past and look forward to continued = op portunities to do so.

In the meantime, I can still be reached at:

Jbyron@aol.com Home: (650) 961-3115 Personal cell: (415) 999-0825

Regards, Jeff Byron

For Immediate Release

Contact: Rebecca Filbey Stanton Communications 202.223.4933 rfilbey@stantoncomm.com

ENERWISE GLOBAL TECHNOLOGIES FORMED TO PROVIDE ENERGY INTELLIGENCE SOLUTIONS FOR CORPORATIONS

-- Company Provides Information on Consistency, Quality and Use of Energy --

(Kennett Square, PA) May 1, 2001 =01) Enerwise Global Technologies, a major provider of enterprise-wide energy intelligence and managed energy services for domestic and international corporations, today announced the completion of its spin-off from Conectiv, Inc. Enerwise Global Technologies was forme= d with the assets of Conectiv Inc., in conjunction with funding by EnerTech Capital Partners II L.P. and other leading energy industry venture capital firms, including CapiTech, Inc., a subsidiary of Hydro-Quebec.

Enerwise Global Technologies addresses the energy intelligence needs of medium to large enterprises in a broad range of commercial and industrial (C&I) segments for which managing the consumption, reliability, and cost of energy is mission critical. By capturing, integrating, analyzing and monitoring vital energy and operational data for its customer, Enerwise Global Technologies is able to recommend and implement solutions to improve facility operations, increase reliability and reduce costs.

"The need for meaningful energy information will continue to rise as energy supplies remain tight and energy prices prove volatile, and as many businesses become increasingly aware that the quality and reliability of th= e energy they receive can have significant impact on their operations " said Dom Geraghty, Senior Vice President of Enerwise Global Technologies. "Our vision is to transform the way businesses understand and make decisions abo= ut their energy consumption, thereby enabling them to manage their energy-related costs while maintaining their up-time objectives."

Three key elements work in harmony to enable and distinguish Enerwise Globa= l Technologies from its competitors:

~ Expedient operational tactics combining the efficiency of the centralized= , 24x7x365, remote-monitoring Information Command Centers (ICCs), with convenient and secure customer access to up-to-the-minute intelligence via the Web. ~ Reliable, robust technologies that can be seamlessly integrated into existing enterprise systems and have been fully

proven; in fact, they are already in place in hundreds of major corporations. ~ Experienced energy management professionals who truly understand the energy challenges that customers face, and who can offer real-world solutions to help them meet those challenges.

- MORE -

"No other resource offers enterprises a more comprehensive energy intelligence and management solutions set," said Scott Ungerer, Managing Director of EnerTech Capital Partners. "Enerwise Global Technologies is immediately in a market-leading position as the only organization whose solutions have been successfully implemented and are working for hundreds of demanding and satisfied customers."

From its headquarters in Kennett Square, PA, Enerwise Global Technologies provides energy intelligence and managed energy services for domestic and international C&I customers, including companies that are leaders of their industry segments. Formed with assets contributed by Conectiv Inc., Enerwise Global Technologies has been in business since 1998. Enerwise Global Technologies formally launched in 2001 with venture capital funding provided by EnerTech Capital Partners and CapiTech, Inc., a subsidiary of Hydro-Quebec.

Message 406 of 1299

Get The Wall Street Journal on Schwab

Sender	online.service@schwab.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/notes_inbox/11620.

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Message 407 of 1299

Re: Cal ISO Amendment 30 & Alliance RTO Filing

Sender	susan.mara@enron.com
Recipients	['jeff.brown@enron.com', 'jeff.dasovich@enron.com', 'mary.hain@enron.com', 'christi.nicolay@enron.com']
File	dasovich-j/all_documents/1591.

I have a pretty major philosophical disagreement with AMendment 30. I come from the camp that says we want an ISO that has minimal duties. If the ISO is able to enter into forward contracts, well ... how is that any different from a vertically-integrated utility? Let's see, so the ISO controls all the T and now will control some G. Aren't we concerned about that? I have heard from some that this is the "best solution" -- I need someone to explain to me why.

To: Susan J Mara/SFO/EES@EES, Mary Hain/HOU/ECT@ECT, Jeff Dasovich/SFO/EES@EES, Jeff Brown/HOU/EES@EES, Sarah Novosel/Corp/Enron@Enron, Joe Hartsoe/Corp/Enron@Enron, James D Steffes/HOU/EES@EES, Janine Migden/DUB/EES@EES cc: Subject: Cal ISO Amendment 30 & Alliance RTO Filing

EPSA needs feedback on Cal and Alliance filings and what position EPSA can take. Thoughts? -----

Forwarded by Christi L Nicolay/HOU/ECT on 09/20/2000 03:32 PM -----

"Jackie Gallagher" <JGallagher@epsa.org> on 09/20/2000 03:07:06 PM To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jhartso@enron.com>, <mary.hain@enron.com>, <sarah.novosel@enron.com>, <tom.hoatson@enron.com> cc:

Subject: Cal ISO Amendment 30 & Alliance RTO Filing

MEMORANDUM

TO: Regulatory Affairs Committee Power Marketers Working Group

FROM: Don Santa, Regulatory Affairs Committee Chair Joe Hartsoe, Power Marketing Working Group Chair Julie Simon, Vice President of Policy Mark Bennett, Senior Manager of Policy

DATE: September 20, 2000

RE: ? Cal ISO Amendment 30 ? Alliance RTO Filing

Two issues arose on the weekly conference call today on which we need your assistance and feedback. Please forward comments to Julie Simon at 202-789-7200 or jsimon@epsa.org by close of business on Monday, September 25th.

1. Cal ISO Amendment 30

On September 11, 2000 the Cal ISO filed Amendment No. 30 to its ISO Tariff at FERC. In this filing, the Cal ISO is "reluctantly" asking FERC for authority to buy forward contracts to meet its real-time balancing obligations. Costs of the forward contracts would be allocated to Scheduling Coordinators who deviate in real time from their schedules. Interventions and protests are due on October 2nd.

While EPSA has consistently opposed an ISO role as market participant, there are concerns here about the lack of alternatives available in California. While an ISO's role in the real-time balancing market should be small, as a practical matter, the Cal ISO has been forced to procure thousands of megawatts in the real time markets. Thus, deciding how to approach this filing balances difficult competing goals. Please let us know how you would like EPSA to proceed.

2. Alliance RTO

On September 15th the Alliance RTO made a compliance filing at FERC seeking to address all of FERC's concerns about its earlier proposals and purporting to meet all the requirements of Order No. 2000. The filing retains a transco structure, with a 5 percent ownership limitation for individual market participants and a 15 percent ownership limitation on each class of market participants. It also eliminates pancaked rates in favor of zonal, or license plate, rates for deliveries within the Alliance and postage-rates for through or out deliveries. While the geographic scope is unchanged, the scope will be larger than any operating RTO. The filing includes a pro-forma inter-RTO coordination agreement to address seams issues such as security coordination, market monitoring, regional planning ATC and TTC calculations and pricing reciprocity.

Until now, EPSA has not been a party to the Alliance proceeding. With this latest filing it may be appropriate for EPSA to intervene, raising issues of support or opposition to the filing. To determine how to proceed, however, we need input from those companies that have been more closely involved in the development of the Alliance. Please let us know how EPSA should proceed with respect to this latest filing.

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760
Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

Message 408 of 1299

Re: Western Wholesale Activities - Gas & Power Conf. Call

Sender	ray.alvarez@enron.com
Recipients	['susan.mara@enron.com', 'barry.tycholiz@enron.com', 'christi.nicolay@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/all_documents/13036.

Correct, I also signed off with Ron Carroll of Bracewell last night. On the call, the filing would be discussed as an informational item for the whole group. Ray

Susan J Mara 05/23/2001 06:23 PM To: Ray Alvarez/NA/Enron@ENRON cc: Alan Comnes/PDX/ECT@ECT, Barry Tycholiz/Enron@EnronXGate, Christi L Nicolay/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Donna Fulton/Corp/Enron@Enron, jalexander@gibbs-bruns.com, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, Linda J

Noske/HOU/ECT@ECT, Phillip K Allen/HOU/ECT@ECT, Rebecca W Cantrell/HOU/ECT@ECT, Robert Frank/NA/Enron@Enron, Stephanie Miller/Enron@EnronXGate, Steve Walton/HOU/ECT@ECT

Subject: Re: Western Wholesale Activities - Gas & Power Conf. Call Privileged & Confidential Communication Attorney-Client Communication and Attorney Work Product Privileges Asserted

One caveat -- on the expedited motion -- we have to tell them whether we are in or out by 1pm EDT tomorrow. SO, we would not be discussing at in our conference call. I have already recommended internally that we go forward and join Dynegy's motion. So, by the time we have our call tomorrow, the filing will be made already.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Ray Alvarez 05/23/2001 02:25 PM

To: Steve Walton/HOU/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Alan Comnes/PDX/ECT@ECT, Leslie Lawner/NA/Enron@Enron, Rebecca W Cantrell/HOU/ECT@ECT, Donna Fulton/Corp/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, Christi L Nicolay/HOU/ECT@ECT, James D Steffes/NA/Enron@Enron, jalexander@gibbs-bruns.com, Phillip K Allen/HOU/ECT@ECT, Linda J Noske/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Robert Frank/NA/Enron@Enron, Stephanie Miller/Enron@EnronXGate, Barry Tycholiz/Enron@EnronXGate cc: Subject: Re: Western Wholesale Activities - Gas & Power Conf. Call Privileged & Confidential Communication Attorney-Client Communication and Attorney Work Product Privileges Asserted

TWO ADDITIONAL ITEMS FOR THE AGENDA:

CA Legislature's suit against FERC

Expedited motion in ER01-889-002 for enforcement action against CAISO re compliance with FERC's orders on creditworthiness and noncompliance with the creditworthiness provisions of its own tariff.

----- Forwarded by Ray Alvarez/NA/Enron on 05/23/2001 05:19

PM -----

Ray Alvarez 05/23/2001 04:39 PM To: Steve Walton/HOU/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Alan Comnes/PDX/ECT@ECT, Leslie Lawner/NA/Enron@Enron, Rebecca W Cantrell/HOU/ECT@ECT, Donna Fulton/Corp/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, Christi L Nicolay/HOU/ECT@ECT, James D Steffes/NA/Enron@Enron, jalexander@gibbs-bruns.com, Phillip K Allen/HOU/ECT@ECT, Linda J Noske/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Robert Frank/NA/Enron@Enron, Stephanie Miller/Enron@EnronXGate, Barry Tycholiz/Enron@EnronXGate cc: Bernadette Hawkins/Corp/Enron@ENRON

Subject: Re: Western Wholesale Activities - Gas & Power Conf. Call Privileged & Confidential Communication Attorney-Client Communication and Attorney Work Product Privileges Asserted

PLEASE MARK YOUR CALENDAR Date: Every Thursday Time: 1:00 pm Pacific, 3:00 pm Central, and 4:00 pm Eastern time, Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

The table of the on-going FERC issues and proceedings has been updated for use on tomorrow's conference call, and is attached. It is available to all team members on the O drive. Please feel free to revise/add to/ update this table as appropriate.

Proposed agenda for tomorrow:

Rehearing of FERC market monitoring and mitigation order in EL00-95-12 (item 9d)

ISO de-rating of ATC complaint- status (item 20)

ISO governance comment opportunity (item 32)

FERC staff technical conference on inter- and intrastate gas pipeline capacity into CA- update (item 30)

FERC order in RP01-180 requesting comments on the reimposition of maximum rate ceilings on short term capacity releases into CA- discussion

FERC order in ER01-1579 denying waiver of CAISO underscheduling penalty- discussion

Please feel free to communicate to the group any additional agenda items you may have.

Message 409 of 1299

RE: Studies of market power in California

Sender	seabron.adamson@frontier-economics.com
Recipients	['jeff.dasovich@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/notes_inbox/2472.

Here is the paper I mentioned earlier.

Seab

-----Original Message-----

From: Alan.Comnes@enron.com [mailto:Alan.Comnes@enron.com] Sent: Tuesday, December 12, 2000 12:48 PM To: seabron.adamson@frontier-economics.com Cc: Alan.Comnes@enron.com; Jeff.Dasovich@enron.com Subject: Re: Studies of market power in California

Seabron,

I have not seen it. Can you forward a copy? Thanks,

Alan Comnes

"Seabron Adamson" <seabron.adamson@frontier-economics.com> on 12/12/2000 09:41:53 AM

To: <Alan.Comnes@enron.com> cc: <Jeff.Dasovich@enron.com>

Subject: Studies of market power in California

Alan/Jeff:

Just in case you haven't seen it, there is a new paper out from someone at Berkeley (Steven Puller?) on California market power issues. It seems to make some pretty strong statements re: market power over the previous years. If you haven't seen it let me know and I can email you a .pdf version.

All the best,

Seab

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Seabron Adamson Frontier Economics Inc Two Brattle Square Cambridge, MA 02138 USA Ph: (617) 354-0060 Fax: (617) 354-0640 seabron.adamson@frontier-economics.com

www.frontier-economics.com

-----Original Message-----

From: Alan.Comnes@enron.com [mailto:Alan.Comnes@enron.com] Sent: Thursday, November 23, 2000 8:55 PM To: James.D.Steffes@enron.com Cc: Mary.Hain@enron.com; Joe.Hartsoe@enron.com; smara@enron.com; Jeff.Dasovich@enron.com; Paul.Kaufman@enron.com; Sarah.Novosel@enron.com; rcarroll@bracepatt.com; tim.heizenrader@enron.com; tim.belden@enron.com; bob.badeer@enron.com; Seabron.Adamson@frontier-economics.com; Sabine.Schnittger@frontier-economics.com Subject: Empirical Study on

High Prices

Attached is a paper that was filed at the FERC by Paul Joskow and Ed Kahn. I assume it was attached to SCE's comments in the FERC price caps proceeding.

This study appears to be the most definite analysis so far of the question: did market fundamentals or generator market power cause the price run-ups this summer? Joskow/Kahn conclude that although much of the run up was due to gas prices and NOx costs, that the market was unworkably competitive; i.e., the cost run ups do not fully explain the price run ups. Further, they provide what they claim is evidence that individual generators withheld this summer.

Joskow/Kahn state: "Moreover, there is considerable empirical evidence to support a presumption that the high prices experienced in the summer of 2000 were the product of deliberate actions on the part of generators or marketers controlling the dispatch of generating capacity to withhold supply and increase market prices." Biggest withholders in their analysis are: AES/Williams, Reliant, and Dynegy

Marketer/traders are largely but not completely spared criticism in their analysis. Joskow/Kahn recommend that FERC staff undertake a study of the entire WSCC data to "Determine the role of marketers in the production and bidding behavior of the California generators." and to find out more why CA imports fell.

It will be interesting to see how the CA generators react to this study.

My initial read is that this is will be received as an important, influential work. It will fuel the fire for more information release, especially by the UDCs and CA regulators--at least release of physical operational data.

I would be interested in your reaction to the study. In terms of potential criticisms: I noticed that their gas prices might be low (used monthly average data rather than daily). They also did not account for generator marginal profit or margin recovery to account for possible outages and noncontiguous schedules. Finally, they do not examine the benefits that would have accrued had additional capacity come on line.

Alan Connes

(See attached file: Joskow Kahn Paper 11_21.pdf)

- Puller California market power paper.pdf

Message 410 of 1299

FW: IMPORTANT ! !

Sender	aaron.thomas@aesmail.com
Recipients	['Tracy', 'e-mail <.arm@enron.com>', 'Gregg Klatt; Ed Duncan; Erica.Manuel@edelman.com; 'Fairchild', 'jeff.daso...
File	dasovich-j/inbox/898.

How do folks feel about a call on this subject today. Say around 2 PM Paci= fic. =20 If this works for folks, lets use my dial-in number =20 888.621.9536 PC *3957889* =20 Aaron =20 =20 -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Tuesday, November 20, 2001 7:58 AM To: ARM; Vicki Sandler; Todd Torgerson; Tamara Johnson; Sue Mara; Steve Sch= leimer; Steve Huhman; Roger Pelote; Rob Nichol; Randy Hickok; Peter Blood; = Nam Nguyen; Karen Shea; Jim Crossen; Jeff Dasovich; Janie Mollon; Jack Pigo= tt; Greg Blue; George Vaughn; Gary Ackerman; Ed Cazalet; Denice Cazalet Pur= dum; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Miessner; Carolyn = Baker; Bill Ross; Alden Hoekstra; Max Bulk Cc: Gregg Klatt; Ed Duncan; Erica.Manuel@edelman.com; 'Fairchild, Tracy' Subject: IMPORTANT ! !

Attached is a ruling issued yesterday by Commissioner Wood directing that E= SPs and customers file copies of direct access contracts with the Commissio= n by December 3. The contracts will be available to ALL other parties who = sign a "suitable" protective order. The Ordering Paragraphs read as follow= :

1. By December 3, 2001, any party who believes that it has a direct acc= ess contract or agreement potentially affected by an order to suspend direc= t access as of July 1, 2001 or a date earlier than September 20, 2001, shal= I submit a true

and correct copy of each of the actual contracts or agreements along with any arguments as to the impact of such an order. A failure to submit this information for the Commission's consideration will be considered a waiver of the arguments related to claims involving the contracts and agreements. Initially, the true and correct copy of each of the actual contracts or agreements shall be filed under seal with the Commission's Document Office and served on Administrative Law Judge (ALJ) Robert Barnett.

2. Office of Ratepayer Advocates shall work with the parties who have executed direct access contracts or agreements to develop a proposed protective order and nondisclosure agreement for Commission staff, which shall be submitted to ALJ Barnett by December 3, 2001.

3. The electric service providers and customers who are parties shall work with other parties and shall jointly submit a proposed protective order and nondisclosure agreement that will cover parties other than Commission staff by December 11, 2001.

4. Parties' supplemental comments to the comments they filed in response to the October 23rd Assigned Commissioner Ruling shall be submitted by January 4, 2002.

As a preliminary matter, of course, AREM and WPTF do not, in their own names, have direct access contracts. However, certain members of AREM and WPTF are direct parties to the proceeding and need to consider what course they wish to take. The group also needs to consider if they wish to fight this Order on Constitutional or procedural grounds. I will be considering our options and get back to you with more detail. However, as a very preliminary analysis, it is evident that the Commission does not have jurisdiction over either ESPs or the customers they serve. The request is also particularly outrageous because of the statements that, "A failure to submit this information for the Commission's consideration will be considered a waiver of the arguments related to the claims involving the contracts and agreements" and "Parties to this proceeding may have access to these contracts and agreements after the appropriate protective order and nondisclosure agreements are in effect." The former is a likely denial of due process and the latter exposes proprietary contracts and pricing information to ESP competitors and exposes sensitive pricing information to competitors of energy-dependent customers. Your thoughts would be appreciated. My initial reaction is that this is time for ESPs and customer groups, such as CMTA, ABAG, CLECA, CIU, EPUC, SPU, etc., to band together and fight this at multiple levels, from the Governor's Office on down, including in the media. Your thoughts would be very much appreciated. Dan Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

Message 411 of 1299

Enron Mentions - 4/06/2001

Sender	sharonda.stephens@enron.com
Recipients	[sharonda.stephens@enron.com]
File	dasovich-j/all_documents/10757 .

California Generators' Shares Tumble on Bankruptcy (Update1) Bloomberg, 04/06/2001

Bear Stearns's Kevin Boone on Pacific Gas & Electric: Comment Bloomberg, 04/06/2001

California Generators' Shares Tumble on Bankruptcy (Update1)

(Adds Enron comment and updates share prices. For more on the California electricity crisis, see {EXTRA <GO>}.)

Houston, April 6 (Bloomberg) -- Shares of California power-sellers Mirant Corp., Duke Energy Corp. and Dynegy Inc. fell more than 9 percent after Pacific Gas & Electric Co., the state's largest utility, filed for Chapter 11 bankruptcy protection. "The concern with the generators is clearly that they're not going to get paid anywhere near (the price) they sold power for to the California grid," said David Schanzer, a Janney Montgomery Scott LLC analyst. Shares of Atlanta-based Mirant, which owns California plants able to produce enough power to light 3 million homes, fell as much as 10 percent to \$27.70 earlier. The stock was down 94 cents at \$29.96 in late trading. Charlotte-based Duke, which produces 3,000 megawatts, or about 5 percent of the state's power, fell \$2.20 to \$40.20 after reaching \$38.44, down 9.3 percent. A megawatt is

enough to light 1,000 typical U.S. homes. Houston-based Dynegy, which controls 2,800 megawatts of power in a partnership with NRG Energy Inc. of Minneapolis, fell \$3.11 to \$47.81 after falling as much as 9.7 percent to \$46. NRG Energy shares fell \$1.50 to \$29.90. Calpine Corp., a San Jose, California-based generator and power-plant developer, fell \$5.04, or 9.9 percent, to \$45.60. Houston-based Reliant fell \$1.85 to \$43.50. Tulsa, Oklahoma-based Williams Cos. fell \$1.17 to \$40.70. Enron Corp. of Houston, which sells power and natural gas in California, fell \$1.56 to \$54.14. Enron's exposure to Pacific Gas & Electric ``will not have any material effect on earnings or our financial condition," Enron spokesman Vance Meyer said. Enron is the world's biggest energy trader. Pacific Gas & Electric, owned by San Francisco-based PG&E Corp., and Edison International's Southern California Edison, the state's second-largest utility, together have losses of more than \$14 billion because they paid more for electricity than state regulators allowed them to charge consumers. Shares of PG&E fell \$4.31, or 38 percent, to \$7.07. Trading was halted earlier before the bankruptcy announcement. Edison fell \$4.49, or 36 percent, to \$8.15. The company said it still expected the state to work out a plan to end the energy crisis.

--Margot Habiby in the Dallas newsroom (214) 740-0873, or mhabiby@bloomberg.net, with reporting by Mark Johnson in Princeton, through the Princeton newsroom, (609) 279-4000/taw/alp/p

Bear Stearns's Kevin Boone on Pacific Gas & Electric: Comment 2001-04-06 16:47 (New York)

(For more stories on the California energy crisis, see {EXTRA <GO>}

New York, April 6 (Bloomberg) -- The following are comments made by Kevin Boone, a bond analyst at Bear Stearns & Co., on the filing for Chapter 11 bankruptcy protection by PG&E Corp.'s Pacific Gas & Electric, California's largest investor-owned utility.

``It's obviously a big surprise. I'm not sure it's going to be the most constructive way to solve the issue, but it may eliminate the political element of the equation, make it a matter of law and keep the extraneous things out of the equation.

``There really were too many cooks in the kitchen. This will isolate it, so to speak, and get the parties in a room together where they can hammer out the desired objective."

``PG&E obviously thought this was a way to push the negotiations along and create a more favorable result. Going through the channels they were going through wasn't going to get them a solution to the problem."

On Davis' televised speech on the energy crisis Thursday night:

``I thought his comments were a step in the right direction. I thought they were very positive. PG&E was not looking for a small step. They were looking for a giant leap to the solution of this problem."

On market reaction:

``Certainly with the selloff we've seen today with both Edison and PG&E in the equity market, it indicates it's a potential stumbling block" for Edison International and Sempra Energy to reach bailout agreements with the state.

--Mark Johnson in the Princeton newsroom. (609) 279-4017 or mjohnson7@bloomberg.net/pjm

Message 412 of 1299

Re: JDS Uniphase Corporation Strongly Supports Retention of Direct

Sender	karen.denne@enron.com
Recipients	['kenneth.lay@enron.com', 'steven.kean@enron.com', '(bcc: Karen Denne/Corp/Enron)', 'mark.palmer@enron.com']
File	dasovich-j/notes_inbox/12532.

FYI, JDS Uniphase Corporation was one of the 150 California companies that received our direct access letter. Please see the attached letter that they sent to the CPUC commissioners. ----- Forwarded by Karen Denne/Corp/Enron on 06/14/2001 01:15 PM ----- From: Janel Guerrero on 06/13/2001 10:59 PM To: Ken_Pietrelli@ocli.com cc: (bcc: Karen Denne/Corp/Enron)

Subject: Re: JDS Uniphase Corporation Strongly Supports Retention of Direct Access and asks for CPUC Support

Thank you Mr. Pietrelli. Your letter is straightforward, honest, and such an important part of the process. I'll forward your letter to Chairman Lay immediately. Thank you again for your interest in the issue and for taking time to contact the CPUC.

Janel Guerrero Director, Government Affairs

Ken_Pietrelli@ocli.com 06/13/2001 07:49 PM

To: Janel.guerrero@enron.com cc: Subject: JDS Uniphase Corporation Strongly Supports Retention of Direct Access and asks for CPUC Support

FYI, the attached e-mail was sent to all 5 CPUC commissioners.

----- Forwarded by Ken Pietrelli/SaRo/US/JDSUniphase on

06/13/2001 05:49 PM -----

Ken Pietrelli 06/13/2001 05:34 PM

To: commissionerbrown@cpuc.ca.gov cc:

Subject: JDS Uniphase Corporation Strongly Supports Retention of Direct Access and asks for CPUC Support

Dear Commissioner Geoffrey F. Brown:

My name is Kenneth D. Pietrelli, Vice President of Corporate Services for the Thin Film Products Group(formerly OCLI and Flex Products) of JDS Uniphase in Santa Rosa, California. I am asking for your support to retain Direct Access as an option for industrial energy customers such as JDS Uniphase. Electricity and natural gas are critical infrastructural requirements for our manufacturing processes. Without access to reliable sources, at high quality and competitive prices we cannot satisfy our customers needs and be a viable business in California. We fear loss of direct access will have a material, adverse effect on our business in California where we currently employ approximately 5,000 employees. JDS Uniphase is made up of such diverse groups as the original Uniphase Commercial Lasers Group in San Jose and Manteca, the E-Tek Dynamics Company in San Jose, SDLI in San Jose and Santa Clara and OCLI and Flex Products in Santa Rosa. The corporation has over 20,000 employees in over 20 countries. Of all the sites in California only the Santa Rosa site has direct access, which is due to various historical and operational reasons. We own a 22Mw substation located on our 75 acre plant site and are considered a grid level customer. Up to now we have enjoyed high quality, reliable electrical energy. In the mid 1990's we began contracting directly for natural gas from other than PG& E and are currently sourcing gas from Pan Canadian Energy via a single point gas meter for the site. In 1998 we entered into a 5 year direct access electricity contract with PG& E Energy Services. In 2000 this contract was assigned by PG&E Energy Services to Enron and is valid through June 30, 2003. Because of the importance of energy availability, quality and price to our manufacturing operations we have made business decisions on where capital investments have been made and where redundant operations would be consolidated. We are in the process of a global re-alignment program that is consolidating numerous activities to Santa Rosa, CA for a variety of reasons, to include our direct access to energy.

If direct access is eliminated in California, JDS Uniphase management will have to re-assess and re-consider actions currently underway to consolidate manufacturing from Rochester, NY; Ottawa, Canada; Dunfermline Fife, Scotland; and San Jose, Ca to the Santa Rosa, CA site. Other locations on the East Coast of the U.S., China, UK, etc. would have to be re-considered for these consolidation activities. Selfishly, we are asking you to retain direct access to keep jobs in California. Philosophically, we believe the "right to choose" is an American tradition and anyone concerned with the long-term health and viability of the California economy would want to retain the direct access option for California customers. Thanks for your time and support.

Kenneth D. Pietrelli Vice President of Corporate Services, TFPG, JDSU 2789 Northpoint Parkway Santa Rosa, CA 95407
Phone 707 525-7520 Fax 707 525-7846

Message 413 of 1299

RE: PGE -- Securing gas suppliers issue

Sender	jeff.dasovich@enron.com
Recipients	['angela.schwarz@enron.com', 'susan.mara@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/sent/3016.

----- Forwarded by Jeff Dasovich/NA/Enron on 01/25/2001 03:17 PM -----

MBD <MDay@GMSSR.com> 01/25/2001 12:41 PM

To: "'James.D.Steffes@enron.com'" <James.D.Steffes@enron.com>, MBD <MDay@GMSSR.com>, Jeff.Dasovich@enron.com, Travis.McCullough@enron.com cc: Subject: RE: PGE -- Securing gas suppliers issue

Hot Flash:

The ALJ in the case (Tim Kenney) just advised me that he is so busy that he will not even read any responses to the PG&E petition for issuing a security interest in accounts receivable. Don't ask if this is due process--it's not. The commission is clearly going to grant this authority at the emergency meeting tomorrow at 1:30. In voice mails from Travis, he recommended voicing some concerns so that we can raise the issue later if we feel Enron's interests have been prejudiced by how PG&E implements this. I also received the indication that EES and ENA were very concerned about filing anything negative that could upset the present arrangements with PG&E on DASR matters. I recommend not filing. I do not believe we need to express any concerns to raise them later. We are not in a formal waiver situation, and the commission is acting before any reasonable responses were possible. Let me know by VOICE MAIL what you want to do. If you want something filed, please also advise my associate, Jeanne Bennett who will be monitoring this issue in the office today while I am in Sacramento. Her direct line is 415-765-8449. Thanks, Mike Day

-----Original Message-----

From: James.D.Steffes@enron.com [mailto:James.D.Steffes@enron.com] Sent: Wednesday, January 24, 2001 5:26 PM
To: mday@gmssr.com; Jeff.Dasovich@enron.com; Travis.McCullough@enron.com Subject: PGE -- Securing gas suppliers issue

To Be discussed on 10:30am call tomorrow.

Jim

----- Forwarded by James D Steffes/NA/Enron on 01/24/2001 07:24 PM -----

Travis

McCullough@EC To: James D Steffes/NA/Enron@Enron T cc: Elizabeth Sager/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT 01/24/2001 Subject: PGE -- Securing gas suppliers issue 03:43 PM

Jim -- the following are our concerns about PG&E's proposal/possible points to make in a response:

1. Enron would be one of the largest unsecured creditors in the event of a PG&E bankruptcy; our claim may become even larger depending on the extent to which we acquire additional claims against the utilities through the PX or ISO. We are therefore interested in any action that would reduce the pool of assets available to unsecured creditors.
2. This proposal may be to our benefit, or to our detriment. There is not a great deal of detail in the proposal currently on the table, and Enron needs additional information in order to evaluate the proposal. Certainly, we need to evaluate this in light of other developments.
3. The proposal contemplates pledging "existing and future" receivables to secure obligations owed to gas suppliers; PGE shows approx. \$1.3 billion in A/R as of 9/30; will that (or an amount of like magnitude) be pledged as security under this plan? Granting gas suppliers security may be fine with us, but we don't have a great interest in OVER-collateralizing their positions. More current information on the current A/R balances and the extent to which obligations to suppliers will be secured will be helpful.

4. Do they intend to extend this security to ALL gas suppliers, or only those that are refusing to supply PGE under current circumstances?

5. Do they intend to secure obligations on a going-forward basis only, or will they also secure their obligations with respect to payables that have already accrued?

6. PG&E is scheduled to make a couple of large payments to ENE tomorrow; what is PG&E's ability to make those payments for gas already delivered?

7. Given the extension of the DOE order, it seems that consideration of this petition could be delayed for a few days to allow interested parties sufficient time to evaluate its implications.

Give me a call with any questions.

In light of the DOE extension of the emergency gas supply order, there should now be adequate time for PG&E to respond to these points and clarify their proposal.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 414 of 1299

The Original Advantage #e13105

Sender	announcements@provantage.com
Recipients	['jeff_dasovich@enron.com']
File	dasovich-j/all_documents/13388.

[IMAGE]

June 05, 2001

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Message 415 of 1299

UC Summit Conference

Sender	lfried@uclink4.berkeley.edu
Recipients	[jdasovic@enron.com]
File	dasovich-j/notes_inbox/695.

Dear Jeff:

This message provides more information about sponsoring the UC Berkeley Nov. 13 deregulation summit and the two sponsorship levels. Three UC institutions, the Goldman School of Public Policy, the Competition Policy Center, and the Energy Institute, are jointly organizing the summit. To cover the costs of the conference we need financial support.

Enron Sponsorship will support the balanced effort to review where we are in terms of the deregulation of electricity, and where we should be going, and also to disseminate the conference proceedings to a larger audience. With a contribution of \$10,000, Enron will be designated as a Major Sponsor. A contribution of \$5000 will designate Enron as a Sponsor. Contributions are fully tax deductible and will be acknowledged in all printed materials distributed to the press, the UC community, at the conference itself and in all related internet materials.

Our first large mailing to over 2500 individuals is scheduled to go out next week, and will include Sponsor acknowledgments. We will be very pleased to have your Sponsorship be a part of this first mailing. With your support, we will also be able to disseminate a summary of the conference proceedings to a broad public audience who would appreciate an objective presentation of issues raised by electricity deregulation and different viewpoints on them.

I hope this clarification is useful, and to hear from you shortly. I would be happy to provide any further information you may desire or personally answer your questions. In addition, our Special Projects Director, Heather Cameron (hcameron@uclink.berkeley.edu, 510-642-9437), will be directly responsible for all public relations, publicity and conference materials, and can answer any questions about these. For reference, I have appended a brief description of the conference below.

Best, Lee

P. S. If you wish to purchase 10 tickets at \$200 each (non-tax deductible) and make a charitable contribution of \$8,000, we will be happy to designate you as a Major Conference Sponsor. Similarly, should you wish to purchase 5 conference tickets and make a charitable contribution of \$4000, we will designate you as a Conference Sponsor. You are very

welcome to purchase as many additional tickets as you wish.

The Summit Conference on Electricity: Deregulation, Reregulation, or What? University of California's Goldman School of Public Policy, Competition Policy Center, and Energy Institute are hosting an energy summit on policy options to remedy problems with electricity de-regulation. The summit will take place this November 13, from 12:30-6PM, on the UC Berkeley Clark Kerr campus in Berkeley, CA.

The focus, and the audience, will be national but heavily informed and influenced by the California crisis. The conference will evaluate at a high level (1) the wisdom of deregulation and (2) how the many pitfalls encountered so far can be avoided and remedied. The university will convene an open, honest and reasoned exchange between high level decision-makers from various perspectives: industry, regulators, consumers, legislators, academics, and market and system operators. The format entails two roundtable discussions with six speakers and a moderator. Each speaker will make a brief opening statement that identifies key issues, followed by panel discussion and an audience Q&A period. We expect a live audience of about 200 people including a large press presence. One sponsor has tentatively offered to provide streaming video services. We hope to have a balanced group of sponsors from APPA to energy companies.

The speakers are being arranged at this time. We have confirmed positive responses from Loretta Lynch's office (Chair, CPUC) and from PJM CEO Phil Harris, and preliminary positive responses from Steven Littlechild (England's primary electricity regulator) and Laura D'Andrea Tyson (Dean, Haas School of Business and former Chair, President's Council of Economic Advisors and National Economic Council. We are awaiting responses from U.S. Representatives Edward Markey and Joe Barton, and FERC Commissioner Bill Massey. Former DOJ chief economist Carl Shapiro will be on one of the panels, as will economist and UCEI head Severin Borenstein. We also expect to have several speakers who are energy company CEOs, state legislators, and consumer advocates.

Lee S. Friedman Professor Of Public Policy Goldman School of Public Policy University of California 2607 Hearst Avenue Berkeley, CA 94720-7320 Ph: (510) 642-7513 Fax: (510) 643-9657 e-mail: lfried@uclink4.berkeley.edu

Message 416 of 1299

FYI: Sacramento Bee--Dan Walters: Repaying huge power debts still

Sender	susan.mara@enron.com
Recipients	['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/notes_inbox/12542.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/14/2001 11:51 AM -----

"Beiser, Megan" <Megan.Beiser@edelman.com> 06/13/2001 04:39 PM

To: "arem@electric.com" <arem@electric.com> cc: Subject: FYI: Sacramento Bee--Dan Walters: Repaying huge power debts still looms as a high political hurdle

Dan Walters: Repaying huge power debts still looms as a high political hurdle

(Published June 13, 2001) Gov. Gray Davis has been running around California lately proclaiming that California is "turning the corner" on the energy crisis, explicitly citing sharply lower wholesale prices for electricity and, implicitly, his improved standing in polls. Events will reveal whether Davis' June hubris was justified. Despite the recent drop in spot power prices, however, many aspects of the energy crisis remain unresolved, and chief among them is liquidating the \$20 billion-plus in debts that utilities and the state have accumulated for power purchases. A \$13.4 billion bond issue that is supposed to reimburse the state's general fund for more than \$8 billion advanced for power purchases and then finance future electricity buys has been hung up by demands of potential bond underwriters for more assurances about repayment. The bonds may not be sold until August, if ever. And by then, nearly the entire bond issue may have to flow to the state's general fund, leaving little to finance future power buys. And then there are the \$14 billion or so in debts that the state's two big utilities, Pacific Gas and Electric and Southern California Edison, incurred for power purchases before their credit was cut off in January. PG&E already has declared bankruptcy, and Edison was on the verge when Davis hurriedly

signed a "memorandum of understanding" (MOU) on a rescue scheme, the centerpieces being state purchase of Edison's share of the intercity power grid, plus a plan for ratepayers to pay off the utility's debts. The Edison scheme has been denounced as a "bailout" by consumer activists and faces certain legislative rejection, despite a multimillion-dollar lobbying and public relations drive by the utility. And it's sparked a complex set of private maneuvers in and around the Capitol that are fraying the already cool relations between Davis and the Legislature's most powerful leader, Senate President Pro Tem John Burton. Davis called a dozen senators into his office Monday to press approval of the Edison MOU with minimal changes. Burton, who didn't attend, says the governor threatened legislators with rejection of their bills or budget appropriations if they didn't play ball, and promised retaliation if Davis uses strong-arm tactics for Edison. "On an issue like this, they (legislators) ought to be able to vote their consciences," Burton told reporters, denouncing the Edison deal as a "flat-ass bailout." Davis spokesman Steve Maviglio rejected Burton's account: "The governor's too smart to do any of that." As the public squabbling heats up, so is the private search for a compromise that Edison, consumerists and other principal players can accept -- without much confidence that it can be found. A dizzying array of MOU alternatives is being floated, including an effort by Burton and Assembly Speaker Bob Hertzberg to persuade Edison creditors to write off part of the debt, and for big industrial and power consumers to shoulder the rest in return for recapturing the authority to make power supply deals outside the utility grid. In effect, the plan would create two power systems, one with regulated rates for individual and small business customers and unregulated "direct access" for big users. Former Assemblyman Phil Isenberg, a lobbyist whose firm includes energy generators, is acting as a mediator on behalf of Hertzberg. Sources close to the negotiations say the big users won't entertain the deal until they know how much power the state has been buying, and at what prices. Davis has insisted on keeping that data secret, and has been sued by the news media and others to force release, but on Tuesday announced that he will agree to opening the supply contracts to inspection. The chances of an Edison deal coming together this summer are no better than 50-50 -- about the same odds of the state's completing its bond sale. And those uncertainties are compounded by great fears that California still faces the prospect of widespread and prolonged power blackouts this summer. "I don't think it's over," Burton said Tuesday in a jab at Davis.

The Bee's Dan Walters can be reached at (916) 321-1195 or dwalters@sacbee.com .

Message 417 of 1299

Re: Utilization of Mike Day

Sender	jeff.dasovich@enron.com
Recipients	['paul.kaufman@enron.com', 'richard.shapiro@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/12512.

Looks complete to me. No comments.

Best, Jeff

Paul Kaufman/ENRON@enronXgate 05/15/2001 11:30 AM

To: Richard Shapiro/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron cc: Subject: Utilization of Mike Day

Rick, Jim and Jeff: Here's a draft of the e-mail I intend to send to Sandy and Mike re: use of Mike Day in Sacramento. Let me know your thoughts.

It appears from talking with both of you that we have some confusion on how we will contract for legal services to support or legislative efforts. Hopefully this e-mail will clarify the process so there is no confusion in the future and so that Mike can feel comfortable he is completing work that is authorized and for which we have a budget.

1. To begin, it appears that Goodin, MacBride has billings as of May 11 for approximately \$10,000 on direct access, windfall profits, the "Global Settlement," Power Plant Siting. We will cover these amounts because of the apparent confusion with our budgeting and approval process. The amounts already incurred should be included in the RCRs discussed below.

2. As we discussed yesterday, the work associated with the billings in May was conducted without any RCR approval or any budget in place. As you know we terminated the two legislative retainers at the end of April. No RCRs were filed to cover the matters on which work was completed in May.

I did receive a budget on legislative matters on May 8. However, a decision was made only yesterday to proceed on a specific matter-by-matter basis; the work in May should not have been undertaken while we considered whether to proceed with an overall legislative budget or proceed with specific RCRs. In short, a proposed budget is not RCR approval.

3. In the future, any work undertaken by Goodin MacBride should only be conducted pursuant to an approved RCR. If an emergency arises--i.e., an issue arises that could not have been contemplated, then I should be contacted before completing any work. If I am unavailable, Jim Steffes should be contacted. If Jim is unavailable, then Rick Shapiro should be contacted. In this regard, I authorized Goodin MacBride to participate in the Direct Access coalition meetings taking place today and tomorrow. I also authorized Goodin MacBride to participate in a telephonic conference on the Calderon bill. To the maximum extent possible, I expect that Mike will include Leslie Lawner in future Direct Access meetings, legislative drafting efforts, etc.

4. If there is any confusion on whether there is RCR approval for a particular matter, I should be contacted before undertaking an assignment. If I am unavailable, Jim Steffes should be contacted. If Jim is unavailable, then Rick Shapiro should be contacted. I can be reached through my office line--503.464.7945, pager--888.916.2262, or cell phone 503.539.4733. I wear the pager at all times and respond immediately to messages left on the pager.

5. Today, Sandy is filing several RCRs for legislative support on Direct Access, Siting, Windfalls Profits, and the Global Settlement. They will be considered at next Monday's RCR conference call. If they are approved, Sandy will manage the Goodin MacBride assignments associated with Direct Access, Siting, and Windfalls Profits.

Jeff Dasovich will manage all work associated with the Global Settlement, whether it is legislative or not. This does not mean that Sandy cannot give assignments to Goodin MacBride; it simply means that before that work begins Jeff must approve the work.

This particular issue is a critical matter for our company. Jeff is involved in the strategy and business calls concerning this matter and is working on a daily basis with Jim Steffes, Rick Shapiro and Steve Kean to develop our position and advocate that position in the settlement discussions. We must ensure that our Sacramento efforts are fully coordinated with our strategy and business interests (as they develop through the settlement discussions). To avoid any confusion on the scope of Jeff's responsibility, I consider all legislation addressing the Edison MOU, any future MOUs with Sempra, and "Plan B," to be part of the Global Settlement.

Please contact me if you have any questions regarding any of the above. I recognize that Sacramento is a difficult environment and that there is substantial pressure on both of you. However, we are under an obligation to use our internal and external resources in the best and most cost-effective manner. The RCR process is designed to meet that responsibility.

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[IMAGE]

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Connell Press Conference

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File	dasovich-j/all_documents/12830.

State Controller Kathleen Connell held a press conference earlier today to discuss four aspects of the energy crisis: achievement of long-term energy contracts; price per megawatt-hour; property tax assessment of power plants; and possible anticipation of revenues in the coming year.

While she made mention of generators, her remarks were primarily comparing the Governor's plan, which is based upon three assumptions to the reality of the situation. The three assumptions are: success of long-term contracts; spot market prices and anticipated revenue. Specifically, she said:

In regards to long-term contracts, the Controller indicated that less than 1% of California's energy purchases are through long-term contracts compared to the anticipated 40%. In addition, most of these contracts are for prior to July 1 and after September 30. And most of the terms can be renegotiated if revenue bonds aren't approved. Governor assumes spot market prices will decrease to \$195/mwh this summer. Currently prices are higher than this, and there is no indication that they will drop. [Connell made mention of a \$533.2 million check made out to Mirant by the state for purchases in the spot market -- instead of through long term contracts. She also made mention of the Reliant purchase @ 1,900/mwh.] State may fall short \$4 billion (more or less) requiring Connell to re-lease "revenue anticipation notes in February to make up for shortfall. (These don't require approval by the legislature, and must be repaid within a year.) In her capacity at the State Board of Equalization she will hold a hearing in June to reassess property values at California's generating plants to ensure that generators are "paying their fair share" in taxes.

Below is a copy of a Dow Jones article on the event....

Thanks, Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

Calif Controller: State Behind On Long Term Contract Buys Updated: Monday, May 21, 2001 04:41 PM ET
LOS ANGELES (Dow Jones)--California State Controller Kathleen Connell said Monday that she anticipates the state will need to issue \$4 billion in revenue anticipation notes in February, because a \$13.4 billion revenue bond issue in mid-August will not be enough to cover power purchases.

The state is likely to spend more on spot market purchases than the administration has anticipated because the price of summer power will be higher than expected and because the state has secured fewer long-term contracts than expected, she said. "The administration projected we'd spend \$925 million for long-term contracts in the first six months (of 2001). We've now spent only \$36.4 million on long-term contracts of a total \$5.1 billion spent on energy purchases - less than 1%," Connell said.

It is unlikely that an additional \$890 million in long-term contracts will flow through her office in the next five weeks, Connell said.

Gov. Gray Davis' energy plan assumes that 32% of all power needs through 2001 will be met through long-term contracts, with 40% met by long-term power in the summer months, Connell said.

However, the state has not secured as many long-term contracts "as we would hope to see," and many of the contracts cover periods before July 1 or after Sept. 30, Connell said.

Connell said she had received 25 contracts with 17 generators thus far.

One of Davis' energy aides said that there were seven more contracts for=20 summer reliability and peaking power on their way to the controller's office. e.=20

He added that the controller was basing her evaluation on somewhat old=20 information, as there is a time delay between when deals are done and when= =20 the controller is notified.=20

"I don't doubt the controller is accurate in what she is seeing, but the=20 billing is done in arrears," Davis energy aide Joseph Fichera said on a=20 conference call. "For example, April contracts are billed by May 20."=20

The controller said her analysis reflects checks written as of May 17.=20

A \$5 billion rate increase approved last week for utilities may not provide= =20 adequate revenue to the CDWR, Connell said.=20

"We may be short as much as \$1.7 billion in revenues to cover the projected= =20 expenses of the CDWR," Connell said.=20

The state is now dipping below its cash flow into borrowable resources and= =20 will exhaust those resources by the end of August, making a timely revenue= =20 bond issue crucial, Connell said.=20

Connell added that she will hold hearings in June to determine whether=20 generating plants formerly owned by utilities are being assessed for proper= ty=20 taxes at an appropriate level.=20

"Given (the generators') record profits, we will review whether there needs= =20 to be an additional assessment," Connell said.=20

-By Jessica Berthold, Dow Jones Newswires; 323-658-3872;=20 jessica.berthold@dowjones.com

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[IMAGE] E-Vanta 16MB AGP By eVGA Video Cards

Features: 128-bit TnT2 Vanta (100MHz clock) 16MB 7ns 64-bit SDRAM Memory (125MHz clock, 1.0 GB/sec bandwidth) 300MHz RAMDAC Built-In ...More

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[IMAGE] Z53 Inkjet Printer 2400X1200 DPI 16/8 PPM By Lexmark

Lexmark's Z53 Color Jet printer offers 2400 x 1200 DPI resolution in both black and Color, print speeds up to 15PPM in black and 7PPM in Color and Lexmark's exclusive accu-feed paper handling offers dependable feeding on a wide range of paper from envelopes to transparencies and everything in between.

??\$119.95 [IMAGE]

[IMAGE] EtherFast 5-Port 10/100 Auto-Sensing Desktop Hub By Linksys

EtherFast 10/100 Auto-Sensing Hubs are the fastest, most economical way to build or extend an enterprise 100Mbps network! Available in 8, 16, and 24-port ...More

??\$40.91 [IMAGE]

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[IMAGE]

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FW: SEC Probes Possible CFO Conflict at Enron

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FYI. Sure you've seen it, but just in case. Non-energy-related friend of mine emailed it to me.

Best, Jeff

<http://www.cfo.com>

CFO.com's Today in Finance

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Monday, October 22, 2001 Related Party Crashers? SEC Looking Into Possible Conflict on Interest at Enron

By Stephen Taub

The Securities and Exchange Commission has requested that Enron provide information regarding certain related party transactions.

"We welcome this request," said Kenneth L. Lay, Enron chairman and CEO in a prepared statement. "We will cooperate fully with the SEC."

Enron, North America's biggest buyer and seller of natural gas and electricity, noted that its internal and external auditors and attorneys reviewed the related party arrangements, the Board was fully informed of and approved these arrangements, and they were disclosed in the company's SEC filings. "We believe everything that needed to be considered and done in connection with these transactions was considered and done," Lay added.

As we noted on Friday, a limited partnership organized by chief financial officer Andrew Fastow racked up millions of dollars since 1997 in profits from transactions conducted with the energy company, according to The Wall Street Journal. The partnership reportedly renegotiated the terms of deals with Enron in ways that boosted its financial positions or reduced its risk of losses.

REPORT: E&Y REVENUES NEARLY HALVED Later this week, Ernst & Young will announce that its revenue growth was nearly halved in the fiscal year ending June 30, according to the Financial Times.

Specifically, the Big 5 professional services firm will report that revenues rose by 7.2 percent to \$9.9 billion for the year. In fiscal 2000, revenues climbed by 14.1 percent, and by 13.5 percent the prior year.

The reason for the drop in revenue growth may be that E&Y fetches most of its business from the United States, and the U.S. economy tanked in the first half of this year.

"We have been successful this year, despite the economy and during a period of great challenge and change in our profession," chairman James Turley told the FT.

Rival Andersen has already reported that revenues rose 10 percent this year through August 31.

Another reason for E&Y's revenue retrenchment: the strong dollar. The firm is expected to announce that revenues increased 12.4 percent in local currency terms, according to the paper.

Turley told the FT that his clients are less focused on the longer term and are instead concentrating on watching expenses, cash management, debt covenant issues, and security concerns. "We're going to see more covenant violations and that will drive restructuring issues," Turley told the FT.

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Take CFO's Budgeting and Planning Software survey. The results of CFO's survey will be used in a December Technology Report that will examine the change management issues that surround implementations of this type of software in organizations. All responses will only be used in the aggregate. Your input is important, please take a moment and participate. Thank you! <http://charts.cfo.com/cfomag/bpsurvey1.html>

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[IMAGE]

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[IMAGE] High-performance PCMCIA Wireless Adapter By D-Link Systems

Check out this Wireless Kit from D-Link. Now until April 30, 2001 receive special pricing from PROVANTAGE Corporation to help defer shipping and handling costs. Order Now - Limited Time Offer!

??\$415.95 [IMAGE]

[IMAGE] FileMaker Pro v5.0 for Windows By FileMaker

FileMaker Pro 5 software brings instant productivity to business workgroups, helping you manage, organize, and share important information with colleagues ...More

??\$226.95 [IMAGE]

[IMAGE] DR-5080C ADF 90ppm 400dpi A3 Dupl 500-Sheet HD50 R By Canon

The DR-5080C is a high-speed desktop document scanner that delivers the added advantage of 24-bit color scanning in addition to its 8-bit grayscale scanning ...More

??\$6340.00 [IMAGE]

[IMAGE] GLADIAC 920 64MB for AGP GeForce3 Graphics Accel By ELSA Inc

The ELSA GLADIAC 920 goes beyond any imaginations and expectations you have about 3D graphics. Its core is the NVIDIA GeForce3, the first fully programmable ...More

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[IMAGE] Increase Your Storage Capacity

Need more storage for your existing system? PROVANTAGE has a huge selection of drives to meet your needs.

[IMAGE] Wireless Network Access Point **Limited Quantity** By Linksys

The Instant Wireless Access Point's high-powered antenna offers a range of operation of up to 800 feet, providing seamless roaming throughout your wireless ...More

??\$235.59 [IMAGE]

[IMAGE] Illustrator v9.0 for Windows 9x/NT/2000 By Adobe Systems - Retail Products

With Adobe Illustrator 9.0 software, you can easily transform your ideas into dazzling graphics for use on the Web, in print, and in dynamic media. Design ...More

UPGRADE??\$133.89 [IMAGE]

[IMAGE] Memory At Great Prices!

SIMMS, DIMMS and the like - we've got them all!

[IMAGE] Professional Printers at Affordable Prices

Our huge selection of printers are designed for business professionals and home users alike.

[IMAGE] Wireless Base Station + Mouse Bundle By Intel

The new Intel Wireless Series Keyboard and Wireless Mouse give you the freedom to move around or just get comfortable, and they eliminate the usual desktop ...More

??\$61.95 [IMAGE]

[IMAGE] Smart 450 VA Rack-Tower 3 Min-Full 5-Outlet By Tripp Lite

Software and cabling included for all the control and power management of the SmartPro UPS in a 19" rackmount configuration with "Hot Swap" battery capabilities. ...More

??\$184.95 [IMAGE]

[IMAGE] QuickBooks Pro 2001 By Intuit

\$80 rebate for previous QuickBooks or QuickBooks Pro users. Offer ends December 31, 2001. The tools you need to manage your business finances ...More

??\$206.95 [IMAGE]

[IMAGE] Design Tools for the Graphics Professional

Whether you are a desktop publisher or a web designer these design tools and accessories will surely enhance your final product!

[IMAGE] Via Voice for Windows Pro Edition v8.0 By IBM Software

ViaVoice for Windows, Standard Edition is ideal for users wishing to dictate text directly into the ViaVoice enabled word processor, SpeakPad, or directly ...More

??\$158.95 [IMAGE]

[IMAGE] Nylon CD Wallet - 256 Disc Capacity By Case Logic

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??\$31.95 [IMAGE]

[IMAGE] New Version!

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Telecom Services: Broadband Services: USA: Analysts still

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To: 123363@WCTOPICS.djnr.com cc: Subject: Telecom Services: Broadband Services: USA: Analysts still bullish on Enron broadband unit ...

USA: Analysts still bullish on Enron broadband unit prospects. By C. Bryson Hull

03/15/2001 Reuters English News Service (C) Reuters Limited 2001. HOUSTON, March 15 (Reuters) - Wall Street took a hard look at Enron Corp.'s content delivery plans this week after it ended its video-on-demand deal with Blockbuster Inc. , but remained largely unfazed by the failure of the flagship deal, analysts said on Thursday. On balance, most analysts viewed the busted 20-year exclusive agreement as disappointing, but by no means a fatal blow to Enron Broadband Services' (EBS) budding content delivery segment. Most reiterated buy or strong buy ratings for the Houston company and maintained bullish earnings targets for the Enron Broadband Services division. But all are awaiting an indication of how Enron will reconfigure the content delivery initiative. "I think Blockbuster represented kind of an anchor tenant for the broadband business, so they have lost a contract that was important," said Jeff Dietert, an analyst with Houston investment house Simmons and Co. Now EBS will have to pursue smaller contracts to make up the loss, which could mean a longer road to create as big a book of business, Dietert said. EBS executives have said they expect to have \$1 billion in total contracted business by the end of 2001. CHASING MORE CONTRACTS TO FILL VOID EBS Chairman and Chief Executive Officer Kenneth Rice on Friday said his division is already pursuing deals with content providers to send on-demand games, movies, music and television over the Enron network. UBS Warburg analyst Ronald Barone, in a research note released Monday, said he still believes Enron will hit the \$1 billion mark in 2001. "Though this announcement is clearly a disappointment we have a great deal of confidence in the judgment of Enron's senior management and of the upside associated with this business," Barone wrote. His report reiterated a strong buy recommendation and 12-month stock price target of \$102 a share, with EBS accounting for \$25 of that. One analyst remained skeptical of the content delivery plans. "Where they go from here is one of things they have to tell the market in a convincing fashion," said Commerzbank Securities analyst Andre Meade, who raised Enron to accumulate from hold on Thursday. But he also cut earnings targets for the EBS segment to \$8.40/share because of the failed Blockbuster deal. Heady cash-flow projections figured heavily in Enron's guidance for 2001, which called for a stock price of \$126, of which EBS would account for \$40, Meade said. Meade, whose company initiated coverage on Enron in late May 2000, had been alone among Enron analysts in keeping a hold rating on the stock. Merrill Lynch analyst Donato Eassey on Monday released a note reiterating his buy recommendation with a \$99/share price target. "While the separation from such a high-profile name is disappointing, we do not view this as negative," Eassey wrote. "This could in fact actually accelerate Enron's content delivery strategy." Eassey pointed out that Enron and Blockbuster's trial in Seattle, Salt Lake City, New York and Portland, Ore., proved Enron can deliver movies on demand. That gives them a track record to show to potential customers like movie studios and other entertainment concerns that want to provide content directly through their Web sites, he said. Enron's stock closed on Thursday at \$66.53, up \$3.78, compared with its 52-week range of \$59.99 to \$90.5626.

Folder Name: Telecom Services: Broadband Services Relevance Score on Scale of 100: 80

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Linksys is offering a \$30 mail-in rebate on the BEFW11S4 and BEFW11P1. Offer good June 23 until July 14, 2001! Limit 2 per customer. ...More

??\$236.15 [IMAGE]

[IMAGE] Backup Exec for NT/2000 Server Edition By Veritas

Protecting data should be as easy as creating the data. Backup Exec provides an easy-to-use graphical user interface, along with wizards to walk any level ...More

??\$478.15 [IMAGE]

[IMAGE] Montego II Voice Recognition w/Sound Card By Voyetra Turtle Beach Systems

Enter the world of voice-activated computing! Whether you enjoy playing games, recording or just listening to music, Montego II with L&H VoicXpress ...More

??\$33.19 [IMAGE]

[IMAGE] JBuilder v5.0 By Borland

JBuilder 5 Professional is a comprehensive, award-winning visual development environment for creating Java 2, platform-independent database and Web applications. ...More

UPG FROM 4.0 PRO/FOUNDATION??\$752.15 [IMAGE]

[IMAGE] 8-Port MasterView Plus KVM Switch PS2 & AT Support By Aten

Your business is growing faster than you expected and four computers simply aren't enough to meet your needs? Not a problem. The eight-port MasterView ...More

??\$321.35 [IMAGE]

[IMAGE] Norton Personal Firewall 2001 v3.0 for Windows NT By Symantec

\$10 rebate (\$15CDN) for owners of all retail (boxed or downloaded), standalone versions of Norton Personal Firewall 2000, Norton Personal Firewall ...More

??\$41.53 [IMAGE]

[IMAGE] 50X Reader EIDE ATAPI 128K 150MS 7500KB/Sec By ASUS

The ASUS CD-S500 breaks through the bottlenecks inherent in traditional CD-ROM technology with innovative solutions to sustain accuracy and stability of ...More

??\$38.95 [IMAGE]

[IMAGE] Rumble-FX Force Feedback Headphones By Evergreen Technologies

The revolutionary RumbleFX headphones actually shake and vibrate for a totally addictive sensation that takes the virtual reality of positional audio all ...More

??\$37.43 [IMAGE]

[IMAGE] AUA-3100LP Kit USB2Connect HBA 3-Ext/1-Int USB 2.0 By Adaptec

USB 2.0 is the fastest USB standard yet released, supporting data speeds up to 480 megabits per second (Mbps). That's 40 times faster than USB 1.1. It ...More

??\$56.69 [IMAGE]

[IMAGE] New!

Phaser 860B Printer 16ppm 64MB 1200dpi By Xerox/Tektronix

Print speeds so fast, you'll need to run to get to the printer before the job is done. Engineered to be so simple that you will actually love using it. ... More

??\$1934.73 [IMAGE]

[IMAGE] New!

CanoScan D2400UF Flatbed USB 2400 x 4800dpi PC/Mac By Canon

Professional Photo and Film Scanning.

For professional-looking projects, you need a scanner that works like a pro. The CanoScan ...More

??\$441.93 [IMAGE]

[IMAGE] SmartMedia 32MB 3.3V By Delkin Devices

SmartMedia is a small, durable flash memory card that works in many different electronic devices, including Fuji, Olympus, Ricoh, and Agfa digital cameras, and MP3 audio recorders like the Diamond Rio.

??\$23.85 [IMAGE]

[IMAGE] nVIDIA GeForce2 MX-400 64MB AGP 4X DVD/3D By Jatton Corporation

GeForce2 MX400 continues nVIDIA's tradition of bringing leading edge technology to the mainstream with its cost-effective, integrated VGA, 2D, 3D, and ...More

??\$94.75 [IMAGE]

[IMAGE] Flipdisk 6-12GB By Amacom

Flipdisk utilizes a unique patented flip PC card hinge mechanism which folds away neatly & compactly into the unit - eliminating the need for cumbersome ...More

??\$279.45 [IMAGE]

[IMAGE] 40x/16x/10x Rewritable EIDE Internal By TEAC America, Inc.

The TEAC 16x10x40 CD-RW drive writes data or audio files at 16X (CD-R), rewrites at 10X (CD-RW) and can playback at 40X (CD-ROM) speeds, coinciding with ...More

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[IMAGE] Crystal Reports v8.5 Developer Edition By Crystal Decisions

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??\$364.53 [IMAGE]

[IMAGE] PhotoSmart 618xi Digital Camera 2.11MP By Hewlett Packard

2.11 Megapixel resolution with HP Imaging Technology; Pentax 3x optical zoom lens, 2x digital zoom; Manual controls: aperture and shutter priority, picture ...More

??\$366.94 [IMAGE]

[IMAGE] 128MB Smart Media Card 3.3v By Viking

Receive a \$25 rebate direct from Viking Components when you purchase Viking Part# SSFDC3/128 128MB Smart Media Card between June 1, 2001 and June 30, 2001. ...More

??\$125.62 [IMAGE]

[IMAGE] GoPrint/XL Printer Adapter By AeroComm Inc.

Wireless printer-sharing system that allows up to 64 PCs to share up to 6 printers. Print from up to 125 feet; eliminates the need for networking ...More

??\$143.56 [IMAGE]

[IMAGE] PYRO CardBus 1394DV for Notebooks By ADS Technologies

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??\$78.95 [IMAGE]

[IMAGE] New!

PhotoPC 3100Z Digital Camera 4.8Megapixel 6x Zoom By Epson

Whatever you create, from snapshots to enlargements to web-ready video clips, this digital camera has the tools you need to succeed. This high-value camera ...More

??\$684.65 [IMAGE]

[IMAGE] HipZip MP3 Player Kit USB w/2 40MB Disk, Head Phones By Iomega

Get a \$50 Rebate direct from Iomega from February 17, 2001 through June 30, 2001. ...More

??\$172.94 [IMAGE]

[IMAGE] IntelliFlash USB Flash Memory Reader By Viking

Compact Flash is currently the world's smallest removable data storage system based on flash technology. Compact Flash cards are about one third the size ...More

??\$72.98 [IMAGE]

[IMAGE] Pocket CD98 24X Max USB (with USB Cable) By Addonics

PocketCD98 is the "go anywhere" CD-ROM Drive that connects to any PC through the PC Card (PCMCIA) slot or USB port. It's compact enough for any briefcase ...More

??\$135.27 [IMAGE]

[IMAGE] Stylus Color 777 Ink Jet 2880x720 12ppm USB By Epson

The EPSON Stylus Color 777 ink jet printer delivers remarkable print speed, superb output and outstanding value. Ideal for home and home office, this feature-rich ...More

??\$74.94 [IMAGE]

[IMAGE] PDC 640 Plus Digital Camera 640X480 VGA 8MB By Polaroid

A mid-level digital camera with an LCD color display, multiple flash modes, self-timer and a removable 8MB memory card.

??\$149.30 [IMAGE]

[IMAGE] New!

ZyWALL 10 Internet Security Gateway By ZyXEL

The broadband network boom has changed how people use the Internet. Many computers are wired to Internet 24 hours a day, and most of them are exposed to ...More

??\$264.94 [IMAGE]

[IMAGE] Que! Fire DVD-RAM 9.4 GB External FireWire 1394 Dr By QPS Inc.

The Que! DVD-RAM Fire Drive is ideal for desktop publishing, archiving and presentations. With the Que! DVD-RAM Fire Drive, DVD movies and MPEG-2 can be ...More

??\$505.64 [IMAGE]

[IMAGE] ML591 24-Pin 120V 360CPS Wide Parallel By Okidata

Microline 590 and 591 OKISmart Paper Handling for hassle-free, reliable switching between different media. This 24-pin dot matrix printer adjusts to ...More

??\$596.99 [IMAGE]

[IMAGE] OmniCube 4-Port KVM Switch By Belkin

The Belkin OmniCube 4 Port KVM Switch is the most economical solution for controlling four PS/2 computers from one keyboard, mouse and monitor. It support ...More

??\$99.55 [IMAGE]

[IMAGE] Caviar 40.0GB 7200RPM EIDE Ultra-ATA/100 By Western Digital

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??\$144.55 [IMAGE]

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Re: Cal-ISO Wants Pwr Generators To Forward Bid 70% -Sources

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Recipients	['t.briggs@enron.com', 'jeff.dasovich@enron.com', 'joe.hartsoe@enron.com', 'james.steffes@enron.com']
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The trading floor needs to formulate a position on this first. When is your meeting Tom?

From: James D Steffes@ENRON on 10/24/2000 01:05 PM CDT To: Joe Hartsoe/Corp/Enron@ENRON, Mary Hain/HOU/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Susan J Mara/SFO/EES@EES cc: Tom Briggs/NA/Enron@Enron, Cynthia Sandherr/Corp/Enron@ENRON Subject: Cal-ISO Wants Pwr Generators To Forward Bid 70% -Sources

Can everyone help Tom respond within Congress to this message? Tom, also be forewarned that FERC intends to announce their "proposed remedies" on Nov 1 with about 15 days for response. We need you guys to be ready for

messaging this politically.

Jim

----- Forwarded by James D Steffes/NA/Enron on 10/24/2000 01:03 PM -----

Tom Briggs 10/24/2000 12:32 PM

To: James D Steffes/NA/Enron@Enron, Mary Hain/HOU/ECT@ECT cc: Subject: Cal-ISO Wants Pwr Generators To Forward Bid 70% -Sources

It seem sthat the Cal Iso has lost its mind. Cynthia and I have been trading phone calls with Bilbray's staff to schedule a meeting. In the event we can get one, can I have help rebutting this stuff. It seems that the England and Wales Pool, which effectively compelled 100% bidding in the day ahead market was still fraught with gaming between the day ahead market and the within day balancing market. ----- Forwarded by Tom Briggs/NA/Enron on 10/24/2000 11:22 AM -----

Cynthia Sandherr 10/24/2000 10:32 AM

To: Tom Briggs/NA/Enron@Enron cc: Subject: Cal-ISO Wants Pwr Generators To Forward Bid 70% -Sources

Tom: when we meet with Congressman Bilbray's staff, is this something we should bring up and have a position on....I would assume yes.....but wanted to close the loop..... --

Cal-ISO Wants Pwr Generators To Forward Bid 70% -Sources Copyright , 2000 Dow Jones & Company, Inc.

By JASON LEOPOLD Of DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--The California Independent System Operator is expected to file a petition with federal regulators Friday seeking authority to force generators to bid 70% of their supply into the forward market in an effort to reduce wholesale power costs in the state, according to a source familiar with the issue.

An official with the state's Electricity Oversight Board confirmed the details of the filing.

The filing calls for FERC to set a "just and reasonable" rate for a large fraction of suppliers' capacity, while remaining supply would be able to earn market-based rates, according to the source.

In addition, major out-of-state generators would have to enter into forward contracts at FERC mandated rates for "a significant portion of their expected sales."

ISO Chairman and Chief Executive Terry Winter will hold a news conference Friday morning that will focus on possible solutions to lower wholesale energy costs. He is expected to announce how bidding into the forward market will stabilize high wholesale power costs.

The state's Public Utilities Commission is expected to make a similar filing with federal regulators in the near future, sources said.

In addition, forcing generators to bid into the forward market is a measure that would reduce market power in the state and would protect a majority of utilities served by the generators from the cost impact of market power, the ISO has said in prior meetings.

Market power is a term used by economists to describe how generators can influence power prices. According to an ISO report, market power occurred this past summer because tight power supply and concentration of generation ownership "allowed suppliers to be pivotal at relatively high demand periods."

About 50% to 60% of the power purchased this past summer was done in the spot market, an unusually high percentage, according to the ISO.

In order to mitigate market power, the filing calls for utilities to enter into two-year forward contracts with generators to shield against the daily market price fluctuations.

Regulatory constraints associated with forward contracting was a "key source of high (power) costs in the summer of 2000," according to an ISO report.

The ISO action will be taken without approval from a the grid operator's board of governors. Usually, a majority of the board is required to approve such an action.

EOB Official Surprised By ISO Action

The announcement of the ISO's expected filing came as a surprise to Gary Heath, executive director of the state's Electricity Oversight Board. Heath told Dow Jones Newswires he was aware of the filing and news conference.

"We're trying to find out what's behind this," Heath told Dow Jones Newswires. "We're not sure if they could do this without board approval. It came as a surprise."

Sources said the agency is holding the news conference in an attempt to eclipse imminent structural changes to the ISO expected to be proposed by the Federal Energy Regulatory Commission next month.

FERC launched an investigation into California's troubled power market this past summer based on allegations that the market isn't workably competitive and participants manipulate the market. Energy officials have blamed the ISO for this summer's power woes.

-By Jason Leopold; Dow Jones Newswires; 323-658-3874; <mailto:jason.leopold@dowjones.com>

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[IMAGE] 1000/630 7-Min Full/18-Min Half 6-Outlets By Best Power

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[IMAGE]

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Message 434 of 1299

Sun Microsystems

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File	dasovich-j/all_documents/10668.

Ken Lay put a call in today to Scott McNealy. His office called back to find out what specific bill included direct access. When I called back, they put me in touch with Mavis Toscano, who's in Sun Microsystems' state and local government affairs office. She's Scott's point person on public policy, and she's been working on the energy issue. Mavis had done some checking and no one had heard anything about direct access.

Sun is active in three main trade associations: the Chamber, the American Electronics Association (AEA) and Technet. None of those organizations said their members were asking for direct access, but Mavis promised to put calls in to them and get direct access on the radar screen. Although she said they're not inclined to send letters, Mavis said she'd make some calls into the legislators, specifically Bowen.

Contact info:

Mavis Toscano 901 San Antonio Road MS PAL 01-554 Palo Alto, CA 94303 650-336-7115 650-336-0835 - fax mavis.toscano@sun.com

Message 435 of 1299

Riverside Press-Enterprise: Power industry feels state's grip tig

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File	dasovich-j/all_documents/28205.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/28/2001 11:20 AM -----

"Beiser, Megan" <Megan.Beiser@edelman.com> 06/28/2001 10:19 AM

To: "arem@electric.com" <arem@electric.com>, "Allen, Stevan" <stevan.allen@edelman.com>, arm@phaser.com, Bob_Anderson@apses.com, "brbarkovich@earthlink.net" <bbarkovich@earthlink.net>, cra@calretailers.com, dennis.flatt@kp.org, dhunter@s-k-w.com, Dian Grueneich <dgrueneich@gralegal.com>, djsmith@s-k-w.com, Dominic.DiMare@calchamber.com, drothrock@cmta.net, "Fairchild, Tracy" <tracy.fairchild@edelman.com>, gdoar@newpower.com, gharrison@calstate.edu, hgovenar@govadv.com, jackson_gualco@gualcogroup.com, James Simonelli <ccma@foundryccma.org>, "jerryl@abag.ca.gov" <jerryl@abag.ca>, .gov@mailman.enron.com, johnlatimer@capitoladvocacy.com, ken_pietrelli@ocli.com, kgough@calpine.com, kmccrea@sablauw.com, kmills@cbbf.com, lhastings@cagrocers.com, "Manuel, Erica" <Erica.Manuel@edelman.com>, mday@gmssr.com, mmoretti@calhealth.org, nplotkin@tfglobby.com, randy_britt@robinsonsmay.com, richard.seguin@kp.org, RochmanM@spurr.org, rrichter@calhealth.org, sgovenar@govadv.com, smccubbi@enron.com, spahnn@hnks.com, sschleimer@calpine.com, theo@ppallc.com, vincent.stewart@ucop.edu, vjw@ceert.org, "Warner, Jami" <jami.warner@edelman.com>, wbooth@booth-law.com, wbrown@lhom.com, wlarson@calstate.edu cc: Subject: Riverside Press-Enterprise: Power industry feels state's grip tig htening

Here's another direct access-related from the Riverside Press-Enterprise.

Power industry feels state's grip tightening Deregulation's hallmark right to choose a new power provider may disappear today. BY ROBERT T. GARRETT THE PRESS-ENTERPRISE SACRAMENTO Only a year or two after California lunged to the head of the pack in deregulating electricity, the state now seems headed in virtually the opposite direction: Government is in the driver's seat. By summer's end, the state may end up with more control of the electric industry than was true for several decades before a flawed deregulation plan was passed in 1996. Today, for example, the state Public Utilities Commission is expected to put an end to what was supposed to be a hallmark of the 1996 law -- the ability of residential and business customers to shop for a new electricity provider. In August, a new state Consumer Power and Conservation Financing Authority comes into being. It will be able to borrow \$5 billion to build or subsidize new power plants, make old ones cleaner and more efficient, and help homeowners and small businesses take energy-saving steps. At a Senate hearing Wednesday on the future shape of the electricity market, Democratic lawmakers, aides to Gov. Davis and consumer advocates spoke favorably of a strong state role in planning and coordinating the generation and transmission of electricity. "Never again will we embrace the free market," said David Freeman, Davis' leading energy adviser. ". . . We want something of a hybrid, (with) government restraints on market forces." But state Chamber of Commerce lobbyist Dominic DeMare said businesses fear policymakers are about to trample innovation and consumer choice. Also, the chamber's members want "the state out of the business of procuring electricity," he said. In January, the state began buying power for customers of California's three investor-owned utilities, which had been caught between soaring wholesale prices and capped retail prices. The state has signed \$43 billion in long-term contracts. But many witnesses at the Senate Energy Committee hearing extolled a greater role for the state than simply the buyer of last resort. Lenny Goldberg, a lobbyist for The Utility Reform Network, a consumer group, said the state should work toward permanent price caps on wholesale power, public ownership of all transmission lines, and regulation of retail prices that shields residents and small businesses from gyrating prices. Freeman, a long-time advocate of public power, said the long-term contracts and new state authority will help ensure a comfortable cushion of supply. "Then we can permit market forces . . . to play a vigorous role," he said. Sen. Debra Bowen, D-Marina del Rey, suggested the state should make sure its electricity supply always exceeds demand by 15 percent or more. Bowen said the price of building the extra generation could be considered insurance against blackouts and be spread across all customers in the state. The chamber's DeMare said he would prefer to leave decisions about new generation to the free market. "But are you willing to live with the results if the market does not come up with adequate supply," Bowen asked. "You can't have it both ways." Stuart Wilson, assistant

executive director of the California Municipal Utilities Association, warned that the state may bite off more than it can handle in trying to be a major power buyer, a regulator and a subsidizer of new power plants. "It's pretty complicated right now, and it's getting more complicated," Wilson said. ". . . We think it's pretty fraught with difficulty." Robert T. Garrett can be reached at (916) 445-9973 or by e-mail at rtgarrett@pe.com. Published 6/28/2001

Message 436 of 1299

Energy Issues

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File	dasovich-j/all_documents/28871.

Please see the following articles:

Sac Bee, Wed, 7/18: Lawmakers debate efforts to save Edison:=20 Competing bills range from a straight bailout to purchase of transmission= =20 lines Sac Bee, Wed, 7/18: PG&E sues state over seizure of long-term power contrac= ts=20 Sac Bee, Wed, 7/18: Energy Digest: Advocate attacks utility rescue plan Sac Bee, Wed, 7/18: Hour of decision: Who will pay for costly power of past= ,=20 future? (Editorial) SD Union, Tues, 7/17: Utility sues state seeking millions in seized power= =20 contracts=20 LA Times, Wed, 7/18: PG&E Sues State Over Contracts SF Chron, Wed, 7/18: Consumer prices up as energy costs moderate=20 SF Chron, Wed, 7/18: Contra Costa may upgrade 9 buildings=20 \$1.7 million earmarked for conservation=20 SF Chron, Wed, 7/18: Lawmakers devise rival bailout plans for Edison=20 Push to come up with alternative to bankruptcy before recess=20 SF Chron, Wed, 7/18: News briefs on the California power crisis=20 SF Chron, Wed, 7/18: State's largest utility sues state seeking millions in= =20 power contracts seized by governor=20 Mercury News, Wed, 7/18: Surplus state power sold at loss=20 Mercury News, Wed, 7/18: Light bulb moment (Commentary) LA Times, Wed, 7/18: California Trading, Wholesale Power Boost Duke's=20 Earnings 27%

Lawmakers debate efforts to save Edison: Competing bills range from a=20 straight bailout to purchase of transmission lines.=20 By Jim Sanders Bee Capitol Bureau (Published July 18, 2001)=20 Divided legislators began wrestling Tuesday with competing proposals to kee= p=20 one of California's largest private utilities, Southern California Edison,= =20 from going bankrupt.=20 Pressure is rising as Edison continues to struggle with more than \$3.5=20 billion in debt and a tentative plan by Gov. Gray Davis to buy the utility'= s=20 transmission lines for \$2.76 billion has attracted little support.=20 The question now is whether legislators will accept a modified version of t= he=20 governor's deal, will approve an entirely different rescue plan, or will=20 simply let Edison join Pacific Gas and Electric Co. in bankruptcy court.=20 "We're encouraged that at least there's activity and people are grappling= =20 with the issues," said John Fielder, an Edison senior vice president.=20 The Assembly's energy committee heard testimony on two of the competing=20 proposals Tuesday. The Senate's energy committee will take up the third pla= n=20 today.=20 The issue conceivably could be decided this week, since legislators are=20 scheduled to begin their summer recess Friday.=20 Of the three proposals under consideration, one would authorize state=20 purchase of Edison's transmission lines, one would provide an option to buy= ,=20 and one would simply tally Edison's debts and charge ratepayers to pay them= =20 off.=20 Some legislators favor doing nothing at all and letting a bankruptcy judge= =20 decide Edison's fate.=20 Steve Maviglio, a spokesman for Davis, said the Democratic governor support= s=20 anything that "comes close" to the tentative deal, hammered out in April, t= o=20 buy Edison's transmission lines.=20 Assemblyman Fred Keeley, D-Boulder Creek, and Assembly Speaker Robert=20 Hertzberg, D-Sherman Oaks, have proposed a rescue plan that would buy the= =20 lines at a lower price -- \$2.4 billion -- and would modify the governor's= =20 plan substantially.=20 Key elements of the bill would allow the state to buy Edison's hydroelectri= c=20 assets if the transmission-line sale falls through, allow businesses to=20 contract with private suppliers for electricity in 2003, and commit the sta= te=20 to paying only 70 cents of every dollar owed by Edison to power generators.= =20 The deal also would provide California with ownership or conservation=20 easements to more than 20,000 acres of land, and would require Edison to=20 increase its supply of alternative energy -- such as wind or solar. The=20 proposal is not expected to spark new rate hikes, Keeley said.=20 The Senate plan, like the Keeley-Hertzberg proposal, would require large an= d=20 medium businesses to pay down much of Edison's debts.=20

The Senate plan dedicates up to \$2.5 billion in large-user rates for debts involving banks and renewable energy sources known as "qualifying facilities." The plan, written by Sen. Byron Sher, D-Palo Alto, seeks to leave Edison with \$1 billion in debt from generators and marketers for the utility to work on its own. The Senate plan would give the state a five-year option to buy Edison transmission lines for book value -- about \$1.2 billion. Rather than provide conservation easements, the plan calls for Edison's environmentally sensitive acreage to be acquired by the state or a trust. Remaining parts of the proposal are similar to the governor's deal. A third proposal, pushed by several lawmakers, seeks to eliminate debt for Edison and PG&E. It would not involve transmission lines, conservation easements or other such elements. Advocates say Edison's debt stemmed largely from failed state regulatory policies, so the state should simply charge consumers a monthly fee to pay it off. "This is a straight bailout -- no hidden balls, no extras," said Assemblyman Rod Wright, D-Los Angeles. It is not yet known whether that monthly fee could fit within the existing rate structure. For homeowners, the amount is estimated at \$4 in the PG&E service area and \$2 within Edison's boundaries. Consumer groups are wary of the Edison rescue proposals, fearing the state will ultimately promise too much and get too little. "When a supermarket and dairy farmer both are forced to pay a 10-year bailout tax, the consumer pays more for milk," said Doug Heller of the Foundation for Taxpayer and Consumer Rights.

The Bee's Jim Sanders can be reached at (916) 326-5538 or jsanders@sacbee.com. Kevin Yamamura of The Bee Capitol Bureau contributed to this report.

PG&E sues state over seizure of long-term power contracts By Dale Kasler Bee Staff Writer (Published July 18, 2001) Reopening an old wound in California's energy crisis, Pacific Gas and Electric Co. has sued the state over a group of low-cost energy contracts seized almost six months ago by Gov. Gray Davis. The lawsuit, filed Monday in San Francisco Superior Court, stems from the collapse of the California Power Exchange and the state's entry into the power-buying business in January. PG&E and Southern California Edison had entered into a series of long-term purchase contracts through the exchange, a now-defunct market for buying and selling electricity. But as both utilities collapsed financially and the Power Exchange was clinging to life, the exchange seized the contracts and was about to auction them off for nonpayment of bills. That's when Davis stepped in. Using his emergency powers, the governor grabbed control of the contracts, saying he didn't want them resold at inflated prices. At the time, the exchange said the contracts were worth about \$1 billion, with PG&E's share set at \$348 million. But it's likely their value has fallen along with the spot market price of electricity. Back when the governor seized them, PG&E's contracts were for \$60 to \$130 a megawatt-hour. That was a bargain at the time, and made the contracts very valuable. Now that spot prices have plunged, those contracts are no longer such a great deal. PG&E's lawsuit didn't put a value on the contracts.

Message 437 of 1299

Re: Follow up with Alpert's Office

Sender	marty.sunde@enron.com
Recipients	sandra.mccubbin@enron.com , eric.letke@enron.com , heidi.messick@enron.com , jeff.dasovich@enron.com
File	dasovich-j/all_documents/10133 .

All I asked Eric to do was: ensure that there was an Enron contact if another complaint came in. find out from Alpert's office if we could call back a few of those who called to complain to find out what they perceived, correct the misperception, apologize.

From: Jeff Dasovich@ENRON on 03/19/2001 04:20 PM Sent by: Jeff Dasovich@ENRON To: Scott Govenar <sgovenar@govadv.com>, Eric Letke/DUB/EES@EES, Sandra McCubbin/NA/Enron@Enron, hgovonar@govadv.com, Susan J Mara/NA/Enron@ENRON, mpalmer@enron.com, Karen Denne/Corp/Enron@ENRON, Janel Guerrero/Corp/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, MDay@GMSSR.com, ken@kdscommunications.com, Marty Sunde/HOU/EES@EES cc: Subject: Follow up with Alpert's Office

Thanks, Scott.

Scott/Hedy/Sandi/Bev: Erik Letke heads up the retail marketing effort underway in San Diego. Marty Sunde wants Alpert to have an EES commercial contact that she can talk to in the event she has further questions, etc., He'd like Erki to be the contact person. Erik could you copy your vitals (title, contact info) to Scott and Hedy Govenar and Sandi McCubbin so they can forward along to Alpert?

Erik, seems that it would be useful if the customer letters to Alpert could make the following points (folks please weigh in and add/subtract/modify if needed):

The customer's glad to have had the option to take Direct Access service from Enron because having the opportunity to take advantage of the offer has made the customer better off. Direct Access is an extremely important option that customers need, want and should have going forward. Any "solution" that the Legislature comes up with must therefore include the continuation of Direct Access for all customers. As such, the Legislature should immediately fix AB 1X to make sure that Direct Access remains a permanent fixture of California's energy strategy. Direct Access customers should not be forced to pay for DWR's power purchase costs, since Direct Access customers aren't benefitting from those purchases.

Best, Jeff

Scott Govenar <sgovenar@govadv.com> 03/19/2001 04:01 PM

To: Jeff Dasovich <jdasovic@enron.com> cc: Subject: Dede

As discussed, customers should send letters to Dede as follows:

The Honorable Dede Alpert California State Senate State Capitol, Room 5050 Sacramento, CA 95814

Interested companies should copy: "Honorable Members of the California State Legislature" and fax or mail me a copy for further distribution. My fax is (916) 448-0816 and my address is 1127 11th Street, Suite #400, Sacramento, CA 95814.

Scott

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Power Online Newsletter

Sender	mynews@bouncedmail.vertical.net
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/743.

Power Online Newsletter -- <http://www.poweronline.com> Volume 3 Issue 80 Wednesday, August 23, 2000

Welcome to this issue of Power Online's (<http://www.poweronline.com>) electronic newsletter brought to you by VerticalNet. VerticalNet recently launched a new suite of capabilities for its Storefront customers. Among other things the suite includes an easier to navigate look and feel, and the ability to create an online catalog.

Based on customer comments, VerticalNet included in this update an expansion of its Virtual Office capabilities. The new features include enhanced reporting, greater "self-service," and fast access to information about other VerticalNet products and services--24 hours a day. In September, all Storefronts will be e-commerce enabled. To find out more and find out how you might qualify for a free, one-year Storefront, call Dale Baker, 215-361-9232, dbaker@verticalnet.com.

***** 3M SOLUTIONS *****

In response to customer requests, 3M has introduced a web-based version of its popular 3M Service Life Software. This software offers an easy method for estimating the service life of 3M gas and vapor respirator cartridges--for many organic as well as some inorganic contaminants. See <http://www.poweronline.com/ecommccenters/3m.html> for more details.

***** FEATURED ARTICLES selected by April C. Murelio ****

1) The Cansolv System Process: A new paradigm for SO₂ recovery and recycle 2) Exclusive Platts Report Offers Comprehensive Look at IPPs 3) AlterSys to buy CJ International, Transysoft 4) News and Analysis

1) The Cansolv System Process: A new paradigm for SO₂ recovery and recycle The Cansolv System is an aqueous amine-based regenerative gas desulfurization process that promises SO₂ removal down to a few ppm. It is flexible, robust, easy to operate, and quickly responsive to changes in gas feed conditions. Potential uses include sulfuric acid plants, spent acid recovery plants, sulfide ore smelters, sulfur recovery units, flue gas desulfurization units, pulp mills, and SO₂ production, storage, and transportation. The first of three articles reviews the process itself.

<http://www.poweronline.com/read/nl20000822/207584>

2) Exclusive Platts Report Offers Comprehensive Look at IPPs Platts, an energy market information service and a division of The McGraw-Hill Companies, has completed an exclusive new report detailing the strategies and projects of 210 closely held, non-regulated, electric generating companies worldwide. <http://www.poweronline.com/read/nl20000822/207585>

3) AlterSys to buy CJ International, Transysoft Hoping to solidify its position as a global supplier of embedded solutions and advanced automation technology, Altersys plans to buy CJ International, the maker of ISaGRAF, the de facto standard in IEC 61131-3 industrial control software, said Julien Chouinard, president and CEO of AlterSys. Financial details weren't released. <http://www.poweronline.com/read/nl20000822/207586>

4) News and Analysis Visit the Power Online News and Analysis page for the latest industry headlines and feature articles. <http://www.poweronline.com/read/nl19991209/40575>

***** EDITOR'S CHOICE PRODUCTS *****

1) AC Drive 2) Potting and Encapsulation Selector Guide 3) FTA Retrofit System 4) Product Showcase

1) AC Drive The Altivar 28 AC drive allows retrofitting to existing ALTIVAR 18 AC drives without re-drilling boltholes or new programming. The compact, easily installed and programmed drives provide low-cost motor control solutions for industrial and commercial users. They are best suited for applications in material handling, packaging, HVAC and pumps.

-- Square D/Schneider Electric, Knightdale, NC <http://www.poweronline.com/read/nl20000822/207593>

2) Potting and Encapsulation Selector Guide A new 2-page application selector guide on potting and encapsulation systems is now available. Viscosity, set-up times, cure schedules, service temperature ranges, volume resistivity and application recommendations are listed for over 30 different grades.

-- Master Bond Inc., Hackensack, NJ <http://www.poweronline.com/read/nl20000822/207594>

3) FTA Retrofit System Waters Equipment Co. has introduced an FTA Retrofit System designed for users of steam and water analysis equipment (such as power plants) who need secondary temperature control or better temperature control than their existing system provides.

-- Waters Equipment Co., Lansdale, PA <http://www.poweronline.com/read/nl20000822/207595>

4) Product Showcase Power Online and its editor, April C. Murelio, select some of the best new products in the industry and present them to you in our Product Showcase. <http://www.poweronline.com/read/nl19991209/40576>

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Energy Issues	
Sender	miyung.buster@enron.com
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File	dasovich-j/all_documents/28212.

Please see the following articles:

Sac Bee, Fri, 6/29: Power firms held in contempt (Enron mentioned)

Sac Bee, Fri, 6/29: Edison's parent gets new cash

Sac Bee, Fri, 6/29: Refineries exempt from power cuts=20

SD Union, Thurs, 6/28: Enron, Mirant cited for contempt by Senate committee

SD Union, Thurs, 6/28: Secretary of State accuses governor of failing state= =20 in energy crisis

LA Times, Fri, 6/29: Congress Reacts Sluggishly to Bush's Energy Proposals

LA Times, Fri, 6/29: Senate Panel Lashes Out at 2 Energy Firms

SF Chron (AP), Fri, 6/29: California Senate committee cites power companies= =20 for contempt for withholding documents

SF Chron (AP), Fri, 6/29: California oil refineries exempt from rolling=20 blackouts

SF Chron, Fri, 6/29: Conservation funds restored to energy legislation by B= ush

SF Chron, Fri, 6/29: Refineries exempt from blackouts=20 Oil firms' support services also shielded

Mercury News, Fri, 6/29: Officials criticize energy report

Mercury News, Fri, 6/29: Extra 'power plant' shows deregulation can spur=20 innovation (Editorial)=20

OC Register, Fri, 6/29: Gas Co. to give consumers nearly 50% price break in= =20 July

Individual.com (Business wire), Fri, 6/29: California Municipal Electric=20 Utility Launches Apogee Demand Exchange to Reduce Peaks=20

Wash. Post, Fri, 6/29: Greenspan Unafraid Of Energy Price Caps; Calif.=20 Problems Ease,=20 Fed Chief Says

WSJ, Fri, 6/29: Federal Energy Panel Approves Power Price Controls for New York

Power firms held in contempt=20 By Emily Bazar Bee Capitol Bureau (Published June 29, 2001)=20 A special legislative committee investigating electricity price manipulation= n=20 voted Thursday to hold two power companies in contempt for refusing to turn= =20 over thousands of pages of documents.=20 By unanimously declaring Enron Corp. and Mirant in violation of its=20 subpoenas, the state Senate committee summoned powers that haven't been=20 invoked in the Legislature for more than 70 years.=20 As a result of the unusual move, power company executives could find=20 themselves facing jail time. Possible punishments include fines or the forc= ed=20 turnover of documents.=20 "There isn't a lot of legal precedent," said the chairman of the committee,= =20 Sen. Joe Dunn, D-Santa Ana, after the hearing. "Jailing an individual is an= =20 option, and we intend to preserve all of our options."=20 The committee is trying to determine whether electricity generators or=20 marketers have artificially inflated prices of wholesale electricity. Other= =20 state agencies, including the attorney general's office and the Public=20 Utilities Commission, also have initiated investigations.=20 Under the committee's 5-0 decision, Mirant and Enron have until July 10 to= =20 change course and turn over documents. If they do so, the contempt charges= =20 will be expunged. If not, the committee will forward its contempt findings = to=20 the full Senate, which will determine which punishments, if any, should be= =20 levied.=20 As part of its investigation, the committee began requesting documents from= =20 most generators in April. After receiving little or no response -- and=20 complaints from companies concerned about giving out proprietary informatio= n=20 -- the panel issued subpoenas to several companies June 11.=20 The subpoenas called for documents of all kinds, including those with=20 specific details -- prices, quantities and capacity -- of companies'=20 transactions in the state's wholesale electricity market. Telephone bills,= =20 e-mail messages and personal appointment books also were requested.=20 Many of those companies did not respond to the subpoenas until the deadline= =20 Thursday. Only two -- Dynegy Inc. and Reliant Energy Inc. -- actually=20 provided documents.=20 During the nearly four-hour meeting, Dunn interrupted the proceedings sever= al=20 times to announce that various letters or documents arrived moments before.= =20 For example, Dunn said midway through the hearing that Dynegy had just=20 delivered 18,603 documents to his Capitol office.=20 For those companies that didn't comply with the subpoena, but promised to= =20 deliver the necessary documents before July 10, the committee agreed to=20 withhold judgment until that date.=20 Robert Bittman, who represented Mirant at the hearing -- and was allowed to= =20 make a hasty phone call to the company in an attempt to avoid the contempt= =20 finding -- in the end was unable to adequately assure the senators that=20 Mirant would deliver all required documents before July 10.=20 After the hearing, Mirant spokesman Patrick Dorinson said the company will = do=20 everything it can before July 10 to resolve the dispute.=20 "What Mirant needs is assurance from the committee that the company-specifi= c=20 information in these documents doesn't find its way to some public forum=20 where it could be misused," he said.=20 Legislators were particularly irked by energy marketer Enron, which didn't= =20 send a representative to the hearing.=20 Instead, Enron delivered a letter to Dunn on Thursday questioning whether t= he=20 committee was violating the Federal Energy Regulatory Commission's=20 jurisdiction in its investigation.=20 "My great frustration here is getting a letter from Enron on the day the=20 (documents) are due explaining why we don't have jurisdiction," said Sen.= =20 Debra Bowen, D-Marina del Rey.=20 Rather than jail time, Bowen said she would like to see fines levied agains= t=20 companies that have violated the subpoenas.=20 The last time the Legislature held someone in contempt was 1929. The case= =20 involved a price-fixing conspiracy, but the commodity was concrete. Several= =20

officials from concrete companies were subpoenaed, but some declined to=20 testify or divulge documents to a Senate committee.=20

The Bee's Emily Bazar can be reached at (916) 326-5540 or ebazar@sacbee.com= .=20 =20

Edison's parent gets new cash By Dale Kasler Bee Staff Writer (Published June 29, 2001)=20 In a move that keeps creditors at bay for now, Southern California Edison's= =20 parent company obtained \$1.19 billion in fresh financing Thursday. But the= =20 troubled company had to pay a higher interest rate than it originally=20 expected, reflecting investors' anxieties about the state energy crisis.=20 The move doesn't affect the beleaguered Edison utility, which has been on t= he=20 verge of bankruptcy for months, but eases immediate financial stress on its= =20 parent Edison International.=20 The parent, through a newly created subsidiary called Mission Energy Holdin= g=20 Co., borrowed the funds at rates of up to 14 percent. That's one percentage= =20 point higher than Edison expected last week, according to Standard & Poor's= =20 Corp. The company had to restructure the deal because of investor=20 uncertainty, S&P said, and there was speculation by analysts the deal might= =20 get scrapped.=20 Even with the higher interest rate, the financing was a must-do for Edison= =20 International, said S&P analyst Richard Cortright Jr.=20 The proceeds will go to pay off numerous Edison International debts,=20 including a \$618 million bank loan due Saturday and \$250 million in bonds d= ue=20 July 18. The company has told the Securities and Exchange Commission that i= t=20 needed new financing "to meet its cash requirements."=20 The company paid a steep price for meeting those requirements. Part bank lo= an=20 and part bond sale, the financing cost Edison International about twice wha= t=20 a creditworthy corporation would pay. The bank loan is at a variable rate 7= .5=20 percentage poin

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Daily Agenda

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Recipients	[]
File	dasovich-j/all_documents/12243.

Daily Agenda Thursday, May 10, 2001

Today's events... * Noon, SACRAMENTO Gov. Gray Davis signs energy bond bill, Capitol, governor's council room. Contact: Steve Maviglio, 916-445-4571. * Noon, SACRAMENTO Assembly Republicans hold news conference to discuss end of special session on energy, Capitol, room 125. Contact: James Fisfis, 916-319-2005.

In the news... * LA Times, Brooks: 60% rate hikes imposed by OUC. <http://www.latimes.com/news/state/20010510/t000039441.html> * LA Times, Morain: Governor asks generators to compromise on debt. <http://www.latimes.com/news/state/20010510/t000039413.html> * SD Union-Tribune, Haussler: http://www.uniontrib.com/news/uniontrib/thu/news/news_1n10budget.html * SF Chronicle, McManis: 15th District hopefuls line up. <http://www.sfgate.com/cgi-bin/article.cgi?f=/c/a/2001/05/10/MNC112600.DTL>

In committee... * NATURAL GAS. Energy Costs and Availability Subcommittee on Energy Oversight. Upon adjournment of Session, room 3162. (Squawk Box 93.1) * VARIOUS ITEMS. Budget Subcommittee No. 3 on Resources. Upon call of the Chair, room 127. (Squawk Box 92.1) * SCHOOL-TO-CAREER. Select Committee on Workforce Investment. 3:00pm, room 126. (Squawk Box 91.5)

Today on the floor... * Assembly session at 8:30am. (Squawk Box 89.7, Assembly TV, CH. 7) * Senate session at 8:30am. (Squawk Box 99.1, Senate TV, CH. 5)

The week ahead...

Friday - 5/11/01 Monday - 5/14/01 Tuesday --- 5/15/01 Wednesday - 5/16/01 Thursday - 5/17/01 Last day for policy committees to hear and report to the floor nonfiscal Assembly bills Session @ 11:00am Senate Session @ 10:00am TBA TBA Session @ 8:30am Senate Session @ 8:30am

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

Message 441 of 1299

CMTA Legislative Weekly - 08/09/01

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File	dasovich-j/deleted_items/1234.

Legislative Weekly August 9, 2001 Issue 31, Volume 3

A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

ENERGY CASUALTY REPORT

CMTA's new Energy Casualty Report describes the impact of the massive electricity rate increase imposed on California business customers of PG&E and SCE. The rate increase went into effect June 1, and some customers are now receiving bills over 100% higher than the same time last year. This has led many to question their ability to continue doing business in California. Layoffs, canceled expansion plans, increased product prices and plant closures are already occurring. CMTA plans to issue the report on at least a monthly basis until further notice.

The Energy Casualty Report is available online at www.cmta.net. To include your story for future issues, contact Gino DiCaro at 916-441-5420.

ENVIRONMENTAL DISPATCH CONCEPT FOR BACKUP GENERATORS GETS TRACTION

In an effort to reduce the likelihood of blackouts, Assemblymember Dennis Hollingsworth (R-Murrieta) has introduced a measure, ABx2 60, to establish a voluntary program in which stationary and portable backup generators would be called upon to relieve load from the grid.

Under provisions of the bill, a customer voluntarily would register a stationary or portable backup generator for the program. The California Energy Resources Conservation and Development Commission (CEC), in cooperation with the investor-owned utilities, municipal utility districts and air districts would evaluate and rank these generators by level of oxides of nitrogen (NOx) and particulate matter (PM) emitted. The type of fuel on which the generator operates also would be considered in the following order: natural gas, liquefied petroleum gas, gasoline and diesel.

Participating operators would enter into agreements with investor-owned utilities or municipal utilities to provide energy to that utility when the Independent System Operator (ISO) determines that a blackout is imminent.

Upon such determination, utilities would contact participants, starting with the cleanest units first. Participants would be paid 20 cents per kilowatt hour regardless of whether the electricity produced was used to offset the electricity demands of the facility at which the generator is operated, or used to generate additional power for the utility.

ABX2 60 was heard by the Assembly Energy Costs and Availability Committee on July 16. At that hearing, a member of the committee expressed concern that the measure would unnecessarily increase air pollution. The author responded that the bill would have the opposite effect by targeting the cleanest burning generators to help prevent blackouts. He further stated that when a blackout does occur, all forms of backup generators are allowed to run, which could have a far more detrimental impact on air quality than dispatching cleaner-burning generators just prior to a blackout.

This measure is similar to the San Diego Gas and Electric Rolling Blackout Reduction Program, recently approved by the California Public Utilities Commission (PUC). Under the PUC order, backup generators may be called into service based on their fuel type during a Stage III alert.

Despite the virtual absence of blackouts during May, June and the first half of July, ABX2 60 passed the Assembly Energy Costs and Availability Committee (17-0). CMTA agrees that environmental dispatch is a reasonable short-term policy

given the tenuous balance between energy supply and demand. The bill will be heard in the Assembly Appropriations Committee when the Legislature reconvenes from its Summer Recess.

WORKERS' COMPENSATION BENEFITS BILL SET FOR HEARING

CMTA and other employer representatives attended a scheduled meeting with Legislative staffers representing the Assembly Insurance committee, Senate Labor and Industrial Relations committee and Senate President Pro Tempore, John Burton on August 2 to discuss SB 71 (Burton D-San Francisco), the so-called Workers' Compensation benefits bill. The purpose of the meeting was to provide employers with a verbal briefing on amendments to SB 71.

The meeting with employers was the last of several meetings held by staff with insurers, organized labor, applicant attorneys, medical providers, and others. No language was provided for the briefing and language is expected to be in print by the end of this week. The bill as amended is set to be heard in Assembly Insurance Committee on August 22 and a long and contentious hearing is expected. The main changes discussed in the meeting were:

Benefit Increases: The benefit increases (about \$2.8 billion) in SB 996 (Johnston) that were vetoed last year will be the basis for the benefit increases in SB 71. In addition, there will be an adjustment of the life pension, increasing the benefit from its 1996 levels in an amount equal to the increase in the statewide average weekly wage (SAWW) since 1996, and indexed annually to SAWW increases thereafter. Issues regarding phasing of benefits over time and in regards to system improvements are open for further discussion. **Commission Recommendations:** Staff agreed to adopt all substantive recommendations from the Commission on Safety and Health and Workers' Compensation (CSHWC) that were non-controversial verbatim. For details on the recommendations, go to the Commission's web site at <http://www.dir.ca.gov/CHSWC/chswc.html>. In addition, staff indicated that a one-year statute of limitations applicable to provider liens would also be added to the bill. **Medical Cost Control:** The focus of medical cost containment will be on the development of treatment guidelines within three years by the Industrial Medical Council. The guidelines will reference national standards (including best practices) but will likely not have to be based on them. The guidelines will be admissible before the Workers' Compensation Appeals Board (WCAB), but may not be sufficient to rebut the presumption for predesignated physicians. Obviously this will need further clarification as the process moves forward. **The Health Care Organization (HCO) program** will be retained, but additional quality of care reporting and surveillance by a yet to be determined entity will be required. More training will be required for treating physicians along with a system of tracking quality of care and utilization by treaters. **Treating Physician Presumption:** SB 996 language is included, which retains the presumption for predesignated physicians but repeals the presumption for all other treaters. This is clearly an open issue for many. It is also not clear whether the medical-legal changes in SB 996 will also be in the amended bill. **Administrative Issues:** The court administrator remains in the bill. In addition, there will be language easing the penalty problems associated with checks payable on demand and further facilitating electronic deposit of indemnity checks.

Obviously, many items of interest to employers did not make the list, such as objective medical evaluations, vocational rehabilitation and penalties under LC Sections 4650 and 5814, to name a few. Nor was insurers' desire to eliminate consultation services to insured employers and replace it with a puff safety education program (that CMTA opposes) discussed. And finally, the Director of the Department of Industrial Relations has not talked to the Legislative staffers about their interests in workers' compensation changes, so everyone is waiting for them to weigh in.

Clearly there are no significant changes proposed in SB 71 that would help offset the cost of increased benefit to employers and streamline the

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TR's State NewsWire 2/1/01 A.M. Edition	
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File	dasovich-j/all_documents/8764.

Telecommunications Reports presents TR's State NewsWire February 1, 2001 A.M. Edition

STATES MISSOURI -- PSC declines to support SW Bell's market-entry bid IDAHO -- Senate confirms nomination of Hansen to PUC ILLINOIS -- Ameritech says business market is becoming more competitive WYOMING -- Senate to examine bill requiring PSC to regulate directory assistance MINN. -- Bill would authorize placement of commercial equipment on state property GEORGIA -- BellSouth and IDS Telcom dispute interconnection agreement UTAH -- Legislators take a look at using mobile phones while driving

LONG DISTANCE MISSOURI PSC declines to support SW Bell's market-entry bid

The Public Service Commission yesterday decided against supporting Southwestern Bell Telephone Co.'s efforts to obtain FCC permission provide in-region interLATA (local access and transport area) service in Missouri at this time, Commissioner Kelvin Simmons told TR. But the application could be supported if SW Bell addresses the PSC's concerns, he said. The PSC plans to deliberate on the request again as early as Feb. 6, although a final decision won't be issued at that time, Simmons said.

The PSC's concerns with SW Bell's request include pricing, interconnection agreements, access to network elements, unbundled local loops, and unbundled local transport. SW Bell intends to make changes in those areas, taking the PSC's concerns into consideration, and is confident that the PSC ultimately will approve the request, a SW Bell representative told TR. (Docket no. TO-99-227)

STATE & LOCAL GOVERNMENT IDAHO Senate confirms nomination of Hansen to PUC

The Senate unanimously has approved Gov. Dirk Kempthorne's (R.) nomination of Dennis S. Hansen (R.) to a second six-year term on the Public Utilities Commission. (1/17/01 a.m.) Hansen, who was first appointed to the commission by Gov. Phil Batt (R.), is also the PUC's president.

Before appointment to the commission, Hansen was an accountant with Monsanto Co. of Soda Springs and served in the state Senate from 1987 to 1995.

COMPETITIVE LOCAL ENTRY ILLINOIS Ameritech says business market is becoming more competitive

Ameritech-Illinois has asked the state Commerce Commission to reopen a 1998 case to allow the company to present additional information that demonstrates the growth of competition for business customers. In the 1998 case, Ameritech sought competitive classification of its business rates throughout the state and residential rates for 19 exchanges. In 1999 the ICC denied Ameritech's request, citing a lack of genuine competition.

Ameritech says the ICC should reopen the case's record because the company's total number of business lines in service has continued to decline in absolute numbers. Overall, Ameritech says, its total number of business lines in service has declined by about 7% in the last two years.

Ameritech says its new evidence relates only to the business services classification. The company notes that the growth in residential service competition in the 19 downstate exchanges has been "less robust."

An ICC spokesman noted that Ameritech holds 93% of all access lines in its Illinois service territory. (Docket no. 98-0860 - Illinois Commerce Commission vs. Illinois Bell Telephone Co., Investigation into specified competitive tariffs to determine proper classification of the tariffs and to determine whether refunds are appropriate)

FUTURE OF REGULATION WYOMING Senate to examine bill requiring PSC to regulate directory assistance

The Senate Corporations, Elections, and Political Subdivisions Committee has received a bill that would require the Public Service Commission to regulate directory assistance services under certain circumstances. HB 51 would authorize the commission to require local exchange carriers to make their listing information available to other directory service providers.

The Joint Corporations, Elections, and Political Subdivisions Committee drafted the bill during the interim session. The legislative staff explained to TR that the measure was prompted by an incident in which a local company was unable to reach an agreement with Qwest Corp. over directory assistance rates.

Because of the dispute between the companies, customers' names weren't included in the Qwest phone book, the staff said. The PSC has no authority to regulate directory assistance service, which was deregulated by the Wyoming Telecommunications Act of 1995. (10/16/00 a.m.)

The legislative staff said the bill could be discussed Feb. 6, at the earliest.

WIRELESS MINNESOTA Bill would authorize placement of commercial equipment on state property

The House Governmental Operations and Veterans Affairs Policy Committee is considering a bill to allow commercial wireless equipment to be placed on state-owned lands, buildings, and other structures.

State agencies either would have to (1) charge a site use fee for the value of the property or structure on which the equipment were placed or (2) accept improvements to state-owned communications system facilities or services provided by a commercial wireless service provider.

Rep. Thomas Bakk (D., District 6A) introduced HF 429.

SECTION 251/252 GEORGIA BellSouth and IDS Telcom dispute interconnection agreement

BellSouth Telecommunications, Inc., and IDS Telcom LLC are clashing over several issues as they shape their new interconnection agreement. IDS recently asked the Public Service Commission to arbitrate the agreement.

One contentious issue is whether BellSouth should be permitted to use the interconnection agreement to restrict its liability for negligent acts and to require indemnification from IDS for negligence on BellSouth's part that damages IDS customers. BellSouth maintains that liability for both companies should be restricted to a credit covering the expense of the services or functions performed improperly. Meanwhile, IDS argues that no restrictions should exist on liability or indemnification. BellSouth has agreed to exceptions for gross negligence, fraudulent misrepresentation, and willful or wanton misconduct, but the company won't concede to IDS' proposed exceptions for negligence or negligent misrepresentation.

BellSouth and IDS also are disputing the issue of whether BellSouth must offer combined network elements if the elements typically are combined in BellSouth's network but aren't combined already at the location requested by IDS. BellSouth says it will offer IDS combined network elements in accordance with the guidelines laid out in the federal Telecommunications Act of 1996 and other applicable rules. IDS argues that BellSouth should be required to provide IDS with combined network elements if those elements ordinarily are combined in BellSouth's network, regardless of whether the elements already are combined at the location in question. (Docket no. 13318-U, In the Matter of Petition for Arbitration of IDS Telcom, LLC, Pursuant to Section 252(B) of the Communications Act of 1934)

WIRELESS UTAH Legislators take a look at using mobile phones while driving

Rep. Kory Holdaway (R., District 34) has introduced HB 182 to ban drivers from using a telephone, computer, or fax machine while driving on a highway. The measure wouldn't apply to emergency and law enforcement personnel acting in their official capacity, any person during a medical emergency, or any person reporting a safety hazard.

Violators would be guilty of an infraction. HB 182 awaits consideration by the House Transportation Committee.

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Message 443 of 1299

FW: Government Affairs Meeting

Sender	susan.scott@enron.com
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File	dasovich-j/all_documents/11480.

Are you going to this? -----Original Message----- From: Dernehl, Ginger Sent: Tuesday, April 24, 2001 11:45 AM To: Nord, Sue; Bolton, Scott; Lassere, Donald; Leibman, Lara; Petrochko, Mona; Neslage, John; Benson, Eric; Montovano, Steve; Allegretti, Daniel; Fromer, Howard; Hoatson, Tom; Staines, Dan; Rishe, Frank; Robinson, Marchris; Sullivan, Kathleen; Chapman, Tom; Migden, Janine; Boston, Roy; Hueter, Barbara; Landwehr, Susan; Moore, Bill; Stroup, Kerry; Kaufman,

Paul; Dasovich, Jeff; Comnes, Alan; Mara, Susan; McCubbin, Sandra; Ryall, Jean; Allen, Joe; Landry, Chad; Dadson, Aleck; Hemstock, Robert; Steffes, James; Brown, Jeff; Cantrell, Rebecca; Mangskau, Dave; Nicolay, Christi; McNamara, Ron; Roan, Michael; Twiggs, Thane; Walton, Steve; Levy, Alberto; Pharms, Melinda; Kingerski, Harry; Chan, Stella; Floris, Vinio; Frank, Robert; Hetrick, Nancy; Keene, Patrick; Lawner, Leslie; Ogenyi, Gloria; Neustaedter, Robert; Robertson, Linda; Briggs, Tom; Long, Chris; Burns, Stephen; Navin, Allison; Cooney, Carolyn; Hardy, John; Reblitz, Scott; Alvarez, Ray; Novosel, Sarah; Fulton, Donna; Yeung, Charles; Ibrahim, Amr; Connor, Joe; Charvel, Ricardo; Kishigami, Kikumi; Guerrero, Janel; Thome, Jennifer; Yoho, Lisa; Arefieva, Maria; Huson, Margaret; Assad, Sergio; Maurer, Luiz; Canovas, Guillermo; Reis, Jose Lucio; Sampaio, Fred; Perrino, Dave; Shelk, John; O'Day, Nicholas; Scott, Susan; Canedo, Alfonso; Bestard, Jose Cc: Huang, Karen; Hood, Chauncey; Miller, Terri; Bellas, Kirsten; Knight, Laurie; Dressler, Jean; Alamo, Joseph; Warner, Geriann; Hunter, Bevin; Assaf, Lisa; Linton, Marcia; Noske, Linda; Meade, Lindsay; Buerger, Rubena; Rizzo, Helen; McVicker, Maureen; Dernehl, Ginger; Hawkins, Bernadette; Akin, Lysa; Sullivan, Lora; Nersesian, Carin; Shapiro, Richard; Braz, Gisele; Decker, Larry; Imai, Makiko; Dernehl, Ginger Subject: Government Affairs Meeting

Well, the time has arrived for me to let you know what is in store for everyone at the next Government Affairs department meeting on Thursday, June 14. The meeting will take place at:

The Omni Interlocken 500 Interlocken Blvd. Broomfield, Colorado 80021 Phone# 303-438-6600 Fax# 303-464-3252
Check-in time 3:00 p.m. Check-out time 12:00 p.m. (Noon)

The Government Affairs meeting will take place on Thursday, June 14 and will begin at 8:00 am and will conclude by 11:30 am. I have arranged for box lunches to be served after the meeting. After the meeting, we will have the remainder of the day for some fun activities, along with a buffet dinner served that evening to complete the day (on-site dinner location TBD).

Block of Rooms - A block of rooms have been reserved for Government Affairs. I will be turning in a rooming list to the hotel next week so, I would like to know by Friday, April 27 your plans to attend the meeting.

Shuttle Service - See attachment for shuttle times. Please note, a return reservation from the hotel to the airport is required. Please contact the Concierge to arrange for shuttle service.

Colorado Weather - For the month of June, you can expect the following: High's - 80.....Low's - 52

Flights from Houston - I have checked with TAP for roundtrip flights from Houston - Denver, Denver - Houston and an exceptionally great (non-refundable) fare of \$190.94 is available. However, fares are not guaranteed until actually booked. Let's book early!!!!

The activities to choose from are as follows: Please let me know by May 4 your choice of activity!!!!

Whitewater Rafting - A bus will leave the Omni Interlocken Resort at 2:00pm to head for an afternoon of exciting adventure on Colorado's Clear Creek. The Arkansas River is one of the most popular whitewater adventures anywhere, combining spectacular scenery and action packed rapids. Teamwork is the name of the game as your team paddles down these tumbling cascades. Continuous class III and IV rapids will thrill guests throughout the run. Drop over Nomad, surge through the Phoenix Holes and take on the class IV climax, the Outer Limits. Good physical condition and the ability to swim are recommended. The group will have three thrilling hours on the river and will return to the Omni by 6:15pm.

Chautauqua Park Hiking Adventure - One of the most popular access points for mountain hiking trails in Boulder is Chautauqua Park. The focal point is the 100-year-old dining hall. The Colorado Chautauqua is one of only four of the original Chautauquas still operating in America, as opposed to when thousands dotted the nation and culturally enriched rural people in the early 1900s. The tour includes: transportation, professional guide service, two hours of guided hiking - total time for excursion is 4 hours. (Dress code: Shorts or hiking attire, appropriate footwear, sunglasses, sunscreen and hats). Departure time and return will be relayed at a later date.

Spa Services - The Spa at Omni Interlocken Resort offers a number of spa services (massages, facial & skin care treatments, body treatments or nail services, to name a few). If you are interested in this as an activity, please let me know and I will fax a detailed list of their services. You will need to call the spa and schedule your own appointment if this is the activity you choose.

Golf - For the golf enthusiasts, an afternoon of golf at the Omni Interlocken 27-hole championship golf course which stretches out over 300 acres of verdant fairways is another activity to select from. Spectacular panoramic views from three 9-hole courses, which feature more than 400 feet in elevation changes. If this is the activity of choice please respond via e:mail and I will add you to the list. The game of choice will be "best ball" play.

Biking - Scenic bike paths are located near the hotel for those with interest. If this is your choice of activity, please let me know and I will reserve a bike and map for you enjoyment.

After reviewing the choices above, please select an activity you prefer to take part in. Due to the fact that our group is so large, (which makes it more difficult to coordinate activities) once you select an activity, we ask that you not change your selection. So, please talk to your colleagues ahead of time before making your choice.

Thanks and don't hesitate to call me if you have any questions.

Gngr

- SuperShuttle.doc - Directions from DIA with map.doc

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PANC Workshop on May 15

Sender	janel.guerrero@enron.com
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File	dasovich-j/all_documents/12191.

fyi...

----- Forwarded by Janel Guerrero/Corp/Enron on 05/09/2001 08:42 AM -----

=09Stacey Bolton =0905/08/2001 02:53 PM =09=09=20 =09=09 To: Janel Guerrero/Corp/Enron@Enron =09=09 cc:=20
=09=09 Subject: PANC Workshop on May 15

Thought you might want to circulate to the appropriate CA folks.

----- Forwarded by Stacey Bolton/NA/Enron on 05/08/2001 02:51 PM -----

=09Jan Pepper <pepper@enertroncons.com> =0905/08/2001 01:22 PM =09=09=20 =09=09 To: Chuck Whitaker
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<sharongoldstein@yahoo.com>=, =20 Stacey Bolton <sbolton@enron.com>, Tim Tutt <ttutt@energy.state.ca.us>, Ton=
y=20 Goncalves <tgoncalv@energy.state.ca.us>, Warren Byrne <wbyrne@forenergy.com=

,=20

Marianne Walpert <mwalpert@pacificsolar.com> =09=09 cc:=20 =09=09 Subject: PANC Workshop on May 15

Hi energy associates,

I thought you might find this of interest. There's still room to attend!

Jan Pepper

PowerAssn@aol.com wrote:

If you have already registered, thank you; if not, please read on: Power Association of Northern California May Workshop and Luncheon Tuesday, May 15, 2001 PG&E Conference Rooms A&B 245 Market Street San Francisco 8:00 a.m. Registration 8:30 a.m. Workshop 12:15 noon Lunch 1:00 p.m. Presentation PANC Member Workshop & Luncheon =3D \$125.00 Luncheon Only =3D \$35.00 Non-Member Workshop & Luncheon =3D \$145.00 Luncheon Only =3D \$42.00 \$5 Additional after May 4, not prepaid, at the door PG&E Co. AND PG&E Corporation Don't miss out on PANC's Annual Workshop on the Real Time Pricing as a Current Solution to Our Market Problems. Join in on a robust discussion, which will include key panelists on the topics: Major Market Problems and Their Resolution, New Power Technologies and Distributed Generation, and Demand Side Management. Plus lunch and our Keynote Speaker. We look=20

forward

to seeing you there. Real Time Pricing As A Current Solution To Our Market Problems Sponsored by Cheng Power Systems, Inc. AND Morrison & Foerster LLP Agenda 8:00 a.m. - 1:30 p.m. 8:00 Registration (Coffee and Pastries) 8:30 Welcome and Introduction Elizabeth Lowe, Onsite Energy Corporation 8:35 Real-time Pricing as a Current Solution to Our Market Problems Severin Borenstein, U.C. Energy Institute 8:50 Panel 1: Demand Side Management Moderator: Anne Selting, Plurimi, Inc. ?=14 ?? Creating Markets for Megawatts Don Fuller, Vice President of Client Relations Cal ISO ?=14 ?? Role For Energy Efficiency in a Constrained Energy Market: Succ=

ESS

Stories in Industry Rich Sperberg, CEO Onsite Energy Corporation 10:00 Coffee Break 10:15 Panel 2: New Power Technologies and Distributed Generation Moderator: Jan Pepper, Enertron Consultants ?=14 ?? Current Status of Distributed Generation Activities Joe Ianucci, Principal Consultant ?=14 ?? Distributed Generation and New Power Technologies Mike Tingus, President Capstone California ?=14 ?? A Muni's Perspective on Managing Reliability, Both in The Short=

and

Longer Terms Through Distributed Gen Junona Jonas, General Manager Alameda Power and Telecom 11:15 Panel 3: Major Market Problems and Their Resolution Moderator: Stephen St. Marie, Electricity Oversight Board ?=14 ?? The ESP Perspective on California's Market Julie Blunden, formerly Regional President Green Mountain Energy ?=14 ?? A View from Former ISO CEO on Supply and Demand Issues Kellan Fluckiger DWR Consulting ?=14 ?? The Independent Generator's Perspective on California's Market Gary Ackerman, Executive Director Western Power Trading Forum 12:15 Lunch 1:00 Keynote: PG&E and The Energy Crisis Introduction: Val Fong, Pacific Gas and Electric Co. ?=14 ?? Guest Speaker: Dan Richard, Senior Vice President Pacific Gas and Electric Co. AND PG&E Corporation 1:30 Closing Remarks and Upcoming Events Elizabeth Lowe, Onsite Energy Corporation YES! PLEASE REGISTER ME FOR THE POWER ASSOCIATION OF NORTHERN CALIFORN=

IA

Name: Title: Company: Address City: Zip: Phone: Fax: Payment will be by: Check Cash Credit Card
_____/____ Visa or MasterCard ONLY Expiration Date
Authorized Signature for Credit Card Fax this form to (408) 997-6487 or call (408) 323-2255 and/or Send your prepayment (Payable to PANC) to: PANC, 6155 Almaden Expwy, #310, San Jose, CA 95120 E-mail to: PowerAssn@aol.com

Message 445 of 1299

The Price Institute Gives a Boost to Lester Center Entrepreneurship

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File	dasovich-j/all_documents/1558.

Haas NewsWire September 18, 2000

CONTENTS

The Price Institute Gives a Boost to Lester Center Entrepreneurship Programs Knowledge and the Web: The Future of the New Economy The Third of Four New Faculty Profiles: Mark Seasholes New Career Center Director: Abby Scott Haas in the News Happening at Haas Haas Celebrations

THE PRICE INSTITUTE GIVES A BOOST TO LESTER CENTER ENTREPRENEURSHIP PROGRAMS The Price Institute, a longtime supporter of the Lester Center for Entrepreneurship & Innovation, has made a long-term commitment

to the Lester Center in the form of a \$750,000 gift. The money will be received over the next five years and will support the Harold Price Entrepreneurial Leadership Program, which supports the Entrepreneurs Association and its affiliated programs: the Partners for Entrepreneurial Leadership (PEL), the Berkeley Solutions Group, the venture capital internships, and other student programs.

"The Lester Center and the Haas School are very pleased with the leadership and support provided by the Price Institute and its president, Gloria Appel," says Jerry Engel, executive director of the Lester Center for Entrepreneurship and Innovation. "The Price Institute has always been interested in our students and the fine entrepreneurial experience we strive to create for them. They have been there as our partner for over a decade."

The Price Institute has been awarding fellowships to selected Haas School first-year MBA students since 1986 to recognize their entrepreneurial aspirations and development. Two \$5,000 Price Institute Fellowship awards, administered by the Lester Center for Entrepreneurship and Innovation, are awarded each year to eligible students interested in an entrepreneurial career.

Through the years, the institute has given programmatic funding, which to date totals close to \$800,000. The institute has pledged to raise its total donation to more than \$1,300,000 by the year 2004.

Founded in 1979 by Harold Price, the Price Institute is nationally known for its support and development of entrepreneurship.

KNOWLEDGE AND THE WEB: THE FUTURE OF THE NEW ECONOMY Most people doing business today have had to deal with issues of intellectual property and knowledge creation--and if that business is on the web, these issues come up at light speed. The Haas School will delve into these issues as part of a larger discussion of knowledge at the upcoming Fourth Annual Knowledge Forum.

The conference, "Creating and Exploiting Knowledge Assets in the Internet-enabled Economy," will take place at Haas on September 29 in the Arthur Andersen Auditorium.

The lineup of distinguished scholars and industry leaders includes Ikujiro Nonaka, Xerox Distinguished Professor in Knowledge at the Haas School of Business; Roger Siboni, BS 76, CEO of E.piphany and chair of the Dean's Advisory Board; Sabeer Bhatia, founder of Hotmail and CEO of Arzoo.com; and David Teece, Mitsubishi Bank Professor of International Business and Finance and director of the Institute for Management, Innovation, and Organization.?

Joining Nonaka and Bhatia in the afternoon session on "Leadership for Knowledge Based Innovation" will be Kei-ichi Enoki of NTT DoCoMo, Japan's leading mobile phone company.? In May, Enoki was named one of the 25 leaders in e-business by Business Week for his push to create i-mode, a mobile net-access service in Japan that now has 6 million users.? Teece will close the conference by moderating a panel on "Value Creation in the New Economy."

The forum registration fee is \$100 and includes lunch and conference materials.? Register by phone at 510-642-4041 or send e-mail to conference@haas.berkeley.edu.? Haas faculty and students may attend the knowledge forum lectures free of charge, but they must call or e-mail to reserve a space.? For more information, visit the Knowledge Forum web site at <http://www.haas.berkeley.edu/~imio/knowledge/index2000.htm> or call 510-642-4041.

THE THIRD OF FOUR NEW FACULTY PROFILES: MARK SEASHOLES Fresh out of Harvard with a Ph.D. in economics, Assistant Professor Mark Seasholes also brings a wealth of previous experience to the Finance Group at Haas. Seasholes held analyst and consulting jobs on Wall Street, in London, and in Warsaw before returning to school for his Ph.D. He holds an undergraduate degree in physics from Wesleyan University.

Seasholes studies international equity markets and is interested in the relationship between cross-border flows and local market prices. Next semester he will be teaching two sections of introductory finance for undergraduates.

Seasholes can be reached at 642-3421 or via e-mail at mss@haas.berkeley.edu. His office is at F694.

NEW DIRECTOR OF CAREER SERVICES Abby Scott, the new director of the Chetkovich Career Center at Haas, joins Haas after ten years of working in technology companies and earning her MBA at Kellogg. As she puts it, she hopes to bring a "different perspective with a practical, hands-on approach" to career services at Haas.

Abby is responsible for managing the many different career development services provided to MBA students and setting strategic direction for relationships with employers. Abby most recently worked in new product development at Embark.com, and before that as brand manager at Intel.

Abby's office is located in the Career Center, S420E. She can be reached via e-mail at ascott@haas.berkeley.edu or at 643-4520.

Also joining the Career Center staff is Jocelyn Newman, the new recruiting coordinator.? Jocelyn worked in career services while she was a student at UC Santa Barbara.? Jocelyn is located in the Recruitment Center in S330. Her e-mail is newman@haas.berkeley.edu or she can be reached at 643-0344.

HAAS IN THE NEWS Severin Borenstein, the E.T. Grether Professor in Public Policy and Business Administration and director of the University of California Energy Institute, was quoted in the September 18 edition of the San Francisco Chronicle on the causes of California's high gasoline prices. He attributes the chronically high price of gasoline to the high oil prices and a tight refining market in California.

Borenstein was also quoted in an article on the front page of The New York Times business section September 15 discussing the problems that electricity deregulation has run into and arguing for the need for real-time retail pricing.

"Contemporary Philanthropy," a course taught by Fran Van Loo, associate professor in the Business & Public Policy Group and the Economic Analysis & Policy Group and chair of the Public and Nonprofit Management Program, was mentioned in the lead of Peter Sinton's San Francisco Chronicle column titled "Charity Begins on the Net" on September 13. Read the entire column at <http://www.sfgate.com/cgi-bin/article.cgi?file=/chronicle/archive/2000/09/13/B089423.DTL&type=business>

An interview with Dean Tyson was posted on Business Week on September 12. The video clip can be found at <http://www.businessweek.com/bschools/video/index.htm>.

Van Loo's course, "Contemporary Philanthropy" was also mentioned in the Cheers and Jeers section of the Sacramento Bee on September 12.

David Levine, associate professor in the Economic Analysis and Policy Group and the Organizational Behavior Group, was quoted on CNET.com on September 12 in the article, "Telecom companies go dot-com with options grants." Levine explained that consolidation and new executive leadership have spawned efforts to foster updated cultures in the communications industry. Read the entire article at <http://news.cnet.com/news/0-1004-200-2759859.html?tag=st.ne.1004.saslnk.saseml>.

David Aaker, professor emeritus of market

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IEP News 7/3

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Today's IEP news....

Have a great 4th of July!

Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

AP Online, July 2, 2001; Monday, 11:49 PM, Eastern Time, Domestic, ???non-Washington, general news item, 337 words, California Releases Power ???Contracts, JENNIFER COLEMAN, SACRAMENTO

Contra Costa Times, July 3, 2001, Tuesday, STATE AND REGIONAL NEWS, K5203, 752 words, Tourists to California just roll with the outages, By Jasmine Kripalani

Copley News Service, July 3, 2001, Tuesday, State and regional, 537 words, Duke Energy agrees to refund money, Bill Ainsworth, SACRAMENTO, Calif.

Los Angeles Times, July 3, 2001 Tuesday, Home Edition, Page 12, 158 words, Scoring the Pollsters

Los Angeles Times, July 3, 2001 Tuesday, Home Edition, Page 10, 705 words, THE ENERGY CRISIS; ; Generator Bows, Pledges to Cut Electricity Bill by \$20 Million; Power: Duke Energy had been accused by the state of price gouging. Gov. Davis insists that the company still has much to explain., NANCY RIVERA BROOKS, RICH CONNELL, TIMES STAFF WRITERS

Los Angeles Times, July 3, 2001 Tuesday, Home Edition, Page 10, 442 words, THE ENERGY CRISIS; ; Senate Panel's Resolution Backs Power Plant Seizures; Energy: State lawmakers hope to put pressure on producers accused of exploiting California. Governor brings another facility online., CARL INGRAM, TIMES STAFF WRITER, SACRAMENTO

Los Angeles Times, July 3, 2001 Tuesday, Home Edition, Page 1, 530 words, THE ENERGY CRISIS; ; Power Sales Halted by New Pricing Curbs; Electricity: Confused suppliers, unsure what they will be paid, refuse to sell to state, which asks FERC for a ruling but doesn't get it., NANCY VOGEL, TIMES STAFF WRITER, SACRAMENTO

Los Angeles Times, July 3, 2001 Tuesday, Home Edition, Page 1, 1429 words, THE ENERGY CRISIS; ; Hidden Costs Revealed in Power Pacts, RICH CONNELL, ROBERT J. LOPEZ, JEFFREY L. RABIN, TIMES STAFF WRITERS

The New York Times, July 3, 2001, Tuesday, Late Edition - Final, Section A; Page 10; Column 5; National Desk, 804 words, Power Company Rebuts Accusations of Gouging, By JAMES STERN, LOS ANGELES, July 2

San Jose Mercury News, July 3, 2001, Tuesday, STATE AND REGIONAL NEWS, K5369, 508 words, Davis paying millions to energy consultants, contracts reveal, By Dion Nissenbaum

San Jose Mercury News, July 3, 2001, Tuesday, SJ-ENERGY-PRICE, 834 words, California Officials Insist Energy Company Manipulated Prices, Output, By Brandon Bailey

The San Francisco Chronicle, JULY 3, 2001, TUESDAY,, FINAL EDITION, NEWS;, Pg. A3, 860 words, Uncensored power pacts made public; State controller says deals will burden general fund for years, Carolyn Said, Christian Berthelsen, David Parrish

The Washington Post, July 03, 2001, Tuesday, Final Edition, FINANCIAL; Pg. E02, 1111 words, Duke Energy Cuts Calif. Bill

The Associated Press, July 3, 2001, Tuesday, BC cycle, 7:27 AM Eastern Time, Business News, 622 words, Duke releases California energy records to counter accusations of price gouging, By LESLIE GORNSTEIN, AP Business Writer, LOS ANGELES

Business Wire, July 2, 2001, Monday, 590 words, Stage One and Stage Two Emergencies Declared as Demand Soars; California ISO Strongly Urges Conservation, FOLSOM, Calif., July 2, 2001

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AP Online

July 2, 2001; Monday 11:49 PM, Eastern Time

SECTION: Domestic, non-Washington, general news item

LENGTH: 337 words

HEADLINE: California Releases Power Contracts

BYLINE: JENNIFER COLEMAN

DATELINE: SACRAMENTO

BODY:

???State Controller Kathleen Connell released details about four of California's short-term contracts with power companies Monday, a move the governor's office said could drive up wholesale energy prices.

??Democratic Gov. Gray Davis for months refused to release details of long-term contracts the state had signed with electricity providers, saying the documents needed to remain secret. He released 38 of the contracts in June, with key portions blacked out.

??A judge ordered that the long-term contracts be released in their entirety after several news organizations sued, including The Associated Press.

??But the four short-term contracts Connell released Monday along with the long-term contracts were not part of the judge's mandate. The contracts reveal the state's strategy for making day-to-day purchases, said Steve Maviglio, spokesman for Davis. He said revealing the strategy could lead to higher wholesale prices.

??"It shows the irresponsibility of the controller and every California who gets a higher electricity bill can thank Kathleen Connell," Maviglio said.

??Connell said the judge heard all the evidence before ordering the complete contracts released and "there is no reason that information should raise prices. Today's prices aren't going to be affected by prices engineered several months ago."

??But generators can use that information to time their sales and drive up their prices, said Oscar Hidalgo, spokesman for the Department of Water Resources.

??"We still feel that those will hinder our leverage in gaining reasonably priced power on the spot market," he said "It shows our position on the daily spot market and what we're willing to pay," he said.

??Some state officials have criticized the long-term deals most of which are 10 years saying they are too long.

??By signing long-term contracts including 41 deals with 27 power generators worth about \$43 billion the state could get burned if energy prices go down, said Public Utilities Commissioner Richard Bills.

LOAD-DATE: July 2, 2001

????????????????????????????????3 of 65 DOCUMENTS ??????????????Copyright 2001 Knight Ridder/Tribune News Service ??????????????????????????Knight Ridder/Tribune News Service

?????????????????????????????????????Contra Costa Times

?????????????????????????????????????July 3, 2001, Tuesday

SECTION: STATE AND REGIONAL NEWS

KR-ACC-NO: ?K5203

LENGTH: 752 words

HEADLINE: Tourists to California just roll with the outages

BYLINE: By Jasmine Kripalani

BODY:

??SAN FRANCISCO _ Tourists are constantly asking the gift shop manager at Coit Tower if a blackout could occur while they ride the elevator to the top of the 210-foot fire hose nozzle-shaped landmark.

??"They're serious when they ask it. I always tell 'em, 'We got the last guy out in only three days,' " said Walt Lo.

??Tour guides, hotel managers and gift shop clerks in the Bay Area have developed a sense of humor about the California energy crisis. But for many visitors the perception of blackouts conjures up images of streets without traffic lights and people trapped in elevators.

??Before leaving their Indiana suburb for vacation, Mike and Lisa Bonahoom worried about what was ahead, but not enough to stop them from booking a three-night stay at the room designed by former Grateful Dead frontman Jerry Garcia in the Hotel Triton.

??"The perception in the Midwest is that (Californians) don't have lights," said Mike Bonahoom.

??Lisa, added: "We heard news reports that they shut the lights off every day (at a set time) in order to save electricity, and people would plan their day around that. I worried about getting stuck in an elevator for hours, but I didn't mention any of this to the kids."

??It's a fear California's travel and tourism commission is taking so seriously that it has handed a public relations firm about a half-million dollars to plan an advertising campaign that will convince the rest of the world that it's still safe to travel to the Golden State.

??Communications director Fred Sater blames visitors' fears on the

Message 447 of 1299

Enron Mentions - 05/04/01

Sender	henry.means@enron.com
Recipients	[]
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Utilities Make Own Plans for CO2 Curbs --- Entergy Sets Emissions Cap As Bush Climate Policy Remains to Be Resolved Wall Street Journal, 05/04/01

California and the West Secretary of Energy, Davis Meet on U.S. Plan to Boost Conservation Crisis: Federal buildings and military bases, accounting for 1.5% of state's usage, will cut back. Los Angeles Times, 05/04/01

Calif Gov Asks 12 Generators To May 9 Energy Crisis Mtg Dow Jones, 05/04/01

Enron agrees to meet with India committee Houston Chronicle, 05/04/01

INTERVIEW:Early Resolution Seen On India Dabhol Pwr Spat Dow Jones, 05/04/01

India: Enron wants renegotiation meet rescheduled Business Line (The Hindu), 05/04/01

ENRON'S HOUSTON TEAM TO MEET RENEGOTIATING COMMITTEE Asia Pulse, 05/04/01

SALVE MAY REPRESENT FEDERAL GOVT ON ENRON NEGOTIATING COMMITTEE Asia Pulse, 05/04/01 Enron ready to take part in PPA talk The Times of India, 05/04/01 Godbole terms of reference not acceptable: DPC Business Standard, 05/04/01 Outlook: Power failure The Independent - London, 05/04/01 ScottishPower survives the blackout The Guardian, 05/04/01 April rough for merger mavens The Daily Deal, 05/04/01 Companies: European Companies The Wall Street Journal Europe, 05/04/01

Purchase should boost Ansoft ... Pittsburgh Post-Gazette, 05/04/01

Enron's Dabhol to Meet Indian Panel Over \$64 Mln Debt (Update1) Bloomberg, 05/04/01

India Gets \$450 Million From World Bank to Push Power Market Bloomberg, 05/03/01

Senate special counsel said power sellers broke law Associated Press, 05/03/01

Economy Utilities Make Own Plans for CO2 Curbs --- Entergy Sets Emissions Cap As Bush Climate Policy Remains to Be Resolved By John J. Fialka Staff Reporter of The Wall Street Journal

05/04/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

WASHINGTON -- Some major U.S. utilities are beginning to step out ahead of the Bush administration on the climate-change issue, developing their own plans for curbing emissions of carbon dioxide, the man-made gas thought to

be contributing to global warming. Meanwhile, the White House is under growing pressure to demonstrate that its plans to boost energy production can be environmentally sensitive. President Bush signed an executive order requiring the federal government to conserve energy during periods of peak demand in California and other places facing energy shortages. Mr. Bush also said the federal government would make available power generators in case of emergencies. "Conservation has got to be an integral part of making sure we've got a reasonable energy policy," Mr. Bush said. New Orleans-based Entergy Corp., the nation's third largest utility in terms of electricity produced, said that it will impose a limit on CO2 from its 25 power plants that burn natural gas, oil or coal and stay within that level of emissions for five years. "We understand that this is a very politically contentious subject," said company Vice President Jim Mutch. "If other companies do their fair share now, hopefully when there is a regulatory scheme, there will be less of a problem." By running its plants with greater efficiency, improving the efficiency of its electricity and gas transmission systems and engaging in some outside CO2 reduction efforts, such as planting trees that absorb the gases, Entergy hopes to keep its overall CO2 emissions at 50 million tons per year, Mr. Mutch said. The company, which derives 61% of its power from fossil fuels, will work with the New York-based group Environmental Defense, to make sure its efforts are effective and measurable. Meanwhile, a coalition of five other electric power companies is calling for a mandatory cap on CO2 emissions that would decline annually, if the Bush administration develops a national emissions trading system that allows a company to decide which technologies to use to reduce CO2 and other pollutants. "We're basically planning on a glide path downward" regarding emissions limits, explained Mark Irion, a spokesman for the group, which includes Enron Corp. and El Paso Energy Corp. of Houston; Calpine Corp. of San Jose, Calif.; Trigen Energy Corp. of White Plains, N.Y.; and NiSource Inc. of Merrillville, Ind. Emissions trading gives companies incentives to introduce new technology, Mr. Irion said. Under the trading scheme, which is used currently to address sulfur-dioxide pollution, a company that reduces emissions below its target level gets trading credits that it can sell to other companies, thus helping to offset the costs of new capital investment. Sulfur dioxide plays a major role in acid rain. The announcements come as the entire U.S. utility industry, which produces about a third of the nation's man-made CO2, is engaged in behind-the-scenes negotiations with the White House energy task force headed by Vice President Cheney over how to set up a meaningful, voluntary system for reducing CO2 nationwide. Meanwhile, private utilities, federally owned entities such as the Tennessee Valley Authority, and rural electric cooperatives are trying to develop an industry consensus on a voluntary program. According to one industry official involved in both discussions, who asked not to be identified, one idea of interest to the task force involves voluntary contracts that power companies would make with the government calling for CO2 emissions cuts. Once signed, the contract's target reductions would become mandatory. Called a "soft cap" program, it could become part of the U.S. position for the next round of international climate-change talks, slated for Bonn, Germany, in July. "We have only recently begun to engage the administration," said the official. Since March when the Bush administration aroused a furor among environmental groups and European allies by announcing it was no longer interested in the Kyoto Protocol to curb climate change, it has held a series of cabinet-level seminars on climate change, bringing in industry experts and a variety of government and outside scientists. President Bush will need to have some outline of a new U.S. climate-change policy by next month when he goes to Sweden for a summit with leaders of the European Union. "We're well aware of the calendar," said one U.S. official. Tom Kuhn, president of the Edison Electric Institute, a trade association here that represents private-sector utilities, said "I think the [Bush] administration is definitely interested in things that they can do to address this issue." He noted, however, that it is too early for a industry-government consensus on CO2 reduction. "Nobody's agreed upon specifics." Bob Davis contributed to this article.

Metro Desk California and the West Secretary of Energy, Davis Meet on U.S. Plan to Boost Conservation Crisis: Federal buildings and military bases, accounting for 1.5% of state's usage, will cut back. RICHARD SIMON; DAN MORAIN TIMES STAFF WRITERS

05/04/2001 Los Angeles Times Home Edition A-3 Copyright 2001 / The Times Mirror Company

SACRAMENTO -- In a visit meant to underscore the Bush administration's heightened concern about the California electricity crisis, Secretary of Energy Spencer Abraham met Thursday with Gov. Gray Davis in Sacramento to discuss federal energy conservation plans. "I think we have an approach that can result in significant savings," Abraham told Davis. The energy secretary said he was in California "to gauge what we can do to add to what California is already doing." The trip came after President Bush revealed plans for a series of conservation measures for federal buildings and military bases nationwide. Those facilities in California account for 1.5% of the state's total energy use. Today, Abraham is scheduled to meet with federal officials in San

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Powergate

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File	dasovich-j/inbox/91.

I am cheered to see Dow Jones reporting on the ISO's illegal practices. Below are some CAISO citations I found that forbid the ISO from making OOM purchases from CDWR. Interestingly, the ISO's OOM purchases would constitute "gaming" under the CAISO tariff's Market Monitoring and Information Protocol (MMIP). We should consider having IEP request that the Market Monitoring division of the ISO investigate whether the ISO is in violation of its Tariff. Perhaps the ISO would acknowledge its errors; more likely not, but such action would only give more evidence to FERC that the ISO's governing board lacks independence.

CAISO Tariff Section 2.5.8:

"The ISO shall operate a competitive Day-ahead and Hour-Ahead market to procure Ancillary Services. It shall purchase Ancillary Services capacity at least cost to End-Use Customers consistent with maintaining system reliability. . . ."

CAISO Tariff Section 2.5.1:

". . . Those Ancillary Services which the ISO requires to be available but which are not being self provided will be competitively procured by the ISO from Scheduling Coordinators in the Day-ahead Market, the Hour-Ahead Market and in real time or by longer term contracts.

CAISO Tariff Section 2.5.12(a):

"The ISO shall not differentiate between bidders other than through price and capability to provide the [ancillary] service, and the required locational mix of services;. . . ."

CAISO Dispatch Protocol sections:

DP 8.1.1 "During real time Dispatch, the ISO will be responsible for dispatching Generating Units, Curtailable Demands and Interconnection schedules to meet real time imbalances between actual and scheduled Demand and Generation and to relieve Congestions, if necessary, to ensure System Reliability and to maintain Applicable Reliability Crister.

DP 8.2. "To achieve this, the ISO Control Center will utilize the merit order stack of available resources prepared pursuant to the SP through BEEP."

DP 8.6.3 (c): "the ISO shall select the Generating Units, Curtailable Demands and Interconnection schedules to be dispatched to meet its balancing Energy requirements based on the merit order stack of Energy bid prices produced by BEEP;"

DP 10.2.3 (b) "The ISO will not intervene in the operation of the Day-Ahead Market unless there has been a total or major collapse of the ISO Controlled Grid and the ISO is in the process of restoring it."

CAISO's Operating Procedures for Balancing Energy and Ex-Post Pricing, Section 2.2, Out of Market Request Log Example:

"This type of request [OOM purchase---sch] should not be used unless there is a valid reason, such as system emergency or rapidly deteriorating system conditions. It is important that ALL information be logged, including the reason this Generating Unit was chosen over other Generating Units."

ISO Market Monitoring and Information Protocol (MMIP)

MMIP 1.3.1: "The MMIP applies to. . . The ISO."

Practices Subject to Scrutiny: MMIP 2.1.1.3: "unusual trades or transactions;" MMIP 2.1.1.4: "pricing and bidding patterns that are inconsistent with prevailing supply and demand conditions,. . ." MMIP 2.1.2: "Where Generating Units are determined by the ISO to be Reliability Must-Run Units, circumstances indicate that such Generating Units are being operated in a manner that will adversely affect the competitive nature and efficient workings of the ISO Markets." [The Mohave Ramp-down might fall under this prohibition.] MMIP 2.1.3 "Gaming," or taking unfair advantage of the rules and procedures set forth in the PX or ISO Tariffs, Protocols or Activity Rules,. . .to the detriment of the efficiency of, and consumers in, the ISO Markets.

---Steve

-----Original Message-----

From: Mara, Susan Sent: Friday, September 07, 2001 5:31 PM To: Palmer, Mark A. (PR); Denne, Karen; Dasovich, Jeff; Comnes, Alan; Hall, Steve C. (Legal); Steffes, James D.; Alvarez, Ray; Shapiro, Richard Subject: FW: Cal-ISO Violating Fed Law By Making Utils Buy State Pwr

See story below

-----Original Message-----

From: Andy Brown [mailto:ABB@eslawfirm.com] Sent: Friday, September 07, 2001 5:00 PM To: 'Sue Mara' Subject: FW: Cal-ISO Violating Fed Law By Making Utils Buy State Pwr

what I mentioned.

Also, during the meeting (and during next Tues' FERC call) I mentioned that we need more info from companies for pursuing a complaint. We have some other elements now with these articles. We've also asked to meet with price waterhouse coopers on the CAISO audit (Alan called about that & we've traded voicemail.)

Things will get pretty curious.

Have a wkend. ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 mailto:abb@eslawfirm.com

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From: cwilson@gcpn.com [mailto:cwilson@gcpn.com] Sent: Friday, September 07, 2001 4:15 PM To: duke_press_conferences@porternovelli.com Cc: sbrown@gcpn.com Subject: Cal-ISO Violating Fed Law By Making Utils Buy State Pwr

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(Embedded image moved || State Pwr | to file: ||| pic07321.pcx) |||||
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|-----+----- ||||| By Jason Leopold ||||| Of DOW JONES
NEWSWIRES |||||

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Enron Mentions

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Physical Bandwidth Delivery Varies Among Market-Makers Dow Jones Energy Service, 04/12/01

USA: UPDATE 1-U.S. must embrace energy efficiency-report. Reuters English News Service, 04/12/01

Panel recommends renegotiating pact with Enron Associated Press Newswires, 04/12/01

USA: Persistent problems chinking Enron's armor. Reuters English News Service, 04/12/01

USA: Enron says Morgan Point, Tx. MTBE plant has restarted. Reuters English News Service, 04/12/01

RUSSIA WATCH: Putin Takes Well-Timed Shot At Gazprom Dow Jones International News, 04/12/01

USA: U.S. must embrace energy efficiency-report. Reuters English News Service, 04/12/01

INDIA: India state committee suggests Enron re-negotiation. Reuters English News Service, 04/12/01

Indian Panel Submits Report On Enron Power Dispute Dow Jones International News, 04/12/01

Indian Panel Proposes Enron, Maharashtra Redo Pact (Update1) Bloomberg, 04/12/01

Physical Bandwidth Delivery Varies Among Market-Makers By Erwin Seba Of DOW JONES NEWSWIREs

04/12/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- Two market-makers in the nascent bandwidth trading arena describe widely divergent levels of physical delivery to their customers. While Enron Corp. (ENE) said almost all of its trades go to physical delivery, an executive with Aquila Broadband Services, a unit of Utilicorp United Inc. (UCU), said only 10% of its deals go to physical delivery. The question of physical delivery is important because analysts and especially carriers question the accuracy of prices in the bandwidth market. While none of the critics want to be quoted, they alleged that the bandwidth market consists only of companies like Enron and Aquila swapping capacity among themselves, then settling their deals financially without delivering bandwidth. Though trading companies disagree on the number of deals going to physical delivery, they all describe huge growth in the number of transactions they have done in the first three months of this year. "In the first quarter of this year, we've well surpassed the number of trades we did in all of last year," said Shelly Mansfield, director of media relations for Enron Broadband Services, a unit of Enron. Enron did 321 trades last year. Aquila Broadband Services told Dow Jones Newswires that the number of trades it did in the first quarter this year was more than triple the number it did all of last year. In the first quarter, Aquila did 150 to 200 trades, said Sushil Nelson, senior vice president and general manager. The company did fewer than 50 trades in all of last year. About 10% of last year's trades required physical delivery of bandwidth, Nelson said. Only trades done last year would gone to physical delivery in the first quarter of this year, he said. He expects a lower percentage of this year's trades to go to physical delivery. "Right now the bandwidth market is akin to a futures market," Nelson said. "It's acting like a futures market in that it is pointing where the price should be."

Market Physical, Not Financial, Enron Says

In contrast, Enron's Mansfield said most of its trades require physical delivery. "There isn't a financial market in bandwidth," she said. "There's no index that can be settled against. Almost all go to delivery. We're definitely in a physical market." Aquila traded with 11 counterparties last year and five were other bandwidth-trading companies, Nelson said. It also traded with three major carriers and three local loop providers. In contrast, Enron said that last year it traded with 45 counterparties - 35% of them U.S. carriers and 33% network service providers. The rest were marketers, resellers or international companies. Mansfield declined to provide the number of trades Enron did in the first three months of this year. The company would give more information next week when it releases quarterly earnings and performance statistics, she said. El Paso Corp.'s (EPG) Global Networks declined to say how many of its trades required physical delivery. A

spokesman did say the number of route miles it has traded in the first quarter tripled over the fourth quarter. A Williams Communications Group (WCG) spokeswoman would say only that bandwidth trading is profitable for the company. Other bandwidth-trading companies were unable to provide information in time for this report. -By Erwin Seba, Dow Jones Newswires, 713-547-9214 erwin.seba@dowjones.com

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USA: UPDATE 1-U.S. must embrace energy efficiency-report. By Matthew Robinson

04/12/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, April 12 (Reuters) - The United States must adopt new conservation measures such as improved vehicle fuel efficiency if it is to ease its energy supply woes, a new report from an independent task force said on Thursday. The Bush administration's plan to increase domestic energy supplies is not enough to tackle a squeeze that has sent gasoline and heating oil costs soaring and pushed California's power system to the brink of collapse, the task force organized by the the Council on Foreign Relations (CFR) and the Baker Institute of Rice University said. "You can't have a supply side response without also taking into account a demand side effort, as well as environmental concerns. A compromise will result not in an inconsistent policy, but rather, is the only way to create a fully consistent policy," said Edward Morse, chairman of the task force and executive advisor of Hess Energy Trading Co. Oil and energy firms such as Royal Dutch/Shell , Chevron , BP Amoco ,Enron , Dynergy and Italy's ENI contributed to the task force. The panel released its findings as the administration's White House Energy Policy Development Group headed by Vice President Dick Cheney prepares for final deliberations. "The report has been presented at the highest levels of government, including President (George W.) Bush, Vice President Cheney, and (National Security Adviser) Condoleeza Rice," said Morse. Despite the Bush administrations concentration on supply side policies, Morse said that he expects the Cheney energy report "won't look much different," than the report presented by the task force. "The president has to begin educating the public about this reality and start building a broad base of popular support for the hard policy choices ahead," the report says. U.S TRAILS IN DEMAND MANAGEMENT "Supply side issues are very important, as is debottlenecking our infrastructure. But we have to look at demand management practices and fuel choice - we completely ignored that for more than a decade," said Amy Myers Jaffe, project director for the task force. The United States currently guzzles about a quarter of the 80 million barrels of oil products consumed each day worldwide, and according to the study lags other industrialized nations in exercising demand-based energy policies. The Bush administration's energy plan is currently focused on opening up more domestic land for hydrocarbon drilling, including the currently off-limits Arctic National Wildlife Refuge in Alaska to make the U.S. less reliant on foreign imports. "The United States has trailed other industrialized societies when it comes to oil-demand management," the report says. If light truck vehicles such as sport utility vehicles (SUVs) were required to have the same fuel efficiency as automobiles, it would shave five percent off U.S. demand in seven to 10 years, it said. The federal government could also stimulate development of greener transportation by purchasing vehicles for its fleet that incorporate nascent technologies, it added. Efforts toward the development of energ

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Wisconsin Gas to Purchase Nine Mile Line From Northern Natural Gas PR Newswire, 07/13/01

Commodities Review: LME Copper Hit By Another Stock Rise Dow Jones Commodities Service, 07/13/01

LME Base Metals: Copper Pressured Down By Stock Build Dow Jones Commodities Service, 07/13/01

UK: Telecoms, drugs drive FTSE 100 rally, Vodafone leads. Reuters English News Service, 07/13/01

Futures Contract Covering Coal Debuts in New York (Correct) Bloomberg, 07/13/01

Enron: Panacea or Pariah? Modern Metals, July 2001

Wisconsin Gas to Purchase Nine Mile Line From Northern Natural Gas

07/13/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

Line Will Enhance Competition in Southeast Wisconsin and Use Existing Facilities

MILWAUKEE, July 13 /PRNewswire/ -- Wisconsin Gas, Northern Natural Gas and Guardian Pipeline announced today that Wisconsin Gas has signed an agreement with Northern Natural Gas (NNG) to purchase a nine mile, high pressure natural gas pipeline in Walworth and Waukesha counties. The purchase price is \$5 million. The proposed transaction will require approval from federal and state regulators. The pipe, known as the Eagle line, is located southeast of the Kettle Moraine Forest near Eagle, Wis. The existing line has been part of the NNG interstate transmission system. Under the new ownership, the line will become part of the Wisconsin Gas distribution system and will interconnect with Guardian Pipeline as well as the NNG system. "Northern Natural Gas is pleased to be a part of a creative, cost-effective solution to provide additional gas service to southeastern Wisconsin," said Dave Neubauer, vice president of business development and marketing, Northern Natural Gas. "This transaction enables Wisconsin Gas and its customers to obtain natural gas supplies from Guardian or NNG. Providing reliable, economical choices for consumers will benefit all of the parties involved." "We saw this as an opportunity to minimize environmental impact and still realize the benefits of increased competition in the natural gas market," said James Schott, senior vice president, Wisconsin Gas. "The purchase of the Eagle line will enable Wisconsin Gas to further our goal of providing cost-efficient natural gas service to our customers." As a result of the purchase Guardian Pipeline, the 141-mile interstate pipeline from Joliet, Ill. to Ixonia, Wis., will no longer build an 8.5-mile lateral to Eagle. The lateral was part of the originally certified Guardian Pipeline. This portion of the line would have generally run parallel to the current Northern Natural pipeline. "This sale is a win-win situation for Guardian and consumers," said George Hass, project manager of Guardian Pipeline. "The Eagle line purchase by Wisconsin Gas saves Guardian time and resources by taking away the need to build the 8.5-mile lateral and allows all three companies to create a better environment for competition in the natural gas marketplace." The existing gate stations at LaGrange and Eagle will remain in-service for regulation purposes. Odorization and measurement will take place at a new gate station that will be constructed at the interconnect with Guardian. This new gate station will be called the Bluff Creek station and will be located near Whitewater. The Bluff Creek gate station will be constructed during the construction of Guardian Pipeline. Northern Natural Gas, a subsidiary of Enron Corp., with a market area capacity of about 4.3 Bcf/d, provides natural gas transportation services to utility customers in the upper Midwestern United States through its approximately 16,000 miles of pipeline. Guardian Pipeline is a partnership of three Midwestern energy companies: CMS Energy, based in Dearborn, Mich.; Wisconsin Energy, headquartered in Milwaukee, Wis.; and Viking Gas Transmission Co., a wholly owned subsidiary of Xcel Energy Inc., and located in St. Paul, Minn. Wisconsin Electric-Wisconsin Gas, the principal utility subsidiary of Wisconsin Energy Corp. (NYSE: WEC), serves more than one million electric customers and more than 960,000 natural gas customers throughout Wisconsin and Michigan's Upper Peninsula. Visit our company's Web site at www.WE-WG.com. Learn about Wisconsin Energy Corp. by visiting www.WisconsinEnergy.com MAKE YOUR OPINION COUNT - Click Here <http://tbutton.prnewswire.com/prn/11690X86200271>

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Commodities Review: LME Copper Hit By Another Stock Rise By Mark Long and Steve McGrath Of DOW JONES NEWSWIRES

07/13/2001 Dow Jones Commodities Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

LONDON -(Dow Jones)- Copper futures traded in London fell Friday, as a further influx of stocks into official warehouses put the copper market under pressure and dragged down the rest of the base metal complex. Three-month copper traded on the London Metal Exchange ended \$6 down from Thursday's late kerb close at \$1,554.50 a metric ton. An increase of 7,475 tons of copper into LME warehouses Friday brought total stocks up to a 12-month high of 550,300 tons. This pressured prices in early trade down to test \$1,550/ton support, although prices recovered slightly in later trade. Unconfirmed market talk said Enron is behind much of the week's stock rise, in an effort to ease nearby supply tightness and to alleviate the large short positions it is thought to have built up on the July-for-a-week spread, which is currently

showing a \$6-\$8/ton backwardation. The July futures contract will switch over to cash Monday. Enron declined to comment on the market talk Friday. A backwardation is a pricing structure in which deliveries to be made in the near future are more expensive than those set for a more distant delivery. The opposite situation is called contango. "The spreads are still tight. The major longs are still reluctant to lend, with no signs of that (tightness) dissipated," said Kevin Norrish, an analyst with Barclays Capital in London. Dealers and analysts said they expect further stock increases next week. The entire base metals complex ignored Thursday's 237-point rally in the Dow Jones Industrial Average, dealers said. "Copper has been sensitive to moves in the stock market, but not this time," Norrish said. In fact, now it appears that base metals markets ignore equities markets when they rally, but follow stocks down when they slump, he added. European Grain Futures See Profit-Taking, But More Gains Expected European grain and oilseed futures were hit by a bout of profit-taking and pre-weekend position-squaring Friday, after rising to long-time highs, brokers said. However, world and domestic crop concerns, the strength of the dollar and general bullish sentiment will carry the markets to fresh highs short term, they said. On the London International Financial Futures and Options Exchange, the benchmark November feed wheat contract ended just 25 pence up at GBP82/ton, after hitting a new two-year high of GBP83/ton in early trade. Meanwhile, Matif November rapeseed futures fell EUR2.75 on the day to EUR265/ton, after hitting a three-year high of EUR271/ton in early trade. The U.K. wheat crop and the French rapeseed crop are forecast to be well down on last year, and wheat and canola crops in some other major producing countries are also expected to fall. Meanwhile, the strength of the dollar is allowing European grain and oilseed traders to up prices and still remain competitive against U.S. imports and dollar-denominated grains on the world market. -By Mark Long and Steve McGrath, Dow Jones

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Grid Lock Our energy transport system is horrible. Just the way many utilities like it. Forbes, 05/11/01

US Sen. Feinstein Urges Hearings On FERC 'Improprieties' Dow Jones Energy Service, 05/11/01

U.S. Physical Gas Cash Prices Fall; No Load Weekend Dow Jones Energy Service, 05/25/01

FOCUS Brazil real to remain pressured due to energy crisis/political concerns AFX News, 05/25/01

Vice Pres Cheney Sees Wood As New FERC Chairman - NYT Dow Jones Energy Service, 05/25/01

INDIA: Enron's woes make Indian power firms anxious. Reuters English News Service, 05/25/01

Enron Unit's Sales, Costs Rise With Power Prices, Paper Says Bloomberg, 05/25/01

India Enron Panel Lacks Authority to Solve Dispute, Expert Says Bloomberg, 05/25/01

Companies People Ideas Grid Lock Our energy transport system is horrible. Just the way many utilities like it. BY Daniel Fisher and Lynn Cook

06/11/2001 Forbes 080 Copyright 2001 Forbes Inc.

Our energy transport system is balkanized and horribly inefficient. Unfortunately, many of the incumbent utilities want to keep it that way. The Bush energy plan hits hard on increasing production. That alone won't solve the nation's power crunch. "Supply is not the only issue," says Michelle Michot Soss, director of the Energy Institute at the University of Houston. "The issue is bottlenecks." Some of these bottlenecks are political. A lot of them are created by incumbent utilities that do not welcome competition. Florida, for example, whose demand for electricity is growing at about 3.7% a year, is a net importer of energy. It generates around 24% of its power in aging oil-fired plants that should be replaced with more efficient combined-cycle generators. These burn natural gas in a turbine and use the hot exhaust gases to create steam, which spins a second turbine; they spew out less particulate and consume about a third less energy. So why doesn't Florida get efficient power plants? First, the state has only one main gas pipeline, though others are working their

way through the regulatory process. More vexing is a state law, zealously defended by Florida utilities, that bans outside competitors from building combined-cycle plants larger than 75 megawatts--enough to juice 75,000 households--on the dubious theory that they waste water. Duke Energy tried to challenge the law with a 500-megawatt plant in New Smyrna Beach. FPL Corp. (parent of Florida Power & Light) fought the plant all the way to the Florida Supreme Court and won. Florida's screwy power-plant law is just one example of the byzantine regulations that stymie efforts to make the nation's energy grid more efficient and prices more competitive. From laws that protect utilities against more efficient rivals to outdated state regulations that discourage the construction of transmission lines, these choke points either waste energy or make it impossible for energy to get where it should go. A series of state laws in the 1920s laid down the monopolies on grids. They were codified in the Public Utility Holding Company Act of 1935, a populist law that identified bigness with badness in the electricity business: To avoid federal scrutiny and regulation, most utilities decided not to operate outside their own state boundaries; rate setting fell to the states. But even as wholesale electricity markets have been deregulated, utilities can still bat away outsiders by reserving their own transmission lines for "native load." This allows them to keep an open lane on the energy highway, as it were, to rush electricity to certain customers when their demand suddenly spikes. In such areas as the Southeast, the owner of a transmission line has a pretty free hand in calculating what its native load is. So Southern Co., which owns utilities in Georgia and four neighboring states, can determine how much power to let into its territory. Southern Co. defends the rule, saying its primary job is ensuring customers get all the power they need. "The marketers would like to schedule another 10,000 megawatts of power to go across our lines tomorrow," says William Newman, a senior vice president. "It's not going to happen. The system wasn't designed for it." Enron disagrees. Utilization of its natural gas pipeline system increased 50% in the five years after the gas market was deregulated. Steven Kean, head of government regulations at the Houston-based giant, thinks similar gains are possible in electricity if companies like Southern are forced to hand over control of the grid to independent regional boards that will determine how to allocate power flows and where to build new lines. The utilities "don't want to accept the economically pure solution," he says. "Once utilities have been adequately compensated for their stranded costs, then it's time for them to shut up, sit in the corner and let the economists and lawyers work out the details." Lawyers and economists making decisions for us? That doesn't sound like deregulation. But there is a case to be made for separating control of power lines from control of other utility assets. Phillip G. Harris is chief executive of PJM (it stood for Pennsylvania-Jersey-Maryland), a regional power line organization. Since this independent system operator was formed in April 1997 and six local utilities ceded control over transmission lines, reliability has gone up and prices down, he says. Where Southern Co. will only add transmission capacity if it has a firm contract in hand, PJM can order lines to be built. Its member companies are spending \$311 million over the next three years on new lines to increase the flow from power-rich to energy-poor areas. Last May temperatures hit the highest levels since 1930 at the same time as 15,000 megawatts of PJM's 59,000 megawatts were out of service for maintenance. As the peak load rose to 51,000 megawatts--7,000 more than was available within PJM--power streamed in over a dozen entry points. Prices topped out at \$432 a megawatt hour. That's about four times what you are probably paying for residential service, but it stands in contrast to spikes in the thousands of dollars in California and the Midwest during similar crises. Unfortunately, what works inside PJM doesn't transfer to Los Angeles, much less to Manhattan. Different rules regarding electricity transactions and a shortage of transmission lines make it difficult to export electricity across the Hudson River. When Hydro-Quebec tried to build a power line across Long Island Sound in 1999, Connecticut nixed the idea. Ostensible reason: the possibility of harm to oyster beds. Real reason: Folks in New Haven asked, what's in it for us--and didn't see any clear benefit to them. There is, unfortunately, no mechanism for buying off losers in these deals, such as property owners near, but not under, the power line. So they hire lawyers and talk solemnly about oysters. California's bottleneck is on Path 15, a 500,000-volt transmission line that links the northern and southern halves of the state. Path 15 can't accommodate the flows of power needed when the weather is cool in San Francisco and hot in L.A. But the legal and financial chaos in California, with the state on the verge of taking over much of the transmission system, discourages investors from backing an increase in capacity. "If we put in good rules on how to operate transmission systems, you would see investment," says Lawrence Makovich, an analyst with Cambridge Energy Research Associates. "The problem is right now there is no such plan." Enron is trying to force the Federal Energy Regulatory Commission to take charge, so far to little avail. In a case pending before the U.S. Supreme Court, Enron accuses FERC of abdicating its responsibility to do for interstate trading

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TR's State NewsWire 2/2/01 A.M. Edition

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Telecommunications Reports presents TR's State NewsWire February 2, 2001 A.M. Edition

STATES ILLINOIS -- Legislation to rewrite telecom law introduced HAWAII -- Bill would extend franchise tax to telecom, cable TV businesses MICHIGAN -- Group begins work on telecom plan PA. -- Carrier fined \$50,000 for failing to post surcharge notice on pay phones KANSAS -- Bill would prohibit 'slamming' TEXAS -- Sen. Carona aims to enact UETA SOUTH DAKOTA -- Bill would create universal service fund HAWAII -- Bill would set up cable TV access infrastructure plan TEXAS -- PUC to hear Supra complaint against SW Bell NEW YORK -- Bill would exempt coin calls from excise tax IDAHO -- PUC holds off on area code public hearings HAWAII -- Lawmakers examine electronic forgery ARIZONA -- Qwest to bring high-speed Internet access to public schools

FUTURE OF REGULATION ILLINOIS Legislation to rewrite telecom law introduced

Several legislators yesterday introduced HB 492/SB 134 to rewrite the telecom article of the state's Public Utilities Act, which expires July 1. Connect Illinois, an advocacy group that counts Ameritech-Illinois as one of its members, joined the legislators in a news conference yesterday announcing the bill.

The major objectives of the legislation are to (1) guarantee consumers that prices for basic residential service always remain affordable, (2) allow the marketplace to increase competitive choices for business and broadband services, (3) give concise legislative direction to the future role of the state Commerce Commission, (4) modernize ICC communications rules to permit them access to the latest information, (5) require network unbundling for all carriers and cable "open access," and (6) create an atmosphere that encourages technological investment and deployment.

The bill would establish a two-year rate freeze, with future increases capped below the rate of inflation. It also would deregulate optional services, such as call waiting and Caller ID.

The sponsors of SB 134 are Sens. Steve Rauschenberger (R., Elgin) and Denny Jacobs (D., East Moline). Reps. Steve Davis (D., Bethalto) and Art Tenhouse (R., Liberty) sponsored HB 492.

The legislation is available at <http://www.legis.state.il.us/legisnet/legisnet92/hbgroups/hb/920HB0492LV.html>.

TAXATION HAWAII Bill would extend franchise tax to telecom, cable TV businesses

Rep. Calvin K.Y. Say (D., District 18) has introduced HB 1180, which would amend the state franchise tax to include telephone, telecom, and cable TV businesses. Those businesses would have to pay 2.5% of their gross receipts for the preceding calendar year.

HB 1180 awaits consideration by the House Consumer Protection and Commerce Committee and the House Finance Committee.

STATE & LOCAL GOVERNMENT MICHIGAN Group begins work on telecom plan

The Michigan Economic Development Corp. (MEDC) has begun gathering information to develop a telecommunications plan for the state, a corporation representative told TR. MEDC is quasi-governmental agency.

The MEDC's executive committee directed the corporation to begin work on the plan to learn how Michigan can develop its telecom industry and infrastructure. The executive committee didn't set any timeframe for when it would like the plan completed, the representative said.

The MEDC is in the very early stages of developing the plan and hasn't defined specifically what issues it will address yet. Mostly, the group is gathering information about what other states are doing in this area, the representative explained.

NETWORK MANAGEMENT PENNSYLVANIA Carrier fined \$50,000 for failing to post surcharge notice on pay phones

One Call Communications Inc., d/b/a Opticom, has agreed to pay a \$50,000 civil penalty for failing to post notice of a surcharge it had been assessing on intrastate calls made from pay phones. Public Utility Commission regulations require notice of such surcharges to be posted in plain view on the pay phone.

The commission said its prosecutory staff confirmed reports of the violations during an informal investigation. The company said it was unaware of the posting requirement. The PUC said local exchange carriers (LECs) own some of the pay phones served by Opticom and won't let the company place stickers on the phones.

According to the staff, Opticom immediately posted notification stickers where it could and ceased assessing the surcharge on calls made from LEC pay phones on which it couldn't post stickers.

The commission said the \$50,000 fine, which the company agreed to in a proposed settlement with staff, was sufficient given the company's cooperation during the investigation. The PUC tentatively has agreed to adopt the settlement. It asked for comments on the settlement by Feb. 13. (Docket no. M-00011449 Pennsylvania Public Utility Commission v. Opticom Division of One Call Communications)

CUSTOMER-AFFECTING KANSAS Bill would prohibit 'slamming'

The House Committee on Utilities has recommended the passage of a bill that would prohibit changing or adding to a customer's telecom services without authorization. HB 2099 would prohibit carriers from directing a local exchange carrier to change a subscriber's carrier without obtaining the subscriber's permission beforehand. Carriers requesting such a change would be responsible for proving through a "preponderance of the evidence" that the consumer authorized the transaction.

HB 2099 also would prohibit providers from engaging in any activity that could mislead the subscriber while soliciting or confirming a carrier change. In addition, the bill would prohibit the use of sweepstakes entries as a form of authorization to switch a consumer's carrier or add supplemental services to the consumer's account.

Violations of HB 2099 would be punishable by civil penalties of between \$5,000 and \$20,000 per offense. Individuals could bring a private action against any party they believed had violated HB 2099.

HB 2099's text is available at <http://www.ink.org/public/legislative/bills.cgi/bill/2002/2099.pdf>.

INTERNET TEXAS Sen. Carona aims to enact UETA

Sen. John J. Carona (R., District 16) has introduced SB 393 to enact the Uniform Electronic Transactions Act, which would make electronic signatures and records legally equivalent to traditional signatures and records. The bill wouldn't require the use of electronic records and signatures but would uphold their use when both parties involved in a transaction agreed to conduct business electronically.

SB 393 also wouldn't preempt requirements in other laws regarding the posting of a record. In addition, electronic records wouldn't be enforceable if the sender prevented the recipient from storing or printing them. The Department of Information Resources would specify the manner in which state agencies could use electronic records.

SB 393 has been referred to the Senate Business and Commerce Committee. Its text is available at <http://www.capitol.state.tx.us/tlo/77r/billtext/SB00393I.HTM>.

UNIVERSAL SERVICE SOUTH DAKOTA Bill would create universal service fund

Several legislators have introduced SB 232 to establish a state universal service fund (USF). The Public Utilities Commission would have to establish rules governing administration of the USF by Oct. 1. It would have to implement the fund by Jan. 1, 2002.

Sens. Kenneth D. Albers (R., District 16) and Gil Koetzle (D., District 15) and Reps. Mike Jaspers (R., District 11) and James Bradford (D., District 27) introduced the measure. It has been referred to the Senate Committee on State Affairs.

ADVANCED SERVICES HAWAII Bill would set up cable TV access infrastructure plan

Sen. Les Ihara Jr. (D., District 10) has introduced SB 1536, which would require the director of commerce and consumer affairs to develop a statewide

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TR's State NewsWire 02/08/01 8 A.M. Edition

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Telecommunications Reports presents TR's State NewsWire February 8, 2001 8 A.M. Edition

STATES MISSISSIPPI -- Senate passes no-call bill MINNESOTA -- PUC chair would mediate disputes under bill MASSACHUSETTS -- Eleven bills to restrict telemarketers introduced CONNECTICUT -- Bill would exempt cable TV companies from earnings tax COLORADO -- Workshops on Qwest market-entry bid continue OKLAHOMA -- SW Bell presents \$30 million grant to educational trust KANSAS -- KCC denies SW Bell request to reconsider 'recip comp' order IOWA -- Bill would restrict cellphone use while driving UTAH -- Committee to take up bill addressing rate increases for small telcos ILLINOIS -- Measure would create study of Internet voting IDAHO -- More than 7,000 join no-call list during the first month

CUSTOMER-AFFECTING MISSISSIPPI Senate passes no-call bill

The Senate has approved a bill to prevent telephone solicitors from calling consumers who inform the Public Service Commission that they object to such calls. SB 2362, sponsored by Sen. Thomas E. Robertson (R., District 51), would require the PSC to create a no-call database containing telephone numbers of consumers who don't want calls from solicitors. (1/18/01 p.m.)

Only five senators voted against SB 2362, but a motion to reconsider was entered, a legislative staff member told TR. The motion means that SB 2362 could be called up for another Senate vote before Feb. 12, the staff member said.

Rep. Les Barnett (R., District 116) has introduced a similar bill, HB 1414, which has been referred to the House Public Utilities Committee.

SB 2362 and HB 1414 have won the support of the Public Service Commission. (2/2/01 p.m.) Almost 400 consumers in the past two months have asked the commission to help limit telemarketing, and the two bills would help accomplish this, according to the PSC.

FUTURE OF REGULATION MINNESOTA PUC chair would mediate disputes under bill

A bill introduced in the House would allow the chairman of the Public Utilities Commission to mediate and resolve disputes between utility providers. The intent is to create a more efficient and informal method of dispute resolution option than can be pursued in formal proceedings before the full commission or a court, according to the measure.

The new dispute-resolution process could be initiated by a provider's written complain to the chairman or by the chairman's own motion. The chairman could designate another commissioner to hear a particular dispute.

Within 15 days of a mediation session, the parties would have to inform the chairman as to whether they had reached a resolution. If a resolution weren't reached, the chairman could issue a written decision or refer the issue to the full commission.

Reps. Loren Geo Jennings (D., District 18B) and Ken Wolf (R., District 41B) introduced HF 568. It has been referred to the House Regulated Industries Committee.

CUSTOMER-AFFECTING MASSACHUSETTS Eleven bills to restrict telemarketers introduced

The Joint Committee on Government Regulations and the Joint Committee on Commerce and Labor are considering five House bills and six Senate bills aimed at restricting telemarketers.

HB 234, HB 602, HB 1378, SB 22, SB 44, and SB 91 each would establish a statewide no-call database, with listing fees ranging from \$5 to \$10 per consumer. The bills would establish fines ranging from \$500 to \$5,000 per violation. HB 602 also would require telemarketers to pay \$500 to access the list and would require carriers to notify customers about the list and tell them how to sign up.

Two other House bills take a slightly different approach. HB 577 addresses fraud by requiring telemarketers to issue a "notice of confirmation and cancellation rights" after each transaction made by phone. The buyer could cancel the transactions up to three business days after the receipt of the notice. HB 1002 would levy fines of up to \$1,000 against telemarketers who deliberately blocked Caller ID during solicitations.

SB 55, in addition to creating a no-call list, would establish guidelines for conduct including requesting fees, telemarketing to minors, and blocking Caller ID. SB 126 would require telemarketers to submit a registration statement and a \$50,000 surety bond. SB 126 also suggests guidelines for recordkeeping, prohibited acts and practices, and cancellation of transactions.

The Joint Committee on Government Regulations is considering three bills--HB 602, sponsored by Rep. Scott P. Brown (R., Norfolk-9), HB 1378, sponsored by Rep. Charles A. Murphy (D., Middlesex-23), and HB 1002, sponsored by Rep. Mary Jane Simmons (D., Worcester-4).

The Joint Committee on Commerce and Labor is considering two of the House bills--HB 234, sponsored by Rep. William M. Straus (D., Bristol-10), and HB 577, sponsored by Rep. Bruce J. Ayers (D., Norfolk-1).

The six Senate bills have been referred to the Joint Commerce and Labor Committee. SB 22 is sponsored by Sen. Robert A. Antonioni (D., Worcester), SB 44 is sponsored by Sen. Susan C. Fargo (D., 5th Middlesex), SB 48 is sponsored by Sen. Cheryl A. Jacques (D., Norfolk), SB 55 is sponsored by Sen. Michael R. Knapik (R., 2nd Hampden), SB 91 is sponsored by Sen. David P. Magnani (D., Middlesex), and SB 126 is sponsored by Sen. Richard R. Tisei (R., 3rd Middlesex).

TAXATION CONNECTICUT Bill would exempt cable TV companies from earnings tax

Rep. Richard O. Belden (R., District 113) has introduced a bill to exempt cable TV companies from the state's 5% gross earnings tax. HB 6165 has been referred to Committee on Energy and Technology. Its text is available at <http://www.cga.state.ct.us/2001/tob/h/2001HB-06165-R00-HB.htm>.

LONG DISTANCE COLORADO Workshops on Qwest market-entry bid continue

Workshops on Qwest Corp.'s bid to enter the Colorado interLATA (local access and transport area) service market are scheduled to resume at the Public Utilities Commission Feb. 20-23. Issues that will be addressed include unbundled network element combinations, transport switching, and "dark" (unpowered) fiber, a PUC staff member told TR. The PUC plans to hold workshops monthly through the spring, the staff member said.

Section 271 of the federal Telecommunications Act of 1996 bars Bell companies from providing in-region interLATA services until the FCC finds that they have complied with certain local exchange market-opening requirements. Section 271 of the federal Telecommunications Act of 1996 requires the FCC to seek the advice of the relevant state commission. Typically Bell companies have not submitted a section 271 application to the FCC until state regulators indicate that they are satisfied that the company has complied with the Act's market-opening mandates.

ADVANCED SERVICES OKLAHOMA SW Bell presents \$30 million grant to educational trust

Southwestern Bell Telephone Co. has given \$30 million to Attorney General Drew Edmondson (D.) and trustees for the Oklahoma Education Technology Trust to establish and activate a trust designed to help schools capitalize on new computer and telecom technology. The company pledged the money during negotiations that led to the company opting out of rate-of-return regulation. (11/12/99 a.m.) The state Corporation Commission finalized the alternative regulation plan in December 1999. (12/1/99 a.m.)

The trust will assist schools across the state by funding, obtaining, installing, and integrating new computer and telecom equipment. Only the interest from the \$30 million contribution can be tapped by the appointed trustees.

Edmondson said, "The trust will oversee the placement of new computer hardware and software and other telecommunications equipment in out classrooms, so that students across out state have an opportunity to claim a place in the information a

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Wall Street Reporter Interviews George A. Kast, President & CEO of Global Water Technologies

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GOLDEN, Colo.--(BUSINESS WIRE)--July 5, 2001--Global Water Technologies, Inc. (OTCBB: GWTR), a full-service cooling water company utilizing advanced technologies and engineered solutions to provide process cooling water to power plants, process industry and municipalities, worldwide, today announced that George A. Kast, President and CEO, has been featured in an interview by Wall Street Reporter. In the interview, Kast discussed industry trends, market potential and growth opportunities in the markets that the Company has cultivated. The interview was conducted on Tuesday, July 3, 2001, at 1:00 p.m. (MT) by Matt Cleary, and is currently audibly available, on the Wall Street Reporter's web site, www.wallstreetreporter.com, by clicking on the CEO Interviews link. Commenting on this interview, George Kast, President and CEO stated: "We are very pleased to be featured in an interview by the Wall Street Reporter. This is a very exciting time for Global Water Technologies, Inc. and we are excited that this forum gives us the opportunity to present our story to the investment community." The interview primarily covered the most recent corporate events and the Company's efforts to implement its business strategy, capitalizing on its competitive advantages in the rapidly expanding power, energy and utility sector. The Wall Street Reporter is a leading information source for professional investors seeking new investment ideas. Their in-depth interviews of CEOs with leading public companies are geared toward sophisticated investors who demand an unbiased, unscripted, first-hand perspective that enables them to make informed investment decisions.

About Global Water Technologies

Global Water Technologies, Inc. (OTCBB: GWTR) is a company with major interests in the areas of power, energy and water. The company utilizes its proprietary technology to enhance power production by providing cold, clean water to increase operating efficiencies, reduce water use and operating costs. Through this process, GWTR is able to increase their client's power output by up to 10% depending upon age, design and efficiency of the plant. GWTR's client base includes, but is not limited to, the following companies: General Electric (NYSE: GE), Enron subsidiary companies (NYSE: ENE), Raytheon Company (NYSE: RTN), Archer Daniels Midland (NYSE: ADM), British Petroleum Amoco, Mitsubishi, Mobil, Texaco (NYSE: TX), Duke Fluor Daniel, Kerr McGee (NYSE: KMD) and Calpine (NYSE: CPN).

Forward-Looking Statement

This news release contains forward-looking statements within the meaning of Section 27A of the Securities Act of 1933, as amended, and section 21E of the Securities Exchange Act of 1934, as amended. Such statements are subject to risks and uncertainties that could cause actual results to vary materially from those projected in the forward-looking statements. The Company may experience significant fluctuations in future operating results due to a number of economic, competitive and

other factors, including, among other things, the size and timing of customer orders, changes in laws, new or increased competition, delays in new products, production problems, changes in market demand, market acceptance of new products, seasonal in product purchases, and changes in foreign exchange rates. These factors, and other factors, which could materially affect the Company and its operations are included in the Company's filings with the Securities and Exchange Commission and are incorporated herein.

CONTACT: Global Water Technologies, Inc. Steve Rash, 303/215-1100, Ext. 192 info@gwtr.com www.gwtr.com or Equity Growth & Management Tom Waite, 407/444-0375 12:00 EDT JULY 5, 2001 Developments in California's energy crisis By The Associated Press

07/05/2001 Associated Press Newswires Copyright 2001. The Associated Press. All Rights Reserved.

Developments in California's energy crisis: THURSDAY: - No power alerts as electricity reserves stay above 7 percent. - The Senate Judiciary Committee continues its debate at a hearing over Gov. Gray Davis' proposal to aid financially strapped Southern California Edison. - Lt. Gov. Cruz Bustamante and Assemblywoman Barbara Matthews introduce two additional whistleblowers from power plant operated by Duke Energy. - The grand jury that will probe criminal charges of price gouging by energy generators will convene this week in Sacramento. The 19 new members of the Sacramento County grand jury were assigned by State Attorney General Bill Lockyer and will assess the results of several government investigations. - The U.S. Trustee argues again in bankruptcy court that ratepayers should have a committee to represent their interests in the Pacific Gas & Electric Co. bankruptcy proceedings. WEDNESDAY: - No power alerts as electricity reserves stay above 7 percent. WHAT'S NEXT: - The Senate committee investigating possible price manipulation in California's energy market meets Tuesday. The committee will vote on contempt citations against generators Mirant and Enron who failed to comply with subpoenas for documents. Six other suppliers have until Tuesday to turn over documents. THE PROBLEM: High demand, high wholesale energy costs, transmission glitches and a tight supply worsened by scarce hydroelectric power in the Northwest and maintenance at aging California power plants are all factors in California's electricity crisis. Southern California Edison and Pacific Gas and Electric say they've lost nearly \$14 billion since June 2000 to high wholesale prices the state's electricity deregulation law bars them from passing on to consumers. PG&E, saying it hasn't received the help it needs from regulators or state lawmakers, filed for federal bankruptcy protection April 6. Electricity and natural gas suppliers, scared off by the companies' poor credit ratings, are refusing to sell to them, leading the state in January to start buying power for the utilities' nearly 9 million residential and business customers. The state is also buying power for a third investor-owned utility, San Diego Gas & Electric, which is in better financial shape than much larger Edison and PG&E but also struggling with high wholesale power costs. The Public Utilities Commission has approved average rate increases of 37 percent for the heaviest residential customers and 38 percent for commercial customers, and hikes of up to 49 percent for industrial customers and 15 percent or 20 percent for agricultural customers to help finance the state's multibillion-dollar power buys. Track the state's blackout warnings on the Web at www.caiso.com/SystemStatus.html.

UK: ANALYSIS-Where have all the LME volumes gone? By Martin Hayes

07/05/2001 Reuters English News Service (C) Reuters Limited 2001.

LONDON, July 5 (Reuters) - Years of rising business on the London Metal Exchange

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IEP Media Teleconference Wednesday @ 11am PDT 1-800-374-2393

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File	dasovich-j/all_documents/28166.

Contact: ?Jean Munoz ??????????????FOR IMMEDIATE RELEASE ?????????916-447-8186
????????????????????June 26, 2001

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ENERGY PRODUCERS? POWER UPDATE

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SACRAMENTO =01. Jan Smutny-Jones, Executive Director of the Independent Energy Producers Association, will brief members of the media on California's rapidly changing electric market during a teleconference Wednesday, June 27 at 11:00 a.m.

What: ???Press Availability Teleconference ??? When: ?Wednesday, June 27, 2001 ??????????11:00 a.m. PDT

Call In #: ??1-800-374-2393 ??????????Conference I.D: Independent Energy Producers (IEP)

Who: ???Jan Smutny-Jones, Executive Director of the Independent Energy Producers Association

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SB 1x set for hearing - Monday

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----- Forwarded by Jeff Dasovich/NA/Enron on 04/19/2001 12:28 PM -----

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To: "Susan McCabe" <smccabe@mccabeandcompany.net>, "Sue Mara" <smara@enron.com>, "Steven Kelley" <steven@iepa.com>, "Steve Ponder" <steve_ponder@fpl.com>, "Stephanie Newell" <stephanie-newell@reliantenergy.com>, "Scott Sadler" <sadlersa@earthlink.net>, "Scott Govenar" <sgovenar@govadv.com>, "Sandi McCubbin" <smccubbi@enron.com>, "Ron Tom" <rtom@govadv.com>, "Roger Pelote" <roger.pelote@williams.com>, "Robert Ross" <robbiz@cwo.com>, "Rina Venturini" <rventurini@teamgsi.net>, "Richard Hyde" <rwhyde@duke-energy.com>, "Rachel King" <rachel.king@elpaso.com>, "Phil Isenberg" <isenberg@hmot.com>, "Paula Soos" <paula_soos@covantaenergy.com>, "Mike Monagan" <mmonagan@aol.com>, "Maureen O'Haren" <oharen@hmot.com>, "Marie Moretti" <mmoretti@mccabeandcompany.net>, "Lynn Lednick" <lale@dynegy.com>, "Kent Palmerton" <kent.palmerton@williams.com>, "Katie Kaplan" <kaplan@iepa.com>, "Kassandra Gough" <kgough@calpine.com>, "Julee Ball" <jmball@ns.net>, "John Stout" <john_h_stout@reliantenergy.com>, "John Larrea" <john.g.larrea@williams.com>, "Joe Ronan" <joer@calpine.com>, "Jeff Dasovich" <jeff.dasovich@enron.com>, "Jean Munoz" <jmunoz@mcnallytemple.com>, "Jan Smutny Jones" <smutny@iepa.com>, "Jack Pigott" <jackp@calpine.com>, "Hedy Govenar" <hgovenar@govadv.com>, "Greg Blue" <gtbl@dynegy.com>, "Fred Pownall" <fred_pownall@ka-pow.com>, "Delaney Hunter" <dhunter@s-k-w.com>, "Chuck Cole" <ccole@advocation-inc.com>, "Bev Hansen" <bhansen@lhom.com>, "Anne Kelly" <kelly@hnks.com>, "Andy Brown" <abb@eslawfirm.com>, "John Norwood" <janorwood@norped.com>, "Pete Conaty" <paceo@pachell.net>, "Matt Kilroy" <matt.kilroy@pge-corp.com>, "Cary Rudman" <cjrudman@softcom.net>, "Carolyn McIntyre" <cmcintyre@sempra.com>, "Barbara LeVake" <blevake@syix.com>, "Pat Pape" <ppape@calpine.com>, "Mohammed Alrai" <mohammeda@calpine.com>, "Kent Robertson" <kentr@calpine.com>, "Katherine Potter" <katherip@calpine.com>, "Juan Rodriguez" <juanr@calpine.com>, "Eileen Koch" <eileenk@calpine.com>, "Bill Highlander" <highlander@calpine.com>, "Aymee Ramos" <aymeer@calpine.com> cc: Subject: SB 1x set for hearing - Monday

SB 1x (Soto/Scott), the windfall profits tax measure, will be heard Monday morning in the Senate Appropriations Committee.

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Message 457 of 1299

Utilization of Mike Day

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Rick, Jim and Jeff: Here's a draft of the e-mail I intend to send to Sandy and Mike re: use of Mike Day in Sacramento. Let me know your thoughts.

It appears from talking with both of you that we have some confusion on how we will contract for legal services to support or legislative efforts. Hopefully this e-mail will clarify the process so there is no confusion in the future and so that Mike can feel comfortable he is completing work that is authorized and for which we have a budget.

1. To begin, it appears that Goodin, MacBride has billings as of May 11 for approximately \$10,000 on direct access, windfall profits, the "Global Settlement," Power Plant Siting. We will cover these amounts because of the apparent confusion with our budgeting and approval process. The amounts already incurred should be included in the RCRs discussed below.

2. As we discussed yesterday, the work associated with the billings in May was conducted without any RCR approval or any budget in place. As you know we terminated the two legislative retainers at the end of April. No RCRs were filed to cover the matters on which work was completed in May.

I did receive a budget on legislative matters on May 8. However, a decision was made only yesterday to proceed on a specific matter-by-matter basis; the work in May should not have been undertaken while we considered whether to proceed with an overall legislative budget or proceed with specific RCRs. In short, a proposed budget is not RCR approval.

3. In the future, any work undertaken by Goodin MacBride should only be conducted pursuant to an approved RCR. If an emergency arises--i.e., an issue arises that could not have been contemplated, then I should be contacted before completing any work. If I am unavailable, Jim Steffes should be contacted. If Jim is unavailable, then Rick Shapiro should be contacted. In this regard, I authorized Goodin MacBride to participate in the Direct Access coalition meetings taking place today and tomorrow. I also authorized Goodin MacBride to participate in a telephonic conference on the Calderon bill. To the maximum extent possible, I expect that Mike will include Leslie Lawner in future Direct Access meetings, legislative drafting efforts, etc.

4. If there is any confusion on whether there is RCR approval for a particular matter, I should be contacted before undertaking an assignment. If I am unavailable, Jim Steffes should be contacted. If Jim is unavailable, then Rick Shapiro should be contacted. I can be reached through my office line--503.464.7945, pager--888.916.2262, or cell phone 503.539.4733. I wear the pager at all times and respond immediately to messages left on the pager.

5. Today, Sandy is filing several RCRs for legislative support on Direct Access, Siting, Windfalls Profits, and the Global Settlement. They will be considered at next Monday's RCR conference call. If they are approved, Sandy will manage the Goodin MacBride assignments associated with Direct Access, Siting, and Windfalls Profits.

Jeff Dasovich will manage all work associated with the Global Settlement, whether it is legislative or not. This does not mean that Sandy cannot give assignments to Goodin MacBride; it simply means that before that work begins Jeff must approve the work.

This particular issue is a critical matter for our company. Jeff is involved in the strategy and business calls concerning this matter and is working on a daily basis with Jim Steffes, Rick Shapiro and Steve Kean to develop our position and advocate that position in the settlement discussions. We must ensure that our Sacramento efforts are fully coordinated with our strategy and business interests (as they develop through the settlement discussions). To avoid any confusion on the scope of Jeff's responsibility, I consider all legislation addressing the Edison MOU, any future MOUs with Sempra, and "Plan B," to be part of the Global Settlement.

Please contact me if you have any questions regarding any of the above. I recognize that Sacramento is a difficult environment and that there is substantial pressure on both of you. However, we are under an obligation to use our internal and external resources in the best and most cost-effective manner. The RCR process is designed to meet that responsibility.

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IEP News 5/21

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Today's IEP news...

Thanks, Jean

Calif Controller To Release Power Supply Contract Details - Dow Jones [PRESS CONFERENCE today at 11AM PST @ Controllers office, 300 Capitol Mall]

CBS News Transcripts, CBS MORNING NEWS (6:30 AM ET), May 18, 2001, Friday, 386 words, CALIFORNIA GOVERNOR THREATENS TO TAKE MATTERS INTO HIS OWN HANDS IF THE GOVERNMENT OFFERS NO RELIEF FOR THE STATE'S ENERGY CRISIS, JULIE CHEN, BILL WHITAKER [Smutny interviewed on behalf of IEP]

National Public Radio (NPR), MORNING EDITION (10:00 AM ET), May 18, 2001, Friday, 619 words, CALIFORNIA'S POWER PLAN, ALEX CHADWICK, ELAINE KORRY [Smutny interviewed on behalf of IEP]

CBS News Transcripts, CBS EVENING NEWS (6:30 PM ET), May 17, 2001, Thursday, 430 words, CALIFORNIA GOVERNOR THREATENS TO TAKE MATTERS INTO HIS OWN HANDS IF THE GOVERNMENT OFFERS NO RELIEF FOR THE STATE'S ENERGY CRISIS, DAN RATHER, BILL WHITAKER [Smutny interviewed on behalf of IEP]

Los Angeles Times, May 19, 2001 Saturday, Home Edition, Page 1, 704 words, PUC Allegations Detailed; Hearing: The commission president tells a Senate panel that maintenance records show no valid reason for generators to cut power production., ROBERT J. LOPEZ, RICH CONNELL, TIMES STAFF WRITERS [Jean quoted on behalf of IEP]

Los Angeles Times, May 21, 2001 Monday, Home Edition, Page 7, 782 words, The State; ; Davis Says Bad Guys Went Thataway, to Texas, GEORGE SKELTON

Chicago Tribune, May 21, 2001 Monday, NORTH SPORTS FINAL EDITION, Business; Pg. 3; ZONE: CN; INSIDE TECHNOLOGY., 758 words, Power demands set stage for boom in backup systems, BY JON VAN.

The Associated Press State & Local Wire, May 21, 2001, Monday, BC cycle, 8:34 AM Eastern Time, State and Regional, 273 words, New poll suggests Californians haven't been this gloomy for years, SAN FRANCISCO

The Associated Press State & Local Wire, May 21, 2001, Monday, BC cycle, 6:43 AM Eastern Time, State and Regional, 901 words, 'Baseline' becoming key word for electric customers, By KAREN GAUDETTE, Associated Press Writer, SAN FRANCISCO

The Associated Press State & Local Wire, May 21, 2001, Monday, BC cycle, 4:03 AM Eastern Time, State and Regional, 720 words, Grid officials, others studying planned blackouts, By JENNIFER COLEMAN, Associated Press Writer, SACRAMENTO

Los Angeles Times, May 20, 2001 Sunday, Home Edition, Page 21, 709 words, THE NATION; ; As Energy Prices Rise, So Does the Rancor; Politics: Gov. Davis says power plan comes at the expense of consumers. Bush blames

????Democrats for environmental curbs., EDMUND SANDERS, TIMES STAFF WRITER, ????WASHINGTON

Los Angeles Times, May 20, 2001 Sunday, Home Edition, Page 16, 930 words, ????THE NATION; ; Spencer Abraham Is Running on Energy, Not Charisma; ?Profile: ????Charged with selling Bush's initiative, 'workhorse' new to the field is ????facing a hard row., FAYE FIORE, TIMES STAFF WRITER, WASHINGTON

Los Angeles Times, May 20, 2001 Sunday, Home Edition, Page 3, 407 words, ????Los Angeles; ; Davis Launches Conservation Campaign; Electricity: Governor ????hands out fluorescent lightbulbs in his effort to get Californians to save ????power this summer., DALONDO MOULTRIE, TIMES STAFF WRITER

Sacramento Bee, May 20, 2001, Sunday, Pg. A3;, 704 words, One year later, ????we know it wasn't just a simple game of golf, Dan Walters

The San Francisco Chronicle, MAY 20, 2001, SUNDAY,, FINAL EDITION, NEWS;, ????Pg. A5, 1030 words, ENERGY CRUNCH; ???Investigations; ???Power firms fueled ???by greed, Lockyer says; ???Out-of-state generators face multiple probes, ????Greg Lucas, Sacramento

The San Francisco Chronicle, MAY 20, 2001, SUNDAY,, FINAL EDITION, NEWS;, ????Pg. A1, 1932 words, Power juggling ramped up price; ???Insiders say ???manipulation also strained equipment, Christian Berthelsen, Scott Winokur

The San Francisco Chronicle, MAY 20, 2001, SUNDAY,, FINAL EDITION, ????EDITORIAL;, Pg. C6;, 984 words, EDITORIAL; ???On energy; ???Conservation's ???value: It's not all sacrifice

Calif Controller To Release Power Supply Contract Details ???? Updated: Monday, May 21, 2001 09:40 AM?ET ???? ? LOS ANGELES (Dow Jones)--California state Controller Kathleen Connell will release details of the state's long-term power supply contracts, including the cost per megawatt-hour, during a news conference Monday morning, according to her office.

Connell will also discuss property taxation of utilities and possible anticipation of revenues in 2002 at the 2 p.m. EST news conference in Sacramento.

Connell, a Democrat, has said the \$13.4 billion in revenue bonds the state plans to sell in August to pay for electricity will last through early 2002, if power prices are about \$195 a megawatt-hour in the summer. However, she said she fears prices will be much higher and the bonds will be exhausted sooner.

Connell attempted to release details in February and March on the price the state paid to secure long-term power supply contracts, but was told by Gov. Gray Davis' administration that if she released the information it could jeopardize the deals because of its competitiveness.

Connell has said the state should immediately stop buying power because of the impact it is having on the state's budget and the likelihood that other state-funded programs will be cut.

-By Jason Leopold; Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

SHOW: CBS MORNING NEWS (6:30 AM ET)

?May 18, 2001, Friday

TYPE: Newscast

LENGTH: 386 words

HEADLINE: CALIFORNIA GOVERNOR THREATENS TO TAKE MATTERS INTO HIS OWN HANDS IF THE GOVERNMENT OFFERS NO RELIEF FOR THE STATE'S ENERGY CRISIS

ANCHORS: JULIE CHEN

REPORTERS: BILL WHITAKER

BODY:

??JULIE CHEN, anchor:

??In energy-starved California, ground zero of the power crisis, the Bush plan faces sharp criticism. ?Bill Whitaker has that.

??BILL WHITAKER reporting:

??Six times this year lights have gone out in parts of California when heat triggered a surge in demand. ?Governor Gray Davis deflected the political heat, blasting the Bush energy plan as inadequate.

??Governor GRAY DAVIS (Democrat, California): I fault the president for not providing California with any immediate relief.

??WHITAKER: In a major power play of his own, Davis has threatened to seize the facilities of Reliant Energy, a Texas-based supplier and major Bush contributor, if Reliant doesn't cut prices.

??Gov. DAVIS: But I told the generators face to face, I said, 'Your fate is in your hands. ?If you don't help me get through this summer with a minimum of disruptions, then you leave me no choice but to sign a windfall profits tax and to seize plants.'

??WHITAKER: All five of Reliant's Southern California plants are natural gas powered, supplying electricity to three million houses. ?Davis has called Reliant the greediest of all the out-of-state suppliers. ?Reliant wouldn't comment on camera, but the industry says takeover talk is more political than economic.

??Mr. JAN SMUTNY-JONES (Independent Energy Producers Association): Seizing private property didn't work in Cuba and it's not going to work in California, either.

??WHITAKER: A state takeover of Reliant could backfire, scaring off other out-of-state generators. ?But analysts say California, which already uses less energy per capita than any other state, has few options.

??Mr. MARK BERNSTEIN (Energy Analyst, Rand Corp.): The only other thing that can happen is for the federal government to take action to moderate prices. And if the gov--federal government doesn't take those actions, the governor may not have any choice.

??WHITAKER: Some California legislators suggest creating a buyers' cartel with Washington and Ore

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VentureWire, Tuesday, November 21, 2000

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=09?=09 ?=09' VentureWire' =09Tuesday, November 21, 2000=09? ?=09CONTENTS | COMPANIES | INVESTORS=09?
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30% of Europatweb with \$255 Million =09* Lockheed Spin-off TeraConnect Raises \$40 Million Round One =09* Yazam
Chief Executive Yaacov Ben-Yaacov Resigns =09 =09 =09 =09INFINITY IN THE PALM =09 =09What Scotch is to tape,
what Xerox is to photocopies, what =09Kleenex is to facial tissue, Palm is rapidly becoming to =09handheld computers.
Come listen to the man responsible for =09a brand so successful it's getting stuck to his competitors' =09products. Carl
Yankowski is the CEO of Palm Computing, and =09he's just one of six keynote speakers at Technology Outlook =092000.
You'll also hear from: =09* Michael Ramsay, CEO of TiVo =09* Henry Yuen, CEO of Gemstar-TV Guide International =09*
Claude Leglise, VP, New Business Group & GM, Home =09Products Group, Intel =09* Michel Mayer, GM, Pervasive
Computing, IBM =09* Larry Smarr, Professor, Department of Computer Science =09and Engineering, UC San Diego =09
=09Technology Outlook 2000: The Future of Pervasive Computing =09December 4 and 5, San
Franciscohttp://technologicpartners.com/tp/conf/to= 2000/ =09 =09 =09 =09new money =09 =09* Software Firm Valaran
Raises \$10.2 Million First Round =09* Healthcare Tech Firm Eko Systems Gets \$2.3 Million Round One =09* Network
Security ASP NetPlexus Has \$5 Million First Round =09* Software Firm PowerLoom Raises \$1.1 Million Seed Round =09*
Software Firm SmartSignal Closes Round One at \$7.4 Million=20 =09* Waveguide Components Firm Optical CrossLinks

Gets Seed Funds =09* Wireless Services Firm NearMe Raises First Part of Series A =09* Data Communication Firm Bravida Lands \$33 Million Series B =09* E-Business Firm TIS Worldwide Gets \$23 Million in Round Two =09* E-Learning System Firm WebCT Closes \$70 Million Sixth Round =09* HyperTrust, Hosted Security Firm, Has \$1 Million Funding =09* Camp Web Site lluvcamp.com Receives \$2.1 Million Series B=20 =09* Online Applications Firm Fullscope Gets \$10 Million Round Two =09* Internet Consulting Firm CyberTouch Secures \$6 Million =09* Optical Wireless Firm fSona Raises \$18.4 Million Series C =09* Web Publisher BizSpace Secures \$1.2 Million in Third Round =09 =09 =09bad news =09 =09* Independent Web Network Bla-bla Cuts Staff by 30% =09* CheMatch.com Lays Off 8 Employees But Expects More Funding =09 =09 =09new products =09 =09* Linux-Based Net Service Apps Developer Filanet Launches =09* Investment Consortium Led by CVC Asia Launches Mercury Corp. =09* HR Tech Firm TalentPoint Changes Name to Kenexa =09* Monitoring Firm Gecko Software Now Eccord Systems =09* Online Software Firm iSwag.com Changes Name to Develos=20 =09 =09 =09m&a =09 =09* E-Payment Firm Trintech Buys Globeset for \$31 Million=20 =09* Government Web Services Firm Netgov.com Acquires Gov24.com =09* Global Supply Chain Firm FreeBorders Buys Applied Intranet =09* Palmspring Acquires Mobile Generation, Now Called Handmark =09* Wireless Firm Stellcom Acquires Interface Firm Digital Asyly =09* XML Provider Cape Clear Acquires Java Tech Firm Orbware =09 =09 =09new directors =09 =09* Transcription Firm WordWave Adds Mainspring Exec to Board =09* AT&T'S Bruce Goemaat Named to ASP Mi8's Board of Directors =09* Auto Site Developer BVerticals Appoints Auto Exec To Board =09* Red Oak Software Names Information Technology Execs to Board =09* Telecomm Broker Chapel Hill Broadband Names First Chairman=20 =09 =09 =09new people =09 =09* Multimedia Firm KeeBoo Appoints Bertelsman Exec as CEO =09* Global Telecom Provider edge2net Names New CEO, Chairman =09* Net Marketplace Apps Developer TechTrader Announces New CEO =09* Multimedia Tech Firm ViaGate Technologies Announces New CEO =09* New CEO, President Named At Wireless Tech Firm TracerNET =09* Sales & Marketing Apps Firm Promptu Appoints Tech Exec CEO =09 =09 =09vc fund news =09 =09* British Telecom Establishing New Incubator, Brightstar=20 =09* At First Close, Odin Capital Has \$40.6 Million For New Fund =09* Electronics for Imaging Starts Venture Fund with \$20 Million =09 =09 =09vc personnel =09 =09* ETF Group Opens Two More European Offices =09 =09 =09TOP STORIES... NEW MONEY... BAD NEWS... NEW PRODUCTS... M&A... NEW=20 DIRECTORS... NEW PEOPLE... VC FUND NEWS... VC PERSONNEL =09 =09 =09 =09 =09 =09Where will you find the world's leaders in the optical =09communications industry discussing the latest trends, =09developments, and future direction of the field? =09Optix2001 Feb 11-14 in Pasadena CA. =09 =09Be on the cutting edge of optical communications technology =09with industry experts and scholars such as Joe Bass, VP and =09GM of the Wavelength Routing Business Unit at Cisco Systems, =09and John E. Bowers, Professor and Director of the =09Multidisciplinary Optical Switching Technology Center at =09UC Santa Barbara. =09 =09Also participating are CEOs from the top 48 optical =09communications organizations, providing attendees with an =09unparalleled inside look at the companies and players in =09this dynamic field. =09 =09Participation at this event is subject to approval and is =09limited to senior executives involved in the optical =09communications industry. For your registration pack link to: =09communications industry. For your registration pack link=20 to:http://www.optix2001.com/optix_reg.html =09 =09 =09top stories =09? =09The Sprout Group Raises \$1.6 Billion in New Fund =09?=09?=09MENLO PARK, Calif. (VENTUREWIRE) -- The Sprout Group, a venture = capital firm ?that focuses on technology-based companies, said it raised \$1= .6 billion in ?its eleventh fund. The fund will be used over a three-year p= eriod with each ?investment ranging in size from \$10 million to \$50 million= . Since its ?inception in 1969, the Sprout Group has financed more than 35= 0 companies and ?raised nearly \$3.5 billion in committed capital. The compa= ny raised \$860 ?million in its previous fund. ?=09<http://www.sproutgroup.com>?=09?=09Suez Lyonnaise Takes 30% of Europatweb with \$255 Million?=09 =09 =09PARIS (VENTUREWIRE) -- Group Arnault announced that Suez Lyonnaise des E= aux=20 would take a 30% equity stake in its wholly-owned subsidiary Europatweb wit= h=20 an investment of EUR 300 million (\$255 million). Four of Europatweb's 50=20 company holdings that will not receive investment from Suez Lyonnaise are= =20 expected to reach separate marketing agreements with the company. The=20 investment comes as part of a larger agreement between Group Arnault and Su= ez=20 Lyonnaise. This past June, Group Arnault said that Europatweb would not mak= e=20 a previously planned initial public offering. Europatweb was launched last= =20 year with EUR 500 million (\$425 million). =09<http://www.europatweb.com> =09 =09Lockheed Spin-off TeraConnect Raises \$40 Million Round One =09?=09?=09NASHUA, N.H. (VENTUREWIRE) -- Optical component company TeraConn= ect said it ?completed its spin off from Lockheed Martin company Sanders wi= th a \$40 ?million first round funded by Goldman Sachs, Kodiak Venture Partn= ers, and ?Spectrum Equity Investors. The company said it will use the fundi= ng for ?further product development. Kodiak Venture Partners managing gener= al partner ?Dave Furneaux is chairman of TeraConnect's board of directors. = TeraConnect ?develops optical components for router, server, and telecommun= ications ?infrastructure markets.

Telephone 603-885-2988.?=09?=09Yazam Chie= f Executive Yaacov Ben-Yaacov Resigns?=09 =09 =09JERUSALEM (VENTUREWIRE) -- Yaacov Ben-Yaacov, chief executive officer of= =20 Yazam, an investment and acceleration firm for new technology companies, ha= s=20 resigned, according to a spokesperson for the company. The status of Mr. Be=

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Energy Issues

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Please see the following articles:

Sac Bee, Fri, 7/6: Two more say Duke withheld power: The company says it was responding to the state grid operator

Sac Bee, Fri, 7/6: Lockyer seeks SEC investigation of PG&E's financial transfers

LA Times, Fri, 7/6: California State Seeks SEC Probe of PG&E Transfers

LA Times, Fri, 7/6: THE NATION Little Progress on Energy Rebate, Judge Hints

SF Chron, Fri, 7/6: Davis energy team denied pay State controller says work for Edison is a conflict of interest

SF Chron, Fri, 7/6: Ex-staff speaks out against Duke Two more charge prices manipulated

SF Chron, Fri, 7/6: Vallejo to produce its own energy Conservation, generators expected to make city self-sufficient

Mercury News, Fri, 7/6: SEC asked to see if PG&E Corp. violated law with subsidiary

Mercury News, Fri, 7/6: Judge may speed up electricity refund talks

Mercury News, Fri, 7/6: Davis keeps state addicted to fossil fuels (Commentary)

Chicago Trib, Fri, 7/6: Economics fuels power solution in California Price relief gains political support

Wash. Post, Fri, 7/6: California Changes Stance on Refunds; Two Sides Far Apart In Energy Talks

WSJ, Fri, 7/6: U.S. Hearing Officer May Impose Pact To End California Power-Overcharge Case

Two more say Duke withheld power: The company says it was responding to the state grid operator. By Kevin Yamamura
Bee Capitol Bureau (Published July 6, 2001) Two more former workers from a Duke Energy power plant came forward Thursday to bolster recent claims by colleagues that the power generator withheld production to drive up prices. But Duke attributed witness accounts of fluctuating generation to instructions from the state's transmission-grid operator. Richard J. Connors, an auxiliary operator, and E. Robert Edwards, an electrician, said generation units at Duke's Chula Vista plant sat idle during emergency periods for no apparent reason. Three of their former co-workers -- two mechanics and a control room operator -- told lawmakers two weeks ago that Duke had disposed of new parts and varied its production. While that testimony drew significant attention, it was countered Monday by a report released by the state's Independent System Operator that showed the ISO had in fact ordered Duke's up-and-down output Jan. 16-18. On Thursday, the Charlotte, N.C.-based company leaned on the ISO report in its defense. "The ISO could have dispatched those units at will," said Duke spokesman Tom Williams, referring to unused equipment. But Lt. Gov. Cruz Bustamante, who has filed a lawsuit against generators, contended that the ISO had based its orders on Duke's dubious bidding history. "These ISO orders came only after Duke had continuously manipulated the market with price-gouging schemes forcing the ISO to regulate production," Bustamante said. Connors and Edwards each worked more than 20 years at the South Bay plant in Chula Vista. For most of that time, the plant was owned by San Diego Gas & Electric. Two years ago, Duke purchased South Bay and retained Connors and Edwards under state-mandated agreements that ended in April. Edwards said that during power blackouts in January, he saw a 225-megawatt unit off-line. Other units, he said, were operating far below capacity.

"Our No. 1 priority in life was to make money," Edwards said. Williams rebutted the claims as observations from those "who did not have the complete picture." "It's dead on, dead true that there are times when that plant is not running at full capacity and there is a Stage 3," Williams said. "There may be blackouts in San Francisco. But the reason why it's not running is because the power can't move up Path 15 (a north-south bottleneck)." Bustamante, however, maintained that Duke has continued to manipulate the market, calling Connors and Edwards the "tip of the iceberg" in the price-gouging investigation. State Sen. Joe Dunn, D-Santa Ana, chairman of the Senate committee investigating price manipulation, said Connors and Edwards may testify before lawmakers after further evaluation. Dunn added that his committee has talked to potential whistleblowers from other power generators who said they have seen production decreases and suspicious activities. It is undetermined whether they will testify, he said.

The Bee's Kevin Yamamura can be reached at (916) 326-5542 or kyamamura@sacbee.com.

Lockyer seeks SEC investigation of PG&E's financial transfers By Ed Fletcher Bee Capitol Bureau (Published July 6, 2001) State Attorney General Bill Lockyer on Thursday asked the federal Securities and Exchange Commission to scrutinize financial transfers made to PG&E Corp. from its subsidiary that has filed for bankruptcy protection. "SEC scrutiny is essential to protect the public interest, ratepayers and the people of the state of California," Lockyer said in a prepared statement. Charges that PG&E Corp. hastened the bankruptcy filing of Pacific Gas and Electric Co. have been made before, responded Greg Pruett, a vice president of PG&E Corp. "That is an issue that has been investigated multiple times by the Public Utilities Commission earlier this year, by an Assembly oversight committee, and in each of these audits there has been no conclusion that the transfers were inappropriate or that they were injurious to PG&E Co.," Pruett said. In its filing with the SEC, the attorney general's office said that "without meaningful review by the SEC, it cannot be determined what impact the transfer of assets ... may have on the financial condition of the bankrupt utility." An SEC spokesman said the commission has yet to examine the petition. Among other concerns raised by Lockyer's office is the transfer of more than \$4 billion from 1997 to 1999 to PG&E Corp. from PG&E Co. The majority of the \$4 billion came from the sales of PG&E power plants, as was required by deregulation. "The bulk of the money went to pay debt that was incurred to actually build those plants," Pruett said. The rest of the transfers were to pay stockholder dividends, he said. PG&E filed for Chapter 11 bankruptcy protection in April after having run up \$6.6 billion in debt.

The Bee's Ed Fletcher can be reached at (916) 326-5548 or efletcher@sacbee.com.

Business; Financial Desk California State Seeks SEC Probe of PG&E Transfers NANCY RIVERA BROOKS ? 07/06/2001 Los Angeles Times Home Edition Page C-2 Copyright 2001 / The Times Mirror Company California Atty. Gen. Bill Lockyer on Thursday asked the Securities and Exchange Commission to investigate PG&E Corp. for potential abuses of its responsibilities as a utility holding company. At issue is a series of transactions over the last several years in which PG&E Corp. transferred funds from its utility, Pacific Gas & Electric Co., which now is operating under Bankruptcy Court protection. The money--more than \$4 billion since 1997--flowed to the parent company and to unregulated sister companies of the utilities. The transfers have been scrutinized by the California Public Utilities Commission and the state Legislature with no finding of wrongdoing, said PG&E Corp. spokesman Greg S. Pruett. The SEC currently exempts PG&E from almost all requirements of the Public Utility Holding Company Act because the San Francisco utility operates primarily within California . That law regulates transactions between holding companies and their utility subsidiaries. Lockyer wants the SEC to withdraw PG&E's exemption, citing \$13 billion in PG&E assets outside of California . "All the primary evils addressed

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Enron Mentions	
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Suddenly, Pipeline Project Sparks Interest --- Pakistan, India Summit Revives Plan for Gas To Travel Over Land The Wall Street Journal, 06/27/01

Enron Direct to tap Alberta retail market Firm's new unit is first major independent electricity and natural gas competitor
The Globe and Mail, 06/27/01

U.S. giant enters deregulated Alberta market: Biggest energy trader: Enron Corp. seeks expansion in other areas of
Canada National Post, 06/27/01

Former Bush aide named by Perry to last PUC post Houston Chronicle, 06/27/01

Enron says delay in India positive sign Houston Chronicle, 06/27/01

Dabhol: Lessons for FDI The Economic Times, 06/27/01

Powermen stage stir, demand Enron's exit The Times of India, 06/27/01

Europe Weighs Standard Gas-Trading Contract The Wall Street Journal Europe, 06/27/01

Data Centre bubble bursts amidst dotcom meltdown The Times of India, 06/27/01

Enron plans to enter steel trading in India Business Standard, 06/27/01

New York Electricity Supplier Tests Gadget that Controls Heat Via Internet KRTBN Knight-Ridder Tribune Business News:
The Philadelphia Inquirer - Pennsylvania, 06/27/01

Coal Cos Take Cautious View Of Nymex Coal Futures Dow Jones News Service, 06/26/01

Oregon Vote on Electricity Deregulation Delayed by Partisan Dispute Dow Jones Business News, 06/26/01

El Paso: Calif Supply Constraints Keep Gas Prices Up Dow Jones Energy Service, 06/26/01

Enron Corp. Dives Into Retail Canadian Power, Gas Markets Dow Jones Energy Service, 06/26/01

Enron to Start Commercial Power, Gas Sales in Alberta (Update1) Bloomberg, 06/26/01

Enron Says Indian Court Defers Decision on Jurisdiction Bloomberg, 06/26/01

International Suddenly, Pipeline Project Sparks Interest --- Pakistan, India Summit Revives Plan for Gas To Travel Over
Land By Daniel Pearl Staff Reporter of The Wall Street Journal

06/27/2001 The Wall Street Journal A8 (Copyright (c) 2001, Dow Jones & Company, Inc.)

BOMBAY, India -- A planned summit of India's and Pakistan's top leaders is giving new momentum to a \$5 billion international gas-pipeline plan that was once dismissed as a pipe dream. U.S. companies may be left out, though, because the gas would originate in Iran. The decades-old pipeline idea, from gas-rich Iran east through Pakistan and into gas-hungry India, has always floundered on India's reluctance to deal with Pakistan. Since gaining independence in 1947, India and Pakistan have fought three wars and a bloody border skirmish two years ago that derailed efforts to establish some economic cooperation. On July 14, Pakistani Gen. Pervez Musharraf, who seized power in a 1999 coup and recently named himself president, is scheduled to arrive in Agra, India, for his first summit meeting with India Prime Minister Atal Bihari Vajpayee. Pakistan officials have told reporters they expect the pipeline to be discussed. India's foreign ministry won't confirm that, but Mr. Vajpayee gave a green light to pipeline discussions during a recent trip to Tehran, industry officials said. India has previously limited itself to exploring undersea pipelines that avoid Pakistan. After the trip, Iran promptly asked Australia's BHP Petroleum to launch a feasibility study on a land route. "There have been some studies before, but I think this is the most official," an Iranian official said. Pipeline talks could present a quandary for the Bush administration. Washington has encouraged India and Pakistan to reduce tensions on the subcontinent, but has strongly opposed previous energy projects involving Iran. U.S. oil companies are lobbying hard for the administration to let sanctions on Iran expire this year instead of renewing them for two years. Though the 1,500-mile pipeline remains a long shot, it may be one of the few topics India and Pakistan can discuss without fear of political backlash at home. Neither country is likely to budge from their hardened positions on the disputed Kashmir territory, and low-level talks aimed at reducing risks of nuclear weapons have so far come to naught. Pakistan stands to gain badly needed revenue from transit fees; estimates range between \$260 million and \$600 million a year. India could get relief from a gas deficit that has fertilizer plants running on reduced fuel and power plants running on more-expensive naphtha. Also, India's biggest private company appears to be shifting the balance in favor of an Iran pipeline. Reliance Industries Ltd., a Bombay-based

polyester and petroleum company that is gearing up to challenge government monopolies in telecommunications and gas supply, recently launched a \$10 million study on importation of liquefied gas from Iran to India by ship, in partnership with BP Inc. and National Iranian Oil Co. But industry officials familiar with Reliance's plans said the company is expressing interest in the pipeline option, too, because of its cost advantages and potential to provide a backup energy source for Reliance's huge industrial complex in India's northwestern Gujarat state. Reliance wouldn't comment on its gas-supply plans. If the company does insert itself as a potential buyer of the pipeline gas, a deal could become easier to negotiate than if India's state-owned gas company were the buyer. Still, "What's missing really at this moment is someone who would broker an arrangement," says Hugh McDermott, a principal of consulting firm Nexant Inc. who heads a U.S.-funded project promoting energy cooperation among South Asian countries. (Pakistan isn't yet involved). The less India and Pakistan are willing to trust each other, the bigger role Iran is likely to play in any pipeline. One scenario being discussed within the gas industry is for Iran to agree on delivery all the way to the Indian border, paying Pakistan's transit fees and guaranteeing safe passage through Pakistan. Iran and Pakistan have warmed their previously frosty relations recently, but whether Iran -- or even Pakistan itself -- could really guarantee the pipeline's security is an open question. Matthew Forman, South Asia specialist at the London-based consulting firm Control Risk Group, said the pipeline would run through the huge and remote province of Baluchistan, a lawless haven for smugglers where suspected tribal militants recently attacked a Chinese petroleum-engineering company with bullets and rockets. Pakistan "will have to work hard to give the impression [the pipeline] is safe and reliable," Mr. Forman said. "It is going to need some serious political will for it to go ahead." Several competing proposals to bring natural gas to India have run into trouble lately. Enron Corp. recently withdrew from the latest plan for an underwater pipeline from the Persian Gulf. Unocal Corp. tried to promote a pipeline through Turkmenistan, Afghanistan, Pakistan and India, but Unocal shut down its Turkmenistan office in 1999, after finding the lure of transit fees wasn't enough to make Afghanistan a stable country. Unocal, Royal Dutch/Shell Group and other oil companies have staked out gas interests in Bangladesh, but Bangladesh officials have so far spurned oil companies' pleas to allow export of gas to neighboring India.

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Report on Business: Canadian Enron Direct to tap Alberta retail market Firm's new unit is first major independent electricity and natural gas competitor DAVID PARKINSON

06/27/2001 The Globe and Mail Metro B3

CALGARY -- U.S. energy trading giant Enron Corp. announced yesterday the launch of a retail electricity and natural gas business in Alberta, becoming the first major independent competitor to enter the Alberta market since the province deregulated electricity at the start of the year. Enron Canada Corp., the Canadian unit of Houston-b

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Energy Issues

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Please see the following articles:

Sac Bee, Tues, 6/5: Ose electricity bill buffeted by political storms

Sac Bee, Tues, 6/5: Bush vs. price caps: Economists correct a faulty power= =20 lecture (Editorial)

SD Union, Tues, 6/5: A game of victims and villains

SD Union, Tues, 6/5: Idled plants coming back on line

SD Union, Mon, 6/4: Planned plant shutdowns easing, boosting state's power= =20 supply

SF Chron, Tues, 6/5: Chevron threatens to cut gas supply in state=20

SF Chron, Tues, 6/5: PG&E creditors approve bonuses=20 Utility must file reorganization plan by end of year, or CEO only gets=20 \$600,000 extra

SF Chron, Tues, 6/5: 56% favor limits on electricity prices, poll finds

SF Chron, Tues, 6/5: Developments in California's energy crisis

SF Chron, Tues, 6/5: PG&E sues to challenge reimbursement to state

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Mercury News, Tues, 6/5: California's big turnoff (Editorial)

Mercury News, Tues, 6/5: FERC shirk (Editorial)

OC Register, Tues, 6/5: Edison plugging shareholders into Capitol

OC Register, Tues, 6/5: SDG&E to seek rate hike to cover \$915 million tab

OC Register, Tues, 6/5: Energy notebook AES power plant repairs might not meet target date

Individual.com (Businesswire), Tues, 6/5: GWF Signs Long-Term Contract to= 20 Provide 430 MW of Power to California=20

WSJ, Tues, 6/5: Electricity prices (Chart)

NY Times, Tues, 6/5: Surplus of Finger-Pointing In California Energy Crisi= s

LA Times, Tues, 6/5: California PSEG Signs 10-Year Contract to Supply=20 Electricity to State

LA Times, Tues, 6/5: Panel OKs Subpoenas for Energy Companies Electricity = :20 Special state Senate committee will demand pricing information in inquiry= =20 into whether California has been gouged

Ose electricity bill buffeted by political storms=20 By David Whitney Bee Washington Bureau (Published June 5, 2001)=20 WASHINGTON -- Rep. Doug Ose's legislation to bring order to skyrocketing=20 wholesale electricity prices is helping House Republicans rescue an emergen= cy=20 electricity bill, but it hasn't quelled Democrats' increasingly strident ca= ll=20 for more extensive price controls.=20 Utility sources, meanwhile, said the Sacramento Republican's legislation=20 won't do enough to stop the rapid escalation in wholesale power rates in=20 California and the West Coast.=20 And Mark Cooper, director of research for the Consumer Federation of Americ= a,=20 charged that the bill would lead to even higher power rates for most=20 Californians. "Ose's bill simply legalizes the transfer of billions of=20 dollars from California to Texas and Oklahoma," Cooper said.=20 Ose, chairman of the House Government Reform Committee's energy policy pane= l,=20 introduced his bill last month. The measure was promptly referred to the=20 House Energy and Commerce Committee, whose Republican leaders saw it as a w= ay=20 out of a politically sticky mess.=20 With Democrats demanding that federal regulators set wholesale rates based = on=20 generators' actual cost of producing power and the Bush administration=20 opposing anything that looks like price caps, Ose's idea contained the seed= s=20 of compromise.=20 Ose expanded on what the Federal Energy Regulatory Commission already had= =20 endorsed in a controversial "price mitigation" order for the California=20 market that took effect last week.=20 That order states that during a power emergency, the wholesale price on the= =20 spot market will be pegged to the cost of production at the highest-cost,= =20 least-efficient plant selling into the market at the time.=20 Ose's bill defuses some of the Democratic criticism of that action by makin= g=20 the order apply at all times and throughout the 13-state Western region.=20 "It is not a cap," Ose said. "It is market driven. It rewards those who are= =20 most efficient, and it rewards those who are most environmentally sensitive= =20 and responsible."=20 House Energy and Commerce Committee leaders hope to use the bill this week = as=20 the framework to jump-start a package of emergency electricity provisions,= =20 including authorization of a \$200 million fix of a critical Central=20 California transmission line bottleneck.=20 California Democrats, heartened by the leadership change in the Senate that= =20 strengthens Sen. Dianne Feinstein's hand on her price-control legislation,= =20 are working to derail the Ose compromise.=20 "By allowing the least-efficient generator to

set the price, this proposal creates a system that will encourage massive market manipulation, raising prices even further," they said in a statement. "This amendment will do nothing to help stop the economic bleeding."

The Bee's David Whitney can be reached at (202) 383-0004 or dwhitney@mcclatchydc.com.

Bush vs. price caps: Economists correct a faulty power lecture

(Published June 5, 2001)

In his recent commencement address at Yale University, President Bush saluted the C students in the graduating class: "I say you, too, can be president of the United States." But when he lectured California last week on the evils of electricity price controls, the joke seemed less funny. What America's most famous C student didn't learn in economics class is costing the state dearly. "Price caps do nothing to reduce demand, and they do nothing to increase supply," Bush said in his Los Angeles address, repeating a standard lesson out of introductory economics textbooks. Unfortunately, as 10 energy economists from universities around the nation made clear last week in an open letter on the state's electricity crisis, Bush must have missed the later chapters. The textbooks' admonitions against price controls apply to competitive markets. When competition breaks down, giving one or a few producers the ability to control prices, the textbooks are equally firm that regulation is needed to keep them from exploiting consumers. That's the situation confronting California -- and federal regulators. Electricity markets here long ago ceased to be competitive. Because of a flawed market structure and a temporary imbalance between supply and demand, generators learned last year that they had market power: By withholding supply at key times and places, they drove up the price of power beyond the level that would otherwise prevail in a competitive market. "We cannot expect a market to operate to benefit consumers ... if effective competition does not exist," the economists said in their letter. "In this case, cost-of-service prices are an obvious remedy." They noted that several useful proposals have been submitted to the Federal Energy Regulatory Commission (FERC) for temporary price restraints on wholesale prices. These would last only until new plants now being built come online to alleviate the shortage. Such restraints could meet the federal legal requirement that prices be "just and reasonable" without discouraging construction of new power plants or generation from existing plants, which is needed to keep the lights on this summer. In fact, as some economists have pointed out, the right kind of price controls could actually increase supply by removing any incentive for generators to withhold electricity to game the market. Bush's regulatory inaction is producing an unprecedented transfer of wealth from California households and businesses to the generating firms, a shift in

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CMTA Legislative Weekly - 11/15/01

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Legislative Weekly November 15, 2001 Issue 45, Volume 3

A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

PLENTY OF ENERGY, BUT LITTLE TRUST

As state and federal officials try to rebuild the defunct California energy market, the lack of supply has been replaced by a lack of trust as an ingredient in the ongoing crisis. For example:

In-state generators don't trust the ISO. They've alleged that the ISO (whose board is now all Governor Davis appointees) is buying power from DWR or the Pacific Northwest rather than the cheapest bid from generators in violation of federal law. Cal-ISO noted that DWR's so-called "out of market" purchases were more expensive than the bids to the ISO January through August. Now the price is roughly the same.

Consumer groups don't trust the DWR. They suggest that the DWR is manipulating the Cal-ISO market for last-minute electricity to help hide surplus electricity that DWR agreed to buy under \$43 billion worth of long-term power contracts signed last spring. DWR denies this.

Western states don't trust California. As FERC attempts to drum up support for a west-wide regional transmission system (RTO), they heard from other states loud and clear ? ?Please don't screw it up ? We're all saying we don't want to be with California ? Don't lump us all together.? This has led FERC Commissioners to conclude that three sub-regional organizations (one being Cal-ISO) could form under an umbrella organization, rather than a single entity.

Consumer groups don't trust the CPUC. The stealth deal struck by the CPUC to bail-out Southern California Edison caused The Utility Reform Network to ask the federal court to undo the deal. (CMTA was denied intervention.)

Legislators don't trust FERC. The bankruptcy reorganization plan for PG&E sends generation assets to the holding company, and FERC has jurisdiction over the power sale contract back to the regulated utility. Many legislators blame FERC for the market melt-down last year and object to any more FERC control over California markets.

Consumers don't trust the California Power Authority and DWR. The California Power Authority was created to ensure a 15% reserve margin in electricity supplies as insurance against blackouts and price spikes. DWR entered into \$43 billion in long term contracts, and is one of the largest single buyers of electricity in the entire West. The combination of current long-term DWR contracts and the possibility of more investment in supply by the CPA has consumer groups worrying that lower prices are only a distant and faint hope.

CPUC'S ENERGY EFFICIENCY FUNDING

The California Public Utilities Commission (CPUC) issued a draft decision this week on future energy efficiency policies in an effort to open energy efficiency funding to non-utility entities and to create competition with investor-owned utility programs.

Specifically, the decision opens public goods charge energy efficiency funding to non-utility entities such as local governments, chambers of commerce and others interested in participating in the program. The CPUC believes that this competition will spur overall program delivery improvement and encourage program continuity by creating multi-year funding opportunities.

The policy manual to be adopted defines CPUC policy rules in great detail and is intended to assist interested parties in preparing proposals in a standard format, to minimize ?apples and oranges? comparisons.

\$160 million will be provided to fund statewide programs; \$70 million in grants will be made available to fund innovative local and regional programs; and, \$6 million will be allocated to the CPUC to assess the State's energy efficiency needs.

Following, in order of importance, are the goals and objectives of the CPUC's energy efficiency programs. The point value under each objective represents their maximum possible score for each objective. A perfect score would be 100 points.

- 1). Long-Term Annual Gas and Electric Savings 25 Points The purpose of this category is to create permanent and verifiable energy savings over the life-cycle of energy efficiency measures affected by the program. In this area, the CPUC is striving for sustainability in the consumption behaviors and investment choices its programs are designed to stimulate.
- 2). Addressing Market Failures or Barriers 20 Points The proposal must include a description of the type of barrier it is designed to overcome. (For example, lack of consumer information about energy efficiency benefits; higher start-up expense for high-efficiency measures relative to standard-efficiency measures; lack of availability of high-efficiency products.)
- 3). Equity Considerations 17 Points The CPUC will generally prioritize programs that provide access to energy efficiency alternatives for under-served or hard-to-reach markets.
- 4). Cost Effectiveness 15 Points All proposals will be required to provide an estimate of the life-cycle benefits and costs.
- 5). Electric Peak Demand Savings 10 Points Programs paid for by electric public goods charge funds should emphasize long-term and permanent peak demand savings.

6). Innovation 8 Points The CPUC will prioritize programs that present new ideas, new delivery mechanisms, new providers of energy efficiency services, or new and emerging technologies.

7). Synergies and Coordination with Programs Run by Other Entities 5 Points To minimize confusion and overlap for consumers, the CPUC desires program proposals that take advantage of synergies or coordination with other existing programs, including those run by other state agencies, private entities, municipal utilities, or the federal government.

The program allows non-utility parties to submit proposals directly to the Commission for consideration, rather than to the utilities, as has been required in the past. Existing 2001 programs will be continued in the First Quarter of 2002, for a smooth transition, and most new programs will run through 2003.

For more information see the CPUC's website, <http://www.cpuc.ca.gov/>, email them at ee@cpuc.ca.gov or call the energy efficiency hotline at (415) 703-2776. The CPUC plans to hold a public workshop to assist parties in preparing proposals, once the decision is finalized.

EMPLOYERS MAY FACE RETROACTIVE UNEMPLOYMENT INSURANCE PAYMENTS

Following newspaper articles criticizing Governor Davis and the Employment Development Department (EDD) for making misleading remarks regarding SB 40's (Alarcon D-Sylmar) increase in unemployment benefits payments for laid off workers, one legislator has already initiated the process to remedy the situation at employers' expense. Assemblyman Lou Papan, (D-Millbrae) introduced a preprint of AB 1 that would retroactively increase UI benefits payments from \$230 to \$330 for workers laid off on or after July 1, 2001.

This year, the Governor signed SB 40, a bill that raises the maximum weekly payment from \$230 to \$300 for claims filed on and after January 1, 2002. The squabble is about remarks made by the Governor during the bill's signing in Los Angeles where many airline workers had been laid off. The Governor said "I want to make sure we have unemployment benefits that allow these workers to survive until the economy recovers," and "this will significantly strengthen the safety net not only for airline employees, but high-tech workers and all those who have been temporarily laid

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Financial Times Ranks Haas Executive Education Custom Programs

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Haas NewsWire June 11, 2001

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Financial Times Ranks Haas Executive Education Custom Programs Best in the West Warren Hellman to Speak on the Nasdaq at the Business Forecast Luncheon Sun Microsystems Chooses Haas for Lessons in High-Tech Marketing Haas in the News? Happening at Haas?? Haas Celebrations

FINANCIAL TIMES RANKS HAAS EXECUTIVE EDUCATION CUSTOM PROGRAMS BEST IN THE WEST The Haas School's Center for Executive Development (CED) offers the tenth best custom enrollment programs in the US, according to the executive education rankings published in the Financial Times on June 4, 2001. Haas was the top school west of the Mississippi in terms of executive custom programs.

The top ten US custom programs included Duke, Northwestern, Harvard Business School, Wharton, University of Michigan, Darden, UNC Kenan Flagler, Babson College, Cranfield School of Management, and, of course, Haas. Columbia Business School ranked first.

The same ranking named CED's custom programs 17th in the world and the second best in the world with regard to whether its programs fulfill participants' and corporate purchasers' aims. With regard to follow-up with the customers after completion of the program, Haas ranked fourth.

"We are very encouraged with this showing," said Paul Stames, assistant dean for Executive Learning at Haas. "For the past two years we have concentrated our efforts toward increasing custom programs for client companies and this strategy is paying off. We're very pleased that our clients are so satisfied with our programs. We went from not making the ranking pool last year to placing #10 in the US."

The Financial Times ranked schools that do more than \$2 million of business in two categories: custom programs and open enrollment programs. CED ranked only in the custom programs category.

The custom programs ranking was based on responses from two questionnaires: one completed by purchasers of custom programs (which accounts for 80% of the total score) and one completed by business schools.

For more details on the ranking, visit the Financial Times web site at:

<http://career.ft.com/ft/gx.cgi/ftc?pagename=View&c=Collection&cid=FTD4PPTW1MC&live=true>.

WARREN HELLMAN TO SPEAK ON THE NASDAQ AT THE BUSINESS FORECAST LUNCHEON Financier F. Warren Hellman, BA 55, will share his formidable investment knowledge with alumni and friends at the Haas School's 2001 Business Forecast Luncheon on June 14 in San Francisco. Having just paid \$240 million for a 10% share in the Nasdaq Stock Market, Hellman will speak on the timely topic of, "NASDAQ's Strategic Restructuring into a Private, For-Profit Securities Market."

Hellman co-founded San Francisco-based Hellman & Friedman LLC 15 years ago and serves as the firm's chairman. Hellman & Friedman has raised and managed over \$4.8 billion in capital and invested in 42 companies. Business Week called Hellman the Jimmy Buffet of the West Coast in an article on his investing prowess. He is known for orchestrating the massive deal that took Levi Strauss private in 1985. Hellman currently has large investments in Levi Strauss & Co., D.N. & E. Walter & Co., and Il Fornaio (America) Corp.

Prior to founding this firm, Hellman was a founder and/or partner at Hellman, Ferri Investment Associates; Matrix Management Company; Matrix II Management Company; and Lehman Brothers. At Lehman Brothers, he served as president and head of the Investment Banking Division, as well as chairman of Lehman Corporation (a closed-end investment company). At age 26, Hellman became Lehman's youngest partner ever.

Known for his physical intensity, Hellman runs 100-mile ultramarathons and does endurance horseback riding. He is also very involved in the San Francisco Free Clinic, serves as chairman of the San Francisco Foundation, and is a member of the Haas School's Advisory Board. He proudly wears his commitment to life and work on his sleeve: he has tattoos of his horse and his company logo adorning his arm and leg.

The Business Forecast Luncheon takes place, Thursday from 11:30 a.m. to 1:30 p.m. at the City Club, located at 155 Sansome Street, 10th Floor, San Francisco. Registration is \$35 for recent graduates (1995-2001) and \$45 for other Haas alumni. Online registration is available at www.haas.berkeley.edu/alumni. For more information, contact the Haas School Alumni Relations Office at 510-642-7790 or e-mail alumni@haas.berkeley.edu.

SUN MICROSYSTEMS CHOOSES HAAS FOR LESSONS IN HIGH-TECH MARKETING The Center for Executive Development welcomed representatives from Sun Microsystems' division in the Netherlands to a half-day program today at the Haas School. The program participants include the firm's executives and its top clients from Holland, including executives from CMG, EDS, GE Access, Cap Gemini, and Ernst & Young.

The program, "Entrepreneurial Leadership in a Competitive IT Sales Environment," is designed to meet the needs of three different types of participants: distributors, systems integrators, and value added resellers. Russell Winer, the J. Gary Shansby Professor of Marketing Strategy, is presenting a session on "Channels Management in the Era of the Internet." Drew Isaacs, executive director of the Management of Technology Program, is presenting a session on new venture marketing.

For information on custom executive programs at Haas, please contact the Center for Executive Development at 510-642-4735 or via e-mail at execdev@haas.berkeley.edu.

HAAS IN THE NEWS An interview with Hal Varian, dean of the School of Information Management and Systems and Haas professor, was featured in the June 11 issue of Fortune Magazine. "Okay, Now What?" profiled four thinkers on their view of the economy.

Sea Power & Associates, the winners of the Social Venture Competition, was profiled in the Contra Costa Times on June 10. Read the full text at http://www.contracostatimes.com/cgi-bin/emailfriend/emailfriend.cgi?mode=print&doc=http://www.contracostatimes.com/news/stories_news/waves_20010610.htm.

Dwight Jaffee, professor of banking and finance and co-chair of the Fisher Center for Real Estate and Urban Economics, and Ken Rosen, the California State Professor of Real Estate and Urban Economics and chairman of the Fisher Center for Real Estate and Urban Economics, were featured on the front page of the real estate section of the San Francisco Business Times June 8 - 14 issue.?

Jaffee and California Economist Cynthia Kroll, were quoted in the San Francisco Chronicle on June 3. The article quoted their recent report on the state of the California economy.

A column by Varian appeared in The New York Times on May 31, on reasons to be wary of privatizing Social Security.

Carl Shapiro, the Transamerica Professor of Business Strategy and the director of the Institute of Business and Economics Research, was mentioned in the Los Angeles Times on May 29 in connection with General Electric's plans to purchase Honeywell International.

Rosen was quoted in the San Francisco Chronicle on May 28, commenting that Bay Area real estate market has returned to reality.

The San Francisco Business Times featured Rosen in their May 25 issue in the article "Rosen: The economic hangover has just begun".? Read at <http://sanfrancisco.bcentral/sanfrancisco/stories/2001/05/28/newscolumn5.html>

Dean Laura D'Andrea Tyson was quoted in Business Week "Financial Education for Undergrads" on May 21.? Read the text at http://www.businessweek.com/magazine/content/01_21/b3733133.htm

Jonathan Berk, associate professor of finance, and Rich Lyons, professor in the Haas Economic Analysis

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Enron Mentions

Sender	ann.schmidt@enron.com
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File	dasovich-j/all_documents/10459.

Viacom Drops Blockbuster Split-Off Plan --- Rebound in Video Business Produces an About-face In Strategy for the Unit
The Wall Street Journal, 03/28/01

Bush Names 2 to Panel Monitoring Energy Markets The New York Times, 03/28/01

Enron pays Lay \$7 million bonus for 'strong' year Houston Chronicle, 03/28/01

JAPAN: Enron presents power plant plan to Japan govt. Reuters English News Service, 03/28/01

Enron's Japan Venture Submits Pwr Proj Plan To Local Govt Dow Jones Energy Service, 03/28/01

Dubai "Desperate" For Gas To Power Its Industries - ENOC Dow Jones International News, 03/28/01

India: Centre may bar States' direct access to funds Business Line (The Hindu), 03/28/01

PowerGen, Enron exit race for Vijayanagar project pie, L&T wooed Business Standard, 03/28/01

Enron foraying into wind power via subsidiary Business Standard, 03/28/01

Big Rate Hikes Los Angeles Times, 03/28/01

CEO says Texas in good shape for electricity deregulation Associated Press Newswires, 03/27/01

Power companies gear up for deregulation pilot program Associated Press Newswires, 03/27/01

USA: Enron CEO says Calif. rate hike will help. Reuters English News Service, 03/27/01

USA: Enron rewards Lay with \$7 mln bonus. Reuters English News Service, 03/27/01

Powergen, Innogy Look to Profit From New Power System (Update1) Bloomberg, 03/27/01

Enron CEO Sees 2001 Revenue at \$160 Billion to \$170 Billion Bloomberg, 03/27/01

U.S. Companies Push for Private Lenders to Finance Exports Bloomberg, 03/27/01

Viacom Drops Blockbuster Split-Off Plan --- Rebound in Video Business Produces an About-face In Strategy for the Unit
By Martin Peers Staff Reporter of The Wall Street Journal

03/28/2001 The Wall Street Journal A3 (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -- Viacom Inc. is finally giving up on its long-stalled plan to split off its Blockbuster Inc. unit, saying that the video-rental giant's business has turned around so well in the past few years that it wants to keep it. For more than a year Viacom has said it was waiting for a recovery in Blockbuster's stock -- long stalled below its offering price -- before it went ahead with previously announced plans to split off the remaining 82.3% of the publicly traded unit. But Viacom now has "no plans" to do the split-off, Viacom President Mel Karmazin said in an interview. Mr. Karmazin said the change in Viacom's attitude largely reflects a significant turnaround in Blockbuster's core video-rental business. "Blockbuster has been picking up market share and growing the business," Mr. Karmazin said, adding that Viacom was "very enthusiastic about its future prospects." Viacom will formalize its new stance in its 10-K annual report, expected to be filed with the Securities and Exchange Commission in the next couple of days. Viacom's change of mind is likely to spark speculation that the company will make an offer to buy the 17.7% of Blockbuster stock outstanding that is in the public's hands, to make it easier to tap the cash now being generated by the chain. Mr. Karmazin declined to comment on that yesterday. It is the latest twist in Viacom's long saga with Blockbuster. When Viacom originally acquired the business in 1994, it hoped it would be a cash cow that would help pay for the Paramount Communications acquisition that year. But instead, Blockbuster turned into a problem child, as growth in the video market ground to a near halt and the unit spent most of its cash on building new stores. By 1997, it was a drag on Viacom's stock. But the situation has turned around. Blockbuster's video-rental business is growing strongly while many of Viacom's advertising-dependent businesses, especially television and radio, are likely to be affected by the weakening economy. Blockbuster has been able to grab market share, reflecting fading competition from other chains and independent stores. It also has scaled back its store-building plan, so it is generating cash. Although Viacom started talking about creating a separate stock for Blockbuster in 1997, it wasn't until August 1999 that Viacom sold a minority stake in an initial public offering. At the time Viacom planned to unload within about a year of the IPO its remaining Blockbuster holding by offering Viacom shareholders a chance to exchange their shares for stock in the video-rental unit. But the IPO didn't do as well as expected. With new technologies on the horizon such as video-on-demand, Blockbuster was seen as vulnerable, and investors weren't attracted to the stock. Within months of the offering, Blockbuster stock was trading below the \$15-a-share offering price, which damped Viacom's enthusiasm for proceeding with the rest of the split-off. By the end of 1999, Viacom said it wouldn't proceed with the split-off unless Blockbuster's stock price rose above \$20. Blockbuster's stock remains considerably below the \$20 mark, meaning that the unit might not have been fully split off in the near term anyway. And Viacom could always change its mind if conditions shift again. But for now, Blockbuster appears to be solidly part of the Viacom family. Blockbuster stock rallied sharply in the first couple of months of this year, from around \$8 at the end of last year to a high of \$15.10 in late February. Its shares rose six cents to \$13.30 as of 4 p.m. yesterday in New York Stock Exchange composite trading. Salomon Smith Barney analyst David Riedel said the rally reflected Blockbuster's performance and expectations that it will report a "phenomenal" first quarter. Mr. Riedel said he expects Blockbuster to report EBITDA of \$582 million this year, including losses on new media, on revenue of \$5.36 billion. Last year the unit generated EBITDA of \$534.8 million on revenue of \$4.96 billion. By comparison, in 1997 Blockbuster had EBITDA of \$207.9 million on revenue of \$3.3 billion. EBITDA, often referred to loosely as operating cash flow, is earnings before interest, taxes, depreciation and amortization. John Antioco, who took over as chief executive of Blockbuster in mid-1997 and is credited with overseeing the comeback, said Blockbuster's U.S. market share has risen to 36% at the end of last year from 26% in 1997. He said the company expects Blockbuster's share to approach 40% by the end of this year and to rise to 50% over the next three years. Meanwhile, the specter that new electronic services would hurt Blockbuster has faded. Blockbuster's own efforts to roll out a video-on-demand service with energy concern Enron Corp. were recently terminated, although Blockbuster says it continues to experiment with VOD. Business is so strong that Blockbuster now is having to deal with a new problem: long

check-out lines at stores, where in some cases customers have had to wait for 45 minutes. Mr. Antioco said Blockbuster was working to relieve capacity problems, noting that the amount of business in the average Blockbuster store has grown 35% in the past three years.

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National Desk; Section A Bush Names 2 to Panel Monitoring Energy Markets By JOSEPH KAHN

03/28/2001 The New York Times Page 14, Column 2 c. 2001 New York Times Company

WASHINGTON, March 27 -- President Bush named two new commissioners today to the federal agency that oversees electricity markets, a move that could lead to a shift in the agency's largely hands-off approach to California's power crisis. Mr. Bush named Patrick H. Wood III, head of the Texas Public Utility Commission and a longtime ally of the president, to fill a vacant seat on the Federal Energy Regulatory Commission. The president also named Nora M. Brownell, who serves on the Pennsylvania Public Utilities Commission, to fill a second open slot

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VentureWire, Thursday, November 30, 2000

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File	dasovich-j/all_documents/4070.

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 Ventures Raises \$250 Million Fund =09* Children's Site MaMaMedia Down to 15 Employees =09* Ex-Prodigy Chair to
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 =09* Analytics Application Firm INEA Raises \$3 Million Round One =09* Cambridge Tech Leads Access International's
 First Round =09* Custom Delivery Service Parachute Gets \$10 Million Series B =09* Hiring Tech Firm Spintopia Secures
 \$2.85 Million Round One =09* Medschool.com Raises \$26 Million in Second Round =09* Real Estate Technology Firm
 Vectiv Has \$13 Million Round Two =09* Retail, Promotion Firm DemandTec Raises \$16 Million Series B =09* Wireless
 Services Firm Latinia Secures \$5 Million=20 =09* DWDM Tech Firm Clarendon Photonics Has \$16 Million Series B =09*
 Fabric Marketplace Tapestry Gets \$25 Million for 20% Stake =09* Human Resource Web Service Firstdoor in \$9 Million
 Round Two =09* Optical Firm E2O Raises \$38.5 Million Round Three =09* Development Chain Software Firm IDe Raises
 \$12 Million Mezz =09* Gift and Home E-Marketplace Whereoware Raises \$21 Million =09* New Investors Take 5% Stake
 in Ariba, Softbank Joint Venture =09* Imaging Product Firm RealTimeImage in \$9 Million Third Round =09* ProSeed
 Capital Makes Three International Investments =09* ASP ProcureZone.com Secures \$3 Million From Mitsui =09* Mobile
 Portal Firm Brightpod Names Additional Investors =09 =09 =09new products =09 =09* EA Web Holdings Launches
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 Communications Apps Firm UReach Names Board Chairman =09* Site Structuring Firm Synquiry Adds BuyerZone Exec
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 Design Marketplace DesignCenter360 Names First CEO =09* Pricing Technology Firm Optivo Names Former Oblix Exec
 CEO =09* Tenant Screening Firm SafeRent Names CEO, President =09* Automated Trading Systems Names CEO,
 President =09 =09 =09vc fund news =09 =09* Hyperion Partners Closes on \$73 Million of \$100 Million Fund =09*
 Crosspoint Confirms It is Delaying \$1 Billion Fund =09 =09 =09vc personnel =09 =09* Former Sun Microsystems Exec
 Joins Gabriel Venture Partners =09* Redleaf Group Opens Boston Office, Names Managing Director =09 =09 =09vw
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Enabling High-Tech Equipment Companies to Build Bigger Businesses Faster AristaSoft's solutions give high-tech equipment companies access to the same integrated business processes and technology solutions used by business leaders worldwide - reducing the time, labor, risk and investment associated with deploying, maintaining and supporting these solutions. AristaSoft's integrated business process services are based on deep industry focused domain expertise and a portfolio of relevant enterprise-class applications delivered on a secure, scalable and reliable infrastructure. Get ready for hyper-growth with AristaSoft. <http://www.aristasoft.com/>

724 Solutions to Acquire Tantau Software for \$375 Million TORONTO (VENTUREWIRE) -- 724 Solutions, an Internet infrastructure software firm that is traded on the Nasdaq and Toronto stock exchanges, said it agreed to acquire Tantau Software, an Austin, Texas-based provider of software and services that enable mobile Internet commerce. 724 Solutions will make the acquisition with 19 million shares of stock, valued at approximately \$375 million. 724 Solutions shareholders will own about 68% of Tantau. 724 Solutions founder, chairman, and CEO Greg Wolfond will continue to serve as chairman. Tantau co-founder, president, and CEO John Sims will be CEO of 724 Solutions. Four members will be added to 724 Solutions' board of directors, including Mr. Sims. Tantau Software is backed by Chase Capital Partners, General Motors Investment Management, Hewlett-Packard, Nokia, the Texas Growth Fund, Austin Ventures, Compaq Computer, and Techno Venture Management. <http://www.724.com>

El Dorado Ventures Raises \$250 Million Fund MENLO PARK, Calif (VENTUREWIRE) -- El Dorado Ventures today announced the formation of its latest fund, El Dorado Ventures VI. The \$250 million fund will continue the firm's focus on early-stage, information technology investments located in the western United States. El Dorado Ventures VI expects to fund 10 to 12 early-stage companies during 2001. Recent El Dorado investments include Appshop, Network OSS, Strix Systems, and Glow Networks. <http://www.eldoradoventures.com/>

Children's Site MaMaMedia Down to 15 Employees NEW YORK (VENTUREWIRE) -- Struggling children's Web site MaMaMedia has laid off an additional 55 staff members, leaving the company with only 15 employees. The company cut 40% of its staff in October and 20% over the summer. The company is trying to stay afloat despite tough market conditions and hopes the reduction in staff will stretch its funds until a merger or acquisition deal goes through. In the meantime, the company is looking for partners and insists it is not shutting down. The company said it is concentrating on its online property only, putting its print magazine, MaMaMedia: A Kid's Guide to the Net, on hold. MaMaMedia has received funding from BancBoston Ventures, Essex Investment Management, Intel, J. H. Whitney & Co., J & W Seligman & Co., RRE Investors, and Van Wagoner Capital. <http://www.mamamedia.com>

Ex-Prodigy Chair to Head Network Services Firm iVMG Names SAN JOSE, Calif. (VENTUREWIRE) -- iVMG, a network services firm, said it has appointed Samer Salameh as the company's first president and CEO. Mr Salameh was CEO of Prodigy Communications, a DSL Internet services provider, until June of 2000, and served as Prodigy's chairman until September. He remains on that company's board. This past May, iVMG raised \$10 million in a Series A round led by Accel Partners. <http://www.ivmg.net>

new money? Analytics Application Firm INEA Raises \$3 Million Round One TORONTO (VENTUREWIRE) -- INEA Corp., a provider of enterprise analytics application software, said it has secured CDN \$4.5 million (\$3 million) in first round funding from Canadian venture capital firm Ventures West. The company develops software that automates data integration, analytic processes, online reporting, and secure information dissemination. The funds will be used for sales and marketing. <http://www.ineacorp.com>

Cambridge Tech Leads Access International's First Round CAMBRIDGE, Mass. (VENTUREWIRE)

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RE: Motion of San Diego Gas & Electric Company (U 902-E) for

Sender	harry.kingerski@enron.com
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File	dasovich-j/deleted_items/130.

Summary first, comments second. Short read of SDGE proposal:

Plan establishes procurement and recovery strategy for SDGE as standard offer provider post Jan 1, 2003. Procurement plan would be submitted annually for PUC approval with ongoing discussions to allow modifications to plan as needed. Supply side of plan comes from URG (SONGS, QFs, PGE and other bilateral contracts - about 1/4 of total requirement), state resources (DWR and CPA), and market purchases (short and long term, fixed and variable, peaking) in that order. - SDGE takes no responsibility for administering state-owned resources. Takes only what is needed and not obligated to take anything more. Long term products procured through RFPs. - Most details of portfolio kept confidential, except load forecast and RFP process. Demand side of plan is load forecast, net of DA load. - DA load is identified through 90 day open enrollment period that starts 180 days before procurement plan is submitted. Over 20 kW customers commit to 5 year departure. Smaller customers commit to 1 year departure. - Departing customers pay exit fee for DWR and URG costs. Premature returns pay re-entry fee and spot pricing. - Departures not official until PUC rules on the procurement plan. Cost recovery through a PCAM (Procurement Cost Adjustment Mechanism). Two components - energy (including ancillary services), and a balancing account adjustment component. - each component is adjusted monthly. Other policy gems thrown out for discussion: - State must maintain strong procurement role; e.g. administer DWR contracts, consider combining generating assets under State portfolio management - PA-style auction of standard offer, with departing customers treated the same as DA.

Direction of comments (through AReM would seem fine):

Departure should not be limited to open enrollment periods. During open enrollment, certain amount of load, at least amount that would be supplied by market purchases, should be designated as fee-less. During other times, departure is permitted with appropriate exit fee. Appropriate exit fee must be based on truly unavoidable costs and have not already been recovered through AB 1890 CTCs. Re-entry fee should only be required if returning customer wants PCAM. Otherwise, customer gets spot price and there is no fee. 5-yr and 1-yr commitment periods mean nothing and should be eliminated. Returning customers get spot price or buy their way into PCAM. Pricing data used for PCAM should not be confidential. Customers should know their risk exposure when buying PCAM - what's the portfolio, term of contracts, pricing volatility, etc. Otherwise customer is kept in dark, not knowing pay they are paying for. Long term solution is auction or similar disposition of customers to market. Solution is not for state to take over power plant management.

Sue - let's you and I talk first. Is AReM going to comment?

20 20 20

-----Original Message-----

From: Steffes, James D. Sent: Monday, August 27, 2001 1:24 PM To: Dasovich, Jeff; Kingerski, Harry; Mara, Susan Subject: RE: IMPORTANT ! : Motion of San Diego Gas & Electric Company (U 90-2-E) for Adoption of an Electric Procurement Cost Recovery Mechanism and for Order Shortening Time

Harry -- Can you please review and provide input on comments? Especially as it relates to keeping open the San Diego market. 20 Jim

-----Original Message-----

From: Dasovich, Jeff Sent: Monday, August 27, 2001 9:41 AM To: Kingerski, Harry; Steffes, James D.; Mara, Susan Subject: FW: IMPORTANT ! : Motion of San Diego Gas & Electric Company (U 90-2-E) for Adoption of an Electric Procurement Cost Recovery Mechanism and for Order Shortening Time

FYI. We should discuss. Best, Jeff -----Original Message----- From: Dan Douglass

[mailto:douglass@energyattorney.com] Sent: Saturday, August 25, 2001 2:14 PM To: Vicki Sandler; Tamara Johnson; Mara, Susan; Steve Huhman; Roger Pelote; Rob Nichol; Randy Hickok; Nam Nguyen; Jim Crossen; Dasovich, Jeff; Janie Mellon; Jack Pigott; Greg Blue; George Vaughn; Gary Ackerman; Ed Cazalet; Denise Cazalet Purdum; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Messner; Carolyn Baker; Bill Ross; Karen Shea; Max Bulk Subject: IMPORTANT ! : Motion of San Diego Gas & Electric Company (U 902-E) for Adoption of an Electric Procurement Cost Recovery Mechanism and for Order Shortening Time

Yesterday, SDG&E filed a motion for adoption of an electric procurement cost recovery mechanism and for an order shortening time for parties to file comments on the mechanism. The attached email from SDG&E contains the motion,

an executive summary, and a detailed summary of their proposals and recommendations governing procurement of the net short energy requirements for SDG&E's customers. The utility requests a 15-day comment period, which means comments would have to be filed by September 10 (September 8 is a Saturday). Reply comments would be filed 10 days later.

The filing provides the following discussion of direct access:

____ =20

"Developing the net short requirements of consumers depends on the extent to which they might be served instead by third party providers. The level of direct access will affect these net short requirements. At present, there is substantial uncertainty concerning the future disposition of direct access and third party supply of retail customers that jeopardizes creation of an optimal plan. This uncertainty has the potential for increasing costs to San Diego retail customers as a result of unnecessary over- or under commitments. To resolve this uncertainty, the Commission needs to coordinate direct access with resource planning, at least on an interim basis. SDG&E discusses below how to provide for this coordination.=20

As the retail market matures, SDG&E expects that direct access elections will gain stability and will not be characterized by severe volatility. That stability will allow planners to make reasoned assumptions on direct access and rely on them in developing a procurement plan. However, today, direct access is subject to substantial uncertainty. Before the high prices of the summer of 2000, approximately 20% of SDG&E's retail load had elected direct access. By the beginning of 2001, direct access had reduced by nearly half. More recently, SDG&E has seen an increase in direct access, perhaps as a result of two factors: first, would direct access customers be able to avoid paying a share of CDWR contract costs, and second, would the state suspend direct access, as appears to be permitted under ABx-1 1. Furthermore, the legislature is considering legislation that would permit direct access, and other bills that would encourage municipal aggregation of load. The effect of this latter bill is similar to direct access, but it could cause large quantities of load to leave or return to the system quite abruptly.=20

These events illustrate the need for added coordination between direct access and resource planning. The necessary coordination could come by using an open enrollment period each planning cycle under which direct access elections take place. During that enrollment period, the utility is provided information on the amount of load electing direct access (or municipal aggregation) and the length of the direct access commitment. This open enrollment period would last for 90 days and commence 180 days before SDG&E is scheduled to submit its procurement plan. Customers over 20kW would make commitments to service b

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VentureWire, Monday, May 21, 2001

Sender	venturewire@venturewire.com
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=09=09?=09 ?=09VentureWire =09Monday, May 21, 2001=09=09? ?=09CONTENTS | COMPANIES | INVESTORS | ADVERTISE | TELL A FRIEND=09VentureWire Index =09=09VentureWire =09=09today: 713.9 ? +0.55%=09? ? =09=09 =09=09 =09=09top stories =09=09 =09=09 =01=07 Beenz.com Cuts Staff Down To 30, CEO and President Step Down =09=09 =01=07 EON Broadband Firm Gets \$381M Debt & Equity in Round One =09=09 =01=07 Telecom Provider Onsite Access Files For Chapter 11 =09=09 =01=07 InnovationsKapital Closes Fund 3 at \$116 Million =09=09 =09=09 UPCOMING EVENTS =09=09 Mobile Outlook 2001 =09=09Just announced! Scott Fox, GSM Association, announced as keynote speaker.=20 Register to hear what he has to say!=20 =09=09 =09=09TODAY'S FEATURES=20 =09=09All Bases Covered On An Acquisition Streak=20 =09=09By Taran Provost =09=09After making two acquisitions in one week, All Bases Covered (ABC), an IT=20 consulting and outsourcing services company, said it will make more deals.=20 more>> =09=09 =09=09 =09=09Entrepreneurs and VC-backed company CEOs: =09=09* Where can you obtain FREE detailed information on the =09=09latest quarter's venture funding by region, industry, =09=09round and stage of

development? Where are there FREE tools and templates for writing a business plan and securing venture funding? And if you're a young tech company CEO, where can you hear other CEOs discuss the issues of the day? VISIT PricewaterhouseCooper's Entrepreneur Resource Center for this and more --><http://www.pwcerc.com>

Flatiron Shacks Up with Morgan; Major News at Carlyle

By Daniel Boylan

VC WORLD BATTERED BY GRIM NEWS With America's markets continuing to wobble in the background, reports of distress surfaced across the private equity world last week. more>>

FastVentures Going After More Capital

By Jonathan Shieber

FastVentures, the Budapest-based investment company looking to continue the active investment pace it set for itself over its first year, is raising additional capital for new investments, according to FastVentures co-founder and managing director, Peter Fodor. Founded in June 2000, the publicly traded venture capital firm is closing a second funding from undisclosed individual and institutional investors. more>>

CGtime Raises \$7 Million, Seeking Customers

By Matthew Sheahan

CGtime, a software development company that develops software engines for marketing services, plans to announce today that it has raised a \$7 million Series A round. more>>

SafeKey Seeking Seed Funding

By Suzanne Segers Travers

The challenges presented by online credit card fraud continue to lure new entrants to the mini-sector of Internet payment security. more>>

new money

Translation Company Link Up

Mitaka Gets \$7.2M Round One

Personal Communications Portal aTelo Raises \$5M Series B

Elan Invests in Biopharmaceutical Firm Milkhaus Laboratory

Opinion Portal Dooyoo Lands \$8.8M Third Round

Mindsense Biosystems Gets \$2M from Future Capital

Rivio Connects with \$12 Million in Fourth Round

Circles Lands \$10 Million in Series D, Adds Lead to Board

Temasek Capital Launches Incubator InCube

new products

Medschool.com Changes Name to Medsn

Platinum Equity Merges Tesseract, Infocus Employee Services

DataMirror Acquires Technology, Assets of Bankrupt saipx

new directors

Music Buddha Adds to Board

Ticketing Service Justarrive Adds Jack Kemp to Board

new people

Wellogix Names President to CEO, Appoints New Chairman

EXP Systems Names New CEO

vc fund news

Eagle One Launches to Invest with Newbury in Canada

\$15 Million Ventureast TeNet Fund To Fund Chennai's ITT

TOP STORIES... NEW MONEY... NEW PRODUCTS... M&A... NEW DIRECTORS... NEW PEOPLE... VC FUND NEWS

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One More Hot Development-Mobile Outlook, June 5 & 6, San Francisco Airport Marriott

Exciting, new presentation just added to the Mobile Outlook agenda. Anthony Alles, formerly of Shasta Networks (acquired by Nortel Networks for \$340 million) is now back with a new venture called Tahoe Networks. Mobile Outlook will be the first time he publicly showcases their strategy for merging the worlds of data and mobility. This is just one example of the up 70 privately held companies to be showcased at Mobile Outlook. Don't miss out on the next big opportunity! Mobile Outlook is less than 3 weeks away, so register:<http://www.mobile2001.net/register.asp>

Beenz.com Cuts Staff Down To 30, CEO and President Step Down

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LONDON (VENTUREWIRE) -- Beenz.com, which developed an online currency, said it has cut its staff down to 30 from a high of 265 employees last year and closed offices in Japan, Hong Kong, Korea, and Italy as part of a "cost rationalization," restructuring process. A company spokesperson said a core group will remain in the London and New York offices as the company looks for a buyer or strategic alliance. Charles L. Cohen (CEO, CTO, and founder) and Donald M. Maguire (president and COO) have both stepped down in an effort to cut costs. CFO and director Stephen Limpe will now also assume the roles of president and CEO. Over the past several months the company had begun asking employees in its U.K. office to volunteer to leave the company. In December it laid off 28 people in its San Francisco and New York offices. At that time the company began marketing its new "Beenzcodes", which provide online incentives in traditional product packaging. The company spokesperson said the beenzcodes product is currently available in the UK, although there are no customers yet. He said the company will not seek another round of funding. Beenz has raised \$80 million to date. Beenz.com's investors include Apax Partners, Artemis Ventures, BayStar Capital, DRW Venture Partners, the Gefinor Group, Hikari Tsushin Capital, ING Barings, Kataweb, New World Cyberbase, Oracle Japan, Patricof & Co. Ventures, Softbank e-Commerce, Sycamore Venture Capital, and Viventures Partners. <http://www.beenz.com>

EO Broadband Firm Gets \$381M Debt & Equity in Round One

mail? top

OXON, U.K.

(VENTUREWIRE) -- EON Communications, a newly formed broad-band communications company, announced closing a GBP 265 million (\$381 million) first round of debt and equity financing. EON received a total of \$158 million in equity financing. The round was co-led by Madison Dearborn Partners with \$82 million and TD Capital Communications Partners with \$43 million. Other investors included Incepta Partners with \$18.7 million and GE Capital Telecom with \$14.4 million. TD Securities and the Bank of Scotland arranged syndicated debt financing of \$223 million. Madison Dearborn and TD Capital are both represented on EON's 11-member board of directors. EON currently employs an eight-member management team and plans to employ 240 by the end of 2002. The company said the financing will be used to lay its cable network in Southwest Scotland and

Message 469 of 1299

RE: Draft program

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File	dasovich-j/all_documents/923.

Tomorrow at 4 EDT sounds good to me but I'm not sure we're ready. I'd like to make sure all of our sponsors like the idea of coordinating with IBER and UCEI. What say you, sponsors? The co-sponsorship decision affects our decisions on place, topics, and speakers, because IBER and UCEI would need to get involved right away.

I spoke with Borenstein last night. Shapiro's initial idea was exactly what we're planning. They appreciate and respect the fact that we've done most of the legwork. They'd like to be part of it and it sounds like they would consider it a favor if we included them. IBER has a subgroup called the Competition Policy Center which is a program meant to exploit the incredible concentration of antitrust economists at UC Berkeley. I can certainly imagine ways the school could benefit from a stronger connection with CPC and UCEI, who are so widely respected and are doing public policy. If Lee thinks its worth potentially losing a bit of limelight on this conference for the long run benefits of building resources and connections on campus, I'm all for it. Rob

-----Original Message----- From: Heather Cameron [SMTP:hcameron@uclink.berkeley.edu] Sent: Wednesday, August 30, 2000 6:48 PM To: gramlr@pjm.com; whederman@columbiaenergygroup.com; doornbos@socrates.berkeley.edu; amosher@appanet.org; lfried@uclink.berkeley.edu; jeff.dasovich@enron.com Subject: Re: Draft program Dear All, After listening to the various viewpoints and concerns expressed in our last conference call, I believe that the panel options listed in Option 3 of Rob's draft might be most effective in producing the type of discourse that we are seeking. I propose that we schedule a conference call for this Friday afternoon, September 1, at 4PM EDT. I mentioned that I have reserved the Krutch Theater (max.capacity 375) for the week of November 13-17. I have since been informed that I can only hold the whole week through Wednesday, September 6, therefore, it will be important to narrow the options down very soon if we can. Best wishes, Heather At 06:44 AM 8/30/00 -0400, gramlr@pjm.com wrote: >Shall we try to talk again Monday? I think I will talk to Borenstein to

see

>what the Haas folks have in mind. > >I tried to capture everyone's comments. Allen, you might want to explain more >about your panel suggestions since I didn't do them justice. As you'll

see I

>took the liberty of offering a new characterization of the panels that I >didn't >bring up on the call. Everything on there is offered as a strawman to be >criticized and changed. >Rob <<Draft program.doc>> > >Rob Gramlich >PJM Market Monitoring Unit >(610) 666-4291 >gramlr@pjm.com > > Heather Cameron, Events Coordinator The Richard & Rhoda Goldman School of Public Policy University of California, Berkeley 2607 Hearst Avenue Berkeley, CA 94720 Tel: 510-642-9437 Fax: 510-643-9657 GSPP home page: <http://gspp.berkeley.edu>

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Energy Issues	
Sender	miyung.buster@enron.com
Recipients	['ann.schmidt@enron.com', 'bryan.seyfried@enron.com', 'elizabeth.linnell@enron.com', 'angela.wilson@enron.com']...
File	dasovich-j/all_documents/28292.

Please see the following articles:

Sac Bee, Thurs, 7/5: Many rural towns to escape blackouts, utility maps sho= w

Sac Bee, Tues, 7/3: Details emerge in power contracts

SD Union, Thurs, 7/5: New FERC member seems attuned to state's woes

SD Union, Wed, 7/4: Electricity price-cap tests spark allegations

SD Union, Wed, 7/4: Renewable energy fades from picture in rush for solutio= n

SD Union, Wed, 7/4: SDG&E spreads word of looming blackouts

SD Union, Wed, 7/4: Two more energy whistleblowers slated to come forward

SD Union, Wed, 7/4: Disabled PG&E employees ask state for help in getting= =20 disability checks

LA Times, Thurs, 7/5: Powerful Judge Illuminates Energy Practices Law:=20 'Folksy' jurist, 72, stuns utility executives and lawyers alike with his=20 courtroom incisiveness.

SF Chron, Thurs, 7/5: Davis lauds California generator=20 Vote of confidence at Calpine's festival=20

SF Chron, Wed, 7/4: Activists stage anti-corporate march to power plant=20

SF Chron, Wed, 7/4: Davis asks PUC to let utilities cut voltage=20 1% savings on energy consumption predicted

SF Chron, Wed, 7/4: Federal price limits backfire=20 Some generators withhold power rather than abide by rate caps

SF Chron, Wed, 7/4: Two more energy whistleblowers slated to come forward

Mercury News, Wed, 7/4: Davis seeking cheaper contracts=20

Many rural towns to escape blackouts, utility maps show=20 By Carrie Peyton Bee Staff Writer (Published July 5, 2001)=20 Huge stretches of Northern California, including many rural foothill and=20 valley communities, won't face rolling blackouts this summer, spared by a= =20 combination of geography and circuitry.=20 Placerville and Loomis, Esparto and Isleton are among the many towns that= =20 will be largely or entirely bypassed by deliberate blackouts, according to= =20 new Pacific Gas and Electric Co. outage maps.=20 Such communities are served by so few circuits that each one has been=20 exempted from outages because a critical facility, such as a fire station o= r=20 a water treatment plant, lies along the circuit somewhere, PG&E spokesman= =20 John Nelson said.=20 Both PG&E and the Sacramento Municipal Utility District have begun shedding= =20 more light on their strategies for rotating outages in the wake of a=20 governor's order requiring utilities to let people know where blackouts wil= l=20 strike next.=20 For PG&E, that has meant quickly posting and then updating blackout maps on= =20 its Web site. For SMUD it has meant publicly detailing, for the first time,= =20 the boundaries of 78 separate rotating outage areas and listing by number= =20 which areas could be tapped next.=20 "We were contemplating putting the map on the Web before the governor's=20 order, but the timing coincided very well," said John DiStasio, SMUD's=20 assistant general manager for customer service.=20 SMUD updated its Web site, www.smud.org, on June 22 so that now people can= =20 click on "rotating outages" and then "next likely locations and map" to see= =20 the shape of outages to come.=20 The map replaces less-precise neighborhood names, which is all SMUD supplie= d=20 until Gov. Gray Davis ordered utilities to give the public "common=20 geographical boundaries, grid or block numbers, maps or similar identifying= =20 information" about where outages will strike.=20 With six days of rolling

blackouts already behind California this year, and forecasts that more probably lie ahead, Davis has told utilities and the state Independent System Operator to give better notice of when and where blackouts might occur. Grid operators and utilities have cautioned that Davis' program of two-day, one-day and one-hour warnings could produce many false alarms because power supplies often come through at the last minute. There is also some wariness about outage maps, which SMUD and PG&E warn could change at any time. But the maps do provide insight into how each utility will roll blackouts through its territory. PG&E's maps, on the Web at www.pge.com under "find your outage block" and then "rotating outage block map," have recently been updated to be searchable by zip code. They show that the vast majority of El Dorado and Placer counties and much of Yolo County are in PG&E's "block 50," a designation for a circuit that won't be in line for rolling outages because someone along it is crucial to health or safety. Police stations, fire stations, hospitals and airports are all deemed essential customers that should keep functioning even when the state power grid is so overloaded that blackouts are needed to keep it from collapsing. In densely populated areas, circuits tend to be compact, leaving lots of neighborhoods eligible for rolling blackouts, Nelson said. But "in rural areas, particularly remote rural areas, a circuit can go on for miles and miles," Nelson said. "You can have multiple communities on one circuit (and) virtually every community has either a police station or a fire station or a hospital or a drinking water facility." That has been good news for communities like Placerville, which scrambled for traffic control earlier this year when a rolling outage took out the signal lights on Highway 50, which bisects the town of 10,000. "That has been our biggest concern because of the amount of traffic that goes through there," said City Manager John Driscoll. Placerville will be spared future outages because regulators now are protecting more hospitals from blackouts, and much of the rest of the town shares circuits with hospitals. "We didn't ask to be exempted out, but I feel very happy that we are. From a selfish standpoint, it feels very nice," Driscoll said.

The Bee's Carrie Peyton can be reached at (916) 321-1086 or cpeyton@sacbee.com.

Details emerge in power contracts By Carrie Peyton and Chris Bowman Bee Staff Writers (Published July 3, 2001)

California's power bills for the next decade probably will exceed the forecasts of Gov. Gray Davis, the State Controller's Office said Monday as it released unedited versions of long-term contracts in a new jab at the governor. The electricity contracts, which Davis' office sought in court to keep secret, offer a glimpse into the rapid, high-stakes deals struck early in the state's power crisis and illustrate the way deregulation's unraveling could haunt California for years to come. Some show that builders of new power plants could recoup the entire cost of those plants in four years or less. Some show lucrative swaps for power, including one arranged the same day California was rocked by rolling blackouts. More than two dozen additional administrative contracts detail the price California is paying its consultants to seek a way out of the power mess, from tens of thousands for Davis' aides down to \$51 an hour for copying and phone answering. The governor's office defended its estimates of the state's future power bill. The 41 long-term contracts, 27 consulting contracts, five short-term deals and stacks of receipts and invoices released Monday by state Controller Kathleen Connell may just be the start. Her office hopes to provide details about how much California has already paid individual power generators in the volatile short-term, or "spot," market. The deals include so many intricate pricing formulas that Connell said she couldn't immediately predict exactly how high

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RE: Action Items from Today's Lobbyist Call

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File	dasovich-j/all_documents/10059.

We have set up a conference call for today's meeting for those of you interested in calling in. It is 1-800-486-2460 The pass code is 120895 Thanks!

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

-----Original Message-----

From: Julee Malinowski-Ball [mailto:jmball@ns.net] Sent: Thursday, March 15, 2001 3:26 PM To: Susan McCabe; Scott Govenar; Ron Tom; Robert Ross; Rina Venturini; Phil Isenberg; Mike Monagan; Maureen OHaren; Marie Moretti; Cassandra Gough; Jamie Parker; Hedy Govenar; DJ Smith; Delany Hunter; Chuck Cole; Bev Hansen; Anne Kelly; Fred Pownall; Mark Nobili Cc: Jean Munoz; Greg Blue; Jack Pigott; Jeff Dasovich; Joe Ronan; John Stout; Cassandra Gough; kent Palmerton; Larrea, John; Lynn Lednicki; Paula Soos; Richard Hyde; Roger Pelote; Sandi McCubbin; Stephanie Newell; Steve Ponder; Sue Mara; Jan Smutny Jones; Steven Kelley; Katie Kaplan; Chris Ellison; Doug Kerner; Andy Brown; Nam Nguyen Subject: Action Items from Today's Lobbyist Call

ACTION ITEMS from today's IEP member company lobbyist conference call:

AB 60x (Hertzberg) - Calpine will attempt to get a meeting with the Speaker on Monday regarding his interest in other "California First" avenues, and report the results to IEP.

- In anticipation of using Plan B, there will be a drafting meeting on Friday (3/16) at 11am in IEP's office to fine-tune the current IEP proposed amendments (attached).

- All available lobbyists will push the Speaker's office to hold off on moving the bill until IEP has had an opportunity to present language.

- E+M will schedule a follow-up conference call on this issue early in the week.

- IEP will explore the possibility of an editorial campaign regarding the poor direction of this "California First" issue, tying it to long-term contracting.

SB 6x (Burton) - Review IEP proposed amendments to soften the eminent domain language (attached).

- All available lobbyists will make contact with the Pro tem's office to support the IEP amendments.

AB 8x (Migden) - Review IEP comments that mitigate the EOB's authority in the coordinate of operation and maintenance scheduling (attached).

- All available lobbyists will make contact with Assembly Member Migden's office to support a stakeholder meeting taking place, because IEP would like to make this bill work.

SB 39x (Speier) - IEP will explore the possibility of including in its PR efforts on maintenance and outages, the IOU- and labor-run nuclear facility being down for an extended period of time.

PLEASE SHARE ANY INFORMATION YOU GET WITH ME FROM YOUR CONTACT WITH ANY OF THE ABOVE-NAMED MEMBER'S OFFICES.

THANKS.

Julee Malinowski-Ball Senior Associate Edson + Modisette 916-552-7070 FAX-552-7075 jmball@ns.net

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Energy Issues

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File	dasovich-j/all_documents/29132.

Please see the following articles:

Sac Bee, Thurs, 7/26: FERC orders hearing on power overcharges
Sac Bee, Thurs, 7/26: Capitol Digest: A new proposal to rescue Edison
Sac Bee, Thurs, 7/26: No bailout (Editorial)
SD Union, Thurs, 7/26: FERC orders more hearings over refunds
SD Union, Thurs, 7/26: Brazil's ethanol is state's trump card
SD Union, Thurs, 7/26: New Edison rescue plan worked out
LA Times, Thurs, 7/26: Surprise! Californians Answer the Call in Crisis
LA Times, Thurs, 7/26: Power Plant

Plan Hits a Snag SF Chron, Thurs, 7/26: NEWS ANALYSIS Electricity crisis lets Davis generate an image of power SF Chron, Thurs, 7/26: Martinez foes fighting power plant Area already top-heavy with industry, they say SF Chron, Thurs, 7/26: News briefs on the California power crisis SF Chron, Thurs, 7/26: PG&E cutting voltage on some circuits SF Chron, Thurs, 7/26: Regulators say \$1 billion power refund is fair State sticks by \$8.9 billion claim Mercury News, Thurs, 7/26: States' eyes are on Texas' model for creating power Mercury News, Thurs, 7/26: Panel to seek refunds from municipal utilities OC Register, Thurs, 7/26: Book value doesn't tell whole story (Editorial) OC Register, Thurs, 7/26: Online just in time LA Times, Thurs, 7/26: Commentary Long-Term Deals Have Chilled Electric Prices, if Not the Whiners LA Times, Thurs, 7/26: THE NATION Regulators Plan Energy Rebate Settlement; Davis Plans Lawsuit FERC: Commission opens fact-finding process into the \$8.9 billion governor says is owed Californians

FERC orders hearing on power overcharges By David Whitney Bee Washington Bureau (Published July 26, 2001)
WASHINGTON -- The Federal Energy Regulatory Commission ordered hearings Wednesday to determine how much money electricity generators will have to pay in refunds to California for wholesale power overcharges. Under the process laid out by the commission, based on the recommendations of an administrative law judge who tried to negotiate a settlement earlier this month, the dollar amounts of refunds will not be set until after a hearing to be completed in September. "Market participants need to understand that the cloud of market uncertainty will lift at some point soon," said the commission's chairman, Curtis Hebert. "Suppliers and customers soon will be able to finalize their accounting ledgers and again make rational purchasing and selling decisions." But the commission's order is unlikely to result in refunds acceptable to California, meaning that lawsuits and appeals over a final commission order are virtually certain and could stretch on for months or years. "This decision shows that there is a fundamental disconnect between FERC's responsibility to protect consumers and the actions of its commissioners," said Sen. Barbara Boxer, D-Calif. "Once again, FERC has shown that it is not up to the task, and as a result, California is left paying the price." Gov. Gray Davis insists the state was overcharged some \$8.9 billion from May 2000 until June 19, when the commission ordered new rules to prevent price gouging. He said Wednesday's FERC ruling validated the state's claim. "As for the energy profiteers and pirates, let me make clear that I will not rest until every dollar gouged from California businesses and residents return to California," Davis said. "If the FERC does not make California whole, we will see you in court." But power generators said the overcharges, if they occurred, were just a fraction of what the governor is demanding. In settlement negotiations before the administrative judge, the generators and marketers offered only about \$700 million. In his July 13 recommendations to the commission, Chief Administrative Law Judge Curtis Wagner said refunds probably "amount to hundreds of millions of dollars, probably more than a billion dollars in aggregate sum." Despite differences between the commission's three Republicans and two Democrats over some of the methodology that will be used to calculate the refunds, the five-member panel was otherwise unanimous in its decision to send the matter for a hearing. The differences on the commission focused primarily on two issues, including the inclusion of publicly owned utilities like the Sacramento Municipal Utility District and the Los Angeles Department of Water and Power in a refund order. Under the Federal Power Act, the regulatory commission does not have authority over publicly owned utilities. But the Republican majority on the commission said it thought including the publicly owned utilities was a matter of "equity," meaning they should not be permitted to escape refunds for overcharges that the private generators will have to make. Commissioner William Massey questioned why the deliberate withholding of power by generators to incite shortages and drive up electricity costs wasn't being factored into the refund calculations. But the commission's lawyers said they had looked into that question and determined that without an explicit rule against withholding power from the market, the regulatory agency was powerless to seek economic redress on that ground.

The Bee's David Whitney can be reached at (202) 383-0004 or dwhitney@mcclatchydc.com
<<mailto:dwhitney@mcclatchydc.com>>.

Capitol Digest: A new proposal to rescue Edison

(Published July 26, 2001) State lawmakers Wednesday released a new proposal to save Southern California Edison from bankruptcy in another attempt to send Gov. Gray Davis an agreement by Aug. 15. The new package combines parts of plans from both houses but relies more heavily on a proposal by Assembly leaders. Some lawmakers intend to review the plan informally today, and it remains unclear whether a vote will come Friday. The plan would have the state issue \$2.9 billion in bonds that customers would pay off with a portion of their electricity rates. All consumers would help pay down the debt for the first two years, while only larger users would pay thereafter. The state also would collect power generator refunds in an account with the purpose of returning them to customers. The plan would require that 10 percent of new

generation involve renewable sources, such as wind or solar. The state would not purchase Edison's transmission lines, as had been specified in an April agreement between Davis and the utility. Jones seeks SEC probe California Secretary of State Bill Jones on Wednesday asked the Securities and Exchange Commission to investigate whether energy consultants to the Davis administration engaged in insider stock trading. Citing newly filed reports that show several state energy traders owned stock in energy- related companies, Jones said a federal inquiry is warranted. Gov. Gray Davis last week required energy traders to sell their energy stocks or leave their jobs. The SEC declines to comment on its investigations. --Bee Capitol Bureau

No bailout

(Published July 26, 2001)

While most legislators are away on vacation, a few key members are meeting to put together a deal to rescue Southern California Edison. If this sounds eerily familiar, it should. California got itself into its energy mess back in 1996 when the Legislature let a few of its members, working with the utilities and business interests, write risky deregulation legislation that few lawmakers (they all voted for it) actually understood. Strangely enough, Gov. Gray Davis seeks to solve the electricity problem with the same disastrous process. He's pushing a weary Legislature to act quickly to erase Edison's d

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Governor Davis' Lead Bond Counsel Holds Teleconference Today wi th

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Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/18/2001 12:11 PM -----

"Fairchild, Tracy" <tracy.fairchild@edelman.com> 05/18/2001 11:48 AM

To: "Aaron Thomas (E-mail)" <athomas@newenergy.com>, "Andrea Weller (E-mail)" <aweller@sel.com>, "andrew Chau (E-mail)" <anchau@shellus.com>, "Bill Chen (E-mail)" <bchen@newenergy.com>, "Douglas Oglesby (E-mail)" <doao@chevron.com>, "Jeffrey Hanson (E-mail)" <jeff.hanson@phaser.com>, "jennifer Chamberlin (E-mail)" <jnnc@chevron.com>, "John Barthrop (E-mail)" <jbarthrop@electric.com>, "John Leslie (E-mail)" <jleslie@luce.com>, "Joseph Alamo (E-mail)" <jalamo@enron.com>, "Kathleen Magruder (E-mail)" <kmagruder@newpower.com>, "Marcie Milner (E-mail)" <Marcie.Milner@enron.com>, Michael Nelson <mnelson@electric.com>, "Mona Petrochko (E-mail)" <mpetroch@enron.com>, "Peter Bray (E-mail)" <pbray@newpower.com>, "Rebecca Schlanert (E-mail)" <rschlanert@electric.com>, "Richard Counihan (E-mail)" <rick.counihan@greenmountain.com>, "Robert Morgan (E-mail)" <rmorgan@newenergy.com>, "Sue Mara (E-mail)" <smara@enron.com> cc: Subject: Governor Davis' Lead Bond Counsel Holds Teleconference Today wi th Financial Analysts: Summary

Governor Davis' Lead Bond Counsel Holds Teleconference Today with Financial Analysts: Summary The host of the teleconference was Mr. Joseph Fichera, CEO of Saber Partners (serving as Governor's independent Bond Counsel) Mr. Fichera's goal appeared to be to calm the financial markets as the Governor is hoping under a best case scenario to put the bonds out to market sometime in June. Fichera told me yesterday that he does these calls on an "as needed" basis. There appeared to be some concern that the "media is getting ahead of the story" and the inference could be made that this is causing problems for the Governor's MOU legislation (which they also said they hope to have signed by June) and perhaps for the emerging "Plan B" as well. A replay of this teleconference is available at www.energyinfo.ca.gov.ca Mr. Fichera broke down his statement into the following sections: California State Senate: Pieces of Governor's MOU legislation moving in separate committees; in the Senate this is positive for moving it forward. Assembly Plan B Group: Assemblymembers Keeley, Dutra and Nation are working together and have good ideas to move the Governor's MOU legislation through. Fichera said that the Governor's office is meeting with both parties but the plan is still in the formative stages. He added that they still have the Senate to deal with and no movement on the proposal is imminent. They are hopeful that it will be "moving toward resolution in a week or two." Generators: Fichera stated that since the Governor's meeting with the generators, a subgroup has agreed to continue to meet with Governor's staff and advisors to resolve the issues. He stated that the issue of litigation and

investigations by the AG's office is "off the table" for discussion and that topics of discussion are limited to supply issues and managing the coming summer. QFs: Governor's team has facilitated 5 days of discussions with SCE and QFs over past two weeks; most QFs are represented at these negotiations. They continue to discuss the back payments owed and lower prices going forward to give pricing stability to CDWR and the market. Their hope is that due to negotiations, the QFS will all be fully available to the market this summer. PGE: They see the bankruptcy judge's refusal to allow certain QFs to get out of their contracts as a positive development. QFs on-line: There are currently 700 MWs off-line; this is better than their model anticipated for May. They expect more than 90% on-line by June. Last month 1700 QF MWs off-line; Fichera explained that standard QF contracts have severe penalties if not on by June 1 during peaks but that they are allowed to be off during off-peak hours. He added that they are still trying to resolve their issues. Key aspects of budget plan (by this I believe he meant energy financing, not the annual budget): conservation and contracts Conservation: They built in a 4% reduction in demand and 3% reduction for price elasticity--conservatively projecting 7% in conservation. He stated the we saw 9% conservation in March and April, "so we think our model is conservative." Fichera added that the new electricity rates go out in June and they expect that this will cause a "good reaction" due to price signals and demand reduction. They also built in 2% in natural load growth to their projections as well to further ensure a conservative estimate. Energy Costs: Projected (\$1.78 billion) vs. actual (\$1.80 billion) equals a variance of 1.4% May Energy Costs: As of May 6th, right on budget target, with a variance of less than a half percent Contracts: Fichera stated that DWR continues to execute new contracts and reduce the net short exposure in the spot market. He added that 10-20% of necessary contracts are not yet executed, but rather in the agreement in principal stage. He released the following stats: Needed executed contracts completed (these percentages must refer to projected load accounted for): 43% for May, 67% for June, 48% for July, 42% for August When agreements in principle added in: 73% for June, 67% for July, 60% for August: Questions from analysts: Have you built-in an assumption that QFs will be able to opt out of contracts? "No, we do not because we are fighting the opt-out positions. The bankruptcy judge refused to allow this and the AG is probably going to be involved to stop that. A few hundred MWs have gone into the market. We are aware of this issue, which is why we're pushing the MOUs--this litigation would stop if we get an agreement on the MOU because the back payment issue would be settled." Timing with SDG&E, where are you on MOU or Agreement in Principle? We have to constantly reevaluate our negotiations due to other decisions {happening simultaneously around us}. We are resuming face to face negotiations on Monday and we are still resolved to reach an agreement. There is no drop dead date. Generators working group? We're discussing DWR credit issues, summer, support for MOU--the generators have issues with outstanding payments due. The Governor expects them to provide haircut re: those payments and that's part of discussion. QF resolution: will gas QFs be released from contracts? We don't know what PG&E is going to do but they could do that-- release at any time--no indications yet--haven't affirmed all the contracts yet. We want to avoid this in the SCE situation. There are a lot of overlapping QFs that supply both utilities. We are trying to set a standard as to what we are looking for. Bond issue timing? The current plan, assuming there is no further action by the legislature, is to close sales 91 days after bond sales, on Aug. 14. We have sufficient cash to carry us through this period. We are making a bridge loan from the General Fund. In June we see improved revenue stream from ISO; rate increases will also improve cash stream. Can you give us any prices on new contracts? Not on new contracts, we are resisting for market reasons giving out individual prices for individual contracts. Our website has aggregated average prices for contracts signed so far. Where is the legislature? Legislators want to see sharing of the

Message 474 of 1299

Enron Mentions

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Electricity Trading Builds Oh-So Slowly In France Dow Jones Energy Service, 03/23/01

India: Dabhol guarantee: Govt awaiting Law Ministry view Business Line (The Hindu), 03/23/01

India: Foreign companies facing tax harassment: Japanese envoy Business Line (The Hindu), 03/23/01

'Panel to clear Tannir Bhavi project deal' The Times of India, 03/23/01

Enron comfortable with profit projection Houston Chronicle, 03/23/01

USA: Transmission Texas' only dereg hurdle-state grid manager. Reuters English News Service, 03/22/01

Despite Talk, Bandwidth-Trading Cos Say They're Hiring Dow Jones Energy Service, 03/22/01

USA: UPDATE 1-Bush accused of protecting oil firms in power crisis. Reuters English News Service, 03/22/01

USA: Enron stock slides despite earnings reassurance. Reuters English News Service, 03/22/01

STOCKWATCH Enron lower amid market deterioration after reaffirming guidance AFX News, 03/22/01

Enron 'comfortable' with earnings estimates, but shares slide Associated Press Newswires, 03/22/01

Energy Researcher Says California Not Fixing Power Problems Bloomberg, 03/22/01

Enron Reaffirms 2001 Forecast After Stock Price Falls (Update1) Bloomberg, 03/22/01

Enron Corp.'s India Unit Faces \$88.2 Mln Penalty, Paper Says Bloomberg, 03/22/01

Electricity Trading Builds Oh-So Slowly In France By Sarah Wachter Of DOW JONES NEWSWIREs

03/23/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

PARIS -(Dow Jones)- Although electricity trading volumes are creeping higher in France, activity will probably remain subdued and irregular until a satisfactory regulatory regime is put in place. Traders complain about the uncertainty caused by the temporary rules of grid operator RTE, and about tariffs for access to the network. Volumes won't take off without well-designed, permanent rules, they said. Even then Europe's second-largest electricity market may never become much of a trading hub because of the dominance of state utility Electricity de France (F.EDF) which, with its huge installed nuclear capacity, is already among Europe's cheapest electricity suppliers. "There's so much missing," said Katrin Durwald, an energy analyst with HEW Energy Trading, talking about RTE's tariffs and rules. "Nothing is really clear in France," she said. Traders are especially upset over RTE's congestion costs, which only new market entrants share and which can add as much as 50% to the price of electricity. Other traders say access charges to the medium- to low-voltage network are impossible to figure out. But permanent tariffs won't go into effect until July 1 at the earliest, French electricity regulator CRE says. Permanent grid rules won't reach the regulator's desk for review until early summer, reckons RTE President Andre Merlin. Even with clearer regulation, the dominance of EDF will hold back the market. Former monopoly supplier EDF is a formidable competitor, a predominantly nuclear power producer with some of the lowest electricity prices in Europe. Traders estimate between 20 and 50 trades are going through monthly in France, mostly for electricity delivered the next day or next week. That's a far cry from neighboring Germany before the launch of spot electricity exchanges there, when 160 short-term transactions were struck daily, HEW Energy Trading estimates. More immediately, what's missing in France is a steady stream of one-year supply deals, a sign that foreign power companies are regularly furnishing electricity to French industrial consumers. "I seriously doubt whether there are companies taking risk and supplying customers," a trader with a large European power company said. French high-voltage grid operator RTE said 325 grid access contracts were signed this year for all transactions, as of March 12, equivalent to an average of four of five deals a day. There are, nonetheless, some pockets of activity in France. Traders are exchanging blocks of electricity to help industrial consumers curb costly imbalance charges, by grouping the companies' electricity needs to even out consumption patterns. RTE says 21 companies are authorized to furnish or buy back imbalance electricity. Swiss hydro producers are also exporting spot electricity to France, analysts said, notably Elektrizitaetsgesellschaft Laufenburg AG (Z.EGL) and Aare-Tessin AG fuer Elektrizitaet (Z.AAR). "Germany and France are the biggest export countries for Swiss spot hydro," Durwald said. At the same time, two Dutch energy distributors, NUON NV (N.NUN) and REMU NV, have been active in France, traders said. NUON purchased a few small hydroelectric producers, which are bound under an eight-year contract to sell electricity exclusively to EDF. But NUON can sell electricity to new customers above the contract price EDF is obliged to pay under its single buyer obligation, Durwald said. Some traders see opportunities cropping up this year from changes to the way transport capacity is allocated on France's interconnectors with the U.K. and with Italy. "Cogenerators (gas-fired power plants) in France with surplus capacity could sell to traders in Germany looking to import electricity into Italy," a trader at a large pan-European trading organization said. RTE forbids electricity ordered and delivered on the same day sourced from Germany and Switzerland to be imported to Italy. That trader also expects the daily transfer capacity auction on the U.K.-France Interconnector, which starts March 31, to spark more electricity trading in both countries. "The day-ahead risk is rather limited, not only in France but also in the U.K.," he said. The following are traders and power companies said to be active in France, in addition to those concerns already mentioned in the article, according to a Dow Jones Newswires survey: Belgium's Electrabel SA(B.ELE) Spain's Grupo Endesa SA(E.EDS) TXU Europe Energy Trading(TXU) French independent producer SNET Enron Europe Ltd.(U.ENE) TotalFinaElf(TOT) Dynegy

Europe Ltd.(DYN) Electricite de Laufenbourg SA RWE Trading AG(G.RWE) E.On AG(G.EOA) Electricite de France(F.EDF) HEW Energy Trading AG

Web site: <http://www.rtefrance.com> -By Sarah Wachter, Dow Jones Newswires; 33-1-4017-1740; sarah.wachter@dowjones.com

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India: Dabhol guarantee: Govt awaiting Law Ministry view

03/23/2001 Business Line (The Hindu) Copyright (C) 2001 Kasturi & Sons Ltd (KSL); Source: World Reporter (TM) - Asia Intelligence Wire

NEW DELHI, March 22. THE Government is awaiting the opinion of the Law Ministry on the claim of the Dabhol Power Company (DPC) for the bill of Rs 102 crore under the counter-guarantee cover, for the 740-MW Dabhol power project, before deciding on making the next payment to the utility. The Union Government has sought the opinion of the Law Ministry, as the Maharashtra Government had written to it, suggesting that the claim should not be honoured, as the DPC had not complied with load despatch instructions. The Law Ministry's views are crucial to any decision on going in later for future course of action which could be either arbitration or High Court proceedings. The Government has sought an early response from the Law Ministry as the 15-day interest free period for payment of DPCs's contentious bill for the month of December 2000 ends on Friday. According to the counter guarantee agreement, the Government will have to pay with interest (at Bank rate) the outstandings, if it is paid after 15 days of the receipt of the notice to the Government of India. The Government has one month's time from the date of presentation of the claim by the company to meet its obligations. Last time, the Maharashtra Government managed to make a payme

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VentureWire, Wednesday, May 16, 2001

Sender	venturewire@venturewire.com
Recipients	[jdasovic@enron.com]
File	dasovich-j/all_documents/12590.

=09=09?=09 ?=09VentureWire =09Wednesday, May 16, 2001=09=09? ?=09CONTENTS | COMPANIES | INVESTORS | ADVERTISE | TELL A FRIEND=09VentureW= ire Index =09=09' VentureWire =09=09today: 703.9 ? -0.27%=09? ? =09=09 =09=09 =09=09top stories =09=09 =09=09 =01=07 Buzzsaw.com Lays Off 30%, to Close on \$20M Third Round =09=09 =01=07 Entertainment Site UGO Networks Acquires Rival Bla-Bla.com =09=09 =01=07 EYP Mission Gets \$57.5M Round One to Spin Off from Einhorn =09=09 =01=07 Flatiron Moves in with J.P. Morgan Chase to Cool Burn Rate=20 =09=09 =09=09UPCOMING EVENTS =09=09Financial Services Outlook 2001 =09=09Robert Reynolds, COO of Fidelity Investments, to invest \$350 million = in=20 Internet technology. Register to find out where! =09=09 =09=09TODAY'S FEATURES =09=09PSINet Ventures Winding Down =09=09By Matthew Sheahan =09=09A source familiar with the company told VentureWire that PSINet Ventu= res, the=20 venture capital unit of troubled Internet company PSINet, has seen its staf= f=20 drop from 15 to three, is not doing any new deals whatsoever, and is doing= =20 whatever it can to manage and liquefy its portfolio companies. more>> =09=09 =09=09 =09=09The Industry Standard =09=09THE INDUSTRY STANDARD provides a critical and irreverent =09=09look at how information and technology are changing the =09=09rules of business. Get the business intelligence you need =09=09to stay ahead of the competition. =09=09TRY THE INDUSTRY STANDARD -- RISK FREE. Get 4 FREE issues =09=09and find out why THE INDUSTRY STANDARD is the news magazine =09=09you can't lead without. Take advantage of this special =09=09offer at:<http://secure.thestandard.com/subscribe/7JAT> =09=09 =09=09 =09=09 =09=09Infineon Expands to Boston =09=09By Matthew Sheahan =09=09Infineon Ventures, the venture capital unit of German semiconductor= =20 manufacturer Infineon, has recently expanded its reach with the placement o= f=20 an investment professional in the Boston area, managing director Rudolph=20 Ohnesorge told VentureWire. more>> =09=09 =09=09Summit Partners to Pick Up the Pace=20 =09=09By Amanda Briggs =09=09Summit Partners, a late-stage venture firm with offices in Boston and= Palo=20 Alto, Calif., expects to pick up its investment pace later this year and is= =20 looking to do more deals in Western

Europe, according to managing partner= =20 Bruce Evans. more>> =09=09=09=09Labrador Capitalizing on Early-Stage Deals =09=09By Amanda Briggs =09=09Early-stage venture firm Labrador Ventures is looking to finish inves= ting its=20 current \$90 million fund -- the firm's fourth -- sometime over the next six= =20 months, according to managing director Stuart Davidson. more>> =09=09 =09=09Intellamed Goes After First Venture Financing of \$10 Million =09=09By Taran Provost =09=09Intellamed, a Bryan, Texas-based provider of online asset management= =20 solutions for the healthcare industry, is looking to raise a round of \$10= =20 million, president and CEO David Hickson told VentureWire. more>> =09=09 =09=09 =09=09 =09=09 =09=09new money =09=09 =09=09 =01=07 KeepSmart Stays Ahead with \$5.8 Million in First Round=20 =09=09=01=07 Broadband Developer VDSL Systems Raises \$12.4 Million Round=20 =09=09=01=07 Creditek Receives \$30M Investment from General Atlantic =09=09 =01=07 DVD Conversion Firm LifeClips Gets \$12.2M Round Two =09=09 =01=07 Graphic Display Screen Firm Opsys Raises \$11.2 Million =09=09 =01=07 Interregnum Invests in Two U.K. Software Companies =09=09 =01=07 Accounts Receivable Firm, Convergent Resources, Raises Round =09=09 =01=07 DigiPlex Raises \$48 Million Equity, \$35 Million Debt =09=09 =01=07 STSN Gets \$66.5M of Series D Debt and Equity =09=09 =01=07 Tribune Media Services Takes Majority Stake in TVData=20 =09=09=01=07 Viator Closing \$5M to \$10M Series C Round in Next Two Weeks =09=09 =09=09 =09=09bad news =09=09 =09=09 =01=07 WorkingWoman.com Lays Off 63%; Looking for Buyers, Funding =09=09 =01=07 Metiom Files for Chapter 11 after Investors Back Out =09=09 =01=07 Idealab!'s eCRM Mybiz.com Goes Out of Business =09=09 =01=07 Communications Firm OnSite Lays Off Two-Thirds of Staff =09=09 =01=07 Streaming Media Tech Firm Eyecast Lays Off 50% of Workforce =09=09 =01=07 eLedger to Shut Down ASP Service on May 31 =09=09 =09=09 =09=09new products =09=09 =09=09 =01=07 Services Firm for Media KPE Launches Television Division =09=09 =01=07 Private Biz Network Software Firm Model N Launches =09=09 =01=07 Christianity.com Changes Name to Starwire =09=09 =01=07 XML Networking Firm DataPower Announces Launch =09=09 =01=07 Hi3G and Europolitan Vodaphone Form Mobile Telephony Firm =09=09 =01=07 The MBA Co. Launches =09=09 =09=09 =09=09m&a =09=09 =09=09 =01=07 Motient Acquires Rare Medium in Cash-and-Stock Deal =09=09 =01=07 XCare.net Buys E-Business Firm Confer Software =09=09 =01=07 Escalate Acquires Managize Technology in All-Stock Deal =09=09 =01=07 Qiva Acquires Supply-Chain Web Software Firm Capstan Systems =09=09 =01=07 BrainHeart Buys Bankrupt Mobile Internet Division of Linq =09=09 =01=07 EMS Technologies Acquires CI Wireless =09=09 =01=07 Parthus Acquires Chicory for \$41.4M in Cash and Stock =09=09 =01=07 JAWZ Sells E-Business Unit to Rubicon for \$323,000 =09=09 =09=09 =09=09new directors =09=09 =09=09 =01=07 CRM Firm Parago Chairman Resigns, Remains on Board =09=09 =01=07 Infrastructure Provider Eternal Systems Names New Director =09=09 =01=07 Concellera Adds Two New Board Members =09=09 =09=09 =09=09new people =09=09 =09=09 =01=07 Guru Appoints Former Spherion Head to Chairman and CEO =09=09 =01=07 Training Products Firm Cognitive Arts Appoints New CEO =09=09 =01=07 Online Digital Printing Firm Mimeo Appoints New CEO =09=09 =01=07 E-Commerce Firm Callbutton Names First President & CEO =09=09 =09=09 =09=09vc fund news =09=09 =09=09 =01=07 Invesco Closes \$150M EuroMedia Fund as Part of \$530M Pool=20 =09=09=01=07 PSINet Ventures Closing Shop and Liquefying Its Portfolio =09=09 =01=07 Schneider Electric Launches \$44 Million Corporate VC Arm=20 =09=09=01=07 Venture Firm Axiomlab Raises \$17.1 Million Second Round=20 =09=09=01=07 CalPERS Invests \$10 Million in SVCV Fund 2 =09=09 =01=07 Friends Ivory & Sime Closes 3PC with \$61 Million=20 =09=09 =09=09 =09=09vw corrections =09=09 =09=09 =01=07 ProfessorQ =09=09 =01=07 Ebrary =09=09 =09=09 TOP STORIES... NEW MONEY... BAD NEWS... NEW PRODUCTS... M&A... NEW= =20 DIRECTORS... NEW PEOPLE... VC FUND NEWS... VW CORRECTIONS =09=09 =09=09 =09=09top =09=09 =09=09 =09=09Around-the-clock global trading is almost here. =09=09New access to the reinsurance market is needed. =09=09Corporations must better manage their credit departments. =09=09 =09=09At Financial Services Outlook, you?ll meet the people =09=09running the companies that are taking these challenges =09=09head on. =09=09 =09=09Financial Services Outlook =09=09July 31 =09=09The Marriott World Trade Center =09=09 =09=09Register before June 19 and SAVE=20 \$100:http://www.financialservicesoutlook.com/ =09=09 =09=09 =09=09 =09=09top stories =09=09? =09=09Buzzsaw.com Lays Off 30%, to Close on \$20M Third Round =09=09 mail? top =09=09 =09=09 SAN FRANCISCO (VENTUREWIRE) -- Buzzsaw.com, a business-to-business= =20 e-commerce marketplace for the building design and construction industry,= =20 laid off 70 employees, or 30% of the company's staff, said chairman,=20 president, and CEO Carl Bass. The layoffs, which were across the board, wer= e=20 "highly recommended" by the company's investors in order to lower=20 Buzzsaw.com's burn rate. Some senior executives, including CFO Paul Farmer,= =20 were laid off. About 170 employees now remain at Buzzsaw.com. The company= =20 expects to close a \$20 million round in the next few weeks. Mr. Bass=20 declined to name investors, but noted that existing investors are=20 participating and tha

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Energy Issues	
Sender	angela.wilson@enron.com
Recipients	['ann.schmidt@enron.com', 'bryan.seyfried@enron.com', 'miyung.buster@enron.com', 'elizabeth.linnell@enron.com']...
File	dasovich-j/all_documents/28600.

Please see the following articles:

Sac Bee, Wed, 7/11: Mediator talked of a bigger refund: He reportedly suggested a \$4.5 billion deal midway through the failed talks

Sac Bee, Wed, 7/11: Davis repeats threat to sue FERC to get full refund

Sac Bee, Wed, 7/11: Dan Walters: Davis plays in a virtual world while the= =20 energy reality continues=20

Sac Bee, Wed, 7/11: Energy Digest: Ratepayer panel shot down again

Sac Bee, Wed, 7/11: Missing megawatts: Conservation saving state from=20 blackouts (Editorial)

SD Union, Wed, 7/11: Governor tells FERC to be fair and then some

SD Union, Wed, 7/11: Calpine says deal with state close on alleged overchar= ges

SD Union, Wed, 7/11: Judge refuses to let ratepayers form official committe= e=20 in utility bankruptcy case

LA Times, Wed, 7/11: Judge Bars Ratepayers Panel From PG&E Case

SF Chron, Wed, 7/11: Developments in California's energy crisis

SF Chron, Wed, 7/11: Enron Corp. sues to block Senate from forcing document= =20 release

SF Chron, Wed, 7/11: Governor threatens to sue utilities for refunds=20 Davis says California won't settle for \$1 billion

SF Chron, Wed, 7/11: News briefs on the California power crisis

Mercury News, Wed, 7/11: White House bends under energy conservation pressu= re=20

Mercury News, Wed, 7/11: Davis ups the voltage (Editorial)

OC Register, Wed, 7/11: Lights go out on Davis' power show (Commentary)

Mediator talked of a bigger refund: He reportedly suggested a \$4.5 billion= =20 deal midway through the failed talks. By David Whitney Bee Washington Bureau (Published July 11, 2001)=20 WASHINGTON -- Midway through the negotiations between California and power= =20 sellers to settle the myriad issues arising out of the state's energy crisi= s,=20 the mediator told California's negotiating team that he thought a deal wort= h=20 more than \$4.5 billion would be appropriate -- a much higher figure than he= =20 suggested after the talks ended Monday.=20 Whether the statement by Curtis Wagner, the chief administrative law judge= =20 for the Federal Energy Regulatory Commission, was a negotiating ploy or a= =20 reflection of his evolving beliefs is not clear.=20 Before the settlement talks began two weeks earlier, Wagner said he thought= =20 Gov. Gray Davis' demand for \$8.9 billion in refunds was too high and that a= =20 settlement probably would be in the range of \$2 billion to \$2.5 billion.=20 The disclosure that Wagner had contemplated a much higher figure midway=20 through the negotiations suggests the state had more support than the judge= =20 let on Monday when he said after the talks foundered that he thought a deal= =20 should involve "hundreds of millions, maybe a billion" dollars.=20 While the state wants \$8.9 billion, \$3 billion of that was for overcharges= =20 during the five months preceding last October and are beyond FERC's scope o= f=20 review. Even as a starting point then, the \$4.5 billion mentioned by Wagner= =20 represented 75 percent of the money the state was demanding for alleged pri= ce=20 gouging between October and May.=20 The judge's \$4.5 billion figure, divided between cash payments and savings= =20 from long-term

power contracts, was confirmed by three sources who asked to be identified only as "close to the negotiations" because participants had been required to sign confidentiality statements. The sources gave virtually identical accounts of a July 2 meeting with Wagner in which the judge also dismissed as "inadequate" a \$670 million settlement offer made by power generators and marketers. By Monday, the settlement offer had risen to \$716 million. But the state refused to back off its \$8.9 billion demand, and there never was any serious back-and-forth negotiations during the 15-day period the regulatory commission had given Wagner to craft a deal. As a consequence of the failed talks, Wagner said Monday that within a week he will send the five-member commission his recommendations on how it might approach an order refunding power overcharges. Among Wagner's suggestions is that the commission convene a hearing before a different administrative judge to take testimony from generators, marketers and the state on how to arrive at a fair settlement. The options sketchily outlined by Wagner on Monday included limiting the time when refunds are allowed -- something that could reduce state claims by about one-third -- and changing the way power plant costs are calculated to a formula more favored by generators. It is not clear whether Wagner, who moved from one negotiating team to another during his two-week quest for a deal, ever raised the \$4.5 billion settlement figure to the power marketers and generators. Joel Newton, who represented Dynegy Power, Duke Energy, Reliant Energy, Williams-AES and Mirant in the talks, said Tuesday he was bound by the confidentiality pledge to keep silent on the internal negotiations. Wagner also is refusing all media calls. According to the account of the negotiations confirmed by sources Tuesday, Wagner was angry at the snail's pace of progress after the first week of the talks. On Friday, June 29, Wagner called everyone into his hearing room and scolded them. He condemned the California team, saying they all ought to wear "crown suits" because they were "in the pocket" of Davis and refused to show any independence. He then turned to the generators and said that after a week of talks, nothing had been heard from them. He told them he wanted them to produce "real numbers, and hard numbers" over the weekend and that if they didn't, he would -- "and you're not going to like it." Wagner's admonition apparently moved no one toward a deal. On Monday, in the meeting with the California delegation, one source quoted Wagner as saying the settlement number he received from the generators and marketers "is so low I can't even present it to you." "I'm not happy with the figures, they're not adequate," others quoted the judge as saying. At that point, the sources said, Wagner said he was thinking of a settlement of \$2.5 billion in cash, \$2 billion in long-term contract savings and other money from out-of-state investor-owned utilities and even the federal Bonneville Power Administration, which markets power from dams in the Northwest. But as the clock wound down on the negotiations, nothing much happened until Friday and Saturday, when the California team met with the five largest power generators. It was at those meetings that the generators offered \$510 million in refund to settle their disputes with the state. But the money would have gone to reduce the tab for what they were owed by the state and California utilities, and it was loaded with conditions, including the state dropping all of its investigations and lawsuits. Wagner declared the talks over Monday, saying he was unable to bring the parties together.

The Bee's David Whitney can be reached at (202) 383-0004 or dwhitney@mcclatchydc.com.

Davis repeats threat to sue FERC to get full refund By Emily Bazar Bee Capitol Bureau (Published July 11, 2001) Gov. Gray Davis shot words of caution at federal regulators Tuesday, warning that he will sue them if they order power companies to refund anything less than the \$8.9 billion he and other state officials have demanded. The Democratic governor also lobbed threats at sta

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Re: I heard Steve Peace mutter

Sender	jeff.dasovich@enron.com
Recipients	susan.mara@enron.com , karen.denne@enron.com , mark.palmer@enron.com , richard.shapiro@enron.com
File	dasovich-j/sent/11973

"There's a Ken Lay under every bed!"

Steve Peace July 2001

Susan J Mara 07/11/2001 02:38 PM

To: Richard Shapiro/NA/Enron@Enron, Karen Denne/Enron@EnronXGate, Jeff Dasovich/NA/Enron@Enron, Steven J Kean/NA/Enron@Enron, Mark Palmer/Enron@EnronXGate cc: Subject: I heard Steve Peace mutter

Bowen brought up the FERC order on 4 RTOs issued today. She said this ratchets everything else up in the state and what they want to do on buying the state transmission lines.

I heard Peace mutter just then; "Ken Lay is behind that."

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 478 of 1299

Sample Final Exam

Sender	leonard@haas.berkeley.edu
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File	dasovich-j/all_documents/9.

In response to your requests, I have attached a copy of the final examination I used last year in the daytime version of this course. Note that because of some changes in course content and emphasis, the last two questions are outside the scope covered in E201a. The remainder of the exam is indicative of the style and range of difficulty and content of the questions typically asked in this course. - 98fq.pdf

Jonathan Leonard Professor

tel: 510-642-7048 545 Student Services Building, #1900 fax: 510-642-4700 Haas School of Business University of California Berkeley, CA. 94720-1900

Message 479 of 1299

URGENT - Manifesto

Sender	teece@haas.berkeley.edu
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File	dasovich-j/notes_inbox/5669.

Dear Colleagues,

I have been advised that if we slow the release down at least another 24 hours we are likely to get endorsements from Joskow and other significant colleagues. Accordingly, please accept for the meantime a new public release deadline of Friday morning at 9:00 AM.

David

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930 University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826 <http://haas.berkeley.edu/~imio>

*Message 480 of 1299***Bridge Line**

Sender	carmen.perez@enron.com
Recipients	['scott.bolton@enron.com', 'stephen.burns@enron.com', 'eric.benson@enron.com']
File	dasovich-j/notes_inbox/11530.

Beginning tomorrow, we will be using a different bridge line number. The reason for this being that AT&T offers Enron a lower rate of \$.19/cents a minute vs. \$.24/cents a minute. In order to access the bridge line you will use the following numbers:

Toll Free Dial in Number: (888) 422-7141

International Access/Caller Paid Dial in Number: (334) 832-4208

Host Code: 203099 (you will be accessing as a host versus participant in order to have access to the bridge line).

As usual, if you need to reserve the bridge line, please let me know. Thanks.

Carmen Perez Government Affairs - The Americas 713/345-4952

*Message 481 of 1299***Re: Many thanks**

Sender	jeff.dasovich@enron.com
Recipients	['nancy.sellers@robertmondavi.com']
File	dasovich-j/sent/11735.

the pleasure was all ours. prentice and i may be staying at your place tonite--if that's ok.

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> 06/18/2001 10:33 AM

To: "Scott Laughlin" <scottwl@hotmail.com>, "Jeff Dasovich" <Jeff_Dasovich@enron.com> cc: Subject: Many thanks

You guys were so great and so much help yesterday that I hardly had a chance to nag Eldon at all - oh, that's right - it was Father's Day - wasn't it...

Really thanks a lot! You certainly helped make it a fun time - but there wasn't any music!

Nancy (707) 251-4870 (phone) (707) 265-5446 (fax) "Plus je bois, mieux je chante"

*Message 482 of 1299***SDG&E Advice Letters**

Sender	douglass@energyattorney.com
Recipients	['johnson.tamara@enron.com', 'susan.mara@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/688.

Attached are summaries of nine SDG&E advice letters. The most important is 1369-E, which is the filing made jointly with PG&E (see PG&E summary dated 10/19/01 for AL 2167-E) to advise the Commission of the implementation steps the UDCs are taking to effectuate D.01-09-060, the Decision in which the Commission suspended the right of customers to acquire direct access service. A copy is attached for your information.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

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answers

Sender	leonard@haas.berkeley.edu
Recipients	['arao@haas.berkeley.edu', 'abernath@haas.berkeley.edu', 'ajm@lehman.com']
File	dasovich-j/mba_program/39.

I have attached the answers for the final exam given on Monday. Your grades will be posted outside my office this Friday. Your exams will be returned to your mail-boxes this Friday.

For those interested in applying economics to business strategy, I recommend E210, an Evening program elective often taught by Professor Michael Katz.

It was a pleasure teaching all of you. You are an impressive bunch. - Final Exam 1999d11 with answers.doc

Jonathan Leonard Professor

tel: 510-642-7048 545 Student Services Building, #1900 fax: 510-642-4700 Haas School of Business University of California Berkeley, CA. 94720-1900

Message 484 of 1299

Date & Time Change for Western Wholesale Activities - Gas & Power

Sender	marcia.linton@enron.com
Recipients	['susan.mara@enron.com', 'steve.walton@enron.com', 'marcia.linton@enron.com', 'linda.robertson@enron.com', 'jo...']
File	dasovich-j/all_documents/10571.

The weekly conference call meeting to discuss issues related to wholesale activities - gas & power will now be every Thursday at the times listed below. Conference room EB-47C1 has been reserved for the Houston participants., Date: Every Thursday beginning April 5, Time: 12:30 pm Pacific, 2:30 pm Central, and 3:30 pm Eastern time, Number: 1-888-271-0949, Host Code: 661877, (for Jim only), Participant Code: 936022, (for everyone else), There will not be a call on Thursday, November 22 which is Thanksgiving.

If you have any questions regarding this call, please give me a call at 713-853-3226.,

Thanks, Marcia

Message 485 of 1299

Mendocino

Sender	afinch@iasco.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/188.

Hi Jeff,

We're trying to get final numbers for the Mendocino trip in September. The current plan is an all day ride on Sat.(Sept 22) and a four-hour ride on Sunday (Sept 23). Madeleine, Lu (from GGPS) and Jeff Walker are confirmed, as are myself and my husband. Pat S. is probably going; Nora M. is tentative and Madeleine has lined up another woman from Golden Gate Park who may also go.

SHould be a good group, so let us know if you can make it.

Amy

Amy Gustafson Finch General Counsel IASCO 1633 Old Bayshore Hwy #280 Burlingame, CA 94010 (650) 259-8400
x104 (ph) (650) 259-8404 (fax) afinch@iasco.com

Message 486 of 1299

Biodiesel revolution begins in S.F. - First retail outlet for

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/13067.

Energy and Environment Committee Members:

With all the interest shown by both the energy and environment committees in biodiesel, you may want to visit the link below to access the text of the following article (thanks to Steve Motzko):

<<Biodiesel revolution begins in S.F. - First retail outlet for vegetable fuel opens.htm>>

<http://www.sfgate.com/cgi-bin/article.cgi?file=/c/a/2001/05/23/MN110637.DTL&type=printable>

Stephen Motzko, CSP Solectron Corporate EHS Manager Phone: 510-661-3979 Fax: 510-661-3992 email: stephenmotzko@ca.slr.com

- Biodiesel revolution begins in S.F. - First retail outlet for vegetable fuel opens.htm

Message 487 of 1299

Agenda for the next TARL meeting

Sender	wayne.gardner@enron.com
Recipients	['alisa.christensen@enron.com', 'beth.wapner@enron.com']
File	dasovich-j/all_documents/9692.

Below is the proposed agenda for the next TARL meeting:

1. Update on Singapore license fee and Pioneer status (Jan Haizmann)
2. Tax analysis of trading Hong Kong bandwidth through other trading desk entities (Wayne Gardner)
3. Licensing of EBS L.P. for trading Canadian bandwidth (Sue Nord)
4. Status of bandwidth trading in Latin America. (Sue Nord and Wayne Gardner)
5. Licensing the US and UK trading desks (in addition to the Singapore desk) to trade in Asia and Latin America. (Jan Haizmann and Sue Nord)

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 488 of 1299

Message Pts on AB XX 82

Sender	susan.mara@enron.com
Recipients	['james.steffes@enron.com', 'karen.denne@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28763.

I'll be in the RTO meeting starting at 12:30 pm. I'll also pass along the most recent version of the AReM press release on this.

AB XX 82

wrong bill for California eliminates direct access until at least 1/1/03 -- also prohibits extension of DA customers' contracts -- requires those DA customers to RETURN to utility service takes the energy futures of the citizens of CA hostage for years to come will deepen and extend the harm to businesses and the economy another example of policymakers in CA not being willing to stand up and make the hard choices necessary to solve the problem

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 489 of 1299

Assemblyman Richman dinner with Arnold Schwarzenegger

Sender	sabina@email.msn.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/3228.

You are cordially invited to join

Assemblyman Keith Richman, M.D.

and his very special guest

Mr. Arnold Schwarzenegger

for dinner

Thursday evening, May 31, 2001

6:00 Reception / 6:15 VIP Photo Reception / 7:00 Dinner

The Odyssey Restaurant

15600 Odyssey Drive? Granada Hills, California

Dinner \$250 per person / Photo Reception \$1,000 per couple / VIP Sponsors \$3,000 per table

Formal invitation to follow

For more information please call

Sabina Pellissier

(866) 795-6679 (Toll Free)

?

Checks should be made payable and sent to: Friends of Keith Richman? ID#1232100 1020 11th Street, Suite 220
Sacramento, CA 95814

Message 490 of 1299

Re: Conference Call re: Gas Curtailment and Diversion Paper

Sender	rebecca.cantrell@enron.com
Recipients	['jeff.dasovich@enron.com', 'leslie.lawner@enron.com', 'lysa.akin@enron.com', 'roy.boston@enron.com']
File	dasovich-j/all_documents/4576.

9:30 would be better for me, but I can be available at 9:00 or a little after.

Lysa Akin 12/11/2000 05:43 PM To: Leslie Lawner/HOU/EES@EES, Rebecca W Cantrell/HOU/ECT@ECT, Jeff Dasovich/NA/Enron, Roy Boston/HOU/EES@EES, Steve Montovano/DUB/EES@EES cc: Subject: Conference Call re: Gas Curtailment and Diversion Paper

Please advise ASAP your availability for a call regarding the above referenced topic on Wednesday, December 13th at 7:00 am Pacific / 9:00am Central / 10:00am Eastern

Lysa Akin Enron Corp. Sr. Admin. Ass't. - Gov't Affairs 121 SW Salmon, 3WTC0306 Portland, OR 97204 Office (503) 464-7927 Fax (503) 464-3740 lysa.akin@enron.com

Message 491 of 1299

Health Insurance Waiver

Sender	bortman@haas.berkeley.edu
Recipients	['tj@haas.berkeley.edu', 'bortman@haas.berkeley.edu']
File	dasovich-j/notes_inbox/12208.

Dear Evening MBA Students, This message is to remind you that Health Insurance Waivers are due next week. The forms can be downloaded from

<http://www.uhs.berkeley.edu/Students/insurance/advisory.htm>

or we can fax one to you if needed. Please mail(not fax, we need a signature)them along with a copy of the front and back of your card. Also please keep a copy for your own records. Also please remember to fill in all of the sections of the form. Please mail the completed forms to:

Evening MBA Office 460 Student Services #1906 Berkeley Ca 94720.

Call 510-642-1406 if you have any questions. Hope Your summer is going well.

Josh Bortman Evening MBA Program

Message 492 of 1299

Re: Proposed Decisions of the CPUC on PX Credit and Suspending

Sender	susan.mara@enron.com
Recipients	['harry.kingerski@enron.com', 'jeff.dasovich@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/12480.

I guess our own people were successful in getting the decisions off the web

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/18/2001 02:12 PM -----

Tamara Johnson@EES 06/18/2001 01:53 PM

To: Susan J Mara/NA/Enron@ENRON cc: Subject: Re: Proposed Decisions of the CPUC on PX Credit and Suspending Direct Access

Sue, I saw the ALJ decision and Bilas decision on the website. Is Cmmr Wood's decision the same as the ALJ's (attached)? If it's different, let me know and I will contact Jim for a copy.

here's the Bilas one if you want to distribute - it has the DWR memo at the back.

/TJ

Message 493 of 1299

CERA roundtable materials

Sender	jennifer.thome@enron.com
Recipients	['james.steffes@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/12110.

FYI -

Attached is the presentation from CERA's recent roundtable on Western energy.

Jennifer

----- Forwarded by Jennifer Thome/NA/Enron on 05/07/2001 01:01 PM -----

Mike Zenker <mzenker@CERA.com> 05/07/2001 12:53 PM

To: Jennifer.Thome@enron.com cc: Subject: RE: Request for materials from roundtable

Jennifer,

I'm sorry we missed each other. Yes, we'll have to get together. I should be in Houston sooner or later. Attached is the presentation book from the San Francisco Roundtable. Do not hesitate to call.

Mike Zenker Director, Western Energy Cambridge Energy Research Associates (510) 874-4375 Fax (510) 874-4347

? - we_RT_042601 .ppt

Message 494 of 1299

More Delay in Suspension of Direct Access

Sender	douglass@energyattorney.com
Recipients	['dpurdum@apx.com', 'ed@cazalet.com', 'berry@apx.com', 'tjohnso8@enron.com']
File	dasovich-j/all_documents/28272.

The attached CPUC press release says that the Commission is delaying until mid-August any action on the suspension of direct access.? This is reportedly being done at the request of DWR,?the Department of Finance, and the State Treasurer's Office.? The extension will, "allow the agencies more time to address any unresolved issues and, ultimately, provide interested parties ample opportunity for review and comment." ? We need to keep up the pressure.? This fight is not?over yet. ? Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 Tel:?? (818) 596-2201 Fax:?? (818) 346-6502 douglass@energyattorney.com - 070301.doc

Message 495 of 1299

FINAL MANIFESTO

Sender	teece@haas.berkeley.edu
Recipients	['tom_campbell@law.stanford.edu', 'tyson@haas.berkeley.edu']
File	dasovich-j/all_documents/8570.

Dear Colleagues:

Here is the final version of the Manifesto.? Many of you have indicated to us either by e-mail or verbally that you are supporting and that you would endorse it, i.e., we will attach your name to this document.? Please reconfirm by e-mail to both of us.

Pablo Spiller and David Teece

- Manifesto-final version_with modifications1.doc

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930 University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826 <http://haas.berkeley.edu/~imio>

Message 496 of 1299

revised answer sets

Sender	leonard@haas.berkeley.edu
Recipients	['sbansal@cisco.com', 'pierce@haas.berkeley.edu', 'skkannan@us.oracle.com', 'thida@best.com']
File	dasovich-j/mba_program/46.

During the last 8 weeks Lamar has notified you of some math errors in the answer sets. I have now posted corrected versions at the class web site that contain the corrections Lamar has already informed you of. These are marked "revised". The revised answers are as follows:

AS3 5i AS5 5c, 5f, 6b AS7 4f, 4g

PS3 5f has also been changed to match the answer previously given.

No new concepts, theories, or applications are presented in any of these revisions. - AS3revised.PDF - AS5revised.PDF

Jonathan Leonard Professor

tel: 510-642-7048 545 Student Services Building, #1900 fax: 510-642-4700 Haas School of Business University of California Berkeley, CA. 94720-1900

Message 497 of 1299

Outlook migration

Sender	earlene.o'connell@enron.com
Recipients	['barbara.hueter@enron.com', 'laurie.knight@enron.com', 'janine.migden@enron.com']
File	dasovich-j/all_documents/28225.

Most, if not all of you, have now received the Outlook migration CD. =01; Yo= u=20 will need to schedule your migration with =01&Deborah Kelly @ 713-853-4269= =018. She=20 will get you scheduled. =01; The plan is to begin the week of July 9.=01; If you are traveling, or are t= aking=20 a vacation during this week you may schedule a time that works for you.=01;= We=20 should have the whole Outlook migration for Public Affairs complete by Mond= ay=20 the 16th.=01;=20 =01; Let me know if you have questions or comments. =01; Thanks=20 =01;

Earlene O'Connell=01;=01;=01;=01;=01;=01;=01;=20 Enron Corp. Public Affairs earlene.o'connell@enron.com
713-853-7870 =01;

Message 498 of 1299

Project tracking database

Sender	ginger.dernehl@enron.com
Recipients	['allison.navin@enron.com', 'aleck.dadson@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/all_documents/27791.

Please see the question from Elizabeth below and respond directly back to her.

gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 06/12/2001 05:44 PM -----

Elizabeth Linnell 06/12/2001 04:53 PM

To: Ginger Dernehl/NA/Enron@Enron cc: Subject: Project tracking database

Ginger - Please forward this question to Rick's group:

We're in the process of converting the Project Tracking/RCR database from Lotus Notes to a web-based application. One of the questions the team has asked is whether anyone replicates the database to work offline, and then replicate back to the network. If you do this, please let me know as soon as possible. Thanks! Elizabeth 713-853-3896

Message 499 of 1299

CONFIDENTIAL (The Manifesto)

Sender	teece@haas.berkeley.edu
Recipients	['teece@haas.berkeley.edu']
File	dasovich-j/notes_inbox/5708.

To: Ad Hoc Committee

Dear Colleague,

Several of you have pointed out that the Manifesto is a bit long. We will endeavor to shorten it somewhat which will be possible as there is some duplication; however, more importantly we plan to add an executive summary which will be the editorial link version that most will read. I hope to get that out by 5:00 PM today.

Thanks, David

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930
University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826
<http://haas.berkeley.edu/~imio>

Message 500 of 1299

Re: Background for Enron Solution to California's Electricity

Sender	karen.denne@enron.com
Recipients	['Karen', 'Kenneth Lay/Corp/Enron@ENRON', 'skean@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/12399.

Jeff -- This is AWESOME!!! Absolutely terrific job -- you outdid yourself this time -- congrats!!!

From: Jeff Dasovich on 05/11/2001 08:32 PM Sent by: Jeff Dasovich To: scott.mcnealy@engeng.sun.com, piper.cole@sun.com cc: Kenneth Lay/Corp/Enron@ENRON, skean@enron.com, Karen Denne/Corp/Enron@ENRON

Subject: Background for Enron Solution to California's Electricity Crisis--Follow up from Meeting on 5.10.01

Attached is additional background on the solution that Ken Lay discussed today and that Enron is proposing as a comprehensive solution to California's electricity crisis. If you have any questions, don't hesitate to contact me at 415.782.7822 or on my pager at 888.916.7184.

Best regards, Jeff

Message 501 of 1299

Re: Today's Call

Sender	tracy.cooper@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/3071.

Jeff

You are correct, that is the correct number -- talk to you soon!

Tracy J. Cooper Please note my name has changed from McLaughlin to Cooper Enron Broadband Services Government Affairs (503) 886-0396

Jeff Dasovich@ENRON Sent by: Jeff Dasovich@ENRON 11/06/00 10:23 AM

To: Sue Nord/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Tracy Cooper/Enron Communications@Enron Communications cc: Subject: Today's Call

Reminder we have a call at 3 PM PST/5 PM CST re: CLEC/Tariff in CA/Authority to dig in CA. We'll use the internal bridge, which I believe is: 888.311.9051 and the code is 60396.

Best, Jeff

Message 502 of 1299

FW: PG&E Motion to Postpone Consideration of Direct Access

Sender	jeff.dasovich@enron.com
Recipients	['lisa.mellencamp@enron.com', 'michael.tribolet@enron.com']
File	dasovich-j/sent_items/99.

Assuming you've seen this. But just in case, here it is. Fairly interesting.

Best, Jeff

-----Original Message-----

September 14, 2001

Enclosed please find "MOTION OF PACIFIC GAS AND ELECTRIC COMPANY TO POSTPONE COMMISSION CONSIDERATION OF DWR-RELATED DRAFT DECISIONS IN LIGHT OF NEW INFORMATION FROM STATE TREASURER" filed today by Pacific Gas and Electric Company. Hard copies are being mailed to all parties on the official service list for this matter today also. Appendix A is only available in hard copy.

<<DWRdeferral9-14elec.doc>>

Martie Way for Christopher J. Warner Pacific Gas and Electric Company P.O. Box 7442 San Francisco, CA 94105 Tele: (415) 973-6695 Fax: (415) 972-5220 Email: cjw5@pge.com

Message 503 of 1299

Baby Shower for Catherine

Sender	april.hrach@enron.com
Recipients	['pbray@newpower.com', 'rob.bakondy@enron.com', 'joseph.alamo@enron.com']
File	dasovich-j/all_documents/12829.

Hi All!

We have set this Wed., May 23 at 2 PM for Catherine's baby shower. Currently, I have a \$150 target card as a present for her. Jen and I are also going to run out and grab a book and an outfit or two tomorrow. These items, as well as the cake and ice cream, will be from the entire office. If you would like to buy her something of your own feel free. Otherwise, you can make a donation to the gift card and other items. If you are looking for a donation amount, anywhere from \$5 - \$10 is adequate, but there is no pressure to give anything. I will be out of the office so Jen will be coordinating everything that day.

April Hrach Administrative Coordinator Phone: 415-782-7825 Fax: 415-782-7851

Message 504 of 1299

Bank of America Forum, Friday Dec. 14th

Sender	lacorte@haas.berkeley.edu
Recipients	['mba02@haas.berkeley.edu', 'mba03@haas.berkeley.edu', 'undergrd@haas.berkeley.edu', 'fanryan@haas.berkeley.ed...']
File	dasovich-j/inbox/1032.

Dear Haas Students,

The annual Haas Staff and Faculty Holiday Party will be held on Friday, December 14, 2001 in the Bank of America Forum.

We would like to inform you about the following:

? B of A FORUM CLOSURE: The Forum will be closed from 1:00- 6:00 p.m. for the party.

We apologize for any inconvenience and greatly appreciate your cooperation and consideration for this special event. Should you have any further questions or concerns, please contact the Dean's Office at 510-643-2027.

Thank you,

Meredith

Meredith LaCorte Executive Assistant to the Dean University of California- Berkeley Haas School of Business 545 Student Services Bldg. Berkeley, CA 94720-1900 Tel: (510)643-9690 Fax: (510) 642-5630

Message 505 of 1299

Winter Break Lock/Unlock Schedule

Sender	jjensen@haas.berkeley.edu
Recipients	['faculty@haas.berkeley.edu', 'staff@haas.berkeley.edu']
File	dasovich-j/inbox/1067.

The holiday building hours for the Haas School of Business are as follows:

FRIDAY 12/21: Faculty Bldg., Student Svcs. Bldg and Cheit Hall: OPEN 6:30 a.m. 10:00 p.m.

12/22 - 1/1: Faculty Bldg., Student Svcs. Bldg and Cheit Hall: CLOSED FOR ENERGY CURTAILMENT The Faculty and Student Svcs. Buildings will be accessible by cardkey only.

After January 2nd: Faculty Bldg., Student Svcs. Bldg and Cheit Hall: REGULAR HOURS Monday - Friday: 6:30 a.m. - 10:00 p.m. Saturday - 8:00 a.m. - 6:00 p.m. Sunday - 8:00 a.m. - 10:00 p.m.

Thank you,

Jennifer Jensen Facilities Supervisor Haas School of Business S545 Student Services Bldg. University of California Berkeley, CA 94720-1900

Tel: (510) 642-9106 Fax: (510) 642-4700

Message 506 of 1299

Monday's FERC Filings

Sender	douglass@energyattorney.com
Recipients	['torgerson.todd@enron.com', 'charlotte@wptf.org', 'blood.peter@enron.com', 'schleimer.steve@enron.com']
File	dasovich-j/inbox/1473.

Attached for your information are the following two filings made at FERC on Monday on behalf of WPTF: 1.. Motion to Intervene and Protest of the Western Power Trading Forum. This was filed in connection with the ISO status report filing dealing with creditworthiness issues. 2.. Motion to Intervene and Comments of the Western Power Trading Forum. This was filed in connection with the Reliant and Mirant filing of a joint Section 206 complaint on October 18, 2001. My thanks to those who responded to the drafts with comments and suggestions.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com

Message 507 of 1299

Fall 2001 Building Hours

Sender	jjensen@haas.berkeley.edu
Recipients	['faculty@haas.berkeley.edu', 'staff@haas.berkeley.edu']
File	dasovich-j/deleted_items/1107.

FALL BUILDING HOURS EFFECTIVE MONDAY, AUGUST, 27th

The Fall 2001 building hours for the Haas School of Business are as follows:

MONDAY - FRIDAY Faculty Bldg., and Student Svcs. Bldg: 6:30am - 10:00pm Cheit Hall: 6:30am - 10:00pm

SATURDAY Faculty Bldg., and Student Svcs. Bldg: 8:00am - 6:00pm Cheit Hall: CLOSED

SUNDAY Faculty Bldg., and Student Svcs. Bldg: 9:00am - 10:00pm Cheit Hall: CLOSED

Please note: MON, SEPT. 3 - CLOSED FOR LABOR DAY HOLIDAY The Faculty and Student Svcs. Buildings will be accessible by card key only.

Thank you,

Jennifer Jensen Facilities Supervisor Haas School of Business S545 Student Services Bldg. University of California
Berkeley, CA 94720-1900

Tel: (510) 642-9106 Fax: (510) 642-4700

Message 508 of 1299

Final - I hope - with sale leaseback sentence and mark's edits

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5385.

Let me know by 4pm via phone (285-7385) or e-mail if this doesn't work for you.? Otherwise I will bring it to class with me.

- cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA?
94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law.? If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

?

? - memo on home depot.doc

*Message 509 of 1299***URM Position at the customer/utility/NERC level - Aug. 2001**

Sender	bryan.gottfredson@enron.com
Recipients	['jean.ryall@enron.com', 'janine.migden@enron.com', 'steve.montovano@enron.com', 'chauncey.hood@enron.com', 'r...']
File	dasovich-j/all_documents/29252.

Colleagues:

Utility Risk Management positions as of August are now available at the following level of details:

The net position in electric utility "x." The net position per customer in the electric utility "x." The net position per rate schedule/customer class in electric utility "x." Aggregates of the above per State, NERC region, and Customer.

If you need any position for a specific utility in your service territory, please contact Bryan Gottfredson (713-345-2430) or Miyung Buster (713-853-4329) by email with cc to: Stella Chan, Pat Keene and/or Amr Ibrahim and we shall attempt to provide the data in the shortest possible time (currently aiming at within the same business day).

Best Regards,

Bryan Gottfredson

*Message 510 of 1299***FINAL MANIFESTO**

Sender	jeff.dasovich@enron.com
Recipients	['paul.kaufman@enron.com', 'susan.mara@enron.com', 'sandra.mccubbin@enron.com']
File	dasovich-j/all_documents/9357.

Here's the piece put out by the academics.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 02/22/2001 04:56 PM -----

David Teece <teece@Haas.Berkeley.EDU> 01/26/2001 06:47 PM

To: teece@Haas.Berkeley.EDU cc: Subject: FINAL MANIFESTO

Dear Colleagues,

Some of you have been asking for the final version of the manifesto. The copy attached is the FINAL version.

David

- Manifesto DJT 1-25-01.doc

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930
University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826
<http://haas.berkeley.edu/~imio>

*Message 511 of 1299***Murkowski/Feinstein Letter**

Sender	lora.sullivan@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5205.

Forwarded to you at the request of Linda Robertson:

Lora Sullivan Federal Government Affairs Representative Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006
202-466-9142 202-828-3372 (fax) email: lsulliv@enron.com ----- Forwarded by Lora Sullivan/Corp/Enron on 02/26/2001
03:06 PM -----

Steven J Kean 02/26/2001 08:51 AM

To: Maureen McVicker/NA/Enron@Enron cc: Linda Robertson/NA/Enron@ENRON, Tom Briggs/NA/Enron@Enron
Subject:

Attached is the text I would like to use for the letters to Feinstein and Murkowski. Please set up on my letterhead. Linda or Tom -- any comments?

The Wyden letter is in good shape; I have given Maureen some minor handwritten edits. It will go out this a.m.

Thanks for everyone's patience.

*Message 512 of 1299***URM Position at the customer/utility/NERC level - Jul. 2001**

Sender	amr.ibrahim@enron.com
Recipients	['jean.ryall@enron.com', 'janine.migden@enron.com', 'steve.montovano@enron.com', 'chauncey.hood@enron.com', 'r...']
File	dasovich-j/all_documents/28438.

Colleagues:

Utility Risk Management positions as of July are now available at the following level of details:

The position (long, short, and net) in electric utility "x" The position (long, short, and net) per customer in the electric utility "x". The position (long, short, and net) per rate schedule/customer class in electric utility "x". Aggregates of the above per State, NERC Region, and Customer.

If you need any position for a specific utility in your service territory, please contact Miyung Buster ((713-853-4329) by email with cc to: Stella Chan, Pat Keene and/or Amr Ibrahim and we shall attempt to provide the data in the shortest possible time (currently aiming at within the same business day).

Best regards

AI 713-853-3037

Message 513 of 1299

FW: New fax number for Paul Kaufman & Lysa Tracy

Sender	ginger.dernehl@enron.com
Recipients	['daniel.allegretti@enron.com', 'joseph.alamo@enron.com', 'joe.allen@enron.com']
File	dasovich-j/inbox/92.

FYI.....see below.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: Tracy, Lysa Sent: Monday, September 10, 2001 11:23 AM To: Dernehl, Ginger Subject: New fax number for Paul Kaufman & Lysa Tracy

Ginger - Can you please distribute this to the entire group?

Paul Kaufman & Lysa Tracy now have a new fax number. It is 503/464-7376.

The fax number for Alan Comnes remains 503/464-3740.

The address for Paul and Lysa remains the same (as noted below).

Thanks.

Lysa D. Tracy Sr. Admin. Ass't. Global Government Affairs 121 SW Salmon - 3WTC0306 Portland, OR 97204 phone: 503/464-7927 fax: 503/464-7376 email: lysa.tracy@enron.com <mailto:lysa.tracy@enron.com>

Message 514 of 1299

Room Reservations for February General Meeting

Sender	foothillservices@mindspring.com
Recipients	['robert_anderson@apses.com', 'billr@calpine.com', 'cabaker@duke-energy.com']
File	dasovich-j/inbox/1105.

Barb Ennis sent me this info that I will publish in the Burrrito for 1/11/02. I thought the Board should get a first crack at making reservations for the General Meeting. If you snooze, you lose. I think these rooms will be snapped up pretty quickly.

gba

Rancho Las Palmas Marriott Resort & Spa 41000 Bob Hope Drive, Rancho Mirage, CA 92270 Phone Reservations 1-800-458-8786

February 21 & 22, Thursday and Friday, 2002 meeting.

Our block room rate is \$229. per night and we have blocked 40 rooms for Thursday night and actually I went ahead and blocked 5 rooms for Wednesday night for our golfers. As soon as I get tee times on the golf I will put forth the information. PLEASE mention Western Power Trading Forum for the special rate of \$229.

Message 515 of 1299

RE: Ex Parte Communications -- Mike Kahn and Pat Wood on 8/21

Sender	susan.mara@enron.com
Recipients	['rcarroll@bracepatt.com', 'jeff.dasovich@enron.com', 'kcurry@bracepatt.com', 'legal <.hall@enron.com', 'alan....
File	dasovich-j/inbox/295.

Thanks for checking this out for me, Kim and Ron,

What are our rights? Is there an equal-time right? Should we just let this go?

-----Original Message-----

From: Kimberly Curry [mailto:kcurry@bracepatt.com] Sent: Friday, September 21, 2001 7:20 PM To: Ronald Carroll; Mara, Susan Subject: Ex Parte Communications

Attached is the public notice that acknowledges Commissioner Wood's receipt of ex parte communications from Michael Kahn relating to matters in the ER01-889 docket. Also attached is a copy of the memo to file drafted by Commissioner Wood detailing his communications with Mr. Kahn.

Kimberly A. Curry Bracewell & Patterson, L.L.P 2000 K Street, N.W. Suite 500 Washington, D.C. 20006 (202) 828-7623 (phone) (202) 857-2107 (fax) kcurry@bracepatt.com

Message 516 of 1299

Energy Committee Meeting Locations

Sender	aleupp@svmg.org
Recipients	['jbradley@svmg.org']
File	dasovich-j/inbox/551.

Hello esteemed energy gurus:

SVMG would like to express our thanks to those companies who have hosted our Energy Committee and Subcommittee meetings over the past months. Our progress and successes would not have been possible without your partnership.

We are looking for locations for our committee meetings for the months of March, April, and May of next year. If your company would have meeting space available for any of the follow dates:

-March 6 -March 20 -April 3 -April 17 -May 1 -May 15 -May 29

please let me know. Thank you again for all your efforts on our behalf.

Best regards,

Alex M. Leupp Associate Director, Energy Programs Silicon Valley Manufacturing Group 226 Airport Pkwy. Suite 190 San Jose, CA 95110 408.501.7870 (ph.) 408.501.7864 (fax)

Message 517 of 1299

AS7

Sender	leonard@haas.berkeley.edu
Recipients	['skkannan@us.oracle.com', 'thida@best.com', 'sbansal@cisco.com']
File	dasovich-j/mba_program/53.

I have attached AS7, the answers to the final problem set. Note that as promised, the applications to business decisions are quite direct, and you have a number of opportunities on PS7 to demonstrate your understanding of economics without using mathematics. This answer set will be discussed in section over the next 2 weeks. Some of the material on Vertical Integration will be covered in class next week. I thought it was worthwhile making sure you had all of this material in advance so you would have ample time to think about it before the final exam. - As7.pdf

Jonathan Leonard Professor

tel: 510-642-7048 545 Student Services Building, #1900 fax: 510-642-4700 Haas School of Business University of California Berkeley, CA. 94720-1900

Message 518 of 1299

FW: AReM/WPTF Joint Filing

Sender	susan.mara@enron.com
Recipients	['richard.shapiro@enron.com', 'd..steffes@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/1812.

Here is the filing opposing the draft CPUC decision retroactively suspending DA. It was filed yesterday. -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Tuesday, September 04, 2001 10:35 AM To: ARM; Steve Huhman; Gary Ackerman; Vicki Sandler; Anderson, Robert Subject: AReM/WPTF Joint Filing

Attached is the final version of the joint filing made today by AReM and WPTF with regard to the draft decision of ALJ Barnett and the alternate draft decision of Commissioner Bilas. My thanks to all who provided comments.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 519 of 1299

Enron Statement of Services

Sender	douglass@earthlink.net
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/inbox/1094.

Hi Jeff, attached is the statement of services for Enron for November. These have previously been sent to Sue Mara. However, with her departure, it seemed best to send it to you. As you probably know, our agreement was that the advice letter review service would terminate as of the end of December. That's why I have been continuing to review the utility filings and send you summaries. If the bankruptcy filing means something different for this arrangement, please let me know. Thanks, and I hope you and your family have a wonderful holiday season and a healthy, happy and prosperous 2002!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com

Message 520 of 1299

spacious one bedroom for sublease

Sender	tao@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/deleted_items/21.

1-bedroom apt for rent from end of this month until 2/18/2001. Address: 2677 Creekside Dr, San Leandro ,CA 94578 Rent: \$900/month + electricity. (I pay \$1185/month + electricity) Transportation: 5 minutes walk to Bayfair Bart station. Easy access to 880, 238, 92 Environment: inside Lakeside Village (a huge village complex), Quite and rural-style. Convenient shopping. Spacious (700 square feet), very clean, new carpet, w/ spatio, ceiling fan, dish washer 2nd-floor, sunny(south-faced), free gym/swimming pool one free covered parking lot You can choose to live there after 2/18/2001, but have to negotiate a new rent with the management office. If interested, please send email to tao@haas.berkeley.edu,or call 415-218-6690 (cell) or 510-483-3822 (home) for Daniel.

Message 521 of 1299

Affiliate Relook case [PLEASE RESPOND TODAY]

Sender	jmctarnaghan@gmssr.com
Recipients	['jdasovic@enron.com', 'smara@enron.com']
File	dasovich-j/notes_inbox/4979.

Dear Jeff and Sue:

Sorry to be a broken record on this one....but I don't know what you want to do about the Affiliates case. There is a PHC tomorrow and comments were filed. SCE's comments make a nasty jab at Enron for proposing the rules in the first place. I see that AReM is participating as well. If your plan is to participate in this proceeding only through AReM, that's fine but please let me know so that I can remove my appearance. I will be at the PHC for Wild Goose but would like to be very clear about who I am representing in the docket in order to avoid confusion.

Thanks,

Jim McTarnaghan Goodin, MacBride, Squeri, Ritchie & Day 505 Sansome Street, Suite 900 San Francisco, CA 94111
415-765-8409 (Direct Line) 415-398-4321 (Fax) jmct@gmssr.com (Email)

Message 522 of 1299

CA State Sen Bill Morrow discusses deregulation at town hall

Sender	gavin.dillingham@enron.com
Recipients	['nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/notes_inbox/424.

Our Times: Orange County Community News SAN JUAN CAPISTRANO Rebecca Harris, (949) 248-2154

? 09/14/2000 Los Angeles Times

Orange County Edition B-5 Copyright 2000 / The Times Mirror Company ?

? State Sen. Bill Morrow (R-Oceanside) today will discuss electric industry deregulation at a town hall meeting. Also on the panel are California Public Utilities Commissioner Carl Wood, Chris Tooker of the California Energy Commission, San Diego Gas & Electric vice president of distribution services Steve Davis and Ray Thompson, Republican policy consultant

for energy, utilities and communications in Sacramento. ?

The meeting is scheduled for 7 p.m., at the San Juan Capistrano Community Center, 25925 Camino del Avion.
Information: Lisa Smith, (949) 489-9838.

Message 523 of 1299

AB 2xx update

Sender	cmicheli@carpentersnodgrass.com
Recipients	['teresa_casazza@aeanet.org', 'sglobby@pacbell.net', 'ron@caltax.org']
File	dasovich-j/notes_inbox/3115.

The Assembly Appropriations Committee, which had intended to hear AB 2xx (Corbett) next Wednesday, will instead hear this bill this Wednesday, May 23 at 9:30am. You should be aware that Corbett is really pushing the bill (she asked for the earlier hearing date) and that she will be holding a press conference in the morning to tout the bill.? There are significant concerns being expressed on the bill by the fiscal committee, but it is likely to be passed out. Also, the bill will not go to Suspense because it raises revenue for the State.? Therefore, it will be voted upon on Wednesday.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251
FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 524 of 1299

Utility Risk Management Position as of June 2001

Sender	amr.ibrahim@enron.com
Recipients	['jean.ryall@enron.com', 'janine.migden@enron.com', 'steve.montovano@enron.com', 'richard.shapiro@enron.com', ...]
File	dasovich-j/all_documents/13217.

Colleagues:

URM positions as of June 2001 (more precisely as of end of May) are now available at the following level of details: The position (long, short, and net) in electric utility "x" The position (long, short, and net) per customer in the electric utility "x". The position (long, short, and net) per rate schedule/customer class in electric utility "x". Aggregates of the above per State, NERC Region, and Customer.

If you need any position for a specific utility in your service territory, please contact Miyung Buster (713-853-4329) by email with cc to: Stella Chan, Pat Keene, Harry Kingerski, and/or Amr Ibrahim and we shall attempt to provide the data in the shortest possible time (currently aiming at within the same business day).

Best regards

AI 713-853-3037

Message 525 of 1299

India Contacts?

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/all_documents/13447.

Classmates,

I am looking for contacts/collaborators interested in the Indian technology market.

My job this summer is to research the Indian tech market for an investment bank (www.broadview.com) . I will be visiting India in July to meet with VCs, Investment banks, technology firms and regulators.

If you happen to know people in the business (in India or in the US) who would be interested in collaborating with or talking to me, I would appreciate their contact info.

Thanks a bunch,

Siddharth

(sorry for the spam)

Siddharth Sinha

MBA Candidate 2002 UC Berkeley - Haas School of Business ssinha@haas.berkeley.edu

Summer Associate Broadview International ssinha@broadview.com

(650) 378-1146 - office (415) 902.5598 - cell

- winmail.dat

Message 526 of 1299

Ethnic Chinese? Interested in learning more about China?

Sender	teunisse@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'mba02@haas.berkeley.edu', 'undergrd@haas.berkeley.edu']
File	dasovich-j/deleted_items/2099.

Please see:

www.chinasynergy.org.hk

This is a program of exploration and exchange activities in Hong Kong, Guangzhou, Xian, Beijing and Shanghai and includes meetings with government officials, universities, organizations, households, etc. It takes place from July 7 to 23 and is open to ethnic Chinese (paternal or maternal origin) undergraduate and graduate students. Many, but not all, costs are covered for accepted applicants.

The application deadline is January 15, 2002.

Sebastian Teunissen Executive Director Clausen Center for International Business and Policy Haas School of Business
University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228
<http://www.haas.berkeley.edu/HaasGlobal>

Message 527 of 1299

Special Presentation

Sender	cmr@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'faculty@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/deleted_items/891.

CALIFORNIA MANAGEMENT REVIEW SPECIAL PRESENTATION Friday, October 19th, 4:00 p.m. Wells Fargo Room

The California Management Review is pleased to announce a special presentation by Linda K. Treviño on Friday, October 19, 2001 at 4:00 p.m. in the Wells Fargo Room. Professor Treviño will discuss her article, "Moral Person and Moral Manager: How Executives Develop a Reputation for Ethical Leadership" (California Management Review, Vol. 42, No. 4).

The talk will be followed by a catered reception.

SPONSORED BY ACCENTURE

--

California Management Review University of California F501 Haas School of Business #1900 Berkeley, CA 94720-1900
phone: (510) 642-7159 fax: (510) 642-1318 e-mail: cmr@haas.berkeley.edu web site: <http://www.haas.berkeley.edu/cmr/>

Message 528 of 1299

Special Presentation

Sender	cmr@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'faculty@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/deleted_items/32.

CALIFORNIA MANAGEMENT REVIEW SPECIAL PRESENTATION Friday, October 19th, 4:00 p.m. Wells Fargo Room

The California Management Review is pleased to announce a special presentation by Linda K. Treviño on Friday, October 19, 2001 at 4:00 p.m. in the Wells Fargo Room. Professor Treviño will discuss her article, "Moral Person and Moral Manager: How Executives Develop a Reputation for Ethical Leadership" (California Management Review, Vol. 42, No. 4).

The talk will be followed by a catered reception.

SPONSORED BY ACCENTURE

--

California Management Review University of California F501 Haas School of Business #1900 Berkeley, CA 94720-1900
phone: (510) 642-7159 fax: (510) 642-1318 e-mail: cmr@haas.berkeley.edu web site: <http://www.haas.berkeley.edu/cmr/>

Message 529 of 1299

Dasovich FINAL declaration_v1.

Sender	kb@quinnemanuel.com
Recipients	['msmith1@enron.com', 'awu@quinnemanuel.com', 'jeff.dasovich@enron.com', 'robert.c.williams@enron.com']
File	dasovich-j/notes_inbox/4966.

Jeff,

I am attaching a final version of your declaration for your signature. Mike Smith added a few small changes, which you will see. If you have any additional comments or revisions, let me know as soon as possible. Once you have signed the declaration, please federal express the original to me:

Kristen Bird Quinn Emanuel Urquhart Oliver & Hedges, LLP 895 South Figueroa Street, 10th Floor Los Angeles, CA 90017-2543

Also, please send a fax copy of your signature page to Diane Hutnyan at 415.986.5707 as soon as possible. She is at our Quinn Emanuel office in San Francisco and is helping with the actual filing. Also, please let me know when you have signed and faxed the declaration. My direct dial is 213.615.8774. Thanks again for your help Jeff.

Regards, Kristen

- Dasovich.

Message 530 of 1299

Draft questions on regulatory aspects of bandwidth trading

Sender	lara.leibman@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/3088.

----- Forwarded by Lara Leibman/Enron Communications on 11/06/00 04:41 PM

Wayne Gardner 11/03/00 04:49 PM

To: Donald Lassere/Enron Communications@Enron Communications cc: Lara Leibman/Enron Communications@Enron Communications, James Ginty/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications Subject: Draft questions on regulatory aspects of bandwidth trading

Donald, as promised, here are the questions that Jim, Beth and I put together that we'd like you to delve into in our next meeting. We'll send you the final list first thing Monday. Please let me know if you have questions or comments. Thanks. WWG

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 531 of 1299

Monday

Sender	karen.denne@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/29381.

Jeff -- Here's the info for Monday:

Marathon Communications Inc. 8436 West Third Street, suite 700 Los Angeles 90048 323-655-4660

We'll be meeting with Joan Kradin (svp) and Rich Lichtenstein (president) at 11 a.m. I've told them we'll spend a couple of hours going over our issues and concerns with California (regulatory, commercial, legal, public perception, etc...) as well as our current activities (ENA, EES, etc.) and what we'd like to do going forward. They'll then put together a plan and we can get them on retainer by Nov. 1.

What other agencies do we have on retainer? (McNally Temple, the guy who did the focus groups, etc.) Do you know what their monthly retainer is? I'd like to get a sense of what we're already spending.

Looking forward to seeing you Monday. Have a great weekend! kd

Message 532 of 1299

FW: Business Group Letter

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'richard.shapiro@enron.com', 'd..steffes@enron.com']
File	dasovich-j/sent_items/1692.

FYI.

-----Original Message-----

From: Dan Douglass Sent: Wed 9/19/2001 7:30 PM To: ARM; Vicki Sandler; Tamara Johnson; Mara, Susan; Steve Huhman; Roger Pelote; Rob Nichol; Randy Hickok; Nam Nguyen; Jim Crossen; Dasovich, Jeff; Janie Mollon; Jack Pigott; Greg Blue; George Vaughn; Gary Ackerman; Ed Cazalet; Denice Cazalet Purdum; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Miessner; Carolyn Baker; Bill Ross; Karen Shea; Max Bulk Cc: Subject: Business Group Letter

Attached is a letter from Bill Booth on behalf of a group of large consumer groups urging the CPUC not to act on the DWR agreements.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

Message 533 of 1299

Press

Sender	teece@haas.berkeley.edu
Recipients	['teece@haas.berkeley.edu']
File	dasovich-j/all_documents/8700.

TO: AD HOC GROUP

We received good coverage in the LA Times Friday, as well as CNN Financial (Street Sweep Program). We received mention in the Chronicle and NY Times Saturday. No doubt there is more to come, and much I have missed. Anita Patterson, in my office, is keeping a media file. Your additions are appreciated.

We have a chance to make a difference. There seems to be some momentum building for a rate hike. Would appreciate your reactions to Gov. Davis' latest proposal.

Thanks, David

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930 University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826 <http://haas.berkeley.edu/~imio>

Message 534 of 1299

Senate Investigative Committe Begins Hearings Today @ 1:30

Sender	jmunoz@mcnallytemple.com
Recipients	['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com']
File	dasovich-j/all_documents/11236.

The State Senate begins it's investigative hearings today, April 18 @ 1:30 pm in Room 2040. The topic this week, and next week, will be to go over previous investigations into market power.

Today the committee will be hearing testimony from:

Frank Wolak, Chairman Market Surveillance Committee, CAISO. Eric Hildebrandt, Manager Market Monitoring, CAISO
Elaine Howle, State Auditor

IEP will be prepared to respond to media at the hearings, and will be distributing the attached materials:

An outline of previous investigations into market manipulation, and price gouging -- and ???their findings. ? A detailed analysis of the flaws in the CAISO reports

We will keep you posted.

Thanks, Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

- ISO Report An.pdf - Previous Inve.pdf

Message 535 of 1299

Meeting to Discuss the Presentation to Governor Davis - TODAY (Jan.

Sender	jeff.dasovich@enron.com
Recipients	['paul.kaufman@enron.com']
File	dasovich-j/sent/2785.

----- Forwarded by Jeff Dasovich/NA/Enron on 01/02/2001 11:13 AM -----

Rosalinda Tijerina@EES 01/02/2001 11:00 AM

To: Marty Sunde/HOU/EES@EES, Harry Kingerski/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Don Black/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Wanda Curry/HOU/EES@EES, Dan Leff/HOU/EES@EES cc: Carol Moffett/HOU/EES@EES, Paula Warren/HOU/EES@EES, Leticia Botello/HOU/EES@EES, Kathy Dodgen/HOU/EES@EES Subject: Meeting to Discuss the Presentation to Governor Davis - TODAY (Jan. 2nd) - (1:00P - 2:00P) - EB-791

A meeting has been set up for today to discuss the presentation to Governor Davis.

This meeting was called by Scott Stoness.

Time: 1:00P Central Standard Time

Location: EB-791

Call In #: 1-800-713-8600

Pass Code: 68266

Please call me if you have any questions.

Rosalinda Tijerina x-39348

*Message 536 of 1299***EES Position at the customer/utility level - April 2001**

Sender	amr.ibrahim@enron.com
Recipients	['harry.kingerski@enron.com', 'jean.ryall@enron.com', 'janine.migden@enron.com', 'steve.montovano@enron.com', ...]
File	dasovich-j/all_documents/10622.

Colleagues:

EES positions as of 1st of April 2001 are no available at the following level of details:

The position (long, short, and net) in electric utility "x" The position (long, short, and net) per customer in the electric utility "x". The position (long, short, and net) per rate schedule/customer class in electric utility "x". Aggregates of the above per State, NERC Region, and Customer.

If you need any position for a specific utility in your service territory, please contact Miyung Buster ((713-853-4329) by email with cc to: Amr Ibrahim and we shall attempt to provide the data in the shortest possible time (currently aiming at within the same business day). Additional names for contact will be added very soon, hopefully, to shorten the reply time and increase data reliability.

Best regards

AI 713-853-3037

*Message 537 of 1299***ISO/FERC call tomorrow**

Sender	kaplan@iepa.com
Recipients	['dkk@eslawfirm.com', 'abb@eslawfirm.com', 'steven@iepa.com', 'alex.sugaoka@uaecorp.com', 'kaplan@iepa.com', '...']
File	dasovich-j/all_documents/10110.

Greetings:

IEP will be making a FERC filing this week in response to the FERC staff report issued in response to the ISO Market Stabilization plan. We will have a call tomorrow to discuss the proposed language we are currently finishing drafting.

We will send out the language by COB today, please review it before the call tomorrow. If your company is also drafting language please send a copy of it to Andy ASAP.

The call will be tomorrow at 11:00 a.m. PST

The call in number is our usual number: 1-800-486-2726, The participant code 120895

JUST A REMINDER THAT IF YOU HAVE NOT SENT IN YOUR COMMITTEE COMMITMENTS TO CAROL (chudson@iepa.com) TO PLEASE DO SO ASAP!

As always, please let me know if you have any questions

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

- winmail.dat

*Message 538 of 1299***Alan's Made Some Big Changes**

Sender	acomnes@prodigy.net
Recipients	['askaff@energy-law-group.com', 'athomas@newenergy.com', 'andra@stanfordalumni.org']
File	dasovich-j/notes_inbox/1245.

Dear Friends and Colleagues:

I am truly pleased and excited to report that on 1 November I will start my new job as Director Government Affairs for Enron Corporation in its Portland, Oregon Office. I will be supporting Enron North America's Western power trading desk, which is located there. Among other people, I will be working with Tim Belden and Paul Kaufman. I will be commuting between there and my home in California until I can move the family up sometime during Q1 2001. My new contact information is as follows:

G. Alan Comnes Director, Government Affairs Enron Corporation World Trade Center 121 SW Salmon, 3WTC0306 Portland OR 97204 503-464-8129 mobile/pager phone: 510-367-5741 (for the time being) AComnes@prodigy.net (for the time being)

Please keep in touch and, if you are in Portland, give me a holler!

Cheers,

Alan Comnes

*Message 539 of 1299***FW: UC-CSU Application for Rehearing**

Sender	susan.mara@enron.com
Recipients	['c..williams@enron.com', 'diann.huddleson@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/412.

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Monday, October 01, 2001 4:00 PM To: ARM; Gary Ackerman; Vicki Sandler; Anderson, Robert; Marilyn Ferrara; Herb Zinn; Steve Huhman; Max Bulk; John Yurkanin Subject: UC-CSU Application for Rehearing

UC/CSU has also filed an application for rehearing of D.01-09-060. The filing heavily emphasizes the DASR issue for pre-September 20 contracts. Their main point is that neither the utilities nor the Commission can lawfully set a deadline for submitting DASRs for accounts under a direct access service contract executed on or before September 20, 2001.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 540 of 1299

RE: URGENT! Technical Working Group

Sender	dhunter@s-k-w.com
Recipients	['vjw@cleanpower.org', 'brbarkovich@earthlink.net', 'isenberg@hmot.com', 'mikahl@ka-pow.com']
File	dasovich-j/notes_inbox/12132.

Here is the plan -- we will be meeting in MY OFFICE (not Kahl's) on Sunday @ 3:00pm. My office is at 980 Ninth Street, Suite 1560. Just tell the security guard where you are going and they will let you in. I need to have the language you all were assigned emailed out to the Group above by NOON on Sunday so that we can all review it before the 3:00 meeting. I have set up a call in number for those of you who can't be here in person.

The call in # is 888-727-8686 - code 3489598

Below are the assignments

Direct Access -- Jeff Large Customer Utility Service options -- Dorothy Rate Relief -- Barbara Balancing Account (option under rate relief) -- Fielder/Ann Customer Specific Generation -- Mike Renewable Energy -- V. John

If anyone needs anything at all please feel free to give me a call. Office 446-5508 Cell 284-5509 Home 530-666-0946

Thanks, Delaney

Message 541 of 1299

Background for Enron Solution to California's Electricity

Sender	jeff.dasovich@enron.com
Recipients	['karen.denne@enron.com', 'piper.cole@sun.com']
File	dasovich-j/all_documents/12426.

Hi Piper: The email I sent on Friday to Scott McNealy's address (listed below) got bounced back to me. Just wanted to make sure that you folks received the materials.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 05/14/2001 12:05 PM -----

Jeff Dasovich Sent by: Jeff Dasovich 05/11/2001 08:32 PM

To: scott.mcnealy@engeng.sun.com, piper.cole@sun.com cc: Kenneth Lay/Corp/Enron@ENRON, skean@enron.com, Karen Denne/Corp/Enron@ENRON Subject: Background for Enron Solution to California's Electricity Crisis--Follow up from Meeting on 5.10.01

Attached is additional background on the solution that Ken Lay discussed today and that Enron is proposing as a comprehensive solution to California's electricity crisis. If you have any questions, don't hesitate to contact me at 415.782.7822 or on my pager at 888.916.7184.

Best regards, Jeff

Message 542 of 1299

Internship Possibilities

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['mba01@haas.berkeley.edu', 'mba02@haas.berkeley.edu', 'undergrd@haas.berkeley.edu']
File	dasovich-j/notes_inbox/759.

Interested in interning in the print, publishing, e-commerce area? Check out www.httprint.com. This company is looking for interns in client services (building and supporting exchange communities), production management (project execution) and sales administration (budgeting, presentations and forecasting.) they have expressed a particular interest in students of international business.

"The pace here is exciting and frenetic." according to my contact there. They are in the City near Pac Bell Park.

If interested please contact Jack Walklet, Senior VP, Sales and Business Development at jwalklet@httprint.com

Sebastian Teunissen Director of International Affairs Haas School of Business University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228

<http://www.haas.berkeley.edu/HaasGlobal>

Message 543 of 1299

CPAG: Storage and Billing Materials

Sender	grm8@pge.com
Recipients	['dje1@pge.com', 'sbs@cpuc.ca.gov', 'ram@cpuc.ca.gov', 'mtc8@pge.com', 'krb4@pge.com', 'davef@abag.ca.gov', 'a...']
File	dasovich-j/notes_inbox/610.

Gas ESPs and CPAG members:

For our meeting on Thursday, part of our agenda is a detailed review of the new gas ESP storage unbundling, and consolidated billing credits. Here is an electronic version of explanatory material that was mailed to gas ESPs early last week to prepare them for these new provisions of core gas aggregation service.

<<Open Season for Storage.doc>>

This storage unbundling will be the subject of an October through November open season, with implementation in December.

<<Billing Credits.doc>> These billing credits will be available in October.

You may wish to review these documents and generate questions for our meeting in San Francisco. If you have questions in the meantime, please call.

* Jerry Miller phone: 415.973.4104; fax 415.973.8494 123 Mission St. - Rm 2611; San Francisco, CA 94105

- Open Season for Storage.doc - Billing Credits.doc

Message 544 of 1299

Re: DWR/PG&E billing agreement

Sender	susan.mara@enron.com
Recipients	['paul.kaufman@enron.com', 'jdasovic@enron.com', 'mday@gmssr.com', 'smara@enron.com']
File	dasovich-j/all_documents/28276.

I think we'll sit on the sidelines for this one

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

MDay <MDay@GMSSR.com> 07/02/2001 01:12 PM

To: "'Jeff Dasovich Enron SF'" <jdasovic@enron.com>, "'Paul Kaufman, Enron Portland'" <paul.kaufman@enron.com>, "'Sue Mara at Enron SF'" <smara@enron.com> cc: Subject: DWR/PG&E billing agreement

The Chief ALJ of the CPUC has put out for comment in the rate stabilization case a proposed services agreement between DWR and PG&E to cover meter reading and billing services provided to DWR by PG&E. Of note is the fact that DWR will pay \$1.7 million as a set up fee and between \$80,000 and \$115,000 a year for such services over the next four years. Please advise if you want to review this agreement. If direct access remains viable, this may represent an interesting precedent for utility billing and metering costs.

Mike Day

Message 545 of 1299

Thank you

Sender	stacey.bolton@enron.com
Recipients	['hrait@energy.state.ca.us', 'luis.derrota@enron.com', 'marianne.castano@enron.com', 'djohnson@energy.state.c...
File	dasovich-j/all_documents/29373.

Drake, Heather, Rasa and Jason:

I wanted to thank you for the time you took to meet with Mona Petrochko and me regarding our commercial and industrial customers. Each of you were very helpful providing information in response to our questions. We appreciate your patience through the revision of our annual report.

As discussed, we will send you the label calculation (with the revised annual reports) for the commercial and industrial product, the letter notification to customers, the product registration and the revised monthly performance reports by the end of the week. Further, as requested, we will include a 1998 bill that notifies customers that their rates were reflective of the 1.5 cents p/kwh customer credit.

Again, we greatly appreciate your kind assistance.

Best regards, Stacey Bolton Manager, Environmental Strategies Enron 1400 Smith Street Houston, TX 77002
713-853-9916

Message 546 of 1299

RE: FIA presentation

Sender	cvavrek@deloitte.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4027.

See attached -cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, April 24, 2001 2:46 PM To: Vavrek, Carolyn (US - San Francisco) Subject: Re: FIA presentation

could you send my the slides that you put together on Saturday? Muchas Gracias.

Best, Jeff - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

- group draft powerpoint.ppt

Message 547 of 1299

Re: Mexico Bill	
Sender	jeff.dasovich@enron.com
Recipients	['nancy.sellers@robertmondavi.com']
File	dasovich-j/all_documents/10650.

where are the charges? and please divide it all equally. it was a great time and there's just no reason for you guys to absorb the other costs, particularly when the rest of us have the means to help out.

thanks again for a great time (despite the spades!).

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> 04/04/2001 02:44 PM

To: Cameron <cameron@perfect.com>, Jeff Dasovich <Jeff_Dasovich@enron.com>, "Prentice @ Berkeley" <PSellers@haas.berkeley.edu>, Prentice Sellers <PSellers@pacbell.net>, Scott Laughlin <scottwl@hotmail.com> cc: "Eldon Sellers" <Eldon@interx.net> Subject: Mexico Bill

Below are the El Cid charges for you guys. Since we forced you to come to Mazatlan against your will, there are no charges for anything else! I hope you all had a good time - I sure did!

<<...OLE_Obj...>>

Nancy (707) 251-4870 (phone) (707) 265-5446 (fax) "Plus je bois, mieux je chante"

Message 548 of 1299

Manifesto	
Sender	teece@haas.berkeley.edu
Recipients	['teece@haas.berkeley.edu']
File	dasovich-j/notes_inbox/5549.

Dear Colleagues:

Here is a list of some of the folks who have asked UC for a copy of the Manifesto:

Rick Castro, Office of Emergency Services in Sacramento

Liz Bagdasian with lobbyist Anne Kelley in Sacramento

Loren Griffith, aid to Sen. Shiela Kuehl in Sacramento

Lisa (?) at Ch. 6 in Sacramento

Anna Ferrer in Sen. Burton's office

Senate Office of Research

Assemblywoman Helen Thompson's Office

Don Andrews, Metro Networks in Sacramento

Gus Korey in Assemblywoman Nakano's office

Tim Flannigan, Sacramento lobbyist

Bond Buyer newslettter

Debbie Meda in the State Auditor's Office

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930
University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826
<http://haas.berkeley.edu/~imio>

Message 549 of 1299

More Info on CPUC Draft decision to Ban Direct Access

Sender	susan.mara@enron.com
Recipients	['steven.kean@enron.com', 'don.black@enron.com', 'scott.stoness@enron.com', 'tim.belden@enron.com', 'harry.kin...]
File	dasovich-j/all_documents/13441.

From one of the ARM members below. Our latest info is that there are still 3 votes in SUPPORT of direct access. So, this measure would fail if that SUPPORT stays in place. ARM and others plan a campaign to attack this draft decision.

From Commonwealth: I have that Linda Serizawa, Commissioner Wood's advisor, has stated that Commissioner Wood is at this moment drafting the decision on direct access. She indicated that a draft order would be released, but would not say when. She stated that ABX1-1 directed the CPUC to set a date at which time a customer would no longer have the right to switch to an ESP, and indicated that this order, as it is currently drafted, establishes that date. Apparently there was great hesitant when making the statement "as it is presently drafted," indicating to that Wood is getting a lot of pressure not to set the date. Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 550 of 1299

EXCELLENT NEWS!

Sender	douglass@energyattorney.com
Recipients	['paul.joe@enron.com', 'garcia@enron.com', 'arm@enron.com', 'merilyn_ferrara@apses.com', 'cgarcia@apses.com', ...]
File	dasovich-j/inbox/1103.

In the spirit of the holiday season, SDG&E has come over from the dark side and now supports the assignability of direct access contracts! The utility also supports the ability of existing direct access customers to indefinitely remain on direct access after their contracts expire with one ESP, permitting them either to renew with their existing supplier or sign a new contract with another ESP. In the attached filing, the utility argues that this is reasonable and fair to direct access customers, particularly in view of the Enron bankruptcy. This will be an excellent development to reference in the comments that are due on January 4th in the DA suspension proceeding.

Happy Holidays to each of you and your families!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

Message 551 of 1299

PG&E Quarterly OFO Report

Sender	rch8@pge.com
Recipients	['alan_reid@pancanadian.ca', 'agoldberg@lgl.twc.com', 'abb@eslawfirm.com']
File	dasovich-j/all_documents/29368.

Gas OII/OFO Settlement Parties:

Attached please find PG&E's OFO Report for the Second Quarter of 2001. This is provided to you in accordance with the Operational Flow Order ("OFO") Settlement Agreement, filed in the CPUC's Gas Strategy OII 99-07-003, and approved by the CPUC by Decision 00-02-050.

The attachments consist of the Report (in Word format) and two Appendices (in Excel format). The Report will also be posted on the Pipe Ranger web site at <<http://www.pge.com/pipeline/library/index.html#settlements>>

If you have any questions on this report, please contact Rich Hall at (415) 972-5115 or email address rch8@pge.com <<mailto:rch8@pge.com>>.

David W. Anderson Attorney Pacific Gas and Electric Company 415-973-6659 dwa3@pge.com

Attachments <<OFO Report 2nd QTR 2001.doc>> <<2nd QTR 2001 - Appdx A.xls>> <<Appdx B 2nd QTR2001.xls>>

- OFO Report 2nd QTR 2001.doc - 2nd QTR 2001 - Appdx A.xls - Appdx B 2nd QTR2001.xls

Message 552 of 1299

Flour in Haas School

Sender	teresac@haas.berkeley.edu
Recipients	['faculty@haas.berkeley.edu', 'staff@haas.berkeley.edu']
File	dasovich-j/inbox/841.

Haas Community,

This evening at about 5:00 p.m. we received a report that several piles of white powder were placed throughout the Student Services Building and on Gayley Plaza. We barricaded as much of it as we could and the UCPD and the Fire Department responded to our call. We quickly discovered that the white powder was plain flour that had been placed in Haas and across campus by a student Ping Pong club on a cross campus footrace.

The student group is in the processing of cleaning up all of the piles of white powder. If you find any piles in the building that were missed, please let us know so that we can get it all cleaned up right away.

Teresa A. Costantinidis Assistant Dean - Budget and Operations Haas School of Business University of California S545 Haas #1900 Berkeley, CA 94720-1900 (510) 643-0341 (510) 643-9428 FAX teresac@haas.berkeley.edu
<http://www.haas.berkeley.edu/>

Message 553 of 1299

FW: Phone in for CPUC call at noon PDT on July 11th

Sender	jeff.dasovich@enron.com
Recipients	[alan.comnes@enron.com]
File	dasovich-j/sent/11962.

----- Forwarded by Jeff Dasovich/NA/Enron on 07/11/2001 11:39 AM -----

Michael Tribolet/ENRON@enronXgate 07/10/2001 05:37 PM

To: Susan J Mara/NA/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron cc: Subject: FW: Phone in for CPUC call at noon PDT on July 11th

CPUC SCHEDULES WEDNESDAY NOON PRESS BRIEFING California Public Utilities Commission (CPUC) President Loretta Lynch will hold a press briefing, Wednesday, July 11, 2001, at noon in the Auditorium of the State Office Building, 505 Van Ness Ave., San Francisco. President Lynch will provide background on items on the Agenda for the Commission meeting on Thursday, July 12, 2001, which begins at 10 a.m., also in the CPUC Auditorium.

The CPUC Communications Office is providing a phone call-in number, listen-in-only, for tomorrow's briefing: 1-888-455-9647, passcode 92105.

Message 554 of 1299

Haas Thanksgiving Hours

Sender	jjensen@haas.berkeley.edu
Recipients	['faculty@haas.berkeley.edu', 'staff@haas.berkeley.edu']
File	dasovich-j/deleted_items/1946.

The building hours for Wednesday, 11/21 and the Thanksgiving Holiday, are as follows:

WEDNESDAY, 11/21 Faculty Bldg. and Student Svcs. Bldg : OPEN 6:30 a.m. Closed 10:00 p.m. Cheit Hall - OPEN 8:00 a.m. CLOSED 9:30 p.m.

THURSDAY, 11/22 Happy Thanksgiving Faculty Bldg., Student Svcs. Bldg and Cheit Hall: CLOSED

FRIDAY, 11/23 Student Svcs. Bldg - OPEN 11:00 a.m. CLOSED 6:00 p.m. Faculty Bldg: - CLOSED The Faculty Bldg will be accessible by cardkey only. Cheit Hall: CLOSED

SATURDAY, 11/24 Student Svcs. Bldg - OPEN 11:00 a.m. CLOSED 6:00 p.m. Faculty Bldg. - CLOSED The Faculty Bldg will be accessible by cardkey only. Cheit Hall: CLOSED

SUNDAY, 11/25 Student Svcs Bldg and Faculty Bldg: OPEN 9:00 a.m. CLOSED 10:00 p.m. Cheit Hall - CLOSED

Thank you,

Jennifer Jensen Facilities Supervisor Haas School of Business S545 Student Services Bldg. University of California Berkeley, CA 94720-1900

Tel: (510) 642-9106 Fax: (510) 642-4700

Message 555 of 1299

E206 Delay first individual report

Sender	villas@haas.berkeley.edu
Recipients	['abernath@haas.berkeley.edu', 'blanchar@haas.berkeley.edu']
File	dasovich-j/all_documents/319.

To Sections E206-1 and E206-2:

This is just to confirm that, as discussed in class, there is the following change in the syllabus and in the deadline for handing in the first individual report:

1. The first individual report is now due on Wednesday, February 16 at 6pm (for both sections). The previous deadline was February 9. This report is the analysis of the case "EMI/CT Scanner (A) & (B)". We'll discuss the case in class in the week of February 16.
2. On the week of February 9 (February 9 for Section 1 and February 10 for section 2) we'll discuss in class the "Barco" case instead of the "EMI/CT Scanner" case.
3. The lecture assignments for each class remain unchanged.

Miguel

J. Miguel Villas-Boas Associate Professor Haas School of Business University of California at Berkeley Berkeley CA 94720-1900 (510) 642-1250 Fax: (510) 643-1420 e-mail: villas@haas.berkeley.edu

<http://www.haas.berkeley.edu/~market/PROFILES/PROFS/villas.html>

Message 556 of 1299

FW: draft legislation

Sender	steven@iepa.com
Recipients	['dkk@eslawfirm.com', 'agilford@wbcounsel.com', 'abb@eslawfirm.com', 'jmball@ns.net', 'alex.sugaoka@uaecorp.co...']
File	dasovich-j/notes_inbox/5558.

Attached is IEP's draft legislative language pertaining to QFs and amending Section 390. This will be the focus of the conference call previously scheduled for 5:00 a.m. today, Tuesday.

In addition, the legislature's select energy committee reconvened at 3:30 p.m. today to discuss 1x and 18x. To the extent we have anything to report, we will report during the conference call.

-----Original Message-----

From: Eric Janssen [mailto:EricJ@eslawfirm.com] Sent: Tuesday, January 30, 2001 3:24 PM To: Steven Kelly (E-mail)
Subject: draft legislation Importance: High

Steven, here it is, formatted in Word 2000 and cleaned up a bit. Let me know if there's anything else I can help with. ej
<<dkkskrev3 010130.section390amendment.doc>>

Eric Janssen Legal Assistant Ellison, Schneider & Harris, L.L.P. 2015 H Street Sacramento, CA 95814 Tel: (916) 447-2166 Fax: (916) 447-3512 Email: ericj@eslawfirm.com

- dkkskrev3 010130.section390amendment.doc

Message 557 of 1299

PowerPoint info

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff_dasovich@enron.com']
File	dasovich-j/notes_inbox/4125.

Please see my attached draft PowerPoint "ideas" revised based on our discussion last night.? I will keep working on but wanted to get this info out to everyone.

<<cv draft powerpoint.ppt>> Jeff - Link to beverage digest magazine web site: <http://www.beverage-digest.com/index.html>
We need to find some more info on the food/snack industry.

- cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

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- cv draft powerpoint.ppt

Message 558 of 1299

Northern California Generation Coalition Comment on Draft Decision

Sender	jlhawkins@jonesday.com
Recipients	['agold@coral-energy.com', 'aamirali@caiso.com', 'adonnelly@prmlp.com']
File	dasovich-j/all_documents/28612.

Service List:

Attached please find the Northern California Generation Coalition Comment on Draft Decision in A.01-06-020. If you have any questions or concerns, please contact Norman Pedersen at (213) 243-2810 or e-mail at napedersen@jonesday.com.
Thank you.

(See attached file: LA1111428.DOC)

Jaki Hawkins (213) 243-2810 Secretary to Norman A. Pedersen

The preceding e-mail message (including any attachments) contains information that may be confidential, be protected by the attorney-client or other applicable privileges, or constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender by replying to this message and then delete it from your system. Use, dissemination, distribution, or reproduction of this message by unintended recipients is not authorized and may be unlawful.

- LA1111428.DOC

Message 559 of 1299

Northern California Generation Coalition and the Utility Reform

Sender	jlhawkins@jonesday.com
Recipients	['agold@coral-energy.com', 'aamirali@caiso.com', 'adonnely@prmlp.com']
File	dasovich-j/notes_inbox/12417.

Service List:

Attached please find the Northern California Generation Coalition and the Utility Reform Network Protest and Request to Suspend Open Season in A.01-06-020. If you have any questions, please contact Norman Pedersen at (213) 243-2810. Thank you.

(See attached file: LA1109589.DOC)

Jaki Hawkins (213) 243-2848 Secretary to Norman A. Pedersen

The preceding e-mail message (including any attachments) contains information that may be confidential, be protected by the attorney-client or other applicable privileges, or constitute non-public information. It is intended to be conveyed only to the designated recipient(s). If you are not an intended recipient of this message, please notify the sender by replying to this message and then delete it from your system. Use, dissemination, distribution, or reproduction of this message by unintended recipients is not authorized and may be unlawful.

- LA1109589.DOC

Message 560 of 1299

New Face in the Office

Sender	april.hrach@enron.com
Recipients	['dave.perrino@enron.com', 'pbray@newpower.com', 'rob.bakondy@enron.com', 'joseph.alamo@enron.com']
File	dasovich-j/all_documents/11788.

Hi Everybody!

You may see a new individual running around the office. Please do not turn him over to building security, he is not the Bessemer Trust thief. Dave Perrino is a new employee both in our office and with Enron. He is Corp/Gov. Affairs and works for Steve Walton. He will be working on RTO West, Desert Star Development, WSCC (general 'stuff'), and some national deregulation. Please stop by and welcome him to our office.

Cheers, April Hrach Administrative Coordinator Phone: 415-782-7825 Fax: 415-782-7851

P.S.- On a separate note: The Wall Street Journal sent a survey to Enron, and to show their appreciation they enclosed a crisp one dollar bill. Unselfishly, I decided to buy a lottery ticket for the office. I am so sorry to say we did not win Wednesday night's jackpot. On a completely separate note, I will be taking 6 months off of work to travel extensively around the world. : -)

Double Cheers, April

Message 561 of 1299

legislative activity -- from AReM's lobbyist

Sender	susan.mara@enron.com
Recipients	[paul.kaufman@enron.com, 'sgovenar@govadv.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11682.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/25/2001 07:51 AM -----

"Norman Plotkin" <nplotkin@rcsis.com> 07/24/2001 06:28 PM

To: <arem@electric.com> cc: Subject: legislative activity

All: The word from the Assembly is that there will be amendments to SB 78, which will be the vehicle addressing the Edison bailout, on Thursday, a hearing on Friday and Floor Session to follow to ratify whatever comes out of committee. This word comes out of the Assembly energy committee (Joe Lyons) and although Rick Simpson was with the Speaker all afternoon and didn't get back to me, numerous other Members' offices confirmed that they have been told to be in town and available Friday.

There is another working group, but I do not know who is on it, nor were we invited. I will continue to advocate for the language we were able to get into 82, as should your individual lobbyists.

More later ...

Message 562 of 1299

Re: Your biographical sketch

Sender	jeff.dasovich@enron.com
Recipients	['hcameron@uclink.berkeley.edu']
File	dasovich-j/all_documents/3032.

Yes. You can expect it this weekend. My apologies for being tardy. Also, I think you should make a stab at getting Mike Kahn, Chair of the California Electricity Oversight Board on one of the panels. I can make a contact and I don't think that it's too late to try. He'd be very good. Very close to the governor.

Heather Cameron <hcameron@uclink.berkeley.edu> 11/04/2000 03:54 PM

To: jeff.dasovich@enron.com cc: Subject: Your biographical sketch

Dear Jeff,

Can you please send me a brief biographical sketch, one that will be suitable for posting on the conference website and also for conference introductions by the Moderator of your panel, Professor Howard Shekanski?

Thanks very much. Best wishes, Heather

Heather Cameron, Events Coordinator Richard & Rhoda Goldman School of Public Policy University of California, Berkeley 2607 Hearst Avenue Berkeley, CA 94720 Tel: 510-642-9437 Fax: 510-643-9657 GSPP home page: <http://gspp.berkeley.edu>

Message 563 of 1299

FIA: Case 2 Draft Memo

Sender	cvavrek@deloitte.com
Recipients	['mark_guinney@watsonwyatt.com', 'sama@haas.berkeley.edu']
File	dasovich-j/all_documents/8930.

Please see attached draft memo.? There is no pride of authorship here, so slash and burn and challenge as you see fit.? Also, indicate in your response if you think we need to discuss live and if so, when.

Hope this isn't too far off the mark.? We also need to incorporate Mark's cash flow statement and assumptions into another attachment, as well as Jeff's thoughts on the funding of expansion.

Thanks! - Carolyn

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law.? - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 564 of 1299

Security/Classroom Locking Schedule

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu', 'mba01@haas.berkeley.edu', 'andy@haas.berkeley.edu', 'horst@haas.berkeley.edu...']
File	dasovich-j/all_documents/1509.

To All,

For security purposes, the custodial crew has been asked to lock classroom doors nightly at 10:00 p.m. They have been directed as follows:

If students are in a classroom when a custodian comes to lock the doors at 10:00 p.m., the students may remain in the room, but the door will be locked. If students leave the room after 10:00 p.m., they will not be able to re-enter.

As previously agreed: 1) Students will be asked to, and are expected to, leave a classroom when a custodian comes - at any time - to clean the room; 2) Students may remain in the building until midnight; and 3) If students are asked to leave the building after midnight by a member of the custodial crew or the Security Guard, they should do so.

Security is important to all of us. Your cooperation will be appreciated. Thank you.

Patsy Shaughnessy Facilities Manager Haas School of Business S545 Student Services Bldg. University of California Berkeley, CA 94720-1900

Tel: (510) 642-4617 Fax: (510) 642-4700

Message 565 of 1299

Group Project

Sender	mark_guinney@watsonwyatt.com
Recipients	['jdasovic@enron.com', 'vavrek@haas.berkeley.edu', 'sama@haas.berkeley.edu']
File	dasovich-j/all_documents/9935.

I was just brainstorming on potential projects. I thought that an interesting and fairly relevant topic could be a current evaluation of Amazon.com and how the projected revenues & profits relate to the current stock price. We could also provide some historical perspective on all realistic Amazon's stock price was a year or two ago relative to a discounted cash flow. I can fairly easily get my hands on some Wall Street analyst research reports that could provide us with some insights and hints as to what Wall Street is expecting. Most of our time can be spent creating a discounted cash flow model similar to what we have been doing in class. Since the jury is still out on Amazon's business model, I think it would make for some interesting debate in class when we present our model.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Message 566 of 1299

Time Change for Western Wholesale Activities - Gas & Power

Sender	linda.noske@enron.com
Recipients	['susan.mara@enron.com', 'steve.walton@enron.com', 'marcia.linton@enron.com', 'linda.robertson@enron.com', 'jo...']
File	dasovich-j/all_documents/11240.

Beginning with this Thursday, April 19th and all future meetings, it is necessary that we delay the above scheduled weekly conference call by 30 minutes in order to avoid overlapping with another one.

My apologies for the late notice but please make the necessary changes to your calendar immediately. All dial in numbers and passcodes remain the same, the time is the only thing we are changing. Again, here is the information for verification:

Conference room EB-47C1 has been reserved for the Houston participants., Date: Every Thursday beginning April 5, Time: 12:30 pm Pacific, 2:30 pm Central, and 3:30 pm Eastern time, Number: 1-888-271-0949, Host Code: 661877, (for Jim only), Participant Code: 936022, (for everyone else), There will not be a call on Thursday, November 22 which is Thanksgiving.

If you have any questions regarding this call or if there are names that need to be added to the list for future notification of changes, please give me a call at 713-853-6082.

Thanks, Linda

Message 567 of 1299

RE: FW: Southern California Generation Coalition Emergency Petiti

Sender	jmctarnaghan@gmssr.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5319.

It seeks to modify D90-09-089 and D97-11-070 so that SoCal can waive the 10% limit on monthly positive imbalances for noncore customers during winter daily balancing periods and that noncore customers will be permitted to combat gas price

spikes by using their previous months' accumulated positive imbalance volumes to meet "flowing supply" requirement. As of today, SCG is requiring noncore customers to meet a minimum of 90 percent of their daily burn from flowing supplies or from storage

Jim McTarnaghan Goodin, MacBride, Squeri, Ritchie & Day 505 Sansome Street, Suite 900 San Francisco, CA 94111
415-765-8409 (Direct Line) 415-398-4321 (Fax) jmct@gmssr.com (Email)

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Thursday, February 15, 2001 10:39 AM To: JWM Subject: Re: FW: Southern California Generation Coalition Emergency Petition for Modification of Decision 90-09-89 and 97-11-070 in R.88-08-018

Thanks for the congratulations. What is Stormin' Norman asking for?

Message 568 of 1299

Department Meeting Change

Sender	ginger.dernehl@enron.com
Recipients	['daniel.allegretti@enron.com', 'joseph.alamo@enron.com', 'joe.allen@enron.com']
File	dasovich-j/notes_inbox/11635.

Originally we had scheduled a department meeting for the month of September. This particular meeting will no longer take place. The next scheduled department meeting will be held in Houston, TX on Friday, December 7 and will be held at the Woodlands Conference Center.

Thanks!

Original message (below) sent January 25, 2001

My apologies in getting this information to everyone so late, but some of the dates are still a work in progress. Please see below:

Government Affairs - The Americas Department Meeting Dates for Year 2001

Date: City/State Location: March 9 Houston, TX The Woodlands Conf. Center June????? September 6 Houston, TX The Woodlands Conf. Center (No longer taking place) December 7 Houston, TX Doubletree Hotel

FYI - The December 7 date could change. I am trying to plan this meeting around the company party again.

Thanks and feel free to call me if you have any questions.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 569 of 1299

Lynch Ruling re Market Valuation

Sender	douglass@earthlink.net
Recipients	['paul.joe@enron.com', 'hoekstra.aldyn@enron.com', 'arm@enron.com']
File	dasovich-j/inbox/1095.

President Lynch has today released the attached ACR concerning market valuation of the utilities retained assets. As you may know, AB 1890 originally required that for those generation-related assets that the Commission determines to be transition costs and that are subject to valuation, "the valuation used for the calculation of the uneconomic portion of the net book value shall be determined not later than December 31, 2001, and shall be based on appraisal, sale, or other

divestiture."

Lynch states that this requirement was changed by AB 6X and that, "I intend to recommend to my colleagues that the requirement to value generation-assets subject to valuation by December 31, 2001 has been superseded by AB 6X. Parties shall file and serve comments addressing this issue by January 15, 2002. Reply comments shall be filed and served by January 25, 2002."

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com

Message 570 of 1299

October Trade Application Training - Houston Texas

Sender	steven_t_sweet@calpx.com
Recipients	['marketing_and_product_development@calpx.com', 'market_participant_cd2@calpx.com', 'communications@calpx.com']...
File	dasovich-j/all_documents/1358.

Good afternoon,

This is to inform you that the California Power Exchange, Trade Application Training will be held Wednesday, October 18th and Thursday, October 19th, 2000 at the Hyatt Regency in Houston Texas. This class offers an overview of the CalPX Day-Ahead, Day Of and Real Time markets. This class is designed for new hires and will also serve as a review for experienced employees.

We welcome you and your staff to attend this Training Class. To register, please reply to this e-mail with your name, business name and telephone number.

The schedule is as follows:

Hyatt Regency Cottonwood Room 1200 Louisiana Street Houston, Texas 77002 713-654-1234 (For Reservations)

Wednesday, October 18th 9:00 - 4:30 Day Ahead Market

Thursday, October 19th 9:00 - 4:30 Day Of Market and Real Time Market

Continental Breakfast and Lunch will be served both days.

Thank you, we look forward to seeing you there.

Steven Sweet Market Services 626-537-3264

Message 571 of 1299

FIA 2nd reader

Sender	cvavrek@deloitte.com
Recipients	['guinney@haas.berkeley.edu', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/9976.

the second reader was handed out a few weeks ago - since you both don't have it, it must have been distributed at the first quiz.

the cases cover pages 31 - 81 of the new reader - too much to fax I think - cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, March 14, 2001 10:26 AM To: Vavrek, Carolyn (US - San Francisco) Subject: RE: More Nagging About the Project

thanks. did she hand out the second reader last thursday? - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 572 of 1299

Re[2]: Clarkson

Sender	mark_guinney@watsonwyatt.com
Recipients	['jeff.dasovich@enron.com', 'jdasovic@enron.com', 'dwindham@uclink4.berkeley.edu', 'jjackson@haas.berkeley.edu...]
File	dasovich-j/all_documents/8712.

Please read the memo I constructed using the previously forwarded work. You will see that I took the opposite tactic in approving the loan as opposed to the original memo that recommended denial.

Read it and see if you disagree or not. As you will see, I base most of the rationale on the pro forma 1996 financial statements. However, I kept most of the dissenting language in the memo to highlight our reservations and/or concerns.

My guess is that we can go either way since our beloved professor stated last week that there is no wrong answer. However, we some of the numbers in the spreadsheet forwarded to me, I couldn't recreate some of your stats and there were no formulas behind the numbers. That is why I changed some of the numbers in the memo to reflect my calculations.

Please provide me with any feedback.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax - Clarkson Case Memo final.doc

Message 573 of 1299

Re: Assembly goes in at 4pm today

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'janel.guerrero@enron.com', 'harry.kingerski@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/29008.

Quick add on to Sue's note:

Right now, appears they're focused on the budget, but could take up energy. There appears to continue to be considerable uncertainty----seems that even many Democratic Assembly members don't know at this point what the plan is for this afternoon/evening. Our lobbyists are attempting to get more info, which we'll pass on soon as we get it.

Best, Jeff

Susan J Mara 07/23/2001 11:38 AM

To: Richard Shapiro/Enron@EnronXGate, James D Steffes/Enron@EnronXGate, Linda Robertson/NA/Enron@ENRON, Susan M Landwehr/Enron@EnronXGate, Susan J Mara/NA/Enron@ENRON, Paul Kaufman/Enron@EnronXGate, Harry Kingerski/Enron@EnronXGate, Michael Tribolet/ENRON@enronXgate, Kristin Walsh/Enron@EnronXGate, mpalmer@enron.com, Karen Denne/Enron@EnronXGate, Janel Guerrero/Enron@EnronXGate, Richard B Sanders/HOU/ECT@ECT, Vicki Sharp/HOU/EES@EES, Wanda Curry/Enron@EnronXGate, Jeff Dasovich/NA/Enron@Enron cc: Subject: Assembly goes in at 4pm today

Our lobbyist called to let us know.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 574 of 1299

RE: CSO - Read only if you are a graduating native Japanese Haas

Sender	rwong@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu, 'mba02@haas.berkeley.edu']
File	dasovich-j/deleted_items/1726.

Sorry, here's the document Rich

-----Original Message-----

From: Rich Wong [mailto:rwong@haas.berkeley.edu] Sent: Thursday, September 13, 2001 9:34 AM To: mba02@haas.berkeley.edu; eveningmba@haas.berkeley.edu; mfe02@haas.berkeley.edu Subject: CSO - Read only if you are a graduating native Japanese Haas student

Per the attached document, Angela Lewis, a representative from The Japan Partnership, an international executive search firm, will be in the area at 5pm on Sunday, October 7th and is interested in meeting with native Japanese graduating Haas students to discuss career opportunities in Japan.

If you are interested in attending this presentation, please respond back to me right away. The volume of responses will determine whether the event will take place or not. It is scheduled to take place in the Faculty Club.

Regards, Rich

Rich Wong Account Manager, Technology & Entertainment MBA Recruiting Haas School of Business Career Center 545 Student Services Building #1900 Berkeley, CA 94720-1900 ph: 510-643-4211 fax: 510-643-5257 email:rwong@haas.berkeley.edu

Message 575 of 1299

FW: Proposed revisions to CSA Letter

Sender	mday@gmssr.com
Recipients	[rick.counihan@greenmountain.com, 'rmp@cpuc.ca.gov', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/2396.

Here are some edits to our letter from soca. I do not feel they diminish the usefulness of the letter, and they moderate the tone a little, as you would expect. They also eliminate the lengthy recitation of the procedural events at the end of the letter. If this gets them on the letter, I say let's sign. I will assume everyone who signed on last week stays on the letter unless I hear differently from you by 3 pm today. I really appreciate the quick turnaround. Mike Day

-----Original Message-----

From: Wright, Gillian - TP1GXW [mailto:GWright@sempra.com] Sent: Monday, December 11, 2000 10:26 AM To: 'mday@gmssr.com' Subject: Proposed revisions to CSA Letter

Mike, Here are SoCal's proposed revisions to the CSA letter - I'll call in a minute. The edits are pretty extensive, but all along the lines we discussed (ie changing the tone to a more positive one).

Gillian

<<CSA Letter SCG.doc>>

Gillian A. Wright Regulatory Case Manager Sempra Energy 555 W. Fifth St. GT14D6 Los Angeles, CA 90013-1011 (213) 244-3833 (213) 244-8820 fax gwright@sempra.com

- CSA Letter SCG.doc

Message 576 of 1299

Re: Coalition for Energy Action

Sender	susan.mara@enron.com
Recipients	['karen.denne@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/27904.

Yes, they came to the last IEP meeting with a proposal for an ad campaign. They would like IEP to help fund. The people who came were those working on the campaign -- not the organizations sponsoring it. I can get the names of the PR/ad people if you like.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Jeff Dasovich Sent by: Jeff Dasovich 06/18/2001 01:43 PM

To: Karen Denne/Corp/Enron@ENRON cc: Susan J Mara/NA/Enron@ENRON Subject: Re: Coalition for Energy Action

I can poke around---most of the associations in that group are in the negotiations I'm stuck in. I'll let you know what I hear.

Best, Jeff

Karen Denne 06/15/2001 09:49 AM

To: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON cc: Subject: Coalition for Energy Action

Do we have any contact w/ the Coalition for Energy Action -- the new business group led by the California Chamber? We need to be part of that group to at least know what they're doing and what messages they're spinning. Let me know, and we can add them into our target CEO database. thx.kd

Message 577 of 1299

Re: Weekly Staff meeting?

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'joseph.alamo@enron.com']
File	dasovich-j/sent/11948.

yep.

Joseph Alamo 07/10/2001 07:31 PM

To: Jeff Dasovich/NA/Enron, Susan J Mara/NA/Enron cc: Subject: Re: Weekly Staff meeting?

so -- 8:30 Thursday okay with both of you??

From: Jeff Dasovich on 07/10/2001 12:07 PM CDT Sent by: Jeff Dasovich To: Susan J Mara/NA/Enron@ENRON cc: Alan Comnes/ENRON@enronXgate, Joseph Alamo/NA/Enron@ENRON, Paul Kaufman/Enron@EnronXGate

Subject: Re: Weekly Staff meeting?

That's true, but we're trying to find substantive reasons for having the meeting....

Susan J Mara 07/10/2001 12:05 PM

To: Joseph Alamo/NA/Enron@Enron cc: Alan Comnes/ENRON@enronXgate, Jeff Dasovich/NA/Enron@Enron Subject: Re: Weekly Staff meeting?

Paul specifically told us to have one

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Joseph Alamo 07/10/2001 09:41 AM

To: Susan J Mara/NA/Enron, Jeff Dasovich/NA/Enron, Alan Comnes/ENRON@enronXgate cc: Subject: Weekly Staff meeting?

Did you folks want to try to have a Staff meeting/call this week? or would you rather let it go until Paul returns?

Pls advise, Thanks, Joseph

Message 578 of 1299

PG&E Comments, A.01-06-020 ("Open Season")

Sender	dwa3@pge.com
Recipients	['asy2@pge.com', 'aamirali@caiso.com', 'cab@cpuc.ca.gov', 'adonnely@prmlp.com']
File	dasovich-j/all_documents/27999.

Re: PG&E's Open Season --

<<PGE Open Season Application Comments.rtf>>

Attached are Pacific Gas and Electric Company's responses to Administrative Law Judge Brown's questions posed in the "Administrative Law Judge's Ruling Shortening Time for Protests or Responses and Replies to the Application Filed by Pacific Gas and Electric Company," issued June 14, in A.01-06-020 ("PG&E gas transportation open season").

These PG&E responses ("PG&E Comments") are provided to the e-mail list sent out yesterday (June 19) to recipients, per Judge Brown's request to PG&E. (Please note that a limited number of recipients subsequently notified PG&E that they did not wish to remain on the e-mail list. Accordingly, PG&E has modified the list and the instant e-mail list of recipients reflects those modifications/deletions.)

PG&E will also provide the PG&E Comments by mail to the service list in I.99-07-003.

If technical questions arise from this e-mail, please call my secretary, Amy Yu, at 415-973-2769.

Thank you,

Dave Anderson, PG&E Law Department 415-973-6659

- PGE Open Season Application Comments.rtf

Message 579 of 1299

Re: Case, #3,4

Sender	jeff.dasovich@enron.com
Recipients	[christine.piesco@oracle.com]
File	dasovich-j/sent/561.

Jimmie's the "compiler" this time. You're stuff was good. Whether he has time to incorporate remains to be seen. But I wouldn't sweat it. We can talk more tonite about our somewhat "loose" but thus far effective means for getting these things done every week.

Best, Jeff

Christine Piesco <christine.piesco@oracle.com> 10/09/2000 12:45 PM

To: Jeff.Dasovich@enron.com cc: Subject: Re: Case, #3,4

Jeff,

I emailed my answers to 3 and 4 as soon as I got home last night - did you get them and did they look OK for inclusion? I read over some of the other members answers to the same questions and it looked like we addressed slightly different areas on #3, so we should be able to merge them together. On #4 I think I had a slightly different answer, I'm not sure which is right.

Christine

Jeff.Dasovich@enron.com wrote:

Looks good. Thanks. See you tomorrow. Best, Jeff

-- Christine Piesco Industrials Account Manager Oracle Corporation 500 Oracle Parkway Redwood Shores, CA 94065
Phone: (650) 506-3640 Fax: (650) 633-3753 christine.piesco@oracle.com

- christine.piesco.vcf

Message 580 of 1299

FW: Wednesday's Filing

Sender	jeff.dasovich@enron.com
Recipients	[douglass@energyattorney.com]
File	dasovich-j/sent_items/2312.

This time with attachment...

-----Original Message-----

From: Dasovich, Jeff Sent: Monday, November 26, 2001 6:18 PM To: 'Dan Douglass' Subject: RE: Wednesday's Filing

Dan: Looks good. Sue calls me a party-pooper, but I've hi-lighted areas (in bold italics) that I think would benefit from some smoothing of the edges. Not that I don't very much enjoy reading it. I do. I'm just concerned that it will unnecessarily create additional hostility in what is already--as you know--an incredibly hostile environment. Thanks again.

Best, Jeff

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Monday, November 26, 2001 2:38 PM To: Dasovich, Jeff Subject: Wednesday's Filing

Jeff, I never received your input for the filing due Wednesday regarding the utilities' joint filing on DA suspension. Could you please give me a call or email whatever you have? Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 581 of 1299

Fwd: Re: Set Up LLC for CLEC Activity

Sender	sue.nord@enron.com
Recipients	['donald_lassere@enron.net', 'james.ginty@enron.com', 'richard.anderson@enron.com']
File	dasovich-j/all_documents/8186.

----- Forwarded by Sue Nord/NA/Enron on 01/05/2001 12:20 PM -----

"Daniel Clearfield" <dclearfield@wolfblock.com> 01/05/2001 10:32 AM

To: <Sue_Nord@enron.com> cc: Subject: Fwd: Re: Set Up LLC for CLEC Activity

Here's the answer to your question of earlier in the week. Best regards.

Daniel Clearfield, Esq. Wolf, Block, Schorr and Solis-Cohen LLP 212 Locust St., Suite 200 Harrisburg, PA 17101 (717) 237-7173 (717) 237-7161 fax

----- Message from on -----

In response to the question by Enron, the state PUC will accept partnership tax return information for a LLC. The state PUC follows whatever the Department of Revenue requires to be utilized. Accordingly, where an LLC is treated for federal income tax purposes as a partnership are tax classified as a partnership for Pennsylvania purposes under the normal Personal Income Tax provisions but are still treated as a corporation for Capital Stock/Franchise Tax purposes. The LLC partnership would therefore be able to file a PA-65 form which is based on the Federal 1065 partnership return with the Department of Revenue and the PUC.

DAN

Message 582 of 1299

Giants Game - May 13th - Please Respond ASAP

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu']
File	dasovich-j/notes_inbox/4342.

To celebrate the end of another semester (and the Program for some), I looked into purchasing a block of tickets to a SF Giants game at Pac Bell Park.? We have the opportunity to purchase up to 90 tickets at \$16/ticket for the game against the New York Mets on Sunday, May 13th at 1:05pm.? Seats are in the View Reserved Area (i.e., upper deck).

* * Please let me know ASAP how many tickets you would like. * *?

Feel free to invite friends and family as well.? I will place the order based on your initial response, so only respond if you are definitely interested.?

GO GIANTS!

- Carolyn

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

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Message 583 of 1299

RE: Answers

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff_dasovich@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5283.

got your messages + attachments and mark's - WOW + THANKS!! also calc'd it all myself will review + compare + send around comments -cv Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Sunday, February 18, 2001 8:26 PM To: Mark Guinney Cc: asama@yahoo.com; cvavrek@deloitte.com; Jeff.Dasovich@enron.com; Jeff_Dasovich@enron.com Subject: Re: Answers

Since it seems like folks may have only been sporadically receiving my emails, please let me know if you receive the memos and accompanying spreadsheets that I just sent.? Thanks.

Best, Jeff

This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law.? If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 584 of 1299

ICAF to San Francisco, week of April 8

Sender	crandallm@ndu.edu
Recipients	['jdasovic@enron.com', 'csandherr@enron.com']
File	dasovich-j/notes_inbox/5794.

Jeff - Cynthia Sandherr said you were once again the person to write to. We talked in the fall of 1999 when I was thinking about bringing the energy seminar to San Francisco in 2000. ? 17 in our group this year, really interested in gas and elec matters, especially in CA. 14 students including a BGen from Croatia, and 3 faculty. ? At this point, I am trying to juggle between an open Monday afternoon 9 April, and a very early possible morning appt on Thursday a.m., 12 April. We have asked CPUC to host us the afternoon of 11 April, but they may back out given the circumstances, but for the moment that time is spoken for. ? We did manage Alaska last year after all, so now I am trying to resume the regular alternation between California and Houston. I am several shades whiter of head as a result of bringing the Alaska trip to closure. ? Draft schedule attached for your consideration of where we are in the planning process. ? Best regards, ?

Maureen Crandall Professor of Economics Industrial College of the Armed Forces National Defense University Fort McNair, DC 20319 tel (202) 685-4319?? fax(202) 685-4175 - IS2001 dom trav California.doc

Message 585 of 1299

Re: SCE Plans to Implement billing and balancing account aspects of

Sender	tamara.johnson@enron.com
Recipients	['harry.kingerski@enron.com', 'susan.mara@enron.com', 'scott.stoness@enron.com']
File	dasovich-j/all_documents/12358.

Sue, I thought there was a extra rate component for SCE undercollection that the MOU would add. If so, that extra rate should not be allowed to go forward until (a) the legislation passes the MOU; and (b) the CPUC agrees how to levy it.

does anyone have clarity on this rate adder? Thanks, Tamara.

Susan J Mara@ENRON 05/11/2001 12:28 PM To: Tamara Johnson/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Harry Kingerski/NA/Enron@Enron, Robert Neustaedter/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, James D Steffes/NA/Enron@Enron, jbennett@gmssr.com, Jeff Dasovich/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron cc: Subject: SCE Plans to Implement billing and balancing account aspects of MOU as of June 3

I learned at the AREM meeting today:

SCE has informed ESPs that it will implement its advice letter on the MOU (don't recall the number) beginning with the new rates on June 3. We are planning to protest that AL. Do we care? IF we do, Jeanne, can we stop them?

Also, SCE has informed people that it is calculating the PX Charge/Credit based on its AL that was rejected by the CPUC. Do we care on that one?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 586 of 1299

Delete if you are not an International Student - J1 Visa holders

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['mba01@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/all_documents/4219.

WORKSHOP ABOUT THE TWO-YEAR HOME COUNTRY PHYSICAL PRESENCE REQUIREMENT

Monday, December 11, 2000 Home Room of International House 3:00 - 5:00 p.m.

The two year home country physical presence requirement is defined by section 212(e) of the Immigration and Naturalization Act. (INA). J-1 visitors subject to section 212 (e) must return to their country of last legal residence for two years or obtain a waiver of this requirement before they are eligible for the H-1B (temporary employment), L-1 (intracompany transfer) or Permanent Residence (Green Card) categories.

No fee or pre-registration required.

Who should come? For any UC Berkeley J-1 student or scholar

What will be covered? Information about what makes a J-1 subject Information about applying for a waiver of the two-year requirement Information about the timing of the application of a waiver What should you bring? All copies of the IAP-66 Passport

Sebastian Teunissen Director of International Affairs Haas School of Business University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228

<http://www.haas.berkeley.edu/HaasGlobal>

Message 587 of 1299

Re: California Enery Alliance

Sender	susan.mara@enron.com
Recipients	['bhansen@lhom.com', 'janel.guerrero@enron.com', 'david.parquet@enron.com', 'hgovenar@govadv.com']
File	dasovich-j/all_documents/13378.

Let's talk. Some other things have come up.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Janel Guerrero 06/05/2001 07:20 AM

To: Paul Kaufman/Enron@EnronXGate, Susan J Mara/NA/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, David Parquet/SF/ECT@ECT, Mary Schoen/NA/Enron@Enron, bhansen@lhom.com, sgovenar@govadv.com, hgovenar@govadv.com cc: Richard Shapiro/NA/Enron@Enron, James D Steffes/NA/Enron@Enron Subject: California Enery Alliance

Everyone,

A few months ago Enron was contacted by the firm Barnes Mosher Whitehurst Lauter & Partners. Enron was asked to join a new coalition called the California Energy Alliance. The purpose of CEA is to identify opinion leaders, union members and registered voters who can be mobilized in support of streamlining California's process for building power plants.

Both Paul and I have had conversations with the partners at BMWL. Today, I left a message for one of the partners that Enron will not be participating in the coalition and wished them well in their efforts. I wanted you all to be aware of the telephone call and understand that Enron would not be involved in the coalition's efforts.

Message 588 of 1299

FW: Today's FERC Filing for WPTF

Sender	susan.mara@enron.com
Recipients	['jeff.dasovich@enron.com', 'd..steffes@enron.com', 'Michelle Dangott', 'alan.comnes@enron.com']
File	dasovich-j/inbox/1639.

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Friday, November 09, 2001 12:35 PM To: Gary Ackerman; Mara, Susan; Greg Blue; Karen Shea; Curtis Kebler; Jack Pigott; Bill Ross; Todd Torgerson; Curt Hatton; Steve Huhman; Roger Pelote; Bob Anderson; Max Bulk; Janie Mollon; Marcie Milner; denise_hill@transalta.com Cc: Michelle Dangott Subject: Today's FERC Filing for WPTF

Attached is a copy of today's FERC filing that advocates adoption of a circuit breaker price for the coming winter, as opposed to the existing price cap mechanism. As you know, we usually circulate these filings in draft form so that funders can see and provide comments in advance. I was under the mistaken impression that this filing was only to be reviewed by Gary Ackerman, so he was the only recipient of the earlier drafts and the attached copy bears all of his input and suggestions. My apologies for not circulating it more broadly, as we normally do.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 589 of 1299

PGE proposal to secure gas suppliers

Sender	james.steffes@enron.com
Recipients	['phillip.allen@enron.com', 'richard.shapiro@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5407.

FYI.

Jim

----- Forwarded by James D Steffes/NA/Enron on 02/07/2001 07:20 PM -----

Michael Tribolet 02/07/2001 07:19 PM

To: James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Steven J Kean/NA/Enron@Enron cc: Subject: PGE proposal to secure gas suppliers

FYI: Low initial success rate.

----- Forwarded by Michael Tribolet/Corp/Enron on 02/07/2001 06:58 PM -----

Travis McCullough@ECT 02/07/2001 04:07 PM

To: Elizabeth Sager/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Mark E Haedicke/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Michael Tribolet/Corp/Enron@Enron cc: Subject: PGE proposal to secure gas suppliers

FYI -- Five of PGE's 25 suppliers agreed to execute the PG&E's proposed security agreement, including two Dynegy entities. Two entities (a Goldman, Sachs affiliate and Western Gas Resources) shut off gas supplies immediately upon termination of the DOE order. PGE indicated a need to continue to negotiating with other suppliers for additional gas suppliers, so they may come around.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 590 of 1299

Re: Sierra Pacific

Sender	tamara.johnson@enron.com
Recipients	['robert.neustaedter@enron.com', 'susan.j.mara@enron.com', 'douglass@energyattorney.com', 'tjohnso8@enron.com']...
File	dasovich-j/notes_inbox/11547.

Dan, yes, please forward summaries for Sierra Pacific - they are much appreciated. I am not interested in the gas side. But, as with Socal Gas, do whatever works for you administratively.

Also, could you please put Gordon Savage back on your distribution list? (gsavage@enron.com) I will be transitioning out of California. But please keep me in the loop until I let you know when I move onto a different region.

Thanks, Tamara Johnson.

"Dan Douglass" <douglass@energyattorney.com> on 07/30/2001 10:29:47 PM To: "Robert Neustaedter" <robert.neustaedter@enron.com>, "Sue Mara" <susan.j.mara@enron.com>, "Tamara Johnson" <tjohnso8@enron.com>,

"Jeff Dasovich" <jeff.dasovich@enron.com> cc: Subject: Sierra Pacific

Here is a new one....an AL from Sierra Pacific.? Does Enron want to have these reviewed?? Also, I will be sending you a summary this evening of two advice letters from Southwest Gas....same question applies....do you want summaries of its filings? ? Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 Tel:?? (818) 596-2201 Fax:?? (818) 346-6502 douglass@energyattorney.com - 7-30-01 AL Summary Chart.doc

Message 591 of 1299

Re[2]: AHP Case

Sender	dwindham@uclink4.berkeley.edu
Recipients	['mark_guinney@watsonwyatt.com', 'guinney@haas.berkeley.edu', 'dwindham@uclink4.berkeley.edu']
File	dasovich-j/all_documents/9415.

Mark:

I agree that you should use an appropriate discount rate to discount a set of cash flows. The cash flows in the case of a tax shield are not risky and therefore they need to be discounted by the riskless rate. The only risk of not obtaining the monies generated by the shield are that the government would repeal the interest rate deduction or that AHP will not have income to shield. Given the financial state of the company neither are likely. That is why I used the riskless rate to discount.

If you guys disagree with my analysis feel free to change it. You would need to multiply the number I provided by .357 to come up with the new number.

Dylan

At 08:55 AM 26-02-01 -0500, Mark Guinney wrote:

Dylan, You shouldn't use a riskless rate not because of risk of the tax shield but
by

*leveraging up the risk of the firm increases, i.e. default risk/bankruptcy risk. A more appropriate rate should be the rate on the debt as determined by the market. ***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax*

Message 592 of 1299

Re: Regulatory / Commercial Focus Q3/Q4 2001

Sender	jeff.dasovich@enron.com
Recipients	['barry.tycholiz@enron.com']
File	dasovich-j/all_documents/28833.

Sounds good. You can reach me at 415.782.7822. Because my schedule is a mess (thanks to the mess California has created), if you don't reach me on my office line, please try 415.505.6633. Also, I think that it would be very useful to have Leslie Lawner on, since she's involved a lot in California gas matters, but it's your call. Just let me know.

Best, Jeff

Barry Tycholiz/ENRON@enronXgate 07/17/2001 08:30 AM

To: Jeff Dasovich/NA/Enron@Enron, Stephanie Miller/ENRON@enronXgate, Jane M Tholt/ENRON@enronXgate, Mike Grigsby/ENRON@enronXgate cc: Jessica Presas/ENRON@enronXgate Subject: Regulatory / Commercial Focus Q3/Q4

2001

Jeff, for the meeting on Thurs a.m. 9:30 (Houston Time), we should keep our group to the list I have identified. I would like to start with a simple plan and work out from there. We are working towards an action plan for handling PUC issues (from a commercial perspective) in california and other states, prior to anybody addressing the PUC we need agreement as to what it is we want to put forward.

We will call you on thurs a.m. Can you please verify your contact phone number.

Thanks in advance.

Jessica, pls reserve a room.

BT

Message 593 of 1299

Please review in preparation for energy committee meeting

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/11164.

Please review the following information regarding real time pricing to prepare for this afternoon's energy committee meeting - per Barbara Barkovich.

From: "Chester Hong" <Chong@energy.state.ca.us> To: <brbarkovich@earthlink.net>, <uwuaregion5@earthlink.net>
Subject: A.00-11-038 TESTIMONY OF MICHAEL R. JASKE CALIFORNIA ENERGYCOMMISSION REGARDING RATE DESIGN Date: Fri, 13 Apr 2001 14:50:23 -0700 Message-ID: <sad7123f.092@energy.state.ca.us> MIME-Version: 1.0
Content-Type: multipart/mixed; boundary="-----=_NextPart_000_009C_01C0C679.13CFC5A0" X-Mailer: Novell
GroupWise Internet Agent 5.5.3.1 X-MimeOLE: Produced By Microsoft MimeOLE V5.00.2314.1300 X-Mozilla-Status2: 00000000

? Attached in WORD 97 is the TESTIMONY OF MICHAEL R. JAKSKE CALIFORNIA ENERGY COMMISSION REGARDING RATE If you have any problems opening this document, please contact me at (916) 654-3951.? All other questions/e-mails should be addressed to?Jennifer Tachera. ? California Energy Commission Chief Counsel's Office Staff Counsel?Jennifer Tachera 1516 9th Street Sacramento, CA.? 95814 E-mail address:? Jtachera@energy .state.ca.us
Phone Number:? (916) 654-3870 - CEC Testimony on Rate Design.doc - PUC cover letter.doc

Message 594 of 1299

FW: Proposed NARUC resolution on hedging

Sender	bkc7@pge.com
Recipients	['jdasovic@enron.com']
File	dasovich-j/notes_inbox/2649.

Something you guys might want to support....

-----Original Message-----

From: Hill, Karen [mailto:khill@aga.org] Sent: Wednesday, June 06, 2001 2:08 PM To: #FRCEMAIL; State Regulatory Committee; RATECTE-LDCs Subject: Proposed NARUC resolution on hedging

Attached below is a resolution that EEI is considering proposing to NARUC recommending that regulators allow utilities to recover the costs of hedging. Please let me know if the language of this resolution is acceptable to your company. One

concern that has occurred to me is whether we would always want to pass along to consumers the gains and losses incurred under risk mitigation programs. If not, then we might want to suggest adding some language to the effect that while such rate treatment would certainly be appropriate, companies might opt for a program where gains or losses incurred under risk mitigation programs are not reflected in rates at all. Thanks for your attention and input. EEI is looking for comments by June 13.

A. Karen Hill Vice President Regulatory Affairs American Gas Association 400 North Capitol Street Washington, DC 20001 202-824-7225 202-824-9125 (fax) khill@aga.org <mailto:khill@aga.org>

- EEI hedging resolution.doc

Message 595 of 1299

CAISO Historic Load Data	
Sender	jeff.dasovich@enron.com
Recipients	['rob.bradley@enron.com', 'ursula.brenner@enron.com']
File	dasovich-j/sent/12101.

----- Forwarded by Jeff Dasovich/NA/Enron on 07/23/2001 01:14 PM -----

Susan J Mara 07/20/2001 06:47 PM

To: connie.lausten@mail.house.gov cc: Tom Briggs/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron Subject: CAISO Historic Load Data

Here is the link for the load data on the CA ISO's web site. Although the ISO has some time limit on keeping data, it goes back at least as far as Jan '01. We didn't check any earlier. Feel free to call with any questions.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/20/2001 04:45 PM -----

Dave Perrino@ECT 07/20/2001 03:00 PM

To: Susan J Mara/NA/Enron@ENRON cc: Subject: CAISO Historic Load Data

Sue,

From this link: <http://oasis.caiso.com/> the information your are looking for can be obtained. Once the CA ISO OASIS homepage comes up, click on the "System Load" tab in the upper righthand corner, this will bring you to the "System Load Reports" page. From this page you can query the ISO's database. From trying to query the data, I have found out that you can request no more than 31 days of data at a time.

Hope this helps, any questions, just let me know.

Kind Regards,

Dave

Message 596 of 1299

RE: Memorial Day Weekend	
Sender	cshea@marin.org
Recipients	['nancy.sellers@robertmondavi.com', 'carter.hachman@marchfirst.com']
File	dasovich-j/all_documents/12742.

Congratulations from me too.? I hope you two are as happily married as I am.? I mean we are.? Right dear? Regards, the Sheas -----Original Message----- From: Carter Hachman [mailto:carter.hachman@marchFIRST.com] Sent: Friday, May 18, 2001 10:27 AM To: 'Nancy.Sellers@RobertMondavi.com'; 'Lynner@mcn.org'; 'whiting@sonic.net'; 'johnw@fsgllc.com'; 'ljensen@westcoastweathervanes.com'; 'Eldon@direcpc.com'; 'cgreenway@brobeck.com'; Shea, Chris; 'carterhachman@worldnet.att.net'; 'cameron@perfect.com'; 'Jeff_Dasovich@enron.com'; 'PSellers@haas.berkeley.edu'; 'PSellers@pacbell.net'; 'scottwl@hotmail.com'; 'Csilva@jeiusa.com'; 'celise clevenger' Subject: Memorial Day Weekend

Cameron and Scotty sitting in a tree K-I-S-S-I-N-G First comes love Then comes marriage Then Prentice and Cammie stop living together

;-)

Congratulations!? You two are fantastic!? I'm on for the entire weekend and will bring mucho vino -- and none from a box.? Nancy, Triple piggy will have to be played on the deck with no railings.? I've been doing back exercises and am good to go.?

Looking forward to it!

xo Carter

Carter K. Hachman Sr. Brand Strategist marchFIRST/SBi 415-369-6347 work 415-846-1206 cell

Message 597 of 1299

Electricity Crisis

Sender	jeff.dasovich@enron.com
Recipients	['richard.shapiro@enron.com', 'skean@enron.com', 'james.steffes@enron.com']
File	dasovich-j/sent/3059.

FYI. Teece is the economist at Berkeley who acted as the ringleader for the "manifesto." ----- Forwarded by Jeff Dasovich/NA/Enron on 01/29/2001 03:14 PM -----

David Teece <teece@Haas.Berkeley.EDU> 01/29/2001 02:33 PM

To: teece@Haas.Berkeley.EDU cc: Subject: Electricity Crisis

TO:?????AD HOC GROUP ON THE ELECTRICITY CRISIS

Assemblyman Joe Nation put a bill in the hopper Friday, January 26th, which he believes is congruent with our thinking (see attached).? He is seeking our comments and possible endorsements.

Please send your comments directly to Joe Nation at <joe@joenation.com>, and let me know whether you believe we should work with him and consider endorsing his bill.

Thanks, David Teece

- nation memo 012601.pdf - nation draft bill page 2.pdf - nation draft bill page 3.pdf - nation draft bill page 4.pdf - nation draft bill page 1.pdf - nation memo 012701.pdf

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930 University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826 <http://haas.berkeley.edu/~imio>

Message 598 of 1299

Update Load Management Subcommittee Meeting

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/29090.

Here is an update on the major discussion items:

Real Time Pricing: Please review the enclosed proposed decision of July 19. We need to have our comments in by Thursday, July 25.

Conservation Voltage Reduction project: At our last load management subcommittee, we voted to recommend CEC to fund a proposal from EPRI to answer some critical issues related to conservation voltage reduction so that we all can make informed decisions. The project required continual update on the project from EPRI and our feedback to EPRI/CEC. Please find the updated scope of work on this project. If you have any specific questions or issues that you want addressed, please let us know.

Energy baseline adjustment with ambient temperature: Our loads in the Silicon Valley are very temperature sensitive which can have enormous effects on ho baseline loads are calculated. I have some data to share. It is important to all who are participating or planning to participate in any demand responsive programs.

See you at 1:30PM!/? ?

?Mukesh Khattar Energy Director Oracle Corporation (650) 506-6980; fax (650) 633-1638 ?

- RTP proposed decision 071901.doc - EPRI_SVMG_Draft_Proposal_to CEC_for_CVR_Rev072401.doc

Message 599 of 1299

FERC 12/15 Order on California Remedies - Reporting Requirements

Sender	sarah.novosel@enron.com
Recipients	['steven.kean@enron.com', 'richard.shapiro@enron.com', 'linda.robertson@enron.com']
File	dasovich-j/all_documents/7974.

To ensure that we don't miss any of the reporting dates and requirements that FERC has established, we asked Bracewell & Patterson to prepare a memorandum laying out the various reporting times and requirements. Andrea Settanni at Bracewell has reviewed FERC's December 15 order and prepared the attached memo.

Alan, it is my understanding that you will be responsible for ensuring that we meet all of these reporting requirements. I will call you to make sure that we're on track for the first report which is due on January 2.

Please call me if you have any questions.

Sarah

----- Forwarded by Sarah Novosel/Corp/Enron on 12/27/2000 02:19 PM -----

"Andrea Settanni" <asettanni@bracepatt.com> 12/22/2000 12:32 PM

To: <snovose@enron.com> cc: "Jeffrey Watkiss" <dwatkiss@bracepatt.com>, "Ronald Carroll" <rcarroll@bracepatt.com>
Subject: FERC 12/15 Order on California Remedies - Reporting Requirements

Sarah - Pursuant to your request, attached is a memo summarizing the reporting requirements. Let me know if you have any questions. Thanks.

Andrea M. Settanni Bracewell & Patterson, L.L.P. 2000 K Street, N.W. Suite 500 Washington, D.C. 20006-1872 (202) 828-7631 (phone) (202) 857-2128 (fax) asettanni@bracepatt.com

- california.doc

Message 600 of 1299

first draft of FCC top ten list

Sender	sue.nord@enron.com
Recipients	['barbara.hueter@enron.com', 'allison.navin@enron.com', 'carmen.perez@enron.com']
File	dasovich-j/notes_inbox/12504.

This is Dynegy's first draft of a top 10 wishlist to give to the head of the Common Carrier Bureau at the FCC. She specifically requested that the list be limited to win-win proposals. Let's plan to discuss on the 11:00 call.

Sue Nord, Sr. Director Government Affairs 713 345-4196

----- Forwarded by Sue Nord/NA/Enron on 06/18/2001 08:15 AM -----

Ed.A.Ross@dynegy.com 06/15/2001 05:09 PM

To: ghinners@reliant.com, shermanc@kochind.com, ccampbell@reliant.com, dzake@reliant.com, whoefling@reliant.com, jminnis@reliant.com, jblackwell@reliantenergy.com, sam.beason@elpaso.com, chris.noon@elpaso.com, ed.ross@dynegy.com, sue.nord@enron.com, ajenkins-lara@reliant.com, walker.fleming@dynegy.com, ccoker@reliant.com cc: Subject: first draft of FCC top ten list

Attached is my first draft of comments - top ten list of needs to promote bandwidth trading. This has not benn circulated around DYN yet, so there's nothing official about it yet. Please look over and let me know your thoughts. Steve Augustino provided some of the bullets. Have a great weekend.

(See attached file: FCC white paper for BW trading 061201.doc)

Ed Ross Sr. Director and Regulatory Counsel 713.767.8428 ed.ross@dynegy.com

- FCC white paper for BW trading 061201.doc

Message 601 of 1299

Kent Wheatland Memorial Award

Sender	susan.mara@enron.com
Recipients	['karen.denne@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/12574.

This was a really sweet message. I wanted to share it. By the way, I learned from Kent's brother just yesterday that Kent's death was attributed to viral meningitis. Just goes to show that you need to live each day to the fullest.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/13/2001 11:16 AM -----

"Thompson, Thomas W." <ttt@cpuc.ca.gov> 06/12/2001 10:00 AM

To: "'susan_j_mara@enron.com'" <susan_j_mara@enron.com> cc: Subject: Kent Wheatland Memorial Award

Sue - I'm Tom Thompson. Kent was a long-time friend, a fishing buddy, and a bad golf mate (but lots of fun). When Gary Ackerman announced at services for Kent the creation of the award, I was deeply touched and impressed. My good friend Jeff Dasovich told me this weekend that you received the very first award, and well, I must say I became a bit teary-eyed.

You probably don't know me, but I've seen you at Commission meetings and have heard your name over the recent years. My other fishing friend, Bill Sandoval, who was also at the services, says whomever received this award "must be a real tiger" and we need more people like that in California. I am happy that Kent's memorial award will go to someone so deserving. --- Tom Thompson

Message 602 of 1299

RE: Assignment for Thursday

Sender	cvavrek@deloitte.com
Recipients	['Anil Sama; Vavrek', 'Carolyn (US - San Francisco)';, 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4561.

i think there is no prep 4 thurs those other asgnts were dropped hope u had fun in mexico thanks 4 the files - cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, April 04, 2001 10:27 AM To: Jeff.Dasovich@enron.com Cc: Anil Sama; Vavrek, Carolyn (US - San Francisco); Jeff.Dasovich@enron.com; Jeff_Dasovich@enron.com; Mark Guinney Subject: Assignment for Thursday

Greetings:

Are we supposed to do the reading and the Oracle and Legal Services cases for Thursday? Syllabus says yes, but I gather from Tasker's Izio not that we'll be in the computer center all class doing modeling. (I'd email her, but she doesn't get my emails apparently.) Anyone have a clue?

Best, Jeff

This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

Message 603 of 1299

FW: CSO - High Tech Recruiting Activities and last reminder to

Sender	jeff.dasovich@enron.com
Recipients	['psellers@pacbell.net']
File	dasovich-j/sent_items/92.

FYI.

-----Original Message-----

From: Rich Wong [mailto:rwong@Haas.Berkeley.EDU] Sent: Monday, September 17, 2001 1:10 PM To: mba02@haas.berkeley.edu; mfe02@haas.berkeley.edu; eveningmba@haas.berkeley.edu; hcchtft@haas.berkeley.edu Subject: CSO - High Tech Recruiting Activities and last reminder to subscribe

Following are upcoming high tech recruiting activities for graduating students. After today, these messages will only be sent through the hcchtft distribution list, so if you are interested, please subscribe through majordomo. If you have already subscribed, you should be receiving today's message twice.

Resume Drops due tonight at midnight (note description in BearTracks of revised process vs.last year): Microsoft (10/15 interviews) Intel Finance (10/16 interviews)

Presentations (please sign-up on BearTracks) Siebel Systems (9/25 at 12:30pm) Inktomi (9/28 at 12:30pm)

Brown-Bag Workshops Entrepreneurial/Start-up 2nd year panel (9/20 at 12:30pm, sign-ups are full but feel free to show up and we will accomodate who we can from no-shows and a few extra chairs)

Rich

Rich Wong Account Manager, Technology MBA Recruiting Haas School of Business Career Center 545 Student Services Building #1900 Berkeley, CA 94720-1900 ph: 510-643-4211 fax: 510-643-5257 email:rwong@haas.berkeley.edu

Message 604 of 1299

RE: _____	
Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com']
File	dasovich-j/sent_items/309.

I'll forward to them.

-----Original Message-----

From: Mara, Susan Sent: Thursday, September 27, 2001 10:05 AM To: Dasovich, Jeff Subject: FW: _____

Does someone at the Chamber want to see this? -----Original Message----- From: Dan Douglass [mailto:douglass@earthlink.net] Sent: Thursday, September 27, 2001 1:16 AM To: ARM; Gary Ackerman; Vicki Sandler; Anderson, Robert; Max Bulk; John Yurkanin; Steve Huhman; Mike Day; Paul Fenn Subject: _____

Attached for your review and comment is a revised draft of the application for rehearing to be filed on Friday the 28th. There are two primary changes. The California Chamber of Commerce has been added to the application and an argument has been added that the Decision contradicts the most recent legislative intent expressed in ABX2 9 that direct access continue, at least for aggregation and community choice purposes.

Any and all comments will be very much appreciated. Also, I would appreciate it if Sue Mara would forward the document to her contact at the Chamber so that they can also review the draft. Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 605 of 1299

Re: Meeting 8AM Central Monday	
Sender	james.steffes@enron.com
Recipients	['don.black@enron.com', 'scott.stoness@enron.com', 'harry.kingerski@enron.com', 'jbennett@gmssr.com']
File	dasovich-j/all_documents/11082.

Scott --

Can your assistant get a call in # for those in CA?

Jim

Scott Stoness@EES 04/13/2001 12:00 PM To: Harry Kingerski/NA/Enron@Enron, Don Black/HOU/EES@EES, James D Steffes/NA/Enron@ENRON, jbenett@gmssr.com@ENRON, Tamara Johnson/HOU/EES@EES, Jeff Dasovich/Na/Enron@ENRON, James W Lewis/HOU/EES@EES, Leslie Lawner/HOU/EES@EES, Leslie Lawner/HOU/EES@EES cc:

Subject: Meeting 8AM Central Monday

We have agreed on a strategy, subject to Whaley/Delaney approval, to: Scott Stoness submit testimony today advocating 2 part real time pricing in CA Read other parties testimony this weekend from the perspective "Has somebody filed testimony close enough to Stoness testimony, that we can cross examine and brief to a favorable outcome?" Meet on Monday at 8AM to decide whether to rescind Stoness's testimony.

The following dial in number and code corresponds to the Monday 8AM Central Time meeting. 1 800 713 8600 68266 is PIN Scott Stoness is host

Action Items: All on To list above read and have opinion on 2 and 3 above All on To list above meet on Monday at 8AM. Meet in Stoness office if possible. Harry and Jeane polish Stoness testimony and wait to the last minute before submitting it Jeane ensure all on this To list get a copy of testimony, emailed as soon as she gets it.

Scott Stoness

Message 606 of 1299

IMPORTANT MEETING NOTICE REMINDER/DISCUSSION TOPICS

Sender	dhunter@smithandkempston.com
Recipients	['athomas@newenergy.com', 'cohnnap@sce.com', 'alippin@mail.arco.com']
File	dasovich-j/all_documents/3960.

California Energy Solutions Group 980 Ninth Street, Suite 1560 Sacramento, CA 95814 (916) 446-5508 v (916) 446-1499 dhunter@smithandkempston.com

The California Energy Solutions Group will be meeting as scheduled on:

Friday, December 1, 2000 9:00 am to 12:30 pm California Chamber of Commerce 1215 K Street, 14th Floor

Enclosed for discussion at Friday's meeting are the following documents:

1. Summary of our Annual Retreat 2. CA ISO Generation Projections and CEC Projections 3. Comprehensive Whitepaper developed by the CA Large Energy Consumers Association for engendering discussion on the major issues 4. Governor's Options Paper 5. PG&E Rate Stabilization Plan 6. SCE Rate Stabilization Plan 7. Proposed initiative by Harvey Rosenfeld (outline and press release) 8. Joskow/Kahn Paper on Energy Markets

We hope that everyone can attend this very important meeting. Please contact our office if you have any questions, need further details or would like to add anything to the agenda.

Thank you, Delaney

- CLECA proposal.doc - PGE Rate Stabilize Plan Nov 2000.doc - SCE Rate Stabilization Plan Nov 2000.doc - Governor's options points.doc - Harvey Rosenfeld proposed initiative.htm - ISO Projections.doc - CEC Staff Report - Summer 2001.pdf - Joskow Kahn Paper 11_21.pdf - Summary memo.doc

Message 607 of 1299

New Issue of CMR

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['mba01@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/notes_inbox/5638.

Complimentary copies of the recently published Special Issue of the California? Management Review, the Haas School of Business's management journal, are now available for Haas students in the student lounges and program offices.?

The contents of this Special Issue on Health Care are:

"The Business of Health Care Concerns Us All:An Introduction"Sara L. Beckman and Michael L. Katz "Deregulation and Regulatory Backlash in Health Care"James C. Robinson "In Loco Parentis?The Purchaser Role in Managed Care"Linda Bergthold, Suzanne Olson Koebler, and Sara J. Singer "Structural Problems of Managed Care in Californiaand Some Options for Ameliorating Them"Sara J. Singer and Alain C. Enthoven "Managing Organizational Transformations:Lessons from the Veterans Health Administration"Gary J. Young "Structural and Organizational Issues In Patient Safety:A Comparison of Health Care to Other High-Hazard Industries"David M. Gaba "The President and the Power of the Purchaser:Consumer Protection and Managed Care in the United State"sDaniel P. Gitterman

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California Management Review University of California F501 Haas School of Business #1900 Berkeley, CA 94720-1900
phone: (510) 642-7159 fax: (510) 642-1318 e-mail: cmr@haas.berkeley.edu web site: <http://www.haas.berkeley.edu/cmr/>

Message 608 of 1299

Re: E204 - Group assignment

Sender	cvavrek@dtus.com
Recipients	['shawne@harmony.com', 'jeff_dasovich@enron.com', 'bukowski@haas.berkeley.edu', 'mccullou@haas.berkeley.edu']
File	dasovich-j/mba__quant/23.

HI E204 team -

As we (minus Jeff) discussed last night, we won't meet this w-end since Shawne and Pat have their Public Policy presentation on Tuesday. However, we should all probably read through the problems and be prepared to meet to discuss sometime next week. I will be at Haas on Wednesday night manning a table at the s-t-s job fair. How does next Wednesday in Berkeley sound?

We should probably also carve some time out next weekend to meet. I know I am completely booked Sat all day (California AIDS ride crew training). I can meet on Sunday or Sat after 5pm.

What does everyone else's schedule look like on Wednesday night and next weekend?

I'm hoping this is all quick and painless!

Thanks, Carolyn

Reply Separator

Subject: E204 - Group assignment Author: shawne@harmony.com at Internet-USA Date: 3/31/2000 2:17 PM

Dr. McCullough,

I just wanted to inform that the following people will be a group for the group assignment: Pat Bukowski, Jeff Dasovich, Carolyn Vavrek and myself.

Regards,

-- Shawne

Shawne D. Robinson Tools Development Lead

650-696-9594 (tel) 650-696-9599 (fax) shawne@harmony.com

Harmony Software 107 South B Street, San Mateo, CA 94401-3908 www.harmony.com

Message 609 of 1299

Re: Well...

Sender	jeff.dasovich@enron.com
Recipients	['nancy.sellers@robertmondavi.com', 'jeff_dasovich@enron.com', 'psellers@pacbell.net', 'psellers@haas.berkeley...]
File	dasovich-j/all_documents/13254.

Puh-leez. We did the plastic and the rocks to avoid weeding. How can there be any weeding? Unfortunately we can't stop by on the way up, but likely on the way back, which may be Saturday night. If so, do you guys want to play golf on Sunday morning? (Prentice is leaving with her pals today, and I'm heading up sometime tomorrow.)

Dinner was exactly \$50/person. Thanks for bringing the wine----my shirt loved it.

Best, Jeff

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> 05/31/2001 09:20 AM

To: "Jeff Dasovich" <Jeff_Dasovich@enron.com>, "Prentice @ Berkeley" <PSellers@haas.berkeley.edu>, Prentice Sellers <PSellers@pacbell.net> cc: Subject: Well...

Just in from watering the west 40. I think this is going to be our best year ever - lookin' good, lookin' good. However, there is some serious weeding that someone needs to do!!!

I am presuming you guys are stopping in Napa before your dome trek (which is why I thought I could give you a check immediately!). Is that the case? If so, I hope you can join us in a nummy little repast! If not, I will put a check in the mail when you let me know the amount. Unlike some, I always carry my checkbook with me!

Those were incredibly beautiful knives that you guys gave Cameron!

Nancy (707) 251-4870 (phone) (707) 265-5446 (fax) "Plus je bois, mieux je chante"

Message 610 of 1299

[Fwd: Applic/Reh - - - DA]

Sender	drothrock@cmta.net
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/1547.

----- Original Message -----

Subject: Applic/Reh - - - DA Date: Fri, 28 Sep 2001 09:57:42 -0400 From: "Keith McCrea" <KMCCREA@sablaw.com> To: <atrowbridge@dbsr.com>, <dcarroll@dbsr.com>, <pstohr@dbsr.com>, <brbarkovich@earthlink.net> CC: <drothrock@cmta.net>

Attached is the draft applic/reh which incorporates Phil's additions. I have not yet added the CIU name etc to the pleading only because I wanted to hear from Barbara if CLECA wants to join in. Barbara - - - we have not put a lot of effort into this simply because we didnt think it was worth it. This is intended to at least keep our options open for the time being. This is

due on Mon so I have to send it out today. Because I have to leave early I would like to hear from you by 11:00 am your time if CLECA wants to add its name.

Keith R. McCrea Sutherland Asbill & Brennan, LLP 1275 Pennsylvania Avenue, NW Washington, DC 20004 202.383.0705
Direct Dial 202.637.3593 Fax

The information contained in this message from Sutherland Asbill & Brennan LLP and any attachments is confidential and intended only for the named recipient(s). If you have received this message in error, you are prohibited from copying, distributing or using the information. Please contact the sender immediately by return email and delete the original message.

Message 611 of 1299

DISCOUNT ON FINANCIAL REPORTING CONFERENCE

Sender	haugh@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu']
File	dasovich-j/mba_program/47.

To: Evening MBA Students

From: Nils Hakansson, Program Chair

The Center for Financial Reporting and Management in the Haas School is hosting its Tenth Annual Conference on Financial Reporting at the San Francisco Marriott Hotel on Friday, November 5.

As a special offer to Evening MBA Program students, we are offering a seat to each student at the discounted price of \$145 per seat. This can be used by you or by a person in your firm whom you wish to designate.

A copy of the program is attached. If you or an associate wish to attend, please send an e-mail to Dayna Haugh at haugh@haas.berkeley.edu and request a brochure with registration form. She will leave a brochure in your box. Please fill out the registration form, endorse it with "EVENING PROGRAM", and return it with the \$145 fee to the Center for Financial Reporting and Management in the School. The CFRM office is located in room 502D Faculty building, or you can leave it in Dayna Haugh's mailbox #50 in the student services building mailroom.

If you have questions, you can contact Dayna Haugh at 642-6334.

- Tenth Conference Program

Dayna Haugh Center Manager Center for Financial Reporting and Management Haas School of Business University of California 502D Faculty Building, #1900 Berkeley, CA 94720-1900

510-642-6334 (Phone) 510-643-7218 (Fax) <http://www.haas.berkeley.edu/accounting>

Message 612 of 1299

2002 Budget

Sender	susan.mara@enron.com
Recipients	['paul.kaufman@enron.com', 'alan.comnes@enron.com', 'joseph.alamo@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/29367.

Here it is. To explain, I left the sheet you saw previously as Sheet 1. Sheet 2 is the new employee and business expense budget. It shows expenditures through 7/09/01 in the first column, our 2001 budget in the second column, and a proposed 2002 budget in the third column. Some of the expenditures are kind of kooky -- because of miscoding or other reasons.

For example, payments to IEP appear under "Employee Pers --Other" and "Outside Serv - Prof". There are many examples of kooky things -- so don't worry about it.

We ended up getting charged for things this year that we didn't put in our budget, such as AT&T calling cards and Edith's time -- so I've tried to include all the items -- even if I put them in another category (for example, I don't use the category "EIS Allocation" in our budget). I included those wacky categories that we don't use in our budget at the bottom of column 1 just to get the correct total for the year to date.

Sheet 3 is outside expenses such as contributions, retainers and memberships. Column 1 shows our 2001 budget and column 3 shows our projected 2002 budget. I added some dollars to the retainers to cover some minimal expenses that we get charged. Other than that, it's pretty much what we discussed last week.

Have fun, Paul! Call with any questions.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 613 of 1299

Re: In case you haven't heard about the likely CPUC delay and PX

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com']
File	dasovich-j/sent/11834.

Congratz. Do we know for how long a decision will be delayed?

Best, Jeff

Susan J Mara 07/02/2001 04:29 PM

To: Andrew Wu/HOU/EES@EES, Angela Schwarz/HOU/EES@EES, Carol St Clair/Enron@EnronXGate, Dan Leff/HOU/EES@EES, David W Delaine/HOU/EES@EES, Don Black/HOU/EES@EES, Elizabeth Sager/Enron@EnronXGate, Evan Hughes/HOU/EES@EES, Gayle Muench/ENRON@enronXgate, Harry Kingerski/NA/Enron@Enron, James E Keller/HOU/EES@EES, Janet R Dietrich/HOU/EES@EES, Jeff Dasovich/NA/Enron@Enron, Jeff Richter/Enron@EnronXGate, James D Steffes/NA/Enron@Enron, Marty Sunde/HOU/EES@EES, Michael Mann/HOU/EES@EES, Mike D Smith/HOU/EES@EES, Peggy Mahoney/HOU/EES@EES, Robert C Williams/Enron@EnronXGate, Scott Gahn/HOU/EES@EES, Sean A Holmes/HOU/EES@EES, Tim Belden/Enron@EnronXGate, Tom Riley/Western Region/The Bentley Company@Exchange, Travis McCullough/Enron@EnronXGate, James D Steffes/NA/Enron@Enron, Mark Palmer/Corp/Enron@ENRON, Karen Denne/Corp/Enron@ENRON, Vicki Sharp/HOU/EES@EES, Michael Tribolet/ENRON@enronXgate cc: Subject: In case you haven't heard about the likely CPUC delay and PX Credit off the table

We're hearing the vote will be delayed until July 12 -- no final confirmation yet. And now BOTH draft decisions have been modified to defer action on the PX Credit issue. A major victory on that issue.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 614 of 1299

Agenda - Government Affairs/The Americas Meetings, March 8th & 9th,

Sender	linda.noske@enron.com
Recipients	['margaret.carson@enron.com', 'cruane@quinngillespie.com', 'donna.lowry@enron.com', 'robert.bruce@enron.com', ...]
File	dasovich-j/all_documents/9734.

First and most important, for those of you that have room reservations at The Woodlands Resort and Conference Center, if you have any changes that need to be made or have decided NOT to stay, I need to know immediately so that we can cancel and are not charged for those rooms. Please call me directly and do not contact The Woodlands Resort. Please see the "revised" Agenda and review the Rooming List for accuracy and advise of any corrections at this time.

Gerianne Warner and I will be out at the Woodlands for the March 9th meeting only. We will be in the office on Thursday if anyone needs assistance. Please have your presentation to me by Thursday for those of you who are giving presentations. If we need to make copies of your presentation, please advise as well. Eric Benson will be present for the March 8th meeting. Again, the location of the meeting will be: The Woodlands Resort 2301 North Millbend Drive The Woodlands, TX 77380 Phone# 281-367-1100 Fax# 281-364-6274 Check-In time is 3:00pm Check-Out time is 12:00pm

The Woodlands Resort provides transportation service to and from the airport on a scheduled basis from 6:00am - 10:00pm at a cost of \$32.00 per person, per trip. Reservations must be made a minimum of 24 hours in advance for both arrivals and departures. If you have an interest in using this service, please call the resort directly. MAP:

Message 615 of 1299

Re:First Write-Up due for Financial Information Analysis

Sender	mark.guinney@watsonwyatt.com
Recipients	['chin@haas.berkeley.edu', 'anil.sama@intel.com', 'guinney@haas.berkeley.edu']
File	dasovich-j/notes_inbox/5554.

Team,

I've started the project and am still trying to figure out exactly what our dear prof. is looking for. My guess is that the assignment is a review how the ROA ratios would change or have changed when one takes into account various one-off charges, restructurings, accounting changes, and off-balance sheet items. I'm in LA tomorrow and will send you all my work tomorrow night. I suggest that everyone take a crack at reviewing the data and coming with your own insights. One person should be responsible for bringing it all together. Any volunteers?

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator
Subject: First Write-Up due for Financial Information Analysis
Author: "Sama; Anil" <SMTP:anil.sama@intel.com> Date: 01/31/2001 12:35 AM

Hey Guys,

Just sat down to read about the first write up that is due this Thursday, and realized that this is supposed to be a group assignment!! Ooops - I had no idea... Did you ;-) Anyone read the case and/or taken a crack at it? Should we try and co-ordinate a conference call?

Carolyn is out for the week and excused from the assignment - just had a baby girl last Fri!! Jeff, did you hear from teacher if OK to join ?

-Anil

Message 616 of 1299

July 6th EMBA Happy Hour

Sender	owner-evmba_social@haas.berkeley.edu
Recipients	['pey_ning@yahoo.com', 'admittedf01evmba@haas.berkeley.edu', 'llien@resonate.com', 'ben@woodward.ucsf.edu', 'e...']
File	dasovich-j/all_documents/28250.

Hello fellow HAAS classmates and friends,

It's time for Happy Hour of the Month again!! This time it's going to take place in Mountain View. For all you South Bay people, it's only less than 15 min drive from the heart of Silicon Valley. There isn't any excuse for you not to show up and hang with your classmates. For the SF crowd, it's a quick 45 minute trip down Hwy 280, or better yet, ride the CalTrain down to Castro station. All of our activities for the night are within 2 blks from CalTrain station. For the East Bay group, be patient, the next one is in your neighborhood.

Here is the lineup for July 6th:

5:30pm - 8:00pm Pockets Billiards/Bar 251 Castro St. 8:00pm - 10:00pm Dinner Break (See below for restaurant recommendations) 10:00pm - ?? Molly McGee's 241 Castro St.

Dinner options: Since downtown MV used to be my neighborhood, I have tried out most of the restaurants in the area. All these restaurants are highly recommended and within 1 blk vicinity from Pockets. If you want something else, talk to me! There are more choices. Italian: Don Giovanni <http://www.dongiovanni.com/> Chinese: Hunan Gourmet <http://www.waiter.com/hunan/> Japanese: Tomi Sushi 650-968-3227

Since a number of faces are new, check with Pockets' front desk and ask for the "HAAS Group". Otherwise, call me on my cell phone at 650-996-2947 if can't find us.

See you all on Friday! Tony Tai and Cindy Best

Message 617 of 1299

Request for Assistance in Updating California RED Index

Sender	n.etkin@verizon.net
Recipients	['jdasovic@enron.com', 'counihan@greenmountain.com']
File	dasovich-j/all_documents/13455.

Dear Rick and Jeff: I'm the Project Director for the CAEM RED Index and Ken Malloy suggested I send this request to you. We have contacted the CPUC for their response to our survey update, but their press of business results in no response from them to us. The dramatic changes in California from December 2000 to June 2001 makes it imperative that we have some intelligence on updating the individual attributes. Based on the attached PDF file description of the attributes and the Word document table of characterizations which shows year end 2000 and a blank for May 2001, could you help me by filling in those blanks based on your knowledge of state legislation, CPUC orders or anything else official that has changed the way they implement their electric restructuring plan? I don't expect an answer to the seven survey questions, but feel free to provide your response just for my education.

I've sent this request to Commissioner Bilas, who works with Ken, but he couldn't offer any assistance, so I'm relying on the industry to fill in the blanks. If you have any other suggestions of who might be able to respond to this information, it would be greatly appreciated. Thanks for your help.

Nancy Etkin RED Index Project Director Center for the Advancement of Energy Markets E-mail netkin@caem.org Voice (703) 532-6887 Fax (208) 361-0785

- Attributes for 2001 RED Index1.PDF - California survey response.doc

Message 618 of 1299

Conference Discount for Evening MBAs

Sender	tj@haas.berkeley.edu
Recipients	['eveningmba@haas.berkeley.edu', 'haugh@haas.berkeley.edu', 'veit@haas.berkeley.edu']
File	dasovich-j/deleted_items/308.

Dear Evening MBA Students: The Center for Financial Reporting and Management in the Haas School is hosting a conference: Business Combinations and Goodwill--What the New FASB Rulings Mean to You on Friday, Sept. 7, 2001 at the San Francisco Airport Marriott Hotel. As a special offer to Evening MBA Program students, we are offering one seat to each student at the discounted price of \$100 per seat. This can be used by you or by a person in your firm whom you wish to designate. A copy of the program is attached. If you or an associate wish to attend, please register on-line at: <http://www.haas.berkeley.edu/accounting/cfrm/registration.htm> . When filling out the registration form, please write: "EVENING PROGRAM" in the "additional registrants" space on the form. Dayna will contact you regarding payment after August 23 when she returns from vacation. If you prefer to pay by check, you may print the registration form and mail it or leave it in Dayna Haugh's mailbox in the student services building mailroom with a check. If you have questions, you can contact Dayna Haugh at 642-6334. Dayna Haugh Assistant Director Center for Financial Reporting and Management Haas School of Business University of California 502D Faculty Building, #1900 Berkeley, CA 94720-1900 510-642-6334 (Phone) 510-643-7218 (Fax) <http://www.haas.berkeley.edu/accounting/cfrm/cfrm.htm>

Message 619 of 1299

Reporting on CPUC Ability to Change Direct Access Rules

Sender	susan.mara@enron.com
Recipients	['paul.kaufman@enron.com', 'richard.shapiro@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/11555.

As we discussed in our special call last week, I asked Brian Cragg from Goodin McBride to look into the issue of what, if anything, the CPUC can do in lieu of suspending direct access.

ABX 1 says the CPUC "shall suspend" DA, but does not give any time line for doing so, nor any criteria to use in making the determination to suspend it. This gives the CPUC ample ability to delay suspending DA, especially while bills affecting DA are in play in Sacramento. The President could have her own investigation or propose her own solutions -- all the while delaying the suspension. Brian also thought she could possibly put her own DA plan in place -- although he said it was a "stretch." Brian said she could, for example, argue that limiting DA to the net short position was a way of implementing ABX 1. He felt that adding an exit fee as well was, however, stretching the concept a bit too far. Nonetheless, limiting DA to a net short position could be argued to be within her existing authority under the law. She could also institute an "open season" through some defined date, such as Jan 1, 2002, and suspend DA thereafter.

She could take this action subject to the passage of superceding legislation -- which, of course, could either kill DA altogether or implement some combination of exit fee/DA open season/DA limitation.

Let's discuss strategy on our next call.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 620 of 1299

Re: 98 Answers

Sender	leonard@haas.berkeley.edu
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/mba_program/59.

Jeff, Thanks for your comments. I guess that explains why you're at Enron rather than PG&E. By the way, if you have not already met, I am sure you would enjoy talking about energy markets with Professor Severin Borenstein, the Director of UC's Energy Institute.

At 03:23 PM 9/28/99 +0000, you wrote:

furthering our discussion from the break yesterday evening, and for what it's worth to add another data point, i'd like to pass along my view that 1) the course is extremely challenging, 2) the course is extremely interesting, informative, pertinent and useful, 3) the course is extremely well organized, and 4) the course's level of difficulty and demands are consistent with the requirements of a top-notch graduate professional program. in addition, it

is

my view that the "amount" of questions given in the problem sets, and the level of difficulty of the problems, while quite significant, is appropriate and offers individuals the opportunity to choose to do some or all of the problems. finally, i am indifferent to the frequency with which any particular individual speaks during class, as long as the questions, comments, discussion, etc. do not detract from accomplishing the objectives during any given lecture.

Jonathan Leonard Professor

tel: 510-642-7048 545 Student Services Building, #1900 fax: 510-642-4700 Haas School of Business University of California Berkeley, CA. 94720-1900

Message 621 of 1299

An Invitation to Attend Financial Reporting Conference

Sender	haugh@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/inbox/237.

Dear Evening MBA Students:

The Center for Financial Reporting and Management in the Haas School is hosting it Twelfth Annual Conference on Financial Reporting on Monday, November 5, 2001 at the San Francisco Marriott Hotel, 55 Fourth Street.

As a special offer to Evening MBA Program students, we are offering one seat to each student at the discounted price of \$145 per seat. This can be used by you or by a person in your firm whom you wish to designate.

A copy of the program is attached. If you or an associate wish to attend, please register on-line at:

<<http://www.haas.berkeley.edu/accounting/cfrm/registration.htm>> . When filling out the registration form, please write:

"EVENING PROGRAM" in the "additional registrants" space on the form. I will contact you regarding payment. If you prefer to pay by check, you may print the registration form and mail it or leave it in Dayna Haugh's mailbox in the student services building mailroom with a check.

If you have questions, feel free to contact me at 642-6334. We hope you or one of your colleagues will be able to attend.

Dayna Haugh Assistant Director Center for Financial Reporting and Management Haas School of Business University of California 502D Faculty Building, #1900 Berkeley, CA 94720-1900

510-642-6334 (Phone) 510-643-7218 (Fax)

<<http://www.haas.berkeley.edu/accounting/cfrm/cfrm.htm>>:<http://www.haas.berkeley.edu/accounting/cfrm/cfrm>.

<<http://www.haas.berkeley.edu/accounting/cfrm/cfrm.htm>>

Message 622 of 1299

Re: Brazil opportunity-completed one-pager

Sender	mail@joesdesk.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/12643.

Jeff:

Thanks for your attention on this matter. I am leaving for China tomorrow (Saturday 6/9) and will return on Saturday 6/16. I am confirmed to depart for Sao Paulo on 6/19. Is there a phone # I can reach Joe Kaischkill on? If so, I would contact him when I get settled in in Shanghai. On the contrary, I can be reached on Monday 6/18 in my office in Miami at 305-443-6665 or on my mobile 305-773-0319.

Thanks again for your help.

Best regards, Joe Alcantara

On Fri, 08 June 2001, Jeff.Dasovich@enron.com wrote:

Joe: You can expect a call from Joe Kaischkill about setting up a meeting in Sao Paolo to discuss your proposal. Let me know if there's anything else that I can do to help. All the best, Jeff mail@joesdesk .com To: Jeff.Dasovich@enron.com, Jeff.Dasovich@enron.com 06/04/2001 cc: 03:30 PM Subject: Brazil

opportunity-completed

one-pager Jeff: I did a final draft of the one-pager I sent you earlier. I am attaching it here as it communicates the idea better. Please send along to whomever you feel should receive it and let me know when I can contact who & when. I will be traveling on Friday am for 1 week. Thank you. Joe Alcantara (See attached file: DearJeffreyIII.doc)

Message 623 of 1299

E-Biz Executive Seminar Series

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	['faculty@haas.berkeley.edu', 'joe@haas.berkeley.edu', 'allphds@haas.berkeley.edu', 'beer@haas.berkeley.edu']
File	dasovich-j/all_documents/3056.

FISHER CENTER FOR THE STRATEGIC USE OF INFORMATION TECHNOLOGY Haas School of Business is pleased to present in its E-Biz Executive Seminar Series

Stuck in the Bozo Filter Reputation management -- How startups can escape fuzzy branding and bad media relations

Tom Gable Chairman and CEO, The Gable Group

Friday, November 17, 2000, 5:00 p.m. Wells Fargo Room, Haas School of Business

ABSTRACT

Startups can't cross the chasm or ride the tornado weighted down with fuzzy branding and bad media relations. There is no denying the power of good public relations to launch a company from the ground up, build the brand and support a company's business and marketing plans over time. But in today's fast-moving economy, clutter abounds. News about a company is often ignored if it doesn't have a big number attached to it, tell a bigger story or have a unique twist. Editors and writers filter out pitches and releases that sound alike. How to break through the clutter? In this talk, we will review the nine easy ways to kill a startup with PR, see "worst of PR" examples the media hate and learn a few secrets of proper

positioning -- methods companies have used to make a difference with intelligence and personality.

***** Serena Joe, Program Assistant Institute of Management,
Innovation and Organization Room 402 Haas School of Business #1930 Berkeley, CA 94720-1930 Tel #: (510) 643-4096
Fax #: (510) 642-2826

Message 624 of 1299

This Saturday--FORD TAILGATE in HAAS COURTYARD

Sender	rowe@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/deleted_items/1843.

Join Ford Motor Company for an informal pre-game BBQ this Saturday, September 8. Come meet representatives from diverse functions including IT, Finance, Manufacturing Leadership and Engineering and see select products from our stable of automotive brands: Ford, Lincoln, Mercury, Mazda, Volvo, Jaguar, Land Rover and Austin Martin. With our new offices for the Premier Automotive Group in Irvine, California and our numerous e-business and joint venture initiatives, our opportunities continue to grow throughout the country and the world as we expand in emerging markets such as China, India, Russia and Southeast Asia.

This is a casual event to kick-off the 2001-2002 academic year and celebrate the continued close relationship between the Haas School of Business and Ford Motor Company, so stop by, see some cars and grab some food & drink.

Time: Noon, prior to the 2:30 kick-off Location: Haas Courtyard

If you are unable to attend and would like to learn more about opportunities at Ford Motor Company, please visit us on the web at www.mycareer.ford.com or feel free to contact me directly (Matt Field, Haas MBA00 - contact details below).

Best wishes for an enjoyable year, Matt

***** Matthew Field Retail Transactions Analyst Marketing & Sales Controller's Office Ford Motor Company

phone: (313) 594 - 6673 e-mail: mfield3@ford.com fax: (313) 594-6859

Regent Court, Suite 8N455 16800 Executive Plaza Drive Dearborn, MI 48126-4207

Message 625 of 1299

Welcome to Traffic School To Go!

Sender	help@trafficschooltogo.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/164.

Nov 7, 1999 12:48 PM

Jeffrey Dasovich,

Your registration for the Traffic School To Go program has been recorded. We hope that everything is clear and that you will have no problem successfully completing the program but if you need help, please reply to this Email with your questions or phone toll free - (888) 349-8425.

Remember, this is EXACTLY how you will need to re-enter your information when logging back in to the program:

license state = California license number= N7889351

To log into the course, visit the following URL: <http://www.trafficschooltogo.com/students/>

If you find you have made an error in entering your license information, use the incorrect information to log in. Once logged in, you will have the option of correcting the error by hitting the "Personal Information" button on your "Student Control Panel" at the bottom of any page. Thereafter, the corrected license information will log you in.

Oh, and just to confirm, we have the following mailing address information for you:

366 Dolores St., #3 San Francisco, CA 94110

If this is incorrect, use your "Personal Information" button to fix it. In fact, please be sure to double-check (and change if necessary) all of your "Personal Information" sometime before you finish so that we can reach you if there's a problem or so that your certificate does not go astray due to a typo in your mailing address. Thanks.

Sincerely,

Peggy Goldman Traffic School To Go <http://www.trafficschooltogo.com> (888) 349-8425

Message 626 of 1299

WPTF WestConnect Protest

Sender	douglass@earthlink.net
Recipients	['blood.peter@enron.com', 'glenn.martin@enron.com', 'schleimer.steve@enron.com']
File	dasovich-j/inbox/1652.

Attached for your review and comment is a first draft of the WPTF motion to intervene and protest the WestConnect filing. The major points made in it are as follows: ? The Commission should convene a technical conference to deals with areas in the WestConnect filing that require further clarification, such as congestion management. Moreover, the analysis of congestion management issues must focus on the equitable allocation of transmission rights;

? The Commission should require WestConnect to establish an independent board, with an accompanying stakeholder process that complies with commission precedent;

? All load should be required to take service under the WestConnect tariff;

? Interconnection issues should be deferred until completion of the Commission's generic proceeding on this topic; and

? Since a for-profit Transco has an inherent incentive to maximize transmission revenue, there are certain RTO functions that an entity such as WestConnect should not perform.

I am indebted to Karen Shea of Dynegy and Glenn Martin of Mirant for their very helpful assistance. Our draft also draws upon concepts contained in the EPSA filing that Gary Ackerman provided. The filing is due at FERC on Thursday the 15th. I therefore need any comments from you no later than early that morning. Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com

Message 627 of 1299

Re: FW: CA Gas Infrastructure Meeting

Sender	joseph.alamo@enron.com
Recipients	['scott.sullivan@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11671.

Scott,

Apologies on behalf of Jeff re: not responding to you to date; I have been assured, however, that you will hear from him as soon as he can "get his head above water"! I know that he has been extremely busy preparing for travel to and meetings in Houston next week, and we both appreciate your patience.

Jeff will respond to your inquiry as soon as possible.

Thanks again for your understanding,

Joseph Alamo Sr. Admin. Assistant Government Affairs - The Americas San Francisco CA

From: Scott Sullivan/Western Region/The Bentley Company@Exchange on 04/26/2001 12:09 PM CDT To: Joseph Alamo/NA/Enron@Enron cc:

Subject: FW: CA Gas Infrastructure Meeting

-----Original Message-----

From: "Hunter, Christopher [JJCUS]" <CHUNTER@CORUS.JNJ.com>@ENRON@EES Sent: Wednesday, April 25, 2001 1:18 PM To: "Sullivan.Scott" <Scott_Sullivan@enron.com> Subject: FW: CA Gas Infrastructure Meeting Importance: High

Any update from your Government Affairs folks yet? Chris Hunter Johnson & Johnson Worldwide Engineering Services <http://jjw.jjcus.jnj.com/wweshp> (732 524.2347 -----Original Message----- From: Hunter, Christopher [JJCUS] Sent: Thursday, April 19, 2001 1:24 PM To: 'Sullivan.Scott' Subject: CA Gas Infrastructure Meeting Importance: High Scott- Did you attend the CA Natural Gas Infrastructure meeting on Tuesday? Can you provide a summary of the items addressed? Chris Hunter Johnson & Johnson Worldwide Engineering Services <http://jjw.jjcus.jnj.com/wweshp> (732 524.2347

Message 628 of 1299

November Entrepreneurs Forum

Sender	tibbetts@haas.berkeley.edu
Recipients	['lester@haas.berkeley.edu']
File	dasovich-j/mba_program/23.

=>=>=>UC Berkeley Entrepreneurs Forum<=<=<=<

*****Thursday, November 18, 1999*****

6:30 - 8:30 PM - Haas School of Business - Andersen Auditorium

Topic: Angels in the Infield: Start-up Financing for Entrepreneurs

Panel: Bob Bozeman, Nat Goldhaber, Bob Leppo, Erickson Shirley

This panel of currently investing angels will discuss what types of ventures they are backing and how they choose their deals.

There are special rates for faculty and staff and a reduced fee of \$5 for students currently enrolled at any Cal school or college. Pre-registration is encouraged. You may sign up in room F449 weekdays 9-12 AM and 1-4 PM or by e-mail to lester@haas.berkeley.edu. Remember to include your school or department and -for students- your year of graduation.

Preregistration for students closes at 5PM on Tuesday, November 16, or earlier if it is sold out. NOTE: THIS IS A DAY EARLIER THAN USUAL. WE EXPECT THIS PROGRAM TO SELL OUT. REMEMBER TO PRE-REGISTER.

Faculty and staff are encouraged to register by e-mail. Students can register by e-mail and then either pay at the door or at Room F449. IF THIS PROGRAM SELLS OUT, STUDENTS WILL BE ASKED TO CONFIRM THEIR ATTENDANCE BY PREPAYING AT ROOM F449.

For more information on the series, see <<<http://www.haas.berkeley.edu/~lester/bef.html>>> On this program, see <<<http://www.haas.berkeley.edu/~lester/nov99.html>>> -- Stephanie J. Tibbetts Program Coordinator Lester Center for Entrepreneurship & Innovation Haas School of Business #1930 Berkeley CA 94720-1930 510-642-4255 Fax 510-642-2826

Message 629 of 1299

FW: Calif. Governor Davis Hosting Conference Call Today at 4 pm E

Sender	jeff.dasovich@enron.com
Recipients	[]
File	dasovich-j/all_documents/28396.

----- Forwarded by Jeff Dasovich/NA/Enron on 07/06/2001 06:00 PM -----

Maureen McVicker 07/06/2001 04:11 PM

To: bhansen@lhom.com, hgovenar@govadv.com, Harry Kingerski/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, Mark Palmer/Corp/Enron@ENRON, Paul Kaufman/Enron@EnronXGate, Susan J Mara/NA/Enron@ENRON, Pat Shortridge/Corp/Enron@Enron, John Shelk/NA/Enron@Enron, Linda Robertson/NA/Enron@ENRON, Ray Alvarez/NA/Enron@ENRON, Karen Denne/Corp/Enron@ENRON, Richard Shapiro/NA/Enron@Enron cc: Ginger Dernehl/NA/Enron@Enron, Jody Underwood/NA/Enron@Enron, Joseph Alamo/NA/Enron@Enron, Linda J Noske/HOU/ECT@ECT, Lysa Tracy/ENRON@enronXgate, Rubena Buerger/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: FW: Calif. Governor Davis Hosting Conference Call Today at 4 pm E DT; Will Discuss FERC Refund Settlement Talks

Steve Kean asked that I forward this information to you. We received an email regarding this call. The call is to take place today at 4:00 pm EDT, but will be available for replay for 48 hours.

Today at 4 pm, California Governor Gray Davis will host a conference call to report progress on energy issues and discuss FERC settlement talks. The call-in number is (800) 230-1059 and no code is necessary. The session will be recorded and available as a digitized replay for 48 hours at 800-475-6701. Access code: 594640.

Message 630 of 1299

Report on ARM Press Conference 6-26-01 in Sacramento

Sender	susan.mara@enron.com
Recipients	['richard.shapiro@enron.com', 'mark.palmer@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/28170.

Monday, last week, I urged our retail coalition, Alliance for Retail Energy Markets (AReM), to hold a press conference this week to draw media attention to the CPUC's vote on Thursday to suspend direct access. AReM and its PR Firm agreed. After a lot of work to line up customers, the press conference was held Tuesday morning in Scaramento.

We had excellent turnout from customer groups. Public statements of support for continuing direct access were made by the California Chamber of Commerce, CA Manufacturing and Technology Association, CA Large Electric Consumers Association, CA Retailers Association, School Project for RR (SPURR - forget the whole acronym but the org purchases gas and electricity for aggregated elementary and high schools), QUALCOM, City of Palm Springs, NYMEX, and the ESPs of Green Mountain, New Energy , Enron (me), and Strategic Energy. All the major papers were there, San Jose Mercury News, SF Chronicle, LA Times, SD Union, OC Register, Wall Street Jr. Also there were the energy trade press, Bloomberg, Public Radio and a capitol TV station. All had the opportunity to ask questions of the customers.

As planned, we let the customers take the limelight. They made forceful cases for why the CPUC should not suspend DA and stressed that the Treasurer's concerns have been addressed in legislation (that has not yet been acted on) and are actively being negotiated at the Capitol. They urged the CPUC not to take this action. I'll forward any media that results from this

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 631 of 1299

question for you

Sender jeff.dasovich@enron.com

Recipients ['karen.denne@enron.com']

File dasovich-j/sent/3398.

Hey, how's things? Long time not chat. What's up? Anywho, you seem like the right person to respond to this email. (And I have no idea.)

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 02/27/2001 10:44 AM -----

Catherine McKalip-Thompson@ENRON COMMUNICATIONS 02/26/2001 09:14 PM

To: Jeff Dasovich/NA/Enron@ENRON cc: Subject: question for you

Jeff, I'd meant to stop in your office today to ask you about this in person, but you seemed rather busy whenever I went by. Now I'll be out for awhile so am sending you this note instead.

I got a call from KKSF who is putting on an Earth Day Jazz concert at the Chronicle (Concord) Pavillion on 4/29 asking if we are interested in sponsoring the vent, expected to draw 20,000 Northern Calif consumers with a high income/education demographic. In addition to signage, display opportunities, etc. there is the opportunity for a feature story on CNET Radio for promotion of companies' involvement in the community (energy efficiency, quality of life whatever). Previous sponsors of interst are PG&E, Green Mountain, and the Renewable Energy Marketing Board.

My question for you is whether Enron would be interested in the opportunity for positive PR here in CA, or whether we are trying to keep a low profile. Is an opportunity like this something any part of Enron (EES included) would be interested in?

Thanks for advising. Catherine

Catherine McKalip-Thompson Manager, Environmental Responsibility Enron Corp. 101 California Street, Suite 1950 San Francisco, CA 94111 Tel: 415.782.7842 Fax: 415.782.7854

Message 632 of 1299

Heads Up on Funding solicitation

Sender susan.mara@enron.com

Recipients ['rob.bradley@enron.com', 'richard.shapiro@enron.com', 'james.steffes@enron.com']

File dasovich-j/all_documents/28113.

The economist's name is Ben Zycher (not Zucher). Do we have any interest in this?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/25/2001 02:33 PM -----

Gary Ackerman <foothillservices@mindspring.com> 06/25/2001 10:25 AM Please respond to foothillservices

To: Bill Ross <billr@calpine.com>, Bob Anderson <Robert_Anderson@apses.com>, Carolyn Baker <cabaker@duke-energy.com>, CHARLES A MIESSNER <camiessn@newwestenergy.com>, curt hatton <curt.hatton@neg.pge.com>, Curtis Kebler <Curtis_L_Kebler@reliantenergy.com>, Greg Blue <gtbl@dynegy.com>, Jack Pigott <jackp@calpine.com>, Nam Nguyen <Nam.Nguyen@powersrc.com>, Randy Hickok <rjhickok@duke-energy.com>, Rob Nichol <rsnichol@newwestenergy.com>, Roger Pelote <roger.pelote@williams.com>, Sue Mara <smara@enron.com>, George Vaughn <gavaughn@duke-energy.com>, Max Bulk <mbulk@apx.com>, "Huhman, Steve" <steve.huhman@mirant.com>, Steve Schleimer <ssschleimer@calpine.com>, Dan Douglass <douglass@energyattorney.com> cc: Subject: Heads Up on Funding solicitation

I was approached last week by the Pacific Research Institute for Public Policy, a conservative think tank, to have WPTF help fund a study they are undertaking by well-known economist Ben Zucher. I thought I would just give you this heads up that a formal proposal will be forthcoming, that I will copy you all on it, and we should discuss it at our July Board meeting. Ben's paper will be entitled The Economics and Politics of Electricity Deregulation, and it will be a substantial body of work.

gba

Message 633 of 1299

CPUC Data Request

Sender	steven_t_sweet@calpx.com
Recipients	['market_participant_cd2@calpx.com', 'jennifer_a_sherwood@calpx.com', 'market_participant_ab1@calpx.com']
File	dasovich-j/all_documents/1654.

** Sent for Sandi Thompson**

To All California Power Exchange Participants:

Notice is hereby provided pursuant to Section 19.3.4 of the California Power Exchange Tariff that the California Public Utilities Commission (CPUC), as part of an ongoing investigation of California markets, has requested information that may be confidential under Section 19.3.2 of the Tariff. The CPUC has requested the California Power Exchange to provide such information no later than Wednesday, October 4, 2000. If you desire to assert a claim of privilege or confidentiality pursuant to legal authority, the California Power Exchange will include your written assertion of that claim together with its submittal to the CPUC, provided that it is timely received. Your written statement should be directed to the CPUC as follows:

Sean H. Gallagher California Public Utilities Commission 505 Van Ness Avenue San Francisco, CA 94102

You may deliver your statement to the California Power Exchange as follows:

Karen Koyano California Power Exchange 1000 S. Fremont Avenue Unit 20 Alhambra, CA 91801 626.537.3173 facsimile

Any written statement must be received by Ms. Koyano no later than Friday, September 29, 2000, 5:00 p.m. PDT, to be included with any information delivered to the CPUC. You are also free to take any other legal action you may deem appropriate in the circumstances of this investigation. A copy of the subpoena is attached for your reference.

Thank you.

(See attached file: CPUC subpoena #2 9-20-00.doc)

- CPUC subpoena #2 9-20-00.doc

Message 634 of 1299

Recent Alum

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu', 'andy@haas.berkeley.edu']
File	dasovich-j/all_documents/13457.

I am very, very sad to report that Dave Engelbrecht, EvMBA '00, passed away on June 4. Dave had a heart attack two weeks ago and was in a coma until he passed away. Dave was a wonderful, fun, giving, and active person, who's commitment to charitable works was enormous. Dave was a Vice President at Schwab and the EvMBA Social Chair for two years while he was in the program. He will be sorely missed.

For those of you who knew him, I have attached, below, an announcement that comes from Schwab.

Regards,

Diane

It is with great sadness that we mourn the passing of Dave Engelbrecht, our colleague and friend. A memorial service will be held next Tuesday, June 12 at 4 PM at The First Unitarian Universalist Church at 1187 Franklin Street in San Francisco. A reception will follow the service from 5 to 7 PM at the St. Francis Yacht Club, On the Marina, San Francisco. Directions to follow. Dave's family has requested that, in lieu of flowers, contributions be made to the Schwab Fund for Charitable Giving (Dave Engelbrecht Memorial Fund). The Memorial Fund will establish an endowment to support scholarships at the Haas School of Business at the University of California at Berkeley where Dave earned his MBA last June. As you may know, Dave was instrumental in the creation of the Schwab Fund for Charitable Giving and served as an officer to the Fund, in addition to his other responsibilities at Schwab. Contributions can be sent to: Schwab Fund for Charitable Giving (Dave Engelbrecht Memorial Fund) 101 Montgomery Street San Francisco, CA 94104 attn: Ann Insley For questions please call 800 746-6216

Message 635 of 1299

Montali enjoins CAISO from filing generation claim in bankruptcy

Sender	michael.tribolet@enron.com
Recipients	[robert.williams@enron.com', 'richard.sanders@enron.com']
File	dasovich-j/all_documents/28191.

Question is whether DWR steps up and/or ISO's creditors take further pain. Link to the decision below:

-----Original Message-----

From: "BENNETT YOUNG" <BYOUNG@LLGM.COM>@ENRON
[mailto:IMCEANOTES+22BENNETT+20YOUNG+22+20+3CBYOUNG+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Wednesday, June 27, 2001 1:31 PM To: Mellencamp, Lisa; Tribolet, Michael; CARL EKLUND; JOHN KLAUBERG Subject: AP3086-PrelimInjunc6-26.pdf

I enclose Judge Montali's decision in the ISO litigation. Based on the ISO's concessions at the hearing and the FERC's creditworthiness requirements, the Judge enjoined ISO from filing an administrative claim for post-petition power purchases made by it on behalf of PG&E.

[http://www.canb.uscourts.gov/canb/Documents.nsf/bf0c3519af9731c88825671d00666479/4799756092ca99bf88256a4a00045971/\\$FILE/AP3086-PrelimInjunc6-26.pdf](http://www.canb.uscourts.gov/canb/Documents.nsf/bf0c3519af9731c88825671d00666479/4799756092ca99bf88256a4a00045971/$FILE/AP3086-PrelimInjunc6-26.pdf)

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167
byoung@llgm.com

This e-mail, including attachments, contains information that is confidential and may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

- AP3086-P.url

Message 636 of 1299

Call-in	
Sender	lara.leibman@enron.com
Recipients	['donald.lassere@enron.com', 'jeff.dasovich@enron.com', 'sue.nord@enron.com', 'scott.bolton@enron.com', 'mike....
File	dasovich-j/all_documents/2853.

Jeff and Mike,

Please let me know if you would like to call-in so that I can obtain the necessary information for you guys. Thanks.

Lara ----- Forwarded by Lara Leibman/Enron Communications on 10/31/00 10:21 AM

Wayne Gardner 10/30/00 06:59 PM

To: Phillip D Lord/LON/ECT@ECT, Robbi Rossi/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@ENRON, Lara Leibman/Enron Communications@Enron Communications, Michelle Hicks/Enron Communications@Enron Communications, Richard Anderson/Enron Communications@Enron Communications, Rajen Shah/LON/ECT@ECT cc: James Ginty/Enron Communications@Enron Communications Subject:

Proposed Agenda for Tax, Accounting, Regulatory and Legal Meeting scheduled for 11/2/00 at 0830 in EB 4434

Present the basic structural issue (see attached power point presentation) - WWG Get input from accounting and legal regarding the issue - Rossi, Christensen, Lord (by telephone) Discuss feasible alternatives for resolving the issue - Group Determine steps needed to make a recommendation as to structure (including persons responsible) - Group Determine format and timing for presenting recommended structure to traders - Group

The attachment is the presentation I made to the regulatory group in Vancouver that, among other things, sets forth the issue to be discussed. Please feel free to contact me before the meeting with any questions you may have or any items you would like to add or change in the agenda.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 637 of 1299

Fwd: Recipient of the first Kent Wheatland Memorial Award	
Sender	karen.denne@enron.com
Recipients	['susan.mara@enron.com', 'steven.kean@enron.com', 'mark.palmer@enron.com', 'richard.shapiro@enron.com']
File	dasovich-j/notes_inbox/12654.

FYI, Sue will receive a special award from the Western Power Trading Forum at their meeting in Ojai, Calif. on June 21. Scroll to the bottom of this email to read why they selected her!

Way to go, Sue!!! ----- Forwarded by Karen Denne/Corp/Enron on 06/08/2001 03:04 PM -----

Susan J Mara 06/08/2001 02:22 PM To: Karen Denne/Corp/Enron@ENRON cc:

Subject: Fwd: Recipient of the first Kent Wheatland Memorial Award

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/08/2001 12:21 PM -----

"Daniel Douglass" <douglass@ArterHadden.com> 04/24/2001 08:41 PM

To: <susan_j_mara@enron.com> cc: Subject: Fwd: Recipient of the first Kent Wheatland Memorial Award

Sue....this is exceptionally well-deserved, for all you do for the causes which Kent, and all of us, hold dear. Congratulations!!

Dan ----- Message from "Gary Ackerman" <foothill@lmi.net> on Tue, 24 Apr 2001 13:19:35 -0400 ----- To: cc: Subject: Recipient of the first Kent Wheatland Memorial Award Sue Mara of Enron has been named the first recipient of the Kent Wheatland Memorial Award. Sue was selected in consultation with many of WPTF's Board members because of her tenacity, forth-rightness, and courage. She will be bestowed the honor on the evening of June 21 at our General Meeting in Ojai, and presenting the award to Sue will be Kent's brother, Gregg.

Please join me in congratulating Sue on her selection. You will note that she is not copied on this memo, but I called her this morning to tell her the news. She was shocked, and honored, and almost, but not quite speechless.

gba

Message 638 of 1299

Re: CA New Product Entry - Suspension of DA

Sender	susan.mara@enron.com
Recipients	['james.wood@enron.com', 'dennis.benevides@enron.com', 'harry.kingerski@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/12653.

Current word is that the draft decision will be held over at least to the June 21 meeting. Enron, along with the members of the Alliance for Retail Energy Markets, are launching an all-out campaign to get the decision changed. Commissioner Bilas has indicated that he may draft an alternate that deletes the language. Of course, we are still flying blind. The draft has not been released to the public.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

James D Steffes 06/08/2001 09:40 AM

To: Marty Sunde/HOU/EES@EES, Vicki Sharp/HOU/EES@EES, Jeremy Blachman/HOU/EES@EES, Scott Gahn/HOU/EES@EES, James M Wood/HOU/EES@EES, Richard L Zdunkewicz/HOU/EES@EES, Harry Kingerski/NA/Enron@Enron, Susan J Mara/NA/Enron, Marcus Dotson/HOU/EES@EES, Lamar Frazier/HOU/EES@EES, Jeff Richter/Enron@EnronXGate, Dennis Benevides/HOU/EES@EES cc: Richard Shapiro/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Paul Kaufman/Enron@EnronXGate Subject: CA New Product Entry - Suspension of DA

I wanted to make sure that everyone involved with the CA New Product was aware that the CPUC may consider at its next public meeting (6/14) the implementation of the Direct Access suspension established in AB1x1.

We are hearing that the CPUC may not have 3 votes in favor of such suspension, but the topic is on the agenda. It is very difficult to get any clarity on this issue given the politics and ex parte restrictions.

Even if the CPUC does not take action on this language at the next meeting, until that provision of the law is modified by the General Assembly, the CPUC could take action at a later time.

Please call me if anyone has any questions.

Jim 3x7673

Message 639 of 1299

Utilities, Electric: Deregulation: Electricity deregulation brings	
Sender	miyung.buster@enron.com
Recipients	['filuntz@aol.com', 'elizabeth.linnell@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/956.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/13/2000 09:56 AM

djcustomclips@djinteractive.com 10/13/2000 10:47 AM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: Electricity deregulation brings on crisis in California

Electricity deregulation brings on crisis in California ? 09/25/2000 API EnCompass: News (c) Copyright Elsevier Engineering Information, Inc. All rights reserved.

From: Petrostrategies --

California's power generators blame the 'rigid nature' of the deregulated energy sector for the prevailing electricity crisis, which has seen wholesale power prices jump by as much as \$500/Mwhr from \$150/Mwhr in summer 1999 even as retail prices have been frozen until March 2002. Meanwhile, since demand has grown by a mere 3% from mid-1999, some consumers fear that the crisis has arisen, not from Californian deregulation, but from power generators who are taking advantage of the crisis to earn more. Tasked to act on the problem, FERC is to announce the results of its probe on the energy crisis by 11/1/2000.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 99

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 640 of 1299

FW: An Invitation to Attend Financial Reporting Conference	
Sender	jeff.dasovich@enron.com
Recipients	['psellers@pacbell.net']
File	dasovich-j/sent_items/164.

-----Original Message-----

From: Dayna Haugh [mailto:haugh@Haas.Berkeley.EDU] Sent: Thursday, September 20, 2001 10:35 AM To: eveningmba@haas.berkeley.edu Subject: An Invitation to Attend Financial Reporting Conference

Dear Evening MBA Students:

The Center for Financial Reporting and Management in the Haas School is hosting its Twelfth Annual Conference on Financial Reporting on Monday, November 5, 2001 at the San Francisco Marriott Hotel, 55 Fourth Street.

As a special offer to Evening MBA Program students, we are offering one seat to each student at the discounted price of \$145 per seat. This can be used by you or by a person in your firm whom you wish to designate.

A copy of the program is attached. If you or an associate wish to attend, please register on-line at: <http://www.haas.berkeley.edu/accounting/cfrm/registration.htm> . When filling out the registration form, please write: "EVENING PROGRAM" in the "additional registrants" space on the form. I will contact you regarding payment. If you prefer to pay by check, you may print the registration form and mail it or leave it in Dayna Haugh's mailbox in the student services building mailroom with a check.

If you have questions, feel free to contact me at 642-6334. We hope you or one of your colleagues will be able to attend.

Dayna Haugh Assistant Director Center for Financial Reporting and Management Haas School of Business University of California 502D Faculty Building, #1900 Berkeley, CA 94720-1900

510-642-6334 (Phone) 510-643-7218 (Fax)

<http://www.haas.berkeley.edu/accounting/cfrm/cfrm.htm> : <http://www.haas.berkeley.edu/accounting/cfrm/cfrm.htm>

<http://www.haas.berkeley.edu/accounting/cfrm/cfrm.htm>

Message 641 of 1299

Re: State/Local call

Sender	stephen.burns@enron.com
Recipients	['jeff.dasovich@enron.com', 'lara.leibman@enron.com', 'barbara.hueter@enron.com', 'lleibman@enron.com']
File	dasovich-j/notes_inbox/2273.

FYI - This was announced today. Steve Burns

SUMMARY: The Rural Utilities Service (RUS) announces a new loan program and the availability of loan funds under this program to finance the construction and installation of broadband telecommunications services in rural America. The President of the United States and the United States Congress have made \$100 million in treasury rate loan funds available, through a one-year Pilot Program, to encourage telecommunications carriers to provide broadband service to rural consumers where such service does not currently exist. This program will provide loan funds, on an expedited basis, to communities up to 20,000 inhabitants to ensure rural consumers enjoy the same quality and range of telecommunications services that are available in urban and suburban communities. Loan funds are available immediately and applications will be processed and approved on a first-come, first served basis throughout FY 2001 until the appropriation is utilized in its entirety.

(more info) http://frwebgate.access.gpo.gov/cgi-bin/getdoc.cgi?dbname=2000_register&docid=00-30872-filed

Lara Leibman 12/04/2000 01:14 PM

To: Sue Nord/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Stephen D Burns/Corp/Enron@ENRON, Barbara A Hueter/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Marchris Robinson/NA/Enron@Enron, Margo Reyna/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron cc: lleibman@enron.com
Subject: State/Local call

We will resume our state/local initiatives discussion this Wednesday, Dec. 6th at 4pm CST. The call in number will be the normal 1-888-311-9051; pass code 60396. Thanks very much.

Lara

Message 642 of 1299

RE: RE: Home Depot Question

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'chin@haas.berkeley.edu']
File	dasovich-j/all_documents/8847.

I am going to Berkeley right now to pick up the case, so I could talk about it potentially tonight or tomorrow night.? I usually have class on Tuesday, but I am not going to go tomorrow.? Let me know what works for everyone.? I would prefer discussing via conference call if possible.

[Carolyn Vavrek]? ? ?-----Original Message----- From: Anil Sama [mailto:asama@yahoo.com] Sent: Sunday, February 04, 2001 7:48 PM To: Mark Guinney; Vavrek; Carolyn (US - San Francisco); chin@haas.berkeley.edu; sama@haas.berkeley.edu; Jeff.Dasovich@enron.com Subject: Re:RE: Home Depot Question

Hi Team,

I was in class all day yesterday, and could not bear to be indoors on?yet another awesome day!! Purnima and I spend all day hiking. So - I have not read the Home Depot case yet - and am only just starting on it :-(? Good thing we don't have a case to prepare for Tiffany's class Wed!

Let's get an email dialog going once we get Mark's spreadsheets? I'd also be up for?a meeting/conf call late Mon/Tue eve to do the writeup.

-Anil

? Mark Guinney <Mark_Guinney@watsonwyatt.com> wrote: Hi Carolyn. I'm running the numbers and the rest of you, team, are responsible for the strategy and interpretation of the numbers for case 2. Case 1 was fine. I have a few questions for our beloved professor and when she responds I'll e-mail out my spreadsheet models.

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Do You Yahoo!? - Get personalized email addresses from Yahoo! Mail Personal Address - only \$35 a year!

Message 643 of 1299

Re: Meeting 8AM Central Monday

Sender	rosalinda.tijerina@enron.com
Recipients	['james.steffes@enron.com', 'don.black@enron.com', 'harry.kingerski@enron.com', 'jbennett@gmssr.com']
File	dasovich-j/all_documents/11088.

The dial-in number is listed below (for Monday, April 16 at 8:00 a.m. (CST)).

James D Steffes@ENRON 04/13/2001 01:15 PM To: Scott Stoness/HOU/EES@EES cc: Harry Kingerski/NA/Enron@Enron, Don Black/HOU/EES@EES, jbennett@gmssr.com, Tamara Johnson/HOU/EES@EES, Jeff Dasovich/NA/Enron@Enron, James W Lewis/HOU/EES@EES, Leslie Lawner/HOU/EES@EES Subject: Re: Meeting 8AM Central Monday

Scott --

Can your assistant get a call in # for those in CA?

Jim

Scott Stoness@EES 04/13/2001 12:00 PM To: Harry Kingerski/NA/Enron@Enron, Don Black/HOU/EES@EES, James D Steffes/NA/Enron@ENRON, jbennett@gmssr.com@ENRON, Tamara Johnson/HOU/EES@EES, Jeff

Dasovich/Na/Enron@ENRON, James W Lewis/HOU/EES@EES, Leslie Lawner/HOU/EES@EES, Leslie Lawner/HOU/EES@EES cc:

Subject: Meeting 8AM Central Monday

We have agreed on a strategy, subject to Whaley/Delaney approval, to: Scott Stoness submit testimony today advocating 2 part real time pricing in CA Read other parties testimony this weekend from the perspective "Has somebody filed testimony close enough to Stoness testimony, that we can cross examine and brief to a favorable outcome?" Meet on Monday at 8AM to decide whether to rescind Stoness's testimony.

The following dial in number and code corresponds to the Monday 8AM Central Time meeting. 1 800 713 8600 68266 is PIN Scott Stoness is host

Action Items: All on To list above read and have opinion on 2 and 3 above All on To list above meet on Monday at 8AM. Meet in Stoness office if possible. Harry and Jeane polish Stoness testimony and wait to the last minute before submitting it Jeane ensure all on this To list get a copy of testimony, emailed as soon as she gets it.

Scott Stoness

Message 644 of 1299

Draft Agenda for next TAR&L meeting - Comments welcome

Sender	lara.leibman@enron.com
Recipients	['sue.nord@enron.com', 'mike.dahlke@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/3367.

FYI. ----- Forwarded by Lara Leibman/Enron Communications on 11/10/00 05:55 PM

Wayne Gardner 11/10/00 04:43 PM

To: Donald Lassere/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Rajen Shah/LON/ECT@ECT, James Ginty/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, Alisa Christensen/Enron Communications@Enron Communications, David Merrill/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robbi Rossi/Enron Communications@Enron Communications cc: Subject: Draft Agenda for next TAR&L meeting - Comments welcome

1. Based on discussions from the 11/8 meeting, step through a specific US/Japan trading example, specifically determining what the US trading desk can and cannot do with respect to each piece of the international capacity segment (see attached file).
2. Review and discuss Dave Merrill's note on Korea.
3. Step through a specific US/Korea trading example as in point one above.
4. Time permitting, step through a US/Japan trading example, specifically determining what a hypothetical Singapore trading desk could and could not do with respect to each piece of the international capacity segment.
5. Time permitting, determine the best general trading structure for Asia and highlight specific problem areas that need to be identified with respect to the structure.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 645 of 1299

Fw: Comments to Wood ACR

Sender	steven@iepa.com
Recipients	['dkk@eslawfirm.com', 'wfhall2@duke-energy.com', 'abb@eslawfirm.com', 'smutny@iepa.com', 'wscobee@caithnessene...]
File	dasovich-j/notes_inbox/399.

attached for your review and comment are IEP's Draft Comments on the Wood ACR. Please provide comments to IEP no later than COB Thursday as these comments are due to be filed on Friday, Sept. 15.

----- Original Message -----

From: Eric Janssen <EricJ@eslawfirm.com> To: 'Steven Kelly' <steven@iepa.com>; 'Katie Kaplan' <kaplan@iepa.com>
Cc: 'DKK' <runwithmee@aol.com>; Andy Brown <ABB@eslawfirm.com> Sent: Tuesday, September 12, 2000 1:49 PM
Subject: Comments to Wood ACR

Steven/Katie: attached is Doug's draft of the Comments to the Wood ACR in the Wholesale Market investigation for your and the members' comment.

(This

is the same document that Doug said he'd have ready for you by tomorrow - it's a day early.) FILING DATE IS FRIDAY, SEPTEMBER 15. Please call if

you

have any questions. <<Comments to Wood ACR dkk2.doc>> Eric Janssen Ellison Schneider & Harris LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 mailto:ericj@eslawfirm.com CONFIDENTIALITY NOTICE: This communication and any accompanying

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- Comments to Wood ACR dkk2.doc

Message 646 of 1299

FW: Regulatory / Commercial Focus Q3/Q4 2001

Sender	jeff.dasovich@enron.com
Recipients	['leslie.lawner@enron.com']
File	dasovich-j/all_documents/28838.

FYI.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 07/17/2001 01:24 PM -----

Barry Tycholiz/ENRON@enronXgate 07/17/2001 01:21 PM

To: Jessica Presas/ENRON@enronXgate cc: Jeff Dasovich/NA/Enron@Enron Subject: FW: Regulatory / Commercial Focus Q3/Q4 2001

can you get leslie included in this conference call for thurs a.m.

BT

-----Original Message-----

From: Dasovich, Jeff Sent: Tuesday, July 17, 2001 1:19 PM To: Tycholiz, Barry Subject: Re: Regulatory / Commercial Focus Q3/Q4 2001

Sounds good. You can reach me at 415.782.7822. Because my schedule is a mess (thanks to the mess California has created), if you don't reach me on my office line, please try 415.505.6633. Also, I think that it would be very useful to have Leslie Lawner on, since she's involved a lot in California gas matters, but it's your call. Just let me know.

Best, Jeff

Barry Tycholiz/ENRON@enronXgate 07/17/2001 08:30 AM To: Jeff Dasovich/NA/Enron@Enron, Stephanie Miller/ENRON@enronXgate, Jane M Tholt/ENRON@enronXgate, Mike Grigsby/ENRON@enronXgate cc: Jessica Presas/ENRON@enronXgate Subject: Regulatory / Commercial Focus Q3/Q4 2001

Jeff, for the meeting on Thurs a.m. 9:30 (Houston Time), we should keep our group to the list I have identified. I would like to start with a simple plan and work out from there. We are working towards an action plan for handling PUC issues (from a commercial perspective) in california and other states, prior to anybody addressing the PUC we need agreement as to what it is we want to put forward.

We will call you on thurs a.m. Can you please verify your contact phone number.

Thanks in advance.

Jessica, pls reserve a room.

BT

Message 647 of 1299

RE: hey whassup?

Sender	jeff.dasovich@enron.com
Recipients	['csilva@redsky.com']
File	dasovich-j/sent/11929.

fear not o boisterous one. you know that eggars is speaking in SF in the fall, right?

Colleen Silva <Csilva@redsky.com> 07/10/2001 02:50 PM

To: "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com> cc: Subject: RE: hey whassup?

darling boy-

i'm never mad at you, never ever, and i really do adore you to death and forever and can't bear the idea that we wouldn't be friends till death do us part, and that i wouldn't be welcome in your life, so no, i was never mad and don't even remember which of my (many) soliloquys you may have interrupted or are referring to but i do know that i have a rather boisterous personality and perhaps i stepped on your toes and this is not my intention and i adore you and my company is about to go under so the idea of being unemployed AND having you upset with me is far too much for my delicate self to handle...

xo colleen

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, July 10, 2001 12:48 PM To: Colleen Silva Subject: Re: hey whassup?

i was never mad at you. i thought that you were mad at me for interrupting your soliloquy.

Colleen Silva

<Csilva@redsk To: ""jdasovic@enron.com""

y.com> <jdasovic@enron.com>

cc:

07/10/2001 Subject: hey whassup?

02:26 PM

you still mad at moi?

don't be.... -----++

colleen silva producer RED SKY >san francisco v 415-633-2023 c 415-336-2219 <<http://www.redsky.com>>

Message 648 of 1299

Independent Institute Price Cap Protest Letter from Economists

Sender	rob.bradley@enron.com
Recipients	['steven.kean@enron.com', 'richard.shapiro@enron.com', 'janel.guerrero@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/440.

David Theroux at the Independent Institute in Oakland, California became concerned over Enron's involvement in this project, so he has decided to fund the project internally.

He anticipates that the letters will go out to economists around the country when the school year starts (just several weeks away in some places) and hopes to complete the project by October. They got around 540 economists for their health care price cap letter. It will be interesting to see how many signatures they get for electricity price caps. I sent him our draft letter, and he is massaging the language between wholesale price decontrol and the use of real-time pricing at retail.

I offered the use of our university contacts to help gather signatures, but I don't know if he will even want in-kind help. Anyway, we can do something else with the \$30,000 that we were going to try to funnel to them.

- Rob

-----Original Message-----

From: David Theroux <DTheroux@independent.org>@ENRON
[mailto:IMCEANOTES-David+20Theroux+20+3CDTheroux+40independent+2Eorg+3E+40ENRON@ENRON.com] Sent:
Thursday, July 19, 2001 3:44 PM To: rbradle@enron.com (Ropb Bradley) Subject: Hello

Dear Rob,

We have been pursuing the possibility of addressing the matter of price controls as they pertain to electricity markets as we have done in the past with our other Open Letters.

But in doing so, we would only pursue the matter independently without the involvement or support of any businesses or other organizations in this or related fields.

Best regards,

David -- David J. Theroux Founder and President The Independent Institute 100 Swan Way Oakland, CA 94621-1428
510-632-1366 Phone 510-568-6040 Fax DTheroux@independent.org http://www.independent.org

Message 649 of 1299

Read this before responding to the Outlook Mail Notification emails

Sender	april.hrach@enron.com
Recipients	[rob.bakondy@enron.com', 'victor.browner@enron.com', 'kelly.brodbeck@enron.com']
File	dasovich-j/notes_inbox/11629.

Please use the following instructions for the four Outlook emails.

1-URGENT: Please read (Do not delete emails, because of the lawsuit) 2-URGENT: Please read 3-URGENT: Click the Save My Data button 4- URGENT: Please read, but you do not have to fill in this info (All this info has already been submitted to Wilma Bleshman, who will be here next week for our conversions)

Important Note: Due to the lawsuit we should not be deleting any emails. When our lotus notes are transferred to outlook we will still have access to read all of our old notes. Eventually notes will go away, but because of the lawsuit nothing can be deleted until a later date. Also, I know everyone has concerns about the size restriction, and purge process in outlook. (Please remain calm; breath in through the nose, out through the mouth.) Until the lawsuit is cleared up the SF office will not be bound by Enron's Outlook rules. However, there will come a day when we will have to adhere to the policies.

Extra Cool Note: In outlook you can save an entire email, headings & attachments too, as a word document. It is very, very exciting. This will be the feature that helps us keep our in-boxes, and outlook folders fairly empty. I will show everyone how easy it is once we have been completely converted.

I think everyone is going to like outlook. Please give it a chance. I promise Wilma and I will address all of your concerns.

Thanks, April Hrach Administrative Coordinator Phone: 415-782-7825 Fax: 415-782-7851

Message 650 of 1299

Re:FIA assignment: Monday pm?

Sender	jeff.dasovich@enron.com
Recipients	[mark_guinney@watsonwyatt.com', 'cvavrek@deloitte.com', 'asama@yahoo.com', 'guinney@haas.berkeley.edu']
File	dasovich-j/all_documents/9228.

I apologize, but I won't be in SF Monday evening, and this week coming up will be a grinder. I have a lot of time to work on it over the weekend, though. I can provide a fax number tomorrow where the materials can be sent to me. And I assume that they are on the Izio site, too. I'm going to go there now. Tomorrow, I'll try to crunch some numbers and outline the one-pager and distribute to folks by the end of the day. Then perhaps we can email each other on Monday and try to make some progress on the memo by the end of the day. That should put us in pretty good shape to finish it up Tuesday and Wednesday. If I can't get the materials off of Izio, I'll let you know. I'll report back in the AM tomorrow with a proposed game plan, once I've collected all the materials and pondered things a bit. Sound reasonable? Thoughts? Just let me know.

Mark, I hope that if you're in Denver, that means you're skiing.

Best, Jeff

"Mark Guinney" <Mark_Guinney@watsonwyatt.com> 02/17/2001 12:04 PM

To: "Vavrek; Carolyn (US - San Francisco)" <cvavrek@deloitte.com>, "asama@yahoo.com" <asama@yahoo.com>, "Guinney@haas.berkeley.edu" <Guinney@haas.berkeley.edu>, "Jeff_Dasovich@enron.com"

<Jeff_Dasovich@enron.com> cc: Subject: Re:FIA assignment: Monday pm?

Can we schedule a conference call at 8pm on Monday night? I'm returning from Denver that evening and assuming all goes according to schedule I should be home by then.

Jeff- we'll need your conference call making capabilities. You up for it?

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Message 651 of 1299

fia group project

Sender	cvavrek@deloitte.com
Recipients	['asama@yahoo.com', 'mark_guinney@watsonwyatt.com', 'jeff_dasovich@enron.com']
File	dasovich-j/notes_inbox/4691.

attached is a word doc of some basic articles from the web re: the coke/oat almost deal it seems that pepsi took coke by surprise in announcing an offer for oat at 14.8 billion, which oat rejected thinking it was worth at least 15 billion

then coke put together a deal for 15.75 billion which was nixed at the last minute by the coke board (buffet, etc.) although it was not formally voted on

french co. danone also contemplated a bid for oat oat accepted a bid by pepsi for 13.4 billion (or more depending on pepsi's stock price) but can still walk away if pepsi's stock drops below 40/share

everyone wanted the gatorade brand, which accounts for 1/2 of oat's earnings - are going to expand its distribution in both the us and especially overseas

given that there were so many parties bidding on oat over a short period of time, perhaps our project could focus on: - oats business strategy - how we would value oat - what advice we would give to one or all of the companies (oat, coke, pepsi or danone) - how the market reacted to this deal (look at the stock prices of oat, coke, pepsi and danone during this time)

- cv <oat research 1.doc>>

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

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- oat research 1.doc

Message 652 of 1299

FW: CLECA/CIU/SVMG

Sender	jeff.dasovich@enron.com
Recipients	['harry.kingerski@enron.com', 'susan.mara@enron.com', 'd..steffes@enron.com']
File	dasovich-j/sent_items/50.

FYI. -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Tuesday, September 11, 2001 10:36 PM To: Vicki Sandler; Tamara Johnson; Mara, Susan; Steve Huhman; Roger Pelote;= Rob Nichol; Randy

Hickok; Nam Nguyen; Jim Crossen; Dasovich, Jeff; Janie Mollon; Jack Pigott; Greg Blue; George Vaughn; Gary Ackerman; Ed Cazalet; Denise Cazalet Purdum; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Messner; Carolyn Baker; Bill Ross; Karen Shea; Max Bulk; ARM Subject: CLECA/CIU/SVMG

CLECA, CIU and the Silicon Valley Manufacturing Group have also come out with all guns blazing against the draft decision dealing with the DWR revenue requirement. They decry the lack of hearings, state that there are fundamental untruths in the decision and conclude that, "The DWR has made it clear that it needs to have a decision on its revenue requirements quickly so that it can successfully issue bonds to generate revenue to re-pay the general fund. No one has been permitted to test that proposition, but it seems to be accepted as fact by decision makers. The problem is that this record does not support approval of any particular revenue requirement for DWR and it certainly does not support the allocation proposed in the DD. If the Commission must act quickly, then it must act provisionally and set forth the hearings the many questions identified here and, we suspect, in the comments of many other interested parties concerning the basis of the allocation among the utilities." =20 Dan =20 Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 653 of 1299

Re: funders for PRI study

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com']
File	dasovich-j/all_documents/29015.

How long do you think it will take for Davis' people and the crazies in the Legislature to link the study and PRI to the funders?

Susan J Mara 07/23/2001 02:02 PM

To: Richard Shapiro/Enron@EnronXGate, James D Steffes/Enron@EnronXGate, Jeff Dasovich/NA/Enron@Enron, Karen Denne/Enron@EnronXGate, Paul Kaufman/Enron@EnronXGate, Linda Robertson/NA/Enron@ENRON cc: Subject: funders for PRI study

The Pacific Research Institute has agreed to get an abstract out in early August, and according to Gary, will be marketing it. Will have more info shortly.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/23/2001 11:34 AM -----

Gary Ackerman <foothillservices@mindspring.com> 07/23/2001 11:20 AM Please respond to foothillservices

To: Sue Mara <smara@enron.com>, Curtis Kebler <Curtis_L_Kebler@reliantenergy.com>, "Huhman, Steve" <steve.huhman@mirant.com>, Roger Pelote <roger.pelote@williams.com>, Greg Blue <gtbl@dynegy.com>, George Vaughn <gavaughn@duke-energy.com>, Mark Smith <Mark_J_Smith@fpl.com>, Bob Anderson <Robert_Anderson@apses.com>, Marcie Milner <MMilner@coral-energy.com>, John Marchand <jpmarchand@aep.com> cc: Subject: funders for PRI study

Whereas some of you have not yet committed to funding the PRI study by Dr. Ben Zycher, five of you have. Those who have not confirmed participation, please do so ASAP. Per the request of Enron, and agreed to by PRI, a preliminary abstract of the study will go out in early August to members of the California Legislature. This is to not only wet their appetites, but also to provide some timely information in a positive way while the Legislature remains in session. The abstract will be distributed by PRI.

gba

*Message 654 of 1299***Request for Information by the California State Auditor**

Sender	sandi_j._thompson@calpx.com
Recipients	['market_participant_cd2@calpx.com', 'market_participant_ab1@calpx.com']
File	dasovich-j/all_documents/4261.

To All California Power Exchange Participants:

The California State Auditor, as part of an ongoing investigation of California markets has requested information that may be confidential under Section 19.3 of the California Power Exchange Tariff. The data request is attached below for your reference and requires response by December 15, 2000. The California State Auditor's Office had advised that it will respect the legal confidentiality of these records and will not publicly release them when legal restrictions prohibit such release (see California Government Code Sections 8545 and 8545.1 and the letter attached hereto). If you desire to assert a claim of privilege or confidentiality, the California Power Exchange will forward your written assertion of that claim to the California State Auditor, provided that it is timely received. Your written statement and its legal basis should be directed to the State as follows:

Sharon L. Smagala, CPA Bureau of State Audits California State Auditor 555 Capitol Mall, Suite 300 Sacramento, CA 95814

You may deliver your statement to the California Power Exchange as follows:

Karen Koyano California Power Exchange 1000 S. Fremont Avenue Unit 20 Alhambra, CA 91801 626.537.3173 facsimile

Any written statement must be received by Ms. Koyano no later than Friday, December 8, 2000, 5:00 p.m. PT, to be included with any information delivered to the California State Auditor. You may take any other legal action you deem appropriate under the circumstances.

(See attached file: TXP PX doc request 11-30-00.doc) (See attached file: Ltr from State Audit CLC 10-11-00.doc)

- TXP PX doc request 11-30-00.doc - Ltr from State Audit CLC 10-11-00.doc

*Message 655 of 1299***Re: FIA assignment**

Sender	jeff.dasovich@enron.com
Recipients	['asama@yahoo.com', 'guinney@haas.berkeley.edu', 'jeff_dasovich@enron.com', 'cvavrek@deloitte.com']
File	dasovich-j/sent/3269.

was travelling all week. would be happy to discuss this weekend, but i'd need to be by phone, since i'll be in mendocino. are the handouts from thursday that i need to get?

Best, Jeff

Anil Sama <asama@yahoo.com> 02/16/2001 12:55 PM

To: "Vavrek, Carolyn \ (US - San Francisco)" <cvavrek@deloitte.com>, Guinney@haas.berkeley.edu, Jeff_Dasovich@enron.com cc: Subject: Re: FIA assignment

Jeff, Mark:

Wondering where you were yesterday. Hope you didn't forget about the in-class quiz!

The next HW and writeup due next week seems like a heavy one. Do most of you have Monday off? I'll take a look at the case/HW Sa/Su, and prefer a meeting / conf call anytime Monday. Perhaps PM in the city if folks are working that day? Sunday PM (after 7) works for me too.

-Anil

--- "Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> wrote:

Congrats crew - we got a 9 on case #2. When is everyone available between now and Wed pm to talk about case #3 and the other homework? - cv Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105 phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com - This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. - If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

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Message 656 of 1299

European Financial Markets - New course, Spring 00

Sender	portes@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu', 'mba00@haas.berkeley.edu']
File	dasovich-j/mba_program/27.

I am visiting Haas this year and will be teaching 'European Financial Markets' (BA 296-7, E 296-5) in the spring. Since this is a new course, I thought I should draw it to your attention. The move to monetary union (EMU) in Europe has created a newly integrated financial area comparable to the US, with consequences that anyone doing business or advising businesses in Europe needs to understand. Just consider:

'The dollar's supremacy has been challenged in the global debt markets.' (FT, 6/14/99). 'The large funds have indulged in a frenzy of cross-border buying...with the volume of paper launched by European companies rising five-fold over 1998.' (FT 10/28/99) '...a doubling of European-based staff at Lehman Brothers, a 50% increase at SSB, and up to 20% at other banks...follows Europe overtaking the US in M&A activity...' (FT 10/25/99)

I shall address questions such as: How does the European Central Bank differ from the Fed? Will the euro compete with the dollar as an international currency? Can European capital markets challenge the US for international portfolio managers and for non-European issuers? Will Europe soon have serious venture capital and junk bond sectors? Will the European banking sector experience a deep wave of cross-border restructurings? Will there be a shift from domestic to cross-border M&A in Europe - and will competition authorities try to restrain it? How will the East European emerging markets fit into the picture?

If these issues interest you, I look forward to seeing you in January.

-- Richard Portes Distinguished Global Visiting Professor Haas School of Business University of California at Berkeley Berkeley CA 94720-1900 Email: portes@haas.berkeley.edu Tel. 1 510 642 8032 Fax 1 510 642 4700 (on leave from London Business School, 1999-2000)

Message 657 of 1299

RE: Revised appointment 11/9/01 PG&E Official Creditors Committee

Sender	michael.tribolet@enron.com
Recipients	[G. YOUNG BENNETT (E-mail); Randy Michelson (E-mail)', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/1626.

Yes, we should have anticipated it. No head's up. We have little recourse legally. Lisa and I are recommending to exit gracefully.

-----Original Message-----

From: Dasovich, Jeff Sent: Monday, November 12, 2001 9:50 AM To: Tribolet, Michael Subject: RE: Revised appointment 11/9/01 PG&E Official Creditors Committee

Hi Michael: Few questions:

Is this something that we anticipated? Were we given any sort of "head's up?" Is it something that we can object to? The combination is far from consummated and we're still owed a heckuva lot of money? Do we have any recourse?

Best,

Jeff

-----Original Message-----

From: Tribolet, Michael Sent: Mon 11/12/2001 7:35 AM To: Buy, Rick; Gorte, David; Curry, Wanda; Bradford, William S.; Kean, Steven J.; Shapiro, Richard; Mara, Susan; Steffes, James D.; Dasovich, Jeff Cc: Subject: FW: Revised appointment 11/9/01 PG&E Official Creditors Committee

-----Original Message-----

From: Johnson, Stephen [<mailto:Stephen.Johnson2@usdoj.gov>] Sent: Friday, November 09, 2001 5:20 PM To: Robert Moore (E-mail); Annamarie Fallon JP Morgan Chase; Clara Strand, Bank of America; David Adante, The Davey Tree Co.; Duane H. Nelson, GWF Power Systems; Grant Kolling, City of Palo Alto; John C. Herbert, Dynegy; Kenneth Smith, PE Berkeley; Michael Lurie, Merrill Lynch; Tribolet, Michael; Mike Jines; Raymond Kennedy; Tom Milne, State of Tennessee Cc: G. YOUNG BENNETT (E-mail); Randy Michelson (E-mail) Subject: Revised appointment 11/9/01 PG&E Official Creditors Committee

Enron has been replaced by Reliant Energy Services, Inc.

Stephen L. Johnson Attorney United States Department of Justice Office of the U.S. Trustee 250 Montgomery Street, Suite 1000 San Francisco, CA 94104

415-705-3333 tel. 415-705-3379 fax stephen.johnson2@usdoj.gov

Message 658 of 1299

Re: trying to locate PX Credit information

Sender	susan.mara@enron.com
Recipients	['harry.kingerski@enron.com', 'james.steffes@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28786.

PG&E submitted an advice letter a while ago that we (through ARM) protested. I don't know of any other communication

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Jeff Dasovich Sent by: Jeff Dasovich 07/16/2001 02:59 PM

To: Wanda Curry/Enron@EnronXGate, Michael Tribolet/ENRON@enronXgate cc: Harry Kingerski/Enron@EnronXGate, Leslie Lawner/Enron@EnronXGate, James D Steffes/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON Subject: trying to locate PX Credit information

Hi Wanda/Michael. You aware of this? I don't recall having received anything from PG&E.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 07/16/2001 04:57 PM -----

Tamara Johnson@EES 07/16/2001 04:19 PM

To: JMB <JBennett@GMSSR.com>, Harry Kingerski/Enron@EnronXGate, Jeff Dasovich/NA/Enron@Enron, Leslie Lawner/Enron@EnronXGate, James D Steffes/NA/Enron@Enron, Diann Huddleson/HOU/EES@EES, Mary Lynne Ruffer/HOU/EES@EES cc: Subject: trying to locate PX Credit information

PG&E has changed the method of calculating the PX Credit recently. Prior to June they appeared to be using a market based price for power, but in June the credit dropped to about \$40/MWh which looks like utility-owned gen.

We want to make sure we are not missing a utility-levied charge in our forward curves (e.g. CTC charge that will be applied to DA) so we're trying to verify the utilities' method of calculating PX credits.

I talked to the PG&E accounting person who said that their Regulatory group has sent Enron's regulatory group information on the way the PX Credit is calculated. Can someone locate this information and forward it to me as soon as possible? Given that our customers are all switching to DA we don't want to discover there's a charge we don't know about.

Thanks, Tamara.

Message 659 of 1299

Argus Company Report on OAT

Sender	cvavrek@deloitte.com
Recipients	['guinney@haas.berkeley.edu', 'anil.sama@intel.com', 'dasovich@haas.berkeley.edu']
File	dasovich-j/notes_inbox/4500.

See attached pdf that I mentioned last night. Lots of goodies in there about synergies, cost savings and EPS accretion. I have no idea who Argus Company is - got the file through my Fidelity brokerage acct. No reason to believe it is not reputable.

Here are the highlights: - with the merger Pepsi will have 25% of non-carbonated drink market vs. coke's 10% share; non-carb drinks are growing at 8% annually - Pepsi mgt is projecting revenue and cost savings increase of \$230 million in operating income by 2005; half from distribution system and half from reduced procurement costs and SGA savings - Pepsi mgt forecasts a restructuring charge of \$400 million after finalization of deal; not accretive to EPS in 2001 - earnings will increase by \$.02 in 2002 b/c of the merger

I also attached another report with lots of industry comps and ratios for OAT. Hope this helps. - cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Sama, Anil [mailto:anil.sama@intel.com] Sent: Thursday, April 05, 2001 10:45 PM To: vavrek@haas.berkeley.edu; dasovich@haas.berkeley.edu; guinney@haas.berkeley.edu Subject: Here is what I've found on OAT/COKE acquisition

Probably very similar to what Carolyn sent out...

<<Coke_Quaker.ZIP>>

This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law. If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

- oat argus report.pdf - oat provestor plus report.pdf

Message 660 of 1299

nan	
Sender	pwpens@socrates.berkeley.edu
Recipients	[]
File	dasovich-j/inbox/154.

Dear Energy Researchers:

Richard Green and I are editing a special issue of the Journal of Industry, Competition and Trade on recent experience with energy markets in California. If you have something you would like to contribute, please see the call for papers below.

Sincerely,

Carl Blumstein Energy Policy Analyst UC Energy Institute

Call for Papers on the California Energy Crisis

The Journal of Industry, Competition and Trade (<http://www.wkap.nl/journalhome.htm/1566-1679>) will be publishing a special issue on the California Energy Crisis. We are seeking papers on any aspect of the crisis, but particularly papers that seek to bring out the policy lessons, or the implications for other countries engaged in electricity restructuring. The journal aims to bridge the gaps between theory and empirical analysis, and between academic and policy-oriented economists in the field of microeconomic policy.

Papers should be between 10 and 20 sides of double-spaced A4 paper. Please send an outline of one or two pages by September 30th to:

r.j.green@hull.ac.uk blumstei@socrates.berkeley.edu andre.sapir@cec.eu.int Karl.Aiginger@wifo.ac.at

Carl Blumstein and Richard Green are editors for the special issue; Karl Aiginger and Andre Sapir are the editors of the journal

Conditional acceptances will be based upon these outlines. Full papers will be required by December 15, and final versions (after receiving referees' comments) by February 28th, 2002.

Professor Richard Green Department of Economics University of Hull Hull HU6 7RX UK R.J.Green@hull.ac.uk Tel: +44 1482 465720 Fax: +44 1482 466216

Carl Blumstein University of California Energy Institute 2539 Channing Way Berkeley, CA 94720-5180
blumstei@socrates.berkeley.edu Tel: +1 510 643-0505 Fax: +1 510 643-5180

Message 661 of 1299

Re: FOR FINAL REVIEW -- ENA Comments in Support of Kern River	
Sender	leslie.lawner@enron.com
Recipients	['barry.tycholiz@enron.com', 'rebecca.cantrell@enron.com', 'christi.nicolay@enron.com', 'alan.comnes@enron.com...]
File	dasovich-j/all_documents/27798.

I have added a reference to recent FERC decision in a Kern River case which rejected a contract provision between Kern and Union Pacific which would have given UP priority rights to reduce its CD. This is on page 9.

Rebecca W Cantrell@ECT 06/12/01 05:20 PM

To: Alan Comnes/PDX/ECT@ECT, Barry Tycholiz/Enron@EnronXGate, Christi L Nicolay/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Donna Fulton/Corp/Enron@ENRON, jalexander@gibbs-bruns.com,

James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, Paul Kaufman/Enron@EnronXGate, Phillip K Allen/HOU/ECT@ECT, Ray Alvarez/NA/Enron@ENRON, Robert Frank/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, Stephanie Miller/Enron@EnronXGate, Steve Walton/HOU/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Steven P South/Enron@EnronXGate, Randall L Gay/Enron@EnronXGate, Patti Sullivan/Enron@EnronXGate, Kristann Shireman/HOU/EES@EES, Robert Superty/HOU/ECT@ECT, Suzanne Calcagno/Enron@EnronXGate, Ed McMichael/Enron@EnronXGate, George F Smith/Enron@EnronXGate cc: Subject: FOR FINAL REVIEW -- ENA Comments in Support of Kern River

Attached for your review and comments are ENA's comments in support of Kern River's petition for a declaratory order relating to SoCal Gas' assertion that it has the first right to expansion capacity now being constructed in the California Emergency Action Project to add 135,000 Mcf/d of capacity to California that would come on-line during July.

The comments must be filed at FERC by Friday, June 15. If you have issues or comments, please contact Leslie Lawner or me as soon as you can. Leslie is at 505-623-6778 and my extension in Houston is 35840. If possible, e-mail us since we will both be traveling or at an off-site meeting beginning mid-day Wednesday.

Message 662 of 1299

Call for Papers for POWER Research Conference

Sender	pwpens@socrates.berkeley.edu
Recipients	[]
File	dasovich-j/notes_inbox/892.

CALLFORPAPERS

University of California Energy Institute

Sixth Annual POWER Research Conference on Electricity Industry Restructuring

The University of California Energy Institute's Program on Workable Energy Regulation (POWER) invites interested researchers to submit papers for a one day conference to be held in Berkeley on March 16, 2001. The purpose is to bring together outstanding researchers from around the world to exchange ideas and research results on topics related to electricity industry restructuring.

Topics will include any relevant analytic question associated with electricity industry restructuring including, but not limited to, the following subjects:

* Transmission management, pricing, and access * Operation of wholesale and retail electricity markets * The interaction of forward and spot electricity markets * International comparisons of electricity markets * Market power * Political economy of restructuring * Demand responsiveness and real-time pricing * Conservation, R&D, and low income programs after restructuring * Future role of regulation in electricity * Environmental effects of restructuring

Draft papers should be sent by December 1, 2000 to:

POWER Research Conference University of California Energy Institute 2539 Channing Way Berkeley, CA 94720-5180

Authors will be notified concerning acceptance for the Conference by January 2, 2001. Final papers will be due by February 28, 2001.

For inquiries concerning this Call for Papers contact: Severin Borenstein (510) 642-5145. email: borenste@haas.berkeley.edu James Bushnell (510) 642-9588. email: jimb@ieor.berkeley.edu

For Program Information on past conferences, please visit our website: http://www.ucei.org/power_conf.html

Message 663 of 1299

RE: Direct Access Application for Rehearing

Sender	jeff.dasovich@enron.com
Recipients	[susan.mara@enron.com', 'Lon W. House; Scott Blaising', 'jeff.dasovich@enron.com']
File	dasovich-j/sent_items/347.

Dan: The chamber of commerce (because it never really plays at the PUC) has decided to sign on to CMTA's letter that it will submit, rather than sign on to the ARM filing. Please remove them from the list of signatories. Thanks. Best, Jeff

-----Original Message-----

From: Dasovich, Jeff Sent: Thursday, September 27, 2001 6:03 PM To: Mara, Susan; 'douglass@energyattorney.com'
Subject: RE: Direct Access Application for Rehearing

Dan: Please add California Cast Metals Association to the list of signatories.

Thanks. Jeff

-----Original Message-----

From: Mara, Susan Sent: Thursday, September 27, 2001 5:09 PM To: Dasovich, Jeff Subject: FW: Direct Access Application for Rehearing Importance: High

Please forward this to those who agreed to sign on -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Thursday, September 27, 2001 3:06 PM To: ARM; 'Fairchild, Tracy'; Norm Plotkin; Gary Ackerman; Vicki Sandler; Anderson, Robert; Marilyn Ferrara; Herb Zinn; John Yurkanin; Max Bulk; Steve Huhman Cc: Lon W. House; Scott Blaising Subject: Direct Access Application for Rehearing Importance: High

Attached for your review and comment is a third draft of the application for rehearing. The main changes are (1) the addition of several more parties (and will those who arranged for these parties to sign on PLEASE forward a copy of this draft to your contacts so that they get to see it and know how to contact me with any comments or suggestions); and (2) a legislative history section which summarizes the various pertinent bills and resolutions.

Please reply with any comments or suggested changes as soon as possible. Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 664 of 1299

Fw: Enron's Secrets Revealed

Sender	jeff.dasovich@enron.com
Recipients	[nancy.sellers@robertmondavi.com', 'eldon@direcpc.com']
File	dasovich-j/sent/12175.

Jeez, this takes the cake. Cameron, Perfect may want to get the publication!

Best, Jeff

----- Original Message -----

From: "Global Change Associates" <pfusaro@nirvanasoft.com> To: <edasilv@enron.com> Sent: Friday, July 27, 2001 9:13 PM Subject: Enron's Secrets Revealed

How has Enron managed to achieve such success while other energy firms have struggled to deal with the changing market landscape?

Global Change Associates is pleased to announce the publication of a new corporate profile entitled, "Enron 2001: An Inside View". This objective study takes an insider's look at Enron, specifically, how the firm operates and the keys to its success. Much of the information provided comes from first hand accounts and covers areas such as:

? The firm's structure and operations ? The recruitment and training of new employees ? How Enron empowers and compensates its employees ? The keys to structuring Enron type "risk free" transactions ? How to negotiate with Enron ? Why Enron occasionally forgives counterparty obligations ? Is the Enron model right for your organization?

Enron 2001: An Inside View is a unique publication. It provides valuable insight into the firm's operations and analyzes its successes and failures. For those firms dealing directly with Enron, or thinking about adopting some of Enron's business practices, it is an invaluable, must have tool.

This innovative study is available for purchase at \$995.00.

For a detailed Table of Contents please open the attached file, Enron2001TOC. To order please go to www.global-change.com, click on "Reports" or complete the attached order form and fax to 212-625-8810.

For more information on this product please contact Alan M. Herbst at 212-625-1711 or via email at info@global-change.com.

To be removed from this distribution list, please reply with the word REMOVE in the subject line.

- Enron 2001TOC.pdf - Enron2001Order.pdf

Message 665 of 1299

Update on Dunn Witch Hunt Hearings

Sender	jmunoz@mcnallytemple.com
Recipients	[andybrwn@earthlink.net, 'abb@eslawfirm.com', 'cabaker@duke-energy.com']
File	dasovich-j/notes_inbox/12541.

Senator Dunn conducted a press briefing earlier today in regards to his "Select Committee to Investigate Price Manipulation of the Wholesale Energy Market." ?

Following is a summary of what was discussed:

Today's hearing: Where: ?Room 3191, 1pm Who: Carol Coy, South Coast Air Quality Management District SCE was invited but unable to attend due to the bankruptcy issue which apparently ?????consumes all of ?their time and resources.... Topic: ?The "laundering" of air emissions credits. ??Apparently the cost of air emissions credits is pushed up due to the laundering of credits by generators, and as a result should not be used to justify high electricity prices. ?

Upcoming Hearings: When: ?Friday, June 22 Topic: ?Plant operations Who: ?TBD

When: ?Friday, June 29 Who: ??GENERATORS TESTIFY

Other items discussed:

Documents requests issued to LADWP and DWR. ?LADWP has apparently been very very very "very cooperative" with the request. ? Subpoenas have been issued to Duke, Dynegy, AES, NRG, Enron, Reliant, Williams A subpoena was issued to SCE requesting the following information: ?1. ?Internal documents related to the surveillance of market competitiveness. ?2. ?Maintenance records and 3. ?Internal documents related to the sale of California generation assets. A subpoena was issued to Morgan Stanley, who was retained to prepare documents related to the sale of some of California's generation assets.

????????????? ?NOTE: ?The point is that the price paid for generation assets was "much higher" than many experts anticipated. ?The committee will be looking into whether generators purchased these assets at significantly higher prices because they knew they would have market power -- and the ability to set prices high.

Subpoenas will be issued to PG&E and SDG&E

Please feel free to call if you have any other questions. ?Thanks - Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

Message 666 of 1299

Got leads?

Sender	rwong@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'morel@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/deleted_items/1713.

Haas students:

We all know that recruiting is going to be a challenge this year and utilizing all available resources will heighten our chances for success. Haas students bring a wealth of contacts to the program and we in the Career Center want to be sure to tap into it to benefit your fellow classmates.

If you have a contact that you think would be interested in hearing about the ways that a company can connect with Haas students through either formal or informal recruiting events (on-campus presentations and interviews, job fairs, job postings, student club firm nights, etc.), please send us the person's contact info. It might be a hiring manager you worked with or for. It might be someone within the company's human resources department that has not interacted with Haas. It might be a personal contact that has a small business looking for that one key person. Regardless, we would appreciate the opportunity to pursue the potential recruiting contact. Please provide the following if available:

Contact name, company, title, phone number, email address, any additional recruiting-related info (type of position (s)he may be interested in recruiting MBA's for, past Haas/MBA hiring, etc.)

Depending on which industry your contact is in, please email your response to the appropriate account manager as follows:

Rich Wong - technology and entertainment/media - rwong@haas.berkeley.edu Jenny Rowe - consulting, consumer products, healthcare/biotech/medical devices, education, not-for-profit - rowe@haas.berkeley.edu Mark Friedfeld - finance/investment banking, real estate - friedfel@haas.berkeley.edu

On behalf of your Haas schoolmates, thanks for any leads you can provide.

Regards, The Haas Account Managers

Rich Wong Account Manager, Technology & Entertainment MBA Recruiting Haas School of Business Career Center 545 Student Services Building #1900 Berkeley, CA 94720-1900 ph: 510-643-4211 fax: 510-643-5257 email:rwong@haas.berkeley.edu

Message 667 of 1299

CPUC DRAFT DECISIONS RELEASED --Rate design for 3 cent Rate

Sender	jennifer.rudolph@enron.com
Recipients	['ca.team@enron.com']
File	dasovich-j/all_documents/12315.

* from Govt Affairs * DA customers are exempt from both plans

----- Forwarded by Jennifer Rudolph/HOU/EES on 05/10/2001

05:59 PM -----

Susan J Mara@ENRON 05/10/2001 04:23 PM

Apologies to those who already got this from Harry.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/10/2001 02:20 PM -----

Harry Kingerski 05/10/2001 12:31 PM

CORRECTION - last line, Monday, May 14

Harry Kingerski 05/10/2001 01:16 PM

2 proposed decisions were released last night by the California PUC - one by the Judge and one by Chairman Lynch.

Direct access customers are exempt from the surcharge. Each customer class is allocated an equal 3 cents, plus an amount to cover the shortfall from having residential usage up to 130% of baseline exempt from the surcharge (as required by law). Each decision allocates a substantial portion of the subsidy to non-residential classes, although Lynch does this to a lesser extent. The new rates become effective June 1, and the shortfall from the actual effective date of the increase, March 27, through June 1 will be amortized over 12 months. Residential rate design - 5 tiers will be put in place; the 5th tier (300+% of baseline) gets a 35 cent per kwh rate. Non-residential rate design - recommendations to put all of the increase into summer on-peak were rejected. About 60% of increase put into summer. Real Time Pricing was endorsed - will further explore in workshops starting later in May. Voluntary program will be started. In a vindictive outlash, Lynch decision requires federal facilities to pay market prices under new schedules to be developed by the utilities. Judge's decision seems to require surcharge to show up as a separate line item; Lynch's decision requires that it not be shown separately.

Oral argument occurs Friday and final decision is expected to be voted out Monday, June 14.

Message 668 of 1299

Utilities, Electric: Deregulation: PG&E moves to end rate freeze by

Sender	miyung.buster@enron.com
Recipients	['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/notes_inbox/809.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/04/2000 12:18 PM

djcustomclips@djinteractive.com 09/28/2000 01:19 PM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: PG&E moves to end rate freeze by 2002
PGO moves to end rate freeze by 2002 ? 09/25/2000 The Energy Report (c) Copyright 2000 Pasha Publications, Inc. All Rights Reserved.

Pacific Gas and Electric (PG&E) plans to raise additional capital to offset the mounting costs of wholesale energy in the California market and complete the divestiture of its generation assets, allowing it to charge its retail customers market rates, according to filings the company has made at the Securities and Exchange Commission (SEC).

In an 8-K filing, PGOCorp. told the SEC that its utility subsidiary may issue long-term debt to finance the high costs of wholesale electricity that plagued California's deregulated market this summer. In addition, PGO filed an application with the California Public Utilities Commission (PUC) on Sept. 8 requesting the authority to raise an additional \$1.4 billion in short-term financing, it told the SEC. This would be in addition to \$1.7 billion in short-term financing that the PUC has allowed PGO to raise, as well as an existing \$1 billion revolving credit facility the company has used to support commercial paper issuance.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 97

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 669 of 1299

Proposed Rule Changes: STATIONARY INTERNAL COMBUSTION ENGINES

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/28098.

On 6/20/01, I attended a Bay Area Air Quality Management District (BAAQMD) hearing regarding stationary internal combustion engines (including Diesel Standby Generators).

The proposed regulation was "framed" in the following context: BAAQMD is the only district in CA not now requiring permits for standby engines 3-5k units are estimated in Bay Area, Avg. 350hp

While the previous hearings (5/11) had promised the final draft by 5/20/01, the newest revisions were posted on Tuesday (6/19). Evidently there were last minute changes and a conclusion that the appropriate California Environmental Quality Act (CEQA) document needs changes. They may have another workshop, possibly before the August 1st meeting, although it wasn't clear if they can get the proper notices and input prior to that time.

The item was continued - Possible Final Action To Be Taken on August 1, 2001, although it may be continued again.

The new revisions are attached: <<r0908dr5.pdf>> <<r0201dr6.pdf>> They can be found at:
<http://www.baaqmd.gov/ruledev/reg-pmt/r0201ph1.htm>

MY CONCLUSIONS AND QUESTIONS/CONCERNS THAT REMAIN * It is doubtful that any rule change would be approved in time to provide relief for this summer (2001). * We remain under the old rule exemption for fixed standby generators that has a limit of 200 hours per year emergency runtime and 100 hours testing maximum. * In Regulation 2, Rule 1 - 114.2 - 2.3 states exemption for "Portable internal combustion engines and standby internal combustion engines which are at a location for less than 72 consecutive hours". Does this mean the previous guideline of BAAQMD not regulating mobile sources unless in place a year is now just 72 hours?

I am reviewing the proposed changes further and plan to participate in future workshops and the hearing on August 1, 2001.

...Steve Stephen Motzko, CSP Solectron Corporate EHS Manager Phone: 510-661-3979 Fax: 510-661-3992 email: stephenmotzko@ca.slr.com

- r0908dr5.pdf - r0201dr6.pdf

Message 670 of 1299

Fw: SBE Adopts Revised Rule 905

Sender	bhansen@lhom.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/inbox/775.

----- Original Message -----=20

From: Chris Micheli=20 To: Peter Michaels ; Hal Kessler ; Rina Venturini ; Mohammed Alrai ; Mike M= onagan ; Kent Robertson ; Katherine Potter ; Kassandra Gough ; Juan Rodrigu= ez ; Joe Ronan ; Jack Pigott ; Eileen Koch ; Bill Highlander ; Barbara LeVa= ke ; Aymee Ramos ; Theo Pahos ; Steve Ponder ; Stephanie Newell ; Scott Sad= ler ; Scott Govenar ; Ron Tom ; Richard Hyde ; Pete Conaty ; Paula Soos ; J= ulee Ball ; John Norwood ; Chuck Cole ; Carolyn McIntyre ; Bev Hansen ; Car= l London ; Thomas McMorrow ; Susan McCabe ; Steven Kelley ; Roger Pelote ; = Robert Ross ; Rachel King ; Phil Isenberg ; Maureen O'Haren ; Lynn Lednicky= ; Kent Palmerton ; Katie Kaplan ; John Stout ; John Larrea ; Jean Munoz ; = Jan Smutny Jones ; Hedy Govenar ; Greg Blue ; Delaney Hunter ; David Peters= ; Anne Kelly ; Andy Brown ; Will Brown ; Teresa Casazza ; Ron Roach ; Rex = Hime ; Matt Sutton ; Lorraine Albrecht ; Lisa Frank ; Lance Hastings ; LaJu= ne Bush ; Jot Condie ; Joe Ackler ; Jim Lites ; James Clark ; Greg Turner ;= Gina Rodriguez ; George Miller ; Gavin McHugh ; Fred Taugher ; Fred Pownal= l ; Fred Main ; Eric Miethke ; David R Doerr ; David Nagler ; Charles T Hal= nan ; Carolyn J. Veal-Hunter ; Brian Maas ; Barry Brokaw ; Amy E. Garrett= =20 Sent: Wednesday, October 24, 2001 4:05 PM Subject: SBE Adopts Revised Rule 905

The State Board of Equalization (SBE) earlier today voted 3-1 to adopt a re= vised Rule 905, to go to state assessment of power plants. They adopted th= e staff recommendation, but changed the effective date to January 1, 2003. = This is being done in an effort to "push the Legislature to act on AB 81 (= Migden)." The motion was made by Controller Connell and SBE Members Chiang= and Klehs voted in support. Parrish abstained, while Andal voted no.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 671 of 1299

Jim Cramer's Fall Forecast & Investing Strategy Conference - August

Sender	members@realmoney.com
Recipients	['members@realmoney.com']
File	dasovich-j/all_documents/28261.

Dear TSC community,

I know what you=01,re wondering; =01&When is everything going to turn arou= nd?=018

Everyone is wearing that question on his or her face. I call it THE LOOK: The look of disillusionment, of lethargy, of confusion. Of when will =01+the good times=01, return?

And everywhere I am, whether on CNBC, at my desk, or on Wall Street, I=01,m asked the same thing, =01&Cramer, when will the market turn around?= =018

And I say, =01&That=01,s not the question you should be asking. The question to be asked is =01+How are YOU are going to make money in THIS mar= ket?=018

Join me Monday evening, August 6 in New York City and I will show you how to choose winning stocks, steer clear of the losers, and identify the sectors that will side step the market=01,s volatility, and much more! All to make you money!

Don't look for a magic bullet to solve everything. It doesn't exist. Take action. I will show you how.

Register today! Save \$100 by registering before July 23rd !

I=01,m looking forward to seeing you in August.

Click here to register <http://www.seeuthere.com/event/579242482754> or call TheStreet.com Customer Service Department at 1-800-562-9571, Monday-Friday, 8am-8pm EST.

Sincerely,

Jim Cramer Co-founder/TheStreet.com Chief Markets Commentator/CNBC

This email has been sent to you by TheStreet.com because you are a current or former subscriber (either free-trial or paid) to one of our web sites, www.thestreet.com or www.realmoney.com. If you are not a current or former subscriber, and you believe you received this message in error, please forward this message to members@realmoney.com, or call our customer service department at 1-800-562-9571.

Please be assured that we respect the privacy of our subscribers. To view our privacy policy, please click here: <http://www.thestreet.com/tsc/about/privacy.html>

If you would prefer not to receive these types of emails from us in the future, please send us an email at any time to members@realmoney.com.

Message 672 of 1299

FW: EPUC Comments re DWR Decision

Sender	jeff.dasovich@enron.com
Recipients	['harry.kingerski@enron.com', 'susan.mara@enron.com', 'michael.tribolet@enron.com']
File	dasovich-j/sent_items/51.

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Tuesday, September 11, 2001 10:46 PM To: ARM; Vicki Sandler; Tamara Johnson; Mara, Susan; Steve Huhman; Roger Pelote; Rob Nichol; Randy Hickok; Nam Nguyen; Jim Crossen; Dasovich, Jeff; Janie Mollon; Jack Pigott; Greg Blue; George Vaughn; Gary Ackerman; Ed Cazalet; Denice Cazalet Purdum; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Miessner; Carolyn Baker; Bill Ross; Karen Shea; Max Bulk Subject: EPUC Comments re DWR Decision

Attached are EPUC's comments opposing the draft decision. They argue that, "The DD implicitly overstates the Commission's obligation under these provisions and, consequently, risks the public interest. While the Commission must assure recovery of the costs incurred by DWR, the statute does not require the Commission to assure full recovery of a fixed value in the face of variable assumptions. Failing to address these variables could lead to unnecessary rate increases and further injury to the state's economy. Moreover, while the Commission must adopt a "stop gap" allocation of DWR costs among utilities to determine who will make the payments, there is statutory requirement or practical need for a final, absolute allocation to be adopted before a more careful examination can be made."

EPUC concludes by saying that it, "urges the Commission to tailor narrowly its decision adopting a DWR revenue requirement. The Commission should adopt a mechanism, as described herein, that would limit or eliminate the difference between DWR actual costs and utility remittances. The Commission should also adopt only an interim inter-utility allocation, to be reconciled with a final methodology pending a careful and thorough examination of cost responsibility."

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

Message 673 of 1299

FW: TURN Comments on DWR Decision

Sender	jeff.dasovich@enron.com
Recipients	['harry.kingerski@enron.com', 'd..steffes@enron.com', 'michael.tribolet@enron.com']
File	dasovich-j/sent_items/52.

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Tuesday, September 11, 2001 10:30 PM To: Vicki Sandler; Tamara Johnson; Mara, Susan; Steve Huhman; Roger Pelote; Rob Nichol; Randy Hickok; Nam Nguyen; Jim Crossen; Dasovich, Jeff; Janie Mollon; Jack Pigott; Greg Blue; George Vaughn; Gary Ackerman; Ed Cazalet; Denice Cazalet Purdum; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Miessner; Carolyn Baker; Bill Ross; Karen Shea; Max Bulk; ARM Subject: TURN Comments on DWR Decision

As you know, a draft decision was issued a few days ago by ALJ Pulsiver regarding the DWR revenue requirement. Attached are TURN's comments. The introduction gives a cogent summary of the consumer group's view of DWR's demands:

"TURN continues to believe that CDWR has grossly inflated its revenue requirement by billions of dollars through the use of extremely high gas prices and ridiculously high ancillary service costs that are unrelated to current market conditions. We understand that CDWR has the right under the Water Code to completely ignore consumer interests, recognize that it has done so in this case, and have come to expect that the Department will continue to do so. CDWR, not the Commission, is the cause of a revenue requirement that is probably bloated by as much as \$2 billion of unnecessary costs."

TURN also concludes that the Draft Decision places too much of a burden on PG&E and advocates that the "Commission should also adopt TURN's weighted load method of allocating ancillary services among utilities so that PG&E's extensive self-provision of ancillary services is not siphoned off to benefit other utilities." Its suggested rates are shown on the following table:

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com><?xml:namespace prefix = o ns = "urn:schemas-microsoft-com:office:office" />

Message 674 of 1299

EvMBA Seminar in Int. Business 2001 - Spam Update	
Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/all_documents/8190.

Dear EvMBA students,

Please ignore this message if you did not apply for the summer international program.

Unfortunately, very few of the 56 people who applied managed to provide me with their e-mail addresses, hence the need for this spam message.

For those of you who applied, please note that you were asked for some specific information. Without this information your participation in the program can not be decided:

1. The semester level that you are currently (January 2001) enrolled in. (47 out of 56 provided this.) 2. Your e-mail address (25 out of 56 provided this.) 3. Your preferences for program (53 indicated a first preference, 27 indicated a second and only 8 indicated a third.) At a minimum please indicate your first preference. If no second preference is indicated you will ONLY be considered for the first preference.

In order to proceed I would like those of you who did not provide complete information to do so as soon as possible. Once I have complete information we will establish a priority list for each program.

A total of 5 people who have participated previously have applied to participate again.

Each program will enroll a maximum of 15 participants, for a total of 30. With 56 applicants we will thus not be able to accommodate everyone. We will, however, establish a waiting list. In 2000, we moved a total of 9 applicants from the initial

waiting list into actual participation.

We have not yet made a determination between the Latin America and Pacific destinations. Demand exceeds places for both. Given the recent (over the last few weeks) increase in unrest in Jakarta we are reconfirming the reasonableness of this destination.

Future messages will be sent to a specific e-mail alias.

Regards,

Sebastian

Sebastian Teunissen Director of International Affairs Haas School of Business University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228

<http://www.haas.berkeley.edu/HaasGlobal>

Message 675 of 1299

July 4th at Chronicle Pavilion

Sender	owner-evmba_social@haas.berkeley.edu
Recipients	['evmba_social@haas.berkeley.edu', 'admittedf01evmba@haas.berkeley.edu']
File	dasovich-j/all_documents/27843.

Date 7/4/01 Location Chronicle Pavilion in Concord Event American Independent Celebration with fireworks RSVP Due 6/29/01

Hello everyone, Hope the summer is going well and you are fully enjoying your time off. To once again help you with your recreation activities, we've planned another summer social event. On July 4th at the Chronicle Pavilion in Concord is the American Independent Celebration with fireworks. It's a patriotic family event with the California Symphony performing all your favorite American tunes (from Star Wars to the William Tell Overture). They also have appearances from kids choirs and individual singing artists. Last year they brought a horse and cowboy on stage during one of the Lone Ranger songs. It's a great event for kids and the family, and the finale with fireworks and real cannon fire will bring a patriotic tear to even the most masculine of men.

The prices are \$29 for lower reserved seats and \$24 for general admission. General admission for this show includes lawn seating and the upper seats. Ages 13-18 are only \$14 for general admission and children under 12 are free. The show starts at 8:00 pm, so it leaves plenty of time to celebrate at a friend's BBQ and then mosey over to the Pavilion to finish the night off. And best of all, there will be a section in the center lower lawn (prime spots!) reserved for the Haas group, so you don't need to arrive early for good seats. This spot will be staked out by Cindy - as she will be there early as part of the symphony. Her family and friends shoot the cannons in the finale. Depending on security, she may also be able to give tours of the authentic turn-of-the-century cannons to the children of the group.

Reply to Tony with RSVP's by 6/29/01. Again, we would appreciate if you buy your tickets directly through the Chronicle Pavilion at (925) 676-8742, or through Ticketmaster at (925) 685-8497. However, please do RSVP so that we may help with carpools, general organization and know how large a spot to reserve on the lawn.

Cindy Best & Tony Tai

Message 676 of 1299

Yes! Walters Column highlights CPUC Killing of Long-term contracts

Sender	susan.mara@enron.com
Recipients	['james.steffes@enron.com', 'richard.shapiro@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28938.

The word is getting out!

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/19/2001 11:06 AM -----

=09sue <smara@enron.com> =0907/19/2001 11:03 AM =09=09=20 =09=09 To: smara <smara@enron.com> =09=09 cc:=20 =09=09 Subject: Capitol Alert: Dan Walters: Political, financial mischief s= lide=20 quietly into annual state budget

This message was e-mailed to you from sacbee.com.

Dan Walters: Political, financial mischief slide quietly into annual state= =20 budget

(Published July 18, 2001)

As wholesale energy prices began to soar last year, California utilities=20 sought relief from the volatile spot market, including the authority to=20 negotiate long-term supply contracts.

=20 In early June 2000, the state Public Utilities Commission voted 3-2 -- wi= th=20 PUC President Loretta Lynch in strong dissent -- to allow long-term power= =20 purchases outside the California Power Exchange, which was then the only=20 permissible source.

A few days later, someone slipped into a complex, multipart bill related= =20

You can see the remainder of this story at:=20 http://www.capitolalert.com/news/capalert04_20010718.html

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Copyright =01, The Sacramento Bee=20 Dan Walters: Political, financial mischief slide quietly into annual state= =20 budget

(Published July 18, 2001) As wholesale energy prices began to soar last year, California utilities=20 sought relief from the volatile spot market, including the authority to=20 negotiate long-term supply contracts. In early June 2000, the state Public Utilities Commission voted 3-2 -- with= =20 PUC President Loretta Lynch in strong dissent -- to allow long-term power= =20 purchases outside the California Power Exchange, which was then the only=20 permissible source. A few days later, someone slipped into a complex, multipart bill related=20

You can see the rest of this story at:=20 http://www.capitolalert.com/news/capalert04_20010718.html=20 Copyright =01, The Sacramento Bee

Message 677 of 1299

EBA-Houston Chapter Luncheon -- February 14, 2001 -- California E

Sender	susan.scott@enron.com
Recipients	['Scott', 'Susan (Energy Bar Association Member Houston)', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/8663.

FYI ----- Forwarded by Susan Scott/ET&S/Enron on 01/26/2001 02:58 PM -----

"Caldwell, Charles" <ccaldwell@velaw.com> on 01/26/2001 02:26:18 PM To: Energy Bar Association Houston Members <IMCEAEX-_O=VINSON+20+26+20ELKINS_OU=VELAW_CN=RECIPIENTS_CN=Clients_cn=Energy+20Bar+20Association+20Houston+20Members@velaw.com> cc: "Scott, Susan (Energy Bar Association Member Houston)" <susan.scott@enron.com>, "Tran, Dat (Energy Bar Association Member Houston)" <dttran@duke-energy.com>

Subject: EBA-Houston Chapter Luncheon -- February 14, 2001 -- California E nergy Crisis

<<Houston_443501_1.DOC>>

Dear Energy Bar Association-Houston Chapter Member:

Attached is a notice of our first EBA Houston Chapter luncheon of 2001, scheduled for Wednesday, February 14th. We are pleased to have Brent Bailey, General Counsel of Duke Energy North America, and Jeff Dasovich, Director of Regulatory Affairs for Enron's California operations, joining us to share their perspectives on the energy crisis in California. This should be an interesting and timely discussion.

Please print out and return the attached notice to confirm your seat for the luncheon at the Hyatt Regency-Downtown. The notice will be distributed by mail as well.

See you there!

Charles F. Caldwell Vinson & Elkins L.L.P. 2300 First City Tower Houston, Texas 77002 Phone: 713-758-4518 Fax: 713-615-5087 Email: ccaldwell@velaw.com

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- Houston_443501_1.DOC

Message 678 of 1299

FERC Affirms ISO's Underscheduling Charge-- no BEEP Split -- Grants

Sender	susan.mara@enron.com
Recipients	['steve.walton@enron.com', 'mike.swerzbin@enron.com', 'tim.belden@enron.com', 'michael.driscoll@enron.com', 'l...
File	dasovich-j/all_documents/12656.

FERC issued three CA orders today. Ray Alvarez sent out a summary on the order related to increasing Generation and Transmission in the west. The report below came from IEP's attorney.

Underscheduling -- Enron has been on both sides on this issue -- here's what's happened

One CA order rejects the requests by PG&E, SoCal Edison and the CAISO to suspend the underscheduling penalty adopted in the December 15th Order. The Commission is currently reviewing data filed by the CAISO in conjunction with a request to waive the underscheduling and will address the underscheduling penalty in a future order. The Order does accept the CAISO's proposal to split the BEEP stack into Operating Reserves and Imbalance Energy.

QFs -- Ridgewood Complaint

The second order address QF issues. Granting, in part, Ridgewood and CCC's request for emergency relief, the Commission ruled that when QFs sell excess power or make third party sales as authorized by a court, the California utilities must provide interconnection and transmission service to make those sales. The Commission deferred decision on whether QFs that have not been fully paid can make third party bilateral sales.

Obstacles -- Subject of Ray's earlier e-mail

The third order addresses obstacles to increased energy supply. The Commission takes a number of actions, including allowing premium returns on equity (200 basis points) and accelerated depreciation (10 years) for projects that increase transmission capacity in the short term (July 1, 2001). The basis points go down if the project comes on later. The order also allows rolled-in treatment of interconnection and upgrade costs for new supply, broadens and extends QF waivers of operating and efficiency standards, waives prior notice requirements and grants market-based rate authority for sales from back-up and self-generation in WSCC, authorizes certain demand side sales and management programs, and encourages pipeline construction projects.

More to follow when we review the orders.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 679 of 1299

PDF Attachment-Request for Confidential Information by the GAO

Sender	terri_l_ponce_de_leon@calpx.com
Recipients	['market_participant_cd2@calpx.com', 'px_marketing_services@calpx.com', 'market_participant_ab1@calpx.com']
File	dasovich-j/notes_inbox/761.

A PDF version of the original letter is attached below.

To All California Power Exchange Participants:

Notice is hereby provided pursuant to Section 19.3.4 of the California Power Exchange Tariff that the United States General Accounting Office (GAO), as part of the ongoing investigation of California markets, has requested the same information to be provided to the Federal Energy Regulatory Commission (FERC). Such information may be confidential under Section 19.3.2 of the Tariff. The manner in which the GAO will treat such confidential information is outlined in the attached letter. The GAO states that it has authority under 31 U.S.C. 717 to evaluate programs or activities of the Federal Government, in this case, deregulation of the electricity markets initiated by FERC.

The GAO has requested the California Power Exchange to provide such information no later than Thursday, October 5, 2000. If you desire to assert a claim of privilege or confidentiality pursuant to legal authority, the California Power Exchange will include your written assertion of that claim together with its submittal to the GAO, provided that it is timely received. Your written statement should be directed to the GAO as follows:

Mr. Jim Wells Director, Energy Resources, and Science Issues United States General Accounting Office Washington, DC 20548

You may deliver your statement to the California Power Exchange as follows:

Karen Koyano California Power Exchange 1000 S. Fremont Avenue Unit 20 Alhambra, CA 91801 626.537.3173 facsimile

Any written statement must be received by Ms. Koyano no later than Wednesday, October 4, 2000, 5:00 p.m. Pacific Daylight Time, to be included with any information delivered to the GAO. You are also free to take any other legal action you may deem appropriate in the circumstances of this investigation.

Thank you.

(See attached file: GAO Letter 9-22-00.pdf)

- GAO Letter 9-22-00.pdf

Message 680 of 1299

Re: Teams

Sender	jeff.dasovich@enron.com
Recipients	['christine.piesco@oracle.com', 'dwindham@uclink4.berkeley.edu', 'jjackson@haas.berkeley.edu', 'jcjal02@aol.c...
File	dasovich-j/all_documents/1975.

Hi Christine:

Yes, forwarded the email you sent last week. Here's where folks came out. First, we think that the folks in your first group are mean. Second, it's a real challenge managing a group of four and there's concern that five will break the camel's back. Suggestion came up that it might be much more manageable if you could try to link up with a smaller group first. If there's a problem finding a smaller group, then we could try to do five and hope the ship don't sink?

Sound reasonable?

Best, Jeff

Christine Piesco <christine.piesco@oracle.com> 10/02/2000 01:14 PM

To: Jeff.Dasovich@enron.com cc: Subject: Re: Teams

Jeff,

Have you had a chance to convey what I said to the group, and can I join? Professor Aceves was aware that I talked to you about joining your group, and he sent me an email asking to confirm that I was now in a group. I'd certainly like to be! As you know, I want to make sure I am in one to do the next assignment with. Please let me know, so that if I am joining your group I can make the meetings and contribute to the next case. I do really appreciate your help. :)

Thanks, Christine

Jeff.Dasovich@enron.com wrote:

Christine: My apologies. My schedule melted down after we talked on Monday. Here's where folks came out. There's some concern about size. We're supposed to be no larger than 3, but we lobbied Aceves and he apparently Ok'd our "oversized" group. The other folks in the group--who talked to him originally--are pretty sure that five will violate the rules. Folks wondered if there were other groups that are smaller than ours that you could hook up with. Sorry about that---it's a wrinkle that I didn't think about when we spoke. If it gets real ugly trying to find a smaller group, let me know. Fortunately there's not another team case due for two weeks. Best, Jeff

-- Christine Piesco Industrials Account Manager Oracle Corporation 500 Oracle Parkway Redwood Shores, CA 94065
Phone: (650) 506-3640 Fax: (650) 633-3753 christine.piesco@oracle.com

- christine.piesco.vcf

Message 681 of 1299

E206, Main ideas of cases

Sender	villas@haas.berkeley.edu
Recipients	['abernath@haas.berkeley.edu', 'blanchar@haas.berkeley.edu']
File	dasovich-j/mba__marketing/10.

Some of you have asked me to give you a brief summary of the main ideas in=20 the cases until this week. Please find below such summary, and the readings=20 that are most associated with each case. Miguel

Main Ideas for Cases until this week

"Fieldcrest: St. Mary=01,s Blankets" (introduction to marketing analysis and basic concepts)

Marketing-Mix - 4 P=01,s=20 Consumer analysis=20 Trade analysis Push or Pull marketing programs

"Xerox Corporation: The Customer Satisfaction Program" (customer needs; W: Chap. 1, pp. 364-367; you may also want to look at pp.= 20 391-397 for extra reading)

Customer needs and marketing concept=20 Customer satisfaction Implementation of Customer Satisfaction programs
Choice of a product guarantee - signaling quality

"Procter & Gamble Company (A)" (segmentation and marketing strategy; W: Chap. 3 and Chap. 5, "Note on=20 Consumer Market Segmentation")

benefit segmentation =3D> product positioning product line logic in positioning and segmentation problem of cannibalization in product introductions interbrand competition versus coordination communications of desired positioning issue of umbrella branding break-even analysis

"Barco Projection Systems (A)" (product strategy and segmentation; W: pp.65-71, pp. 111-118, pp. 176-186;= 20 after the course you may also want to look at Chap. 15 for extra reading on= 20 technology-based industries) (also competitive pricing which are covered in th and th sessions)

Strategic segmentation using product line Price dynamics in technology based industries R&D competition Understanding the competitors

"EMI and the CT Scanner (A) & (B)" All material until 4th session

"Tweeter, etc." (Pricing, competitive strategies; W: Chap. 7 and 11)

"Dell Online" (Distribution channels, W: Chap. 9)

"Ford Motor Co." All material in course =20

J. Miguel Villas-Boas Associate Professor Haas School of Business University of California at Berkeley Berkeley CA 94720-1900 (510) 642-1250 Fax: (510) 643-1420 e-mail: villas@haas.berkeley.edu

<http://www.haas.berkeley.edu/~market/PROFILES/PROFS/villas.html>

Message 682 of 1299

Utilities, Electric: Deregulation: Electric Utilities Ask U.S.

Sender	miyung.buster@enron.com
Recipients	['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/notes_inbox/829.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/05/2000 09:41 AM

djcustomclips@djinteractive.com 09/29/2000 09:43 AM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: Electric Utilities Ask U.S. Agency for Help
Metropolitan Desk; Section B Electric Utilities Ask U.S. Agency for Help By Joseph P. Fried ? 09/29/2000 The New York Times Page 6, Column 5 c. 2000 New York Times Company

Consolidated Edison and Orange and Rockland Utilities urged federal energy regulators yesterday to reform New York State's wholesale electricity market to reduce energy prices.

The utility companies, blamed by many of their customers for this summer's high electricity bills, contended that they were not responsible for the higher charges, which they called the result of excessively high wholesale energy costs in the state's deregulated electricity market.

The utilities' request came in papers filed with the Federal Energy Regulatory Commission in a proceeding involving the New York State Independent System Operator, which administers the wholesale energy market in the state.

Among the changes the two utilities urged was revision of Independent System Operator "market rules and procedures that discourage economically efficient imports" of electricity from other regions, like New England. They also called for changes in rules power generators must follow, to avoid severe day-to-day fluctuation in electricity prices. Joseph P. Fried

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 98

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 683 of 1299

PUC filling

Sender	jeff.dasovich@enron.com
Recipients	['dominic.dimare@calchamber.com', 'dimare@enron.com']
File	dasovich-j/sent_items/318.

FYI. Don't think it's anything that raises any concerns, but since you're signing on, thought you might want to peruse.

Best, Jeff

-----Original Message-----

From: Dan Douglass [mailto:douglass@earthlink.net] Sent: Thursday, September 27, 2001 1:16 AM To: ARM; Gary Ackerman; Vicki Sandler; Anderson, Robert; Max Bulk; John Yurkanin; Steve Huhman; Mike Day; Paul Fenn Subject:

Attached for your review and comment is a revised draft of the application for rehearing to be filed on Friday the 28th. There are two primary changes. The California Chamber of Commerce has been added to the application and an argument has been added that the Decision contradicts the most recent legislative intent expressed in ABX2 9 that direct access continue, at least for aggregation and community choice purposes. Any and all comments will be very much appreciated. Also, I would appreciate it if Sue Mara would forward the document to her contact at the Chamber so that they can also review the draft. Thanks! Dan Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

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*Message 684 of 1299***Washington, DC Dept. Meeting**

Sender	ginger.dernehl@enron.com
Recipients	['scott.stoness@enron.com', 'laura.glenn@enron.com', 'joan.stransky@enron.com', 'helen.rizzo@enron.com', 'vale...]
File	dasovich-j/all_documents/963.

Please read this e:mail carefully, detailed information to follow.

The next Government Affairs-The Americas department meeting is quickly approaching us. The meeting will take place at:

The Ritz-Carlton Tyson's Corner 1700 Tyson's Boulevard McLean, VA 22102 Phone# 703-506-4300 Guest Fax# 703-506-2694

Attached to this e:mail you will find a document with the listed confirmation #'s for each of you who require an overnight stay. Please note, another hotel has been contacted for reservations for several individuals because the block of rooms at The Ritz-Carlton ran out. The document does show who will be staying at the other hotel (The DoubleTree, Tyson's Corner, please note address on attachment). Also, please confirm the arrival/departure date on the rooming list. It is very important that this information be correct. For those staying at the Doubletree Hotel, I have requested shuttle service for the morning of the 13th at 7:15am for travel to The Ritz Carlton hotel.

Tuesday, September 12 ---- The first item on the agenda is dinner on September 12 (day of arrival). Dinner will take place at Maggiano's Little Italy Restaurant at 7pm. The restaurant is located in the Mall at Tyson's Corner which is connected to The Ritz Carlton. The dress for this restaurant is casual to business casual. Please confirm your attendance with me again. I'd like to get an accurate head count.

Wednesday, September 13 ----- Department Meeting: Meeting will begin at 8:00am with a continental breakfast available starting at 7:15am. The location of the meeting will be in Salon I (located on the 5th floor). Lunch will take place at 12:00 (noon) and end at 1:30pm. The extra time for the lunch hour will allow for checking messages. The breakout sessions will start at 2:15pm and conclude by 4:00pm. The sessions will take place in the Consulate Room and The Plaza Room which are both located on the 6th floor. An agenda is attached to this e:mail for your viewing. Dress for the meeting will be casual to business casual.

Thanks and please call if you have any questions.

gngr

*Message 685 of 1299***RE: Conf call with Cameron and Ian**

Sender	isullivan@perfect.com
Recipients	['cameron@perfect.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28338.

Enron notes to discuss tomorrow...

Background: 1. Late March - we met with members of GSS (Global Strategic Sourcing group) and the CIO from ETS (Enron Transportation Services) 2. Mid May - we showed a demo to a mix of EES (Enron Energy Services), GSS (John Gillespie, John Will, Craig Brown), and ETS contacts 3. EES and ETS were interested, mentioned DealBench as too costly for their needs, we followed with a proposal to GSS for a Pilot, response was that we need to get a divisions on board 4. Late June (6/28) - met with 2 contacts from EES (Procurement Mgrs who were in the May mtg, they suggested we show how our system can help their upstream counterparts who structure the "deals" (since the Proc. Mgrs are simply the downstream execution piece), they also mentioned that GSS is busy with SAP/C1 ibuyit rollout right now

Questions: 1. Who are the "deal makers", what is their function, what tools do they use, how do we best position our solution with them? 2. How are decisions made? Should we target a solution to a particular division e.g. EES? Our contacts have said solutions are purchased both through GSS as a "gatekeeper" and by a single division on its own (as there seems to be a number of maverick projects going on at the moment)

-----Original Message-----

From: Robin Deguara Sent: Thursday, July 05, 2001 9:34 AM To: Cameron Sellers Subject: FW: Conf call with Cameron and Ian

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Thursday, July 05, 2001 9:12 AM To: Robin Deguara Subject: Re: Conf call with Cameron and Ian

8 AM. 10 AM. 3 PM. Best, Jeff

Robin Deguara <robin@perfect To: "'jeff_dasovich@enron.com'"

t.com> <jeff_dasovich@enron.com>

cc:

06/29/2001 Subject: Conf call with Cameron and Ian 06:51 PM

Jeff,

Please provide me with three time slots you would be available to have a conf call on Friday the 6th between Cameron and Ian. Thank you,

Robin Deguara Executive Assistant <<...OLE_Obj...>> Perfect Commerce, Inc. tel: 650-798-3367 fax: 650-858-1095 email: robin@perfect.com

Message 686 of 1299

AB 256

Sender	susan.mara@enron.com
Recipients	['vicki.sharp@enron.com', 'mike.smith@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11952.

Below are the notes from our lobbyist who attended the meeting today of opponents for the language to change the requirements for those getting e-signatures for selling products and services to small customers. From the diversity of the group opposing the bill and the fact that the Attorney General and Peace are involved, I recommend that we stay on the sidelines and monitor this. The bill applies to small customers so it does not effect us at present. What are your thoughts?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/12/2001 10:39 PM -----

"Scott Govenar" <sgovenar@govadv.com> 07/12/2001 04:59 PM Please respond to sgovenar

To: "Jeff Dasovich" <jdasovic@enron.com>, "Susan J Mara" <smara@enron.com> cc: Subject: AB 256

As I mentioned earlier this week, my associate Cliff Berg, representing AOL, co-sponsored a meeting in our office today regarding AB 256 (Wayne). The meeting was run by Kay Caldwell on behalf of the Internet Alliance. Kay was the one who contacted Jeff Dodd in Houston who I believe contacted one or both of you.

The bill is being opposed by AOL, Microsoft, Charles Schwab, CMTA, Chamber, GTE/Verizon, AEA, Retailers, Financial Services Association and the Internet Alliance. All of those parties are scheduled to meet with Assembly Member Wayne at different times on Wednesday to try and get him to drop the bill which is being sponsored by the Attorney General. In the event that fails, the group is also trying to get the bill double-referred to the Senate Banking Committee where they

have a much better chance of stopping it versus the Senate Judiciary Committee. The bill will be heard by the Judiciary Committee on August 21.

With respect to Enron's participation in any opposition effort, there was some concern that the Judiciary Committee may not be the best place because Peace is on that committee and would likely do anything to get at Enron (support?). Regardless of anyone's concerns we could submit a letter of opposition so long as someone provides me with the general framework.

Please advise.

Scott

Message 687 of 1299

EnronOnline	
Sender	sarah.novosel@enron.com
Recipients	['richard.shapiro@enron.com', 'linda.robertson@enron.com']
File	dasovich-j/all_documents/28343.

As you may recall, Portland General submitted a request to FERC for authorization to use EnronOnline. Due to FERC's affiliate restrictions, PGE currently is not able to use EnronOnline and is concerned that it is being excluded from parts of the market due to the restrictions. We made a similar filing on behalf of EPMI, proposing to remove the affiliate restrictions for those transactions that EPMI enters into with PGE through EnronOnline.

The PGE and EPMI filings are on FERC's July 11 agenda. Although the FERC staffers conducting the inquiry into EnronOnline have told us that their inquiry is not related to the PGE and EPMI applications, FERC's order will be the first pronouncement from FERC on EnronOnline since this new inquiry began.

We'll keep you posted and will send out the order as soon as we receive it. Please let me know if you have any questions.

Sarah

----- Forwarded by Sarah Novosel/Corp/Enron on 07/06/2001 09:10 AM -----

"CATHERINE MCCARTHY" <CPMCCART@LLGM.COM> 07/05/2001 10:26 AM

To: sarah.novosel@enron.com cc: "SAMUEL BEHREND" <SBEHREND@LLGM.COM> Subject: EnronOnline

The EPMI and Portland General EnronOnline filings are on next week's FERC agenda (July 11). We will forward the draft order to you as soon as we receive it.

Cathy

Catherine P. McCarthy LeBoeuf, Lamb, Greene & MacRae, LLP 1875 Connecticut Avenue, NW Washington, DC 20009
(202) 986-8253 cpmccart@llgm.com

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- sunshine_3.htm

*Message 688 of 1299***Nexis.com Focus Group Participants Needed**

Sender	msimpson@shugollresearch.com
Recipients	[]
File	dasovich-j/notes_inbox/5458.

Lexis-Nexis has been a trusted source of real-time and archival information for 28 years. Continuing the Lexis-Nexis tradition of providing the most comprehensive and credible information in the marketplace, the nexis.comSM Web interface was released to our corporate subscribers in Fall 2000. To determine the applicability of this interface for graduate schools of business, Lexis-Nexis has entered into a pilot program with select leading business schools. As a pilot program participant at The University of California - Berkeley, Haas School of Business, Lexis Nexis has provided you with unlimited access to its nexis.com service. All they want in return is your opinion on how well the nexis.com service meets your expectations.

To best understand how the nexis.com service meets your needs, Lexis-Nexis has chosen an independent market research firm, Shugoll Research, to conduct a research study with pilot program participants like yourself. This is strictly market research and there is absolutely no sales effort involved. The research will be used to identify ways that the nexis.com service can be improved.

We urge you to participate in this research. Focus group research has been scheduled for:

February 12, 2001 at 4 PM In the Haas School of Business

All qualified participants will receive an honorarium as a token of our appreciation for their time and opinions. All of your answers will be kept strictly confidential.

If you are interested in participating, or simply learning more about this important research, please contact Shugoll Research one of two ways:

1. E-mail Shugoll Research at research@shugollresearch.com. Please include your first name, a telephone number and the best time of day to reach you so a representative from Shugoll Research can contact you. 2. Call Shugoll Research toll free at 800-322-4499 and identify yourself as someone who has been invited to participate in the nexis.com research.

Thank you in advance for your participation in this very important research.

Maegan Simpson Research Associate Shugoll Research 7475 Wisconsin Ave. Suite 200 Bethesda, MD 20814 (301) 656-0310 x109 www.shugollresearch.com

*Message 689 of 1299***Re: Affiliate Relook case [PLEASE RESPOND TODAY]**

Sender	jeff.dasovich@enron.com
Recipients	['paul.kaufman@enron.com', 'Susan J', 'James D Steffes/NA/Enron@Enron', 'Harry Kingerski/NA/Enron@Enron']
File	dasovich-j/sent/3620.

It's a love fest! How goes it?

Paul Kaufman@ECT 03/13/2001 11:26 AM

To: Richard Shapiro/NA/Enron@ENRON cc: Jeff Dasovich, Susan J Mara/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron Subject: Re: Affiliate Relook case [PLEASE RESPOND TODAY]

I agree as well.

Richard Shapiro@ENRON 03/13/2001 09:28 AM To: Jeff Dasovich/NA/Enron@Enron cc: James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Sandra McCubbin/NA/Enron@Enron Subject: Re: Affiliate Relook case [PLEASE RESPOND TODAY]

Agree.

From: Jeff Dasovich on 03/13/2001 11:24 AM Sent by: Jeff Dasovich To: James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron cc:

Subject: Affiliate Relook case [PLEASE RESPOND TODAY]

Given everything that we've got on our plate, and the relative priority of the affiliate issue, and the fact that ARM and Wild Goose are involved, I would propose that we take a pass on this one. Thoughts?

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 03/13/2001 11:18 AM -----

JMcTarnaghan <JMcTarnaghan@GMSSR.COM> 03/13/2001 10:59 AM

To: "smara@enron.com" <smara@enron.com>, "Jeff Dasovich" <jdasovic@enron.com> cc: Subject: Affiliate Relook case [PLEASE RESPOND TODAY]

Dear Jeff and Sue:

Sorry to be a broken record on this one....but I don't know what you want to do about the Affiliates case. There is a PHC tomorrow and comments were filed. SCE's comments make a nasty jab at Enron for proposing the rules in the first place. I see that AREM is participating as well. If your plan is to participate in this proceeding only through AREM, that's fine but please let me know so that I can remove my appearance. I will be at the PHC for Wild Goose but would like to be very clear about who I am representing in the docket in order to avoid confusion.

Thanks,

Jim McTarnaghan Goodin, MacBride, Squeri, Ritchie & Day 505 Sansome Street, Suite 900 San Francisco, CA 94111 415-765-8409 (Direct Line) 415-398-4321 (Fax) jmct@gmssr.com (Email)

Message 690 of 1299

RE: Special Energy Committee Formed

Sender	smccabe@mccabeandcompany.net
Recipients	['sgovenar@govadv.com', 'kent.palmerton@williams.com', 'jmball@ns.net', 'thackbarth@govadv.com', 'sfmccabe@min...]
File	dasovich-j/notes_inbox/5860.

Thanks for the info. Marie Moretti and I have new e-mail addresses. They are: mmoretti@mccabeandcompany.net and smccabe@mccabeandcompany.net Our new office address is 1215 K Street, Suite 2005, Sacramento, CA 95814 Phone number: (916) 552-2666.

-----Original Message-----

From: Julee Malinowski-Ball [mailto:jmball@ns.net] Sent: Monday, January 08, 2001 3:02 PM To: kent Palmerton; Bill Carlson; Bill Woods; Bob Ellery; Bob Escalante; Carolyn Baker; Curtis Kebler; David Keane; David Parquet; Dean Gosselin; Duane Nelson; Ed Tomeo; Frank DeRosa; Greg Blue; Hap Boyd; Jack Pigott; Jeff Dasovich; Jim Willey; Joe Greco; Joe Ronan; John Stout; Jonathan Weisgall; Cassandra Gough; Ken Hoffman; Kent Fickett; Lynn Lednick; Marty McFadden; Nam Nguyen; Paula Soos; Richard Hyde; Robert Lamkin; Roger Pelote; Stephanie Newell; Steve Ponder; Steven Kelley; Sue Mara; Tandy McMannes; Tony Wetzel; Trond Aschehoug; William Hall Cc: Susan McCabe; Scott Govenar; Ron Tom; Robert Ross; Phil Isenberg; Mike Monagan; Maureen OHaren; Marie Moretti; Cassandra Gough; Jenn Paulsen; Jamie Parker; Hedy Govenar; DJ Smith; Delany Hunter; Cary Rudman; Bev Hansen; Anne Kelly; Chuck Cole

Subject: Special Energy Committee Formed

Asm. Speaker Bob Hertzberg announced today the formation of a special committee that will "hold public hearings across the state, shape legislation and probe financial practices among utility generators."

"The committee will work with the staff of the Speaker's Office of Oversight to determine how utility companies have spent the money they received for their stranded costs, and what generators have done with their dramatic influx of cash."

The members of the Assembly Committee on Energy Costs and Availability are: Rod Wright - D - Chair Anthony Pescetti - R - Vice-chair Fred Keeley - D Darrell Steinberg - D Juan Vargas - D Jenny Oropeza - D Manny Diaz - D Charlene Zettle - R Keith Richman - R Dick Dickerson - R Joe Canciamilla - D John Dutra - D Hannah-Beth Jackson - D Carole Migden - D Sarah Reyes - D Bill Leonard - R John Campbell - R Mike Briggs - R

(11-D, 7-R)

Julee Malinowski-Ball Senior Associate Edson + Modsette 916-552-7070 FAX-552-7075 jmball@ns.net

Message 691 of 1299

Re: Draft questions on regulatory aspects of bandwidth trading

Sender	lara.leibman@enron.com
Recipients	['wayne.gardner@enron.com', 'donald.lassere@enron.com', 'jeff.dasovich@enron.com', 'sue.nord@enron.com']
File	dasovich-j/notes_inbox/1484.

I'm fine with Thursdays as long as the meetings take place in Houston, not Houstons. :+)

Jeff Dasovich@ENRON Sent by: Jeff Dasovich@ENRON 11/07/00 10:15 AM

To: Wayne Gardner/Enron Communications@ENRON COMMUNICATIONS, Sue Nord/NA/Enron@Enron, Donald Lassere/Enron Communications@Enron Communications, Scott Bolton/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications cc: Subject: Re: Draft questions on regulatory aspects of bandwidth trading

Wayne: If you insist, we can pass on Thanksgiving.

Others: Any problems with changing the meeting to Thursdays? If the meetings are going to continue on a weekly basis, I'd like to try to attend in person as much as possible (i.e., schedule permitting). Currently, my schedule doesn't permit me to be in Houstons on Wednesday mornings. But Thursdays would work. If it makes things too complicated, not a problem.

Best, Jeff

Wayne Gardner@ENRON COMMUNICATIONS 11/06/2000 06:08 PM

To: Jeff Dasovich/Na/Enron@ENRON cc: Subject: Re: Draft questions on regulatory aspects of bandwidth trading

Thursdays would be OK by me provided that we don't have to meet on Thanksgiving.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Jeff Dasovich@ENRON Sent by: Jeff Dasovich@ENRON 06/11/2000 17:17

To: Wayne Gardner/Enron Communications@Enron Communications cc: Subject: Re: Draft questions on regulatory aspects of bandwidth trading

Greetings Wayne:

Sorry that I missed the last meeting. I'll be attending by phone this week, but would like to attend in person as often as I can (understanding that our meetings will be weekly). Now don't shoot me, but I was wondering if it might be possible to have the meetings on Thursday mornings. That way I could actually be in Houston for the meetings (which my schedule

doesn't permit me to do on Wednesdays). If it's too complicated, don't sweat it; I can continue to do the meetings by phone. But if Thursdays can fit into folks' schedule, that would be great. Thanks and talk to you on Wednesday.

Best, Jeff

Message 692 of 1299

Town Hall Meeting	
Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/13276.

ENERGY COMMITTEE MEMBERS: (Please pass on as appropriate)

Congresswoman Anna Eshoo has organized a town hall meeting to bring everyone together to talk about what residential and commercial customers can do during the current energy crisis, and to promote energy efficiency and conservation.

The event will be held 9:00 - 11:00am, on Saturday, June 2, 2001, at the Menlo Park campus of the USGS at 345 Middlefield Road, Menlo Park. Directions are attached below.

Panel speakers will focus on recent Federal and State action and energy efficiency and conservation. Speakers include Ambassador Dick Sklar, Assemblyman Joe Simitian, Ralph Cavanagh of NRDC and local business owner Larry Hassett.

Please join us on Saturday for Congresswoman Anna Eshoo's Town Hall Meeting. If you have questions, please call the Congresswoman's Palo Alto office at 650-323-2984

DIRECTIONS: The USGS campus is actually on Survey Lane, a short road (1 block long) south of Middlefield Road between Marsh Rd and Willow Rd in Menlo Park.

US 101: take the Willow Road exit. Take Willow Road south / west towards Menlo Park about one mile, and turn right onto Middlefield Road. Take the second left onto Survey Lane.

I-280 from the South: Take I-280 N to Highway 85 N (towards Mountain View). Take US-101 N to the Willow Road exit. Take Willow Road about a mile, and turn right onto Middlefield Road. Take the second left onto Survey Lane.

To Use Public Transportation on the Peninsula: Take Caltrain to the Menlo Park Station. Caltrain schedules can be obtained at www.caltrain.com or by calling 1-800-660-4287. Thanks to SamTrans, a special shuttle will be available at the Menlo Park station starting at 8:20am to take those arriving by train to the USGS campus. The special shuttle will also be available after the townhall meeting to return to the Menlo Park station. The shuttle is ADA accessible. Also note, the train station is less than a mile to the USGS campus. To bike or walk to the campus, head south from the train station about 100 yards to Ravenswood Avenue. TURN LEFT (east) and go down Ravenswood Avenue about a half a mile to Middlefield Road, turn right (south) and the campus is on the right side of the street.

Message 693 of 1299

Summer Seminars in Political Economy (July 9-13 & August 13-17)	
Sender	cclose@independent.org
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/12516.

Dear Jeff,

SUMMER SEMINARS IN POLITICAL ECONOMY: July 9-13 & August 13-17

How sound an economics education are American students getting? If a recent study of high school history textbooks is indicative, the answer is very discouraging. The economists who authored that study examined 12 history texts for their treatment of the Great Depression. Only two of the texts correctly identified the fall in the money supply as a cause of the Great Depression, while ten blamed "overproduction" or "excess capacity" in various industries -- hypotheses that mainstream economic researchers rejected decades ago.

The bottom line? Even when a student is lucky enough to have a teacher that teaches valid economic principles, that student is likely being taught an interpretation of history that contradicts those principles.

To help high school and college-age students learn to reason about economics, history and politics, The Independent Institute is sponsoring two Summer Seminars in Political Economy. These dynamic seminars will help students learn what economics is, how it affects their lives, and how understanding its laws can help them achieve the things they care about.

TOPICS INCLUDE -- Economics and Liberty: How the West grew richer and politically freer -- Market Chaos or Hidden Order? How markets coordinate people's plans -- Monopoly or Competition? How market incentives improve the quality of life -- Market Failure or Government Failure? Inflation, recession and government policy

INSTRUCTOR -- Joseph Fuhrig, Professor of Economics and Finance, Golden Gate University

TIME -- 8:30 AM - 12 NOON, July 9-13 or August 13-17 (choice of session depends on availability)

TUITION -- \$175

Room and board and one unit of college credit through Holy Names College in Oakland, Calif., are also available at extra cost.

WHERE The Independent Institute 100 Swan Way Oakland, CA 94621-1428

More information, see <http://www.independent.org/tii/students/SummerSeminar.html> or contact Carl Close, Academic Affairs Director at The Independent Institute at cclose@independent.org or (510) 632-1366.

For "The Great Depression and History Textbooks," by Thomas F. Cargill and Thomas Mayer, see <http://www.fte.org/teachers/readings.htm>

Message 694 of 1299

Want to save \$100 AND have a chance to be Cramer's personal guest

Sender	members@realmoney.com
Recipients	['members@realmoney.com']
File	dasovich-j/all_documents/29098.

3 weeks ago we told you that by registering for the August 6th =01&Live! From NYC =01) Cramer=01,s Fall Forecast & Investing Strategy=018 conference, you will gain an invaluable set of tools and techniques that will show you how to build your own investment strategy & fulfill your financial goals.

We also told you that by registering by today, you would receive an early bird discount of \$100 off the registration price.

As an added bonus, by registering for the conference, you will have the chance to be in the radio studio while Jim Cramer is on the air with his new daily financial show, =01&Jim Cramer=01,s Real Money Talk=018.

Jim will pick 2 conference attendees names at random the evening of the conference to come with a guest and watch him conduct the show live from our studio at TheStreet.com New York City Headquarters.

The limited space at our intimate venue is filling up. Be sure to register TODAY for this exclusive opportunity!

Again, the conference & cocktail reception is Monday evening, August 6 in New York City at American Conference Centers, 780 3rd Avenue between 48th and 49th Streets.

If you do only one thing this summer to advance your professional standing or secure your personal fortune, be sure to attend this event! Wednesday is your last day to take advantage of the early bird discount!

We look forward to seeing you there.

Click here to register <http://www.thestreetevents.com/0803> or call TheStreet.com Customer Service Department at 1-800-562-9571, Monday-Friday, 8am-6pm EST.

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Message 695 of 1299

RE: Answers

Sender	asama@yahoo.com
Recipients	['jeff_dasovich@enron.com', 'jeff.dasovich@enron.com', 'mark_guinney@watsonwyatt.com', 'cvavrek@deloitte.com', ...]
File	dasovich-j/notes_inbox/5276.

Hi Team,

I ran my own numbers this morning, and verified what you guys have sent out. I think we can use Mark's or Jeff's write-up as is. Just have one clarification re: Q2 - my?spreadsheet shows that if we increase ad expenses for five years only '94-'98 (as opposed to in perpetuity), then the stock price ends up being 22.73 v/s Mark's 22.20. I do get 22.20 if?I also increase the 6th year ('99) expenses to 27% - perhaps this was an oversight - can someone pls confirm?

For Q5, merely changing terminal growth to 4%, and WACC to 10% gets us to an \$80 stock price.?But?4% in perpetuity is probably unrealistic?

Re: the last question, I agree with Mark's analysis - firms that have huge R&D cycles and patent protection over 17 years etc. e.g. pharmas would be good candidates for foreacsting over a longer term horizon.

Rest looks great - you guys are awesome!!

-Anil

? "Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> wrote:

got your messages + attachments and mark's - WOW + THANKS!! also calc'd it all myself will review + compare + send around comments -cv Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Sunday, February 18, 2001 8:26 PM To: Mark Guinney Cc: asama@yahoo.com; cvavrek@deloitte.com; Jeff.Dasovich@enron.com; Jeff_Dasovich@enron.com Subject: Re: Answers

Since it seems like folks may have only been sporadically receiving my emails, please let me know if you receive the memos and accompanying spreadsheets that I just sent.? Thanks.

Best, Jeff

This message (including any attachments) contains confidential information intended for a specific individual and purpose, and is protected by law.? If you are not the intended recipient, you should delete this message and are hereby notified that any disclosure, copying, or distribution of this message, or the taking of any action based on it, is strictly prohibited.

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Message 696 of 1299

Corbett Press Conference

Sender	cmicheli@carpentersnodgrass.com
Recipients	['steven@iepa.com', 'smccabe@mccabeandcompany.net', 'smara@enron.com']
File	dasovich-j/notes_inbox/3595.

This morning Assemblywoman Ellen Corbett held a press conference on her AB 128x.? Several print journalists and 3 TV cameras were present at the conference.? Also of interest is that the Senate tax consultants and Burton's staff were at the event.? Assemblywoman Hannah-Beth Jackson showed up late and gave a few quotes to the media present.? A spokesman from Mirant also gave a few interviews after the press conference. According to Corbett's staff, they expect to handout the bill amendments at the hearing. Among Corbett's comments to the media present: "This bill is not a negotiating tool.? I'm very serious about this bill.? I want to see it through the process.? The Governor will sign a bill like this." The following?amendments are to be presented at the committee hearing today as follows: AB 128X 1) Creates a Tax on Excess Gross Receipts from Electrical Energy Distribution?(called a "tax on excess greed") 2) Imposes a tax on the first sale of electricity by generators and middlemen. 3) Establishes as the measure for the tax, the amount by which the gross receipts exceed a specified price ("the base price").? The measure of tax is called the excess gross receipts. 4) Creates a 3-tier system of rates as follows: a) Sales price more than the base price but not more than 150% of the base price, tax rate = 50% b) Sales price more than 150% of the base price but not more than 200% of the base price, tax rate = 70% c) Sales price more than 200% of the base price, tax rate = 90% 5) Creates a rebuttable presumption that the base price represents a fair sales price. 6)? Adds a mechanism to require withholding of the tax by purchasers. Residential consumers and small business are exempt. 7)? Requires sellers to file annual tax returns to report the tax on excess gross receipts and pay any remaining tax due. 8)? The measure sunsets after five (5) years. There will be a report after today's Assembly Rev & Tax Cmte hearing. As opposed to SB 1x that returns the taxes raised to ratepayers, AB 128x would "repay" the State's General Fund.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251 FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 697 of 1299

FW: AReM's 2nd draft of comments responding to Carl Wood

Sender	d..steffes@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/inbox/1497.

FYI -----Original Message----- From: Steffes, James D. Sent: Thursday, November 01, 2001 8:42 PM To: Mara, Susan; Williams, Robert C.; Smith, Mike; Wu, Andrew Subject: RE: AReM's 2nd draft of comments responding to Carl Wood

Sue --

My thoughts on the filing.

1. Pretty hard line with Comm Wood. I don't have any problems with it as written, but comments like "CYA not Calif Youth Admin" is not appropriate. 2. We don't deal with the requirement to submit contracts? Should AReM address this? My understanding is that for contracts with customers below 20kw we need to submit something (maybe with the price and term blacked-out)? Is this correct? 3. In the conclusion, don't we want to ask the PUC to take some affirmative action - tell the industry that they will never implement retroactive suspension, that there is no cost shifting, and that DA customers can extend without penalty? The filing simply asks for no harm.

Thanks,

Jim

-----Original Message-----

From: Mara, Susan Sent: Thursday, November 01, 2001 4:39 PM To: Williams, Robert C.; Steffes, James D.; Smith, Mike; Wu, Andrew Subject: AReM's 2nd draft of comments responding to Carl Wood Importance: High

Gang,

Here is a current draft of AReM's comments due tomorrow. Let me know if you have comments. Enron will not be submitting comments separately.

Sue -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Thursday, November 01, 2001 1:37 PM To: ARM; Gary Ackerman; Bob Anderson; Curt Hatton Subject: SECOND DRAFT OF TOMORROW'S COMMENTS Importance: High

Attached for your review and comment is a second draft of tomorrow's comments on the Wood ACR. I have added a significantly expanded section dealing with how the Commission's inaction and subsequent action contributed to the flow of customers back and forth between DA and bundled service. My thanks to Aaron Thomas for his assistance on this section.

Also, I have deleted the "CYA - not the California Youth Authority" quip -- I had to have some fun while writing this on Halloween night!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 698 of 1299

Re: CONFIDENTIAL- FERC SETTLEMENT DISCUSSIONS

Sender	susan.mara@enron.com
Recipients	['alan.comnes@enron.com', 'jeff.dasovich@enron.com', 'ray.alvarez@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/12287.

CONFIDENTIAL -- FERC SETTLEMENT DISCUSSIONS

I have proposed quite a few changes and additions to the list. I also ask some questions re some of the items listed. I added a section on Retail Reforms -- we cannot settle with the state unless we settle everything -- otherwise we know the outcome to expect.

regarding your question on hourly day ahead markets -- I assume you're referring to the energy market that the PX used to run, because the CAISO already has day-ahead markets for congestion and ancillary services. I discussed this proposal with Tim in March because the ISO's filing at FERC for market reforms had the ISO setting up such a market -- essentially putting the former PX inside the ISO (and for all you historians, finally creating the dream of POOLCO for California). Tim asked us to oppose that proposal -- his view at the time was that we didn't want the ISO running energy markets, because

private third parties could do a much better job of that. So, we opposed that in our filings commenting on the ISO's proposal in March.

I'll be in the office Wednesday (Oops! Today). Can we discuss this list and where we are headed?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Ray Alvarez 06/26/2001 05:46 PM

To: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Alan Comnes/Enron@EnronXGate, Tim Belden/Enron@EnronXGate, jeff.richter@enron.com cc: James D Steffes/NA/Enron@Enron, Robert Frank/NA/Enron@Enron Subject: CONFIDENTIAL Necessary Market Reforms for CA.

For your review/comment. We are potentially submitting these points into settlement discussions. Do we want to propose that the CAISO develop the systems to implement hourly day ahead markets? Is this ok with Jeff Richter? Ray

----- Forwarded by Ray Alvarez/NA/Enron on 06/26/2001 08:36

PM -----

Ray Alvarez 06/26/2001 08:29 PM To: biggsbg@bp.com, harry.singh@neg.pge.com, rloeffler@mofo.com, john-meyer@reliantenergy.com, ddickson@avistaenergy.com, doug.little@powerex.com, linda.lee@ferc.fed.us cc: James D Steffes/NA/Enron@Enron, Robert Frank/NA/Enron@Enron

Subject: CONFIDENTIAL Necessary Market Reforms for CA.

Per our discussion, please find attached the first draft of the referenced document.

Message 699 of 1299

RE: hey whassup?

Sender	jeff.dasovich@enron.com
Recipients	[csilva@redsky.com]
File	dasovich-j/all_documents/28535.

....where geniuses speak...

Colleen Silva <Csilva@redsky.com> 07/10/2001 03:03 PM

To: "'Jeff.Dasovich@enron.com'" <Jeff.Dasovich@enron.com> cc: Subject: RE: hey whassup?

yay, kisses and no i didn't know about eggars, where is he speaking?

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, July 10, 2001 12:53 PM To: Colleen Silva Subject: RE: hey whassup?

fear not o boisterous one. you know that eggars is speaking in SF in the fall, right?

Colleen Silva

<Csilva@redsk To: "'Jeff.Dasovich@enron.com'"

y.com> <Jeff.Dasovich@enron.com>

cc:

07/10/2001 Subject: RE: hey whassup?

02:50 PM

darling boy-

i'm never mad at you, never ever, and i really do adore you to death and forever and can't bear the idea that we wouldn't be friends till death do us part, and that i wouldn't be welcome in your life, so no, i was never mad and don't even remember which of my (many) soliloquys you may have interrupted or are referring to but i do know that i have a rather boisterous personality and perhaps i stepped on your toes and this is not my intention and i adore you and my company is about to go under so the idea of being unemployed AND having you upset with me is far too much for my delicate self to handle...

xo colleen

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Tuesday, July 10, 2001 12:48 PM To: Colleen Silva Subject: Re: hey whassup?

i was never mad at you. i thought that you were mad at me for interrupting your soliloquy.

Colleen Silva

<Csilva@redsk To: "jdasovic@enron.com"

y.com> <jdasovic@enron.com>

cc:

07/10/2001 Subject: hey whassup?

02:26 PM

you still mad at moi?

don't be.... -----++

colleen silva producer RED SKY >san francisco v 415-633-2023 c 415-336-2219 <<http://www.redsky.com>>

Message 700 of 1299

Re: Re[2]:PowerPoint info

Sender	jeff.dasovich@enron.com
Recipients	['mark_guinney@watsonwyatt.com']
File	dasovich-j/sent/4236.

Not a problem. My concern is less about you and me---we both have views and are comfortable with the back and forth banter.

I'm actually concerned about Carolyn. She has worked hard on this, and I think wants to be involved and participatory. I had the sense that she was feeling that she'd done a bunch of work that was ending up on the cutting room floor and that she wasn't getting a real opportunity to participate in the shaping of the analysis, the presentation, or responsibility for taking a piece of the presentation for Thursday. I was sensing that she was frustrated.

Anil is also less extroverted, but based on discussions with him, I think that he is less concerned because he has some other pretty cosmic things on his plate right now.

My real concern is that everyone feels comfortable, understanding that working in groups is all about compromise, and that one should really expect to get about 70% or less of one's views included in a final product, given the nature of group dynamic.

I think we're getting close to something that everyone will good about, which is a pretty good goal to go after.

Thanks a bunch for the note.

Best, Jeff

"Guinney, Mark" <Mark_Guinney@watsonwyatt.com> 04/23/2001 08:08 AM

To: "\"Jeff.Dasovich@enron.com\" " <Jeff.Dasovich@enron.com> cc: Subject: Re[2]:PowerPoint info

Hey Jeff,

I hope you don't take anything personally when I disagree with you. You are a very bright guy and a good speaker with good ideas. There are always going to be disagreements when you get 4 opinionated people together. Anyway, please get me your numbers by tomorrow so I can spend Tuesday night plugging things in and getting the presentation in good working order. I want Anil to take a final crack at it Wednesday so everyone can give comments and be done by Thursday.

mark

***** Mark D. Guinney, CFA Consultant Watson Wyatt Investment Consulting 345 California Street, Ste. 1400 San Francisco, CA 94104 (415) 733-4487 ph. (415) 733-4190 fax

Reply Separator _____ Subject: Re:PowerPoint info Author:
"Jeff.Dasovich@enron.com" <SMTP:Jeff.Dasovich@enron.com> Date: 04/23/2001 11:19 AM

Thanks. Could you please send around the model, too? I want to use for the financials table.

Best, Jeff

Message 701 of 1299

FW: Draft Application for Rehearing

Sender	susan.mara@enron.com
Recipients	['harry.kingerski@enron.com', 'richard.shapiro@enron.com', 'd..steffes@enron.com']
File	dasovich-j/deleted_items/1638.

I'm taking a look at this now. Dan says we need to file this Friday to make sure we meet the 10-day requirement in the statute. Will be trying to get individual customers to sign on as well. Already have call in to UC/CSU attorney. -----Original Message----- From: Dan Douglass [mailto:douglass@earthlink.net] Sent: Sunday, September 23, 2001 12:08 AM To: ARM; Gary Ackerman; Vicki Sandler; Anderson, Robert; Marilyn Ferrara; Max Bulk; John Yurkanin; Steve Huhman Subject: Draft Application for Rehearing

Attached for your review and comment is a draft application for rehearing of the Commission's Thursday Decision 01-09-060 suspending the right of direct access. Although we have prevailed (at least for now) on the issue of retroactivity, the decision still violates various provisions of state and federal law. If any party wishes to preserve the right to legally challenge this decision, it must file an application for rehearing within ten days. The attached draft is tentatively dated September 28, meaning that it would be filed next Friday.

The primary reasons cited for why rehearing should be granted are as follows:

The Decision violates procedural due process guarantees.

The failure to hold hearings violates Public Utilities Code section 1708.5(f).

The Commission's reliance on material outside the record violates due process.

The Decision violates the Commerce Clause of the United States Constitution.

The threatened retroactivity is contrary to law and in excess of the Commission's authority.

The Commission acted contrary to law and in excess of its authority.

The Decision's purported findings are not supported.

The Commission has impermissibly converted a ratemaking proceeding into a quasi-legislative proceeding.

Although WPTF members have not had an opportunity to consider whether they wish to support such a filing, WPTF is included as a named party in the attached because of the fact that AREM and WPTF have jointly made numerous other filings in this proceeding. WPTF members will need to determine if they wish to support this effort.

I look forward to seeing your comments. Thanks, and have a good weekend!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

Message 702 of 1299

CA supply offers

Sender	carin.nersesian@enron.com
Recipients	[jeff.dasovich@enron.com]
File	dasovich-j/notes_inbox/4682.

Jeff,

I work with Tom Briggs here in Washington, DC. He forwarded your email regarding the Enron's offers to CA utilities (bottom email). I was hoping you could write me a quick explanation of what that chart is talking about. Both Tom and I were a bit confused about what was trying to be relayed.

Thanks!

Carin Nersesian Legislative Coordinator Enron Corp. 1775 Eye St. NW, Suite 800 Washington, DC 20006 202-466-9144 (ph.) 202-828-3372 (fax)

----- Forwarded by Tom Briggs/NA/Enron on 03/21/2001 03:53 PM -----

Miyung Buster@ENRON_DEVELOPMENT 03/21/2001 03:51 PM

To: James D Steffes/NA/Enron@ENRON cc: Jeff Dasovich/NA/Enron@Enron, Linda Robertson/NA/Enron@ENRON, Janel Guerrero/Corp/Enron@Enron, Steven J Kean/NA/Enron@Enron, Tom Briggs/NA/Enron@Enron Subject: Re: Summary of Supply Offers in California

Jim, here are the articles I found regarding offers made from Enron. Sorry, I placed these in your chair on Friday, and I didn't realize that you were not in the office.

James D Steffes@ENRON 03/20/2001 12:02 PM

To: Miyung Buster/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Subject: Summary of Supply Offers in California

Any luck on public information about offers last year?

Jim

----- Forwarded by James D Steffes/NA/Enron on 03/20/2001 12:02 PM -----

Jeff Dasovich Sent by: Jeff Dasovich 03/19/2001 08:24 PM

To: James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, skean@enron.com, Susan J Mara/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Harry Kingerski/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Janel Guerrero/Corp/Enron@Enron, Karen Denne/Corp/Enron@ENRON, mpalmer@enron.com, Alan Comnes/PDX/ECT@ECT cc: Subject: Summary of Supply Offers in California

Jim:

Attached is a fairly distilled summary of the projects Enron's offered to the utilities, DWR and the ISO over the past 9-12 months, or so. With respect to the power contracts offered to the IOUs, only the offers accepted by PG&E and Edison are included---the desk doesn't keep records of offers rejected, only offers accepted. However, I'm fairly confident that I can dig deeper and get more info on the other power deals offered to Edison, PG&E and SDG&E if folks would like that information. Just let me know. Prices are included for the offers that had prices attached when submitted.

Best, Jeff

Message 703 of 1299

FW: Action Needed for Veto on Workers' Comp Bill (SB 71)

Sender jeff.dasovich@enron.com

Recipients ['susan.mara@enron.com', 'richard.shapiro@enron.com', 'd..steffes@enron.com']

File dasovich-j/sent_items/25.

FYI. -----Original Message----- From: Geri L. Royer [mailto:groyer@cmta.net] Sent: Friday, September 07, 2001 5:57 PM
To: undisclosed-recipients Subject: Action Needed for Veto on Workers' Comp Bill (SB 71) Importance: High

To: CMTA Members

From: Jack M. Stewart

Date: September 7, 2001

Re: Action Needed for Veto on Workers' Comp Bill (SB 71)

The Senate concurred in the Assembly amendments to the workers' compensation benefits bill on September 6 . The bill is now on its way to the Governor. The bill, SB 71 (Burton), would cost employers

\$3.6 billion over 5 years with no substantive changes to help offset the increased cost. The quick passage of the bill by the Senate ends any speculation that Senator Burton may be in a negotiating mood.

There was some hope that some negotiation would ensue after the Governor

entered the fray on Thursday, August 30 by revealing a \$1.5 billion proposal that was significantly less expensive and onerous to employers. However, the proposal caused Senator Burton and his co-author, Assemblyman Calderon, to call a hasty press conference where the governor's proposal was characterized as a slap in the face to labor. Senator Burton predicted that a veto of SB 71 would spark a ballot initiative (that could double employers' costs). He also thought the veto would be an invitation for injured workers to vote for former Los Angeles Mayor Dick Riordan or someone else.

Steve Smith, Director, Department of Industrial Relations and the governor's point person on workers' compensation said, "the governor's plan became public only after it was presented to a group of labor leaders and it was intended to stimulate discussion about how best to get a workers' compensation bill that the governor is comfortable with." Smith dismissed the threat of labor turning to someone else in the next election because the governor has stood with working Californians on issue after issue and he would be shocked if they were considering endorsing someone else.

Now that the bill is on the Governor's desk, it is imperative that employers write the Governor requesting a veto. For information on SB 71 go to the CMTA web site at <http://www.cmta.net/issues/index>.

The address for the Governor's Office is:

The Honorable Gray Davis Governor of California State Capitol Sacramento, CA 95814

Phone: 916.445.2841 Fax: 916.445.4633

governor@governor.ca.gov

Message 704 of 1299

homework (one more time)

Sender	allison@haas.berkeley.edu
Recipients	[e201b-2@haas.berkeley.edu', 'e201b-1@haas.berkeley.edu']
File	dasovich-j/all_documents/78.

I noticed that many of you were not signed up on this alias, so I apologize to those of you who are receiving this twice.

-Shawn

Message below from Professor Levine regarding E201B:

Dear Macro class,

This message concerns the first macroeconomics class, which will be held next week October 21, 22 in C210. Please read in the textbook "The Science of Macroeconomics" and "The Data of Macroeconomics," Mankiw Chapters 1 and 2.

You should start receiving the Financial Times a few days before class begins. If you do not receive your first copy before class begins, please contact Shawn Allison (allison@haas).

Homework zero. Please do before first class, but do not hand in:

1. List three ways in which GDP over- or understates a nation's typical standard of living. 2. List 2 reasons why the CPI might over- or understate the true inflation rate. 3. What are 3 reasons why it matters if the CPI is accurate? 4. Please look in the Financial Times and find a story that fits your name. A) If your first name begins with A-D, find a story concerning why living standards and output per capita differ so much between one or more richer and poorer countries. B) If your first name begins with E-K, find a story concerning persistently high or low unemployment and inflation. C) If your first name begins with L-O, find a story concerning interest rates and central bank policies. D) If your first name begins with P-S, find a story concerning exchange rates and one or more of trade deficits, the current account, or capital mobility. E) If your first name begins with T-Z, find a story concerning government macroeconomic policy and/or corruption.

I look forward to meeting you all in a few days. Good luck on your finals this week. Please remind classmates to sign onto the email alias e201b-1 or e201b-2 (they are identical), as only 39 people total have signed up.

Till soon,

- David

David I. Levine Associate professor Haas School of Business ph: 510/642-1697 University of California fax: 510/643-1420 Berkeley CA 94720-1900 email: levine@haas.berkeley.edu <http://web.haas.berkeley.edu/www/levine/>

Shawn Allison, Associate Director Evening MBA Program, Haas School of Business University of California, Berkeley Tel (510) 643-0435 Fax (510) 643-5902

Message 705 of 1299

Utilities, Electric: Deregulation: USA: Calif. utilities seek ISO

Sender	miyung.buster@enron.com
Recipients	[steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/notes_inbox/870.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/09/2000 09:27 AM

djcustomclips@djinteractive.com 10/04/2000 04:25 PM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: USA: Calif. utilities seek ISO power price cap cut to ...

Reuters USA: Calif. utilities seek ISO power price cap cut to \$100. ? 10/04/2000 Reuters English News Service (C)
Reuters Limited 2000.

SAN FRANCISCO, Oct 4 (Reuters) - Pacific Gas and Electric Co (PG&E) said Wednesday it is joining with Southern California Edison and a California consumer group to seek a reduction of the Independent System Operator (ISO) price cap for electricity to \$100.00 per megawatt hour (MWh) from the current \$250.00 cap.

PG&E, the utility subsidiary of San Francisco-based PGOCorp. , proposed the lower price cap as part of a broader package of steps it is taking to "make sure the California power market can operate more efficiently," a company official told reporters at a briefing here.

Southern California Edison is the utility subsidiary of Edison International , based in Rosemead, Calif.

PGOsaid the request was backed by The Utility Reform Network (TURN), a San Francisco-based consumer group that has protested against soaring electricity prices as a result of California's bid to deregulate its electricity industry.

The California ISO, established as part of the deregulation effort, oversees the operation of about 75 percent of the state's power grid, serving some 27 million people.

The move by PGOand Edison follows a summer of chaos in the California power market, where a shortage of electricity generated within the state and open market power pricing sent the cost of wholesale power to nearly twice its historical average, frequently trading above the proposed \$100.00 cap.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 97

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 706 of 1299

Re: problem set mix-up and brief feedback

Sender	xzhang@haas.berkeley.edu
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/108.

Dear Jeff: Thank you very much for your feedback. I will try to facilitate future discussions and keep the class on track. Some of the discussion we had yesterday are not quite closely related to the course material (such as valuation of internet stocks), but I decided to spend some time talking about that just to enhance students' understanding regarding application of the model. I don't think I received the e-mail from your girlfriend. Please ask her to send it to me again today. I will pass it on to the grader. Regards,

At 10:56 AM 10/26/99 -0500, you wrote:

professor zhang: first, as i mentioned during the break, i apologize for having forgot to bring my homework to class, but my girlfriend (who coincidentally is in the day program) should have e-mailed it to you on my behalf during class last evening, which i hope meets the deadline. if not, i understand. and if, for some reason, you have not received it, please let me know. (in addition, i apologize for having mis-labeled the homework as "macroeconomics." i do know the difference between financial accounting and macro, so don't be alarmed.) i assure you that such mix-ups will not happen again. second, since i'm writing, i thought i would take the opportunity to offer a very minor piece of feedback. first, let me say i'm very much enjoying the course, and from my perspective, it is fine that you choose to distribute the notes for a class after the class has taken place. with that in mind, i think we as a class would benefit if you were a bit more "aggressive" in facilitating class discussion. it is a fascinating

group of individuals with very interesting questions and points of view. and i have already benefited immensely from my association with my classmates. but you happen to be fairly interesting as well, and some times the discussion can wander or go on for some time, which takes away from your instruction. finally, some of us have many questions, while others have fewer. striking a balance between the two is clearly a challenge, but attempts to do so may have some benefits. again, i think the course is going very well and this is a minor piece of feedback. best, jeff

Xiao-Jun Zhang Assistant Professor U.C. Berkeley, Haas School of Business 545 Student Services Building, #1900 Berkeley, CA 94720-1900 Tel: (510) 642-4789, Fax: (510) 642-4700 E-Mail: xzhang@haas.berkeley.edu

Message 707 of 1299

Introducing NASDAQ-100 Index TIERS (sm)

Sender	bes.prod@schwab.com
Recipients	['jdasovic@enron.com']
File	dasovich-j/all_documents/10682.

Introducing NASDAQ-100 Index TIERS (sm) Principal-Protected* Trust Certificates

TIERS Nasdaq-100 Principal-Protected* Trust Certificates are securities whose return is linked to the performance of the Nasdaq-100 Index. At maturity, the Trust is scheduled to repay the entire principal amount of the certificates, plus an amount based on the return of the Nasdaq-100 Index subject to a quarterly appreciation cap of 12%.

Payment to the trust will be guaranteed pursuant to the terms of a financial guaranty insurance policy issued by Ambac Assurance Corporation.

Expected to be Aaa rating by Moody's and AAA rating by Standard & Poor's.

Expected to be priced April 11, 2001. Expected offering price is \$10 per certificate.

For more information and a copy of the prospectus, please go to:

<http://www.schwabnet.com/tiers/>

or

Speak with a Specialized Product Representative at 1-800-551-1001 ext. 33 from 5:30 a.m. to 3:00 p.m. PDT.

* When held to maturity.

A registration statement relating to these securities has been filed with the Securities and Exchange Commission but has not yet become effective. These securities may not be sold nor may offers to buy be accepted prior to the time the registration statement becomes effective. This communication shall not constitute an offer to sell or the solicitation of an offer to buy nor shall there be any sales of these securities in any jurisdiction in which the offer, solicitation or sale would be unlawful prior to registration or qualification under the securities laws of any such State.

"TIERS" is a registered service mark of Salomon Smith Barney

Charles Schwab & Co. 101 Montgomery Street San Francisco, CA 94104

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<https://investing.schwab.com/trading/start?SANC=ROSEmail>

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Message 708 of 1299

Request for Confidential Information by the US GAO

Sender	jeff.dasovich@enron.com
Recipients	['richard.shapiro@enron.com', 'joe.hartsoe@enron.com', 'richard.sanders@enron.com']
File	dasovich-j/all_documents/1931.

----- Forwarded by Jeff Dasovich/NA/Enron on 09/29/2000 06:04 PM -----

<Terri_L_Ponce_de_Leon@calpx.com> 09/29/2000 05:53 PM

To: Market_Participant_AB1@calpx.com, Market_Participant_CD2@calpx.com, Market_Participant_EG1@calpx.com, Market_Participant_HJ1@calpx.com, Market_Participant_KL2@calpx.com, Market_Participant_MN1@calpx.com, Market_Participant_MN2@calpx.com, Market_Participant_OR1@calpx.com, Market_Participant_OR2@calpx.com cc: PX_Marketing_Services@calpx.com Subject: Request for Confidential Information by the GAO

To All California Power Exchange Participants:

Notice is hereby provided pursuant to Section 19.3.4 of the California Power Exchange Tariff that the United States General Accounting Office (GAO), as part of the ongoing investigation of California markets, has requested the same information to be provided to the Federal Energy Regulatory Commission (FERC). Such information may be confidential under Section 19.3.2 of the Tariff. The manner in which the GAO will treat such confidential information is outlined in the attached letter. The GAO states that it has authority under 31 U.S.C. 717 to evaluate programs or activities of the Federal Government, in this case, deregulation of the electricity markets initiated by FERC.

The GAO has requested the California Power Exchange to provide such information no later than Thursday, October 5, 2000. If you desire to assert a claim of privilege or confidentiality pursuant to legal authority, the California Power Exchange will include your written assertion of that claim together with its submittal to the GAO, provided that it is timely received. Your written statement should be directed to the GAO as follows:

Mr. Jim Wells Director, Energy Resources, and Science Issues United States General Accounting Office Washington, DC 20548

You may deliver your statement to the California Power Exchange as follows:

Karen Koyano California Power Exchange 1000 S. Fremont Avenue Unit 20 Alhambra, CA 91801 626.537.3173 facsimile

Any written statement must be received by Ms. Koyano no later than Wednesday, October 4, 2000, 5:00 p.m. Pacific Daylight Time, to be included with any information delivered to the GAO. You are also free to take any other legal action you may deem appropriate in the circumstances of this investigation.

Thank you.

(See attached file: GAO Letter 9-22-00.doc)

- GAO Letter 9-22-00.doc

Message 709 of 1299

Enron Support from OC Register Editorial "...side with the law

Sender	susan.mara@enron.com
Recipients	['steven.kean@enron.com', 'karen.denne@enron.com', 'mark.palmer@enron.com']
File	dasovich-j/all_documents/28858.

In case you didn't see it 7/16/01 -- Palmer quoted Senate power play jolts Enron 'The whole thing stinks to high heaven.' That was the assessment Adrian Moore, executive director of Reason Public Policy Institute, gave of a state Senate committee's recent move to hold Enron Corp. in contempt for refusing to hand over subpoenaed documents. We're inclined to agree. The Texas-based energy merchant has filed a countersuit in Sacramento Superior Court, arguing that the Senate has no right to wield influence beyond state borders and that putting the documents into public view "jeopardized confidential business information," the Register reported Thursday. The court should order the Senate either to make its document request more specific or to drop the contempt charge and subpoena altogether. Robert Levy, a constitutional law expert at the Cato Institute, told us that Enron's point about disclosing confidential information will be its strongest argument in court. While Enron can't hide behind state borders, Levy says the Senate's request is not tailored narrowly enough to ensure information that could damage Enron's market viability is not released. He said the Senate should have to let a judge decide whether releasing the documents is necessary for its investigation and avoids unfairly harming Enron. Instead, the full Senate just has to approve the committee's recommendation for Enron's executives to become criminals. "It seems to me that's a scary proposition," Levy said. "Why should the Senate have such plenary power?" Good question. Moore told us it's because the energy crisis has created an "all-bets-are-off" situation in Sacramento, where anything goes so long as it's attacking the energy companies. Because Enron is just a merchant, not a producer, of energy, it couldn't have had much at all to do with manipulating the market. "It's impossible," Enron spokesman Mark Palmer told us Friday. "We don't have anything to withhold. We don't have an interest in high prices in California. We're just interested in a marketplace that works." Added Moore, "It's pretty hard to spin a realistic scenario where they (Enron) engaged in gouging." Moore said a judge's recent ruling that criticized Davis' allegations against energy producers gives hope the Sacramento court very likely could side with the law rather than the witchhunt. Here's hoping he's right.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 710 of 1299

FW: CAISO Notice: Market Notice re: Credit Issues

Sender	kaplan@iepa.com
Recipients	['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com']
File	dasovich-j/all_documents/11134.

FYI, this was ISO's response on Friday to the Credit Worthiness issue

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

-----Original Message-----

From: Happ, Susan [mailto:SHapp@caiso.com] On Behalf Of Fuller, Don Sent: Friday, April 13, 2001 4:22 PM To: ISO Market Participants Subject: CAISO Notice: Market Notice re: Credit Issues Importance: High

Market Notice re Credit Issues

In response to the FERC order of April 6, 2001 re the issue of creditworthiness, the California Department of Water Resources (DWR) has authorized the ISO to make the following statement. To the extent (and only to the extent) that a purchase is not otherwise paid by any party or payable by another party meeting the credit standards set forth in the ISO Tariff (another "Qualified Party"), DWR will assume financial responsibility for all purchases by the ISO in its ancillary

services and imbalance energy markets based on bids or other offers determined to be reasonable. Such determination of reasonableness will be made by DWR on a case by case basis and communicated to the ISO. All bids into the ancillary services and imbalance energy markets will be deemed to be contingent on the acceptance of financial responsibility by DWR, to the extent not paid or payable by another Qualified Party. Unless a supplier is otherwise notified, any bid accepted by the ISO will be deemed to have the financial support of another Qualified Party or DWR as specified in this notice. In addition to the foregoing, DWR will assume financial responsibility for all purchases resulting from the issuance by the ISO of emergency dispatch instructions, to the extent not paid or payable by another Qualified Party. Payment for such purchases shall be made according to the rate specified in the ISO Tariff for emergency dispatch instructions. The ISO and/or DWR reserve the right to rescind or modify the foregoing arrangements at any time and for any reason, including a successful rehearing or appeal from the April 6 order.

As the FERC determined in its February 14 order that DWR is a creditworthy counterparty, the ISO believes that the foregoing arrangements meet the requirements of FERC's April 6 Order. Accordingly, the ISO expects that suppliers will honor their obligations under the ISO Tariff and related agreements to respond to ISO dispatch instructions.

Don Fuller Director, Client Relations California ISO Phone: 916-608-7055 E-Mail: dfuller@caiso.com

Message 711 of 1299

Lets face it; you listen to me because I help you invest your money

Sender	members@realmoney.com
Recipients	[' members@realmoney.com ']
File	dasovich-j/all_documents/10843.

Dear RealMoney.com Subscriber,

Biotech, hey, you know I am a skeptic. I have railed against it, called it a bubble, thought it was way overvalued. But the sector has come down to where their might be values. Won't you join me in finding out?

Perhaps more than any other financial sector, Biotechnology is a testament to human ingenuity & financial rewards. I have received numerous emails asking my advice on how to invest profitably in this sector.

As an answer to your needs, TheStreet.com has teamed up with The Wall Street Transcript to create, "Investing in the Second Biotechnology Revolution" conference, June 7th, in New York City at the University Club.

We have assembled a star line-up of biotech experts, professional investors & leading Wall Street analysts who will show you how to: -- Choose Biotech stocks that are poised for dramatic growth -- Select companies positioned to exploit & quickly profit the new therapeutic technologies -- Utilize investment techniques on how to hedge & manage investments in this volatile sector -- Keep tabs on who could be the next Biogen or Amgen

You will be guided through the ever changing biotechnology investment landscape & have networking opportunities to interact with the panelists. In short, after attending this 1-day event, you will have gained the tools and techniques to invest profitably in the Biotechnology industry -- today. Also, if you book before May 1st, you will receive \$100 off the registration price!

Register today by calling Customer Service at (800) 562-9571 between the hours , 8am-8pm, EST Monday-Friday, or visit our online registration center at

<http://www.twst.com/register>

I look forward to meeting with you June 7th in New York City.

Regards,

Jim Cramer Co-founder/Chief Markets Commentator TheStreet.com

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<http://www.thestreet.com/z/unsubscribe.jhtml?Type=M>

Message 712 of 1299

Re: Western Wholesale Activities - Gas & Power Conf. Call

Sender	bernadette.hawkins@enron.com
Recipients	['susan.mara@enron.com', 'linda.noske@enron.com', 'steve.walton@enron.com', 'joseph.alamo@enron.com', 'alan.co...]
File	dasovich-j/notes_inbox/12441.

THE MEETING TIME HAS BEEN CHANGED!!!!

PLEASE MARK YOUR CALENDAR Date: Every Thursday Time: 7:30 AM Pacific, 9:30 AM Central, and 10:30 AM Eastern time Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

----- Forwarded by Bernadette Hawkins/Corp/Enron on 06/20/2001 12:43 PM -----

Ray Alvarez 05/31/2001 11:55 AM

To: Bernadette Hawkins/Corp/Enron@ENRON cc: Subject: Re: Western Wholesale Activities - Gas & Power Conf. Call
Privileged & Confidential Communication Attorney-Client Communication and Attorney Work Product Privileges Asserted

----- Forwarded by Ray Alvarez/NA/Enron on 05/31/2001 11:55

AM -----

Ray Alvarez 05/31/2001 11:54 AM To: Steve Walton/HOU/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Alan Comnes/PDX/ECT@ECT, Leslie Lawner/NA/Enron@Enron, Rebecca W Cantrell/HOU/ECT@ECT, Donna Fulton/Corp/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, Christi L Nicolay/HOU/ECT@ECT, James D Steffes/NA/Enron@Enron, jalexander@gibbs-bruns.com, Phillip K Allen/HOU/ECT@ECT, Linda J Noske/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Robert Frank/NA/Enron@Enron, Stephanie Miller/Enron@EnronXGate, Barry Tycholiz/Enron@EnronXGate cc:

Subject: Re: Western Wholesale Activities - Gas & Power Conf. Call Privileged & Confidential Communication
Attorney-Client Communication and Attorney Work Product Privileges Asserted

PLEASE MARK YOUR CALENDAR Date: Every Thursday Time: 1:00 pm Pacific, 3:00 pm Central, and 4:00 pm Eastern time, Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

The table of the on-going FERC issues and proceedings will be updated for use on today's conference call, and distributed by Bernadette Hawkins. It is available to all team members on the O drive. Please feel free to revise/add to/ update this table as appropriate.

Proposed agenda for today:

FERC Order of May 25 clarifying the April 26 Order re market monitoring and price mitigation.

ISO de-rating of ATC complaint- status (item 20)

EPSA intervention and protest re CAISO compliance filing and proposed tariff amendment (item 32)

EPSA rehearing request of FERC market monitoring and mitigation order in EL00-95-12 (item 9d)

Miscellaneous information items:

CA legislators' suit against FERC.

RTO conference is to be planned and held by FERC in the near future.

Please feel free to communicate to the group any additional agenda items you may have.

Message 713 of 1299

Fw: Final draft IEP FERC filing on price cap

Sender	steven@iepa.com
Recipients	['taschehoug@thermoecotek.com', 'wfhall2@duke-energy.com', 'abb@eslawfirm.com', 'smutny@iepa.com', 'kaplan@iep...]
File	dasovich-j/all_documents/2072.

Attached is a revised IEP draft FERC Filing related to CAISO amendment no. 31. Based on comments from the members, we have revised the document in two primary areas: (1) added language emphasizing the position of FERC as articulated in the Morgan Stanley decision as to the nature of the purchaser price caps, (2) sought Commission clarification as to the temporary nature of any purchaser price caps, and referenced MSC comments to that effect, (3) urged FERC to direct the CAISO to develop their market power criteria by November 30, 2000, and establish a term for the extension of the price caps for one year from that date (which will allow the MSC market reforms to be implemented and tested next summer).

IEP needs to file this document at FERC tomorrow (i.e. Thursday). Accordingly, please provide any comments on this latest draft no later than 9:00 a.m. on Thursday, October. 5. Forward comments to me and Andy Brown [abb@eslawfirm.com]. Thank you,.

----- Original Message -----

From: Andy Brown <ABB@eslawfirm.com> To: Steven Kelly (E-mail) <steven@iepa.com> Cc: <andybrwn@earthlink.net>; Douglas Kerner <DKK@eslawfirm.com>; Eric Janssen <EricJ@eslawfirm.com> Sent: Wednesday, October 04, 2000 6:45 PM Subject: Final draft IEP FERC filing on price cap

Steven: attached is the draft filing in redline/strikeout which includes the

revisions members sent to you as we discussed. I will need to send the filing out from our office in the morning on Thursday, therefore I must

have

any comments by 9:00 am to have it timely filed in DC. Comments should be made directly to me, preferably by telephone. ABB Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 mailto:abb@eslawfirm.com CONFIDENTIALITY NOTICE: This communication and any accompanying document(s)

are confidential and privileged. They are intended for the sole use of the

addressee. If you receive this transmission in error, you are advised that

any disclosure, copying, distribution, or the taking of any action in reliance upon the communication is strictly prohibited. Moreover, any

such

inadvertent disclosure shall not compromise or waive the attorney-client privilege as to this communication or otherwise. If you have received

this

communication in error, please contact the sender at the internet address indicated or by telephone at (916)447-2166. Thank you. <<IEP_Mo_Interv_ER00-3673_ISOT_Am_31.ver1_rdlm.doc>>

- IEP_Mo_Interv_ER00-3673_ISOT_Am_31.ver1_rdlm.doc

Message 714 of 1299

Final Version-Manifesto

Sender	jeff.dasovich@enron.com
Recipients	['schub@socrates.berkeley.edu', 'tyson@haas.berkeley.edu']
File	dasovich-j/all_documents/8536.

Mary Beth:

For what it's worth, I've read this, and if Laura Tyson or Larry Summers sign it, I have serious concerns about the effect it would have on their ability to play the role that we envision in moving our proposal forward (understanding that our odds of success are somewhat meager). While I don't disagree with the language, it is strong and therefore very likely to make the Governor and his staff very uncomfortable. I would recommend that they do not sign.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 01/24/2001 11:32 AM -----

David Teece <teece@Haas.Berkeley.EDU> 01/24/2001 10:56 AM

To: tyson@haas.berkeley.edu, tom_campbell@law.stanford.edu, shmuel@euler.berkeley.edu, willrichm@aol.com, george_barker@lecg.com, cdanner@wilkandassociates.com, gilbert@econ.berkeley.edu, scott_harvey@lecg.com, jscadding@wilkandassociates.com, spiller@haas.berkeley.edu, mwilk@wilkandassociates.com, phillip_mcleod@lecg.com, berk@haas.berkeley.edu, john_chandley@lecg.com, jdasovic@enron.com, lfried@uclink.berkeley.edu, william_hogan@harvard.edu, rmichaels@fullerton.edu, richard.rumelt@anderson.ucla.edu, rschmidt@lecg.com, pverleger@compuserve.com, joseph.mullinix@ucop.edu, steven@stoft.com cc: peter.gosselin@latimes.com Subject: Final Version-Manifesto

TO:?? Colleagues

SUBJECT:?? Final Version

I've done my best to include your very helpful comments.? The document now also contains a summary.

I would like your endorsement, by noon PST (Wednesday) if possible.? A number of you have already indicated you would sign it.? Also, Tom Campbell has indicated he will try to recruit Ken Arrow.? I believe one of you agreed to recruit Dan McFadden.? Laura is working on Larry Summers.? Solow would be a great addition, too.

Can we agree on the following division of labor from here out:

1.? Recruiting others:?? All

2.? Media representatives:?? Campbell, Tyson, Spiller, Verleger, Wilk, Teece, and Hogan (This is by no means meant to preclude anyone contacting the media after we go public.)

??? On media, we are giving the LA Times a 24-hour exclusive.? We won't release to other media sources until 9:00 AM Thursday.

Many thanks for your involvement and endorsements.

- Manifesto-final version.doc

David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930
University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826
<http://haas.berkeley.edu/~imio>

Message 715 of 1299

Re: Affiliate Relook case [PLEASE RESPOND TODAY]

Sender	richard.shapiro@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/4977.

Sounds like a cake walk for someone as talented as you.

From: Jeff Dasovich on 03/13/2001 11:39 AM Sent by: Jeff Dasovich To: Richard Shapiro/NA/Enron@Enron cc:

Subject: Re: Affiliate Relook case [PLEASE RESPOND TODAY]

Greetings:

Hope all is well in beautiful Southern California.

I'm on the call with all the EES lawyers as I write. Trying to get folks to reconsider going forward in the complaint----the landscape could not be worse, i.e., the judge despises us and is a lunatic; Wood's the assigned judge; UC/CSU is getting nasty (as we predicted) in the press (see today's LA Times). Having some success with getting them to reconsider. Will keep you posted.

Best, Jeff

Richard Shapiro 03/13/2001 11:28 AM

To: Jeff Dasovich/NA/Enron@Enron cc: James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Sandra McCubbin/NA/Enron@Enron Subject: Re: Affiliate Relook case [PLEASE RESPOND TODAY]

Agree.

From: Jeff Dasovich on 03/13/2001 11:24 AM Sent by: Jeff Dasovich To: James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Richard Shapiro/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron cc:

Subject: Affiliate Relook case [PLEASE RESPOND TODAY]

Given everything that we've got on our plate, and the relative priority of the affiliate issue, and the fact that ARM and Wild Goose are involved, I would propose that we take a pass on this one. Thoughts?

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 03/13/2001 11:18 AM -----

JMcTarnaghan <JMcTarnaghan@GMSSR.COM> 03/13/2001 10:59 AM

To: "'smara@enron.com'" <smara@enron.com>, "'Jeff Dasovich'" <jdasovic@enron.com> cc: Subject: Affiliate Relook case [PLEASE RESPOND TODAY]

Dear Jeff and Sue:

Sorry to be a broken record on this one....but I don't know what you want to do about the Affiliates case. There is a PHC tomorrow and comments were filed. SCE's comments make a nasty jab at Enron for proposing the rules in the first place. I see that AREM is participating as well. If your plan is to participate in this proceeding only through AREM, that's fine but please let me know so that I can remove my appearance. I will be at the PHC for Wild Goose but would like to be very clear about who I am representing in the docket in order to avoid confusion.

Thanks,

Jim McTarnaghan Goodin, MacBride, Squeri, Ritchie & Day 505 Sansome Street, Suite 900 San Francisco, CA 94111 415-765-8409 (Direct Line) 415-398-4321 (Fax) jmct@gmssr.com (Email)

Message 716 of 1299

CIBO Emissions Control Technology Conference July Brochure

Sender	gail@cibo.org
Recipients	['marcia.dalrymple@alcoa.com', 'anncapca@aol.com']
File	dasovich-j/notes_inbox/3444.

Attached is the complete conference and registration brochure as a pdf file.

EMISSIONS CONTROLS TECHNOLOGY CONFERENCE July 23-25, 2001 Crowne Plaza Hotel at the Crossings
Providence, Rhode Island

Ray Ganga The McBurney Corporation Communication, Education and Outreach Committee Chairman

Ronald C. Lutwen SFT, Inc Conference Chairman

Have you had a chance to consider the potential impacts of pending new regulations on industrial powerplant facilities, what you might have to do and what your alternatives may be? The Boiler Maximum Achievable Control Technology (MACT) Standards to be proposed this year; the Regional Haze Standards that will begin to be implemented; the consideration of short term SO2 standards again; and, the implementation process for the Fine Particulate National Ambient Air Quality Standards (PM NAAQS) will all impact existing sources, big and small. The permitting process for any new or existing facility is demanding Best Available Control Technologies (BACT) or Lowest Achievable Emission Rates (LAER) on almost all sources for Particulate, Sulfur Dioxide, Mercury, Chlorine, and a host of other emissions. How will this impact your company and your job?

If you are an industrial corporate environmental or energy engineer or manager with the responsibility to make sure there is sufficient energy to run the company and comply with environmental regulations, you should be represented at this conference. If you are an Architect/Engineer or energy/environmental consulting firm, you should be represented. If you are an equipment supplier with interest in the industrial market place, you should be represented. And, if you are a state regulator with interest in what can actually be accomplished in the industrial sector, you should be represented. CIBO conferences have been noted for bringing the full range of stakeholders together for practical discussions and education on energy and environmental issues to promote progress on environmental issues and secure a competitive and strong energy future for the United States.

The time is now for the consideration of what will be required over the next two to ten years. What you learn from attending this conference could save you countless hours of frustration, provide a foundation for current and future planning and open a host of alternatives not before considered.

- Emissions Control Conference July 0125.pdf Gail Bessette Council of Industrial Boiler Owners 6035 Burke Centre Parkway, Suite 360 Burke, VA 22015-3757 Phone: 703-250-9042 * Fax: 703-239-9042 WWW: <<http://www.cibo.org>>

Message 717 of 1299

CIBO Emissions Control Technology Conference -- July Brochure

Sender	gail@cibo.org
Recipients	['jdailly@glegg.com', 'dagostka@apci.com', 'pchenderson@mindspring.com']
File	dasovich-j/notes_inbox/3417.

Attached is the complete Conference and registration Brochure as a .pdf file.

EMISSIONS CONTROLS TECHNOLOGY CONFERENCE July 23-25, 2001 Crowne Plaza Hotel at the Crossings
Providence, Rhode Island

Ray Ganga The McBurney Corporation Communication, Education and Outreach Committee Chairman

Ronald C. Lutwen SFT, Inc Conference Chairman

Have you had a chance to consider the potential impacts of pending new regulations on industrial powerplant facilities, what you might have to do and what your alternatives may be? The Boiler Maximum Achievable Control Technology (MACT) Standards to be proposed this year; the Regional Haze Standards that will begin to be implemented; the consideration of short term SO2 standards again; and, the implementation process for the Fine Particulate National Ambient Air Quality Standards (PM NAAQS) will all impact existing sources, big and small. The permitting process for any new or existing facility is demanding Best Available Control Technologies (BACT) or Lowest Achievable Emission Rates (LAER) on almost all sources for Particulate, Sulfur Dioxide, Mercury, Chlorine, and a host of other emissions. How will this impact your company and your job?

If you are an industrial corporate environmental or energy engineer or manager with the responsibility to make sure there is sufficient energy to run the company and comply with environmental regulations, you should be represented at this conference. If you are an Architect/Engineer or energy/environmental consulting firm, you should be represented. If you are an equipment supplier with interest in the industrial market place, you should be represented. And, if you are a state regulator with interest in what can actually be accomplished in the industrial sector, you should be represented. CIBO conferences have been noted for bringing the full range of stakeholders together for practical discussions and education on energy and environmental issues to promote progress on environmental issues and secure a competitive and strong energy future for the United States.

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- Emissions Control Conference July 01.pdf Gail Bessette Council of Industrial Boiler Owners 6035 Burke Centre Parkway, Suite 360 Burke, VA 22015-3757 Phone: 703-250-9042 * Fax: 703-239-9042 WWW: <<http://www.cibo.org>>

Message 718 of 1299

RE: FOR FINAL REVIEW -- ENA Comments in Support of Kern River

Sender	stephanie.miller@enron.com
Recipients	['barry.tycholiz@enron.com', 'rebecca.cantrell@enron.com', 'leslie.lawner@enron.com', 'christi.nicolay@enron.c...]
File	dasovich-j/all_documents/27800.

Leslie - please call me

I talked to Barry and he has some comments

Steph

-----Original Message-----

From: Lawner, Leslie Sent: Wednesday, June 13, 2001 9:37 AM To: Cantrell, Rebecca Cc: Comnes, Alan; Tycholiz, Barry; Nicolay, Christi; Perrino, Dave; Black, Don; Fulton, Donna; McMichael Jr., Ed; Smith, George F.; jalexander@gibbs-bruns.com; Steffes, James; Dasovich, Jeff; Thome, Jennifer; Shireman, Kristann; Sullivan, Patti; Kaufman, Paul; Allen, Phillip K.; Gay, Randall L.; Alvarez, Ray; Frank, Robert; Superty, Robert; McCubbin, Sandra; Miller, Stephanie; Walton, Steve; South, Steven P.; Mara, Susan; Calcagno, Suzanne Subject: Re: FOR FINAL REVIEW -- ENA Comments in Support of Kern River

I have added a reference to recent FERC decision in a Kern River case which rejected a contract provision between Kern and Union Pacific which would have given UP priority rights to reduce its CD. This is on page 9. << File: Kern5.doc >>

Rebecca W Cantrell@ECT 06/12/01 05:20 PM To: Alan Comnes/PDX/ECT@ECT, Barry Tycholiz/Enron@EnronXGate, Christi L Nicolay/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Donna Fulton/Corp/Enron@ENRON, jalexander@gibbs-bruns.com, James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, Paul

Kaufman/Enron@EnronXGate, Phillip K Allen/HOU/ECT@ECT, Ray Alvarez/NA/Enron@ENRON, Robert Frank/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, Stephanie Miller/Enron@EnronXGate, Steve Walton/HOU/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Steven P South/Enron@EnronXGate, Randall L Gay/Enron@EnronXGate, Patti Sullivan/Enron@EnronXGate, Kristann Shireman/HOU/EES@EES, Robert Superty/HOU/ECT@ECT, Suzanne Calcagno/Enron@EnronXGate, Ed McMichael/Enron@EnronXGate, George F Smith/Enron@EnronXGate cc: Subject: FOR FINAL REVIEW -- ENA Comments in Support of Kern River

Attached for your review and comments are ENA's comments in support of Kern River's petition for a declaratory order relating to SoCal Gas' assertion that it has the first right to expansion capacity now being constructed in the California Emergency Action Project to add 135,000 Mcf/d of capacity to California that would come on-line during July.

The comments must be filed at FERC by Friday, June 15. If you have issues or comments, please contact Leslie Lawner or me as soon as you can. Leslie is at 505-623-6778 and my extension in Houston is 35840. If possible, e-mail us since we will both be traveling or at an off-site meeting beginning mid-day Wednesday.

<< File: CP01-381 KR Petition Draft 4.doc >>

Message 719 of 1299

ISC - Symposium - Wings of Excellence Awards

Sender	teunisse@haas.berkeley.edu
Recipients	['mba03@haas.berkeley.edu', 'mba02@haas.berkeley.edu', 'undergrd@haas.berkeley.edu']
File	dasovich-j/inbox/1558.

Interested in meeting students, business leaders, politicians and decision makers from around the world in a setting that fosters dialogue and communication? Why not apply/compete for a place in the 32nd ISC symposium at University of St. Gallen, Switzerland. The symposium takes place from May 23 to 25 (Note that this conflicts with the Haas IBD program) 2002.

Full details are available at:

<http://www.isc-symposium.org/isc/31stsymposium/32ndsymposium.htm>

Application requirements are described below:

Topic: "Pushing Limits - Questioning Goals"

Applicants' qualifications Undergraduate and postgraduate students in all fields of study enrolled at regular universities throughout the world, born in 1972 or after.

Substance We ask you to contribute your visions and entrepreneurial ideas.

Your contribution can be an essay, a scenario, a project report or proposal, a multimedia presentation, an entrepreneurial concept or any other form of professional work which you would like to present to the audience of the 32nd ISC-Symposium. It should be constructive, provocative or instructive, inspiring thoughts and actions and introducing a new approach or unconventional ideas. It has to be the original work of the author.

Format 5 to 7 pages, max. 2100 words (excl. bibl.) No name on the front page or any subsequent page. Accompanied by a 3.5" high density disk containing the whole essay (no manual hyphenation).

Disk The disk label should contain your name, operating system (MS Windows or MacOS) and the application used.

Video VHS max. 15 minutes, label shall contain your name.

Language English, German or French

Deadline February 15, 2002 (date of postmark)

Copies Please submit 2 copies of your contribution, accompanied by the attached application form, proof of current enrollment, a 3.5" high density disk containing the whole essay (no manual hyphenation), a signed letter of confirmation that your contribution is your own work and 1 passport-size photograph. The material will not be returned and may be used for ISC publication and/or included in the ISC website.

Sample Essays You find last year's winner essay of the ISC Wings of Excellence Award in our Archive under the menu point Symposium and Past Symposium.

Sebastian Teunissen Executive Director Clausen Center for International Business and Policy Haas School of Business
University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228
<http://www.haas.berkeley.edu/HaasGlobal>

Message 720 of 1299

FW: EL01-68-000 Request to Make a Statement

Sender	susan.mara@enron.com
Recipients	['Alan; Steffes', 'James D.', 'Comnes', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/645.

-----Original Message-----

From: Comnes, Alan Sent: Wednesday, October 17, 2001 2:31 PM To: Mara, Susan; Perrino, Dave; Walton, Steve; Alvarez, Ray; Kaufman, Paul; Crandall, Sean; Belden, Tim Subject: FW: EL01-68-000 Request to Make a Statement
Importance: High

FYI,

In the next day or so I will draft talking points on the assumption our request to speak will be granted.

At this point, I am aware of the following other speakers: Mike Naeve (former FERC Commissioner) for PGE and Richard Tabors for Powerex. Transaction Finality Group (TGF) or a subset thereof will also ask for an opportunity to speak using Tabors as their spokesperson. I will be coordinating with Tabors but we decided to get Enron's name in solo to preserve our opportunity to take a different view.

Alan Comnes -----Original Message----- From: Frank, Robert Sent: Wednesday, October 17, 2001 1:41 PM To: David.Boergers@ferc.fed.us Cc: Comnes, Alan; Steffes, James D. Subject: FW: EL01-68-000 Request to Make a Statement Importance: High

RE: Docket EL01-68-000 Investigation of Wholesale Rates of Public Utility Sellers of Energy and Ancillary Services in the Western Systems Coordinating Council.

Dear Mr. Boergers:

Enron Power Marketing Inc. (EPMI) respectfully requests the opportunity to make a statement during the October 29, 2001 technical conference in the above-referenced proceeding. EPMI would appreciate the opportunity to allow the following representative to make a statement on its behalf:

G. Alan Comnes, Director, Government Affairs Enron Corp. 121 SW Salmon Street Portland, OR 97204 email: AComnes@enron.com telephone: 503-464-8129

EPMI operates as a marketer of electric power and natural gas in markets throughout the Western Systems Coordinating Council (WSCC). EPMI has been an active participant in this and related dockets and has submitted written comments pertaining to Westwide price mitigation on both May 7, 2001 and August 20, 2001. In addition to identifying problems created by continued price mitigation in the WSCC, EPMI will identify problems that will be created if the Commission were to inconsistently apply price mitigation in the WSCC or make rule changes that create further uncertainty in the marketplace. Because of EPMI's unique position as a power marketer that operates throughout the WSCC, it has a unique perspective to provide the Commission and workshop participants.

A letter making the same request, along with Mr. Comnes' credentials, will be filed with the Commission tomorrow. If you have any questions regarding this matter, please contact me at 713-853-3180.

Sincerely,

Robert J. Frank

Message 721 of 1299

FW: Bush's Inaugural Speech

Sender	lara.leibman@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/3089.

----- Forwarded by Lara Leibman/Enron Communications on 11/06/00 04:48 PM

Wayne Gardner 11/05/00 02:28 PM

To: Donald Lassere/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications cc: Subject: FW: Bush's Inaugural Speech

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532 ----- Forwarded by Wayne Gardner/Enron Communications on 05/11/2000 14:31

grichard@bigcity.net 05/11/2000 12:17

To: JanFYoung@aol.com, mayj@wlu.edu, hmicheel@proskauer.com, Wayne Gardner/Enron Communications@Enron Communications, lpleasnt@flash.net, ntpcat@aol.com, dralston@jenkens.com, tcolerichard@aol.com, RichardLawFirm@aol.com, RMilu@aol.com, mlrothman@rothext.com, shelley@wt.net, tterry@bigcity.net, paul@justiceseekers.com, ldulac@wt.net, mwolin@hotmail.com, myoung@gardere.com cc: Subject: FW: Bush's Inaugural Speech

-----Original Message-----

From: ROADwomen [mailto:roadway@roadwomen.com] Sent: Sunday, November 05, 2000 10:43 AM To: Undisclosed-Recipient;; Subject: Bush's Inaugural Speech

From our buddy Jeffrey in Indiana.

Bush's Inaugural Speech (to the tune of "What a Wonderful World This Will Be" by Sam Cooke)

Don't know much about history Don't know much foreign policy Don't remember how I got through school I'm sure I didn't break the rules But what's it matter 'cause my granny says "Boy, if you want to you can be the prez And what a wonderful world this will be"

Don't know much about the women's vote Don't know much about the bill I wrote Don't know much about the foreign vets I've never voted for 'em yet But I do know if your dad tries hard He can get you in the National Guard And what a wonderful place that can be

Now I never claimed to be an A student But what's wrong with C's? And maybe by knowing the names of my cabinet I can win their love for me

Don't know much about air pollution Don't know much about the constitution Don't know much about th' economy It never much affected me

But there's one thing that I know for sure If the rich stay rich and the poor stay poor What a wonderful world this will be

Don't know much about the national debt I've never had to pay one yet If we need to we can sell the States To the Japanese at discount rates But I do know if things get bad Dick and I can always call my dad And what a wonderful world

this will be.

Still laughing and praying he never gets to give it! Jeffrey ++++++ "What do they think Social Security is, some kind of federal program?" - George W. 11/1/00 -- are we sure he is sober? ;-)

Message 722 of 1299

Re: strategy for natural gas issues

Sender	james.steffes@enron.com
Recipients	['harry.kingerski@enron.com', 'richard.shapiro@enron.com', 'janel.guerrero@enron.com']
File	dasovich-j/all_documents/11040.

I think that Margaret's analysis may cover much of this (not the Enron specific action).

Jim

Janel Guerrero 04/03/2001 01:07 PM To: Richard Shapiro/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron cc:

Subject: strategy for natural gas issues

Guys,

Our friends at Environmental and Energy Analysis sent this email around regarding the gas shortage in CA. They might be useful for us in terms of analysis, preparation etc. Or is MRW already providing us with this type of assistance?

----- Forwarded by Janel Guerrero/Corp/Enron on 04/03/2001

01:04 PM -----

"Joel Bluestein" <jbluestein@eea-inc.com> on 04/03/2001 10:05:24 AM To: mschoen@enron.com, Janel_Guerrero@enron.com, jkeeler@enron.com cc:

Subject: fuel switching in california

besides electricity, there is an equal and related upcoming meltdown on gas in california. our assessment is that the current high prices are largely a result of intrastate constraints that will be exacerbated as gas use for power generation increases. for this summer it is possible that there will be generating constraints due to inadequate gas delivery capacity. a more likely outcome is that power generators will get the gas they need at the expense of storage injection for winter heating load. this will create supply problems and higher residential gas problems next winter. summer prices for industrial gas users will also be higher.

a possible solution is to take advantage of fuel switching. many of the california plants are old oil/gas plants and have the capacity to switch fuels. they are currently limited by environmental limits. it might be in california's broader interests to allow some flexibility on switching this summer to ensure power reliability and adequate gas storage for the winter.

reasons for possible interest for enron - better power reliability this summer, possible gas/oil trading opportunities, emissions trading opportunities?, other?

since oil is much cheaper than the currently high california gas prices, this option would also increase the profitability of the plants that switch fuels. it's not clear whether this helps Enron. one option would be to require very clean oil since the market will bear significant cost.

there are a few questions related to this: how tight will gas be this summer? what are the likely impacts without switching? are the plants still oil-capable?

let me know if this is something you are interested in discussing.

Joel Bluestein Energy and Environmental Analysis, Inc. Phone 703-528-1900 Fax 703-528-5106

Message 723 of 1299

Utilities, Electric: Deregulation: Fuel for thought

Sender	miyung.buster@enron.com
Recipients	['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/all_documents/2137.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/06/2000 02:14 PM

djcustomclips@djinteractive.com 10/04/2000 07:18 AM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: Fuel for thought

National Post Business Magazine Fuel for thought ? 10/01/2000 National Post 18 (c) National Post 2000. All Rights Reserved.

The common response to neighbourhood landfill? "Not in my backyard." But waste may soon grow more attractive -- as an alternative way to light your home and heat your furnace.

This energy will come from methane gas, collected through vertical wells and horizontal trenches in landfill sites. Suncor Energy Inc., the Alberta oilsands giant, has signed a five-year agreement with Conestoga Rovers and Associates (CRA) of Waterloo, Ont., which specializes in tapping this gas from landfills. Over five years, Suncor will pour up to \$60 million into the project. Suncor vice-president Gerry Manwell says individual sites will cost up to \$10 million to develop, making a profit within about five years. Only six of Canada's 392 landfills are being reviewed for development, but if the public embraces the new gas, its commercial viability should inspire other companies to follow suit.

In the past, such a venture would not have been profitable, says Rick Mosher, project leader at CRA. But that may be about to change. Come November, when Alberta and Ontario deregulate their electricity industries, power will be a marketable commodity like natural gas. Conventional electricity may get pricier, opening the door for alternatives. Toronto Hydro Corp. has already announced plans to buy 130 million kilowatt hours produced from green energy, including methane.

So those decaying kitchen scraps and lawn cuttings may soon provide both fuel, for heating and generating electricity, and carbon dioxide, which will be sold to nurture seedlings in greenhouses. That's good news for consumers, who will be empowered to help reduce the noxious smell and greenhouse gas emissions from the landfill in their "backyard."

Graphic/Diagram: (Illustration by Roxanna Bikadoroff)

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 96

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 724 of 1299

IEP Memo and Outline re Nov. 3 Meeting

Sender	abb@eslawfirm.com
Recipients	['dparque@ect.enron.com', 'eileenk@calpine.com', 'kaplan@iepa.com', 'frank.derosa@gen.pge.com']
File	dasovich-j/notes_inbox/1368.

Attached in MS Word format is a memorandum and outline addressing potential= =20 "options and solutions" that will be used by IEP in upcoming regulatory and= =20 legislative efforts.? The memorandum and outline will be reviewed, discusse= d,=20 dissected and vastly improved at the November 3 IEP meeting.? This represen= ts=20 a collection of various ideas brought forward to date and must be considere= d=20 a "work in progress."? It has not been comprehensively reworked in light of= =20 the November 1 FERC Order.=20

The outline begins with a discussion of the =01&jurisdictional context=018 = that=20 must be kept in mind when developing IEP=01,s response, including the=20 regional/interstate nature of the Western markets and the respective roles = of=20 FERC and the CPUC.? The second section is the largest part of the outline,= =20 and it discusses in detail the =01&problems=018 IEP=01,s response addresses= , primarily=20 in terms of =01&marketplace fundamentals=018 as well as market structure is= sues.?=20 IEP=01,s membership is extremely well versed in the myriad of problems faci= ng=20 the industry, but nevertheless it is vitally important to discuss and agree= =20 on specifics so that our options and solutions can be presented as a durabl= e,=20 comprehensive and cohesive message.? The outline's fourth section discusses= =20 certain characteristics or perspectives that must be considered when crafti= ng=20 our response, such as the relationship between retail and wholesale markets= =20 as well as the larger regional markets.? Potential short- and long-term=20 responses are presented in the next two sections, and the outline concludes= =20 with potential IEP =01&retail/demand=018 proposal.=20

Please contact me if you require the file in another format or if you have= =20 problems with the attachment.? ABB=20

Andrew B. Brown=20 Ellison, Schneider & Harris, LLP=20 2015 H Street=20 Sacramento, CA? 95814=20 Phone: (916) 447-2166=20 Fax: (916) 447-3512=20 <mailto:abb@eslawfirm.com>=20

CONFIDENTIALITY NOTICE:? This communication and any accompanying document(s)= =20 are confidential and privileged.? They are intended for the sole use of the= =20 addressee.? If you receive this transmission in error, you are advised that= =20 any disclosure, copying, distribution, or the taking of any action in=20 reliance upon the communication is strictly prohibited.? Moreover, any such= =20 inadvertent disclosure shall not compromise or waive the attorney-client=20 privilege as to this communication or otherwise.? If you have received this= =20 communication in error, please contact the sender at the internet address= =20 indicated or by telephone at (916)447-2166. Thank you.=20 ?=20 ? - 001101 IEP Solutions and Options.v2.doc

Message 725 of 1299

FW: Draft Application for Rehearing

Sender	jeff.dasovich@enron.com
Recipients	[eve@a-klaw.com]
File	dasovich-j/sent_items/295.

-----Original Message-----

From: Dasovich, Jeff Sent: Wednesday, September 26, 2001 4:27 PM To: 'eve@a-klaws.com'; "Bill Dombrowski" Subject: FW: Draft Application for Rehearing

Greetings Eve and Bill: This has been forwarded to Delainey and Dorothy. It's originating with AreM. Delainey's distributing to some, I'm distributing to others. The Chamber's already agreed to join. If we're to have any hope of a) maintaining DA and b) eliminating any chance of a retroactive date, seems that we'll need as many folks signing on as possible. Please see attached. We hope that you can join.

All the best, Jeff -----Original Message----- From: Dan Douglass [<mailto:douglass@earthlink.net>] Sent: Sunday, September 23, 2001 12:08 AM To: ARM; Gary Ackerman; Vicki Sandler; Anderson, Robert; Marilyn Ferrara; Max Bulk; John Yurkanin; Steve Huhman Subject: Draft Application for Rehearing

Attached for your review and comment is a draft application for rehearing of the Commission's Thursday Decision 01-09-060 suspending the right of direct access. Although we have prevailed (at least for now) on the issue of retroactivity, the decision still violates various provisions of state and federal law. If any party wishes to preserve the right to legally

challenge this decision, it must file an application for rehearing within ten days. The attached draft is tentatively dated September 28, meaning that it would be filed next Friday.

The primary reasons cited for why rehearing should be granted are as follows:

The Decision violates procedural due process guarantees.

The failure to hold hearings violates Public Utilities Code section 1708.5(f).

The Commission's reliance on material outside the record violates due process.

The Decision violates the Commerce Clause of the United States Constitution.

The threatened retroactivity is contrary to law and in excess of the Commission's authority.

The Commission acted contrary to law and in excess of its authority.

The Decision's purported findings are not supported.

The Commission has impermissibly converted a ratemaking proceeding into a quasi-legislative proceeding.

Although WPTF members have not had an opportunity to consider whether they wish to support such a filing, WPTF is included as a named party in the attached because of the fact that AReM and WPTF have jointly made numerous other filings in this proceeding. WPTF members will need to determine if they wish to support this effort.

I look forward to seeing your comments. Thanks, and have a good weekend!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

Message 726 of 1299

Re: Bandwidth Trading Structure Meeting

Sender	jeff.dasovich@enron.com
Recipients	[' sue.nord@enron.com ']
File	dasovich-j/all_documents/2741.

You're in luck! The meeting's from noon to 1 pm CST, so you can attend. Do you feel lucky? Would you like to participate---the option's yours. I'll invite Scott, too. If you'd like to attend, should we call you from the conference room?

Best, Jeff

Sue Nord 10/26/2000 01:23 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Re: Bandwidth Trading Structure Meeting

Calling in on the 2nd should be fine. Sorry that it doesn't work for you to be there in person.

I'm going to be out of the office from about 3:00 this afternoon until 11:00 tomorrow morning, EST. If your meeting happens after 11:00 EST tomorrow, I would like to join by phone. (But don't worry about scheduling around me if it's a problem). Donald is on his way back from South America, and probably isn't available. Scott may be available by phone and probably would be interested in participating.

Maybe the next person we hire should be a full-time schedule coordinator. Thanks for your enduring patience.

Jeff Dasovich Sent by: Jeff Dasovich 10/26/2000 08:21 AM

To: Sue Nord/NA/Enron@Enron cc: Subject: Re: Bandwidth Trading Structure Meeting

So it is the 2nd after all? Thought it might be the first, which I could have made. The 2nd doesn't work---have set up a meeting with ENA to meet with Sempra execs to see if a deal can be done (yeah, right). But since it's that early on the 2nd, I can call in by conference call and attend the first 90 minutes, or so. Will that work?

In other exciting news, going to meet with the lawyers and Bowen either this afternoon or first thing in the morning tomorrow. You want to join? And should I see if Scott and/or Donald want to attend? Just let me know.

Best, Jeff

Sue Nord 10/25/2000 02:15 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Bandwidth Trading Structure Meeting

I hope this works for you.

----- Forwarded by Sue Nord/NA/Enron on 10/25/2000 02:15 PM -----

Wayne Gardner@ENRON COMMUNICATIONS 10/25/2000 01:15 PM

To: Alisa Christensen/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Donald Lassere/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Michelle Hicks/Enron Communications@Enron Communications, Robbi Rossi/Enron Communications@Enron Communications cc: James Ginty/Enron Communications@Enron Communications Subject: Bandwidth Trading Structure Meeting

The Bandwidth Trading Structure meeting will take place at 8:30 am on November 2, 2000, in conference room 4434. I will circulate a meeting agenda no later than October 30.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 727 of 1299

Workshop on DWR Revenue Requirement --July 27, 2001

Sender	susan.mara@enron.com
Recipients	['jeff.dasovich@enron.com', 'michael.tribolet@enron.com', 'paul.kaufman@enron.com', 'lisa.mellencamp@enron.com...]
File	dasovich-j/all_documents/29279.

Harry, Please forward to anyone else who needs to see this.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/30/2001 02:11 PM -----

JBennett <JBennett@GMSSR.com> 07/30/2001 02:07 PM

To: "Sue Mara (E-mail)" <smara@enron.com> cc: Subject: Workshop on DWR Revenue Requirement --Please Forward to Applicable Enron Individuals

The workshop conducted by the Energy Division on Friday on the DWR revenue requirement submitted to the Commission on July 23rd was basically a question and answer session. A representative of DWR was present as were several representatives of the consulting firm Navigant which assisted DWR in constructing its revenue requirement request. The representatives of Navigant fielded most of the questions.

Not much new information was garnered. A little more clarity was shed on certain areas. Of interest to Enron would be that in determining the net short for each of the UDCs for which DWR was purchasing it assumed no change in the current direct access levels (which is approximately 2% of the load in the state) through 2002.

Other points of clarification included:

(1) A question exists with respect to whether DWR is responsible for the ISO costs billed to the UDCs for the period of January through June of 2001.

(2) Any payments which were made to DWR to date by the UDCs would be netted against the revenue requirements requests for the first and second quarter of this year. PG&E indicated that DWR's numbers for the revenue received from PG&E to date do not match its own accounting.

(3) The net short calculation for each UDC was derived by using the net short forecasts provided by each of the UDCs an modifying them to take into account (1) a 4% reduction in load due to conservation efforts; (2) a 2% reduction in load due to price elasticity increasing to 3% by January 2001; (3) estimated impacts of the 20/20 program (assuming also a similar program for next summer); (4) the impact of the UDCs curtailment programs. Once again, PG&E indicated its belief that DWR's net short projection for PG&E was erroneous.

(4) DWR explained that the basis for the projection that they would need 1.65 cents out of the three cents rate increase was that for sales made by DWR they already receive the UDC generation rate (i.e., approximately 6.8 cent for PG&E and 7.2 cent for SCE). On top of that, they need the 1.65 cents.

SCE submitted four pages of written questions to DWR on their revenue request. DWR is to respond in writing (and serve on all people on the service list) by Tuesday the 31st. To the extent that the questions are applicable to PG&E, they will answer the question with respect to both UDCs.

Please call if you have any questions.

Jeanne Bennett

Message 728 of 1299

Agenda - California Planning Session - May 1-2, 2001

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com']
File	dasovich-j/all_documents/11795.

u need to participate by phone if you can.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 04/27/2001 05:42 PM -----

Carol Moffett@EES 04/27/2001 04:35 PM

To: Dennis Benevides/HOU/EES@EES, Craig Childers/HOU/EES@EES, Marcus Dotson/HOU/EES@EES, Lamar Frazier/HOU/EES@EES, Chris Holmes/HOU/EES@EES, Evan Hughes/HOU/EES@EES, Douglas Huth/HOU/EES@EES, Peggy Mahoney/HOU/EES@EES, Tom Riley/Western Region/The Bentley Company@Exchange, Mike D Smith/HOU/EES@EES, Marty Sunde/HOU/EES@EES, Dirk vanUlden/Western Region/The Bentley Company@Exchange, George Waidelich/SFO/EES@EES, Lyle White/HOU/EES@EES, James Wright/Western Region/The Bentley Company@Exchange, Andrew Wu/HOU/EES@EES, David Gilleland/HOU/EES@EES, Doug Chamberlin/HOU/EES@EES, Don Black/HOU/EES@EES, Sean A Holmes/HOU/EES@EES, Jeff Dasovich/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, Richard L Zdunkewicz/HOU/EES@EES, James M Wood/HOU/EES@EES, Mark Bernstein/HOU/EES@EES, Jeff Golden/HOU/EES@EES, Gary Weiss/HOU/EES@EES, Mark Dobler/HOU/EES@EES, Eric Melvin/HOU/EES@EES cc: Rosalinda Tijerina/HOU/EES@EES, Roberta Staehlin/HOU/EES@EES, Leticia Botello/HOU/EES@EES, Pat Kratsch/Western Region/The Bentley Company@Exchange, Cindy Cicchetti/HOU/EES@EES, Michele Curtis/Western Region/The Bentley Company@Exchange, Bonnie Baum/HOU/EES@EES, Heather Osheroff/Western Region/The Bentley Company@Exchange, Mariaelena Rivas/HOU/EES@EES, Rachel Bryant/HOU/EES@EES, Paulett Smith/HOU/EES@EES, Cheryl Brashier/HOU/EES@EES, Linda Rhymes/HOU/EES@EES, Binky Davidson/HOU/EES@EES, Karen Street/HOU/EES@EES, Sandy Hoelscher/HOU/EES@EES, Michelle Mayo/HOU/EES@EES, Rossana Booty/HOU/EES@EES Subject: Agenda - California Planning Session - May 1-2, 2001

Attached is the agenda for next week's planning session. Please note that the meeting will take place in Conference Room 8 C1, not Conference Room 872 as previously mentioned.

Attendees Attend Whole Session Presenters Attend For Your Presentation Only Dennis Benevides Craig Childers (optional) Marcus Dotson Lamar Frazier Chris Holmes Evan Hughes Doug Huth Peggy Mahoney Tom Riley Mike Smith Marty Sunde Dirk vanUlden George Waidelich Lyle White Jim Wright Andy Wu David Gilleland Doug Chamberlin Don Black Sean Holmes Jeff Dasovich Richard Zdunkewicz Jim Wood Mark Bernstein Jeff Golden Gary Weiss Mark Dobler Eric Melvin

Doug Chamberlin: You may call the conference room at 9:30a Central Time on Tuesday. The phone number is (713) 345-3359.

Sue McCubbin: If you are available to dial into the conference room at 12:30p Central Time on Tuesday, that would be great. The phone number is (713) 345-3359.

Rachel and Paulett: Please note the duration of Don's/Sean's presentation extends to 11:30a on May 1st. Thank you.

Message 729 of 1299

FW: Art Exhibit At RMW

Sender	nancy.sellers@robertmondavi.com
Recipients	['cameron@perfect.com', 'jeff_dasovich@enron.com', 'psellers@haas.berkeley.edu']
File	dasovich-j/deleted_items/1597.

-----Original Message----- From: Michele Manahan Sent: Wednesday, September 26, 2001 4:55 PM To: # All Robert Mondavi Subject: Art Exhibit At RMW PLEASE POST FOR ALL EMPLOYEES WHO DO NOT HAVE ACCESS TO E-MAIL. September 12, 2001 Contact: Julie Prince Robert Mondavi Winery P.O. Box 106 For Immediate Release Oakville, CA 94562 (707) 968-2203 Oakville, California... Artist, Denney Curtis Hemens will open an exhibit of paintings at Robert Mondavi Winery on October 6, 2001. Mr. Hemens was born in Syracuse, New York. His life in the arts began at an early age. After running away from a military academy, he arrived in New York's Greenwich Village where he lived and worked with prominent members of the Beat Generation. He migrated to San Francisco in 1970, where he continued to live and work in North Beach and other 'Bohemian' enclaves. Mr. Hemens studied briefly with the late Joan Brown, original member of the Bay Area Figurative school, and with Wally Hedrick, founder of the famous Six Gallery, where Alan Ginsberg first recited Howl. He worked with legendary 'underground' filmmaker, painter, musicologist, anthropologist, Harry Smith, in New York, learning the craft of hand painted film and collage. He also spent extended periods of time with mentors, Ginsberg, Jack Kerouac and William Burroughs. He has participated in and contributed to several art movements including the Bay Area Neo Dada movement, Correspondence Art, Xerox Art, Rubber Stamp Art and other conceptual and performance pieces. He has had numerous group exhibitions and one man shows. His paintings can be found in the collections of the late Joanne Dru (Mrs. Robert Wood), Angela Lansbury, the late Ernest Hemingway and wife Mary, Mr. and Mrs. Randolph Hearst, Henri Lenoir, Mrs. Robert Mondavi and other prominent collections in the United States and Europe. Mr. Hemens is currently completing a non-fiction narrative about Jack Kerouac and America, entitled The Other Side of Denial-Memoirs of a Second Generation Desolation Angel ?, and a collection of remembrances of time spent with his friend, the poet Bob Kaufman, entitled Percodan Summer ?. A profoundly creative individual, who has worked as a painter, performer, poet, writer and filmmaker, Mr. Hemens' reclusive lifestyle took him to Mendocino County in 1984, where he continues to live with and work. We invite you to look at Denney Curtis Hemens exhibit in our Vineyards Room gallery from October 6 to December 20, 2001. It is suggested that the Robert Mondavi Winery be called at (707) 968-2213 or 2203 to determine the best time to view the show. Margrit Biever Mondavi Curator **

Message 730 of 1299

Today's Rate Design Decision -- Synopsis by AReM's attorney

Sender	susan.mara@enron.com
Recipients	['harry.kingerski@enron.com', 'jdasovic@enron.com', 'leslie.lawner@enron.com']
File	dasovich-j/all_documents/12600.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 05/16/2001 08:23 AM -----

"Daniel Douglass" <Douglass@ArterHadden.com> 05/15/2001 04:53 PM

To: <Barbara_Klemstine@apsc.com>, <Bob_Anderson@apses.com>, <Vicki_Sandler@apses.com>, <berry@apx.com>, <dczalet@apx.com>, <ed@apx.com>, <billr@calpine.com>, <jackp@calpine.com>, <sschleimer@calpine.com>, <gavaughn@duke-energy.com>, <rjhickok@duke-energy.com>, <gtbl@dynegy.com>, <jmpa@dynegy.com>, <jdasovic@enron.com>, <susan_j_mara@enron.com>, <Tamara_Johnson@enron.com>, <curt.hatton@gen.pge.com>, <foothillservices@mindspring.com>, <camiessn@newwestenergy.com>, <jcgardin@newwestenergy.com>, <jsmollon@newwestenergy.com>, <rsnichol@newwestenergy.com>, <nam.nguyen@powersrc.com>, <curtis_l_kebler@reliantenergy.com>, <JTeeter@SDGE.com>, <roger.pelote@williams.com> cc: Subject: Today's Rate Design Decision

President Lynch's draft decision was voted out today.? The CPUC currently has the attached version posted on its website, although the final version may differ somewhat.? The decision continues to provide (see p. 29) that Direct Access?customers will not be subject to the surcharge, as AReM has advocated. ? Based on some of the discussion which occurred at oral argument on Friday, the decision now has wording indicating that although the utilities are authorized to include the load of DA customers in calculating the revenue requirement associated with the surcharge, DA customers do not have to pay the surcharge for the same reasons AReM expressed repeatedly in the proceeding.? Any shortfall in utility revenues due to including DA demand in the revenue requirement will be allocated on an equal cents/kWh basis to all non-exempt sales.? It is noted that this may shift costs to residential customers "since the majority of direct access demand, and thus the majority of the resulting shortfall, is non-residential." ? The decision also makes clear that DA customers will not be entitled to include the surcharge under the current direct access credit system and that the Commission intends to reexamine and restructure the current direct access credit system "to reflect current structural reality." ? Hopefully, this will mean movement to a "bottoms-up" calculation methodology, as AReM has also advocated.? My understanding from Peter Bray is that Commissioner Bilas made some remarks indicating that he would support instituting a proceeding to restructure DA pricing. ? This is the result we wanted with regard to exempting DA customers from the surcharge.? We now need to see if TURN or any other consumer advocacy group chooses to challenge the allocation methodology for any shortfall.? ? Dan - 5-16-01 Proposed Decision of President Lynch.doc

Message 731 of 1299

SBX 9 (Elimination of Standby Charges)

Sender	sgreenberg@realenergy.com
Recipients	['tocchionero@agcc.org', 'aalmgren@capstoneturbine.com', 'ablovins@rmi.com']
File	dasovich-j/all_documents/10050.

The Distributed Energy Resources industry won a major battle yesterday.? The California Senate Energy and Utilities Committee passed on a 7-0 bipartisan vote, Sen. Morrow's (and while her name wasn't on this bill,?it was as much Sen. Alpert's) bill on eliminating any tariff that discriminates against DER.? SBX 9 was derived from the omnibus DER bill SBX 35 which is still alive and contains many important provisions fro removing additional barriers.? Yesterday's vote represents a major win because even if the bill ultimately does not get enacted, a very important statement has been made by the committee.? I'm sure the CPUC will take notice in their proceedings. ? The DER community owes much

thanks to Sen.'s Morrow and Alpert, and the Utilities Committee Members and their staffs: Sen. Bowen (Chair) Sen. Alarcon Sen. Battin Sen. Dunn Sen. Murray Sen. Poochigian Sen. Sher Sen. Speier Sen. Vasconcellos Sen. Vincent ? Also much thanks to everyone who worked incredibly hard and diligently on this effort. ? From the business, consumer advocacy, environmental, government, manufacturing, and real estate communities. ? Here are the highlights of yesterday's actions: ?

For IOU's- No discriminatory tariffs for new DER installed between May 1, 2000 and June 1, 2003 if DER is in combined heat and power mode.? If you have a peaking unit with gen only, then you have until??July 1 2001, to get it installed.? DER installed within the window gets the exemption until June 1, 2011. The maximum capacity of the DER is 5 MW in aggregate per site. The DER must have emissions levels of 9 PPM or better until the ARB established new guidelines and standards, expected late this year or early next year. Customers with DER are still required to pay interconnection, public purpose charges, and obligations incurred under the Dept. of Water Resources energy purchases program. The CPUC shall require the electrical corporations to include non-utility owned DER in its planning process. The CPUC is required to establish a firewall so that in the event that the implementation of DER results in net costs to the system, those costs stay within the customer class. The CPUC shall require the utilities to establish new rates for DER that are non-discriminatory and take into account the benefits as well as the costs. Muni's are required to review their tariffs for barriers to entry and hold public meetings to solicit comment for recommended changes.

Now we have momentum, but there is still a tremendous amount of work to do on the Assembly side and with Governor's office.? We need the continued (increased) support of all of you as we move this forward.

Steven A. Greenberg RealEnergy, Inc.

300 Capitol Mall, Suite 120 Sacramento, CA 95814 916-325-2500

mailto:sgreenberg@realenergy.com www.realenergy.com ?

Message 732 of 1299

Jobs for Haas Alumni 4/27/01

Sender	owner-alumnijobs@haas.berkeley.edu
Recipients	[]
File	dasovich-j/all_documents/11772.

ALL ARE WELCOME TO ATTEND

Post MBA, Post Internet Start-Up Career Decisions 2001 Joint program Univ. Mich. alumni, Haas alumni

\$25 at the door. Please RSVP r_cmohan@pacbell.net

Panel topic questions: o What short and long-term trends can be expected in Bay Area job market for director level and above, executive candidates? o What are up and coming industries or fields in the Bay Area job market. How can those jobs best be accessed? o Assume a job candidate has experience at Internet start-up companies, perhaps several over the past 2 years. How should Internet start-up experience be leveraged towards next career decision? How should this experience be presented to next potential employer, especially if the companies went out of business? Will candidates be penalized if they have jumped from Internet start-up to Internet start-up over the past several=20 years? o How does the job market of San Francisco compare to that of Silicon Valley/South Bay? Is it worth it for residents of San Francisco to commute or relocate to Silicon Valley/South Bay? o What skills or experiences are necessary to make the jump from senior director level to vice president? From vice president to COO? o In the past few years there was a glut of senior job titles at start-up companies. Do you believe some people will have to downgrade their title in their next career moves? o Assume a job candidate has received an MBA degree from a top ranking school 5 years ago and has successfully progressed up an executive level management career. At that point, what is the relative importance of the MBA on the resume, versus the experience and accomplishments?

Target Audience: MBA Graduates and soon to be graduates From University of Michigan, Haas School of Business, Kellogg, UT Austin, Tuck. Other MBA alumni clubs invited. Director to Vice President Career Level, mostly high tech and software related fields

Panel Members: o John Morel, Associate Director alumni Career Services Haas School of Business o Craig Smith, Consultant, Heidrick & Struggles, o Brian McDugal, Vice President, Management Solutions, o Margaret Steen, Careers Reporter, San Jose Mercury News, o Moderator: Gretchen Alarcon, Director of Human Resources, Icarian, Inc. (UMBS MBA 1997),

Date and Time: Wednesday, May 2nd Networking reception 6:00 p.m. Panel presentation 7:00 pm

Location: Scores Restaurant Conference Center 2200 Bridgepointe Parkway in San Mateo 650-357-1998

Directions: Take Highway 101(or 280) to Highway 92 East before the San Mateo Bridge. Exit Mariner=01,s Island Blvd. ramp. Make a right turn at the light onto Mariner=01,s Island Blvd. Make a right at next light onto Fashion Island Bl= vd. Follow into Bridgepointe Center at 2200 Bridgepointe Parkway. Free parking.

Event Contact Person: Christine Mohan, 415-440-3367

Message 733 of 1299

RE: PowerPoint info

Sender	jeff.dasovich@enron.com
Recipients	['cvavrek@deloitte.com']
File	dasovich-j/sent/4260.

While I, too, am frustrated at how things turned out, I'm glad your content overall with the course. Definitely one of the best--if not THE best--classes I've taken. I really think that we need to get together tomorrow nite to finalize, but I don't feel like pushing it too much. Your thoughts?

Best, Jeff

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> 04/23/2001 07:08 PM

To: Jeff.Dasovich@enron.com cc: Subject: RE: PowerPoint info

Apology not necessary! However, you are very kind to consider my perspective on the group and project. I am certainly a bit frustrated with how this project is turning out. We should have "white boarded" our ideas and reached consensus in the very beginning I think. It would have saved all of us time. I'm counting on Mark to drive this home for us smoothly.

But, at the end of the day, I am pleased with how much I learned in Tasker's class, which is the ultimate point anyway.

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Monday, April 23, 2001 10:05 AM To: Vavrek, Carolyn (US - San Francisco) Subject: Re: PowerPoint info

Carolyn:

I wanted to apologize for the way the group dynamic has shaped up. It's clear to me that you're a bit frustrated, and if I've contributed, I apologize.

You've done the most work on this project, your contribution has been very significant, and I personally am not satisfied about the way that the stuff you've pulled together (and your views) have been included. At some point, though, it gets tough beating one's head against the wall. Seems to me that, in a group, everyone should have some of their views

included---that's what groups and compromises are all about. After all, it's school. We've made a lot of sacrifices to do it, and the point is to learn.

Anyway, I hope you'll still comment on the presentation, and I'm glad that you've agreed to do part of it on Thursday. For my part, I felt that I pushed yesterday about as much as I'm prepared to push and at this point, I'll put the ratios tables together, offer a few edits, but don't see much use going to the mat.

Overall, I think it'll be an okay presentation, though getting there has been, well, bumpy.

But thanks very much for all the work you did. It was important, and the presentation is better off for it.

Best, Jeff

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Message 734 of 1299

FW: Diesel generator info.

Sender	jeff.dasovich@enron.com
Recipients	['mary.schoen@enron.com']
File	dasovich-j/sent_items/2108.

FYI. Martin may be interested.

Best, Jeff

-----Original Message-----

From: Margaret Bruce [mailto:mbruce@svmg.org] Sent: Tuesday, October 30, 2001 4:50 PM To: mbruce@svmg.org
Subject: FW: Diesel generator info.

Hello Environmental and Energy Committee Members:

Please see the following request from Dr. Kenneth Lim of the BAAQMD. The information he seeks is in support of a petition for additional State funding for BAAQMD programs. I understand how short the notice is, but if you can provide Dr. Lim some information, I think he and the BAAQMD would be very appreciative. If you would like to send me your data, I will forward it to Ken Lim without your company information.

Sincerely,

Margaret Bruce Director, Environmental Programs Silicon Valley Manufacturing Group

-----Original Message-----

From: klim@baaqmd.gov [mailto:klim@baaqmd.gov] Sent: Tuesday, October 30, 2001 1:30 PM To: mbruce@svmg.org
Subject: Diesel generator info.

Ms. Margaret Bruce: SVMG

Hi Margaret:

I had sent this message to Justin Bradley last week, but have not heard back from him. I should have sent it to you also.

I hope that things are going well with you.

I'm trying to assess the emissions impact of increased Back-Up Generator (BUG) diesel fuel use from 2000 to 2001. I need real data to support an effort to get state funds to help mitigate the additional emissions in the Bay Area. This is NOT for compliance, enforcement, or rulemaking, etc. purposes. I could use your help.

I would need 2000 and 2001 data for diesel fuel use or hours of BUG operation:

BUG engine, hp, fuel use 2000 and 2001 to date. One comparison might be 10/1/99-9/30/00 fuel use versus 10/1/00-9/30/01 use.

We want to verify, if it is true, that business and industry felt compelled by the energy situation to operate their diesel BUGs more hours and burn more fuel (fuel readiness testing and emergency backup power) than in past comparable periods.

I was hoping that you could provide some actual use data for the back-up diesel engines at your SVMG member companies. I would need specific engine information as indicated above. The data information can be as simple as total diesel fuel use for the first 9 months of 2000 versus the first 9 mos. of 2001. Ideally, we would prefer 10/1/99-9/30/00 fuel use versus 10/1/00-9/30/01 use.

I'm seeking this information at your earliest convenience (by the end of the day Wednesday). Please telephone or e-mail me if you have any questions. My apologies for this short notice (I did send in an inquiry to Justin on 10/22/01). Thanks very much for your consideration.

Ken

Kenneth Lim, Ph.D. Bay Area Air Quality Management District 939 Ellis Street San Francisco, CA 94109 Phone: 415-749-4710 FAX: 415-749-5030 E-MAIL: klim@baaqmd.gov

Message 735 of 1299

Additional information for the Post MBA, Post Internet Start-Up

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/all_documents/11756.

ALL ARE WELCOME TO ATTEND

Post MBA, Post Internet Start-Up Career Decisions 2001 Joint program Univ. = 20 Mich. alumni, Haas alumni

\$25 at the door. Please RSVP? r_cmohan@pacbell.net

Panel topic questions: o???????What short and long-term trends can be=20 expected in Bay Area job market for director level and above, executive=20 candidates?=20

o???????What are up and coming industries or fields in the Bay Area job=20 market. How can those jobs best be accessed? o???????Assume a job candidate has experience at Internet start-up companie= s,=20 perhaps several over the past 2 years. How should Internet start-up=20 experience be leveraged towards next career decision? How should this=20 experience be presented to next potential employer, especially if the=20 companies went out of business? Will candidates be penalized if they have= =20 jumped from Internet start-up to Internet start-up over the past several=20 years? o???????How does the job market of San Francisco compare to that of Silicon= =20 Valley/South Bay? Is it worth it for residents of San Francisco to commute = or=20 relocate to Silicon Valley/South Bay? o???????What skills or experiences are necessary to make the jump from seni= or=20 director level to vice president? From vice president to COO? o???????In the past few years there was a glut of senior job titles at=20 start-up companies. Do you believe some people will have to downgrade their= =20 title in their next career moves? o???????Assume a job candidate has received an MBA degree from a top rankin= g=20 school 5 years ago and has successfully progressed up an executive level=20 management career. At that point, what is the relative importance of the MB= A=20 on the resume, versus the experience and accomplishments?

Target Audience:?=20 MBA Graduates and soon to be graduates From University of Michigan, Haas School of Business, Kellogg, UT Austin,= =20 Tuck. Other MBA alumni clubs invited. Director to Vice President Career=20 Level, mostly high tech and software related fields

Panel Members: o???????John Morel, Associate Director alumni Career Services Haas School o= f=20 Business o???????Craig Smith, Consultant, Heidrick & Struggles,=20 o???????Brian McDugal, Vice President, Management Solutions,=20 o???????Margaret Steen, Careers Reporter, San Jose Mercury News, o???????Moderator: Gretchen Alarcon, Director of Human Resources, Icarian,= =20 Inc. (UMBS MBA 1997),=20

Date and Time: Wednesday, May 2nd Networking reception 6:00 p.m.=20 Panel presentation 7:00 pm

Location: Scores Restaurant? Conference Center 2200 Bridgepointe Parkway in San Mateo 650-357-1998

Directions: Take Highway 101(or 280) to Highway 92 East before the San Mateo Bridge. Ex= it=20 Mariner=01,s Island Blvd. ramp. Make a right turn at the light onto Mariner= =01,s=20 Island Blvd. Make a right at next light onto Fashion Island Blvd. Follow in= to=20 Bridgepointe Center at 2200 Bridgepointe Parkway. Free parking.

Event Contact Person: Christine Mohan, 415-440-3367

Message 736 of 1299

FW: Prehearing Conference Statement - COMMENTS NEEDED

Sender	susan.mara@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/inbox/1542.

-----Original Message-----

From: Aaron Thomas [mailto:aaron.thomas@aesmail.com] Sent: Monday, November 05, 2001 8:58 PM To: 'Dan Douglass'; ARM Subject: RE: Prehearing Conference Statement - COMMENTS NEEDED

Dan

Responses to your questions:

I think Enron would like to exclude the PX Credit issue from this case. I am comfortable taking the lead from Enron on this issue and would support not advocating it be included in this case. I think SCE is going to push for its inclusion, so Sue will need to provide you with some ammunition on why it doesn't belong in this case before Wednesday.

On the second question, no. I don't think we want to re-raise the rev req and tres letter leading to the end of DA.

I not sure we should push the bottoms up issue in this case. It is not at all clear what the ALJ is trying to pull into the case with the reference to post px credits. There is no pending matters on this, but for advice letters and protests. We are much better fighting in that forum given the current decisions rather than getting some nasty decision from Barnett that messes up the victory we got in the rate increase decisions.

I strongly urge that we NOT push this into this proceeding. It will be all downside. Changes to the PE Credit (i.e. reductions) may end up here, but we should not be calling for it.

Lastly, how can we say that the commission doesn't have authority to implement exit fees without changes in law given prior filings of ARM that said they should implement a whole host of exit fees rather than end DA. I don't think we can take this position without explaining the flip flop, which we certainly don't have room to do in the PHC statement. Maybe we can get away with referencing other parties strong position on this and support the requirement of hearings if any such attempt is going to be made to establish exit fees.

Thanks

Aaron

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Monday, November 05, 2001 12:47 PM To: ARM Subject: Prehearing Conference Statement - COMMENTS NEEDED Importance: High

Attached for your review and comment is a very rough first draft of the prehearing conference statement that we must bring to the hearing on Wednesday afternoon. It outlines, with some substance, the issues you have indicated we want to bring up, it identifies a few questions and seeks guidance from AReM members.

Please review and get back to me with comments by the close of the day, if possible. I am running to the airport (which is why this is not in as finished a form as versions normally sent to you) and will be looking for comments in my hotel room this evening.

Also, do we want to invite WPTF to join with us again, as it did in the comments last Friday on the Wood Ruling?

thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <<mailto:douglass@energyattorney.com>>

Message 737 of 1299

RE: Do you know your costs?

Sender	michael@eeg.com
Recipients	[hudacko@haas.berkeley.edu] , dasovich@haas.berkeley.edu]
File	dasovich-j/mba__managerial_accting/1.

For what its worth, see below. As a disclaimer I have little confidence that the approach I took was the best one.

-----Original Message-----

From: hudacko@Haas.Berkeley.EDU [SMTP:hudacko@Haas.Berkeley.EDU] Sent: Tuesday, February 15, 2000 8:36 AM
To: dasovich@haas.berkeley.edu; msmith@haas.berkeley.edu Subject: Do you know your costs?

Gentlemen; While I pretend to know something about wine, I must admit I know nothing about costing. Would you be so kind as to offer your opinions on the following: (1) Plastic rings- the 10K capital investment should not be considered in the marginal cost, as it is an investment to be depreciated over useful life of equipment (T/F) To cover my bets I did it both excluding the 10K, and including the 10K, making different assumptions in each case (1b) For incremental (marginal) costs, we should not look at overhead and period costs (ie in Vortec problem the S&A component was held constant; is that true here as well even though these are allocated based on direct labor)? I broke things down into variable overhead (.8direct labor) and fixed, and assumed the fixed component didn't matter since the way in which it was being allocated was somewhat arbitrary and hence shouldn't guide decision making. (1c) Variable overhead costs- are these in addition to the fixed overhead costs (Mfctring + S&A), or should they be subtracted from one or both? I interpret the controller's statement to mean that he missed them in the schedule provided, and that we need to add them, in addition to the other two. I interpreted it as part of total overhead, not in addition to. (2) For next 34500 steel rings, materials are sunk cost and not included as a cost(T/F) T (2B) same as (1B) incremental costs do not include Overhead costs? I included the variable component of overhead (.8 direct labor) but not other overhead.

Note trick for problem 2: Since the conversion to steel rings would be done in the summer at a 100% direct labor rate, and since workers in the summer would otherwise be getting paid at 70% rate for doing nothing, one might interpret that the incremental cost of direct labor is only 100%-70%=30% the rate it would otherwise be. This makes the incremental cost of doing the steel to steel ring conversion much cheaper than it would otherwise be.

(3) Differential cost means what? Difference in cost between Finished Goods inventory and the WIP inventory? It seems to me that it was undefined and hence you need to state explicitly what a relevant comparison is and make it. In this case I interpreted it as the difference in cost between producing the steel rings and a like number of plastic rings, and assumed that the cost of producing the steel rings in inventory is 0 since its already sunk.

Your comments are greatly appreciated! Jonathan

Jonathan Hudacko 415.305.4293 (HM) 510.649.6476 (WK)

E-mail@stanfordalumni.org is brought to you by the Stanford Alumni Association and Critical Path.

Message 738 of 1299

Keynote Speakers for CMTA Energy Conference -- FERC

Sender	susan.mara@enron.com
Recipients	['sarah.novosel@enron.com', 'jeff.dasovich@enron.com', 'ray.alvarez@enron.com', 'linda.robertson@enron.com']
File	dasovich-j/all_documents/28843.

We usually send someone to these -- sometimes we even get to make a presentation. Gov usually has someone there as well.

Wanted you to be aware of it.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/17/2001 12:20 PM -----

"Geri L. Royer" <groyer@cmta.net> 07/17/2001 12:05 PM

To: undisclosed-recipients;; cc: Subject: Keynote Speakers for CMTA Energy Conference

July 17, 2001

To: CMTA Members

From: Jack M. Stewart, President

Date: July 16, 2001

Re: FERC Commissioners to Keynote CMTA Energy Conference

http://www.cmta.net/archive/2001_tahoe_conference.shtml

For all manufacturers who will ultimately pay the price for California's

energy crisis and for all those individuals involved with energy policy,

the only place to be from August 1-3 will be the CMTA Energy Conference at Harvey's Hotel-Casino in South Lake Tahoe.

Headlining the Conference as Keynote Speakers are two of the five Federal Energy Regulatory Commissioners (FERC).

Commissioner Nora Brownell will keynote the Thursday, August 2 session and Commissioner Bill Massey will open the Friday session.

Commissioner Nora Brownell was nominated by President George W. Bush to serve on the Federal Energy Regulatory Commission (FERC) on April 30, 2001 and was confirmed by the U.S. Senate on May 25. Prior to joining the Commission, Ms. Brownell served as a member of the Pennsylvania Public Utility Commission (PUC). During her tenure at the PUC, Ms. Brownell took an active role in the roll out of electric choice in Pennsylvania. In addition to her work in establishing the framework for

one of the most successful retail electric markets in the country, Ms. Brownell was a leader in the administration of Pennsylvania's Electric Choice Consumer Education Program.

William L. Massey was nominated by President Clinton and was confirmed by the Senate in 1993. He was renominated and confirmed for a second five-year term ending June 30, 2003. Commissioner Massey was the only Clinton-appointed FERC commissioner to support Governor Davis' demand for electricity price controls in the western states earlier this year.

The CMTA energy Conference agenda will include the latest information on

energy legislation making its way through the state capitol, an update of pending CPUC decisions as well as a review of the various financial proposals aimed at returning Edison and PG&E creditworthiness and restoring direct access to California's electricity consumers.

We have scheduled panels of government and industry experts to discuss Natural Gas Prices, Supply and Infrastructure; Managing High Prices and Blackouts; Environmental Impacts and Trade-Offs; and two panel discussions on present and future energy markets.

Please check our website at http://www.cmta.net/archive/2001_tahoe_conference.shtml to learn more about these critical issues and to register for CMTA's 2001 Energy Conference at Harvey's in South Lake Tahoe.

- groyer.vcf

Message 739 of 1299

RE: Group Project--E221

Sender	jeff.dasovich@enron.com
Recipients	['tasker@haas.berkeley.edu']
File	dasovich-j/all_documents/10283.

Thanks so much for responding. This is very strange. I have no idea what's gone wrong. I'm attaching the emails that I sent. Please let me know if you receive this. And no need to apologize; appears to be a technical glitch somewhere.

The most important note (and my reason for concern when I didn't hear back) was the one explaining that I had to miss the second quiz due to biz travel and offering alternatives for your consideration. Finally, are you comfortable with our proposed project?

Best, Jeff

Sent on 3.19.2001

Greetings:

Sent you a project proposal last Thursday on behalf of Dasovich, Guinney, Sama and Vavrek and just wanted to make sure that you received it. Could you let me know? Thanks very much.

Best, Jeff

Sent on 3.16.2001

Greetings Professor:

Our group consists of Jeff Dasovich, Mark Guinney, Anil Sama and Carolyn Vavrek.

We propose to examine the recently failed acquisition by Coke of Quaker Oats: Why merge? What was the value? Upside? Downside? Why did it go bust? Should it have gone through? What's up with this Buffet guy, anyway?

If you have any concerns with this proposal, please let us know.

Finally, if possible, we'd like to present on Thursday, April 26th.

Best, Jeff

Greetings. Apologies for cluttering your email, but I've been having email problems and wanted to ensure that you received the original note.

Best, Jeff

----- Forwarded by Jeff Dasovich/NA/Enron on 03/06/2001 08:31 PM -----

=09Jeff Dasovich =09Sent by: Jeff Dasovich =0903/05/2001 11:23 AM =09=09=20 =09=09 To: tasker@haas.berkeley.edu
=09=09 cc:=20 =09=09 Subject: This Week's Class

Professor Tasker:

My name is Jeff Dasovich and I=01,m an evening student in your Financial=20 Statement Analysis course. My apologies, but my work schedule has been=20 particularly unfriendly to my school schedule this semester. As such, I=01= ,m=20 forced to throw myself at the mercy of the professor.

As you know, my schedule forced me to miss the first quiz. I found out on= =20 Friday that my work schedule will now force me to miss the second quiz. =20 (Much to my chagrin, I=01,Il also be missing material that you=01,Il be dis= cussing=20 on Thursday in which I have a particular interest=01*more about the model a= nd=20 how to value a firm in distress. I will have the class recorded in my=20 absence, however, so it won=01,t be a not a total loss.)

I=01,m willing to 1) take the quiz another day, though I know you would rat= her=20 not do that for all of the obvious reasons, 2) do additional assignments to= =20 make up for missing another quiz, 3) have the other assignments in the cour= se=20 count that much more still in determining my grade, and/or 4) any other=20 remedies you might want to pursue. =20

If you=01,d like to discuss the situation further by phone, just let me kno= w. =20 My work number is 415.782.7822 and my home phone is 415.621.8317.

And again, my apologies for the complications and thanks for your=20 consideration.

Best, Jeff

=09

Message 740 of 1299

Re: Western Power Trading Forum Press Release on ISO Plan

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com']
File	dasovich-j/all_documents/11460.

Nice job. You take a self-promotion course over the weekend?

Susan J Mara 04/24/2001 10:33 AM

To: Karen Denne/Corp/Enron@ENRON, Mark Palmer/Corp/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Ray Alvarez/NA/Enron@ENRON, Alan Comnes/PDX/ECT@ECT, Steve Walton/HOU/ECT@ECT cc: Subject: Western Power Trading Forum Press Release on ISO Plan

I proposed the FERC filing, helped draft it, proposed the press release and helped shape it.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 04/24/2001 08:30 AM -----

Gary Ackerman <foothill@lmi.net> 04/23/2001 08:23 PM Please respond to foothill

To: webmaster <charlotte@wptf.org> cc: Subject: Western Power Trading Forum Press Release

PRESS RELEASE Menlo Park, CA April 23, 2001 TRADE GROUP BLASTS ISO PLAN TO STABILIZE MARKETS The Western Power Trading Forum (WPTF), last week sent federal regulators a stern warning that the California Independent System Operator's (CAISO) plan to "stabilize" the California market will cause more blackouts in the West, chase away much-needed new generation, and jack up wholesale power costs. WPTF warned the Federal Energy Regulatory

Commission (FERC) that the CAISO proposal will have an extremely detrimental impact on power markets in California as well as other electricity markets throughout the Western Region. "Their plan imposes price caps and curtailment of power exports," said Gary Ackerman, executive director of the group. If approved, the CAISO plan, called the Market Stabilization Plan, will create disincentives for the development of additional generation capacity, precisely the wrong signal that needs to be sent at this time. As a result, in addition to leading to higher costs, the Plan will impair reliability in California and throughout the West. WPTF found that the CAISO's proposal to curtail exports is particularly troublesome and potentially interferes with interstate commerce in violation of the Federal Power Act ("FPA"). "This plan is yet another attempt to heap more rules on an already overruled market. This is the kind of misguided thinking that got California into its current mess. Their plan is too complex, academic, and does absolutely nothing to address the real issues of low supply and high demand. Consequently, the plan will have exactly the opposite effect," Ackerman commented. The WPTF supports the FERC's pro-competitive policies under Order No. 2000 for regional approaches to interstate electricity markets. The membership of WPTF includes power marketers, scheduling coordinators, power exchanges, generators and other active participants in the restructured California electric market. The members share a common mission of enhancing competition in electric markets. WPTF actions are focused on supporting the development of competitive electricity markets throughout the region and developing uniform operating rules to facilitate transactions among market participants.

Message 741 of 1299

Utilities, Electric: Deregulation: USA: U.S. electric utilities

Sender	miyung.buster@enron.com
Recipients	['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/notes_inbox/720.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 09/29/2000 03:53 PM

djcustomclips@djinteractive.com 09/26/2000 08:10 PM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: USA: U.S. electric utilities want new depreciation rules ...

[IMAGE] USA: U.S. electric utilities want new depreciation rules. ? 09/26/2000 Reuters English News Service (C) Reuters Limited 2000.

WASHINGTON, Sept 26 (Reuters) - U.S. utilities want federal tax laws changed to allow electric generation facilities to be depreciated over seven years instead of the current 15-20, an industry trade group told a House subcommittee on Tuesday.

Officials from the Alliance of Energy Suppliers, the energy supply division of the Edison Electric Institute, said rapid deregulation and consolidation in the industry made the old depreciation rules obsolete, and hurt the sector's ability to attract investment for new plant construction.

Under the old school, regulated market structure, dividend payments to utility investors were more or less predictable, but that was no longer the case in openly competitive markets.

"Previously applicable rules regarding the recovery of capital simply do not apply any longer," said Theodore Vogel, vice president and tax counsel for DTE Energy Co , a member of the industry alliance.

"Investors will demand a return of, and a higher return on, their investments in building and maintaining power plants over a much shorter period of time," he said.

Some 24 states and the District of Columbia have enacted laws to open their retail markets to competition. Wholesale markets have been gradually deregulated by the federal government.

Vogel said demand for power is great and growing, noting that 16 percent of U.S. energy consumption could be attributed to increases in information technology and telecommunications.

U.S. demand for power is expected to grow at a rate of more than 5 percent a year, he said.

New supply is lagging, however, notably in states where deregulation has seen consumers pay market rates for power for the first time, like in California, where price caps had to be introduced in San Diego this summer after electric bills tripled and caused a public outcry.

"Congress should legislate incentives to encourage the construction of new or more efficient electric generation facilities," Vogel said.

The Edison Electric Institute is the trade group for the nation's shareholder-owned electric utilities.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 99

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 742 of 1299

Re: Teams

Sender	jeff.dasovich@enron.com
Recipients	['kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu']
File	dasovich-j/all_documents/1882.

See my note and Christine's response. Thoughts? Suggestions? Jimmie, apparently she's had a crush on you ever since she heard you say, "Cash-sucking machine." ----- Forwarded by Jeff Dasovich/NA/Enron on 09/28/2000 07:11 PM -----

Christine Piesco <christine.piesco@oracle.com> 09/28/2000 06:23 PM

To: Jeff.Dasovich@enron.com cc: Subject: Re: Teams

Jeff,

Sorry, I should have mentioned when we spoke that Prof Aceves already said it would be OK to join a group with 4, making it 5. He knew that would be the case. He suggested I pick a group, rather than him just randomly choosing one to assign me to. You seemed nice based on my initial reaction to meeting you, which is why I approached you about it.

If the group has reservations based on my past group's experience, please let them know that the situation arose because I was out of the country for a week and a half without email access, and therefore wasn't able to contribute to two weeks of assignments. I had let Prof Aceves know about this planned business-related absence even before the course started, so he didn't penalize me. He forgot that I was the person who had sent him that note when my group approached him to let him know I hadn't contributed to two assignments. He said based on that, he would speak to the group to put me back in it if I wanted, or I could join another group. I hadn't had any conflicts whatsoever with the other group, I just had been out of communication, but I felt that given what had happened starting with a fresh group would be easier. In my opinion, it was just unfortunate that this trip happened two weeks into the class, before I could prove myself to my old group.

If you can communicate both of these things to your other group members, I really would like to join you all. My alternative at this point would be to do the next assignment individually, since I wouldn't be able to find another group until two weeks from now, and then have the professor assign me to one.

I greatly appreciate your help. If I can join you all, please let me know as soon as possible so I can make sure I contribute to the next assignment.

Thanks, Christine

Jeff.Dasovich@enron.com wrote:

Christine: My apologies. My schedule melted down after we talked on Monday. Here's where folks came out. There's some concern about size. We're supposed to be no larger than 3, but we lobbied Aceves and he apparently Ok'd our "oversized" group. The other folks in the group--who talked to him originally--are pretty sure that five will violate the rules. Folks wondered if there were other groups that are smaller than ours that you could hook up with. Sorry about that---it's a wrinkle that I didn't think about when we spoke. If it gets real ugly trying to find a smaller group, let me know. Fortunately there's not another team case due for two weeks. Best, Jeff

-- Christine Piesco Industrials Account Manager Oracle Corporation 500 Oracle Parkway Redwood Shores, CA 94065
Phone: (650) 506-3640 Fax: (650) 633-3753 christine.piesco@oracle.com

- christine.piesco.vcf

Message 743 of 1299

Fw: WPTF Principles for RTO Formation - Input Needed on WestConnect

Sender	douglass@energyattorney.com
Recipients	['johnson.tamara@enron.com', 'susan.mara@enron.com', 'sandler.vicki@enron.com']
File	dasovich-j/inbox/760.

In his email a few days ago dealing with the newly adopted WPTF principles for RTO formation, Gary Ackerman wrote that:

"Dan Douglass will utilize this document to review the WestConnect filing, and in combination with members' comments on the same, prepare a briefing to the Board in a special teleconference Board Meeting that we will hold on Wednesday morning, October 31 (Halloween) at 11 a.m."

So far, no members have sent me any of their comments on the filing. It would be greatly appreciated should some of you do so before next week. Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com

----- Original Message -----

From: Gary Ackerman To: Bill Ross ; Bob Anderson ; Carolyn Baker ; CHARLES A MIESSNER ; curt hatton ; Curtis Kebler ; Greg Blue ; Jack Pigott ; Janie Mollon ; Karen Shea ; Nam Nguyen ; Randy Hickok ; Rob Nichol ; Roger Pelote ; Sue Mara ; Todd Torgerson ; George Vaughn ; Max Bulk ; Huhman, Steve ; Steve Schleimer ; Peter Blood ; Dan Douglass
Sent: Wednesday, October 17, 2001 9:38 AM Subject: WPTF Principles for RTO Formation

Based on the amendments and comments made at yesterday's Board meeting, the following RTO principles are hereby adopted per yesterday's vote.

a.. The Western States should have a single RTO eventually, but initially there could be two entities (the California ISO and an RTO for the rest of the Region). FERC has a unique opportunity to mediate between RTO West and the newly formed WestConnect (the proposed successor agent for the now defunct Desert STAR) to form a single RTO for the non-California portion of the West. b.. The RTO Governing Board should be truly independent, and be absent of any "stakeholders". The Board should have at its disposal a meaningful stakeholder advisory committee for the purpose of airing technical issues, and identifying different viewpoints. The seats on the advisory committee should be equally split between load serving entities and suppliers 50/50. However, within each subgroup, there can be different representative classes as determined by the Board. c.. The RTO should maintain separation of the operation of any energy market from the parties that own the transmission assets. d.. The RTO should provide a real-time imbalance energy market, allow for self-provision of ancillary services, and operate a real-time market for each congestion zone within the RTO when transmission congestion is present. e.. The RTO should provide demand response mechanisms in its Tariff, and the Tariff and Operating Procedures should either promote and enable retail competition, or not discourage retail competition. If you

have any editorial comments or changes, please send them to me. This is a working document. Dan Douglass will utilize this document to review the WestConnect filing, and in combination with members' comments on the same, prepare a briefing to the Board in a special teleconference Board Meeting that we will hold on Wednesday morning, October 31 (Halloween) at 11 a.m.

gba

Message 744 of 1299

FW: A.00-11-038 et al. ABAG POWER Petition for Modification of D.

Sender	harry.kingerski@enron.com
Recipients	['james.steffes@enron.com', 'susan.mara@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/573.

-----Original Message-----

From: Kingerski, Harry Sent: Monday, July 16, 2001 5:06 PM To: 'JBennett <JBennett@GMSSR.com>@ENRON'; Jeff Dasovich (E-mail); Jim Steffes (E-mail); Sue Mara (E-mail) Subject: RE: A.00-11-038 et al. ABAG POWER Petition for Modification of D. 01-05-064

I think ABAG has a good point and the principle is one we are also trying to establish - if you weren't using DWR power, you shouldn't have to pay for it. But I wonder if Enron's endorsement of ABAG's petition wouldn't contaminate it. I think we should let them win on the merits of their own argument and use their success (if it occurs) as precedent for our position on similar issues.

Also, there is some downside if they win. Our customers were on the utility for those 3 months, and are now off - the direct opposite of the situation ABAG is in. So if they escape the burden of the 3 month surcharge, it would (should) be reimposed on customers who were on the utility at that time - which in theory could include our customers, even though they are back on DA and otherwise exempt from the surcharge.

So while I think we want them to win, like always, its hard to figure if that's good or bad so let's just stay out.

-----Original Message-----

From: JBennett <JBennett@GMSSR.com>@ENRON
[mailto:IMCEANOTES-JBennett+20+3CJBennett+40GMSSR+2Ecom+3E+40ENRON@ENRON.com] Sent: Monday, July 16, 2001 11:43 AM To: Kingerski, Harry; Jeff Dasovich (E-mail); Jim Steffes (E-mail); Sue Mara (E-mail) Subject: FW: A.00-11-038 et al. ABAG POWER Petition for Modification of D. 01-05-064 Importance: High

Attached is a petition for modification of Decision 01-05-064 (the rate design decision) filed by the Association of Bay Area Governments. The Petition requests that the decision be modified to exempt customers which were direct access for the period of March through May 2001 from the 12 month procurement surcharge which is designed to allow the utilities to collect the three cent increase authorized by the March decision which then did not go into effect until June (i.e., collect the revenues foregone due to the time lag in implementation).

Given the fact that most of Enron's customers were on bundled service during the March-June time frame, I do not believe that the requested modification would provide them any benefit. Let me know if I am wrong on this and if Enron wants to chime in in support of ABAG's petition.

Jeanne Bennett

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Friday, July 13, 2001 5:31 PM To: Subject: Re: A.00-11-038 et al. ABAG POWER Petition for Modification of D.01-05-064 Importance: High

Attached for your information is a copy of the Petition for Modification of D.01-05-064 filed today by ABAG POWER. Copies have also been sent to all parties on the service list by U.S. Mail.

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@energyattorney.com

- 7-13-01 Petition for Modification of D.01-05-064 - Final.doc << File: 7-13-01 Petition for Modification of D.01-05-064 - Final.doc >>

Message 745 of 1299

Re: Dirk vanUlden

Sender	jim.badum@enron.com
Recipients	['andrew.wu@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/29371.

I reviewed the UtilityGuide website and while I do not have an issue with Mr. van Ulden participating on the advisory board I would have a few cautions. It should not include any hard commitments from Enron in terms of funding. We may want to participate in the program but we should not be required too. His compensation should be insignificant or nothing. Otherwise he would have a conflict as their revenues will come from our competitors. I would have a lot of heartburn over that as an Enron representative as well as if I came from the competition.

Please let me know final status or if you have any questions.

Andrew Wu 12/12/99 07:59 PM To: Jim Badum/HOU/EES@EES cc: Jeff Dasovich/SFO/EES@EES Subject: Dirk vanUlden

Jim--

I am in the EES Legal Dept here in California. Jeff Dasovich of Public and Gov't Affairs asked me to send you an email soliciting your thoughts regarding Enron employees participating in third-party deregulation-related companies.

Specifically, an Enron employee here in California (Mr. Dirk van Ulden) has been asked to serve on the "advisory board" for a deregulated industry startup called UtilityGuide. UtilityGuide's goal is to create an online forum for buyers and sellers of deregulated energy services. UtilityGuide would be funded by (a) transaction fees paid by services providers, and (b) revenues derived from advertising and sponsorship.

The management of UtilityGuide includes an ex-White House policy analyst (I don't know which administration), a web design consultant and former marketing manager for Greenpeace, and an ex-portfolio manager for Union Bank of California.

Mr. van Ulden would be one of seven on the advisory board, which does not include any management activities. Mr. van Ulden's main duties appear to be assisting in recruitment of other members of the advisory board, other management members, and identifying potential sources of working capital. The term of Mr. van Ulden's appointment would be one year.

Jeff Dasovich and I have reviewed UtilityGuide's website (www.utilityguide.com) and we do not believe that Mr. van Ulden's service on the advisory board would be in conflict with the Enron Corporate Conduct policy, mainly because (a) UtilityGuide as an aggregator of energy servicers and not an energy service provider itself does not appear to be a competitor of Enron, and (b) Mr. van Ulden's position at Enron Energy Services as a project manager under Jeff Messina's Account Management and Delivery group limits virtually all actual conflicts between Mr. van Ulden's duties at EES v. his duties at UtilityGuide. However, because of EES' ongoing forays into the electronic marketplace, we thought it appropriate to ask your thoughts before responding. I believe that Mr. van Ulden has the concurrence of his management as to this appointment, although of course we can seek concurrence from any other management entities deemed necessary or prudent.

Your input would be greatly appreciated. Pls let me know if I can provide any further information. I can be reached in San Ramon at 925 543 3706. Jeff Dasovich can be reached in San Francisco at 415 782 7822.

Andy

Message 746 of 1299

RE: Draft AREM Filing - Comments Needed

Sender	rschlanert@electric.com
Recipients	['douglass', 'dan@enron.com', 'arm@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/inbox/941.

FYI...

Here are the confirmations regarding what type of DASR the Joint UDC Proposal addresses from each of the three UDCs.

PG&E Rebecca:

In response to your questions regarding our latest Joint Proposal, here is my answer to your specific questions below:

a) The DASR Cut-off etc mentioned in your recent filing indeed refers to Connect DASRs only As the primary purpose of the implementation of the suspension of DA is to identify accounts that are eligible to go DA, the "DASR Cut-off" reference is for CONNECT DASRs only.

b) All other DASRs, such as Disconnect and Updates, will continue to be accepted regardless of any implementation of a Cut-off or not. Disconnect and Update DASRs will continue to be accepted for existing accounts and new accounts to be switched as proposed in our filing.

Thanks, Calvin Yee PG&E

SDG&E: a) The DASR Cut-off etc mentioned in your recent filing indeed refers to Connect DASRs only,

This is correct, the joint proposal refers to new connects

b) All other DASRs, such as Disconnect and Updates, will continue to be accepted regardless of any implementation of a Cut-off or not.

Updates DASRs and terminations DASRs will continue to be accepted.

Lora Clay Strategic Lead - ESP Relations e-mail: lclay@sdge.com

SCE: I have seen the responses to Rebecca's questions from SDG&E (Lora Clay's comments are included in the e-mail below) and PG&E (by separate e-mail to Rebecca from Calvin Yee, not included here). SCE would agree that the Joint UDC proposal regarding a DASR cut-off date pursuant to the joint UDC filing on 11/16/01 refers to:

1) "Connect" DASRs only, and that 2) under such a DASR cut-off, SCE would continue to accept "disconnect" and "update" DASRs (for changes to billing and/or metering options) for existing Direct Access customers (note: this is consistent with SCE's previous communications regarding the subject of DASR cut-off date)

Jack Horne Jack.Horne@sce.com

I have all three e-mails & will forward them to Dan today.

Rebecca

-----Original Message----- From: Dan Douglass [SMTP:douglass@earthlink.net] Sent: Tuesday, November 27, 2001 12:00 AM To: ARM; Jeff Dasovich Subject: Draft AREM Filing - Comments Needed Attached for your review and comment is a redlined third draft of our comments due Wednesday on the UDCs' Joint Proposal re DA suspension implementation. My thanks to Rebecca Schlanert and Jeff Dasovich for their comments. Jeff's suggestions re Option 3 are included at the end of the draft. The essential change from what the UDCs proposed is that the CPA verifications would go directly to the Commission rather than to the UDCs. I thought up a few reasons in support of this approach, but would appreciate more suggestions and comments. Since this is due Wed., comments received by close of business tomorrow will get put into a proposed final draft to be circulated Wed. morning. Thanks! Dan Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland

Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com
<<mailto:douglass@energyattorney.com>> << File: 11-28-01 ARM Comments - Draft 3_.doc >>

Message 747 of 1299

Spring fees and financial aid news

Sender	fidler@haas.berkeley.edu
Recipients	['mba01@haas.berkeley.edu', 'mbastaff@haas.berkeley.edu', 'mba00@haas.berkeley.edu', 'evstaff@haas.berkeley.ed...']
File	dasovich-j/mba_program/31.

SPRING FEES and FINANCIAL AID NEWS

Spring Fees CARS Billing Statements with assessed spring registration fees will be printed the weekend of November 20 and mailed before the Thanksgiving holiday. You should receive it by December 3, but are nonetheless responsible for paying fees by the deadline of December 15 even if you have not received a bill. Ensure that your local address is correct on Bearfacts. Fees can be read on Telebears if you do not receive a bill.

Health insurance fees are automatically waived in the spring semester if they were waived in the fall term. However, the assessment for health insurance will show under New Charges. Do not panic because the waived health insurance amount will show in the next section of the CARS bill.

You have the option of paying your bill in full or electing the Deferred Payment Plan (DPP), wherein your fees are paid in five equal monthly installments. There is a \$40 participation fee each semester for the DPP.

Students who entered in fall 1999, please be aware that your spring 2000 fees will appear \$500 higher than fall semester as your deposit no longer offsets the total.

Financial Aid and Spring Fees If you are a financial aid recipient and there are no holds on your CARS account, you have enrolled for at least 6 units in spring semester and returned all aid documents, then financial aid will credit your CARS account by the December 15 deadline. If your aid is not sufficient to fully pay your registration fees, you must pay the remaining balance by Dec. 15 to avoid a late CARS charge or a \$40 Deferred Payment Plan charge. If your financial aid amount exceeds your reg fees, then the remainder will be disbursed to you hopefully according to the following schedule:

Thursday, January 13 - if your Electronic Funds Transfer (EFT) request has been processed To sign up for EFT, download the form <http://fbs.berkeley.edu/DISB/efinfo.htm> Tuesday, January 18 - checks will be mailed to local addresses for those students not signed up for EFT. It may take up to 5- 7 business days to receive the check. Be certain your mailing address is current with the University (database is different than Haas). You can update it on Bearfacts <https://bearfacts.berkeley.edu>

NOTE: Although Berkeley may credit your CARS account with aid in December, the official disbursement date for your federal student loan is not until mid-January 2000. So interest does not begin to accrue on the second disbursement of your Unsubsidized Direct Loan until then. Also, if your company is paying registration fees, you will not receive a refund of your student loan until the third week of January.

Individuals expecting their second disbursement of private loans checks can anticipate that the check will be available for pick-up or mailed to you (same arrangements as for your fall private loan disbursement) by the third week of January.

If you have any financial aid questions, please contact me.

Regards- debi

debi fidler Director of Financial Aid for MBA Programs Haas School of Business, S472 University of California, Berkeley Berkeley, CA 94720-1900 voice (510) 643-1680 fax (510) 642-4700 - att1.htm

Message 748 of 1299

SB 1x hearing today

Sender	cmicheli@carpentersnodgrass.com
Recipients	['steven@iepa.com', 'smccabe@mccabeandcompany.net', 'smara@enron.com']
File	dasovich-j/notes_inbox/3775.

As you may know, SB 1x (Soto/Scott) passed the Senate Appropriations Committee by an initial vote of 7-3 (the bare minimum). Senator Soto said that the Legislature must make a "bold proposition" with this bill.? She said that this experience is "like no consumer has been gouged before."? The Legislature must cap rates.? This bill guarantees a generous profit to generators. Senator Scott said that these generator profits have been gained off of consumers.? According to FERC, over \$500 million in excess profits have been reaped.? Californians have been "royally mistreated" by generators.? This "money has left the state (to Texas and other places)."? This bill is the only solution.? The PUC can change the \$80 rate.? Based upon the January Field Poll, Californians support this concept.? We have to "stand up to the generators and say no more." Supporters were:? TURN and CTRA (Lenny Goldberg).? Lenny said that the FERC will not give any relief to CA ratepayers, so the Legislature has to.? This bill needs to be combined with the power authority by Senator Burton to hold prices down. Other supporters of the bill included:? Congress of CA Seniors; CalPIRG; CA Consumer Federation; CA Labor Federation; SEIU; Public Power Now.? SEIU (public employee union) said that this bill is "the only way to put caps on rates." Opponents were CMTA ("this is the wrong medicine for solving the problem"); WSPA (does nothing to resolve the shortage of energy; we should be doing bills to stimulate greater investment in supply); InterGen said that they are looking at California market, but will not build with this bill out there.? CA Wind Energy Assn (QFs oppose this bill because the rate is too low); and IEP (most productive answer to our problem is the build power plants). Senator Battin said that the price cap is lower than some of the Governor's long-term contracts at \$86 per hour.? Senator Scott said that the munis are, indeed, covered by the bill.? He also said that the PUC can change the rates contained in this bill.? Scott also said that the PUC can exempt renewables under the bill. Senator Bowen stated that the \$80 figure should be removed from the bill ("this price may be inappropriate").? She suggested using the "FERC proxy price."? She suggested that they look at an exemption for contracts with the state.? She saw no reason to exempt the renewables because they would make a bundle with an \$80 cap. Senator Poochigian said he was concerned about the majority vote issue (because this bill is allegedly revenue neutral).? Scott said all of the money raised by the bill will go to ratepayers.? He said that Legislative Counsel gave him an opinion (I don't know if it is written or verbal) that this scheme was permitted.? Poochigian said it was ironic that the PUC was being given the authority to set rates under this bill. Senator Scott stated that they would take as an author's amendment to exclude all long-term contracts from the provisions of this bill. Next stop for the bill is the Senate Floor. ?

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251
FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 749 of 1299

Utilities, Electric: Deregulation: California Electricity

Sender	miyung.buster@enron.com
Recipients	['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/all_documents/2184.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/09/2000 11:03 AM

djcustomclips@djinteractive.com 10/06/2000 04:15 PM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: California Electricity Management Agency Approves ...

California Electricity Management Agency Approves Temporary Power Plants Anne C. Mulkern ? 10/05/2000 KRTBN Knight-Ridder Tribune Business News: The Orange County Register - California Copyright (C) 2000 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

State electricity managers voted Wednesday to pay private companies as much as \$765 million over three years to build and run temporary power plants aimed at preventing blackouts next summer.

The Independent System Operator, the agency that controls 75 percent of the state's power grid, said it had no choice but to approve the plants, which can generate a combined 2,000 megawatts -- enough to power 2 million homes. Even with those new plants, the estimated demand for electricity next summer exceeds supplies by about 3,000 megawatts.

Calling the state's deregulated electricity market "a complete train wreck," board members said they needed to act immediately.

Under legislation passed last month, smaller plants can be approved in as little as four months. But applications for those plants have to be submitted by Oct. 31.

The plants, which can be built by June 2001, are more expensive to run and pollute more than larger plants. They will only run on days of peak demand.

The cost of building and running the new plants likely will be passed on to ratepayers, but the details have not been worked out. Board members could not say how much it would cost each consumer.

Electricity prices surged this summer when demand for power exceeded supplies. Under deregulation, which began in 1998, the ISO pays whatever it deems necessary to buy more electricity in an emergency. The agency has spent more than \$100 million this year for such purchases, a cost paid by consumers in their bills.

Consumer advocates said the vote to approve so-called peaker plants signals a partial re-regulation of the state's electricity market. Companies building the plants will be paid a guaranteed return of 16.6 percent for at least three years. ISO staff will choose them from among 69 companies that submitted bids.

One consumer advocate, however, said the move could protect the ISO from spending even more.

"We're recognizing that it's not going to be appropriate to just let the market function willy-nilly, because it may fail," said Michael Shames, executive director of Utility Consumers' Action Network in San Diego. "Given the extreme we're at, a little more regulation makes it a little more reasonable."

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 97

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 750 of 1299

nan	
Sender	mary.schoen@enron.com
Recipients	['martin.wenzel@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/5602.

It looks like one of the air districts is listening...

South Coast Air Quality Management District

=09=09Jan. 26, 2001 =09=09To Help Provide Power During Energy Crisis =09=09AQMD EXTENDS OPERATIONS
LIMIT ON EMERGENCY GENERATORS =09=09In an effort to give essential public services greater ability to res= pond

to=20 power emergencies, the region's air quality agency issued an executive orde= r=20 today extending the amount of time that such agencies can run emergency=20 generators. =09=09"Gov. Davis declared a state of emergency last week due to the state'= s power=20 crisis," said Barry Wallerstein, AQMD=01,s executive officer. "In response,= AQMD=20 has increased the amount of time that emergency generators at hospitals,=20 police stations, fire houses and other essential public services can operat= e." =09=09Under AQMD's executive order, essential public service providers can = operate=20 emergency generators up to 500 hours in a calendar year, which more than=20 doubles AQMD's Rule 1110.2 operation limit of 200 hours per year. AQMD rule= s=20 normally limit emergency generators to 200 hours per year because they are= =20 typically diesel-powered, have no pollution controls and emit 300 times mor= e=20 smog-forming pollution per unit of energy than a new power plant. =09=09Today's order allows essential public service providers to operate up= to 500=20 hours per year during an imminent or actual power blackout in the provider'= s=20 area. It also promotes the use of low-sulfur diesel fuel, defined as=20 containing 15 parts per million or less of sulfur, if reasonably available.= =20 The provisions of the order are consistent with U.S. Environmental Protecti= on=20 Agency guidance on this issue. =09=09The order expires on Feb. 3, 2001, but can be renewed in 10-day incre= ments.=20 It applies to the following public services: =09=09 =09=09

=09=09 =09=09 =09=09Police and fire fighting facilities; =09=09 =09=09Hospitals and other health care facilities; =09=09 =09=09Kindergarten through high schools; =09=09 =09=09Drinking water agencies; =09=09 =09=09Public transit agencies; =09=09 =09=09Prisons; =09=09 =09=09911 emergency dispatch operations; =09=09 =09=09Publicly owned sewage treatment plants; =09=09 =09=09Landfill gas operations; and =09=09 =09=09Critical military operations. =09=09 =09=09Under AQMD's Rule 118, the agency's executive officer can suspend AQM= D rules=20 for public health and safety services for 10 days at a time in response to = a=20 state of emergency declared by the state or federal government. =09=09AQMD has set up a hotline, (909) 396-2660, to assist operators of bac= kup=20 generators at non-essential public services to voluntarily apply for a=20 variance with AQMD's independent Hearing Board. =09=09AQMD also will approve applications submitted by any emergency genera= tor=20 operator that is not an essential public service to revise their permit to= =20 allow up to 200 hours of operation. =09=09"The governor has determined that the power crisis poses an extreme p= eril to=20 public safety," Wallerstein said. "We are doing our part to ensure that=20 public health and safety agencies can keep operating during periods of=20 potential blackouts." =09=09AQMD is the air pollution control agency for Orange County and the ur= ban=20 portions of Los Angeles, San Bernardino and Riverside counties.

Mary Schoen Environmental Strategies Enron Corp 713-345-7422

Message 751 of 1299

FW: Job Op: Equity Analyst--Wireless

Sender	psellers@pacbell.net
Recipients	['jdasovic@enron.com', 'Sarah Graham Gragg']
File	dasovich-j/deleted_items/1022.

Wanna move to Portland?

-----Original Message-----

From: owner-mba01@haas.berkeley.edu [mailto:owner-mba01@haas.berkeley.edu]On Behalf Of Jon Binder Sent: Tuesday, August 28, 2001 11:03 AM To: planethaas00@yahoogroups.com; mba00@haas.berkeley.edu; mba01@haas.berkeley.edu Cc: Sarah Graham Gragg Subject: Job Op: Equity Analyst--Wireless

All, Hope everyone is doing well?With the job market the way it is, I thought I'd pass this job opportunity along. Contact James directly (Sarah is my girlfriend).

Best, Jon

-----Original Message-----

From: James Faucette [<mailto:JFaucette@pacific-crest.com>] Sent: Thursday, August 23, 2001 12:26 PM To: 'sarah_gragg@rscs.com' Subject: Pacific Crest Position

Sarah,

Nice chatting with you. As I mentioned we are looking for an assistant analyst to work in the communications software and wireless area.

My current coverage list includes Openwave, Palm, RIMM, Handspring, Comverse, Aether, Nuance, SpeechWorks, etc. Given the way our business is growing and evolving, we will be moving towards names like Qualcomm, Motorola, Nokia, and Ericsson in the very near future. We are looking for all of the cliché characteristics: motivated, high level of initiative, self disciplined, high attention to detail, good writing skills, modeling experience, blah, blah, blah. Potential assistants should expect to take primary responsibility for coverage on lower capitalization companies ASAP and migrate upwards as market conditions improve and research coverage is broadened (within a few months). The position would be based in Portland, OR.

Pacific Crest is a full service investment bank focused on the Internet and communications technology companies. The Bank has approximately 100 professionals with primary offices in Portland, OR. Pacific Crest also has offices in Seattle, San Francisco (primarily IB operations), and Boston (Sales and Trading). Most of the professionals at the Bank come from a larger institutions. Before joining Pacific Crest, I was an analyst at Deutsche Bank in London and ING Barings in Latin America.

If you have any other questions please feel free to give me a shout. I haven't been too specific on requirements as we are really just looking for the smartest and best people and are less concerned about previous experience, etc. It has been a fairly good hiring strategy to date-since I joined Pacific Crest, we have had zero attrition or turnover.

Regards, James

P.S. If you are ever in town on a weekday, feel free to come by-we are at the top of the U.S. Bank Tower (big Pinky) and have the best view in Portland.

James E. Faucette Vice President, Equity Research Pacific Crest Securities 111 SW Fifth Ave., 42nd Floor Portland, OR 97204 Tel: (503) 248-0721 Fax: (503) 417-9370

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On Campus Recruiting "boot camp" 7/28

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/notes_inbox/11991.

Just a reminder the On Campus Recruiting "boot camp" training will take place on 7/28. If you have sent me an email asking to be included there is no need to reply again.

Here is the original blurb with all of the details.

PLEASE READ IF YOU ARE INTERESTED IN PARTICIPATING IN On-Campus-Recruiting

(Most everything you need to know about OCR)

WHO IS ELIGIBLE? If you are within 12 months of graduating you can participate in OCR.. If you graduate 5/01, 12/01 or 5/02 you are eligible to participate. You may only participate in OCR once.

WHAT IS OCR? The On-Campus-Recruiting program is the primary MBA recruiting and placement program targeting new MBA graduates or MBA students that will be graduating within 6 months of the MBA recruiting season. The MBA recruiting season is a Fall to Spring season. Eighty per cent of the initial screening and interviewing takes place in the fall from September to December. During the spring follow-up interviews, some on site at corporate office interviews, and job offers occur. This is why it is very important to take advantage of the full fall to spring season. Some (20%) initial screening interviews do take place in the spring. In past years 250 companies have participated in the OCR process.

WHAT DO I NEED TO KNOW? You need to reply to this email or send me an email letting me know you are eligible and interested in participating in OCR. During the summer, on 7/28 I will be offering a Saturday boot camp on everything related to OCR, please plan on attending. When September roles around you will be ready to participate. I will need everyone participating to complete a one page resume template, which is on BearTracks. Please wait till I notify you individually before completing the resume template. The deadline for the one page resume is the first week in August, we will start the process of drafting a one page resume in the seminar. We market these one pagers in a resume book/disc/online resume database to recruiting companies. It is from this source that companies decide whether or not to recruit at Haas. From this resume source the companies choose who they will be interviewing. You may also use some of the 1,000 bid points, all OCR participant get to bid on interviews with companies (all of this will be covered in the 7/28 training). The bid point system makes it an equal playing field for all participating students to apply for positions they are interested in. The BearTrack system (on the Haas website career services link <http://www.haas.berkeley.edu/careercenter/>) is the only way to participate in any of the activities related to OCR. Make sure and get familiar with BearTracks or attend the BearTracks trainings offered in the fall if you can't attend the summer OCR training. I will be available to assist students that have scheduling conflicts and may not be able to attend the summer OCR training session.

WHAT ELSE? Please make sure and check your email during the summer regarding summer seminars. The career center is open all summer, I will be here all summer. During the summer our hours will be 9 to 4. This schedule begins 5/21 and goes to 8/10. I will be available by appointment for those wishing to meet after the 4:00 timeframe, please try and provide a 24 hr. advanced notice if you want to come in after 4:00. That's it for now. Have a great summer.

John Morel Associate Director of Career Services for Evening MBA and MBA Alumni Ph# 510-642-7731 Fax # 510-642-9387 morel@haas.berkeley.edu

Message 753 of 1299

Re: FERC Notice of Public Conference in San Diego

Sender	jeff.dasovich@enron.com
Recipients	[susan.mara@enron.com , ' karen.denne@enron.com ', ' mona.petrochko@enron.com ', ' james.steffes@enron.com ']
File	dasovich-j/all_documents/3393.

If Karen thinks it would be useful to have the PR firm go and report back, that's how we'll handle it. Otherwise, we'll get reports from others. Other commitments win out over FERC's "open mike."

Susan J Mara 11/13/2000 12:28 PM

To: Jeff Dasovich/NA/Enron@Enron cc: James D Steffes/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Karen Denne/Corp/Enron@Enron, Mona L Petrochko/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT Subject: Re: FERC Notice of Public Conference in San Diego

We discussed this with Rick and Jeff when I was in Houston last week. FERC made it clear at the hearing on the 9th that the SD hearing was for people who could not make it to Wash DC. So, we thought it unnecessary for Enron to seek to speak. We thought, instead, that an observer might be appropriate. Jeff mentioned the new firm we hired as a possibility. I have child care duties in the morning and a WPF Board meeting from 9 - 3.

Jeff Dasovich Sent by: Jeff Dasovich 11/13/2000 08:23 AM

To: James D Steffes/NA/Enron@Enron cc: Susan J Mara/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Mona L Petrochko/NA/Enron@Enron, Karen Denne/Corp/Enron@ENRON Subject: Re: FERC Notice of Public Conference in San Diego

Mona and I plan to be in Sacramento tomorrow at an AB 1890 Implementation Group meeting. I think that Sue also has a conflict. My thought was to have someone from the PR firm that Karen has brought on go and report back. I'm supposed to give a presentation on gas tomorrow, but it's not a problem for me to cancel and go to S.D. if we think that it's vital for one of us to be there in person. Thoughts?

Best, Jeff

James D Steffes 11/13/2000 08:16 AM

To: Susan J Mara/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron cc: Subject: FERC Notice of Public Conference in San Diego

Is anyone going?

Jim

----- Forwarded by James D Steffes/NA/Enron on 11/13/2000 08:15 AM -----

Mary Hain@ECT 11/07/2000 06:18 PM

To: Christian Yoder/HOU/ECT@ECT, steve.c.hall@enron.com, Richard Sanders, Susan J Mara/SFO/EES@EES, Mona L Petrochko/NA/Enron@Enron, jdasovic@ees.enron.com, Paul Kaufman/PDX/ECT@ECT, James D Steffes/NA/Enron@Enron, Joe Hartsoe@Enron, Sarah Novosel/Corp/Enron@ENRON, James E Keller/HOU/EES@EES, Mike D Smith/HOU/EES@EES, Harry Kingerski/HOU/EES@EES, Dennis Benevides, Tim Belden/HOU/ECT@ECT, Robert Badeer/HOU/ECT@ECT, Jeff Richter/HOU/ECT@ECT cc: Subject: FERC Notice of Public Conference in San Diego

FYI ----- Forwarded by Mary Hain/HOU/ECT on 11/07/2000 04:25 PM

Enron Capital & Trade Resources Corp.

From: "Jackie Gallagher" <JGallagher@epsa.org> 11/07/2000 02:50 PM

To: <bhawkin@enron.com>, <bmerola@enron.com>, <christi.l.nicolay@enron.com>, <janelle.scheuer@enron.com>, <jeff_brown@enron.com>, <jhartso@enron.com>, <Mary.Hain@enron.com>, <sarah.novosel@enron.com>, <tom.hoatson@enron.com> cc: Subject: FERC Notice of Public Conference in San Diego

Attached is a notice from FERC on a public conference in San Diego on November 14th regarding the Commission's proposed remedies for California. The conference is being held primarily to accord an opportunity to the citizens of San Diego, and others who are unable to attend the Nov. 9th meeting. The notice is also available on FERC's website, at www.ferc.fed.us.

Jacqueline Gallagher Research/Policy Assistant Electric Power Supply Association 1401 H Street, NW Suite 760 Washington, DC 20005 202.789.7200 202.789.7201 jgallagher@epsa.org

- 11-14.pdf

Message 754 of 1299

nan	
Sender	jeff.dasovich@enron.com
Recipients	[angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/sent/3039.

----- Forwarded by Jeff Dasovich/NA/Enron on 01/26/2001 05:28 PM -----

=09Mary Schoen =0901/26/2001 04:13 PM =09=09=20 =09=09 To: Martin Wenzel/ENRON@enronxgate =09=09 cc: Jeff Dasovich/NA/Enron@Enron =09=09 bcc:=20 =09=09 Subject:=20

South Coast Air Quality Management District

=09=09Jan. 26, 2001 =09=09To Help Provide Power During Energy Crisis =09=09AQMD EXTENDS OPERATIONS
LIMIT ON EMERGENCY GENERATORS =09=09In an effort to give essential public services greater ability to res= pond
to=20 power emergencies, the region's air quality agency issued an executive orde= r=20 today extending the amount of
time that such agencies can run emergency=20 generators. =09=09"Gov. Davis declared a state of emergency last week
due to the state'= s power=20 crisis," said Barry Wallerstein, AQMD=01,s executive officer. "In response,= AQMD=20 has
increased the amount of time that emergency generators at hospitals,=20 police stations, fire houses and other essential
public services can operat= e." =09=09Under AQMD's executive order, essential public service providers can =
operate=20 emergency generators up to 500 hours in a calendar year, which more than=20 doubles AQMD's Rule 1110.2
operation limit of 200 hours per year. AQMD rule= s=20 normally limit emergency generators to 200 hours per year
because they are= =20 typically diesel-powered, have no pollution controls and emit 300 times mor= e=20 smog-forming
pollution per unit of energy than a new power plant. =09=09Today's order allows essential public service providers to
operate up= to 500=20 hours per year during an imminent or actual power blackout in the provider'= s=20 area. It also
promotes the use of low-sulfur diesel fuel, defined as=20 containing 15 parts per million or less of sulfur, if reasonably
available.= =20 The provisions of the order are consistent with U.S. Environmental Protecti= on=20 Agency guidance on
this issue. =09=09The order expires on Feb. 3, 2001, but can be renewed in 10-day incre= ments.=20 It applies to the
following public services: =09=09 =09=09

=09=09 =09=09 =09=09Police and fire fighting facilities; =09=09 =09=09Hospitals and other health care facilities; =09=09
=09=09Kindergarten through high schools; =09=09 =09=09Drinking water agencies; =09=09 =09=09Public transit
agencies; =09=09 =09=09Prisons; =09=09 =09=09911 emergency dispatch operations; =09=09 =09=09Publicly owned
sewage treatment plants; =09=09 =09=09Landfill gas operations; and =09=09 =09=09Critical military operations. =09=09
=09=09Under AQMD's Rule 118, the agency's executive officer can suspend AQM= D rules=20 for public health and
safety services for 10 days at a time in response to = a=20 state of emergency declared by the state or federal
government. =09=09AQMD has set up a hotline, (909) 396-2660, to assist operators of bac= kup=20 generators at
non-essential public services to voluntarily apply for a=20 variance with AQMD's independent Hearing Board.
=09=09AQMD also will approve applications submitted by any emergency genera= tor=20 operator that is not an essential
public service to revise their permit to= =20 allow up to 200 hours of operation. =09=09"The governor has determined that
the power crisis poses an extreme p= eril to=20 public safety," Wallerstein said. "We are doing our part to ensure that=20
public health and safety agencies can keep operating during periods of=20 potential blackouts." =09=09AQMD is the air
pollution control agency for Orange County and the ur= ban=20 portions of Los Angeles, San Bernardino and Riverside
counties.

Mary Schoen Environmental Strategies Enron Corp 713-345-7422

*Message 755 of 1299***FW: Western Wholesale Power Trades Fri Above FERC Price Limit**

Sender	alan.comnes@enron.com
Recipients	['robert.badeer@enron.com', 'ray.alvarez@enron.com', 'tom.alonso@enron.com']
File	dasovich-j/notes_inbox/12248.

FYI,

My understanding is we adjusted our prices down to the cap today in an abundance of caution.

FYI

Western Wholesale Power Trades Fri Above FERC Price Limit Updated: Friday, June 29, 2001 05:42 PM ET

NEW YORK (Dow Jones)--The price of power in the western wholesale market on Friday topped the limits set by federally ordered price controls, traders said.

Bulk electricity trades as high as \$107 a megawatt-hour in the western spot market were confirmed by one of the buyers. Also, Enron Corp.'s (ENE, news, msgs) Internet-based trading system publicly offered to sell power in Nevada at \$105/MWh.

Stock Insight

Symbol Last Change

EIX 11.15 -0.35

ENE 49.10 +0.76

PCG 11.20 -1.00

SRE 27.34 -0.14

Index

Dow Jones 10502.40 -63.81

NASDAQ 2159.34 +33.88

More Analysis * See Analyst Ratings * Compare Growth Trends * Get One-Click Scorecard

The maximum price allowed under a formula set June 18 by the Federal Energy Regulatory Commission is \$91.87/MWh.

Asked about the overshoot, FERC said sellers would have to justify prices above the benchmark.

"We constantly monitor the markets out there," a FERC spokeswoman said. "If there is anything above the proxy price, they would have to come in and justify it."

Enron spokeswoman Karen Denne said the company posted the \$105/MWh offer on its EnronOnline system, but didn't sell any power above the FERC limit.

FERC's complicated price limits for the West set a maximum price based on the operating cost of the most expensive generator used to meet demand for electricity during power alerts in California.

Suppliers who claim prices above the limits must explain why to FERC, which can order refunds if it isn't convinced.

Some market participants point to a loophole. The FERC order only applies to "spot" market transactions, which the commission defines as deals done within 24 hours of the commencement of deliveries. But power traded Friday is for delivery Monday, so some market participants have said that the controls don't apply to Friday deals.

"It does appear to be a loophole," Denne said.

Gary Ackerman, executive director of the Western Power Trading Forum, an industry association, said that traders could start doing more transactions two days in advance to circumvent the FERC rules if market prices rise above the cap, which can change based on prices for natural gas. Or deals could be done at the cap with the seller adding non-monetary payments such as natural gas or free electricity delivered later in the year.

Other market participants said they simply will buy needed power supplies at the market price, regardless of the FERC rules.

On June 19, the first day the new rules took effect, hour-ahead deals were done at \$300/MWh. So long as two companies agree to a price and the buyer doesn't later complain to the FERC, it seems that FERC would be hard-pressed to enforce its rules.

If a buyer were to file a complaint after such a deal, it would quickly find itself locked out of the market when supplies become tight, traders said.

The FERC spokeswoman said the above-limit prices would have to be justified even without a complaint.

The price cap will be recalculated whenever the California Independent System Operator enters its next Stage 1 supply emergency. At that time the cap will likely be much lower, because gas prices have fallen significantly since the current cap was set.

-By Mark Golden, Dow Jones Newswires; 201-938-4604; mark.golden@dowjones.com

(Andrew Dowell contributed to this article.)

Message 756 of 1299

Re: Transwestern Hearing

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'ray.alvarez@enron.com']
File	dasovich-j/sent/12146.

Greetings: I'm assuming that Washington/Houston has this covered, but if there's anything I can do to assist, don't hesitate. Best, Jeff

=09Susan J Mara =0907/26/2001 11:42 AM =09=09=20 =09=09 To: Jeff Dasovich/NA/Enron@Enron =09=09 cc:=20
=09=09 Subject: Transwestern Hearing

Hey, time to join the fun at FERC!!!

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on
07/26/2001 09:42 AM -----

=09Rebecca W Cantrell/ENRON@enronXgate =0907/26/2001 08:08 AM =09=09=20 =09=09 To: Susan J
Mara/NA/Enron@ENRON, Ray Alvarez/NA/Enron@ENRON =09=09 cc:=20 =09=09 Subject: Transwestern Hearing

Here=01,s a little more detail on the issues that FERC wants to explore wit= h=20 regard to the Transwestern negotiated deals:

NGI's Daily Gas Price Index=20 published : July 26, 2001 FERC Targets Transwestern for Market-Power Hearing=20 FERC called for a hearing to determine whether Transwestern Pipeline=20 exercised market power when it awarded negotiated-rate contracts that led t= o=20 shippers being charged up to \$27/MMBtu last February, when the firm=20 transportation rate to the California border was only 38 cents/MMBtu.=20 That was "70 times the recourse rate," said Commissioner Linda Breathitt, w= ho=20 called the matter up for discussion at the Commission's regular meeting.=20 "Thirty-eight cents versus \$27, that's a big difference in prices and we=20 ought to be looking at that," responded Commissioner William Massey.=20 "...[W]e believe closer scrutiny of transactions that provide the opportuni= ty=20 to impose rates many multiples in excess of maximum approved tariff rates i= s=20 necessary, especially in light of our

serious concern regarding the high prices for natural gas in California relative to prices in the rest of the country and their consequential effect on wholesale electricity prices in California," the order noted [RP97-288-009]. FERC's action was in response to a show cause order it issued in March, directing Transwestern to explain how it had firm capacity available on its pipeline to move gas under the negotiated-rate transactions, and why its actions in entering into the negotiated-rate agreements didn't violate Commission regulations and policy regarding firm transportation service and negotiated-rate agreements. FERC's order requires Transwestern to make certain changes to the posting of daily capacity. "I'm satisfied that this should take care of the issue prospectively," Breathitt said. But with respect to the negotiated agreements, "our order today establishes a hearing of limited scope on a fast-track basis to determine whether Transwestern exercised market power in awarding these...contracts." It directs an administrative law judge to convene a pre-hearing conference within 10 days, and issue an initial decision on the matter within 60 days. The hearing will focus on three issues: 1) whether Transwestern capacity was advertised and awarded in a fair manner; 2) whether the rates negotiated were the result of the exercise of market power; and 3) why the capacity awarded was available without interruption while recourse service was not available. "In addition, I have a question [as to] why shippers agreed to such rates when much lower recourse rates should have been available under our negotiated rate program," Breathitt said. The shippers that entered into the negotiated-rate transactions with Transwestern include Richardson Products Co., Sempra Energy Trading Corp., BP Energy Co., Astra Power LLC and Reliant Energy Services.

Message 757 of 1299

Concur Expense (XMS) Common Questions

Sender	enron.announcements@enron.com
Recipients	[all.users@enron.com]
File	dasovich-j/all_documents/28278.

Concur Expense (XMS) Common Questions

1. Where can I find online documentation on Concur Expense? Answer: Documentation on Concur Expense is stored in the ISC Document Library. Go to the following link: <http://isc.enron.com/site/doclibrary/user/default.asp> and click on the XMS - Concur Expense folder on the left.
2. How can I sign up for Concur Expense training and how much does it cost? Answer: Go to the following link: <http://iscdcenter.enron.com/docentlm/login.htm>. Log in using your Enron email address. Enter your birth date as the password in the following format: MMDDYYYY. Under the Courses section, select Concur Expense (XMS). This will show the training schedule. Click the Enroll button to sign up for a class. The cost is \$250.
3. Will old XMS expense reports be converted to the new Concur Expense system? Answer: No. History data was not converted to the new system because of our move to an Application Service Provider (ASP) solution for Concur Expense.
4. How can I view my old expense reports? Answer: Call the ISC Customer Care group at 713-345-4727. The ISC will be responsible for printing out old expense reports and forwarding them to you. Other options are being reviewed to allow you to view old expense reports.
5. Are there any Enron specific help instructions for Concur Expense? Answer: Yes. If you log into Concur Expense, you will see a link to Enron Help on the Concur Expense home page under the Company Links section. Also you will see a button for Enron Help at the top of the screen when entering expense reports.
6. Is Enron's Travel Policy available in Concur Expense? Answer: Yes. If you log into Concur Expense, you will see a link to Travel Policy on the Concur Expense home page under the Company Links section. Also you will see a button for Travel Policy at the very top of the screen when entering expense reports.
7. What if I am unable to see any of my credit card charges in Concur Expense? Answer: Since there are a number of factors that could cause this problem, it is best to call the ISC Customer Care group first. The ISC will research the problem and get back to you with an answer.

8. Does Concur Expense have a time-out feature? Answer: Yes. Concur Expense will automatically time out after 20 minutes of inactivity.

9. How do I enter foreign currency into Concur Expense? Answer: Go to the ISC Document Library described in #1 above. Go to the XMS - Concur Expense folder. Next go to the Special Procedures folder and following the directions stated in the document called Add a Foreign Currency Expense to an Expense Report.

10. Are there any other sources to quickly get me started using Concur Expense? Answer: Yes. Concur Expense provides a Quick Tour for new users. Log into Concur Expense and click the Help button in the top right corner of the screen. Then click the button labeled Quick Tour at the top of the help screen. The ISC intranet home page also contains some helpful information. The following link summarizes some of the topics discussed above:
<http://isc.dev.corp.enron.com/site/XMSchange.htm>.

11. Can you quickly describe some of the internal changes in the new Concur Expense system? Answer: There are minimal changes in the new upgrade. Here is a list: ? The first screen only has one tab instead of two ? New expense types were added ? Attendees and approvers will now be printed on the expense reports ? Manager and receipt dunning notices will be sent out ? The statistical order and statistical WBS element fields have been separated out

Please direct all other questions to the ISC Customer Care group at 713-345-4727.

Message 758 of 1299

Moveon.org Campaign Against Energy Producers

Sender	janel.guerrero@enron.com
Recipients	['richard.shapiro@enron.com', 'mark.palmer@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/4002.

Moveon.org, a group that positions itself as an internet based consumer watchdog, has mounted a campaign in support of the Federal Energy Reliability and Stability Act of 2001. The campaign takes direct aim at enron, dynegy and other companies. Have a look at their website, at <http://www.moveon.org/priceshocked/index.html>. In the meantime, here's a copy of a mass, unsolicited email that someone at our PR Firm in NY (ss+k) received from moveon.org (see below).

Date: 4/24/01 5:01 PM From: Wes Boyd, MoveOn.Org Dear Friend of MoveOn,

Energy prices are skyrocketing across the nation, yet Washington is doing nothing. Energy producers are taking huge windfall profits. Consumers and taxpayers are given the shaft.

Enough is enough. Join our citizens' campaign by sending an instant email to your representatives in Washington. Go to:

<http://www.moveon.org/priceshocked/index.html>

The energy markets are controlled by a small number of companies -- Enron, Duke, Dynegy, Reliant, etc -- which supply local utilities throughout the country with gas and power. These companies are so big, they are more like monopolies than players in a price-competitive market. Their irresponsible behavior calls for a strong federal hand.

In California alone, these companies and their affiliates have already overcharged by more than \$6.3 billion (1). If nothing is done, the number is expected to rise to as much as \$70 billion (2). That's \$2,000 for every man, woman, and child in the state.

This may be the biggest scam ever to hit the U.S. -- potentially dwarfing the Savings and Loan mess of the 80s. Yet FERC, the Federal Energy Regulatory Commission, and the Bush administration are taking no action.

A new bill sponsored by Senators Feinstein (D-CA), Smith (R-OR), and Lieberman (D-CT), would direct FERC to set temporary "cost-plus" rates allowing wholesalers to charge a reasonable rate of profit, not the excessive premiums they are now charging.

Join us in voicing your support for this important bill at:

<http://www.moveon.org/priceshocked/index.html>

Thank you for your help. And pass on the word. We cannot let this go unchallenged.

Sincerely,

-Wes Boyd MoveOn.org

P.S. Beware myths spread by the energy lobby. Here are two corrections:

- Rising demand in California HAS NOT created the problem. California's monthly peak electricity demand actually declined in July, August, October, and December of 2000 relative to the same months in 1999 (4).

- More drilling and relaxed environmental standards ARE NOT the answer. Opening new domestic supplies takes decades and only adds months of additional supply (5). Increased efficiency, immediate investment in renewables, and market stabilization are the only short term answers.

Sources: (1) California Independent Systems Operator, <http://www.caiso.com/> (2) A range of \$50-70 billion is cited in "No Time for Lectures," LA times, April 18th, 2001, <http://www.latimes.com/news/comment/20010418/t000032667.html> (3) Severin Borenstein, Director of Univ. Cal. Energy Institute (4) California Independent System Operator cited in "Special Report: The California Energy Crisis" (Page 1) at <http://www.consumerwatchdog.org/> (5) U.S. Geological Survey, as cited by Sierra Club <http://www.sierraclub.org/pressroom/releases/arctic.asp>

This is a message from MoveOn.org If you wish to remove yourself from this list, please visit our subscription management page at <http://www.moveon.org/subscrip/i.html?id=140-102126-Oien2IT7gEvnW0QfXYP3ww>

-- Jonathan Kopp jkopp@ssk.com

SS+K Shepardson Stern and Kaminsky 568 Broadway New York, NY 10012 O: 212.419.3355 F: 212.419.3369

Message 759 of 1299

Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	[' ann.schmidt@enron.com ']
File	dasovich-j/all_documents/10382.

USA: Broadband unit in strong shape, says Enron CEO. Reuters English News Service, 03/23/01

Enron Corp. CEO: Core Businesses Are In 'Great Shape' Dow Jones News Service, 03/23/01

Enron Says \$3.1 Bln Portland General Sale Probably Won't Close Bloomberg, 03/23/01

USA: Broadband unit in strong shape, says Enron CEO.

03/23/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, March 23 (Reuters) - Enron Corp.'s broadband unit will execute nearly twice as many trades in the first quarter of 2001 as it did in the fourth quarter of 2000, Enron President and Chief Executive Officer Jeff Skilling said on Friday. "My expectation is that we will see over 400, maybe over 500 transactions this quarter which shows this business is absolutely developing, it is ahead of plans," Skilling said in a conference call that sought to assuage investor fears about Enron's stock and its broadband unit specifically. That is more than all 321 transactions done last year, and about twice the 236 done in the last quarter of 2000, he said. Skilling also said long supply and a weak telecom market is offering Enron greater and cheaper access to bandwidth capacity, which means Enron Broadband Services' capital expenditure budget should drop from \$750 million to \$250 million. Some analysts have attributed two consecutive days of price drops in Enron's stock - it dipped as low as \$51.55 on Thursday, from 60.95 on Tuesday - to false rumors of layoffs at the nascent broadband business and the market's devaluation of that unit in light of weak technology and telecom sectors.

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Enron Corp. CEO: Core Businesses Are In 'Great Shape' By Christina Cheddar Of DOW JONES NEWSWIRES

03/23/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- After several days of decline, Enron Corp. (ENE) shares were regaining ground Friday as Chief Executive Jeffrey Skilling addressed the market's concerns about the company. During a conference call, Skilling told investors that the Houston company's core businesses are in "great shape." The executive also reiterated the company's 2001 earnings target of \$1.70 to \$1.75 a diluted share. The company's outlook compares with a consensus estimate of \$1.74 a share published by Thomson Financial/First Call. Enron shares recently traded hands at \$58.60, up \$3.58, or 6.3%, on volume of 5.3 million compared with average turnover of 4 million. On Thursday, Enron shares set a 52-week low of \$51.51.

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Enron Says \$3.1 Bln Portland General Sale Probably Won't Close 2001-03-23 13:48 (New York)

Enron Says \$3.1 Bln Portland General Sale Probably Won't Close

Houston, March 23 (Bloomberg) -- Enron Corp., the largest energy trader, said its \$3.1 billion sale of Portland General Electric Co. to Sierra Pacific Resources probably won't be completed. ``There's probably a 5 percent probability that Sierra Pacific's purchase of Portland General will be consummated," Chief Executive Jeffrey Skilling said during a conference call with investors. Enron said in January that Sierra Pacific might not be able to sell a Nevada power-plant stake as needed to win regulatory approval for the Portland General transaction. Enron blamed a California law that barred public utilities from shedding generators until 2005 because of an electricity shortage. Shares of Houston-based Enron rose \$3.98 to \$59 in midafternoon trading. They had fallen 18 percent in the past week.

--Margot Habiby in Dallas (214) 740-0873, or mhabiby@bloomberg.net, and Jim Polson in Princeton, (609) 279-4000/slb

Message 760 of 1299

Bond Leg Language, etc.

Sender	susan.mara@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28363.

Can I send this or the draft Sher bill to ARM members?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/06/2001 10:51 AM -----

Jeff Dasovich Sent by: Jeff Dasovich 07/05/2001 12:07 PM

To: Ann.Cohn@sce.com, kmccrea@sablaw.com, mkahl@ka-pow.com, jdasovic@enron.com, wbooth@booth-law.com, drothrock@camfg.com, smutny@iepa.com, brbarkovich@earthlink.net, dominic.dimare@calchamber.com, isenberg@hmot.com, jstewart@cmta.net, mdjoseph@adamsbroadwell.com, lga@mother.com, debinorton@aol.com, cra@calretailers.com, derek.naten@roche.com, vjw@cleanpower.org, "John R. Redding (PS, NE) (E-mail)" <john.redding@gene.GE.com>, "Mike Florio (E-mail)" <mflorio@turn.org> cc: (bcc: Susan J Mara/NA/Enron) Subject: Bond Leg Language, etc.

Greetings:

Hope everyone had a pleasant 4th.

I've read the respective Burton and Hertzberg language on amending AB 1X. The Burton language looks cleaner and simpler, though there may be reasons to include some of the Hertzberg language, too.

I'm proposing to the group the following as potential amendments to the bond bill. I would appreciate your feedback. The amendments would be as follows:

Customers who were on Direct Access when DWR started buying power (Jan. 17th?), and are still on Direct Access when the bill passes, should be exempt from paying for the bonds.

In short, customers should not be forced to pay for power twice--once from their ESP, and once from DWR. Since these customers receive power services from their ESP, they never consumed DWR power in the first place and it wouldn't be fair to require them to pay for it.

Customers who have been utility customers since DWR started buying power but subsequently switched to Direct Access should only pay for power provided by DWR that they actually consumed, no more and no less.

For example, if a customer was a utility customer when DWR started buying power but switched to Direct Access on May 1st, then the customer would only be responsible for reimbursing DWR for power deliveries that took place from Jan. 17th thru April 30th.

I believe that we agreed on these concepts during the negotiations that took place over the past 4-5 weeks. Or if we didn't explicitly agree during the talks, they seem to be principles on which we ought to be able to agree pretty easily now. And rather than leave the issue hanging, which can create unnecessary and costly uncertainty for customers, I suggest that we include very clear and simple legislative language in the bond bill clarifying what customers' obligations are. Your thoughts are appreciated.

In addition, we have talked quite a bit about providing customers with incentives in the attempt to get California out of the energy hole that it finds itself in. Providing (20KW and above) customers with an incentive to switch to Direct Access as soon as possible could 1) reduce the net short position that the state (and ultimately consumers) have to finance, thereby reducing spot purchases and price volatility, 2) reduce electricity purchasing costs, and 3) reduce the burden on the state budget.

With this in mind, I'm also proposing that the group consider an amendment to the bond bill that would exempt from bond charges any customer that switches to Direct Access by September 1st.

Finally, it seems odd that the language directing the PUC to suspend Direct Access is still in the bill. If a dedicated rate component is created, that seems to eliminate altogether the need to suspend Direct Access. And if that's the case, would it make sense to delete that language from the bill?

Look forward to your comments and working with you to get support for and passage of the "core/noncore" proposal.

Best, Jeff

Message 761 of 1299

RE: HD Case: Proposed Plan

Sender cvavrek@deloitte.com

Recipients ['mark_guinney@watsonwyatt.com', 'chin@haas.berkeley.edu', 'sama@haas.berkeley.edu', 'jeff.dasovich@enron.com']...

File dasovich-j/notes_inbox/5423.

I like your ideas - much better developed than in the draft memo.? I'm free at 7pm.? My home number is 285-7385.? Just patch me in.

- cv

Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA? 94105

phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, February 07, 2001 8:26 AM To: Vavrek, Carolyn (US - San Francisco) Cc: chin@haas.berkeley.edu; Jeff.Dasovich@enron.com; Mark Guinney; sama@haas.berkeley.edu Subject: Re: HD Case: Proposed Plan

Hi folks:

Since we have only one page, the write up for number 4 will have to be very brief.? Before writing it, though, I wanted to offer a few bullets regarding what angle we might take, and let folks respond, comment, counter, etc. before writing it up.? I'll clean and beef up once we've agreed to the approach we'd like to take to question #4.? Finally, I can work from my office on this this evening, which means that I can use the conference call capability of my office phone to patch everyone in if we'd like to do a conference call. If that's what folks would like to do, I'd prefer to do the call at around 7 PM.? Just let me know.

Best, Jeff

The question for #4 is:

Stock price is down 23%, significant debt has already been tapped to support massive growth and covenants on that debt restrict taking on a lot more debt.

What should HD do w.r.t. current operations and future growth strategy? ???? In the near term focus less on growth and more on getting margins and EBIT growth back in line with results from previous years.? (Management's Letter to Shareholders alludes to this, but it's difficult to determine whether management is just paying lip service to the need to capitalize on the growth spurt and grown earnings, or continue on the growth effort.)

???? With respect to funding future (more moderate growth), the company does have some room to increase long-term debt (e.g., current ratio for 1986 = 2.26).? It seems that HD would get better terms and have increased flexibility by issuing additional debt rather than relying on lines of credit.? As such, HD ought to look those sources of funding and fill in any "funding gaps" with funds from the line of credit.

???? Given the significant drop in stock price, HD is likely better off in the near term 1) moderating growth, 2) improving performance to generate cash internally, and 3) using long-term debt issuance to provide the funds needed.? Once performance and stock price improves, then HD should consider a stock issuance.

How can company improve operating performance? ?? Reduce selling, store operating expenses and pre-opening expenses ?? Improve receivables turnover ?? Improve inventory turnover ?? Improve per store/sales ?? Consider closing poor-performing stores ?? All of which will improve margins

Should company change its strategy?? If so how? ?? Shift from meteoric growth to moderate, targeted growth, and focus on ?? generating positive cash flow from operations ?? Focus on improving performance at existing stores; specifically focus on ?? controlling costs and asset turnover and productivity ?? Consider another debt issuance rather than rely extensively on credit ?? line in order to decrease cost of funds and increase flexibility

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Message 762 of 1299

LA Times Op-Ed Column - Think You May Enjoy This !

Sender	douglass@energyattorney.com
Recipients	['curtis_l_kebler@reliantenergy.com', 'barbara.klemstine@pinnaclewest.com']
File	dasovich-j/all_documents/13448.

?

'Hi, My Name Isn't Justice, Honey,' and Shame on Lockyer

By TOM G. PALMER

?????Here's what California Atty. Gen. Bill Lockyer said at a press conference about Enron Corp. Chairman Kenneth Lay: "I would love to personally escort Lay to an 8-by-10 cell that he could share with a tattooed dude who says, 'Hi, my name is Spike, honey.'" ?????Here's why Lockyer should be removed from his office of public trust: First, because as the chief law enforcement officer of the largest state in the nation, he not only has admitted that rape is a regular feature of the state's prison system, but also that he considers rape a part of the punishment he can inflict on others. ?????Second, because he has publicly stated that he would like to personally arrange the rape of a Texas businessman who has not even been charged with any illegal behavior. ?????Lockyer's remarks reveal him to be an authoritarian thug, someone wholly unsuited to holding an office of public trust. ?????But his remarks do have one positive merit: They tell us what criminal penalties really entail. ?????Contrary to some depictions of prisons as country clubs, they are violent and terrible places. More and more politicians propose criminal sanctions for more and more alleged misdeeds, and as a result ever more kinds of behavior are sanctioned by criminal penalties, perhaps now even selling electricity. Those found guilty of such crimes are put into cages, where they are deprived of their liberty and dignity and, as Lockyer so clearly acknowledged, raped and brutalized. What's worse, Lockyer has indicated that he believes that rape is an appropriate part of the system of punishments he administers. ?????Should it matter that Lay is a businessman? Imagine the outcry if the head of Enron were female. What would Lockyer's fellow Democrats have said to that? ?????Should it matter that Lay is chairman of an electricity generator? Does the nature of his business justify threats to escort him to his own rape? Lockyer told the Los Angeles Times that he had singled out Enron's chairman because the Houston-based company is the world's largest energy trader. ?????So apparently singling out a man for a heinous threat is OK because he's the chairman of the world's largest energy trading company. That's according to the man who, as a state senator, sponsored California's 1984 hate-crimes law. Evidently the crusader against intimidation on the basis of race, religion and sexual orientation feels no hesitation at all about intimidating someone and threatening him with the brutal use of physical force simply because he heads the world's largest energy trading company. ?????Lockyer and Gov. Gray Davis seem to think that the best way to keep the lights on is to threaten electricity producers with brute force, rather than to offer to pay competitive rates in competitive markets. Are energy producers to blame for California's energy problems? No. Bad policies, including rigid controls on retail prices of electricity, are the cause of the problem, not the people who generate energy. Scapegoating producers and threatening them with violence is an old ploy of authoritarians. Californians should not stand for it. ?????An Enron spokesman said that Lockyer's chilling stated desire to arrange the rape of Lay does not merit a response. The spokesman is wrong. Lockyer's remarks merit public disgrace and removal from office. After all, rape is not a form of legal justice in America--is it? - - -

Tom G. Palmer Is a Senior Fellow at the Cato Institute in Washington. E-mail: Palmert@cato.org How was that for a well-written editorial? ? Dan Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 (818) 596-2201 douglass@energyattorney.com

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Message 763 of 1299

LA Times -- Dem leadership to Sue FERC Over Price Cap -- Hertzberg

Sender	susan.mara@enron.com
Recipients	[angela.schwarz@enron.com , ' beverly.aden@enron.com ', ' alan.comnes@enron.com ']
File	dasovich-j/all_documents/12866.

Tuesday, May 22, 2001

Legislators Set to Sue Federal Energy Agency Power: Lawmakers try a new idea: a lawsuit arguing that blackouts pose danger to people, law enforcement and even water supply.

By DAN MORAIN, Times Staff Writer

SACRAMENTO--Legislative Democrats today will sue federal energy regulators, charging that their inaction threatens elderly people in nursing homes, children in day care centers, law enforcement and its ability to fight crime, and the state's drinking water supplies. Rather than focus on record wholesale energy costs, the lawsuit takes a new tack, homing in on the threat to health and safety posed by California's energy crisis and the blackouts likely this summer. A draft of the suit seeks to force the Federal Energy Regulatory Commission to set "just and reasonable" wholesale power rates as a way of ending the crisis before blackouts occur. The action is being filed by veteran trial attorney Joe Cotchett on behalf of Senate President Pro Tem John Burton (D-San Francisco), Assembly Speaker Bob Hertzberg (D-Sherman Oaks), and the city of Oakland. "A crisis of unprecedented dimensions is already taking shape in California," the draft says. "The public health, safety and welfare of the state's 34 million residents is in jeopardy due to the tragic consequences of rolling blackouts and punitive prices."

Suit Says Blackouts Pose Threats Until now, most California officials, including Gov. Gray Davis, have been urging that the regulatory commission cap wholesale power prices as a way of limiting costs to the state, which has spent more than \$6 billion buying electricity since January. In the lawsuit, Cotchett will be arguing that while higher bills will stretch the budgets of people on fixed incomes, frail elderly people "are left to wonder if their oxygen tanks, drip IVs, dialysis machines and electricity-powered therapeutic beds will respond when they are needed." "Rolling blackouts represent more than just an annoyance for the men, women and children with disabilities," the suit says. "They represent an imminent threat to life, health and independence." Cotchett said the suit will be filed in the U.S. 9th Circuit Court of Appeals in San Francisco, bypassing the federal trial court. Cotchett said the circuit court has direct jurisdiction over FERC. Joining Cotchett will be Clark Kelso, a professor at McGeorge Law School in Sacramento who briefly was insurance commissioner last year after Chuck Quackenbush resigned. Kelso said he initially was skeptical that lawmakers had legal standing to sue. But after Cotchett spoke with him, Kelso said he became convinced the suit had merit. "Let's face it," said Kelso, a Republican, "this is the single most important issue that the state faces for the next six months."

Watching the Water Supply The suit cites warnings from governmental agencies about the implications of blackouts, including one the state Department of Health Services issued earlier this month to public water agencies statewide. The warning contains a sample notice that local water authorities should give to consumers. "If the water looks cloudy or dirty," the warning says, "you should not drink it." The warning suggests that if people are concerned about water quality, they can boil it or add "eight drops of household bleach to one gallon of water, and let it sit for 30 minutes." Most water agencies have back-up generators. But the suit says that "if an agency's water treatment facilities are hit by a power outage, a two-hour blackout can result in two-day interruptions in providing safe drinking water because of time needed to bring equipment back online and flush potentially contaminated water from the system."

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Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 764 of 1299

FW: APX Comments on Letter to the Governor.

Sender	dhunter@smithandkempton.com
Recipients	['alippin@mail.arco.com', 'cohnep@sce.com', 'athomas@newenergy.com', 'Robert Berry (E-mail); Edward G. Cazalet...]
File	dasovich-j/ab_1890_group/3.

-----Original Message-----

From: Edward Cazalet [mailto:ed@apx.com] Sent: Friday, August 25, 2000 9:12 AM To: dhunter@smithandkempton.com
Cc: Robert Berry (E-mail); Edward G. Cazalet Subject: APX Comments on Letter to the Governor.

Would you please distribute the attached APX comments on the letter to the Governor to the AB1890 list? The comments are attached both as a Word file and below in the body of this e-mail.

A core purpose of restructuring through AB1890 was to decrease reliance on regulation and increase reliance on the market to allocate resources in the California electric power market. However, as it is now written, the letter to the Governor does not include any direct reference to the way forward markets can address the problem of high and volatile prices.

Several reports have expressed serious reservations about the CalPX and CAISO use of "call auctions". An example of a call auction is the CalPX's daily auction that sets a single price for electricity in each hour of the next day. The CAISO uses several call auctions for real-time energy and ancillary service procurement.

A call auction provides no opportunity for market participants to react to each other's bids. A call auction lacks the feedback from offer to counter-offer which is the source of efficiency in forward markets. Because a call auction lacks feedback and clears at a single price, it is more likely that attempts to manipulate the single price will be more successful and will have a greater impact because all transactions are at the same price.

Instead, all other commodity markets rely on continuously traded forward markets, which allow participants to use price feedback and gradually develop their contract positions.

APX recommends that the Letter include the following:

The CAISO has recently announced its intent to acquire up to 3000 MW of ancillary services through forward contracts of at least a year. The CPUC has recently granted both PGE and SCE the opportunity to make contracts through 2005 to serve their load. These policies represent a wise shift from the almost exclusive reliance on short-term (day-head and hourly) markets by both the CAISO and the UDCs. However, adoption of such policies will tend to create a bifurcated market with very short-term markets and long-term contracts.

In most commodity markets, participants can trade a variety of contracts of different duration. Contracts are standardized so that the published prices of these traded contracts are meaningful. Trade occurs continuously, which allows continuous price discovery. The efficiency of the power market improves considerably when such continuous forward trading occurs and the opportunities for price manipulation are less. And the existence of such forward markets provide the basis to establish the prudence of both forward and spot purchases of power by the UDCs.

As an example, encouraging loads to participate in continuous forward markets will dampen price volatility because as the forward price rises load will begin to reduce its demand by not contracting or by selling back previously contracted positions. Generators can use forward markets to support decisions to invest in new power plants and properly time maintenance decisions to reduce the impacts on prices. Open, continuous forward markets with published prices will allow all West Coast buyers and sellers to contribute to market stability and lower prices in California.

The CAISO does not need to provide such continuous forward markets but can encourage their development and use by encouraging inter-SC trades and self-provision of ancillary services.

Edward G. Cazalet, Ph.D. Chairman Automated Power Exchange, Inc. TechMart Building, Suite 522 5201 Great America Parkway Santa Clara, CA 95054 Company Voice : (408) 517-2100 Voice : (408) 517-2102 Fax: : (408) 517- 2985 E-mail : ed@apx.com Web Page: www.apx.com

- Forward Markets.doc

Message 765 of 1299

Re: Final Version-Manifesto

Sender	schub@socrates.berkeley.edu
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/8697.

Dear Jeff:

Sorry I didn't get back to you last week. I was sick on Thursday and Friday and only dealt with a couple of things. Unfortunately, not much to report. Letter sent to Governor's office. Not even a courtesy call in return. I spoke with Lynn Schenk on Thursday. She told me point blank that the Governor and his staff had already solved the energy crisis and that it was too late to convene a meeting such as LDT was suggesting. Please DO NOT pass on this information to anyone else in the "Berkeley group." We'll probably try to reach Schenk again today. Marybeth

On Wed, 24 Jan 2001 Jeff.Dasovich@enron.com wrote:

Mary Beth: For what it's worth, I've read this, and if Laura Tyson or Larry Summers sign it, I have serious concerns about the effect it would have on their ability to play the role that we envision in moving our proposal forward (understanding that our odds of success are somewhat meager). While I don't disagree with the language, it is strong and therefore very likely to make the Governor and his staff very uncomfortable. I would recommend that they do not sign. Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 01/24/2001 11:32 AM ----- David Teece <teece@Haas.Ber To: tyson@haas.berkeley.edu, keley.EDU> tom_campbell@law.stanford.edu, shmuel@euler.berkeley.edu,

willrichm@aol.com,

01/24/2001 george_barker@lecg.com, 10:56 AM cdanner@wilkandassociates.com, gilbert@econ.berkeley.edu,

scott_harvey@lecg.com,

jscadding@wilkandassociates.com, spiller@haas.berkeley.edu, mwilk@wilkandassociates.com, phillip_mcleod@lecg.com,

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rschmidt@lecg.com,

pverleger@compuserve.com,

joseph.mullinix@ucop.edu,

steven@stoft.com

cc:

peter.gosselin@latimes.com

Subject: Final

Version-Manifesto

TO:?? Colleagues SUBJECT:?? Final Version I've done my best to include your very helpful comments.? The document now also contains a summary. I would like your endorsement, by noon PST (Wednesday) if possible.? A number of you have already indicated you would sign it.? Also, Tom Campbell has indicated he will try to recruit Ken Arrow.? I believe one of you agreed to recruit Dan McFadden.? Laura is working on Larry Summers.? Solow would be a great addition, too. Can we agree on the following division of labor from here out: 1.? Recruiting others:?? All 2.? Media representatives:?? Campbell, Tyson, Spiller, Verleger, Wilk, Teece, and Hogan (This is by no means meant to preclude anyone contacting the media after we go public.) ??? On media, we are giving the LA Times a 24-hour exclusive.? We won't release to other media sources until 9:00 AM Thursday. Many thanks for your involvement and endorsements. (See attached file: Manifesto-final version.doc) ===== David J. Teece, Director Institute of Management, Innovation and Organization F402 Haas School of Business #1930 University of California, Berkeley Berkeley, CA 94720-1930 Phone: (510) 642-1075 Fax: (510) 642-2826 http://haas.berkeley.edu/~imio =====

Message 766 of 1299

Re: Nov. 13 UC summit conference on electricity

Sender	jeff.dasovich@enron.com
Recipients	['lfried@uclink4.berkeley.edu', 'jdasovic@enron.com', 'tim.belden@enron.com']
File	dasovich-j/sent/526.

Lee: I'm not certain that it will be possible to get Skilling, but I'll get back to you soon. Also, I want to manage expectations a bit about the possibility of having Enron stream the conference. Just don't want us to get ahead of ourselves. I'd prefer

that it not go out in any announcement at this juncture. Thanks a bunch.

Best, Jeff

"Lee S. Friedman" <lfried@uclink4.berkeley.edu> 10/04/2000 05:52 PM

To: "Tim Belden" <tim.belden@enron.com>, "Jeff Dasovich" <jdasovic@enron.com> cc: Subject: Nov. 13 UC summit conference on electricity

Jeff and Tim,

Tim, I know Jeff knows all about the conference we are organizing and I hope you do as well.

Rob, I and the rest of the conference organizers are wondering if you could help us find out if Jeff Skilling from Enron would be willing to be one of our panelists? He has been an articulate critic of the current state of our electricity markets, and we definitely would like the genco perspective represented.

Naturally we are hoping to get a quick answer because our publicity about the conference will be going out shortly.

A brief description of the conference is appended below. Please let me know if you need any additional information.

Thanks very much for your help and advice. Lee

The summer of San Diego has prompted the School, in collaboration with UC's Energy Institute and Competition Policy Center, to sponsor a high-level summit conference on electricity deregulation. The focus, and the audience, will be national, but heavily informed and influenced by the California crisis. The conference will evaluate (1) the wisdom of deregulation and (2) how the pitfalls encountered so far can be avoided and remedied. The University will facilitate an open, honest and reasoned exchange between executive-level players from various perspectives: industry, regulators, consumers, legislators, academics, and market and system operators.

The format entails two roundtable discussions with six speakers and a moderator. During the panel sessions, the speakers will engage in a debate/dialogue on the current situation in electricity deregulation, where we have come from, what the future holds, and what solutions lie on the horizon. Each speaker will have uninterrupted time to speak, followed by Q&A and discussion. We expect a live audience of about 200, including a large press presence. One sponsor has tentatively offered to provide internet streaming video services. We hope to have a balanced group of sponsors ranging from the American Public Power Association to energy companies.

The speakers are being arranged at this time. We have commitments from: Loretta Lynch (Chair, CPUC), and PJM CEO Phil Harris. We have a preliminary acceptance from Steven Littlechild (England's former primary electricity regulator) and Laura Tyson (former Chair, President's Council of Economic Advisors and National Economic Council, currently Dean, Haas School of Business). We have invited FERC Commissioner Curt Hebert, and U.S. Representative Edward Markey, executive-level managers from several energy companies and state legislators. Former DOJ chief economist Carl Shapiro will be on one of the panels, as will economist Severin Borenstein, Director of UCEI and Professor of Business and Public Policy. Michael Florio from The Utility Reform Network (TURN) will be a consumer advocate on one of the panels. Lee Friedman, economist and Professor of Public Policy, will briefly provide an introduction to the panel discussions with his talk "Lighting the Stage: The Electricity of Deregulation."

A dinner for the panelists and organizers will be hosted at UC's Goldman School of Public Policy following the conference proceedings. We have reserved rooms for our speakers at Berkeley's landmark Claremont Hotel. We can reimburse those speakers who request it for coach airfare expenses and other ordinary local expenses.

For further information, please contact: Lee S. Friedman Professor of Public Policy Goldman School of Public Policy University of California 2607 Hearst Avenue Berkeley, CA 94720-7320 Ph: (510) 642-7513 Fax: (510) 643-9657 email: lfried@uclink4.berkeley.edu

Message 767 of 1299

RE: Comments: Emergency AReM Pleading

Sender	rick.counihan@greenmountain.com
Recipients	[peter.bray@newpower.com', 'arem@electric.com', 'douglass@earthlink.net', 'jeff.dasovich@enron.com']
File	dasovich-j/deleted_items/302.

Peter,

The concern about customers who were never on utility service is not just a large customer issue. I have thousands of customers that did not contribute to the DWR undercollection and should not have to repay it. On the other hand, a large customer who went DA today, should have to repay it because they enjoyed the benefits of DWR procurement for half a year.

Rick

-----Original Message-----

From: Peter.Bray@NewPower.com [mailto:Peter.Bray@NewPower.com] Sent: Thursday, August 09, 2001 2:41 PM To: arem@electric.com; douglass@earthlink.net Cc: jeff.dasovich@enron.com; johnlatimer@capitoladvocacy.com; nplotkin@rcsis.com Subject: Comments: Emergency AReM Pleading

? The "special preference for green customers" should be less vague, or dropped. This includes the reference in the 2nd paragraph in the "Conclusions" section. Rick, do you have something in mind?

? On its face, this bullet looks like it's reaching (too far): "End-users who never received procurement services from either the utility or DWR as of the effective date of the Commission order implementing this proposal would be exempt from the DRC related to the bonds and the UDRC related to the utility's past procurement-related debt." [From Option A; there is a parallel provision in Option B.] The bullet (currently) reads as if there is a special pass to be handed out to those (large customers) able to make quick DA contracting decisions. That's not OK. I assume that the author's intent is clearly covered in the two bullets that follow the offensive bullet (both in Option A and B). Therefore, rather than convoluting (to correct) the offensive paragraph(s), let's just drop it (them).

? Given the e-mail exchange with Bill Booth, I believe that CLECA would join TURN to OPPOSE an AReM proposal (perhaps even the motion), and in particular, the Option B element: "Utility customers who choose Direct Access would be required to pay:?[a] long-term dedicated rate component ("LTDR") to cover the customer's proportionate share of any above-market costs associated with DWR's long-term contracts?." While I do not propose that AReM adapt its positioning to accommodate CLECA, I observe that AReM would be leading with its chin.

Dan, you've done a killer job in close to zero real-time. Wow. Kudos.

Peter

To: <arem@electric.com>, <Peter.Bray@NewPower.com> cc: <nplotkin@rcsis.com>, <johnlatimer@capitoladvocacy.com>,

<jeff.dasovich@enron.com> Subject: Re: Emergency AReM Pleading "Dan Douglass"

<douglass@earthlink.net>

08/09/01 11:57 AM

-----+

Just in advance of the conference scheduled for a few minutes from now, attached for your review and comment are the following two documents:

1. A motion for permission to file supplemental comments on the draft decision of ALJ Barnett and the alternate draft decision of Commissioner Bilas; and
2. The supplemental comments, in which the proposal circulated yesterday is included.

Please note there have been some changes to the bullet point proposal. Some is merely wording to make it read more smoothly. However, Option A also includes Peter Bray's suggestion that the participation limit include a 20% DA capacity reservation for residential and small commercial customers, with preference for those using green power. Also, this has been dated for filing on Monday, rather than Friday, because Rick Counihan and I could not see how parties could provide comments and have us agree on a final version by Friday.

All comments will be greatly appreciated, as soon as possible.

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201
Fax: (818) 346-6502 douglass@earthlink.net

(See attached file: 8-13-01 AReM Supp Comments - Draft 1.doc)(See attached file: Motion to File Supplemental Comments.doc)

Message 768 of 1299

More on FERC generator hearings

Sender	dhunter@s-k-w.com
Recipients	['jdasovic@enron.com']
File	dasovich-j/all_documents/28472.

-----Original Message-----

From: McEvoy, Bridget [mailto:Bridget.McEvoy@ElPaso.com] BN 18:06 Talks Between California, Generators End; No Accord (Correct)

(Corrects lead to say judge recommended FERC hearings to result disagreements; adds comments from judge in fifth paragraph and comments from Enron in 13th paragraph.)

Washington, July 9 (Bloomberg) -- A judge who oversaw two weeks of unsuccessful negotiations aimed at persuading power sellers to pay refunds in California and other western states recommended that the Federal Energy Regulatory Commission hold hearings to resolve disagreements within 60 days.

Two weeks of FERC-ordered talks ended today with the two sides no closer to an accord.

"In 15 days, you can't work miracles," said Curtis Wagner, FERC's chief administrative law judge. "The numbers were too far apart."

California says it is due a refund of \$8.9 billion because the companies charged excessive prices. Other western states are also requesting money.

A group of power sellers offered \$510 million to California during the negotiations, scoffing at the state's method of

calculating the refund, Wagner said. Other parties to the talks offered about \$206 million, bringing the total offer from generators to \$716 million.

On Saturday, the state brought in analysts who explained how the state calculated its estimate. He wasn't convinced by California's arguments that it should receive \$8.9 billion, said Wagner, who wouldn't provide his own estimate of how much should be paid.

Wagner said FERC should hold hearings of 60 days or less and should calculate a refund based on a system it approved for price caps on June 18. The caps are based on the costs of the highest priced generator during the early stages of a power shortage.

That formula should be applied retroactively to Oct. 1, Wagner said. He wouldn't provide an estimate of the size of such a refund, saying it would require research into fuel prices from that time period.

Michael Kahn, California's chief negotiator, said the judge's recommendation was a victory for his state. Wagner's formula would give his state a refund of ``several billion dollars," and California will sue to get the rest, he said.

``The judge said we're entitled to our money without releasing any of our claims," Kahn told reporters.

Generators were mixed on what Wagner's recommendations meant, though they agreed the state asked for too much.

``Under the faulty methodology the state has come up with (to justify the \$8.9 billion refund), we would be owed money because we bought more than we sold in the spot market in the period in question," said Mark Palmer, a spokesman for Enron Corp, one of the power sellers taking part in the negotiations. ``That's shows how ridiculous this is."

Houston-based Enron didn't participate in the offer to refund \$510 million, Palmer said, without being more specific.

``Nothing I've seen suggests that California cares about a settlement," Palmer said. ``What they care about is shifting blame. What they care about is a witch hunt."

Duke Energy Corp. is ``very pleased" by the judge's

recommendations, said Brent Bailey, vice president and general counsel of the Charlotte-based company. The judge's plan fixes problems with California's methodology for calculating the refunds, he said.

California's two biggest utilities have piled up almost \$14 billion in debt because of the surging prices that resulted when the state's plan to deregulate its electricity system failed. The state began buying power on the utilities' behalf in January and has spent close to \$8 billion.

--Amy Strahan Butler and Jeff Bliss in Washington (202) 624-1975
or jbliss@bloomberg.net and in Washington/mmwwalp/mmww

Bridget McEvoy Investor Relations El Paso Corp. 713.420.5597 Bridget.McEvoy@elpaso.com

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Message 769 of 1299

RE: HD Case: Proposed Plan

Sender	jeff.dasovich@enron.com
Recipients	['jeff.dasovich@enron.com', 'chin@haas.berkeley.edu', 'cvavrek@deloitte.com']
File	dasovich-j/sent/3121.

Ok, we're on for 7 pm. i've got carolyn's and Mark's #s please pass along others and i'll originate the call from here. mark, all of your points are good one's, less discuss them on teh call. best, jeff

"Vavrek, Carolyn (US - San Francisco)" <cvavrek@deloitte.com> 02/07/2001 12:25 PM

To: Jeff.Dasovich@enron.com cc: chin@haas.berkeley.edu, Mark Guinney <Mark_Guinney@watsonwyatt.com>, sama@haas.berkeley.edu Subject: RE: HD Case: Proposed Plan

I like your ideas - much better developed than in the draft memo. I'm free at 7pm. My home number is 285-7385. Just patch me in. - cv Carolyn M. Vavrek Manager - Human Capital Advisory Services Deloitte & Touche 50 Fremont Street San Francisco, CA 94105 phone: 415-783-5137 fax: 415-783-8760 e-mail: cvavrek@deloitte.com

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Wednesday, February 07, 2001 8:26 AM To: Vavrek, Carolyn (US - San Francisco) Cc: chin@haas.berkeley.edu; Jeff.Dasovich@enron.com; Mark Guinney; sama@haas.berkeley.edu Subject: Re: HD Case: Proposed Plan

Hi folks: Since we have only one page, the write up for number 4 will have to be very brief. Before writing it, though, I wanted to offer a few bullets regarding what angle we might take, and let folks respond, comment, counter, etc. before writing it up. I'll clean and beef up once we've agreed to the approach we'd like to take to question #4. Finally, I can work from my office on this this evening, which means that I can use the conference call capability of my office phone to patch everyone in if we'd like to do a conference call. If that's what folks would like to do, I'd prefer to do the call at around 7 PM. Just let me know. Best, Jeff The question for #4 is: Stock price is down 23%, significant debt has already been tapped to support massive growth and covenants on that debt restrict taking on a lot more debt. What should HD do w.r.t. current

operations and future growth strategy? In the near term focus less on growth and more on getting margins and EBIT growth back in line with results from previous years. (Management's Letter to Shareholders alludes to this, but it's difficult to determine whether management is just paying lip service to the need to capitalize on the growth spurt and grown earnings, or continue on the growth effort.) With respect to funding future (more moderate growth), the company does have some room to increase long-term debt (e.g., current ratio for 1986 = 2.26). It seems that HD would get better terms and have increased flexibility by issuing additional debt rather than relying on lines of credit. As such, HD ought to look those sources of funding and fill in any "funding gaps" with funds from the line of credit. Given the significant drop in stock price, HD is likely better off in the near term 1) moderating growth, 2) improving performance to generate cash internally, and 3) using long-term debt issuance to provide the funds needed. Once performance and stock price improves, then HD should consider a stock issuance. How can company improve operating performance? Reduce selling, store operating expenses and pre-opening expenses Improve receivables turnover Improve inventory turnover Improve per store/sales Consider closing poor-performing stores All of which will improve margins Should company change its strategy? If so how? Shift from meteoric growth to moderate, targeted growth, and focus on generating positive cash flow from operations Focus on improving performance at existing stores; specifically focus on controlling costs and asset turnover and productivity Consider another debt issuance rather than rely extensively on credit line in order to decrease cost of funds and increase flexibility

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Message 770 of 1299

Summer 2001 EMBA Seminar In International Business - Initial

Sender	owner-eveningmba@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/all_documents/3841.

Dear Evening MBA Students,

It is once again time to plan for the EMBA Seminar in International Business. For those of you unfamiliar with this course, please see <http://www.haas.berkeley.edu/groups/HaasGlobal/NGcourseoutline.htm> for the 2000 version that looked at Ghana, Belgium and the Netherlands or <http://www.haas.berkeley.edu/groups/HaasGlobal/JVcourseoutline.htm> for the 1999 version that included Japan and Vietnam.

For 2001 we are going to try something slightly different. We will have two distinct programs - one will be a repeat of last year's and the other will venture into new territory. The details are as follows. Please note that everything mentioned below is still tentative and subject to change or cancellation.

PROGRAM DESCRIPTIONS

Both programs will commence with a series of classes, at Haas, in June.

Program A, led by Diane Dimeff will retrace the itinerary of the 2000 program to Ghana, the Netherlands and Belgium. The approximate dates for the travel portion will be Saturday, July 7 through Saturday, July 21.

Program B, led by Sebastian Teunissen will consist of one of two possible itineraries, depending on student demand:

itinerary 1: Cuba, Panama and Venezuela (or Costa Rica.) itinerary 2: Australia and Indonesia.

Travel for program B will also start on approximately July 7 and end on approximately July 21.

Costs for the programs are expected to be approximately equal to those charged in previous years (\$4,600), with the exception of the Australia/Indonesia option. If this program is selected the final cost is likely to be roughly \$1,000 higher due to increased air fares. Final costs will be determined once itineraries are set.

As you can see, planning is still in the early stages. But, before we go much farther we need to know who is interested in participating. So, we need to receive expressions of interest, in the form of a refundable \$100 deposit from interested students.

APPLICATION PRIORITIES

Students will have different priorities depending on seniority. Priorities are as follows:

Top Priority - both programs - students in fourth semester or higher in January 2001 who HAVE NOT participated in the program in a previous year.

Second Priority - Program B only - students in fourth semester or higher who did participate in the program in a previous year. These students are not eligible for program A.

Lowest Priority - both programs - students in second or third semester.

Each group is limited to a maximum of 15 students.

APPLICATION PROCEDURE

Please submit, to the Evening MBA office, a check in the sum of \$100 payable to UC Regents together with the following information, no later than December 15, 2000. - Name - Semester level as of January 2001 - Whether or not you have previously participated in the program - Choice of program: A or B (If you choose program B please also indicate your preferred destination: Latin America or Australia/Indonesia.) - e-mail address

Once we have a clear indication of preferences the final details will be planned and announced. The announcement will likely be made in January. At that time you will be advised of the program for which you are eligible. You will then be asked to increase your deposit by \$900 and the entire \$1,000 deposit becomes non-refundable.

OTHER ISSUES

Please check your passport to ensure that it expires no earlier than December 31, 2001. If it does please renew it now. Passports with shorter expirations may be rejected for visas, depending on the countries to which you will travel.

Also, please check the visa requirements for the countries of interest for your particular nationality. This may have a bearing on the program that you select.

You might wish to check out the US State Department Consular Information Sheets and Travel Warnings at http://travel.state.gov/travel_warnings.html before applying. You may also wish to review health information at <http://www.tripprep.com/> or at <http://www.cdc.gov/travel/>.

Should you have any questions please contact me.

Regards,

Sebastian

Sebastian Teunissen Director of International Affairs Haas School of Business University of California, Berkeley Berkeley, California 94720-1900 USA Tel: (510) 643-4999 Fax: (510) 642-8228

<http://www.haas.berkeley.edu/HaasGlobal>

Message 771 of 1299

Re: Activate.net Costing Issues

Sender	scott.bolton@enron.com
Recipients	['Billy Braddock/Enron Communications@Enron Communications', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/418.

----- Forwarded by Scott Bolton/Enron Communications on 03/16/00 08:27 AM

Paul Burkhardt 03/15/00 09:39 AM

To: Scott Bolton/Enron Communications@Enron Communications cc: Subject: Re: Activate.net Costing Issues

----- Forwarded by Paul Burkhardt/Enron Communications on 03/15/00 11:41 AM

Merat Bagha 03/15/00 12:51 AM

To: Paul Burkhardt/Enron Communications@Enron Communications cc: Billy Braddock/Enron Communications@Enron Communications, Matt Harris/Enron Communications@Enron Communications Subject: Re: Activate.net Costing Issues

Paul,

Thanks for your note.

A few comments that correspond to yours:

The DS-3 pricing is not material since it is only used for sending encoded content to the EIN. It is not directly part of the Internet transit proposal. We are awaiting a price from our provisioning group (who gets it from other providers). I am awaiting a proposal from a colocation provider at the Westin on pricing for Activate.net. It is likely that we will NOT get involved and have the customer work directly with this provider. As such, we should not have the headache as well as the worry about pricing this element. We would actually need fiber riser between our suite at the Westin and the Meet-Me room at the Westin; not Gigabit Ethernet. No pricing at this point but I would expect this to be \$1K per month maximum My estimate on the 6509's is \$100K each installed for a total of \$200K. For a GSR, I would put this at \$200K each for a total of \$400K. I am awaiting pricing from our provisioning folks for the dark fiber that would allow us to run Gigabit Ethernet over this infrastructure. They are working with Level-3. I have also asked for OC-12 pricing if we don't get the dark fiber. See response #4. The only difference is that we would need to pay Level-3 for a rack to be placed at their end for our equipment. Estimate for this is \$1K per month. Pricing from L-3 for Internet transit is approximately \$250 per Mbit per month as measured on a 95% percentile. This might go down as you may have heard from Dorn due to market conditions and our bulk buying power as well as some price configuration changes by Level-3 (e.g., pay \$200/Mbit/month based on the higher of upstream or downstream measurements).

A Visio drawing, its equivalent bitmap rendering as well as an Excel spreadsheet containing a very preliminary estimate of pricing is also attached for your reference.

What has to be added as part of any pricing analysis is the IP & AFTS transport that we might provide in the future to carry some of the traffic outside of the Seattle-area because Internet transit there might not be sufficient or too congested.

Matt and I will do more work on this proposal on Wednesday & Thursday and will plan to keep you informed. Again, we owe a term sheet to the customer later this week.

Merat

From: Paul Burkhardt on 03/14/2000 04:34 PM CST

To: Merat Bagha/Enron Communications@Enron Communications

cc: Billy Braddock/Enron Communications@Enron Communications

Subject: Activate.net Costing Issues

Below are the Activate.net pricing elements we need for the economic model that will be discussed during tomorrow's TDS (aka. Transaction Development & Structuring) meeting at 11AM Pacific Time.

Local Loop Pricing (DS-3 from Activate.net to Westin) Total cost of co-location at Westin Gig Ethernet Cross Connect from Westin router to EBS router Installed cost for 6509 Router and GSR 12012 Router at Westin; [WE NEED BOTH ESTIMATES DEPENDING ON WHICH LOCAL LOOP IS AVAILABLE] Local loop from Westin to L3 gateway (Gig Ethernet on dark fiber and OC12); WE NEED BOTH ESTIMATES DEPENDING ON AVAILABILITY] Installed cost for 6509 Router and GSR 12012 Router at L3; [WE NEED BOTH ESTIMATES DEPENDING ON WHICH LOCAL LOOP IS AVAILABLE] Pricing of Internet transit from L3 [Allen Hill and I need to talk to Dorn this afternoon and will address this pricing issue with him.]

Do you know if we will be able to have G Ethernet on dark fiber for local loop from Westin to L3? I will look for the pricing elements tomorrow morning and we can discuss when I call you tomorrow at 8:30AM Pacific Time. Let me know if I can be of assistance in tracking down any of the information.

Thanks!

Paul (713) 853-9557

Message 772 of 1299

Re: Gouger Gray Davis :

Sender	susan.mara@enron.com
Recipients	['janel.guerrero@enron.com', 'jeff.dasovich@enron.com', 'harry.kingerski@enron.com', 'james.steffes@enron.com'...
File	dasovich-j/all_documents/29325.

These are the people to whom Western Power Trading Forum is contributing funds for a paper on the electricity crisis.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Jeff Dasovich Sent by: Jeff Dasovich 07/31/2001 09:33 AM

To: skean@enron.com, Richard Shapiro/Enron@EnronXGate, James D Steffes/Enron@EnronXGate, Karen Denne/Enron@EnronXGate, mpalmer@enron.com, Susan J Mara/NA/Enron@ENRON, Paul Kaufman/Enron@EnronXGate, Harry Kingerski/Enron@EnronXGate, Linda Robertson/NA/Enron@ENRON, Susan M Landwehr/Enron@EnronXGate, Janel Guerrero/Enron@EnronXGate cc: Subject: Gouger Gray Davis : California's petulant governor ignores reality as he overpays for electricity

Gouger Gray Davis California's petulant governor ignores reality as he overpays for electricity

LANCE T. IZUMI Mr. Izumi is a senior fellow in California Studies at the San Francisco- based Pacific Research Institute. On the surface, things seem to be going pretty good for Gov. Gray Davis with regard to California's electricity crisis. The governor has scored some nice publicity by switching on some new power plants. The weather has been unseasonably cool. His poll numbers are edging back up. Yet beneath this optimistic picture lie troubling problems. For example, Davis's argument that out-of-state power generators are responsible for the electricity crisis has been falling apart. For months, Davis has been claiming that private generators have overcharged California by \$8.9 billion and demanded that this amount be refunded to the state. However, after a two-week mediation between state officials and the generators, Curtis Wagner, the federal government's chief energy regulatory judge, rebuked Davis's claim saying that such a huge overcharge "has not and cannot be substantiated." Further, while the generators may be liable to refund a much smaller amount to the state, perhaps \$1 billion, Wagner said that generators are owed more money by the state than they owe the state in refunds: "Can a cash refund be required where a much larger amount is due the seller? The chief judge thinks not." Davis reacted to the judge's ruling by calling it a "raw deal" and by urging the Federal Energy Regulatory Commission to ignore the lack of evidence and the judge's conclusions and to "step up and provide the refunds we've asked for." Davis's position, as usual, is motivated purely by politics. Indeed, Dan Walters of the Sacramento Bee says that Davis is operating in a "melodramatic virtual world" de-linked from reality. Davis's blame-the-generators argument took another body blow when newly released documents showed that, on average, major out-of-state power companies such as Enron, Duke, Dynergy and Mirant charged less than the average prices paid by the state during the first three months of the year. California government utilities, on the other hand, such as the Los Angeles Department of Water and Power and the Sacramento Municipal Utility District (SMUD), charged the state much more for electricity than the out-of-state generators. For example, while Texas-based Enron, a favorite Davis whipping boy, charged an average \$181 per megawatt hour, SMUD charged an average \$330 per megawatt hour. Davis responded to this revelation in typical political fashion. A Davis spokesman said that the governor had expressed his anger at "the generators who wear cowboy hats" and that "just because there are other entities that are charging us more doesn't change the fact that we are getting ripped off by companies from Houston, Tulsa, Atlanta or Charlotte." Yet, for all Davis' feigned indignation about consumers being ripped off, it turns out that he and his regulators are poised to ensure that business consumers are ripped off by state

government. Davis has signed \$43 billion in ill-advised long-term purchase contracts at rates above-market-price. The state must, therefore, ensure that enough business customers remain in the current state-controlled distribution system to pay for high-priced state power purchases. This is especially important to Davis since the high prices are borne disproportionately by business. Thus, Davis' regulators are set to eliminate "direct access," which allows businesses to shop for cheaper power. Who's the real gouger? No matter how much Davis points the finger, Californians are paying dearly for his political opportunism and bad policies.

Message 773 of 1299

ASAP please -- EBS on site power deals

Sender	christi.nicolay@enron.com
Recipients	['susan.mara@enron.com', 'andrea.woodland@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/28060.

Can you all help with the California issues? ----- Forwarded by Christi L Nicolay/HOU/ECT on 06/22/2001 12:55 PM -----

From: Christi L Nicolay 06/19/2001 03:33 PM

To: Robert Eickenroht/Enron@EnronXGate, Paul Kaufman/Enron@EnronXGate, Janine Migden/NA/Enron@Enron, Steve Montovano/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron cc: James D Steffes/NA/Enron@Enron, Sarah Novosel/Corp/Enron@ENRON, David Portz/Enron@EnronXGate, Robbi Rossi/Enron@EnronXGate, Ray Alvarez/NA/Enron@ENRON, sscott3@enron.com, Andrea Woodland/Enron Communications@Enron Communications

Subject: ASAP please -- EBS on site power deals

EBS owns on-site back up generators at various POP locations (in the EBS buildings) across the US (see the list below. The generators max at appr. 1.5 MWs each. Per the generator permits, the generators only run during emergencies when there is no power coming off the grid. EBS only uses about 20% of the generator output.

EBS has been approached by several tenants within the EBS buildings about "sharing" by purchasing power from the on-site generators during emergencies only. The appr. value to EBS is \$2MM this summer.

Robert--Are there any PUHCA issues to Enron if EBS sells power to other tenants in the same building? Is EBS required to obtain an EWG certificate before doing this?

Retail folks--Since the power would not flow to the grid, this seems like it may entail a "retail type" sale of on-site generation, rather than a wholesale sale for which a power marketer license is required. Do you know of any specific restrictions for the states listed? (FYI -- One of the locations is in San Jose and the power has been curtailed several times at the location. It certainly seems like Cal. would be encouraging the use of back up generators, but I do not know the specific rules.)

Finally, since EBS wants to act quickly, we discussed EBS hiring perhaps Sam Behrens to work through this issue in the event we are unclear about any of the regulations or rules. Thanks for letting me know your comments right away.

-----Original Message-----

From: Woodland, Andrea Sent: Friday, June 15, 2001 4:35 PM To: Rossi, Robbi Subject: Re: Power

Here's the scope of this project. I do not have David's email, so could you send this onto him?

The plan is to sell Emergency Power at our POP's. There are 11 POP's where we have generators installed in the building, and we are only utilizing approximately 20% of the capacity. The plan is to sell the other 80% to other building tenants. The power would only be provided in emergency situations - which means when the normal power grid is down (current building permits allow this). There would be an up front cost to providing the power (breaker/conduit/conductor) which we would pass onto the customer as an initial Non-recurring Fee. They would pay a monthly fee to have the emergency power available (demand charge), then pay a fee for the kwh used (capacity charge). The customers that will be interested in this

are either tapped out on their generator or do not currently have a generator. So, to pay a initial connection fee, which will be much less than the cost to install a generator, and then a monthly fee for the power insurance, should be acceptable.

This file shows the cities & the generator sizes, with about 80% available. The companies on the right are who I've currently sent letters to. So far we've received 3 phone calls - 1 who wants to buy all the power he can in San Jose. From these discussions, the requests have ranged from 100A or 83kW to 1000 A or 830kW.

We need a term sheet or contract, and I would also be interested in speaking with EPMI about a contract with them. Sounds like that might be a bit less risky.

Thanks for you help. Andrea Woodland Enron Broadband Services 503-886-0532 (desk) 503-880-4547 (cell)

Robbi Rossi/ENRON@enronXgate 06/15/01 12:47 PM To: Andrea Woodland/Enron Communications@Enron
Communications cc: Subject: Power

Andrea,

David called me back and said he wanted to talk to Kristy Nickolay - his regulatory person before we spoke. It may be helpful if you could send him a brief description of the intended transaction. The power people are very busy right now - and the easier we can make it for them to help us - the better. He needs to know something about the size of the transactions and the potential customers.

Message 774 of 1299

The Original Advantage #e11805

Sender	announcements@provantage.com
Recipients	['jeff_dasovich@enron.com']
File	dasovich-j/notes_inbox/3050.

[IMAGE]

May 21, 2001

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Message 775 of 1299

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[IMAGE]

February 13, 2001

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??\$108.95 [IMAGE]

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Message 776 of 1299

FYI - one aspect of ECI

Sender	scott.bolton@enron.com
Recipients	['sue.nord@enron.com', 'susan.landwehr@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/eci/125.

Interactive Week 11/1/99

Wall Street enthusiasm and a growing list of brand-name clients have legitimized content distribution as a business, putting two companies that started it all - Akamai Technologies and Sandpiper Networks - into the spotlight.

Digital Island's \$630 million acquisition of Sandpiper last week and Akamai's \$2.2 billion pre-initial public offering valuation are likely to make merger and acquisition artists wonder how much their company would be worth with the inclusion of a Sandpiper or Akamai. Akamai, which priced its shares at \$26, saw its stock hit \$125.50 in midday trading Oct. 29.

Digital Island, the San Francisco-based Web hosting shop that was worth \$1.2 billion on Oct. 25 when it announced the Sandpiper acquisition, saw its market capitalization gain \$1 billion in the course of four days.

Why are the services of Akamai and Sandpiper so valuable all of a sudden? The Internet can't deliver Web - much less broadband - content fast enough, and network backbone companies are taking too long to solve the bottleneck puzzle, industry experts said.

"We looked at content sites A through Z, and 52 percent of them are planning to buy content delivery services next year," said Greg Howard, principal analyst and owner of the HTRC Group, a market research company.

With customers that eager to show service providers the money, many are scrambling to deliver.

In a space where a year ago Sandpiper was a lone evangelist and Akamai a rocket from nowhere, new content distributors are popping up like mushrooms.

Adero, Edgix and Mirror Image are three companies that are gaining mindshare in the market. Since at the core of a content distribution system lies a massive task managing hundreds and eventually thousands of caches operated as one network, such companies as iBeam Broadcasting and SkyCache are also gaining credibility in the market.

And then there are a few sudden entrants. Enron Communications and Exodus Communications are trying to amend existing business models to take advantage of the new opportunity.

How big is the opportunity? The content distribution market, Howard said, will grow from \$62 million this year to \$306 million next year, and to about \$2.3 billion in 2002.

Acquisition as an exit strategy is certainly something new content distributors are thinking about.

"I think it's hard to say what will happen in this industry next. All business models are very different," said Rangu Salgame, president and chief executive of Edgix. "I think we will stand independent - for a while."

Potential buyers include any given content provider - from CNN Interactive to Pets.com - that writes three checks every month: one for bandwidth, one for Web hosting and, lately, one for content distribution. These groups have the most to gain from content delivery services, executives said.

"There are a couple of likely players in this space. One, there are new start-ups like Adero and specialized content distributors like Intervu; two, there are colocation providers like Exodus; and three, there are traditional telcos like MCI WorldCom, who are standing on the sidelines right now, but have a lot of edges for content to reside on," said Leo Spiegel, president and CEO of Sandpiper, soon to be Digital Island.

What would happen if any given company were to buy all three components?

"This would mean running content distribution through a single network and maintaining a global footprint," Howard said. "It is hard, but doable."

There are reasons why the network-content distributor combination could backfire. Akamai executives declined interviews for this story due to the Securities and Exchange Commission-imposed quiet period. But in the past, they have been vocal about a single network scenario being untenable for content distribution because their business model is predicated on carrier neutrality. This is why Internet service providers and telephone companies are open to content distributors colocating servers within their networks.

Another possible exit strategy for content distributors is to sell out to large media companies such as America Online, Disney and Time Warner. These companies could maintain the content distributors' "Switzerland" status and still use the service as a competitive advantage by speeding up content delivery, industry watchers said.

Scott Bolton Government and Regulatory Affairs Enron Communications, Inc 210 SW Morrison, Suite 400 Portland, OR 97204 503.464.8611 503.464.3636 fax

Message 777 of 1299

The Original Advantage #e12405

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[IMAGE]

May 29, 2001

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Message 778 of 1299

PUBLIC PARTICIPATION HEARING RE BASELINE ALLOWANCES FOR RESIDENTIAL

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/27969.

ADMINISTRATIVE LAW JUDGE=01,S RULING SETTING PUBLIC PARTICIPATION HEARINGS AND REQUIRING CUSTOMER NOTICE

The Commission has stated that the purpose of this proceeding is =018to determine whether current baseline allowances for residential gas and electricity users in California should be revised, and if so, to what new levels.=018 (Order Instituting Rulemaking, May 24, 2001, p. 1.) As part o= f this proceeding, we are scheduling Public Participation Hearings. At the Public Participation Hearings, interested members of the public may make their views known to the Commission on the issues to be addressed in this proceeding. Public Participation Hearings in this proceeding are set for the following dates and locations.

Sept. 20, 2001 San Jose 7:00 p.m. Double Tree Hotel 2050 Gateway Place San Jose, CA

While this proceeding has been split into two phases, comments at the Publi= c Participation Hearings may address issues to be examined in either phase. Issues currently identified as being addressed in Phase I are: 1) Updating the energy usage data used by the Commission in calculating baseline quantities; 2) The appropriate percentage of energy usage to use in calculating baseline quantities, within the legally permissible range; 3) Possible changes to the medical baseline allowance; and 4) Suggestions for legislative changes. Issues within the scope of the proceeding not addressed in Phase I will be addressed in Phase II, and may include consideration of the priorities and policy objectives of the baseline program, possible changes to climate zones, consideration of household and demographic characteristics, definition of seasons, and gas versus electric issues. Other issues reasonably within the scope of the proceeding may als= o be addressed at the Public Participation Hearings. In a previous Ruling respondent utilities were directed to coordinate with the Commission=01,s Public Advisor=01,s Office regarding the preparation an= d content of bill inserts providing notice of these Public Participation Hearings. Respondent utilities should incorporate the above information, and continue to coordinate with the Commission=01,s Public Advisor=01,s Off= ice. All respondent utilities are required to provide timely notice to their customers of the Public Participation Hearings. Each respondent utility shall send written notices, in a form approved by the Public Advisor=01,s Office, either by mailing them postage prepaid directly to customers, or by including notices with customers=01, regular bills. To the extent any util= ity bills its customers electronically via the Internet, notice to those customers may also be done electronically. Anyone who needs assistance with participation in this proceeding should make use of the resources on the Commission=01,s web site, www.cpuc.ca.gov,= or should contact our Public Advisor=01,s Office, which is available to help parties understand how to participate in a proceeding, how to file a pleading, and to answer other questions about Commission procedure. The northern California office can be reached at 415-703-2074 or public.advisor@cpuc.ca.gov. The southern California office can be reached at 213-576- 7055 or public.advisor.la@cpuc.ca.gov.

IT IS RULED that: 1. Public Participation Hearings will be held on the dates and at the locations and times described above. 2. Each respondent utility will provide a company representative at each of the Public Participation Hearings in, or within 125 miles of, its service territory, to be available to address any comments or concerns expressed by attendees. 3. Each respondent utility will provide notice to its customers not later than 10 days prior to the earliest Public Participation Hearing in, or within 125 miles of, its service territory. Notices shall be provided either as an insert with a regular bill or may be mailed separately if necessary to reach customers at least 10 days before the relevant Public Participation Hearing. 4. Each respondent utility will provide to the Public Advisor=01,s Office n= ot later than five days prior to the relevant Public Participation Hearings, a letter certifying that it has complied with the requirement of Ruling Paragraph 3 above. The compliance letter shall state the date(s) notices were sent to customers and the approximate number of customers so notified, and attaching one copy of the actual notice used. 5. Any party that desires expedited or daily transcripts should advise the Chief Hearing Reporter by telephone at (415) 703-2288 no later than three days prior to the first day of hearings.

Message 779 of 1299

Utilities, Electric: Deregulation: California Utility Woes Attract

Sender	miyung.buster@enron.com
Recipients	['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com']
File	dasovich-j/notes_inbox/737.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 09/29/2000 05:46 PM

djcustomclips@djinteractive.com 09/27/2000 02:30 PM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: California Utility Woes Attract National Attention

California Utility Woes Attract National Attention UTILITY BUSINESS STAFF ? 09/30/2000 Utility Business Copyright 2000 by Intertec Publishing Corporation, a PRIMEDIA Company. All rights reserved.

California is fast becoming the symbol for problems that can develop when the electric utility industry is deregulated.

Since becoming the first state to deregulate its retail market, California has had several power shortages this summer in which consumers were hit with skyrocketing electric rates. In San Diego, rates doubled and even quadrupled in the last two months. There's so much public backlash that members of Congress from California will hold hearings this month to examine the problem.

Trade groups that represent the utility companies and public power organizations say deregulation is not at fault, but rather the specific way in which California opened its markets without accounting for supply and demand. They say there's not enough power generation to meet demand.

The state hasn't built any power plants for at least 10 years, in large part because of the resistance utilities face from environmentalists concerned about siting locations.

The National Energy Marketers Association, which represents wholesale and retail energy marketers, warned that suggestions about placing price caps for wholesale power markets would backfire. Instead, the group says Congress and states should eliminate regulations that harm competition in wholesale and retail power markets.

The group says the problem has been exacerbated by policies that increase the risk to build new power plants and a lack of uniformity for operating procedures and other requirements.

California's utility problems have also become an issue in the presidential campaign. Green Party candidate Ralph Nader has called on the state legislature and Gov. Gray Davis to pass a rate rollback law that doesn't include a balloon payment to compensate utilities for the money they would lose during a rate decrease.

"Electricity deregulation really brings about a collision of interests," Nader said. "It pits the interests of consumers - who are often unorganized and lack power against the interests of suppliers who are usually very organized, powerful and have a lot of money behind them. It shouldn't be that way."

Energy Issues Divide Bush, Gore

For the first time in 20 years, energy issues could emerge as a major issue in the presidential campaign. Both major candidates are trying to use the issue to their advantage.

The Democrats argue that Texas Gov. George W. Bush and running mate Dick Cheney - who are well-known figures in the oil industry - are in the back pockets of oil companies that have lobbied to drill on more public lands.

Republicans have criticized Vice President Gore for failing to develop a plan to address the country's long-term energy needs. The Republicans say that Gore and his running mate Joseph Lieberman are more concerned about winning the support of environmentalists than they are in developing an energy policy.

Gore and Lieberman support the development of alternative energy sources and tax credits for energy-efficient vehicles. They also have promised to block energy companies from drilling for oil or natural gas in the Arctic National Wildlife Refuge in Alaska or along the coasts of California and Florida.

Bush and Cheney favor increased domestic oil production to reduce U.S. dependence on foreign oil. Bush says he backs the moratorium on new drilling in Florida and California, but supports oil exploration in the Arctic refuge.

Both Gore and Bush support new federal regulations that would require lower sulfur levels in gasoline and cleaner engines in cars.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 99

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Message 780 of 1299

RE: DA Suspended, but NOT retroactively

Sender	jeff.dasovich@enron.com
Recipients	['Susan; Steve Huhman; Roger Pelote;=', 'Vicki Sandler; Tamara Johnson; Mara', 'douglass@energyattorney.com']
File	dasovich-j/sent_items/185.

Dan. You might want to amend. The decision puts everyone on notice that t= he Commission is going to consider taking it back to July 1---no info on wh= at the decision process would be. =20 Best, Jeff

-----Original Message-----

From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Thursday, September 20, 2001 2:34 PM To: ARM Cc: Vicki Sandler; Tamara Johnson; Mara, Susan; Steve Huhman; Roger Pelote;= Rob Nichol; Randy Hickok; Nam Nguyen; Jim Crossen; Dasovich, Jeff; Janie M= ollon; Jack Pigott; Greg Blue; George Vaughn; Gary Ackerman; Ed Cazalet; De= nice Cazalet Purdum; Curtis Kebler; Curt Hatton; Corby Gardiner; Charles Mi= essner; Carolyn Baker; Bill Ross; Karen Shea; Max Bulk Subject: DA Suspended, but NOT retroactively

The Commission has just voted 3-2 to approve the draft ALJ Barnett decision= , modified to be prospective only. There is NO retroactive suspension. =20

Carl Wood introduced the ALJ's draft decision, with a diatribe against dire= ct access. He said that DA is a subsidy from less attractive customers to = large customers and an example of the saying that, "big dogs eat first and = big dogs eat best." He added that most comments advocated delay of suspens= ion and no retroactivity. He said he "finds it hard to consider these comm= ents to be anything but misleading and disingenuous." He added that, "Smal= l consumers effectively have no options." He said retroactivity will be th= e subject of further review, although it was not clear what this meant. Wi= thin 14 days, the UDCs must inform the Energy Division of steps taken not t= o accept DASRs for contracts entered into after 9/20/01. He said that dire= ct access is half of the failed deregulation process; the other half was op= ening ourselves up to the erratic wholesale market. He said that supporter= s of DA engage in "hollow rhetoric." The market has failed in the state, a= nd, "We need to put an end to the lack of social responsibility in the elec= tric market."

He concluded that several commenters had indicated that direct access was a= way for making green power available to residential customers. He respond= ed that this just means other customers are getting more dirty coal-fired p= ower. He concluded that advocates of direct access make a "fraudulent clai= m of customer choice." <?xml:namespace prefix =3D o ns =3D "urn:schemas-mic= rosoft-com:office:office" />

Commissioner Bilas then spoke for his alternate, responding to Wood. He sa= id he had learned how to count, and he can count to three. He then briefl= y summarized his alternate. First, he expressed disappointment in the Sacra= mento

process and the fact that they had not yet done something to rescue direct access. Second, he indicated his view of DA was a lot different from that of other people. He said he had always opposed the AB 1890 provision that instituted the UDC buy-sell arrangement, saying that it eliminated the largest customers from direct access. Commissioner Duque then spoke briefly to indicate his support for the Bilas alternate draft decision and his strong support for direct access.=20

Commissioner Brown said first, "In the weight of these sad times we must obey. We are paying the price of the severe energy crisis which occurred last year and the extraordinary means that were used to resolve it." In an ordinary market, he thinks DA is good, but there is no way it can coexist with the State's \$22 billion worth of bonds. Therefore, there is no question that it has to be suspended. "We probably should have done so months ago, in order to avoid a last-minute stampede." There is an inequity between customers that have moved to opt for direct access and those who have not. But sometimes "you don't have a lot of good choices, and this is one of those times." "If future legislation comes forward, and we hope that it would, the Commission will attempt to revise this action. =20

President Lynch noted the State Senate leadership has written asking for a study to be delivered by 1/1/02 as to how DA can be maintained without bias to ratepayers and she supported this action.=20

Bilas and Duque indicated they will both file dissents.=20

In conclusion, we have prevailed in our opposition to retroactive direct access suspension. We now need to consider whether we want to contest the suspension itself, on legal/procedural grounds.

Dan =20 Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 781 of 1299

Utilities, Electric: Deregulation: Temecula, Calif., Forms

Sender	miyung.buster@enron.com
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File	dasovich-j/notes_inbox/878.

----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/09/2000 11:12 AM

djcustomclips@djinteractive.com 10/07/2000 01:19 AM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: Temecula, Calif., Forms Committee to Study Electric ...

Temecula, Calif., Forms Committee to Study Electric Deregulation Dave Downey ? 10/06/2000 KRTBN Knight-Ridder Tribune Business News: North County Times - Escondido, California Copyright (C) 2000 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

TEMECULA, Calif.--Shocked by San Diego County's experience with skyrocketing electric rates this past summer, the City Council has formed a committee to study ways of shielding Temecula residents from similar jolts when the deregulation wave washes into Riverside County in a couple of years.

The council appointed colleagues Jeff Comerchero and Mike Naggar to serve on the electric needs committee, scheduled to hold its first meeting later this month.

"Deregulation is something that is supposed to be friendly to customers," said Mayor Jeff Stone.

It turned out to be anything but these past few months as temperatures soared, sending demand for electricity to power air conditioners and monthly electric bills for neighbors to the south through the roof. The rest of the state watched in amazement as the 1.2 million customers of San Diego Gas&Electric sweated through a long, hot summer, serving essentially as California's guinea pigs in the statewide experiment with electric deregulation. They were the first to feel the

effects of wildly fluctuating wholesale rates passed directly on to customers.

"We're concerned that deregulation may have that sort of effect on Temecula and our residents, and we would like to try to avoid Temecula residents getting a double or triple bump on their bills," Naggar said.

"The electric deregulation took San Diego officials by surprise," he said. "They were asleep. We now know what can happen, and we don't want to be caught asleep."

One of the things the committee will look into is whether it would make sense for Temecula to try to contract with an electric provider to bring in relatively cheap power for its 54,000 residents. The area is served by Southern California Edison.

San Marcos and Chula Vista have held talks with the Enron Corp. about the possibility of providing power to their residents to hold down rates. Those cities are studying the experience of Palm Springs, which in 1997 contracted with Portland Gas and Electric to provide residents with a flat rate for electricity for five years.

Whether such an arrangement would work for Temecula is anyone's guess, Naggar said.

"If it turns out we can't do anything, at least we've gotten everybody's attention," he said.

Naggar said the council has yet to form a committee charged with monitoring San Diego Gas&Electric's proposal to string new lines across huge metal towers through Southwest County, to relieve San Diego's electric rate explosion. Cities and communities throughout Southwest County have rallied against the project, saying they don't want the visual blight and perceived health threat from having fat power lines buzzing 150 feet overhead.

The San Diego-based utility is expected to name a preferred route soon.

"I get about five or six e-mails a day on the preferred route subject," Naggar said. "It is a hot, hot, hot issue. But there is nothing for us to do until they make a move. If they decide to go down the middle of Temecula, I can assure you we'll make a move. If they decide to go through the (Santa Rosa) Plateau, I can assure you we'll discuss it."

Temecula council members have been unanimously opposed to bringing new power lines through, or near, the city since the project was unveiled about two months ago. And, in September, City Manager Shawn Nelson sent off a letter to the utility expressing the city's opposition to routes through the pristine hills of De Luz to the west and the verdant Wine Country to the east as well.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 99

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Message 782 of 1299

Re: Core/Non-Core - California

Sender	kevin.keeney@enron.com
Recipients	['Lamar Frazier/HOU/EES@EES', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/27857.

Jeff,

Marty Sunde asked me to get ahold of you as soon as possible to discuss likely exit fee scenarios. Could we talk today?

Thanks,

Kevin Keeney 713-345-3724

----- Forwarded by Kevin Keeney/HOU/EES on 06/15/2001 08:24

AM -----

Enron Energy Services

From: Marty Sunde 06/14/2001 08:05 PM Phone No: 713-853-7797

To: Kevin Keeney/HOU/EES@EES cc: Lamar Frazier/HOU/EES@EES Subject: Re: Core/Non-Core - California

Kevin, You may want to connect with Jeff Dasovich re: his belief on the three most likely alternatives for the exit fee issue and the probabilities of each. Mike Day, Dasovich will have the most current info. Lets see if we can't get this info quickly.

Thanks ----- Forwarded by Marty Sunde/HOU/EES on 06/14/2001 08:04 PM ----- From: Harry Kingerski@ENRON on 06/12/2001 11:09 AM To: Marty Sunde/HOU/EES@EES cc: Dennis Benevides/HOU/EES@EES, James D Steffes/NA/Enron@ENRON, Kevin Keeney/HOU/EES@EES, Lamar Frazier/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Jeremy Blachman/HOU/EES@EES, Richard Shapiro/NA/Enron@Enron Subject: Re: Core/Non-Core - California

Marty - the latest -

2 Direct Access bills (Bowen, Kelly) are still on the table. Have not changed much since my earlier e-mail to you, except that Bowen bill now includes a fee to the alternate provider when a customer is "involuntarily returned" to the utility. Language is attached.

- SB 27xx - mockup.doc

Right now, this legislation is awaiting the outcome of negotiations involving SCE and other parties (Jeff Dasovich is our rep). Speaker Hertzberg and Senator Burton both have endorsed these negotiations and promised to support agreements the parties reach. Jeff tells me this morning they are getting close to agreement on core/non-core and direct access issues but there are still major stumbling blocks, mostly surrounding the going forward DWR costs and contracts, and the issuance of bonds to pay for them. The bond guys see direct access as possible undermining the bonds. If or once agreement is reached, the expectation is that enabling legislation would be crafted that would apply California-wide.

The general structure in the SCE discussion is this - By Jan 1, '03, 500 kW+ customers decide to go to market or stay with utility for a long (5 yrs+) period. Re-entry from market would be with up to 12 month notice and could require customer to pay spot market price under utility default. 20-500 kw customers would have voluntary direct access. Under 20 kw customers would have green-only voluntary direct access. Recovery for past undercollections is being negotiated, but will likely require large customers (20 kw+) to pay a disproportionate share of the costs.

This may be less than definitive, but as usual, the situation is fluid. Marty and Jeremy, are you available for a Wednesday morning call with Jeff Dasovich?

Also, just in case you didn't hear, the Commission is scheduled to vote on Thursday the 14th on an order that would suspend direct access under the AB1x. The expectation is that the vote will be delayed. Best information says there are not enough votes to approve direct access suspension.

Marty Sunde@EES 06/12/2001 09:29 AM

To: Harry Kingerski/NA/Enron@Enron cc: James D Steffes/NA/Enron@Enron, Kevin Keeney/HOU/EES@EES, Lamar Frazier/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Dennis Benevides/HOU/EES@EES Subject: Core/Non-Core - California

Harry (or anyone else that might know), Can you help me understand what has gone on in the last week re:

1) definitive view of exit fees and how they will be administered. What is the probability of one proposed approach vs. others?

2) definitive view of core / non core decisions? when are they coming? How might they influence our actions with the existing contracts. Probability of one proposal passing and when? ----- Forwarded by Marty Sunde/HOU/EES on 06/12/2001 09:13 AM -----

David W Delaine 06/11/2001 06:02 PM To: Lamar Frazier/HOU/EES@EES, Marcus Dotson/HOU/EES@EES, Marty Sunde/HOU/EES@EES, Gayle W Muench/HOU/EES@EES, Don Black/HOU/EES@EES, Jeff Richter/HOU/ECT, Sean A Holmes/HOU/EES@EES, James M Wood/HOU/EES@EES, Richard L Zdunkewicz/HOU/EES@EES, Greg Sharp/HOU/EES@EES, Scott Gahn/HOU/EES@EES, Jeremy Blachman/HOU/EES@EES cc: Janet R Dietrich/HOU/EES@EES Subject: Core/Non-Core - California

Guys, I assume that we are managing all new and old California contracts with this potential issue in mind. This plus the exit fees could be a significant issue. Let me know if we need a broader discussion.

Regards Delaine

Message 783 of 1299

Congressional Hearing Schedule/State Senate Hearing Rescheduled

Sender jmunoz@mcnallytemple.com

Recipients ['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com']

File dasovich-j/all_documents/10826.

Following is detailed information regarding the Congressional hearing=20 schedule this week.

I have just learned that the State Senate Investigative hearings originally=20 scheduled to begin at10am this Wednesday at the State Capitol has been=20 rescheduled for the 18th. ?

If you hear otherwise please let us know asap.

Below are: =14 ? ?Press Release issued by House Committee outlining hearing schedule a= nd=20 location =14 ?? Media Advisory that outlines hearing participants

Thanks, Jean

--=20 Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

California Public Utilities Commission President to Testify Tuesday;

Press Release: Federal Energy Regulatory Commission Chairman to Testify Wednesday

Witnesses were finalized today for three Government Reform Committee hearin= gs=20 next week on the California energy crisis:

California Public Utilities Commission President Loretta Lynch will testify= =20 Tuesday morning in Sacramento, where the focus will be on actions taken by= =20 state regulators. She will be joined by the President and CEO of the=20 California Independent System Operator, Terry Winter.

Federal Energy Regulatory Commission Chairman Curt Hebert will testify=20 Wednesday in San Jose. He will be followed by senior officials from Pacific= =20 Gas and Electric and Southern California Edison.

Wednesday?s hearing in San Diego will feature testimony from major wholesal= e=20 energy producers, including Reliant Energy and Williams Energy Services.

Times and locations are listed below. For a complete witness list, please s= ee=20 the Committee?s website: www.house.gov/reform.

Schedule: TUESDAY, APRIL 10, 2001 11 a.m. PST

Sacramento Convention Center

1400 J Street - Room #204

WEDNESDAY, April 11, 2001 9:30 a.m. PST

San Jose State University

One Washington Square in Loma Prieta Ballroom

THURSDAY, April 12, 2001 10 a.m. PST

San Diego Board of Supervisors

1600 Pacific Highway- Room #358

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-30-

?Media Advisory:?? Contact: Mark=20 Corallo/ Josie Duckett April 5, 2001 ??? (202)225-5074

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*** Media Advisory***

WASHINGTON, D.C. --- The House Government Reform Committee will hold three= 20 field hearings next week in California to look into the state's energy=20 crisis. The hearings, entitled ?Assessing the California Crisis: How Did We= 20 Get to This Point, and Where Do We Go From Here?y will take place on April = 10=20 in Sacramento, April 11 in San Jose and April 12 in San Diego.

TUESDAY, APRIL 10, 2001 11 a.m. PST

Sacramento Convention Center

1400 J Street - Room #204

Panel One Mr. Ed Yates - Senior Vice President, California League of Food Processors

Mr. Lewis K. Uhler - President, The National Tax Limitation Committee

Mr. Pete Verboom - Glenn County Dairyman

Panel Two

Mr. Kevin Madden- General Counsel, Federal Energy Regulatory Commission

Mrs. Loretta Lynch - President, California Public Utilities Commission

Mr. Terry M. Winter - President and Chief Executive Officer, California=20 Independent System Operator

Mr. Larry Makovich - Senior Director, Cambridge Energy Research Associates

Panel Three

The Honorable J. William MacDonald - Acting Commissioner, Bureau of=20 Reclamation

Mr. Brian Jobson - Principal Power Contract Specialist, Sacramento Municipa= l=20 Utility District

Ms. Becky Dell Sheehan - Principal Power Contract Specialist, California Fa= rm=20 Bureau Federation

Mr. Lewis K. Uhler - President, The National Tax Limitation Committee

WEDNESDAY, April 11, 2001 9:30 a.m. PST

San Jose State University in Loma Prieta Ballroom

One Washington Square

Panel One

The Honorable Curt Hebert - Chairman, Federal Energy Regulatory Commission

Panel Two

Ms. Dede Hapner - Vice President, Regulatory Relations, Pacific Gas and Electric Company

Mr. Robert G. Foster - Senior Vice President of External Affairs, Southern California Edison

Dean N. Vanech - President, Delta Power Company

Mr. Paul E. Desrochers - Director of Fuel Procurement, Thermo Ecotek

THURSDAY, April 12, 2001 10 a.m. PST

San Diego Board of Supervisors Room #358

1600 Pacific Highway

Panel One

Mr. Sam Hardage - President, Woodfin Suite Hotels, LLC

Mr. John Wiederkehr - President, Certified Metal Craft, Inc.

Mr. Douglas Barnhart - President, Douglas E. Barnhart, Inc.

Mark W. Seetin - Vice President Government Affairs, New York Mercantile Exchange

Panel Two

Kevin Madden- General Counsel, Federal Energy Regulatory Commission

Stephen L. Baum - Chairman, President & Chief Executive Officer, Sempra Energy

Mr. Steve Malcolm - President, Williams Energy Services

John Stout - Senior Vice President for Asset Commercialization, Reliant Energy

?

NOTE: Witness List is subject to change ? ?

Message 784 of 1299

RE: Nov. 13 UC summit conference on electricity

Sender	lfried@uclink4.berkeley.edu
Recipients	['jdasovic@enron.com; tim.belden@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/2132.

Thanks Jeff. I really hope that he agrees. I would think Enron would surely want to be represented and to make sure its viewpoints are aired, and I know everyone else feels it is important to learn from this. I just learned that John Fielder, SCE's Senior Vice President for Regulatory Policy and Affairs, is confirmed as a panelist.

We are awaiting word from you on the sponsorship, and won't say anything until you can tell us what.

Best, Lee

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Friday, October 06, 2000 10:10 AM To: Lee S. Friedman Cc: jdasovic@enron.com; tim.belden@enron.com Subject: Re: Nov. 13 UC summit conference on electricity

Lee: I'm not certain that it will be possible to get Skilling, but I'll get back to you soon. Also, I want to manage expectations a bit about the possibility of having Enron stream the conference. Just don't want us to get ahead of ourselves. I'd prefer that it not go out in any announcement at this juncture. Thanks a bunch.

Best, Jeff

"Lee S. Friedman" <lfried@uclink4.ber To: "Tim Belden" <tim.belden@enron.com>, "Jeff Dasovich" <jeff.dasovich@ucsf.edu>
<jdasovic@enron.com> cc: 10/04/2000 05:52 PM Subject: Nov. 13 UC summit conference on electricity

Jeff and Tim,

Tim, I know Jeff knows all about the conference we are organizing and I hope you do as well.

Rob, I and the rest of the conference organizers are wondering if you could help us find out if Jeff Skilling from Enron would be willing to be one of our panelists? He has been an articulate critic of the current state of our electricity markets, and we definitely would like the genco perspective represented.

Naturally we are hoping to get a quick answer because our publicity about the conference will be going out shortly.

A brief description of the conference is appended below. Please let me know if you need any additional information.

Thanks very much for your help and advice. Lee

The summer of San Diego has prompted the School, in collaboration with UC's Energy Institute and Competition Policy Center, to sponsor a high-level summit conference on electricity deregulation. The focus, and the audience, will be national, but heavily informed and influenced by the California crisis. The conference will evaluate (1) the wisdom of deregulation and (2) how the pitfalls encountered so far can be avoided and remedied. The University will facilitate an open, honest and reasoned exchange between executive-level players from various perspectives: industry, regulators, consumers, legislators, academics, and market and system operators.

The format entails two roundtable discussions with six speakers and a moderator. During the panel sessions, the speakers will engage in a debate/dialogue on the current situation in electricity deregulation, where we have come from, what the future holds, and what solutions lie on the horizon. Each speaker will have uninterrupted time to speak, followed by Q&A and discussion. We expect a live audience of about 200, including a large press presence. One sponsor has tentatively offered to provide internet streaming video services. We hope to have a balanced group of sponsors ranging from the American Public Power Association to energy companies.

The speakers are being arranged at this time. We have commitments from: Loretta Lynch (Chair, CPUC), and PJM CEO Phil Harris. We have a preliminary acceptance from Steven Littlechild (England's former primary electricity regulator) and Laura Tyson (former Chair, President's Council of Economic Advisors and National Economic Council, currently Dean, Haas School of Business). We have invited FERC Commissioner Curt Hebert, and U.S. Representative Edward Markey, executive-level managers from several energy companies and state legislators. Former DOJ chief economist Carl Shapiro will be on one of the panels, as will economist Severin Borenstein, Director of UCEI and Professor of Business and Public Policy. Michael Florio from The Utility Reform Network (TURN) will be a consumer advocate on one of the panels. Lee Friedman, economist and Professor of Public Policy, will briefly provide an introduction to the panel discussions with his talk "Lighting the Stage: The Electricity of Deregulation."

A dinner for the panelists and organizers will be hosted at UC's Goldman School of Public Policy following the conference proceedings. We have reserved rooms for our speakers at Berkeley's landmark Claremont Hotel. We can reimburse those speakers who request it for coach airfare expenses and other ordinary local expenses.

For further information, please contact: Lee S. Friedman Professor of Public Policy Goldman School of Public Policy University of California 2607 Hearst Avenue Berkeley, CA 94720-7320 Ph: (510) 642-7513 Fax: (510) 643-9657 email: lfried@uclink4.berkeley.edu

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[IMAGE] CanoScan D660U Flatbed Scanner 600x1200dpi USB By Canon Scanners

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The Commission has opened an investigation, which we are still awaiting some indication about its scope, however it is likely to ask questions about how we can "fix" California's retail markets.

Contained below are some questions that a coalition that we participate in has formulated. I would like to start developing our position relative to those questions (ie. default provider, what product should the utility offer, etc.)

I am happy to take a first stab at responses to the following and circulate for comment, to get things started. In the meantime, if anyone has any thoughts about these questions, it would be appreciated. Thanks.

Mona

----- Forwarded by Mona L Petrochko/SFO/EES on 09/14/2000

05:37 PM -----

"Leslie, John" <jleslie@LUCe.com>@LUCe.com> on 09/07/2000 06:22:56 PM Sent by: "Johnson, Roseann" <RJohnson@LUCe.com> To: "ARM Members (E-mail)" <ARM@phaser.com>, "Leslie, John" <jleslie@LUCe.com> cc: Subject: CPUC I.00-08-002

To The ARM Group:

At today's ARM meeting, the Group members agreed that by next Friday, September 15, each company will develop a position on each of the questions enumerated below. The questions relate to the issues that have been raised in the CPUC's investigation in I.00-08-002. The Group's position on these issues will determine the basis for testimony and other submissions that may be made in that case and elsewhere.

The Group will meet for an all-day session on Friday, September 15 in San Francisco, at the offices of Luce, Forward at 121 Spear Street (Rincom Center 2), Suite 200. The meeting will begin at 9:00 a.m. The telephone number at the office is (415) 356-4600.

The questions (based upon my notes) are as follows:

1. Should default energy supply service be available to all customer classes?
2. Should the default provider be different from the provider of last resort (POLR), and should default service be different from POLR service?
3. Should default service be different for different customer classes (i.e. fixed price vs. spot price)?
4. How should default service be priced?
5. Should the default provider be allowed to offer more than one pricing option?
6. Should the default provider role remain with the utility?
7. If so, should there be rules about how the utility purchases supplies in the wholesale market (i.e. a predetermined portfolio of long- and short-term supplies)?

8. What reasonableness review procedures, if any, should apply to utility purchases? Should a PBR apply to utility procurement?

9. Should the utility bear the risk if purchase costs exceed a certain predetermined standard?

10. If the utility does not perform the default role, how will default service be provided by one or more third parties? Issues to be considered include: bid procedures; term; blocks of customers; more than one default supplier; how to allocate customers between default suppliers; how to deal with new customers; should the default supplier bear the risk for purchase costs that exceed some predetermined standard, or should there be a reasonableness review process; consumer protection standards; qualifications to participate as a default supplier.

11. How should the utility's procurement function be separated from the utility's transmission/distribution function? What costs should be unbundled from all customers' transmission/distribution rates in order to limit the utility to providing truly monopoly services/functions? Are there costs currently treated by the utility as "transmission" costs (e.g. RMR) that should be categorized as "procurement"?

12. Should the utility continue to perform the "gatekeeper" function (DASRs, customer switching, credit review)? If not, how should this function be performed?

13. How can the CPUC guarantee that all ESPs (and default providers) have equal access to the utility's essential monopoly facilities?

14. Should the CPUC establish uniform business standards and uniform operational practices for all utilities, as applied to all ESPs and default providers?

15. Should the CPUC change the marketing affiliate rules if the utility exits the merchant (procurement) function?

Please let me know if I have missed -- or mischaracterized -- any of the agreed up questions. I look forward to seeing you on Friday, September 15 in San Francisco.

-John

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Appeal court ruling on Burton-Hertzberg

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To: cc: Subject: Appeal court ruling on Burton-Hertzberg

Appeals court declines to order energy price caps

Updated: May 29, 2001 - 12:22 p.m. SAN FRANCISCO -- A federal appeals court declined Tuesday to order federal energy regulators to cap wholesale electricity prices.

The decision by a three-judge panel of the 9th U.S. Circuit Court of Appeals came hours before California Gov. Gray Davis was to urge President Bush in Century City to cap wholesale power costs, which have been spiraling out of control.

The panel, in a brief statement, said last week's appeal by state Senate President John Burton and state Assembly Speaker Robert Hertzberg does not warrant "intervention of this court."

The lawmakers, both Democrats, were joined by the city of Oakland in their appeal to the 9th Circuit.

"The citizens of California are suffering immediate irreparable harm as a result of FERC's abrogation of its duty to establish just and reasonable rates for electricity," they wrote to the 9th Circuit, which has jurisdiction over FERC.

The lawmakers said California's looming threat of continued blackouts "are an imminent threat to the health, welfare and safety of every California citizen."

The suit came after more than a year of wholesale power prices reaching historically high levels. In December, prices in California reached \$200 per megawatt hour -- and they have skyrocketed to as much as \$1,900 per megawatt hour during peak times since then.

The Bush administration ardently opposes price caps and President Bush has declined Davis' requests to urge FERC to impose strict caps.

Vice President Dick Cheney, chief architect of the administration's energy plan, has said capping prices would not increase energy supplies or reduce demand.

"We get politicians who want to go out and blame somebody and allege there is some kind of conspiracy ... instead of dealing with the real issues," Cheney has said.

Cheney criticized Davis, a Democrat, for what he called a "harebrained scheme" to use the state's budget surplus to buy power because California's two largest utilities face enormous financial problems.

For the short term, the Bush administration has approved Davis' request to expedite permits for new power plants and has ordered federal facilities in California to reduce energy consumption 10 percent this summer.

Sacramento and the White House appear locked in a high-voltage war of rhetoric over energy policies. There is broad bipartisan dissatisfaction in Sacramento with Washington's response to California's energy crisis -- the result of its own 1996 deregulation rules.

Last month FERC did order a one-year cap on electricity sold into California during power emergencies, when power reserves fall below 7 1/2 percent. The agency did not set a price and also required the state to join a regional transmission organization, which could limit California's ability to control its own power grid.

Davis called the plan a "Trojan horse," and state power regulators dismissed the cap as inadequate, saying it would profit power generators at ratepayers' expense.

In addition, Davis and state lawmakers sharply criticized FERC for considering requiring the state's power grid operator to add a surcharge on power sales to pay generators the money they are owed by the state's two large financially strapped utilities.

The case is *Burton v. Federal Energy Regulatory Commission*, 01-70812.

-- Associated Press

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Sunday's SF Chronicle - Direct access falls victim to crisis

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Greg Lucas' long-awaited Chronicle story about DA ran this weekend ... ENERGY CRUNCH Direct access falls victim to crisis Power-buying plan's future is in doubt Bernadette Tansey, Greg Lucas, Chronicle Staff Writers Sunday, June 24, 2001 ,2001 San Francisco Chronicle URL: <http://www.sfgate.com/cgi-bin/article.cgi?f=/c/a/2001/06/24/MNL67535.DTL> The option to shop around for the best deal on electricity -- one of the cornerstones of California's deregulation plan -- could soon be scrapped. Businesses may lose the right to cut their own deals with private power suppliers, and environmentally conscious consumers could be barred from shifting their business from utilities to renewable energy firms, unless the Legislature acts quickly to save the program. The potential cost savings of so-called direct access to competing electricity providers was the plum that incited big businesses to fight hard for deregulation in 1996. But the program -- although it was not responsible for the soaring rates that piled up state and utility debt -- may be sacrificed in the state's drive to recoup its costs. The fate of the program was thrown into doubt last winter, when skyrocketing wholesale electricity costs collapsed the nascent direct access market, weakened the utilities and caused the state to take over power purchases. Industry has been lobbying hard since then to keep the option open for the future. But the problem for Gov. Gray Davis' administration is that the state needs big industrial consumers to stay on as utility customers to help pay off the \$8 billion it has already spent buying power and the estimated \$43 billion worth of power it has contracted to buy over the next 20 years. Otherwise, the utility customers left behind -- householders and small businesses -- will be stuck with the whole bill. Competing proposals to allow companies to bail out by paying an "exit fee" to cover a share of the cost are working their way through the Legislature. But time is running short, state Treasurer Philip Angelides warned the Legislature and the state Public Utilities Commission this month. The state plans to issue \$12.5 billion in bonds in September for power purchases, and officials say underwriters want to be assured that there is a large enough revenue stream to repay the bonds. Angelides and other state officials urged the Legislature and the PUC to decide by the end of June either to ban direct access or lock in a procedure to charge each departing company for its share of the state power costs. "The hypothetical and theoretical desires for a direct access market and the hypothetical and theoretical desire for a bond sale are now intersecting in reality," said Assemblyman Fred Keeley, D-Boulder Creek (Santa Cruz County). Industry advocates agree that firms should pay a fair share of the electricity purchased on their behalf. But how much -- and how to make that calculation -- is a complex issue they fear will be decided in haste, said Dorothy Rothrock, a lobbyist for the California Manufacturers and Technology Association. "We are reacting to crises, real or man-made, and making decisions in a rush without considering the consequences," Rothrock said. The PUC is set to vote Thursday on a proposed urgency measure to suspend direct access as of July 1. The ban recommended by a PUC administrative law judge would continue as long as the state functions as power buyer for utility customers -- conceivably through the term of state contracts ending in 2020. Lawmakers had authorized the PUC to suspend direct access last winter when the state took over electricity purchasing. But a divided PUC delayed action as legislators worked with industry to salvage the program. Although direct access contracts are still legal until the PUC acts, in effect the program was slammed into suspension by the brutal power price hikes of the past 18 months. Threatened by exposure to rising wholesale electricity rates, virtually all direct access customers have returned to the utilities, where they are protected by the state rate freeze. Even though the right to deal directly with generators has been on the books since 1996, few businesses or householders actually did it. Many of the residential customers who signed on with alternative suppliers did so to support the growth of renewable power like solar and wind energy. At its peak, the program drew about 224,000 households -- about 2.5 percent of the customer base of California's major utilities. About 13 percent of the industrial market contracted for their own power. Industry has until tomorrow to file plans with the PUC to preserve direct access under a proposal by public utilities Commissioner Richard Bilas, a strong supporter of the program. Commissioner Jeff Brown said he favors direct access, but the continuing uncertainty over the form it would take jeopardizes the state's ability to float its bonds. Commissioner Carl Wood, a direct access opponent, said it should be abolished, because it creates a danger that residential and small business customers will be stuck paying for relatively high-cost contracts secured by the state during the energy crisis, while large industries would be free to buy cheap power from the newer, more efficient plants that will be coming online in the next few years. But Wood said even if the PUC suspends the option, the state Legislature could order its reinstatement. Sen. Debra Bowen, D-Marina del Rey, is carrying a bill to do that while requiring the exit fees demanded by Angelides and state finance officials. Without those safeguards, utility revenues would dive into a "death spiral," where rates would keep rising as more companies abandoned the system, Bowen said, giving the remaining customers a deeper incentive to bail. State legislators are set to meet this week to start deciding how California's electricity market should be structured in the future. But deadlines to deal with the state's financial hangover are pushing decisions on direct access. Bowen said it's unlikely he

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Utilities, Electric: Deregulation: Consumer Outrage in California

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Sempra sits on the hot seat as California rides out the effects of its efforts at deregulation.

Wild fires have swept the western United States this year, but they are nothing like the fire storm over energy deregulation that has engulfed San Diego's Sempra Energy. By a quirk of business fate, the 1.2 million customers of Sempra's San Diego Gas&Electric division in July became the first to experience fully deregulated electricity rates in California. Electricity bills instantly doubled and tripled. The expectation was that deregulation would cause prices to drop, not spike. The resultant outcry threatens to derail the state's fledgling deregulation program and shape the future of deregulation nationally. It also situates Sempra squarely on the hot seat at a time when its profits are on the rise.

Does Sempra deserve to be in this position? Like many other deregulated utilities around the nation, Sempra is in the midst of transforming itself from a regulated utility business (SDG&E) to a broad-based energy company that offers a variety of value-added services. Under the direction of Sempra President and Chief Executive Officer Stephen L. Baum, that process has been especially robust. The company has launched a number of domestic and international strategic initiatives designed to accelerate earnings growth by an average of 8 percent to 10 percent annually and generate at least one-third of the earnings from unregulated businesses by 2003.

Baum, who became chairman this month, intends to change the focus of Sempra's overall business to cope with deregulation. He wants to further diversify the company, create a strong retail energy business, pursue selective international investments and capitalize on emerging technologies. "I want the company...to have a large and diverse customer base nationwide and worldwide in which we're moving from an asset-intensive business to a customer- and products- and risk-management-intensive business," says Baum.

So far, the strategy seems to be working - maybe a little too well. Profits soared 34 percent in the second quarter from \$82 million last year to \$110 million this year. One big contributor was the Sempra Energy trading subsidiary, which deals in electricity, natural gas and oil. Its profit soared in the second quarter this year to \$40 million from \$3 million in 1999. So far, so good, but the rosy revenues and profit propelled Sempra's San Diego Gas&Electric to become the first utility in the state to pay off all its bonds floated to pay for "stranded costs." These are expenses (such as past massive nuclear power plant investments) incurred in the previously regulated market that may not be fully recoverable in a competitive market. Those bond payoffs triggered the full force of the free market, since the artificial price caps on electricity prices, which were put into place as a transitional arrangement by the state legislature to make deregulation politically palatable, automatically expired with the bonds. Since California's deregulation law required the state's utilities to sell off their generation businesses and stick to delivering energy, SDG&E now buys its power in an open market through the California Power Exchange. That arrangement tends to favor large businesses that can more easily shop for their electricity supplies. With the bonds paid off, the Sempra division now passes the full cost of that power to its customers (California's other utilities are not expected to reach this point until 2002). And with the demand for power rising in the state while supplies fall short, the cost for Sempra customers is up. Way up. SDG&E is paying as much as 10 times the regular cost for electricity every time a summer heat wave hits.

Through its success, Sempra pushed the door open into a pure, deregulated market nearly two years before anyone in California expected it. What industry executives, politicians, consumer advocates and ratepayers quickly discovered is that

energy demand is rising, there aren't enough power plants to meet demand and prices are skyrocketing. Even with the higher prices, there may not be enough electricity to go around. So during hot spells, rolling one-hour energy blackouts throughout the state became a possibility for the first time since World War II. Sempra claims it's merely following the state's deregulation orders, but consumer advocates are outraged that the parent company (through its trading subsidiary) benefits from energy price volatility. They want some of the company profits to go back to SDGO to lower customer utility bills.

That isn't Sempra's (and the other state utility holding companies') only problem. Bill-burning protests are being organized in downtown San Diego. San Diego Mayor Susan Goldberg wants the state attorney general to probe whether there has been "collusion, price fixing or any other inappropriate behavior in the market price of electricity." The state legislature is being asked to consider reversing or postponing the deregulation effort. Some legislators have launched an effort to roll back utility rates. The architect of the deregulation law is under fire for alleged close ties to the utility companies. State Public Utility Commission member Carl Wood calls deregulation a mistake and accuses unnamed power players of profiteering at the consumer's expense.

Even California Gov. Gray Davis has gotten critical. "Californians are willing to pay their fair share of the cost for a reliable supply of electricity, but I believe the current situation is unjust and totally unacceptable," Davis says. He successfully pushed the Federal Energy Regulatory Commission to investigate wholesale energy prices in the western United States, believing it would lead to short-term federal price controls. The governor also proposed a plan in mid-August to the Public Utility Commission that would average consumers' bills over a 12-month period to make monthly statements predictable. He says deregulation can work, but not until supply and demand come into balance and "until electricity generators act responsibly." It's no wonder Davis wants the feds involved - the state doesn't have much power over power anymore now that deregulation has become state law.

Despite Davis' hopes, a supply balance isn't likely to return to California anytime soon. The state's last major power plant, a nuclear facility at Diablo Canyon, went online 15 years ago. Since then, the state's population has grown by 8 million, and 3.5 million new jobs have been created. Four new plants are under construction, but that isn't enough to meet escalating demand, and the first plant won't come online for a year. Meanwhile, market uncertainty - and increasing calls for reregulation - aren't doing much to attract new power plant investment. Reliant Energy Inc., for example, has backed off a plan to build a plant in Barstow, Calif. Calpine Corp. wants to build a power plant in San Jose, the center of Silicon Valley, but the effort is strongly opposed by local businesses and residents. A 700-megawatt plant proposed for a desert area is mired down in a regulatory morass. However, Duke Energy North Ame

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Utilities, Electric: Deregulation: California Electric Utility

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California Electric Utility Seeks to Recoup Costs from Customers Rick Burnham ? 09/27/2000 KRTBN Knight-Ridder Tribune Business News: The Press-Enterprise - Riverside, California Copyright (C) 2000 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

Southern California Edison is asking state regulators for permission to charge customers for its soaring wholesale electricity costs -- a bill of nearly \$2 billion and growing.

Under the 1996 legislation that deregulated the state's electricity industry, rates are frozen for the residential and small business customers of Southern California Edison and Pacific Gas&Electric until March 31, 2002 or until the utilities pay off their "stranded assets," investments made in nuclear power plants and other obligations.

That has left the utilities to pay the difference between the frozen rate and this summer's skyrocketing market rates.

As of Aug. 31, the difference -- known as an undercollection -- amounts to \$1.97 billion for Edison, the company said Tuesday.

Not all details have been worked out, but Edison will file a request later this week with the state Public Utilities Commission asking for permission to recoup their unpaid electricity costs after the rate freeze ends, said Jim Scalacci, its chief financial officer.

Edison officials couldn't say how much the extra cost would add to the typical Edison residential customer's bill. But if the current \$1.97 billion in undercollections were sought all at once as a rate increase, it would raise rates more than 20 percent, Scilacci said.

"Of course we would not propose that," Scilacci said. "We would span it over a period of time."

Instead, the utility will make another filing to regulators later this year for a "rate stabilization plan" that would include a rate increase and a mechanism to recover its undercollections over a period of time, Scalacci said.

The utility said it also would consider other options -- including a lawsuit -- to recoup the costs.

Sempra Energy, parent of San Diego Gas&Electric, paid off its stranded assets more than a year ago, allowing it to pass through the full cost of electricity to its customers.

That resulted in SDGOaverage monthly residential bills skyrocketing from \$40 to \$68 to \$130 in less than three months this summer. After an outcry from SDGOcustomers, area politicians and consumer groups, the state legislature in August capped SDGOresidential rates to a maximum of \$68 a month.

The deregulated electricity market does not affect customers of municipal utilities, such as those in the cities of Riverside, Colton, Banning and Los Angeles.

Under the deregulation law, the investor-owned utilities are able to recover undercollections from future positive revenues until they recover all stranded costs or the March 31, 2002 deadline.

Edison believes it already has amassed enough credits through the pending sale of power plants and the valuation of its hydroelectric properties to offset its \$1.3 billion in stranded assets.

But so far, the PUC has denied requests from the utilities to regain their uncovered costs after the rate freeze ends. Regulators also have prohibited the utilities from continuing to collect the charge to offset stranded costs.

Pacific Gas&Electric appealed the PUC's denial, but the California Court of Appeal denied its petition for review. The case is being appealed to the state Supreme Court.

Edison believes the PUC -- in refusing to allow the utilities to recoup undercollections past the 2002 deadline -- is misinterpreting California's electricity restructuring law.

"That law placed California electric utility companies at risk for recovery of their stranded costs, but did not place them at risk for recovery of the costs of procuring electricity for customers," Edison said in a filing with the Securities and Exchange Commission.

PUC President Loretta Lynch said she recognized that the utilities are hurting. But Lynch said the ultimate answer isn't to expect consumers to foot the entire bill.

The action by the utilities also appears to presume that California's electricity woes will continue, leaving them no way to recoup their costs in the future, Lynch said.

"The presumption that the market will stay out of whack the next two years is incorrect," Lynch said. "I would hope the federal government will do something (about addressing the wholesale electricity market)," she said.

Lynch said regulators will take a look at the total utility picture -- including the revenue utilities continue to make from generating power. "We'll be asking for the revenue side as well as the expense side," she said.

PUC commissioner Carl Wood, a former Riverside resident, said Tuesday that he thinks it's unreasonable to assume that just because Edison is making the request that it will be approved.

Wood said this summer's higher electricity rates have been caused at least in part by a dysfunctional market and what he calls "unconscionable pricing."

"Edison ought to focus on getting money back from the generators and suppliers ...," Wood said.

Meanwhile, consumer advocates in San Diego and San Francisco requested that candidates for state or federal office sign a Ratepayer Protection Pledge to protect consumers from "unfair and unreasonable electric rates."

The pledge, developed by TURN (The Utility Reform Network), The Foundation for Taxpayer and Consumer Rights and Consumers Union, was mailed to all candidates Tuesday.

"Utility-style deregulation has obviously failed, and lawmakers must act now to prevent the entire state from being thrown into a financial crisis," said Nettie Hoge, executive director of San Francisco-based TURN.

The consumer groups said that if politicians sign the pledge, they commit to oppose any legislation or efforts to force ratepayers to pay Edison, PGOor SDGOretrospectively for this summer's high wholesale energy costs. They also would agree to "not allow for rate increases for PGOor Edison ratepayers during the rate freeze period and beyond until such time as rates are just and reasonable."

TURN and FTCR said they will post a list of all candidates and their position on the pledge on their Web sites (www.turn.org) and (www.consumerwatchdog.org).

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 98

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Utilities, Electric: Deregulation: California Governor Contemplates

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----- Forwarded by Miyung Buster/ENRON_DEVELOPMENT on 10/05/2000 01:04 PM

djcustomclips@djinteractive.com 10/02/2000 11:31 AM Please respond to nobody

To: 86464@WCTOPICS.djnr.com cc: Subject: Utilities, Electric: Deregulation: California Governor Contemplates Bill to Reduce ...

California Governor Contemplates Bill to Reduce Electricity Prices Janet Lavelle ? 09/29/2000 KRTBN Knight-Ridder Tribune Business News: North County Times - Escondido, California Copyright (C) 2000 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

A bill that could give a \$150 million bailout to San Diego Gas & Electric Co.'s 1.2 million customers if they're hit with high electric bills in a couple of years is awaiting Gov. Gray Davis' signature.

Davis has until midnight Saturday to decide the fate of Assembly Bill 1156, the only one of a trio of bills the governor hasn't signed that were designed to cut electricity rates for SDGOCustomers faced with skyrocketing power bills in the summer.

SDGOCustomers saw their electric bills double and sometimes triple between June and August as soaring wholesale electricity rates were passed on to them.

Two years ago, San Diego became the first region in California to fall under a new electricity deregulation law, and the summer's wildly fluctuating wholesale power market was an unanticipated outcome.

Three weeks ago, Davis signed Assembly Bill 265, which capped retail electric rates SDGOcould charge its customers at 6.5 cents per kilowatt hour, retroactive to June 1 and extending to January 2002.

The rate cap rescues SDGOCustomers, at least temporarily, from paying the wholesale price that soared as high as 19 cents per kilowatt hour this summer.

Davis also signed Assembly Bill 970, which shortened the construction permitting process for some new power plants.

The third bill, AB 1156, now on the governor's desk, would set aside \$150 million in state funds to protect SDGOCustomers from high electric bills after the rate cap ends.

The money would be used so ratepayers won't be solely responsible for paying down any debt SDGOincurs if the company has to buy wholesale power at a higher rate than the 6.5 cents it can charge its customers.

The three bills were passed in the final hours of the Legislature's chaotic session and only after long days of deal-making between Democrats and Republicans.

Davis quickly signed the first two bills but set aside AB 1156, which Republican lawmakers had demanded in return for their votes in favor of the rate cap Democrats wanted.

When AB 1156 was written a month ago, the governor told some lawmakers he wouldn't sign it. Since then, Davis has been tight-lipped on the issue.

Only the governor's veto can kill AB 1156, though. It will become law if Davis either signs the bill or leaves it unsigned.

"I don't know what he's going to do, but if he were going to sign it, he would have done it by now because he's signed the other two bills," said Sen. David Kelley, R-Idyllwild. Kelley co-sponsored the bill in the Senate.

Kelley said he suspected the governor is considering vetoing the bill because it would set a precedent for 2003, when Pacific Gas&Electric and Southern California Edison Co. fall under the deregulation law and start charging their customers market electricity rates.

"I haven't heard anything," said Assemblywoman Denise Ducheny, D-National City, the author of the bill.

Ducheny said representatives from Pacific Gas&Electric and Southern California Edison were in the Capitol on Wednesday, and she agreed with Kelley that the governor is probably weighing whether he wants to set a precedent.

"I still think it's right to give people a safety net and assure them the state is willing to help so the rates don't adversely effect the economy," Ducheny said.

"I hope the governor does decide to sign the bill," Sempra Energy President Stephen Baum said Thursday. Sempra Energy is the parent company of SDG&E.

Baum opposes the 6.5-cent cap and said the company will have to borrow money to pay the difference between retail and wholesale prices.

His company estimates a so-called "balancing account" that tracks the cost will reach \$300 million into the red by the end of November and could be \$600 million by January 2002.

Baum blamed the wildly fluctuating wholesale prices on a badly written electrical deregulation law the Legislature unanimously approved in 1996. He said it was reasonable to expect the state to share in the resulting costs.

As he has done repeatedly in the past few weeks, Baum said he regretted not signing long-term contracts with electricity suppliers to lock in lower prices. He said he expects that the Public Utility Commission may force his company to absorb

some of any debt because of its failure to sign a contract.

"I think he'll veto it; it's a dumb law," consumer advocate Michael Shames said. "And the only ones who support it are Semptra and the Republicans."

His organization, Utility Consumers' Action Network, considers the bailout "premature."

No one knows how much money SDGO may owe once the rate cap is lifted, and Shames thinks it won't be much.

"I liken (AB 1156) to getting a check from the insurance company before the estimators come out to calculate the cost of the damage," Shames said.

Shames said SDGO could end up with little owing in its balancing account because some of the expenses will be offset by revenues the company makes selling power from San Onofre Nuclear Generating Station.

Reliant Energy has offered SDGO a two-year contract to buy electricity at 5.6 cents, Shames noted.

"If SDGO signed the contract, the balancing account wouldn't grow," he said.

Staff writer Dan McSwain contributed to this story.

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100: 96

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RE: Legislative Report (07/20/2001)

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From the Independent Energy Producer's lobbying firm

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax: (415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/22/2001 11:16 PM -----

"Martinez, Michael" <MRMartinez@manatt.com> 07/20/2001 08:14 PM

To: "Alex Sugaoka (E-mail)" <alex.sugaoka@uaecorp.com>, "Bill Woods (E-mail)" <billw@calpine.com>, "Bob Ellery (E-mail)" <bellery@spi-ind.com>, "Bob Escalante (E-mail)" <rescalante@riobravo-gm.com>, "Bob Gates (E-mail)" <bob.gates@enron.com>, "Carolyn A Baker (E-mail)" <cabaker@duke-energy.com>, "Charles Linthicum (E-mail)" <charles.linthicum@powersrc.com>, "Cody Carter (E-mail)" <cody.carter@williams.com>, "Curt Hatton (E-mail)" <Curt.Hatton@gen.pge.com>, "Curtis Kebler (E-mail)" <curtis_l_kebler@reliantenergy.com>, "David Parquet" <david.parquet@enron.com>, "Dean Gosselin (E-mail)" <dean_gosselin@fpl.com>, "Douglas Kerner (E-mail)" <dkk@eslawfirm.com>, "Duane Nelsen (E-mail)" <dnelsen@gwfpower.com>, "Ed Tomeo (E-mail)" <ed.tomeo@uaecorp.com>, "Eileen Koch (E-mail)" <eileenk@calpine.com>, "Eric Eisenman (E-mail)" <eric.eisenman@gen.pge.com>, "Frank DeRosa (E-mail)" <frank.derosa@gen.pge.com>, "Greg Blue (E-mail)" <gtbl@dynegy.com>, "Hap Boyd (E-mail)" <Hap_Boyd@enron.com>, "Hawks Jack (E-mail)" <jack.hawks@gen.pge.com>, "Jack Pigott (E-mail)" <jackp@calpine.com>, "Jim Willey (E-mail)" <elliotts@earthlink.net>, "Joe Greco (E-mail)" <jgreco@caithnessenergy.com>, "Joe Ronan (E-mail)" <joe@calpine.com>, "John Stout (E-mail)" <john_h_stout@reliantenergy.com>, "Jonathan Weisgall (E-mail)" <jweisgall@aol.com>, "Kate Castillo (E-mail)" <CCastillo@riobravo-gm.com>, "Kelly Lloyd (E-mail)"

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Subject: RE: Legislative Report (07/20/2001)

Dear all,

Attached is this week's legislative report.

This entire week has been focused on devising a "solution" for the energy crisis in addition to negotiating the passage of the state budget. Although the Democratic leadership of the Assembly and the Governor successfully lobbied four Assembly Republican lawmakers to switch sides and vote for the budget on Monday, the four Republicans have refused to vote for five crucial "trailer" bills which are necessary to implement the budget bill. There are approximately 18 trailer bills that must be passed in addition to the budget bill, but 5 have raised concerns for the Republicans: SB 767 Transportation Funding Shift, SB 735 Elimination of School Facility Fee Housing Programs, SB 1041 Omnibus Health Trailer Bill, AB 144 Public Social Services and SB 79 Omnibus Social Services Trailer bill. Senate President pro Tempore John Burton has stated that they will not vote on the budget bill in the Senate until the trailer bills are approved by the Assembly. As of 7:00 p.m. tonight, there is no budget deal.

Meanwhile, on the energy front, the four proposals we have been discussing all week -- SB 18xx (Burton), SB 78xx (Polanco), AB 82xx (Keeley) and AB 83xx (Wright) -- are still "in play" legislatively this evening, even though the governor told the Dow Jones Newswire earlier today that the proposals are not acceptable to him in their current form and encouraged the Assembly and Senate to stay in session (despite the scheduled summer break) until a bill acceptable to him could be agreed upon by the two houses and sent to him for signature:

* SB 78xx (Polanco) Electric Utility Rate Stabilization Act of 2001 passed out of the full Senate on Friday with 22 AYES and 17 NOES. The originally introduced version of SB 78xx reflected the terms of the original Memorandum of Understanding ("MOU") negotiated between Governor Davis and Southern California Edison ("Edison"). It was recently amended to reflect Senator Sher's proposed "Plan B" of the MOU -- a version of the MOU opposed by Edison on the grounds that the bill would not leave Edison creditworthy. It was heard in the Senate Energy, Utilities and Communications Committee on Wednesday where it failed on a 4 AYES and 3 NOES vote. Reconsideration was granted, however, and the bill passed out of the committee with 6 AYES and 2 NOES on Thursday morning. The authors took up amendments such as striking the urgency clause, changing the rate component from 125 KWs to 500 KWs, placing conservation lands into land trusts and deleting Section 399.26 (which insulated Edison International from certain claims) during the Thursday hearing. SB 78xx was then passed out of the Senate Appropriations Committee on Thursday with 7 AYES and 3 NOES.

* SB 18xx (Burton) Department of Water Resources: electricity: bond financing order passed out of the full Senate on Friday with 35 AYES and 2 NOES, making it possible for DWR to issue bonds at a lower, cheaper rate than allotted in AB 1x (Keeley) assuming the Assembly concurs and the bill is signed by Governor Davis. The bill also prohibits any additional charges such as consultants and ad campaigns unless approved by the Legislature and requires certain "sunshine" provisions for greater scrutiny of contracts entered to by the DWR. We understand that J.P. Morgan and Lehman Brothers -- the firms working with State Treasurer Angelides on the bond offering -- have advised the governor's office that SB 18xx could delay the issuance of the bonds indefinitely for a variety of reasons, so it is unclear whether this bill will ever be signed. The bill was heard by the Senate Energy, Utilities and Communications Committee on Thursday where it passed

with a 10 AYES and 0 NOES vote. It next must be heard in the Assembly.

* AB 82xx (Keeley) Electric Utility Rate Stabilization Act of 2001 passed out of Assembly Energy Costs and Availability Committee Wednesday evening on a 11 AYES and 9 NOES vote. It was then heard later the same evening by the Assembly Appropriations Committee, where it was passed on a 11 AYES and 6 NOES vote. This is the "compromise" bill we have been discussing all week authored by Speaker Hertzberg and Assembly Member Fred Keeley. The bill continues to be a work in progress as we write this report, with significant amendments being considered and awaiting a vote by the full Assembly, possibly later this evening. The current version of the bill provides for limited

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CMTA Legislative Weekly - 07/26/01

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Legislative Weekly July 26, 2001 Issue 30, Volume 3 A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

GOVERNOR SIGNS BUDGET The 2001-02 Budget passed by the Legislature was signed by the Governor this afternoon, July 26. The amount of the total Budget is approximately \$102 billion, of which, about \$79 billion is the general fund, the balance is special funds. The bulk of General Fund spending is allocated approximately as follows: \$33 billion K-12 Education \$22 billion Health and Human Services \$10 billion Higher Education \$5 billion Youth and Adult Correctional

The balance is spent on expenses attributable to programs relating to business, transportation and housing, state and consumer services, environmental protection, to the courts and to tax relief. In addition, Health and Human Services receive the largest portion of special funds. Tax relief, in the version passed by the Legislature, was very insignificant, the lion's share was \$75 million for assistance to low income seniors and disabled persons. A total of about \$39 million was to go to sales/use tax exemptions for purchases of: liquefied petroleum used for residential or harvesting use (6.9 million) diesel fuel used for agriculture or food processing (11.4 million) farming equipment (18.4 million) timber equipment (1.7 million) racehorse breeding stock (1.3 million)

In order to pass the budget legislation, the Legislature also made a deal whereby a Constitutional amendment will be sent to the voters regarding permanent allocation of a portion of gasoline sales tax revenues to transportation purposes. They also agreed to suspend a % of the general sales tax in any year (as of 2002) in which the General Fund reserve is determined to exceed 3% (existing law sets 4% as the trigger). See CMTA's Press Release on the Budget: <http://www.cmta.net/press/072601budget.shtml>

SCE BAIL-OUT UPDATE The latest Assembly version of the proposed Southern California Edison (SCE) bail-out legislation was revealed this week in proposed amendments to ABX2 82 (Keeley D-Boulder Creek) and SBX2 78 (Sher D-Stanford). CMTA opposes this package as unfairly shifting the cost of SCE debt onto business. In addition, direct access options may be severely limited as the Department of Water Resources (DWR) continues to enter into long term contracts for supply and the utilities may construct new generation. The bills may be heard after August 20, or earlier on the call of the Speaker. CMTA urges you to contact legislators about the impact of high energy prices on your business and concern about taking on any more costs. Elements of the package: SCE Debt Payment: Total \$3.9 billion debt allocated as follows: \$2.5 billion to be collected, 20% from small and 80% from large customers. (The demand level division between small and large is yet to be determined.) \$1 billion is left for SCE to recover from large generators. \$400 million tax refund from SCE parent. No transmission system purchase or option. Direct Access: Allowed without payment of exit fees after January 1, 2002 so long as there is more demand for power than can be served by SCE native generation and DWR contracts. Green power deals allowed for small residential and commercial customers immediately. Ratepayer Benefit Account: Positive balances in the account that includes refunds ordered by FERC, litigation proceeds, and DWR Power fund revenues would go to customers in refunds in proportion to the March, 2001 CPUC rate increase. Renewable Portfolio Standard: Sets a target of 20% renewable power in 2010 through requirements to purchase renewable power for

resale. SCE Financials: CPUC cannot lower SCE rate of return before 2006. SCE may be required by the CPUC to construct new generation under cost-based ratemaking.

CRIMINAL PENALTIES ON ENERGY PRODUCERS CMTA and other interested parties met with staff from the offices of Assemblymember Dennis Cardoza and Lieutenant Governor Cruz Bustamante to discuss onerous provisions in ABX2 65 (Cardoza D-Merced) that would impose severe criminal penalties on energy producers. Amendments taken in the Assembly Appropriations Committee on July 19 delete references to petroleum products, coal and coal products, and limit the bill to apply to electricity and natural gas. While no specific agreement was reached, the staff indicated that the author would consider amending the measure to more narrowly focus the penalty provisions of the bill. ABX2 65 passed (11-5) from the Assembly Appropriations Committee on July 11, and will be taken up on the Assembly Floor when the Legislature reconvenes from its Summer Recess.

OVERPAYMENT REFUNDS TO PAY FOR TRANSMISSION LINE UPGRADES Assemblymember Sarah Reyes (D-Fresno) has amended her ABX2 78 to use any overpayment refunds ordered by the Federal Energy Regulatory Commission (FERC) for payment of principal and interest on bonds, to upgrade electricity transmission lines and to reimburse ratepayers. CMTA and the California Chamber of Commerce opposed the measure in the Assembly Energy, Costs and Availability Committee on July 17, asserting that 100 percent of the refunds should proportionately be returned to the ratepayers who have shouldered the burden of elevated energy prices. As introduced, ABX2 78 required 50 percent of the overpayment to be returned to ratepayers, and 50 percent to be deposited into the General Fund. ABX2 78 passed (15-1) to the Assembly Appropriations Committee.

EXIT FEES ON NONCORE GAS CUSTOMERS CMTA and other business groups are working with Assemblymember Pescetti (R-Rancho Cordova) during the Legislature's Summer Recess to amend his ABX2 23 which imposes exit fees on noncore gas customers. The measure also expedites the review process for approval of gas facilities, and requires pipelines within the state to meet the test that every customer would expect to be curtailed not more than once every ten years, which increases the current standard of once every five years.

INITIATIVE TO LOWER NATURAL GAS PRICES CLEARED FOR SIGNATURE GATHERING A ballot initiative to expand the entities that can buy and sell natural gas has been approved for signature gathering by the Secretary of State. The measure would allow cities, counties, municipal utilities and irrigation districts to buy and sell natural gas and be exempt from the oversight of the California Public Utilities Commission. Assemblyman Dennis Cardoza (D-Merced) is the sponsor of the initiative. Supporters expect that if passed, the measure would increase competition and lower gas and electricity prices for consumers. The sponsors need to collect the signatures of 670,816 registered voters by October 26, 2001 to qualify for the March 2002 ballot. This may be the first of several initiatives for the 2002 election seeking to address the state's energy crisis. According to a public opinion poll recently released by the Public Policy Institute of California, residents by a two-to-one margin (65%) say questions of how to address the electricity crisis should be decided, not by the legislature and governor, but by voters through state ballot initiatives in 2002.

FED-OSHA HOLDS PUBLIC FORUM ON ERGONOMICS AT STANFORD UNIVERSITY The Department of Labor held the third and final public forum on ergonomics at Stanford University in Palo Alto on July 24. Following the repeal of the federal Occupational Safety and Health Act (OSHA) ergonomic rule by Congress, Secretary of Labor, Elaine Chao promised that public forums would be held in several locations to explore the issue of developing an ergonomic standard. The forum follows a major victor

Message 798 of 1299

RE: Memorial Day Update

Sender	jeff.dasovich@enron.com
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File	dasovich-j/all_documents/12530.

You did an absolutely fabulous job on Sunday. It was a great time, the food was extraordinary, and the wine was better still. Thanks so much for it all. You're very sweet.

Almost makes any more engagements superfluous, don't you think. (kidding!)

Don't forget to water the tomatoes!

Best, Jeff

Nancy Sellers <Nancy.Sellers@RobertMondavi.com> 05/15/2001 11:27 AM

To: Nancy Sellers <Nancy.Sellers@RobertMondavi.com>, "Lynne Robertson" <Lynner@mcn.org>, "Laura Whiting" <whiting@sonic.net>, "John Whiting" <johnw@fsgllc.com>, "Lisanne and Ken Jensen" <ljensen@westcoastweathervanes.com>, "Celise" <celise_clevenger@hotmail.com>, "Eldon Sellers" <Eldon@direcpc.com>, "Cristina Greenway Shea" <cgreenway@brobeck.com>, "Chris Shea" <cshea@marin.org>, "Carter" <carterhachman@worldnet.att.net>, "Cameron" <cameron@perfect.com>, "Jeff Dasovich" <Jeff_Dasovich@enron.com>, "Prentice @ Berkeley" <PSellers@haas.berkeley.edu>, "Prentice Sellers" <PSellers@pacbell.net>, "Scott Laughlin" <scottwl@hotmail.com>, "Colleen Silva" <Csilva@jeiusa.com> cc: Subject: RE: Memorial Day Update

2 more celebratory items I forgot - well actually, I forgot one and did not know about the other...

#1 - Jeff Dasovitch, Scott Laughlin, Cameron Sellers, Nancy Sellers, and Prentice Sellers - are all SMOKE FREE!! Now that is something to celebrate!!

and - - #2 - drum roll drum roll drum roll DRUM ROLL DRUM ROLL

On Saturday, May 12, Mr. Scott Warner Laughlin asked Ms. Cameron Smith Sellers to marry him. And she said.....YES!!!! Isn't that just the most wonderful news!!!!!! We are all so happy and excited!

OK - now for a wine tasting update. Every "unit" should bring 2 bottles of each wine (1 won't make it with this large a crowd). It does not have to be from your designated local area (LizAnne was making noises about the Sonoma/Napa/Santa Cruz disparity) - it can just be something you think is yummy.

Saturday night let's make it Pinot Noir and Sunday Chardonnay, since no one had any burning favorites!

Chris and Cristina have a family reunion that they have to attend - but they promise that the THREE of them will be with us next year! We will really miss you guys!

Anything else?

-----Original Message----- From: Nancy Sellers Sent: Saturday, May 05, 2001 10:00 AM To: 'Lynne Robertson'; 'Laura Whiting'; 'John Whiting'; 'Lisanne and Ken Jensen'; 'Celise'; 'Eldon Sellers'; 'Cristina Greenway Shea'; 'Chris Shea'; 'Carter'; Cameron; Jeff Dasovich; Prentice @ Berkeley; Prentice Sellers; Scott Laughlin Subject: Memorial Day I hope you are all making plans to meet at the dome - we are so excited to see you all and have some fun! Bring a bottle of bubbly (sparkling cider) because we have some special things to celebrate: * May 20 - Prentice graduates from Haas with her MBA * May 26 - Laura's birthday * John's new job * and...drum roll... * Cristina is going to have a baby!!! (November - good Scorpio month!) Please feel free to submit other celebratory items!! There is one major problem. Try as we might, we have not been able to get the deck finished. Everything is done (I think) except the railing. That means there is a definite safety hazard. Eldon is going to keep trying to get someone to finish it up but I am not too hopeful. That means that the deck is fine for: * Sleeping * Sitting * Reading * Chatting * Eating/Cooking * Moderate Alcohol consumption IT IS NOT FINE FOR: * Dancing (Andrew) * Running (Scotty) * Manhattan Projects (Teddy) * Heavy duty alcohol consumption (Chris) I have a couple of requests: #1 - I think we should start having an annual blind wine tasting. A white on Saturday and a red on Sunday - if anyone has a varietal that they want to start with - let me know. Each "family unit" should bring a bottle of the white and red varietal and we will hold a blind tasting. What do you think? It would be especially fun if the wines were typical of your geographical area and we could have a really diverse sampling. If you want to use wine glasses you would have to bring your own. I'll have plastic ones available. #2 - I have a special request for the ab hunters. It would be so great if we could have the ab feast for dinner on Sunday night instead of as appetizers on Saturday. That would save one whole meal of cooking and we could do a nice salad, garlic bread, etc. I realize that we would have to improvise if -- God forbid -- the ab was not to be found - but we could chance it! Let me know about any other ideas you have out there... Don't forget your baseball mitts! Nancy (707) 251-4870 (phone) (707) 265-5446 (fax) "Plus je bois, mieux je chante"

Message 799 of 1299

IEP/Press Availability Tele-conference 4/26 @ 11 am PST

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Contact: Jean Munoz FOR IMMEDIATE RELEASE 916-447-8186
April 26, 2001

=20

ENERGY PRODUCERS? POWER UPDATE=20

SACRAMENTO =01. Jan Smutny-Jones, Executive Director of the Independent Energy Producers Association, will brief members of the media on the latest developments in California's rapidly changing electric market during a tele-conference Thursday, April 26 at 11:00 a.m.

What: Press Availability Tele-conference When: Thursday, April 26, 2001 11 am PST

Call In #: 1-800-374-2393 Conference I.D: Independent Energy Producers (IEP)

Who: Jan Smutny-Jones, Executive Director of the Independent Energy Producers Association

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=20

- Powerful Ideas(readers).pdf

Message 800 of 1299

Commerce Committee Letter

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----- Forwarded by Jeff Dasovich/NA/Enron on 03/30/2001 06:41 PM -----

Jean Munoz <jmunoz@mcnallytemple.com> 03/30/2001 01:31 PM

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FYI, if you haven't already seen this, Congressional Democrats on the Commerce Committee are leading an effort to send the attached letter to President Bush.

Thanks, Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

The Californian Members of the Energy and Commerce Committee, Reps. Waxman, Eshoo, Capps, and Harman would like to encourage the Caucus to sign the attached letter to the President urging the President to intervene at FERC. The letter asks the President to support the Governor's request regarding wholesale electricity sales this summer and to investigate recent allegations of overcharges. March 29, 2001 The Honorable George W. Bush The President The White House Washington, DC Dear Mr. President: We are writing because our constituents and millions of Americans across the West need your intervention at the Federal Energy Regulatory Commission (FERC) in order to address serious problems with the Western energy market. As you know, California has been experiencing an electricity crisis that has resulted in blackouts throughout the state, inconvenienced millions of citizens and businesses, and disrupted the state's and region's economy. Indeed, this crisis seriously threatens to cause long-term damage to the economy of California, the Western region, and perhaps the entire country. The crisis is the result of a dysfunctional energy market where wholesale prices of electricity have spiked exorbitantly. For example, wholesale prices on December 15, 2000, ranged from \$429 per Mwh to \$565 per Mwh, compared to prices from \$12 per Mwh to \$29 per Mwh one year earlier. Wholesale prices have jumped as high as \$1400 per Mwh. In fact, the California Independent System Operator (ISO), the state's power grid operator, has projected that electricity which cost \$7 billion in 1999 will cost \$70 billion this year. These skyrocketing prices can only partly be explained by natural gas price increases and increased energy demand. These exorbitant price spikes have led FERC Commissioner William L. Massey to state on February 8, 2001: These high prices serve only to continue a massive wealth transfer out of the region. Is it worth dragging down an entire regional economy, or perhaps even the national economy, for the theoretical purity of unfettered price signals? I say no. I call on my fellow commissioners to consider a time out now. It's our statutory obligation. . . . FERC's timidity and hands-off approach is eroding consumer confidence and destroying the consensus that heretofore supported a market based approach. The dysfunctional nature of the market has apparently allowed it to be manipulated. The California ISO last week presented FERC with findings of a comprehensive study of pricing data in California's wholesale electricity market over the last 10 months. According to the Los Angeles Times, the ISO's study found "evidence of market manipulation and consistent patterns of bidding far above costs" and that "suppliers commonly offered electricity at twice their costs." The ISO has estimated the cost of the potential overcharges between May 2000 and last month are high as \$6.3 billion. Unfortunately,

FERC actions have fallen far too short. To date, FERC has not aggressively worked to address market manipulations, despite finding last fall that wholesale prices

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TR's State NewsWire 1/31/01 A.M Edition

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Telecommunications Reports presents TR's State NewsWire January 31, 2001 A.M. Edition

STATES WASHINGTON -- Bill could erase price list requirement for competitive carriers MICHIGAN -- Parties discuss municipal rights-of-way fee structures OREGON -- Committee OKs digital signature bill ARKANSAS -- Bill would outline implementation of federal mobile telecom law WASHINGTON -- Lawmaker would give citizens tool against unwanted telemarketers MISSOURI -- Bill would create e-commerce advisory committee VIRGINIA -- Verizon South to implement second phase of expanded local calling

FUTURE OF REGULATION WASHINGTON Bill could erase price list requirement for competitive carriers

The Utilities and Transportation Commission has forwarded a bill (HB 5380) to the Legislature that would give the commission the ability to waive the requirement that competitive carriers file a price list with the WUTC. The commission staff explained to TR that under current law, competitive carriers must file either a tariff or a price list. This bill would give the commission the discretion to determine whether a price list should be filed.

The staff said that if the bill is passed, the commission would follow up with a rulemaking proceeding, which would allow the industry to weigh in on whether to modify or eliminate the price list requirement.

The staff said HB 5380 stems from issues relating to competitive carriers and their pricing. The staff explained that certain carriers have quoted customers one price but charged them a different one. When questioned by the customers, the carriers said the prices being charged were included in a price list on file with the WUTC.

HB 5380 also would ensure that competitive carriers and competitive services are treated equally. Under current law they are treated separately, although both have minimal regulation. For competitive companies, the commission may waive any regulation, but that's not the case for competitive carriers, the staff said. This bill would strike the statutory language governing both competitive carriers and services and would write new language treating the two the same.

HB 5380, which was sponsored by Sen. Betti Sheldon (D., District 23), awaits consideration by the House Economic Development and Transportation Committee.

STATE & LOCAL GOVERNMENT MICHIGAN Parties discuss municipal rights-of-way fee structures

The Public Service Commission is hosting meetings with company and municipal officials to discuss model regulations and fee structures for franchise agreements with city governments. The group held its first meeting Jan. 18, during which it accomplished several organizational tasks. The second meeting tentatively is scheduled for sometime during the second week of January, a Michigan Telecommunications Association representative told TR.

In October 2000 the PSC fined the city of Birmingham \$10,000 for its practices regulating use of the municipal rights-of-way. The PSC fined the city of Rochester \$20,000 for similar violations in December 2000. (12/21/00 a.m.)

INTERNET OREGON Committee OKs digital signature bill

The House Advancing E-Government Committee has approved HB 2040 to require the Department of Administrative Services to adopt rules for digital signature use by state agencies. The Joint Legislative Committee on Information Management and Technology requested HB 2040 on behalf of the Oregon Internet Commission.

HB 2040 awaits consideration on the House floor.

TAXATION ARKANSAS Bill would outline implementation of federal mobile telecom law

Sen. Jim Hill (D., District 5) has introduced SB 309 to allow the director of the Department of Finance and Administration to decide how to implement the federal Mobile Telecommunications Sourcing Act, which was enacted last year. The Act allows only local tax authorities in a customer's "place of primary use" to tax mobile services provided by the customer's home service provider.

SB 309 would help implement the Act by requiring the director of the Department of Finance and Administration to determine how to assign the place of primary use. The director either could provide vendors with a database linking taxing jurisdictions to addresses or ask vendors to use an extended zip code at least nine digits long.

SB 309 also would amend an existing state law pertaining to the levy of gross receipts tax on telecom services. The bill would extend the list of taxable long distance services by adding long distance messages that originate and terminate outside Arkansas made by wireless phone services that are billed to a place of primary use in the state.

SB 309 has been referred to the Senate Committee on Revenue and Tax. Its text is available at <http://www.arkleg.state.ar.us/ftp/root/bills/2001/htm/SB309.pdf>.

CUSTOMER-AFFECTING WASHINGTON Lawmaker would give citizens tool against unwanted telemarketers

Rep. Cheryl Pflug (R., District 5) has introduced a bill to create a no-call list for citizens that don't want to receive telemarketing telephone calls. The state Utilities and Transportation Commission would set up the list. Registration would be free.

HB 1402 awaits consideration by the House Technology, Telecommunications, and Energy Committee.

FUTURE OF REGULATION MISSOURI Bill would create e-commerce advisory committee

Sen. Sarah Steelman (R., District 16) has introduced SB 293 to establish a committee that would advise state agencies on electronic commerce issues. The Advisory Committee for Electronic Commerce would operate within the Department of Economic Development (DED). The director of the DED would chair the new committee and appoint 10 other members. Each member would serve a two-year term.

SB 293 has been referred to the Senate Commerce and Environment Committee. Its full text is available at <http://www.senate.state.mo.us/01info/billtext/intro/SB293.htm>.

Rep. Bill Luetkenhaus (D., District 12) has introduced a similar bill, HB 447, in the House. (1/22/01 2 p.m.) Its text is available at <http://www.house.state.mo.us/bills/01/billtxt/01/intro/01/HB0447I.htm>.

INTERCOMPANY COMPENSATION -- EAS VIRGINIA Verizon South to implement second phase of expanded local calling

The State Corporation Commission has approved the second phase of a plan to expand local calling in several Verizon South, Inc. (formerly GTE South, Inc.) exchanges in the Norfolk area. The exchanges include Boykins, Chuckatuck, Courtland, Crittenden, Dendron, Franklin, Holland, Ivor, Smithfield, Surry, Wakefield, and Windsor.

In August 2000 the SCC approved the first phase of the expanded calling plan for exchanges in several local access and transport areas served by Verizon South and Verizon Virginia, Inc. (formerly Bell Atlantic Virginia, Inc.). The companies' expanded calling plan implements a condition included in the SCC's order approving the Bell Atlantic Corp.-GTE Corp. merger, which created Verizon. (11/30/99 a.m.)

The commission received nearly 50 comments from customers in the affected exchanges, most of them supporting the plan. Because implementation will result in "substantial rate increases" for many customers, the commission ordered Verizon South to issue a notice at explaining "applicable local exchange service options" customers can use to mitigate higher basic service rates. (PUC000204, Joint application of Verizon Virginia Inc., f/k/a Bell Atlantic-Virginia, Inc., and Verizon South Inc., f/k/a GTE South Inc. to expand local calling between various exchanges)

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CMTA Tax: Meeting Thursday to discuss Windfall Profits Tax bills

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 Energy ?????????????? Scott Sadler--Reliant Energy ?????????????? Fred Pownal--Kahl/Pownall Advocates
 ?????????????? Fred Main--California Chamber of Commerce ?????????????? Greg Turner--Cal Tax
 ?????????????? Katie Kaplan--IEP ?????????????? Matt Sutton--AEA ?????????????? CMTA Energy Committee
 ?????????????? CMTA Tax Committee

FROM:?? Carrie-Lee Coke/Pam Ross

RE:????????? Thursday, May 3 meeting at 2:00 pm in the CMTA conference room to discuss Windfall Profits Tax bills

We are scheduling another meeting to discuss the Windfall Profits Tax bills--SBX1 1 (Soto) and ABX1 128
 (Corbett)????????? --for Thursday, May 3 at 2:00 pm here in the CMTA conference rooms.

The purpose of the meeting is for all of us to decide how to coordinate our lobbying effort.

Please RSVP your attendance to Pam Ross at 916-498-3320 or pross@cmta.net.? There is a call in number as follows:
 Access number:? 1-888-727-8686 Conference ID:?? 900 1325# ?

Message 803 of 1299

FW: Legislative Report (06/08/2001)

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Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on
 06/08/2001 04:19 PM -----

"Carol Hudson" <carol@iepa.com> 06/08/2001 02:46 PM Please respond to carol

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Dear all,

*Attached please find this week's legislative report. Most of the action this week centered around the budget conference committee hearing as the deadline to pass the state's budget is next Friday, June 15th. Also, today was the last day for bills to pass out of their house of origin and sent to the other house for legislative hearings. This week's energy highlights include the following: EVENTS: * Governor Davis sends letter to the state PUC President Loretta Lynch, urging that California's petroleum refineries and ancillary facilities be exempt from rotating outages. The basis for the governor's letter is his stated belief that even a brief disruption of electricity for these facilities can shut down production and supply of petroleum products for several weeks. "The availability of petroleum derived transportation fuels is critical to the public health and safety of Californians. Public safety agencies such as law enforcement, emergency medical care responders, and the military all rely on these fuels. Without petroleum fuels, the ability of these essential-use customers to perform their critical functions would be seriously impaired," said Governor Davis. * Governor Davis, along with top executives and business leaders in the state, announce a joint-Declaration on Thursday committed to saving 20 percent in overall electricity consumption. With more than 140 businesses and organizations statewide, this "energy-conservation" coalition sets the following goals among others to reduce energy use: (1) set temperatures for occupied space to 78 degrees from May to October; (2) reduce lighting levels by 25 percent and an additional 25 percent upon the declaration of a Stage II emergency; (3) close blinds and shades when possible; and (4) turn off and unplug all office and kitchen equipment when not in use. * QFs will have to wait until next Wednesday to hear whether or not the state Public Utilities Commission forces utilities to pay 15 percent of back payments to some alternative-energy generators. The PUC postponed their vote to June 13 on a proposal that would allow alternative generators who need the money to continue making electricity to ask for it from PG&E and Edison to remain in business. * The California State Senate Rules Committee, in cooperation with the Senate Select Committee to Investigate Price Manipulation in the Wholesale Energy Market, agrees on Tuesday to issue subpoenas to provide further background information in its investigation into whether generators are illegally profiteering from the state's power crisis. Eight out-of-state generating companies (and perhaps, eventually, the Los Angeles Department of Water and Power and the state Department of Water Resources) stand to receive papers demanding documents on bidding, pricing, and other aspects of power sales in the state. Those companies will be Reliant Energy, Dynegy Energy Services, Inc., Williams Energy, Enron Corp., NRG Energy Inc., Duke Energy, Mirant Inc., and AES Corp. * Governor Davis signs Executive Order D-37-01 on Monday aimed at increasing small business participation in state contracting. This order mandates state agencies to push for an annual 25 percent small business participation level in state contracting and authorizes the Department of General Services (DGS) to streamline the small business certification process, increase the pool of certified small businesses, establish a Prompt Payment Advocate, and implement a state-sponsored Economic Conference and Opportunity Fair focusing on enhancing contracting opportunities for small businesses. LEGISLATION * Property taxation bill -- AB 81 by Assembly Member Carole Migden (D-San Francisco) -- passes out of the full Assembly on Thursday with 43 AYES and 28 NOES. This bill would return the tax assessment authority over electric-generating facilities back to the state Board of Equalization, thereby nullifying "Rule 905." Although the author asserted that her bill will not take away much-needed tax revenue from cities and counties, AB 81 is considered a huge disincentive and unfair tax on current and potential electric generating companies in the state. IEP testified against this bill in committee and will continue to oppose this bill in the Senate. * Assembly Member Cohn (D-Saratoga) gains Assembly approval*

Message 804 of 1299

Re: Bandwidth Trading Structure Meeting

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Calling in on the 2nd should be fine. Sorry that it doesn't work for you to be there in person.

I'm going to be out of the office from about 3:00 this afternoon until 11:00 tomorrow morning, EST. If your meeting happens after 11:00 EST tomorrow, I would like to join by phone. (But don't worry about scheduling around me if it's a problem). Donald is on his way back from South America, and probably isn't available. Scott may be available by phone and probably would be interested in participating.

Maybe the next person we hire should be a full-time schedule coordinator. Thanks for your enduring patience.

Jeff Dasovich Sent by: Jeff Dasovich 10/26/2000 08:21 AM

To: Sue Nord/NA/Enron@Enron cc: Subject: Re: Bandwidth Trading Structure Meeting

So it is the 2nd after all? Thought it might be the first, which I could have made. The 2nd doesn't work---have set up a meeting with ENA to meet with Sempra execs to see if a deal can be done (yeah, right). But since it's that early on the 2nd, I can call in by conference call and attend the first 90 minutes, or so. Will that work?

In other exciting news, going to meet with the lawyers and Bowen either this afternoon or first thing in the morning tomorrow. You want to join? And should I see if Scott and/or Donald want to attend? Just let me know.

Best, Jeff

Sue Nord 10/25/2000 02:15 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Bandwidth Trading Structure Meeting

I hope this works for you.

----- Forwarded by Sue Nord/NA/Enron on 10/25/2000 02:15 PM -----

Wayne Gardner@ENRON COMMUNICATIONS 10/25/2000 01:15 PM

To: Alisa Christensen/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Donald Lassere/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Michelle Hicks/Enron Communications@Enron Communications, Robbi Rossi/Enron Communications@Enron Communications cc: James Ginty/Enron Communications@Enron Communications Subject: Bandwidth Trading Structure Meeting

The Bandwidth Trading Structure meeting will take place at 8:30 am on November 2, 2000, in conference room 4434. I will circulate a meeting agenda no later than October 30.

W. Wayne Gardner Enron Broadband Services 1400 Smith Street Houston, TX 77002-7361 Phone: 713 853 3547 Fax: 713 646 2532

Message 805 of 1299

[Fwd: SF Greater Bay Area Planning Standard]

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File	dasovich-j/all_documents/10819.

Energy Committee and Blackout Busters Participants...please find attached the draft ISO Board memo for a proposed new planning standard for the San Francisco Greater Bay Area. This was forwarded to me by Barbara Barkovich. You may want to review and provide feedback. I will be happy to forward your feedback to Carl and other contacts on the matter. Thanks. Laura

From: "Miller, Jeff (ISO)" <JMiller@caiso.com> To: "Al McCuen" <amccuen@energy.state.ca.us>, "Ali Yari" <yari@sdge.com>, "Barbara Barkovich" <rbarkovich@earthlink.net>, "Barry Flynn" <brflynn@pacbell.net>, "Bud Wegner" <hwegner@sdge.com>, "Carolyn Kehrein" <cmkehrein@ems-ca.com>, "Chi Doan" <chi@water.ca.gov>, "Cliff Rochlin" <crochlin@socalgas.com>, "Dan Wood" <danwooduse@aol.com>, "Dave Korinek" <dkorinek@sdge.com>, "David Marcus" <dmarcus@slip.net>, "Ed Lucero" <elucero@sempra.com>, "Eric Woychik" <estrategy@mindspring.com>, "Frank Rierson" <fgrierson@aol.com>, "Gayatri Schilberg" <gayatri@jbsenergy.com>, "JA Savage" <honest@compuserve.com>, "James A. Ross" <rccstl@cdmnet.com>, "James Leigh-Kendall" <JLeighK@smud.org>, "Jim Filippi" <Jim.Filippi@gen.pge.com>, "Jim McCluskey" <jmccclusk@energy.state.ca.us>, "Karen Griffin" <kgriffin@energy.state.ca.us>, "Karen Lindh" <karen@klindh.com>, "Karen Shea" <kms0@pge.com>, "Kelly Lee" <KCL@cpuc.ca.gov>, "Kishone Patel" <kpatel@sdge.com>, "Les Pereira" <les@ncpa.com>, "Lyle Hill" <lhil@ci.riverside.ca.us>, "Mark Ziering" <maz@cpuc.ca.gov>, "Martin Bauer" <mbauer@ibr2inet.mp.usbr.gov>, "Michael Yeo" <myeo@cpuc.ca.gov>, "Michele Wynne" <mwynne@uoc.com>, "Mo Beshir" <mbeshir@ladwp.com>, "Morteza Sabet" <sabet@wapa.gov>, "Patricia Mayfield" <mayfiepl@sce.com>, "Paul Scheuerman" <pgs@ieee.org>, "Ramchandani, Ramesh" <rxr@cpuc.ca.gov>, "Rebecca Berdahl" <rmbardahl@bpa.gov>, "Rick Buckingham" <rbucking@energy.state.ca.us>, "Robert Jenkins" <rtj1@pge.com>, "Sean Gallagher" <shg@cpuc.ca.gov>, "Steven Kelly" <steven@iepa.com>, "Tim Wu" <ctwu@ladwp.com>, "Tom Flynn" <tflynn@eob.ca.gov>, "Tony Lam" <tonylam@water.ca.gov>, "Tony Velarde" <velardac@sce.com> Cc: "Clyde Loutan" <CLoutan@caiso.com>, "Elena Schmid" <ESchmid@caiso.com>, "ISO Grid Planning" <IMCEAEX-_O=CAISO_OU=CORPORATE_CN=DISTRIBUTION+20LISTS_CN=ISOGRIDPLNG@caiso.co m>, "Kevin Graves" <KGraves@caiso.com>, "Philip Pettingill" <PPettingill@caiso.com>, "Ron Calvert" <RCalvert@caiso.com>, "Ron Daschmans" <RDaschmans@caiso.com>, "Stephanie McCorkle" <SMcCorkle@caiso.com>, "Steve Greenleaf" <SGreenleaf@caiso.com>, "Tracy Bibb" <TBibb@caiso.com>, "Ty Larson" <TLarson@caiso.com>, "Vicken Kasarjian" <VKasarjian@caiso.com> Subject: SF Greater Bay Area Planning Standard Date: Fri, 6 Apr 2001 15:55:03 -0700 Message-ID: <132A7F5BA87AD311AB8200508B7306E1036D8DE3@csifiapp667.wepex.net> MIME-Version: 1.0 Content-Type: multipart/mixed; boundary="====_NextPart_000_0041_01C0C0EB.9F7582E0" X-Mailer: Internet Mail Service (5.5.2650.21) X-MimeOLE: Produced By Microsoft MimeOLE V5.00.2314.1300 X-Mozilla-Status2: 00000000

To: ISO Grid Planning Standards Committee

Attached for your review and comment is the draft ISO Board memo for our proposed new planning standard for the San Francisco Greater Bay Area. This issue is scheduled to go to the ISO Board in late April or early May. Please review this memo and provide me with your comments via e-mail by April 16. Thanks for all of you help on this.

Also attached is a draft agenda for our next meeting which will be on May 3rd at the Sacramento Airport Host Hotel from 10:00 to 3:00. Additional meeting materials will be sent out prior to the meeting. Hope to see you then.

Jeff Miller

<<4-2001 SF Generation Outage Standard #3.doc>> <<Agenda 5-3-01.doc>>

Jeff Miller Regional Transmission Manager California ISO Phone: 916-351-4464 Fax: 916-351-2272 E-Mail jmill@caiso.com

- 4-2001 SF Generation Outage Standard #3.doc - Agenda 5-3-01.doc

Message 806 of 1299

Re: Recommend Oppose of SB 78xx

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'sgovenar@govadv.com', 'hgovenar@govadv.com']
File	dasovich-j/all_documents/28984.

I realize that this note is likely stale, but, FYI, Ms Cassandra's is mistaken. SB 78 ain't silent on DA. It kills it, period.

I sure hope that ARM is seriously opposed to the bill.

Best, Jeff

Susan J Mara 07/20/2001 02:14 PM

To: sgovenar@govadv.com cc: Jeff Dasovich/NA/Enron@Enron Subject: Recommend Oppose of SB 78xx

Aren't we opposing ABXX 78?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/20/2001 12:12 PM -----

Kassandra Gough <kgough@calpine.com> 07/20/2001 12:09 PM

To: "arem@electric.com" <arem@electric.com> cc: Subject: Recommend Oppose of SB 78xx

Hi everyone,

I know that AREM is not opposing SB 78xx (Polanco/Sher) because it is silent on direct access; however, I want to recommend that the position be changed to oppose. I have spoken with Norm and he asked that I send this out for comment. Please look at the bill and specifically Section 13, on Page 35 (see below). I believe that if this bill were to become law direct access in SCE's, PG&E's and SDG&E territories (I believe the section stands alone so it wouldn't matter if PG&E accepted the same deal or not) would be dead. In summary, the bill would essentially allow any IOU to go back into the generation business and require the CPUC to approve rates that are sufficient to cover their reasonable cost of operation, investment and provide for a reasonable rate of return (I don't believe this is cost-based rates). The CPUC is given broad latitude over conducting proceedings, issuing orders or anything else that may be necessary to accomplish the goal of assuring that service provided by IOU's is adequate. Section 13 will kill competition, eliminate direct access and create new stranded costs. And, to add insult to injury the State Power Authority may be their partners in crime. As to the politics of the bill it was just amended to be a majority vote bill. Burton has said it is this bill or nothing. SCE is opposing the bill but there are several lobbyist who think this is all an ambush and SCE would love this bill.

Please comment on my above analysis. I would love to be wrong on this one.

Kasssandra Gough Government and Legislative Manager Calpine SEC. 13. Section 454.10 is added to the Public Utilities Code, to read: 454.10. (a) In order to assure that the service provided by electrical corporations is adequate, the commission may require each electrical corporation that provides distribution service to make direct investments in electric generation facilities whose output is dedicated to serve the customers connected to its distribution grid. (b) After a hearing, the commission shall approve rates sufficient to enable the electrical corporation to recover its reasonable costs of operation, its reasonable investment in the electric generation facilities and a reasonable return on its investment, in accordance with Section 451. (c) An electric corporation may meet the obligation described in this section by entering into projects for electric generation facilities jointly with the California Consumer Power and Conservation Financing Authority. (d) The commission may conduct proceedings, enter orders and undertake such actions as it considers necessary or appropriate to carry out the provisions of this section. <<sb 78xx -Polanco.pdf>>

- sb 78xx -Polanco.pdf

Message 807 of 1299

Energy Issues	
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File	dasovich-j/all_documents/27856.

Please see the following articles:

Sac Bee, Thurs. 6/14: Court dismisses suit alleging gasoline price-fixing

SD Union, Thurs. 6/14: GOP vulnerability in California prompts Bush shift = on=20 power prices

SD Union, Thurs. 6/14: House panel rejects Democratic plan for energy pric= e=20 caps

SD Union, Thurs. 6/14: Plan would allow private energy companies to own gr= id=20 rights

SD Union, Thurs. 6/14: PUC to determine role in handling SoCal Edison deal= =20

SD Union, Thurs. 6/14: Customers feel pain of energy surcharges

SD Union, Thurs. 6/14: Chula Vista to get larger peak-use power plant=20

SD Union, Thurs. 6/14: Duke Energy drops warm-water request

LA Times, Thurs. 6/14: Some try to con Edison=20

LA Times, Thurs. 6/14: Federal energy panel finding itself pushed and pull= ed=20 toward change=20

LA Times, Thurs. 6/14: State objects to power pricing formula=20

SF Chron, Thurs. 6/14: Refineries may keep chugging in outages: PUC looks = to=20 grant blackout exemption=20

SF Chron, Thurs. 6/14: FERC set to extend power caps: Government sources s= ay=20 price controls will be round-the-clock

SF Chron, Thurs. 6/14: Judge orders contract disclosures: State told to=20 release edited versions of energy agreements tomorrow

Court dismisses suit alleging gasoline price-fixing

Updated: June 14, 2001 - 11:35 a.m.=20 SAN FRANCISCO -- The California Supreme Court dismissed a class-action suit= =20 Thursday alleging major oil refineries colluded to gouge consumers for=20 cleaner-burning gasoline.=20

The unanimous court said the suit did not provide enough evidence to suppor= t=20 allegations that nine major oil companies in California conspired to limit= =20 supply and fix prices.=20

In ruling that the case cannot go to trial, Justice Stanley Mosk said that= =20 the 1996 suit presented evidence that the petroleum companies may have=20 possessed the motive, opportunity and means to unlawfully conspire.=20

"But that is all. That is not enough," Mosk wrote for the court.=20

The suit alleged that the state's largest refiners decided to share=20 confidential information and hold back on supplies of reformulated gasoline= =20 after the state required refiners to make gasoline that would not create as= =20 much pollution as previous formulas.=20

The case was granted class action status in 1997. The following year, a San= =20 Diego County judge tossed out the case, siding with the oil companies who= =20 said evidence was insufficient to persuade a jury.=20

Then, that judge, David Danielsen, reversed his own decision. The companies= =20 appealed and in January 2000, an appeals court concurred with the judge's= =20 initial decision.=20

The oil companies sued were Atlantic Richfield Co., Chevron Corp., Mobile Oil Co., 76 Products Co., Shell Oil Co., Texaco Refining and Marketing Inc., Tosco Corp., and Ultramar Inc.

The case is Aguilar v. Atlantic Richfield Co., S086738.

-- Associated Press

GOP vulnerability in California prompts Bush shift on power prices

By Finlay Lewis COPLEYPOLY NEWS SERVICE June 14, 2001 WASHINGTON) A lengthening list of politically endangered California Republicans appears to have spurred the Bush administration into a retreat on the state's volatile electricity pricing issue. White House desire to keep Republican control of the U.S. House in next year's elections will be an unspoken but clear concern when the Federal Energy Regulatory Commission meets Monday to reconsider its pricing policy, according to a wide range of analysts who have studied the situation. The expected turnaround on the part of FERC and the White House is due at least partly to complaints from embattled California House Republicans that Democrats have gained the political high ground as voters come to believe that out-of-state energy companies are engaged in price gouging and profiteering. "Republicans have come to realize that the entire pricing structure here is a potential political killer," said Tony Quinn, a Sacramento political analyst with past ties to the GOP. After months of condemning price controls, the administration gave the green light to FERC to devise a plan to restrain wholesale electricity prices in California and 10 nearby states by pegging them to the costs of the least efficient producer in a given market. This approach has already been invoked in California in energy-supply emergencies. The plan before FERC would leave it in place during the summer months in California and much of the rest of the West regardless of energy availability. While far more generous to the industry than the price-cap formula being advanced by congressional Democrats and California Gov. Gray Davis, the pricing mechanism likely to be embraced by FERC represents a substantial retreat by the agency and the White House. Until now, both have insisted on giving free play to market forces except in emergencies. "The more savvy Republican leaders here have figured out that you can't go down in flames for an ideological position when your constituents are being hurt," said political scientist Sherry Bebitch Jeffe of Claremont Graduate University. With the GOP enjoying only an 11-vote margin over the Democrats in the House, Republican strategists in recent days have focused on assessments showing that a number of Republican-held seats in California could switch hands due, in large part, to soaring electricity prices. The list includes Reps. Doug Ose of Sacramento, author of the pricing plan now under consideration by FERC, and Rep. Steve Horn of Long Beach, a widely respected moderate. According to some analysts, others in jeopardy are Reps. Elton Gallegly of Simi Valley, Richard Pombo of Tracy, and Gary Miller of Diamond Bar. Quinn also argued that Rep. David Dreier of San Dimas, chairman of the powerful Rules Committee and a rising GOP star in the House, could face energy-related problems and that Rep. Mary Bono of searingly hot Palm Springs could find herself losing some ground in her otherwise safe GOP constituency. "The California energy crisis has all the earmarks of a classic attack issue," said John R. Pitney, a political scientist at Claremont-McKenna College. "You have a Republican administration headed by two people with connections to the oil industry, and you have a very visible problem and a solution that is easy and plausible (Democratic) price controls." Alarmed by these developments, House Majority Whip Tom DeLay of Texas this week launched a damage-control effort by assigning a team of Republicans to help counter Democratic attacks on the White House. The team's assignment includes daily floor speeches defending Bush's energy policies. The energy crisis is only the latest development in a trend that has increased the sense of Republican congressional vulnerability in California. Even before this spring's blackouts and stratospheric energy bills, long-term demographic shifts were tilting the state in a Democratic direction. Congressional redistricting also is expected to exact a toll on the Republican delegation. Compounding the party's troubles was the perception that Bush, having lost California handily to Democrat Al Gore last fall, had written off the state in terms of his expected re-election campaign in 2004. Then came the loss of Republican control of the U.S. Senate, a development that reminded GOP strategists of their tenuous position in the U.S. House. "The administration soon

*Message 808 of 1299***CMTA Legislative Weekly - 10/26/01**

Sender	groyer@cmta.net
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File	dasovich-j/inbox/799.

The CMTA Fall Conference scheduled for October 31 - November 2 has been canceled.

Legislative Weekly October 26, 2001 Issue 42, Volume 3

A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

DEPARTMENT OF FINANCE: ECONOMY CONTINUES SLIDE 10,000 Manufacturing Jobs Lost in September

The California Department of Finance reports in their October bulletin that the employment and revenue picture in the state is not positive. The most available economic data on the state do not yet reflect the economic impacts or conditions after the September 11, 2001 attacks. The Department indicated in their October bulletin that although too little time has elapsed to accurately appraise the attacks' impact on the state, it is reasonable to assume that the full impacts of the September attacks will be quite serious, add to existing economic woes, and are now only beginning to emerge.

Labor market figures in the bulletin for September reflect employment status at anytime during the second week of the month, including September 10, the day preceding the attacks.

* Nonfarm employment, based on a survey of establishments, declined 17,400 in September. Industry estimates for September indicate a decline in construction employment, weakness in nearly all manufacturing sectors, gains in private service employment, and an anomalous drop in government employment. * Manufacturing employment dropped by 10,100 jobs in September. California's high-tech specialties—computers, electronics, aerospace, and instruments—accounted for over 60 percent of the losses. Only textile mill employment rose in September. * Service sector employment rose by 6,500 in September based on gains in motion pictures (3,800 jobs), social services (3,000 jobs), and engineering and management consulting (1,700 jobs). These gains offset the fifth consecutive monthly decline in business service employment, which lost 3,000 jobs. * On a year-over-year basis, services added the most jobs, 66,100, followed closely by government, 61,100 and more distantly by wholesale and retail trade, 47,200. Manufacturing lost 63,000 jobs over the year, with losses in nearly all sectors. High tech manufacturing has been hard hit. * California's unemployment rate, based on a survey of households, inched up 0.1 percent to 5.4 percent in September based on a rise by 7,000 in the number unemployed. A year ago, the unemployment rate was 4.9 percent. The national unemployment rate, at 4.9 percent, is up a full percentage point over the year. * Preliminary General Fund agency cash for September was \$468 million below the 2001 Budget Act forecast of \$7.451 billion. At this time, it does not appear that any significant amount of this month's shortfall was attributable to the September 11 terrorist attacks. If a reduction in taxable sales occurred as a result of those attacks, it will be reflected in the sales tax receipts due at the end of October. Any other effects on revenues, due to such things as the fall in the stock market or employment losses, may not be apparent for some time. Year-to-date, revenues are \$608 million below expectations.

CPUC EXPLORES ISSUES SURROUNDING DIRECT ACCESS

On September 20, the CPUC suspended the right to enter into new contracts for direct access. The CPUC left for later consideration what effect should be given to contracts executed before September 20, 2001, including renewals of such contracts. (Previously the CPUC indicated that it might suspend direct access effective July 1, 2001.)

On October 23, Commissioner Wood issued a ruling asking for public input on direct access contracts, noting that commencing on or about July 1, 2001, there has been an increase in customers switching to direct access.

He states that "there are serious policy concerns about cost-shifting. If customers are allowed to switch to direct access, there is a potential for these exiting customers to avoid helping to pay down the unprecedented debt incurred by the State to help weather the energy crisis. These cost-shifting issues are part of the Commission's consideration in determining whether there should be an earlier suspension date and what this date should be."

Some of the questions he asks include:

- 1) Why should or shouldn't the Commission choose an earlier date (than after September 20, 2001) for suspending the right to acquire direct access service?
- 2) If the Commission should choose an earlier date, why should or shouldn't the Commission consider a July 1, 2001 suspension? If not July 1, 2001, what other date or dates should the Commission consider and why?
- 3) Are there alternatives to suspending direct access as of a date before September 20, 2001, that would still alleviate cost-shifting problems?
- 4) What effect, if any, should be given to renewals of contracts originally entered into prior to the effective date of the Commission's suspension of direct access?
- 5) What effect, if any, should be given to provisions in contracts (?add-on provisions?) that allow the buyer to add more facilities to be served after the date on which direct access is suspended?
- 6) For electric service providers ? How many contracts have you entered into with direct access customers between January 17, 2001 and September 20, 2001? What percentage of your total direct access contracts contains any renewal provision? What percentage of your total direct access contracts contains any add-on provision?

Also requested are copies of unsigned contract forms and signed contracts, with names and other sensitive information deleted but contract signing dates retained.

CMTA will be submitting written comments which are due November 2, 2001.

EMPLOYERS IN A QUANDARY ON TEMPORARY PLANT SHUTDOWN STATUS

The California Manufacturers & Technology Association (CMTA) is continuing to seek clarification from the Industrial Welfare Commission (IWC) in regards to the Division of Labor Standards Enforcement (DLSE) Opinion Letter of May 30, 2001, Re: ?Deductions From Exempt Employees Salary.? This very controversial letter written by Mr. Miles Locker, Chief Counsel, DLSE generated an enormous number of complaints from employers. Labor Commissioner Arthur Lujan suspended the letter on June 20, 2001 and requested clarification from the Industrial Welfare Commission (IWC) of the criteria for determining the correct interpretation of ?salary.?

However, the letter left reduction from exempt employees salary and other issues raised in the letter unresolved and still hanging over the heads of employers when they are about to enter the most frequent periods of use, Thanksgiving and Christmas weeks. CMTA believes that the ?salary basis? test applicable to all wage orders should be interpreted in a manner consistent with the ?salary basis? test in the Fair Labor Standards Act (FLSA) that California has consistently followed over the years.

Under the FLSA the salary deduction for exempt employees is measured by weeks and not months as opined by Mr. Locker under California law. The opinion letter prohibited any deductions from exempt employee's salary in increments of less than one month based on the quantity of work, quality of work and or business operating requirements. Therefore, in order to be eligible for the overtime exemption, the employee must receive his or her full salary for any month in w

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FERC Notice on 12/19 conference on fwd contract

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File	dasovich-j/all_documents/7804.

Sorry if this is a duplicate: The following notice was also posted at FERC regarding the December 19 conference on forward contracting:

Information About the Planned Conference Announced at the December 15, 2000 Commission Meeting Date: Tuesday, December 19, 2000 Time: 10:00 AM Place: Hearing Room 1 Federal Energy Regulatory Commission 888 First Street, NE Washington, DC 20426 Purpose: To facilitate forward contracting by California Utilities Scope: The scope is confined to forward contracting only Participants: Limited to California Investor Owned Utilities, generators who supply California, marketers, the California ISO, the Office of Governor Gray Davis, and the California Public Utilities Commission.. It is requested that all participants have persons present with authority to approve any matters agreed to.

Other Info: The conference will be convened by the Commission's Chief Administrative Law Judge

Katie Kaplan wrote: We sent this release out today regarding the FERC order

Contact: Jean Munoz FOR IMMEDIATE RELEASE 916-447-8186 December 15, 2000

Statement from Jan Smutny-Jones, Executive Director of Independent Energy Producers, Regarding today's Ruling by the Federal Energy Regulatory Commission:

"While we have not yet had the opportunity to review the entire FERC order, we commend the FERC for encouraging long term fixed price contracts - a solution IEP members have been advocating and offering since June.

"We are committed to continuing to be part of the solution and look forward to moving toward a truly competitive electricity market that delivers a reliable supply of clean and affordable energy to the state's business and residential consumers."

##

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

-- Andrew Brown Sacramento, CA andybrwn@earthlink.net

Message 810 of 1299

BAAQMD / Standby Generators

Sender	lgoldseth@svmg.org
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File	dasovich-j/all_documents/12576.

Energy Committee Members:

Attached is the presentation on emergency standby generators as presented by Steve Motzko at the energy committee meeting.

<<BAAQMDRegProp010514.ppt>>

Here is a link to the BAAQMD Standby Generator Application Instructions:

<http://www.baaqmd.gov/permit/standby.htm>

The BAAQMD draft regulation and 34 page staff report can be accessed in PDF files at:

<http://www.baaqmd.gov/ruledev/reg-pmt/r0201ws2.htm> Here is a link to the California Air Resources Board "Statewide Portable Equipment Registration Program Fact Sheet" for mobile sources: <http://www.arb.ca.gov/perp/factshe3.htm>

I think the three links will be of interest to the energy task force as well as the presentation

...Steve Stephen Motzko, CSP Solectron Corporate EHS Manager Phone: 510-661-3979 Fax: 510-661-3992 email: stephenmotzko@ca.slr.com

- BAAQMDRegProp010514.ppt

Message 811 of 1299

AB 60x Follow-up Conf. Call

Sender	jeff.dasovich@enron.com
Recipients	['susan.mara@enron.com', 'sandra.mccubbin@enron.com', 'richard.shapiro@enron.com']
File	dasovich-j/all_documents/10211.

----- Forwarded by Jeff Dasovich/NA/Enron on 03/20/2001 06:19 PM -----

"Julee Malinowski-Ball" <jmball@ns.net> 03/20/2001 06:08 PM Please respond to "Julee Malinowski-Ball"

To: "Susan McCabe" <smccabe@mccabeandcompany.net>, "Scott Govenar" <sgovenar@govadv.com>, "Ron Tom" <thackbarth@govadv.com>, "Robert Ross" <robbiz@cwo.com>, "Rina Venturini" <rventurini@teamgsi.net>, "Phil Isenberg" <Isenberg@HMOT.com>, "Mike Monagan" <mrmonagan@aol.com>, "Maureen OHaren" <Oharen@HMOT.com>, "Marie Moretti" <mmoretti@mccabeandcompany.net>, "Kassandra Gough" <kgough@calpine.com>, "Jamie Parker" <jparker@hmot.com>, "Hedy Govenar" <hgovenar@govadv.com>, "DJ Smith" <djsmith@smithandkempton.com>, "Delany Hunter" <dhunter@s-k-w.com>, "Chuck Cole" <ccole@advocation-inc.com>, "Bev Hansen" <bhansen@lhom.com>, "Anne Kelly" <kelly@hnks.com>, "Fred Pownall" <fred_pownall@ka-pow.com> cc: "Sue Mara" <smara@enron.com>, "Steve Ponder" <steve_ponder@fpl.com>, "Stephanie Newell" <stephanie-newell@reliantenergy.com>, "Sandi McCubbin" <smccubbi@enron.com>, "Roger Pelote" <roger.pelote@williams.com>, "Richard Hyde" <rwhyde@duke-energy.com>, "Paula Soos" <paula_soos@ogden-energy.com>, "Lynn Lednicky" <lale@dynegy.com>, "Larrea, John" <John.g.Larrea@williams.com>, "kent Palmerton" <kent.palmerton@williams.com>, "Kassandra Gough" <kgough@calpine.com>, "John Stout" <john_h_stout@reliantenergy.com>, "Joe Ronan" <joer@calpine.com>, "Jeff Dasovich" <Jeff.Dasovich@enron.com>, "Jean Munoz" <jmunoz@mcnallytemple.com>, "Jack Pigott" <jackp@calpine.com>, "Greg Blue" <gtbl@dynegy.com>, "Rachel King" <rachel.king@elpaso.com>, "Jan Smutny Jones" <smutny@iepa.com>, "Steven Kelley" <steven@iepa.com>, "Katie Kaplan" <kaplan@iepa.com>, "Andy Brown" <ABB@eslawfirm.com>, "Doug Kerner" <runwithmee@aol.com>, "Chris Ellison" <CTE@eslawfirm.com>, "Karen Baker" <kebaker@ns.net>, <chudson@iepa.com> Subject: AB 60x Follow-up Conf. Call

I have scheduled a conference call for tomorrow (Wed.) at 2pm to follow-up on the draft amendments to AB 60x and Calpine's meeting in the Speaker's office. In summary, Calpine was not able to convince Rick Simpson to drop the bill, nor was he interested in moving it in another direction on the Assembly side. On tomorrow's call we will be discussing what steps IEP and member companies should take as this bill moves forward.

Please call: 800-403-2004 Pass Code: 753843

Julee Malinowski-Ball Senior Associate Edson + Modisette 916-552-7070 FAX-552-7075 jmball@ns.net

Message 812 of 1299

Great Yergin Piece -- Washington Post Op-Ed

Sender	jeff.dasovich@enron.com
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File	dasovich-j/all_documents/10061.

Seems like something we'd want to wallpaper the halls of the state capitol with.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 03/16/2001 12:56 PM -----

Susan J Mara 03/16/2001 12:51 PM

To: Alan Comnes/PDX/ECT@ECT, Angela Schwarz/HOU/EES@EES, Beverly Aden/HOU/EES@EES, Bill Votaw/HOU/EES@EES, Brenda Barreda/HOU/EES@EES, Carol Moffett/HOU/EES@EES, Cathy

Corbin/HOU/EES@EES, Chris H Foster/HOU/ECT@ECT, Christina Liscano/HOU/EES@EES, Christopher F Calger/PDX/ECT@ECT, Craig H Sutter/HOU/EES@EES, Dan Leff/HOU/EES@EES, Debora Whitehead/HOU/EES@EES, Dennis Benevides/HOU/EES@EES, Don Black/HOU/EES@EES, Dorothy Youngblood/HOU/ECT@ECT, Douglas Huth/HOU/EES@EES, Edward Sacks/Corp/Enron@ENRON, Eric Melvin/HOU/EES@EES, Erika Dupre/HOU/EES@EES, Evan Hughes/HOU/EES@EES, Fran Deltoro/HOU/EES@EES, Gayle W Muench/HOU/EES@EES, Ginger Dernehl/NA/Enron@ENRON, Gordon Savage/HOU/EES@EES, Harold G Buchanan/HOU/EES@EES, Harry Kingerski/NA/Enron@ENRON, Iris Waser/HOU/EES@EES, James D Steffes/NA/Enron@ENRON, James W Lewis/HOU/EES@EES, James Wright/Western Region/The Bentley Company@Exchange, Jeff Messina/HOU/EES@EES, Jeremy Blachman/HOU/EES@EES, Jess Hewitt/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON, Karen Denne/Corp/Enron@ENRON, Kathy Bass/HOU/EES@EES, Kathy Dodgen/HOU/EES@EES, Ken Gustafson/HOU/EES@EES, Kevin Hughes/HOU/EES@EES, Leasa Lopez/HOU/EES@EES, Leticia Botello/HOU/EES@EES, Mark S Muller/HOU/EES@EES, Marsha Suggs/HOU/EES@EES, Marty Sunde/HOU/EES@EES, Meredith M Eggleston/HOU/EES@EES, Michael Etringer/HOU/ECT@ECT, Michael Mann/HOU/EES@EES, Michelle D Cisneros/HOU/ECT@ECT, mpalmer@enron.com, Neil Bresnan/HOU/EES@EES, Neil Hong/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Richard L Zdunkewicz/HOU/EES@EES, Richard Leibert/HOU/EES@EES, Richard Shapiro/NA/Enron@ENRON, Rita Hennessy/NA/Enron@ENRON, Robert Badeer/HOU/ECT@ECT, Rosalinda Tijerina/HOU/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah Novosel/Corp/Enron@ENRON, Scott Gahn/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Sharon Dick/HOU/EES@EES, skean@enron.com, Susan J Mara/NA/Enron@ENRON, Tanya Leslie/HOU/EES@EES, Tasha Lair/HOU/EES@EES, Ted Murphy/HOU/ECT@ECT, Terri Greenlee/NA/Enron@ENRON, Tim Belden/HOU/ECT@ECT, Tony Spruiell/HOU/EES@EES, Vicki Sharp/HOU/EES@EES, Vladimir Gorny/HOU/ECT@ECT, Wanda Curry/HOU/EES@EES, William S Bradford/HOU/ECT@ECT, Jubran Whalan/HOU/EES@EES, triley@enron.com, Richard B Sanders/HOU/ECT@ECT, Robert C Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, dwatkiss@bracepatt.com, rcarroll@bracepatt.com, Donna Fulton/Corp/Enron@ENRON, gfergus@brobeck.com, Kathryn Corbally/Corp/Enron@ENRON, Bruno Gaillard/EU/Enron@Enron, Linda Robertson/NA/Enron@ENRON, Ren, Lazure/Western Region/The Bentley Company@Exchange, Michael Tribolet/Corp/Enron@Enron, Phillip K Allen/HOU/ECT@ECT, Christian Yoder/HOU/ECT@ECT, jklauber@llgm.com, Tamara Johnson/HOU/EES@EES, Mary Hain/HOU/ECT@ECT, Greg Wolfe/HOU/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, Dirk vanUlden/Western Region/The Bentley Company@Exchange, Steve Walker/SFO/EES@EES, James Wright/Western Region/The Bentley Company@Exchange, Mike D Smith/HOU/EES@EES, Richard Shapiro/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, Robert Neustaedter/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Steve Walton/HOU/ECT@ECT, psmith3@enron.com, mjackso7@enron.com, Janel Guerrero/Corp/Enron@Enron, Mark Fillingier/SF/ECT@ECT, Jennifer Rudolph/HOU/EES@EES, Martin Wenzel/SFO/HOU/EES@EES, Douglas Condon/SFO/EES@EES, wgang@enron.com, Joseph Alamo/NA/Enron@Enron, Tracy Ngo/PDX/ECT@ECT cc: Subject: Great Yergin Piece -- Washington Post Op-Ed

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/16/2001 10:50 AM -----

"Daniel Douglass" <Douglass@ArterHadden.com> 03/16/2001 10:43 AM

To: <Barbara_Klemstine@apsc.com>, <Vicki_Sandler@apses.com>, <berry@apx.com>, <dcazalet@apx.com>, <billr@calpine.com>, <jackp@calpine.com>, <Ken_Czarnecki@calpx.com>, <gavaughn@duke-energy.com>, <rjhickok@duke-energy.com>, <gtbl@dynegy.com>, <jmpa@dynegy.com>, <jdasovic@enron.com>, <susan_j_mara@enron.com>, <Tamara_Johnson@enron.com>, <curt.Hatton@gen.pge.com>, <foothill@lmi.net>, <camieesn@newwestenergy.com>, <jcgardin@newwestenergy.com>, <jsmollon@newwestenergy.com>, <rsnichol@newwestenergy.com>, <nam.nguyen@powersrc.com>, <Curtis_L_Kebler@reliantenergy.com> cc: <bzycher@rand.org> Subject: Fwd: CA Power Crisis -- Washington Post Op-Ed

A great op-ed piece from Daniel Yergin.

Dan ----- Message from "David Haarmeyer" <dhaarmeyer@CERA.com> on Fri, 16 Mar 2001 11:56:07 -0500 ----- To: "Bill Burke" <wburke@ipartners.com>, "Dan Donoghue" <dan.donoghue@stoneweb.com>, "Dan Douglass" <douglass@arterhadden.com>, "Dan Sullivan" <daniel.sullivan@stoneweb.com>, "Harald Jensen"

<hjensen@enron.com>, "Henri Fouda" <henri_fouda@putnaminv.com>, "Ikram Elloumi" <ielloumi@aol.com>, "Lee Marc Wolman" <leemarcg@aol.com>, "Marsha Lin" <mrlin@netzero.net>, "Ron Daigle" <rcdaigle@wellmanage.com>, "rmcwhinney@aol.com" <rmcwhinney@aol.com> Subject: CA Power Crisis -- Washington Post Op-Ed

-----Original Message-----

From: Kari Paakaula Sent: Friday, March 16, 2001 10:11 AM To: NAEP Team Subject: Washington Post Op-Ed California in the Dark By Lawrence Makovich and Daniel Yergin Friday, March 16, 2001; Page A21 The common diagnosis of California's electric power debacle is wrong. The state is not suffering from deregulation. Rather, it is afflicted by a strange mutant ailment -- partial deregulation and now partial reregulation -- that has produced a flawed market. California designed a market that disconnected customers from prices and, at the same time, made it neither profitable nor possible to build a new power plant. The result is a serious power shortage. Instead of fixing these flaws, the current policies from Sacramento are moving California down the road to an expensive public power setup and higher prices for consumers and businesses. And the shortage is going to get worse this summer. Under typical weather conditions, the state could face as much as a 10 percent shortfall in electric power during summer peak demand, which will mean severe emergency conditions and periods of blackouts. The effect is likely to be a big shock not only to the economy of California and to the rest of the interconnected West but also to the bruised national economy. Unlike other states that have successfully deregulated over the past few years, California has made three crucial mistakes since the mid-1990s, when restructuring of the power industry began. The first is the political unwillingness to allow consumers to see real price signals. The so-called "wholesale price" -- what utilities pay to generating companies -- has been decontrolled, but the price consumers pay to the utilities has not. Consumer prices are remain at 1996 levels, and Gov. Gray Davis has promised to hold to his pledge of no rate increase. Although the price of natural gas, which is used to make a large and rapidly growing share of electricity in California, has increased dramatically, consumers would not know that from their bills. Nor would they know that rain and snowfall levels, on which California critically depends for hydropower, are at low levels. As a result, the utilities have been in the perverse position of selling power to their customers at much lower rates than they are buying power from generators. That is why the utilities are now \$13 billion in the hole and teetering on bankruptcy. Instead of letting customers see higher prices that reflect the realities of supply and demand -- and then act accordingly --

Message 813 of 1299

CSO - Level 3 Communications Corporate Presentation

Sender	owner-eveningmba@haas.berkeley.edu
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File	dasovich-j/all_documents/1995.

See the following note from Level 3 Communications on their presentation tomorrow for all UC students (Engineers, Operations Research PhD's, Haas MBA's and undergrads).

The atypical location and time are due to the broader audience.

No sign-ups required for this presentation.

Sorry for the late notice.

Rich

Rich Wong Account Manager, Technology Haas Career Center

*****_ * *****

Where: University of California, Berkeley, Alumni House, Bechtel Room

When: Tuesday, October 3, 2000, 12:00 pm (Lunch will be provided)

Come find out why Level 3 Communications is one of the fastest growing "next-generation" data communications providers in the world. It=01,s uniqu= e business strategy - to build the world=01,s first continuously upgradeable all-IP network - is so compelling Wall Street has raised over \$13 billion i= n debt & equity to support it. Yet our \$32 billion market

cap is less than 2% of the estimated \$2 trillion market cap attributed to our marketplace - a marketplace we plan to dominate. Our Outperformance Stock Option plan rewards us with multiples of value for beating the S&P 500 index. Now THAT= =01,s upside.

The Level 3 team has grown from a handful of senior executives to a dynamic group of recent top tier MBA's, ex-consultants, ex-bankers, ex-telecom professionals and e-commerce entrepreneurs who share the exuberance and excitement that comes from building a company from scratch. The difference is that we are in a market with real revenues, real assets and real challenges. You won't stand on the sidelines as we make this happen. MBA's serve in key roles and are responsible for projects vital to the company's success. Our headquarters sits on a brand new campus in Broomfield, Colorado; 20 minutes from Denver and 10 minutes from Boulder. So forget consulting, investment banking and the latest dot.com "someday we will make money" business plan. Join the company that is already collecting checks from most of the dot.com community. They call in "paying for bandwidth," we call it our bread and butter.

Positions Available: (2nd years)

Manager, Corporate Development (North America, Europe and Asia)

Manager, Corporate Finance (North America)

Manager, Strategic Alliances (North America and Europe)

Manager, Strategic Finance (North America)

Manager, Strategic Marketing and Operations (North America)

Positions are the same for Summer Associates (1st years). Process begins in January 2001.

Forward all resumes and cover letters to:

Evelyn W. Jones Manager, College Recruiting 1025 Eldorado Boulevard Broomfield, CO 80021 (720) 888-2439 direct (720) 888-5581 fax

Message 814 of 1299

FW: CMTA Legislative Weekly - 09/06/01

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FYI. Indicates where CMTA is on key bills working their way through California's wacked out Legislature.

Best, Jeff -----Original Message----- From: Geri L. Royer [mailto:groyer@cmta.net] Sent: Thursday, September 06, 2001 4:30 PM To: undisclosed-recipients Subject: CMTA Legislative Weekly - 09/06/01

Legislative Weekly September 6, 2001 Issue 35, Volume 3

A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

ELECTRICAL RESTRUCTURING

SBX2 78 (Polanco D-Los Angeles and Sher D-Stanford). CMTA supports this bill to allow Southern California Edison to collect \$2.9 billion from customers to cover excess power costs incurred between May 2000 and January 2001. While the debt can only be assessed against customers over 20kw in demand, provisions protecting the right to direct access and customer generation overcome our objections to the disproportionate spread of debt. The bill will be on the assembly floor this week.

SBX2 27 (Bowen D-Marina del Rey). This direct access bill remains a potential vehicle for reinstatement of direct access if SBX2 78 fails. It failed to gain 2/3 votes in the Senate last June. CMTA did not support the bill, but remains willing to work

with the author.

SBX2 18 (Burton D-San Francisco). CMTA supports this bill to create a separate revenue stream for payment of state energy revenue bonds, saving financing costs and simplifying the relationship between bonds and Department of Water Resources power contracts. Passed out of Assembly Energy Costs and Availability.

SBX2 85 (Burton). CMTA opposes this bill to repeal the sunset on the 10% rate discount for small commercial and residential customers that was created by AB 1890. It passed out of Assembly EC&A.

NATURAL GAS EXIT FEES

ABX2 23 (Pescetti R-Rancho Cordova) requires non-core customers to make long-term projections regarding their firm service gas delivery needs, and would allow utilities to impose exit fees on non-core customers that do not later desire that firm service level.

CMTA is opposed unless exit fees are removed. CMTA supports amendments to simply require the PUC to study the state's natural gas infrastructure to determine ways in which to expand capacity and increase competition. The bill has not yet been set for hearing in Senate Energy Utilities and Communications.

ELECTRICAL GENERATION - EMINENT DOMAIN

ABX2 35 (Vargas D-San Diego) authorizes the California Consumer Power and Conservation Financing Authority to exercise eminent domain to acquire generating facilities for 18-24 months. Generators would be reimbursed a "reasonable rental value" as opposed to "fair market value" for facilities temporarily taken by the State. Co-generation facilities are not exempt from the bill.

CMTA is opposed and the bill may not move. It is rumored that a Legislative Counsel opinion questions its constitutionality. The bill is currently in the Assembly Energy Costs and Availability Committee.

ELECTRICAL GENERATION - STRICT LIABILITY

ABX2 51 (Reyes D-Fresno) provides that a resale or wholesale operator of an electric generation facility that reduces or discontinues service for solely economic reasons shall be held strictly liable for any damages proximately caused by that reduction or discontinuance. "Economic reasons" is defined as the withholding of power for financial gain. Cogeneration is exempted from the bill.

CMTA is opposed. According to the author's staff, the measure will not be moved. The bill is in Assembly EC&A Committee.

ELECTRICITY AND NATURAL GAS - ILLEGAL BUSINESS PRACTICES

Despite rigorous debate on the Assembly Floor, on September 4 the Assembly adopted amendments to ABX2 65 (Cardoza D-Merced) which make the bill less onerous. As amended, the measure makes it a wobbler for any person or entity, whose principal business is the generation or sale of electricity, to exercise market power. Market power is defined as the profitable maintenance of wholesale electricity prices above the prices that would occur in the wholesale market if that market were competitive. The measure also allows the imposition of a fine of up to 10 percent of the violator's gross assets, upon conviction. Felony penalties would apply to any person or entity that exercised market power during a Stage 1, 2 or 3 electrical emergency as determined by the Independent System Operator.

The September 4 amendments limit the bill to apply only to entities whose principal business is the generation or sale of electricity that are able to exercise market power, and technically exempt qualifying facilities, co-generation, or self-generation. The measure still includes onerous bounty-hunter provisions that authorize the Attorney General to pay a reward to any person who provides information that materially contributes to the imposition of a criminal fine. The reward would be equal to 10% of the amount of the criminal fine collected by the AG, district attorney, or imposed by the court. The measure likely will be taken up for a vote on the Assembly Floor sometime this week.

TAX - TRIAL DE NOVO

AB 934 (Hertzberg D-Van Nuys). CMTA supports reforms to the property tax assessment appeal process, granting courts more power to overturn decisions that are anti-taxpayer. Assessors and counties claim that they will be manipulated into

settling disputes too cheaply. They obtained a Leg Counsel opinion declaring it to violate the California Constitution.

The bill is in Senate Rules. CMTA is lobbying to ensure that it is sent to Appropriations and are lobbying members of that committee as well as members whose votes will be needed on the floor. There is speculation that it is being held in Rules for leverage for a larger deal but it is more probable that it is a tactic to delay it until Hertzberg, the author, is no longer Speaker.

CORPORATE COUNSEL - PROTECTIVE ORDER/CONFIDENTIAL SETTLEMENTS

AB 36 (Steinberg D-Sacramento), SB 11 (Escutia D-Whittier), AB 881 (Simitian D-Palo Alto). CMTA opposes these bills to potentially expose proprietary information to the public. SB 11 and AB 36 drive up litigation costs for defendants, leveraging higher settlements. AB 36 was "Speakerized" with the proviso that its substance would not go to the Governor, that SB 11 would be "the vehicle" and be revised into a more business friendly version. Nevertheless, AB 36 (unchanged) has received a rule waiver allowing it to move in the Senate.

CMTA is working on keeping the moderate Democrats in the Assembly from passing SB 11 and, if AB 36 does go to the Governor, in having them help with obtaining a veto. CMTA is proposing AB 881 as an alternative though it is preferred that it not pass, and the trial lawyers would likely kill it. At this point it appears that the moderates will stay with us but it appeared that way just before they caved-in in June.

EDUCATION - CAREER AND TECHNICAL EDUCATION

AB 348 (Wright D-So. Central Los Angeles). Several "voc-ed" bills designed to bolster this ailing system were passed by the Legislature this year including AB 348 which introduces mechanisms to elevate the academic standing of such courses. Unfortunately, much of the funding for the voc-ed bills was cut out of the Budget.

EDUCATION - FACILITIES BOND

AB 16 (Hertzberg D-Van Nuys/Leonard R-San Bernardino) and SB 844 (Chesbro D-Arcata). CMTA has declared support for this legislation to place a statewide school facilities bond on the ballot in 2002. Their scope spans K-College. A conference committee is addressing the timing for the ballot (March vs. November), the amount and the allocation between K-12 and hi

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30 January, 2001, TR State NewsWire

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STATES ARKANSAS -- Bill would require use tax on electronic transactions VIRGINIA -- SCC enjoins Verizon from disconnecting CLEC's customers KANSAS -- House OKs bill bringing broadband to schools, libraries, hospitals HAWAII -- Lawmaker proposes no-call list MISSISSIPPI -- Bills would create emergency telephone service charge MO. -- Bill would establish classroom technology trust fund and commission IOWA -- Board to rehear Qwest tariff FLORIDA -- BellSouth says competition in the state is on the rise

INTERNET ARKANSAS Bill would require use tax on electronic transactions

Rep. Roger Smith (R., District 32) has introduced a bill that would require out-of-state vendors with ties to Arkansas to collect a use tax on sales made electronically to Arkansas consumers. HB 1440 would amend Arkansas Code 26-53-124 regarding the collection of use tax by out-of-state vendors.

Under HB 1440, orders processed over the Internet, telephone, fax, or other electronic means would be subject to the use tax if the vendor held a "substantial ownership interest" in a retailer with a physical presence in Arkansas.

The use tax also would apply if a "bricks-and-mortar" retailer based in Arkansas owned a significant part of the out-of-state vendor. In addition, an out-of-state vendor would have to collect the use tax if its offerings were "substantially similar" to an

Arkansas retailer's product line, or if the out-of-state vendor marketed its products using an Arkansas retailer's workers or facilities.

HB 1440's text is available at <http://www.arkleg.state.ar.us/ftp/roo/bills/2001/htm/HB1440.pdf>.

SECTION 251/252 VIRGINIA SCC enjoins Verizon from disconnecting CLEC's customers

The State Corporation Commission has enjoined Verizon Virginia, Inc., from "unreasonably disconnecting service" to local exchange service customers who switch from Verizon to competitive carrier Cavalier Telephone LLC.

Cavalier petitioned the SCC for help last September, claiming Verizon "unlawfully interrupted service" to hundreds of customers who chose to migrate to Cavalier. Verizon acknowledged that "premature disconnections" led to 66 of the service outages but said that 43 of those customers were reconnected either the same day they were reported to Verizon or by the following day. (11/8/00 p.m.)

After taking evidence during a November 2000 hearing, the SCC found that although the number of premature disconnections was "unacceptable," there was no evidence that Verizon's disconnections were intentional. "Nevertheless," the SCC said, "we cannot condone this inattention to customer service."

The SCC directed the companies to file monthly reports, beginning Feb. 12, detailing any further unwarranted disconnections of service. (Docket no. PUC000262, Petition of Cavalier Telephone LLC for Emergency Relief to Halt Unlawful Customer Disconnects by Verizon Virginia, Inc.)

ADVANCED SERVICES KANSAS House OKs bill for broadband network for state's schools, libraries, hospitals

The House of Representatives has approved a bill that would establish a KAN-ED broadband network for Kansas schools, libraries, and hospitals. (1/23/01 a.m.) HB 2035 would require that the statewide network link schools and libraries to the Internet by July 1, 2002. Hospitals wouldn't have to be connected until July 1, 2003.

HB 2035 was recommended by the State Education Technology-Based Network Task Force. Proponents of the legislation included the Commissioner of Education, the Kansas National Education Association, the Kansas Cable Telecommunications Association, the Kansas Telecommunications Industry Association, Sprint Corp., and the Kansas Independent College Association. No opponents have surfaced.

The bill also would set up a KAN-ED board to govern the program and establish a plan to ensure that all schools, libraries, and hospitals have quality, affordable access to the Internet and distance learning. HB 2035 would authorize the board to contract with telecom and cable TV service providers to establish, operate, and maintain the network. Additionally, the board would set the network's standards.

The House Utilities Committee sponsored HB 2035. A similar measure, SB 48, sponsored by the Senate Education Committee, awaits consideration in that committee. HB 2035 also will be considered by the Senate Education Committee.

CUSTOMER-AFFECTING HAWAII Lawmaker proposes no-call list

Rep. Sylvia Luke (D., District 26) has introduced a bill that would set up a no-call list for citizens that don't want to receive telemarketing phone calls. The list would be established and maintained under the auspices of the Public Service Commission. HB 914 would require the list to be operational by Jan. 1, 2002.

HB 914 would require local exchange companies to inform residential customers of their right to be included on the no-call list. Residents would have to pay \$5 to place their telephone numbers on the list.

The state's attorney general would have the authority under the bill to initiate a proceeding against a telemarketer that violated the measure. If found guilty, the telemarketer would face a fine of up to \$2,000 for each violation.

Additionally, any person on the list who received more than one telephone solicitation within any 12-month period by or on behalf of the same person or entity could bring an action to enjoin further violations. The person could recover an actual monetary loss, or receive up to \$2,000 in damages.

HB 914 awaits committee referral.

WIRELESS MISSISSIPPI Bills would create emergency telephone service charge

Rep. Tim Ford (D., District 18) and Sen. Thomas E. Robertson (R., District 51) are sponsoring similar bills, HB 469 and SB 2393, to provide for a surcharge to fund emergency response telephone services. HB 469 has passed the House Public Utilities Committee, and SB 2393 has passed the Senate Public Utilities Committee.

The proposed bills would enact an emergency telephone service charge of up to \$1 per month for a residential telephone subscriber line and up to \$2 per month for a commercial telephone subscriber line for exchange telephone service.

HB 469 and SB 2393 also would establish a Commercial Mobile Radio Service (CMRS) Board. The five-member board would require a CMRS emergency telephone service charge of \$1 per month for each CMRS connection. CMRS providers would collect the CMRS service charges as part of their regular monthly billing process. HB 469 and SB 2393 also would require CMRS providers to offer wireless E911 service.

UNIVERSAL SERVICE MISSOURI Bill would establish classroom technology trust fund, commission

Rep. Tim Van Zandt (D., District 38) has introduced HB 559 to establish a classroom technology trust fund and a commission to administer it. The fund would receive all the money from state abandoned property funds that otherwise would revert to general revenues.

The classroom technology commission would distribute money from the fund to school districts to help bring technology into the classroom. Money from the fund could be used for technology expenditures for hardware, software, Internet connections, teleconferencing, and training for students and teachers. The commission would forward recommendations to the state treasurer on other uses of the fund.

HB 559's text is available at <http://www.arkleg.state.ar.us/ftp/rooot/bills/2001/htm/HB1440.pdf>.

TARIFFS IOWA Board to rehear Qwest tariff

The Iowa Utilities Board has decided to grant petitions for rehearing filed by Qwest Corp. and the Consumer Advocate Division of the Department of Justice regarding a Qwest tariff filing to reduce its rates.

In December 2000 the board ordered Qwest to reduce its rates by 1.21% and to reduce selected basic service rates. The board also denied in its December 2000 order a Qwest request to of

Message 816 of 1299

RE: Memorial Day Update

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File	dasovich-j/all_documents/12540.

Cameron and Scott -- that's great!!! And Congratulations also to all you non-smokers!

Ken and I are looking forward to seeing all of you but we aren't sure exactly when or how long we'll be dropping by. On a total whim, we bought a cute (although a bit funky) little house up in Ft. Bragg last October. Our main goal over Memorial Weekend is going to be to build a new staircase for that house, but we're hoping to make it down to the dome Sunday early evening. If not that, then we'll definitely show up for the softball game on Monday. My Dad, the sweetheart, is coming out to help with this project on his way up to the San Juan Islands and I know he's excited about getting to experience a piece of 'The Dome' as well. Sarabeth is going to Greece for a couple of weeks, so she's going to miss all the fun, poor thing. Anyway, we'll be sure to bring champagne for all the celebratory causes and See you all soon! Celise

From: Nancy Sellers <Nancy.Sellers@RobertMondavi.com> To: Nancy Sellers <Nancy.Sellers@RobertMondavi.com>, 'Lynne Robertson' <Lynner@mcn.org>, 'Laura Whiting' <whiting@sonic.net>, 'John Whiting' <johnw@fsgllc.com>, 'Lisanne and Ken Jensen' <ljensen@westcoastweathervanes.com>, 'Celise' <celise_clevenger@hotmail.com>, 'Eldon Sellers' <Eldon@direcpc.com>, 'Cristina Greenway Shea' <cgreenway@brobeck.com>, 'Chris Shea' <cshea@marin.org>, 'Carter' <carterhachman@worldnet.att.net>, 'Cameron' <cameron@perfect.com>, 'Jeff Dasovich' <Jeff_Dasovich@enron.com>, 'Prentice @ Berkeley' <PSellers@haas.berkeley.edu>, 'Prentice Sellers' <PSellers@pacbell.net>, 'Scott Laughlin' <scottwl@hotmail.com>, 'Colleen Silva' <Csilva@jeiusa.com> Subject: RE: Memorial Day Update Date: Tue, 15 May 2001

09:27:02 -0700 2 more celebratory items I forgot - well actually, I forgot one and did not know about the other... #1 - Jeff Dasovitch, Scott Laughlin, Cameron Sellers, Nancy Sellers, and Prentice Sellers - are all SMOKE FREE!! Now that is something to celebrate!! and - - #2 - drum roll drum roll drum roll DRUM ROLL DRUM ROLL On Saturday, May 12, Mr. Scott Warner Laughlin asked Ms. Cameron Smith Sellers to marry him. And she said.....YES!!!! Isn't that just the most wonderful news!!!!!! We are all so happy and excited! OK - now for a wine tasting update. Every "unit" should bring 2 bottles of each wine (1 won't make it with this large a crowd). It does not have to be from your designated local area (LizAnne was making noises about the Sonoma/Napa/Santa Cruz disparity) - it can just be something you think is yummy. Saturday night let's make it Pinot Noir and Sunday Chardonnay, since no one had any burning favorites! Chris and Cristina have a family reunion that they have to attend - but they promise that the THREE of them will be with us next year! We will really miss you guys! Anything else? > -----Original Message----- > From: Nancy Sellers > Sent: Saturday, May 05, 2001 10:00 AM > To: 'Lynne Robertson'; 'Laura Whiting'; 'John Whiting'; 'Lisanne and Ken > Jensen'; 'Celise'; 'Eldon Sellers'; 'Cristina Greenway Shea'; 'Chris > Shea'; 'Carter'; Cameron; Jeff Dasovitch; Prentice @ Berkeley; Prentice > Sellers; Scott Laughlin > Subject: Memorial Day > > I hope you are all making plans to meet at the dome - we are so excited to > see you all and have some fun! > > Bring a bottle of bubbly (sparkling cider) because we have some special > things to celebrate: > * May 20 - Prentice graduates from Haas with her MBA > * May 26 - Laura's birthday > * John's new job > * and...drum roll... > * Cristina is going to have a baby!!! (November - good Scorpio > month!) > > Please feel free to submit other celebratory items!! > > There is one major problem. Try as we might, we have not been able to get > the deck finished. Everything is done (I think) except the railing. That > means there is a definite safety hazard. Eldon is going to keep trying to > get someone to finish it up but I am not too hopeful. That means that the > deck is fine for: > > * Sleeping > * Sitting > * Reading > * Chatting > * Eating/Cooking > * Moderate Alcohol consumption > > IT IS NOT FINE FOR: > * Dancing (Andrew) > * Running (Scotty) > * Manhattan Projects (Teddy) > * Heavy duty alcohol consumption (Chris) > > I have a couple of requests: > > #1 - I think we should start having an annual blind wine tasting. A white > on Saturday and a red on Sunday - if anyone has a varietal that they want > to start with - let me know. Each "family unit" should bring a bottle of > the white and red varietal and we will hold a blind tasting. What do you > think? It would be especially fun if the wines were typical of your > geographical area and we could have a really diverse sampling. If you > want to use wine glasses you would have to bring your own. I'll have > plastic ones available. > > #2 - I have a special request for the ab hunters. It would be so great > if we could have the ab feast for dinner on Sunday night instead of as > appetizers on Saturday. That would save one whole meal of cooking and we > could do a nice salad, garlic bread, etc. I realize that we would have to > improvise if -- God forbid -- the ab was not to be found - but we could > chance it! > > Let me know about any other ideas you have out there... > > Don't forget your baseball mitts! > > > > > > > > > Nancy > (707) 251-4870 (phone) > (707) 265-5446 (fax) > "Plus je bois, mieux je chante" > > >

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Message 817 of 1299

FW: CMTA Legislative Weekly - 10/15/01

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FYI. Some interesting tid-bits from CMTA.

-----Original Message-----

From: Geri L. Royer [mailto:groyer@cmta.net] Sent: Monday, October 15, 2001 2:43 PM Cc: Royer, Geri Subject: CMTA Legislative Weekly - 10/15/01

The CMTA Fall Conference scheduled for October 30 - November 2 has been canceled.

Legislative Weekly October 15, 2001 Issue 40, Volume 3

A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

ECONOMIC SUMMIT

In the wake of repeated economic blows on the state's business community and announcements of losses, layoffs and declining tax revenues, the Governor has stated his intention to hold an Economic Summit in early November with business and labor leaders, and professional economists to identify and discuss measures to stimulate California's economy. The date and participants will be announced this week. Governor Davis is also considering the possibility of calling a Special Legislative Session to enact such measures immediately. In an effort to avoid or minimize a looming State budget deficit, the Department of Finance has instructed state agencies to cut their budgets by 15%.

CMTA's members are devising a priority list of policies that should be adopted to help mitigate the effects of the international economic cooling and hopefully, stave-off recession in this state.

POWER AUTHORITY MEETING

Renewables and the Power Authority At an October 5 Consumer Power and Conservation Financing Authority (Power Authority) meeting in San Francisco, Chairman David Freeman acknowledged that renewable peaking capacity may comprise a significant portion of the 15 percent reserve the Authority expects to establish to prevent future price spikes in the cost of electricity.

Freeman indicated that the Authority has received proposals for 18,000 MW in peaker capacity, which have been evaluated and winnowed down to 3,000 MW. While commitments to build these peaker facilities have not yet been formalized, the Power Authority is moving forward with proposals for a few hundred renewable megawatts.

Freeman also indicated that at least two state biomass plants are at risk of shutting down. He believes that these plants should continue to run, despite the high costs associated with this market. Power Authority staff has been asked to look at options to keep the plants operating, and to report back to the Power Authority.

Board member Donald Vial expressed concern at the way in which the Power Authority is looking at the 15 percent reserve. He believes that the reserve should be a working capacity margin used to phase out dirty plants and to move into, and to promote renewables.

Board member John Stevens pointed out that the Power Authority has limited funding with which to purchase peaking capacity, and reminded the members that any plan must reasonably balance the costs associated with the generation capacity.

Department of Water Resources Update The Power Authority also received a report from staff of the Department of Water Resources (DWR) who indicated that the Department is looking at load curtailment, renewables and new supplies that ideally are north of Path 15. The Department believes it has been instrumental in keeping the spot market under control and minimizing the number of blackouts experienced this summer. The Department also gave a great deal of credit to customers who have been instrumental in preventing blackouts through conservation.

The Department will be updating its energy portfolio needs, and posting its information on its website at www.cers.water.ca.gov, sometime next week.

Public Utilities Commission Natural Gas Infrastructure Report Barbara Hale, the Director of Strategic Planning at the Public Utilities Commission (PUC) provided an update on the Natural Gas Infrastructure Report that is due to the Power Authority by November 15. Ms. Hale indicated that the PUC is working with the California Energy Commission (CEC) to evaluate the adequacy of the natural gas infrastructure, including interstate pipelines, intrastate pipelines, local distribution, storage and backbone. The PUC fully expects to have the report finalized and ready to deliver to the Power Authority by November 15.

Preliminary findings indicate that in-ground storage is at 85 percent of capacity, a healthy margin to meet demands through the winter. While there still is room to inject additional natural gas, the PUC is expecting a moderate winter with low gas demand. Chairman Freeman requested that the Natural Gas Infrastructure Report also include a forecast of natural gas availability from the lower 48 states and Canada, as well as whether or not California may depend on these sources to meet its needs.

Board Member Vial questioned if the unbundling of storage has been successful. Ms. Hale replied that the PUC is monitoring non-core use, and that preliminary findings indicate that many non-core customers are increasing their use of storage.

Activities Related to Renewable Energy and Conservation Staff at the Power Authority reported that coordination between the PUC and the Power Authority is necessary to optimize conservation, energy efficiency, and demand response. Specifically, the Power Authority is putting together a residential loan program; financing for efficiencies in public buildings; and, financing for small commercial and industrial upgrades. The Power Authority believes that the small commercial and industrial market is the most under-served, due to the multiple demands on owners and their lack of resources. The Power Authority is looking at ways to assist these customers in retrofitting their facilities.

At the other end of the spectrum, the Power Authority believes that large commercial and industrial customers require the least assistance. The Power Authority believes these customers are well served under current programs, but acknowledged that many of the demand response programs would be better coordinated under the administration of just one agency.

Finally, Board Member Vial questioned why there has been little emphasis on real time pricing. Power Authority staff agreed that real time pricing has not been a priority, and that the infrastructure to implement a real time pricing program does not currently exist. Staff did indicate, however, that a recent \$35 million investment in meters should help to incentivize these programs.

Freeman concluded that it is important for the Power Authority to build on the momentum of conservation, and he acknowledged that technology finally is being priced such that real time pricing makes sense and likely will be an integral part of the Power Authority's program.

Laura Doll Named as New Executive Director Laura Doll of Austin, Texas was approved as the Chief Executive Officer of the Power Authority at the October 5 Board meeting. Most recently, Doll was Director of Customer Service for Grande Communications. She also has held the positions of Senior Vice President for Planergy, as well as Chief Administrative Officer for Austin Energy. Doll received a master of public affairs from the University of Texas at Austin, and a bachelor of arts degree from Virginia Polytechnic Institute. She will receive an annual salary of \$200,000.

COMPUTER RECORDS CONFIDENTIALITY BILL VETOED (AGAIN)

Governor Davis vetoed SB 147 by Senator Debra Bowen (D-Marina Del Rey) on October 8. The bill would have required employers to prepare and distribute by hard copy or electronically, a company monitoring policies and practices notice to each employee, to collect and verify their understanding of the notice, and fi

Message 818 of 1299

Governors Press Conference	
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File	dasovich-j/all_documents/10718.

Greetings:

As many of you know the Governor held a press conference tonight- below is the Summery. Jan had a live Satellite feed-broadcast state wide-outside the governors office at the end of the press conference in which NBC, ABC, CBS, CNN, Fox, and several of their local, LA, Bay Area affiliates as well as most of the Capitol Press Core including the Wall Street Journal, Sacramento BEE. LA Times, Bloomberg, SF Chronicle, SJ Mercury News, AP and others. WE will keep you posted of others. Just a reminder we will also be holding a press availability tomorrow at 11:30 a.m. in which we will be discussing further IEP's reaction to the Governors Press Conference and other events in the Legislature this week.

As always we will keep you posted...

Katie Kaplan

FOR IMMEDIATE RELEASE 04/05/2001

GOVERNOR GRAY DAVIS DELIVERS ADDRESS TO CALIFORNIANS ON ENERGY

SACRAMENTO

Governor Gray Davis today delivered an important live address on energy from his office in Sacramento. The following are his remarks as prepared for delivery:

"Good evening. I'm speaking to you tonight from Sacramento on the most difficult issue facing California: our energy crisis.

"Simply stated, we have two problems: supply is too low and costs are too high. Both result from the flawed deregulation scheme created in 1996. But no matter how we got into this mess, you hired me to solve problems. And that's what I'm doing.

"The only long-term solution is to build more power plants. We must also cut back on consumption and stabilize the utilities. But prices won't fall and supply won't be truly reliable until we generate more power than we consume.

"Yet in the 12 years before I took office, not a single major power plant was built in California. Not one. Since I became Governor, we've licensed 12 major power plants. Ten more are in the pipeline. And we're doing this without weakening our commitment to clean air and clean water.

"Deregulation required the utilities to sell off many of their power plants to independent generating companies. The generators are free to charge whatever they want because they're governed only by federal regulators who refuse to control wholesale energy prices.

"This past winter, the prices charged by the generators shot through the roof, driving the utilities to the brink of bankruptcy.

"In January, with the feds still refusing to do their job, California stepped in to purchase the power the utilities could no longer afford to buy. We didn't take over to save the utilities. We took over to keep the power on and the economy strong. That's not all:

We also negotiated long-term contracts for electricity at vastly lower prices. I used my emergency powers to seize control of low-cost power contracts the utilities were about to forfeit to the generators. We began negotiations to buy the utilities' transmission system. We cut red tape and offered cash incentives to speed up construction of power plants. We're launching an \$800 million conservation program. We're moving to establish a public power authority to build more power. If the private sector fails to build all the plants California needs, we'll build them ourselves. And because I share your concern that the generators are ripping us off, we're using every legal remedy to root out and punish illegal conduct.

"We can't fix 12 years of inaction overnight. But we're making real progress.

"Now, as you know, I have fought tooth and nail against raising rates. It's become increasingly clear, however, that with rising natural gas prices, the feds' failure to control costs, and the state's lack of supply, that some rate increases are needed to keep our lights on and our economy strong.

"But I remain committed to protecting average Californians from massive rate hikes. So I'm urging the Public Utilities Commission to adopt a plan that will protect average consumers, reward those who conserve and motivate the biggest users to cut back.

"Under my proposal, more than half of you won't pay a penny more. For the rest, the average increase will be 26 and a half percent. For many of that group, rates will rise only about 10 percent. The heaviest users will see their rates rise 34 and a half percent on average. That includes business paying their share. This is in addition to the 9 percent surcharge we've all been paying since last winter.

"But all Californians can reduce their bills through conservation.

"Here's the point: The more you use, the more you pay. The more you conserve, the more you save. Conservation is our best short-term weapon against blackouts and price-gouging. By flexing your power, you'll help secure our energy future.

"Unlike the PUC, my plan includes funds to restore the utilities to financial stability -- If they agree to three main conditions:

"They must provide low-cost regulated power to the state for 10 years. Agree to sell us their transmission system. And dismiss their lawsuits seeking to double your electricity rates.

"My proposal raises rates fairly, assures us of long-term power, stabilizes the utilities and promotes conservation.

"Our emphasis on conservation is critical. In order to make it through the summer, we must cut demand by at least 10 percent.

"Already we've launched programs to cut back commercial lighting, and reduce consumption in office buildings, schools and government facilities.

"Friends, we have a power shortage but we are far from powerless. We are 34 million strong and if each of us does our part, we can minimize disruptions and get through the summer. We are Californians. We've withstood earthquakes, floods, fires, and droughts.

"Yes, this mess is man-made, but with your help and God's blessing, we'll get through this as well.

"Thank you and good night."

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

Message 819 of 1299

TR's State NewsWire 1/25/00 2 P.M. Edition

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Telecommunications Reports presents TR's State NewsWire January 25, 2001 2 P.M. Edition

STATES LOUISIANA -- PSC discusses creating a 'pool' of CLECs KANSAS -- Arbitrators say SW Bell doesn't have to combine UNEs for Sprint KANSAS -- KCC to take a look at how USF dollars are spent MISSOURI -- Sen. Kinder aims to enact UETA NEW YORK -- Legislators wants rate disclosure and per-second billing ILLINOIS -- Legislation would tax Internet sales OKLAHOMA -- Bill allows state agencies to adopt digital signature rules UTAH -- PSC seeks comments on service quality rules MISSOURI -- Bill would exempt some interstate telecom services from sales taxes VIRGINIA -- Verizon requests collocation exemptions MINNESOTA -- Rural carriers say governor's plan will lead to higher rates VIRGINIA -- House approves bill to eliminate certification hearings NEW MEXICO -- Hearings on Qwest 'alt reg' plan to continue next week

CUSTOMER-AFFECTING LOUISIANA PSC discusses creating a 'pool' of CLECs

The Public Service Commission yesterday discussed a staff report on creating a "pool" of competitive local exchange carriers (CLECs) to provide service to CLEC customers whose providers are unable to pay their debts to incumbent local exchange carriers (ILECs). The pool aims to enable CLEC customers to continue receiving reliable service without having their business revert to ILECs such as BellSouth Telecommunications, Inc.

The commission took no action on the issue at yesterday's session but plans to discuss it again next month, a commission staff member told TR. Meanwhile, the state's CLECs are addressing the issue at a meeting today in Baton Rouge, the staff member said.

SECTION 251/252 KANSAS Arbitrators say SW Bell doesn't have to combine UNEs for Sprint

Two state Corporation Commission arbitrators have determined that the law doesn't require Southwestern Bell Telephone Co. to combine unbundled network elements (UNEs) at the request of Sprint Communications Co. L.P. that aren't combined already. Originally the arbitrators ruled that SW Bell had to provide Sprint UNE combinations that SW Bell ordinarily provides to itself when provisioning telecom services for its customers.

The arbitrators said they based their reversal on a U.S. District Court for the Western District of Michigan (Grand Rapids) decision, which stated, "Under the [federal Telecommunications Act of 1996] it is the duty of the requesting carriers, not the incumbent [local exchange carriers], to combine the elements." The court explained that it couldn't insert a bundling

requirement and added that the state also was precluded from imposing such a requirement.

The ruling will be sent to the KCC for action. The arbitrator's ruling is available at <http://www.kcc.state.ks.us/scan/200101/20010119165748.pdf>. (Docket no. 00-SCCC-1046-ARB)

UNIVERSAL SERVICE KANSAS KCC to take a look at how USF dollars are spent

The state Corporation Commission has determined that it needs to monitor how nonrural and rural telecom carriers are using the universal service funds they receive from the state and federal governments. Carriers must use the funds "only for the provision, maintenance, and upgrading of facilities and services," according to section 254(e) of the federal Telecommunications Act of 1996.

Parties must file comments by March 9 detailing any mechanisms the KCC can use to monitor whether the support is being used appropriately. Replies are due March 30. (Docket no. 01-GIMT-595-GIT, In the Matter of a General Investigation to Ensure Compliance with Section 254(e) of the federal Telecommunications Act of 1996)

INTERNET MISSOURI Sen. Kinder aims to enact UETA

Sen. Peter D. Kinder (R., District 27) has introduced SB 220 to make electronic transactions as legally binding as paper transactions if the parties involved agree to conduct business electronically. SB 220 also would repeal the Missouri Digital Signatures Act.

Certain types of transactions still would have to occur manually. The proposed bill, for example, wouldn't supersede laws that govern the creation and execution of certain types of documents, such as wills, codicils, or testamentary trusts.

It has been referred to the Senate Committee on Commerce and Environment.

CUSTOMER-AFFECTING NEW YORK Legislators wants rate disclosure and per-second billing

Assemblyman Scott M. Stringer (D., District 67) has introduced two bills to modify telecom pricing practices.

AB 1968 would require long distance service providers that use access codes to disclose their rates. The carriers would have to provide intrastate and interstate rates and "the effect of such variables as time of day and call duration" each time a caller uses the access code. The companies also would have to provide the rate information to local exchange carriers, who would have to share the information with their customers semiannually.

The second measure, AB 1668, would require all charges based on call duration to be charged and prorated by the second. The proposed law would apply to charges for both landline and wireless calls and all service providers and "aggregators," such as hotels and hospitals.

Both bills have been referred to the Committee on Corporations Authorities and Commissions. The text of AB 1968 is available at <http://assembly.state.ny.us/cgi-bin/showtext?billnum=A01968>, and the text of AB 1668 is available at <http://assembly.state.ny.us/cgi-bin/showtext?billnum=A01668>.

INTERNET ILLINOIS Legislation would tax Internet sales

Rep. John (Jack) McGuire (D., Joliet) has filed HB 278 to subject Internet purchases shipped to Illinois addresses to the state's sales tax. The measure was filed yesterday and hasn't been formally introduced in the House yet.

INTERNET OKLAHOMA Bill allows state agencies to adopt digital signature rules

Rep. Fred Perry (R., District 69) has prefiled HB 1322 to allow state agencies to adopt their own rules governing the use of digital signatures. The rules would have to meet or exceed the rules adopted by the Secretary of State. The bill wouldn't require any person to use or permit the use of electronic or digital signatures.

HB 1322 would set up certain requirements for citizens to become certification authorities in Oklahoma. The applicant would need to register with the Secretary of State and pay a filing fee. Additionally, the applicant would need to provide the Secretary of State a bond, certificate of insurance, or other evidence of financial security in the amount of \$100,000.

CUSTOMER-AFFECTING -- SERVICE QUALITY UTAH PSC seeks comments on service quality rules

The Public Service Commission has asked for comments by Jan. 29 on proposed service quality rules, most of which would apply only to Qwest Corp. (1/11/01 p.m.) The rules would require Qwest to install 90% of all new, transfer, and

change orders within three business days or on the customer's requested due date. Beginning in July, the company would have to install 95%.

The draft rules also would allow Qwest to have a maximum of five held orders per 1,000 new, transfer, and change orders at the end of any month. Beginning Jan. 1, 2002, the company could have only four such held orders. If it missed an installation commitment, residential customers would receive a \$10 credit, and small business customers would receive a \$40 credit.

Qwest would have to repair 80% of all out-of-service troubles within one business day and repair 85% of them starting in July. It would have to repair 90% within two business days. If Qwest missed a repair commitment, it would have to credit residential customers \$10 and business customers \$40.

The proposed rules also address reporting requirements, billing, and disconnection. The rules are scheduled to be submitted to Administrative Ru

Message 820 of 1299

Janet Yellen Named to the Academy of Arts and Sciences

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Haas NewsWire April 30, 2001

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Janet Yellen Named to the Academy of Arts and Sciences Semiconductor Technology Takes First Place in UC Berkeley B-Plan Competition Haas Leads Western Business Schools in Quirky Wall Street Journal Ranking Berkeley Team Wins Advertising Case Competition New Staff Haas in the News Happening at Haas?? Haas Celebrations

JANET YELLEN NAMED TO THE ACADEMY OF ARTS AND SCIENCES Janet Yellen, the Eugene E. & Catherine T. Trefethen Professor of Business Administration, was named a fellow of the American Academy of Arts and Sciences on April 26, 2001. Members of this year's class included 211 distinguished scholars, scientists, artists, business executives, educators, and public officials. They were honored for their achievements in fields ranging from mathematics to medicine, from computer science to literary criticism, and from public affairs to the performing arts.

"Janet Yellen is well-deserving of this honor," says Ben Hermalin, associate dean of academic affairs. "She is one of the leading economists of her generation. Her work covers so many areas within economics that it is difficult to characterize, except to note that it is all uniformly excellent and always exhibits great clarity of thought. Her works are always about matters of interest, usually of importance to policy debates, and they provide tremendous insights into these matters."

Yellen's work includes major contributions in international economics, macroeconomics, microeconomics, labor economics, and the economics of social policy. Her writing has often focused on federal economic policy issues. She has served as Chair of the Council of Economic Advisers and as a member of the Board of Governors of the Federal Reserve. Her writings on bundling and advertising (micro) and "near-rational" theory of business cycles are much cited, as are her papers on neighborhoods, crime, and teen pregnancy.

She graduated summa cum laude from Brown University with a degree in economics in 1967 and received her Ph.D. in economics from Yale University in 1971.

"You cannot help but learn from -- and be persuaded by -- reading a Yellen article," says Hermalin. "Although presumably not a factor in her receiving this honor, it is a pleasure to observe, nonetheless, that Professor Yellen is also an excellent teacher and a valued citizen of the Haas School and campus."

The academy has numbered among its members each generation's finest minds and most influential leaders, from George Washington and Ben Franklin in the eighteenth century to Daniel Webster and Ralph Waldo Emerson in the nineteenth and Albert Einstein and Winston Churchill in the twentieth. The current membership of 3,600 Fellows and 600 Foreign Honorary Members features more than 150 Nobel laureates and 50 Pulitzer Prize winners.

The new class is composed of 185 Fellows, along with 26 Foreign Honorary Members from 14 nations. New Fellows are nominated and elected by current members of the academy. More information is available at <http://www.amacad.org/news/new2001.htm>.

SEMICONDUCTOR TECHNOLOGY TAKES FIRST PLACE IN UC BERKELEY B-PLAN COMPETITION RAPT Technologies, which has developed a dramatically faster and more cost-effective technology for etching and polishing optical and semiconductor materials, has won the third annual UC Berkeley Business Plan Competition. The Haas MBA organizers of the competition announced the three winning teams, which share more than \$90,000 in cash and prizes, at Wednesday's final awards ceremony.

"The quality of the plans was extremely high," said Michael Powell, managing director of Sofinnova Ventures and a final round judge. "The teams all had their acts together. I would have taken any one of these teams to my partners."

RAPT's technology is able to etch or polish materials without making contact. It is 10 to 10,000 times faster than existing technologies and operates at atmospheric pressure. The idea came from Jeff Carr of the Manufacturing and Materials Division at Lawrence Livermore Laboratory. He was joined by Haas evening MBA student Peter Fiske and Mona Alves, founder, president, and CEO of CHAT Communication Services.

In addition to the \$50,000 first prize, RAPT received the \$5,000 People's Choice Award, based on votes from the audience -- and independent from the judges -- at the awards ceremony.

The second prize of \$25,000 went to biotechnology venture Arotea Biochips. Arotea aims to enhance drug discovery with its rapid and easy-to-use protein measurement system. Arotea developed a patent-pending biochip for parallel analysis of 100 to 10,000 protein samples and is designed to be bio-compatible with virtually all proteins and capture agent libraries.

Haas evening MBA student Thomas McVey joined the Arotea team, which also includes students from Boalt Hall School of Law and UCSF. Arotea had previously won second prize for best management team in the Haas Social Venture Competition on April 14.

TruVideo, a wireless video infrastructure company, received the third prize of \$10,000. TruVideo offers digital image quality over broadband that is superior to existing technologies. The company intends to take advantage of the convergence of wireless technology and the Internet to become the standard video platform for the emerging web-enabled wireless device market.

The TruVideo team consists of three Haas MBA students, Joseph DelCallar, Steven Stokols, and Raj Manghani, as well as engineering undergraduate Greg Chew and professor of electrical engineering Avidah Zakhor.

All six of the finalist teams have had at least one team member enrolled in "Opportunity Recognition," a course on how to commercialize new technologies taught by Andrew Isaacs, executive director of the Management of Technology program.

More than 65 venture capitalists, angel investors, and successful entrepreneurs served as judges and evaluated the business plan submissions. Another 26 entrepreneurs, professors, and professionals served as mentors to the teams that qualified for the first round and helped them develop their plans.

The keynote speaker at the awards ceremony was Nick Sturiale, MBA 2000, who was the founding CEO of Timbre Technologies. Timbre Technologies, a semiconductor software company that won the 1999 business plan competition, and was sold in February to Japanese company Tokyo Electron Limited for \$138 million.

To date, teams from the 1999 and 2000 competitions have raised well over \$90 million in venture financing, including 1999 teams: +???????Alloptic- \$19.7M www.alloptic.com); +???????AudioBasket- \$29M www.audiobasket.com); +???????GetRelevant- \$4.855M www.getrelevant.com); +???????Hotpaper- \$2M, Acquired for \$10M by GoAmerica www.hotpaper.com); +???????Timbre Technologies- \$2.8M (no website); and +???????ZipRealty- \$27.7M www.ziprealty.com).

and 2000 teams: +???????DeltaClick (formerly known as iJacker)- \$1.5M www.deltaclick.com); +???????Onwafer (formerly known as AMS)- \$350K www.onwafer.com); +???????Opient- \$400K www.opient.com); and +??????? Skyflow- \$3.5M www.skyflow.com), winner of the 2000 competition.

HAAS LEADS WESTERN BUSINESS SCHOOLS IN QUIRKY WALL STREET JOURNAL RANKING The Wall Street Journal ranked the Haas School as the best MBA program in the West in the newest and latest ranking of business schools in a special section of the newspaper on Monday, April 30.

Although the Haas School ranked only 21st out of 50 in the survey, the school's showing outscored all other business schools from the West Coast through the Rocky Mountain states - including Thunderbird (25); UC

Message 821 of 1299

Enron Mentions - 07/14/01 - 07/16/01

Sender	ann.schmidt@enron.com
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File	dasovich-j/all_documents/28755.

Future of Kyoto Protocol Minus U.S. Is Uncertain The Wall Street Journal, 07/16/01

As the shakeout proceeds, some business-to-business marketplaces show their staying power. The New York Times, 07/16/01

Municipal power firms cleaned up / Public producers charged state far more than private The San Francisco Chronicle, 07/16/01

Enron's Lay Visit Fails To End India Dabhol Woes Dow Jones International News, 07/16/01

INDIA'S NTPC WILL NOT BUY ENRON STAKE IN DAHBOL POWER: GOVERNMENT Asia Pulse, 07/16/01

INDIA PRESS: Min Rules Out NTPC Buying Out Dabhol Power Dow Jones Asian Equities Report, 07/16/01

INDIA PRESS: Dabhol Needs \$500M To Restart Construction Dow Jones Asian Equities Report, 07/16/01

ITALIAN PRESS: Montedison Seeking Help In Takeover Defense Dow Jones International News, 07/16/01

San Jose Mercury News, Calif., Stocks.comment Column KRTBN Knight-Ridder Tribune Business News: San Jose Mercury News - California, 07/16/01

Innogy's pounds 300m power-trading lift The Independent - London, 07/15/01

Finalise terms of reference for Enron probe in 8 days:Munde Press Trust of India Limited, 07/15/01

Karl Rove, President's Focus Engineer, Finds Self in Spotlight; Eyes of Bush Critics Turn to Key Adviser If the Message Blurs The Washington Post, 07/15/01

8 firms plan building vast interstate gas pipelines / But energy experts say other states could tap into supply first The San Francisco Chronicle, 07/15/01

Sale withdrawal raises Mitie hopes The Times of London, 07/15/01

Future of Kyoto Protocol Minus U.S. Is Uncertain By John J. Fialka and Geoff Winestock Staff Reporters of The Wall Street Journal

07/16/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Diplomats from around the world gather in Bonn starting today to address a seminal question: Will there be a Kyoto protocol on global warming without the U.S., or none at all? The key player in answering that question appears to be Japan, whose position may well determine whether other industrialized nations move ahead despite the Bush administration's vigorous opposition. The Kyoto protocol will be the central issue at a United Nations convention, which

initially was intended to complete the pact after talks in The Hague broke down in November over relatively minor differences between the European Union and the U.S. Since then, however, President Bush rejected the treaty as "fatally flawed," throwing its future into doubt. The protocol, brokered by former Vice President Al Gore in 1997 and later signed by former President Clinton, requires industrial nations to reduce their emissions of carbon dioxide and five other gases thought to be warming the planet by 5.2% below 1990 levels. The Bush administration wants an alternative that is less punishing on the energy-intensive U.S. economy, and that imposes tougher requirements on China, India and other fast-developing nations. President Bush on Friday announced a series of steps to reduce the impact of heat-trapping gases, in lieu of the Kyoto protocol. The president unveiled a \$120 million National Aeronautics and Space Administration project to study climate modeling, among other things. The Department of Energy, meanwhile, has signed two agreements to study carbon levels, and the White House also awarded \$25 million in grants for similar studies elsewhere. Finally, the Department of Treasury started a \$14 million forest-conservation program in El Salvador. Still, the U.S. turnabout on Kyoto continues to shock Europe, and European leaders vow to go it alone. "To wait for the U.S. is to wait for someone who has refused your invitation," European environment commissioner Margot Wallstrom said this week. But under the terms of the protocol, the Europeans need ratifications from industrial nations that emit 55% of the developed world's "greenhouse" gases, and European nations don't account for that level of reductions themselves. Reaching that amount without the U.S. isn't possible without the support of Russia and Japan. Japan's position is most up in the air, and it accounts for 8% of total emissions. Japan's environmental minister, Yoriko Kawaguchi, paid a series of last-minute calls on U.S. cabinet officials on Friday. Japanese officials want the Kyoto protocol to come into force, but they appear reluctant to take a position against the Bush administration. To push its case, the EU has spent the past two weeks trying to build a constituency around the world to put the protocol into effect, a move that would allow key provisions to acquire legal force, such as an international emissions-trading system and penalties for noncompliance. Ms. Wallstrom visited Asia and Australia last week, and British Deputy Prime Minister John Prescott was in Tokyo on Thursday. The EU strategy has been to offer to make it easier for these wavering countries to sign up. For example, the EU was previously reluctant to allow "sinks" such as forests, which soak up carbon dioxide and hence reduce net emissions of greenhouse gases, to be counted toward national targets for emission reductions. But in a bid to win support from key countries, especially Japan, it is now offering more flexibility on sinks. Paula J. Dobriansky, an undersecretary of state who will lead the U.S. delegation, said the U.S. will not block other nations that want to pursue the protocol, but it will intervene in Bonn if the talks affect other U.S. interests. "We plan to be very active and constructive in that regard." The Bush administration is still studying alternatives to the treaty. Meanwhile, U.S. companies are divided on the protocol. Eileen Claussen, head of the private nonpartisan Pew Center on Climate Change, has formed a group of 36 major companies that includes DuPont Co., Enron Corp., Weyerhaeuser Co. and Boeing Co., to argue for action on global warming. While they don't agree on every aspect of the Kyoto formula, she explains, "they all want to get this process started in a way that spreads out the pain but gets something done." Meanwhile, the Global Climate Coalition, whose membership includes the U.S. mining industry, the National Association of Manufacturers and other large industrial trade associations, supports the Bush antitreaty stance. Taking more time to discuss the protocol, says Glenn Kelly, its executive director, "will continue the Kyoto quagmire and allow diplomats to continue to collect frequent-flier miles."

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Business/Financial Desk; Section C E-Commerce Report As the shakeout proceeds, some business-to-business marketplaces show their staying power. By Bob Tedeschi

07/16/2001 The New York Times Page 4, Column 1 c. 2001 New York Times Company

EARLIER this year, Forrester Research, the Internet consulting firm, predicted that the universe of business-to-business e-marketplaces would shrink to a mere 180 in the next two years, from 1,000 or more today. It was a bleak forecast, but one that surprised few who had watched such sites search in vain for customers in 2000. The shakeout is proceeding apace, with the rate of mergers and failures picking up where the consumer e-commerce sector left off. But just as some survivors have begun to emerge from the consumer e-commerce rubble, so, too, have some of the so-called B2B marketplaces started to show some staying power. In recent weeks, Pantellos, an online marketplace for the utilities industry, said it had handled nearly \$200 million of transactions since it rolled out in January. ChemConnect, an online chemicals exchange, recently crossed the \$1 billion mark in transactions handled so far this year. Intercontinental Exchange, a trading site for electric power, gas and oil,

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Enron Mentions - 06/23/01 - 06/24/01

Sender	ann.schmidt@enron.com
Recipients	[]
File	dasovich-j/all_documents/28086.

Trust And Antitrust The New York Times, 06/24/01

Looking at E-Business From Both Sides Now The New York Times, 06/24/01

Getting Serious About Earth-Friendly Energy Los Angeles Times, 06/24/01

ENERGY CRUNCH / Power players lay blame / Deregulation creators defend their actions The San Francisco Chronicle, 06/24/01

USA: California power refund talks begin Monday at FERC. Reuters English News Service, 06/24/01

PGE CRITICIZES ELECTRICITY PRICE LIMITS Portland Oregonian, 06/24/01

India: Calcutta HC rejects EMC plea Business Line (The Hindu), 06/24/01

India: DPC lenders unhappy with S&W report Business Line (The Hindu), 06/23/01

Enron CEO gets pie in face Press Trust of India Limited, 06/23/01

POWER POLLUTION NO LAUGHING MATTER South Florida Sun-Sentinel, 06/23/01

San Francisco Tourists Just Roll with the Outages Contra Costa Times - Walnut Creek, California, 06/23/01

El Paso Awaits Decision as Generators Prepare to Face Lawsuits Bloomberg, 06/23/01

Alleged Power Overcharges May Be Less Than Calif Argues Dow Jones Energy Service, 06/22/01

Editorial Desk; Section 4 Reckonings Trust And Antitrust By PAUL KRUGMAN

06/24/2001 The New York Times Page 13, Column 1 c. 2001 New York Times Company

When the European Commission indicated it was likely to block the proposed merger between General Electric and Honeywell, American politicians from George W. Bush on down cried foul, with some alleging that the decision was politically motivated. They're almost certainly wrong about that, but it is true that the E.C.'s case against the merger is far from watertight. Mario Monti, Europe's competition referee, may have made a bad call on this play. Nonetheless, our politicians should lower their voices. Mr. Monti is one of the good guys in today's global economy. He should not be made the target of attempts at political intimidation. To put the G.E.-Honeywell affair in context, you need to realize that this case is a triple switcheroo: it contradicts not one but three pieces of conventional wisdom. First, the conventional view is that globalization weakens governments, because it forces them to compete for private investment. Broadly speaking, this view is right. (Conventional wisdom usually is.) There are, however, exceptions to the rule, and antitrust policy is one of those exceptions. In today's world, no company can compete effectively unless it can operate freely on both sides of the Atlantic -- which it can do only with a green light from antitrust authorities in both the United States and Europe. The result is that instead of eroding the power of those authorities, globalization has extended their reach: American regulators can block European mergers, and vice versa. Second, this case inverts traditional roles. Until recently, only the U.S. seemed to take antitrust policy seriously. Europeans might have U.S.-style legislation on the books, but they often seemed to feel that cartels, like extramarital affairs, were nothing to worry about as long as the participants were discreet -- and they were scornful toward puritanical Americans who insisted on enforcing the letter of the law. Lately, however, Europe has gotten serious about antitrust, giving the competition commissioner broad powers to block mergers and investigate allegations of anticompetitive behavior. Mr. Monti, an American-trained university professor who assumed that office in 1999, has used those powers aggressively. General Electric and Honeywell are by no means the first companies to find Mr. Monti blocking what they thought was a done deal. Was Mr. Monti right to block this particular deal? It's a complicated issue. Let's just say that the case against this merger is similar to the case for breaking up Microsoft, though it seems a lot weaker. On the

other hand, you don't need as strong an argument to block a merger as you do to break up a going concern. We're in a gray area, with the precise shade of gray a matter of opinion. Even if you disagree with Mr. Monti's opinion, however, his sincerity is not in doubt. The best answer to those who claim that this is really a protectionist ploy is Mr. Monti's track record: he has repeatedly shown himself willing to oppose the demands of powerful European interest groups. Why would he suddenly become a tool of protectionists? And that leads us to the third switcheroo. Europeans are accustomed to cozy cohabitation between politicians and businessmen; Americans tend to insist on at least the appearance of an arms-length relationship. But just at the moment when the Europeans have placed competition policy in the hands of a sternly upright professor, the United States has acquired an administration that seems oblivious to normal concerns about conflict of interest. It's not yet clear whether the Bush administration really is a government of, by and for big corporations to an extent not seen since Warren G. Harding was president, or whether it just looks that way. But the stories keep accumulating. Intel's chief lobbyist says that his highly inappropriate meetings with Karl Rove were "quite useful" to its merger case -- and Mr. Rove didn't even get a slap on the wrist. According to the outgoing chairman of the Federal Energy Regulatory Commission, the head of Enron offered to support him at the White House if he changed his policy positions. And it took three months -- and a sharp prod from Jake Tapper at Salon -- before Treasury Secretary Paul O'Neill honored his promise to sell his Alcoa stock. As a consumer, I'm not sure I trust these people to protect me from the market power of giant corporations. And so it's nice to know that Mr. Monti is out there, looking after my interests.

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Money and Business/Financial Desk; Section 3 BOOK VALUE Looking at E-Business From Both Sides Now By FRED ANDREWS

06/24/2001 The New York Times Page 6, Column 1 c. 2001 New York Times Company

BOOKS about e-business have proliferated over the last year. Undeterred by the dot-com crash and financial travails of many Internet companies, business publishers have turned to churning out an ever-widening array of guides to help well-established companies prosper on the Web. The books range from simplified manuals to weighty analyses of the dynamics of e-business ventures. Here are two examples at opposite ends of the spectrum: "D2D: Dinosaur to Dynamo" by David Stauffer (John Wiley & Sons, \$27.95), and "Place to Space: Migrating to E-Business Models" by Peter Weill and Michael R. Vitale (Harvard Business School Press, \$35). At first blush, "D2D" is a once-over-lightly account, a scissors-and-paste recycling of other books and the business press, duly footnoted, to be sure. The pages are salted with so many diverting lists, special boxes and eye-catching headlines ("Why the Web Can Be Farmer-Friendly") that the main text is an annoying weave through an obstacle course. With short paragraphs and lots of space between lines, the book cried out to be skimmed. But Mr. Stauffer, who has written books about America Online and Cisco Systems and many articles explaining how companies have adapted to the Internet, has assembled a fascinating menagerie of 20 businesses that have taken to e-business with great success. His brief histories include the obligatory e-favorites -- Enron, General Electric, Charles Schwab -- as well as peers like Ford Motor and Bertelsmann. But he also tells you about Snap-on Inc., DoveBid industrial auctioneers, the Antevia Inc. relocation service and Powell's Books of Portland, Ore., a thriving "independent" whose 68,000-square-foot flagship is one of the nation's largest bookstores. Powell's began in 1970, buying lightly used tex

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CMTA Legislative Weekly - 07/13/01

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CMTA Summer Tax and Energy Conferences Energy Keynote Speakers FERC Commissioners Nora Brownell and William Massey August 1-3, 2001 at South Lake Tahoe For registration and program information, go to CMTA's website: http://www.cmta.net/archive/2001_tahoe_conference.shtml

Legislative Weekly July 13, 2001 Issue 28, Volume 3 A weekly publication from the California Manufacturers & Technology Association detailing legislative and regulatory developments in Sacramento

FRIDAY THE 13TH SURPRISE FOR CALIFORNIA BUSINESSES The budget impasse will keep lawmakers working over the weekend. In addition, a deadline looms for a vote on the Governor's Memorandum of Understanding (MOU) to keep Southern California Edison (SCE) out of bankruptcy. The Assembly and Senate Democrats are making a final run at their own versions of the plan. A Senate version is still in the works, while the Assembly Energy Costs and Availability will hold an informational hearing Saturday afternoon on ABX2 82 (Keeley D-Boulder Creek). ABX2 82 currently allocates the SCE undercollection almost entirely to noncore customers (above 20kw), pays SCE two times net book value for transmission, and leaves open the possibility of a contribution from SCE above the \$400 million tax refund provided in the Governors MOU. The sketchy outline of a Senate plan would impose all undercollections to noncore customers, impose a \$300 million haircut to generators and an additional \$800 million from SCE. Direct access rights would be suspended under ABX2 82 until 2003 and a study would be authorized by March 31, 2002, on how to expeditiously phase in direct access for customers over 20kw (and green direct access under 20kw). Some of California's largest businesses have already been hit with rate increases over 100%. CMTA supports an equitable sharing of the costs of the SCE undercollection (as well as DWR contract costs) among all customer groups, and will oppose a solution to the SCE problem that unfairly shifts these costs to California businesses.

MORE OR LESS ENERGY There seems to be no shortage of bad business bills making their way through the Legislature. Issues range from imposing strict liability on generators that reduce or discontinue electricity generation, to subjecting generators to felony criminal penalties for making basic cost/benefit business decisions. Generator Liability A measure, ABX2 51 (Reyes D-Fresno), that makes an electricity generator strictly liable for any damages that are proximately caused when the generator reduces or stops generating electricity for economic reasons, passed (7-0) from the Assembly Judiciary Committee on July 3, 2001. Since negligence and intent need not be proven in order to establish strict liability, under ABX2 51, a generator could be held strictly liable for damages that resulted if electricity supplies were curtailed when the generator was temporarily shut down to perform routine maintenance, unscheduled maintenance or due to other external business factors. ABX2 51 also would make it difficult for a generator to permanently close a facility, even if the facility was not operating profitably. Despite the fact that electricity shortages are driven by any number of factors within and beyond their control, ABX2 51 would result in generators shouldering all liability and responsibility for electricity shortages. CMTA will be actively advocating against this measure before it is heard on the Assembly Floor. Felony Fuel Shortages ABX2 65 (Cardoza D-Merced) is a vaguely worded measure that does not explicitly identify what types of activities would be considered felonious. The measure allows an individual or entity to be prosecuted for "creating a fuel shortage" defined as: (1) The diminution by contrivance or artificial means of any of the supply of fuel to a point below that needed to meet consumer demand; (2) Restricting output or withholding capacity from bidding into the market; and, (3) Economic withholding by submitting bids at prices above the producers' marginal cost. Fluctuations of in-state and out-of-state generation; maintenance of facilities; weather; customer demand; and drought are just a few of the many components that converge to impact day-to-day energy supplies. ABX2 65 does not allow for the natural swings in supply and demand which are common in a market economy, and add one more unpredictable component to the market, thus further complicating price and supply fluctuations. In addition, the bill provides that producers only should receive marginal costs for their products. This precept flies in the face of a free market economy. Businesses should be able to receive a reasonable return on the products they produce and supply. Limiting a business' profits to marginal costs only further discourages investment in the State's energy infrastructure. Second, entities already may be prosecuted for illegal business practices, conspiracy, collusion and intentional market manipulation under the State's Cartwright Act and the Federal Sherman Anti-Trust Act, among others. Enforcement of existing state and federal laws is sufficient to address the alleged illegal business practices the bill purports to remedy. Third, the measure establishes that a person or entity who violates provisions of the bill is "guilty of a felony and may be punished in state prison and a fine not to exceed 10 percent of the corporation's gross corporate assets." These fines and penalties are excessively punitive. Fourth, the bounty-hunter provisions of the bill provide an incentive for employees and interest groups to investigate businesses for profit. Other bounty-hunter legislation passed by the Legislature has resulted in many frivolous lawsuits. Some of the costs associated with these suits are absorbed by businesses and some of the costs are passed on to consumers in the form of higher prices. In any event, the bounty-hunter provisions have the potential to unnecessarily increase energy costs. The regulatory branch of our government already has the authority to investigate alleged unfair business practices. This authority should not be passed on to employees and interest groups. ABX2 65 establishes a terrible precedent and has

the very real potential to reduce existing energy supplies and to discourage future energy infrastructure investment within the State. Office of Ratepayer Advocate Following the charge of Pacific Bell, CMTA and other business lobby groups have successfully slowed the progress of SB 201 (Speier D-Hillsborough) which repeals the sunset of the Office of Ratepayer Advocate (ORA). CMTA does not oppose the continued existence of the ORA, but is advocating against language inserted into the measure that significantly expands the ORA's authority. The ORA has exercised broad authority to supervise and regulate utilities, arguably beyond the authority it was granted when it became a stand-alone office. While there is ample legislative history in Public Utilities Code Section 309.5 indicating that the ORA should be independent of the Commission, the PUC's full authority was not automatically extended to the ORA. CMTA joined Pacific Bell in proposing amendments to limit the ORA's authority and to require the PUC to issue written orders when ruling on the ORA's discovery requests. Written rulings by an Administrative Law Judge or Commissioner would provide additional information to the ORA, utilities and the public explaining the basis for decisions. In addition, CMTA supports requiring the ORA to pursue alternative dispute resolution prior to filing a complaint. Many courts today utilize alternative dispute resolution because it often leads to a more efficient dispositio

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IEP News Update	
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IEP NEWS UPDATE:

US Lawmaker: Revoke 6 Pwr Cos Mkt-Based Selling To Calif ????

???????Updated: Tuesday, April 24, 2001 08:16 AM?ET ???

Calif Gov Forms Team To Speed Power Plant Construction ????

???????Updated: Tuesday, April 24, 2001 03:34 PM?ET ???

US Sens Unveil Bipartisan Bill To Cap Western Pwr Prices ????

???????Updated: Tuesday, April 24, 2001 12:17 PM?ET ????? ?

US Lawmaker: Revoke 6 Pwr Cos Mkt-Based Selling To Calif ???? Updated: Tuesday, April 24, 2001 08:16 AM?ET
 ????? ? (This article was originally published Monday)

LOS ANGELES (Dow Jones)--A U.S. Congressman from California asked federal regulators Monday to revoke the authority of six generators to sell power at market-based rates in the state because they abused that authority in the past, according to a letter seen by Dow Jones Newswires.

Congressman Bob Filner of San Diego accused the following companies of controlling power prices in California: AES Corp (AES, news, msgs), Duke Energy Corp (DUK, news, msgs), Dynegy Inc (DYN, news, msgs), Mirant Corp (MIR , news, msgs), Reliant Energy, Inc (REI, news, msgs), and The Williams Companies, Inc (WMB, news, msgs).

"Each of the companies was required, as a condition for the authority to sell at market-based rates, to demonstrate that they did not possess market power in the California generation market," Filner said in a letter to Federal Energy Regulatory Commission Chairman Curt Hebert. "It is clear that these firms, do, in fact, have market power and therefore do not satisfy the prerequisite for authority to sell at market-based rates under FERC rules."

FERC granted the generators market-based rate authority in 1998 for three years, and is in the process of determining whether to renew that authority.

Filner's letter comes on the heels of a meeting Thursday between California Gov. Gray Davis and 22 federal lawmakers from the state, where all agreed that FERC needs to take more action to curb skyrocketing wholesale power prices in

California.

The lawmakers have not, however, reached a consensus on how the FERC should keep prices in check. At least one other Congressperson, Democrat Jane Harman, said Thursday that she favored revoking generators' market-based rate authority.

The state's grid operator filed a letter to FERC in March claiming generators overcharged the state \$6.2 billion for electricity they sold in the state's power market between May 2000 and February 2001. FERC has ordered refunds for overcharges totalling \$124.5 million for January through March, 2001.

-By Jessica Berthold; Dow Jones Newswires; 323-658-3872; jessica.berthold@dowjones.com

Calif Gov Forms Team To Speed Power Plant Construction ???? Updated: Tuesday, April 24, 2001 03:34 PM?ET ????? ?
LOS ANGELES (Dow Jones)--California Gov. Gray Davis said Tuesday he has formed a task force to help speed the construction of new power plants in the state, according to a press release.

The team will examine construction schedules and shorten the startup time for power plants to be built and develop methods to overcome potential delays during construction, the release said.

The task force will comprise members of engineering and construction firms, and will be led by Ambassador Richard Sklar, who recently completed service as the U.S. President's Special Representative for Economic Reform and Reconstruction in Southeast Europe.

Sklar is the former owner of a construction machinery manufacturing firm and former president of a project management firm as well as former general manager of San Francisco's Public Utilities Commission, the release said.

Other members of the task force include project management executives from Bechtel Group Inc, URS Corp. ????????(URS, news, msgs), and Fluor Corp. (FLR, news, msgs) unit Fluor Daniel.

"To keep up the momentum and ensure we have 15% more supply online than demand by 2004, this project management team will work to expedite all phases of the power plant construction process," Davis said.

Davis also said Tuesday his energy advisor and staff director, John Stevens, is leaving the administration, but will continue to work with the governor on energy-related issues.

-By Jessica Berthold; Dow Jones Newswires; 323-658-3872; jessica.berthold@dowjones.com

US Sens Unveil Bipartisan Bill To Cap Western Pwr Prices ???? Updated: Tuesday, April 24, 2001 12:17 PM?ET ????? ?
WASHINGTON (Dow Jones)--U.S. senators Dianne Feinstein, D-Calif, and Gordon Smith, R-Ore., Tuesday unveiled bipartisan legislation to require federal regulators to impose cost-based electricity price controls throughout the western U.S..

The bill was unveiled at a press conference designed to ratchet up pressure on the Bush administration to relent in its opposition to price controls in response to a pending electricity supply crisis in the region this summer.

The measure would require the U.S. Federal Energy Regulatory Commission to limit the prices power suppliers can obtain to their cost of production plus a reasonable rate of return. The bill would allow FERC to determine what rate of return power providers could obtain. The cost-based price controls would remain in effect until March 1, 2003.

The bill also targets a FERC decision deemed to be exacerbating California's electricity crisis by driving up natural gas costs in the state. It would require FERC to end a temporary suspension of a natural gas transportation rate cap for sales into California. The bill would mandate that natural gas providers disclose to FERC commodity and transportation prices for sales into California.

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Oil & Gas Journal Online 6/8/2001: Suppliers lobby California law

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Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/27/2001 11:38 AM -----

"Beiser, Megan" <Megan.Beiser@edelman.com> 06/12/2001 03:56 PM

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This is another hit that grew out of the media advisory we sent out at the end of last week. Also, be on the look out tomorrow for another direct access story in the Orange County Register. That's when the reporter on the story has told us it will run.

Suppliers lobby California lawmakers for direct access for consumers By Kate Thomas OGJ Online Staff HOUSTON, June 8 -- The California Public Utilities Commission is scheduled to set a date formally ending retail choice for California consumers at its June 14 meeting, despite behind-the-scene maneuvering to keep choice alive for big power consumers. Large California electricity users and marketers have mounted a lobbying campaign in the legislature to keep direct access alive as an option. Sources said it has become a pivotal negotiating point in California Gov. Gray Davis's efforts to win Republican support for his proposed bailout of Southern California Edison Co. Davis ushered in the end of retail choice for electricity consumers when he signed a bill Feb. 1 that authorized the state to buy power on behalf of Pacific Gas & Electric Co. and Southern California Edison. The retail choice provision was added as amendment to the legislation. But it also left it up to the California PUC to set a date suspending the right of retail customers to select and use an alternative energy supplier. Davis appears willing to give suppliers and big businesses what they want in exchange for supporting his proposal to keep Southern California Edison, Rosemead, Calif., out of bankruptcy protection, sources said. He and the utility signed a memorandum of understanding under which the state would buy the company's transmission assets in exchange for various concessions on the part of Southern California Edison. But the deal also required various actions by the PUC and the California legislature. It also had deadlines under which certain actions were supposed to take place. So far little has happened. Earlier this week, the Alliance for Retail Energy Markets complained the PUC seemed ready to scuttle chances for achieving progress on either front by moving ahead to set a date to end competition. "There's no point for the PUC to support an order when it might be superseded by legislation," said Tracy Fairchild, a spokeswoman for the marketing organization whose members include Shell Energy Services, a unit of Shell Oil Co.; Enron Energy Services, a unit of Enron Corp.; both of Houston; GreenMountain Energy Co., Austin, Tex.; Commonwealth Energy Corp., White Rock, BC, and Strategic Energy LLC, an affiliate of Kansas City Power & Light Co., Kansas City, Mo. Opt out provision It isn't clear if PUC Commissioner Carl Wood has the support of other commissioners to set the date, Fairchild said. The commission also regularly postpones and pulls items off the agenda at the last minute if there is no consensus. But with a just-enacted rate increase that relies heavily on big business to carry the extra load the commission may not be amenable to giving large consumers an opt out provision. Suppliers have been lining up support wherever they can find it. Earlier this year, Vincent Viola, chairman of the New York Mercantile Exchange, weighed in on behalf of California suppliers and large retail customers. In a letter to Gray, he argued releasing medium and large commercial and industrial buyers from the

obligation of using state-supplied power would free billions of dollars of state capital from the risks of volatile energy markets. "It seems that medium and large businesses have been deemed unable to negotiate fair and reliable supply contracts on their own behalf," he said. He noted if industrials and medium sized businesses were allowed to pick up a supplier, the role of the state would be rolled back to cover the less than 50% of the market that includes homeowners and small business owners. Viola also touted the use financial market instruments to protect against unexpected energy price moves, rather than locking in prices under potentially high-priced fixed contracts. While retail electric deregulation is in trouble in many parts of the country, big business is managing to keep its options alive. Nevada recently all but rescinded its deregulation law that would have given all classes of customers the right to choose a supplier and ordered incumbent Sierra Pacific Resources, Reno, to halt the sale of its power plants. But users of one megawatt or more of electricity were exempted at the last minute and can still buy from suppliers other than the regulated utility units of Sierra Pacific Resources.

Message 826 of 1299

TR's State NewsWire 2/1/01 P.M. Edition

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Telecommunications Reports presents TR's State NewsWire February 1, 2001 P.M. Edition

STATES WASHINGTON -- WUTC sets line sharing, OSS transition, collocation prices

CONNECTICUT -- DPUC tells WorldCom to change collect call notification policy MICHIGAN -- Gov. Engler makes high technology a priority NORTH DAKOTA -- House passes bill to adopt UETA MISSISSIPPI -- UETA bill set to reach Senate floor NEBRASKA -- Judiciary Committee to consider cellphone bill MICHIGAN -- Legislation would prohibit telemarketers from blocking Caller ID HAWAII -- Bill would prohibit 'cybersquatting' TENNESSEE -- Filing fees for telephone cooperatives would rise under bill NEW YORK -- Bill would require written notice before terminating service contracts UTAH -- PSC to hold technical conference on number conservation WASHINGTON -- WUTC sets workshop on customer notice rules FLORIDA -- New '386' area code to take effect soon NEW YORK -- Time Warner Cable brings VoIP test to Rochester

SECTION 251/252 WASHINGTON WUTC sets line sharing, OSS transition, collocation prices

The Utilities and Transportation Commission has set a \$4 flat fee for use of the high-frequency portion of the loops in operating areas service by Qwest Corp. and Verizon Northwest, Inc. The commission also determined that Verizon may recover up to \$1.98 million and Qwest may recover up to \$5.5 million of their operation support system (OSS) transition costs. In addition, the commission addressed several collocation elements in its order, which was issued yesterday.

This decision addresses Part A of a second generic proceeding to determine costs and prices for network elements. During the first generic proceeding, the commission set the costs and prices for unbundled network elements (UNEs), including the unbundled loop. The first proceeding, which was split into three phases, set costs and established deaveraged prices for interconnection and UNEs. The second proceeding addresses network elements not included in the first proceeding.

The WUTC rejected the proposal espoused by many of the competitive local exchange carriers (CLECs) for an exemption from making any contribution to the recurring costs of the loop. Instead, the WUTC set a \$4 flat fee for line sharing. The commission also said it was premature to determine whether a non-zero price for the high frequency spectrum UNE would lead to overearning for Qwest or Verizon.

When the commission examined cost recovery issues related to the modifications Qwest and Verizon made to their OSSs to support a competitive environment, it determined that Verizon's proposed rates were just and reasonable. Verizon's nonrecurring charge for OSS transition cost recovery is \$3.27 per local service request, and its nonrecurring charge for OSS transaction costs recovery is \$3.76 per local service request.

The WUTC rejected Qwest's proposed OSS transition recovery costs and ordered the company to charge OSS transition and transaction rates equal to Verizon's approved rates. The commission noted that Qwest's proposed costs were too high--more than twice the level reported by Verizon--because the company doesn't perform its own OSS modifications. Qwest relies on Telcordia Technologies, Inc.

The commission allowed Verizon to collect a maximum of \$1.9 million and allowed Qwest to collect a maximum of \$5.5 million for OSS transition costs. Multiplying Verizon's proposed collection derived the value assigned to Qwest's OSS recovery by the approximate ratio of Qwest's access to Verizon's access lines within the state.

The commission also took up a variety of collocation issues. Verizon doesn't have to continue offering its Verizon-owned splitter option beyond Dec. 15, 2000, on lines not currently using the company's splitters. The commission found Qwest's assumption that the average cable length is 100 feet to be reasonable. It approved Verizon's estimates for planning and engineering time. Other collocation issues addressed in the order include Verizon's costs for cage enclosure and building modification, efficient splitter configuration, Verizon's jumper costs, and Verizon's environmental conditioning.

Hearings for Part B of this proceeding are scheduled to begin March 26. The order is available at <http://www.wutc.wa.gov/webdocs.nsf/6f30f546379903ad8825652a005e07f2/d0c1a5d5db085e78882569e50082ac29!OpenDocument>. (Docket no. UT-003013, In the Matter of the Continued Costing and Pricing of Unbundled Network Elements, Transport, and Termination)

CUSTOMER-AFFECTING CONNECTICUT DPUC tells WorldCom to change collect call notification policy

The Department of Public Utility Control has ordered WorldCom, Inc., to provide advance notice before imposing a collect call blocks on customers' telephone numbers. The DPUC's decision adopts a draft order released last month. (1/17/01 p.m.)

In March 1999 the DPUC launched an investigation into WorldCom's blocking procedures in response to complaints that the company had prevented the completion of collect calls from prison facilities. Families of inmates said WorldCom didn't notify them that collect calls would be blocked, even though they always paid their collect call charges. Under the company's current tariffs, WorldCom can block collect calls from correctional facilities without notice.

WorldCom places collect call blocks to prevent "high-toll fraud situations." The company identifies end users with unusually high numbers of collect calls. It then assesses the end user's payment history and whether the end user has verified that the calls are legitimate. If WorldCom is unable to verify the legitimacy of the calls, it places a block on the end user's line.

The department determined that WorldCom's procedures are reasonable for most customers but concluded that the company needs to make more of an effort to notify a "small segment of the end user population" that is being maligned by the company's procedures.

The department, however, removed language from last month's draft that said the imposition of a collect call block constituted "a form of termination of service." The department instead simply ordered WorldCom to revise its notification procedure to "ensure that every end user subject to the imposition of collect call blocks on intrastate services shall be provided advance notification."

If WorldCom can't reach a customer by phone and can't provide written notice by overnight mail, it must use a "live agent" to find the person. WorldCom can initiate a collect call block without actual notice only after trying the options for three days.

The department gave WorldCom until Feb. 25 to change its procedures and directed the company to submit a written copy of the new procedures by Feb. 28. WorldCom also must file status reports each month through June. (Docket No. 99-03-37, DPUC Review of MCI WorldCom, Inc.'s Collect Calling Notification and Termination Policies)

STATE & LOCAL GOVERNMENT MICHIGAN Gov. Engler makes high technology a priority

One of the initiatives Gov. John Engler (R.) outlined in his State of the State address is ensuring "unfettered access to the information economy." During his speech yesterday, Engler said local governments shouldn't be allowed "to erect stoplights and expensive tollbooths on the information highway."

The governor said he has asked the Public Service Commission, the Michigan Economic Development Corp., and the e-Michigan office to recommend immediate reforms. The Economic Development Corp. assists businesses seeking to expand or relocate within the state, and e-Michigan oversees the government's initiative to provide information electronically.

Engler said, "We need to eliminate excessive access fees. We need to curb lengthy negotiation. We need to curtail costly delays. Th

Message 827 of 1299

FW: Direct Access Application for Rehearing

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Please forward this to those who agreed to sign on -----Original Message----- From: Dan Douglass [mailto:douglass@energyattorney.com] Sent: Thursday, September 27, 2001 3:06 PM To: ARM; 'Fairchild, Tracy'; Norm Plotkin; Gary Ackerman; Vicki Sandler; Anderson, Robert; Marilyn Ferrara; Herb Zinn; John Yurkanin; Max Bulk; Steve Huhman Cc: Lon W. House; Scott Blaising Subject: Direct Access Application for Rehearing Importance: High

Attached for your review and comment is a third draft of the application for rehearing. The main changes are (1) the addition of several more parties (and will those who arranged for these parties to sign on PLEASE forward a copy of this draft to your contacts so that they get to see it and know how to contact me with any comments or suggestions); and (2) a legislative history section which summarizes the various pertinent bills and resolutions.

Please reply with any comments or suggested changes as soon as possible. Thanks!

Dan

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Message 828 of 1299

Re: Update on Governor's Press Conference

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File	dasovich-j/all_documents/10711.

I think you can also listen in via the local public radio station via the= =20 internet at:

<http://www.kqed.org/fm/whatson/live.html>

Alan=20

From: Jeff Dasovich@ENRON on 04/05/2001 04:58 PM CDT Sent by: Jeff Dasovich@ENRON To: Alan Comnes/PDX/ECT@ECT, Angela Schwarz/HOU/EES@EES, Beverly=20 Aden/HOU/EES@EES, Bill Votaw/HOU/EES@EES, Brenda Barreda/HOU/EES@EES, Carol= =20 Moffett/HOU/EES@EES, Cathy Corbin/HOU/EES@EES, Chris H Foster/HOU/ECT@ECT,= =20 Christina Liscano/HOU/EES@EES, Craig H Sutter/HOU/EES@EES, Dan=20 Leff/HOU/EES@EES, Debora Whitehead/HOU/EES@EES, Dennis Benevides/HOU/EES@EE= S,=20 Don Black/HOU/EES@EES, Dorothy Youngblood/HOU/ECT@ECT, Douglas=20 Huth/HOU/EES@EES, Edward Sacks/Corp/Enron@ENRON, Eric Melvin/HOU/EES@EES,= =20 Erika Dupre/HOU/EES@EES, Evan Hughes/HOU/EES@EES, Fran Deltoro/HOU/EES@EES,= =20 Gayle W

Muench/HOU/EES@EES, Ginger Dernehl/NA/Enron@ENRON, Gordon=20 Savage/HOU/EES@EES, Harold G Buchanan/HOU/EES@EES, Harry=20 Kingerski/NA/Enron@ENRON, Iris Waser/HOU/EES@EES, James D=20 Steffes/NA/Enron@ENRON, James W Lewis/HOU/EES@EES, James Wright/Western=20 Region/The Bentley Company@Exchange, Jeff Messina/HOU/EES@EES, Jeremy=20 Blachman/HOU/EES@EES, Jess Hewitt/HOU/EES@EES, Joe Hartsoe/Corp/Enron@ENRON=,=20 Karen Denne/Corp/Enron@ENRON, Kathy Bass/HOU/EES@EES, Kathy=20 Dodgen/HOU/EES@EES, Ken Gustafson/HOU/EES@EES, Kevin Hughes/HOU/EES@EES,=20 Leasa Lopez/HOU/EES@EES, Leticia Botello/HOU/EES@EES, Mark S=20 Muller/HOU/EES@EES, Marsha Suggs/HOU/EES@EES, Marty Sunde/HOU/EES@EES,=20 Meredith M Eggleston/HOU/EES@EES, Michael Etringer/HOU/ECT@ECT, Michael=20 Mann/HOU/EES@EES, Michelle D Cisneros/HOU/ECT@ECT, mpalmer@enron.com, Neil= =20 Bresnan/HOU/EES@EES, Neil Hong/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Paula= =20 Warren/HOU/EES@EES, Richard L Zdunkewicz/HOU/EES@EES, Richard=20 Leibert/HOU/EES@EES, Richard Shapiro/NA/Enron@ENRON, Rita=20 Hennessy/NA/Enron@ENRON, Roger Yang/SFO/EES@EES, Rosalinda=20 Tijerina/HOU/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah=20 Novosel/Corp/Enron@ENRON, Scott Gahn/HOU/EES@EES, Scott Stoness/HOU/EES@EES=,=20 Sharon Dick/HOU/EES@EES, skean@enron.com, Tanya Leslie/HOU/EES@EES, Tasha= =20 Lair/HOU/EES@EES, Ted Murphy/HOU/ECT@ECT, Terri Greenlee/NA/Enron@ENRON, Ti= m=20 Belden/HOU/ECT@ECT, Tony Spruiell/HOU/EES@EES, Vicki Sharp/HOU/EES@EES,=20 Vladimir Gorny/HOU/ECT@ECT, Wanda Curry/HOU/EES@EES, William S=20 Bradford/HOU/ECT@ECT, Kathryn Corbally/Corp/Enron@ENRON, Jubran=20 Whalan/HOU/EES@EES, triley@enron.com, Richard B Sanders/HOU/ECT@ECT, Robert= C=20 Williams/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Greg Wolfe/HOU/ECT@ECT, James= =20 Wright/Western Region/The Bentley Company@Exchange, Dirk vanUlden/Western= =20 Region/The Bentley Company@Exchange, Steve Walker/SFO/EES@EES, Jennifer=20 Rudolph/HOU/EES@EES, Martin Wenzel/SFO/HOU/EES@EES, Douglas=20 Condon/SFO/EES@EES, wgang@enron.com, Scott Govenar <sgovenar@govadv.com>,= =20 Hedy Govenar <hgovenar@govadv.com> @ ENRON, jklauber@llgm.com, Mike D=20 Smith/HOU/EES@EES, John Neslage/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Janel= =20 Guerrero/Corp/Enron@Enron, Eric Letke/DUB/EES@EES, Richard B=20 Sanders/HOU/ECT@ECT, gfergus@brobeck.com, Michael Tribolet/ENRON@enronXgate=,=20 Robert Frank/NA/Enron@Enron, Richard B Sanders/HOU/ECT@ECT,=20 gfergus@brobeck.com cc: =20

Subject: Update on Governor's Press Conference

----- Forwarded by Jeff Dasovich/NA/Enron on 04/05/2001 04:57 PM -----

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,=20

Katie Kaplan <kaplan@iepa.com>, <tcwillia@duke-energy.com>=,20 <rwhyde@duke-energy.com> =09=09 cc:=20 =09=09 Subject: Update on Governor's Press Conference

The Governor's Press Conference will air at 6:05 pm PST throughout Californ= ia=20 -- and IEP will be responding. =20

If you a

Message 829 of 1299

FW: Enron's Skilling Vows to Meet or Beat Profit Projections

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-----Original Message-----

From: Schmidt, Ann M. Sent: Wednesday, July 25, 2001 12:59 PM To: Denne, Karen; Kean, Steven J.; Palmer, Mark A. (PR) Subject: Enron's Skilling Vows to Meet or Beat Profit Projections

Enron's Skilling Vows to Meet or Beat Profit Projections 2001-07-25 13:34 (New York)

Enron's Skilling Vows to Meet or Beat Profit Projections

New York, July 25 (Bloomberg) -- Enron Corp. will meet or beat its profit projections this year and next, Chief Executive Jeffrey Skilling said, criticizing analysts who've recently lowered their forecasts for the largest energy trader. Enron said July 12 that it expects to make \$1.80 a share this year and \$2.15 in 2002. "We will hit those numbers, and we will beat those numbers," Skilling told a meeting of analysts and investors in New York. Enron shares have fallen about 13 percent since it made the profit forecasts. Skilling blamed the decline on analysts who downgraded U.S. energy companies because of falling prices for power and natural gas. Analysts have also cited concern about unpaid power bills by Enron customers in California and India, and losses by Enron's broadband trading unit, which may hurt Enron's profits. "All of these are bunk," Skilling said. "These are not issues for this stock." The shares of Enron fell 96 cents to \$42.33 in early afternoon trading today. Enron makes much of its money from profits from arranging trades of power, gas, oil and other commodities, Skilling said. It returns are based more on the volume of trades and energy contracts than on the prices of the commodities themselves, he said. "The growth of our sales is not driven by the economy," Skilling said. "It's driven by

the growth of markets." The refusal of a state government in India to pay \$64 million in power bills is not going to hurt Enron's earnings, Skilling said. "In India, we have government guarantees on the performance of our contract," Skilling said. "We're convinced we'll be paid in full" for the \$875 million the company has invested so far, plus unpaid power bills. Enron owns 65 percent of Dabhol Power Co., which invested about \$3 billion in a power plant in India. In California, Enron is owed more than the state's power grid manager has accused the company of overcharging, Skilling said. California is negotiating refunds with energy traders and generators after power prices soared in the state, leaving its two largest utilities so far in debt they could no longer buy electricity for their customers. The state has threatened to sue if power sellers don't agree to \$8.9 billion in refunds. Enron will cut its losses as it waits out a "meltdown" in broadband communications, Skilling said. The company's plan to trade space on fiber-optic telecommunications network helped its stock rise 87 percent last year. The stock has plunged 49 percent this year as the collapse of Internet companies darkened the outlook for broadband companies, and natural gas prices dropped from record highs in December. Houston-based Enron is selling more power in Europe, and more energy-management contracts to smaller commercial customers in the U.S., company executives said. Energy management contracts are agreements to buy energy for customers and find ways to cut their energy consumption. Enron also is poised to profit from a Bush administration proposal to expand competition for wholesale power, Skilling said.

USA: Enron says would not pay California refund. By Timothy Gardner

07/25/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, July 25 (Reuters) - Energy firm Enron Corp. would not pay its "minuscule" portion of the nearly \$9 billion California claims energy companies owe the state for overcharges during the Western power crunch, Enron President and Chief Executive Officer Jeff Skilling said on Wednesday. California alleges that electricity generators and marketers owe the state \$8.9 billion for overcharging it during the power crisis from mid-2000 to last spring. Governor Gray Davis, a Democrat, said he is prepared to go to court to retrieve the money. But Enron, the No. 1 U.S. natural gas and electricity marketer, does not intend to pay its portion of the alleged overcharges, which Skilling said was "minuscule." "The \$9 billion number is bogus to begin with," Skilling told analysts at a meeting about Enron's second-quarter earnings in New York. Skilling said Enron's share of the alleged overcharge is \$38.5 million. He said Enron should in fact recover \$32 million in net purchases from California. At least one sector of California's electricity regulation system agrees that Enron's involvement was small in the power crisis, in which electricity prices reached records and rolling brownouts darkened many areas. Sales records kept by the California Independent System Operator, which manages most of the state's power grid, show Enron accounted for 0.4 percent of the alleged \$9 billion overcharge. The Federal Energy Regulatory Commission is meeting on Wednesday in its biweekly commissioners meeting, in part to consider the refunds after a federal mediator rejected California's claims. On July 12, FERC Chief Administration Judge Curtis Wagner swung the issue back to the commission for further action. Wednesday's meeting is the last scheduled before the commission takes a month-long break. STILL ROUNDS TO BE FOUGHT IN CALIFORNIA Enron's problems in California are far from being settled. A committee of the California Senate investigating suspected price gouging during the power crunch recently found Enron in contempt for refusing to disclose confidential sales and bidding records. The California Senate last used the contempt ruling in 1929 against a cement company, but eventually the state's Supreme Court threw out the ruling, saying the charges were too vague. Just before the California Senate voted to hold Enron in contempt, the Houston-based company sued in a California court on a claim that FERC, not the California Senate, had jurisdiction. "They (California) are making political noise we don't like," said Skilling. He said if the situation got worse the company could reduce its market share there. "We'll walk away from the situation and reserve out," he said. Although Enron claims little involvement in the alleged overcharge, the company says it has learned from the crisis. Skilling said that looking forward, Enron will avoid dealing with intermediaries that the company contends helped lead to the power crunch. "We're focused on retail in California; we're going direct to customers without dealing with an intermediary," said Skilling. Shares in Enron, which reported earnings slightly better than expected on July 12, were down 34 cents to \$42.90 in early trade on the New York Stock Exchange. That is down from its peak this year of more than \$81, hit in mid-February in the depths of the Western power crunch. - ((Timothy Gardner, New York Energy Desk, +1 646-223-6058; fax +1 646-223-6078, timothy.gardner@reuters.com)).

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Message 830 of 1299

Enron Mentions

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FOCUS Utilities selling to California pressured by re-regulation, FERC talks AFX News, 06/26/01

BANDWIDTH BEAT: Enron's Keen On Asia's Young Market Dow Jones Energy Service, 06/26/01

CANADA: Enron goes after Alberta power users, eyes Ontario. Reuters English News Service, 06/26/01

European Traders To Launch Crucial Gas Trading Contract Dow Jones Energy Service, 06/26/01

Enron Direct Cda Enters Alta. Retail Electric, Gas Mkts Dow Jones News Service, 06/26/01

India Court Dismisses Enron Petition On MERC - Report Dow Jones International News, 06/26/01

INDIA: Enron's Dabhol suffers legal blow in India row. Reuters English News Service, 06/26/01

Indian State Ministers Defer Decision on Utility Dues to July 6 Bloomberg, 06/26/01

FOCUS Utilities selling to California pressured by re-regulation, FERC talks

06/26/2001 AFX News (c) 2001 by AFP-Extel News Ltd

---- by Ben Morgan-Sanjurjo ---- NEW YORK (AFX) - Shares of utilities with significant market exposure to California are expected to remain under pressure from fears that re-regulation could chip away at company revenues, dealers said. There are also concerns that federally supervised talks, begun yesterday, designed to address allegations that electricity sellers overcharged California for power, may result in a 9 bln usd bill, they said. Power marketers involved in the negotiations with utilities and state legislatures include Enron Corp, Calpine Corp, Duke Energy Corp, Williams Companies Inc, Reliant Energy and Dynegy Inc New. Fulcrum Global Partners analyst Mike Barbis said that the Federal Energy Regulatory Commission's (FERC) proceedings to mediate between California's power buyers and sellers will end "unfavourably for the sellers." California Governor Gray Davis is seeking a 9.0 bln usd refund from western utility groups it claims inflated power bills. "In our view, the political playing field for power generators and marketers has shifted," said Barbis. "We would avoid those companies with the largest exposure to California including Mirant, Reliant Resources and Dynegy," said Barbis. Negotiators have 15 days starting yesterday to come to an agreement. If the talks fail, FERC commissioners will render a final ruling. Morgan Stanley analyst Kit Konolidge said: "We think these numbers are way overstated and any real refunds will be far less." "Realistically, we might never see the real number," said Konolidge. Power generators will likely agree to a smaller figure they can "live with to put this behind them." Additionally, FERC's decision last week to reintroduce price controls in California and eleven other Western states could also affect power marketers profitability, analysts said. CIBC World Markets analyst William Hyler said that "FERC's latest measures have to be viewed as a step away from a purely market-based solution." Power marketers will not be allowed to sell at a price of more than 85 pct of the cost of natural gas needed to serve the electricity load during non-emergency hours. The wholesale price will be derived from the price of gas either in northern or southern California. However, Hyler also said the "current initiative appears much more palatable than hard price caps, which ignore the impact of fuel cost and emission credits or cost-base pricing." Hyler further explained that the key issue is whether FERC's decision will attract or take away from additional investment in electricity production needed to moderate the supply/demand balance in California. "In the event new plant investments are curtailed, the validity of the price mitigation plan will obviously come under question," said Hyler. While Hyler does not expect much impact on power generators, "those companies with more of a trading focus on the western markets could be effected by the declines in regional volatility we might expect from the mitigation plan." The crisis began last year when Pacific Gas & Electric Corp, Southern California Edison Co and San Diego Gas & Electric Co, operating in a semi-deregulated market place were forced to buy wholesale power at ten times average costs. Power marketers increased wholesale power prices due to high natural gas prices, strong demand and tight supply, forcing them to highs of 202 usd per megawatt hour from 29 usd in less than one year. However, while utilities bought power at such high prices they were only allowed to sell to customers at lower fixed rates. Eventually, utilities stopped paying their bills

for the power they were purchasing, said Barbis. One result was the declaration of bankruptcy of PG&E. Analysts estimate that more than 14 bln usd is owed to power generators by utilities. At 2.30 pm, Enron shares were trading 50 cents lower at, Calpine Corp fell 36 cents to 38.61, Duke Energy Corp lost 20 cents to 39.30, Williams Companies Inc gained 9 cents to 32.45, Reliant Energy fell 40 cents to 30.15, Dynegy Inc declined 5 cents to 42.87 and Mirant Corp was up 7 cents at 31.07. The DJIA gained 16.37 points to 10,520.50, the S&P 500 fell 0.75 to 1,217.85, while the Nasdaq composite rose 7.34 points to 2,058.21. blms/cl/lj For more information and to contact AFX: www.afxnews.com and www.afxpress.com

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BANDWIDTH BEAT: Enron's Keen On Asia's Young Market By Michael Rieke

06/26/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

A Dow Jones Newswires Column

HOUSTON -(Dow Jones)- If the U.S. market for bandwidth is nascent, the market in Asia is still in the conceptual stage. But if a market is underdeveloped and the potential is attractive, Enron is probably interested, and it is. Enron knows margins are usually very high in the early stages of any market. The company also wants to get established early to capture big market share, as it's done in energy markets in the U.S. and Europe. Enron is focused on Asia's four least-regulated markets - Japan, Hong Kong, Singapore and Australia - which account for 70% of the region's wholesale leased-line revenue, said Fred Cohagan, director of global wholesale services in Asia for Enron Broadband Services. Enron began operating a Tokyo pooling point for trading in March, the same month it opened an office in Singapore, said Cohagan, speaking recently from Singapore. The trading giant will begin operating pooling points in Hong Kong, Singapore and Sydney next quarter. Enron has a desk of five traders divided among Singapore, Sydney and Tokyo and has commercial people on the ground in Seoul and Hong Kong. Soon, the company will be willing to buy or sell bandwidth in markets for minimum three-month contracts, followed by six-month and one-year quotes. It will quote spot and forward markets - initially for STM1 capacity, then for STM4 and DS3. Potential players are well defined. About 50 companies have capacity in one form or another, whether through leases, indefeasible rights of use or equity ownership, Cohagan said. Because the cost of entering the Asian telecom capacity market is high, there are fewer companies of questionable financial status than in the U.S. and Europe. Prices for transpacific data capacity are four to six times higher than transatlantic prices, said Alan Mauldin, a researcher for Telegeography, a telecommunications research and data firm in Washington, D.C. Ron Banaszek, director of TFS Telecom, a bandwidth brokerage in New York City, gave a still greater spread between transpacific and transatlantic prices. An STM1 between Los Angeles and Tokyo is probably \$90,000 a month, compared with \$10,000 for an STM1 from New York to London, he said. That's because there's about three times as much capacity in the transatlantic market as in the transpacific market, Mauldin

Message 831 of 1299

California Interstate Pipelines

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Jeff,

My name is Kurt Lindahl. I recently joined Enron Global Markets on the LNG team. I'm the Lead Developer for the West Coast and have been charged with building a (several) LNG terminal(s) on the west coast. Michael McGarry, from Enron Engineering and Operational Services Company, is the lead Development Engineer on the project.

A key question in this effort is, "Where is the best entry point into the Socal/SG&E/PG&E pipeline systems. In other words, where can we site a LNG terminal and deliver natural gas into their systems, such that the amount of facilities they require is minimal? I spoke with Ben Asante who heads up the optimization department in ETS. He said that if we could get annual flow diagrams for the California intrastate systems, he could prepare a model in about 2 weeks time. Interstate pipelines have to file Annual Flow Diagrams at FERC, but I'm not sure what Intrastates' are obligated to file with the CPUC? That's

where I need your help. This is a hot subject, because the race to site an LNG terminal is intense.

Could you please call me at 713 345 5044 (O) or 713 515 2759 so that we can discuss. We want to keep this effort very confidential, so please maintain secrecy.

I will also want to talk to you about permitting and state approvals.

Regards,

Kurt Lindahl

Message 832 of 1299

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[IMAGE]

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[IMAGE] VT2461 2.4GHz Cordless Phone w/Call By Vtech

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Message 833 of 1299

Word on the Street -- Reliant Was Setup

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The feeling on the street is that Reliant was setup with the \$1900 sale. The word is that the bid for \$1900 power had been sitting there for months and that Reliant had an "understanding" with DWR and the ISO that the bid was not supposed to be taken except in dire need -- it's for a peaker and the price represents the opportunity cost of running it now, and using up its very limited emission credits, rather than running it during the real peak times this summer. The \$1900 represents the estimated cost to Reliant of Reliant having to buy power this summer on the market when it otherwise would have had its peaker available. The wors is that the state/ISO took the bid, when there was not dire need, just to make Reliant look evil and point to ever higher prices -- when? -- yes, the week before the Bush plan was to come out.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

"Ronald Carroll" <rcarroll@bracepatt.com> 05/18/2001 07:16 AM

To: <gfergus@brobeck.com>, <mmilner@coral-energy.com>, <rreilley@coral-energy.com>, <acomnes@enron.com>, <dfulton@enron.com>, <jsteffe@enron.com>, <rshapiro@enron.com>, <smara@enron.com>, <snovose@enron.com>, <jalexander@gibbs-bruns.com>, <sbishop@gibbs-bruns.com>, <gackerman@wptf.org> cc: Subject: Fwd: Reliant's Reaction To Being Singled Out By Governor Davis

----- Message from "Tracey Bradley" <tbradley@bracepatt.com> on Fri, 18 May 2001 08:12:38 -0500 ----- To: "Justin Long" <jlong@bracepatt.com>, "Paul Fox" <pfox@bracepatt.com> cc: "Ronald Carroll" <rcarroll@bracepatt.com> Subject: Reliant's Reaction To Being Singled Out By Governor Davis May 17, 7:52 pm Eastern Time

Press Release

Reliant Energy Urges Governor Davis to Trade Political Fingerpointing for Solutions

HOUSTON--(BUSINESS WIRE)--May 17, 2001--Reliant Energy strongly disagrees with California Governor Gray Davis' recent characterization of the company as being ``obstructionist" and opposing court orders.

Reliant Energy believes that these accusations are politically motivated attempts to demonize Reliant Energy as an outsider responsible for causing the state's energy crisis. The accusations are simply not based on fact. More importantly, the governor's attacks have done nothing to increase the state's supply of electricity or prevent the blackouts expected this summer. If anything, the comments have fostered an atmosphere of distrust and uncertainty that have further destabilized the market.

``Reliant hopes the governor and others will stop these baseless accusations and focus on true solutions to California's energy shortage," said Joe Bob Perkins, president and chief operating officer, Reliant Energy Wholesale Group. ``We are now being singled out because we believe in an open market, not government control of power generation, and we have offered solutions that do not jibe with the governor's political agenda. Contrary to the perception Governor Davis is attempting to promote, we have been focused on providing solutions that are fair to all parties in California since the outset of this crisis. In fact, earlier this week we provided the governor's office with an outline of a series of emergency measures that, if pursued quickly, could help mitigate the power crisis this summer. We are still waiting on a response."

Perkins pointed out many of the steps Reliant Energy has taken to keep the lights on in California, disputing the accusation of being ``obstructionist":

Reliant Energy has run its 30-to-50-year-old plants at the highest levels since their purchase in 1998. In 2000, Reliant nearly doubled the output from these plants to meet the needs of Californians -- running them at levels far exceeding the prior owner, Southern California Edison.

Reliant Energy invested \$80 million dollars in 2000 alone to upgrade plants to make sure the most power possible is available during peak times. In addition, the company improved emissions levels to clean up the environment and keep costs for emission credits to a minimum.

For the last two years, Reliant has encouraged the Investor Owned Utilities and the state to invest in long-term contracts to stabilize rates instead of relying on the spot market. In particular, Reliant Energy offered to sell power at two cents per kilowatt-hour if the buyer would purchase the natural gas required to generate the power, ensuring a transparent cost of power.

Reliant Energy has never shut down generation despite the prevalent concerns that continue to exist over credit issues. In contrast, just last week a major out-of-state supplier refused to continue to sell to California unless payment was forthcoming.

Reliant Energy has created an aggressive curtailment plan to encourage businesses to ``sell back" power voluntarily to add more power to the Western power grid. The company has met with many leaders in Western states to introduce the program, yet California officials will not even engage in a dialogue on the program.

``We welcome the opportunity to discuss these issues one-on-one with the governor," Perkins said. ``Unfortunately, he has repeatedly refused this request over the past year. Last week's meeting with generators was the first time the group

was allowed to speak with him directly, and obviously the purpose of that meeting was political grandstanding."

Perkins added that the governor's accusations of opposing court orders are unfounded. ``We have always worked within the law and are proud of our commitment to keeping the lights on. We have followed all court orders and worked closely with the FERC and others to cooperate fully with all investigations. When necessary, we have filed court challenges to orders that we believe violate our rights -- hardly an illegal action."

To participate in a telephone press conference tomorrow, Friday May 18 at 11 a.m. PDT, contact Maxine Enciso at 310/444-1303 or Richard Wheatley at 713/207-5881.

-- Contact:

For Reliant Energy Los Angeles: Maxine Enciso, 310/444-1303 Media: Richard Wheatley, 713/207-5881

Message 834 of 1299

Enron Mentions

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The State Davis' Energy Advisors Draw SEC Attention Probe: Under review is the possible use of inside information to buy power company stocks. GOP rival of governor requested the inquiry. Los Angeles Times, 07/31/01 Davis' top spokesman bought stock in power firm / Adviser denies conflict of interest The San Francisco Chronicle, 07/31/01

Davis press secretary confirms buying energy company stock Associated Press Newswires, 07/31/01

India's Power Boards Lose \$5 Bln as Subsidies Rise, Paper Says Bloomberg, 07/31/01

India To Evaluate Options On Enron Stake Buy Out Offer Dow Jones International News, 07/31/01

INDIA PRESS:Govt Asks Lenders To Bail Out Dabhol Pwr Proj Dow Jones Asian Equities Report, 07/31/01

Report: Indian government orders financial institutions to save Dabhol power project, as Enron wants to pull out Associated Press Newswires, 07/31/01

Fls asked to work out deal for Dabhol completion The Economic Times, 07/31/01

Houston-Area Firms Brace for Onslaught by Code Red Computer Worm KRTBN Knight-Ridder Tribune Business News: Houston Chronicle - Texas, 07/31/01

Calif Gov Spokesman Says He Bought Calpine Stock In June Dow Jones Energy Service, 07/30/01

Functioning In The Bandwidth Market No One Expected Dow Jones Energy Service, 07/30/01

INDIA: India evaluating Enron's offer to quit Dabhol. Reuters English News Service, 07/30/01

California Governor's Spokesman Says He Bought Calpine Stock Bloomberg, 07/30/01

California; Metro Desk The State Davis' Energy Advisors Draw SEC Attention Probe: Under review is the possible use of inside information to buy power company stocks. GOP rival of governor requested the inquiry. WALTER HAMILTON JEFFERY L. RABIN; DARYL KELLEY TIMES STAFF WRITERS

07/31/2001 Los Angeles Times Home Edition B-1 Copyright 2001 / The Times Mirror Company

The Securities and Exchange Commission has launched a preliminary inquiry into whether energy consultants advising Gov. Gray Davis used inside information to trade stocks of power companies doing business with the state, a source with knowledge of the matter said Monday. The federal agency began its review late last week, the source said, in response to a request from California Secretary of State Bill Jones. A Republican rival of Davis, Jones charged that stock trading by

consultants may have violated federal laws barring buying and selling based on information not available to the public. On Friday, top aides to the governor disclosed that five consultants had been fired for possible conflicts of interest between their official positions and their personal finances. As news of the SEC inquiry spread through the capital Monday, Davis officials were confronted by a flurry of questions about who in the administration owns energy stocks. Financial disclosure records filed by the governor's spokesman, Steve Maviglio, show that he owns between \$10,000 and \$100,000 in a Texas company he and his boss have accused of making "obscene" profits while California has been "on its knees." Maviglio said he bought the shares in Houston-based Enron Corp. in 1996. "It's not a crime to own energy stock," Maviglio said. He also owns 300 shares of San Jose-based Calpine Corp., which has the largest share of the \$43 billion in long-term state power contracts. Maviglio placed the order for the stock on May 31, one day after San Jose's mayor dropped his opposition to a controversial Calpine plant favored by the governor and others. Under the terms of Maviglio's purchase, the transaction was completed about three weeks later when the stock reached \$40 a share, a value of \$12,000. It has since fallen in value. "I viewed it as a good long-term investment," Maviglio said, adding that he purchased the shares for his retirement account based on publicly available information. The Davis administration has spared Calpine the kind of fierce criticisms that it has leveled at other electricity suppliers, such as Enron. But California's grid operator has identified the company as one of many energy merchants to overcharge the state millions of dollars. The fired consultants also owned shares in Calpine, ranging in value from several thousand dollars to more than \$100,000, records show. Another top Davis administration official, legal affairs secretary Barry Goode, disclosed in his economic interest statement that he recently held between \$100,000 and \$1 million in another out-of-state company accused of multimillion-dollar price gouging. In a statement, Goode said he sold his stock in Williams Co's. a month after he began working for the governor in February. Goode said the shares were supposed to be sold before he went on the state payroll, but his broker failed to do so. In light of the recent disclosures, Secretary of State Jones said the governor must do more to ensure the public that its interest comes first. "The governor should direct all of his staff to immediately file updated conflict of interest statements that reflect current holdings and any activity since their last statement of economic interest was filed," said Jones, who is seeking the GOP nomination for governor. Word of the SEC's entry into California's energy problems comes as the governor faces harsh criticism from lawmakers and others for the quick and broad hiring of highly paid private consultants to guide him through the crisis. In his written request to the SEC, Jones said that recently filed disclosure documents showed that at least one consultant bought and sold shares of two energy companies within the same month, raising "a red flag" about the possibility of insider trading. State law prohibits officials from participating in decisions involving their personal financial interests. The five consultants fired last week were among 11 named in Jones' letter, delivered to the San Francisco office of the SEC last Wednesday. It was not clear which individuals are the focus of the SEC's inquiry, or whether the agency's review would result in any charges. Two of the former traders said Monday that they had not been contacted by federal investigators and knew nothing of an inquiry into possible insider trading. But William Mead, fired Thursday, said it is no mystery why so many of his colleagues owned Calpine stock. Mead said he bought it 2 1/2 years ago and made so much money he recommended it to his colleagues last year, while they all still worked for the now-defunct California Power Exchange in Alhambra. Calpine power was not traded on that exchange, so there was no conflict of interest, he said. Mead and three other energy traders--hired by the state in February and March--were terminated by the Davis administration for allegedly buying power for the state from Calpine while owning the company's stock. Fired traders Herman Leung, Peggy Cheng and Constantine Louie did not list the date of their Calpine purchases on financial statements that the state required to be filed only two weeks ago. "But I'm sure they bought it while they were still at the power exchange, because that's when we discussed it," Mead said. "It was kind of like a hobby. I'm sure it wasn't done with the intent to manipulate." Former trader Elaine Griffin, who also owned Calpine stock and resigned two weeks ago to take another job, said she didn't know she owned energy securities until she checked with her financial advisor July 13, just before leaving her state job. Griffin said she and her husband own about \$10,000 worth of Calpine stock in individual retirement accounts managed by their advisor, who bought the stock Feb. 1 without their knowledge, she said, after research found it to be a good investment. "I kind of feel like we've been used for political reasons," Griffin said. "We would have disclosed anything right

*Message 835 of 1299***Nov. 13 UC summit conference on electricity**

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Jeff and Tim,

Tim, I know Jeff knows all about the conference we are organizing and I hope you do as well.

Rob, I and the rest of the conference organizers are wondering if you could help us find out if Jeff Skilling from Enron would be willing to be one of our panelists? He has been an articulate critic of the current state of our electricity markets, and we definitely would like the genco perspective represented.

Naturally we are hoping to get a quick answer because our publicity about the conference will be going out shortly.

A brief description of the conference is appended below. Please let me know if you need any additional information.

Thanks very much for your help and advice. Lee

The summer of San Diego has prompted the School, in collaboration with UC's Energy Institute and Competition Policy Center, to sponsor a high-level summit conference on electricity deregulation. The focus, and the audience, will be national, but heavily informed and influenced by the California crisis. The conference will evaluate (1) the wisdom of deregulation and (2) how the pitfalls encountered so far can be avoided and remedied. The University will facilitate an open, honest and reasoned exchange between executive-level players from various perspectives: industry, regulators, consumers, legislators, academics, and market and system operators.

The format entails two roundtable discussions with six speakers and a moderator. During the panel sessions, the speakers will engage in a debate/dialogue on the current situation in electricity deregulation, where we have come from, what the future holds, and what solutions lie on the horizon. Each speaker will have uninterrupted time to speak, followed by Q&A and discussion. We expect a live audience of about 200, including a large press presence. One sponsor has tentatively offered to provide internet streaming video services. We hope to have a balanced group of sponsors ranging from the American Public Power Association to energy companies.

The speakers are being arranged at this time. We have commitments from: Loretta Lynch (Chair, CPUC), and PJM CEO Phil Harris. We have a preliminary acceptance from Steven Littlechild (England's former primary electricity regulator) and Laura Tyson (former Chair, President's Council of Economic Advisors and National Economic Council, currently Dean, Haas School of Business). We have invited FERC Commissioner Curt Hebert, and U.S. Representative Edward Markey, executive-level managers from several energy companies and state legislators. Former DOJ chief economist Carl Shapiro will be on one of the panels, as will economist Severin Borenstein, Director of UCEI and Professor of Business and Public Policy. Michael Florio from The Utility Reform Network (TURN) will be a consumer advocate on one of the panels. Lee Friedman, economist and Professor of Public Policy, will briefly provide an introduction to the panel discussions with his talk "Lighting the Stage: The Electricity of Deregulation."

A dinner for the panelists and organizers will be hosted at UC's Goldman School of Public Policy following the conference proceedings. We have reserved rooms for our speakers at Berkeley's landmark Claremont Hotel. We can reimburse those speakers who request it for coach airfare expenses and other ordinary local expenses.

For further information, please contact: Lee S. Friedman Professor of Public Policy Goldman School of Public Policy University of California 2607 Hearst Avenue Berkeley, CA 94720-7320 Ph: (510) 642-7513 Fax: (510) 643-9657 email: lfried@uclink4.berkeley.edu

*Message 836 of 1299***MORE IEP News 7/16**

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File	dasovich-j/all_documents/28781.

Some Generators Say No As Calif Lawmakers Eye Haircut ???? Updated: Monday, July 16, 2001 04:52 PM?ET ????? ?

By Jason Leopold and Jessica Berthold

Of DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--Some power suppliers said Monday they wouldn't accept a move by California state lawmakers to allow them to collect just 70% of what they are owed by Edison International (EIX, news, msgs) unit Southern California Edison.

At issue are bills scheduled for hearings Monday and Tuesday in the state Assembly and Senate to rescue Southern California Edison from the verge of bankruptcy, where it has teetered for six months.

Both bills aim to spread out the costs of helping the utility recover \$3.5 billion in wholesale power costs that it was forced to absorb as a result of a retail rate freeze. Discounts to unpaid power bills may be needed to make the rescue politically palatable. But some suppliers, which together are owed about \$1 billion by the utility, are balking.

"As we have said before, we fully expect to receive 100 cents on the dollar," said John Sousa, spokesman for Dynegy Inc. (DYN, news, msgs), which is owed \$265 million in California. (Generators' receivables due from Southern California Edison alone weren't immediately available.)

Reliant Energy Inc. (REI, news, msgs), owed a total of \$370 million, said it too expects to receive full payment.

Williams Cos. (WMB, news, msgs), which hasn't disclosed its California receivables, and Duke Energy (DUK, news, msgs), which is owed \$410 million, have said publicly that their companies would be willing to accept less than 100 cents on the dollar. But Duke spokesman Tom Williams said his company would only negotiate with the utilities, not the state.

Pat Dorinson, spokesman for Mirant Corp. (MIR, news, msgs), which is owed \$385 million in California, wouldn't say whether the company would accept less than what its owed. But he said the company wasn't included in the negotiations when the bill was drafted.

"We can't have a comprehensive solution if all parties are not at the table," Dorinson said. "No one has come to us and talked to us about what we are willing to do or not do. You'd think the people producing the energy might have an opinion on how things should be solved."

Suppliers said they weren't sure what action, if any, they'd take against the utilities if such provisions were approved as part of a deal this week.

The Assembly and Senate proposals were expected to be debated on Monday and Tuesday, with floor votes on Wednesday.

Assembly Speaker Pro Tem Fred Keeley, D-Boulder Creek, said a rescue plan for Southern California Edison could never pass the Legislature without concessions from generators.

The proposals in both houses call for generators to accept 70 cents on the dollar. In the Assembly, legislation introduced last week by Assembly Speaker Bob Hertzberg, D-Van Nuys, and Keeley, aims to establish a trust account, controlled by the state and the Public Utilities Commission, to reduce payments to generators who overcharged for power.

"Our proposal protects those who deregulation has hurt most - consumers - and ensures that California never sees a crisis like this again," Hertzberg said. "It holds accountable those who have taken advantage of us and it promises consumers that they will see rates go down rather than up."

Such a move may violate Constitutional protections regarding contracts, said Kenneth Klee, a law professor at UCLA and attorney at Klee, Tuchin, Bogdanoff & Stern LLP in Los Angeles who specializes in corporate reorganization, bankruptcy law and insolvency.

"The contracts clause of the Constitution, Article 1, Section 10, prevents the states from impairing the obligations of contracts," Klee said. "I haven't seen the bill, but it occurs to me that if the state is trying to tell Edison it can pay creditors 70 percent, that would be unconstitutional."

Klee's firm represents two independent generators in the legal wranglings with Southern California Edison.

-By Jason Leopold, Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

(Jessica Berthold contributed to this article.)

California Lawmakers Take Edison Rescue Down To The Wire ???? Updated: Monday, July 16, 2001 04:19 PM?ET
????? ?

By Jason Leopold

Of DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--It's coming down to the wire.

With just five days left before their summer recess, California lawmakers were to take their first concrete steps Monday toward relieving Edison International (EIX, news, msgs) utility Southern California Edison of the massive power costs that have left it unable to meet its obligations.

Edison officials have warned that if the Legislature doesn't act by Aug. 15, the deadline set in a memorandum of understanding signed with Gov. Gray Davis on April 9, the utility's creditors may drag it into Bankruptcy Court.

The plans under consideration aren't entirely faithful to the MOU and present their own risks, but Edison officials seemed relieved that progress was finally being made.

"This is the culmination of a long period of negotiations," Brian Bennett, vice president of external affairs for Edison International, said last Friday. "We're pleased that both the Assembly and Senate are moving."

Davis spokesman Steve Maviglio said Monday that the Assembly and Senate would hold hearings on their versions of the rescue Monday and Tuesday, with floor votes expected Wednesday.

The progress has boosted Edison International shares to their highest level since mid-March. Edison shares closed Monday at \$14.85, up 5 cents on the day and more than 32% in July.

Under the MOU signed with the governor, the state would buy Southern California Edison's transmission lines for \$2.76 billion and enable the utility to sell bonds backed by ratepayers to help it recoup \$3.5 billion in unrecovered wholesale power costs.

This week's events will test Edison's faith in the political process and its lobbying prowess. The utility's northern California counterpart, PG&E Corp. (PCG, news, msgs) unit Pacific Gas & Electric Co., pulled out of talks with the governor and filed Chapter 11 on April 6.

Lehman Brothers analyst Dan Ford said in a research note Monday that chances are good any action by lawmakers will arrive late or fall short of what's needed.

"We believe odds for a speedy and palatable plan are less than 50-50," Ford wrote.

Lawmakers are likely to pass a version of the MOU Edison signed with the governor, but they will be preoccupied with the need to approve a budget, he said.

"We expect the timing to slip and the deal to worsen for Edison shareholders," Ford wrote. "If a modified MOU does pass both the house and senate, we believe Edison will need to determine if they can stomach the alterations, as the governor is unlikely to stop an alternative plan to protect Edison shareholders."

Senate, Assembly Draft Bills

Assembly Democrats led by Speaker Robert Hertzberg, D-Van Nuys, and Speaker Pro Tem Fred Keeley, D-Boulder Creek, have introduced a 79-page version of the MOU that calls for the state to purchase the utility's power lines at twice their book value, as opposed to the 2.3 times offered by Davis.

Unlike the MOU, the bill doesn't indicate how much money Southern California Edison is allowed to recover.

"That's very disturbing to us," Bennett said. "But at least we have a bill."

The Hertzberg-Keeley bill also builds in a "haircut" for suppliers. Under the plan, funds raised by Southern California Edison on the strength of its pending sale of power lines to the state would go into a trust, from which power suppliers would be paid 70 cents

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INDIA: Enron chief says many want Dabhol row to end. Reuters English News Service, 07/10/01

Transmission Line Delays Hit Scottish Generators Dow Jones Energy Service, 07/10/01

Enron and Anschutz Invest in Tropic Networks; Leading Communications Provider and Investment Company Subscribe to Tropic Networks' Optical Packet Networking Vision Business Wire, 07/10/01

Nigerian gas company signs accord to supply US power firm Agence France-Presse, 07/10/01

Enron pushes for resolution of Dabhol power project deadlock Agence France-Presse, 07/10/01

Judge tells deal critics to continue utility talks The Star-Ledger Newark, NJ, 07/10/01

Tacoma Power wants millions Customer refund: Utility estimates it overpaid electricity generators about \$72 million The News Tribune Tacoma, WA, 07/10/01

INDIA: Enron chief says many want Dabhol row to end.

07/10/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW DELHI, July 10 (Reuters) - Enron Corp chairman Kenneth Lay said on Tuesday that governments of several countries and some of the world's biggest banks wanted an early end to the row over its troubled Indian unit. "I think it's in everybody's best interest - the government of India, the government of the U.S., the investors, the government of Japan - we have many government financial entities involved in this project," he told reporters. "So you've a lot of interests here who would like to see this resolved and resolved very quickly," Lay said after a meeting with Finance Minister Yashwant Sinha. Lay said Monday's meeting with the finance minister did not yield any solution for the U.S. energy firm's \$2.9-billion Dabhol power plant, which is locked in a bitter payments battle with Maharashtra State Electricity Board (MSEB), a state utility. "Obviously we didn't come to any conclusion today. We didn't expect to come to any conclusion today. It will take some more work...but certainly we're very hopeful," he said. Lay met federal Power Minister Suresh Prabhu for nearly two hours on Monday and was to meet the chief minister of the western state of Maharashtra, where Dabhol is located, later on Tuesday. In May, Enron issued a preliminary termination notice after MSEB defaulted on payments, and the utility, Dabhol's sole buyer, stopped taking power from the project. Enron holds a 65-percent stake in the Dabhol Power Co. Its first phase of 740 MW was completed in 1998 while a second phase adding another 1,444 MW was almost complete when its contractor stopped work because of the dispute. Lay said the governments of Oman and Abu Dhabi were involved in contracts for liquefied natural gas for the second phase of the project. The project has been funded with a debt of \$2 billion. Of this, offshore lenders have contributed about \$600 million and the remaining \$1.4 billion by local institutions and banks. Lay said the biggest banks from United States, Europe, Canada and Japan were involved in the project.

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Transmission Line Delays Hit Scottish Generators

07/10/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

LONDON -(Dow Jones)- Construction of a long-awaited transmission line that would boost access of Scottish generators to the English market remains on hold because of foot-and-mouth related restrictions, the National Grid Group PLC (NGG) told Dow Jones Newswires Monday. "The North Yorkshire Transmission Line Project, that went on hold with the onset of the foot-and-mouth epidemic late February, remains on hold because construction teams cannot access areas classified as infected," said the National Grid spokesman. The 75-kilometer transmission line between Teeside and the Vale of York would reduce the present bottleneck in northern England, allowing more Scottish-generated electricity through to customers in England. "This is particularly difficult for National Grid because we have an obligation to facilitate competition," said the National Grid spokesman. "This problem reduces the ability of players to compete, plain and simple." The National Grid spokesman could not estimate when construction would resume, but said, "Once we start, it will be at least two to three years before the transmission line will be available for use." The Department for the Environment, Food and Rural Affairs could not comment on when access restrictions would be lifted in the North Yorkshire area, but a spokeswoman said, "We cannot even begin discussion of lifting restrictions on access to infected areas, until four weeks after the last diagnosed case has been killed, and the area cleaned and disinfected." Generators in Scotland are hit hardest by the delay because it interferes with their plans to compete more actively in electricity markets in England and Wales. A spokeswoman for Scottish and Southern Energy said, "We do have to improve access to markets in England and Wales," and added, "While we understand the circumstances, we still look forward to the increased flexibility that the North Yorkshire line will provide." A spokesman for Scottish Power said, "As a Scottish company, we want the Yorkshire line, to further open the U.K. market to competition." The National Grid spokesman said some newly built generation is waiting to come on line pending completion of the line. Companies would not comment on their involvement, citing commercial sensitivity. According to National Grid, a 1,875 megawatt plant at Teeside is subject to operational restrictions until the new transmission line is complete. This plant enhanced the necessity for the new transmission line when it came on line in 1993, because existing lines could not accommodate the total capacity of the Teeside plant. The plant is owned by a consortium, with Enron Europe owning half the shares. Midlands Electricity (19%), Northern Electricity (15%), SWEB (8%), and SWALEC (8%) make up the rest of the consortium. Enron said the Teeside plant isn't subject to any operational restrictions. National Grid first applied for governmental consent for the new 4,840 megavolt amps transmission line in 1991. After two public inquiries, extensive planning, and conflicts with groups opposing the construction, they received consent to begin construction in July of 2000, and began in September of that year. -By Sarah Spikes, Dow Jones Newswires; +44-(0)20-7842-9345; sarah.spikes@dowjones.com

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Enron and Anschutz Invest in Tropic Networks; Leading Communications Provider and Investment Company Subscribe to Tropic Networks' Optical Packet Networking Vision

07/10/2001 Business Wire (Copyright (c) 2001, Business Wire)

ANDOVER, Mass. & OTTAWA, Canada--(BUSINESS WIRE)--July 10, 2001-- Tropic Networks Inc., a ground-breaking company building optical packet network (OPN) systems for carriers who demand a greater ability to cost-effectively scale their metropolitan area networks, today announced that Enron Broadband Services, a subsidiary of Enron Corp. (NYSE: ENE) and Anschutz Investment Company were key investors in Tropic's previously announced \$60 million second round of funding. Anschutz Investment Company is the financial arm of the Anschutz Company, which founded and incubated Qwest Communications. "The relationships we have been able to forge with Enron and Anschutz are votes of confidence for Tropic's optical packet networking vision, and enhance our credibility in the wide-open metro market," said Kevin Rankin, president and CEO for Tropic Networks. "The business insight that comes with the involvement of these blue chip investors is invaluable to Tropic's continued success." Tropic's OPN systems bring new levels of dynamic control and

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Enron Mentions - 05/04/01

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Six Western Power Providers Complete First Step to Form Independent Transmission Company Business Wire, 05/04/01

UK: London coal/ore fixtures. Reuters English News Service, 05/04/01

INTERVIEW:Early Resolution Seen On India Dabhol Pwr Spat Dow Jones, 05/04/01 Edison to Start Ad Campaign Urging Approval of Power-Line Sale Bloomberg, 05/07/01 Corporate Bond Alert: WorldCom, RadioShack on Docket (Update1) Bloomberg, 05/04/01

Six Western Power Providers Complete First Step to Form Independent Transmission Company

05/04/2001 Business Wire (Copyright (c) 2001, Business Wire)

PORTLAND, Ore.--(BUSINESS WIRE)--May 4, 2000--In an effort to ensure reliability and maximize cost efficiencies, six western utilities have been granted preliminary approval by the Federal Energy Regulatory Commission (FERC) to form an independent high voltage electricity transmission company serving six Western states. The independent, for-profit company, called TransConnect, will be a member of a planned non-profit regional transmission organization, RTO West. The framework for RTO West, which will span eight Western states, also was approved by FERC. Under the proposal approved by FERC, TransConnect could initially own or lease the high voltage transmission facilities currently held by Avista Corp., Montana Power Company, Portland General Electric, Puget Sound Energy, Nevada Power Company, and Sierra Pacific Power Company. Combining transmission resources into one independent company may create new opportunities to attract capital and improve the transmission infrastructure. Among other things, the FERC order approved TransConnect's governance structure and found that TransConnect met the Commission's independence requirements. The order also determined that TransConnect would qualify to file for innovative and incentive rates. Additionally, the order finds that the proposed structure for sharing planning and expansion functions is consistent with FERC's basic requirements, but reserves final approval pending further clarification by TransConnect and RTO West regarding the details and decision process for such sharing. "The TransConnect companies are pleased with the FERC order on the TransConnect filing and gratified that the Commission supports a for-profit business model that has the potential to provide very significant benefits," said Paul Mohler, a representative for the six TransConnect companies. There are a number of additional steps that must now be taken by the companies, including, among other things, preparation of a rate filing and various state and federal approvals. Ultimately, the outcome of TransConnect's proposal and the companies' decisions to move forward with the formation of this transmission company will depend on the economics and conditions imposed during the regulatory approval process and approval by the individual company boards of directors. TransConnect facilities are within the RTO West territory, which will operate more than 90 percent of the high voltage transmission facilities from the U.S.-Canadian border to southern Nevada. The RTO will not own transmission facilities, but will control each participating owners' transmission facilities.

CONTACT: Avista Catherine Parochetti, 509/495-2916 or PSE Dorothy Bracken, 888/831-7250 or Montana Power Susan Fischer, 406/497-2951 or PGE Scott Simms, 503/464-7342 or Nevada Power Sonya Headen, 702/367-5680 or Sierra Pacific Karl Walquist, 775/834-3891 16:23 EDT MAY 4, 2001

UK: London coal/ore fixtures.

05/04/2001 Reuters English News Service (C) Reuters Limited 2001.

LONDON, May 4 (Reuters) - COAL - Irfon - (built 1996) 150,000/10 tonnes coal Richards Bay/Rotterdam May 20/30 \$8.15 fio scale load/25,000 shinc Swiss Marine. Enron TBN - 150,000/10 tonnes coal Richards Bay/Rotterdam Jun 15/30 \$7.95 fio scale load/25,000 shinc E.On. ORE - No fresh fixtures were reported.

INTERVIEW:Early Resolution Seen On India Dabhol Pwr Spat By Himendra Kumar Of DOW JONES NEWSWIRES

05/04/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW DELHI -(Dow Jones)- A prolonged electricity payment dispute between U.S.-based Enron Corp.'s (ENE) Indian unit, the Dabhol Power Co., and the Maharashtra State Electricity Board could be resolved within a month, the head of an independent energy think tank said Friday. The dispute over the controversial 2,184-megawatt, \$3-billion DPC project in India's western state of Maharashtra came to a head recently when the DPC's board authorized the management to proceed with a preliminary notice of termination - the first of three steps that lead to the abandonment of the project. Despite the move, Rajendra K. Pachauri, director of the New Delhi-based Tata Energy Research Institute, said he is optimistic of a resolution. "It's in everybody's interest to come up with a reasonable settlement. I think DPC will accept a renegotiated contract because they are in an impasse right now," Pachauri told Dow Jones Newswires in an interview. Pachauri is also one of the nine members of the committee appointed by the Maharashtra state government to renegotiate the MSEB's controversial power purchase agreement with DPC. "I do hope that within a month the whole thing can be sorted out. DPC wants the negotiations to be short and decisive and if all the parties are willing, an agreement won't be difficult," he added. The project has been mired in financial disputes since its main customer, the Maharashtra State Electricity Board, has failed to pay several of its bills. Dabhol has come under fire because of the relatively high cost of its power. Critics object to Dabhol charging 7.1 rupees (\$1=INR46.83) a kilowatt-hour for its power, compared with INR1.5/KWh charged by other suppliers. The state government has asked the committee to try to negotiate a revised agreement within a month. The committee's goal is to lower the power tariff and allow the sale of excess power to the federal government or its utilities. A restructure of the DPC's stakeholding may also be on the agenda. As reported, the negotiating committee's first meeting with the DPC management scheduled for Saturday has been postponed until 0530 GMT May 11 at DPC's request. DPC Must Run Plant At Full Capacity - Pachauri

Pachauri said that it is in DPC's interest to run its plant at full capacity and maximize sales. "Their sales won't be maximized unless the price is attractive. They really need to bring down the cost to the consumer. Our brief is very clear. We have to sit down with them and identify a strategy by which the Dabhol project can be viable for everyone," he said. "This will involve a complete financial engineering of the DPC. You'd need to restructure the project debts and bring down the interest rates (on debts) to the current levels in the market," he added. The DPC project - the largest single foreign investment in India - has a debt-equity ratio of 70:30. Pachauri said Dabhol should agree to charging between INR3.00 and INR3.25/KWh. "This is a reasonable range and should be acceptable to everyone," he said. He said if Enron decided to pull out of Dabhol, it wouldn't have a serious impact on foreign direct investments into India, particularly in the country's power sector. Texas-based Enron has a 65% stake in the DPC, and is the project's largest shareholder. Other shareholders include the MSEB with 15%, and General Electric Co. (GE) and Bechtel Enterprises (X.BTL) with 10% each. The DPC currently operates a 740-MW naphtha plant contributing around 0.7% to India's installed capacity. Enron has maintained that work will be completed by the year-end in the second phase of Dabhol project that will add 1,444 MW to it

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India State Panel To Rework Power Pact With Enron Unit Dow Jones International News, 04/23/01

Continental Airlines' Bethune Again Ranked Among the Top 50 CEOs in America By Worth Magazine PR Newswire, 04/23/01

INDIA: Enron seeks lenders nod to scrap India contract. Reuters English News Service, 04/23/01

GERMANY: German wind energy production to rise in 2001-BWE. Reuters English News Service, 04/23/01

India State Elec Bd To Contest Dues To Enron Unit At Mtg Dow Jones International News, 04/23/01

WORTH Magazine Names the Top 50 CEO's; Microsoft's Steve Ballmer Heads The List As No. 1 CEO Business Wire, 04/23/01

Ontario Energy to Be Open to Competition by May 2002 (Update1) Bloomberg, 04/23/01

India State Panel To Rework Power Pact With Enron Unit

04/23/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW DELHI -(Dow Jones)- India's Maharashtra state government will constitute a high-level committee to renegotiate a power purchase agreement with Enron Corp.'s (ENE) Indian unit Dabhol Power Co., the Press Trust of India reported late Monday, quoting India's Finance Minister Yashwant Sinha. "We have decided that the government of Maharashtra will constitute a negotiating committee to negotiate issues like the cost of power and use of power with DPC," the PTI quoted Sinha as saying soon after his meeting with the Maharashtra Chief Minister Vilasrao Deshmukh and federal Power Minister Suresh Prabhu. Dabhol has come under fire because of the relatively high cost of its power. Critics object to the company charging 7.1 rupees (\$1=INR46.82) a kilowatt-hour for its power, compared with around INR1.5/KWh charged by other suppliers. Enron has a 65% stake in the controversial 2,184-megawatt, \$3 billion Dabhol project, which supplies power to the State Electricity Board. Dabhol, India's largest private power plant, was scheduled for commissioning in two phases. The project's first phase, a 740-MW power plant, has already been commissioned. The committee, comprising representatives of the federal government, Maharashtra state government and Maharashtra State Electricity Board, will be constituted in a week's time, Sinha said. "We hope the DPC will respond positively to this and they don't take steps that will precipitate a crisis," Sinha said. He added that the cost of power supplied by DPC was too high. "We have to look if the state can use all the power generated and if the excess power can be wheeled out to needy states," he said. Dabhol has attracted India's largest single foreign investment. MSEB has 15%, General Electric Co. (GE) has 10% and Bechtel (X.BTL) has 10% in the project. Under a 1996 counter-guarantee agreement, the federal government is obliged to pay Enron if MSEB defaults. Enron invoked that guarantee in February, marking the first time in India's history that a company has invoked a federal guarantee, when the state utility said it couldn't afford to pay Dabhol. The state government finally paid \$17 million in outstanding bills. -By Himendra Kumar, Dow Jones Newswires; 91-11-461-9427; himendra.kumar@dowjones.com

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Continental Airlines' Bethune Again Ranked Among the Top 50 CEOs in America By Worth Magazine

04/23/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

HOUSTON, April 23 /PRNewswire Interactive News Release/ -- Continental Airlines' (NYSE: CAL) Chairman and Chief Executive Officer Gordon Bethune has, for the third consecutive year, been named one of the 50 best CEOs in America by Worth magazine. The complete list appears in the magazine's May issue. Other honorees include the CEOs of a wide range of successful corporations, including Microsoft, Enron, Alcoa, Dell Computer Company and Federal Express. Nominated by Wall Street analysts, Worth's Top 50 CEOs were selected for their leadership and vision and "based on our belief in the CEO's ability to deliver long-term shareholder value." "In a world of airline woes, Gordon Bethune is an island of relative contentment," said Worth magazine. "Every time American, United and Delta are nettled by labor disruptions, Continental gets a bump both in revenue and in its reputation for reliability." Bethune, who ranked 33rd on this year's list, joined Continental Airlines in February 1994 as president and chief operating officer. He was named chief executive officer in November 1994 and chairman of the board in September 1996. Worth is an upscale, monthly personal finance and business magazine for people who are passionate about business, investing and financial well-being. It reaches one million loyal readers with a median net worth of more than \$1 million. Edited by John Koten and started in 1992, Worth is the flagship publication of Worth Media. Continental Airlines is the fifth largest airline in the U.S., offering more than 2,200 departures daily to 133 domestic and 92 international destinations. Operating hubs in Newark, Houston, Cleveland and Guam, Continental (www.continental.com) serves more international cities than any other U.S. carrier, including extensive service throughout the Americas, Europe and Asia. Continental was named the 2001 Airline of the Year by Air Transport World, as well as the 1996 Airline of the Year, making it the only carrier to receive this honor twice in five years. Continental is in the top quarter of Fortune magazine's "100 Best Companies to Work for in America," and is ranked the nation's No. 1 airline in customer satisfaction for long and short-haul flights by Frequent Flyer Magazine and J.D. Power and Associates. Continental has received numerous awards for its BusinessFirst premium cabin (Conde Nast Traveler,

OAG, Entrepreneur and SmartMoney magazines), OnePass frequent flyer program (InsideFlyer's Freddie Awards) and overall operations and management (Fortune magazine). MAKE YOUR OPINION COUNT - Click Here <http://tbutton.prnewswire.com/prn/11690X54267387>

/CONTACT: Corporate Communications of Continental Airlines, Inc., 713-324-5080, or corpcomm@coair.com/ 11:46 EDT
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INDIA: Enron seeks lenders nod to scrap India contract.

04/23/2001 Reuters English News Service (C) Reuters Limited 2001.

BOMBAY, April 23 (Reuters) - The Indian unit of U.S. energy giant Enron Corp is seeking lenders' approval to terminate its contract to sell electricity to a virtually bankrupt Indian state utility, a source close to the issue said. The Dabhol Power Company (DPC), 65 percent owned by Houston-based Enron, will discuss the proposal with global and Indian lenders at a meeting in London on Monday, the source added. If the lenders agree, DPC will issue a notice to the Maharashtra State Electricity Board (MSEB) terminating the contract, the source added. Such a move would jeopardise the nearly \$3 billion invested in building a 2,184 MW power plant near Bombay on the west coast of India, and damage India's image as a friendly destination for foreign investors, analysts said. Enron is India's largest foreign investor and its power project has been mired in controversy since the mid-1990s over allegations of corruption and high costs. MSEB agreed through the contract to buy power from Enron but has now reneged on its commitment, saying it cannot afford such costly power. The utility currently owes 2.26 billion rupees (\$48.28 million) in over-due payments to Dabhol. (\$1=46.81 Indian rupees).

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GERMANY: German wind energy production to rise in 2001-BWE.

04/23/2001 Reuters English News Service (C) Reuters Limited 2001.

FRANKFURT, April 23 (Reuters) - Newly installed wind energy capacity in Germany will help

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SBC Communications, PeopleSoft Gain on Positive Earnings Reports The Wall Street Journal, 07/26/01
Senators Offer Bill To Improve US Power Market Disclosure Dow Jones International News, 07/26/01

Resolve the Enron crisis The Financial Express, 07/26/01
UK: ANALYSIS-More work needed for Europe gas market opening. Reuters English News Service, 07/26/01
India's Karnataka State Ready To Buy Dabhol Pwr - Report Dow Jones International News, 07/26/01

Tech Soundings: The security market will consolidate like crazy over the next few years. However, the companies doing the buying might surprise you. Redherring.com, 07/26/01

FERC Spurns California's \$9 Billion claim, but big refunds still possible Houston Chronicle, 07/26/01

Abreast of the Market SBC Communications, PeopleSoft Gain on Positive Earnings Reports By Robert O'Brien Dow Jones Newswires

07/26/2001 The Wall Street Journal C2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -- Volume increased and market averages rallied, as a little improvement in the tenor of earnings reports proved to make a big difference in the way investors viewed Wall Street. SBC Communications gained \$2.58, or 6.3%, to \$43.38 after the telecommunications-service provider reported second-quarter earnings that beat Wall Street's forecasts, and chose to keep its forecasts for the balance of the year intact. PeopleSoft rose 4.16, or 12%, to

38.40 in Nasdaq Stock Market trading, after the Pleasanton, Calif., maker of enterprise software came through late Tuesday with better-than-expected second-quarter results. To be sure, any improvement in the earnings tone would be characterized as marginal, rather than material. After all, even SBC acknowledged weaker-than-expected revenue growth, owing to the weakness of the economy. And the technology sector included several prominent earnings disappointments as well as triumphs. Shares of storage-products maker QLogic lost 6.3, or 15%, to 34.44, after posting its quarterly results. Semiconductor device maker Microsemi, Santa Ana, Calif., shrank 10.46, or 16%, to 56.54, in Nasdaq trading. Still, after several weeks of dispiriting earnings performances and forecasts, Wall Street was primed to celebrate any improvement, no matter how marginal. "Investors have been sitting on their hands so long that any hint of positive visibility was going to be a spark for the buyers, and we saw that today with the way some institutional customers behaved," said Patrick Boyle, head of financial trading at Credit Suisse First Boston. But Mr. Boyle acknowledged that the market remains vulnerable to additional shortfalls in profits or economic data. Yet, yesterday, volume picked up, with 1.25 billion shares changing hands on the New York Stock Exchange, compared with 1.19 billion Tuesday. The Nasdaq Composite Index, which came into yesterday's trading off a string of three losses, posted a gain of 25.08 points, or 1.28%, to 1984.32. The Dow Jones Industrial Average rose 164.55 points, or 1.61%, to 10405.67. The Standard & Poor's 500 Stock Index advanced 1.6%, effectively erasing Tuesday's 1.63% setback. Two of the biggest contributors to that day's losses proved to be the engines of improvement yesterday, with power suppliers and oil stocks rallying impressively. Dominion Resources, a Richmond, Va., utility, climbed 2.50 to 59.75; Enron, Houston, advanced 1.72 to 44.96; and Public Service Enterprise, Newark, N.J., rose 2.38, or 5.6%, to 45.24. Some of the independent power producers that faded badly Tuesday on some pessimistic comments from Salomon Smith Barney perked up yesterday. The group got a lift from some comments from Credit Suisse First Boston, which jumped to its defense yesterday. Calpine, San Jose, Calif., recovered 1.91, or 5.6%, to 35.81. Kinder Morgan, Houston, rose 1.58 to 51.78, and El Paso, also of Houston, advanced 1.52 to 49.16, after the company reported better-than-expected second-quarter results yesterday. Oil exploration and production concern Amerada Hess, New York, a 3% decline Tuesday, snapped back, adding 3.60, or 5.1%, to 74.40. The company recorded better-than-expected second-quarter earnings. Likewise, Oklahoma City exploration concern Kerr-McGee, which lost 3.1% Tuesday, advanced 1.80 to 59.87 after issuing better-than-expected results. Texaco added 3.13, or 5%, to 67.55, on better-than-expected second-quarter results. Meanwhile, Schlumberger, New York, part of an oil-services sector that has been in steady decline recently, improved 2.78, or 5.2%, to 56.48, after the company recorded second-quarter results. Amdocs advanced 4.31, or 11%, to 42.01. The St. Louis provider of billing systems and services for cable television and Internet-service providers recorded stronger-than-expected fiscal third-quarter results late Tuesday. Emulex fell 50 cents to 22.31 on Nasdaq. Salomon Smith Barney reduced its rating on the Costa Mesa, Calif., data-storage products maker, following weaker-than-expected results turned in by QLogic. Ticketmaster advanced 1.84, or 14%, to 14.80 on Nasdaq. The Los Angeles Internet-site operator reported second-quarter results late Tuesday that proved to be stronger than Wall Street expected, drawing kudos from Thomas Weisel Partners. The firm said the stock remained one of its favorite names in the media sector. Leap Wireless shed 6.32, or 20%, to 25.04 on Nasdaq. The San Diego wireless-communications-services provider reported second-quarter results that missed Wall Street's forecasts. Qualcomm added 1.84 to 59.59 on Nasdaq. The San Diego wireless-communications-systems developer said it canceled the planned spinoff of its semiconductor business. Xerox fell 40 cents, or 5%, to 7.59. The Stamford, Conn., copier and printer maker lived up to Wall Street's projections for its second quarter, but warned that its return to profitability won't come in the third quarter, as the company previously forecast, but in the fourth quarter this year. Linear Technology declined 1.93, or 5%, to 37.79 on Nasdaq. The Milpitas, Calif., semiconductor manufacturer reported as-expected fiscal fourth-quarter earnings, though the company cautioned that its current-quarter sales will show a decline from the level of the quarter it reported. Aflac slid 3.35, or 11%, to 28.20, after the Columbus, Ga., supplemental life-insurance provider reported its second-quarter results. The company said it found the sales totals from its Japanese unit disappointing. Chris-Craft Industries declined 55 cents, or 0.8%, to 69.30. The Federal Communications Commission approved the \$5 billion purchase of the New York television station owner by Fox Television Stations, a unit of News Corp. The American depositary receipts of News declined 56 cents, or 1.6%, to 35.50. Furniture Brands declined 67 cents, or 2.4%, to 26.93. UBS Warburg said it turned cautious about the earnings outlook for the St. Louis furniture maker, after several other names in related businesses warned of profit shortfalls. Rail carriers ended mixed, with some names, such as CSX, Richmond, Va., recovering 1.70, or

5%, to 36.95, after losing 6% Tuesday. Credit Suisse=20 First Boston called Tuesday's selloff in the sector overdone, and urged=20 investors to take advantage of depressed prices in the group.=20 However, CSFB said it remained cautious about Burlington Northern, whose=20 earnings performance sparked Tuesday's slide. The stock, which lost 8%=20 Tuesday, eased another 69 cents, or 2.5

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Daily Agenda for Tuesday, May 8th

Sender	richard.costigan@asm.ca.gov
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Daily Agenda Tuesday, May 8, 2001

Today's Events... * 10:30 a.m., SACRAMENTO Consumer advocates and state Department of Consumer Affairs release guide detailing new state rights and remedies for HMO patients, 400 R St., sidewalk in front of building. Contact: Jamie Court, 310-392-0522 Ex 327.

In the news... * SacBee, Peyton, Kasler: More outages probable today.

http://www.capitolalert.com/news/capalert01_20010508.html * SacBee, Walters: Summer-like heat bring partisan finger-pointing. http://www.capitolalert.com/news/capalert04_20010508.html * LA Times, Bustillo, Tamaki: Effort to repay general fund is delayed. <http://www.latimes.com/news/state/20010508/t000038780.html>

In committee... * PET STORES. Business and Professions. 9:00am, room 447. (Squawk Box 97.5) * 1. AB 1336 (Koretz) Requires all puppies and kittens sold in pet stores to first be spayed/neutered. * VARIOUS BILLS. Jobs, Economic Development and the Economy. 9:00am, room 127. (Squawk Box 92.1) * SCHOOL VIOLENCE REPORTS AND DEFAMATION SUIT IMMUNITY. Judiciary. 9:00am, room 4202 and 1:30pm, LOB, room 100. (Squawk Box 90.3, Assembly TV, CH. 7) 1. AB 1717 (Zettel) Encourages students, parents and school personnel to report threats of potential violence at schools by providing immunity from defamation suits that are brought in retaliation by the parents of the accused student. * VARIOUS BILLS. Public Safety. 9:00am, room 126. (Squawk Box 91.5, Assembly TV, CH. 8) * VARIOUS BILLS. Water, Parks and Wildlife. 9:00am, room 437. (Squawk Box 94.5) * VARIOUS ITEMS. Budget Subcommittee No. 2 on Education Finance. 9:30am, room 444. (Squawk Box 95.1) * VARIOUS ITEMS. Budget Subcommittee No. 4 on State Administration. 1:30pm, room 447. (Squawk Box 97.5) * FOSTER FAMILIES. Human Services. 1:30pm, room 437. (Squawk Box 94.5, Assembly TV, CH. 8) 1. AB 1739 (Reyes) Would prohibit a person from being licensed to maintain and operate a foster family unless the person is 21 years of age or older. Currently, a person 18 years of age or older can maintain a foster family. * VARIOUS BILLS. Energy Costs and Availability. Upon adjournment of Assembly Committee on Human Services, room 437. (Squawk Box 94.5, Assembly TV, CH. 8) * VARIOUS BILLS. Environmental Safety and Toxic Materials. 1:30pm, room 444. (Squawk Box 95.1) * VARIOUS BILLS. Health. 1:30pm, room 4202. (Squawk Box 90.3, Assembly TV, CH. 7) * VARIOUS ITEMS. Budget Subcommittee No. 1 on Health and Human Services. 2:00pm, room 126. (Squawk Box 91.5)

Today on the floor... * No Session Scheduled

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

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Enron Mentions

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File	dasovich-j/all_documents/29100.

Kyoto Spurned Is Mixed Bag for U.S. Firms --- Subsidiaries Abroad Will Have to Abide by New Emissions Rules The Wall Street Journal, 07/25/01 THE NATION FERC Scrutinizes Charges of Bias in Grid Controller Energy: Davis-appointed panel that heads Cal-ISO violates U.S. law, critics say. Remedies could include scrapping it. Los Angeles Times, 07/25/01 Markets / Your Money Dreary Outlook Batters Stocks Markets: Disheartening forecasts from AT&T, Amazon rattle Wall Street. Dow, Nasdaq post losses for third session. Los Angeles Times, 07/25/01 INDIA PRESS:Enron/MSEB Dispute Clouding Invest - Official Dow Jones International News, 07/25/01

Rocca seeks Centre's intervention in Enron dispute The Hindu, 07/25/01

Houston Energy Firm's Quarterly Income Is Up 60 Percent KRTBN Knight-Ridder Tribune Business News: Houston Chronicle - Texas, 07/25/01 Dynegy's Telecommunications Unit Reports \$20 Million Loss Dow Jones Energy Service, 07/24/01 BANDWIDTH BEAT: Bandwidth Trading Isn't Dead Yet Dow Jones Energy Service, 07/24/01

Economy Kyoto Spurned Is Mixed Bag for U.S. Firms --- Subsidiaries Abroad Will Have to Abide by New Emissions Rules A Wall Street Journal News Roundup

07/25/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

The U.S. rejection of the Kyoto Protocol appears to give U.S. companies an advantage over their foreign rivals, which would be forced to invest to reduce greenhouse-gas emissions. But longer term, some U.S. companies could find themselves less energy efficient in their domestic operations than their overseas competitors. U.S. multinationals seem resigned to the fact that their operations abroad will need to conform to the Kyoto rules. Few sectors would be as affected by curbs on carbon-dioxide emissions as the auto industry, whose cars and trucks are one of the world's biggest sources of the gas. In Europe, the auto industry, including units of the Big Three auto makers, already has signed a voluntary agreement to cut 25% from 1995 levels of the amount of carbon dioxide that the European industry's new vehicles belch out by 2008. But in the U.S., most major auto makers continue to oppose calls by environmentalists and rising numbers of politicians to force a similar result by toughening the nation's automotive fuel-economy rule. The Kyoto agreement, approved this week by 178 countries, but not by the U.S., at a United Nations convention in Bonn, calls for industrial nations to reduce their emissions to 5.2% below 1990 levels during an accounting period that runs from 2008 to 2012. The accord must still be approved by legislatures of at least 55 countries, representing more than 55% of emissions from the industrialized world. Foreign companies are hollering that they will have to abide by stiffer environmental regulations than their U.S. rivals. "We could be placed at a disadvantage to oil and gas companies operating in the U.S.," said Chris Dawson, a spokesman for Petro-Canada, a Calgary, Alberta, integrated oil company. "The markets must be open, and everyone must be operating on the same playing field." The Bush administration, which faults Kyoto for being too costly for U.S. businesses, has promised to develop its own framework to reduce global warming. Indeed, this week's approval of the Kyoto agreement raises the possibility that a compromise regulatory regime can be worked out. Democrats in Congress say that they will now mount a strong campaign to set up a U.S. regime to regulate carbon dioxide, which could give the U.S. standing to enter the Kyoto accord later. Secretary of State Colin Powell yesterday said: "We are committed to working with all nations of the world to find a consensus in the near future." Although the European Union looks certain to ratify Kyoto, questions remain over the commitment of some other key countries, especially Japan, whose heavy industry could be hurt by Kyoto, especially compared with the U.S. Japan was only dragged into the deal in Bonn after receiving concessions, which reduced the cuts it will have to make in its emissions. A big appeal that led to the original accord was that the parties to it can engage in several types of international emissions trading, a concept promoted for years by the U.S. before it abandoned Kyoto. The U.S. had been expected to be the major buyer of such credits, especially from Russia. Jonathan Pershing, who heads the International Energy Agency's environmental division, estimated that the world trading market in emissions credits would have been roughly \$42 billion a year, including the U.S. Computer models, he said, show the withdrawal of the U.S. would shrink the market and also drop the demand price for

Russian credits sharply, leaving annual trade among nations at about \$3 billion. Mr. Pershing believes U.S. companies may not be able to use the market, at least initially. Later they may, he said, but "maybe at a higher cost" of entry. Some U.S. companies want the U.S. to rethink its position on Kyoto and gain entry for its companies in the emerging market. "It would give us an opportunity to get more mileage out of the capital we have to meet this [climate change] challenge," said Thomas R. Jacob, a senior international adviser for DuPont Co., which operates in 70 countries. DuPont is one of 36 multinational companies that have formed an alliance with the Pew Charitable Trusts to support efforts to curb climate change and to express interest in emissions-trading possibilities. Enron Corp. -- which has a big trading operation, as well as utilities -- expects that Kyoto would offer it business opportunities. Those include, for example, helping companies switch from coal to cleaner-burning natural gas, and helping companies finance pollution-control equipment, said Jeff Keller, Enron's director of environmental strategies. He believes the U.S., eventually, will join the group of signers. Many European companies are already well on their way to meeting Kyoto's targets. "We're way ahead of Kyoto," boasts Pasquale Pistorio, chief executive of French chip maker STMicroelectronics NV. Increased energy efficiency saved the company \$40 million last year, he said, and STM has targeted zero carbon dioxide emissions by 2010. STM takes advantage of a Kyoto provision allowing it to plant trees, which reduce carbon dioxide in the atmosphere, in order to offset the company's emissions. In the United Kingdom, big oil companies BP PLC and Royal Dutch/Shell Group were early supporters of Kyoto, and both companies subsequently declared they would hew to the standards of the protocol even before it was passed. To assist in achieving these reductions, the companies separately have set up internal emissions-trading floors, where various company units can trade credits.

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National Desk THE NATION FERC Scrutinizes Charges of Bias in Grid Controller Energy: Davis-appointed panel that heads Cal-ISO violates U.S. law, critics say. Remedies could include scrapping it. RICARDO ALONSO-ZALDIVAR TIMES STAFF WRITER

07/25/2001 Los Angeles Times Home Edition A-17 Copyright 2001 / The Times Mirror Company

WASHINGTON -- The Federal Energy Regulatory Commission appears headed for a showdown with Gov. Gray Davis, perhaps as early as today, over political control of the powerful nonprofit corporation that runs California's electricity transmission grid. Responding to an industry complaint that the grid operator lacks required independence, FERC could immediately disband its governing board, which was appointed by Davis. But several observers said Tuesday that such a politically provocative step seems unlikely in the heat of summer. They predicted the commission will find som

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Enron Mentions

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Ontario should open power market National Post 04/05/01

California lawmakers want windfall profits tax on energy companies Houston Chronicle, 04/05/01

SURVEY - SITE FEED - WORLD PULP AND PAPER: Online trading gets the cold shoulder The industry seems to be taking a cautious attitude towards the web Financial Times; Apr 5, 2001

COMPANIES & FINANCE UK: BG to get Pounds 51m from Enron NEWS DIGEST Financial Times; Apr 5, 2001

COMPANIES & FINANCE THE AMERICAS: Duke outlines its Dollars 1bn Europe plan Financial Times; Apr 5, 2001

UK: UPDATE 1-Britain gears up for offshore wind power. Reuters English News Service, 04/05/01

INDIA: Enron issues arbitration notice to India govt. Reuters English News Service, 04/05/01

FDI proposals worth Rs 545 crore cleared The Economic Times, 04/05/01

Law Lords order Enron to pay pounds 100m over pipeline The Daily Telegraph, 04/05/01

Merger Increases Value of King of Prussia, Pa., Video-Conferencing Company KRTBN Knight-Ridder Tribune Business News: The Philadelphia Inquirer - Pennsylvania, 04/05/01

Bandwidth Mkt: Price Adjustments Fail To Spur Action Dow Jones Energy Service, 04/04/01

Financial Post: Editorial Ontario should open power market Kenneth L. Lay National Post

04/05/2001 National Post National C19 (c) National Post 2001. All Rights Reserved.

In the face of the California crisis, it is all the more important for legislators and policymakers -- and for the public generally -- to remember why a competitive market structure is so important for electricity consumers. The time is right to leave behind the central planning, socialized risk structure that resulted in the billions of dollars of stranded costs and stranded debt left to consumers in many regions of North America (not just Ontario) by poor management, bad planning and enormous cost overruns. That can't happen again, and will not happen again in a competitive open market. In a restructured and competitive electricity market, the risk and cost of new investment in generation will be borne by investors and shareholders rather than by ratepayers. This protects consumers from bearing the cost of bad decisions. Last week, the government and Ontario Power Generation (OPG) announced an end to the freeze of Ontario's bulk power rates that has been in place for about eight years. That will represent an increase of 12% to 15% in bulk power rates. It was explained on the basis of the need to pay for the mistakes of the past. At Enron, we cannot think of any other jurisdiction in North America where a price freeze has been in place for that length of time. In future, a competitive market can deliver lower prices than a regulated structure can. This is borne out by the experience in Pennsylvania, England and other European markets. Pennsylvania estimates that consumers have saved US\$3-billion over the past three years. In England's first year of customer choice (June, 1999 -- June, 2000) consumers saved in excess of (ps)299-million (\$673-million). In Germany, industrial prices have fallen by over 50% since 1995. In Finland, industrial prices have fallen over 23% since 1995. Competition gives customers choice, which gives suppliers and retailers a strong incentive to improve customer service, lower prices and develop demand-side (load management) solutions. This leaves the issue of timing for the opening of the market. The Electricity Market Readiness Plan adopted by the Ontario Energy Board and the Independent Market Operator targets the systems, processes and other requirements of the wholesale and retail markets to be ready for a market opening in October/November, 2001. This represents a realistic and achievable approach to market opening. We see real benefits to opening the market this fall, rather than waiting until 2002. Major institutions are gearing up for a market opening later this year, and the momentum is ours to lose. Indeed, many participants, including large industrial customers, have already entered into the commercial arrangements necessary for market opening and the post-market opening period in the expectation of market opening later this year. Those commercial arrangements with respect to power procurement, power supply, risk management, and settlement and dispatch services have helped and are helping industrial consumers lock in prices. Opening the market in the fall will preserve those arrangements for which parties have bargained, leaving just those consumers who have chosen to enter the market unhedged, and giving them seven or eight months to experience the operation of the market prior to the summer of 2002. This was a key consideration in the decision to open the New York market in November, 1999, rather than the spring of the following year. Remember that, although Ontario's demand traditionally peaks in the winter, we would expect prices to peak in the summer months. Moreover, because the summer is the period of peak demand across the Eastern interconnect as a whole, the summer months generally see relatively more operational/transmission related constraints than the winter. A fall opening will also enhance the efforts to "decontrol" or divest OPG assets. Those entities which might have an interest in acquiring OPG assets will, for valuation purposes, want to have as much information as possible about pricing in the Ontario market. Opening in the fall will give those entities a longer period of time over which to observe the way the price-setting mechanisms in the Ontario market actually operate. Accordingly, opening in the fall will help reduce uncertainty over the valuation of Ontario Power Generation assets. This would mean that the decontrol initiative will attract more potential buyers, and that those buyers will pay more than they otherwise would in the face of uncertainty. Focusing on getting the market open this fall will help maintain the commitment of those, like Enron, who have already devoted significant resources and capital to the market, while attracting more new players, sooner, into the province. The Ontario government should have confidence that the best way forward is to proceed with the implementation of that plan and with the opening of the Ontario wholesale and retail markets in the fall of 2001. The case for open markets is strong.

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April 5, 2001 Houston Chronicle California lawmakers want windfall profits tax on energy companies Reuters News Service SACRAMENTO, Calif. -- A coalition of California lawmakers Wednesday introduced a bill that would slap a windfall profits tax on power generators they claim have made a killing from the state's unfolding power crisis. "This says to the large generators who are gouging us that we are going to set a reasonable rate of return, and reasonable profits, and anything beyond that would be returned to the state of California," said Assembly member Dion Aroner. "They've been gouging us, and it is time to gouge them. We're sick of paying these outrageous bills to the Texans." A spokesman for Gov. Gray Davis, who has been scrambling to address his state's escalating energy emergency, said he would have no comment on the bill until it reached his desk. Aroner said the bill, proposed by a coalition of Democratic women, calls for the state to establish a formula to determine "reasonable" profits for generators and tax back anything over that amount. Major power generators, many of them based in Texas, have reported sharply higher earnings as wholesale power prices skyrocketed in the Western U.S. spot market. Last year at this time, prices were \$30 to \$40 per megawatt hour of electricity. This year, that same electricity costs between \$300 and \$400. Those high price

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VentureWire, Thursday, May 24, 2001

Sender	venturewire@venturewire.com
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File	dasovich-j/all_documents/13033.

=09=09?=09 ?=09VentureWire =09Thursday, May 24, 2001=09=09? ?=09CONTENTS | COMPANIES | INVESTORS | ADVERTISE | TELL A FRIEND=09VentureW= ire Index =09=09'VentureWire =09=09today: 736.0 ? -0.03%=09? ? =09=09 =09=09 =09=09top stories =09=09 =09=09 =01=07 Online Financial Technology Firm Xigo Closes Down =09=09 =01=07 Auxyn Bioscience Ventures Raising \$200 Million Fund =09=09 =01=07 SpaceVest III Makes First Closing at \$82M, Targets \$150M =09=09 =01=07 BlueLight.com to Make Layoffs; Will Use More Kmart Staff =09=09 =09=09 =09=09TODAY'S FEATURES=20 =09=09Concord Ventures Begins Raising Fourth Fund =09=09By Jonathan Shieber =09=09Concord Ventures, an Israeli venture capital investor, has begun rais= ing its=20 fourth fund, Concord Ventures III, according to partner Batsheva Elran.=20 more>> =09=09UPCOMING EVENTS=20 =09=09June 5-6: San Francisco =09=09 Mobile Outlook 2001 =09=09 =09=09Anthony Alles, formerly of Shasta Networks (acquired by Nortel for \$3= 40=20 million) is back with a new venture called Tahoe Networks. Mobile Outlook= =20 will showcase for the first time their plans to merge the worlds of data an= d=20 mobility.=20 =09=09With industry leaders such as Anthony Alles planning to be at Mobile = Outlook,=20 you should be too. =09=09Less than 2 weeks, register today! =09=09 =09=09 =09=09Entrepreneurs and VC-backed company CEOs: =09=09* Where can you obtain FREE detailed information on the =09=09latest quarter's venture funding by region, industry, =09=09round and stage of development? =09=09* Where are there FREE tools and templates for writing a =09=09business plan and securing venture funding? =09=09* And if you're a young tech company CEO, where can you =09=09hear other CEOs discuss the issues of the day? =09=09VISIT PricewaterhouseCooper's Entrepreneur Resource Center =09=09for this and more --><http://www.pwcerc.com> =09=09 =09=09 =09=09 =09=09New Endymion CEO Thinks Acquisitions, IPO =09=09By Michelle Tsai =09=09Steve King, the new CEO of Endymion Systems, an information technolog= y=20 consultancy, won't have much time to bask in his recent promotion. more>> =09=09 =09=09 =09=09 =09=09 =09=09new money =09=09 =09=09 =01=07 ATM Software Firm KAL Raises \$3.5M First Round =09=09 =01=07 Malaysian Software Maker BizAid Scores \$2.4M in Series A =09=09 =01=07 Property Protection Firm Infracore Gets \$9 M Series A =09=09 =01=07 Alphion Works On \$35 Million Series B Close=20 =09=09=01=07 Bharti Televentures Lands \$460 Million Capital Injection =09=09 =01=07 IpSEAL Wants \$8 Million in Second Round =09=09 =01=07 Molecular Mining Gets \$8 Million Round Two =09=09 =01=07 Point Therapeutics Closes \$5.4M Series B =09=09 =01=07 Workspeed Raises \$15 Million in Series B=20 =09=09=01=07 Supply Chain Software Developer Viewlocity Gets \$30 Million =09=09 =01=07 Wireless Services Firm InfoMove Has \$6.2 million Third Round =09=09 =01=07 Be Here Raises \$6 Million in Series D =09=09 =01=07 Japanese Consumer Finance Firm Priva Secures Funding =09=09 =01=07 CapMan Invests in Danish Distribution Company SMEF Group =09=09 =01=07 Blue Tie Looking for Up To \$30 Million =09=09 =09=09 =09=09bad news =09=09 =09=09 =01=07 Black Hog Lays Off 35% of Staff =09=09 =09=09 =09=09new deals =09=09 =09=09 =01=07 Jenoptik and Lambda Form UV Lasers JV Xtreme =09=09 =09=09

=09=09new products =09=09 =09=09 =01=07 Law Firm Gray Cary Launches VC Business Services Subsidiary =09=09
 =09=09 =09=09m&a =09=09 =09=09 =01=07 PocketMail Acquires Pocket.com's Assets for Cash & Stock =09=09 =01=07
 Evolve Buys Vivant for \$2.7 Million in Stock and Cash =09=09 =01=07 Training Software Firm Baydon Buys Human
 Dynamics for \$1M=20 =09=09=01=07 World Internetworks Merges With Trace Affex=20 =09=09=01=07 JB Oxford Buys
 Certain Assets of eCapitalist Financial =09=09 =01=07 EverythingTele.com Acquires TekSell.com in Stock Deal =09=09
 =09=09 =09=09new directors =09=09 =09=09 =01=07 E-Marketplace OneMade Names John J. McLaine Chair. of Board
 =09=09 =09=09 =09=09new people =09=09 =09=09 =01=07 Mobile Software Provider Bwirelezz Names New CEO
 =09=09 =01=07 Ronald Brumback Named Pres. & COO of Top Layer Networks =09=09 =01=07 Sur La Table Names Tim
 Hopkins as New CEO =09=09 =09=09 =09=09vc fund news =09=09 =09=09 =01=07 Irish Investment Firm Crucible to
 Open New Office in Belfast =09=09 =09=09 =09=09vc personnel =09=09 =09=09 =01=07 VC Management Firm Beacon
 Telco Appoints Avi Legmann as VP =09=09 =09=09 =09=09vw corrections =09=09 =09=09 =01=07 Bridium =09=09
 =01=07 Saipx =09=09 =09=09 TOP STORIES... NEW MONEY... BAD NEWS... NEW DEALS... NEW PRODUCTS...= M&A...=20
 NEW DIRECTORS... NEW PEOPLE... VC FUND NEWS... VC PERSONNEL... VW CORRECTIO= NS =09=09
 =09=09 =09=09top =09=09 =09=09 =09=09This year to date, over \$750 million has been =09=09invested in private equity
 deals in the financial =09=09services sector (source: VentureWire). In this age =09=09of liquidation preference provisions
 and =09=09retroactive repricings, that's a strong =09=09performance. Financial Services Outlook allows =09=09you a
 unique insight into where the investment strength =09=09in this market lies, and which private companies are leading
 =09=09the strongest sectors of the financial technology =09=09and solutions market. =09=09 =09=09Register before
 June 19 and SAVE=20 \$100:http://www.financialservicesoutlook.com/register.asp =09=09 =09=09 =09=09 =09=09 top
 stories=20 =09=09? =09=09Online Financial Technology Firm Xigo Closes Down =09=09 mail? top =09=09 =09=09 SAN
 FRANCISCO (VENTUREWIRE) -- Xigo, a developer of online financial= =20 technology, said it is closing down. According
 to CFO Skip Smith, the compa= ny=20 could not secure the additional funding it needed. Mr. Smith said the compa=
 ny=20 still has a handful of employees on staff while it tries to sell its assets= .=20 He would not say how many employees
 the company originally had on staff.=20 Xigo's real-time technology searches through streaming data to provide user=
 s=20 with financial and investment information via e-mail, cell phone, or pager.= =20 Last May the company raised \$22
 million in a second round of financing from= =20 Capital Z Financial Services Fund II, Angel Investors LP, New
 Enterprise=20 Associates, and John McKinley, Jr., executive vice president and CTO of=20 Merrill Lynch.=20
 =09=09http://www.xigo.com =09=09 =09=09 =09=09Auxyn Bioscience Ventures Raising \$200 Million Fund =09=09 mail?
 top =09=09 =09=09 ST. LOUIS (VENTUREWIRE) -- Auxyn Bioscience Ventures, a fund dedica= ted to=20 life science
 investments, said it is raising \$200 million. The firm's chief= =20 scientist Ganesh Kinore said that the fund has already
 received a good=20 portion of the \$50 million it is seeking from investors in the St. Louis=20 area. He said the fund, slated
 to close this fall, will invest in life=20 sciences companies focused on gene discovery to modify nutritional quality = of=20
 crops to treat human diseases, as well as genomics and infomatics sectors.= =20 Mr. Kinore formed the firm with former
 Monsanto colleagues, including Arnol= d=20 Donald and Andy Bursky. Telephone 314-657-1050=20 =09=09 =09=09
 =09=09SpaceVest III Makes First Closing at \$82M, Targets \$150M =09=09 mail? top =09=09 =09=09 RESTON, Va.
 (VENTUREWIRE) -- SpaceVest, a private equity firm that = invests=20 in companies in the space industry, announced
 that it had made the first=20 closing for its newest fund, SpaceVest III, at \$82 million in the middle of= =20 April.
 SpaceVest began raising the fund in October 2000 and plans on closin= g=20 the fund at \$150 million by the end of the
 year. Ransom J. Parker, the=20 managing partner responsible for administering the fund, said SpaceVest III= =20 will
 make expansion-stage investments ranging from \$5 million to \$7 million= =20 in space industry companies and in
 networking firms.

Message 845 of 1299

Electricity Crisis

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TO:?????AD HOC GROUP ON THE ELECTRICITY CRISIS

Assemblyman Joe Nation put a bill in the hopper Friday, January 26th, which he believes is congruent with our thinking (see attached).? He is seeking our comments and possible endorsements.

Please send your comments directly to Joe Nation at <joe@joenation.com>, and let me know whether you believe we should work with him and consider endorsing his bill.

Thanks, David Teece

- nation memo 012601.pdf - nation draft bill page 2.pdf - nation draft bill page 3.pdf - nation draft bill page 4.pdf - nation draft bill page 1.pdf - nation memo 012701.pdf

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Message 846 of 1299

URGENT - Electricity Crisis Workshop

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To:? Workshop Participants

Attached are additional articles that should be added to your reading list.

1)?????"High Electricity Prices in the West: What Can Be Done About It?", by Shmuel Oren and Pablo T. Spiller.?

2)?????"Electricity Market Reform in California", by John D. Chandley, Scott M. Harvey, and William W. Hogan.?

Sincerely, David Teece

P.S.? Directions and parking instructions will be sent to you shortly.

- High Elec Prices.doc - Electricity Mkt Reform.pdf

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Message 847 of 1299

Enron Mentions - 04/28/01 - 04/29/01

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File	dasovich-j/all_documents/11845.

Scottish Power reportedly considering 3 bln usd bid for Enron's Portland AFX News, 04/29/01

UK PRESS:Scottish Power Mulls Bid for Enron's Portland Dow Jones, 04/29/01

Scottish Power Mulls Bid for Portland General, Observer Says Bloomberg, 04/29/01

India's MSEB Hopeful Of New Power Pact With Enron Unit Dow Jones, 04/29/01

India: Enron pull-out could put Indian lenders in a spot Business Line (The Hindu), 04/29/01

Enron not interested in completion of Dabhol project Press Trust of India Limited, 04/29/01

African-American museum gathers support, money, ideas Houston Chronicle, 04/29/01

After several tries, black museum approaches reality in Houston Associated Press, 04/29/01

COMMUNITY HELPERS SOUTH SCHOOL GIVES \$2,500 Portland Oregonian, 04/29/2001

World Bank to vote on \$450 mln India power loan Reuters, 04/28/01

UK: Scottish Power mulls Portland bid - paper Reuters, 04/28/01

India: Save Dabhol project Business Line (The Hindu), 04/28/01

India: Systemic changes needed for SEBs, says Prabhu Business Line (The Hindu), 04/28/01

India: Enron not to affect India ratings: S&P Business Line (The Hindu), 04/28/01

Maharashtra to appoint Godbole to lead renegotiations with DPC Press Trust of India Limited, 04/28/01

Power play over Dabhol Business Standard, 04/28/2001

India waits for a rediscovery Business Standard, 04/28/01

Enron gets set to pull the plug on power project South China Morning Post, 04/28/01

Enron not needed at all, says NGO The Times of India, 04/28/01

State-wide stir against Enron from March 1 The Times of India, 04/28/01

Enron, India in dispute over future of gas-fired power plant Associated Press Newswires, 04/28/01

STARS & DOGS A selection of this week's winners and losers compiled by Andrew Bell The Globe and Mail, 04/28/01

Talk & Speculation San Antonio Express-News , 04/28/01

Enron's stock price gets whipped after broadband unit falls short Associated Press Newswires, 04/28/01

Scottish Power reportedly considering 3 bln usd bid for Enron's Portland

04/29/2001 AFX News (c) 2001 by AFP-Extel News Ltd

LONDON (AFX) - Scottish Power PLC is considering a move to bolster its U.S. West Coast operations by bidding for Enron Corp unit Portland General for around 3 bln usd, reports the Observer, without citing sources.

Enron last week broke off talks with U.S. utility Sierra Pacific over a deal said to be worth 3.1 bln. This opened the door to Scottish Power, the report says.

An unnamed City source said Portland, which sells power to 725,000 customers in and around the Oregon state capital, would be a perfect fit for the PacifiCorp business in the north-west U.S. which Scottish bought in 1999 for 4.7 bln stg. Scottish has consistently said it wants to build up its business in the U.S.

PacifiCorp has some 1.5 mln residential, commercial and industrial customers spread in Oregon, California, Washington, Wyoming, Utah and Idaho.

"Portland sits in the middle of PacifiCorp territory in Oregon," the source said. "There would be added customers and big synergies in infrastructure, operations, and head office functions. It would make sense."

Scottish Power unveils results this week.

UK PRESS:Scottish Power Mulls Bid for Enron's Portland

04/29/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

LONDON -(Dow Jones)- Utility giant Scottish Power PLC (SPI) is considering a move to bolster its American West Coast operations by bidding for Enron Corp's (ENE) Portland General in a deal that could total \$3 billion, The Observer newspaper reports.

-London Bureau; Dow Jones Newswires; 44 (0)20 7842 9279

ScottishPower Mulls Bid for Portland General, Observer Says 2001-04-29 11:30 (New York)

Glasgow, Scotland, April 29 (Bloomberg) -- ScottishPower Plc, the U.K.'s No. 2 utility, may bid for Enron Corp.'s Portland General Electric Co. in a transaction worth as much as \$3 billion, the Observer newspaper said. ScottishPower spokesman Gordon Laidlaw declined to comment on the newspaper's report. Portland General has 725,000 customers in Oregon. Its operations and infrastructure could fit with PacifiCorp, the biggest utility in the U.S. Northwest, which ScottishPower bought for \$10.7 billion in 1999, the paper said. Last week, Enron's planned sale of Portland General to Sierra Pacific Resources was canceled after both companies agreed that the California energy crisis had made regulatory approval too difficult. ScottishPower has asked Oregon regulators to allow it to raise customer prices in the state by 24 percent for three months from May 2 to cover costs it expects to incur in the period. The company is losing about \$1 million a day because of a failure at a plant in Utah.

(The Observer, 4-29, business p.1) Click {WNUK <GO>} for a list of U.K. newspaper Web sites

--Richard Blackden in the London newsroom on +44 (0) 20-7673-2821 or at rblackden@bloomberg.net /ja

Story illustration: {SPW LN <Equity> COMP <GO>} for a graph comparing ScottishPower shares with major indexes.

SPW LN <Equity> ENE US <Equity> SRP US <Equity>

NI SUM NI UTI NI MNA NI CA NI ELC NI NRG NI CMD NI OR NI RULES NI UK NI SCOTS NI USWE

-0- (BN) Apr/29/2001 15:30 GMT

India's MSEB Hopeful Of New Power Pact With Enron Unit By Himendra Kumar Of DOW JONES NEWSWIRES

04/29/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.) NEW DELHI -(Dow Jones)- India's Maharashtra State Electricity Board is hopeful of renegotiating its power purchase agreement with the U.S. energy major Enron Corp.'s (ENE) Indian unit Dabhol Power Co., MSEB Chairman Vinay Bansal said late Sunday.

The \$3 billion, 2,184-megawatt Dabhol project has been mired in financial disputes after MSEB, its main customer, failed to pay several of its bills. The project has the largest single foreign investment in India.

The Dabhol project has been in trouble since December when the government of Maharashtra state, where the Dabhol project is located, said the company charged exorbitant prices for electricity, and thus demanded a new price agreement.

Meanwhile, the board of Dabhol Power at its meeting in London April 25, had authorized DPC's managing director to proceed with a preliminary move toward terminating its troubled joint venture power project in western India.

"We are at a point of renegotiating the power purchase agreement with Dabhol Power Co. A committee has been constituted with the government of India participation. I am hopeful of a positive outcome," Bansal told Dow Jones Newswires in a telephone interview.

He said he hadn't heard anything from DPC's management on the preliminary termination notice. "It's true that the DPC board has authorized the company's managing director to issue a preliminary termination notice. I am not sure why, when or whether he will use it," Bansal said.

The preliminary termination notice is the first of three steps that end in the abandonment of the project, agreed to by investors when the joint venture was formed.

Bansal said that if the preliminary notice of termination is issued by the DPC's managing director, there will be a six-month suspension period in which the two sides will be "negotiating to remedy the defect." "If the dispute cannot be resolved even after the negotiations, the final termination takes place. Thereafter, MSEB or a third party may buy the Dabhol unit. The compensation price will be decided by the arbitrator whose decision will be based on which of the two parties has defaulted," Bansal said.

Enron India spokesman Jimmy Mogal refused to comment on the DPC board's decision when reached by Dow Jones Newswires, saying it was an internal company matter.

Indian lenders, present at a meeting with foreign financial institut

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Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	
File	dasovich-j/all_documents/11531.

World Watch The Wall Street Journal, 04/25/01

CMS Preferred Bidder on 320 MW Saudi Power Plant, MEED Says Bloomberg, 04/25/01

Bill could force refund from Reliant Houston Chronicle, 04/25/01

Signaling Change, Bush Picks 3 Executives for Pentagon Jobs The New York Times, 04/25/01

Stocks Fall Back After Profit Reports The Washington Post, 04/25/01

India State Ready To Pay Enron Unit For March Dow Jones International News, 04/25/01

Law minister: India's court system hindering economic progress Associated Press Newswires, 04/25/01

Indian state ready to pay Enron bill for power Associated Press Newswires, 04/25/01

INDIA: Enron action tarnishes India's investment image. Reuters English News Service, 04/25/01

INDIAN COMMITTEE TO RENEGOTIATE POWER AGREEMENT WITH ENRON Asia Pulse, 04/25/01

Enron mum on Indian project sale reports The Daily Deal, 04/25/01

India: Babus as negotiators Business Line (The Hindu), 04/25/01

Markets / Your Money Poor Earnings Reports Drag Markets to Moderate Losses Los Angeles Times, 04/25/01

Aquila Shares Rise 24% After IPO Raises \$420 Million (Update1) Bloomberg, 04/24/01

A Bandwidth Glut Exists in the Long-Haul Market, but a Shortage Exists in the Metro and Access Markets PR Newswire, 04/24/01

Businesses back bill to refund Texas utility customers billions Associated Press Newswires, 04/24/01

Starwood Hotels Meets 1Q Despite Economy, 2Q Views Cut Dow Jones News Service, 04/24/01

Enron, Napster take honors at MIT eBusiness awards Associated Press Newswires, 04/24/01

INDIA: UPDATE 1-Termination on Enron's Dabhol meeting agenda. Reuters English News Service, 04/24/01

International World Watch Compiled by David I. Oyama

04/25/2001 The Wall Street Journal A15 (Copyright (c) 2001, Dow Jones & Company, Inc.)

ASIA/PACIFIC Chinese Delisting May Signal Cleanup China announced the first delisting of a company, signaling a new effort to clean up its stock exchanges by ridding them of their most troubled companies. The decision to delist Shanghai Narcissus Electrical Appliance follows months of heated talks between the company and the Shanghai Stock Exchange. Shanghai Narcissus was once the country's second-largest maker of washing machines but this month reported its fourth straight annual loss. The delisting could pave the way for the China Securities Regulatory Commission to delist as many as 12 similarly unprofitable companies. But pressure from local governments, which control many indebted listed firms, could slow reforms. U.S., Singapore Rated Most Competitive The U.S. and Singapore kept the top spots as the world's most competitive nations, and strong growth in Hong Kong moved it back to sixth place from 12th, according to an annual survey. Japan, once a leader, fell to 26th in the poll of business leaders by the International Institute for Management Development in Lausanne, Switzerland. Canada slipped one spot to No. 9. The top 10 places were filled out by Finland, Luxembourg, the Netherlands, Ireland, Sweden and Switzerland. Dabhol Board May Take Preliminary Step U.S. power

company Enron's Indian unit, Dabhol Power, may take a preliminary step toward ending its \$3 billion project near Bombay, as part of a dispute over payments by its main customer, the Maharashtra State Electricity Board, or MSEB, a Dabhol board member said. At a meeting today in London, Dabhol's board will consider a preliminary termination notice, according to Don Sturmer, a vice president at Bechtel Enterprises and member of the board of Dabhol Power, in which Bechtel owns 10%. Mr. Sturmer said the "procedural" step would allow Dabhol to suspend deliveries as it negotiates its dispute with the MSEB. Enron holds a 65% stake in Dabhol. Besides Bechtel, other shareholders are General Electric of the U.S., with 10%, and the MSEB, with 15%. Intel Cuts Stake in CyberWorks Venture U.S. semiconductor maker Intel has scaled back its stake in Network of the World, the debt-burdened interactive television service it has been developing with Hong Kong telecommunications and Internet company Pacific Century CyberWorks. Intel's move means CyberWorks will have to bear a greater share of any further investment in the service. CyberWorks disclosed in its annual report yesterday that Intel exercised part of an option that allows it to exchange its stake in the venture, known as NOW, for shares in CyberWorks. The transaction reduced Intel's stake to around 35% from 40%.

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CMS Preferred Bidder on 320 MW Saudi Power Plant, MEED Says 2001-04-25 03:19 (New York)

Riyadh, Saudi Arabia, April 25 (Bloomberg) -- CMS Energy Corp., a U.S. power provider based in Michigan state, is the preferred bidder to develop what may be Saudi Arabia's first privately owned power plant, Middle East Economic Digest reported, without citing sources. CMS, together with a local partner, AH Al-Zamil Group, is negotiating details with the government-owned Saudi Petrochemical Co. to build a 320 megawatt plant in the kingdom's largest purpose-built industrial town at Jubail, 190 miles north-east of the capital, Riyadh, London-based MEED said. CMS, for which the Industrial Bank of Japan is acting as financial advisor, is bidding against the U.S.'s Enron Corp. and the local Xenel Industries, the weekly magazine said. The magazine did not say what the plant will cost to build. The Saudi government has pledged to increase the kingdom's electricity generating capacity from about 23,000 megawatts now to 60,000 megawatts in 2023 at a cost of \$100 billion, according to Saudi American Bank. It has decided to open up the power and water industry to foreign investment to share the costs.

April 25, 2001 Houston Chronicle Bill could force refund from Reliant PUC would have power to order profits returned By JANET ELLIOTT Copyright 2001 Houston Chronicle Austin Bureau AUSTIN -- Reliant Energy customers could get refunds of up to \$590 each under legislation the utility industry is fighting. Rep. Sylvester Turner, D-Houston, and other supporters of House Bill 2107 held a news conference Tuesday to counter intense lobbying against the bill giving the Public Utility Commission of Texas the authority to order excess earnings refunded. Turner said the utilities recently took the unusual step of holding a luncheon for legislative staffers to "trash the bill." "If HB 2107 does not pass, the Legislature will allow utilities to enjoy the benefits of the regulated market and the windfall of the restructured market at the expense of ratepayers," he said. The lawmakers announced that Enron and Shell, two companies entering the electricity market, are supporting the bill, which may be debated by the full House next week. They join the city of Houston and business and industrial electricity customers backing the bill. Turner said the backing of Enron and Shell shows that the legislation is pro-competition, not anti-business as the utilities are saying. Turner said data compiled by the Public Utility Commission showed that Reliant, TXU Electric and three other investor-owned utilities have been allowed to overcharge customers \$4.9 billion under the state's 1999 electric deregulation bill. Reliant's overcharges are estimated at \$2.2 billion. Utility companies say they are against the bill because it's too soon to say if the market forces that have turned nuclear and coal-fired plants into valuable properties will last. "Reliant Energy does not support the bill as proposed because the bill would require utilities to make payments to customers based on an estimate of stranded costs, and we believe that the only way to determine the true value is through market valuation, which will take place in 2004," said Alicia D

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IEP News 7/20

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Calif Sen Pwr Probe Committee OKs Deposing Energy Execs ????? Updated: Friday, July 20, 2001 08:16 AM?ET
????? ?(This article was originally published ??? Thursday) ?By Jason Leopold ?OF DOW JONES NEWSWIRES

Contra Costa Times, July 20, 2001, Friday, STATE AND REGIONAL NEWS, K3856, ?????777 words, Energy secretary,
former Gov. Wilson speak on energy crisis, By ???Rick Jurgens

Los Angeles Times, July 20, 2001 Friday, Home Edition, Page 25, 809 words, ???Edison Bailout Bills Remain Stalled,
MIGUEL BUSTILLO, CARL INGRAM, TIMES ???STAFF WRITERS, SACRAMENTO

Los Angeles Times, July 20, 2001 Friday, Home Edition, Page 1, 1233 words, ???Edison May Avert Bankruptcy Filing;
Energy: Thanks to a rate increase and ???natural gas price drop, the utility's improved cash flow may cover its
???electricity costs., JERRY HIRSCH, TIMES STAFF WRITER

The San Francisco Chronicle, JULY 20, 2001, FRIDAY,, FINAL EDITION, NEWS;, ???Pg. A1, 863 words, State advisers
forced to sell energy stocks; ???CONFLICT: ???Holdings called unethical, Mark Martin, Sacramento

The San Francisco Chronicle, JULY 20, 2001, FRIDAY,, FINAL EDITION, NEWS;, ???Pg. A19, 447 words, Democrats
defy Davis with bill on PUC; ???Utilities ???panel would keep power over rates, Lynda Gledhill, Sacramento

The San Francisco Chronicle, JULY 20, 2001, FRIDAY,, FINAL EDITION, ???EDITORIAL;, Pg. A24;, 295 words, More
energy fallout

The Associated Press State & Local Wire, July 20, 2001, Friday, BC cycle, ???3:31 AM Eastern Time, State and
Regional, 648 words, PUC agrees to adjust ???electric rates if necessary, By KAREN GAUDETTE, Associated Press
Writer, SAN ???FRANCISCO

CBC TV, THE NATIONAL (10:00 PM ET), July 19, 2001, Thursday, 1466 words, ???Power Struggle, ALISON SMITH

Daily News, Los Angeles, Calif., July 19, 2001, Thursday, LD-CHEAPER-POWER, ???809 words, Cheaper Energy
Undercuts California's Long-Term Power Contracts, ???By Dana Bartholomew

Scripps Howard News Service, July 19, 2001, Thursday, COMMENTARY, 687 words ???, Six months later, utility debts
are still toughest nut to crack, DAN ???WALTERS, SACRAMENTO, Calif.

Calif Sen Pwr Probe Committee OKs Deposing Energy Execs ????? Updated: Friday, July 20, 2001 08:16 AM?ET ?????
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(This article was originally published Thursday)

By Jason Leopold

OF DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--A California Senate committee investigating manipulation in the state's wholesale power
market approved a measure late Thursday, authorizing the committee to depose the chief executives of major energy
companies to provide insight into the companies' trading practices.

The Senate Select Committee to Investigate Market Manipulation voted 28-6 in favor of deposing some of the energy
sector's most powerful chief executives.

The move comes a day after the committee held Reliant Energy Inc. (REI, news, msgs) and Enron Corp. (ENE, news,
msgs) in contempt for refusing to provide documents on its electricity trading and sales practices. The full Senate is
expected to vote on the contempt charge and decide the punishment to impose.

Sen. Joe Dunn, D-Santa Ana, the committee chair, would have carte blanche to depose executives, such as Enron
Chairman Ken Lay, who has been singled out by Attorney General Bill Lockyer for gouging consumers in the state.

Representatives of the energy companies under investigation were not available for comment.

The committee has been investigating whether energy companies knowingly manipulated the state's wholesale electricity
market to drive up prices and create artificial shortages.

It has yet to uncover a "smoking gun." But has secured the testimony of former Duke Energy (DUK, news, msgs) power plant employees who told the committee that the company reduced output at a San Diego power plant during power emergencies to drive up power prices.

The state's Independent System Operator, however, conceded that it ordered the fluctuations in capacity at the power plant.

-By Jason Leopold; Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

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??Contra Costa Times

??July 20, 2001, Friday

SECTION: STATE AND REGIONAL NEWS

KR-ACC-NO: ?K3856

LENGTH: 777 words

HEADLINE: Energy secretary, former Gov. Wilson speak on energy crisis

BYLINE: By Rick Jurgens

BODY:

??SAN FRANCISCO _ Two prominent Republicans came here on Thursday to promote free-market solutions to the energy crisis that has hit California and threatens to spread nationwide.

??Spencer Abraham, energy secretary in the Bush administration, only briefly mentioned the state's current troubles and instead regaled 600 attendees at a Bay Area Council banquet with the promises of new technologies.

??Earlier, former Gov. Pete Wilson focused on the past as he offered 90 people at the Public Policy Institute of California a rambling defense of the 1996 electricity industry restructuring law he signed.

??At the heart of electricity industry restructuring is a traditional Republican theme: a preference for market forces and competition over regulators and government planning. But the fate of California's electricity industry restructuring plan now rests in the hands of Gray Davis, the state's Democratic governor. ?

??Abraham never mentioned Davis.

??"I didn't come here to play the blame game," he said in a news conference.

??California's electricity problems are merely the most intense in a nation facing "rising demand, stagnant supplies and an energy (infrastructure) that is out of date and in need of repair," he said.

??Picking up on an initiative that has emerged as a priority for some advocates of restructuring, Abraham stressed the need for enhanced federal authority to meld regional networks of high-voltage transmission lines into a national grid.

??But Abraham's main pitch was that California technology companies could contribute "intellectual capital and ingenuity to the world of megawatts."

??Looking far into the new century, he offered a vision of an energy industry replete with micro turbines, fuel cells and hybrid engines.

??"Our carbon-based economy itself may pass from the scene to be replaced, perhaps, by a hydrogen- based economy," he said.

??Wilson's concerns were more prosaic. He defended restructuring _ now plagued by soaring prices and rolling blackouts _ as a step forward from the previous structure, where electricity came from regulated monopolies.

??"There were flaws," Wilson said of the restructuring bill that he signed into law in 1996. "I acknowledge that. They were less important than launching California on the path to deregulation."

??Restructuring was the only way to bring down power costs that were higher than in other states, and to break a regulatory logjam that had limited power plant development, he said.

??Wilson criticized the law's retail rate freeze. Although it triggered a financial crisis for the state's utilities, the freeze was largely "a self-inflicted wound," insisted upon by utilities seeking to be repaid for costly investments in nuclear plants and contracts with small generators, he said.

??Wilson also said it had been a mistake to forbid the utilities to sign long-term contracts with generators. Those were ruled out because regulators feared such contracts would give utilities an unfair advantage as competition developed, he said.

??Noting that he had been singled out for criticism by Davis, Wilson fired back, saying that Davis had been too slow to invoke the "virtually dictatorial" powers that the governor has in emergencies, including electricity shor

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Enron Mentions - 05/01/01

Sender	henry.means@enron.com
Recipients	[]
File	dasovich-j/all_documents/11901.

Enron CEO Skilling Reinvents Company, Unnerving Investors Bloomberg, 05/01/01

World Watch Wall Street Journal, 05/01/01

Setting The Agenda Enron's Kenneth Lay on the Energy Crunch SmartMoney, 05/01/01

WIND ENERGY PROJECT Caribbean Update, 05/01/01

Sector Watch Filling the Generation Gap SmartMoney, 05/01/01

COMPANIES & FINANCE UK: Scot Power eyes Enron utility Financial Times, 05/01/01

ScottishPower in talks to buy Portland utility The Independent, 05/01/01

Scottish Pwr FY00 Income Seen Dn On US, Regulatory Woes Dow Jones Energy Service, 05/01/01

City briefing The Guardian, 05/01/01

Pupils learn to work with water The Northern Echo, 05/01/01

Home Depot, UPS chiefs ranked among America's 50 best CEOs BUSINESS PRESS The Atlanta Constitution, 05/01/01

Henry McKinnell - Pfizer, Roger Joslin - State Farm, Other Top CEOs to Highlight New ``Win-Win" Corporate Strategies in Low-Income Communities Business Wire, 05/01/2001

Arkansas Today Associated Press Newswires, 05/01/01

Indian Lenders to Enron Unit Ask Govt to Pay Bill, Paper Says Bloomberg News, 05/01/01

INDIA: Indian state to renegotiate Enron project-paper. Reuters, 05/01/01

INDIA: PRESS DIGEST - Indian newspapers - May 1. Reuters, 05/01/01

Enron amenable to reworking power pact with MSEB The Economic Times, 05/01/01

BRIEFING - ASIA ENERGY - MAY 1, 2001 Asia Pulse, 05/01/01

NCS seeks strategic alliances with Indian firms The Times of India, 05/01/01

India: ADB to provide over \$5-b assistance to India Business Line (The Hindu), 05/01/01

India: Enron renegotiation panel announced Business Line (The Hindu), 05/01/01

India: Watching outcome of Enron issue: Ambani Business Line (The Hindu), 05/01/01

Enron imbroglio not to affect ADB loans for India Business Standard, 05/01/01

Loss-wary FIs ask govt to defuse Dabhol crisis Business Standard, 05/01/01

USA: Enron buys Huntco's steel ops, makes supply deal. Reuters, 05/01/01

San Francisco-Based Financial Firm Executives To Assume Some of CEO's Duties San Jose Mercury News, 05/01/01

Jesse Jackson Opens Houston Project Office Houston Chronicle, 05/01/01

Investing/MONEY 30 A Slamarama For The New Economy Money Magazine, 05/01/01

Enron CEO Skilling Reinvents Company, Unnerving Investors 2001-05-01 03:09 (New York)

Enron CEO Skilling Reinvents Company, Unnerving Investors

(Published in May issue of Bloomberg Markets.)

Houston, May 1 (Bloomberg) -- A year ago, Enron Corp. CEO Jeffrey Skilling put up a banner in the lobby of his company's Houston office tower that welcomed visitors to "The World's Leading Energy Company." Skilling, 47, has now decided that the company's tag should be more ambitious: "The World's Leading Company," the banner says today. It's no shock that even the CEO isn't sure how to describe Enron, for it's a company swept by constant change. In the 1990s, Skilling transformed a regulated gas-pipeline company into the largest competitor in the business of trading energy, mainly natural gas and electric power. Now Skilling is pushing the company into Internet trading of all sorts of things: paper products, plastics, metals, fiber-optic bandwidth, commercial credit, pollution emission controls, and even weather derivatives. All of this morphing unnerves investors, and some of the company's ventures may not be growing as fast as Enron says, according to analysts and industry insiders. They say the company is overstating the value of the new businesses it's entering. Some investors are increasingly concerned about a lack of clarity regarding where the company is going -- and what exactly it does now. "Owning Enron is a bit of a leap of faith," said John Hancock Advisers Inc. mutual fund manager Greg Phelps, who invests \$1.1 billion in utility stocks and doesn't own any Enron. "I want to buy a stock where I have absolute certainty about the business and direction it's headed."

Exuding Nervous Energy

Skilling, a man who exudes nervous energy and speaks in rapid-fire bursts, says his track record should ease investors' concerns. In the first quarter of 2001, Enron's profit from operations rose 20 percent to \$406 million as revenue almost quadrupled to \$50.1 billion. Enron shares have soared more than 11-fold since the start of the decade, four times the gain of the Standard & Poor's 500 Index. Enron's shares have dropped 25 percent this year, closing at \$62.72 on April 30. Enron isn't merely a trading company, Skilling says. It's a logistics concern that ties together supply and demand for any given commodity and then figures out the most cost-efficient way to deliver that commodity to its destination. Skilling, who joined Enron in 1990 after leading McKinsey & Co.'s energy and chemical consulting practices, is unapologetic about moving the company in so many different directions. "In five years, we'll be a different company," he said. "We're not finished reinventing ourselves."

\$65 Billion in Assets

Enron owns \$65 billion in assets, including 32,000 miles of pipeline that span 21 states and transport 15 percent of all of the natural gas consumed in the U.S. The company owns an 18,000-mile fiber-optic network in the U.S. and controls 51 power plants and other energy projects in 15 countries on four continents. Pinpointing what Enron does isn't easy. Some businesses are simple to grasp: In 2000, Enron won \$16.1 billion in energy management contracts from such giant corporations as Owens-Illinois Inc. and International Business Machines Corp. The bulk of Enron's money -- 93 percent of revenue and more than four-fifths of profit in 2000 -- came from wholesale energy operations and services: what it calls "the financialization of energy."

Cloaked in Secrecy

This is largely the gas and electricity trading business it pioneered. Enron cloaks the details of that business in secrecy, citing competitive reasons, which makes its bread-and-butter activities as difficult to understand as the abstract Joan Miro

lithograph that looms behind Skilling's desk. "Enron keeps a lot of facts close to the vest," said Andre Meade, an analyst at Commerzbank Capital Markets. "That makes constructing earnings models a real challenge." Even many of Enron's employees are shielded from the intricacies of Enron's business. Signs in stairwells and on office walls forbid employees from freely moving around the building into trading rooms and other off-limits areas. For now, Wall Street is betting that behind closed doors, Skilling and company will figure out how to extend Enron's trading prowess into fast-growing industries. Of the 22 analysts who track Enron, 19 of them rate the stock a buy. Enron traded at 40 times 2000 earnings on April 30. That's exactly double the price-earnings ratio of 20 for rival Duke Energy Corp., the biggest U.S. utility owner and energy trader, and 42 percent higher than the S&P 500's April 30 multiple.

'GE of the New Economy'

"Enron is uniquely positioned to be the GE of the new economy," said Merrill Lynch's Donato Eassey. "This isn't a management team to bet against." With analyst expectations so positive, some longtime Enron holders are selling stock. "Especially with its high valuation, the stock's risky, and I don't see much upside," said Timothy Ghriskey, senior portfolio manager at Dreyfus Corp., which controls funds that sold about 1.55 million Enron shares at the end of 2000. "If they fail to deliver for one reason or another, things could get ugly." Enron says its 2001 sales will swell to at least \$160 billion. Analysts and investors say there are several trouble spots that could slow its growth.

Tradin

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More on CPUC's Actions Today

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File	dasovich-j/all_documents/10434.

There is 4 proposed decisions that came out today. The CPUC is set to vote on=20 them tomorrow. Here is a quick overview:

1) Two decisions address how much money is collected for going forward=20 electric energy costs and how much of that is paid to CDWR. Average rates are=20 to increase 3c/kWh. Further the AB1x 1 c/kWh is to continue. Thus, the=20 total increase, relative to rates in effect in year 2000, is 4 c/kWh=20 (\$40/MWh). Lynch was very unclear how this rate would be implemented for=20 residential customers (a tiering proposal will be heard separately and take=20 30-45 days to implement). One of these decisions addresses how to measure=20 past undercollections but as far as rate increases go, they are to cover on=20 ly=20 going forward costs. 2) One decision addresses QF issues. I have not seen the PD (It is expected=20 out shortly). The Wood PD revises his revised PD of last week (yes, a=20 revised, revised PD) as follows: a) Requires QFs to be paid on a going forward basis (as of 4/1/01). Utilities=20 to pay within 15 days upon presentation of an invoice. No help for past due=20 amounts, however. b) Change the SRAC energy index from Topock to Malin. Such a change will=20 lower the SRAC energy by =01&4 c/kWh=018. This is a 15% to 25% hit to SRAC=20 relative to the status quo, which is based more or entirely on Topock. c) Calls for workshops to further refine the gas basis for SRAC and address=20 other factors in the SRAC formula such as heat rates and O&M factors=20 d) Works with Section 390, as is, does not depend on a legislative change i) Thus the reason why SRAC is based upon a border price index. e) Overall cap (i.e. 7.9 c/kWh) is dropped. The fourth decision addresses an investigation of the utility holding=20 companies. Basically the CPUC is going after utility holding companies for=20 funds to reduce the past undercollections.

Alan Comnes

Further Notes taken by Sue Mara during the press conference:

Lynch and Wood Running the meeting

Lynch started out castigating FERC for the "failure to act", sellers for high=20 prices forcing CA into this action. Has some charts in the press package. =20 Talked about how wonderful the Govs proposals have been. Said net short is=20 34%. Sellers "have us over a barrel" for those sales. Attorney General=20 continues investigation of the sellers. These

are all for going forward costs -- this doesn't address the "\$ for the hot dog, which is being taken care of in Sacramento." She said these proposals ensure reliability and allow Treasurer to issue bonds. Continues to castigate FERC throughout the call. Wants new appointments to FERC from the states -- "our cries have fallen on deaf ears"

Lynch announced the following votes for tomorrow:

1. Wood's proposal -- modified -- Order the IOUs to pay the QFs beginning 4/1 on a going forward basis only. Modified existing formula in Section 39 (Legislative change to this section did not pass yet). Shifts the gas index from Topoc (where Wood says the prices are being manipulated) to Malin, where prices have been more stable.
2. Sets the CA Procurement Adjustment -- Orders the IOUs to pay the DWR for purchases. At one point she said that the order would be for all power purchased by the state beginning Jan 19; at another point she said that the payments are for going forward costs. "It's time to pay the power bills for California." CPA calculated based on the "residual" method, rather than the proportional method. Payments to DWR made on the proportional method, however.
3. Lynch alternate setting a 3 cents/kWh increase in accordance with AB 1X (The ALJ decision said no rate increase.) Makes the 1 cent temp charge permanent (didn't say if its additive with the 3 cents) Believe this covers ALL needs on a going forward basis. According to ABX 1, small customers with 130% over baseline get no increase, small customers with 200% increase get a 9 % increase -- the rest get socked, I guess. Adopted TURN's accounting proposal. Will look at rate design in a future proceeding. Take IOUs 30-45 days to charge the rates; will conduct a rate design proceeding during that time period (see # 5).
4. Orders an investigation into the Utility holding company structure to see if it is best for the public utilities.

A new proceeding was also identified.

5. Lynch is issuing an Assigned Commissioner ruling proposing a new rate structure. (I presume to have rates that increase greatly with more use) Need information from DWR to calculate rates and DWR has not yet provided it. Described the need to have a record on this. As mentioned in #3 above -- would expect this to be completed with a decision in 30- 45 days.

In one of the above orders, Lynch said that she orders the utilities to go after sellers using all legal means for the unjust and unreasonable prices.

I'm still listening.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

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Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	[]
File	dasovich-j/all_documents/28494.

Electricity Cost Data Spread the Blame Power: Many suppliers charged more than the firms that Davis has pilloried, records show. Los Angeles Times, 07/10/01

Duke Energy Asked to Allow Release of Data Power: Senator says the generator is refusing to make public some information crucial to the price-gouging probe. Firm says it's complying. Los Angeles Times, 07/10/01

California to get plan for refunds Houston Chronicle, 07/10/01

INDIA: CEO of Enron's Indian unit Dabhol quits. Reuters English News Service, 07/10/01

US Enron Chmn Confirms India Dabhol Pwr CEO's Resignation Dow Jones Energy Service, 07/10/01

Enron's Kenneth Lay on its \$3 Bln Indian Power Project: Comment Bloomberg, 07/10/01

MORE WORK NEEDED TO REVIVE INDIA'S DABHOL PROJECT: ENRON CHIEF Asia Pulse, 07/10/01

Tropic Networks reveals investors: \$60-million financing National Post, 07/10/01

India: New engg consultant for Enron project likely Business Line (The Hindu), 07/10/01

India: Centre firm on Dabhol Business Line (The Hindu), 07/10/01

Enron has no immediate plan to quit India, says Lay Business Standard, 07/10/01

Enron seeks CII's help on Dabhol Business Standard, 07/10/01

Enron takes some heat, but rates a 'buy' Chicago Tribune, 07/10/01

Power Producers' 2Q Bolstered By April, May Prices Dow Jones News Service, 07/09/01

Enron's Kenneth Lay on India's Dabhol Power Project: Comment Bloomberg, 07/09/01

Prosecutors to Get Reliant, Mirant, Dynegy Documents (Update1) Bloomberg, 07/09/01

California; Metro Desk Electricity Cost Data Spread the Blame Power: Many suppliers charged more than the firms that Davis has pilloried, records show. RICH CONNELL; ROBERT J. LOPEZ; DOUG SMITH TIMES STAFF WRITERS

07/10/2001 Los Angeles Times Home Edition B-1 Copyright 2001 / The Times Mirror Company

SACRAMENTO -- California's energy meltdown involves a far more diverse group of wholesale electricity merchants than suggested by Gov. Gray Davis, who has aggressively blamed a handful of Texas companies, state records show. During the first three months of this year--one of the worst stretches of power shortages during the crisis--an assortment of public and private entities charged the state prices averaging well above some of those paid to Texas firms, according to documents released to The Times on Monday by the Department of Water Resources, which now buys power for California. Among those setting and collecting some of the highest average prices per megawatt-hour were a Canadian public utility, a subsidiary of San Diego Gas & Electric's parent company, and the Los Angeles Department of Water and Power, the report shows. Their average prices ranged from \$498 a megawatt-hour charged by Powerex, the trading arm of British Columbia's BC Hydro, to \$292 an hour by the DWP. In fact, some of the biggest private power companies singled out for criticism by Davis and other state officials--Dynegy Inc., Duke Energy and Mirant--charged less than the average prices the state paid for the period. Those companies' average prices ranged from \$146 to \$240 per megawatt-hour, according to an analysis of the documents. The figures cover the various types of spot and longer-term power purchased by the state during three months that included rolling blackouts and more than a month of razor-thin reserves, leading to continuous power emergencies. Davis spokesman Steve Maviglio said the governor has directed his sharpest barbs at private out-of-state generators because, in general, they have reaped the highest profits over the longest period. "You have to look at the whole picture," Maviglio said. "The governor was expressing his displeasure with the arrogance of the generators who wear cowboy hats," he said. "Their profits were 100% to 400% above last year. . . . Just because there are other entities who are charging us more [per megawatt-hour] doesn't change the fact that we are getting ripped off by companies from Houston, Tulsa, Atlanta or Charlotte." The report by the Department of Water Resources was provided to The Times on the same day the state released 1,700 pages of documents on California's electricity purchases on the volatile spot market for the year's first quarter. The records detail how the state spent nearly \$8 billion buying power in the first five months of the year, and underscore the complexity of the state's energy problem. They also show that patterns of high prices are not limited to a few generators. Oscar Hidalgo, a spokesman for the water resources agency, said that the reports together show that prices were extremely volatile early in the year. "All the prices were high," he said, noting the downward trend in costs since his agency began buying power in mid-January. The average price per megawatt-hour for all state purchases went from \$316 in January to \$243 in May. Spot prices fell from an average of \$321 per hour to \$271, the reports show. In the first quarter of the year, some public entities' prices far exceeded those of the biggest private companies. For example, Houston-based Enron, one of the nation's biggest power traders, charged an average of \$181 per megawatt-hour. And Atlanta-based Mirant, which sold the most to the state, a total of \$706 million, charged an average of \$225 per megawatt-hour. By contrast, a Calgary, Canada, firm, TransAlta Energy, averaged \$335 a megawatt-hour, and the Sacramento Municipal Utility District had average charges of \$330 per megawatt-hour. A spokesman for Enron, Mark Palmer, said recently that the "vilification of Enron was based on politics, not facts."

Spokesmen for BC Hydro could not be reached late Monday to comment on its huge sales to the state. In the past, the utility has defended its pricing practices, saying it has offered last-minute hydroelectric power that helped keep California's lights on. A spokeswoman for Semptra, the parent company of San Diego Gas & Electric, said late Monday the company was unable to comment because it had yet to see the figures released by the state. Officials at DWP, who could not be reached Monday evening, have defended their pricing, saying the costs of producing the power needed by the state were extremely high. More Power Bought Than Projected Hidalgo, of the Department of Water Resources, said his agency's efforts, coupled with conservation by business and consumers and falling natural gas prices, have begun to tame the state's market. Still, the state had to purchase \$321 million in power in April and May, about 10% more than Davis' analysts had projected. Hidalgo said that was because of hot weather in May and other supply problems in April. He said reports will show that power purchases fell short of state projections in June and early July. The reports also will show that prices paid by the state were down in June and July, partly because spot prices have fallen sharply, often to well under \$100 a megawatt-hour. A summary Department of Water Resources report released Monday credited Davis' program of nurturing new power generation and establishing long-term power contracts with "moving the California electric energy industry closer to normalcy."

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California; Metro Desk Duke Energy Asked to Allow Release of Data Power: Senator says the generator is refusing to make public some information crucial to the price-gouging probe. Firm says it's complying. CARL INGRAM TIMES STAFF WRITER

07/10/2001 Los Angeles Times Home Edition B-8 Copyright 2001 / The Times Mirror Company

SACRAMENTO -- The chairman of a Senate committee probing suspected price gouging during the California energy crisis charged Monday that Duke Energy is refusing to allow him to make public information key to his investigation. Sen.

Message 853 of 1299

Enron Mentions - 05/02/01

Sender	henry.means@enron.com
Recipients	[]
File	dasovich-j/all_documents/11964.

Enron Mandates SSSB For Credit-Linked Note Issue Capital Markets Report, 05/02/01

UK: Enron plans multi-currency credit-linked bonds Reuters, 05/02/01

Enron to Sell Credit-Linked Notes in Several Currencies Bloomberg, 05/02/01

Saudi Gas Proj Consortia Seen Selected 2H May -Sources Dow Jones, 05/02/01

USA: Enron says no plans to sell Dabhol stake Reuters, 05/02/01

Centre spikes plan to fix Enron The Times of India, 05/02/01

India's Dabhol Pwr Co: Naphtha Supply Remains Regular Dow Jones, 05/02/01

Maharashtra Electricity Board unamused by new Enron demand The Hindu, 05/02/01

Sinha hopes sanctions will be lifted soon The Hindu, 05/02/01

Neither State nor MSEB has defaulted on agreement with Enron Press Trust of India Limited , 05/01/01

Sanctions hurt US interests more than India: Sinha Press Trust of India Limited, 05/01/01

Sinha confident US will lift sanctions in its own interest Press Trust of India Limited , 05/01/01

Sinha urges U.S., EU, Japan to boost growth AFX (AP), 05/01/01

U. Houston: U. Houston forum focuses on minority education U-Wire, 05/01/01

Prebon Yamane Hires Former RCN Executive to Run Bandwidth Unit Bloomberg, 05/01/01

Enron's Lay Discusses India's Dabhol Power Project: Comment Bloomberg, 05/01/01

Enron Mandates SSSB For Credit-Linked Note Issue

05/02/2001 Capital Markets Report (Copyright (c) 2001, Dow Jones & Company, Inc.)

LONDON -(Dow Jones)- U.S. energy group Enron has mandated Schroder Salomon Smith Barney as bookrunner for a multi-currency credit-linked notes trust transaction. The transaction will consist of tranches in intermediate maturities. A launch will follow a European roadshow, subject to market conditions. UBS Warburg will be joint lead manager.

UK: Enron plans multi-currency credit-linked bonds.

05/02/2001 Reuters English News Service (C) Reuters Limited 2001. LONDON, May 2 (Reuters) - Enron Credit Linked Notes Trust has mandated Salomon Smith Barney and UBS Warburg to lead manage a multi-currency transaction, the banks said on Wednesday. The issue will consist of tranches in intermediate maturities and will be launched following investor presentations in Europe.

Enron to Sell Credit-Linked Notes in Several Currencies 2001-05-02 08:34 (New York)

Enron to Sell Credit-Linked Notes in Several Currencies

London, May 2 (Bloomberg) -- Enron Corp. plans to raise money by selling credit-linked notes in several currencies, according to Salomon Smith Barney, which will manage the sale with UBS Warburg. The sale will follow presentations to investors in Europe and will consist of issues of intermediate maturities, Salomon said in a faxed statement. Investors usually regard notes maturing in five to seven years to be intermediate maturities. Salomon declined to provide details on the size or timing of the sale. Credit-linked notes are typically backed by a pool of assets owned by the issuer. The payments on the notes are often linked to the creditworthiness of those assets. Houston-based Enron has branched out from its gas pipeline business to include trading in financial contracts such as gas and electricity futures and derivatives on corporate bankruptcies. Enron owns \$65 billion in assets, including 32,000 miles of pipeline that span 21 states and transport 15 percent of all of the natural gas consumed in the U.S. Other assets include an 18,000-mile fiber-optic network in the U.S. and 51 power plants and other energy projects in 15 countries. Last week Enron agreed to cancel its \$3.1 billion sale of Portland General Electric Co. to Sierra Pacific Resources, after both companies decided the California energy crisis had made it too hard to win approval. The state of California has banned power plant sales by utilities until 2006 amid an electricity shortage. Southern California Edison and PG&E Corp.'s Pacific Gas & Electric Co., California's two largest utilities, have run up more than \$14 billion in debt from buying power at soaring prices. The two utilities are nearly insolvent. Enron has \$15.8 billion in bonds outstanding, of which \$2.7 billion mature this year, according to Bloomberg figures. Enron is rated ``BBB+'' by Standard & Poor's and ``Baa1'' by Moody's Investors Service.

--Christine Harper in the London newsroom (44 20) 7330-7982 or charper@bloomberg.net with reporting by Adam Levy in Atlanta and Steve Farr in Princeton /zls

Story illustration: {ENE US <Equity> DDIS <Go>} to graph Enron's debt.

-0- (BN) May/02/2001 12:34 GMT

Saudi Gas Proj Consortia Seen Selected 2H May -Sources By Dyala Sabbagh Of DOW JONES NEWSWIRES

05/02/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.) DUBAI -(Dow Jones)- Consortium leaders and members for the three core gas ventures on offer in Saudi Arabia are expected to be announced in the second half of May, sources familiar with the negotiating process have told Dow Jones Newswires. As previously reported, the Saudi Arabian committee negotiating with international oil companies, or IOCs, on the so called Gas Initiative, recently submitted its proposals for consortium leaders to the kingdom's Supreme Petroleum Council for approval. Saudi Arabia invited international oil companies in October 1998 to participate in proposals for downstream gas projects and upstream gas enhancement. A series of meetings between the negotiating committee and shortlisted IOC's have taken place in the past year. Royal Dutch/Shell Group (RD), BP Amoco PLC (BP), Exxon Mobil (XOM), Chevron (CHV), TotalFinaElf (TOT) and ENI SpA (E) have been shortlisted for core venture number one, the \$15 billion South Ghawar Area Development. Exxon, Shell and BP have been dubbed as the frontrunners with ExxonMobil seen as the

strongest contender. For core venture two, the Red Sea Development, Enron Corp. (ENE) and Occidental Petroleum Corp. (OXY) are bidding jointly and Exxon Mobil, TotalfinaElf, Marathon Oil Canada Inc. (T.M), Shell and Conoco Inc. (COCA) have also been listed. Among these, TotalfinaElf and Shell are seen as strong possibilities. For core venture three, the Shaybah area, TotalFinaElf, Conoco, Phillips Petroleum (P), Enron & Occidental, Exxon Mobil, Shell and Marathon Oil have been listed. Conoco and TotalfinaElf are said to be frontrunners here. Role Of Consortium Leaders Still Unclear Sources have said some companies currently under consideration will be struck off the list in the final selection. Consortium leaders are expected to be responsible for directing further detailed negotiations on the projects at hand, such as pricing and finance. They are also likely to get the largest stake in any project as well as operatorship. But the IOCs are still in the dark as to what their exact roles will be in the event they are selected, industry sources said. Still, despite lacking a comprehensive framework, some deals are expected to be initialed this year. And once sealed, IOCs are also expected to start talking to local companies about contracting out participation on parts of the projects. The three ventures have a combined value of about \$25 billion with each one having on average eight individual components. How these components will be dealt with or allocated is also as yet undetermined. Saudi Arabia has about 2.5 billion cubic feet of gas a day in its system currently and will have about 4 bcf/day by 2003. By 2025, it will need an estimated 14 bcf/day to meet its own consumption requirements and for possible export. By Dyala Sabbagh, Dow Jones Newswires; 9714 3314260; dyala.sabbagh@dowjones.com

USA: Enron says no plans to sell Dabhol stake By C. Bryson Hull

05/02/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, May 1 (Reuters) - Enron Corp. has no immediate plans to sell

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TR's State NewsWire 01/19/01 P.M. Edition

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Telecommunications Reports presents TR's State NewsWire January 19, 2001 P.M. Edition

STATES OHIO -- Wireless companies violated separate affiliate requirements MINNESOTA -- Qwest to refile SGAT ARIZONA -- Cellphone bill dies in committee MISSISSIPPI -- Sen. Carlton aims to pass UETA MONTANA -- PSC would gain authority over utility mergers under bill OREGON -- Lawmakers take aim at 'slamming' NEW JERSEY -- Bill would establish no-call list MINNESOTA -- Legislation would restrict driving while using a mobile phone MISSOURI -- Bill would limit minors' Internet access VIRGINIA -- SCC requests comment on \$20.5M Sprint access rate settlement

GEORGIA -- New Edge brings broadband services to Augusta

REGIONAL Verizon Wireless expands calling plan in D.C. area

AFFILIATE OHIO Wireless companies violated separate affiliate requirements

The Public Utilities Commission has determined that Ameritech Mobile and AirTouch Cellular violated state law by failing to maintain separate cellular wholesale and retail operations. The PUC's order addresses a complaint filed in 1993 by Westside Cellular, Inc., dba Cellnet.

The PUC pointed to the testimony of Alan Ferber, general manager of Ameritech Mobile's wholesale operations. He acknowledged that Ameritech Mobile's operations aren't structured as required by the PUC for sales and marketing. From that statement, the PUC concluded that Ameritech Mobile wasn't separating its wholesale and retail operations "in the normal course of business."

The PUC also found that Ameritech Mobile's practice of establishing wholesale rates for nonaffiliated carriers by first consulting with its retail employees about the potential impact on its retail business in violation of the commission's orders in dockets 84-944 and 89-563.

Between 1995 and 1998, the commission said, Ameritech Mobile violated the PUC's requirement for nondiscriminatory treatment of nonaffiliated wholesale customers. The company either didn't substantiate the more favorable treatment afforded to its retail affiliate or didn't substantiate that its retail affiliate paid anything at all to Ameritech Mobile's wholesale cellular service, the commission concluded.

The commission found that AirTouch Cellular violated a prohibition on its retail affiliate having any involvement in the operations of its wholesale affiliate between 1991 and 1998. During that period, AirTouch Cellular's nonaffiliated wholesale rate was at least determined partially by concerns related to the affiliated retail arm, the commission said.

Based on AirTouch Cellular's own admission, the PUC found that the company violated the provisions of the commission's orders in docket nos. 84-944 and 89-563. The commission found that AirTouch Cellular failed to capture all billable minutes that should have been charged to AirTouch Cellular's retail arm, while charging Cellnet for all of its minutes.

The PUC found that imposing statutory penalties against the companies isn't warranted in this case because it's a "case of first impression."

The commission's order is available at <http://www.puc.state.oh.us/docket/ORDERS/2001/0114/93-1758.pdf>. (Docket no. 93-1758-RC-CSS)

SECTION 251/252 MINNESOTA Qwest to refile controversial SGAT

Qwest Corp. asked the Public Utilities Commission to pull off the agenda for yesterday's commission meeting its proposed statement of generally available terms and conditions (SGAT), the PUC staff told TR. The company filed its original SGAT in November 2000, but the proposal generated a lot of discussion because its prices differed from those set by the PUC. Staff said it expects Qwest to refile the SGAT "relatively soon." (Docket no. P-421/M-00-1590)

WIRELESS ARIZONA Ban on drivers' use of handheld cellphones dies in committee

A bill that would have banned the use of handheld wireless phones, personal computers, or any other electronic device while driving died in the Senate Commerce Committee, the legislative staff has told TR. (1/9/01 a.m.) The staff said SB 1005, which was sponsored by Sen. Tom Smith (R., District 26), received "tremendous" opposition from the wireless phone industry.

Last year Smith introduced a similar bill that also died in the Senate. That bill, unlike SB 1005, didn't include an exception for hands-free devices. (1/24/00 p.m.)

Violators who weren't involved in a car accident would have been subject to a \$50 civil penalty. Violators involved in an accident would have been subject to a \$100 civil penalty. The officer at the scene of an accident would have had to report on the accident form whether an electronic device was in use at the time of the accident.

The bill would have required wireless phone packaging to include the warning: "The use of a cellular telephone while operating a motor vehicle has been known to be a cause of traffic accidents, and the use of a handheld cellular telephone while operating a motor vehicle is prohibited by law in the state of Arizona."

FUTURE OF REGULATION MISSISSIPPI Sen. Carlton aims to pass UETA

Sen. Neely C. Carlton (D., District 22) has introduced SB 2678 to enact the Uniform Electronic Transactions Act (UETA). The bill aims to facilitate e-commerce by giving electronic records and signatures the same legal effect as their pen and paper counterparts.

In addition to enacting UETA, SB 2678 would repeal the sections of Mississippi Code that make up the Digital Signature Act of 1997.

SB 2678 has been referred to the Senate Committee on Fees, Salaries, and Administration.

MERGERS MONTANA PSC would gain authority over utility mergers under bill

A bill to grant the Public Service Commission authority over utility mergers has been referred to the Senate Energy and Telecommunications Committee. Under SB 276, the commission would have the authority to allocate some or all of the gain or profit of an acquisition to the utility's ratepayers.

The bill would prohibit the commission from approving an acquisition or transfer of a public utility unless, after notice and hearing, it finds the (1) acquisition to be in the public interest, (2) the acquisition won't diminish the utility's ability to provide adequate and reliable service, (3) the costs of and rates for supply service wouldn't be increased, and (4) the applicant has the financial ability to operate and maintain the utility.

This bill would affect Montana Power Co. plan to sell its electric distribution assets, the PSC staff explained to TR. Currently the commission only has implied authority over utility acquisitions or transfers. This bill would clarify that authority.

Sen. Ken Toole (D., District 27) is the measure's sponsor.

CUSTOMER-AFFECTING OREGON Lawmakers take aim at 'slamming'

A bill introduced in the House would prohibit "slamming," or the unauthorized switch of a customer's telecom service provider. HB 2214 would make it illegal to combine an offer to provide local or long distance telecom service with an offer to participate in a sweepstakes or promotion involving a prize.

The bill, which was requested by Attorney General Hardy Myers (D.), would prohibit using any device, scheme, or artifice to defraud with the intent to change a subscriber's telecom provider.

HB 2214 would authorize the AG to impose a maximum civil penalty of \$25,000 for each violation of the Act. The bill also would allow any person who suffered a loss of money or property as a result of slamming to recover actual damages or \$200, whichever is greater.

HB 2214 awaits consideration in the House Smart Growth and Commerce Committee.

CUSTOMER-AFFECTING NEW JERSEY Bill would establish no-call list

Assemblyman Kevin J. O'Toole (R., District 21) has introduced AB 3065 to require telemarketers to identify themselves and their businesses or organizations before aski

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Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	[]
File	dasovich-j/all_documents/12665.

Cheney's Role Offers Strengths And Liabilities The Washington Post, 05/17/01

Dolphin to Invite Companies for \$4 Bln Gas Project, Paper Says Bloomberg, 05/17/01

UK: ANALYSIS-Spanish boom spurs wave of new power plants. Reuters English News Service, 05/17/01

Middle East flame burns ever brighter as exports hot up Lloyd's List International, 05/17/01

Enron Joins Alberta's Natural Gas Exchange Dow Jones Energy Service, 05/16/01

Enron could lose Brazil environmental lincence - Rio state official AFX News, 05/16/01

Creditors' of PG&E's Utility Form Information Clearinghouse Bloomberg, 05/16/01

A Section Cheney's Role Offers Strengths And Liabilities Mike Allen and Dana Milbank Washington Post Staff Writers

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The key to the energy proposal President Bush unveils today can be found on a wall in the three-room suite that houses his National Energy Policy Development Group, next door to the White House in the Eisenhower Executive Office Building. On the wall hangs a huge erasable board that serves as a giant checklist to guide the preparation of the administration's eight-chapter energy policy, which Bush formally unveils in Minnesota today. For each chapter, there's a

check mark for two rough drafts, a peer review, a final draft, two more rounds of recommendations on the drafts, then graphics and photos. Toward the end of the checklist is an all-important box to check: "Concurrence of the OVP." The OVP -- Office of the Vice President -- has driven every aspect of the energy report. No proposed recommendation has survived without the consent of one man: Vice President Cheney, the administration's indispensable man -- and chair of the energy task force. The release of the energy report shines a new spotlight on Cheney, a quiet conservative from Wyoming who has been given credit for running the show without annoying or upstaging his boss. The handling of the energy task force so far reflects Cheney's personality near perfectly: It is a closely held process with a high regard for the concerns of industry. This close involvement of Cheney is partially a strength, because the effort has been efficient and well-managed. But Cheney's strong role is also potentially the report's weakness. He is about to undergo a blast of unwanted scrutiny as critics seize on his finances and oil industry ties in an effort to discredit the policy. Democrats and environmental groups are charging that his judgment on energy matters is suspect because of his chairmanship until August of Halliburton Co., a Dallas-based energy services firm that is expected to benefit from several parts of President Bush's policy. Cheney, 60, made \$36 million last year, most it in compensation from Halliburton, including salary and his exercise of stock options and sale of restricted stock. "He is seeing the problem entirely from the side of the energy producing industry that made him a millionaire, not from a consumer struggling to make ends meet," said Philip E. Clapp, president of the National Environmental Trust. An official close to Cheney called such suggestions "an outrage," and said his expertise in the industry and knowledge of its technology were crucial to "trying to solve a problem of this magnitude." Although the plan has extensive recommendations about using technology to conserve energy and produce power more cleanly, the heart of the report is its conclusion that the United States needs hundreds more power plants, natural gas pipelines, oil wells and nuclear reactors. Several administration officials acknowledged that Cheney had handed ammunition to his critics by declaring in a speech in Toronto on April 30 that conservation "may be a sign of personal virtue," but is not a sound basis for a comprehensive energy policy. "Given his background, he should've been real careful," said Sen. Charles E. Schumer (D-N.Y.), who has offered an alternative energy plan that he says focuses equally on supply and demand. "I think they've had some real stumbles." Sen. Craig Thomas (R), who succeeded Cheney as Wyoming's lone House member in 1989, said he does not expect such criticism to rattle the circumspect Cheney. "He'll just say, 'All right. That's the way it is, folks. I'm doing my job. Here's my plan,'" Thomas said. As always when questions are asked about Cheney's influence, White House officials argue vigorously that the energy plan is Bush's plan. An official close to Bush said Cheney and other task force members had updated the president often since beginning their work on Jan. 29. "At several critical decision points, the group has come to the president to ask him to make judgments and decisions," the official said. Cheney's directions are carried out by the task force's executive director, Andrew Lundquist, his deputy, Karen Knudsen, and four other staff members. Cheney also chairs the task force itself, which includes the secretaries of energy, interior, treasury, agriculture, commerce and transportation and the head of the Environmental Protection Agency. Aides say Cheney met with only half a dozen of the interest groups seeking input into the policy, including Enron Corp., the Houston energy conglomerate that is a large and longtime Bush contributor, and the Edison Electric Institute, an energy trade group. Vance Meyer, a spokesman for Enron, said the firm's chairman, Kenneth Lay, and another executive had a 30-minute meeting with Cheney. Edison assembled 15 or 20 chief executives to meet with Cheney. But Lundquist and Knudsen, representing Cheney, met with half of the 400 or so groups -- industry, environmental, regulatory and academic -- that requested access. Exactly which groups the Cheney advisers met with is being kept secret by the White House. The task force's stealthy operation reflects Cheney's distaste for publicity. Following news reports about the private nature of the energy deliberations, Democrats on the House Energy and Commerce Committee and Government Reform Committee requested information about the groups the task force met with. Cheney's counsel, David S. Addington, rebuffed the members of Congress, arguing that there was no legal requirement to comply with the request. In a seven-page response to the request, Lundquist wrote that the meetings "were simply forums to collect individual views rather than to bring a collective judgment to bear." White House officials have declined to disclose the list of meetings or attendees. Aides said representatives at the meetings included 118 energy industry or corporate groups, 40 renewable energy providers, 22 unions, 13 environmental groups, five academics, 63 governmental groups, six energy efficiency proponents and a consumer group. Environmentalists complain that the meetings reflected Cheney's predispositions. The vice president met with industry leaders, while dispatching aides to speak to environmentalists, several of which were grouped into one meeting. The meetings of 22 labor representatives, who gathered in groups, were publicized by the White House, but sessions with industry were not. Cheney, who declined to be interviewed for this article, told the Associated Press that he hasn't consulted with any officials from Halliburton and rejected the notion that the task force's work is compromised by his private meetings with industry officials who give money to the Republican

Party. "Just because somebody makes a campaign contribution doesn't mean that they should be denied the opportunity to express their views to government officials," he said. Cheney chaired nine meetings of the Cabinet-level task force, mostly in his ceremonial office. Each of the meetings, attended by t

Message 856 of 1299

Cal ISO interconnection proc. Amend 39

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I reviewed the Cal ISO filings below (in Sue's note) to determine general consistency with FERC orders on interconnection procedures. Potential issues are identified below and you all can decide if Enron should protest/intervene (the West Developers may want to review this too). Since I am not familiar with the Cal ISO procedures, I cannot determine whether protest is necessary (for example, PJM, NY, and NEPOOL have certain interconnection policies that would not be acceptable outside the pool, but that work ok for the pool). The TOs have also filed Amend. 39 interconnection procedures, but I have not looked at those to see if they mirror these. Maybe one of the paralegals could check that. In addition, one of you should review the filing letter and procedures to make sure that the statements made by Cal ISO are correct.

(Filing letter) The Cal ISO states that these procedures are filed in response to FERC's orders and that the Cal ISO and Market Participants are examining policies that will ensure that the ISO Controlled Grid is expanded to support competitive markets. It also states that it would have liked to propose complementary changes to its long-term planning and expansion process, but other priorities have prevented it from doing so. Discusses the two previously methodologies regarding interconnection procedures -- "No Grandfathering of Transmission Rights" and "Advance Congestion Cost Mitigation" (which was apparently rejected last year. (Filing Letter at 10) -- Cal ISO does not propose a method of sharing upgrade costs, but states that the procedures do not preclude such a provision. This is one we have used in other Inter.

Agreements: If required by law or if the Parties mutually agree to allow one or more third parties to use the Interconnection Facilities or any part thereof (whether by transfer of the Interconnection Facilities to an RTO or otherwise) and such use decreases the capacity of the Interconnection Facilities available to TO or the Facility or otherwise causes any detriment to TO or the Facility or benefits any party (including TO) other than Generator, or if TO is compensated for the costs of the Interconnection Facilities (in whole or in part) for any reason, Generator will be entitled to compensation from TO based upon the pro rata use of the Interconnection Facilities by TO, all third party users, and Generator, for the greater of (i) whatever costs Generator incurred in connection with the Interconnection Facilities, plus interest at the Interest Rate from the date of Generator's payment of the costs in connection with the Interconnection Facilities and (ii) the value that TO receives for the Interconnection Facilities. Notwithstanding the foregoing sentence, the Parties may use any other mutually agreed upon methodology to determine such compensation. 3.3 If one or more third parties are to use the Interconnection Facilities in accordance with Section ____, Generator's obligation to reimburse TO for the operation and maintenance costs incurred by TO in connection with the Interconnection Facilities shall be based on the pro rata use of the Interconnection Facilities by TO, all third parties users, and Generator, or on some other mutually agreed upon methodology; provided, however, that, under no circumstances shall Generator's share of TO's operation and maintenance costs be greater than its pro rata use of the Interconnection Facilities. (Procedures) The timelines for submitting applications and responding to system impact studies (SIS) and facilities study (FS) are fine, per previous FERC orders (in fact, Cal ISO asks for 60 days to complete the Facilities Study -- PGE just filed requesting 90 days). 5.7.3.1.1.(c) I would add "on a non-discriminatory basis" after "unless otherwise agreed by the ISO, and the Interconnecting PTO" 5.7.4.2 allows the generator to perform its own SIS and FS, subject to review by the Cal ISO and TO (this is a good provision that has not been adopted by many utilities). 5.7.4.2.1 -- The SIS will identify adverse impact on "Encumbrances" (undefined). Someone needs to check this provision since I am not familiar with this Cal ISO rule. 5.7.4.2.2 -- A New Facility Operator is entitled to amend its Completed Application once without losing its queue spot. Other utilities allow amendments as long as the change is not "material", which has only been defined by the utility and approved by FERC in several cases. This Cal ISO proposed provision could be problematic to other generators in the queue if it is not limited to "material", (unless Enron is making the

one time change!) In any event, check with West Developers on this provision. 5.7.4.3 -- This provision requiring a New Facility Operator to execute (or have filed unsigned at FERC) an Interconnection Agreement within 10 days (if no upgrades) or within 30 days (if upgrades) can be a problem. Cal ISO does not file a pro forma Interconnection Agreement in these procedures. If Cal ISO tenders a poor interconnection agreement draft (which happens all the time with other utilities), then there is no way that Enron would typically want to execute it within those time limits. For example, Duke did not file an pro forma interconnection agreement, but does allow 90 days for negotiation. In my experience, the negotiation of the interconnection agreement can take a long time. It would be advisable for the Cal ISO to file a pro forma at FERC, then you can protest, if necessary, and at least there will be a fairly decent interconnection agreement to use. 5.7.4.4.1(a) -- The Queuing Milestones appear to be fairly rigid and quick: require the New Facility Operator to comply with the ISO tariff and the TO tariff and within 6 months of its Completed Application Date, satisfy all applicable Data Adequacy Requirements of state and local siting and other regulatory authorities. I don't know that 6 months is achievable. FERC has approved milestones in other cases, but most contain language requiring reasonable movement toward the milestones. For example in Duke ER01-794 Section 41.5: (Transmission Provider may reasonably extend any such milestone dates in the event of delays not caused by the Generation Interconnection Customer, such as unforeseen regulatory or construction delays that could not be remedied by Gen. Int. Customer through the exercise of due diligence, and may also reasonably extend milestone dates to which the Gen. Int. Customer has not agreed and which the Gen. Int. Customer has challenged at the Commission pending a Commission determination as to the reasonableness of such dates.) In addition, the Cal ISO only allows one extension of 30 days -- probably not enough. 5.7.4.4.1 (b) -- requires a New Facility License within 15 months after satisfying the Data Adequacy Requirements. 5.7.5 -- does not provide for transmission credits for "network upgrades" (upgrades other than the costs of interconnection). The Cal ISO recognized this exclusion in its filing letter at 11, but thinks that such issues are appropriately addressed as part of the process to revise the ISO's long-term grid planning process. Enron has argued and won at FERC for transmission credits in other utility cases, but I don't know what is appropriate under Cal ISO system, so please check this carefully. ----- Forwarded by Christi L Nicolay/HOU/ECT on 04/11/2001 08:02 AM -----

Susan J Mara@ENRON 04/05/2001 03:18 PM To: Christi L Nicolay/HOU/ECT@ECT cc:

Subject: RE: FERC Filings

I complained to the ISO Webmaster and Voila! I guess I was looking in the w

Message 857 of 1299

Cal-ISO/FERC -2: Companies Allegedly Gamed Power Market

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Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 06/08/2001 04:16 PM -----

Greg.Blue@dynegy.com 06/08/2001 03:42 PM

To: "Alex Sugaoka \E-mail)" <alex.sugaoka@uaecorp.com>, "Bill Woods \E-mail)" <billw@calpine.com>, "Bob Ellery \E-mail)" <bellery@spi-ind.com>, "Bob Escalante \E-mail)" <rescalante@riobravo-gm.com>, "Brian T. Cragg \E-mail)" <bcragg@gmssr.com>, "Carolyn A Baker \E-mail)" <cabaker@duke-energy.com>, "Curtis Kebler \E-mail)" <curtis_i_kebler@reliantenergy.com>, "Douglas Kerner \E-mail)" <dck@eslawfirm.com>, "Duane Nelsen \E-mail)" <dnelsen@gwfpower.com>, "Ed Tomeo \E-mail)" <ed.tomeo@uaecorp.com>, "Eric Edstrom \E-mail)" <edstrom@epenergy.com>, "Greg Blue \E-mail)" <gtbl@dynegy.com>, "Hap Boyd \E-mail)" <rboyd@enron.com>, "Jack Pigott \E-mail)" <jackp@calpine.com>, "Joe Ronan \E-mail)" <joe@calpine.com>, "John G. Larrea \E-mail)" <john.g.larrea@williams.com>, "John O'Rourke \E-mail)" <john.orourke@elpaso.com>, "Kate Castillo \E-mail)" <CCastillo@riobravo-gm.com>, "Ken Hoffman \E-mail)" <khoffman@caithnessenergy.com>, "Kent Burton \E-mail)" <kburton@covantaenergy.com>, "Kent Palmerton \E-mail)" <kent.palmerton@williams.com>, "Marty McFadden

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Cal-ISO/FERC -2: Companies Allegedly Gamed Power Market Updated: Friday, June 8, 2001 05:29 PM ET Email this article to a friend!

Printer-friendly version

LOS ANGELES (Dow Jones)--The California Independent System Operator has filed a motion with federal energy regulators asking that four major power suppliers in California be stripped of their ability to charge market rates because they have allegedly gamed the wholesale electricity market. Duke Energy (DUK, news, msgs), Dynegy Inc. (DYN, news, msgs), Mirant Corp. (MIR, news, msgs) and Reliant Energy Inc. (REI, news, msgs) have been identified by the ISO as exercising market power - the ability to influence electricity prices - in California's wholesale power market.

The ISO, which manages the state's high-voltage transmission system, recently made a similar filing against AES Corp. (AES, news, msgs) and Williams Cos. (WMB, news, msgs), claiming those companies have profited excessively in California by exercising market power. The ISO wants the Federal Energy Regulatory Commission to revoke generators' authority to charge market-based rates for their power supply.

Tom Williams, spokesman for Duke Energy, said the company had just received the FERC filing and is reviewing the allegations. "We've obviously just got the filing and we're reviewing it and we are going to respond with our own FERC filing. But we're also gratified that market forces are at work in California and prices have come down," Williams said.

Richard Wheatley, a spokesman for Reliant, said the ISO's allegations are "nothing new." "It's similar in nature to issues and allegations that have been raised against other generators," Wheatley said. "The ISO is incorrect in asking for emergency relief. The situation in California remains to be an imbalance between supply and demand. The blame game prohibits lasting solutions from being reached and the business climate in California will be affected by finger pointing."

Steve Maviglio, press secretary to Gov. Gray Davis, said the governor "strongly supports any attempt to bring prices down for Californians and to break the grip a handful of generators have on the electricity market."

The ISO has asked FERC to terminate by June 28 Dynegy's ability to charge market prices for power from its Southern California power plants and to schedule a hearing to determine rates based on the energy company's production costs. The grid operator also wants Dynegy to refund billions of dollars, retroactive to May 1, "of the difference between cost-based rates...and the market revenues actually received." Similar requests were made with FERC against Duke, Reliant and Mirant.

"The ISO has submitted compelling evidence that the exercise of market power is more pervasive than the commission has acknowledged...", according to the filing. In the filing, generators have also been accused of "megawatt-laundering," in which suppliers sell power out-of-state that is resold to California at a higher price.

California consumers have spent \$7 billion for wholesale electricity in 1999, \$27 billion in 2000 and could pay as much as \$50 billion this year.

Charles Robinson, the ISO's chief counsel, said he is "optimistic" the state will prevail "in one forum or another and will be able to get the relief we're seeking." He said FERC should implement an "effective" market mitigation plan that will put the brakes on skyrocketing wholesale power prices. FERC set up a market mitigation plan, which went into effect June 1, to

stabilize wholesale power prices when operating reserves dip below 7%. Robinson said that plan wasn't good enough.

Wholesale power prices were at a seven-month low Thursday, due in part to the new FERC plan, cooler temperatures, low natural-gas prices, and conservation measures, energy officials said.

Every three years, FERC reviews generators' ability to charge market rates for electricity. Generators were first allowed to charge market rates three years ago, but it is unclear whether FERC has ever stripped suppliers from their right to charge market prices.

Message 858 of 1299

FW: Kinder Morgan And Calpine Announce Plans to Develop New Natural

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File	dasovich-j/all_documents/12085.

fyi... ----- Forwarded by Karen Denne/Corp/Enron on 05/04/2001 07:34 PM ----- From: Gina Taylor/ENRON@enronXgate on 05/02/2001 02:52 PM To: Karen Denne/Corp/Enron@ENRON cc:

Subject: FW: Kinder Morgan And Calpine Announce Plans to Develop New Natural Gas Pipeline to California

fyi....

Gina

-----Original Message-----

From: Corman, Shelley Sent: Wednesday, May 02, 2001 2:40 PM To: McCarty, Danny; Harris, Steven; Hyatt, Kevin; January, Steven; Blair, Lynn; Taylor, Gina; Fossum, Drew; Miller, Mary Kay Cc: Horton, Stanley Subject: Kinder Morgan And Calpine Announce Plans to Develop New Natural Gas Pipeline to California

FYI

Wednesday May 2, 2:11 pm Eastern Time

Press Release SOURCE: Kinder Morgan Energy Partners, L.P. and Calpine Corporation

Kinder Morgan and Calpine Announce Plans to Develop New Natural Gas Pipeline To California

Sonoran Accepts Binding Bid for 400,000 Dekatherms/day

HOUSTON, May 2 /PRNewswire/ -- Kinder Morgan Energy Partners, L.P. (NYSE: KMP - news) and national independent power company Calpine Corporation (NYSE: CPN - news) today announced plans to jointly develop the Sonoran Pipeline, subject to a successful open season and all other approvals. As proposed, the Sonoran Pipeline will be a 1,160-mile, high-pressure interstate natural gas pipeline from the San Juan Basin in northern New Mexico to markets in California. The project will provide much needed natural gas transportation capacity to California to serve rapidly growing electric generation demand. In addition, producers will be able to move more natural gas from the San Juan Basin through the Sonoran Pipeline. This will benefit California consumers, as access to these abundant natural gas supplies has been constrained due to a lack of pipeline infrastructure.

The interstate pipeline will be evaluated and developed in two phases, which will be subject to the jurisdiction of the Federal Energy Regulatory Commission (FERC). The first phase will run from the San Juan Basin to the California border, with the second phase extending from the California border to the San Francisco Bay area. The first phase of the pipeline is expected to be completed in the summer of 2003.

"This exciting project will enable us to grow our core business and extend our natural gas transportation service into new markets," said Richard D. Kinder, chairman and CEO of KMP. "We don't currently transport natural gas into California, but we do own and operate the largest independent products pipeline on the West Coast, headquartered in Orange, Calif. We will utilize our expertise as a major natural gas pipeline operator and transporter to build the Sonoran Pipeline, and we look

forward to expanding our relationship with Calpine, one of the leading power plant developers in America."

According to Pete Cartwright, chairman, president and CEO of Calpine, the project will serve several important purposes for Calpine. "The Sonoran Pipeline will help ensure a diverse supply of natural gas in California. With our existing plants in California, and our plans to bring on line an additional 9,000 megawatts of capacity, it is essential that we have a dependable, competitively priced source of natural gas. This important new pipeline will allow us to better control our costs in the California market to help lower energy prices and build needed generation. This project is a great example of two energy companies joining forces and utilizing their complementary strengths to provide real solutions to California's energy crisis."

The project is expected to be developed in two phases.

Phase One:

Phase One will consist of approximately 460 miles of 36-inch, high- pressure natural gas interstate pipeline originating from interconnects with TransColorado Gas Transmission Company, Transwestern Pipeline Company and various points at the Blanco Hub in San Juan County, N.M. near the Colorado- New Mexico state line; thus providing access to the major producing basins in the western U.S. The pipeline will continue westward with delivery points on the California/Arizona border near Needles with a 20-mile, 24-inch lateral to Topock. The pipeline will initially transport up to 750,000 dekatherms (Dth) of natural gas per day and can be economically expanded with compression to transport up to 1.0 million Dth per day. A binding "open season" will be held this month and potential shippers will be given the opportunity to commit to firm capacity on the new line. Given sufficient shipper support in the open season, Sonoran Pipeline, LLC (Sonoran) proposes an in-service date in the summer of 2003. The estimated cost of phase one of the project is approximately \$624 million. The open season will seek at a minimum, 20-year term commitments at a fixed transport rate of \$0.39 per Dth for firm transportation. Sonoran proposes to charge shippers actual fuel on Phase One via a fuel tracker. Fuel is estimated at 1.3 percent. Sonoran has already received an acceptable binding bid from Calpine Energy Services, L.P. for 400,000 Dth per day.

Phase Two:

Phase Two will be an extension of Phase One and consist of approximately 590 miles of 36-inch and 42-inch high-pressure interstate natural gas pipeline continuing from Needles on the California border to points within California, terminating near Antioch in Contra Costa County. Depending on shipper interest, Phase Two will transport from 1.0 to 1.5 million Dth of natural gas per day. A non-binding "open season" will be held on Phase Two simultaneous with the Phase One open season, and potential shippers will be given the opportunity to express their interest in obtaining firm capacity to California delivery points. Sonoran has already received a non-binding bid from Calpine Energy Services, L.P. for 500,000 Dth per day for Phase Two. The estimated cost of Phase Two is approximately \$1.1 billion.

The pipeline could connect with several gas pipelines, utilities and suppliers, such as Kern River, Mojave, Elk Hills, Pacific Gas and Electric Company, Southern California Gas and numerous gas-fired power plants, including Calpine's, along its route. Additionally, Sonoran would consider other potential connections in accordance with shipper requests.

After finalizing precedent agreements, in which shippers make binding contractual commitments to capacity on the line, Sonoran Pipeline will file an application for approval of the project with the FERC. Sonoran expects to utilize existing right-of-way corridors as much as possible to minimize potential environmental impact. Shippers seeking additional information on the project should contact Vice President Scott Parker at (630) 691-3689 or Project Director Ron Hapbach at (630) 691-3622.

Based in San Jose, Calif., Calpine Corporation is dedicated to providing customers with reliable and competitively priced electricity. Calpine is focused on clean, efficient, natural gas-fired generation and is the world's largest producer of renewable geothermal energy. Calpine has launched the largest power development program in North America. To date, the company has approximately 31,200 megawatts of base load capacity and 6,800 megawatts of peaking capacity in operation, under construction, and in announced development in 28 states and Canada. The company was founded in 1984 and is publicly traded on the New York Stock Exchange under the symbol CPN. For more information about Calpine, visit its website at www.calpine.com.

Kinder Morgan Energy Partners, L. P. is the nation's largest pipeline master limited partnership with an enterprise value of mo

Message 859 of 1299

FW: _____	
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Does someone at the Chamber want to see this? -----Original Message----- From: Dan Douglass [mailto:douglass@earthlink.net] Sent: Thursday, September 27, 2001 1:16 AM To: ARM; Gary Ackerman; Vicki Sandler; Anderson, Robert; Max Bulk; John Yurkanin; Steve Huhman; Mike Day; Paul Fenn Subject: _____

Attached for your review and comment is a revised draft of the application for rehearing to be filed on Friday the 28th. There are two primary changes. The California Chamber of Commerce has been added to the application and an argument has been added that the Decision contradicts the most recent legislative intent expressed in ABX2 9 that direct access continue, at least for aggregation and community choice purposes.

Any and all comments will be very much appreciated. Also, I would appreciate it if Sue Mara would forward the document to her contact at the Chamber so that they can also review the draft. Thanks!

Dan

Law Offices of Daniel W. Douglass 5959 Topanga Canyon Blvd. Suite 244 Woodland Hills, CA 91367 Tel: (818) 596-2201 Fax: (818) 346-6502 douglass@energyattorney.com <mailto:douglass@energyattorney.com>

Message 860 of 1299

IEP News 7/11	
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Copley News Service, July 11, 2001, Wednesday, State and regional, 406 ???words, Davis firm on demand for \$8.9 billion refund, Ed Mendel, SACRAMENTO

Los Angeles Times, July 11, 2001 Wednesday, Home Edition, Page 12, 749 ???words, THE NATION; ; Referee Shift Seen in Refund Talks; Power: Participants ???say mediator was swayed by arguments that California estimates were based on ???faulty analysis., RICARDO ALONSO-ZALDIVAR, TIMES STAFF WRITER, WASHINGTON

Los Angeles Times, July 11, 2001 Wednesday, Home Edition, Page 2, 325 words ???, California; ; Calpine to Buy More Natural Gas Reserves; Energy: The power ???producer is set to purchase wells in Texas and New Mexico for \$355 million ???plus debt., From Bloomberg News

Los Angeles Times, July 11, 2001 Wednesday, Home Edition, Page 2, 574 words ???, California; ; Edison's Finances Fare Better; Energy: After selling some ???assets, the company appears to be back on track. But it says the future of ???its utility is in the Legislature's hands., JERRY HIRSCH, TIMES STAFF WRITER

The New York Times, July 11, 2001, Wednesday, Late Edition - Final, Section ???A; Page 1; Column 3; National Desk, 1519 words, Calls for Change in an ???Ancient Occupation, By EVELYN NIEVES, MOJAVE, Calif.

The San Francisco Chronicle, JULY 11, 2001, WEDNESDAY,, FINAL EDITION, ???NEWS,, Pg. A3, 512 words, Governor threatens to sue utilities for refunds; ???Davis says California won't settle for \$1 billion, Mark Martin,

Sacramento

The Washington Post, July 11, 2001, Wednesday, Final Edition, A SECTION; ????Pg. A02, 934 words, GOP Speeds Action on Limited Energy Bills, Peter Behr ????and Mike Allen, Washington Post Staff Writers

Business Wire, July 10, 2001, Tuesday, 1003 words, Texas to Avoid ????California Electricity Shortage; New Customer Brochure Explains Differences ????in the Texas and California Electricity Markets, AUSTIN, Texas, July 10, ????2001

CNBC/Dow Jones - Business Video, CNBC/DOW JONES BUSINESS VIDEO, July 10, ????2001 Tuesday, Transcript # 071001cb.y50, Business, 1419 words, The Shaw ????Group - President & CEO - Interview, James Bernard, John Manley, Mark Hianes

Contra Costa Times, July 10, 2001, Tuesday, CC-POWERGRID, 938 words, ????Analysts: Overloaded California Grid Can't Handle High Demand, New Plants, ????By Rick Jurgens

Copley News Service, July 10, 2001, Tuesday, Commentary, 530 words, Copley ????Editorial Service

The Houston Chronicle, July 10, 2001, Tuesday, 3 STAR EDITION, A,, Pg. 1, ????921 words, California to get plan for refunds; Officials celebrate judge's ????proposition, DAVID IVANOVICH, LAURA GOLDBERG, WASHINGTON, Utility Rates

National Public Radio (NPR), Morning Edition (11:00 AM AM ET) - NPR, July ????10, 2001 Tuesday, 1289 words, Officials in California fail to reach ????settlement over the state's demand for more than \$8 billion in refunds to ????electricity customers, BOB EDWARDS, SCOTT HORSLEY

The News Tribune, July 10, 2001, Tuesday, South Sound; Pg. D1, 405 words, ????No energy refunds foreseen for California ; Power: Judge rules state is owed ????up to a billion dollars, but owes suppliers more than that, Mark Sherman; ????The Associated Press

Copyright 2001 Copley News Service Copley News Service July 11, 2001, Wednesday

SECTION: State and regional

LENGTH: 406 words

HEADLINE: Davis firm on demand for \$8.9 billion refund

BYLINE: Ed Mendel

DATELINE: SACRAMENTO

BODY:

??Gov. Gray Davis had a tough message for federal regulators yesterday after the failure of settlement talks in California's bid to get an \$8.9 billion refund from electricity suppliers: "See you in court."

??The governor said California will seek a full \$8.9 billion refund for electricity overcharges, even if federal regulators award the maximum refund of \$5.4 billion allowed under their guidelines.

??"Our message is just order what you are going to order," Davis said of the Federal Energy Regulatory Commission. "We believe you should order \$8.9 billion. But you order what you think is fair. We will take what you order, then we will see you in court."

??Davis, joined by his negotiating team, made the remarks at a news conference a day after two weeks of closed-door talks with suppliers in Washington failed to reach an agreement.

??An administrative law judge made a recommendation to the regulatory commission that Davis' top negotiator, Michael Kahn, chairman of the California Independent System Operator, expects to result in a refund of more than \$1 billion.

??Davis said that a revealing decision will be made by the commission, which he hopes has embarked on a "new path" with the appointment by President Bush of two new members, Pat Wood of Texas and Nora Brownell of Pennsylvania.

??"Are they on the side of consumers, as the federal power act envisions them being," Davis asked, "or are they just there to do the industry's bidding, as they have so often in the past?"

??Kahn said rules adopted by FERC cut off the refund period at last October, trimming \$3 billion from the \$8.9 billion overcharge claimed by California dating to May 2000.

??He said FERC has no jurisdiction over municipal utilities, such as the Los Angeles Department of Water and Power, that sold power to the state. The municipal districts overcharged the state by about \$600 million, according to Kahn.

??As a result, he said, the maximum refund that FERC could order for California is about \$5.4 billion.

??"We made it clear to everyone that if we did not settle for \$8.9 billion, we would seek redress in court for the remainder of the money above \$5.4 billion," Kahn said.

??Calpine of San Jose and several other generators have expressed interest in the state's offer to negotiate one-on-one with the state while the federal regulators consider their decision, Kahn said.

??WAGNER-CNS-SD-07-10-01 2114PST

LOAD-DATE: July 11, 2001

????????????????????????????????4 of 54 DOCUMENTS

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????????????????????????????????Los Angeles Times

????????????????????????????July 11, 2001 Wednesday ?Home Edition

SECTION: Part A; Part 1; Page 12; National Desk

LENGTH: 749 words

HEADLINE: THE NATION; ; Referee Shift Seen in Refund Talks; Power: Participants say mediator was swayed by arguments that California estimates were based on faulty analysis.

BYLINE: RICARDO ALONSO-ZALDIVAR, TIMES STAFF WRITER

DATELINE: WASHINGTON

BODY:

??For the better part of 15 days of closed-door negotiations, the federal mediator in California's price-gouging case bandied about the possible dimensions of a settlement.

??Curtis L. Wagner Jr. went as high as \$4.5 billion, fully half of what California said it had been overcharged by out-of-state electricity suppliers.

??But Wagner got no takers for that figure. And in the end, when talks ended Monday with no deal between the state and the energy generators, he said publicly that \$1 billion was closer to the truth.

??Participants in the talks, speaking on condition that they would not be identified, said Wagner appeared to have been persuaded by the power suppliers that California's \$8.9-billion overcharge estimate was based on unreliable economic analysis.

??The state's analysis "is fatally flawed and cannot be used to . . . determine overcharges or refunds," William Tabors, an MIT economist retained by one of the companies, said in an affidavit that is part of a transcript released by the judge.

??"I certainly think Tabors was very persuasive," said an industry lawyer.

??By contrast, at another point, Wagner questioned whether California regulatory agencies were truly independent of Gov. Gray Davis, saying their representatives to the talks might as well put on "clown suits."

??Now the issue is about to

Message 861 of 1299

Re: Dow Jones says CPUC will "Order" utilities to pay QFs \$1 bil

Sender	alan.comnes@enron.com
Recipients	['terry.donovan@enron.com', 'julie.sarnowski@enron.com']
File	dasovich-j/all_documents/10184.

----- Forwarded by Alan Comnes/PDX/ECT on 03/20/2001 02:36

PM -----

"Robert Weisenmiller" <rbw@mrwassoc.com> on 03/20/2001 01:25:57 PM To: Alan.Comnes@enron.com, Michael Etringer/HOU/ECT, Terry W Donovan/HOU/ECT, Julie Sarnowski/HOU/ECT cc:

Subject: Re: Dow Jones says CPUC will "Order" utilities to pay QFs \$1 bil

Two articles on QFs.

<http://www.latimes.com/news/state/20010320/t000024257.html> Back to story

Tuesday, March 20, 2001 Small Power Firms' Cutbacks Contribute to Blackouts Outages: Alternative generators of solar, wind and biomass energy, and smaller gas-fired plants, haven't been paid since November.

By JULIE TAMAKI, Times Staff Writer

SACRAMENTO--The rolling blackouts that swept California on Monday were sparked in part by a crucial group of small energy producers that have cut supplies to the state's utilities because they are not being paid. California's power supply dropped Monday when alternative producers reduced output or went offline, cutting their usual deliveries to utilities in half. The lost electricity--more than seven times the cuts the companies were making just weeks ago--could have served 3 million homes. "I think we're just getting at a breaking point for many of these businesses," said Ed Tomeo, president of UAE Energy Operations Corp., a San Ramon company that operates a biomass plant and a small gas-fired plant. Tomeo said he expects to take his gas-fired plant offline today because he's run out of money to buy natural gas. Tomeo's firm is among the nearly 700 alternative energy producers that generate more than a fourth of the power consumed in California. Collectively, the group estimates it is owed \$1.5 billion by the state's two largest utilities. Big out-of-state power producers are getting paid because the state stepped in to buy electricity for the foundering utilities. But the California producers of solar, wind and biomass energy and, typically, smaller gas-fired generators, have received no payments since November from Southern California Edison and only partial payments from Pacific Gas & Electric Co. for December and January deliveries. Edison's debt to the producers is estimated at \$835 million as of March 1. PG&E's debt to the producers was \$651 million as of March 8. Jim Detmers, director of the California Independent System Operator, the agency that operates the state's power grid, said Monday's shortfall from the alternative producers was mostly caused by reduced output by about a dozen companies that have been cutting back electricity deliveries for the past two months. Detmers said he could not say whether the action was orchestrated, but it appeared to be a business decision. The cuts have grown from about 400 megawatts a day in early February to 3,000 megawatts over the last several days, according to state officials. Assemblyman Fred Keeley, a Boulder Creek Democrat, said he did not blame the small producers, who are formally referred to as "qualifying facilities," for shutting down. "Although I feel it is unfortunate for consumers, I don't blame [them] at all," Keeley said. "They're the only ones generating electricity and not getting paid." Keeley said he will revive efforts to pass legislation that would ensure that the alternative energy producers get paid while cutting their rates. A previous effort to slash the rates paid to the group, SB 47X by Keeley and Sen. Jim Battin (R-La Quinta), appears doomed. Gov. Gray Davis huddled for more than two hours with Democratic legislative leaders Monday, after keeping his distance for several weeks, and an agreement emerged to give small generators a choice: Take a higher price in exchange for short-term commitments to buy their power, or accept a lower price in exchange for a multiyear commitment to buy their power, sources who attended the meeting said. And the governor and Legislature would quickly devise a way to ensure that the producers start getting paid, at least for power they continue to produce. As long as the utilities are collecting money from their customers, Davis later told a labor group, "they're going to make the payments." The alternative producers' rates are pegged to the price of natural gas, which has skyrocketed in recent months. Driving down and stabilizing their prices is a critical factor in Davis' overall plan of buying power without imposing additional consumer

rate hikes. As a growing number of unpaid producers have dropped offline, state officials have been forced to purchase replacement supplies on the pricey spot market. A worst-case scenario materialized Monday, when a lack of electricity supplies forced state officials to order rolling blackouts. "A number of plants are out for maintenance, but it's very clear to me that there are a significant number that are off due to nonpayment," said Jan Smutny-Jones, executive director of the Independent Energy Producers. "My concern is that this is a prelude to what we'll see this summer." PG&E spokesman John Nelson described the alternative producers as victims of the state's energy meltdown. "Many of these generators are relatively small enterprises that cannot afford to continue operating on a daily basis." Nelson said his company's inability to fully pay the producers it has contracts with is caused by the rate freeze that bars PG&E from passing the true cost of electricity on to customers.

* * * Times staff writers Miguel Bustillo, Nancy Rivera Brooks, Dan Morain and Nancy Vogel contributed to this story.
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steven k. says the la times is closer to correct (going forward costs but not payables)

Bob

At 12:46 PM 3/20/01 -0800, you wrote:

Bob, If you learn anything more than what's in the papers, send it my way. Thanks. Alan cc: Subject: Dow Jones says CPUC will "Order" utilities to pay QFs \$1 bil Here's the link:

http://quicken.excite.com/investments/news_center/article/printer.dcg?story=/

news/stories/dj/20010320/ON20010320000069.htm

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Message 862 of 1299

Article: CABLE, BROADCAST, DBS, CE, PHONE PLAYERS DUEL OVER ITV

Sender margo.reyna@enron.com

Recipients ['sue.nord@enron.com', 'scott.bolton@enron.com', 'lara.leibman@enron.com']

File dasovich-j/all_documents/10855.

CABLE, BROADCAST, DBS, CE, PHONE PLAYERS DUEL OVER ITV POLICY

04/06/2001 Public Broadcasting Report (c) Copyright 2001 Warren Communications News, Inc. All Rights Reserved. Cable operators, programming networks, broadcasters, DBS providers, consumer electronics interests, Bell companies, ISPs, sports leagues, software developers, electronic program guide creators, personal video recording firms and consumer groups all battled over possible interactive TV (ITV) regulations at FCC. In comments filed in response to Commission's ITV inquiry, 28 entities debated whether federal govt. should regulate nascent interactive market in wake of AOL's takeover of Time Warner (TW) earlier this year. They also feuded over how govt. should define interactive services if it chose to regulate them. Pushing for "technologically neutral nondiscrimination safeguards" on such vertically integrated MSOs as AOL TW, group of major programmers urged FCC to mandate that all broadband distributors carrying any ITV signals forward signals for all programmers on their cable systems. Group, consisting of Disney, Univision, USA Networks and Viacom/CBS, also called on Commission to ban discriminatory routing or caching practices that would permit cable operators to send their affiliated programming at faster speeds than rival networks. Programmers contended that consumers shouldn't have to buy additional set-top box to receive unaffiliated ITV services. "It is far easier and requires far less intrusive government regulation to prevent monopoly power from distorting a relatively new market than it is to combat monopoly power already unleashed in a more developed market," group said. Public interest groups, ALTV, APTS, BellSouth, EarthLink, Gemstar-TV Guide International, MSTV, NAB, PBS (PBR March 23 p3) and SBC Communications all made similar arguments in favor of FCC's adopting ITV rules. For instance, joint filing by Media Access Project, Consumers Union, Consumer Federation of America and Center for Media Education called on Commission "to move expeditiously to begin a rulemaking establishing open access for providers of enhancements on all platforms, whether cable, DBS, DTV or new technologies yet unknown." They contended that agency's failure to act would allow cable MSOs to "become the gatekeepers of what has thus far been a gateless online community" and devastate

independent content providers. Without safeguards, they said, "ITV is likely to become a digital mirror image of the current closed multichannel cable model." Regulatory opponents countered that imposing ITV restrictions on cable systems would discourage them from starting new services, hampering development of emerging industry. Opponents, including AOL, TW, AT&T, Cablevision Systems, Charter, Canal Plus Technologies, Comcast, NCTA, NFL, OpenTV, Progress&Freedom Foundation and group of 4 programmers, declared it was too early to impose obligations on ITV providers. They said early regulation would be unworkable, creating administrative nightmare. Calling even "the threat of regulation" of ITV market "a major mistake," NCTA, for example, argued that "there is simply no basis for assuming a problem and proposing regulatory solutions." Saying FCC deliberately had refrained from imposing similar rules on cable high-speed data services, which are much further along in development, NCTA said Commission should refrain from regulating ITV services for same reason. It also warned that agency had very limited authority to regulate ITV services under Communications Act and easily could violate First Amendment rights of cable operators if it tried to do so. Calling inquiry "a peculiar and misguided proceeding," NCTA said First Amendment "would seem to preclude the very regulations suggested by the notice which would interfere with cable operators' constitutionally protected editorial judgments." Taking different tacks, DBS providers EchoStar and DirecTV said in separate filings that they wanted FCC to keep close tabs on cable operators so they wouldn't use their market power to keep interactive TV services from other multichannel operators, including satellite TV companies. DBS companies said they were concerned that cable companies might have unfair advantage in marketplace if both industries were regulated in same way by Commission. DirecTV said it was "premature" for agency to fully regulate ITV services, but it favored "continued monitoring by the FCC of the potential for anticompetitive behavior by cable operators." "Regulatory intervention at this nascent stage of ITV development makes little sense," DirecTV said: "There are as yet no dominant providers of ITV services, and the marketplace is still in the process of sorting out the technological standards" that it will follow during future delivery. EchoStar said there was "absolutely no basis for imposing" ITV carriage obligations on distributors lacking market power in any relevant market such as itself. Such action would penalize new entrants and favor incumbent cable operators, filing said. FCC/CAPITOL HILL In action that will significantly limit number of low-power FM (LPFM) stations to be licensed, FCC released decision April 2 saying LPFM stations must meet same 3rd adjacent channel interference protection requirement as full-power stations. Order implements requirements of rider on FCC appropriations bill signed into law in Dec. Commission expects to complete action on its LPFM licensing window in few months, it said in order, and then will direct Mass Media Bureau to open window to allow LPFM applicants that didn't meet 3rd channel requirements to try to come into compliance. FCC Chmn. Powell said action allowed Commission to begin granting construction permits for at least some LPFM stations, and agency had begun independent testing to determine impact of LPFM stations on full-power FM stations and translators. As part of order, FCC also implemented congressional mandate that denies LPFM license to former pirate radio operators. FCC Comr. Furchtgott-Roth issued separate statement saying he supported move to implement congressional mandate but believed FCC should have delayed LPFM licensing while it went through rulemaking process in order to comply with Administrative Procedure Act.

Sen. Cochran (R-Miss.) introduced S-604 to reauthorize PTV's Ready to Learn and Ready to Teach programs. Bill also would graduate Mathline, a component of programs providing professional development models for teachers of mathematics, to TeacherLine, more comprehensive professional development tool for K-12 teachers. Citing research by U. of Ala. and U. of Kan., Cochran said Ready to Learn was having positive impact on children and their parents. Studies showed that Ready to Learn families read books together more often and for longer periods than nonparticipants. Surprisingly, studies said Ready to Learn children watched 40% less TV and were more likely to choose educational programs when they did watch, he said. Advent of digital broadcasting, which allows broadcast of multiple video channels and data simultaneously, will make it possible for instructional materials to be distributed on full-time, continuous channels when teachers and students need it, Cochran said.

FCC regulatory fees would increase average of 7.75% for FY 2001, agency said in proposed rulemaking released March 29. Fees generally followed previous 2 years' practice of across-board increase to meet congressional mandate for FCC to recoup larger portion of its operating budget through regulatory fees. Congress required Commission to collect

Message 863 of 1299

Enron Mentions

Sender	ann.schmidt@enron.com
Recipients	[]
File	dasovich-j/all_documents/11215.

Public Service Says 1st-Qtr Profit Fell 5.9 Percent (Update2) Bloomberg, 04/17/01

Enron Bandwidth Unit Reports Loss For First Quarter Dow Jones Energy Service, 04/17/01

USA: Enron CEO uses naughty word on conference call. Reuters English News Service, 04/17/01

Enron, Dynegy post healthy profit gains on energy demand Associated Press Newswires, 04/17/01

USA: Enron Broadband posts expected loss amid mixed growth. Reuters English News Service, 04/17/01

WSJ.COM WRAP: Enron, Dynegy Post Impressive Results Dow Jones News Service, 04/17/01

Action on energy trading floors reverberate in power-hungry California Associated Press Newswires, 04/17/01

Energy Trading-Floor Gambits Perturb Power-Hungry US West Dow Jones Energy Service, 04/17/01

High demand for power behind Enron's increased earnings Associated Press Newswires, 04/17/01

Enron CEO: Earnings Target Up By A Nickel CNNfn: Market Coverage - Morning, 04/17/01

Enron Corp. Says First-Quarter Profit Rose 20 Percent (Update6) Bloomberg, 04/17/01

Dynegy's 1st-Qtr Profit Rises 73% on Gas, Power Sales (Update4) Bloomberg, 04/17/01

Red Herring 100 Celebrates Top Companies Reshaping Business PR Newswire, 04/17/01

Enron Says PG&E Owes About \$570 Million, CNBC Says (Update1) Bloomberg, 04/17/01

Public Service Says 1st-Qtr Profit Fell 5.9 Percent (Update2) 2001-04-17 17:25 (New York)

Public Service Says 1st-Qtr Profit Fell 5.9 Percent (Update2)

(Updates with profit from operations in second paragraph and possible expansion in California in second section. For more on the California electricity crisis, see {EXTRA <GO>}.)

Newark, New Jersey, April 17 (Bloomberg) -- Public Service Enterprise Group Inc., owner of New Jersey's largest utility, said first-quarter profit fell 5.9 percent because of a rate cut and higher fuel costs. Profit from operations fell to \$254 million, or \$1.22 a share, from net income of \$270 million, or \$1.25, a year earlier, spokesman Paul Rosengren said. Revenue rose 13 percent to \$2.81 billion from \$2.48 billion. The company has been trying to expand outside New Jersey as the state opens its energy markets to competition. Talks to buy Cinergy Corp., owner of Cincinnati's utility, for about \$5.6 billion fell apart in March, possibly because it offered only a slight premium, according to newspaper reports. The company's Public Service Electric & Gas utility has 3.5 million New Jersey customers. Utility profit fell 11 percent because of a 2 percent power-rate cut and costs to refinance debt, the Newark, New Jersey-based company said. Profit at PSEG Power, the company's U.S. trading and power- generation unit, fell 19 percent because of higher fuel costs and interest expenses. Public Service uses natural gas to fuel some of its power plants. Gas prices more than doubled from a year ago. A \$2 million charge for a debt payment and a \$9 million gain from an accounting change made net income \$261 million, or \$1.25 a share, the company said. Public Service had 208 million shares outstanding in the latest quarter. It had 216 million shares outstanding a year earlier. Operating profit of PSEG Energy Holdings, which includes international business, rose 88 percent. Public Service expects to have 3.7 million customers outside the U.S. after some acquisitions are complete, the company said.

California

Public Service is talking with California officials about expanding six power plants in the state, Rosengren said. The plants, owned 50 percent by Public Service, generate enough power for 150,000 U.S. homes and might be ``substantially

enlarged" with turbines Public Service has on order, provided the state confirms payment for power, he said. He declined to provide details on the size of the expansion. Shares of Public Service rose 90 cents to \$46.08. They have fallen 5.2 percent this year.

Enron Bandwidth Unit Reports Loss For First Quarter

04/17/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- Enron Broadband Services was the only one of Enron Corp.'s (ENE) business sectors to report a loss for the first quarter of 2001, company executives said in a conference call with analysts Tuesday. Before interest and taxes, Enron reported a loss for Broadband Services of \$35 million for the first quarter of this year compared to a break-even quarter a year ago. "Only one sector is down from what we expected and that's broadband," Enron President and Chief Executive Jeff Skilling told investors. "The other sectors are up, significantly up." Enron Corp. reported earnings of \$405 million on revenues of \$50.1 billion for the first quarter of 2001. The per-diluted share earnings were 49 cents, compared with 40 cents in the year-ago period. Company executives also revised upward their per-share earnings goal for 2001 from \$1.73 to the \$1.75-\$1.80 range. The Broadband Services loss came on \$83 million in revenues compared to \$59 million last year. The total value of contracts for the first quarter 2001 was \$45 million, compared with \$31 million in the first quarter 2000. Broadband Services delivered 43,400 terabytes of capacity in the first quarter 2001, up from 6,005 terabytes a year ago. For all of last year, the company delivered a total of 72,406 terabytes of bandwidth. Skilling said the company has contracts to deliver 40% of its goal of 570,000 terabytes this year. "We're making excellent progress in creating a commodities market," he said. Broadband Services did a total of 580 transactions in the first quarter of 2001, double the 236 transactions it did in the fourth quarter of last year. In all of 2000, the company did 321 trades. In the first quarter, Enron added 70 new customers, bringing its total up to 120, Skilling said. He added that 70% of those customers are carriers or network service providers. Skilling said he is disappointed with the slow growth of the long-term deal origination segment of the bandwidth operation. "We face one big issue in this market, the counterparties have no credit capacity," he said. The Broadband Services loss wasn't due to increased costs of seeking video-on-demand partners to replace Blockbuster Inc. (BBI). Enron and Blockbuster canceled an exclusive agreement to distribute movies via the Internet in the first quarter. Enron will seek to make deals with motion picture companies directly. The biggest snag in making those deals are Hollywood's desires. "They want to keep as much of the money as they can," said Ken Rice, chairman and chief executive of Broadband Services. -By Erwin Seba, Dow Jones Newswires, 713-547-9214
erwin.seba@dowjones.com

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USA: Enron CEO uses naughty word on conference call.

04/17/2001 Reuters English News Service (C) Reuters Limited 2001.

(Editors note language) By C. Bryson Hull HOUSTON, April 17 (Reuters) - Enron Corp.'s top executive Tuesday publicly fired off the same vulgarity that brought President George W. Bush embarrassing headlines when he unwittingly uttered it in front of an open microphone last fall. But unlike Bush, Enron President and Chief Executive Officer Jeff Skilling says he knew the microphone was on when he called a fund manager an "asshole" during a conference call to discuss first-quarter earnings with analysts. Bush made headlines on the campaign trail last year when he remarked to Vice President Dick Cheney that a New York Times reporter was a "major-league asshole," not knowing that a microphone had picked up his remark. Skilling laid down the insult after an exchange with Richard Grubman, managing director of Highfields Capital Management in Boston, who asked to see Enron's balance sheet and was told it would n

Message 864 of 1299

Solutions Document

Sender	jennifer.thome@enron.com
Recipients	['jeff.dasovich@enron.com', 'james.steffes@enron.com']
File	dasovich-j/all_documents/11682.

Attached please find a revised Solutions Document. Also attached is a timeline I thought we should consider including.

It still needs the following:

1. Language on gas infrastructure (Jeff will develop)
2. Updated table on undercollection, etc. (Robert will work with MRW)
3. Data on core/non-core retail costs for June 2001 to incorporate in table (Robert will request from Tamara)

I will be out of the office tomorrow, but will have my computer (or try my cell phone - 832.483.0624) and will be expecting to work on this to finish it. I will check in with you all tomorrow morning.*

Thanks,

Jennifer

Message 865 of 1299

FW: Joint ACR Regarding DWR's Revenue Requirement And July 27, 2001

Sender alan.comnes@enron.com

Recipients ['lisa.mellencamp@enron.com', 'michael.tribolet@enron.com']

File dasovich-j/all_documents/29107.

[Comnes, Alan]=01; Asks for more data and sets a workshop on 7/24=01; [Comnes, Alan]=01; =01; Attached is an advance draft of a joint assigned Commissioners' ruling asking parties to comment on DWR's revised revenue requirement by August 3, 2001, =20 asking for additional information from DWR, and setting a workshop for July=20 27, 2001 at 9:00 am at the Commission to discuss the revenue requirement=20 assumptions with representatives from DWR.

Due to computer difficulties, this ruling will be filed with the Docket=20 Office tomorrow, July 25.=20

<<joint ACR.doc>>=20

John S. Wong=20 CPUC - ALJ=20 (415) 703-3130=20

Message 866 of 1299

FW: ISO Comments on FERC Staff's mitigation measures report

Sender kaplan@iepa.com

Recipients ['carol@iepa.com', 'billw@calpine.com', 'steven@iepa.com', 'smutny@iepa.com', 'kaplan@iepa.com', 'william_carl...']

File dasovich-j/all_documents/10343.

Greetings:

Attached please find the ISO's comments, as filed at FERC (including 3 attachments), and the Market Surveillance Committee's comments, which we are unclear whether these were filed or not. IEP is currently reviewing them in light of the accusations made today and with respect to the overall flaws with the ISO Market Stabilization Plan. We will keep you posted.

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

- ISO Comments attach A.pdf - ISO Comments attach B.pdf - ISO Comments attach C.pdf - ISO Comments on FERC Mitigation.pdf - MSC Comments on FERC mitigation.pdf

Message 867 of 1299

Re: Western Wholesale Activities - Gas & Power Conf. Call

Sender	ray.alvarez@enron.com
Recipients	['susan.mara@enron.com', 'steve.walton@enron.com', 'bernadette.hawkins@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/notes_inbox/12212.

PLEASE MARK YOUR CALENDAR Date: Every Thursday Time: 7:30 am Pacific, 9:30 am Central, and 10:30 am Eastern
time Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

The table of the on-going FERC issues and proceedings will be updated for use on today's conference call, and distributed by Bernadette Hawkins. It is available to all team members on the O drive. Please feel free to revise/add to/ update this table as appropriate.

Proposed agenda:

Update- request for rehearing Settlement update; rumors on outcome Consumers Union v. FERC, EL 01-90-000 Desert Star intervention

Message 868 of 1299

A.01-06-020; PG&E Reply Comments

Sender	dwa3@pge.com
Recipients	['jyoung@igservice.com', 'kbhensman@aeraenergy.com']
File	dasovich-j/notes_inbox/12321.

All --

Attached are PG&E's Reply Comments in the PG&E California Gas Transmission open season docket, A.01-06-020.

After readying the "hardcopy" comments for service by U.S. Mail, a couple of typos came to our attention. We have corrected the typos in this e-mail.

This e-mail contains two files:

1. A "redline" version showing typo corrections/changes from the hardcopy version sent out by U.S. Mail.
1. A file showing the redlines "accepted."

David W. Anderson, PG&E Law Department 415-973-6659

<<Email redline PGE Reply Comments.rtf>> <<Email PGE Reply Comments.rtf>>

- Email redline PGE Reply Comments.rtf - Email PGE Reply Comments.rtf

Message 869 of 1299

California Summary from Gas Desk

Sender	james.steffes@enron.com
Recipients	['rebecca.cantrell@enron.com', 'leslie.lawner@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/all_documents/12002.

Attached is some info that begins explaining the issue with gas basis differentials.

Jim

----- Forwarded by James D Steffes/NA/Enron on 05/03/2001

11:02 AM ----- From: Jay Reitmeyer@ECT on 05/02/2001 05:21 PM To: Joe Hartsoe/Corp/Enron@ENRON, James D Steffes/NA/Enron@Enron, Ray Alvarez/NA/Enron@ENRON cc:

Subject: California Summary

Phillip Allen and Mike Grisgby asked me to update and send a copy of this California summary to you. I hope the graphs and maps are self-explanatory, but if you need any help interpreting them, please call me. My number is 713-853-3536 or you can e-mail me.

Jay Reitmeyer

Message 870 of 1299

Re: Messages for Dunn hearing

Sender	jeff.dasovich@enron.com
Recipients	['kdenne@enron.com', 'ken@kdscommunications.com']
File	dasovich-j/all_documents/28533.

Thanks, Ken. I'm focused on the letter, so it would be very helpful if you could draft some brief message points and email to me and Karen. Then the three of us can bounce them around a bit before distributing to the larger group for comment. Thanks again.

Best, Jeff

"Ken Smith" <ken@kdscommunications.com> 07/10/2001 02:55 PM Please respond to "Ken Smith"

To: <Jeff.Dasovich@enron.com> cc: "Karen Denne" <kdenne@enron.com> Subject: Messages for Dunn hearing

Jeff, if I can be of any help in developing the messages please let me know. I'll be around all afternoon.

Ken Smith KDS Communications ken@kdscommunications.com (916) 920-2488

Message 871 of 1299

Re: Electricity Deregulation

Sender	david_teece@lecg.com
Recipients	['jdasovic@enron.com', 'pbray@newpower.com', 'mmanly@newpower.com', 'jeff.dasovich@enron.com']
File	dasovich-j/all_documents/10071.

Thanks Jeff. Sorry for the delay. Lots of internal conversations have been required to get everyone lined up.

David

Jeff.Dasovich@enron.com on 03/15/2001 12:41:57 PM

To: David_Teece@LECG.com cc: jdasovic@enron.com, mmanly@newpower.com, pbray@newpower.com

Subject: Re: Electricity Deregulation

David: Thanks so much. I'd almost given up hope. I will be distributing the proposal immediately and attempting to garner support industry-wide, across the nation. Can't make any promises of support, but will be working hard to try to bring people together. I'll be in touch soon. Don't hesitate to contact me to discuss it further. 415.782.7822.

Best, Jeff

Message 872 of 1299

Re: can you send info

Sender	susan.landwehr@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/11675.

JEff--here's the format that I used last time and plan on using this time around. I think it worked well for my meeting with him in Denver. ----- Forwarded by Susan M Landwehr/NA/Enron on 04/26/2001 03:14 PM -----

Ginger Dernehl 03/29/2001 08:53 AM

To: Susan M Landwehr/NA/Enron@Enron cc: Subject: Re: can you send info

You bet!

gngr 713-853-7751

Susan M Landwehr 03/28/2001 10:02 PM

To: Ginger Dernehl/NA/Enron@Enron cc: Subject: can you send info

Hi Ginger. Could you send me via e mail the final briefing papers that you sent up to Mr. Lay? I want to print them out tomorrow morning and take them with me to Denver. Thanks.

Message 873 of 1299

Re: Western Wholesale Activities - Gas & Power Conf. Call

Sender	ray.alvarez@enron.com
Recipients	['susan.mara@enron.com', 'steve.walton@enron.com', 'bernadette.hawkins@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/notes_inbox/11805.

PLEASE MARK YOUR CALENDAR Date: Every Thursday Time: 7:30 am Pacific, 9:30 am Central, and 10:30 am Eastern time Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

The table of the on-going FERC issues and proceedings is available to all team members on the O drive. Please feel free to revise/add to/ update this table as appropriate.

Proposed agenda for tomorrow:

Update- request for rehearing of 6/19 Order Claim for refunds made by PNW utilities CAISO Order of Chief Judge Scheduling Settlement Conference,Docket ER01-2019-000 Motion for Refunds of CA Parties and Pacific Gas and Electric Consumers Union

Message 874 of 1299

Agenda for Monday's meeting - DG Settlement

Sender	bruno.gaillard@enron.com
Recipients	['susan.mara@enron.com', 'tom.hoatson@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/distributed_generation/14.

All -

Attached is a proposed agenda for Monday's meeting at CMTA's offices in Sacramento. I haven't been able to reach everyone to confirm who's attending, so please call or email me with any corrections to the list (or with any other comments, for that matter).

Otherwise, looking forward to seeing you on Monday - John - Proposed_Agenda-4=24=00.doc John Nimmons & Associates Legal, regulatory & business strategies for sustainable energy 1110 Capitol Way S., Suite 307 Tel: 360/786-6040 Olympia, WA 98501 Fax: 360/786-6190

For those of you who cannot attend but would like to participate by phone, here is the information:

Phone number: 1-888-727-8686 ID number: 888-2585#

Message 875 of 1299

Re: Inquiry of Jennifer Rudolph

Sender	jeff.dasovich@enron.com
Recipients	['jennifer.rudolph@enron.com', 'susan.mara@enron.com', 'jbennett@gmssr.com']
File	dasovich-j/all_documents/13219.

Jennifer: To my knowledge, there's been no decision made to date on this issue of exit fees, either at the PUC or the legislature. But it's my understanding that the rate increases just imposed by the PUC will NOT apply to DA customers. What happens to customers who switch today, I'm not sure. Jeanne, any thoughts?

Joseph Alamo 05/30/2001 01:49 PM

To: Jeff Dasovich/NA/Enron, Susan J Mara/NA/Enron cc: Subject: Inquiry of Jennifer Rudolph

Sue/Jeff:

Please call Jennifer Rudolph of Houston ofc @ 713.345.8206 re: inquiry on Exit fees -- to begin retro to February? or will they start in July.....

Please advise soonest, needs a response today.

Thanks! Joseph

Message 876 of 1299

July 25 EC Meeting Minutes

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/notes_inbox/11623.

Energy Committee Members:

Please find the minutes from our July 25 Energy Committee meeting attached. Also attached is the draft SVMG-NRDC report prepared by Ralph Cavanagh to be released at the August 24 Energy Efficiency Conference. As discussed at the committee meeting, I am providing you the opportunity to review the draft report and provide comments and feedback prior to its release. Please direct your comments directly to Ralph Cavanagh [mailto:rcavanagh@nrdc.org]. If you have any concerns regarding the meeting minutes, please respond to this e-mail or call 408-501-7870. Thank you and have a good weekend.

Regards, Laura

- Energy Committee Meeting Minutes July 25.doc - NRDCSVMGREPORTTEXT.doc

Message 877 of 1299

Re: Western Wholesale Activities - Gas & Power Conf. Call

Sender	ray.alvarez@enron.com
Recipients	['susan.mara@enron.com', 'steve.walton@enron.com', 'bernadette.hawkins@enron.com', 'alan.comnes@enron.com']
File	dasovich-j/notes_inbox/11996.

PLEASE MARK YOUR CALENDAR Date: Every Thursday Time: 7:30 am Pacific, 9:30 am Central, and 10:30 am Eastern time Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

The table of the on-going FERC issues and proceedings will be updated for use on today's conference call, and distributed by Bernadette Hawkins. It is available to all team members on the O drive. Please feel free to revise/add to/ update this table as appropriate.

Proposed agenda:

Update- request for rehearing RTO orders issued by the Commission today Complaint of City of Asuza and Salt River re OOM allocation and overcollection of neutrality adjustment ISO compliance filing

Message 878 of 1299

RESCHEDULED Conference Call re Economists letter, now Friday, July

Sender	joan.stransky@enron.com
Recipients	['jeff.dasovich@enron.com', 'linda.noske@enron.com', 'ginger.dernehl@enron.com', 'rob.bradley@enron.com', 'ric...']
File	dasovich-j/notes_inbox/12214.

To refresh your memory, this conference call has been rescheduled to discuss the idea of funding a letter where economists support free market power pricing and call for an end to wholesale and retail price cap.s

Items to be discussed are: (1) the need for an economist letter, (2) what the final product will look like from the Independent Institute (David Theroux, founder and president), (3) the budget for the project,, and (4) funding and sponsorship diversity.

Rob Bradley is on vacation but will call in.

Call-in details:

Date: Friday, July 6 - 11:00-11:45AM CDT (Houston time) or 9:00-9:45AM California time

Dial-in number: 800 486 2460

Participant code: 765 320

Host code (Rick Shapiro) 274 244

*Message 879 of 1299***Herrings in Utah?**

Sender	mherring@myfamilyinc.com
Recipients	[mherring@myfamilyinc.com]
File	dasovich-j/inbox/1465.

You may have heard, it may be a surprise We're making a move, and we're hoping it's wise...

It was hard to decide to go or to stay But MyFamily.com has lured us away.

It is a pretty cool gig as far as dot-com's go The only catch is that it's based in Provo

No, not Provo Spain, as some might guess The Provo in Utah where they drink much less

The land of mountains and rivers and BYU And of course the Olympics of 2002!

So please come and see us whenever you can We'll have plenty of bedrooms and a whole lot of land!

We'll snowboard and ski, we'll hike and we'll bike See you in Utah! TJ, Theo, Lisa and Mike.

The Herring Family 409 North Country Manor Lane Alpine, Utah 84004 801-492-3727 ** After November 12, 2001 **

*Message 880 of 1299***Calpine Changes to AB 1X Amend**

Sender	kgough@calpine.com
Recipients	['sschleimer@calpine.com', 'alippin@mail.arco.com', 'jwright@smithandkempston.com', 'athomas@newenergy.com', 'j...]
File	dasovich-j/all_documents/8927.

Hi All,

Calpine appreciates the opportunity to comment on the proposed amendments to AB 1X. The proposed amendment would delete language now in section 80110 which provides: "The department shall have the same rights with respect to the payment by retail end use customers for power sold by the department as do providers of power to such customers."

That language is extremely useful for maintaining that the department may directly bill customers if, for example, the CPUC does not adopt a sufficient rate recovery mechanism. It is very important to use that we keep that language intact. I don't believe this should be a problem for any of you but please call me at (916) 443-2500 if it is. Thank you.

- subscription protocols..doc

*Message 881 of 1299***Legislative Status Report Attachments**

Sender	jmball@ns.net
Recipients	['wfhall2@duke-energy.com', 'steven@iepa.com', 'smutny@iepa.com', 'twetzel@thermoecotek.com', 'smara@enron.com...]
File	dasovich-j/all_documents/10846.

Date: 4/9/01 To: Jan Smutny-Jones, Steven Kelley, Katie Kaplan cc: IEP Board of Directors From: Julee Malinowski-Ball
RE: LEGISLATIVE TRACKING REPORTS

As promised, attached is the most recent legislative tracking reports for both the regular and special sessions missing from last week's legislative report. Please let me know if you need a copy of any of these bills.

Also, due to the legislative recess, and a little recess of my own, there will be no weekly report this Friday. Please call my office if you have any questions and Karen Baker will assist you.

--end--

Julee Malinowski-Ball Senior Associate Edson + Modisette 916-552-7070 FAX-552-7075 jmball@ns.net

- 2001 Tracking Report.doc - 2001 Tracking Report.special session.doc

Message 882 of 1299

New Democrat West Coast Retreat

Sender	chris.long@enron.com
Recipients	['carolyn.cooney@enron.com', 'jeff.dasovich@enron.com', 'linda.robertson@enron.com', 'stephen.burns@enron.com']...
File	dasovich-j/notes_inbox/12029.

<http://www.newdem.org/westcoastretreat/>

Jeff and Mona - Above is a link for the New Democrat Network (NDN) West Coast Retreat. We are Executive Council Member of the NDN. You can attend for all or portion of the retreat. There will local, state, and federal elected officials attending.

Jeff - The NDN has been helpful by trying to moderate the tone of the energy debate in DC and they did not include price caps in their energy plan (though some of the West Coast members support them). They will hold an energy panel and Speaker Hertzberg will attend

Mona- Note that the schedule is technology heavy and TechNet is a sponsor of the event.

Sorry for the late notice. Let me know if you are interested.

Thanks - Chris (202) 466-9158

Message 883 of 1299

Launch of EBS Government Affairs Website

Sender	margo.reyna@enron.com
Recipients	['steve.kean@enron.com', 'sue.nord@enron.com', 'scott.bolton@enron.com', 'richard.shapiro@enron.com', 'joseph....']
File	dasovich-j/all_documents/28226.

EBS Government Affairs Website Launched Today!

I am happy to announce that the EBS Government Affairs Website was launched today. The site contains a wealth of information pertaining to the issues and projects that Sue Nord and her team are currently working on.

The site is located in the "Communities" section of the EBS intranet page, called wEBSsource. You can access the website by using this link: <http://websource.enron.net/intranet/intranet.nsf/webpage/governmentaffairs>. You may want to bookmark the site so you can access it easily in the future.

Please visit the site when you have some time and feel free to send comments or questions to me.

Thanks very much.

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

Message 884 of 1299

CPUC I00-11-002 Testimony

Sender	jeffery.fawcett@enron.com
Recipients	['steven.harris@enron.com', 'mary.miller@enron.com', 'drew.fossum@enron.com', 'glen.hass@enron.com']
File	dasovich-j/all_documents/27810.

Glen, Sorry, but I inadvertently "accepted" the redline changes. Therefore, the version I'm sending you has my changes, but you'll have to do a document compare to note them.

Hope this is helpful.

Jeff

-----Original Message-----

From: Hass, Glen Sent: Tuesday, June 12, 2001 4:07 PM To: Harris, Steven; Miller, Mary Kay; Fossum, Drew; Watson, Kimberly; Fawcett, Jeffery; Pryor, Tony; 'mbaldwin@igservice.com' Subject: CPUC I00-11-002 Testimony

Attached for your review is the first draft of Testimony by Steve in the SoCal System Adequacy proceeding at the CPUC. Please review and provide your comments to either Tony or myself. Thanks. gh

<< File: CPUCTestimonyI00-11-002.doc >>

Glen Hass State Government Affairs (402) 398-7419 glen.hass@enron.com

Message 885 of 1299

Happy Hour This Friday

Sender	nraykhelson@hotmail.com
Recipients	['evmba_social@haas.berkeley.edu']
File	dasovich-j/deleted_items/790.

Hello Gang!

Last year, we had a successful tradition of hosting Friday night Happy Hours in the heart of Silicon Valley and my favorite place - the famous city of Palo Alto. So, to continue this EvMBA tradition, you, your significant others, and friends are invited to taste the best garlic fries in town and drink some specialty beers at Palo Alto's Gordon Biersch located at:

640 Emerson St. (near Hamilton) Palo Alto 94301 (650) 323-7723

The gathering will take place this Friday, October 26th, at 6:00 and continue through the night with a possibility of dinner and dancing afterwards.

See you all there,

Natalia Rachelson

Get your FREE download of MSN Explorer at <http://explorer.msn.com/intl.asp>

Message 886 of 1299

CA/Western States Summer Coordination Meeting

Sender	janel.guerrero@enron.com
Recipients	['susan.mara@enron.com', 'jeff.dasovich@enron.com', 'mark.palmer@enron.com', 'paul.kaufman@enron.com', 'richar...]
File	dasovich-j/all_documents/11600.

What: Meeting to review CA/Western States Business Plans/Coordination Effort Across Teams When: Friday, May 4th 8:00 am to noon (continental breakfast will be served) Where: Enron San Francisco Office 101 California Street, Suite #1950 415-782-7800

Paul and Sue: I am leaving it up to you to invite Former Governor Marc Racicot. Rick and I have discussed and agreed this upcoming meeting is an excellent opportunity for him to meet the rest of the team and get integrated into the larger "national campaign".

****Friday's meeting is not a time for us to "debate" the issues. A forthcoming agenda will outline the specifics, but overall I am expecting full commitment from everyone to a "strategic, coordinated, and organized effort for the next 6 months".

See you in SF.

Message 887 of 1299

CONFIDENTIAL - CA Customer Letter

Sender	james.steffes@enron.com
Recipients	['steven.kean@enron.com', 'Kevin Keeney/HOU/EES@EES', 'paul.kaufman@enron.com', 'richard.shapiro@enron.com']
File	dasovich-j/all_documents/28080.

Here is the note we sent to our CA customers this weekend to extend with Evergreen.

Jim

----- Forwarded by James D Steffes/NA/Enron on 06/24/2001

10:10 AM ----- From: Mike D Smith@EES on 06/22/2001 05:28 PM To: James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Mark Palmer/Corp/Enron@ENRON, Peggy Mahoney/HOU/EES@EES cc: Kevin Keeney/HOU/EES@EES

Subject: CA Customer Letter

We plan to send the attached to about 100 of our CA customers tomorrow, offering to extend the terms of their agreements at an indexed price. Please review asap and let me and Kevin know if you have any concerns. I can be reached over the weekend at 713 302 9089.

I have attached the letters for EES and EEMC customers, but they are identical. Thanks. MDS

Message 888 of 1299

Please review in preparation for tomorrow's EC meeting

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/notes_inbox/11701.

Energy Committee Members: Attached is the review and write-up for the Spartan I Energy Infrastructure Project (third attachment), which is on the agenda for tomorrow's Committee meeting. Also attached is a brief project description and list of attendees for the Spartan I Community Meeting that was held on July 9th. Jason DiNapoli, a proponent of this project, will join us tomorrow to present the Spartan I proposal and to answer your questions in that regard. Please be prepared for discussion and vote by reviewing the attached prior to tomorrow's meeting. Also, if you have not yet confirmed your participation, please do so by responding to this e-mail or calling 408-501-7870. Thank you.

Regards, Laura

- Status Memo 071801.pdf - Community Meeting July 9 2001.xls - Spartan I and Milpitas.doc

Message 889 of 1299

SCE MOU update

Sender	richard.costigan@asm.ca.gov
Recipients	[]
File	dasovich-j/notes_inbox/11665.

<<7-25-01.pdf>> Good afternoon:

Attached is today's energy paper. Please note that this morning there was new action on the SCE MOU. Currently there is a meeting that began at 2:00 pm, room 127 of the State Capitol to discuss proposed changes in the SCE MOU. It is my understanding that all interested parties were invited. Copies of the proposed bill were being distributed from the Speaker's office. There are some indications that there maybe, and again I stress maybe, session on Friday. That question may not be answered until later tonight or in the morning.

Also, the Governor will be signing the budget tomorrow.

Don't make summer plans just yet.

RSC

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

- 7-25-01.pdf

Message 890 of 1299

eProcurement Shopping Cart Approval Required

Sender	ibuyit@enron.com
Recipients	[]
File	dasovich-j/all_documents/28493.

You are receiving this message because an eProcurement purchase request requires your action. You are identified as an Approver based on the reporting structure of your organization and monetary approval limits. Please review, and approve or reject the items in your eProcurement Inbox by logging into eProcurement at <http://spr5wb02.enron.com/scripts/wgate/bbpstart/?%7Elanguage=en>

Tip: User ID & Password are your PID & Password (same as your eHRonline and Payables logon information). Your initial Password is Enron1 or your birth date YYYYMMDD.

Access quick reference cards and step-by-step documentation from

http://sap.enron.com/sap_doclib/user/file_list.asp?cabinet_id=205 Access online, interactive eProcurement courses from

<http://iscdcenter.enron.com> For help, call ISC Customer Care at 713-345-4727

Message 891 of 1299

Direct Access Package

Sender	jeff.dasovich@enron.com
Recipients	[jbradley@svmg.org]
File	dasovich-j/all_documents/10559.

Hi Jason:

Per my voice mail, here's the package of materials for customers to use to make sure key policy makers know that maintaining customer choice in California is critical. As I mentioned in the voice mail, the Legislature's likely to move this week on a variety of fronts, so it's important that the business community make its voice heard immediately and clearly. If you could forward this along to the SVMG members, it would be very helpful to the fight for customer choice and greatly appreciated. Information on how to contact the key legislators is included. Also included are "form" letters that folks can print out, sign, and send. If you have any questions, don't hesitate to give me a call at 415.782.7822.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 04/02/2001 06:48 PM -----

Message 892 of 1299

RE: Conference Call for DA Coming/Going Subcommittee

Sender	calretailers@calretailers.com
Recipients	['lga@mother.com', 'dhunter@s-k-w.com', 'cohnnap@sce.com', 'jdasovic@enron.com']
File	dasovich-j/notes_inbox/12518.

Bill is at the IWC Hearing in San Francisco today, so he will not be able to be on the call. If he finishes early and calls in I'll be sure to inform him of the call.

Shannon Hardy California Retailers Association

-----Original Message-----

From: Delaney Hunter [mailto:dhunter@s-k-w.com] Sent: Thursday, June 14, 2001 5:08 PM To: Ann Cohn (E-mail); Jeff Dasovich (E-mail); Lenny Goldberg (E-mail); Bill Booth (E-mail); Bill Dombrowski (E-mail); Evelyn Kahl (E-mail) Subject: Conference Call for DA Coming/Going Subcommittee

Folks- There will be a conference call for the DA Coming/Going Subcommittee tomorrow from 11:00 to 12:15.

The call in number is 1-888-727-8686 Conference ID 3489598 Ann -- will you please act as moderator? They will ask you for a pin -- enter 4954.

Please let me know if you need anything!

Delaney

Message 893 of 1299

Re: Meeting information

Sender	mflorio@turn.org
Recipients	['alippin@mail.arco.com', 'dhunter@s-k-w.com', 'cohnep@sce.com', 'athomas@newenergy.com']
File	dasovich-j/all_documents/12027.

Delaney-- It looks like I'll be stuck in SF. Hopefully Lenny will be able to catch at least some of the action. Be well, MIKE

At 04:16 PM 5/3/2001 -0700, Delaney Hunter wrote:

Folks- Just a reminder we are having a meeting tomorrow. See below for details -- Friday May 4, 2001 9:30 am - 2:00 pm California Manufacturers & Technology Association Conference Room 980 Ninth Street, 22nd Floor Conference Call in # : 1-800-457-0262 Code: 176030 I have attached an updated agenda. Big change -- Commissioner Carl Wood will be attending. Unfortunately, President Lynch was not available. I will also be sending out updated spreadsheets, info on S. 764 and other materials first thing tomorrow by fax. Please let me know if you have any questions or need more information. See you tomorrow. Thanks, Delaney

Message 894 of 1299

OOPS, here is the attachment to the PUC Draft Ruling on Rates

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/12302.

The PUC issued two draft decisions yesterday on PG&E and SCE rates. The drafts, along with appendices that have the proposed rates for the utilities, can be found at:

<http://www.cpuc.ca.gov/cyberdocs/Libraries/WEBPUB/Common/tcsearchresultsdsp.asp?pagenumber=1&FT=false&fromQSearch=yes&desc=Published+Comment+Decisions>

For those unwilling to read long regulatory documents, a three page summary of the RTP issues prepared by CEC staff is attached.

Comments on the PUC drafts are due today. Both drafts propose having a workshop on RTP on May 21. So we will be busy.

..... John Wilson 916.654.5056

"It's bad, and it'll get worse" -headline, SF Chronicle, 5/9/01

"It's even worse than it appears..." -Grateful Dead

- Review_PD&AD_RTP_051001.doc

Message 895 of 1299

Enron California Template

Sender	jermeier@earthlink.net
Recipients	['sue_nord@ees.enron.net', 'jdasovic@enron.com']
File	dasovich-j/eci/11.

Sue:

To follow up from yesterdays' call with us, we are going to revise the California ETI tariff(s) to parallel your national Enron template.? We are also looking at Pacific Bell's Tariff CAL. PUC No. 175T to determine their current Dedicated Transport service tarified rates, and will advise.

We have a PDF version of the Master Sales Agreement, and are incorporating some minor revisions - and maintaining the Contract as governing over the tariff.? I believe we also needed input from Enron Broadband Sales on the California customer Forms for filing with the updated tariffs.

If you could pass along the template so we can change the services, that would be greatly appreciated.? Please let us know any questions,

Jeremy Meier Blumenfeld & Cohen 4 Embarcadero Center, Suite 1170 San Francisco, CA 94111 415 394-7500 ? ?

Message 896 of 1299

You won't want to miss this one

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/12661.

DO NOT MISS THIS EXCELLENT OPPORTUNITY.....

In cooperation with the San Jose Silicon Valley Chamber of Commerce, the Silicon Valley Manufacturing Group is excited to invite you to participate in a discussion, "Closing California's Era of Limits". Senator McClintock will be the key note speaker and the discussion will focus on energy. This event is free of charge and will provide an opportunity to meet not only with our leadership but with many distinguished others in the energy field.

Great Conversation and Great Food: The breakfast will be held at Bella Mia located at 58 S. First Street on this Friday, May 18, at 8:00am. There will be plenty of parking in the rear, off Second Street, between Santa Clara and San Fernando streets.

If you would like to attend this great event, please contact Salina at 408-291-5282 or <mailto:s.lee@sjchamber.com>

Message 897 of 1299

Please see attached documents

Sender	jeff.dasovich@enron.com
Recipients	['paul.kaufman@enron.com', 'richard.shapiro@enron.com', 'skean@enron.com']
File	dasovich-j/sent/11744.

I'm assuming that we're not moving to fill the Sacramento position. If this is correct, let me know and I'll get back to Costigan (who's the Assembly Republican leader's (i.e., David Cox's) Chief of Staff.

Best, Jeff

----- Forwarded by Jeff Dasovich/NA/Enron on 06/19/2001 11:02 AM -----

"Costigan, Richard" <Richard.Costigan@asm.ca.gov> 06/19/2001 10:54 AM

To: "'skean@enron.com'" <skean@enron.com>, "'jeff.dasovich@enron.com'" <jeff.dasovich@enron.com> cc: Subject: Please see attached documents

<<Enron letter.doc>> <<COS resume.doc>>

Good morning

I understand that there may be an opening in California for in your Governmental Affairs unit. Please see attached documents.

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

- Enron letter.doc - COS resume.doc

Message 898 of 1299

Seeing the Light/ Powerful Ideas

Sender	kaplan@iepa.com
Recipients	['cabaker@duke-energy.com', 'andybrwn@earthlink.net', 'abb@eslawfirm.com', 'steven@iepa.com', 'smutny@iepa.com...]
File	dasovich-j/all_documents/10307.

Greetings: Here is the Revised Powerful Ideas that includes all the changes and is in the final art format. Please take a look at this and send any final comments to me ASAP but no later than COB on Friday March 23, 2001.

Please note that this is the FINAL copy you will have to review before we send it out to print- so please look it over carefully.

As always please give me a call with any questions. Thank you

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

-----Original Message-----

From: Keri Lanier [mailto:klanierart@mcnallytemple.com] Sent: Wednesday, March 21, 2001 5:38 PM To: kaplan@iepa.com Cc: jmunoz@mcnallytemple.com Subject: Seeing the Light

- 2 Table of Contents.pdf - 1 Cover.pdf - 3 tabs.pdf - 4 About IEP.pdf - 5 Powerful Ideas.pdf - 6 FAQs.pdf - 7 Glossary of Terms.pdf - 8 Chart appendix.pdf

Message 899 of 1299

new email address

Sender	csellers@gunder.com
Recipients	['acole@ccpm.edu', 'alexilex@aol.com', 'allison.wing@gazoontite.com']
File	dasovich-j/all_documents/166.

Hello!

As many of you already know, I have left Gunderson Dettmer to pursue other "non-legal" opportunities!! I am joining an internet start-up (how unique) as VP of Business Development. Although the site hasn't launched yet, the URL is iwanto.com. I'll tell you all about it later when things settle down a bit.

****MY EMAIL ADDRESS (csellers@gunder.com <mailto:csellers@gunder.com>) WILL NO LONGER BE ACTIVE STARTING NOVEMBER 8 (MONDAY)****

My email address for the next three weeks is camsell@pacbell.net <mailto:camsell@pacbell.net> , but I leave for Cuba tomorrow and will not be back until November 25th.

Starting on November 29th, my email address will be cameron@iwanto.com <mailto:cameron@iwanto.com>

Other work info...

lwanto.com, Inc. 1860 Embarcadero Road Palo Alto, CA 94303

Main number (don't know direct dial yet): (650) 858-1000

Hope you are all doing well,

Cameron

Message 900 of 1299

Re: E220 Case #1

Sender	jeff.dasovich@enron.com
Recipients	['jjackson@haas.berkeley.edu', 'kupiecki@haas.berkeley.edu', 'dwindham@uclink4.berkeley.edu']
File	dasovich-j/all_documents/1221.

would seem useful if we all contribute in some manner, but i'm open to suggestions. perhaps we could divvy up the questions.

Dylan Windham <dwindham@uclink4.berkeley.edu> on 09/07/2000 04:50:31 PM To: dasovich@haas.berkeley.edu, kupiecki@haas.berkeley.edu, jjackson@haas.berkeley.edu cc: Subject: E220 Case #1

Hello,

I have started to look at the case assignment for Monday. Since, I will be out of town the following week I will volunteer to write this one up. I don't know how he want to divvy up the work (by Questions or everyone does it all), but let me know. I have already made a spreadsheet with the combined cash flow statement that I will send to you tomorrow. Let me know how we want to handle this.

--Dylan

Ofc. Dylan H. Windham Threat Management/Domestic Violence Unit University of California Police - Berkeley Room 1 Sproul Hall Berkeley, CA 94720 (510) 642-1606

Message 901 of 1299

Draft of Dunn letter

Sender	jeff.dasovich@enron.com
Recipients	['mpalmer@enron.com']
File	dasovich-j/all_documents/28525.

----- Forwarded by Jeff Dasovich/NA/Enron on 07/10/2001 01:23 PM -----

MDay <MDay@GMSSR.com> 07/10/2001 12:32 PM

To: "Jeff Dasovich Enron SF" <jdasovic@enron.com>, "Rick Shapiro, Enron Houston" <rshapiro@enron.com>, "Sue Mara at Enron SF" <smara@enron.com>, "steve.kean@enron.com" <steve.kean@enron.com>, "steven.j.kean@enron.com" <steven.j.kean@enron.com> cc: Subject: Draft of Dunn letter

<<X26059.DOC>>

Here is a preliminary draft of the letter to Dunn. I have NOT been able to assimilate and insert the press materials I got from Jeff this morning. I will be back from a commissioner meeting at noon California time and can assist in further editing at that time. I do believe that some of the press material can be helpful. Please send comments back by email. I can be reached by cell phone for part of the time during the next 90 minutes. Mike Day

cell 415-279-0702

- X26059.DOC

Message 902 of 1299

Interruptible Programs Workshop Agenda

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/27823.

DATE:?? June 12, 2001

TO:????? E-Mail Service List in R.00-10-002

FROM:?? Moises Chavez

SUBJECT:? ????? Workshop Agenda

Pursuant to the Presiding Officer and Assigned Commissioner's Ruling (ACR) issued on June 7, 2001 in Rulemaking (R.) 00-10-002, Energy Division will hold a workshop on June 18, 2001.? As specified in the ACR, the purpose of the workshop is to explore limited modifications to the interruptible programs within the framework of the existing programs.? Attached is the Energy Division's proposed workshop agenda.

The workshop will be held from 10am to 5pm in the auditorium of the? New State Building located at 455 Golden Gate Avenue, San Francisco, California.? For more information you can contact me at (415) 703-1851, or by e-mail at mcv@cpuc.ca.gov?

<<6-18-01 Interruptible Programs Workshop Agenda.doc>>

?

Moises Chavez Regulatory Analyst Energy Division

- 6-18-01 Interruptible Programs Workshop Agenda.doc

Message 903 of 1299

Enviro Dispatch Language

Sender	jmball@ns.net
Recipients	['robbiz@cwo.com', 'rventurini@teamgsi.net', 'taschehoug@thermoecotek.com', 'wfhall2@duke-energy.com', 'smccab...']
File	dasovich-j/notes_inbox/12531.

Attached is the proposed language from Assembly Member Calderon's office regarding environmental dispatch (e/d). As you will recall, e/d language was removed from the final version of the siting bill, SB 28x, signed by the Governor so that there would be more time to work out a compromise. Since then, Asm. Calderon has been meeting with various stakeholders on this issue including IEP members and came up with the attached language. The language deviates from our initial discussions which centered around limiting e/d to out-of-market and RMR contracts. The language now targets the plants that will operate above and beyond their air permits per the Governor's recent executive order. Please review this language and get back to me with any issues. If there are more serious concerns with this, I will schedule a conference call to discuss further.

THANKS.

Julee Malinowski-Ball Senior Associate Edson + Modisette 916-552-7070 FAX-552-7075 jmball@ns.net

- sb28x.cleanup.ed language.doc

Message 904 of 1299

3 - URGENT - TO PREVENT LOSS OF INFORMATION - 8/1/01

Sender	outlook.team@enron.com
Recipients	['johan.zaayman@enron.com', 'lauren.hagerty@enron.com', 'mary.burke@enron.com']
File	dasovich-j/all_documents/29265.

Critical Migration Information:

1. Your scheduled Outlook Migration Date is THE EVENING OF : 2. You need to press the "Save My Data" button (only once) to send us your pre-migration information. 3. You must be connected to the network before you press the button. 4. If a POP-UP BOX appears, prompting you to "ABORT, CANCEL OR TRUST SIGNER" please select TRUST SIGNER. 5. Any information you Add to your Personal Address Book, Journal or calendar after you click on the button will need to be manually re-added into Outlook after you have been migrated. 6. Clicking this button does not complete your migration to Outlook. Your migration will be completed the evening of your migration date.

Failure to click on the button means you WILL NOT get your Calendar, Contacts, Journal and ToDo information imported into Outlook the day of your migration and could result in up to a 2 week delay to restore this information.

If you encounter any errors please contact the resolution center @ 713-853-1411

Message 905 of 1299

CSO: Real Estate Firm Nite Reminder!

Sender	owner-evmba_social@haas.berkeley.edu
Recipients	['mba01@haas.berkeley.edu', 'mba02@haas.berkeley.edu']
File	dasovich-j/all_documents/4401.

Reminder: The Real Estate Firm night is Monday, Dec 11, 6:30 - 9:00 p.m. in the Wells Fargo Room. This event will be attended by representatives from all aspects of the real estate industry including REITs, commercial banks, investment banks, developers, brokers, real estate operating companies, pension funds, insurance companies, and e-commerce firms.

Over 30 firms and 60 reps (including CFOs and other VIPS) have signed up. Firms include: Merrill Lynch, Morgan Stanley, Goldman Sachs, Trammell Crow, Spieker Properties, Greenbriar Homes, and many more!

For more info, including a list of those signed up to attend, please go to:
<http://groups.haas.berkeley.edu/realestate/firmnight.asp>

Note: YOU MUST RSVP TO THIS EVENT. To RSVP, email: figueiri@haas.berkeley.edu

There are plenty of opportunities for fulltime and summer work so see you there!

Melanie Dixon Account Manager, MBA Recruiting Haas School of Business 545 Student Services Bldg #1900 Berkeley, CA? 94720-1900 ph (510) 642- 7930/ fax (510) 643 5257 dixon@haas.berkeley.edu

Message 906 of 1299

California Update--09.20.01--Noon PDT

Sender	jeff.dasovich@enron.com
Recipients	['vicki.sharp@enron.com', 'j..kean@enron.com', 'tim.belden@enron.com']
File	dasovich-j/sent_items/174.

Getting alot of inquiries.

The PUC has not yet voted on suspension of DA or related matters. Likely to get to those items on the agenda within the next 30-60 minutes. Looks as if the decision will 1) suspend DA beginning Sept. 20th and 2) include contract renewal in the suspension. In addition, it appears that the proposal would give the Commission some latitude to enact retroactivity back to July 1 if deemed necessary (this is unclear and we're trying to get more details on this provision). Three key senators have sent a letter to the PUC asking the PUC to provide recommendations to the Legislature on the conditions under which DA should be re-instated (since the letter is dated September 18th--though sent only yesterday--it appears that the Senate had an idea that the PUC was going to suspend).

KEEP IN MIND THAT THE DECISION HAS NOT BEEN VOTED ON YET AND THE PROVISIONS LISTED ABOVE MAY CHANGE.

We'll report back as soon as something happens.

For folks who want to listen in, the number is:

415.228.4550 code = 92105

Best, Jeff

Message 907 of 1299

DIRECT ACCESS UPDATE

Sender	douglass@energyattorney.com
Recipients	['curtis_l_kebler@reliantenergy.com', 'barbara.klemstine@pinnaclewest.com']
File	dasovich-j/notes_inbox/2637.

I have just heard?from a member of AREM?that Linda Serizawa, Commissioner Wood's advisor, has stated that Commissioner Wood is at this moment drafting the decision on direct access.? She indicated that a draft order would be released, but would not say when.? She stated that ABX1-1 directed the CPUC to set a date at which time a customer would no longer have the right to switch to an ESP, and indicated that this order, as it is currently drafted, establishes that date.? Apparently there was great hesitancy when making the statement "as it is presently drafted," indicating that Wood is getting a lot of pressure not to set the date.?

It seems that now is the time for WPTF, and its member companies, to exert as much influence as possible on Bilas, Duque and Brown to ask that the order be held until such time as the Legislature first has the opportunity to correct ABX1-1.? ? ? Dan Douglass 5959 Topanga Canyon Blvd.? Suite 244 Woodland Hills, CA 91367 (818) 596-2201
douglass@energyattorney.com

?

- Blank Bkgrd.gif

Message 908 of 1299

Final SJ City Council Hearing of the Metcalf Energy Center

Sender	cguardino@svmg.org
Recipients	[cguardino@svmg.org]
File	dasovich-j/all_documents/28120.

Good Afternoon,

On Tuesday, June 26 the San Jose City Council will be hearing the Metcalf Energy Center item for the final time. As you are aware, the SVMG has endorsed the need for this energy project from the beginning stages. However encouraged we have been, the Metcalf Energy Center continues to witness objection from some groups. It is important that the SVMG be present at this hearing to provide as much support as possible!

We need at least 10 member company representatives to attend the evening session of the SJ City Council Meeting tomorrow at 7:00pm to speak on behalf of this very needed energy project. This will provide an opportunity to see your work pay off. Thanks to those who have already committed to representing the SVMG at tomorrow's hearing (Terry Thomas, Lockheed Martin and Don McIntosh, AMD), but we need a handful more to sign on.

Please help to endorse the Metcalf Energy Center! For more information or to sign on to participate e-mail lgoldseth@svmg.org or call 408-501-7870.

Sincerely, Carl

- winmail.dat

Message 909 of 1299

Angelides Investor Memo - Timetable Update

Sender	jeff.dasovich@enron.com
Recipients	['mkahl@ka-pow.com', 'ann.cohn@sce.com', 'jdasovic@enron.com', 'kmccrea@sablaw.com']
File	dasovich-j/sent/11837.

FYI. My understanding is that the decisions would actually go out prior to Aug. , with "effective date" in Aug., , thus providing time for the appeals process. Do others have a similar or different view? Do we intend to stay in touch, in view of the fact that there's been some "breathing room" provided by the PUC delaying its DA vote, and given the heavy lifting that is still needed to get the core/noncore agreement teed-up and through?

Happy 4th to all.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 07/03/2001 12:41 PM -----

-----Original Message-----

From: Philip Angelides, Calif State Treasurer [mailto:philip_angelides@treasurer.ca.gov] Sent: Tuesday, July 03, 2001 7:38 AM To: FITZPATRICK, Charles Subject: Investor Memo - Timetable Update

Please note the update regarding the State of California DWR Power Bonds provided in the attached memo.

<<Investor Memo -- Timetable Update 7-2-01.pdf>>

If you have any questions, please contact Charles Fitzpatrick at (800) 900-3873.

- Investor Memo -- Timetable Update 7-2-01.pdf

Message 910 of 1299

Re: California Updates

Sender	jeff.dasovich@enron.com
Recipients	['kristin.walsh@enron.com']
File	dasovich-j/all_documents/28360.

I apologize. I thought I'd put you on my "big" distribution list. When and if I do any updates to smaller groups. I'll put you on those, too. Look forward to meeting and discussing next time I'm in Houston.

Best, Jeff

Kristin Walsh/ENRON@enronXgate 07/06/2001 12:12 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: California Updates

Jeff, Hope everything in California is going well and hope you had a good 4th of July. Earlier today, I was meeting with some people from EES/ENA and they mentioned that you send out regular updates on California. I would be very interested in being added to the distribution list. This would help us see if there are any discrepancies in what we independent report and give us insight on which issues need to be explored further. If you are ever in Houston, I would love to meet with you and discuss some of our common interests as it relates to commercial operations. Please let me know if you have any questions or are unable to add me to the distribution list.

Thanks, Kristin Walsh (713) 853-9510

Message 911 of 1299

Protest Procedures for U.S. Enron Facilities to ALL SENIOR

Sender	cristina.zavala@enron.com
Recipients	['gray.calvert@enron.com', 'victor.browner@enron.com', 'vicky.ha@enron.com']
File	dasovich-j/notes_inbox/11957.

FYI

Protest procedures!

----- Forwarded by Cristina Zavala/SF/ECT on 07/12/2001 05:28 PM -----

David Parquet 07/05/2001 03:48 PM

To: April Hrach/SF/ECT@ECT, Cristina Zavala/SF/ECT@ECT, Michael McDonald/SF/ECT@ECT cc: Subject: Protest Procedures for U.S. Enron Facilities to ALL SENIOR MANAGEMENT

----- Forwarded by David Parquet/SF/ECT on 07/05/2001 03:47 PM -----

Mark Palmer- (Public Relations)@ENRON Sent by: Enron Announcements@ENRON 06/14/2001 09:40 PM

To: CORP Officers cc: Subject: Protest Procedures for U.S. Enron Facilities to ALL SENIOR MANAGEMENT

In the past few months, there have been protests at various Enron offices. These protests have been primarily by consumer and other advocacy groups representing different energy interests. Attached are security and public relations procedures to help you manage a protest should one arise at your facility. Feel free to provide this document to leaders in your organization as appropriate.

Thank You.

Mark Palmer Vice President, Corporate Communications 713 853-4738

Message 912 of 1299

MPAR - Executive Briefing Materials	
Sender	francois.thrower@smginc.com
Recipients	['dimeff@haas.berkeley.edu', 'mstjohn@haas.berkeley.edu', 'arif.joshi@smginc.com']
File	dasovich-j/all_documents/8202.

Executive Team:

By now I trust you have had a chance to review the following briefing materials:

Olympus Quick Tour CD-ROM Navigation Exercise Section I of the Olympus simulation manual Harvard Business Review articles:

1. "Introduction to Financial Ratios and Financial Statement Analysis"
2. "Assessing a Company's Future Financial Health"
3. "What is Strategy"
4. "Customer Intimacy and Other Value Disciplines"

During our pre-session meeting next week, we will be exploring in greater detail the Olympus simulation environment. As you are aware from the agenda, we will be immersed in the simulation over the weekend.

The following link is to an additional article from McKinsey Quarterly which I think captures well the strategic and financial issues you'll face in the Olympus simulation.

<http://mckinseyquarterly.com/pdf/whis00.pdf?tk=:932>: (you will need Adobe Acrobat to view this article)

I look forward to meeting you next week.

Francois Thrower

Vice President Strategic Management Group, Inc. 900 Kearny Street, Suite 750 San Francisco, CA 94109 415.956.7223

Message 913 of 1299

nan	
Sender	bernadette.hawkins@enron.com
Recipients	['susan.mara@enron.com', 'alan.comnes@enron.com', 'steve.walton@enron.com']
File	dasovich-j/notes_inbox/12438.

----- Forwarded by Bernadette Hawkins/Corp/Enron on 06/20/2001 03:34 PM -----

Ray Alvarez 06/20/2001 03:15 PM

To: Bernadette Hawkins/Corp/Enron@ENRON cc: Subject:

PLEASE MARK YOUR CALENDAR- NEW TIME Date: Every Thursday Time: 7:30 pm Pacific, 9:30 pm Central, and 10:30 pm Eastern time, Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

The table of the on-going FERC issues and proceedings will be updated for use on tomorrow morning's conference call, and distributed by Bernadette Hawkins. It is available to all team members on the O drive. Please feel free to revise/add to/ update this table as appropriate.

Proposed agenda for 6/21 teleconference:

Draft message points to FERC staff June 19 Order on Rehearing of the April 26 Order Motion to strike SCE's supplemental request for rehearing Morgan Stanley / Dean Witter "ATC complaint" CA Energy Oversight Board motion to waive underscheduling penalty

Please feel free to communicate to the group any additional agenda items you may have.

Ray

Message 914 of 1299

Re: Please Respond

Sender	jeff.dasovich@enron.com
Recipients	[ginger.dernehl@enron.com]
File	dasovich-j/all_documents/13398.

I'll need clubs, and I'm right handed. Thanks so much.

Best, Jeff

Ginger Dernehl 06/06/2001 09:49 AM

To: Rob Bradley/Corp/Enron@ENRON, Tom Briggs/NA/Enron@Enron, Tom Chapman/HOU/ECT@ECT, Jeff Dasovich/NA/Enron@Enron, John Hardy/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Robert Hemstock/CAL/ECT@ECT, Patrick Keene/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Donald Lassere/NA/Enron@Enron, Dave Mangskau/Corp/Enron@ENRON, Steve Montovano/NA/Enron@Enron, Mona L Petrochko/NA/Enron@Enron, Frank Rishe/NA/Enron@Enron, Mike Roan/ENRON@enronXgate, Linda Robertson/NA/Enron@ENRON, Richard Shapiro/NA/Enron@Enron, Pat Shortridge/Corp/Enron@Enron, Dan Staines/HOU/ECT@ECT, Kerry Stroup/NA/Enron@Enron, Fino Tiberi/CAL/ECT@ECT, Thane Twiggs/Enron@EnronXGate cc: Subject: Please Respond

Howdy Golfers,

I need some information before you all play your "par" game of golf next week.

1) Will you be bringing your own golf clubs? 2) If I need to reserve clubs for you, please let me know if you are right or left handed.

Thanks!!!!!!

gngr 713-853-7751

Message 915 of 1299

WPTF Board Meeting January 8

Sender	foothillservices@mindspring.com
Recipients	[cabaker@duke-energy.com', 'vitaly.lee@aes.com', 'robert_anderson@apses.com', 'billr@calpine.com']
File	dasovich-j/inbox/1108.

Board package will go out to you Monday evening, January 7. Call in number can be found below. Driving instructions to Mirant from Oakland Airport forthcoming. Feed me additional agenda items.

HNY gba

AGENDA WPTF Board Meeting Tuesday, January 8, 2002 Walnut Creek, CA

9:30 a.m. (PST) Call to Order

? Additional Agenda Items ? Approval of November Minutes (pgs 3 - 4) ? WPTF Involvement in Enron OII - Dan (pg 5) ? Other PUC Matters - Dan ? Letter to FERC Supporting PG&E POR - Gary (pg 6) ? ISO Market Redesign 2002 - Gary (pgs 7 - LUNCH ? ? PR and Media - Gary (pg 18 and 18A) ? WPTF General Meeting and Riordan Dinner Sponsors - Gary ? Financial Report

1:30 p.m. (PST) Adjourn

Next Meeting Tuesday, February 12, 2002 El Paso Merchant Denver, CO

AUDIO ACCESS INFORMATION:

PRODUCT TYPE: UNATTENDED CALL TYPE: MEET ME

OF LINES: Total=4 Dialout=0 Meet Me=0 Meet Me Toll=4 Entry Method: Tone In CALL DATE: JAN-08-2002 (Tuesday)
CALL TIME: 09:30 AM PACIFIC TIME DURATION: 4 hr USA Toll Number: +1-712-271-0887

PASSCODE: 32463

Message 916 of 1299

Today's IEP FERC Filing

Sender	abb@eslawfirm.com
Recipients	['billw@calpine.com', 'steven@iepa.com', 'smutny@iepa.com', 'rescalante@riobravo-gm.com', 'kaplan@iepa.com', '...]
File	dasovich-j/all_documents/3834.

The IEP comments are attached in PDF and MS Word formats.? These were filed today at FERC.? I've fired this email out to the list used to circulate?the earlier draft as well as the list used to distribute? the Board agenda.? ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA? 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 mailto:abb@eslawfirm.com

CONFIDENTIALITY NOTICE:? This communication and any accompanying document(s) are confidential and privileged.? They are intended for the sole use of the addressee.? If you receive this transmission in error, you are advised that any disclosure, copying, distribution, or the taking of any action in reliance upon the communication is strictly prohibited.? Moreover, any such inadvertent disclosure shall not compromise or waive the attorney-client privilege as to this communication or otherwise.? If you have received this communication in error, please contact the sender at the internet address indicated or by telephone at (916)447-2166. Thank you.

- IEP_Cmts_EL00-95_001122.doc - IEP_Cmts_EL00-95_001122.PDF

Message 917 of 1299

California gas intrastate matters - July 11 conference call

Sender	rubena.buerger@enron.com
Recipients	['donna.fulton@enron.com', 'rebecca.cantrell@enron.com', 'leslie.lawner@enron.com', 'james.steffes@enron.com']
File	dasovich-j/notes_inbox/12148.

Here is the information for the conference call.

Wednesday, July 11 1:00 to 2:00 p.m. Central Time

dial-in number: 800-486-2460 participant code: 675-923 host code (Lawner): 263-406

Leslie, if you need assistance during the call, please press "# 0".

From: Leslie Lawner@ENRON on 07/06/2001 09:32 AM To: James D Steffes/NA/Enron@Enron, Rebecca W Cantrell/HOU/ECT@ECT, Donna Fulton/Corp/Enron@ENRON, Stephanie Miller/Enron@EnronXGate, Jeff Dasovich/NA/Enron@Enron, Roger O Ponce/HOU/EES@EES, Mark Courtney/HOU/EES@EES, Greg Sharp/HOU/EES@EES, Marianne Castano/HOU/EES@EES, Donald M Black/Enron@EnronXGate, Phillip K

Allen/Enron@EnronXGate cc: Harry Kingerski/NA/Enron@Enron, Paul Kaufman/Enron@EnronXGate, Rubena Buerger/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT

Subject: California gas intrastate matters

There will be a conference call Wed. at 1:00 pm Central, July 11, to discuss California intrastate gas issues. Rubena Buerger will send out the call in information.

Items to be addressed are: LDC hedging, unbundling rates and infrastructure needs. Jeff Dasovich will give us a status report on these issues and we then discuss where to go from there.

Message 918 of 1299

Enron California Template

Sender	jeff.dasovich@enron.com
Recipients	['sue.nord@enron.com']
File	dasovich-j/all_documents/2298.

Could be me, but that doesn't look like your email address. You get this email from Jeremy (good guy who works with Steve)? ----- Forwarded by Jeff Dasovich/NA/Enron on 10/11/2000 05:01 PM -----

Jeremy Meier <jermeier@earthlink.net> 10/11/2000 03:54 PM

To: Sue_Nord@EES.enron.net cc: jdasovic@enron.com Subject: Enron California Template

Sue:

To follow up from yesterdays' call with us, we are going to revise the California ETI tariff(s) to parallel your national Enron template. We are also looking at Pacific Bell's Tariff CAL. PUC No. 175T to determine their current Dedicated Transport service tariffed rates, and will advise. We have a PDF version of the Master Sales Agreement, and are incorporating some minor revisions - and maintaining the Contract as governing over the tariff. I believe we also needed input from Enron Broadband Sales on the California customer Forms for filing with the updated tariffs. If you could pass along the template so we can change the services, that would be greatly appreciated. Please let us know any questions, Jeremy Meier Blumenfeld & Cohen 4 Embarcadero Center, Suite 1170 San Francisco, CA 94111 415 394-7500

Message 919 of 1299

nan

Sender	jeff.dasovich@enron.com
Recipients	['schub@socrates.berkeley.edu', 'joseph.alamo@enron.com']
File	dasovich-j/all_documents/12285.

Marybeth:

I apologize. As I mentioned, this situation is extremely fluid. I also mentioned this morning that in yesterday's meeting w/the Governor, it was agreed that the meetings would continue, every day, until the thing got resolved. I was just informed that I've been elected by my management to be on today's call (Steve Kean and I will be our representatives). It starts at 1PM. We are scheduled to talk at 2:30 PM. I'm hoping--but not altogether hopeful---that the call will end before 2:30.

I can't apologize enough for the scheduling problems, particularly since I'm the one who originated the request to chat with Laura.

We can do it one of several ways; it's completely your call: 1) play it by ear, and I can let you know around 2:15 if I think the call's going to wrap up by 2:30. 2) we can reschedule (I would of course very much like to brief Laura on what's going on). 3) you can decide it's too much trouble and throw up your hands, which I would understand.

Let me know how you 'd like to proceed and please give my sincere apologies (and best) to Laura. I have to get on the call right now, so if you need to speak to a live person, give Joseph a call at 415.782.7841.

Best, Jeff

Message 920 of 1299

Next Week's Energy Committee Meeting

Sender	lgoldseth@svmg.org
Recipients	['lgoldseth@svmg.org']
File	dasovich-j/all_documents/13026.

Energy Committee Members: As many of you kindly brought to my attention last week, Monday, May 28 is a recognized holiday. Therefore, the energy committee meeting scheduled for that day has been postponed. Unfortunately, the Motorola site on Kifer Road is not available next week.

Thanks to Mike Brown and the kindness and flexibility of Motorola, the energy committee has been offered a meeting room at Motorola's San Jose site located at 3041 Orchard Parkway for Wednesday, May 30 at 3:00pm. Due to a very limited space capacity (20-25 people only), we need to know by close of business Friday, May 25 how many people expect to participate on Wednesday's meeting.

However, we do hope to accommodate all committee members who plan to participate in this meeting and do not want to exclude any member because of limited capacity. If your organization has a meeting room that can accommodate our group (40-50 people) on May 30 from 1-5pm (to accommodate the Business Continuity Subcommittee as well) please let me know ASAP. I would like to give Mike confirmation by this Friday if we will be using the Motorola facility.

Please RSVP before close of business on Friday by responding to this e-mail or calling 408-501-7870.

Message 921 of 1299

RE: CA Instrate Gas matters

Sender	susan.landwehr@enron.com
Recipients	['leslie.lawner@enron.com', 'jeff.dasovich@enron.com']
File	dasovich-j/notes_inbox/11907.

Jeff/Leslie/Barry---attached is a guideline that we developed on what our "global" message on price risk management would be as we talk to PUCs across the country and was intended to address the issue in both power and gas markets. It's a good starting point and should obviously then be tailored to each state's situation.

I am happy to jump on a call to discuss. I will be in Michigan on Monday, but could be available between 9:30 and 12:00 eastern. (6:30-9:00 pacific--sorry Jeff!!). If you could leave me a voice mail about what time to talk and whose number to call that would be great. #612-339-4599

If we decide to talk later in the week, I am not open on Tuesday until about 3:30pm central but Wednesday I'm pretty much available all day.

Jeff Dasovich Sent by: Jeff Dasovich 07/13/2001 05:21 PM

To: Leslie Lawner/ENRON@enronXgate cc: Barry Tycholiz/ENRON@enronXgate, Susan M Landwehr/NA/Enron@ENRON Subject: RE: CA Instrate Gas matters

I can make time. Let's try to let Leslie vacation. Also, I'm having a memo prepared that should be ready first thing Monday AM on the CA Commission's policies regarding utility use of hedging instruments. Just let me know when you'd like to talk.

Best, Jeff

Message 922 of 1299

ADV: Power & Water Conference

Sender	postmaster@lawseminars.com
Recipients	['jdasovic@enron.com']
File	dasovich-j/all_documents/28657.

Note: If you do not want to receive notice of any upcoming programs, please reply to this email with "remove" in the subject line. You also can limit notices to specific topics by replying and specifying the topics. Thank you.

Dear Mr. Dasovich,

Power & Water conference: Water is a critical path for every energy project and this year it has become more important than ever. A new administration adds yet another complicating factor to the Pacific Northwest's water and energy uncertainties. This program's distinguished faculty, including Judith Johansen (now CEO of PacifiCorp) and former Senator Slade Gordon, will provide insights that will help anyone dealing with water and energy supply issues to move more surely through these troubled times.

When/Where: August 16 & 17 at the Renaissance Madison Hotel in Seattle.

Program Co-chairs: Randall J. Hardy of Hardy Energy Consulting and Elizabeth Thomas of Preston Gates & Ellis LLP.

Information or registration: reply to this announcement; call us at (800) 854-8009; or visit our web site: <http://www.lawseminars.com/htmls/seminars/01powa>.

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Message 923 of 1299

eProcurement is Here!

Sender	enron.announcements@enron.com
Recipients	['eprocurement.list@enron.com', 'erin.abdelnour@enron.com', 'shelley.robbs@enron.com']
File	dasovich-j/notes_inbox/12241.

eProcurement

I am pleased to announce the launch of iBuyit eProcurement within Enron=20 Corporate. Many of you are already using eProcurement. Effective today, =20 employees throughout Corporate will begin to use eProcurement to purchase I= T=20 hardware and office supplies. =20

This is a significant milestone in the Enron-wide cost saving effort. This= =20 new tool enables us to watch our expenses and take advantage of preferred= =20 suppliers. The use of eProcurement ensures that all of us are spending our= =20 company dollars wisely. =20

This is only the beginning, and eProcurement has the potential for unlimite= d=20 growth. Be sure to provide the iBuyit team with feedback to ensure that=20 eProcurement is a valuable and integral tool to your purchase activities.

I encourage you to visit the iBuyit Portal today to logon to eProcurement, = to=20 access training information and materials, and to learn more about Enron=01= ,s=20 business-wide cost savings opportunities: <http://ibuyit.enron.com>

Note: To logon enter your User ID (P number) and Password (initial passwor= d=20 is ENRON1).

Need Help? Call ISC Customer Care at 713 345 4727.

Questions? For general information about iBuyit, send an e-mail to <mailto:ibuyit@enron.com>. =20

Message 924 of 1299

Re: Follow Up On California Information

Sender	jeff.dasovich@enron.com
Recipients	[john.shelk@enron.com]
File	dasovich-j/sent/11800.

Let's discuss a bit. When you get a chance, please page me at 888.916.7184.

Best, Jeff

John Shelk 06/26/2001 01:22 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Re: Follow Up On California Information

Alan and I spoke about point #2 on the comparison benchmark. At this point, we may be able to just say it is based on a comparison of the contracts with today's forward market and gloss over the exact forward curve we used. Of course if there is a way to come up with a similar number using publicly available data (or if we are willing to provide our numbers if pressed) then all the better. In the mean time, should I hold off on using the \$13.8 billion number until I hear back from you about the conversation with Steve?

Also, do I understand correctly from Alan that the \$13.8 billion figure is NOT comparing the long term contracts California signed with recent spot market prices, but rather is a comparison of the contracts to our present forward pricing curves? From you e-mail, it is the latter, I take it.

As to point #1, on the deal last year, we just need a similar "back of the envelope" calculation on what California could have saved had California taken us up on the offers we and others made. Any guidance on where to get that would be most helpful.

Message 925 of 1299

Reply Brief in Support of Comprehensive Settlement

Sender	jblackwell@luce.com
Recipients	[bdingwall@unitedgas.com', 'anchau@shellus.com', 'jleslie@luce.com']
File	dasovich-j/natural_gas_strategy/6.

To The Core Aggregator Group:

I have enclosed my near-to-final draft of the core aggregators' reply brief in the CPUC's gas industry restructuring case (I.99-07-003). As you know, the reply brief is due to be filed today. Please provide me with your comments on the draft no later than noon today. Thank you for your attention to this matter.

-John

<<#1539913 v1 - CORE-BRIEF - Reply Brief in Support of Comprehensive Settlement.doc>> S

CONFIDENTIAL

Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414

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- #1539913 v1 - CORE-BRIEF - Reply Brief in Support of Comprehensive Settlement.doc

Message 926 of 1299

Re: Admission Round 2

Sender	jeff.dasovich@enron.com
Recipients	['josepht@hallequitiesgroup.com']
File	dasovich-j/all_documents/13394.

i'm very willing, but if it has to be done this week, it ain't going to happen----traveling, hair on fire, etc. let me know. hey, did you change jobs? if so, congratulations. nice title.

best, Jeff

Joseph Tambornino <josephtambornino@yahoo.com> 06/04/2001 06:52 PM Please respond to josepht

To: Sujan Punyamur <punyamur@haas.berkeley.edu>, Ken Bruce <kbruce@rfspectrum.com>, Deepika <dshah@haas.berkeley.edu>, Eric <eric.jordan@keynote.com>, Jeff <dasovich@haas.berkeley.edu>, "Lesley Keffer" <lesley@stsupery.com> cc: dimeff@haas.berkeley.edu Subject: Admission Round 2

Hello Comrades:

Round two of the admission process is onto the acceptance stage and Diane has called upon us again to rally round the phones and corral these new admits. We have about 85, so with 7 of us, that translates to about 12 contacts apiece.

Please confirm your willingness and availability so I can send out the lists ASAP. TJ tells me that they want these calls made this week.

Thanks, again (and you thought you were enjoying your summer--except for the Enron manager, of course) ;-]

JT

Joseph Tambornino Vice President Hall Equities Group (925) 933-4000

Do You Yahoo!? Get personalized email addresses from Yahoo! Mail - only \$35 a year! <http://personal.mail.yahoo.com/>

Message 927 of 1299

FW: ACR Inviting Comment On DWR/CPUC Proposed Rate Agreement

Sender	jeff.dasovich@enron.com
Recipients	['vjw@cleanpower.org']
File	dasovich-j/all_documents/28907.

John:

I could be wrong about what I think Loretta's doing so make sure that somebody verifies before you pass on what I've said. Could be totally wrong; but hope I'm right.

Best, Jeff -----Original Message----- From: Wong, John S. [mailto:jsw@cpuc.ca.gov] Sent: Wednesday, July 18, 2001 10:11 AM Subject: ACR Inviting Comment On DWR/CPUC Proposed Rate Agreement

Attached is an assigned Commissioner ruling (ACR) inviting comment on the proposed rate agreement between the California Dept. of Water Resources and the California Public Utilities Commission. Interested parties may file comments with the Docket Office on or before August 1, 2001.

Please note that there are three attachments to the ACR. Attachment A, the proposed rate agreement, is being forwarded to you as a separate PDF document. Attachment B, the relevant Water Code sections, is contained in the body of the attached Word document. Attachment C is the two page letter from the DWR, the Dept. of Finance, and the Treasurer's Office to President Lynch dated July 2, 2001. Attachment C was previously distributed to the A.00-11-038 et al service list in the Chief ALJ's ruling dated July 5, 2001. Today's ACR and all three of the attachments can also be accessed at the CPUC's web site.

<<A0011038 Lynch Ruling.doc>>

John S. Wong CPUC - ALJ (415) 703-3130

- A0011038 Lynch Ruling.doc

Message 928 of 1299

Re: Meeting Friday AM 11 May

Sender	joseph.alamo@enron.com
Recipients	['jeff.dasovich@enron.com']
File	dasovich-j/all_documents/12017.

FYI, sir! ----- Forwarded by Joseph Alamo/NA/Enron on 05/03/2001 03:27 PM -----

Kurt Lindahl@ENRON_DEVELOPMENT 05/03/2001 03:23 PM To: Joseph Alamo/NA/Enron@ENRON cc:

Subject: Re: Meeting Friday AM 11 May

Thanks Joseph. Hopefully Jeff will break free. I'll definitely be in to see Sandi at 10:00am, but will call the day before to confirm her (and Jeff's) availability. My mobile number is 713 515 2759 in case you need to reach me earlier next week.

Regards,

Kurt Lindahl

Joseph Alamo @ ENRON 05/04/2001 03:20 AM

To: Kurt Lindahl/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc:

Subject: Re: Meeting Friday AM 11 May

Kurt,

Yes and no -- sorry, no response from Dasovich to date (he's been traveling all week); however, Sandi indicated she **should** be available that date (5/11) at 10 am.

I will keep you apprised, Thanks, Joseph

Kurt Lindahl@ENRON_DEVELOPMENT 05/03/2001 01:38 PM To: Joseph Alamo@ENRON cc: Jeff Dasovich@EES, Sandra McCubbin@EES

Subject: Meeting Friday AM 11 May

Joseph,

Have you been able to confirm a meeting for me on Friday AM, 11 May in your offices in San Francisco with Jeff Dasovich and Sandi McCubbin. I would like to discuss with them our west coast LNG concepts and get their input regarding regulatory and legislative issues that we should consider.

Thanks,

Kurt Lindahl

Message 929 of 1299

Dave Cox letter in the LA Daily News

Sender	richard.costigan@asm.ca.gov
Recipients	[]
File	dasovich-j/all_documents/13251.

Davis' energy fix

Gov. Gray Davis' recent plea for a quick presidential energy fix in the form of price caps is an ominous sign that he has given up on his own solutions. Apparently Gov. Davis has completely run out of ideas on how to fix the energy crisis he ignored for two years until it was too late, and his begging for price caps comes in the face of bipartisan opposition to such a short-sighted solution.

The fact is that last December, Davis' energy advisers at the ISO asked the FERC to remove price caps because they were constricting supply and threatening blackouts. Even President Clinton's FERC chairperson opposed price caps because they can lead to blackouts.

If the governor's only solution is to blame Washington for his own problems, then he ought to consider forfeiting his paycheck because he will have completely abdicated his responsibility to provide Californians with solutions. Here are some unsolicited suggestions: Let's make California an energy-independent state by 2004. Let's invest in our own home-grown energy sources and use energy more efficiently. Let's ensure we have healthy utilities and that our state isn't burdened for decades by high energy costs.

Assemblyman Dave Cox California Assembly Republican Leader

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

Message 930 of 1299

Re: Spring Break Pow Wow

Sender	courtney_abernathy@yahoo.com
Recipients	['chrisjneale@hotmail.com', 'jacqueline.kelly@schwab.com']
File	dasovich-j/all_documents/10220.

How about...I'll be in London? Seriously! It never fails! Must be karma-something! No spring break and no b-day celebrations for me...just hoof and mouth disease. I'll miss you all...who's birthday's are next? I'll just have to save my celebrations up, I guess. Always something, Courtney

--- "Kelly, Jacqueline" <Jacqueline.Kelly@schwab.com> wrote:

Since I forgot to send something out sooner for dinner this Thursday, and after 5 semesters at Haas we finally get a Spring Break, lets get together and catch up next Wednesday. I was thinking dinner in the city (baby's and s/o's invited) and no excuses, Courtney! :) I could have it in the Mission or Noe Valley to make it easier for our friends in the peninsula - any

suggestions? We also have two birthdays to celebrate: Teddy and Paul. Hope to see you next week! -Jackie Jacqueline Kelly
Treasury Charles Schwab & Co, Inc (415) 667-3915 Warning: All e-mail sent to or from this address will be received or
otherwise recorded by the Charles Schwab corporate e-mail system and is subject to archival, monitoring or review by, and/or
disclosure to, someone other than the recipient.

ATTACHMENT part 2 application/ms-tnef

Do You Yahoo!? Get email at your own domain with Yahoo! Mail. <http://personal.mail.yahoo.com/>

Message 931 of 1299

XMS Upgrade Transition Plan - All XMS Users Please Read!!

Sender	enron.announcements@enron.com
Recipients	[all.users@enron.com]
File	dasovich-j/all_documents/13499.

Concur Expense (XMS) Upgrade!

On July 2, 2001, Enron=01,s Corporate Expense Management Solution will unde= rgo=20 an upgrade to version 6.0.2.
=20 The Integrated Solution Center (ISC) has developed a transition plan=20 containing several important deadlines
affecting=20 all XMS users.

Transition Schedule

Important Date #1 - Monday, June 18th ? American Express transactions will no longer be loaded into the current X=
MS=20 system starting June 18th. Beginning June 18th, all AMEX transactions will= =20 be loaded into the new Concur
Expense (XMS) system. ? Beginning June 18th, the ISC will be solely responsible for adding new= =20 users to the
current XMS system. On July 2nd, new users created in SAP HR= =20 will be automatically loaded into the new Concur
Expense (XMS) system. =20

Important Date #2 - Wednesday, June 27th ? This marks the deadline for entering new expense reports into the current=
=20 XMS system. All open expense reports in XMS must be submitted and approved= =20 by June 27th. All users will be
locked out of XMS after this date!!

Important Date #3 - Monday, July 2nd ? The new version of Concur Expense (XMS ver. 6.0.2) goes LIVE!!!

For a list of frequently asked questions (FAQ), please click on the followi= ng=20 link:
<http://isc.enron.com/site/xmsfaqs.htm>

If you have any other questions on any of the above items, please contact t= he=20 ISC Call Center at 713-345-4727.

Message 932 of 1299

C4C Trivia Bowl Clarification

Sender	owner-evmba_social@haas.berkeley.edu
Recipients	[evmba_social@haas.berkeley.edu]
File	dasovich-j/notes_inbox/4385.

I apologize that the earlier note from our MBA Social chair didn't reach you earlier. I want to clarify a couple of questions
and reach out to you to participate in tonight's competition.

Evening MBA's are eligible to compete. Tonight will be the only night to try out. I understand that all of you have class until
around 9:30 pm. I will not start the competition until 9:45 pm to give you a chance to attend. In addition, if you miss the first
set of category competitions there will be two more throughout the night that you can jump in and tryout for. The following

is the breakdown of how the competition will run:

1st set - Science & Art/Literature (Starts at 9:45 pm) 2nd set - Sports & Entertainment (Starts 5 minutes after the end of set #1) 3rd set - History & Geography (Starts 5 minutes after the end of set #2) 4th set - All Categories for top 2 runnerups in first 3 sets (Starts 5 minutes after the end of set #3)

I will ask 15 questions for each set and take the top person who answers the most questions in the set. The second and 3rd place finishers of each set will then be paired in a 4th set of competition where I will ask 15 questions from all the categories. The winner of that set will be the 4th member of the team.

PS - Beckett's is giving us \$1 off on pints of Guinness and Caffrey's.

Address again is:

Beckett's 2271 Shattuck Ave. (Between Bancroft and Kittredge) Berkeley, CA 94704 510-647-1790

Juan

Message 933 of 1299

ADV: Energy Restructuring in the SW Conference

Sender	postmaster@lawseminars.com
Recipients	['jdasovic@enron.com']
File	dasovich-j/notes_inbox/12638.

Note: If you do not want to receive notice of any upcoming programs, please reply to this email with "remove" in the subject line. You also can limit notices to specific topics by replying and specifying the topics. Thank you.

Dear Mr. Dasovich,

Energy Restructuring in the Southwest conference, co-sponsored by Energy Newsdata Corporation

When/Where: July 19 and 20, 2001 at the Alexis Park in Las Vegas

While California's electric system stumbles from crisis to crisis during a continuing state of emergency, states and municipalities throughout the Western region are reexamining and, in some cases, reversing their policies regarding restructuring of the electric services industry. This has resulted in ever-changing and confusing laws and policies affecting utilities, energy service providers and consumers in Arizona, Nevada and New Mexico.

This conference will help lay the groundwork for a better understanding of current market and regulatory conditions in the Southwest, and the faculty of expert speakers will provide insight as to how evolving policies will shape markets of the future.

Program Co-chairs: Arthur O'Donnell of California Energy Markets and Fred Schmidt of Hale Lane Peek Dennison Howard & Anderson.

Information or registration: reply to this announcement; call us at (800) 854-8009; or visit our web site:
<http://www.lawseminars.com/htmls/seminars/01resnv>.

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Message 934 of 1299

Haas Alumni Network & Online Community presentations

Sender	tj@haas.berkeley.edu
Recipients	[eveningmba@haas.berkeley.edu]
File	dasovich-j/deleted_items/2071.

Dear Evening MBA students, We enjoyed providing you with an overview of the Haas Alumni Network and our online services at our pizza presentations in mid-November. Some of you were unable to attend our session because your class was not held on that Thursday night and we tried to find a suitable classroom/presentation space for a session this week, but there is nothing available during your 7:30 p.m. break. So, we have decided that we will hold more information sessions about the Haas Alumni Network next semester in order to accommodate your needs. In the meantime, if you have any questions, please consult the Haas Alumni Network brochure you received in your mailbox earlier this semester, visit our website (<http://www.haas.berkeley.edu>) for detailed overviews and updates, or contact my office at 510-642-7790 for assistance with registration to the Online Community. Good luck with your final projects and exams. Tenny Frost Director, Alumni Relations

~~~~~ Be in CalBusiness: submit an update on your career and personal life <http://www.haas.berkeley.edu/alumninotes> ~~~~~

Tenny H. Frost Director of Alumni Relations | Haas School of Business | University of California, Berkeley S520 Student Services Building, #1904 | Berkeley, CA | USA 94720-1904 510/642.7790 (Alumni Relations Office) | 510/643.5340 (direct line) 510/643.0531 (fax) | [frost@haas.berkeley.edu](mailto:frost@haas.berkeley.edu) <http://haas.berkeley.edu/alumni>

Message 935 of 1299

**Outstanding Teacher Nominations**

|            |                                    |
|------------|------------------------------------|
| Sender     | owner-eveningmba@haas.berkeley.edu |
| Recipients | [eveningmba@haas.berkeley.edu]     |
| File       | dasovich-j/all_documents/10564.    |

Hello Everyone, Each year, we have an opportunity to recognize a faculty member who has distinguished him/herself among his/her peers. Faculty who receive the Outstanding Teacher Award are recognized for this important accomplishment by both the UC Berkeley Campus and the Haas School of Business. The award really does mean a lot to the faculty members, so if you feel strongly about a teacher's performance, I urge you to reward them with a nomination. Last year's award went to David Levine (Core: Macroeconomics) with honorable mentions to Michael Katz (Elective: Competitive Strategy) and Jonathan Berk (Core: Finance). All teachers that receive nominations will be recognized in the SAC Newsletter.

Thanks to those of you that submitted nominations from your Fall 2000 classes. We are currently soliciting nominations for Spring 2001 courses. Just submit a written recommendation to me via e-mail based on the guidelines listed below. Alternatively, you may submit a hard copy to the Evening MBA office. Only nominations with a written explanation will be considered. The more compelling your recommendation, the greater the weight it will carry. The Spring 2001 nominations will be considered with the Fall 2000 nominations to determine the winner. Please try to have your nominations in by April 9th.

Thanks, in advance, for your support of this important and prestigious award.

Michael Plumb Chair, Student Advisory Committee (SAC)

Michael Plumb Director, Health Services Actuarial - Northern California PacificCare of California 925-602-1660



## Message 936 of 1299

| Farewell   |                                                                                   |
|------------|-----------------------------------------------------------------------------------|
| Sender     | scott.bolton@enron.com                                                            |
| Recipients | ['allison.hamilton@enron.com', 'stephen.burns@enron.com', 'chris.long@enron.com'] |
| File       | dasovich-j/inbox/932.                                                             |

All -

It is with no surprise (I've only known I was leaving for 6 months now!) and yet still with a heavy heart that I wish you all farewell and the best for the future. I am in my last week here at the Lazy E and I am getting around the part that I dreaded the most - goodbyes. I have and will be sending notes to most of the people I have worked with over the past 3 1/2 years (whether they like it or not), but you are the folks I have learned the most from and will miss the most painfully. It's hard to believe the roller coaster we have been on - both the ups and downs - and I don't think it would have been as manageable, tolerable, or fun without you. I really have had more fun in this job than I could ever have imagined coming in. Everyone has been a great friend and mentor, and I will always appreciate the time you have spent with me, indulged my questions, put up with my wandering attentions, and made sure I got home safely in a clean cab...

Unfortunately I am sure there will probably be more "good bye" emails to come your way over the next few weeks, so I'll keep this brief and close for now. But I hope for the absolute best for all of you and your families, and do not underestimate the impact you have had on me or the high esteem I hold you in. Best regards, Scott

Our home info (in case anyone wants to play "six degrees of Kevin Bacon," debate the witticisms of Dorothy Parker and Redd Foxx, or just keep in touch)

Scott Bolton and Trudi Traister 6212 N. Commercial Ave Portland, OR 97217 (503) 285-0408 sdbolton@home.com

## Message 937 of 1299

| ECI Support Strategy Meeting, Jan 20 and 21 in New Orleans |                                                                                                                     |
|------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------|
| Sender                                                     | donald.lassere@enron.com                                                                                            |
| Recipients                                                 | ['jeff.dasovich@enron.com', 'ginger.dernehl@enron.com', 'margo.reyna@enron.com', 'sue.nord@enron.com', 'alliso...'] |
| File                                                       | dasovich-j/all_documents/292.                                                                                       |

Greetings all,

Scott Bolton and I wanted to give you the "low-down" on the strategy meeting taking place next week in New Orleans.

The meeting will be held at the Hilton New Orleans Riverside. The hotel address is: Poydras at the Mississippi River, New Orleans, 70140.

We have reserved a block of sleeping rooms (16 total) at a rate of \$189.00 per night. The room reservations are for the nights of January 19 and 20, checking out January 21. Each meeting attendee will need to call the hotel directly to make reservations. The number to call to make reservations is 504.584.3999. Tell the reservationist that you need one of the rooms in the "Enron Communications" block. If you want a confirmation faxed or mailed, it must be requested at the time of booking. Those flying into New Orleans on January 20 need to tell the reservationist that they will need the hotel room on January 20 as opposed to January 19 and 20. Room reservations must be made no later than January 12. Each person will be responsible for his/her hotel room and charges.

The meeting is scheduled to begin at 9:30 AM on January 20 and end around 2:00 PM on January 21. The meeting will be held in the Cambridge Room.

We will be sending out a formal agenda by Thursday this week. During the meeting, we will be developing our team's objectives and strategy for 2000, hearing from a number of ECI commercial people, and conducting lots of Q&A. Please

contact myself or Scott to confirm your attendance as soon as possible.

Best Regards,

Scott & Donald

---

Message 938 of 1299

**Re: CALL-IN NUMBER FOR 11/2 MEETING**

|            |                                |
|------------|--------------------------------|
| Sender     | lara.leibman@enron.com         |
| Recipients | ['jeff.dasovich@enron.com']    |
| File       | dasovich-j/all_documents/2877. |

no problem -- looking forward to it.

Jeff Dasovich@ENRON Sent by: Jeff Dasovich@ENRON 10/31/00 04:21 PM

To: Lara Leibman/Enron Communications@ENRON COMMUNICATIONS cc: Subject: Re: CALL-IN NUMBER FOR 11/2 MEETING

thanks a million. talk to you then.

Lara Leibman@ENRON COMMUNICATIONS 10/31/2000 03:48 PM

To: Jeff Dasovich/NA/Enron@ENRON, Mike Dahlke/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT cc: Subject: CALL-IN NUMBER FOR 11/2 MEETING

Here's the info for calling in -- thanks!

Lara

----- Forwarded by Lara Leibman/Enron Communications on 10/31/00 03:52 PM

---

Angie Buis 10/31/00 02:17 PM

To: Sue Nord/NA/Enron@Enron, Lara Leibman/Enron Communications@Enron Communications, Phillip Lord/LON/ET@ETC Richard Anderson/Enron Communications, Rajen Shah/LON/ECT@ECT cc: Wayne Gardner/Enron Communications@Enron Communications Subject: CALL-IN NUMBER FOR 11/2 MEETING

The call-in number and instructions for the 11/2 8:30 a.m. meeting are as follows:

Everyone will dial the toll free number 1-877-331-6867. All the outside participants will be prompted to enter their access code, which is 600-480.

Wayne, your access code (room 4434) after dialing the toll free number will be 857-771.

I have asked for 4 outside ports and should anyone else need to join in, they may do so with the access code and without operator assistance.

The duration of the call is 3.5 hours. The call will terminate once everyone has hung up.

Please let me know if any of you need additional information.

Thanks.

Angie Buis EBS-Tax x-37097

---

Message 939 of 1299

**RE: Please see attached documents**

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                    |
| Recipients | ['paul.kaufman@enron.com', 'richard.shapiro@enron.com', 'skean@enron.com'] |
| File       | dasovich-j/sent/11783.                                                     |

I talked to Richard today and let him know we're not filling the position right away. And we had a very good conversation about the negotiations underway and how we can help each other out.

Best, Jeff

Paul Kaufman/ENRON@enronXgate 06/21/2001 06:10 PM

To: Jeff Dasovich/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, skean@enron.com@SMTP@enronXgate cc: Subject: RE: Please see attached documents

I don't think we need a position focused solely on Sacto.

-----Original Message-----

From: Dasovich, Jeff Sent: Tuesday, June 19, 2001 9:08 AM To: Shapiro, Richard; Kaufman, Paul; skean@enron.com Subject: Please see attached documents

I'm assuming that we're not moving to fill the Sacramento position. If this is correct, let me know and I'll get back to Costigan (who's the Assembly Republican leader's (i.e., David Cox's) Chief of Staff.

Best, Jeff

----- Forwarded by Jeff Dasovich/NA/Enron on 06/19/2001 11:02 AM -----

"Costigan, Richard" <Richard.Costigan@asm.ca.gov> 06/19/2001 10:54 AM To: "skean@enron.com" <skean@enron.com>, "jeff.dasovich@enron.com" <jeff.dasovich@enron.com> cc: Subject: Please see attached documents

<<Enron letter.doc>> <<COS resume.doc>>

Good morning

I understand that there may be an opening in California for in your Governmental Affairs unit. Please see attached documents.

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

- Enron letter.doc << File: Enron letter.doc >> - COS resume.doc << File: COS resume.doc >>

Message 940 of 1299

**FW: Ruling Shortening Protest and Response Period for DWR Servi**

|            |                                                                               |
|------------|-------------------------------------------------------------------------------|
| Sender     | jbennett@gmssr.com                                                            |
| Recipients | ['harry.kingerski@enron.com', 'james_d_steffes@enron.com', 'smara@enron.com'] |
| File       | dasovich-j/all_documents/28158.                                               |

I have electronic copies of the applications referenced in the below note from ALJ Wong. The servicing agreements between SDG&E and DWR and SCE and DWR are (based on a cursory review) virtually the same. The agreements seem pretty straight forward. The only area of real interests are the service fees (i.e., the costs being assessed DWR by the UDCs for system changes necessary to do the DWR billing and the ongoing costs of that billing).

Protests on the applications are due on Friday the 29th. Let me know if you would like copies of the applications.

Jeanne -----Original Message----- From: Wong, John S. [mailto:jsw@cpuc.ca.gov] Sent: Tuesday, June 26, 2001 2:42 PM  
ter, Todd Subject: Ruling Shortening Protest and Response Period for DWR Servicing Agreements

To Parties In A.00-10-045, A.01-01-044, A.00-11-038, A.00-11-056 and A.00-10-028:

Attached are two Chief ALJ Rulings shortening the protest and response time to the applications filed by San Diego Gas & Electric Company and Southern California Edison Company that were filed on June 22 and June 25, respectively. These applications address the servicing agreements to be entered into between the California Dept. of Water Resources and these two utilities. Interested parties have until June 29, 2001 to file protests or responses to the application, and the utilities have until July 2, 2001 to file a reply.

John S. Wong -ALJ CPUC (415) 703-3130

<<Ruling Shortening Time in SDG&E.doc>> <<ruling shortening time in SCE.doc>>

- Ruling Shortening Time in SDG&E.doc - ruling shortening time in SCE.doc

---

Message 941 of 1299

#### ICAF to San Francisco, week of April 8

|            |                                |
|------------|--------------------------------|
| Sender     | crandallm@ndu.edu              |
| Recipients | ['jeff.dasovich@enron.com']    |
| File       | dasovich-j/all_documents/9301. |

Jeff - Cynthia Sandherr said you were once again the person to write to. We talked in the fall of 1999 when I was thinking about bringing the energy seminar to San Francisco in 2000. We did manage Alaska last year after all, so now I am trying to resume the regular alternation between California and Houston. I am several shades whiter of head as a result of bringing the Alaska trip to closure. ? We did manage Alaska last year after all, so now I am trying to resume the regular alternation between California and Houston. I am several shades whiter of head as a result of bringing the Alaska trip to closure. ?? 17 senior military and civilians in our group this year, who are really interested in gas and electricity matters, especially in CA. 14 students including a BGen from Croatia, and 3 faculty. We would like to call on you and hear Enron's thoughts on gas and electricity matters, both from a California perspective and from the point of date-certain national legislation. ? At this point, the time that looks best for us would be Monday afternoon, 9 April. I am hoping this will be possible for you - it will be just about 3 years to the day since we last visited your California offices, in the very first moments of electricity deregulation. ? Draft schedule attached for your consideration of where we are in the planning process. ? Best regards, ?

Maureen Crandall Professor of Economics Industrial College of the Armed Forces National Defense University Fort McNair, DC 20319 tel (202) 685-4319?? fax(202) 685-4175 - IS2001 dom trav Cal.doc

---

Message 942 of 1299

#### Re: Yellow Book

|            |                                 |
|------------|---------------------------------|
| Sender     | jeff.dasovich@enron.com         |
| Recipients | ['dkasler@sacbee.com']          |
| File       | dasovich-j/all_documents/10108. |

Hi Dale:

Please call me to discuss your question. (415.782.7822) Customers could try to "bypass" the utility, but until Dec. '95 (PUC final policy decision) and AB 1890, it was against the law to have direct access, so you may be misinterpreting the yellow book just a bit. There were other forms of "bypass" at that time, but DA as we think of it today was illegal. Give me a call

and we can try to clear things up (specific references to where in the YB you're getting this impression will be helpful). Glad to talk to you on Friday and be happy to talk more if you have any other questions, or desire any follow up.

Best, Jeff

Dale Kasler <DKasler@sacbee.com> 03/19/2001 11:10 AM

To: "'jeff.dasovich@enron.com'" <jeff.dasovich@enron.com> cc: Subject: Yellow Book

Jeff, The Yellow Book is in the mail. I read it over the weekend and found it to be a very good backgrounder for this whole thing. Thanks for lending it to me, and thanks again for your time Friday. A followup question: You had told me Friday that the arrival of QF's and other non-utility generators, including plants in neighboring states, had large customers chomping at the bit for competition, but frustrated because the big IOUs still controlled the grid and held the customers captive. But the Yellow book said that already some large customers had found ways to bypass the IOUs and get direct access/retail wheeling. Could you explain? Thanks, Dale. PS - Please don't forget to call Steve Kean to let him know I'll be calling him. Thanks.

---

Message 943 of 1299

**Re: FW: Confidential--PG&E's Going to Announce an Open Season on**

|            |                                 |
|------------|---------------------------------|
| Sender     | jeff.dasovich@enron.com         |
| Recipients | ['stephanie.miller@enron.com']  |
| File       | dasovich-j/all_documents/12635. |

Duly noted on the email address. Look forward to seeing you when you in California.

Best, Jeff

Stephanie Miller/ENRON@enronXgate 05/16/2001 02:15 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: FW: Confidential--PG&E's Going to Announce an Open Season on Redwood and Baja (intrastate capacity) end of this next week or early next week

Thanks for the update! - In the future, you will need to spell my name completely - there are too many smiller's!

I am planning a trip to San Fran to meet with PG&E (tentatively June 6) - will make sure I stop by to meet you.

Regards,

Stephanie

-----Original Message-----

From: Tycholiz, Barry Sent: Wednesday, May 16, 2001 2:00 PM To: Miller, Stephanie Subject: FW: Confidential--PG&E's Going to Announce an Open Season on Redwood and Baja (intrastate capacity) end of this next week or early next week Sensitivity: Confidential

-----Original Message-----

From: Dasovich, Jeff Sent: Monday, May 14, 2001 7:28 PM To: Miller, Stephen; Tycholiz, Barry; Gomez, Julie A.; Shapiro, Richard; Steffes, James; Lawner, Leslie; Cantrell, Rebecca; Fulton, Donna; Hartsoe, Joe; Corman, Shelley; Fawcett, Jeffery; Harris, Steven Subject: Confidential--PG&E's Going to Announce an Open Season on Redwood and Baja (intrastate capacity) end of this next week or early next week Sensitivity: Confidential

Got a message from PG&E. Open season will be for 2003 and beyond and they'll be accepting bids up to 30 years. Will talk to PG&E and get back with more information. If you having any questions give a holler at 415.782.7822.

Best, JEff

---

Message 944 of 1299

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|            |                               |
|------------|-------------------------------|
| Sender     | members@realmoney.com         |
| Recipients | ['members@realmoney.com']     |
| File       | dasovich-j/notes_inbox/12033. |

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[illegible]

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Message 945 of 1299

## Re: Expediting Your Expense Report

|            |                                 |
|------------|---------------------------------|
| Sender     | jeff.dasovich@enron.com         |
| Recipients | ['joseph.alamo@enron.com']      |
| File       | dasovich-j/all_documents/28139. |

Go ahead without the gas, unless you can get into my American Express account and find out what those numbers are. Thanks a million.

Best, Jeff

Joseph Alamo 06/25/2001 07:10 PM

To: Jeff Dasovich/NA/Enron cc: Subject: Expediting Your Expense Report

Jeff -

FYI: due to a change [again] in the system for Expense Reporting, \*must\* have submitted your current Report by Wednesday, the 27th. Otherwise, will have to start over in the "new" system, however that will be unavailable until Monday, July 2nd ...or so I understand.

Except for whatever you incurred today, I'm current with your receipts \*except\* whatever you spent on gas with your last (6/18 - 6/21) rental car (you noted it but neither indicated amount(s) nor supplied receipts!).

Thanks,

Joseph

----- Forwarded by Joseph Alamo/NA/Enron on 06/25/2001 05:13

PM -----

From: Integrated Solutions Center 06/22/2001 03:30 PM

Sent by: Enron Announcements To: All XMS Users cc:

Subject: Reminder to All XMS Users - Upgrade Information - Please Read!!

Concur Expense (XMS) Upgrade!

With the upgrade of Concur Expense going live on Monday, July 2, this is a reminder to have all of your open expense reports submitted and approved in the current XMS system by this Wednesday, June 27.

Logon instructions for the new Concur Expense system will be delivered via email to everyone on Friday, June 29th.

To review the Transition Schedule, please click on the following link: <http://isc.enron.com/site/XMSchange.htm>

If you have any other questions about the new upgrade, please contact the ISC Call Center at 713-345-4727.

---

Message 946 of 1299

#### Collocation Decision(s) discussed 10/27

|            |                                                                                   |
|------------|-----------------------------------------------------------------------------------|
| Sender     | sue.nord@enron.com                                                                |
| Recipients | ['scott.bolton@enron.com', 'donald_lassere@enron.net', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/1327.                                                      |

For your reading pleasure...

----- Forwarded by Sue Nord/NA/Enron on 11/01/2000 01:16 PM -----

Jeremy Meier <jermeier@earthlink.net> 10/29/2000 02:45 PM

To: SNord@enron.com cc: Robbi\_Rossi@enron.net Subject: Collocation Decision(s) discussed 10/27

Sue:

Attached please find the DC Circuit's federal decision remanding certain FCC physical collocation rules back to the FCC for reconsideration. This is the Federal Court of Appeals "advanced services" case Steve Bowen was discussing on the conference call last Friday re EBS.

The DC Circuit reviewed the FCC's Advanced Services First Report and Order and affirmed certain aspects of collo (eg cageless, central office and adjacent collo, and cost recovery). The Court, however, remanded back to the FCC its rules on physical collocation and cage-to-cage cross connections (as Steve mentioned). Correct me if I am mistaken, but apparently EBS/ETI is now facing the hurdle of these uncertain collo rules in the field.

The FCC has recently reopened the Advanced Services Report and Order per the DC Cir, has initiated a new proceeding at the FCC (Order on Reconsideration and Second Further Notice of Proposed Rulemaking in CC Docket No. 98-147 and Fifth Further Notice of Proposed Rulemaking in CC Docket No. 96-98). Comments at the FCC were filed last month and Reply Comments on these advanced services collo rules are due in November.

We can send you a (lengthy) copy of the FCC Advanced Services remand Order on Reconsideration too if you want. Let me know if you have questions,



Jeremy Meier Blumenfeld & Cohen 4 Embarcadero Center, Suite 1170 San Francisco, CA 94111 415 394-7500  
jermeier@earthlink.net

- advanced services case.doc

Message 947 of 1299

### APX withdraws proposal for an Adjustment Bid Market in CA

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | jwu@apx.com                                                                                                        |
| Recipients | ['alp@ncpa.com', 'jstremel@apx.com', 'anders.glader@greenmountain.com', 'altomczyk@wptf.org', 'mheinrich@apx.c...] |
| File       | dasovich-j/all_documents/10074.                                                                                    |

I would personally like to thank each of you for your support in exploring the possibility of an adjustment bid market in CA.

The active participation in our February 21st Conference and the innovative ideas and suggestions were very helpful. They clarified a viable approach for action we proposed to the CAISO.

APX proposed the adjustment bid market to the CAISO board meeting on February 28th. The implications of not moving forward were identified and your support was extremely helpful in creating momentum for the CAISO to take action.

In the CAISO board meeting on March 15th, the CAISO staff proposed a comprehensive proposal for moving forward. That proposal created a day ahead and hour ahead energy market as well as simultaneously resolving transmission congestion and potentially ancillary service requirements through a new commitment and dispatch approach. Although the software changes and system changes are significant, the CAISO staff feels confident that this can be accomplished by summer.

With the comprehensive plan, there will be no need for using the existing CONG software at the CAISO to alleviate congestion among SCs with adjustment bids.

APX stands ready to cooperate in finding solutions for this summer. We will focus on the development of forward markets for power. We have the capability to provide forward markets for transmission if there is sufficient interest. If you have interest in such markets or other ideas where APX could provide products of value to you and the market please contact me.

Thank you for your support.

John Stremel Vice President Automated Power Exchange, Inc. 5201 Great America Parkway, Suite 522 Santa Clara, CA 408.517.2120 jstremel@apx.com

Message 948 of 1299

### Re: Meeting 8AM Central Monday

|            |                                                                                                       |
|------------|-------------------------------------------------------------------------------------------------------|
| Sender     | james.steffes@enron.com                                                                               |
| Recipients | ['don.black@enron.com', 'scott.stoness@enron.com', 'harry.kingerski@enron.com', 'jbennett@gmssr.com'] |
| File       | dasovich-j/notes_inbox/4297.                                                                          |

Scott, etal --

My final concern.

Is anyone at EES concerned with this outcome -- (1) Accept EES' tiering but use 60% of current usage as baseline, (2) all above 60% is DJ Index, and (3) demand below 60% is paid at \$500/Mwh (or the ISO price)?

This is an adaption of our proposal. Would this be painful?

My big fear is that somehow the CPUC uses our filing against us. We need to make sure that these discussions don't get away from us to allow that outcome.

Jim

Scott Stoness@EES 04/13/2001 12:00 PM To: Harry Kingerski/NA/Enron@Enron, Don Black/HOU/EES@EES, James D Steffes/NA/Enron@ENRON, jbennett@gmssr.com@ENRON, Tamara Johnson/HOU/EES@EES, Jeff Dasovich/Na/Enron@ENRON, James W Lewis/HOU/EES@EES, Leslie Lawner/HOU/EES@EES, Leslie Lawner/HOU/EES@EES cc:

Subject: Meeting 8AM Central Monday

We have agreed on a strategy, subject to Whaley/Delaney approval, to: Scott Stoness submit testimony today advocating 2 part real time pricing in CA Read other parties testimony this weekend from the perspective "Has somebody filed testimony close enough to Stoness testimony, that we can cross examine and brief to a favorable outcome?" Meet on Monday at 8AM to decide whether to rescind Stoness's testimony.

The following dial in number and code corresponds to the Monday 8AM Central Time meeting. 1 800 713 8600 68266 is PIN Scott Stoness is host

Action Items: All on To list above read and have opinion on 2 and 3 above All on To list above meet on Monday at 8AM. Meet in Stoness office if possible. Harry and Jeane polish Stoness testimony and wait to the last minute before submitting it Jeane ensure all on this To list get a copy of testimony, emailed as soon as she gets it.

Scott Stoness

Message 949 of 1299

#### FW: UPDATED: C4C Halloween Ball Information

|            |                                                            |
|------------|------------------------------------------------------------|
| Sender     | tait@tycoelectronics.com                                   |
| Recipients | [evmba_social@haas.berkeley.edu', 'lng@haas.berkeley.edu'] |
| File       | dasovich-j/deleted_items/825.                              |

It's time for the Halloween Ball this Saturday! If you are thinking of participating one full-time social activity this semester, this is it!! Last year, the Halloween Ball was a big success, I anticipate this year will be a blast as well. So, go get your new costume and get ready to mingle with the full-time students this Saturday. Please see below for details. Make your check out to "C4C" and drop it off in Jennifer Sang's mailbox in the student lounge.

-----Original Message-----

From: Linda Ng [mailto:lng@haas.berkeley.edu] Sent: Sunday, October 21, 2001 3:24 PM To: Tai, Tony Subject: UPDATED: C4C Halloween Ball Information

Hi Tony, this version of my message is corrected/updated - I had forgotten in my earlier one to say that checks are payable to C4C.

C4C HALLOWEEN BALL - THIS SATURDAY!!! Don't miss out on the "HAAS FREAK SHOW", it's the wildest party of the semester! Everyone is invited - bring your friends and significant others! Costumes are a must!

Date & Time: Saturday, October 27th 8 pm to 2 am

Location: Curve Bar & Restaurant 747 Third Street San Francisco, CA 94107 (415) 896-2286 <<http://www.curvebar.com/>> (Located across from PacBell Park)

Ticket Info: Tickets are free for C4C members, \$25 for all others and \$30 at the door, so buy early. Tickets are on sale this week at Haas - just leave a check payable to "C4C" in Jennifer Sang's (first-year, full-time program) mailbox in the MBA lounge. She'll make sure your ticket is reserved at the door. Don't miss out on the fun - there will be great music, dancing, appetizers, cash bar, costume contest, and raffle prizes!

All proceeds from the party will be donated to Special Olympics, so you are guaranteed to have an awesome time while also supporting a terrific cause!!!

Message 950 of 1299

**RE: Need info on where to have check sent from customer for \$800K**

|                   |                             |
|-------------------|-----------------------------|
| <b>Sender</b>     | leslie.reeves@enron.com     |
| <b>Recipients</b> | ['jeff.dasovich@enron.com'] |
| <b>File</b>       | dasovich-j/inbox/1111.      |

Our fax # is 713-646-2443. Thanks, Leslie

-----Original Message-----

From: Dasovich, Jeff Sent: Wednesday, January 02, 2002 12:57 PM To: Reeves, Leslie Subject: RE: Need info on where to have check sent from customer for \$800K

Hi Leslie: What's your fax number? Thanks.

Jeff

-----Original Message-----

From: Reeves, Leslie Sent: Wednesday, December 26, 2001 2:52 PM To: Dasovich, Jeff Subject: FW: Need info on where to have check sent from customer for \$800K

Jeff - Could you please forward the name of the customer to me so settlements can follow up on this payment.

Thank you, Leslie Reeves ext. 37962

-----Original Message-----

From: Sacks, Edward Sent: Wednesday, December 26, 2001 1:00 PM To: Reeves, Leslie Subject: RE: Need info on where to have check sent from customer for \$800K

I don't, sorry.

-----Original Message-----

From: Reeves, Leslie Sent: Wednesday, December 26, 2001 12:11 PM To: Sacks, Edward Subject: RE: Need info on where to have check sent from customer for \$800K

Ed - do you know who the customer is so we can follow up with them. Thanks, Leslie

-----Original Message-----

From: Sacks, Edward Sent: Wednesday, December 26, 2001 7:45 AM To: Reeves, Leslie Cc: Dasovich, Jeff; Brackett, Debbie R.; Bradford, William S. Subject: RE: Need info on where to have check sent from customer for \$800K

Leslie - Please have someone in your group follow up. Thks.

-----Original Message-----

From: Dasovich, Jeff Sent: Friday, December 21, 2001 3:25 PM To: Sacks, Edward; Brackett, Debbie R.; Bradford, William S. Subject: Need info on where to have check sent from customer for \$800K

An EPMI customer is trying to find out where to send a check for power services rendered for \$800K. Can you let me know where I should have him send it. Thanks.

Best, Jeff

Message 951 of 1299

| Re: INFO   |                                                                                     |
|------------|-------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                             |
| Recipients | ['jennifer.thome@enron.com', 'janel.guerrero@enron.com', 'james.steffes@enron.com'] |
| File       | dasovich-j/all_documents/12334.                                                     |

Thank you.

James D Steffes 05/11/2001 09:10 AM

To: Jeff Dasovich/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron cc: Subject: INFO

Jeff -

I would recommend that you (if needed) use Jennifer to help.

Jim

----- Forwarded by James D Steffes/NA/Enron on 05/11/2001

09:09 AM -----

Steven J Kean 05/11/2001 08:35 AM To: Jeff Dasovich/NA/Enron@Enron cc: Sandra McCubbin/NA/Enron@Enron, Paul Kaufman/Enron@EnronXGate, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON

Subject:

Ken Lay spoke with several California CEOs this morning and urged them to get personally involved in pushing for a comprehensive set of reforms. Three expressed willingness to help.

Scott McNealy (Sun): contact person - Piper Cole (piper.cole@sun.com); scott.mcnealy@engeng.sun.com. Mcnealy wants, by close of business today, a "cheat sheet" of the talking points to use with politicians (the "8 or 10 elements of the solution") with the expected comeback he may hear from the political leaders and our response to that comeback. He says he hasn't spent time working on issues in Sacramento so we may also want to include a list of suggested contacts. Kevin Sharer (Amgen): contact person - Sarah Jensen, VP of Engineering and Operations (805.447.6785); ksharer@amgen.com. Sharer wants the same information as McNealy and he and McNealy both indicated their willingness to call a meeting of other California CEOs. Sharer will also be having breakfast with Hertzberg one week from today. Robert Day (Trust Co of the West): said that he is very close to the mayor of Los Angeles. He urged Ken to call the mayor (mentioning Day). Ken would like some talking points for that call.

Jeff - please put these items together.

Message 952 of 1299

| [Fwd: Collocation Decision(s) discussed 10/27] |                                |
|------------------------------------------------|--------------------------------|
| Sender                                         | jermeier@earthlink.net         |
| Recipients                                     | ['jdasovic@enron.com']         |
| File                                           | dasovich-j/all_documents/2817. |

FYI -

X-Mozilla-Status2: 00000000 Message-ID: <39FC8C51.E17F7E31@earthlink.net> Date: Sun, 29 Oct 2000 12:45:05 -0800 From: Jeremy Meier <jermeier@earthlink.net> X-Mailer: Mozilla 4.61 [en] (Win98; U) X-Accept-Language: en MIME-Version: 1.0 To: SNord@enron.com CC: Robbi\_Rossi@enron.net Subject: Collocation Decision(s) discussed 10/27

Content-Type: multipart/mixed; boundary="-----B38FC1A91B245AEBF4048D17"

Sue:

Attached please find the DC Circuit's federal decision remanding certain FCC physical collocation rules back to the FCC for reconsideration. This is the Federal Court of Appeals "advanced services" case Steve Bowen was discussing on the conference call last Friday re EBS.

The DC Circuit reviewed the FCC's Advanced Services First Report and Order and affirmed certain aspects of collo (eg cageless, central office and adjacent collo, and cost recovery). The Court, however, remanded back to the FCC its rules on physical collocation and cage-to-cage cross connections (as Steve mentioned). Correct me if I am mistaken, but apparently EBS/ETI is now facing the hurdle of these uncertain collo rules in the field.

The FCC has recently reopened the Advanced Services Report and Order per the DC Cir, has initiated a new proceeding at the FCC (Order on Reconsideration and Second Further Notice of Proposed Rulemaking in CC Docket No. 98-147 and Fifth Further Notice of Proposed Rulemaking in CC Docket No. 96-98). Comments at the FCC were filed last month and Reply Comments on these advanced services collo rules are due in November.

We can send you a (lengthy) copy of the FCC Advanced Services remand Order on Reconsideration too if you want. Let me know if you have questions,

Jeremy Meier Blumenfeld & Cohen 4 Embarcadero Center, Suite 1170 San Francisco, CA 94111 415 394-7500  
jermeier@earthlink.net

- advanced services case.doc

---

Message 953 of 1299

## Re: CA Government Affairs

|            |                                                          |
|------------|----------------------------------------------------------|
| Sender     | steve.beck@enron.com                                     |
| Recipients | ['richard.shapiro@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/11994.                          |

Hi Jeff, Please give me a call at your earliest convenience. I'd like to talk to you about what political/regulatory options may be available to Pilkington in California. Thanks.

Steve

----- Forwarded by Steve Beck/HOU/EES on 05/03/2001 10:35 AM

Richard Shapiro@ENRON 04/30/2001 10:41 AM To: Steve Beck/HOU/EES@EES cc: Jeff Dasovich/NA/Enron@Enron  
Subject: Re: CA Government Affairs

Jeff Dasovich, who works in my group in San Francisco, will call you regarding your e- mail. Thanks.

To: Richard Shapiro/NA/Enron@Enron cc:

Subject: CA Government Affairs

Hi Rick, I read the article in the article in Enron Business that mentions your group's efforts in California. I'd like to speak with you in order to find out if your efforts with the California government could possibly assist my client. I am the EES Account Manager for Pilkington North America. Pilkington is a large scale glass manufacturer with a plant in Lathrop, California. They, like many other PG&E ratepayers, are going to be subjected to load curtailment this summer. Being a large scale glass manufacturer who consumes a great deal of energy, they feel that being subjected to a curtailment would jeopardize the safety of the Lathrop community. If the plant withstood a full scale meltdown in their furnace, caused by a curtailment, a plant of that size would require an enormous group of emergency service personnel. Such a significant presence at the facility would jeopardize the safety of the rest of that small community.

Pilkington has already forwarded a letter to PG&E documenting this and it is currently under review. I would like to know if you or a member of your group could pursue any political avenues with this letter. Please call me at 215-599-7047 at your earliest convenience.

Thank you, Steve Beck

---

Message 954 of 1299

| RE:        |                            |
|------------|----------------------------|
| Sender     | jeff.dasovich@enron.com    |
| Recipients | ['glen.hass@enron.com']    |
| File       | dasovich-j/sent_items/109. |

thanks.

-----Original Message-----

From: Hass, Glen Sent: Tuesday, September 18, 2001 11:23 AM To: Dasovich, Jeff Subject: RE:

I've only known Mark (sorry, wrong name below) since May of this year. His company name is Interstate Gas Services, Inc. at 2500 Kitty Hawk Road, Suite 101, Livermore, CA 94550. I did hear that they moved at some point in time so perhaps that caused a phone number change prior to my introduction to him. gh

-----Original Message-----

From: Dasovich, Jeff Sent: Tuesday, September 18, 2001 11:15 AM To: Hass, Glen Subject: RE:

Thanks. Did he change companies, or just phone numbers?

Best, Jeff

-----Original Message-----

From: Hass, Glen Sent: Tuesday, September 18, 2001 11:14 AM To: Dasovich, Jeff Subject: RE:

Jeff,

No Problem, Steve's number is 925-243-0350. I also have his fax number and address if you need it.

FYI--He recently agreed to provide operational support for the DWR's gas supply contracts.

Glen

-----Original Message-----

From: Dasovich, Jeff Sent: Tuesday, September 18, 2001 10:57 AM To: Hass, Glen Subject: FW:

Greetings. Steve Harris says that you might have a number for Mark Baldwin. Possible to get it from you. Thanks very much.

Best, Jeff

-----Original Message-----

From: Harris, Steven Sent: Tuesday, September 18, 2001 10:54 AM To: Dasovich, Jeff Subject: RE:

I have not spoken to him directly in a while. I know Glen Hass in our Omaha office talked to him the other day and could give you that number. Thanks.

-----Original Message-----

From: Dasovich, Jeff Sent: Tuesday, September 18, 2001 10:40 AM To: Harris, Steven Subject:

Greetings. Hope, given the circumstances, that you're well. I'm trying to get a hold of Mark Baldwin, and the number I have gets a recording saying that it ain't the number anymore. Do you have a number for him. Greatly appreciated.

Best, Jeff

Message 955 of 1299

## RE: Western Wholesale Activities - Gas & Power Conf. Call

|            |                                                                          |
|------------|--------------------------------------------------------------------------|
| Sender     | alan.comnes@enron.com                                                    |
| Recipients | [ebe4476b-2d94882a-86256a14-75ff3b@enron.com', 'steve.walton@enron.com'] |
| File       | dasovich-j/notes_inbox/11664.                                            |

Attached are:

1. Draft comments to CAISO re: CAISO's Draft Proposal to give temporary waivers to long startup time units. Comments are due to CAISO this Friday.
2. CAISO's draft waiver proposal (for reference)
3. Outline of comments to FERC re: CAISO's implementation filing of July 10. Hopefully these comments will be filed with a group of marketers and is due August 9
4. CAISO's July 10 filing (for reference)

-----Original Message-----

From: Alvarez, Ray

[mailto:IMCEAEX-\_O=ENRON\_OU=NA\_CN=RECIPIENTS\_CN=NOTESADDR\_CN=EBE4476B-2D94882A-86256A14-75FF3B@ENRON.com] Sent: Wednesday, July 25, 2001 1:43 PM To: Walton, Steve; Mara, Susan; Comnes, Alan; Lawner, Leslie; Cantrell, Rebecca W.; Fulton, Donna; Dasovich, Jeff; Nicolay, Christi; Steffes, James D.; jalexander@gibbs-bruns.com; Allen, Phillip K.; Noske, Linda J.; Perrino, Dave; Black, Don; Frank, Robert; Miller, Stephanie; Tycholiz, Barry; Novosel, Sarah; Thome, Jennifer Subject: Re: Western Wholesale Activities - Gas & Power Conf. Call Privileged & Confidential Communication Attorney-Client Communication and Attorney Work Product Privileges Asserted

PLEASE MARK YOUR CALENDAR Date: Every Thursday Time: 7:30 am Pacific, 9:30 am Central, and 10:30 am Eastern time Number: 1-888-271-0949 Host Code: 661877 (for Ray only) Participant Code: 936022 (for everyone else)

The table of the on-going FERC issues and proceedings is available to all team members on the O drive. Please feel free to revise/add to/ update this table as appropriate.

Proposed agenda for tomorrow:

Refund order discussed at today's Commission meeting; CA refund issues; PacNW refund issues NOPR on information and filing requirements discussed at today's Commission meeting Answer to motions of CA parties ISO tariff filing response Upcoming meeting in Portland

Please feel free to communicate any additional agenda items to the group.

Message 956 of 1299

## REVISED- CA gas talking points

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | jennifer.thome@enron.com                                                        |
| Recipients | ['leslie.lawner@enron.com', 'jeff.dasovich@enron.com', 'nancy.bagot@enron.com'] |
| File       | dasovich-j/all_documents/13272.                                                 |

Thank you to Nancy and Joe for pointing out a typo in the document I just sent. With a very red face (!), I am sending the corrected version. My apologies for the confusion.

Jennifer

----- Forwarded by Jennifer Thome/NA/Enron on 05/31/2001 04:06 PM -----



Jennifer Thome 05/31/2001 01:29 PM

To: Nancy Bagot/OTS/Enron@ENRON cc: Leslie Lawner/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, John Shelk/NA/Enron@Enron, Rebecca W Cantrell/HOU/ECT@ECT, Christi L Nicolay/HOU/ECT@ECT, Janel Guerrero/Corp/Enron@Enron, Ray Alvarez/NA/Enron@ENRON, Joe Hartsoe/Corp/Enron@ENRON, Ban Sharma/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT Subject: Re: Talking points on natural gas in CA

Nancy: Yesterday we made a very slight change in language used (1st page, 2nd bulletpoint). I have attached the document reflecting this change. Given feedback from Jim on Friday, and Leslie today, the document is ready for use.

Let me know if there are questions.

Thanks, Jennifer

Nancy Bagot 05/31/2001 01:10 PM

To: Jennifer Thome/NA/Enron@Enron cc: Subject: Re: Talking points on natural gas in CA

Jennifer, I just want to verify that this last version I have is the most recent and we can use it to 'shop around'.

Thanks, Nancy

Jennifer Thome 05/25/2001 04:54 PM

To: Nancy Bagot/OTS/Enron@ENRON cc: James D Steffes/NA/Enron@Enron, Ban Sharma/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Jeff Dasovich/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Donna Fulton/Corp/Enron@ENRON, Rebecca W Cantrell/HOU/ECT@ECT, Leslie Lawner/NA/Enron@Enron, Ray Alvarez/NA/Enron@ENRON, Christi L Nicolay/HOU/ECT@ECT Subject: Talking points on natural gas in CA

Nancy:

Per Linda's request, attached are the talking points on natural gas in CA. Note that we will continue updating these points are new data becomes available.

Please contact me with any questions.

Have a nice weekend.

Jennifer 713.345.3550

---

Message 957 of 1299

### Get Real-Time Streaming Quotes from TheStreet.com!

|            |                                 |
|------------|---------------------------------|
| Sender     | members@realmoney.com           |
| Recipients | ['members@realmoney.com']       |
| File       | dasovich-j/all_documents/11934. |

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Karen Smith Singer Marketing Director

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Message 958 of 1299

### Full Panel Hearing I99-07-003

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | jeffery.fawcett@enron.com                                                                                         |
| Recipients | ['mbaldwin@igservice.com', 'jeff.dasovich@enron.com', 'Glen; Harris', 'Jeff; Hass', 'Dasovich', 'glen.hass@enr... |
| File       | dasovich-j/all_documents/12753.                                                                                   |

-----Original Message-----

From: "Halligan, Julie" <jmh@cpuc.ca.gov>@ENRON  
[mailto:IMCEANOTES+22Halligan+2C+20Julie+22+20+3Cjmh+40cpuc+2Eca+2Egov+3E+40E NRON@ENRON.com]  
Sent: Friday, May 18, 2001 5:01 PM To: Fawcett, Jeffery Subject: RE: Full Panel Hearing I99-07-003

Thank you for the notice, I will circulate an agenda on Monday, May 21st. -----Original Message----- [Fawcett, Jeffery]  
From: Fawcett, Jeffery [mailto:Jeffery.Fawcett@enron.com] Sent: Thursday, May 17, 2001 1:58 PM To: jmh@cpuc.ca.gov  
Cc: Dasovich, Jeff; Hass, Glen; Harris, Steven; mbaldwin@igservice.com Subject: Full Panel Hearing I99-07-003 Ms.  
Halligan, Mr. Mark Baldwin with Interstate Gas Services will be representing Transwestern Pipeline Company during Tuesday's hearing. Transwestern is a party of record in this proceeding. Mr. Baldwin is Transwestern's California consultant, and is well versed in state regulatory matters and, in particular, this docket. On behalf of Transwestern, Mr. Baldwin will address the following issues: 1. The PD in light of recent events in both the natural gas and electricity markets in California. 2 A comparison of certain features of the PD and the alternative settlement (Comprehensive Settlement) supported by SoCalGas Company and the majority of the stakeholders, including Transwestern Pipeline. 3. The relationship between the CPUC's decision in this proceeding and the ongoing investigation of the sufficiency of infrastructure for both natural gas and electricity. My understanding is that the CPUC prefers the speakers be brief. With your permission, Mr. Baldwin's remarks will be limited to no more than 5 minutes, with an opportunity for questions to follow. Please let me know if there are any other guidelines the CPUC would like parties to follow in this proceeding. Also, please let me know if there are any questions that I can answer for you. Jeffery C. Fawcett Transwestern Pipeline Company 713-853-1521 jfawcet@enron.com

Message 959 of 1299

**FW: Orbitz Travel Purchase Confirmation**

|            |                               |
|------------|-------------------------------|
| Sender     | psellers@pacbell.net          |
| Recipients | [jdasovic@enron.com]          |
| File       | dasovich-j/deleted_items/380. |

-----Original Message-----

From: Orbitz Traveler Care [mailto:travelercare@orbitz.com] Sent: Wednesday, August 01, 2001 8:14 PM To: Prentice Sellers Subject: Orbitz Travel Purchase Confirmation

Hello Prentice,

Thanks for using Orbitz as your travel partner for this journey.

We are preparing the details for your trip, along with lots of helpful destination information that we'll email to you within 24 hours. At this time, we're confirming the details of your travel requests.

Please review this confirmation carefully:

Your air reservation number is (RLN) MONHHN. AirFare Quoted: USD \$751.38 (including taxes) These tickets may carry restrictions.

Sunday, September 2 San Francisco International Airport (SFO) TO Boston Logan International Airport (BOS) Flight: United Airlines 998 Departure: September 2 9:00 AM PDT (SFO) Arrival: September 2 5:43 PM EDT (BOS) Class: Economy

Sunday, September 9 Boston Logan International Airport (BOS) TO San Francisco International Airport (SFO) Flight: United Airlines 999 Departure: September 9 4:05 PM EDT (BOS) Arrival: September 9 7:26 PM PDT (SFO) Class: Economy

Please note: changes to your itinerary may result in additional fees.

Passengers on this record: Prentice Sellers Jeffrey Dasovich

Billing/Delivery Information Orbitz Member Name: Prentice Sellers Address: 366 Dolores St. #3 San Francisco, California 94110 United States E-Mail: psellers@pacbell.net Phone:

If changes to your travel plans become necessary, you can reach us at Traveler Care on the Orbitz web site ([http://www.orbitz.com/App/traveler\\_care/support/customer\\_service\\_email.jsp](http://www.orbitz.com/App/traveler_care/support/customer_service_email.jsp)) , or call an Orbitz Customer Service Representative at 888-656-4546. We encourage your comments and suggestions as we strive to meet your expectations for your journey and your Orbitz experience. If you are interested in purchasing travel protection for this trip, click here for an introduction to Access America: <http://www.etravelprotection.com/servlet/WASCPure?csid=EML&accam=F027211>

Thank you for your business. Orbitz Cares

Message 960 of 1299

**RED Index shows Texas, NY, and Maine advance on retreating**

|            |                               |
|------------|-------------------------------|
| Sender     | distribution@caem.org         |
| Recipients | [jdasovic@enron.com]          |
| File       | dasovich-j/notes_inbox/11811. |

Note to Jeffrey Dasovich

The July Update to the Retail Energy Deregulation Index (RED Index), published twice a year by the Center for the Advancement of Energy Markets (CAEM) shows Texas, Maine, and New York are making the most measurable strides in

promoting sustainable competition among electricity providers, as customers throughout Pennsylvania retreat to their default providers due to increasing wholesale prices.

The RED Index, which is the only known tool that objectively ranks states by 22 attributes on how they are restructuring their power markets, today released the U.S. rankings for all 50 states and the District of Columbia, in a 187 page report. Key results included: 1. Pennsylvania 66 2. Texas 65 3. New York 64 4. Maine 62 17. California 34

"These numbers underscore the importance of building a healthy foundation on which electric competition can grow," said Ken Malloy, CEO of the Center.

"While California's crisis has brought a lot of positive attention to Pennsylvania's model, many customers in the Keystone State are returning to their original utility suppliers. It underscores how important it is to put the right fundamentals in place if consumers and suppliers are to benefit over the long haul," Malloy said.

In rankings that included all of North America, the province of Alberta actually would rank above all the states with a score of 68.

The mid-year RED Index also found that 62% of states expressing an opinion indicated that their commission is not "less likely to take action on energy restructuring as a result of the California crisis."

CAEM is an independent, nonprofit, think tank based in Washington, DC whose mission is to promote an effective transition from the monopoly to the competitive model of regulation.

For information about obtaining a copy of the RED Index, go to [www.caem.org](http://www.caem.org).

For more information, please contact: Nancy Etkin at 703-532-6887 or [netkin@caem.org](mailto:netkin@caem.org)

If you do not wish to receive announcements from CAEM, please put "remove" in the subject line in a reply to this email.  
424

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Message 961 of 1299

#### FW: Order on ISO Amend. 36: Creditworthiness

|            |                                                                                                                                                                                                                                                                                                                                     |
|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sender     | <a href="mailto:steven@iepa.com">steven@iepa.com</a>                                                                                                                                                                                                                                                                                |
| Recipients | <a href="mailto:'billw@calpine.com'">[billw@calpine.com]</a> , <a href="mailto:'smutny@iepa.com'">smutny@iepa.com</a> , <a href="mailto:'chudson@iepa.com'">chudson@iepa.com</a> , <a href="mailto:'kaplan@iepa.com'">kaplan@iepa.com</a> , <a href="mailto:'william_carlson@wastemanageme...">william_carlson@wastemanageme...</a> |
| File       | <a href="#">dasovich-j/all_documents/9162.</a>                                                                                                                                                                                                                                                                                      |

FYI.? In case you have not yet seen. ? -----Original Message----- From: Andy Brown [<mailto:ABB@eslawfirm.com>] Sent: Wednesday, February 14, 2001 4:54 PM To: Katie Kaplan (E-mail); Carol Hudson (E-mail); Steven Kelly (E-mail); [smutny@iepa.com](mailto:'smutny@iepa.com') Cc: Julee Malinowsky-Ball (E-mail); Eric Janssen; Douglas Kerner Subject: FERC Valentine: Order on ISO Amend. 36: Creditworthiness Importance: High

The FERC issued an order today on ISO's unilateral relaxation of the creditworthiness standards for PG&E and SCE.? The decision is available at <http://www.ferc.fed.us/electric/bulkpower/ER01-889-000.pdf>.? In the order, the FERC allows the utilities to self schedule for their own generation, but does not allow the relaxation of creditworthiness standards as it would apply to transactions with third parties.? Stated differently, the utilities can schedule at the ISO for load served by their own resource, but they have to meet the ISO tariff creditworthiness requirements if they are buying generation from anyone else.? This means that ISO can't "dump" imbalance / AS costs on the utilities if DWR doesn't buy it.? It also indirectly addresses the Reliant, et. al. / ISO TRO suit, as well as Duke's suit against ISO and DWR.? ABB

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA? 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 <mailto:abb@eslawfirm.com>

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?

Message 962 of 1299

| Re: Meeting 8AM Central Monday |                                                                                 |
|--------------------------------|---------------------------------------------------------------------------------|
| Sender                         | jeff.dasovich@enron.com                                                         |
| Recipients                     | ['Harry Kingerski/NA/Enron@Enron', 'eldon@interx.net', 'Don Black/HOU/EES@EES'] |
| File                           | dasovich-j/sent/4135.                                                           |

----- Forwarded by Jeff Dasovich/NA/Enron on 04/14/2001 06:09 PM -----

Scott Stoness@EES Sent by: Rosalinda Tijerina@EES 04/13/2001 01:51 PM

To: James D Steffes/NA/Enron@ENRON cc: Harry Kingerski/NA/Enron@Enron, Don Black/HOU/EES@EES, jbennett@gmsr.com@ENRON, Tamara Johnson/HOU/EES@EES, Jeff Dasovich/NA/Enron@Enron, James W Lewis/HOU/EES@EES Subject: Re: Meeting 8AM Central Monday

The dial-in number is listed below (for Monday, April 16 at 8:00 a.m. (CST).

James D Steffes@ENRON 04/13/2001 01:15 PM To: Scott Stoness/HOU/EES@EES cc: Harry Kingerski/NA/Enron@Enron, Don Black/HOU/EES@EES, jbennett@gmsr.com, Tamara Johnson/HOU/EES@EES, Jeff Dasovich/NA/Enron@Enron, James W Lewis/HOU/EES@EES, Leslie Lawner/HOU/EES@EES Subject: Re: Meeting 8AM Central Monday

Scott --

Can your assistant get a call in # for those in CA?

Jim

Scott Stoness@EES 04/13/2001 12:00 PM To: Harry Kingerski/NA/Enron@Enron, Don Black/HOU/EES@EES, James D Steffes/NA/Enron@ENRON, jbennett@gmsr.com@ENRON, Tamara Johnson/HOU/EES@EES, Jeff Dasovich/Na/Enron@ENRON, James W Lewis/HOU/EES@EES, Leslie Lawner/HOU/EES@EES, Leslie Lawner/HOU/EES@EES cc:

Subject: Meeting 8AM Central Monday

We have agreed on a strategy, subject to Whaley/Delaney approval, to: Scott Stoness submit testimony today advocating 2 part real time pricing in CA Read other parties testimony this weekend from the perspective "Has somebody filed testimony close enough to Stoness testimony, that we can cross examine and brief to a favorable outcome?" Meet on Monday at 8AM to decide whether to rescind Stoness's testimony.

The following dial in number and code corresponds to the Monday 8AM Central Time meeting. 1 800 713 8600 68266 is PIN Scott Stoness is host

Action Items: All on To list above read and have opinion on 2 and 3 above All on To list above meet on Monday at 8AM. Meet in Stoness office if possible. Harry and Jeane polish Stoness testimony and wait to the last minute before submitting it Jeane ensure all on this To list get a copy of testimony, emailed as soon as she gets it.

Scott Stoness

Message 963 of 1299

## IEP Response to ISO Report

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | kaplan@iepa.com                                                                                                    |
| Recipients | ['carol@iepa.com', 'cabaker@duke-energy.com', 'andybrwn@earthlink.net', 'abb@eslawfirm.com', 'steven@iepa.com']... |
| File       | dasovich-j/all_documents/10338.                                                                                    |

Greetings:

IEP has been responding all day to pres questions on the ISO report and=20 filing at FERC. We issued the below statement and are also holding a press= =20 availability tomorrow at 1:00 p.m. Today=01,s television interviews have=20 included, Fox, ABC and NBC.? Thank you to those of you who have forwarded= =20 your company positions to IEP and if you would like to include anything els= e=20 additional please let me know and we will incorporate it into Jan=01,s=20 responses.? In addition to the below points we have been indicating that=20 people have been playing by the rules, timing is rather coincidental,=20 economics don=01,t keep the lights on, and the alleged cost calculation the= ISO=20 has historically used do not include many fixed costs or real costs=20 associated with running the units.?=20

?

Once again if you have any other thoughts please forward them to me.

Thanks!

?

?FOR IMMEDIATE RELEASE ?March22, 2001

Statement by Jan Smutny-Jones, Executive Director of Independent Energy Producers, In Response to Report Issued by the Independent System Operator

???"More than ever, we're looking forward to a fair and impartial hearing= =20 before the Federal Energy Regulatory Commission to deal with the ISO?s late= st=20 round of unsubstantiated charges.

???"Until then, what seems increasingly clear, is that the ISO?s real agend= a=20 is to get out of paying for power it?s already purchased and used by renegi= ng=20 on its obligations and changing the rules after the race is over.

???"Generators have been playing by the rules and have been offering to sel= l=20 power at substantially lower long-term contract rates since last summer. ?H= ad=20 the PUC allowed this, California wouldn?t be facing today?s energy crisis. = ?

???"This latest attempt by the ISO to poison the atmosphere against the=20 generators and use them as scapegoats is clearly more about politics than= =20 trying to solve the problem and keep the lights on in California."

# ????????# ????????#

?

Katie Kaplan

Manager of State Policy Affairs

Independent Energy Producers Association

(916) 448-9499

?

*Message 964 of 1299***Re: Sacramento Pres Final 4\_13\_01(projected).ppt**

|            |                                 |
|------------|---------------------------------|
| Sender     | stephanie.miller@enron.com      |
| Recipients | ['jeff.dasovich@enron.com']     |
| File       | dasovich-j/all_documents/11285. |

Jeff - please call me regarding the growing turmoil surrounding the allocation of Socal and PG&E backbone capacity. In case you did not know, we own 550 MMcf/d on El Paso for a 5 year term in addition to 25 MMcf/d of incremental capacity on Kern's emergency open season. We need to be very plugged in to discussions/meetings/regulatory proceedings in California. (GIR/Gas Accord etc.)

Do you have adequate resources to handle the gas issues in CA? I imagine that you are totally booked just dealing with the power issues.

Please advise.

Regards,

Stephanie

From: Jeff Dasovich on 04/19/2001 12:28 PM Sent by: Jeff Dasovich To: Jeffery Fawcett/Enron@EnronXGate, Steven Harris/ET&S/Enron@ENRON, Drew Fossum/Enron@EnronXGate, Julie A Gomez/Enron@EnronXGate, Shelley Corman/Enron@EnronXGate, Joe Hartsoe/Corp/Enron@ENRON, Stephanie Miller/Corp/Enron@ENRON, James D Steffes/NA/Enron@Enron, skean@enron.com, Linda Robertson/NA/Enron@ENRON, Richard Shapiro/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron, Karen Denne/Corp/Enron@ENRON, mpalmer@enron.com, Sarah Novosel/Corp/Enron@ENRON, Donna Fulton/Corp/Enron@ENRON, Leslie Lawner/NA/Enron@Enron cc:

Subject: Sacramento Pres Final 4\_13\_01(projected).ppt

FYI. Presentation by Brattle Group before CA leg committee yesterday in which they assert market power at the CA border (held by "out-of-state suppliers") explains high gas prices in California. If you have any questions, call me at 415.782.7822. Please forward to others whom you think might be interested. Stephanie, could you forward along to Barry?

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 04/19/2001 12:23 PM -----

Douglas.Porter@sce.com 04/19/2001 11:36 AM

To: jeff.dasovich@enron.com cc: Subject: Sacramento Pres Final 4\_13\_01(projected).ppt

Per your request, attached are the presentation slides from yesterday.

Douglas Porter, Senior Attorney Southern California Edison Company (626)302-3964 (626)302-3990(fax)  
douglas.porter@sce.com(See attached file: DRT2486.PPT) - DRT2486.PPT

*Message 965 of 1299***Welcome New Co-Chair**

|            |                                 |
|------------|---------------------------------|
| Sender     | lgoldseth@svmg.org              |
| Recipients | ['lgoldseth@svmg.org']          |
| File       | dasovich-j/all_documents/27982. |

Dear Energy Committee Members:

After nearly a year of acting as one of your two co-chairs, it is time for me to focus more completely on my duties at Exodus Communications and to bring in new leadership to the Energy Committee. In light of this change, John Redding



and I felt it important for the Committee to choose a well qualified and experienced replacement co-chair that will lead the Energy Committee to continued successes.

After taking nominations for over three weeks, we held formal elections during yesterday's regular committee meeting. Paul Stephens, Joe Desmond, and Nayeem Sheikh were nominated, and responded with intelligent answers to questions given by the committee and it's leadership. After over an hour of questions and thorough answers from the three nominees, your committee selected Joe Desmond to replace myself as your new co-chair.

Joe has a wealth of impressive experience in energy and leadership and a thorough knowledge of energy and the associated issues facing the SVMG companies. He has been an active and valued member of the Energy Committee, and has provided much leadership on salient issues, including Blackout Notification, Real Time Pricing, and Direct Access.

Please welcome and join me in congratulating Joe Desmond as your new co-chair. Along with John Redding, I am certain these two will lead the Committee on the important energy issues of your company, and improve upon the already lengthy list of successes this Committee has achieved for all SVMG companies. They will help to grow the recognition and stewardship the SVMG Energy Committee has attained amongst our peer groups and state and federal policy makers.

I know that Joe will come to speed immediately on leading your Committee. Nonetheless, I will wane my involvement over the next several weeks and assist Joe in transitioning into his new role. We are lucky to have such great leadership by both John and Joe, and I know we will have many more great successes to come. Congratulations and thank you to all of our three nominees, and welcome Co-Chair Joe Desmond.

KC Mares Outgoing Co-Chair, SVMG Energy Committee and Director of Electrical Energy and Utilities Management  
Exodus Communications, Inc. 408-884-6825 kc.mares@exodus.net

---

Message 966 of 1299

**Re: Final draft/letter**

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | mflorio@turn.org                                                                                                   |
| Recipients | ['ek@a-klaw.com', 'mkahl@ka-pow.com', 'dhunter@s-k-w.com', 'jdasovic@enron.com', 'isenberg@hmot.com', 'kmccrea...] |
| File       | dasovich-j/all_documents/28194.                                                                                    |

All-- Attached are my proposed edits to the "framework" in redline form. The vast majority are simply editorial changes designed to clarify language without changing the intended meaning. I would call your attention to Sections 5.1 and 6.3 as the potentially more substantive suggestions. Since the change to 6.3 primarily adds detail to what is clearly described as a small customer proposal and not an agreed-upon item, I would hope that it won't cause any problems. The proposed change to 5.1 is not intended to change the agreed-upon allocation of costs, but simply to provide us with some badly needed "cover." Edison undercollections would be recovered out of "headroom" in existing rates (as was our shared intention), and those rates could only change as provided in Section 4. Thus, core customers would not escape any of the charges that they are expected to bear, but we would provide less of a fat target for others to shoot at. I can be available to discuss this further if needed after the Senate Judiciary committee hearing on the MOU scheduled for Thursday morning (415-254-3597). The proposed letter is another matter altogether. It is so replete with language that we find troubling that an attempt to edit it seemed fruitless. Lenny will circulate a much shorter proposed alternative that simply states what the attached document is, without attempting to characterize people's reasons for supporting it. If that approach is not acceptable, then TURN will not sign on to the letter itself but rather will provide a sentence or two of explanation over our separate signature. Hopefully one or the other of these approaches will work. Thank you all for your hard work on this effort, but I must confess that I did not personally find it to be "oddly satisfying." MIKE

At 04:56 PM 6/27/2001 -0700, Delaney Hunter wrote:

*Folks- If you can believe it, here are the final draft and cover letter. Please look over both of them carefully. If you are good to go let me know -- I still have your signatures from the last cover letter and will use those if all are amenable. If there are BIG issues with either document please reply to ALL members yourselves - don't make me have to send them out to everyone. Thanks to all, Delaney*

- FrameworkEdits.doc

Message 967 of 1299

### Kern River open season

|            |                                                                                     |
|------------|-------------------------------------------------------------------------------------|
| Sender     | jeffery.fawcett@enron.com                                                           |
| Recipients | ['kimberly.watson@enron.com', 'steven.harris@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/12524.                                                       |

Kern River solicits interest in Kramer Junction

Kern River Gas Transmission, a Williams-owned pipeline, is considering building a new meter station at a proposed Kramer Junction interconnection with Southern California Gas. In May, SoCal Gas announced plans for a 200 million cfd system expansion, called the Kramer Junction Interconnect project, including a 32-mile pipe that would link with Kern River and Mojave Pipeline. The project is slated for completion at the end of December (GD 5/16).

Kern River is proposing to construct a meter station at Kramer Junction, with primary firm delivery of up to 500 million cfd. Such new capacity, the pipeline said, is reserved to facilitate a reduction in the facilities otherwise required for [Kern River's] planned 2003 Expansion Project. To do so, Kern River will allow existing 2002 and 2003 expansion project shippers to acquire capacity at the Kramer Junction in return for relinquishing equivalent firm delivery entitlements at the Wheeler Ridge, which interconnects with SoCal Gas.

To maximize the reduction of design requirements and associated costs in its 2003 expansion project, Kern River said it will allocate capacity at Kramer Junction as follows: Capacity will be allocated to any shipper requesting delivery point entitlements to be re-aligned from Wheeler Ridge to Kramer Junction under certain conditions; Capacity will be allocated pro rata among shippers that have no excess entitlements but request to replace Wheeler Ridge entitlements with Kramer Junction entitlements; and Available capacity will be allocated pro rata among shippers that have excess entitlements and request to replace Wheeler Ridge entitlements with Kramer Junction entitlements. Uncommitted Kramer Junction capacity will be made available to all shippers on a first-come, first-served basis, with requests made no earlier than 25 days before the delivery point is in service, Kern River said. In addition, capacity at Kramer Junction delivery point that is committed to the Kern River 2002 or 2003 expansion projects in this request process will also be available on a first-come, first-served basis.

Interested parties should contact Jeff Leishman at 801-584-6682. VK

Message 968 of 1299

### FW: ACR Inviting Comment On DWR/CPUC Proposed Rate Agreement

|            |                                |
|------------|--------------------------------|
| Sender     | jeff.dasovich@enron.com        |
| Recipients | ['michael.tribolet@enron.com'] |
| File       | dasovich-j/sent/12053.         |

----- Forwarded by Jeff Dasovich/NA/Enron on 07/18/2001 06:42 PM -----

JBennett <JBennett@GMSSR.com> 07/18/2001 05:31 PM

To: "Harry Kingerski (E-mail)" <Harry.Kingerski@enron.com>, "Jeff Dasovich (E-mail)" <jdasovic@enron.com>, "Jim Steffes (E-mail)" <James\_D\_Steffes@enron.com>, "Sue Mara (E-mail)" <smara@enron.com> cc: Subject: FW: ACR Inviting Comment On DWR/CPUC Proposed Rate Agreement

Attached is an ACR issued today requesting comment on the Rate Agreement reached by the CPUC and DWR (which I will send under separate cover). The ACR highlights certain aspects of the Agreement and asks for parties to evaluate the

effects of the Agreement and indicate what they believe the consequences of its adoption would be. Comments are due by August 1st.

The Agreement itself basically calls for DWR to set its revenue requirement based on "Bond Related Costs" and "Operating Expenses" and for the Commission to implement such revenue requirement. It is up to DWR to determine whether the revenue requirement is just and reasonable prior to submitting it to the Commission.

Please let me know if Enron is interested in Commenting on the Agreement.

Jeanne Bennett

-----Original Message-----

From: Wong, John S. [mailto:jsw@cpuc.ca.gov] Sent: Wednesday, July 18, 2001 10:11 AM Subject: ACR Inviting Comment On DWR/CPUC Proposed Rate Agreement

Attached is an assigned Commissioner ruling (ACR) inviting comment on the proposed rate agreement between the California Dept. of Water Resources and the California Public Utilities Commission. Interested parties may file comments with the Docket Office on or before August 1, 2001.

Please note that there are three attachments to the ACR. Attachment A, the proposed rate agreement, is being forwarded to you as a separate PDF document. Attachment B, the relevant Water Code sections, is contained in the body of the attached Word document. Attachment C is the two page letter from the DWR, the Dept. of Finance, and the Treasurer's Office to President Lynch dated July 2, 2001. Attachment C was previously distributed to the A.00-11-038 et al service list in the Chief ALJ's ruling dated July 5, 2001. Today's ACR and all three of the attachments can also be accessed at the CPUC's web site.

<<A0011038 Lynch Ruling.doc>>

John S. Wong CPUC - ALJ (415) 703-3130

- A0011038 Lynch Ruling.doc

---

Message 969 of 1299

#### Understanding Internet Protocol (IP) - June 6 & June 7 - Houston -

|            |                                                                                   |
|------------|-----------------------------------------------------------------------------------|
| Sender     | sue.nord@enron.com                                                                |
| Recipients | ['barbara.hueter@enron.com', 'allison.navin@enron.com', 'carmen.perez@enron.com'] |
| File       | dasovich-j/all_documents/13112.                                                   |

If anyone is interested in this course, please let Carmen know. I had registered but will not be able to attend. Thanks.

Sue Nord, Sr. Director Government Affairs 713 345-4196

----- Forwarded by Sue Nord/NA/Enron on 05/29/2001 08:36 AM -----

Lara Leibman@ENRON COMMUNICATIONS 05/14/2001 08:42 AM

To: Sue Nord/NA/Enron@Enron cc: Subject: Understanding Internet Protocol (IP) - June 6 & June 7 - Houston - Shepherd Sue,

I would like to take this course. Is that ok? Also, I think this would be a great class for everyone to take. What do you think? Thanks.

Lara ----- Forwarded by Lara Leibman/Enron Communications on 05/14/01 08:48 AM

---

EBS Education Center Sent by: EBS Announcements 05/11/01 05:43 PM

To: All EBS Employees Worldwide cc: Subject: Understanding Internet Protocol (IP) - June 6 & June 7 - Houston - Shepherd

To: All EBS Employees From: EBS Education Center Subject: Understanding Internet Protocol (IP) - June 6 & June 7 - Houston - Shepherd

Understanding the Internet Infrastructure and Internet Protocol (IP)

This one day seminar is designed to introduce the infrastructure of the Internet and IP network technology. A detailed agenda is provided below.

Dates: June 6, 2001 - Houston - Shepherd Facility June 7, 2001 - Houston - Shepherd Facility Time: 8:30 am - 5:00 pm  
Cost: \$450 (charged to your cost center)

Cancellation Policy: Cancellations must be received 48 hours prior to class date to avoid being charged.

1. Course Introduction The Internet Protocol Suite in Enterprise Networks The Internet Protocol Suite in Public Networks The Expanding Application Suite
2. Network And Transport Protocols IP over Local Area Networks (LANs) and Wide Area Networks (WANs) Modern IP Addressing Methods Using the Domain Name System Internetworking with Routers IP Routing Protocols Transmission Control Protocols (TCP) User Datagram Protocol (UDP) Quality of Service Tools Internet Protocol version 6 (IPv6)
3. Network Security Problem Definition Tools to Protect the Enterprise Network Screening Routers Firewalls Encryption Authentication Certification Security Systems Applied
4. Virtual Private Networks (VPNs) Outsourcing the Enterprise Network Solutions for Remote Access VPNs Solutions for Site-to-Site VPNs Solutions for Extranet VPNs

To register, click on this link ---->>

---

Message 970 of 1299

## RE: Top Level Energy Person

|            |                                                                      |
|------------|----------------------------------------------------------------------|
| Sender     | plinn@calstate.edu                                                   |
| Recipients | ['triley@enron.com', 'mcurtis@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/9203.                                       |

Tom, Kari Dohn has agreed to speak at our March 11, 2001 dinner. Thank you very much for your help. I look forward to seeing you in Sacramento on March 11, 2001. Thanks, again. Patricia.

-----Original Message-----

From: TRiley@enron.com [mailto:TRiley@enron.com] Sent: Tuesday, February 13, 2001 4:13 PM To: Patricia Linn Cc: MCurtis@enron.com; Jeff.Dasovich@enron.com Subject: RE: Top Level Energy Person

Patricia,

Good hearing from you.

From our contact with the Governor's office, we feel Kari Dohn, formerly in the Governor's office, and recently appointed Chair of the Electricity Oversight Board, would be an ideal candidate.

Kari would likely be most receptive if the request came from the CSU. You can tell her she was referred to you by Jeff Dasovich of Enron. Kari's number is 916-324-3501.

Let me know if there is anything else we can assist you with. I look forward to seeing you in Sacramento next month!

Regards,

Tom Riley

-----Original Message-----

From: "Patricia Linn" <plinn@calstate.edu>@ENRON@EES Sent: Wednesday, February 07, 2001 2:13 PM To: <tom.riley@enron.com> Subject: Top Level Energy Person Importance: High

Greetings Tom, in preparation for our upcoming Board of Governors' meeting, I would like to ask you for your help in getting a speaker for the evening. The March 11 (Sunday) Board meeting in Sacramento is focused around CSU Legislative Day scheduled for Monday, March 12. The Board meeting is scheduled to begin at 4:00 pm followed by a dinner. We will invite the CSU Trustees to attend the dinner along with other key CSU leaders; we normally have about 30-40 individuals attend the dinner.

This year, we would like to invite someone from the Governor's office to come and talk a little about the energy crises in California. Can you help us identify someone in Davis' administration that may be interested in speaking to this distinguished group of individuals?

Again, briefly, Meeting date/time: Sunday, March 11, 2001 at 4:00 pm; dinner is scheduled for 6:45pm; in Sacramento.

I look forward to hearing from you soon.

Patricia Castillo Linn, CFRE Senior Director, Advancement Programs and Vice President, CSU Foundation The California State University Office of the Chancellor 401 Golden Shore, 6th Floor Long Beach, California 90802-4210 562/951-4821 562/951-4983 FAX

- winmail.dat << File: winmail.dat >>

Message 971 of 1299

### Request Confidential Information by FERC

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | mary.hain@enron.com                                                            |
| Recipients | ['susan.mara@enron.com', 'jdasovic@ees.enron.com', 'mona.petrochko@enron.com'] |
| File       | dasovich-j/notes_inbox/342.                                                    |

We will be asking for confidential treatment unless and until the FERC requires similar information to be released by all market participants. ----- Forwarded by Mary Hain/HOU/ECT on 09/08/2000 04:28 PM

To: Mary Hain/HOU/ECT@ECT cc: Subject: Request Confidential Information by FERC

----- Forwarded by Chris H Foster/HOU/ECT on 09/08/2000

04:19 PM -----

Enron Capital & Trade Resources Corp.

From: <Terri\_L\_Ponce\_de\_Leon@calpx.com> 09/08/2000 04:19 PM

To: Market\_Participant\_AB1@calpx.com, Market\_Participant\_CD2@calpx.com, Market\_Participant\_EG1@calpx.com, Market\_Participant\_EG2@calpx.com, Market\_Participant\_HJ1@calpx.com, Market\_Participant\_KL2@calpx.com, Market\_Participant\_MN1@calpx.com, Market\_Participant\_MN2@calpx.com, Market\_Participant\_OR2@calpx.com, Market\_Participant\_UZ1@calpx.com cc: Karen\_Y\_Koyano@calpx.com Subject: Request Confidential Information by FERC

To All California Power Exchange Participants:

Notice is hereby provided pursuant to Section 19.3.4 of the California Power Exchange Tariff that the staff of the Federal Energy Regulatory Commission (FERC), as part of its investigation of California markets, has requested information that may be confidential under Section 19.3.2 of the Tariff. Such information consists of participant specific schedules and bids. The FERC staff has requested the California Power Exchange to provide such information no later than 24 business hours after the date of this notice. If you desire to assert a claim of privilege or confidentiality pursuant to FERC's regulations or other legal authority, the California Power Exchange will include your written assertion of that claim together with its submittal to the FERC staff, provided that it is timely received. Your written statement should be directed to FERC and

delivered to:

Karen Koyano California Power Exchange 1000 S. Fremont Avenue Building A-9 W, Fifth Floor Alhambra, CA 91801  
626.537.3173 facsimile

Information must be received no later than Tuesday, September 12, 2000, 9:00 A.M. PDT, to be included with any information delivered to the FERC staff. You are also free to take any other legal action you may deem appropriate in the circumstances of this investigation.

Thank you.

Message 972 of 1299

#### Additional Gas Item --- RE: Western Wholesale Activities - Gas &

|            |                                                                                                      |
|------------|------------------------------------------------------------------------------------------------------|
| Sender     | rebecca.cantrell@enron.com                                                                           |
| Recipients | ['susan.mara@enron.com', 'steve.walton@enron.com', 'ray.alvarez@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/all_documents/13470.                                                                      |

Another gas item which I had not gotten around to adding to the table yet:

Docket No. CP01-106 Response to Kern River Petition for Declaratory Order Due: June 11 (?) Affects the California Emergency Project to add 135 MM/d of capacity approved by FERC on April 6 with an expected in-service date of July 1, 2001. On April 5 SoCal Gas notified Kern River that, pursuant to the terms of a 1989 agreement between them, SoCal Gas was entitled to first rights, and was asserting such rights, on this or any capacity expansions into California on Kern's system. We will support Kern River's petition. Comments are being drafted. SoCal Gas has asked FERC not to approve the shortened comment period of June 11; FERC has not responded yet.

From: Alan Comnes/ENRON@enronXgate on 06/07/2001 01:03 PM To: Ray Alvarez/NA/Enron@ENRON, Steve Walton/HOU/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Leslie Lawner/NA/Enron@Enron, Rebecca W Cantrell/HOU/ECT@ECT, Donna Fulton/Corp/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, Christi L Nicolay/HOU/ECT@ECT, James D Steffes/NA/Enron@Enron, jalexander@gibbs-bruns.com@SMTP@enronXgate, Phillip K Allen/ENRON@enronXgate, Linda J Noske/HOU/ECT@ECT, Dave Perrino/SF/ECT@ECT, Don Black/HOU/EES@EES, Robert Frank/NA/Enron@Enron, Stephanie Miller/ENRON@enronXgate, Barry Tycholiz/ENRON@enronXgate, Steve C Hall/ENRON@enronXgate, Sarah Novosel/Corp/Enron@ENRON cc: Subject: RE: Western Wholesale Activities - Gas & Power Conf. Call Privileged & Confidential Communication Attorney-Client Communication and Attorney Work Product Privileges Asserted

Western Wholesale Activities Conference Call - Gas & Power Date: Today and Every Thursday Time: 1:00 pm Pacific, 3:00 pm Central, and 4:00 pm Eastern time, Number: 1-888-271-0949 Participant Code: 936022

In Ray's absence, I am facilitating today's call. The proposed agenda (Item numbers refer to the proceedings document row number):

Electric 1. Responses to ISO and CA utility RTO filings due June 19 (item 9a) 2. ATC Complaint - next steps (item 20) 3. RTO Seams Conference 6/19/01 and request to speak due tomorrow 6/8/01 (item 37) 4. ISO withholding of as-bid and OOM price data 5. Generator data requests - (Hatsoe)

Gas 6. Response to FERC to Re-Impose Transportation Price Caps (item 36) 7. Quarterly reporting requirements (item 35) 8. Gas-related data requests (item 33)

Message 973 of 1299

**HELP!! DESPERATE!! DO YOU KNOW THIS PERSON??**

|            |                              |
|------------|------------------------------|
| Sender     | geri@focusteam.com           |
| Recipients | [geri@focusteam.com]         |
| File       | dasovich-j/notes_inbox/1457. |

OR ARE YOU THIS PERSON?? My name is Geri Ulukou, and I've been retained by the VC firm for Vestive (formerly OrderCare) in Fremont, they desperately need a VP of Engineering and was hoping you could help!! Vestive enables post-order commerce by automating the delivery and processes around the post-order services & flexibilities (like re-route of shipments, defer or cancel, change quantities, etc. They also have something that other start-ups don't: CUSTOMERS. Please review the description below and contact me if you have an interest or an interested friend! Thanks!! THE VP OF ENGINEERING will work closely with the marketing, business development and professional services to establish requirements, goals, schedules and milestones, and will lead the development and deployment of the systems. REQUIREMENTS: Advanced degree in Computer Science (preferred) and 10+ years of excellent track record. Experience motivating, leading and managing world-class teams of 20 or more software architects and engineers. Experience designing and developing large, highly scalable, distributed Internet based software systems using rapid development and object oriented methodologies In-depth understanding of internet and distributed software engineering technologies and practices, i.e. ATG Dynamo, EJB, Firewalls, HTML, Intranet, Java, Javascript, J2EE, JDBC, JSP, Servlets, Weblogic, TCP/IP, GUI, ODBC, Client/Server, OOD/GUI, Oracle, Packaged Business Solutions, etc. Exposure to rule-based systems like iLog and Versata, and adaptive learning technologies is a big plus

Geri Ulukou (650) 573-6671 Executive Search Consultant FocusTeam.com 4159 Interdale Way Palo Alto, CA 94306

To see other job descriptions please click on the following link (contract positions available also) or feel free to call or email me thanks again and I hope to hear from you soon: <http://64.60.124.8/FTwcc.nsf>

We respect your Online Privacy. This is not an unsolicited mail. Under Bill s.1618 Title III passed by the 105th U.S. Congress this mail cannot be considered Spam as long as we include contact information and a method to be removed from our mailing list. If you are not interested in receiving our e-mails then please reply to geri@focusteam.com with the word remove to be removed with any e-mail addresses which might be diverting the e-mails to you. I am sorry for the inconvenience caused to you.

Message 974 of 1299

**FW: Calif Gov To Make 'Important' Energy Announcement Thurs**

|            |                                                                                    |
|------------|------------------------------------------------------------------------------------|
| Sender     | richard.shapiro@enron.com                                                          |
| Recipients | ['susan.mara@enron.com', 'jeff.dasovich@enron.com', 'michelle.cisneros@enron.com'] |
| File       | dasovich-j/all_documents/10629.                                                    |

----- Forwarded by Richard Shapiro/NA/Enron on 04/04/2001

11:28 AM -----

"Hapner, Dede" <DXH4@pge.com> on 04/04/2001 11:16:37 AM To: "'rshapiro@enron.com'" <rshapiro@enron.com> cc:

Subject: FW: Calif Gov To Make 'Important' Energy Announcement Thurs

-----Original Message----- From: Luo, Jay Sent: Wednesday, April 04, 2001 8:05 AM To: RRQ Revenue Requirements Department Cc: Hapner, Dede Subject: Calif Gov To Make 'Important' Energy Announcement Thurs Calif Gov To Make 'Important' Energy Announcement Thurs LOS ANGELES (Dow Jones)--In a highly unusual move, California Gov. Gray Davis Tuesday requested radio and television stations in the state to clear five minutes of time Thursday evening so he can make an important announcement regarding the state's energy crisis. Davis is expected to deliver a speech at 6:05 p.m. PST and will likely talk about the state's conservation efforts, a 4,000 megawatt shortfall expected next month, the need to bring new



generation online, recent rate hikes ordered by the California Public Utilities Commission, and the possibility for further rate increases this summer to keep the state's three investor-owned utilities solvent, sources close to Davis told Dow Jones Newswires. The source said Davis is not expected to discuss a final agreement to buy the power lines owned by PG&E Corp., unit Pacific Gas & Electric, Edison International's unit, Southern California Edison, and Sempra Energy's unit, San Diego Gas & Electric. Davis' press secretary, Steve Maviglio, would not comment on Davis' speech. In a memo to the media, Davis' office said the governor will "deliver an important live address on energy from his office in Sacramento. During this historic address to the people of California, the governor will speak in detail about California's energy emergency and make an important announcement." The last time a California governor interrupted a broadcast schedules was in 1992, when Republican Gov. Pete Wilson delivered a speech about the state's budget problems, a spokesman in Davis' office said. But Davis' staff said "this is the first time in recent memory that a Governor has asked for time statewide to deliver a live address to the people of California." -By Jason Leopold; Dow Jones Newswires; 323-658-3874;

Message 975 of 1299

Re: INFO

|            |                                                                                                              |
|------------|--------------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                      |
| Recipients | ['jennifer.thome@enron.com', 'karen.denne@enron.com', 'janel.guerrero@enron.com', 'james.steffes@enron.com'] |
| File       | dasovich-j/all_documents/12343.                                                                              |

Great. Thanks. I intended, and will be sure, to include Karen on the stuff that I pull together today. Karen, if there's anything else I need to do to coordinate.

Best, Jeff

Janel Guerrero 05/11/2001 10:56 AM

To: James D Steffes/NA/Enron@Enron, Karen Denne/Corp/Enron@ENRON cc: Jeff Dasovich/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron Subject: Re: INFO

Jeff,

Since Karen and Marathon have been leading on the CEO outreach efforts to date, I think it's more efficient if ALL CEO-related efforts are coordinated with Karen and Marathon. Please use karen as your point person. Thanks!

James D Steffes 05/11/2001 09:10 AM

To: Jeff Dasovich/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron cc: Subject: INFO

Jeff -

I would recommend that you (if needed) use Jennifer to help.

Jim

----- Forwarded by James D Steffes/NA/Enron on 05/11/2001

09:09 AM -----

Steven J Kean 05/11/2001 08:35 AM To: Jeff Dasovich/NA/Enron@Enron cc: Sandra McCubbin/NA/Enron@Enron, Paul Kaufman/Enron@EnronXGate, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON

Subject:

Ken Lay spoke with several California CEOs this morning and urged them to get personally involved in pushing for a comprehensive set of reforms. Three expressed willingness to help.

Scott McNealy (Sun): contact person - Piper Cole (piper.cole@sun.com); scott.mcnealy@engeng.sun.com. Mcnealy wants, by close of business today, a "cheat sheet" of the talking points to use with politicians (the "8 or 10 elements of the

solution") with the expected comeback he may hear from the political leaders and our response to that comeback. He says he hasn't spent time working on issues in Sacramento so we may also want to include a list of suggested contacts. Kevin Sharer (Amgen): contact person - Sarah Jensen, VP of Engineering and Operations (805.447.6785); ksharer@amgen.com. Sharer wants the same information as McNealy and he and McNealy both indicated their willingness to call a meeting of other California CEOs. Sharer will also be having breakfast with Hertzberg one week from today. Robert Day (Trust Co of the West): said that he is very close to the mayor of Los Angeles. He urged Ken to call the mayor (mentioning Day). Ken would like some talking points for that call.

Jeff - please put these items together.

---

Message 976 of 1299

#### Article about the FERC Judge comments

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | donna.fulton@enron.com                                                     |
| Recipients | ['susan.mara@enron.com', 'ray.alvarez@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/all_documents/28312.                                            |

To see what Morningstar analysts are saying about the latest news, click here.?

If you have questions or comments about this topic, check out our message boards.?

FERC Judge Rips Calif, Generators; Demands Sales Data

06-29-01??06:05 PM EST ??by?Bryan Lee ??]?Of DOW JONES NEWSWIRES WASHINGTON -(Dow Jones)- The U.S. Federal Energy Regulatory Commission judge overseeing settlement talks between California and power sellers ripped into both sides Friday in an effort to spur progress in the moribund negotiations, according to sources. "It's fair to say that everybody got their rap on the knuckles," said one source. Curtis Wagner, FERC's chief administrative law judge, read a statement during the confidential settlement negotiations dressing down California regulators and market institutions for a lack of political independence. Wagner, in what one source described as a "tirade," complained that the California Independent System Operator's politically appointed board, headed by Michael Kahn, lacks necessary independence as a market institution. Further, Wagner complained that the California Public Utilities Commission and investor-owned utilities in the state were deferring too much to the politically compromised Kahn in negotiations. The lack of independence was such a "joke" that the parties might as well wear "clown suits," Wagner said, according to those familiar with his comments. However, Wagner didn't spare the power providers from strong criticism. He took generators to task for exercising market power and deriving obscene profits, the sources said. Sources described the incident as perhaps a ploy by Wagner to jump-start the fast-track settlement talks, scheduled to conclude July 9. California Gov. Gray Davis is demanding nearly \$9 billion in refunds for power sales in California during the past year. As the negotiations got underway Monday, Wagner dismissed that amount as too high, suggesting a more reasonable figure of between \$1 billion to \$2.5 billion. However, California ISO Chairman Kahn has held fast to Davis' demand for \$9 billion. Wagner instructed the negotiating parties to work during the weekend to develop concrete figures on power sales, revenue, costs and proposed refund amounts for his consideration on Monday, according to the sources. -By Bryan Lee, Dow Jones Newswires; 202-862-6647; Bryan.Lee@dowjones.com (This story was originally published by Dow Jones Newswires) ?

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Message 977 of 1299

#### GOVERNOR DAVIS SIGNS EXECUTIVE ORDERS

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                         |
| Recipients | ['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/sent/4383.                                                           |

PR01: 174 FOR IMMEDIATE RELEASE 04/26/2001

GOVERNOR DAVIS SIGNS EXECUTIVE ORDERS TO PROVIDE POWER TO CALIFORNIA SACRAMENTO Governor Gray Davis has signed three executive orders to increase stabilization, conservation and generation of power in California. Executive Order D-34-01 Many numerous and complicated statutes, regulations, policies and procedures are delaying deployment of the energy conservation funding outlined in SB 5X and AB 29X signed by the Governor two weeks ago. Executive Order D-34-01 will speed up implementation of the measures. Together, the two bills provide over \$850 million for energy conservation and distributed generation programs designed to save over 2,000 megawatts this summer. With the Executive Order, the Energy Commission will not have to go through the cumbersome process of guideline adoption to approve funding. The programs in the demand reduction program that will be streamlined included: Public Agency Loans and Grants (ECAA); Time-Of-Use and Real-Time Meters; Municipal Program; and Cool Roofs/Building Materials Executive Order D-33-01 Governor Davis signed Executive Order D-33-01 to extend the conservation rebate of the "20/20" program to the customers in the territory serviced by the San Diego Gas and Electric Company. The program is designed to help the state avoid the likelihood of blackouts this summer and reward consumers who significantly conserve energy. In addition, it could save the state up to \$1.3 billion in power costs by reducing the amount of electricity the state must buy during expensive summer peak periods. Executive Order D-32-01 In Executive Order D-32-01, Governor Davis orders the transfer of funds from the Energy Commission to the Department of Water Resources for implementation of the power plant construction incentive program. Incentives will include: \$5,000 per megawatt (MW) of average electrical output on the first 100 MW and \$2,500 per MW for each MW above 100 MW, if brought on-line by July 1, 2001; \$4,000 per MW of average electrical output on the first 100 MW and \$2,000 per MW for each MW above 100 MW, if brought on-line between July 2, 2001 and August 1, 2001; and \$3,000 per MW of average electrical output on the first 100 MW and \$1,500 per MW for each MW above 100 MW, if brought on-line between August 2, 2001 and August 31, 2001.

Executive Order D-32-01

Executive Order D-33-01

Executive Order D-34-01

###

GOVERNOR GRAY DAVIS ?SACRAMENTO, CALIFORNIA 95814 ? (916) 445-2841

Message 978 of 1299

## Re: public relations with Helix?

|            |                                                        |
|------------|--------------------------------------------------------|
| Sender     | eric.letke@enron.com                                   |
| Recipients | ['peggy.mahoney@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/10319.                        |

SD only is fine. I think we need to get in DeeDee Alpert's hands (Sen SD). Can you please get with Jeff Dasovich on how we do that? ----- Forwarded by Eric Letke/DUB/EES on 03/22/2001 11:53 AM

Peggy Mahoney 03/22/2001 11:32 AM To: Eric Letke/DUB/EES@EES cc: Max Eberts/HOU/EES@EES Subject: Re: public relations with Helix?

ok, but lets just release in San Diego. If your strategy is the legislature, as well as future sales, lets also say we are announcing our 100th agreement this year or something like that. Peggy

Max - can we see a draft by Fri at 12:00pm?

Eric - what number customer are they?

Thanks Peggy

Eric Letke 03/22/2001 08:47 AM To: Peggy Mahoney/HOU/EES@EES cc: Subject: Re: public relations with Helix?

I would like this to be visable (i.e., something we can point to with the legislature). I see your point but more than likely, if we ever source some customer's from SDG&E, it will be a select group. I firmly believe if we ever made a decision to source all of the customer's from SDG&E, it would be because we have choosen to leave CA.

I am willing to take a chance with this one. Your thoughts? ----- Forwarded by Eric Letke/DUB/EES on 03/22/2001 08:44 AM

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Peggy Mahoney 03/21/2001 07:29 PM To: Eric Letke/DUB/EES@EES cc: Max Eberts/HOU/EES@EES Subject: Re: public relations with Helix?

As much as I want to do this, I am concerned about making a public statement in light of potential future changes. How about a customer testimonial that sales could use?

Peggy ----- Forwarded by Peggy Mahoney/HOU/EES on 03/21/2001 07:27 PM -----

Lyle White 03/19/2001 09:57 AM To: Peggy Mahoney/HOU/EES@EES cc: Subject: Re: public relations with Helix?

We have a fixed price contract for 6 years and 8 months with Helix Water District.

The fixed price contract avoids California price volatility and insures budget certainty for Helix. Helix strongly believes in direct access.

The contract is for 12 million kilowatt hours per year.

I will have total annual dollar and total contract value this Thursday. There is a new facility being added this summer that will expand the totals.

Helix serves the San Diego suburbs of La Mesa, El Cajon, and Spring Valley.

They are going to announce our agreement at their board meeting this Wednesday, March 21st.

After that announcement, the are willing to proactively participate in a press release expounding the benefits of our arrangement.

Lyle White 602-795-5786

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*Message 979 of 1299*

### SB 1x passes the Senate

|            |                                                                        |
|------------|------------------------------------------------------------------------|
| Sender     | cmicheli@carpentersnodgrass.com                                        |
| Recipients | ['steven@iepa.com', 'smccabe@mccabeandcompany.net', 'smara@enron.com'] |
| File       | dasovich-j/notes_inbox/3565.                                           |

SB 1x passed the State Senate late this afternoon by a vote of 25-12. Senator Soto spoke in support arguing that the money should be returned to taxpayers.? The flate rate of the refundable tax credit will be determined by the FTB.? Senator Scott said that FERC has failed to act.? This bill will regulate the price of electricity in CA.? He said that the PUC will be allowed to review and adjust the base price for the tax, and that the PUC could allow additional exemptions (is this an unconstitutional delegation of authority?).? Also, a long-term contract arrangements are exempt from the bill. Senator Morrow spoke in opposition.? He said that the bill is not about relief.? Rather, it redistributes wealth and should be changed to refund the money to consumers. Senator Battin spoke in opposition.? He cited the planned Intergent plant in North Palm Springs.? THis bill does not solve the crisis.? It just discourages generators from building in this state. Senator Dunn said that emergency steps must be taken and that he supports this bill.? Otherwise, CA's wealth will go out of the state, primarily to Texas. Senator Polanco spoke in support and said that ratepayers are being gouged.? Billions in profits have been reaped by generators. Senator McClintock spoke in opposition and said that power plants are not being built here and that this bill will stop the construction of plants in CA. Senator Peace spoke in support and said that FERC has failed to enforce the law. Senator Perata spoke in support and said that generators have gotten caught red-handed and now need to pay a penalty. Senator Haynes spoke in opposition and said that the constitution will be violated by this bill

and that companies will sell to other states, rather than California.

Senator Bowen spoke in support of the bill.? She asked why we should have the welcome mat out to CA when these companies are charging 300% more in their prices then just a year or two ago.? She also indicated that the Legislative Counsel has given them an opinion that this bill is constitutional because it only applies to the electrons flowing into the state.? Whatever that means? No Republicans voted for the bill.? No Democrats voted against it.? Final vote was 25-12. However, if the Assembly or Senate adjourns the Special Session without passing this bill and/or AB 128x, then both measures will die.

Chris Micheli, Esq. Carpenter Snodgrass & Associates 1201 K Street, Suite 710 Sacramento, CA? 95814 (916) 447-2251  
FAX: (916) 445-5624 EMAIL: cmicheli@carpentersnodgrass.com

Message 980 of 1299

### Important eProcurement Information

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | enron.announcements@enron.com                                                  |
| Recipients | ['corp.list@enron.com', 'erin.abdelnour@enron.com', 'shelley.robbs@enron.com'] |
| File       | dasovich-j/all_documents/28209.                                                |

#### eProcurement

You have been identified as a future user of eProcurement. eProcurement is= coming to Corporate on Monday, July 2nd!=

Keep this information to help you transition to the new eProcurement system= .

When should I use eProcurement? Use eProcurement to buy: \* Office Supplies: toner cartridges, printer paper, tablets, pens, and mo= re! \* IT Hardware: new hire workstations, monitors, printers, keyboards,= etc. =

How does eProcurement work? \* Go to <<http://ibuyit.enron.com>> and logon to eProcurement. \* Use the catalog or a template to fill the shopping cart and order the= items. \* The request will be processed and fulfilled. It=,s that easy!

If the shopping cart requires additional approval: \* The shopping cart will automatically be routed for approval based on the= requestor=,s reporting structure and the monetary approval limits of thei= r= business unit. \* The approver will receive e-mail notification that there is a shopping= cart that requires their approval. = \* Upon rejection, the requestor will receive e-mail notification that thei= r= shopping cart was rejected. \* Upon approval, the shopping cart will be processed and your order= fulfilled. = \* The approver will log onto eProcurement and accept or reject the shoppin= g= cart. \* Note: if the shopping cart exceeds your spend limit or contains IT= hardware items it will require additional approval/review.

How do I get security to access eProcurement? Receipt of this e-mail indicates that you have been identified as an= eProcurement Requestor or Approver, and that you will have access to the= system beginning July 2nd. Other users should contact ISC Customer Care to= request security to access the system. =

How can I receive eProcurement training? \* Visit the ISC Education Center to sign-up for system demonstrations and/= or= hands-on classroom training, and to access on-line training: < <http://iscedcenter.enron.com>> \* Visit the ISC Document library for Quick Reference Cards and other help= ul= training materials:  
<<http://isc.enron.com/site/doclibrary/user/default.asp>>=

Go live packets coming soon! An eProcurement Go Live packet will be sent to all recipients of this= e-mail. Packets will include laminated Quick Reference Cards, spend/approv= al= limits, and other helpful information. If you do not receive a packet by= July 13th, please contact iBuyit.

Who do I call for help? Call ISC Customer Care at (713) 345-4727.

Questions? For general information about iBuyit, send an e-mail to < <mailto:ibuyit@enron.com>>.

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Message 981 of 1299

### Presentation to faculty and students at Berkeley

|            |                                                                                         |
|------------|-----------------------------------------------------------------------------------------|
| Sender     | james.steffes@enron.com                                                                 |
| Recipients | ['Vince J Kaminski/HOU/ECT@ECT', 'jeff.dasovich@enron.com', 'vince.kaminski@enron.com'] |
| File       | dasovich-j/all_documents/1573.                                                          |

Vince --

Please feel free to also call Jeff Dasovich (415-782-7822) in our San Fransisco office. He has been very involved in the California market discussions and presented before FERC during their field hearings. He knows the pros you are meeting with and has some great insights into our positions.

Jeff also attended Berkeley as an undergrad and is now attending their B-school in the evenings.

Thanks.

Jim Steffes

----- Forwarded by James D Steffes/HOU/EES on 09/20/2000

09:33 AM ----- From: Steven J Kean@ENRON on 09/20/2000 09:21 AM Sent by: Steven J Kean@ENRON To: Maureen McVicker/NA/Enron@Enron, James D Steffes/HOU/EES@EES, Elizabeth Linnell/NA/Enron@Enron cc: Vince J Kaminski/HOU/ECT@ECT Subject: Presentation to faculty and students at Berkeley

Maureen -- please send Vince my California testimony and the talking point presentation for Jeff Skilling at the National Press Club. Eliz-- keep Vince on the distribution list for the documents we are generating now to repond to the California situation. ----- Forwarded by Steven J Kean/NA/Enron on 09/20/2000 09:18 AM -----

Vince J Kaminski@ECT 09/18/2000 01:26 PM

To: Steven J Kean/NA/Enron@Enron cc: Charlene Jackson/Corp/Enron@ENRON, Celeste Roberts/HOU/ECT@ECT, Vince J Kaminski/HOU/ECT@ECT, Ashley Baxter/Corp/Enron@Enron Subject: Presentation to faculty and students at Berkeley

Steve,

I am a lead recruiter at the University of California at Berkeley for Enron Analyst/Associate program.

I contacted several friends who work at Berkeley and received an invitation from one of them to make a presentation at the weekly Faculty Seminar of the Dept. of Industrial Engineering and Operations Research.

The students and faculty members from the business school will be also invited.

Berkeley in general, and Department of Industrial Engineering and Operations Research in particular, are important centers of academic research on electricity markets (S. Oren works very closely with Severin Borenstein).

My presentation will focus on the Analyst/Associate program. I shall also have an opportunity to discuss the power markets in California (I expect many questions) before many experts who are very important to shaping public opinion and regulatory agenda.

Please, let me know who in you group could help me in preparing this presentation and in presenting Enron's point of view in a more effective way.

Vince

FYI. The name of my friend who invited me:

Shmuel S. Oren, Professor Dept. of Industrial Engineering and Operations Research 4117 Etcheverry Hall University of California Berkeley, CA 94720-1777

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Message 982 of 1299

### Amory Lovins Speaking at Haas

|            |                                                                    |
|------------|--------------------------------------------------------------------|
| Sender     | owner-evmba_social@haas.berkeley.edu                               |
| Recipients | ['dkelso@socrates.berkeley.edu', 'lidicker@socrates.berkeley.edu'] |
| File       | dasovich-j/all_documents/10619.                                    |

PLEASE FORWARD TO INTERESTED FOLK...

Business and the Environment Day at UC Berkeley April 19th -

Seating is limited for all events - Come Early! Free admission

12:45-2:00 pm: Second Annual Haas Earth Day Lecture on Business and the Environment Amory Lovins, CEO (Research), Rocky Mountain Institute "Natural Capitalism: The Next Industrial Revolution" Introduction by Dean Laura Tyson Wells Fargo Room, Haas School of Business at UC Berkeley

Amory Lovins, co-author of Natural Capitalism, will discuss how changes in natural capital (the natural environment and ecosystems that support all human and economic activity) are already affecting the way we do business, and how leading corporations are gaining competitive advantage through superior environmental performance. He will talk about how corporations can employ advanced resource productivity strategies to move toward becoming ecologically sustainable, reduce environmental impact, and improve the bottom line.

Mr. Lovins is the co-founder and CEO (Research) of Rocky Mountain Institute (RMI), a nonprofit organization that assists businesses, communities, and governments to create more wealth and employment, protect and enhance natural and human capital, and increase profit and competitive advantage through resource and operational efficiency. The Wall Street Journal named Mr. Lovins one of 39 people world-wide "most likely to change the course of business in the '90s"; Newsweek has praised him as "one of the Western world's most influential energy thinkers"; and Time recognized him with one of their Hero of the Planet awards.

Sponsored by the Haas School of Business and Net Impact at Haas For more information, contact Eric Strand at strand@haas.berkeley.edu

3:00-5:00 pm: Energy and Resources Group Energy Forum Dr. Severin Borenstein, UC Energy Institute Prof. Richard Norgaard, Energy and Resources Group, and others "Re-De-Regulation: Planning, Learning, Blundering and the Future of Electricity in California" Sibley Auditorium, Bechtel Engineering Center

Sponsored by the Energy Resources Group, UC Berkeley

6:00 - 8:00 pm: Ninth Annual ERG Lecture on Energy Dr. Arthur Rosenfeld, California Energy Commission Sibley Auditorium, Bechtel Engineering Center

Dr. Rosenfeld, UC Berkeley Professor Emeritus in Physics and in the Energy & Resources Group, is a present member of the California Energy Commission. His work on energy efficiency is widely recognized as the standard against which other studies are judged.

Sponsored by the Energy and Resources Group, UC Berkeley For more information, contact Donna at dbridges@socrates.Berkeley.EDU

Adam Berman Haas School of Business (510) 981-0568 berman@haas.berkeley.edu

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Message 983 of 1299

**Update on California Legislation---Afternoon of 07.16.01**

|            |                                                                             |
|------------|-----------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                     |
| Recipients | ['richard.shapiro@enron.com', 'skean@enron.com', 'james.steffes@enron.com'] |
| File       | dasovich-j/all_documents/28771.                                             |

Here's the latest that we have on the legislation ("82XX") released on Friday. The Assembly Energy Committee will hold an "informational" hearing on 82XX at 1:30 PM PDT today. "Informational" means that there won't be a vote today. Attended a meeting this morning with the business groups with Assemblyman Dutra (self-proclaimed pro-biz Democrat, who's an "author" of 82XX), Hertzberg's chief staffer, and Hertzberg's outside legal consultant. The DWR contracts continue to be the roadblock to a rational solution. Dutra is unhappy with the process thus far----claimed he wasn't familiar with the "more recent version" of the bill, and was unhappy that there would be a hearing today---informational or otherwise--before he and the bill's other authors had agreed to final language from their perspective. Dutra said that he was working to remove the Direct Access suspension and asked the biz groups to hold their fire until the amendments come out tomorrow. PUC President Lynch continues to oppose striking a deal in which the Commission gives up all review of DWR's "revenue requirement" and simply flows all DWR costs through rates (but Davis and his administration are putting her under enormous pressure to buckle under and agree). As a result, details of any "rate agreement" between DWR and the CPUC, and any public announcement by DWR of its "revenue requirement" is could be postponed until next week, unless there's a breakthrough with Loretta. The Governor's consultants now claim (and will reportedly testify at the hearing today) that there is enough room in the 3 cent rate increase to cover both Edison's and DWR's revenue requirements. (They cite lower gas prices and FERC's price cap as the driving force for the newly-found headroom, though many remain very skeptical.) However, if the deal is applied to PG&E, it is unlikely that the 3 cent rate would be sufficient, according to the same consultants. The plan (at this point) is to have the bill--with amendments--discussed in the same committee tomorrow, and voted out of the committee. The bill would then be taken to the full Assembly for an up or down vote on Wednesday. It is unclear whether, at this point, there is agreement among Assembly Democrats to vote the bill out of the full Assembly on Wednesday. In addition, Senate Democrats continues to work on their own version of an Edison "MOU," and the working relationship between the Assembly side and the Senate side appears strained. The Republicans in the Assembly are staunchly opposed to 82XX and are generally being ignored by the Democrats, since the Democrats need no Republicans to get a majority vote to pass bills. Meanwhile, Edison continues to twist.

Will report back after the 1:30 hearing today.

If anyone has questions, don't hesitate to contact me by pager @ 888.916.7184.

Best, Jeff

Message 984 of 1299

**Register Jeffrey-Dasovich.com TODAY!**

|            |                                         |
|------------|-----------------------------------------|
| Sender     | register.com@offers2.mail-thestreet.com |
| Recipients | ['jdasovic@enron.com']                  |
| File       | dasovich-j/notes_inbox/12176.           |

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Untitled

[IMAGE][IMAGE]??=20 ?www.Jeffrey-Dasovich.com

Dear Jeffrey Dasovich:=20

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Message 985 of 1299

#### [RESEND] INVITATION - SVMG April Breakfast Club, April 24, 2001

|            |                                 |
|------------|---------------------------------|
| Sender     | landrade@svmg.org               |
| Recipients | ['landrade@svmg.org']           |
| File       | dasovich-j/all_documents/11030. |

Apologies, in case you have previously received and responded to this message. -M

+++++ Dear Silicon Valley Breakfast Club Member:

Please plan to join us for the April meeting of the Silicon Valley Breakfas= t Club, scheduled for Tuesday, April 24, from 8:15am until 10am, hosted by EPRI in their Cafeteria located on their campus at 3412 Hillview Ave in Pal= o Alto. Our host requests attendees please park in the parking lot above Building 1.

Our speaker this month is Bob Therkelsen of the California Energy Commissio= n (CEC). Bob Therkelsen is the Deputy Director for the Systems Assessment an= d Facilities Siting Division at the CEC. He manages the staff and programs

responsible for carrying out the Commission's energy facility siting and compliance monitoring functions. Mr. Therkelsen has worked at the Energy Commission since 1975 as a technical expert, project manager, supervisor, and manager. Prior to joining the Energy Commission, he worked as a wildlife ecologist and environmental consultant. Mr. Therkelsen has a Bachelors of Science in Biological Science from the University of California= a at Irvine and a Masters of Science in Ecology from the University of California at Davis. Mr. Therkelsen will brief us on the ten generation facilities that have bee= n approved during the past 18 months and where each is in the construction process, and the 14 generation facilities currently working through the CEC process. Everyone agrees this new generation is a key part of the long-ter= m solution to the energy crisis. Don't miss this presentation on major generation facilities and how quickly each will come on-line!

The Silicon Valley Breakfast Club is a monthly gathering of District Staff Members from State and Federal offices and Member Company representatives o= f the Silicon Valley Manufacturing Group (as well as representatives from our Chambers of Commerce and other top trade associations representing our region). Each month=01,s meeting starts with a half-hour of coffee and conversation, followed by a top speaker on a topic of interest to everyone, and then a roundtable discussion of the hot issues being discussed in your offices in both Sacramento and Washington. Please mark your calendars for the fourth Tuesday of each month from 8:15 a.m., until 10:00 a.m., and pla= n to join us. Locations vary as each month is hosted by a different employer or association.

So that we can plan accordingly, please call the Manufacturing Group office= s at 408-501-7864 to confirm your attendance no later than Thursday, April 19= , or you can e-mail your response to landrade@svmg.org.

For directions to ERPI please access our Breakfast Club web page at [http://www.svmg.org/protected/bfast\\_club/index\\_f.htm](http://www.svmg.org/protected/bfast_club/index_f.htm). When the dialog box pops up, please enter the following:

user: breakfast  
passcode: breakfastmember

We look forward to seeing you on Tuesday morning, April 24th!

---

Message 986 of 1299

#### FW: Additional FERC Actions Likely On MONDAY

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | paul.kaufman@enron.com                                                                                            |
| Recipients | ['susan.mara@enron.com', 'jeff.dasovich@enron.com', 'Tom; Shelk', 'Ban; Briggs', 'James; Sharma', 'Steffes', '... |
| File       | dasovich-j/notes_inbox/12618.                                                                                     |

Here's what I heard on the D.C. call today re: the Senator Lieberman hearings:

June 13--6 witnesses consisting of: (1) 4 of the 6, pro-price cap economists; and (2) 2 anti-price cap economists. June 20--FERC Commissioners and Gov. Davis.

-----Original Message-----

From: Comnes, Alan Sent: Monday, June 11, 2001 1:33 PM To: Alonso, Tom; Alvarez, Ray; Badeer, Robert; Belden, Tim; Calger, Christopher F.; Dasovich, Jeff; Driscoll, Michael M.; Fischer, Mark; Foster, Chris H.; Guzman, Mark; Heizenrader, Timothy; Kaufman, Paul; Mainzer, Elliot; Mallory, Chris; Mara, Susan; Motley, Matt; Perrino, Dave; Platter, Phillip; Richter, Jeff; Scholtes, Diana; Swain, Steve; Swerzbin, Mike; Williams III, Bill; Wolfe, Greg Cc: Steffes, James; Sharma, Ban; Briggs, Tom; Shelk, John Subject: Additional FERC Actions Likely On MONDAY Importance: High

FERC has set a meeting for Monday18 June 10 am PDT wherein it has noticed its California and WSCC-wide dockets. The meeting has been timed in advance of congressional hearings (by Senator Joseph Lieberman) that were set for later in the week.

Expect FERC to respond to intense political pressure to expand its current price mitigation measures, possibly to a WSCC-wide scope or to all hours, or both.

As far as I know Hebert is still President of the FERC, which would speak to less intervention rather than more.

We will forward information as we learn it.

Alan Comnes

US FERC To Meet June 18 On Western US Electricity Prices

06/11/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

WASHINGTON -(Dow Jones)- The U.S. Federal Energy Regulatory Commission has scheduled a special meeting June 18 to address pending matters involving electricity markets in California and neighboring Western states.

The commission's meeting notice provides no details, except to list for discussion four cases involving price mitigation in, and the structure of, volatile power markets in California and 10 other Western states.

The meeting comes as members of Congress are placing enormous political pressure on the commission to take more drastic action to contain runaway electricity prices in the region.

Last week, House Minority Leader Dick Gephardt, D-Mo., joined 21 Western-state congressional lawmakers to request an opportunity to appear before the commission to argue their case for cost-based price controls in the region's electricity markets.

"At least twice, FERC has determined that the Western electricity market is 'dysfunctional' and that prices are 'unjust and unreasonable' under the Federal Power Act. Despite these findings, and contrary to the law, the commission has failed to bring these rates to just and reasonable levels," the lawmakers said in a letter to FERC Chairman Curt Hebert.

By Bryan Lee, Dow Jones Newswires, 202-862-6647, bryan.lee@dowjones.com

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Message 987 of 1299

## Re: Language on bonds

|            |                                                                                                       |
|------------|-------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                               |
| Recipients | ['bhansen@lhom.com', 'hgovenar@govadv.com', 'harry.kingerski@enron.com', 'james.d.steffes@enron.com'] |
| File       | dasovich-j/sent/11838.                                                                                |

It's going to be extremely difficult for anyone who has consumed electricity to avoid paying for it. It will be particularly difficult for Enron to exempt itself from costs incurred by the state on behalf of Enron's customers. Prior to us pushing amendments on this bill, can we discuss on the 11:30 call today. Harry and I have discussed this at length, and I just want to make sure that we don't blow up the whole enchilada by trying to get an amendment here.

Best, Jeff

Harry Kingerski 07/03/2001 09:28 AM

To: Hedy Govenar <hgovenar@govadv.com> cc: Bev Hansen <bhansen@lhom.com>, Jim Steffes <james.d.steffes@enron.com>, Jeff Dasovich <jdasovic@enron.com>, Leslie Lawner <Leslie.Lawner@enron.com>, Mike Day <MDay@GMSSR.com>, Paul Kaufman <paul.kaufman@enron.com>, Rick Shaprio <rshapiro@enron.com>, Scott Govenar <sgovenar@govadv.com>, Sue Mara <smara@enron.com> Subject: Re: Language on bonds

Hedy, Scott, Bev - the language currently says the bond surcharge will apply "to all electric power delivered in California by electric corporations ..." I know this is a longshot, but is there any chance of having this amended to either

1) exclude volumes under DA contracts as of the effective date of this act, or 2) more generally leave it to the PUC to adjust the surcharge for customer classes based on their contribution - or lack thereof - to DWR's purchasing requirements.

The justification for this exemption is grounded in excluding customers who have not caused the DWR problem; e.g. large San Diego customers or PGE/SCE customers who have been DA the last couple years or parts thereof. (We can give you some specific language.)

Hedy or Scott - could you please call me when you get in - 713 853-5786. Thanks.

Hedy Govenar <hgovenar@govadv.com> 07/02/2001 06:51 PM

To: Sandra McCubbin <smccubbi@enron.com>, Paul Kaufman <paul.kaufman@enron.com>, Sue Mara <smara@enron.com>, Rick Shaprio <rshapiro@enron.com>, Bev Hansen <bhansen@lhom.com>, Jeff Dasovich <jdasovic@enron.com>, Karen Denne <kdenne@enron.com>, Jim Steffes <james.d.steffes@enron.com>, Scott Govenar <sgovenar@govadv.com>, Ken Smith <ken@kdscommunications.com>, Mike Day <MDay@GMSSR.com>, Michael McDonald <Michael.McDonald@enron.com>, Alan Comnes <acomnes@enron.com>, Steven Kean <Steven.J.Kean@enron.com>, Harry Kingerski <Harry.Kingerski@enron.com>, Leslie Lawner <Leslie.Lawner@enron.com>, Robert Frank <rfrank@enron.com>, Janel Guerrero <Janel.Guerrero@enron.com>, Miyung Buster <Miyung.Buster@enron.com>, Jennifer Thome <Jennifer.Thome@enron.com>, Eric Letke <eletke@enron.com>, Mary Schoen <Mary.Schoen@enron.com> cc: Subject: Language on bonds

Senator Burton's office expects bond language back from Legislative Counsel sometime tomorrow, Tuesday. As soon as we get a copy we will forward it. If the language is acceptable to Enron, then Bev, Scott and I need to visit with Republicans to urge their support as soon as possible. We are continuing to coordinate with the big users and some other suppliers on this issue.

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Message 988 of 1299

| EMBA Social Events |                                                                          |
|--------------------|--------------------------------------------------------------------------|
| Sender             | owner-evmba_social@haas.berkeley.edu                                     |
| Recipients         | ['evmba_social@haas.berkeley.edu', 'admittedf01evmba@haas.berkeley.edu'] |
| File               | dasovich-j/all_documents/13085.                                          |

Fellow Evening MBA Students (old and new),

Cindy Best and I would like to introduce ourselves as your new Social Chairs for the Evening MBA Association. Now that we've all survived the latest year (or the application process for you new Admits), it's time to PARTY!! The title "Summer Vacation" lost its meaning to most of us once we got "regular" jobs. We're going to bring that feeling of summer vacation back to you - even if you are working full time. We're going to organize for you and your families many events during the summer to help you make the most of your "vacation".

For those not able to commit any serious blocks of time to your fellow classmates, we will be organizing monthly happy hours at different locations around the Bay Area for brief but fun gatherings. The locations are not yet set, and we welcome any suggestions you may have for meeting places. The dates will be as follows (sorry North Bay - you're just too far out there!):

Date Event Fri 6/08 Happy Hour of the Month in SF - Location TBD Fri 7/06 Happy Hour of the Month in South Bay - Location TBD Fri 8/03 Happy Hour of the Month in East Bay - Location TBD

For those of you looking to broaden your horizons and participate in some real fun activities, we have some trips on the burner such as: a 4th of July fireworks/concert extravaganza at Concord Pavilion, a weekend camping trip, and others. As these events and dates become firm, we will send out more information. We don't want to overload you immediately, after all ... this is your vacation!

Our first event, however, is set and we would like to get some RSVP's of those interested. It's the musical "Oliver" at the top of Mt. Tam Amphitheatre on Sunday, June 17th. This is an outdoor summer performance and an all day event where you pack in your own lunch and enjoy the musical in a relaxing Sunday afternoon. This is a great way to spend Father's Day with your family! Concert-goers are bused in from parking lots near the 101 in Mill Valley. At the end of the day, the event organizers will either bus you directly back to your car, or take back all your gear for you, which frees you up to hike down Mt. Tam (optional). At the end of your optional hike, the buses pick you up from the end of your hike and take you back to your car and gear. It is a great summer event which takes full advantage of living in SF with your classmates and families. If you want to check out more information on it, the website for it is [www.mountainplay.org](http://www.mountainplay.org) and the number to buy

tickets is(415) 383-0155.

Cost: \$24/adult; \$17/junior(age 4-17) Car Pool RSVP: send an email to Tony by June 8th (tai@haas.berkeley.edu)

To minimize complications in purchasing and delivering tickets, you will need to purchase tickets individually. We recommend purchasing the tickets no later than next week. Please RSVP with your interest and if you are interested in car pooling, indicate your location. We will follow up with additional details, which are dependent on the group size.

Well, let the summer fun begin!! Look forward to hearing from you.

Cindy Best and Tony Tai

---

Message 989 of 1299

### Proposal for Transition to New Default Service Provider

|            |                             |
|------------|-----------------------------|
| Sender     | mona.petrochko@enron.com    |
| Recipients | ['west.ga@enron.com']       |
| File       | dasovich-j/notes_inbox/484. |

Sue and I attended an ARM meeting on Friday in which we focused on default provider role for the utilities. The outline of the proposal is attached. As SDG&E (and believe it or not, PG&E) have indicated an interest to be a wires only company, the structure proposed for default provider may have some potential. Essentially, it is modeled after the gas industry:

1. No utility default for large customers (need to define, 50 kW and above?); UDC provides a PLR role only. 2. Default for res and small commercial is a fixed price. Utility has unlimited ability to hedge. No ex-poste reasonableness review. 3. Create a phase-in for competitive default provider.

What it does:

1. Creates a more competitive environment for large C&I. (EES) 2. Provides stability for res/commercial with a transition period to full competition. (ENA) 3. Provides the utility with more certainty around regulatory treatment (live and die by the fixed price) 4. May also provide a mechanism for limiting exposure for SCE & PG&E for uncollectibles, going forward. Does not solve existing balance. Needs further discussion.

Please review and comment. This is a strawman. May be useful in our strategy development.

Mona

----- Forwarded by Mona L Petrochko/SFO/EES on 09/18/2000

10:15 AM -----

"Leslie, John" <jleslie@LUCE.com>@LUCE.com> on 09/18/2000 10:01:35 AM Sent by: "Johnson, Roseann" <RJohnson@LUCE.com> To: "ARM Members (E-mail)" <ARM@phaser.com>, "Leslie, John" <jleslie@LUCE.com> cc: Subject: Proposal for Transition to New Default Service Provider

To ARM Members:

I have enclosed two documents that are based upon our discussions at Friday's ARM meeting. First, I have enclosed a reproduction of the flip-charts that we created during the meeting. Admittedly, these are a bit difficult to understand. Second, I have drafted an outline of the proposal to provide a transition mechanism to bring on new default service providers.

Please circulate your comments on the proposal by Wednesday, September 20.

-John

<<#1556435 v1 - SES-ELECTRIC - Discussion at 9-15 ARM meeting.doc>> <<#1556343 v1 - SES-ELECTRIC - Transition Proposal (9-18-00).doc>> \*\*\*\*\*

CONFIDENTIAL

Luce, Forward, Hamilton & Scripps LLP 600 West Broadway Suite 2600 San Diego, CA 92101-3391 (619) 236-1414

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- #1556435 v1 - SES-ELECTRIC - Discussion at 9-15 ARM meeting.doc - #1556343 v1 - SES-ELECTRIC - Transition Proposal (9-18-00).doc

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Message 990 of 1299

**Re: Contact**

|            |                                                            |
|------------|------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                    |
| Recipients | ['michael.kenneally@enron.com', 'david.parquet@enron.com'] |
| File       | dasovich-j/sent/330.                                       |

Be happy to discuss. My preference would be to have a brief call to discuss, since Mr. Filner is on a mission to tan a few hides over the price spikes in S.D. At congressional and FERC hearings in S.D. last week, Mr. Filner called generators and marketers quite a few ugly names, fingered them as the cause for the high prices, and demanded that Congress and FERC make them give all the money back to S.D. consumers. Fairly sensitive item, to put it mildly. I'm at 415.782.7822.

Best, Jeff

Michael Kenneally@ENRON COMMUNICATIONS 09/21/2000 10:47 AM

To: David Parquet/SF/ECT@ECT, Jeff Dasovich/SFO/EES@EES cc: Subject: Re: Contact

Gentlemen:

Steve asked that I follow up with you on the inquiry below. I met with Bob Filner, US Representative from San Diego , who had asked that I forward any information to him about Enron's management of energy prices. Could you recommend how we can follow up with him. I am happy to direct him towards you.

Thanks for your help, Michael ----- Forwarded by Michael Kenneally/Enron Communications on 09/21/00 10:40 AM -----

Steven J Kean@ENRON Sent by: Steven J Kean@ENRON 09/13/00 07:57 AM

To: Michael Kenneally/Enron Communications@ENRON COMMUNICATIONS cc: Subject: Re: Contact

Contact Dave Parquet and Jeff Dasovich in our San Fran. office. Dave has worked on Enron's proposals to San Diego and Jeff has been supporting him from a gov't/reg affairs standpoint.

From: Michael Kenneally@ENRON COMMUNICATIONS on 09/08/2000 10:51 AM To: Steven J Kean/NA/Enron@ENRON cc:

Subject: Re: Contact

Steve:

Chris Holmes recommended I contact you concerning the attached inquiry. I recently met with a federal representative from San Diego who had asked if I could send him any information on Enron's ability to hedge energy prices. After a summer of rolling brown outs and soaring prices, he is looking for ways to avoid the scenario in the future.

Could you recommend the best avenue for responding to this request?



I appreciate you assistance in this matter.

Regards, Michael x 35868 ----- Forwarded by Michael Kenneally/Enron Communications on 09/08/00 10:46 AM -----

Chris Holmes@EES 08/16/00 06:46 AM

To: Michael Kenneally/Enron Communications@ENRON COMMUNICATIONS@ENRON cc: Subject: Re: Contact

glad to hear you are in a good place-- I suggest you call Steve Kean's office, regulatory affairs as they would like the contact with the Cong. office-- they will in turn follow-up, .

Best to you and the family. Drop by sometime,. I am in room 1212.

chris

From: Michael Kenneally@ENRON COMMUNICATIONS on 08/15/2000 04:15 PM To: Chris Holmes/HOU/EES@EES cc: Subject: Contact

Hello Chris:

I hope you and your family are doing well. I am sorry to have fallen out of touch.

I was thinking of you recently wen speaking with a Congressional representative from San Diego. After a summer of rolling brown outs and increasing prices from the utilities, he was searching for an energy solution. Who would be the best contact within EES or ENA to explore the possibilities for the city of San Diego?

I look forward to hearing from you.

Best regards, Michael

---

Message 991 of 1299

### good news on energy efficiency

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | rcavanagh@nrdc.org                                                                                                 |
| Recipients | ['carol@iepa.com', 'alippin@mail.arco.com', 'dhunter@s-k-w.com', 'dmg@cpuc.ca.gov', 'athomas@newenergy.com', '...] |
| File       | dasovich-j/all_documents/12652.                                                                                    |

Because so many on this list have supported California's energy efficiency investments, I wanted you all to see this important update (and to note my personal appreciation to PG&E for pursuing this issue with skill and diligence at an extraordinarily difficult time):

CONTACT: Peter Miller or Craig Noble at (415) 777-0220

Energy Efficiency Funding Protected in PG&E Bankruptcy Case Public Purpose Programs Essential to Help Keep the Lights on, Says NRDC

SAN FRANCISCO (May 16, 2001) - A judge in San Francisco federal court today ruled that approximately \$260 million that had been tied up in the Pacific Gas and Electric Company (PG&E) bankruptcy proceedings will be released to fund California energy efficiency programs. These funds come from a small surcharge on utility customers' monthly bills and provide desperately needed electricity savings that will help protect the reliability of the state's overstressed power grid, said NRDC (Natural Resources Defense Council).

"This is a victory for California consumers and the environment," said Peter Miller, NRDC senior scientist. "NRDC worked very hard to ensure that the state would make these important energy efficiency investments in the first place."

In a ruling from the bench this morning, Judge Dennis Montali of the U.S. Bankruptcy Court in San Francisco ruled in favor of a motion by PG&E for authority to honor its obligations for public purpose programs. NRDC, Environmental Defense and Utility Consumers' Action Network filed a memo with the court in support of the utility's argument that it is merely a conduit for the public purpose funds and that the funds should be off limits to the utility's creditors. "PG&E is to be

commended for strenuous efforts here in a very good cause," said Ralph Cavanagh, NRDC energy program director.

California has aggressively promoted energy efficiency in buildings and equipment since the 1970s, reducing total peak electricity needs by about one-fifth or 10,000 megawatts (MW). Approximately half of those reductions have come from public purpose programs funded by a small surcharge on bills paid by customers of PG&E, Southern California Edison, and San Diego Gas & Light. Since 1998 alone, these programs have delivered about 500 MW of electricity savings.

"At a time when the difference between an intact grid and rolling blackouts is sometimes measured in the tens of megawatts, energy efficiency clearly represents the fastest, cheapest and cleanest solution to California's electricity dilemma," said Miller.

The public purpose programs provide financial incentives to businesses and consumers to design more energy efficient buildings and to buy energy efficient equipment, such as refrigerators, air conditioners, light bulbs and clothes washers. They also provide funding for investments in renewable energy, low-income energy services, and long-term research and development for clean energy technologies.

The Natural Resources Defense Council is a national, non-profit organization of scientists, lawyers and environmental specialists dedicated to protecting public health and the environment. Founded in 1970, NRDC has more than 400,000 members nationwide, served from offices in New York, Washington, Los Angeles and San Francisco. More information is available through NRDC's Web site at [www.nrdc.org](http://www.nrdc.org).

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Message 992 of 1299

#### RE: Call to Discuss Possible Options to Mitigate Effect of DWR

|            |                               |
|------------|-------------------------------|
| Sender     | christopher.calger@enron.com  |
| Recipients | ['jeff.dasovich@enron.com']   |
| File       | dasovich-j/notes_inbox/12446. |

1PM is fine

Chris Calger 503-464-3735

-----Original Message-----

From: Dasovich, Jeff Sent: Tuesday, June 19, 2001 5:11 PM To: Belden, Tim; Calger, Christopher F.; Steffes, James; Shapiro, Richard; skean@enron.com; Kaufman, Paul; Mara, Susan; Allen, Phillip K.; Yoder, Christian; Hall, Steve C. Subject: Call to Discuss Possible Options to Mitigate Effect of DWR Contracts--Privileged and Confidential Sensitivity: Confidential

PLEASE KEEP THIS NOTE, AND THE INFORMATION CONTAINED IN THE NOTE CONFIDENTIAL.

As folks are aware, we have been engaged in closed-door negotiations for the past two weeks regarding a possible market-based solution to California's electricity crisis. In the room are the major large customer groups, environmentalists, small customers (TURN), Independent Energy Producers, labor, the Western States Petroleum Association, and Enron. The negotiations were convened by the Speaker of the Assembly (Bob Hertzberg). When Hertzberg convened the meeting, he told the parties that he wanted to achieve a core/noncore structure, similar to the structure in place in California's gas market (i.e., large customers are required to buy gas from the market, with Direct Access available to all other customers). In effect, "core" customers (rez and small business) would be served by the utilities' retained generating assets and QF contracts; and large customers would go to market. The core/noncore structure would begin 1.1.03. The negotiating group has struggled over the past two weeks, but is close devising a framework for core/noncore in California (but who pays for the utilities' past debts and the costs of DWR power purchased between January and today remain very contentious). Unfortunately, with the release of the information regarding the DWR contracts last Friday, it is now clear that achieving a core/noncore structure will be very difficult unless something is done to mitigate the contracts. The problem is that, if core is served by utility gen and QFs, and large customers are in the market, there is no (or very little) need for the DWR contracts. Instead, they look like a significant stranded cost. Hertzberg and the negotiating group are looking to

Enron for creative ways to address "the DWR contract problem" in order to prevent the contracts from 1) killing the core/noncore deal and 2) forcing California to accept a structure focused on a state power authority headed-up by David Freeman that does not include Direct Access. Christian Yoder and Steve Hall are reviewing the contracts to analyze any "out clauses" that the buyer and/or the seller might have under the contract provisions. (My cursory review of the contracts suggests that "outs" for the state are minimal or nonexistent.) In addition, we've started batting around ideas about how the State might reform the contracts. All this said, want to let everyone know that we have made it extremely clear that Enron fundamentally opposes any and all attempts to unilaterally abrogate anyone's contract rights.

We'd like to have a quick call tomorrow (30-60 minutes) to brainstorm some options that we can offer Hertzberg to handle the contracts and keep the core/noncore solution alive. We'd like to try to have the the call at 1 PM PDT. Please let me know if this works for you, and if it doesn't, please let me know if there's a time after 1 PM PDT that works for you.

Thanks, Jeff

Message 993 of 1299

[Fwd: Hertzberg Press Conference]

|            |                                                                                    |
|------------|------------------------------------------------------------------------------------|
| Sender     | sgovenar@govadv.com                                                                |
| Recipients | ['mday@gmsr.com', 'bhansen@lhom.com', 'hgovenar@govadv.com', 'jdasovic@enron.com'] |
| File       | dasovich-j/notes_inbox/2834.                                                       |

Received: (qmail 47628 invoked by uid 41); 29 May 2001 22:05:14 -0000 Received: from mtiwmhc24.worldnet.att.net (204.127.131.49) by=20 mx6.quiknet.com with SMTP; 29 May 2001 22:05:14 -0000 Received: from vaio ([12.72.49.51]) by mtiwmhc24.worldnet.att.net = 20 (InterMail vM.4.01.03.16 201-229-121-116-20010115) with SMTP id=20 <20010529220129.COZN12661.mtiwmhc24.worldnet.att.net@vaio>; Tue, 2= 9=20 May 2001 22:01:29 +0000 Message-ID: <000f01c0e88b\$1f52eb80\$3331480c@vaio> From: "Ken Smith" <ken@kdscommunications.com> To: "Sandra McCubbin" <smccubbi@enron.com>, <Janel.Guerrero@enron.com>=20 "Scott Govenar" <sgovenar@govadv.com> Subject: Hertzberg Press Conference Date: Tue, 29 May 2001 15:02:42 -0700 Organization: KDS Communications MIME-Version: 1.0 Content-Type: multipart/alternative;=20 boundary=3D"----=3D\_NextPart\_000\_000C\_01C0E850.68FFDBC0" X-Priority: 3 X-MSMail-Priority: Normal X-Mailer: Microsoft Outlook Express 5.00.2615.200 X-MimeOLE: Produced By Microsoft MimeOLE V5.00.2615.200 X-Mozilla-Status2: 00000000

Hertzberg Press Conference Announcing New FERC Filing

Speaker Hertzberg began by announcing that he had received word that the 9= th=20 Circuit Court of Appeals had rejected the suit filed by Sen. John Burton a= nd=20 the Speaker asking FERC to impose price caps. A story from KFWB radio in L= A=20 said that the 3-0 decision was that the issue "does not warrant interventi= on=20 of this court."=20

The Speaker had received notice just moments before entering the press=20 conference and had no further details, nor had he talked to lead counsel o= n=20 the case.

Today=01,s announcement was regarding a request for rehearing of FERC=01,s= April=20 26 order. He said the genesis for the request came from discussions that= =20 occurred during his trip to DC following the order. Both sides of the aisle= e,=20 he said, indicated that there were opportunities to address what he said= =20 were errors in the original order.

Speaker pro Tem Fred Keeley said these errors included:

The April 26 order finds that wholesale electric rates will not be just an= d=20 reasonable absent commission intervention, but the commission does not=20 demonstrate that the price mitigation it orders will ensure just and=20 reasonable rates; Limiting price mitigation to system emergencies rather than on a 24/7 basi= s; Prices were pegged to the oldest, dirtiest and costliest plants, which=20 continues to allow inappropriately high wholesale prices; There is no relation between costs and pricing; Tying price mitigation to establishing a Regional Transmission Organizatio= n.

This is a request for a "different type" of order that they characterized as a "middle ground" with a "market approach" rather than another request for price caps. He did not elaborate on how the filing takes a market-based approach since it asks for intervention by FERC, but said FERC commissioners had indicated that this would be a more "palatable" approach. Hertzberg added that he had met with Republicans in the House dining room and told them he was not proposing price caps.

Keeley said the April 26 order was a "toothless tiger" that didn't implement penalties for violation. The request for rehearing asks for 100% penalties for any violations.

A copy of the filing and press release have been forwarded to Houston and are also available by contacting Scott Govenar.

Message 994 of 1299

#### Fw: CAISO's Grid Management Charge FERC filing

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | steven@iepa.com                                                                 |
| Recipients | ['wscobee@caithnessenergy.com', 'wfhall2@duke-energy.com', 'abb@eslawfirm.com'] |
| File       | dasovich-j/all_documents/3550.                                                  |

Attached is the CAISO proposal to FERC seeking approval of its Grid Management Charge (GMC). This charge recovers the CAISO's costs of operation. The CAISO proposes to unbundle the GMC into three cost "buckets," one of which would recover the CAISO's costs associated with Grid Operations (vs. market functions). The Grid Operation costs total approximately \$71 million or 45 percent of total CAISO costs, and would be applied to all load including QF/cogeneration load "behind the meter." If the charge is not/cannot be applied directly to QFs, then it is likely to be passed through to the utilities which will then attempt to recapture the costs from QF/cogenerators.

Recently, IEP distributed an email asking the membership whether anyone was sufficiently concerned regarding this policy and/or the cost impacts to fund IEP's intervention in this matter. We noted that we had been involved over the past year attempting to negotiate a compromise with the CAISO, but to no success. Now, the issue is squarely at FERC. To date, IEP has not received a response to that email.

At this juncture, IEP is not planning on filing a response to the CAISO's GMC filing, other than perhaps a pro forma intervention (1-2 pages) so as to remain a party to the proceeding. An intervention such as this would not entail arguments as to why the CAISO's proposal is wrong and counterproductive. If any IEP member is interested in funding a more active, aggressive intervention opposing the CAISO's filing, please let me know ASAP but not later than Monday, November 20. Interventions are due November 22. "Paper Participation" in this proceeding, excluding any negotiations for settlement/appearances at FERC, etc, could approach \$20,000 in costs.

----- Original Message -----

From: Gregory Maxim <GM@eslawfirm.com> To: Jan Smutny-Jones (E-mail) <smutny@iepa.com>; Steven Kelly (E-mail) <steven@iepa.com>; Katie Kaplan (E-mail) <kaplan@iepa.com> Cc: Douglas Kerner <DKK@eslawfirm.com>; Andy Brown <ABB@eslawfirm.com>; Eric Janssen <EricJ@eslawfirm.com> Sent: Thursday, November 16, 2000 12:52 PM  
Subject: CAISO's Grid Management Charge FERC filing

*Please find enclosed our memo summarizing CAISO's Nov. 1 filing with FERC requesting approval of an unbundled Grid Management Charge. IEP's membership will be interested in this filing because CAISO proposes to assess portions of the GMC to QFs with "behind-the-meter" load (i.e.*

*on-site*

*or over-the-fence load). Please let us know how we should proceed in this matter, as interventions and protests are due on Nov. 22, 2000. <<001116\_IEP\_ISO Grid Man Charge.doc>> Gregory Maxim Ellison, Schneider & Harris L.L.P. 2015 H Street Sacramento, CA 95814 (916) 447-2166 gm@eslawfirm.com CONFIDENTIALITY NOTICE: This communication and any accompanying*

*document(s)*

*are confidential and privileged. They are intended for the sole use of the*

*addressee. If you receive this transmission in error, you are advised that*

*any disclosure, copying, distribution, or the taking of any action in reliance upon the communication is strictly prohibited. Moreover, any*

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*inadvertent disclosure shall not compromise or waive the attorney-client privilege as to this communication or otherwise. If you have received*

this

*communication in error, please contact the sender at the internet address indicated or by telephone at (916)447-2166. Thank you.*

- 001116\_IEP\_ISO Grid Man Charge.doc

Message 995 of 1299

### CPUC Workshop on 4/17

|            |                                                                                                   |
|------------|---------------------------------------------------------------------------------------------------|
| Sender     | jeffery.fawcett@enron.com                                                                         |
| Recipients | ['ram@cpuc.ca.gov', 'mbaldwin@igservice.com', 'susan.scott@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/11097.                                                                   |

Mr. Meyers, I certainly understand and, unfortunately, I suspected as much. I'm sure there are quite a few parties with keen interest in this investigation. Because of flight schedules, the Transwestern contingent may not be able to stay until 4:30 p.m., so I'm not sure I could even commit to a presentation at the end of the day. We'd certainly be happy to be squeezed in during the day if another party's presentation was shorter than expected.

In any event, I was wondering if I might leave behind a copy of TW's presentation for others to take home? Like I said, its chief purpose is to introduce (or for most folks, reacquaint) Transwestern to the stakeholders in this investigation, and to provide specific information regarding its capability to deliver gas to California. Would it be possible to at least acknowledge during the day that our handouts are available to the attendees? We could either pass them out or have them on a table at the back. I'll wait to hear your guidance on the best way to do this.

As I said before, Transwestern is committed to working with the CPUC to fully develop the record and to cooperatively address any and all issues identified in this investigation. If I can be of any further assistance, please let me know.

Thank you.

-----Original Message-----

From: "Myers, Richard A." <ram@cpuc.ca.gov>@ENRON  
[mailto:IMCEANOTES+22Myers+2C+20Richard+20A+2E+22+20+3Cram+40cpuc+2Eca+2Egov+3E+40ENRON@ENRON.com] Sent: Friday, April 13, 2001 11:02 AM To: Fawcett, Jeffery Subject: RE: CPUC Workshop on 4/17

Mr. Fawcett, Thanks very much for your offer, but at this point I can't guarantee that you would be able to make a presentation. Virtually all the time has been now taken up by other presentations. There is an outside chance that you could make a 10 minute presentation, either at the very end of the day, or possibly squeezed in at some point during the day if other presentations end more quickly than expected. But I can't assure you that this will be possible. Richard Myers

-----Original Message----- From: Fawcett, Jeffery [mailto:Jeffery.Fawcett@enron.com << File: mailto:Jeffery.Fawcett@enron.com >> ] Sent: Friday, April 13, 2001 8:47 AM To: ram@cpuc.ca.gov Cc: Scott, Susan; Dasovich, Jeff; mbaldwin@igservice.com Subject: CPUC Workshop on 4/17 Mr. Myers, My name is Jeff Fawcett. I am a commercial representative of Transwestern Pipeline Co. and was its witness during the recent GIR proceedings. Given Transwestern's role as one of the principal suppliers of natural gas to the State of California, we are very interested in the

outcome of these proceedings and offer our assistance to the Commission in its investigation. Much has been discussed in the press recently about pipeline infrastructure in California, as well as the upstream capacity of FERC pipes that serve the California marketplace. I know there is much to be covered in the 4/17 workshop. However, if the schedule permits, Transwestern would like to offer a brief overview of its delivery system to California and its view of the key issues the Commission and stakeholders face as the investigation moves forward. TW's presentation should take no more than 10-15 minutes. Please let me know if the Energy Division would like TW to make such a presentation and, if possible, approximately what point during the 9 -4:30 session Transwestern will be invited to step forward. I'm available by return email or you may reach me by telephone at 713-853-1521. Thank you.

---

Message 996 of 1299

#### Individual.com - News From a Friend!

|            |                              |
|------------|------------------------------|
| Sender     | kdenne@enron.com             |
| Recipients | ['jdasovic@enron.com']       |
| File       | dasovich-j/notes_inbox/2379. |

INDIVIDUAL.COM

Here's an article recommended by: Karen Denne and it comes to you via Individual.com, Inc.

The following message was attached:

HERE IS THE STORY WE WERE REQUESTED TO SEND YOU

This story appeared on <http://www.individual.com> December 11, 2000

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#### Federal Agencies Gear Up Hydro System to Meet Demand

PORTLAND, Ore., Dec. 8 /PRNewswire/ via NewsEdge Corporation - Due to an impending power shortage, federal agencies will increase generation at nearly all of the federal dams. This may cause some projects to operate outside the limits of the biological opinion under the Endangered Species Act as additional water is released for generation from upstream reservoirs, the Bonneville Power Administration said today.

The announcement came following a call by the Regional Emergency Response Team and Northwest governors for conservation of electricity when arctic air invades the Northwest beginning this weekend. The team comprises Northwest utilities, the Northwest Power Planning Council and representatives of the four Northwest states.

BPA officials said that this step must be taken in order to ensure that heavy demand for electricity can be met in the region through next week. Forecasters are predicting freezing temperatures on both sides of the Cascades. BPA supplies about 40 percent of the region's electricity, most of it generated at dams in the Columbia River Basin.

"Utilities in the region have assessed their generating inventories and determined that the region is clearly short of energy and in an emergency status," Delwiche said. "The BPA and other utilities must take extraordinary steps immediately to avoid potentially severe shortages next week."

Water is stored in reservoirs behind upstream dams and released in the spring to assist downstream migration of juvenile salmon. BPA manages the storage to ensure that enough water is available to both meet electrical generating requirements and flows for salmon. BPA has the authority to exceed guidelines of the biological opinion under emergency conditions.

"It is very important that everyone - residential and commercial consumers and industries -- do what they can to cut back on their use of electricity during this cold snap," said Greg Delwiche, BPA's vice president for generation supply. "Every kilowatt hour saved now means less need to draw water from the reservoirs."

SOURCE Bonneville Power Administration

CONTACT: Ed Mosey, Bonneville Power Administration, 503-230-5359 Web site: <http://www.bpa.gov>

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This news story was sent by Karen Denne through Individual.com. You will not receive email messages directly from Individual.com unless you register at <http://www.individual.com>.

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Message 997 of 1299

### SCE Release regarding Gov Deal

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | jmunoz@mcnallytemple.com                                                   |
| Recipients | ['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com'] |
| File       | dasovich-j/all_documents/10844.                                            |

SCE and Governor Reach Agreement on Plan To Restore Utility To Financial Health

PR Newswire 04/09/01, 7:02p (Copyright , 2001, PR Newswire)

ROSEMEAD, Calif., April 9 /PRNewswire/ -- At a joint press conference today with Governor Gray Davis, Edison International Chairman, President and CEO John E. Bryson announced agreement on a plan to restore Southern California Edison to financial health.

"This negotiated resolution with the Governor is far preferable for our company and our employees and for our customers than is going into bankruptcy," said Bryson.

"Through difficult negotiations over many weeks," Bryson noted, "we believe we have achieved a practical approach. Our customers and the state's economic vitality will benefit greatly from a financially healthy utility which can retain experienced and skilled employees and can invest the billions of dollars needed to maintain a sound electric infrastructure system.

"The blunt reality remains that we in California face a large challenge in restoring overall stability to the California electric system," Bryson said. "Our employees at Edison can make a large difference in helping to meet that challenge. Vital work remains to be done with the Governor, the Legislature, the California Public Utilities Commission, and other policymakers, but this agreement is a large first step toward restoring stability for much of Southern California."

Today's more detailed agreement follows the framework announced in a February 23 preliminary agreement with the Governor. It was approved by the Edison International and SCE boards of directors this morning. Implementation will require further action by the California Legislature and the state Public Utilities Commission. Both Governor Davis and Bryson have urged swift action by both bodies.

Major terms of the agreement include:

???-- The state will receive a primary utility asset -- SCE's 12,000-mile ??????transmission system. ?SCE employees will operate and maintain the ??????system through a contractual arrangement with the state.

???-- Edison International and SCE commit to no less than \$3 billion of ??????capital investment in utility infrastructure over the next five years.



???-- For the next 10 years, SCE will sell the output from its power plants ??????under cost-based, rather than market-based, pricing.

???-- For the next 10 years, Edison Mission Energy's unregulated Sunrise ??????power plant will sell its output exclusively to California under ??????cost-based pricing.

???-- SCE agrees to forego development of 20,000 acres of its Big Creek and ??????Eastern Sierra hydroelectric properties and grants conservation ??????easements in perpetuity to the state for land and habitat preservation ??????on these properties.

???-- SCE will gain a means of repaying the debt it incurred buying power for ??????its customers during the current rate freeze.

???-- Upon implementation of this agreement by the Legislature and CPUC, SCE ??????will drop its lawsuit against state regulators.

A copy of the Memorandum of Understanding will be available later today on Edison's investor Web site: [www.edisoninvestor.com](http://www.edisoninvestor.com).

Based in Rosemead, Calif., Edison International (NYSE: EIX) is the parent company of Southern California Edison, Edison Mission Energy, Edison Capital, Edison O&M Services, and Edison Enterprises.

SOURCE Southern California Edison

/CONTACT: Southern California Edison Corporate Communications, 626-302-2255/

/Web site: <http://www.sce.com/>

/Web site: <http://www.edisoninvestor.com/>

/Web site: <http://www.edisonnews.com/>

(EIX)

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Message 998 of 1299

### Non-core state monitoring

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | elizabeth.linnell@enron.com                                                    |
| Recipients | ['allison.navin@enron.com', 'aleck.dadson@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/notes_inbox/12377.                                                  |

One more that I meant to send. Have a good weekend!

----- Forwarded by Elizabeth Linnell/NA/Enron on 06/22/2001 10:57 AM -----

=09Elizabeth Linnell =0906/20/2001 08:22 AM =09=09=20 =09=09 To: Alan Comnes/Enron@EnronXGate =09=09 cc:=20 =09=09 Subject: Non-core state monitoring

Enron has hired the firm of Stateside Associates to provide State Legislati= ve=20 Monitoring and Regulatory Forecasting services on those states that aren=01= ,t=20 currently being actively monitored by the department. Stateside Associates = is=20 based in Arlington, Virginia and is the largest state and local issue=20 management firm. It has 50 employees and over 13 years of experience=20 providing high quality information resources. The professionals who monito= r=20 state legislation are all former state legislative staff members and=20 Regulatory Forecasting is provided by attorneys familiar with our issues.

We will receive an updated Legislative and Regulatory report every two=20 weeks. Everyone on the attached notification list will receive an email=20 alerting us that the report has been updated. If you're not on the list an= d=20 would like to be added please let me know. The list is currently set up=20 geographically, but we can add an issue-based distribution if needed.

At any time, we can access our report by clicking=20 [www.stateside.com/istatelink](http://www.stateside.com/istatelink) or by following the site link from the Gov't= 20 Affairs intranet site. The Enron logon is phoenix06 (not case sensitive). = 20 This logon must not to be shared outside Enron. =20

We will also receive email alerts about our issues. These will be sent to= 20 the designated recipients based on the issue or geography. =20

Because interaction with us is very important to Stateside, any Enron=20 employee may contact Stateside Associates for additional information (Speci= al=20 Request) pertinent to the monitoring service. For example, you may want to= 20 learn more about who is lobbying for a bill, what the deadlines are for a= 20 regulatory activity or to receive a list of who testified at a hearing. Th= is=20 follow-up research is part of the Stateside Associates=01, service. It wil= I not=20 result in any additional fees.

However, if a Special Request is made that is outside the scope of the Enro= n=20 program, it will be addressed with me prior to the commencement of any=20 work. Again, if Stateside responds to your request, there will be no=20 additional fee =01) so please use this feature.

Our principal Stateside Associates=01, contact is Todd Cohn, Manager,=20 Legislative Information Services. He can be reached at [tjc@stateside.com](mailto:tjc@stateside.com) o= r=20 703-525-7466. The Enron iStateLink website also features a roster of othe= r=20 Stateside professionals, including their email addresses. =20

You can learn more about Stateside on their website at [www.stateside.com](http://www.stateside.com).

I hope you find this service useful and look forward to your feedback.

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Aggregation Consumer Education and Protection relative to Electricity Deregulation Fuel Adjustment Clauses (All forms) Generation Siting Low Income Energy Assistance Programs Net Metering Pilot Programs Provider of Last Resort

Emissions Renewable Portfolio Standards System Benefit Charges

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Message 999 of 1299

## FW: Joint ACR Regarding DWR's Revenue Requirement And July 27, 20

|            |                                                             |
|------------|-------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                     |
| Recipients | ['lisa.mellencamp@enron.com', 'michael.tribolet@enron.com'] |
| File       | dasovich-j/sent/12136.                                      |

----- Forwarded by Jeff Dasovich/NA/Enron on 07/25/2001 12:21 PM -----

JBennett <[JBennett@GMSSR.com](mailto:JBennett@GMSSR.com)> 07/25/2001 11:59 AM

To: "Harry Kingerski (E-mail)" <[Harry.Kingerski@enron.com](mailto:Harry.Kingerski@enron.com)>, "Jeff Dasovich (E-mail)" <[jdasovic@enron.com](mailto:jdasovic@enron.com)>, "Jim Steffes (E-mail)" <[James\\_D\\_Steffes@enron.com](mailto:James_D_Steffes@enron.com)>, "Sue Mara (E-mail)" <[smara@enron.com](mailto:smara@enron.com)> cc: Subject: FW: Joint ACR Regarding DWR's Revenue Requirement And July 27, 20 01 Workshop

Attached is an Assigned Commissioner's Ruling issued yesterday by Commissioners Lynch and Brown soliciting comments on the Revenue Requirement submitted by DWR on July 23rd.

The revenue requirement is increased from the \$9.2 billion submitted in May to \$13.072 billion, but covers a longer period of time (the period of January 17, 2001 through December 31, 2002). The revenue requirement is expected to pay for 118,930 GWh of power. The revenue requirement is divided among the three UDCs as follows (1) PG&E = \$5.2 billion; (2) SCE = \$5.8 billion; and (3) SDG&E = \$2.1 billion. The revenue requirement was divided among the three UDCs based on a uniform cost per MWh of net short energy purchased by DWR. The bond proceeds will be applied in a manner to supplement the revenue from the customers to DWR such that the net revenue requirement falls within the retail rate adjustments adopted by the CPUC for PG&E and SCE (i.e., the three cents), and assumes a comparable rate adjustment for SDG&E.

The ACR asks for comments on the revenue requirement submitted by DWR, particularly in the areas of (a) the relationship between the UDCs retained generation revenue requirement and the DWR revenue requirement ; and (b) DWR's request for the establishment of "specific charges payable to DWR for the power sold by DWR to retail end use customers" (e.g., should this be in a form of separate rate element or in the form of a gross revenue amount to be derived from rates).

The ACR also requests more information from DWR. Specifically it requests information on (a) the revenue DWR has already received from the UDCs; (2) how the revenue requirement for ancillary services was calculated; (c) more specifics on Operating Costs; and (4) a numerical illustration of the derivation of the 1.65 cents per kWh as representing the average portion of the 3 cent rate increase that DWR needs to generate its \$13 billion revenue requirement (a figure that was apparently reported in the press). DWR is suppose to serve this information on the Commission and parties to the proceeding by Thursday the 26th.

There will be a technical workshop held on Friday the 27th to address DWR's revenue requirement.

It is the Commission's intent after the receipt and review of comments to issue a PD and to vote on the revenue requirement at its August 23rd meeting.

Please let me know as soon as possible if you would like to submit comments on the revenue requirement or have me attend the workshop.

Jeanne Bennett

-----Original Message-----

From: Wong, John S. [mailto:jsw@cpuc.ca.gov] Sent: Tuesday, July 24, 2001 5:24 PM

Subject: Joint ACR Regarding DWR's Revenue Requirement And July 27, 2001 W orkshop

Attached is an advance draft of a joint assigned Commissioners' ruling asking parties to comment on DWR's revised revenue requirement by August 3, 2001, asking for additional information from DWR, and setting a workshop for July 27, 2001 at 9:00 am at the Commission to discuss the revenue requirement assumptions with representatives from DWR.

Due to computer difficulties, this ruling will be filed with the Docket Office tomorrow, July 25.

<<joint ACR.doc>>

John S. Wong CPUC - ALJ (415) 703-3130

- joint ACR.doc

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Message 1000 of 1299

| Re:        |                                 |
|------------|---------------------------------|
| Sender     | scottwl@hotmail.com             |
| Recipients | [jeff.dasovich@enron.com]       |
| File       | dasovich-j/all_documents/12816. |

Thanks a lot. That sounds perfect. I'll give my mom Sharon's number, and she can call her and get a feel for things through her. About Jay's, I can get her to chill on that. I think that she's just generally excited, so anything sounds good. She just needs to come up first, and worry about other things later. And we can just let you think about what you want to do, and see what Jay has in mind all in good time. I totally understand wanting to approach him in the way that works best for you. I am at my office at 922-3430. Thanks again!

*From: Jeff.Dasovich@enron.com To: "Scott Laughlin" <scottwl@hotmail.com> Subject: Re: Date: Mon, 21 May 2001 15:16:07 -0500 No problem. Let's talk. I'm really comfortably having you and me and your mom and Keith talk about. I'm very interested in buying Jay's property, but I don't even the details yet. Here's my suggestion. If they want to come up that bad, they should. My agent is a very cool person up there. Here name is Sharon Burningham. She is with Coldwell Banker. Her number is 707.884.5270. ext. 308. You should feel free to tell your mom that Prentice and I have always have the intention of buying Jay's place, and we've had a sort of unspoken agreement that he'd give us the first "head's up" when he decided to sell. To be honest, we didn't expect it to be this quick, but hey, it is what it is. You can also tell your mom that I'm very happy to talk about partnering with her. But it's WAY to early right now. As we discussed, I need to spend some time with Jay---the other very important thing for me is that Jay's a very good friend, and I want to protect that, too. In the meantime, I think that it would be great for your mom and Keith to have Sharon take them around and show them some killer million--plus--dollar homes and have some fun cruising around and seeing what the area has to offer. I'm real happy to call Sharon, too. That sound like a plan? Where can I call you? Best, Jeff "Scott Laughlin" To: jdasovic@enron.com <scottwl@hotmail.com> cc: ail.com> Subject: 05/21/2001 02:38 PM Dude, I just talked to my mom, and they are chomping at the bit, if that's the right expression. My mom even wants to come up Wed and stay til Thurs night! I told her to chill a bit, that she might not be able to see Jay's property. She still wants to come up, so I told her we might be able to look at some other stuff, so do you think I should talk to an agent about this? They are damn excited, and I don't really know how to calm them down. They went to bookstores and looked at pictures of the area. They are probably talking about it all the time. I tell you this so you know what I'm dealing with over here. She also asked me if you were thinking of buying it, and I told her I wasn't sure. Do you want me to tell her that you're thinking about it? I know they'd totally respect your position, if we told them that. I'm not sure I even want them to come up this week, but they are so emphatic that it'd be nothing less than an insult to tell them not to. Anyway, give me some advise on this matter, please. Cheers! Scott Also, thanks for giving Cameron your car; I know she's psyched.*

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Get your FREE download of MSN Explorer at <http://explorer.msn.com>

Message 1001 of 1299

### Fwd: FERC Eyes Making More Calif Pwr Sales Subject To Refund

|            |                                                                                                                  |
|------------|------------------------------------------------------------------------------------------------------------------|
| Sender     | rcarroll@bracepatt.com                                                                                           |
| Recipients | [mmilner@coral-energy.com], 'gfergus@brobeck.com', 'Deanna King', 'Andrea Settanni' <asettanni@bracepatt.com>... |
| File       | dasovich-j/all_documents/12247.                                                                                  |

This is troublesome Content-Transfer-Encoding: quoted-printable Date: Thu, 10 May 2001 09:34:05 -0500 From: "Tracey Bradley" <tbradley@bracepatt.com> To: "Justin Long" <jlong@bracepatt.com>, "Paul Fox" <pfox@bracepatt.com> Cc: "Andrea Settanni" <asettanni@bracepatt.com>, "Deanna King" <dking@bracepatt.com>, "Dan Watkiss" <dwatkiss@bracepatt.com>, "Ronald Carroll" <rcarroll@bracepatt.com> Subject: FERC Eyes Making More Calif Pwr Sales Subject To Refund Mime-Version: 1.0 Content-Type: text/plain; charset="us-ascii" Content-Disposition: inline

According to this article, FERC officials have indicated that FERC might modify its 3 proxy price/refund orders to include sales made during Stage 1 and Stage 2 emergencies.

FERC Eyes Making More Calif Pwr Sales Subject To Refund

Updated: Wednesday, May 9, 2001 05:56 PM ET By Bryan Lee OF DOW JONES NEWSWIRES

WASHINGTON (Dow Jones)--The U.S. Federal Energy Regulatory Commission is considering orders that would broaden the scope of California power sales - subject to potential refund for overcharges, according to knowledgeable FERC

officials.

FERC has issued three refund orders to date, totaling nearly \$125 million for the first three months of this year.

In calculating the potential refunds, the commission limited its consideration to power sales made during Stage 3 power-grid emergencies declared by the California Independent System Operator.

Stage 3 alerts are the last step before the state's grid operator orders rolling blackouts because demand has outstripped the system's ability to deliver power.

The orders established proxy market-clearing prices for Stage 3 emergencies - and ordered power providers to justify the higher costs or provide refunds to the California ISO.

The orders were highly controversial, stirring criticism from California officials and others who complained that the orders were too narrow and failed to require refunds for unjust and unreasonable power costs during all hours.

The California ISO has placed its overcharges at \$6.2 billion for electricity purchased during a 10-month period from May 2000 through February of this year. The calculation wasn't limited to just grid-emergency hours.

By limiting refund liability to just Stage 3 emergencies, FERC sought \$69 million in refunds for January, \$55 million in February, and \$587,000 for March.

FERC Commissioner William Massey has decried the refund orders as "paltry" and "arbitrary" and called for the commission to order refunds for power sales during all hours, not just Stage 3 grid emergencies.

The broader refund orders under consideration by the commission won't go far enough to satisfy Massey, California officials and other critics, however.

In acting on requests for rehearing of the three refund orders, the commission is looking to also make sales during Stage 1 and Stage 2 emergencies subject to potential refund, according to FERC officials.

The commission on rehearing will adjust the refund orders to reflect the California power price mitigation plan FERC approved late last month.

Under the order, the ISO going forward will establish cost-based market-clearing prices for Stage 1, 2 and 3 emergencies. Power providers would have to justify power sales above the proxy market-clearing price - or make refunds to the ISO.

In light of the price mitigation order's consideration of all three stages of power-grid emergencies declared by the ISO, "It doesn't make any sense to have those stage 3 refund orders sticking out like a sore thumb," said a FERC official, who confirmed the commission's intent to adjust the refund orders on rehearing.

By Bryan Lee, Dow Jones Newswires, 202-862-6647, bryan.lee@dowjones.com

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Message 1002 of 1299

## RE: Legislators' "Plan B" to "Enhance" Governor's MOU w/Edison and

|            |                                 |
|------------|---------------------------------|
| Sender     | michael.tribolet@enron.com      |
| Recipients | [jeff.dasovich@enron.com]       |
| File       | dasovich-j/all_documents/12591. |

Could I get a copy of pl;an B (fax to 713 646-8525)?

-----Original Message-----

From: Dasovich, Jeff Sent: Tuesday, May 15, 2001 7:18 PM To: Kaufman, Paul; McCubbin, Sandra; Mara, Susan; skean@enron.com; Steffes, James; Kingerski, Harry; Guerrero, Janel; Robertson, Linda; Briggs, Tom; Hartsoe, Joe; Denne, Karen; mpalmer@enron.com; Tribolet, Michael Subject: Legislators' "Plan B" to "Enhance" Governor's MOU w/Edison and Status Report Sensitivity: Confidential

"Plan B" As folks know, there's a group of moderate Democrats in the CA Assembly that has been working on a "Plan B." They've been working on it because they're not satisfied with the Governor's MOU with Edison. The Plan B group has been talking to a broad array of stakeholders, including Republicans, to get input into how "Plan B" can improve upon the MOU. First the good news about Plan B: a fairly bright group of legislators is rolling up its sleeves and attempting to come up with a centrist solution to the problem, and they're at least creating the appearance of trying to be bi-partisan about it. (There is at least one idea in Plan B that is attributable to a Republican--Keith Richman--that Ken Lay met with a couple of weeks ago.) So the beginnings of a process to resolve California's crisis may be emerging. Now the bad news: because they are trying to build a consensus, Plan B is a mish-mash, isn't focused, includes some pretty bad ideas, excludes some good ideas (like re-establishing Direct Access immediately), and is going to require a lot more work to get right. Update on Efforts to Achieve a Settlement In the meeting with the suppliers that Steve Kean and I participated in yesterday, one of the financial consultants hired by the Governor criticized several of the Plan B proposals as unworkable. On today's call with the Governor's staff and suppliers it became somewhat apparent that the Governor isn't going drive a resolution, but will leave it to the Legislature to take the lead role. The staff emphasized repeatedly that the lawsuits, investigations, etc. were not on the table for discussion in any global settlement talks, and that attempting to bring them in to the negotiations was a nonstarter. Instead, the Governor's staff said that the group should focus on the size of the discount that suppliers would be willing to take. The suppliers pushed back, stating that including haircuts in the talks while excluding the lawsuits, investigations, etc. is one-sided and unworkable. The staff urged the group to begin negotiations with the Legislature, but made it fairly clear that the Governor would not be the one to pull the necessary principals together in a room to hammer out a solution; his staff implied instead that it's up to others, i.e., the suppliers, to get the process of negotiations underway. Next Steps If the Governor's financial consultants are prepared by Friday, they will brief suppliers on the ways in which the administration is attempting to resolve the State's creditworthiness issue to encourage suppliers to do power deals with CDWR. If they are not ready by Friday, the suppliers will meet separately to discuss next steps. Finally, there's been some confusion. My apologies. Sandi faxed to Jim and Harry yesterday a copy of "Plan B." Sandi mentioned that the Governor gave the Plan B group an analysis of the Plan. For those that have a copy of Plan B, see the 10-page memo dated May 12th, attached to the back of the Plan. The memo is from Joe Fichera to John Dutra, Fred Keeley and Joe Nation (3 of the Plan B Democratic legislators). Joe Fichera is the head of Saber Partners, a financial consulting group that the Governor hired to advise him on the crisis. If anyone has not yet received a copy of Plan B, please let me know and I'll get it to you.

Best, Jeff

Message 1003 of 1299

#### Individual.com - News From a Friend!

|            |                              |
|------------|------------------------------|
| Sender     | kdenne@enron.com             |
| Recipients | ['jeff.dasovich@enron.com']  |
| File       | dasovich-j/notes_inbox/1693. |

INDIVIDUAL.COM

Here's an article recommended by: Karen Denne and it comes to you via Individual.com, Inc.

The following message was attached:

HERE IS THE STORY WE WERE REQUESTED TO SEND YOU

This story appeared on <http://www.individual.com> November 15, 2000

Cal-ISO Declares Stage 2 Emergency; Directs SCE to Begin 'Load' Curtailment= =20 Program for Certain Customers  
ROSEMEAD, Calif., Nov. 13 /PRNewswire/ via NewsEdge Corporation - With the state's power reserves at less than 5%, the California Independent System Operator (Cal-ISO) has declared a "Stage 2 Emergency" and called upon Southern California Edison a= nd other investor-owned utilities to begin voluntary "load" curtailment progra= ms for certain customers within their service areas.

Cal-ISO attributed the Stage 2 emergency to a generation shortfall partially attributable to several power plants in the California market being down for scheduled maintenance.

At the same time, Cal-ISO and SCE are making urgent appeals for all customers to immediately reduce their electricity consumption.

Cal-ISO, the nonprofit agency that manages 75% of California's transmission power grid and secures power supplies for most of the state's consumers, said the Stage 2 status would be in effect from 5:30 p.m. to 8 p.m. The agency directed SCE to reduce its electrical load by 1,000 megawatts -- enough power to serve approximately a million homes.

To achieve this load reduction during Stage 2, SCE is required to activate its voluntary load curtailment program, under which large industrial, commercial, and agricultural customers who have agreed to have their power temporarily interrupted in exchange for reduced rates.

Should the situation worsen for any reason, and power reserves drop below 1.5%, Cal-ISO will declare a Stage 3 Emergency, the most critical status. Cal-ISO would direct utilities to "drop load," necessitating involuntary rotating outages for blocks of customers across their service areas until sufficient reserve levels are achieved.

Large energy users, such as industrial and commercial customers, can help the power-supply situation by turning off unneeded lights and auxiliary or redundant machinery where ever possible. The best ways to reduce power consumption at home are to turn off any unneeded electrical appliances and lights.

An Edison International company, Southern California Edison is one of the nation's largest electric utilities, serving a population of more than 11 million via 4.3 million customer accounts in a 50,000-square-mile service area within central, coastal and Southern California.

SOURCE Southern California Edison

CONTACT: Corporate Communications of Southern California Edison, 626-302-2255 Web site: <http://www.sce.com> Web site: <http://www.edisonnews.com> (EIX)

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Message 1004 of 1299

## RE: FW: Top Level Energy Person

|            |                                                                                                        |
|------------|--------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                |
| Recipients | ['Curtis', 'tom.riley@enron.com', 'Michele; Kaufman', 'Paul; Shapiro', 'Richard; McCubbin', 'Sandra;'] |
| File       | dasovich-j/sent/3189.                                                                                  |

Kari Dohn. 916.324.3501.

Tom Riley/Western Region/The Bentley Company@Exchange 02/12/2001 04:02 PM



To: Jeff Dasovich/NA/Enron@ENRON@EES cc: Subject: RE: FW: Top Level Energy Person

Thanks Jeff - do you have Kari's contact information?

Tom

-----Original Message-----

From: Jeff Dasovich/NA/Enron@ENRON@EES On Behalf Of Jeff Dasovich/Na/Enron@EES Sent: Monday, February 12, 2001 1:09 PM To: Riley, Tom Cc: Curtis, Michele; Kaufman,Paul; Shapiro,Richard; McCubbin,Sandra; Mara,Susan Subject: RE: FW: Top Level Energy Person

I think that it would be best for the Chancellor's office to make the contact/request, but if you need us to help, then Steve Kean, Rick Shapiro or I can make a go of it; but again, I think that it would best for the Chancellor's office to make the invite.

Best, Jeff

Tom Riley/Western Region/The Bentley Company@Exchange 02/12/2001 02:58 PM To: Jeff Dasovich/NA/Enron@ENRON@EES cc: Michele Curtis/Western Region/The Bentley Company@Exchange, Sandra McCubbin/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Richard Shapiro/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT Subject: RE: FW: Top Level Energy Person

Jeff,

Thank you - Kari certainly seems to be an ideal candidate. Who would the appropriate person be from Enron to initiate contact with Kari regarding the request? Once initial contact is made, I can follow up with details.

Tom

-----Original Message-----

From: Jeff Dasovich/NA/Enron@ENRON@EES On Behalf Of Jeff Dasovich/Na/Enron@EES Sent: Monday, February 12, 2001 11:26 AM To: Riley, Tom Cc: Curtis, Michele; McCubbin,Sandra; Mara,Susan; Shapiro,Richard; Mara,Susan; Kaufman,Paul Subject: Re: FW: Top Level Energy Person

Hi Tom:

From our contact with the Governor's office, seems that Kari Dohn, formerly in the Governor's office, and recently appointed Chair of the Electricity Oversight Board, would be the hands-down best candidate.

Best, Jeff

Tom Riley/Western Region/The Bentley Company@Exchange 02/12/2001 01:02 PM To: Sandra McCubbin/NA/Enron@Enron cc: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Michele Curtis/Western Region/The Bentley Company@Exchange Subject: FW: Top Level Energy Person

If any of you have ideas on this, please respond ASAP. As you may know, I sit on the CSU Foundation Board of Governors, accountable to Chancellor Reed. Anything we can do to support the upcoming meeting will go a long way.

Regards, Tom

-----Original Message-----

From: "Patricia Linn" <plinn@calstate.edu>@ENRON@EES Sent: Wednesday, February 07, 2001 2:13 PM To: <tom.riley@enron.com> Subject: Top Level Energy Person Importance: High

Greetings Tom, in preparation for our upcoming Board of Governors' meeting, I would like to ask you for your help in getting a speaker for the evening. The March 11 (Sunday) Board meeting in Sacramento is focused around CSU Legislative Day scheduled for Monday, March 12. The Board meeting is scheduled to begin at 4:00 pm followed by a dinner. We will invite the CSU Trustees to attend the dinner along with other key CSU leaders; we normally have about 30-40 individuals attend the dinner.

This year, we would like to invite someone from the Governor's office to come and talk a little about the energy crises in California. Can you help us identify someone in Davis' administration that may be interested in speaking to this

distinguished group of individuals?

Again, briefly, Meeting date/time: Sunday, March 11, 2001 at 4:00 pm; dinner is scheduled for 6:45pm; in Sacramento.

I look forward to hearing from you soon.

Patricia Castillo Linn, CFRE Senior Director, Advancement Programs and Vice President, CSU Foundation The California State University Office of the Chancellor 401 Golden Shore, 6th Floor Long Beach, California 90802-4210 562/951-4821 562/951-4983 FAX

- winmail.dat << File: winmail.dat >>

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Message 1005 of 1299

**CSHE**

**Sender** george.waidelich@enron.com

**Recipients** ['jdasovic@enron.com', 'eric.letke@enron.com']

**File** dasovich-j/notes\_inbox/4769.

Jeff, the "powers" in Houston believe you are the right guy to do this. are you available? Can you confirm with the gentleman below.

George Waidelich 925-543-3801 ----- Forwarded by George Waidelich/SFO/EES on 03/22/2001 08:39 AM -----

Eric Letke 03/22/2001 08:05 AM To: George Waidelich/SFO/EES@EES cc: Subject: CSHE

Mike Smith is all right with it. Preference is to have Gov Affairs do it. Please check with Jeff D to see if he or someone in their group can do. We will be back-up. ----- Forwarded by Eric Letke/DUB/EES on 03/22/2001 09:59 AM

George Waidelich 03/20/2001 10:50 AM To: Eric Letke/DUB/EES@EES cc: Subject: CSHE

What do you want me to tell these guys? I don't mind telling them because of the lawsuit we are not interested.

GW ----- Forwarded by George Waidelich/SFO/EES on 03/20/2001 08:49 AM -----

"anthony moddesette" <anthony.moddesette@ucdmc.ucdavis.edu> on 03/20/2001 07:52:42 AM To: gwaideli@enron.com cc: dbouzard@calhealth.org Subject: CSHE

George, running out of time. Any idea when we will receive approval?

Tks, Tony ----- Forwarded by anthony moddesette/RMC/HS/UCD on 03/20/2001 07:53 AM

anthony moddesette To: gwaideli@enron.com cc: 03/09/2001 bcc: dbouzard@calhealth.org 04:18 PM Subject: CSHE

This is a request for Enron to participate in an educational program for the California Society for Healthcare Engineering (CSHE). CSHE is a nonprofit organization dedicated to supporting the healthcare professionals in California by providing educational opportunities, interdisciplinary awareness, code review and is affiliated with the American Society for Healthcare Engineering and the California Hospital Association. Our membership roll averages about 1000 members representing over 150 hospitals and hundreds of architects and engineering firms.

Each year CSHE hosts a 2-3 day Institute featuring topics of current interest presented by professional, qualified, expert speakers and panelists. This year the Institute will be held on May 10 & 11th in Monterey. We expect about 200 attendees.

On Friday, the 11th, we will have a panel discussion on the topic of energy. It is scheduled from 9 am to noon and consist of 3 panel speakers. Each speaker will make a 20-30 minute presentation which will be followed by a Q&A period. We currently have 2 of the 3 speakers signed up: an energy engineering firm speaking on energy conservation, A VP from the California Hospital Association speaking on the legislative/regulatory issues that could impact healthcare facilities energy programs.

The 3rd speaker will be someone who can talk about the current energy market conditions (gas & electricity) and the possible future market conditions. We hope Enron will agree to be the energy market speaker.

I would like to emphasize the educational nature of our program. The audience will be knowledgeable and will expect professional presentations. Each of our facility members are dealing with the energy crisis daily and will be eager to learn. Enron can be very helpful with creating a better understanding of the variables and options available to hospitals.

I am the CSHE State Vice Chair and will become the State Chair at the Institute this year. I hope Enron will act favorably upon this request. We are preparing our program for printing now and a timely response would be appreciated.

Thank you for your assistance,

Anthony S. Moddesette Manager Plant Operations & Maintenance UC Davis Medical Center 4800 2nd Ave Suite 1500  
Sacramento, CA 95817 916/734-2472

Tks, Tony (Embedded image moved to file: pic19026.pcx) - pic19026.pcx

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Message 1006 of 1299

### El Paso Announces Binding Open Season for Additional Capacity on

|            |                                                            |
|------------|------------------------------------------------------------|
| Sender     | rebecca.cantrell@enron.com                                 |
| Recipients | ['barry.tycholiz@enron.com', 'stephanie.miller@enron.com'] |
| File       | dasovich-j/notes_inbox/12049.                              |

Also posted today on El Paso's web site. ----- Forwarded by Rebecca W Cantrell/HOU/ECT on 07/10/2001 02:14 PM -----

"Tracey Bradley" <tbradley@bracepatt.com> on 07/10/2001 02:10:18 PM To: <jlimone@aeglobalmarkets.com>, "Charles Shoneman" <cshoneman@bracepatt.com>, "Randall Rich" <r-rich@bracepatt.com>, <rreilley@coral-energy.com>, <Rebecca.W.Cantrell@enron.com> cc:

Subject: El Paso Announces Binding Open Season for Additional Capacity on Line 2000

FYI

Tuesday July 10, 9:21 am Eastern Time

Press Release SOURCE: El Paso Corporation

El Paso Announces Binding Open Season for Additional Capacity on Line 2000

HOUSTON, July 10 /PRNewswire/ -- El Paso Natural Gas Company, a subsidiary of El Paso Corporation (NYSE: EPG - news), announced today a binding open season for 320 million cubic feet per day (MMcf/d) of pipeline capacity from the Keystone and Waha areas of the Permian Basin in West Texas to the California border near Ehrenberg, Arizona. The binding open season, which began July 5, 2001 and closes on August 2, 2001, is in response to the interest expressed during El Paso's non-binding open season in March 2001 soliciting shippers for potential system expansions.

The expansion capacity will be made available by adding compression to El Paso's Line 2000 from McCamey, Texas to the California border near Ehrenberg, Arizona. The expansion capacity will be sold at El Paso's existing maximum California tariff rate, and the fuel charge is estimated to be 5 percent. The projected in-service date of the expansion facilities is mid-2003 subject to the receipt of all necessary regulatory, environmental, and right-of-way authorizations.

The receipt points on El Paso's system for this capacity will be the Waha and Keystone pools in the Permian Basin area of West Texas. The delivery points will be Southern California Gas Company (SoCal) and PG&E's proposed North Baja Pipeline, El Paso's bi-directional lateral (Line 1903), any future incremental capacity on the SoCal system from Ehrenberg, Arizona into the State of California, and any upstream points on El Paso's south mainline system where capacity exists.

"This system expansion will add incremental interstate capacity to California, Arizona, New Mexico, and West Texas to meet increasing natural gas demands including the demand for natural gas to generate electricity for the western United States," said Patricia A. Shelton, president of El Paso Natural Gas Company.

Interested parties can contact their transportation marketing representative or Mr. Jerry W. Strange at (719) 520-4687.

El Paso Corporation is committed to meeting energy needs throughout North America and the world with operations that span the energy value chain from wellhead to electron. The company is focused on speeding the development of new technologies, such as clean coal and liquefied natural gas, to address critical energy shortages across the globe. Visit El Paso at [www.elpaso.com](http://www.elpaso.com).

#### CAUTIONARY STATEMENT REGARDING FORWARD-LOOKING STATEMENTS

This release includes forward-looking statements and projections, made in reliance on the safe harbor provisions of the Private Securities Litigation Reform Act of 1995. The company has made every reasonable effort to ensure that the information and assumptions on which these statements and projections are based are current, reasonable, and complete. However, a variety of factors could cause actual results to differ materially from the projections, anticipated results or other expectations expressed in this release. While the company makes these statements and projections in good faith, neither the company nor its management can guarantee that the anticipated future results will be achieved. Reference should be made to the company's (and its affiliates') Securities and Exchange Commission filings for additional important factors that may affect actual results.

SOURCE: El Paso Corporation

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Message 1008 of 1299

## Politicians seek shelter as energy Armageddon looms

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Dan Walters: Politicians seek shelter as energy Armageddon looms

(Published April 4, 2001) There's been a subtle but unmistakable shift in the political atmosphere that envelops California's energy crisis. Politicians have concluded that the crisis is largely beyond their control and the die is more or less cast. Whatever fate decrees - massive summer blackouts, soaring utility bills or even the bankruptcy of the state's utilities - will happen, and politicians from Gov. Gray Davis downward are scrambling to insulate themselves from voters' anger and single out rivals for blame. No one is saying that publicly, of course, but the fatalistic mood is very apparent in the Capitol, whose denizens have dropped their preoccupation with energy and moved to other matters. Legislative committees are working on the hundreds of bills that had been stalled for three months while the special committees that had been holding almost daily sessions on the energy crisis have gone into semihibernation. Last weekend's Democratic state convention in

Anaheim was dominated by fears that when the crisis hits home, the party's dominance of the Capitol will backfire. "Just remember Jimmy Carter," state Controller Kathleen Connell warned fellow Democrats, adding that they will have "no excuses" for perceived failure to deal with the crisis forthrightly. "We will be accountable on Election Day 2002," she said. Next year's elections are very much on Davis' mind, since he'll be seeking a second term and polls indicate that his approval ratings have declined sharply in recent weeks. He devoted much of the weekend to defending his actions, saying, "I believe we've moved at warp speed to address this problem," and trying to pin blame on Republicans. Republicans, meanwhile, sense that the crisis gives them an avenue of escape from the dungeon of irrelevancy to which they had been exiled by heavy losses in the last three elections. The only remaining statewide GOP officeholder, Secretary of State Bill Jones, is running for governor by accusing Davis of mismanagement, and Republican Assembly members dumped their leader, Bill Campbell, on grounds that he had been insufficiently aggressive vis-a-vis Davis. The political positioning reflects the reality that the crisis shows every sign of worsening. Although Davis' office is distributing a brochure entitled "Meeting the Energy Challenge" to defend the governor's actions, it's apparent that none of the steps the governor has taken is bearing much fruit. The state is spending at least \$50 million a day on emergency power purchases, but what was supposed to be a short-term program has evolved into a monthslong drain on the state's rapidly shrinking budget reserves. The long-term supply contracts that were supposed to replace daily spot purchases have bogged down, and without firm contracts and a revenue stream to pay for them, Wall Street is reluctant to market the bonds the state wants to float. Many authorities now believe Davis' decision to step into the power purchase market in January was a strategic error because it gave power suppliers a deep new pocket to tap just as the utilities themselves ran out of credit. Davis, meanwhile, is refusing to embrace a rate increase approved by the state Public Utilities Commission, which sends a mixed message to Wall Street, and efforts to resolve problems with unpaid bills from power generators and have the state acquire the utilities' intercity transmission grid have stalled, perhaps permanently. The crisis may careen totally out of control as summer arrives, raising the specter of elderly and/or ill Californians dying from having their air conditioners or medical equipment shut down. And the utilities are closer to bankruptcy now than at any other point in the nearly yearlong crisis. Plan A isn't working, and there is no Plan B - except for bankruptcy. With Armageddon looming, politicians have retreated into the bunker, hoping to protect themselves from what could be a firestorm of anger. The Bee's Dan Walters can be reached at (916) 321-1195 or [dwalters@sacbee.com](mailto:dwalters@sacbee.com).

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*Message 1009 of 1299***Figures show state lost big on extra power**

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| File       | <a href="#">dasovich-j/all_documents/29066</a> .                                                                                                                                                                                                        |

FYI. Many similar stories in the major papers today. Best, Jeff Figures show state lost big on extra power Posted at 9:53 p.m. PDT Monday, July 23, 2001 BY JOHN WOOLFOLK Mercury News State figures show California may have lost about \$14 million this month selling surplus electricity for less than it cost. The Mercury News disclosed last week that some power was being sold at a loss. But the new figures provide the first indication of just how much excess power the state bought in its desperate effort to avoid blackouts -- and how cheaply some of that power was sold when it turned out not to be needed. A Republican lawmaker said Monday the loss also shows Democratic Gov. Gray Davis' energy policies are needlessly costing consumers. "This whole thing is a mess," said Assemblyman John Campbell, R-Irvine, who requested details of the state's surplus power sales. "The government needs to get out of the power business before it costs Californians even more money." A state spokesman didn't dispute the \$14 million figure outright but said it is an approximation based on average prices and that the actual loss probably is less. "It's a number I'm sure he likes very much, but it's definitely an estimated number, and it could be far lower," said Oscar Hidalgo, spokesman for the state Department of Water Resources. Campbell responded that the loss also could be higher. The state has spent \$415 million on power so far this month. State officials last week confirmed that cool weather and consumer conservation have left California holding more power than it needs. The revelation was a stunning turnaround for a state that months ago was paying top dollar for power, expecting shortages this summer. Price that was paid The state bought 3.5 million megawatt-hours of electricity for July at an average price of \$118 per megawatt-hour, according to a response Friday by



the Department of Water Resources to Campbell's inquiry. The state has sold 178,000 surplus megawatt-hours in July at an average price of \$37, the department said. Based on those average prices, the state paid \$21 million for the surplus power, which it sold for \$6.5 million -- \$14.5 million less than it cost. A more precise calculation of the state's loss is difficult because purchased power is acquired at different times and prices and pooled as a "portfolio." Purchases included long-term contracts that averaged \$138 per megawatt-hour as well as cheaper spot-market buys. State officials last week said they were selling surplus at \$15 to \$30 a megawatt-hour, while some traders cited unconfirmed sales as low as \$1. Hidalgo noted that the surplus sales represent just 5 percent of California's July purchases, which totaled \$415 million. The \$6.5 million from sales will help lower the state's power bill, he said, adding that utilities routinely sell some extra electricity. "Despite the fact that we're in somewhat of a surplus, any power-buying operation in the world is going to have to plan for these types of situations," Hidalgo said. "It's not unique, and in fact it's normal operating procedure for any utility." Other Western utilities, including Portland General Electric in Oregon, have said they, too, are selling some surplus power at a loss and describe it as a cost of doing business. The suppliers buying the state's surplus electricity on the cheap include the big out-of-state energy companies that the governor has called price-gouging "snakes." Among them are Duke Energy, Dynegy Power and Marketing, El Paso Power Services, Mirant, Reliant Energy and Williams Energy. "Best bid" taken Hidalgo said the state took the best offers it could find. "It's only reasonable to get the best bid you can," he said. Campbell said the \$14 million loss is troubling because ratepayers or taxpayers will have to cover the cost, whereas a private utility could be forced to eat the expense if regulators determined it was unreasonable. State officials say what's more important is that the overall cost of power is dropping, from an average daily tab of \$64 million in May to \$25 million this month, in part because the state has so much power. Contact John Woolfolk at [jwoolfolk@sjmercury.com](mailto:jwoolfolk@sjmercury.com) or (408) 278-3410.

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*Message 1010 of 1299***Dan Walters: Blame game over California's energy crisis will**

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| File       | <a href="#">dasovich-j/all_documents/29068.</a>                                                                                                                                                                                                           |

Dan Walters: Blame game over California's energy crisis will continue for years (Published July 24, 2001) The wrestling match between politicians and Enron Corp. moved into a more intense arena over the weekend when a state Senate investigating committee sought contempt penalties because the huge energy company has refused to turn over internal documents. Although Houston-based Enron owns no major power plants in California, it has adopted the toughest stance of all energy companies against the multiple investigations of why wholesale energy prices spiked so high. And it has become, in turn, a whipping boy for California politicians. At one point last spring, state Attorney General Bill Lockyer said he wanted criminal charges against Enron and its chairman, Kenneth Lay. "I would love to personally escort Lay to an 8-by-10 cell that he could share with a tattooed dude who says, 'Hi, my name is Spike, honey,'" Lockyer said. With less colorful language, Gov. Gray Davis has often castigated Texas-based companies as price gougers -- even though Texas firms have been fairly minor suppliers to California. Some of it is just buzzword politics. Lockyer and Davis know that Californians dislike anything associated with Texas, and Lay has been one of President Bush's major political supporters. Enron, meanwhile, cites the rhetoric as evidence that Lockyer, Davis and legislative investigators are interested less in finding the truth than in seeking scapegoats. Enron also filed a lawsuit challenging the legality of the Senate's subpoenas of trading data. Most other energy companies have complied with the demands, creating Sacramento repositories of the data under elaborate confidentiality agreements worked out with the special Senate committee headed by Sen. Joseph Dunn, D-Santa Ana. But Enron has refused, and on Saturday, Dunn submitted a report asking the Senate for "an appropriate coercive sanction." Does Enron have something to hide? Or does it sincerely believe that what's happening in California is political scapegoating? Are the companies' fears about the confidentiality of the data sought by the Senate justified? Would data be selectively leaked to show the firms in the worst light? Would data be used by competitors? Or could the information find its way into the hands of class-action attorneys? Dunn, a prominent trial attorney himself, insists that confidentiality will be protected and that the information being sought is only for legislative purposes. But Enron and the other companies have some reason to be wary of turning over confidential information to politicians. Similar



information was leaked -- without penalty -- in last year's investigation of former state Insurance Commissioner Chuck Quackenbush. And there are indications that private lawyers are working closely with investigators. Mike Aguirre, the San Diego attorney seeking a "smoking gun" to prove collusion among energy companies, supplied Dunn's committee with a few dissident Duke Energy workers who alleged, in highly publicized hearings, that the firm had manipulated production at its San Diego plant to create artificial shortages and drive up spot market power prices. Duke then refuted the charges by releasing some excerpts from the records of the Independent System Operator, the controller of California's power grid, indicating that ISO had ordered the plant operational changes. Aguirre subsequently asked the governor's office to pressure the ISO -- now under Davis' direct control -- to release all of the Duke-related documents that would show, he says, that the firm actually manipulated the situation. Duke and other companies insist that the ISO-held documents are proprietary. Aguirre pleaded with one Davis adviser in an e-mail that "we need your help in properly getting this information out." But Aguirre, in an interview, said he had not yet obtained cooperation from Davis aides. The political and legal struggle to affix blame for California's energy woes will continue for months, perhaps years. The crisis will cost ratepayers at least \$50 billion, and they'll want to know why as they make out their utility bill checks. The Bee's Dan Walters can be reached at (916) 321-1195 or dwalters@sacbee.com <mailto:dwalters@sacbee.com>.

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### Testimony to Support the SoCalGas Settlement Agreement

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To the Core Aggregator Group:

As you know, SoCalGas filed its formal gas industry restructuring settlement agreement with the CPUC yesterday (April 17). Over the past two weeks, the core aggregator group worked extensively with SoCalGas and the other settlement parties to make sure that the settlement language tracked the agreed upon principles that were included in the "term sheet" that was filed with the CPUC on April 3. Based upon my review of the document, I believe that the settlement agreement fairly reflects the deal that we reached with SoCalGas.

The CPUC's Presiding Judge in the case - - Andrea Biren - - has established the procedural schedule for an evidentiary hearing in this proceeding. Under this schedule, prepared direct testimony (in support of the settlement) is due to be submitted by May 5. Rebuttal testimony (opposing the competing settlement that was filed by SCGC and TURN) is due to be submitted by May 19. The hearing will begin on May 30.

In discussions with SoCalGas and the other settlement parties, it was agreed that all of the industry groups that have participated in the SoCalGas settlement should present testimony in support of the settlement. This means that the core aggregator group (or individual members of the group) should present one or more witnesses who can testify to the benefits that the settlement will provide to the core aggregation program. This effort must commence immediately in order to achieve a May 5 deadline.

I believe that it would be efficient for the core aggregator group (SPURR, REMAC, CUB, Greenmountain.com, utility.com, United Gas, Enron, TXU, Shell Energy Services) to jointly sponsor a single witness to testify concerning all the benefits of the settlement for the core aggregation program. This testimony would address the following features:

\* Core interstate unbundling \* Core storage unbundling \* Unbundled (daily) balancing for core customers \* Unbundled core backbone transmission \* Avoided cost billing credits (and process to redetermine) \* Core brokerage fee (and process to reconsider role of utility's core procurement department) \* Elimination of the cap on core customer participation in core aggregation, and reduction of the threshold for core aggregation groups \* Elimination of core subscription gas sales option

If a witness is to be engaged by the group, this will need to be done very soon. In addition, if the group wants to have one attorney representing the group, this also should be decided very soon. Alternately, individual core aggregators may prefer to proceed on their own.

I estimate that the fees for an outside expert witness to testify on the above-referenced matters would be approximately \$9,900. This estimate is based upon an hourly rate of \$180.00, and an estimate of 55 hours, as follows:

Activity Hours

Draft prepared testimony and 25 (possibly) rebuttal testimony

Prepare for hearings, including 20 responses to discovery requests and mock cross-examination

Hearing time 10

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TOTAL: 55 Hours

At \$180 per hour, the expert witness fees would be \$9,900. This does not include "costs".

Our group should discuss, at the earliest possible time, how to proceed with the presentation of prepared testimony. Please respond promptly to this e-mail and provide your availability for a conference call within the next two days to discuss this matter.

Thank you for your attention to his request.

- John Leslie

\*\*\*\*\*

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Dan Walters: Davis plays in a virtual world while the energy reality continues

(Published July 11, 2001) California still has a very real and very severe energy crisis, to wit: The state is still running up massive debts as it pays more for power than it can recover from ratepayers and is having trouble borrowing billions of dollars to cover the debt. There is a strong possibility, perhaps a probability, that when summer's heat truly descends, there will be severe power blackouts as air conditioners demand more juice than California can generate or buy. One major utility, Pacific Gas and Electric, has filed for bankruptcy protection and a second, Southern California Edison, is on the brink of joining it. There is, however, a virtual energy crisis consisting of political spin, media leaks and made-for-television buzz words -- and it is rapidly becoming dominant, while the real situation fades into the background. This week's comic opera proceedings before a Federal Energy Regulatory Commission administrative judge in Washington had little to do with reality and everything to do with the virtual version. Gov. Gray Davis and other officials demanded \$8.9 billion in refunds from the generators and brokers who have been selling California power for the past year, alleging that California is, in Davis' words, "being gouged and ripped off." But the number itself was more or less plucked out of thin air -- an arithmetic exercise by the state power grid's traffic controller not intended for a refund

proceeding. And while Judge Curtis Wagner saw it as unrealistic, Davis and other state officials insisted on its validity. "There are refunds due that total hundreds of millions of dollars and maybe a billion dollars," Wagner said as a final negotiating session collapsed. But that's a far cry from the \$8.9 billion that Davis insists is due. "If you think California is going to settle for \$1 billion in refunds, we will see you in court," Davis said Tuesday. Why is Davis being so belligerent? Because it's good politics. Ever since he began berating out-of-state generators and accusing them of ripping off California, Davis' approval ratings have been climbing. If he settled for substantially less -- the power generators probably would agree to a couple of billion dollars to rid themselves of the matter -- Davis would be embarrassed. Politically, he's served by continuing to portray himself as fighting for California and against the out-of-state generators. That it's more political construct than reality is indicated by another event this week, Davis' release of state power purchase data from early in the year -- numbers that were made public only because a judge told him he had to do it. Davis and his minions have been accusing Texas-based generators and power brokers of particularly egregious price gouging -- clearly playing on Californians' instinctive mistrust of anything Texan and implying that Texan George W. Bush is a co-conspirator. But the power purchase records -- which were released only to journalists willing to pay a stiff fee -- indicate that less than 10 percent of California's power purchase dollars were going to Texas and the private sellers, in general, charged the state less than such publicly owned utilities as the Los Angeles Department of Water and Power. The clearly adverse position being taken by FERC and the purchase data that undercut his jingoistic sloganeering are not, however, deterring Davis from continuing to operate, at least for public consumption, in the melodramatic virtual world. One cannot, however, ignore reality forever. The likelihood of a pro-generator decision from FERC means that there will be no easy out for Davis, or for his pending deal to prevent Southern California Edison from slipping into bankruptcy court. The Legislature has refused to act on the Edison rescue plan while it awaited an indication of whether the utility's debts would be slimmed down by FERC. This week's farcical events make it more likely that the Edison deal will stall out permanently in the Legislature and its creditors will force the utility into bankruptcy court later this summer. That's part of that nasty old reality that cannot simply be wished away.

The Bee's Dan Walters can be reached at (916) 321-1195 or dwalters@sacbee.com .

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Message 1013 of 1299

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Dan Walters: Blame game over California's energy crisis will continue for years

(Published July 24, 2001)

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The Bee's Dan Walters can be reached at (916) 321-1195 or dwalters@sacbee.com .

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Services Web Services/XML Web Performance Website Analysis

For a list of presenting companies, check out: <http://www.internetoutlook.net/docs/mmmlist.asp>

Leading business, technology and investment opinion and expertise from leading key note speakers and panelists will be the centerpiece of our general sessions. I must thank the following for accepting our invitation to deliver keynote addresses over the course of Internet Outlook - their remarks will be eagerly anticipated:

Roger S. Siboni President & CEO E.piphany

Martin Brauns President & CEO Interwoven

Amnon Landan Chairman, President & CEO Mercury Interactive

John Seely Brown Chief Scientist, Xerox and Chief Innovation Officer 12 Entrepreneuring

For a complete review of the agenda, please link to <http://www.internetoutlook.net/docs/agendamonday.asp>

All our events this year have bucked the trend, and filled up - in this, its sixth year, initial trends indicate Internet Outlook promises to do the same. To make sure of your place, and claim your VentureWire preferred rate, please take a moment to access the following link. Do not forget to enter the VWIO code on your registration.

<http://www.internetoutlook.net/docs/register.asp>

So, I hope September 10th and 11th works for you. It would be great if you could join us - in the meantime, if you have any questions, please contact me.

Sincerely,

Allan

Allan Cunningham Managing Director, Events Technologic Partners [acunningham@technologicp.com](mailto:acunningham@technologicp.com) 212-343-1900

If you'd prefer not to receive such messages from us, follow this link:

[http://venturewire.com/e\\_cancelSolicit.asp?e=jdasic@ENRON.COM](http://venturewire.com/e_cancelSolicit.asp?e=jdasic@ENRON.COM) and we'll make sure you don't in the future.

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Message 1015 of 1299

**FW: FYI - Energy Policy Information from the Capital**

|            |                                 |
|------------|---------------------------------|
| Sender     | landrade@svmg.org               |
| Recipients | ['landrade@svmg.org']           |
| File       | dasovich-j/all_documents/11604. |

Date: Wednesday, April 25, 2001 Issue: Electricity Crisis, Potential Natural Gas Crisis What is Happening: Check-in Session BACKGROUND "California could cut electricity consumption by as much as 4 percent this summer under a plan that aims to shift the way the cost of power is communicated and billed to the state's biggest users. The \$35 million program, which has been endorsed by Gov. Gray Davis and is being considered by state regulators, would entail installing 15,000 new meters and upgrading 5,000 more to reflect the hourly price of electricity. The state's largest users, (the 21,000 customers who consume more than 200 kilowatts of electricity at any given time,) would receive the meters and have the option of participating in "real-time" pricing. By using these meters, they can moderate their behavior to use less when supply is tight or more when it is available" (Contra Costa Times 4-24-01). RECENT CHANGES AND DEVELOPMENTS "SB 28X (Sher) passed out of the Assembly yesterday on a 67-4 vote. The legislation is expected to cost the state \$3.2 million to implement. Key provisions of SB 28x would: (1) Require cities, counties and other local agencies to submit initial comments on a power plant application within 45 days of its filing. (2) Require the California Energy Commission to issue final decisions on certifying "repowering" projects -- modernization of existing plants -- within 180 days, instead of a year. (3) Extend by 17 months -- until Dec. 31, 2002 -- an expedited siting process for temporary power plants, known as "peakers." (4) Mandate that power plants required to renovate their facilities to reduce air pollution do so by Jan. 1, 2004, under the auspices of the state Air Resources Board. (5) Require payment of unemployment-compensation benefits to workers left jobless in any week because of unscheduled power outages caused by shortages of supply. (6) Provide incentives for "distributed generation" in which homeowners or merchants produce electricity for themselves and others using solar panels, turbines or other such equipment. Utility fees, called "standby charges," would be waived up to 10 years for most such customers (Sacramento Bee 4-24-01). ? "Los Angeles County government expects to nearly double its energy bill for next year, from \$75 million to a whopping \$140 million, a hike that will cut into the county's surplus and could force service cuts if prices continue to rise through what all sides predict will be a difficult year in the state's energy crisis" (LA Times 4-24-01). "California has spent \$5.1 billion from the state budget purchasing electricity this year" (LA Times 4-24-01). WHAT THE REPUBLICANS ARE SAYING Assembly Republicans supported SB 28x, which passed Monday by a vote of 67-4, but some said it doesn't go far enough in solving the energy crisis. "We'd like to see more siting bills," said Assemblyman Tony Strickland, R-Thousand Oaks. "We need more electricity supply and generation. Anyone who thinks this is enough to solve the crisis is really in Disneyland." The Assembly Republican Caucus ? Member Services Division 916-319-3901 THE GOOD, THE BAD, AND THE UGLY "California's economy is decelerating, and the state is spending many billions of dollars -- how many, exactly, is still unknown -- on power purchases to prevent blackouts. The combined effect of these separate, if interrelated, factors is to hammer the state budget in ways that no one in the Capitol considered possible. The Davis administration's bean counters have concluded, Capitol sources said Monday, that the state's revenues for the 2001-02 fiscal year will run several billion dollars under forecasts, thanks largely to the severe decline in the state's high-technology industry. The state could absorb a sharp dip in its tax revenues if its reserves were available. Davis had anticipated starting the 2001-02 fiscal year July 1 with \$6.6 billion in general-fund reserves and ending it a year later with nearly \$4 billion still in the kitty. The newly discovered revenue shortfall would have reduced the reserves but not wiped them out. Those numbers, however, don't take into account the nearly \$6 billion that the state has committed to buying power, continuing at the rate of \$2 billion a month, and only a tiny portion of the outlay being covered by utility ratepayers. At current rates, the state will be in the hole by \$10 billion by July 1" (Sacramento Bee 4-24-01).



*Message 1016 of 1299***Commencement, Sunday, May 20**

|                   |                                    |
|-------------------|------------------------------------|
| <b>Sender</b>     | owner-eveningmba@haas.berkeley.edu |
| <b>Recipients</b> | [eveningmba@haas.berkeley.edu]     |
| <b>File</b>       | dasovich-j/all_documents/12171.    |

**CONGRATULATIONS GRADUATES!**

The commencement ceremony will be held on Sunday, May 20 in the Greek Theatre. Graduates should arrive at 8:15 a.m. (The ceremony begins at 9:00 a.m.) The ceremony will be followed by a champagne reception at the Kleeberger Sports Lawn, across the street from Haas.

You'll find commencement information at the Haas Alumni Network at:  
<http://www.haas.berkeley.edu/alumni/newgrads/evmba.html>

**ARRIVING/PREPARATION FOR CEREMONY:** The Greek Theater is just north of Haas, or left of us if you were to walk OUT of the Haas building. It is on the east side of Gayley/Piedmont. You should arrive back stage (by entering from the street side) by 8:15 a.m. Once back stage, please go to the MBA table (you'll see the Evening MBA staff there), and print your name on an index card as you would like it read by Diane. You will keep the card with you and pass it to her on stage. After you arrive, PLEASE stay backstage and assemble at the end of the area closest toward Haas (south).

**PARKING:** Anyone can park on campus on Sundays. Some lots will have attendant parking. Otherwise just buy a \$5 daily parking ticket from one of the machines and display it on your dashboard. If you do so, you can park pretty much anywhere on campus ("C," "F" or "S" lots) \*except\* in any VIP or otherwise reserved parking spaces. You can use your permit for your car. There is parking on the street, in Kleeberger, Foothill (up Hearst past Gayley/Piedmont and to your right), or at the corner of Hearst and Gayley.

A bit of personal parking advice: traffic gets very thick near the Haas School on Commencement day. Remember that there will be another department having its ceremony in the Greek Theatre after us, so it will be especially congested on the way out. Park strategically, i.e. a little bit down the hill and in the direction you eventually want to drive.

**RECEPTION:** The reception will be held across the street from Haas on Kleeberger field. If you have not picked up your two free tickets from us, please do so before graduation. If you must, you can get them from us backstage, before the ceremony--while supplies last. Otherwise, all tickets at the door will be \$5. You are admitted free in your cap and gown.

**RETURNING REGALIA:** You will need to return your gown and hood in order to avoid being charged for them. When you pick up your regalia in the Evening MBA office, we will give you a yellow card receipt. REMEMBER to BRING the receipt with you. After the reception, please tie the hood around the gown and attach the receipt (we'll bring staplers) and deposit it in a box located near the reception. You can keep the cap and tassel.

**WEATHER:** Remember that the ceremony will be held RAIN OR SHINE. There is no indoor facility on this campus large enough to accommodate Haas, and even if there were, it would not be available on short notice if it's raining. The ceremony is fairly long. Remember that MBAs, PhDs, and Undergraduates all take part. Graduates and guests will be out in the elements for about two and a half hours.

Both rain and shine each present challenges, especially for older or less physically vigorous guests. Here are some tips, based on our past experiences in the Greek Theatre:

RAIN - As you all know, the weather is unpredictable. If rain seems at all likely you should:

- 1) Bring an umbrella
- 2) Wear clothing that you are not very fond of, as the dye in the gown can run if it becomes wet.
- 3) Wear rain shoes.
- 4) Make sure your guests also have appropriate rain gear.



SHINE - If we are lucky, it will be sunny. On a sunny day, the Greek Theatre can be very hot, even when the air temperature is moderate. If it's sunny, you should:

- 1) Bring plenty of water to drink - there is a vendor selling drinks at the Greek Theatre, but the lines can be very long and graduates won't be able to leave during the Ceremony.
- 2) Advise your guests to bring hats, sunblock, water, etc.
- 3) Remind your out of town guests to dress in layers -- a sunny day here usually means foggy for part of the ceremony and sunny for the rest.

EITHER WAY: Graduates will be seated on folding chairs, down close to the stage. But your guests will be sitting on concrete for the duration. They might consider bringing cushions.

Look forward to seeing all of you there, RAIN or SHINE.

If you have any questions, please give us a call us at 510-642-1406.

CONGRATULATIONS GRADUATES!

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Message 1017 of 1299

| LADWP      |                                                                             |
|------------|-----------------------------------------------------------------------------|
| Sender     | mark.palmer@enron.com                                                       |
| Recipients | ['ann.schmidt@enron.com', 'karen.denne@enron.com', 'steven.kean@enron.com'] |
| File       | dasovich-j/all_documents/28564.                                             |

----- Forwarded by Mark Palmer/Corp/Enron on 07/10/2001 07:47 PM -----

"Leopold, Jason" <Jason.Leopold@dowjones.com> 07/10/2001 07:32 PM

To: "pat.dorinson@mirant.com" <pat.dorinson@mirant.com>, "mark.palmer@enron.com" <mark.palmer@enron.com>  
cc: Subject: LADWP

=DJ LADWP, Run By Davis Adviser, Cashed In On Calif Crisis

Dow Jones Capital Markets Report via Dow Jones

By Jason Leopold Of DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--On a single day in June 2000, the Los Angeles Department of Water and Power, the largest municipal utility in the country, raked in \$5 million selling California surplus power for \$1,000 a megawatt-hour - about 30 times the average price the utility charged the month before.

That sale, reported by the California Independent System Operator and confirmed by the LADWP in an interview last June, was one of many instances in which the municipal utility cashed in on California's power crisis.

On Monday, the Department of Water Resources, the agency that has been purchasing California's bulk power needs in lieu of the state's cash-strapped utilities, released a detailed report of spot-market power purchases showing the LADWP charged the state an average of \$242 a megawatt-hour for power from Jan. 18 through May 31 this year. That price is about \$35 higher than those charged by most of the out-of-state generators Gov. Gray Davis has criticized repeatedly as price gougers.

Potentially embarrassing for the Davis administration, however, is that the LADWP was formerly run by General Manager David Freeman, who in April became Davis' top energy adviser.

Steve Maviglio, press secretary to Davis, said Texas-based generators are primarily to blame for the high wholesale prices that crippled the state's two largest utilities.

"Anywhere they wear cowboy hats, they probably have handkerchiefs across their face, because they are robbing us blind," he said. "The bad guys are clearly the out-of-state generators."

Freeman's trademark is a white Stetson.

The former LADWP chief, who last September quipped that a "blind pig could make money" under California's faulty deregulation setup, didn't return calls for comment.

Freeman took a leave of absence from the LADWP in January to negotiate long-term power contracts on behalf of the state.

#### Power To Sell

According to the DWR report, the LADWP brought in \$331 million selling power to the state between Jan. 18 and May 31 this year.

The LADWP, which didn't take part in the state's deregulation debacle and which isn't under the jurisdiction of federal energy regulators, also cashed in throughout 2000. The utility has 7,000 megawatts of generation capacity but only needs about 5,500 MW to serve its retail customers, freeing it to sell as much as 1,000 megawatts to the ISO at prices comparable to what the generators were charging.

The LADWP did so well that it was able to pay down \$200 million in debt and will reduce its customers' rates in 2002.

"It just shows you that enterprise is where you find it," Freeman said in an interview last year.

Last July, ratings agency Fitch concluded that California's electricity shortage provided LADWP "an opportunity for the sale of surplus power at favorable prices which added to the municipal system's coffers."

According to a report by the ISO, manager of the state's electricity grid, the LADWP overcharged California for power from May 2000 through February 2001 by as much as \$20 million. Maviglio said the state will pursue refunds from the utility.

On Tuesday, an LADWP spokesman defended the utility's power prices, saying the costs of producing electricity were extremely high.

The ISO has estimated that the state was overcharged nearly \$9 billion for electricity sales in the 12 months ended May 2001. On Monday, settlement talks between state officials and generators over the refunds broke down.

Other municipal utilities, including the Sacramento Municipal Utility District and private companies like BC Hydro in Canada, have also racked up enormous sums selling surplus power to California at the last minute.

-By Jason Leopold, Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

(END) Dow Jones Newswires 07-10-01

1557EDT

(AP-DJ)--07-10-01 1557EDT :TICKER: EIX PCG SRE :SUBJECT: EUTL CA COBO MU PETR Copyright (c) 2001 Dow Jones and Company, Inc. Received by NewsEDGE/LAN: 7/10/01 12:57 PM

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Message 1018 of 1299

#### What Next?? Power delivery efficiency questioned: Output at

|            |                                                                          |
|------------|--------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                  |
| Recipients | ['tom.briggs@enron.com', 'skean@enron.com', 'linda.robertson@enron.com'] |
| File       | dasovich-j/all_documents/29317.                                          |

FYI. David Freeman and DWR....public power working for California. \*\*\*\*\*  
Power delivery efficiency questioned: Output at low-cost generating plants has been cut while costlier ones continue to operate. By Carrie Peyton Bee Staff Writer (Published July 31, 2001) California is sometimes deliberately cutting output

from low-cost power plants while running more expensive ones, utility and grid officials say. The sporadic episodes haven't cost much yet, but they illustrate a potentially troubling disconnect in the system that has quickly grown between two agencies that help deliver electricity to a power-strapped state. "We seem to be building this inefficiency into the system, and it doesn't seem to be getting better," said Mike Florio, a consumer advocate who sits on the governing board of the Independent System Operator. The trouble is that the ISO, created in 1996 to manage the power grid in a deregulated electric market, tries to run the grid by auctions that -- in theory -- provide the cheapest electricity for the state's consumers. Meanwhile, the state Department of Water Resources, which in January stepped in to buy power on behalf of cash-strapped utilities, isn't bidding at some auctions because it believes it can provide cheaper power if it doesn't. "We have an inefficient market and an inept government entity. It's sort of the worst of both worlds," Florio said, criticizing his agency and the DWR. ISO staffers decline to discuss the situation in detail, saying it involves confidential bidding behavior. But Pete Garriss, chief of operations for the power-buying arm of the Department of Water Resources, confirmed that the ISO has been asking his agency to take part in more auctions, but the state has declined. The state's role is to buy electricity for customers of utilities whose credit was no longer good enough to buy on their own, he said. "We're not in it to do those kinds of marketing functions," he said. "It's not necessarily a good fit." Some of the ISO auctions are used to lessen congestion on transmission lines. Others are used to stabilize the grid by slightly increasing or decreasing output when demand doesn't match forecasts. Generally, the highest-cost power plants should be the ones cutting back, a process the industry calls "decking." But since May, on ISO orders, Southern California Edison has repeatedly throttled back on the Mohave Generating Station, which produces some of the cheapest power available to California today, costing as little as \$10 to \$20 a megawatt-hour. Edison, which owns a majority share of Mohave, has cut its output by 5,660 megawatt-hours between May and July, about one-half of 1 percent, at the ISO's behest, according to data Edison provided to The Bee. The ISO could probably have saved the state's consumers \$370,000 at one plant if it had asked a higher-cost gas-burning plant to cut back instead of Mohave, a coal-burning workhorse in Laughlin, Nev., Florio said. The amount sounds like "small potatoes," but in some ways it is more alarming than the \$14 million the state lost recently by selling excess power for less than it paid, he said. Industry experts agree that such below-cost sales are common in a business where power needs fluctuate dramatically based on the weather. By contrast, "this is a dead weight loss. Higher costs are being incurred for no good reason," Florio said. "The question is, why is the ISO calling on Mohave and not (cheaper) gas plants? The answer is, the gas plants aren't bidding ... probably because they're contracted with DWR," he said. Four Corners, another low-cost coal plant partly owned by Edison, has also been throttled back at ISO request, Edison officials said. In addition, so few bidders have shown up at ISO auctions to ease stress on transmission lines that the system has fallen into disarray, with the ISO instead ordering across-the-board power production cuts that are boosting costs, Florio said. For its part, the ISO will say only that "we are making the most economical decisions we can based on the bids available," said spokeswoman Stephanie McCorkle. DWR's Garriss said the state and the ISO have been meeting repeatedly on bidding and other coordination issues, and he hopes to have a smoother-running system in place by next summer.

The Bee's Carrie Peyton can be reached at (916) 321-1086 or cpeyton@sacbee.com <mailto:cpeyton@sacbee.com>.

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Message 1019 of 1299

#### RE: PR Update for Direct Access Coalition

|            |                                                          |
|------------|----------------------------------------------------------|
| Sender     | karen.denne@enron.com                                    |
| Recipients | ['syamane@marathon-com.com', 'jkradin@marathon-com.com'] |
| File       | dasovich-j/all_documents/10934.                          |

fyi, I asked Edelman to send me the direct access pitch they are using with the media this week, and here it is....

----- Forwarded by Karen Denne/Corp/Enron on 04/10/2001 08:56 PM -----

"Manuel, Erica" <Erica.Manuel@edelman.com> on 04/10/2001 11:38:44 AM To: "Karen.Denne@enron.com" <Karen.Denne@enron.com> cc:

Subject: RE: PR Update for Direct Access Coalition

Sure thing. Here's the pitch:

Looking for a new twist on the California energy story?? A conflict that's not being covered?

Tension is at fever pitch between the state's business community and policy makers/Davis Administration over the issue of direct access. Simply put, many forces are trying to kill direct access, which allows businesses and residential users to buy their energy from alternative energy providers instead of their local utility.? Yet for businesses this summer, the option to bypass their local utility if they can ink a better energy deal somewhere else may provide the thin margin that keeps them in business.? And PG&E's recent bankruptcy filing begs the question: why not let someone else provide power?

As California business screams for relief, the Department of Water Resources, legislature, utilities, some consumer groups and the PUC continue to erect barriers against direct access-which has been in a state of suspended animation since the passage of AB1x.? Each player has its own reasons to push for the demise of direct access.??

A large coalition of business interests is fuming (see direct access coalition list below).? Already rocked by record power prices and worried about recession, they fear that if direct access is not resuscitated soon through emergency legislation, it will be one more reason to raise prices, lay off workers, or shut their doors.? And they wonder: why are our state's policymakers killing direct access at the time businesses need it most as they confront escalating power bills?? It is widely assumed that the Department of Water Resources has not contracted for enough power this summer to avoid paying high prices in the spot market.? Yet, the more power DWR doesn't need to buy because large users have done it for themselves, the less financial exposure the state incurs.?

Last week, for the first time, Governor Davis suggested that he may be supportive of letting businesses shop for their own power, but it is unclear at this time how solid his support may be.? Meanwhile, the Legislature continues to run in circles and do everything it can to avoid meaningful action on this issue.? Direct access was one issue at the center of the fissure between Assembly Republicans when they replaced their leadership two weeks ago.? Senator Bowen's much-awaited "clean-up" bill, SB 27x, has been more than a disappointment-in fact it's perceived as ensuring there will be no customer choice.

But don't take my word. Edelman can arrange interviews with the California Chamber of Commerce, California Retailers Association, California Manufacturers & Technology Association, Calpine and other organizations fighting to preserve direct access as well as individual businesses/organizations who have chosen to bypass their local utilities and cut their own power deals in order to reap huge savings and/or gain certainty about their energy budgets.? These companies include high tech, hotel and grocery chains, school districts, and large retailers.?

This is a timely, controversial story that needs to be told-and it hasn't truly been covered so far by the mainstream media.? Please contact Erica Manuel or Stevan Allen at Edelman Public Relations Worldwide at (916) 442-2331 to arrange interviews or receive more information.

?Building Owners & Managers Association Of California California Chamber Of Commerce California Grocers Association California Health Care Association California Manufacturers & Technology Association California Large Energy Consumers Association California Retailers Association California State University California Healthcare Association AES NewEnergy Association Of Bay Area Governments Power OCLI - A JDS Uniphase Company Ralphs Grocery Company Kaiser Permanente Enron Corporation Los Angeles Economic Development Corporation Green Mountain Energy Company Independent Energy Producers The Alliance For Retail Energy Markets (AreM) The New Power Company University Of California School Project For Utility Rate Reduction California Utility Buyers JPA

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Message 1020 of 1299

## Status Report

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | jmball@ns.net                                                                                                     |
| Recipients | ['taschehoug@thermoecotek.com', 'wfhall2@duke-energy.com', 'steven@iepa.com', 'smutny@iepa.com', 'kaplan@iepa.... |
| File       | dasovich-j/all_documents/28093.                                                                                   |

Status Report Much of the first half of May was dedicated to organizing stakeholders and lobbying for the passage of SB 28x (Sher), which was the Legislature first attempt at siting reform and included several IEP-sponsored proposals. SB 28x was the last bill to be signed by the Governor and chaptered into law before the close of the first extraordinary session. The final version included:

? Conforming the timing of offsets for power plants to Clean Air Act requirements. ? Substituting CEQA-style hearings for the trial-like proceedings of the CEC. ? Streamlining the permit process for the modernization of existing power plant sites. ? Giving consideration to the positive environmental impacts of a proposed project. ? Improving the timeliness and coordination of state and local agency review. ? Extending the current deadlines for the expedited review for "peaker" plants and expanding the application to consider re-certification or replacement.

There was also a small number of instances where Edson + Modisette assisted on other issues at the request of IEP staff or IEP member companies. As always, Edson + Modisette is here if you need assistance on any other issues.

Since SB 28x is only a first step in making changes to the siting process, IEP member should now be thinking about what is next. A list of IEP proposals still on the table include:

? Permitting local agencies to make zoning changes or other decisions for power plants contingent upon CEC CEQA Compliance ? Giving deference to other state and regional agencies ? Easing the threshold for override of local land use requirements. ? Making the ISO responsible for determining interconnection requirements

Assembly Member Calderon's office is currently reviewing these proposals in conjunction with an effort to develop an environmental dispatch protocol. IEP has weighed-in on this issue and has strongly advocated that 1) reliability should always be the first priority; 2) protocol should be limited to RMR units and out-of-market calls only; and, 3) any follow-up to SB 28x should also consider IEP siting proposals left on the table. I circulated Asm. Calderon's proposed environmental dispatch language to IEP members last Friday which targets those generating units running beyond their air permits per the Governor's most recent executive order. In the short-term, I expect there will be additional stakeholders meetings on this and other siting issues as Asm. Calderon decides how to proceed and in what legislative vehicle.

All this action on the Assembly side does not rule out Senator Sher's part on the siting issue. Since SB 28x moved to the Governor's desk, Sen. Sher has ensured us and others that that was only the first step and he would like to continue pursuing additional siting reforms during this legislative session. SB 28xx in the second extraordinary session is currently a spot bill ready to take up that cause. There are pros and cons for either author to move forward on siting reform, but I would recommend for the time being that IEP let Asm. Calderon and Sen. Sher work out their turf wars while IEP shares its proposals with both.

There are also other siting bills with the potential to move forward. SB 86xx (Peace/Burton) was introduced last week which would require a developer to begin construction on a project within 6 months of receiving certification from CEC or lose its permit, and introduces the newly created California Consumer Power and Financing Authority into the siting process. Senator Morrow has called stakeholders together this week to provide input on SB 76xx which is currently in spot bill format. Asm. Wright still has his siting vehicle, AB 48xx, poised to move if needed; and Sen. Battin has several siting bills introduced also if needed.

I have mentioned this before, but it is worth repeating. With the interest in siting issues in the Capitol having waned only slightly, IEP members may want to consider meeting again to develop a second list of proposed siting reforms (in addition to the above issues left over from the first list). Such a list should take into account the Governor's Executive Orders and possibly what generators would be willing to give up to the enviros in exchange for "big ticket" reforms.

Please call if you have any questions about the above invoice or any of the siting issues pending before the Legislature.

Sincerely,

JULEE MALINOWSKI-BALL Senior Associate

Julee Malinowski-Ball Senior Associate Edson + Modisette 916-552-7070 FAX-552-7075 jmball@ns.net

Message 1021 of 1299

**RE: Summary of Today's Call/Agenda for Tomorrow's Call**

|            |                                                           |
|------------|-----------------------------------------------------------|
| Sender     | sonnet.edmonds@mirant.com                                 |
| Recipients | ['Maureen.McVicker@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/12568.                           |

Could you please fax me a copy of plan B? Sorry we didn't participate in the call yesterday--no one at Mirant received notice of the call, though I understand you did e-mail out the call information. Must have been a technical glitch.

My fax number is 678-579-5890. Thanks.

Sonnet Edmonds

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Monday, May 14, 2001 9:48 PM To: sryan@aesc.com; hoffman@blackstone.com; bbailey@duke-energy.com; Lynn.A.Lednický@Dynergy.com; john.harrison@elpaso.com; rachael.king@elpaso.com; clark.smith@elpaso.com; skean@enron.com; tom.allen@mirant.com; sonnet.edmonds@mirant.com; randy.harrison@mirant.com; alex.goldberg@williams.com Cc: Maureen.McVicker@enron.com Subject: Summary of Today's Call/Agenda for Tomorrow's Call

Greetings: In order to keep everyone in the loop, the folks on today's call wanted to send out a brief summary of the call for the benefit of those who couldn't make it. Apologies for any omissions, inaccuracies, etc. Others who were on the call please chime in if I've gotten anything wrong, or missed anything.

Best, Jeff

SUMMARY Enron, Duke, El Paso and Williams were on the call, as was Michael Hoffman of the Blackstone Group (the Governor's financial advisors). On the subject of how the group would organize itself, it was agreed that the calls would be open to anyone who wanted to participate. A smaller group consisting of Duke, El Paso, Enron, and Williams would take the lead on walking the halls of Sacramento, meeting with policy makers, and advocating whatever plan the group develops. Folks agreed that achieving a comprehensive solution requires a tangible process; that is, the principals need to get in a room, face to face, for however long it takes to work out a resolution. It was agreed that the process should start no later than the beginning of next week, and that it should take place in Sacramento. It was decided that the Legislature and the Attorney General needed to be brought into the process as soon as possible, i.e., next week. There was some discussion regarding the release today of "Plan B." Plan B is a plan proposed by Democratic and Republican legislators as an alternative to the MOU that the Governor struck with Edison. After that call I received a copy of "Plan B." If you'd like a copy please send me your fax number. Folks on the call agreed to have the next "supplier-only" call-in meeting on Friday. Finally, Michael Hoffman said that they are hoping to have a "ratings agency level" presentation prepared by the end of the week. The goal of the presentation is to reassure capital markets that the bonds the state seeks to issue are solidly backed by retail rates.

The Agenda for Tomorrow's Call with the Governor's Staff Item #1: The Credit Issue Michael Hoffman said that the Governor's office wants to start tomorrow's meeting discussing the creditworthiness issue. Hoffman said that the Governor's folks are hoping to have completed by the start of tomorrow's meeting a draft of an agreement between the California PUC and CDWR. The agreement is designed to ensure that DWR gets paid for power services delivered. If the draft is ready, they'd like to discuss on the call tomorrow.

Item #2: Identify the Components of a Comprehensive Solution. It was agreed that our group should put on the table at tomorrow's meeting the universe of issues that need to be included in a comprehensive solution. Enron was asked to take a first stab at what those components are. The following is a brief outline, which is not intended to be definitive, but a starting point for discussion. Utility creditworthiness retail rates must reflect costs Increase supply streamline and otherwise reform the siting process Decrease demand establish real-time pricing implement demand buy-down and other conservation programs Create a real market Remove the State from the power-buying business as soon as possible (e.g., once new rates are in place and utilities are returned to creditworthiness; approximately 3-6 months) Return the



procurement role to the utilities Reinstate Direct Access immediately for all customers Within 18-24 months, create a "core/noncore" market structure for electricity, similar to California's market structure for natural gas Keep the industry in the hands of the private sector Reject proposals calling on the State to take over transmission, generation, etc. Resolve outstanding legal claims, investigations, etc. Resolution requires certainty and prompt payment (understanding that discounts on receivables is on the table for discussion)

Message 1022 of 1299

**FW: California Update 7-18-2001**

|            |                                                                                   |
|------------|-----------------------------------------------------------------------------------|
| Sender     | twanda.sweet@enron.com                                                            |
| Recipients | ['Kristin', 'Walsh', 'christian.yoder@enron.com', 'christopher.calger@enron.com'] |
| File       | dasovich-j/all_documents/28928.                                                   |

-----Original Message-----

From: Sanders, Richard B. Sent: Thursday, July 19, 2001 9:59 AM To: Sweet, Twanda Subject: FW: California Update 7-18-2001 Importance: High

-----Original Message-----

From: Whitman, Britt Sent: Wednesday, July 18, 2001 3:48 PM To: Sanders, Richard B.; Edison, Andrew Cc: Walsh, Kristin Subject: California Update 7-18-2001 Importance: High

If you have any questions, please feel free to contact Kristin Walsh at (713) 853-9510 or G. Britt Whitman at (713) 345-4014.

**EXECUTIVE SUMMARY ? Multiple MOU Plans Debated ? California State Budget Faces One Last Hurdle**

Budget There is a small possibility that Sen. Burton will not recess the Senate on Thursday unless the Senate passes the budget that the Assembly passed last night (7-17). However a key Democrat, Sen. Sheila Kuehl, has been in Italy and is on a 16 hour return flight. No one knows if she has been told to return and without her presence, two Republican votes are still needed to pass any urgency measure for the budget. Kuehl's vote is crucial if they take the bill up on Thursday. MOU Mayhem There are currently three leading MOU plans being resuscitated by the California House and Senate deliberations. Senator Burton is hoping to keep the published schedule and adjourn for a month's recess on Thursday evening. Speaker Hertzberg is reportedly not thrilled with leaving until the Edison issue is resolved. However, rumor is that whether or not they recess on Thursday, their adjournment will mark the end of the Second Extraordinary session and all XX bills passed and signed will go into effect in 90 days (all others will be dead). Although Davis has stressed the urgency of passing a comprehensive "bail-out" plan and even threatened to call an emergency session to prevent legislators from taking a 30-day recess on Friday, there is no clear indication that legislators will comply with this request. ? Hertzberg's bill 82XX - Of the more obvious differences from Davis MOU, 82XX proposes to offer SoCal \$300 M less for its transmission lines in addition to penalizing Edison if it fails to act in good faith in closing the deal. It comes as no surprise that during bill deliberations, SoCal raised objections to the bill and warned of impending difficulties (bankruptcy) for So Cal were the bill left unamended. ? The Wright-Richman bill 83XX - We reported last week that 83XX remains the only measure fueled by bipartisan support. AB 83XX was heard in an "informational" hearing yesterday (7-17) and will be heard again today in the Assembly Energy Committee. Assemblyman Rod Wright, the Chairman of the Committee, presented AB 83xx with Dr. Keith Richman, a Republican Assemblyman from Southern California. They offered 83XX as an Edison bail-out, pure and simple. Wright was clear to distinguish his bill from 82XX, which he said has conservation easements and land requisitions, a renewable portfolio which will add an additional fee on ratepayers, and reasonable review for long term contracts. While the chances of the Richman bill being successful appear slim, reports that that Hertzberg will try to negotiate elements of his own bill (82XX) as amendments to the Wright/Richman measure suggest that at least Hertzberg feels Richman's 83XX stands a chance.

? The Byron Sher bill, SB 78XX (Polanco) - Previously presented by Sen. Polanco on behalf of Governor Davis, SB 78XX has received special attention from Senate President, John Burton. Although it has never been heard by a committee, SB 78XX is currently on the Senate floor and ready for a vote. The Senate Energy Committee and Senate Appropriations



Committee are both scheduled to have informational hearings on this bill today. Note, the meetings are informational because neither committee has possession of the bill. These hearings will provide information to committee members, avoid a formal vote, and simultaneously shield Burton/Polanco from claims that the details of SB78XX were never released. The Senate is scheduled to be in session tomorrow, ostensibly to vote on the state budget and SB 78XX. Given Burton's penchant for wanting to keep on schedule to recess tomorrow, there is no guarantee that he will hold the Senate in session once they hear SB 78XX. Thus, the Senate may never even see AB 82XX and AB 83XX unless either or both bills are passed out of the Assembly today and get special treatment by Burton to be heard tomorrow. Burton has previously adjourned the Senate to keep on schedule once they finish their business, even if the Assembly is behind them.

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Message 1023 of 1299

**RE: WPTF, Community Choice**

|            |                                                                                                     |
|------------|-----------------------------------------------------------------------------------------------------|
| Sender     | susan.mara@enron.com                                                                                |
| Recipients | ['ddame@ncpa.com', 'foothi19@idt.net', 'paulfenn@local.org', 'bbloom@apx.com', 'billr@calpine.com'] |
| File       | dasovich-j/all_documents/371.                                                                       |

Paul,

We see what you refer to as " the Cavanaugh/Edison bill" as a re-play of AB 1421 from last year. That bill will destroy the retail market. We opposed 1421 and we'll oppose any son of 1421. We do not want to see it tied to any aggregation bill, the public goods charge extension or anything else.

Sue Mara

Paul Fenn <paulfenn@local.org> on 02/24/2000 07:03:12 PM To: Don Dame <DDame@ncpa.com> cc: Gary Ackerman <foothi19@idt.net>, Beth Bloom <bbloom@apx.com>, Bill Ross <billr@calpine.com>, Bob Anderson <Robert\_Anderson@apses.com>, Corby Gardin <jcgardin@newwestenergy.com>, Curtis Kebler <Curtis\_L\_Kebler@reliantenergy.com>, David Bobo <david-bobo@hlp.com>, Greg Blue <gtbl@dynegy.com>, Ken Czarnecki <Ken\_J\_Czarnecki@calpx.com>, Kent Wheatland <KEWH@dynegy.com>, Leah Bissonette <lbyssone@energy.twc.com>, Randy Hickok <rjhickok@duke-energy.com>, Rob Lamkin <rllamkin@seiworldwide.com>, Rob Nichol <rsnichol@newwestenergy.com>, robert berry <berry@apx.com>, Roger Pelote <rpelote@energy.twc.com>, Sue Mara <smara@enron.com>, Tom Delaney <tom\_delaney@enron.com>, Vicki Sandler <Vicki\_Sandler@apses.com>, Dan Douglass <douglass@earthlink.net>, Don Dame <DDame@ncpa.com>, Old Deuteronomy <mflorio@turn.org>, Sean Casey <sfc@cpuc.ca.gov>, Jim Price <jep@cpuc.ca.gov>, Paul Fenn <paulfenn@local.org> Subject: RE: WPTF, Community Choice

Don,

While the points you make are good ones, I think we should go for it this year.

First, the Cavanaugh/Edison bill will in part restructure Chapter 854 regarding the role of the default provider, and Edison will be asking for a solidification of its distribution role, so this it is the natural vehicle to redress aggregation. If we wait until next year it may be too late, because we will be pushing rather than pulling. I think Edison and PG&E may put up less of a fight in this context.

Second, while the League of Cities has not been involved, twelve cities and counties representing 2 million Californians passed a resolution last year asking the legislature for Community Choice. The leaders, from the Southern California Cities Joint Powers Consortium, San Francisco, Oakland, and Marin County, are actively involved in getting support from Bowen and Burton. Oakland is planning a statewide conference of cities and national leaders on Community Choice this Summer, which would coincide with committee hearings and attract media attention. In both Massachusetts and Ohio, we had weak support from the Leagues and did the job with about 35 municipalities represented. I am confident we will have that number in California this year.

Third, TURN is providing strong support for the bill. I believe CALPIRG, UCAN and other consumer groups will give strong support as a result of the national coalition for Community Choice legislation, RAGE, which has signed most of them on

the agenda over the past two years.

Finally, the PUC is looking into Distribution Competition this year, and both the ORA and Strategic Planning are actively interested in Community Choice as a strategy for making the market work.

As you described it, the legislation allows municipalities to implement Community Choice programs, and does not require it.

Regards,

Paul Fenn

At 02:17 PM 02/24/2000 -0800, you wrote:

*I truly believe that giving local public entities the right, but not the obligation, to provide default commodity service will advance competition and provide one more check against host IOU economic hegemony. To get legislation passed, however, will require at least three components: 1) An informed, supportive bill sponsor (Debra Bowen would be ideal, and lots of other legislative support). 2) A bit of national focus and support (say APPA and others) 3) And, vocal support from the League of Cities and other local government organizations. I do not believe we are yet close to at least two of the above three. I may make sense to generate more widespread support and debate before submitting a bill which will not pass. PG&E and SCE will mount a very effective attack on any bill giving default rights to local governments. If we try prematurely and fail, subsequent attempts may be doomed to failure as well. I believe that we should work the turf and see if we can generate some local govt. enthusiasm for such a bill, without which it will not likely pass. Although I hate to delay, the chances of success may increase if we wait 6-12 months and use the interim period to gain additional support. Any rebuttal??*

Paul Fenn paulfenn@local.org Tel/Fax 510 451 1727 American Local Power Project 1615 Broadway 1005 Oakland, CA 94612 United States local.org

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Message 1024 of 1299

#### Dan Walters Defends Enron's Actions in Sacramento Bee

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                         |
| Recipients | [pat.shortridge@enron.com, 'tom.briggs@enron.com', 'linda.robertson@enron.com'] |
| File       | dasovich-j/sent/12121.                                                          |

FYI. Note toward end of story, mention of email from lawyer in class action suit to Davis advisor asking for help in "getting information out."

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 07/24/2001 02:05 PM -----

"Ken Smith" <ken@kdscommunications.com> 07/24/2001 01:51 PM Please respond to "Ken Smith"

To: "Scott Govenar" <sgovenar@govadv.com>, "Susan J Mara" <smara@enron.com>, <Paul.Kaufman@enron.com>, "Karen Denne" <kdenne@enron.com>, <Jeff.Dasovich@enron.com> cc: Subject: Dan Walters

Dan Walters: Blame game over California's energy crisis will continue for years

(Published July 24, 2001) The wrestling match between politicians and Enron Corp. moved into a more intense arena over the weekend when a state Senate investigating committee sought contempt penalties because the huge energy company has refused to turn over internal documents. Although Houston-based Enron owns no major power plants in California, it has adopted the toughest stance of all energy companies against the multiple investigations of why wholesale energy prices spiked so high. And it has become, in turn, a whipping boy for California politicians. At one point last spring, state Attorney General Bill Lockyer said he wanted criminal charges against Enron and its chairman, Kenneth Lay. "I would love to personally escort Lay to an 8-by-10 cell that he could share with a tattooed dude who says, 'Hi, my name is Spike, honey,'" Lockyer said. With less colorful language, Gov. Gray Davis has often castigated Texas-based companies as price gougers -- even though Texas firms have been fairly minor suppliers to California. Some of it is just buzzword politics. Lockyer and Davis know that Californians dislike anything associated with Texas, and Lay has been one of President Bush's major political supporters. Enron, meanwhile, cites the rhetoric as evidence that Lockyer, Davis and

legislative investigators are interested less in finding the truth than in seeking scapegoats. Enron also filed a lawsuit challenging the legality of the Senate's subpoenas of trading data. Most other energy companies have complied with the demands, creating Sacramento repositories of the data under elaborate confidentiality agreements worked out with the special Senate committee headed by Sen. Joseph Dunn, D-Santa Ana. But Enron has refused, and on Saturday, Dunn submitted a report asking the Senate for "an appropriate coercive sanction." Does Enron have something to hide? Or does it sincerely believe that what's happening in California is political scapegoating? Are the companies' fears about the confidentiality of the data sought by the Senate justified? Would data be selectively leaked to show the firms in the worst light? Would data be used by competitors? Or could the information find its way into the hands of class-action attorneys? Dunn, a prominent trial attorney himself, insists that confidentiality will be protected and that the information being sought is only for legislative purposes. But Enron and the other companies have some reason to be wary of turning over confidential information to politicians. Similar information was leaked -- without penalty -- in last year's investigation of former state Insurance Commissioner Chuck Quackenbush. And there are indications that private lawyers are working closely with investigators. Mike Aguirre, the San Diego attorney seeking a "smoking gun" to prove collusion among energy companies, supplied Dunn's committee with a few dissident Duke Energy workers who alleged, in highly publicized hearings, that the firm had manipulated production at its San Diego plant to create artificial shortages and drive up spot market power prices. Duke then refuted the charges by releasing some excerpts from the records of the Independent System Operator, the controller of California's power grid, indicating that ISO had ordered the plant operational changes. Aguirre subsequently asked the governor's office to pressure the ISO -- now under Davis' direct control -- to release all of the Duke-related documents that would show, he says, that the firm actually manipulated the situation. Duke and other companies insist that the ISO-held documents are proprietary. Aguirre pleaded with one Davis adviser in an e-mail that "we need your help in properly getting this information out." But Aguirre, in an interview, said he had not yet obtained cooperation from Davis aides. The political and legal struggle to affix blame for California's energy woes will continue for months, perhaps years. The crisis will cost ratepayers at least \$50 billion, and they'll want to know why as they make out their utility bill checks.

The Bee's Dan Walters can be reached at (916) 321-1195 or dwalters@sacbee.com .

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Message 1025 of 1299

#### Fwd: DJ - Siting Of Transmission Lines May Be Tied With FERC RTOs

|            |                                                           |
|------------|-----------------------------------------------------------|
| Sender     | rcarroll@bracepatt.com                                    |
| Recipients | ['mmilner@coral-energy.com', 'rreilley@coral-energy.com'] |
| File       | dasovich-j/all_documents/12862.                           |

Content-Transfer-Encoding: quoted-printable Date: Tue, 22 May 2001 10:46:45 -0500 From: "Tracey Bradley" <tbradley@bracepatt.com> To: "Aryeh Fishman" <afishman@bracepatt.com>, "Andrea Settanni" <asettanni@bracepatt.com>, "Deanna King" <dking@bracepatt.com>, "Dan Watkiss" <dwatkiss@bracepatt.com>, "Jacqueline Java" <jjava@bracepatt.com>, "Kimberly Curry" <kcurry@bracepatt.com>, "Paul Fox" <pfox@bracepatt.com>, "Ronald Carroll" <rcarroll@bracepatt.com> Subject: DJ - Siting Of Transmission Lines May Be Tied With FERC RTOs Mime-Version: 1.0 Content-Type: text/plain; charset=ISO-8859-1 Content-Disposition: inline

FYI

DJ Siting Of Transmission Lines May Be Tied With FERC RTOs Copyright , 2001 Dow Jones & Company, Inc.

WASHINGTON (Dow Jones)--The White House energy-policy blueprint's call for federal eminent domain authority to site power transmission lines appears to be garnering cautious support from Western-state lawmakers who typically support private property rights.

They indicated the administration's policy call will win their support as long as states continue to have a say in the siting process and the rights of private property owners are respected.

The report of the National Energy Policy Development Group, a White House task force spearheaded by Vice President Dick Cheney, called for the Energy Department, in consultation with federal agencies and state and local government officials, to develop legislation granting authority to obtain rights-of way for electricity transmission lines.

The proposed legislative effort should advance "the goal of creating a reliable national transmission grid," the White House policy blueprint recommends, noting that similar siting authority already rests at the federal level for natural gas pipelines.

"The siting process must be changed to reflect the interstate nature of the transmission system," the White House report said.

Senate Energy Committee Chairman Frank Murkowski, R-Alaska, sponsored legislation in the last Congress to establish federal eminent domain authority for transmission lines.

The White House report cited instances when states vetoed transmission lines despite the benefits the proposed facilities would provide for the interstate power grid. For example, Connecticut recently scuttled an underwater power line designed to supply power-hungry Long Island, N.Y.

"The states ought to have the maturity to deal with this themselves," Murkowski said.

But pro-states' rights lawmakers said the traditional transmission-siting role of states must be preserved, but be backed up by federal oversight.

The siting of transmission lines is the "prerogative" of state and local governments, said Sen. Pete Domenici, R-N.M., who nevertheless suggested he could support some form of federal authority as a "backstop" to state and local authority.

"I have been a critic of this and I remain so," Sen. Larry Craig, R-Idaho, said of the administration's policy recommendation, citing the potential impact on the "rights of private property owners."

Nevertheless, Craig suggested the administration's recommendation could be accommodated as part of the U.S. Federal Energy Regulatory Commission's push to turn control of power grid assets over to independent regional transmission organizations, or RTOs.

"Out of that (RTO) concept, it may be possible to address what the president has asked for," Craig said.

Tying such eminent domain authority to the RTO process is an approach FERC likely would take.

FERC Chairman Curt Hebert suggested the White House's policy recommendation could be delegated to RTOs.

"America has to decide: Is electricity going to be an interstate commodity? If so, we have to treat it like one," Hebert said last week in support of the administration's policy recommendation.

Linking transmission siting with RTOs also was espoused by Pat Wood, chairman of the Texas Public Utility Commission and one of President Bush's nominees to fill two vacancies at FERC.

Having RTOs oversee expansion of the U.S. interstate transmission system is "probably a good way to go," Wood said at his confirmation hearing last week.

Wood said the market should identify transmission expansion needs. But if the market doesn't produce the needed results, then there should be "a fallback role for FERC to assure there isn't a train crash," he said.

Such a regional planning approach within FERC's RTO scheme likely will win support from state regulators, said Charles Gray, executive director of the National Association of Regulatory Utility Commissioners.

The administration's call for framing legislation in consultation with the states likely will blunt potential opposition from state utility regulators, Gray said.

-By Bryan Lee, Dow Jones Newswires, 202-862-6647, <mailto:bryan.lee@dowjones.com>

(END) Dow Jones Newswires 21-05-01

Message 1026 of 1299

**Re: URGENT FERC Hearing on Sept 12**

|                   |                          |
|-------------------|--------------------------|
| <b>Sender</b>     | jeff.dasovich@enron.com  |
| <b>Recipients</b> | ['susan.mara@enron.com'] |
| <b>File</b>       | dasovich-j/sent/144.     |

jackasses? that might not be a word we'd want to use in emails that might, shall we say, get into unfriendly hands....

Gary Ackerman <foothill@lmi.net> on 09/05/2000 02:37:49 PM Please respond to foothill@lmi.net To: Bill Ross <billr@calpine.com>, Bob Anderson <Robert\_Anderson@apses.com>, Carolyn Baker <cabaker@duke-energy.com>, Corby Gardin <jcgardin@newwestenergy.com>, curt hatton <curt.Hatton@gen.pge.com>, Curtis Kebler <Curtis\_L\_Kebler@reliantenergy.com>, Denice Cazalet <dcazalet@apx.com>, Gene Waas <glwaas@calpx.com>, Greg Blue <gtbl@dynegy.com>, Jack Pigott <jackp@calpine.com>, Jeff Dasovich <jdasovic@enron.com>, Ken Czarnecki <Ken\_J\_Czarnecki@calpx.com>, Kent Wheatland <KEWH@dynegy.com>, "Klemstine, Barbara A(F56661)" <barbara\_klemstine@apses.com>, Randy Hickok <rjhickok@duke-energy.com>, Rob Lamkin <rllamkin@seiworldwide.com>, Rob Nichol <rsnichol@newwestenergy.com>, robert berry <berry@apx.com>, Roger Pelote <rpelote@energy.twc.com>, Sue Mara <smara@enron.com>, Dan Douglass <douglass@arterhadden.com>, Anne-Lee Tomczyk <altomczyk@wptf.org> cc: Subject: URGENT FERC Hearing on Sept 12

They did it! The jackasses changed the hearing date to Sept 12 as of 3 pm today. A lady from FERC just called me to let me know.

My suggestion is we cancel our scheduled Board meeting, meet prior to the 12th, and get our story in line. Another notice will be published by FERC regarding participation in the Hearing.

gba

Content-Transfer-Encoding: 7bit X-Mozilla-Status2: 00000000 Message-ID: <39B54957.2190A7E6@lmi.net> Date: Tue, 05 Sep 2000 12:28:29 -0700 From: Gary Ackerman <foothill@lmi.net> Reply-To: foothill@lmi.net Organization: Foothill Services X-Mailer: Mozilla 4.74C-CCK-MCD {C-UDP; EBM-APPLE} (Macintosh; U; PPC) X-Accept-Language: en MIME-Version: 1.0 To: Bill Ross <billr@calpine.com>, Bob Anderson <Robert\_Anderson@apses.com>, Carolyn Baker <cabaker@duke-energy.com>, Corby Gardin <jcgardin@newwestenergy.com>, curt hatton <curt.Hatton@gen.pge.com>, Curtis Kebler <Curtis\_L\_Kebler@reliantenergy.com>, Denice Cazalet <dcazalet@apx.com>, Gene Waas <glwaas@calpx.com>, Greg Blue <gtbl@dynegy.com>, Jack Pigott <jackp@calpine.com>, Jeff Dasovich <jdasovic@enron.com>, Ken Czarnecki <Ken\_J\_Czarnecki@calpx.com>, Kent Wheatland <KEWH@dynegy.com>, "Klemstine, Barbara A(F56661)" <barbara\_klemstine@apses.com>, Randy Hickok <rjhickok@duke-energy.com>, Rob Lamkin <rllamkin@seiworldwide.com>, Rob Nichol <rsnichol@newwestenergy.com>, robert berry <berry@apx.com>, Roger Pelote <rpelote@energy.twc.com>, Sue Mara <smara@enron.com>, Dan Douglass <douglass@arterhadden.com>, Anne-Lee Tomczyk <altomczyk@wptf.org> Subject: dand Content-Type: text/plain; charset=us-ascii; x-mac-type="54455854"; x-mac-creator="4D4F5353"

I just copied from the FERC's web page the following notice. It appears that FERC will have a hearing in San Diego, possibly on Friday, Sept 15. However, an earlier date is equally likely because all four Commissioners are testifying at a Congressional Hearing in San Diego on Sept 11. I guess we need to agendaize this for our next meeting, and if the FERC holds its hearings on Sept 12, we may need to cancel our Board meeting, and attend this. I did call the office of External Affairs at FERC to register WPTF as a speaker. They were clueless, but promised to call me back.

gba

UNITED STATES OF AMERICA FEDERAL ENERGY REGULATORY COMMISSION

NOTICE OF PUBLIC MEETING ON WHOLESALE POWER MARKETS AND TRANSMISSION SERVICES IN CALIFORNIA

(September 1, 2000)

On September 15, 2000, the Federal Energy Regulatory Commission is planning to convene a public meeting in San Diego, California to allow interested persons to give the Commission their views on recent events in California's wholesale markets. While the Commission is finalizing arrangements for a meeting on September 15th, the Commission may need to change the meeting to a different date within the week of September 11th. A further notice will be issued confirming the date. The meeting is scheduled to begin at 9:00 a.m., at the San Diego Concourse, the Copper Room, 202 C Street, San Diego, California 92101. All interested persons may attend the meeting. The meeting will be transcribed. A separate notice will be issued before the meeting, setting forth an agenda and identifying the panels of participants. Additional information may be obtained from the Office of External Affairs at (202) 208-0870. Information also may be obtained from the Commission's web page at [www.ferc.fed.us](http://www.ferc.fed.us).

Linwood A. Watson, Jr. Acting Secretary

Message 1027 of 1299

**FW: PGE Bankruptcy motions**

|            |                                                                   |
|------------|-------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                           |
| Recipients | ['paul.kaufman@enron.com', 'CARL A. EKLUND; JAMES L. HUEMOELLER'] |
| File       | dasovich-j/sent/4045.                                             |

----- Forwarded by Jeff Dasovich/NA/Enron on 04/09/2001 05:51 PM -----

Michael Tribolet/ENRON@enronXgate 04/09/2001 05:25 PM

To: Vicki Sharp/HOU/EES@EES, Mike D Smith/HOU/EES@EES, Travis McCullough/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Greg Whalley/HOU/ECT@ECT, John J Lavorato/ENRON@enronXgate, Susan J Mara/NA/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron cc: Subject: FW: PGE Bankruptcy motions

fyi -----Original Message----- From: "JOHN G KLAUBERG" <JKLAUBER@LLGM.COM>@ENRON [mailto:IMCEANOTES+22JOHN+20G+20KLAUBERG+22+20+3CJKLAUBER+40LLGM+2ECOM+3E+40ENRON@ENRON.com] Sent: Monday, April 09, 2001 5:01 PM To: Tribolet, Michael Cc: CARL A. EKLUND; JAMES L. HUEMOELLER Subject: Fwd: PGE

Michael: as you know, one of my SF bankruptcy partners, Ben Young, attended the PG&E hearing today. Here is a quick synopsis. Could you please distribute as appropriate. John

This e-mail, including attachments, contains information that is confidential and may be protected by the attorney/client or other privileges. This e-mail, including attachments, constitutes non-public information intended to be conveyed only to the designated recipient(s). If you are not an intended recipient, please delete this e-mail, including attachments, and notify me. The unauthorized use, dissemination, distribution or reproduction of this e-mail, including attachments, is prohibited and may be unlawful.

Content-Transfer-Encoding: quoted-printable Date: Mon, 09 Apr 2001 15:46:25 -0400 From: "BENNETT G. YOUNG" <BYOUNG@LLGM.COM> To: ceklund@llgm.com, "JOHN G KLAUBERG" <JKLAUBER@LLGM.COM>, "JAMES L. HUEMOELLER" <JLHUEMOE@LLGM.COM> Subject: PGE MIME-Version: 1.0 Content-Type: text/plain; charset="us-ascii" Content-Disposition: inline

I attended the hearings on PGE's two cash collateral motions today. Both were granted on an interim basis. The court set a final hearing for May 9 at 9:30 am. PGE is to file its pleadings by April 20 and any opposition is due by May 4.

The bondholder cash collateral motion was heard first. There was no opposition and the bond trustee (Bank of New York) consented to the relief. BONY and PGE are working on a final cash collateral stipulation.

Next was the gas supplier motion. PGE mentioned in its presentation that the basis of the pre-petition agreement was the waiver of termination rights in the event of bankruptcy by the suppliers in return for a security interest in the receivables.



Jim Lopes, PGE's lawyer, mentioned that he had learned a great deal about Bankruptcy Code section 556 in the last few months. Judge Montali nodded his head at that comment. Montali also asked whether PGE conceded that 556 applied. Lopes answered that he did not concede that it applied, but he was "very concerned."

I asked whether the post-petition security interest was available to suppliers that were not parties to the pre-petition agreements. The Court said that was up to PGE; Lopes said they were willing to talk about it, but they did not want to grant liens to all of their creditors and hoped creditors would rely on their administrative claims, which PGE believes will be paid in the ordinary course. Procedurally, the Court said it would not authorize any new security interests on the basis of the interim order resulting from today's hearing. Instead, that would have to be the subject of a separate motion with notice, and perhaps could be taken up at the final hearing. PGE also indicated that it is filing today a lawsuit against the CPUC seeking a TRO regarding a deadline of April 11 for the filing of certain advice letters. A hearing is tentatively scheduled on the TRO for 3 pm tomorrow, April 10.

There was also discussion of various administrative matters, like scheduling hearings, entering a case management order, etc.

A representative of a consumer group, the Coalition for Public Power, read a statement asking Judge Montali to rollback rates and to force PGE's parent to pay the utility's debts. The Judge let them speak, but made it clear that it was not an action item, and seemed generally to ignore them.

The courtroom was packed with attorneys, journalists and members of the public. After the hearing, the reporters all descended upon the attorneys for PGE and the CPUC. The courtroom is in an office building in SF's financial district; there were probably ten TV cameras set up on the sidewalk as well as several protesters carrying signs.

Please call me if you have any questions.

Bennett G. Young One Embarcadero Center, Suite 400 San Francisco, California 94111 (415) 951-1167  
byoung@llgm.com

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*Message 1028 of 1299*

### California Energy Crisis Timeline

|            |                                                      |
|------------|------------------------------------------------------|
| Sender     | richard.costigan@asm.ca.gov                          |
| Recipients | ['kenneth.lay@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/12023.                      |

<<Energy Crisis Timeline.doc>>

Good afternoon:

You have been added to an e-mail distribution list from Assembly Republican Leader Dave Cox's office. This timeline is one of many documents produced by the Assembly Republican Caucus. Daily documents include daily agendas and a daily energy briefing document. I will forward today's copies to you.

If you have any questions as a result of your meeting with Mr. John Campbell, please do not hesitate to wither contact Mr. Campbell or Mr. Cox, or this office. On behalf of Mr.. Cox, please accept his apologies for having to reschedule the meeting due to session.

If you have any questions, please do not hesitate to contact us.

Thank you,

Richard

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

- Energy Crisis Timeline.doc

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Message 1029 of 1299**NEWS: Legislative Status Report Week Ending 4/27**

|            |                                            |
|------------|--------------------------------------------|
| Sender     | jennifer.rudolph@enron.com                 |
| Recipients | ['ca.team@enron.com', 'IEP Board Members'] |
| File       | dasovich-j/all_documents/11995.            |

----- Forwarded by Jennifer Rudolph/HOU/EES on 05/03/2001

09:48 AM ----- From: Jeff Dasovich@ENRON on 04/27/2001 06:17 PM

Date: April 27, 2001 To: Jan Smutny-Jones, Steven Kelly, Katie Kaplan Cc: IEP Board Members From: Julee Malinowski-Ball Re: Legislative Status Report Week Ending 4/27

**RECENT EVENTS**

-- Rule #1: Never assume an issue is done until the ink is dry from the Governor's signature (and even then you never know). The Senate Republicans agreed late this week to oppose SB 28x (Sher), which makes several IEP-sponsored proposals to the siting process, due to a controversial provision added in the Assembly Appropriations Committee regarding unemployment compensation. Assembly Republicans let it slide on process because CMTA and the Chamber's objections to the egregious language was so last minute. Senate Republicans had more time to look at the issue and agreed not to let it go forward. Since they control of the final vote in a bill requiring two-thirds, their united opposition stopped the bill, one vote shy. The author was granted reconsideration and discussions will be on-going over the next week on how to proceed. The best-case scenario at this point is getting one Republican to drop from the ranks. Worst-case scenario is the bill dies, and our language gets picked up in another vehicle starting the whole process all over again. The more likely scenario, however, lies somewhere in between. Parties will agree to some compromise language, send the bill back to the Assembly to make the appropriate changes, then bring it back to the Senate for a clean vote.

-- Long-term contracting was moved to the front burner this week by Asm. Wright (AB 57) and Senator Morrow (SB 997), both with different results. Both measures, which are almost identical, set forth a criteria which, if followed by an IOU when signing a long-term contract with an energy supplier, would eliminate the need for a reasonableness review by the CPUC. AB 57 passed out of the Assembly Utilities and Commerce committee with little discussion and a few technical amendments. SB 997 faced a longer, more difficult hearing in front of Senator Bowen's Energy Committee. IEP, along with the three IOUs testified in support of the measure, while TURN expressed great concerns with the concept of leaving the CPUC out of the picture. In the end, the Senate committee agreed to put the bill off for further discussions, passed a motion in support of getting the appropriate rule waiver so the bill can be heard again after Friday's policy committee deadline, and scheduled a stakeholder meeting for Thursday morning. Senator Burton announced on the Senate Floor Thursday morning, however, that all requests for rule waivers would be denied. AB 57 appears to be the only active vehicle on this issue, and IEP will be at the negotiating table providing input on the language as it moves forward.

-- AB 60x is scheduled for hearing next week in the Senate Energy Committee. IEP met with committee staff this week, which revealed some possible latitude in amending the bill. IEP and other member company lobbyists will be pushing hard for an opposed position from the rest of the committee before the hearing Tuesday afternoon. At this time, however, we do not have any alternative language for the bill. After further review by some IEP member companies, the previously drafted amendments appear unworkable and were withdrawn from consideration. We anticipate on waiting to see where the committee on Tuesday takes the issue before another attempt at drafting alternative language.

-- SB 1x (Soto/Scott) was amended this week before its hearing in the Senate Appropriations committee next week. The new language finds a backdoor to the price cap issue by imposing a 100 percent tax on the sale of electric power that exceeds a base price of \$80 per MW/hr. CMTA, the Chamber and CalTax will be coordinating strategy for the hearing with IEP and the generators, but despite the bill's multiple constitutional and legal problems, most admit the measure will move forward with little trouble. A new player on the scene will probably provide the most noteworthy testimony. InterGen North America, which is developing a 900 MW power plant in Palm Springs, plans on testifying that if this measure is signed by the Governor, they will absolutely pull the project and go to Oklahoma.

-- Newly amended this week is AB 67x (Cardoza), which now makes it a felony for a corporation that sells electricity or natural gas at unjust or unreasonable rates. Sponsored by Lt. Governor Bustamante, the measure establishes stiff fines and possible jail time, that could be subject to the state's "three strikes" law. AB 67x has already generated opposition from Republicans and constitutional questions from legal experts. Although Cardoza noted that several aspects of the bill are unresolved and could change, the intent will remain the same, and he insists that energy companies that take advantage of Californians will still face significant penalties.

-- SB 6x, (Burton), which establishes a State Power Authority, passed the Assembly this week by a 48 to 28 vote. The measure needs the Senate to concur on the Assembly amendments before it heads to the Governor's desk.

-- Attached are the most recent legislative tracking reports for both the special and regular sessions. Please call if you need copies of any of the bills.

#### UPCOMING EVENTS

MONDAY, April 30th Senate Appropriations Committee SB 1x (Soto) - excess profits tax SB 30x (Brulte) - local government incentives

Assembly Energy Costs and Availability Subcommittee on Natural Gas Costs and Availability Informational Hearing

TUESDAY, May 1st Senate Energy Committee AB 60x (Hertzberg) - California First

MONDAY, May 7th Senate Appropriations Committee SB 64x (Costa) - biomass incentive

ON THE SENATE FLOOR SB 28x (Sher) - siting proposals SB 6x (Burton) - State Power Authority

--end--

Julee Malinowski-Ball Senior Associate Edson + Modisette 916-552-7070 FAX-552-7075 jmball@ns.net

- 2001 Tracking Report.doc - 2001 Tracking Report.special session.doc

#### Message 1030 of 1299

| Two Governor's Press Releases--More Courage from the Capitol |                                                                                                               |
|--------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------|
| Sender                                                       | jeff.dasovich@enron.com                                                                                       |
| Recipients                                                   | ['Karen Edson' <kedson@ns.net>, 'cynthia.sandherr@enron.com', 'mary.hain@enron.com', 'joe.hartsoe@enron.com'] |
| File                                                         | dasovich-j/all_documents/1401.                                                                                |

----- Forwarded by Jeff Dasovich/SFO/EES on 09/13/2000 06:18

PM -----

"Julee Malinowski-Ball" <jmball@ns.net> on 09/13/2000 06:10:16 PM Please respond to "Julee Malinowski-Ball" <jmball@ns.net> To: "Baker Carolyn (E-mail)" <cabaker@duke-energy.com>, "Bill Carlson (E-mail)" <william\_carlson@wastemanagement.com>, "Bill Woods (E-mail)" <billw@calpine.com>, "Curt Hatton (E-mail)" <curt.hatton@gen.pge.com>, "Curtis Kebler (E-mail)" <curtis\_l\_kebler@reliantenergy.com>, "David Keane (E-mail)" <dnke@dynegy.com>, "David Parquet (E-mail)" <dparque@ect.enron.com>, "Duane Nelsen (E-mail)" <duanenelsen@msn.com>, "Ed Tomeo (E-mail)" <ed.tomeo@uaecorp.com>, "Edward Maddox (E-mail)" <emaddox@seawestwindpower.com>, "Eileen Kock (E-mail)" <eileenk@calpine.com>, "Ellery Bob (E-mail)" <bellery@spi-ind.com>, "Escalante Bob (E-mail)" <riobravogm@aol.com>, "Frank DeRosa (E-mail)" <fderosa@sanfrancisco.usgen.com>, "Greg Blue (E-mail)" <gtbl@dynegy.com>, "Hap Boyd (E-mail)" <rboyd@enron.com>, "Jack Pigott (E-mail)" <jackp@calpine.com>, "Jan Smutny-Jones (E-mail)" <smutny@iepa.com>, "Jim Willey (E-mail)" <elliottsa@earthlink.net>, "Joe Greco (E-mail)" <joe.greco@uaecorp.com>, "Joe Ronan (E-mail)" <joe@calpine.com>, "John Stout (E-mail)" <john\_h\_stout@reliantenergy.com>, "Jonathan Weisgall (E-mail)" <jweisgall@aol.com>, "Katie Kaplan (E-mail)" <kaplan@iepa.com>, "Kent Fickett (E-mail)" <kfickett@usgen.com>, "Lynn

Lednický (E-mail)" <lale@dynegy.com>, "Marty McFadden (E-mail)" <marty\_mcfadden@ogden-energy.com>, "Paula Soos (E-mail)" <paula\_soos@ogden-energy.com>, "Robert Lamkin (E-mail)" <rlamkin@seiworldwide.com>, "Roger Pelote (E-mail)" <rpelote@energy.twc.com>, "Steve Ponder (E-mail)" <steve\_ponder@fpl.com>, "Steven Kelly (E-mail)" <steven@iepa.com>, "Sue Mara (E-mail)" <smara@enron.com>, "Tony Wetzel (E-mail)" <twetzel@thermoecotek.com>, "Trond Aschehoug (E-mail)" <taschehoug@thermoecotek.com>, "William Hall (E-mail)" <wfhall2@duke-energy.com>, "Richard Hyde (E-mail)" <rwhyde@duke-energy.com>, "Sandi McCubbin (E-mail)" <smccubbi@ees.enron.com>, "Stephanie Newell (E-mail)" <stephanie-newell@reliantenergy.com>, "Jeff Dasovich (E-mail)" <jdasovic@enron.com> cc: "Karen Edson" <kedson@ns.net> Subject: Two Governor's Press Releases

GOVERNOR DAVIS PRESSES FERC FOR ACTION ON WHOLESALE POWER RATES: Calls on Federal Regulators to Reduce Prices, Issue Refunds

GOVERNOR DAVIS NAMES KAHN CHAIR OF THE GOVERNOR'S CLEAN ENERGY GREEN TEAM

OFFICE OF THE GOVERNOR

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---- PR00:238 FOR IMMEDIATE RELEASE September 12, 2000

GOVERNOR DAVIS PRESSES FERC FOR ACTION ON WHOLESALE POWER RATES Calls on Federal Regulators to Reduce Prices, Issue Refunds

SAN DIEGO - At a Federal Energy Regulatory Commission (FERC) hearing today in San Diego, Governor Gray Davis reiterated his call to federal regulators to intervene "to the fullest extent possible" to lower electricity prices in California.

"FERC bears responsibility to ensure that a workably competitive market exists before California consumers and California's economy are subjected to unconstrained, market-based electricity prices," said Governor Davis in a statement read by Energy Oversight Board Chairman Michael Kahn. "Consequently, I renew my prior request that the Commission act with utmost speed to intervene to the fullest extent possible to restore wholesale prices to fair levels and to remedy harms that have resulted from the exercise of market power."

Governor Davis noted that he and state lawmakers have taken dramatic action in recent weeks to provide rate relief. "While these actions should provide short-term rate predictability and longer-term benefits to customers in terms of improved supplies, the fundamental problem of exorbitant wholesale prices still exists and remains the responsibility of FERC to address," said the governor. "No combination of state actions can substitute for federal action to ameliorate the problems of California's wholesale markets."

Governor Davis has taken the following actions in reaction to rising electricity prices in San Diego:

On June 14, he called for emergency reduction of electricity use by all state facilities in the San Francisco Bay area in response to electricity emergency and rolling blackouts.

On June 15, he called on chairpersons of the Public Utilities Commission (PUC) to analyze the conditions that led to electricity shortages in the San Francisco Bay area the previous day, including a statewide perspective on the price and delivery of electricity. Report was completed, submitted to the governor and released on August 2.

On July 27, 2000, Governor Davis called on federal and state regulators to take swift action to extend the caps on wholesale electric rates in California and provide San Diego ratepayers with million of dollars in refunds.

In letters written by the governor to two state regulatory agencies and two California-based panels charged with overseeing California's power market, he called for a coordinated state effort to urge federal regulators to take strong measures to reduce power rates in both the short- and long-term.

On August 2, 2000, Governor Davis issued three Executive Orders designed to reduce energy consumption by state government and speed up the time it takes new power generating facilities to win approval from state agencies.

On August 9, 2000, Governor Davis called on the Public Utilities Commission (PUC) to establish a two-year plan that would cut electricity rates by nearly half for residential and business customers of San Diego Gas & Electric.

The governor also reached an agreement with the California Grocers Association that will save enough electricity to provide power to between 50,000 and 60,000 homes during periods of peak demand, as grocers agreed to reduce power

consumption by 10 percent during Stage One emergencies.

On August 10, 2000, Governor Davis wrote a letter to President Clinton urging him to expedite FERC's investigation to determine whether current electric rates in San Diego were unjust.

On August 22, 2000, Governor Davis called on President Clinton to release emergency funds from the Low-Income Home Energy Assistance Program (LIHEAP) to the state to help low-income Californians pay their rapidly-rising electricity bills.

On August 23, 2000, President Clinton responded to Governor Davis' request by releasing \$2.6 million in emergency funds to help low-income Southern Californians cope with the surge in their electricity bills. The President also asked federal regulators to speed up their investigation into the operation of U.S. power markets and urged the Small Business Administration to use its credit programs to help small firms hurt by the price increases.

On August 23, 2000, Governor Davis reached agreement with legislators on legislation to provide relief to San Diego ratepayers. The governor signed two bills into law on September 6, 2000.

Please see attached letter (below).

###

SEPTEMBER 12, 2000

STATEMENT OF GOVERNOR GRAY DAVIS

TO THE FEDERAL ENERGY REGULATORY COMMISSION CONCERNING ITS INVESTIGATION OF WHOLESALE PRICE ESCALATION IN CALIFORNIA

The Summer of 2000 has confronted California with an electricity crisis that seriously threatens the safety, health and well being of citizens and businesses throughout the state. At the heart of the crisis is the extraordinary run up in prices for wholesale electric energy and ancillary services, accompanied by deteriorating service and reliability. In San Diego, electric customers' bills have more than doubled this summer, threatening pe

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Message 1031 of 1299

**FW: MEETING CONFIRMED: Next Steps w/CA Contracts**

|            |                                                                                      |
|------------|--------------------------------------------------------------------------------------|
| Sender     | j.noske@enron.com                                                                    |
| Recipients | ['richard.shapiro@enron.com', 'ginger.dernehl@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/inbox/162.                                                                |

Jim is aware of this call. I forwarded same to Harry Kingerski and Sue Mar= a.

Rick, if you need us to set up an international line, please advise and I w= ill handle.

-----Original Message-----

From: =09Hinojosa, Esmeralda =20 Sent:=09Thursday, September 13, 2001 10:50 AM To:=09Blachman, Jeremy; Sharp, Vicki; Steffes, James D.; Frazier, Lamar; De= lainey, David; Belden, Tim; Hughes, Evan; Holmes, Sean; Williams, Robert C.= ; Leff, Dan; Higgason, Kelly Cc:=09Dick, Sharon; Dodgen, Kathy; Noske, Linda J.; Davidson, Debra; Botell= o, Leticia; Smith, Paulett; Cooley, Jan; O'Neal, Patricia; Martinez, Maria Subject:=09MEETING CONFIRMED: Next Steps w/CA Contracts

The subject meeting is confirmed as follows:

Date:=09Today - Thursday, September 13

Time:=094:30p to 5:30p

Room:=09EB 872

Dial-In:=09800-991-9019 P/C:=097028256

Participants: Dave Delainey=09=09=09 Dan Leff=09=09=09 Jeremy Blachman (will call-in) Vicki Sharp=09=09=09 Jim Steffes (will call-in or have Sue Mara/Harry Kingerski represent him)= =09=09 Lamar Frazier (will call-in) Tim Belden (will call-in) Evan Hughes Sean Holmes Bob Williams Kelly Higgason

Thank you.

----- Forwarded by Esmeralda Hinojosa/HOU/EES on 09/13/200=

1 10:28 AM -----

=20 Dan Leff 09/12/2001 08:03 PM To:=09Esmeralda Hinojosa/HOU/EES@EES cc:=09Jeremy Blachman/HOU/EES@EES, Vicki Sharp/HOU/EES@EES, James D Steffes= /Enron@EnronXGate, Lamar Frazier/HOU/EES@EES, David W Delainey/HOU/EES@EES,= Tim Belden/Enron@EnronXGate, Evan Hughes/HOU/EES@EES, Sean A Holmes/HOU/EE= S@EES, Robert C Williams/Enron@EnronXGate=20 Subject:=09RE: ALERT-- CPUC VOTE DELAYED AGAIN!!!

Esmerelda -=20

Please set up a meeting on Thursday, 9/13 with the "cc's" to this memo to d= iscuss next steps with some of our CA contracts.

If I have missed anyone who should be there, please make sure they are invi= ted.

Probably need 1 hour.

Thanks - Dan

----- Forwarded by Dan Leff/HOU/EES on 09/12/2001 07:51 PM=

From:=09Jeff Dasovich/ENRON@enronXgate on 09/12/2001 05:22 PM To:=09Susan J Mara/ENRON@enronXgate, Steven J Kean/ENRON@enronXgate, Harry = Kingerski/ENRON@enronXgate, Tim Belden/ENRON@enronXgate, Vicki Sharp/HOU/EE= S@EES, Jeremy Blachman/HOU/EES@EES, Alan Comnes/ENRON@enronXgate, Michael T= ribolet/ENRON@enronXgate, Kristin Walsh/ENRON@enronXgate, David W Delainey/= HOU/EES@EES, Dan Leff/HOU/EES@EES, Lamar Frazier/HOU/EES@EES, Kevin Keeney/= HOU/EES@EES, Jeremy Blachman/HOU/EES@EES, Scott Gahn/HOU/EES@EES, Tim Belde= n/ENRON@enronXgate, Stephen Swain/ENRON@enronXgate, John J Lavorato/ENRON@e= nronXgate, Paul Kaufman/ENRON@enronXgate, James D Steffes/ENRON@enronXgate,= Christopher F Calger/ENRON@enronXgate, Don Black/ENRON@enronXgate, Jeff Ri= chter/ENRON@enronXgate, Louise Kitchen/ENRON@enronXgate, Janet Dietrich/HOU= /EES@EES, Linda Robertson/ENRON@enronXgate, Harry Kingerski/ENRON@enronXgat= e, Karen Denne/ENRON@enronXgate, Mark Palmer/ENRON@enronXgate, Richard Shap= ired/ENRON@enronXgate, Wanda Curry/ENRON@enronXgate, Lisa Mellencamp/ENRON@e= nronXgate, Tom Riley/Western Region/The Bentley Company@Exchange cc:=09=20 Subject:=09RE: ALERT-- CPUC VOTE DELAYED AGAIN!!!

In addition, though we are still attempting to confirm, it appears that no = windfall profits tax bills will make it through the Legislature. Will repo= rt back as soon as we know one way or the other.

Best, Jeff

-----Original Message-----

From: =09Mara, Susan =20 Sent:=09Wednesday, September 12, 2001 5:10 PM To:=09Kean, Steven J.; Kingerski, Harry; Belden, Tim; Sharp, Vicki; Blachma= n, Jeremy; Comnes, Alan; Tribolet, Michael; Walsh, Kristin; Delainey, David= ; Leff, Dan; Frazier, Lamar; Keeney, Kevin; Blachman, Jeremy; Gahn, Scott; = Belden, Tim; Swain, Steve; Lavorato, John; Kaufman, Paul; Steffes, James D.= ; Calger, Christopher F.; Mara, Susan; Black, Don; Richter, Jeff; Kitchen, = Louise; Dietrich, Janet; Mara, Susan; Robertson, Linda; Kingerski, Harry; D= enne, Karen; Palmer, Mark A. (PR); Shapiro, Richard; Curry, Wanda; Mellenca= mp, Lisa; Dasovich, Jeff; Riley, Tom Subject:=09ALERT-- CPUC VOTE DELAYED AGAIN!!!

=09Our best information is that the CPUC will NOT VOTE on direct access tom= orrow, but will continue the meeting to another date and time. Will let yo= u know when we know the new date for the meeting.

<Embedded Picture (Device Independent Bitmap)>

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Message 1032 of 1299

### CA Probe focuses on Dynegy, Mirant Plants

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | jmunoz@mcnallytemple.com                                                   |
| Recipients | ['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com'] |
| File       | dasovich-j/all_documents/12831.                                            |

Calif Probe Focuses On Dynegy,Mirant Plants-Commissioners ????? Updated: Monday, May 21, 2001 05:28 PM?ET  
????? ? By Jason Leopold and Mark Golden

Of DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--California officials are focusing an investigation into the state's wholesale electricity markets on two power plants operated by two of the state's largest merchant power companies, Mirant Corp. (MIR, news, msgs) and a joint venture between Dynegy Inc. (DYN, news, msgs) and NRG Energy (NRG, news, msgs), according to two commissioners on the California Public Utilities Commission.

The CPUC and the state Attorney General are investigating whether output was withheld in order to maintain high prices over the past seven months at Mirant's Pittsburg plant in northern California and the Encina power plant, which is equally owned by Dynegy and NRG, near San Diego.

All power plants in the state are being examined, but investigators have found that the Encina and Pittsburg plants have reduced power during supply shortages, causing market prices to rise.

But so far, the commissioners said, investigators have found no activity that is clearly illegal.

"Is it unethical? Yes," one PUC commissioner said. "But is it illegal? No, unless there was collusion. This is the system we set up. What the generators are doing would be the appropriate thing to do if you are going to maximize your profit to shareholders."

Spokesmen for Mirant and Dynegy flatly denied the charges.

"What we did was both legal and ethical," said Mirant spokesman Chuck Griffin. "There was a very forthright attempt to keep these plants up and running. Unequivocally, we have never held anything back."

Some of the turbines at the Encina plant are peaking units, which are supposed to ramp up and down to meet demand, Dynegy spokesman Steve Stengell said. The plant is operated by NRG, but Dynegy markets the power from the plant and tells NRG how much power to generate based on what has been sold.

"We've done absolutely nothing to manipulate prices," Stengell said. "Electricity demand increases and decreases throughout the day. Our production increases and decreases to follow changing demand. Ultimately, the ISO determines the exact amount of dispatch."

A spokesman for Attorney General William Lockyer declined to comment on the ongoing investigation.

CPUC President Loretta Lynch told California newspapers last week that her office and that of Lockyer's have enough information to take legal action against generators next month, though she declined to name the companies involved and she said that the exact nature of the legal action is still under review.

"We get really tired of these assertions with no evidence to back them up," Griffin said. "This whole idea that any generation was held back at any time is completely bogus. It is pure political rhetoric."

Mirant's California power plants have run at full power during critical times except under one of two conditions, Griffin said. Either generating units were broken and had to be taken off line to be fixed, or they were beginning to run in a way that violated environmental restrictions and Mirant had to get permission to run at full power any longer.

"There are no other reasons than those two," said Griffin.



Nevertheless, several employees at the power plants involved have testified that generating units were ramped down even when the state's Independent System Operator had warned of tight supplies, according to one commissioner.

And a senior NRG employee at the Encina power plant in Carlsbad told Dow Jones Newswires that he was told by Dynegy's Houston trading floor to "ramp down" the large 951-megawatt plant on at least 10 occasions when he knew power supplies were tight.

"We would be told to ramp down the units even when we knew the state needed the megawatts," the employee said. "Then the spot price would go up, but we didn't really pay too much attention to that, because as far as we know everybody was doing this. We knew how much power other plants were operating at, and we knew they weren't at full capacity."

NRG spokeswoman Meredith Moore said that the ISO gives instructions to Dynegy and Dynegy tells NRG what to do. "And there have been conditions when the ISO told us to ramp down during Stage 2 emergencies," Moore said.

Also, one CPUC commissioner pointed out that the state's deregulation law doesn't require owners of power plants to bid all of their capacity into the market.

The state's incumbent utilities, who were forced to sell their power plants as part of deregulation, also may have contributed to the problem, according to an ISO study. By not securing nearly enough power in advance to meet their customers projected needs, the state's three main utilities contributed to 36 Stage 1 and 2 power emergencies last summer and forced the grid operator to pay a much higher price to keep the lights on.

The utilities argued that they underscheduled their load so they wouldn't have to pay the generators' high bid prices. The ISO market last year had a price cap, while other markets did not.

Mirant's Griffin, meanwhile, said all the finger pointing isn't solving the state's problem.

"If they are going to get to a solution in California, they have to get beyond silly political rhetoric," Griffin said. "The real solution to the problem is to get new supply, and if they are going to do that they have to make this market look attractive to the kind of people who can build power plants."

-By Jason Leopold, Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

(Mark Golden in New York contributed to this article.)

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Message 1033 of 1299

## IEP News 7/18

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | jmunoz@mcnallytemple.com                                                   |
| Recipients | ['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com'] |
| File       | dasovich-j/all_documents/28872.                                            |

? National Public Radio (NPR), Morning Edition (10:00 AM ET) - NPR, May 18, 2001 Friday, 618 words, California's power plan, ALEX CHADWICK, ELAINE KORRY (Quotes Smutny)

AP Online, July 18, 2001; Wednesday, 8:56 AM, Eastern Time, Domestic, non-Washington, general news item, 279 words, Pacific Sues Calif. Over Contracts, DAVID KRAVETS, SAN FRANCISCO

Contra Costa Times, July 18, 2001, Wednesday, STATE AND REGIONAL NEWS, K2631, 540 words, Consumers cashing in instead of cooling off, By Katie Oyan

Los Angeles Times, July 18, 2001 Wednesday, Home Edition, Page 7, 186 words, PG&E Sues State Over Contracts, From Bloomberg News, SAN FRANCISCO

Los Angeles Times, July 18, 2001 Wednesday, Home Edition, Page 2, 349 words, California; ; Trading, Wholesale Power Boost Duke's Earnings 27%, THOMAS S. MULLIGAN, TIMES STAFF WRITER



The Orange County Register, July 18, 2001, Wednesday, DOMESTIC NEWS, K1616, 1230 words, Gov. Davis trying to turn energy crisis to political advantage, By John Howard

The San Francisco Chronicle, JULY 18, 2001, WEDNESDAY,, FINAL EDITION, NEWS,, Pg. A14, 808 words, Lawmakers devise rival bailout plans for Edison; Push to come up with alternative to bankruptcy before recess, Lynda Gledhill, Sacramento

Chicago Tribune, July 18, 2001 Wednesday, NORTH SPORTS FINAL EDITION, Editorial; Pg. 20; ZONE: N, 675 words, The (ho-hum) energy crisis

National Public Radio (NPR) SHOW: Morning Edition (10:00 AM ET) - NPR May 18, 2001 Friday

LENGTH: 618 words

HEADLINE: California's power plan

ANCHORS: ALEX CHADWICK

REPORTERS: ELAINE KORRY

BODY:

ALEX CHADWICK, host:

California's rushing to get new power plants up and running. In January, Governor Gray Davis used emergency powers to speed the permit process. There has been progress, but NPR's Elaine Korry reports probably not enough to avoid more blackouts this summer.

ELAINE KORRY reporting:

Since January, California energy regulators have been slashing red tape to speed new power plants online. Their tracking 180 separate projects. Bob Thirkelsen, who oversees permitting at the California Energy Commission, says the governor's emergency directive has already paid off.

Mr. BOB THURKELSEN (California Energy Commission): And that has allowed us to, so far, permit 450 megawatts of new generation in a 21-day period.

KORRY: In a few cases, even quicker than that. Jim Michael is the president of Alliance Power, based in Denver, which sprinted through its permit process in under three weeks.

Mr. JIM MICHAEL (Alliance Power): Well, we're pouring concrete. We're on schedule, so we're gonna have power plants operating this summer.

KORRY: Alliance is building two small generators in Southern California. Michael says permitting projects that used to take months were, instead, completed in a day or two, allowing the company to meet critical deadlines.

Mr. MICHAEL: It was essential. Without that streamlining, these projects would have gone away. The turbines would have been sold to other projects outside of California and so we would have essentially failed.

KORRY: Yet there's still a major hitch. Despite the speedup in permitting, California will still fall far short of the governor's initial goal. He wanted 5,000 new megawatts of electricity, enough to power five million homes, to come online by July 1st. In a worst-case scenario, that's how much additional supply the state would need to keep the lights on this summer. Yet only half that amount, 2,500 megawatts, will be up and running by July. Jan Smutny-Jones heads the industry lobbying group the Independent Energy Producers Association. He's not surprised by the shortfall.

Mr. JAN SMUTNY-JONES (Independent Energy Producers Association): We said at the time that was a very ambitious goal. And we'll see how it plays out.

KORRY: Smutny-Jones says blackouts are a near certainty this summer. Their severity will depend on a number of unknowns. How hot will it get this summer? How much more can Californians skimp on electricity? And how much wattage will the power wholesalers themselves take off line? Power producers have been charged with deliberately shutting down plants to keep prices high. Smutny-Jones has a different explanation for the down time.

??Mr. SMUTNY-JONES: California's electric power system is rapidly aging. We have not built a power plant of an appreciable amount in over a decade. ?And there--while there's power plants being built now, the average age of these power plants is in excess of 36 years old. ?That's the average age, which means that a significant amount of the fleet is older than that. ?They break down.

??KORRY: The industry, itself, is partly to blame for the aging fleet. The Energy Commission did license small generators during the 1990s. And if bigger ones weren't built, it's largely because the energy producers, themselves, balked at building them. ?Chris Seiple, with RDI Consulting, says construction slowed everywhere; that is, until last year. ?Since 2000, he says, 90,000 new megawatts of energy have come online nationwide. ?That's more capacity in two years than was built during all of the 1990s. ?And now comes the Bush national energy policy, urging even greater production. ?According to Seiple, we could wind up with too much of a good thing.

??Mr. CHRIS SEIPLE (RDI Consulting): So we really expect that in--What?--50 markets we will go from a situation of having shortages to having too much supply.

??KORRY: In yesterday's speech, President Bush repeated the administration's claim that the nation will need at least 1,300 additional power plants over the next two decades. ?Seiple says an over supply would drive down prices, hurting the power wholesalers, but lower energy costs would suit most ratepayers just fine. Elaine Korry, NPR News, San Francisco.

??CHADWICK: It's 19 minutes past the hour.

LOAD-DATE: July 17, 2001

AP Online

????????????????July 18, 2001; Wednesday 8:56 AM, Eastern Time

SECTION: Domestic, non-Washington, general news item

LENGTH: 279 words

HEADLINE: ?Pacific Sues Calif. Over Contracts

BYLINE: DAVID KRAVETS

DATELINE: SAN FRANCISCO

BODY:

???California's largest utility has sued the state seeking reimbursement of millions of dollars in energy contracts seized by the governor.

??San Francisco-based Pacific Gas & Electric Co. "has received no compensation for the damage to its property," the company said in a lawsuit filed Tuesday in San Francisco Superior Court.

??PG&E filed for bankruptcy protection in April and is struggling to repay \$14.4 billion to thousands of creditors.

??Gov. Gray Davis seized the energy contracts on Jan. 31 to keep the California Power Exchange from liquidating them. The now-defunct exchange, which had been the state's middleman for buying and selling power, wanted the contracts to recoup hundreds of millions of dollars that PG&E owed it.

??The governor's office acknowledged that California owes PG&E for the contracts, an amount that Davis wants a judge to determine. At the time they were seized, the state estimated their value at \$160 million, while the power exchange priced them at \$347 million.

??"We seized the contracts to have reasonable priced power and expected that price to be set in a neutral forum," said Steve Maviglio, the governor's spokesman.

??Under the contracts, the state buys electricity at a set price rather than paying higher prices for power bought at the last minute. Therefore, the contracts' value changes with the volatile price of electricity.

??"We believe the state has benefited from the value of our contracts, and as a result we should be compensated," PG&E spokesman Ron Low said.

??Low declin

Message 1034 of 1299

### CAISO cuts refund estimate to \$6.1B from \$8.9B

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| File       | dasovich-j/all_documents/28881.                                            |

Calif ISO Cuts Power Refund Estimate To \$6.1B From \$8.9B ???? Updated: Wednesday, July 18, 2001 11:53 AM?ET  
???? ?

By Mark Golden

Of DOW JONES NEWSWIRES

NEW YORK (Dow Jones)--California's estimate of how much the state was overcharged by power suppliers dropped to \$6.1 billion from \$8.9 billion when an adjustment requested by a Federal Energy Regulatory Commission judge was taken into account, according to data submitted to FERC last week.

The California Independent System Operator's estimate fell when the grid operator excluded power bought by utilities not under its purview, and its estimate could fall again as it works in other recommendations made by the judge following the conclusion of 15 days of talks between power suppliers and the state over potential refunds last week.

Even as the ISO continues to recalculate its refund estimate, however, the state is sticking to the original \$8.9 billion figure, which has been called arbitrary by critics. The \$6.1 billion estimate merely establishes "a potential framework for settlement discussions," Eric Hildebrandt, the ISO's chief analyst on the matter, told the FERC.

FERC administrative law judge Curtis Wagner, who has dismissed the \$8.9 billion figure as baseless and criticized California's delegation for not negotiating in good faith, estimated in his report on the talks that refunds due may amount to about \$1 billion. Power suppliers offered just over \$700 million.

Wagner has recommended FERC hold a 60-day hearing to set the level of refunds and has told the ISO to revise its estimate of what California is owed.

The ISO's original \$8.9 billion figure included electricity sales to municipal utilities and alternative energy suppliers that didn't go through the ISO's wholesale markets, the California Power Exchange or the California Department of Water Resources. Without direct knowledge of the prices of those purchases, the ISO made estimates.

"We know the volume (of the bilateral deals)," Hildebrandt said. "The refund amount was based on extrapolation of observed prices in the spot market."

Resetting The Baseline

Wagner told the ISO to recalculate its figure using only sales through the ISO and CalPX markets - which were set up by the state's deregulation law for California's three investor-owned utilities to purchase power - in addition to sales to the California Department of Water Resources.

The DWR has been buying power for the utilities since PG&E Corp. (PCG, news, msgs) unit Pacific Gas & Electric Co. and Edison International (EIX, news, msgs) unit Southern California Edison ran out of cash in January. DWR has also been covering the needs of Semptra Energy (SRE, news, msgs) unit San Diego Gas & Electric Co.

In arriving at his new estimate, the ISO's Hildebrandt also recalculated fair prices - the baseline against which refundable amounts are determined - by retroactively applying the price controls FERC imposed June 19. Those controls set prices by the operating costs of the least efficient generator needed to meet demand each hour.

But last week, after Hildebrandt completed his \$6.1 billion estimate, Wagner recommended to FERC commissioners that the June 19 price control formula be modified when used retroactively to determine refunds.

Those modifications, if applied to the ISO's estimate, would cut refunds much further. For example, FERC's price limits are now based on a monthly average of natural gas prices covering supplies throughout the state. Wagner recommended using power producers' actual gas costs. Since gas is considerably more expensive in southern California, using actual prices would cut potential refunds sharply.

Also, Wagner said that refunds should be ordered on sales only as far back as Oct. 2, which would reduce the total amount claimed by California by about one-third, according to Hildebrandt's previous monthly breakdown.

ISO staff is again recalculating the refund estimate to reflect some of Wagner's recommendations, but the ISO will still include sales back to May 2000, said spokeswoman Stephanie McCorkle.

"The reason we're not going back just to Oct. 2 is that all of the overcharges going back to May should be repaid," McCorkle said. "We just maintain that position."

#### FERC Baseline Questioned

In addition, Hildebrandt argues in his recently released estimate that when fair prices are calculated retroactively using FERC's new formula, the price cap should be based on the least efficient generator the ISO knows to have been available, not the least efficient generator actually used to meet demand.

That's because the FERC's new price controls require all available generators be made available to the ISO at any time, Hildebrandt said.

Applying that rule would raise the ISO's revised estimate substantially: to \$7.7 billion from \$6.1 billion.

One of the ways generators managed to manipulate prices higher, Hildebrandt said, was to not offer cheaper power from more efficient units. Considering only the least efficient generator actually used would make permanent the rewards for such withholding, he said.

"The judge is in error to suggest that the actual (least-efficient) unit used would have been called on if the must-offer requirement were in effect," Hildebrandt said in an interview.

In arriving at his estimate, Hildebrandt determined the difference between actual sales prices and what prices would have been for every seller and for every hour since May 1, 2000, had price controls been in effect. The ISO released only the total potential refund, not the company-specific shares.

Hildebrandt took issue with generating companies that have complained his numbers aren't justified.

"These are based on very tangible records," he said. "The idea that it's a black box is misleading."

-By Mark Golden, Dow Jones Newswires; 201-938-4604; mark.golden@dowjones.com

(Jason Leopold in Los Angeles contributed to this article.)

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#### Fwd: WRAP: Calif Turns To Lawmakers As Power Bond Deal Stalls

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| File       | dasovich-j/all_documents/11702.                                                                      |

Content-Transfer-Encoding: quoted-printable Date: Thu, 26 Apr 2001 17:24:51 -0500 From: "Tracey Bradley" <tbradley@bracepatt.com> To: "Justin Long" <jlong@bracepatt.com>, "Paul Fox" <pfox@bracepatt.com> Cc: "Ronald Carroll" <rcarroll@bracepatt.com> Subject: WRAP: Calif Turns To Lawmakers As Power Bond Deal Stalls Mime-Version: 1.0 Content-Type: text/plain; charset="us-ascii" Content-Disposition: inline

WRAP: Calif Turns To Lawmakers As Power Bond Deal Stalls

Updated: Thursday, April 26, 2001 03:35 PM ET

By Jason Leopold

Of DOW JONES NEWSWIRES

LOS ANGELES (Dow Jones)--Frustrated by delays in securing regulatory decisions needed to support a massive issue of bonds to finance power purchases, California Treasurer Phil Angelides, Gov. Gray Davis and several lawmakers are working on an end run through the state Legislature.

The group is putting together legislation, aimed to be introduced in the state Assembly as early as Friday, that will directly authorize the state to sell \$10 billion in revenue bonds - in the process clearing the way for the state to close on \$4.1 billion in interim financing.

But there are pitfalls along that path as well, raising new questions about when the bonds will be sold. John Hallacy, managing director for municipal bond research at Merrill Lynch & Associates, said the bond market is still expecting the sale, but he's concerned that details on marketing of the bonds haven't been released.

Hallacy said if the bond sale is delayed it will be a problem for the state.

"Where will they get the money to buy power over the summer?" Hallacy said.

The state has been working since February to put together a bond deal authorized by previous legislation, but the effort has been hung up in part by the California Public Utilities Commission's difficulty carving revenue out of electricity rates to service the debt. The commission's standing proposal for calculating the so-called California Procurement Adjustment - the amount of electricity rate revenue available to the state - has been appealed by the state's struggling utilities, which argue the plan would leave them unable to meet their own obligations.

"The utilities effectively blocked the bond sale by appealing the PUC's action on how they calculated the CPA," an aide to Angelides said. "So now we're saying, 'Let's sell the bonds by revising the law and go to the Legislature to get what we need.'"

Legislature No Slam Dunk

Whether the legislative route proves more fruitful remains to be seen. As reported, Assembly Republicans said Wednesday that they wouldn't vote for the measure unless the governor releases details of the state's long-term power contracts, information the governor has thus far refused to divulge.

"Republicans believe it is fiscally irresponsible for the Legislature to ask ratepayers to shoulder the extraordinary weight of a \$10 billion bond before the governor finally discloses what the ratepayers are getting in return," Assembly Republican leader Dave Cox, R-Fair Oaks, said in a press release.

The treasurer needs Republican support if the bill is to win the two-thirds majority it needs to be implemented immediately.

California has spent about \$5 billion since mid-January buying power in place of the state's cash-strapped utilities, a total that is growing by about \$70 million a day. The state needs to move ahead with the bridge financing and bond deal to repay the state's general fund for power already purchased and to stretch out future power costs that can't be covered in full by electricity rates.

The situation is growing more urgent. Citing the "mounting and uncertain" costs of California's power crisis, ratings agency Standard & Poor's lowered the rating on California's general obligation bonds to A+ from AA. Further delays of the bond issue could put the state in a bind, S&P said.

"If the state cannot sell its proposed revenue bond as planned in a timely manner, the potential effect on the state's general fund could be severe without large further retail rate hikes beyond the sizable percentage increases recently implemented," S&P said.

Angelides has said that the state's budget surplus will be depleted if legislation isn't passed allowing his office to sell the bonds. In addition, the clock on the state's bridge financing deal is ticking. Commitments from bankers to fund the loan are due May 8, and the banks have said they won't sign up if the bond issue that will repay the bridge loan is in doubt, Angelides has said.

Keely Seen As Backer

Legislation needs to be introduced and passed and in "days" establishing the bond sale at \$10 billion, Angelides said Tuesday. His office said the treasurer has been in "long meetings" with legislators on the issue, working with the governor's office to drum up votes.

Assemblyman Fred Keeley, D-Boulder Creek, will likely carry the bill, AB8X, an aide in his office said Wednesday. The governor's staff is working with Keeley on draft language, said Davis spokesman Roger Salazar. Keeley didn't immediately return calls for comment.

Keeley is the author of AB1X, which authorized the state to purchase power on behalf of its cash-strapped utilities and issue bonds to pay for power going forward. The authorization for the bonds, however, depends on a complicated calculation of the CPA, which determines the funds available for debt service and, ultimately, the size of the issue.

PG&E Corp. (PCG, news, msgs) unit Pacific Gas & Electric, whose appeal is pending before the PUC, said the Public Utilities Commission's calculations on the CPA "grossly overstate" the revenue that will be left over after the utility covers its costs. The utility has since filed for bankruptcy protection, raising further doubt about the state's ability to tap the utility's revenue for its own purposes.

The PUC is also waiting for the California Department of Water Resources, which is handling the state's power purchases, to release details of its projected power costs, the amount of power needed and how much money the agency expects to spend in the spot market for power. Again, the state reluctant to release that information.

The state has set a rough target of June for the bond sale to go forward, although some have said it could be delayed until July or August. Hallacy, of Merrill Lynch, said the bond market "could deal" if the sale was conducted after June 30, because it will give it more time to prepare for the sale.

- By Jason Leopold, Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

(Jessica Berthold contributed to this article.)

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*Message 1036 of 1299*

### California Energy Summit -- March 30

|                   |                                                       |
|-------------------|-------------------------------------------------------|
| <b>Sender</b>     | david.parquet@enron.com                               |
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I am not interested. I sent to Mark Palmer, who suggested one of you guys.= =20 Happy Birthday!

----- Forwarded by David Parquet/SF/ECT on 03/22/2001 04:32 PM -----

=09"Neudeck,Randall D" <rneudeck@mwd.dst.ca.us> =0903/22/2001 09:10 AM =09=09=20 =09=09 To:  
 ""david.parquet@enron.com"" <david.parquet@enron.com>.=20 ""swehn@enron.com"" <swehn@enron.com> =09=09 cc:  
 "Cole Frates (E-mail)" <cfrates@azurix.com> =09=09 Subject: California Energy Summit -- March 30

Cole Frates asked me to drop you a note regarding the upcoming California= =20 Energy Summit on March 30.??We previously sent a letter to Jeff?Skillings= =20 inviting Enron to the Summit, hosted by the Valley Industry and Commerce= =20 Association (VICA).??Confirmed attendance includes CEOs and California=20 legislators (see list below).? News media will be covering the event.? We= =20 expect approximately 100 attendees.? We believe it is important that Enron= 's=20 views are expressed "by Enron" not by one of your colleagues.? Please let = me=20 know if you can participate.? The Summit lasts from 7:45 a.m. to 1:30 p.m.= =20 You would be on Panel #2 that lasts from 9:45 to 10:30 a.m.? The Energy=20 Summit will be held at the Sheraton Universal Hotel, 333 Universal Terrace= =20 Parkway, Universal City.? I look forward to hearing from you.???? -- Randa= ll=20 Neudeck, 213-217-7537, VICA Board of Directors ? Overall Moderator? -- KCBS Channel 2 News Anchor Paul Dandridge?

Panel #2 ?-- Los Angeles Department of Water & Power =01) S. David Freeman, General= =20 Manager? ?-- Reliant Energy =01) Curtis Kebler, Director of Asset Commercialization= ? ?-- Southern California Edison =01) Stephen E. Frank,



Chairman, President = & CEO ?-- The Gas Company =01) Lee Stewart, President, Energy Transportation Ser= vice?  
 ?--?Trans-Elect, Inc. =01) Robert Mitchell, Executive Vice President=20 Panel?#3? ?--?Senator Richard Alarc?n, Majority  
 Whip, Chair, Labor & Industrial=20 Relations Committee ?--?Senator Debra Bowen, Chair, Committee on Energy, Utilities  
 &=20 Communications ?--?Assemblymember John Campbell, Assistant Republican Leader for Policy= =20 Development  
 ?--?Assemblymember Keith S. Richman, Minority Whip ?--?Assemblymember Fred Keeley, Chair, Joint Legislative Audit  
 Committee= =20 (tentative) ?--?Assemblymember Paul Koretz, Chair, Committee on Labor and Employment ?--  
 Los?Angeles City Council President Pro Tem, Ruth Galanter, and Chair,= =20 Commerce, Energy & Natural Resources  
 Committee

Keynote Speaker =01) Speaker of the Assembly Robert Hertzberg=20

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### Enron Mentions

|            |                                |
|------------|--------------------------------|
| Sender     | m..schmidt@enron.com           |
| Recipients | []                             |
| File       | dasovich-j/deleted_items/1871. |

Enron May Issue More Stock to Cover Obligations The Wall Street Journal, 10/24/01 Enron Tries To Dismiss Finance  
 Doubts The New York Times, 10/24/01 Surge in Optimism Prompts Straddles In Enron and Cisco The Wall Street Journal,  
 10/24/01 Lay tries to assure Enron investors Houston Chronicle, 10/24/01 OBSERVER - Busy signal. Financial Times  
 (U.K. edition), 10/24/01 USA: Enron mulls ways to cover portfolio shortfalls-WSJ. Reuters English News Service, 10/24/01  
 Enron May Issue More Stock to Cover Obligations Dow Jones Business News, 10/24/01 IN BRIEF / ENERGY Enron Asks  
 Citigroup for \$750-Million Loan Los Angeles Times, 10/24/01 United States The Globe and Mail, 10/24/01 Everest Re, St.  
 Paul and Providian Drop, but Markets Stay Resilient The Wall Street Journal, 10/24/01 U.S. Energy Giant Weighs a Move  
 To Pull Out of India The Asian Wall Street Journal, 10/24/01 UK: LNG delays could spawn shipping crisis - analysts.  
 Reuters English News Service, 10/24/01 INDIA PRESS:British Gas Seeks ONGC Deal For Field Control Dow Jones  
 International News, 10/24/01 BG Offers ONGC Brazilian Assets to Get Managing Rights in India Bloomberg, 10/24/01

House stimulus bill would give billions to huge companies; Senate Democrats present alternative Associated Press  
 Newswires, 10/23/01 Wechsler Harwood Halebian & Feffer LLP Announces Class Periods PR Newswire, 10/23/01 Stock  
 Analysis/Call In CNNfn: Markets Impact, 10/23/01

Economy Enron May Issue More Stock to Cover Obligations By Rebecca Smith and John R. Emshwiller Staff Reporters of  
 The Wall Street Journal

10/24/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Enron Corp. might have to come up with several hundred million dollars or more during the next 20 months to cover  
 potential shortfalls in investment vehicles it created. Covering such shortfalls could involve issuing additional Enron  
 shares, diluting the position of current shareholders. However, Enron Treasurer Ben Glisan said in an interview yesterday  
 that the company believes it can repay about \$3.3 billion in notes that were sold by those investment vehicles without  
 having to resort to issuing more stock. The notes were sold to investors during recent years by several entities -- known as  
 the Marlin Water Trust II, the Marlin Water Capital Corp. II, the Osprey Trust and Osprey I, Inc. The notes are coming due  
 during the next 20 months. Mr. Glisan said assets from the entities could be sold to pay off some of the notes. Also, Enron  
 is selling other assets. Proceeds from those transactions also could go toward repaying the notes, which ultimately are  
 guaranteed by Enron. He said it appears that asset sales will raise at least \$2.2 billion by the end of next year. This  
 amount includes cash proceeds of \$1.55 billion from the previously announced sale of Enron's Portland General Electric  
 utility unit. Enron hopes to complete that sale by the end of 2002. "There are a number of other assets we believe will raise  
 sufficient proceeds" to repay the notes, Mr. Glisan said. "But if we are wrong, we will issue equity." Mr. Glisan said a  
 worst-case scenario would involve issuing as much as \$1 billion in stock. Enron said it has about 850 million shares



outstanding. Making up any shortfall with equity has become more expensive because of the drop in Enron's share price. In 4 p.m. New York Stock Exchange composite trading, Enron shares were down 86 cents to \$19.79. The stock was once again one of the most actively traded with about 27 million shares changing hands. Early this year, Enron stock was more than \$80 a share. During the past week, shares of the energy-trading giant have dropped more than 40%. Early last week, Enron reported a \$618 million third-quarter loss, resulting from \$1.01 billion in write-offs. The company also disclosed a \$1.2 billion reduction in shareholder equity for the quarter as a result of terminating certain transactions related to a partnership that for a time was headed by Enron Chief Financial Officer Andrew S. Fastow. In July, Mr. Fastow ended his connection to the partnership in the face of growing concerns by analysts and major investors. On Monday, Enron disclosed that the Securities and Exchange Commission was looking into the transactions related to Mr. Fastow. Enron has said its dealings with the partnership were proper. The turmoil of the past several days prompted Enron to schedule a conference call yesterday morning with Wall Street analysts and others in an effort to reassure investors. Enron Chairman and Chief Executive Kenneth Lay said while "we are extremely disappointed with our stock price . . . our businesses are performing very well." Mr. Lay and other executives said Enron has adequate liquidity to meet its needs. Mr. Fastow, the chief financial officer, took part in the conference call. But neither he nor Mr. Lay would answer any questions concerning the Fastow-related partnership, which was known as LJM2 Co-Investment LP. Mr. Lay said the SEC was in the midst of an inquiry concerning that partnership arrangement, which has raised conflict-of-interest questions among analysts and others. Mr. Lay cited shareholder suits filed recently as another reason not to discuss the partnership questions. Mr. Lay said he was "very concerned about the way Andy's character has been loosely tossed about." He added "we continue to have the highest faith and confidence in Andy." Internal LJM2 documents indicate that Mr. Fastow and perhaps a handful of fellow Enron officials made millions of dollars in management fees and capital increases from running the partnership. Billions of dollars of Enron assets and stock were involved in LJM2-related transactions, according to Enron SEC filings. During the conference call, analysts -- even some who have been longtime Enron fans -- challenged executives about the Fastow partnership arrangement and the company's often opaque financial reports. "There's the appearance you are hiding something," said Goldman Sachs analyst David Fleischer. "You need to do everything in your power to demonstrate to investors that your dealings are above board." Mr. Lay responded, "We're trying to be as transparent as we can."

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Business/Financial Desk; Section C Enron Tries To Dismiss Finance Doubts By FLOYD NORRIS

10/24/2001 The New York Times Page 1, Column 5 c. 2001 New York Times Company

Enron has ample access to cash, the company's chief executive said yesterday as he assured investors that there was no need for additional write-offs stemming from unusual financing activities. In a conference call with investors that was hastily scheduled after Enron's stock plunged on Monday, the chief executive, Kenneth W. Lay, strongly defended the company's chief financial officer and said there was no conflict of interest involved in transactions that the Securities and Exchange Commission was looking into. But he refused to go into detail on the transaction that Enron made with partnerships run by Andrew S. Fastow, the chief financial officer. In addition, Mr. Fastow, while declaring that Enron "expects to continue to have sufficient liquidity to meet normal obligations," declined to answer any questions about it. The conference call, which began just as trading opened on the New York Stock Exchange, at first seemed to be reassuring investors. Within minutes of the beginning of the call, the share price rallied to \$23.25. But it soon began falling, and ended the day down 86 cents, at \$19.79. The day's low of \$19.62 was the lowest since Jan. 12, 1998, and was down 78 percent from the high set by the stock in the summer of 2000. Until recently, most investors focused on the company's reported operating earnings, which showed good results as it became a leading player in ener

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## Re: Davis' solutions may be in trouble: New plants built in

|            |                                                                                                        |
|------------|--------------------------------------------------------------------------------------------------------|
| Sender     | steve.hall@enron.com                                                                                   |
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| File       | dasovich-j/all_documents/10647.                                                                        |

California is just figuring this out? As any second-year law student could tell you, the problem with conditioning fast-track permitting on selling electricity to California is that it violates the holding in the 1994 U.S. Supreme Court case *Dolan v. City of Tigard* (city could not require hardware store to "donate" land for a bike-path as a condition to granting a permit to expand the hardware's parking lot).

Steve

Alan Comnes 04/04/2001 10:52 AM To: Rcarroll@bracepatt.com, Tim Belden/HOU/ECT@ECT, Steve C Hall/PDX/ECT@EC, Sean Crandall/PDX/ECT@ECT, Susan J Mara/NA/Enron@ENRON, Jeff Dasovich/NA/Enron@Enron, Steve Walton/HOU/ECT@ECT, Christi Nicolay/HOU/ECT@ECT cc:

Subject: Davis' solutions may be in trouble: New plants built in California don't have to sell electricity here, state lawyers conclude

At least one state agency says you cannot cut exports. We should probably cite this in our Reliant complaints response.

Davis' solutions may be in trouble: New plants built in California don't have to sell electricity here, state lawyers conclude By Carrie Peyton Bee Staff Writer (Published April 4, 2001) California can't require builders of new power plants to sell electricity here, even as a trade-off for super-fast environmental review, lawyers at state Energy Commission have concluded.

Their position, reached despite Gov. Gray Davis' vow that new megawatts "will stay in California," emerged as part of a fast-track approval for expanding south state power plant.

It comes as the agency that oversees plant licensing is whittling away at the presumption that emergency "peaking" plants installed this summer will be temporary. Some of the peaking plants - to be used only at times of highest energy demand - are now proposed to stay in place 30 to 40 years.

Both issues have bubbled up quietly during California Energy Commission reviews, sometimes addressed only indirectly in staff reports.

"This is a major public policy issue for all of California. If we're building these plants on an expedited basis and we're not getting any electricity out of it, why are we doing it?" asked William Workman, Huntington Beach assistant city administrator.

The answer, according to the Governor's Office and the Energy Commission, is twofold. First, the plants are needed no matter what, because the entire West is power poor. And second, it looks like a California sales clause would violate federal interstate commerce law.

"We're not supposed to take protectionist action against our fellow states," said Bill Chamberlain, chief counsel to the Energy Commission. He said numerous Supreme Court decisions have held that a state can't use its regulatory powers - such as permitting processes - to give its residents an economic advantage.

Although there is no guarantee, the Governor's Office, power plant builders and the state Environmental Protection Agency say most of the plants being rushed to life will probably end up selling to the state Department of Water Resources.

"The people who are building these power plants know very well that we expect it to be used in California, and we're confident that it will be," Davis spokesman Roger Salazar said.

Cal-EPA Secretary Winston Hickox said the "preponderance" of new peaking plants will devote their electricity to California.

"We will do everything that we can to encourage that the energy produced as a result of our bending over backward to be accommodating is sold to California. We're not there yet, but I believe we'll get there," Hickox said.

He also said the three-week reviews of peaking plants have cut no corners in terms of fundamental environmental standards.

Two of those plants scheduled for Energy Commission votes today were praised by environmentalists as having relatively low emissions of smog-forming compounds, but they still were concerned by the 21-day review.

"If you're having a quick review, a plant shouldn't be allowed to continue for more than the summer," said Gail Ruderman Feuer of the Natural Resource Defense Counsel.

The first peaking plant approved by the commission, the United Golden Gate Project in San Mateo County, was given permission to run for three years.

But the next two, in San Diego and Palm Springs, are being recommended for indefinite approval, and their builder, InterGen North America, said it intends to keep them running for 30 to 40 years.

"There's no way affected communities can know what's going on with the processes that are so short," said Sandra Spelliscy, general counsel of the Planning and Conservation League. "I don't want to say negative things about that particular peaker (but) I think we're going to wake up in six to 12 months and realize we did a lot of stuff that we regret."

In Huntington Beach, city officials say they are largely pleased with the fast-track process that protected most of their major concerns over a proposal by AES to quickly revive two mothballed steam turbines at its seaside plant.

But a slower review process would have offered even more, Workman said. It would have delayed the plant for results of studies on sea life injured or killed by cooling water intakes and potential increases in ocean pollution.

He worries that his city's residents gave up those protections without any certainty that California will benefit from the extra 450 megawatts AES will be able to crank out.

Huntington Beach sought a California buyer clause in the AES permit, which is scheduled for an Energy Commission vote next week, but it was rejected in a cryptic report that only notes the commission staff has taken no stand on the issue.

AES would have opposed such a provision, because it believes the Energy Commission has no authority to tell it where to sell, said Aaron Thomas, a manager at AES Pacific.

"In our case, there is no need to have a shotgun to our head," he said. AES is negotiating to sell all 450 megawatts to the state.

Meanwhile, the governor acknowledged what an Energy Commission report outlined last week - that his goal of 5,000 more megawatts online by July will not be met.

"We have a real challenge in the early part of the summer," Davis said Tuesday. "We do have more than 4,000 megawatts coming online by late summer. Usually, the challenge is in August and September. This year, the challenge may well be in May and June."

The Bee's Carrie Peyton can be reached at (916) 321-1086, cpeyton@sacbee.com. Emily Bazar of The Bee Capitol Bureau contributed to this report.

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Message 1039 of 1299

### Dow Jones Story w/ Overcharge Amounts

|            |                                                      |
|------------|------------------------------------------------------|
| Sender     | karen.denne@enron.com                                |
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| File       | dasovich-j/all_documents/28516.                      |

Much Calif Power Price Gouging Beyond FERC's Reach -ISO By Jason Leopold Of DOW JONES NEWSWIRES

06/25/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

LOS ANGELES -(Dow Jones)- Federal energy regulators only have the authority to order refunds for about a third of the \$9 billion California Gov. Gray Davis claims energy companies have overcharged the state in the 12 months to May 2001, documents from the state's wholesale market operator show. Of the total, \$2.9 billion came from the May-September period the Federal Energy Regulatory Commission has said it can't act on, and \$2.8 billion from the October-May period is attributable to municipal utilities over which FERC lacks jurisdiction, according to documents from the California Independent System Operator. That leaves just \$3.3 billion in alleged overcharges that FERC could potentially order refunded - far less than the \$9 billion Davis seeks. Talks between generators and state officials to settle billions of dollars in unpaid bills and issues of overcharging began Monday. Curtis Wagner, the FERC administrative law judge presiding over the talks, has said California will likely see refunds from generators, but far less than the \$9 billion Davis expects. Davis said Sunday California is going to Washington, D.C., "with one goal, and that is to bring back \$9 billion." Nearly half that amount is attributable to municipal utilities, the ISO documents show. The ISO said the Los Angeles Department of Water and Power, for example, overcharged California \$75 million between May and October. David Freeman, the governor's chief energy adviser and the former general manager of the LADWP, said the agency didn't overcharge the state, but conceded it profited by selling spare power to the ISO. Davis adviser Nancy McFadden said the state needs FERC to lay the groundwork for the state to seek refunds from public utilities by ordering refunds from corporate energy suppliers. But during a conference call Sunday with reporters, McFadden and Davis press secretary Steve Maviglio couldn't explain how the governor would go about getting refunds from companies whose wholesale power prices aren't regulated by FERC. Davis testified before the U.S. Congress last week that generators overcharged the state \$9 billion and that FERC should order the refunds. State Sen. Jim Brulte, R-Rancho Cucamonga, has asked for an investigation into Davis's testimony, saying the figures were based on "shaky calculations." To come up with its conclusions, the ISO compared hourly market prices received by sellers to an estimate of market prices that could have been expected under competitive market conditions. The ISO established a benchmark for what it determined was competitive - at times about \$125 per megawatt-hour to \$200/MWh, a fraction of actual prices in the market - based on the cost of natural gas and compliance with air-quality rules. The ISO, however, typically used the price of gas at California's northern border, according to the documents. Generators paid a higher price for the fuel in Southern California, raising the cost of making electricity. The ISO also used reports of earnings by the state's "Big Five" power suppliers during 2000 - earnings that for some quadrupled - to draw the conclusion that generators overcharged the state, according to the documents. The ISO attributed high power prices in part to the state's three largest utilities' failure to buy the power they needed in advance, leaving the grid operator to pick up the shortfall at the last minute, according to the documents. The ISO alleges the following companies overcharged the state by the listed amounts between May 2000 and February: American Electric Power Service Corp. (AEP): \$22.9 million Arizona Public Service Co. (PNW): \$24.6 million Aquila Power Corp. (ILA): \$28 million Avista Energy Inc. (AVA): \$48 million Automated Power Exchange: \$16 million British Columbia Power Exchange Corp: \$439 million Calpine Corp. (CPN): \$236 million Constellation Power Source Inc. (CEG): \$7.8 million Cargill-Alliant LLC: \$1.4 million Citizens Power Sales: \$557,000 Coral Power, LLC, a unit of Shell Oil (RD): \$27 million Duke Energy Corp. (DUK): \$804 million Dynegy Inc. (DYN): \$530 million Enron Corp. (ENE): \$39 million El Paso Corp. (EPG): \$29 million El Paso Power Electric Co. (EE): \$24,475 Hafslund Energy Trading LLC: \$712,528 Idaho Power (IDA): \$28 million Koch Energy Trading: \$2.5 million Los Angeles Department of Water and Power: \$75 million MDSC: \$24 million Mico Inc.: \$1.6 million Morgan Stanley Capital Group (MWD): \$124,644 NewEnergy Inc.: \$1.5 million Nevada Power Co. (SRP): \$9.1 million PacifiCorp: \$65 million PECO Energy Co. (EXC): \$4.2 million Portland General Electric (ENE): \$44 million Public Service Co. of Colorado: \$14.1 million Public Service Co. of New Mexico (PNM): \$15.5 million Puget Sound Energy: \$24 million Reliant Energy Inc. (REI) \$750 million Mirant Corp. (MIR), formerly Southern Co., \$753 million \*Semptra Energy Trading Corp. (SRE): \$82 million (this number has been wiped out by the ISO) Sierra Pacific Power Co. (SRP): \$23 million TEK: \$11 million Tuscon Electric Power: \$1.1 million UPA: \$131,715 Winston and Strawn: \$11,917 Williams Cos. (WMB) \$860 million

Total FERC jurisdictional sellers: \$4.7 billion \*Total without SETC/SDG&E: \$4.6 billion

Total FERC and Non-FERC sellers: \$6.7 billion \*Total without SETC/SDG&E: \$6.6 billion

Total March-May overcharges: \$2.3 billion

-By Jason Leopold, Dow Jones Newswires; 323-658-3874; jason.leopold@dowjones.com

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Message 1040 of 1299

### Special: Calif ISO Inflates Outage Figures

|            |                                                                                  |
|------------|----------------------------------------------------------------------------------|
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| Recipients | ['susan.mara@enron.com', 'julie.sarnowski@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/10671.                                                  |

Julie, could you post on the outage tracking Web page?

GAC POWER POINTS Special: Calif ISO Inflates Outage Figures By Mark Golden

04/04/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

A Dow Jones Newswires Column

NEW YORK -(Dow Jones)- The California Independent System Operator on Monday published on its Web site its list of off-line generators, as it has done every day since Jan. 25, as a way of showing why it is having such a hard time keeping the lights on.

Monday's bottom line - 15,501 megawatts of generating capacity out of service - was stunning since electricity usage within the ISO's area peaked that day at 28,632 MW.

But on Monday, as it has every day since Jan. 25, the ISO padded the list. It included power that isn't in any way considered resources of the ISO; qualifying facilities that the ISO counts twice; and generators that returned to service hours before the list was published.

When those are eliminated, Monday's listed outage total falls to 8,905 MW from 15,501.

The ISO list, for example, added 1,221 MW to the total of its "California Generation Curtailments" because the 1,221-MW Palo Verde nuclear unit 1 was taken off line over the weekend for scheduled refueling. But only one of the three investor-owned utilities that the ISO represents, Edison International's (EIX) Southern California Edison, owns any of the electricity from the Palo Verde plant, which is in Arizona. Edison's take from the generator is just 201 MW.

The same could be said for Four Corners unit 4, which contributes 355 MW to the ISO when its running, but 740 MW to Monday's ISO outage list.

The ISO list also includes dozens of generators owned by California municipal utilities that aren't part of the ISO's system. The ISO is responsible for managing the combined electricity load of Southern California Edison and California's other two investor-owned utilities: PG&E Corp.'s (PCG) Pacific Gas & Electric Co. and Sempra Energy's (SRE) San Diego Gas & Electric Co. Power plants owned by the three utilities are considered to be ISO resources, as are the big power plants that the utilities sold to merchant power companies like Dynegy (DYN) and Reliant (REI), and smaller, alternative power plants - or "qualifying facilities" - that provide juice to utilities under long-term contracts.

On Monday, the ISO included 2,726 MW of off-line generation that isn't considered by anybody to be ISO resources in the first place.

The ISO agrees it shouldn't be counting the entire output from generators that the utilities only partially own.

"It's a flaw in the calculation by the software. We're trying to get that fixed, and it should be within a week or two," said Tracy Bibb, the ISO's managing director of engineering and maintenance.

As for counting generators owned by municipal utilities in Pasadena and Sacramento that the ISO doesn't serve, Bibb said the ISO has no choice but to include them.

"The governor issued an emergency order that the ISO shall publish a list of all unit outages in California. We contacted all the utilities and said that, even though you're not part of the ISO, you are required to report outages to us, and we're required to post them," Bibb said.

The inflated daily outage list hurts the reputation of the state's merchant power companies. One of the primary uses of the list is to imply that "out-of-state generators," as they are often called, are keeping massive amounts of power off line to maintain false scarcity and pump up the wholesale power market.

"California once again was threatened with blackouts Friday, which put Reliant Energy on the spot when it announced it had taken one of its units out of service at its second-largest power plant in the state," the Houston Chronicle reported last week. "California critics have called power producers pirates, saying practices like taking plants out of service at key times push up prices."

The ISO includes every little difference between maximum output and actual output, however small or temporary. Of the 73 large in-state generating units owned by merchant power companies Reliant, Dynegy, AES Corp. (AES), Duke Energy (DUK) and Mirant (MIR), 51 units were on the ISO's list. Many are off line for scheduled spring maintenance, but most are on the list because at some point in the day they weren't generating at full capacity. Duke's 171-MW Morro bay unit 1, for example, appeared on Monday's list because at some point in the day it was generating just 155 MW.

"We hardly ever bring that 44-year-old unit to full load. It will stay on longer that way. The 171-MW maximum is running it flat out under perfect weather conditions," said Duke spokesman Tom Williams.

And many units are run at partial capacity due to annual limits on emissions of nitrogen oxide, which became far more strict this year, Williams and others said.

The ISO doesn't want to hear the excuses.

"A lot of them have been certified to a certain maximum capacity. Any derate at all off of that does get picked up. The unit is supposed to be good for that maximum," Bibb said.

As for NOx limits, Bibb agreed the limits are being reached because the units are running more than ever before. But he said there are ways around the limits, such as obtaining variances.

AES had to shut down several plants when it exhausted its emissions last year, and this spring and fall AES is installing NOx reduction equipment at eight of its big generators. But that raises another problem the merchant power companies have with the way the ISO breaks down its outages. Of the 15,501 MW shortfall listed Monday, 8,035 is listed as "unplanned." The merchant companies said most of these "unplanned" outages were coordinated with, and approved by, the ISO months ago.

"The ISO has coordinated the schedule for all 17 units in the L.A. basin that are going to be off line for SCR (selective catalytic reduction) installations this year. The schedule was finalized in early March," said AES spokesman Aaron Thomas.

Nevertheless, three AES units out for SCR installation contributed 672 MW to Monday's unplanned outage total.

It's the unplanned total that is often used to imply that merchant power companies are creating a false scarcity in order to drive up prices.

Weirdly, if a unit is generating less than its maximum by different amounts at different times of the day, the two curtailments are added together for the ISO list, though Bibb says this will also be fixed in the new software program.

Also on Monday, the ISO listed 1,580 MW off line at Southern California Edison's Mohave plant, even though the generators involved had returned to full operation hours before the ISO put its list out at 11:45 a.m. PDT. The return of any capacity before the list is published is ignored, but if a unit trips off line just before the list is published, that gets included, the ISO's Bibb said.

The grid operator double-dips when it cites the state's smaller qualifying facilities. The ISO's chief operator and spokesman have said repeatedly in press conferences, interviews and press releases that the qualifying facilities that have been turned off due to lack of payment from utilities are separate from the ISO outage list. And daily newspaper reports give both the outage total and the qualifying facility total separately.



But the outage list includes QFs every day. On Monday, for example, 1,726 MW of QF generation contributed to the outage total.

In the meantime, it's the list's inflated total that grabs attention.

"We don't get that many questions on it from the medi

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Message 1041 of 1299

#### Additional FERC Actions Likely On MONDAY

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | alan.comnes@enron.com                                                                                              |
| Recipients | ['ban.sharma@enron.com', 'robert.badeer@enron.com', 'tom.briggs@enron.com', 'ray.alvarez@enron.com', 'tom.alon...] |
| File       | dasovich-j/all_documents/27755.                                                                                    |

FERC has set a meeting for Monday 18 June 10 am PDT wherein it has noticed its California and WSCC-wide dockets. The meeting has been timed in advance of congressional hearings (by Senator Joseph Lieberman) that were set for later in the week.

Expect FERC to respond to intense political pressure to expand its current price mitigation measures, possibly to a WSCC-wide scope or to all hours, or both.

As far as I know Hebert is still President of the FERC, which would speak to less intervention rather than more.

We will forward information as we learn it.

Alan Comnes

US FERC To Meet June 18 On Western US Electricity Prices

06/11/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

WASHINGTON -(Dow Jones)- The U.S. Federal Energy Regulatory Commission has scheduled a special meeting June 18 to address pending matters involving electricity markets in California and neighboring Western states.

The commission's meeting notice provides no details, except to list for discussion four cases involving price mitigation in, and the structure of, volatile power markets in California and 10 other Western states.

The meeting comes as members of Congress are placing enormous political pressure on the commission to take more drastic action to contain runaway electricity prices in the region.

Last week, House Minority Leader Dick Gephardt, D-Mo., joined 21 Western-state congressional lawmakers to request an opportunity to appear before the commission to argue their case for cost-based price controls in the region's electricity markets.

"At least twice, FERC has determined that the Western electricity market is 'dysfunctional' and that prices are 'unjust and unreasonable' under the Federal Power Act. Despite these findings, and contrary to the law, the commission has failed to bring these rates to just and reasonable levels," the lawmakers said in a letter to FERC Chairman Curt Hebert.

By Bryan Lee, Dow Jones Newswires, 202-862-6647, bryan.lee@dowjones.com

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Message 1042 of 1299

**Possible rotating blackouts beginning at 2:30 today**

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | jmunoz@mcnallytemple.com                                                   |
| Recipients | ['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com'] |
| File       | dasovich-j/all_documents/13274.                                            |

Possible Rotating Blackouts Beginning at 2:30 P.m. Today; Outages Required Due to Supply Limitations

FOLSOM, Calif.--(BUSINESS WIRE)--May 31, 2001--The California Independent System Operator (California ISO) is notifying the public of the possibility of rotating customer outages beginning around 2:30 p.m. today, Thursday, May 31, 2001.

Conservation efforts will help lessen the severity and duration of possible outages. All Californians are urged to rededicate their efforts to save as much energy as possible during this emergency situation. Please monitor the ISO website at [www.caiso.com](http://www.caiso.com) under System Conditions for updates.

Specific information about the location and timing of the outages must be obtained from the local utilities. California ISO anticipates reaching a peak load of 37,882 megawatts at approximately 4:00 p.m. this evening. Stage One and Stage Two Emergencies remain in effect all day, until 12 midnight.

???????ISO TELECONFERENCE CALL

???????Time: ??????????????????3:00 p.m. ????????Phone: ??????????????????1-800-374-1387 ????????Passcode: ??????????????????ISO News

Stage Three of the state's Electrical Emergency Plan (EEP) is required when operating reserves fall below one-and-a-half percent. The California ISO's EEP is part of the state's enhanced reliability standards created by landmark legislation Assembly Bill 1890, which restructured California's electricity industry.

California ISO is charged with managing the flow of electricity along the long-distance, high-voltage power lines that make up the bulk of California's transmission system. The not-for-profit public-benefit corporation assumed the responsibility in March, 1998, when California opened its energy markets to competition and the state's investor-owned utilities turned their private transmission power lines over to the California ISO to manage. The mission of the California ISO is to safeguard the reliable delivery of electricity, facilitate markets and ensure equal access to a 12,500 circuit mile "electron highway."

Other helpful contacts:

Pacific Gas and Electric, 415/973-5930 Southern California Edison, 626/302-2255 San Diego Gas and Electric, 877/866-2066

???CONTACT: California ISO, Folsom ????????????Stephanie McCorkle, 888/516-NEWS ????????????Director of Communications

Message 1043 of 1299

**Enron Mentions - 7/05/01**

|            |                                 |
|------------|---------------------------------|
| Sender     | sharonda.stephens@enron.com     |
| Recipients | ['ann.schmidt@enron.com']       |
| File       | dasovich-j/all_documents/28290. |

USA: New Power adds 20 percent to customer base with two deals. Reuters English News Service, 07/05/01 GERMANY: German utilities should expand abroad - consultant. Reuters English News Service, 07/05/01 NewPower Hldgs To Buy AES Corp Unit Dow Jones News Service, 07/05/01 INDIA: Belgium's Tractabel to divest India stake-paper. Reuters English News Service, 07/05/01

TransAlta sells power unit: \$850M deal: Final step in retreat from regulated electricity industry National Post, 07/05/01  
WORLD NEWS - LATIN AMERICA AND THE CARIBBEAN - Brazil plans for emergency energy supply. Financial Times, 07/05/01  
In India, Other Firms Feel Enron's Pain --- Some Are Trying to Help Resolve the Dispute Over Dabhol Project The Wall Street Journal, 07/05/01  
Efforts by Enron and Indian State To Revive Dabhol Result in Logjam --- Some Foreign Lenders to Electricity Project Strive to Resolve Conflict The Wall Street Journal Europe, 07/05/01  
DENMARK: Enron says may spin off wind power arm this year. Reuters English News Service, 07/04/01  
Guest Host Continued CNNfn: Market Coverage - Morning, 07/04/01  
UK: Enron extends bid deadline in UK gas entry system. Reuters English News Service, 07/04/01  
Enron Extends UK Virtual Gas Capacity Auction Deadline Dow Jones Energy Service, 07/04/01  
JAPAN: Korea Aluminium-Imports seen cheaper than govt stock sales. Reuters English News Service, 07/04/01  
Decision on judicial probe on Enron issue by July 11 Reuters English News Service, 07/04/01  
DPC receives one week extension over HC's July 10 deadline Press Trust of India Limited, 07/04/01  
Lenders for splitting DPC assets to cut takeover cost Business Standard, 07/04/01  
Water treatment contract approved Houston Chronicle, 07/04/01  
Ex-Houston judge to be special counsel / Andell to advise education secretary Houston Chronicle, 07/04/01  
Gas rates plunging Lethbridge Herald, 07/04/01  
Fimat USA's Kilduff: Oil Prices, OPEC and Stock Picks Bloomberg, 07/05/01

India Risks Lower Rating If Budget Deficits Grow, S&P Says Bloomberg, 07/05/01

S&P's Mukherji on Risk of Lower Rating for India: Comment Bloomberg, 07/05/01

Indian Oil Companies Cut Naphtha Price, Paper Says (Correct) Bloomberg, 07/05/01

India Risks Lower Rating If Deficits Grow, S&P Says (Update1) Bloomberg, 07/05/01

USA: New Power adds 20 percent to customer base with two deals.

07/05/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, July 5 (Reuters) - New Power Co., a national energy provider partly owned by powerhouse Enron Corp., on Thursday increased its customer base by about 20 percent and its visibility in Pennsylvania and Ohio with two separate acquisitions. Financial terms were not disclosed. New Power, a unit of NewPower Holdings Inc. , which was formed to take advantage of electricity deregulation, added a total of 121,000 electric and natural gas customers to its customer base of about 615,000. New Power said it signed an agreement to buy the customer base and related assets of AES Direct, the retail marketing subsidiary of independent power company AES Corp. , which includes natural gas inventory, supply and transportation contracts as well as billing and customer service operations. It also bought Ohio-based customers from CoEnergy, a unit of Michigan-based DTE Energy , gaining entry into service areas of four additional utilities. Shares of New Energy closed at \$8.75 on Tuesday, well below its 52-week high of \$28.69 but above its low of \$4.63.

GERMANY: German utilities should expand abroad - consultant.

07/05/2001 Reuters English News Service (C) Reuters Limited 2001.

COLOGNE, Germany, July 5 (Reuters) - Germany's top utilities lag far behind major foreign rivals in the share of revenues derived internationally, which could limit future growth, a consultant told an industry conference on Thursday. "Germany's market leaders lag behind in their market presence in Europe and the rest of the world," said Volker Flegel, a European energy expert at consultancy A.T. Kearney's Munich office. "If they don't act fast, the gap will widen....They have to adopt more of a pan-European perspective," he said, singling out Spain as the most attractive investment target. Flegel said revenues generated outside Germany by the country's top four utilities ranged between 3.0 percent of turnover at HEW, to 11 percent at E.ON, 11.7 percent at RWE. By comparison, the shares of foreign sales at U.S. energy groups TXU and Enron were 36 percent and 18.6 percent. Foreign sales contributed 18.6 percent to turnover at French/Belgian group Electrabel and 18.3 percent at France's EdF. Flegel pointed out that expansive internationalisation, which began in the late 1980s, has already had helped some German utilities achieve annual sales growth of up to 30 percent. Both RWE and E.ON have made forays into the British market, and are currently bidding for stakes in Spanish firms, along with EnBW. Flegel said the return on electricity sales in the Spanish market was two to four times higher than in Germany. Spain's annual consumption growth in recent years has reached as much as six percent. In addition, Spain could be used as a bridgehead for acquisitions in Latin America, where the firms are already involved, he said. Apart from Spain, A.T. Kearney identified a list of countries it viewed as attractive both in size and market conditions for foreign entrants - including France, Italy, Finland, Britain, Poland, Sweden and, outside Europe, the United States and Brazil. In the dynamic

Italian market, newcomers by 2003 should have captured already one quarter of the market, Flegel said. In central Europe, Swiss companies will be the engines behind sale growth in the trading of power, through their hydropower capacities and its shareholdings in French power firms. The Scandinavian markets are lucrative, although comparably small, because their per-capita power usage is three to five times higher than in the rest of Europe, Flegel said. This is partly due to ample supply and low prices, which encourage consumers to use electric power for home heating. The growth potential in eastern Europe comes from projected consumption rises of 27.1 percent annually between 1996 and 2005. Prices have not risen so far, but Flegel said he expects increases in the medium term.

#### NewPower Hldgs To Buy AES Corp Unit

07/05/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

PURCHASE, N.Y. -(Dow Jones)- NewPower Holdings Inc.'s (NPW) New Power Co. unit agreed to acquire the customers and related assets of AES Corp.'s (AES) AES Power Direct retail marketing unit. In a press release Thursday, NewPower Holdings also said it agreed to acquire the customers and natural gas inventory, related to the Columbia Gas of Ohio and Dominion East Ohio gas customer choice programs, of CoEnergy Trading Co., a unit of DTE Energy Co. (DTE). Financial terms of both deals weren't disclosed. Together, the deals significantly expand NewPower's presence in Ohio, where the company will add over 82,000 natural gas and electric customers, and in Pennsylvania, where NewPower will add about 38,000 natural gas customers.

INDIA: Belgium's Tractabel to divest India stake-paper.

07/05/2001 Reuters English News Service (C) Reuters Limited 2001.

BOMBAY, July 5 (Reuters) - Yet another foreign power firm is bailing out of India, several financial newspapers reported on Thursday. Belgian power firm Tractabel plans to sell its stake in a joint venture with India's Jindal Vijaynagar Steel Ltd , both The Economic Times and the Times of India said. Tractabel, a subsidiary of the giant French water and power utility company Suez Lyonnaise des Eaux SA , will receive 2.35 billion rupees (\$49.9 million) for its 50 p

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#### Message 1044 of 1299

#### Enron Mentions

|            |                                 |
|------------|---------------------------------|
| Sender     | ann.schmidt@enron.com           |
| Recipients | []                              |
| File       | dasovich-j/all_documents/28067. |

USA: FERC judge says Calif power refunds are likely. Reuters English News Service, 06/22/01

EOTT Butane Trader Indicted For Bilking Co.On Gas Trade Dow Jones Energy Service, 06/22/01

INDIA: CMS says India LNG project now stalled. Reuters English News Service, 06/22/01

LME Base Metals:End Mixed As Mkt Awaits Fed Rate Decision Dow Jones Commodities Service, 06/22/01

Indian Foreign Invest Climate Good Despite Enron Dispute Dow Jones International News, 06/22/01

USA: FERC judge says Calif power refunds are likely.

06/22/2001 Reuters English News Service (C) Reuters Limited 2001.

WASHINGTON, June 22 (Reuters) - The Federal Energy Regulatory Commission administrative law judge, who is overseeing refund settlement talks in California's power market, said Friday that generators that sold electricity in the state will probably have to pay back overcharges of "several billion dollars." In an interview with Reuters, Judge Curtis Wagner, the head FERC administrative law judge who will preside over the 15-day conference starting Monday, said California Gov. Gray Davis' claim the state is owed \$9 billion is too high. "I think that's high," Wagner said when asked to comment on Davis' request for that amount in refunds. "I'm hoping to come up with a settlement of the issue of a refund of overcharges - if there are overcharges. My sense is that there probably are," Wagner said. Enron Corp. , Mirant Corp. ,

Duke Energy Corp. , Williams Cos. , Reliant Energy Inc. , and Dynegy Inc. are among the producers that FERC could compel to make the refunds. The companies have said they did nothing wrong. Davis, the California Public Utilities Commission and the state's investor-owned utilities will join in the negotiations at FERC headquarters in Washington. If no agreement is reached, Wagner will have seven days to make a recommendation to the five FERC commissioners on the refund issue.

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EOTT Butane Trader Indicted For Bilking Co.On Gas Trade By Roy R. Reynolds Of DOW JONES NEWSWIRES

06/22/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

HOUSTON -(Dow Jones)- A Houston-based federal grand jury indicted Steven Gary Todoroff, former trader for Enron Corp.'s (ENE) EOTT Energy Corp. (EOT), late Wednesday on charges he funneled 100,000 barrels of butane gas meant for EOTT into a company of his own for later sale to a third party at just under \$1 million. EOTT terminated Todoroff for the alleged malfeasance in 1999. "There was apparently concealment of other natural gas trading activity," said EOTT spokeswoman Gina Taylor. According to Assistant U.S. Attorney Cedric Joubert, Todoroff is accused of bartering a deal in which Petrogas Inc. would have supplied EOTT with butane for a repayment of butane a year later. Todoroff then allegedly steered the Petrogas butane to Monarch Media Resources Corp., which he owned, and sold the gas to the Oklahoma office of Gas Producers Liquids Inc. for \$996,187.50. EOTT took a \$3 million charge to earnings in the fourth quarter of 1999 to cover the cost of purchasing additional butane to deliver to Petrogas, Taylor said. Todoroff's attorney, Wendell A. Odom, Jr., doesn't deny his client made the trade, but said it was a side trade that had nothing to do with EOTT operations, and therefore shouldn't be a criminal offense. "From the onset of this, we've always contended that this is a civil debt," Odom said. "This was a personal investment." Odom said Todoroff was following a generally accepted practice of side trading on the deal, and EOTT got involved by the confusion of other players in the trade. "Everybody just assumed it was an EOTT deal, even though it wasn't," he said. "EOTT made the decision to belly up to the bar and pay off when it came time to deliver." Joubert said Todoroff will more than likely appear before a judge late next week for an arraignment on the charges. The judge will then schedule a trial date, to begin within 70 days of the arraignment. The nature of the deal, which took 13 months, kept EOTT from discovering the action until late in the process. "The way he allegedly set up the contracts, we didn't know about it until it was time to pay Petrogas," Taylor said. "When Petrogas calls us and said they needed payment, that's when we started looking at the transaction." Petrogas, which Joubert said is a Canadian company with an operating arm in Texas, couldn't be contacted Friday. Joubert said Natural Gas Liquids isn't suspected of any wrongdoing in the case, though he noted Todoroff used to live in Oklahoma. "I assume he still knew some people there," Joubert said. Natural Gas Liquids owner Greg Stiman, based in Houston, wasn't in the office Friday and unavailable for comment. News Article On EOTT Charge Aroused Suspensions

EOTT took total charges of \$9.8 million, or 35 cents a diluted unit in the fourth quarter of 1999, explaining in a press release that the amount covered "the cost to exit mid-continent natural gas liquids activities that are no longer needed as a supply function for crude oil blending activities on the West Coast; severance costs for work force reduction due to operating efficiencies from recent acquisitions; implementation of a new marketing and accounting system; and a theft of NGL product, concealment of NGL commercial activities and other unauthorized NGL actions by a former employee." The company reported losses that quarter of \$7.48 million, or 27 cents a unit after the charge. By contrast, EOTT reported earnings for 2000's fourth quarter of \$3.71 million, or 13 cents a unit. According to Joubert, EOTT had to buy butane from Amoco Inc. - now BP Amoco PLC (BP) - to replace the butane owed Petrogas. "The real loss has to do with the replacement costs with the gas - a year after (Todoroff) got his money," Joubert said. Odom maintains that Todoroff was making a legal trade through Monarch Media, but simply didn't have the funds to cover the cost of replacing the butane when it came due. "(Todoroff) did not have the financial resources, he just got caught short on the deal," Odom said. "He did not tell (EOTT) they had to honor that deal." Although Plains All American Pipeline LP (PAA) uncovered rogue trading by one of its executives in 1999, fraud among the energy trading world is rare, said both Joubert and Taylor. "It's not a common problem," Taylor said. "We have controls in place to take care of this kind of thing." Joubert began sniffing around the case after a news article regarding the company's fourth quarter charge aroused suspicions. Odom said the close-knit and fast-paced world of energy trading helped lead to a misunderstanding of his client's deal. -By Roy R. Reynolds, Dow Jones Newswires; 713-547-9208; roy.reynolds@dowjones.com

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INDIA: CMS says India LNG project now stalled. By Suresh Seshadri

06/22/2001 Reuters English News Service (C) Reuters Limited 2001.

MADRAS, India, June 22 (Reuters) - U.S. firm CMS Energy Corp's LNG-based power project at Ennore in southern India is now completely stalled for want of a credit support mechanism from the Indian government, a top firm official said on Friday. Rodney E. Boulanger, CMS Generation Co's president, said in a statement e-mailed to Reuters that the firm though "not threatening to withdraw" from the project was "losing heart". The firm's statement comes against a backdrop of a bitter payment row between U.S. energy giant Enron Corp's \$2.9-billion, 2,184-MW Indian unit, the Dabhol Power Co, and the state-run utility in India's western Maharashtra state. CMS, along with India's Grasim Industries, leads a consortium to build a \$1.6-bil

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### Legislative Status Report Week Ending 3/30

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----- Forwarded by Jeff Dasovich/NA/Enron on 03/30/2001 06:45 PM -----

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Date: 3/30/01 To: Jan Smutny-Jones, Steven Kelly, Katie Kaplan Cc: IEP Board of Directors From: Julee Malinowski-Ball, Edson + Modisette RE: Legislative Status Report Week Ending 3/30

#### RECENT EVENTS:

-- SB 28x (Sher/Battin), which makes various changes to the siting process including many IEP-sponsored proposals, passed off the Senate floor last week 37 to 1. Asm. Wright=01,s office is now working with the authors and = IEP to make additional changes to the bill, as opposed to moving more siting issues in AB 36x (Wright) (although that is still an option). Chris Elliso= n and I are continuing to work with the authors=01, staff to develop addition= al language. The bill is scheduled to be heard on Monday in the Assembly Energy Costs and Availability Committee. We are waiting to review new language from the author=01,s office. At this point we are recommending the bill do= es NOT move forward without this additional language. I will let members know the status of these amendments before the hearing.

-- IEP has a meeting with the newly-elected Assembly Republican Leader Dave Cox (Sacramento) on Tuesday at 8:30 am to discuss the Republican=01,s position on siting and direct access, and possibly linking those issues with the passage SB 5x (Sher), the billion dollar energy conservation bill on the Assembly side. Although they are not the only issues IEP and its members want resolved in this legislative session, they are currently the most visible and active issues with the best chance of passage.

-- AB 60x (Hertzberg), which ties to the siting process the requirement that a developer enter into a contract to sell power to specified California entities, is out of the Assembly on a 64 to 12 vote. The bill will be heard in the Senate Energy Committee next. IEP members have agreed on amendments to the bill which it will present to the Speaker, however, it and its members will be meeting with members of the Senate Energy Committee to stop the bill. IEP=01,s opposition message is twofold: 1) the bill creates another obstacle in the siting process when the state should be streamlining it; and, 2) as a net-importer, California would be sending the wrong signals to its neighboring states that send us power in our time of need.

-- AB 8x (Migden), which would have given the EOB additional and undefined powers related to the coordination of operation and maintenance schedules, was gutted in the Senate last week and used as a vehicle for the State to get the generation component of the utilities=01, rates, the San Diego rate= cap extended to all customers, and kicking the QF issue to the CPUC. AB 8x in its new form, authored by Assembly Member Keeley, passed out of the Senate, but failed to get enough Republicans to vote for the bill on the Assembly floor. The biggest opposition came primarily from the gas-fired QFs which wanted to be exempt from the measure=01,s QF provisions.

Migden=01,s office has communicated its intention to move forward with the language previously in AB 8x, although in a different vehicle not yet identified. There remains a commitment on the table to meet with IEP to discuss amendments. IEP member company lobbyists have agreed to continue lobbying her office to urge her to wait hearing the bill again until this meeting has happened.

-- There appears as if there is going to be another attempt at moving QF legislation next week. SB 66x (Bowen) was introduced on Wednesday in which a Senate Floor analysis was already prepared. The measure is still in spot-bill format, but rumor has it =01&they=018 are working on language as = we speak. Be prepared for anything.

-- Senator Burton=01,s office is sending IEP another set of amendments attempting to solve our problem with the eminent domain provision in SB 6x (Burton), which is the state power authority measure. I will report on the status of these amendments once we have had a chance to review them.

-- SB 39x (Speier), which would define generators as public utilities and put the CPUC in the role of coordinating outages and maintenance schedules, remains on the Senate floor awaiting a vote. There is no action item on this measure at this time.

-- Regular session is getting under way in conjunction with the on-going special session hearings. IEP has taken a support position on the followin= g bills which are scheduled for hearings next we

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**Request from Bob Frank**

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gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 03/15/2001 10:27 AM -----

Robert Frank 03/15/2001 09:07 AM

To: Ginger Dernehl/NA/Enron@Enron cc: Subject:

Ginger - please forward this to all of GA. Thanks.

This is a request for help from my colleagues in GA. I am preparing Enron's comments to the Federal Trade Commission concerning the results of different "regulatory approaches" by states implementing retail electric competition programs or legislation. The FTC has invited comments on a number of specific issues, but their goal is to "examine various state retail competition programs and describe those features that have resulted in consumer benefits and those that have not yielded consumer benefits."

There are some obvious areas where we'll comment - California - but I'd appreciate people sending me specific examples of good or bad regulatory policies in other states. Also, does anyone know of any good reports or analyses already prepared on these issues? Thanks. -Bob

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**meeting?**

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Hi, all--- You may already know this, but I wanted to keep you updated. All new commodity (power) business in California has been put on hold. Yesterday, Eric Letke announced to the team of originators that we would be suspending new efforts until the regulatory/legislative environment is more solid in California.

With that news, all of our team meetings and conference calls have been cancelled.

However, I want to maintain a weekly call (30 min max) on our own....just to keep-in-touch. I will defer to your schedules. Please tell me what day and hour looks best for you. OR Is there an existing call that we could join? I just don't want to lose focus.

Participants: Regulatory Affairs (Harry, Jeff, Sue, Robert) Market Development (Marcus Dotson, Jennifer Rudolph, Ed Hamb)

Thank you! ---Jennifer 713-345-8206



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## WPTF Friday Credo Veritas Burrito

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THE FRIDAY BURRITO "...more fun than a fortune cookie, and at least as accurate."

There is a hint of Autumn in the air. I don't know if it's wishful thinking, or if the seasons are really beginning to turn from our pale summer into a Bay Area glorious Fall. It's premature, I know. A few fallen leaves, the start of schools, slightly longer afternoon shadows ... I'm jumping the gun. I can't wait for this summer to be over, especially this summer. The pounding never stops, and as I hear the din of the cash register ringing with each climb in Southwest temperature, I can barely keep track of all the hiccups which drive prices up: fires in Montana restricting transmission paths, blown up interstate gas pipeline in New Mexico, diminishing N-Ox credits for in-state power plants, depleted inventory of hours of voluntary load interruptions for commercial and industrial customers, credit limits restricting imports of Canadian power into the Northwest and California, and BPA buying about 1,000 MW to cover its short hydro position.

I also get the willies every time another politician lambastes the California restructured power industry. I just want to end to the summer, now, and start a two week Fall vacation ... anywhere, even in Cleveland.

There are seven, count them, seven investigations into some aspect of the wholesale power market out here. Two days ago there were only six, but FERC just added another yesterday in response to the Prez's request. That means FERC has two, the PUC has two, the State Attorneys General has two (one on the ISO Governing Board, and one on the in-state generators), and one by the Electric Oversight Board. If you don't have an ongoing study of the California Market, then you're not hip.

All of these investigations, save FERC's Section 206 Investigation, are going to amount to near nothing. A lot of wasted time and paper. The PUC and EOB studies have their conclusion sections all finished. Now they need some evidence to support their assertions.

And how are we holding up under all of this? How are you doing? I talk to many of you throughout the week, and I know how frustrated you are. I share your frustration. You want to tell the public, the press, and anyone in between the truth. You want to lay out the facts. You want to show anyone who will listen that each interference into the market is making things worse, not better. The price caps, for example, are damnable and screwing up the prices, much to the detriment of those people for who price caps were supposed to be a protection against price shocks. Now they are receiving higher average prices.

The public isn't going to listen to anything longer than a sound bite. And let's face it, when it comes to stellar public relations, our industry is not known for turning in A+ performances, except for SCE. Those guys seem to get their story in front of the public at every turn. I heard SCE is putting on their customers' bill, "Here is what you would have paid if the rate freeze ended ...." But many of us in the new power industry, borne from the loins of either the natural-gas industry or nuclear-power business, learned the hard way that the best response to a public inquiry is a two-block head start in front of an angry mob. Keep your head down, shut your mouth, and this too shall pass.

I don't buy that approach, at least not anymore. That is, I don't believe we have anything to hide, or of which to be ashamed. What electric restructuring is about is correct, beneficial to the public, and in everyone's best interests. Look at it this way, when they pat the last shovelful of dirt on your final resting place, for what do you most want to be remembered? That you caved in to the political will of others, or at a moment when you had the chance, you did what was right instead of what was expedient? I think the choice is easy, albeit laced with sheer terror. Those bland homilies I so diligently teach my kids (e.g., tell the truth, do what is right, think of the big picture and not just yourself) are a lot easier to speak than to live by. So join me and stand up for what you believe. They can't take away your pride, not yet.

Here is this week's line up.

*Things in the People's Republic of California*

@@@ Excerpts from FERC=01,s Order on SDG&E Complaint @@@ The Development of a Super-Peak Block Energy Product

*The Mailbag: A Letter from My Friend, and A Response*

*Odds and Ends (!)*

@@@ Finish the Story Contest @@@ October General Meeting @@@ What Makes Houston, Houston?

*Things in the People=01,s Republic of California*

@@@ Excerpts from FERC=01,s Order on SDG&E Complaint

President Clinton commented from the Rose Garden that good folks in San Diego, retired, fixed-income, likely to vote for a Democrat, are making choices between buying medicine or air conditioning their homes. I call this the Del Monica Beach lecture. The Prez instructed the FERC to investigate the situation in California, and FERC wasted no time.

In response to SDG&E=01,s August 2 complaint, whereby the utility asked FERC to impose a \$250 price cap on generators in the region, the FERC responded in a way that I was hoping to see several months ago. The FERC slammed SDG&E on their complaint for lack of merit, and the FERC also initiated an FPA Section 206 Investigation into the wholesale power market in California.

Here are some of the juicy excerpts from FERC=01,s Order:

=01&In this order, ... , we are denying SDG&E's requested immediate imposition of a price cap on all sellers in California. However, we are instituting consolidated hearing proceedings pursuant to section 206 of the Federal Power Act to investigate the justness and reasonableness of the rates and charges of public utilities that sell energy and ancillary services to or through the California ISO and PX, and to also investigate whether the tariffs and institutional structures and bylaws of the California ISO and PX are adversely affecting the efficient operation of competitive wholesale electric power markets in California and need to be modified

=01&SDG&E concludes that the markets cannot be workably competitive if sellers are able to exact prices that are considerably above levels that would prevail in open competition, i.e., sellers are able to bid and receive prices significantly above their marginal costs. SDG&E also argues that the hour-to-hour volatility in imbalance energy prices and the erratic clearing price for ancillary services is an indication that the market is breaking down when it is moderately stressed.

=01&While we find it appropriate to institute a section 206 hearing on these issues, we cannot implement an immediate price cap of \$250/MWh as requested by SDG&E because there is no record before us to support such an action. ... While the issues raised by this complaint are important, the Commission has no basis to conclude that SDG&E's proposal to place an immediate, arbitrary \$250/MWh cap on the price that every public utility seller of energy and ancillary services may bid into the PX and ISO markets would satisfy this standard. SDG&E has provided no evidence to demonstrate that all potential sellers are able to exercise market power, has not documented a single instance of a seller exercising market power during times of scarcity, and did not attempt to show that the conditions underlying the Commission's approval of market-based rates for public utility sellers of energy and ancillary services have changed. Nor did it address specific market or institutional factors that may be causing rates to be unjust or unreasonable.

=01&SDG&E asserts that the ISO's congestion management and market structures are flawed and in need of o

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#### Enron Mentions

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Dynegy Says First-Quarter Profit Higher Than Expected (Update4) Bloomberg, 04/02/01

Enron Italia Chief Says It Won't Buy Extra Enel Capacity Dow Jones Energy Service, 04/02/01

USA: Enron and Saks ink energy management deal. Reuters English News Service, 04/02/01

Kiodex To Provide Risk-Management System For EnronOnline Dow Jones Energy Service, 04/02/01

Kiodex, Inc. To Market Risk Workbench Via EnronOnline Business Wire, 04/02/01

Enron In Private Energy Supply Pact With Saks >ENE SKS Dow Jones News Service, 04/02/01

Maverick of the Morning CNNfn: Market Coverage - Morning, 04/02/01

Exxon Mobil Replaces General Motors Atop Fortune 500 (Update1) Bloomberg, 04/02/01

Arizona Lacks Natural Gas Pipeline Capacity, Paper Reports Bloomberg, 04/02/01

Dynegy Says First-Quarter Profit Higher Than Expected (Update4) 2001-04-02 16:15 (New York)

Dynegy Says First-Quarter Profit Higher Than Expected (Update4)

(Updates with closing share price. For more on the California electricity crisis, see {EXTRA <GO>}.)

Houston, April 2 (Bloomberg) -- Dynegy Inc., a U.S. electricity and natural-gas trader, said first-quarter per-share profit was higher than expected on trading gains, boosted by "strong" gas and power demand. The company also raised its 2001 earnings forecast. First-quarter profit rose to 40 cents a share from 26 cents a year earlier, the company said in a statement. It was expected to earn 31 cents, the average estimate of analysts polled by First Call/Thomson Financial. The company expects to make \$1.92 to \$1.97 in 2001, up from its previous forecast of \$1.80 to \$1.87, the statement said. The Houston-based company runs several power plants in California. The state has been hit by a 10-month electricity shortage, and the average power price there rose nine-fold last quarter from a year earlier. Colder-than-usual weather in other parts of the U.S. helped earnings, analysts said. "It's been the same thing throughout the industry -- they've had good margins in most of country," said William Hyler, an analyst at CIBC World Markets. He rates Dynegy a "strong buy." Dynegy owns Illinois Power, a utility with 650,000 gas and power customers in southern Illinois. Dynegy's fourth-quarter profit more than doubled, driven by power sales in the Midwest and Northeast. The company also owns, manages or is building or acquiring power plants in Texas, Arkansas, Kentucky, Georgia, North Carolina, Louisiana, Nevada, Washington and New York. Its plants currently generate about 13,500 megawatts of capacity, or enough to light 13.5 million homes. "I think their geographical reach has been a tremendous asset for them," said Merrill Lynch analyst Donato Eassey, who rates Dynegy "near-term accumulate."

Dynegydirect

The company also said it has had \$9 billion in transactions on its online trading site, Dynegydirect, since its start in November. The site had \$3 billion in transactions last year. Shares of Dynegy rose 89 cents to \$51.90. They have risen 65 percent in the past year. Dynegy will announce first-quarter earnings on April 17. The company is expected to earn \$1.84 a share in 2001, according to First Call. Other energy traders have said in the past three weeks they'll make more money than expected in the first quarter because of gains in business in the U.S. West. They include San Jose, California-based Calpine Corp., an electricity generator and power-plant developer; Spokane, Washington-based Avista Corp., owner of utilities in the U.S. Northwest; and Atlanta-based Mirant Corp., the energy-trading arm of Southern Co. In January, Houston-based Enron Corp., the biggest energy trader, raised its 2001 profit forecast, partly because of trading in North America. Dynegy was one of 26 energy suppliers to California accused in a March 22 report by that state's Independent System Operator, which controls 75 percent of California's power grid, of overcharging the state for power. The generators say their prices were fair based on market conditions. Earlier last month, Dynegy and Minneapolis-based NRG Energy Inc., co-owners of four California power plants, agreed to sell the state enough electricity to light as many as 2.3 million homes through 2004. Chevron Corp., the No. 2 U.S. oil company, owns 29 percent of Dynegy.

Enron Italia Chief Says It Won't Buy Extra Enel Capacity

04/02/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

VENICE, Italy -(Dow Jones)- Enron Corp. (ENE) will stay out of the auctions for Italian power company Enel SpA's generating capacity, despite recent developments that should bring the price of the assets down, Enron Italia chief Riccardo Bortolotti told a conference Friday. "We're very interested in doing risk management or power purchasing agreements, or capacity and tolling agreements," but not in actual ownership of the physical assets, Bortolotti told Dow

Jones Newswires on the sidelines of the conference. Enel was recently ordered to sell an additional 5,500 megawatts of plant in order to gain regulatory approval for its purchase of telecoms company Infostrada. This is in addition to long-standing plans for a three-tranche sale of 15,000 MW of installed capacity. The extra supply is expected to reduce the realized price of the assets considerably. Staying out of the auctions will restrict Enron's near-term options in operating in Italy, which has the highest electricity prices in Europe. Import capacity is scarce and planning permission for greenfield projects is still slow, despite promises by the government to simplify the procedure. Earlier, the head of the Italian arm of Germany's E.On AG (EON), Luca Alippi, refused to rule out participation in the auctions. Originally, E.On had decided not to bid. Separately, Bortolotti called on Italian regulatory authorities to change legislation that allows power consumers the freedom to cancel supply contracts at six months' notice. He noted that in such an environment, it will be difficult for independent power producers to secure financing for new projects. "You can't finance a project on trust," Bortolotti told Dow Jones Newswires. He explained that whereas this measure was necessary at the start of deregulation in order to allow customers to get out of disadvantageous contracts, now it is working against the interests of consumers. "If we can't sign (power purchasing agreement) contracts, then in the long term, they won't be able to find a counterparty" to compete with incumbent suppliers, he said. -By Geoffrey T. Smith, Dow Jones Newswires; +44 7771 513 797; geoffrey.smith@dowjones.com

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USA: Enron and Saks ink energy management deal.

04/02/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, April 2 (Reuters) - Enron Corp. , North America's largest buyer and seller of electricity and natural gas, said Monday its energy services unit signed a long-term energy management agreement for all of upscale retailer Saks Inc.'s facilities. "By outsourcing the management of its electricity and natural gas supply to Enron, Saks is significantly protected from energy price uncertainty and volatility, particularly in California and New York," said David Delainey, chairman and chief executive of Enron Energy Services. Financial terms were not disclosed. Under the agreement, Enron Energy Services will supply all of Saks' store locations, which total over 300, its distribution facilities, and administrative offices with electricity and natural gas. The companies are also working to identify ways to save Saks money through energy efficiency. Although no time frame was g

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### Enron Mentions - 05/14/01

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Saudis Set to Select Firms for Gas Projects The Wall Street Journal, 05/14/01

Cheney task force seeks input from interest groups Associated Press Newswires, 05/14/01

COMPANIES & FINANCE UK: Independents drill deep to strike rich seams: A new generation of smaller oil companies is emerging; a group that has discovered how to be competitive, writes David Buchan: Financial Times; May 14, 2001

Bush energy team covers all the bases Chicago Tribune, 05/14/01

QATAR: UAE's Dolphin may seek new partners if Enron exits. Reuters English News Service, 05/14/01

UAE: UPDATE 1-Saudi expected to name gas race winners on Tuesday. Reuters English News Service, 05/14/01

Saudi Oil Council To Meet Tue On Gas Projects -Sources Dow Jones Energy Service, 05/14/01

RFID chip will help speed up business The New Straits Times, 05/14/01

India: Godbole panel report may suggest MSEB bifurcation Business Line, 05/14/01

Tertiary will be primary Business Standard, 05/14/01 Acegas shares, potential for growth (Acegas, le potenzialita di crescita del titolo) La Repubblica, 05/14/01 Roundabout to the Oval Office The Washington Post, 05/14/01 Largest LNG 13 Conference Opens Today Korea Times, 05/14/01

International Saudis Set to Select Firms for Gas Projects By Bhushan Bahree Staff Reporter of The Wall Street Journal

05/14/2001 The Wall Street Journal A16 (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -- After more than two years of talks, Saudi Arabia is about to announce its choice of international oil companies for three huge natural-gas projects that will mark a reopening of the kingdom's energy sector to Western investment, a quarter century after it was nationalized. But the announcement, and the signing of memorandums of understanding early next month, will mark only the beginning of serious negotiations on terms for the three ventures, which together will need investment of some \$25 billion. It will be months before final agreements are signed. "We expect to have an agreement -- a final agreement -- signed somewhere at the end of the year, or, hopefully, the first quarter of next year," said Saudi Oil Minister Ali Naimi in an interview last week. Saudi Arabia's 11-member Supreme Petroleum Council is expected to meet today to endorse the companies recommended by a ministerial committee led by Foreign Minister Prince Saud al-Faisal. In the following week, Saudi Arabia is expected to communicate its decision to the oil companies from both sides of the Atlantic that have been vying for a role in the three projects. By the end of the month, the chosen consortium members and Saudi officials are expected to agree on which three companies will lead the projects. This will be a prestigious role in a country that is the world's largest oil exporter, has more than a quarter of the world's oil reserves and has the fifth-largest reserves of natural gas. As with any negotiations for such huge projects, industry rumors abound. All three so-called oil supermajors -- Exxon Mobil Corp., Royal Dutch/Shell Group and BP PLC -- have been mentioned as project leaders, particularly for the plum Ghawar project, named after the world's largest onshore oil field, whose environs are expected to yield large volumes of gas. The Ghawar project, known as Core Venture 1, is projected to require about \$15 billion in investment. Core Venture 2 is on the Red Sea coast. The third project is in Shaybah, a recently developed oil field in the kingdom's Empty Quarter, a southeastern region bordering the United Arab Emirates. The companies say they have no idea who will be named to the consortia, or who the Saudis will choose from a short list of 11 companies -- Exxon Mobil, Shell, BP, Chevron Corp., TotalFinaElf SA, ENI SpA, Enron Corp., Occidental Petroleum Corp., Marathon Oil Canada Inc., Conoco Inc. and Phillips Petroleum Corp. -- to lead each project. But they all have their hopes. "We would be very disappointed if we are not the lead operator" for the Shaybah project, said Archie Dunham, Conoco's chairman and chief executive. Since Saudi Crown Prince Abdullah invited major oil companies to return to the kingdom in October 1998, negotiations have focused on such broad issues as the scope of the projects and their integrated nature -- from exploration and production of gas to the making of petrochemicals and electricity -- as well as the notion that the companies will need adequate returns on their investment. Soon, the project leaders will have to start the bargaining on such issues as the roles to be played by national champions Aramco and petrochemicals company Saudi Basic Industries Corp. --- Alexei Barrionuevo in Houston contributed to this article. --- Population Pressure

Saudi Arabia is opening up its energy sector, in a bid to bolster the economy as population grows

-- Population 21.3 million (growing over 3.5% per year)

-- Unemployment rate\* 27%-35% of males

-- Real GDP Growth Rate 7.6%

-- Oil Production 9.3 million barrels per day

-- Natural-Gas Reserves 204.5 trillion cubic feet

-- Natural-Gas Production/Consumption 1.68 trillion cubic feet

\*Unofficial estimate for 1999

Note: Figures are estimates for 2000 except natural-gas production, which is for 1999

Source: U.S. Energy Information Administration

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Cheney task force seeks input from interest groups By SHARON THEIMER Associated Press Writer

05/14/2001 Associated Press Newswires Copyright 2001. The Associated Press. All Rights Reserved.

WASHINGTON (AP) - The White House team developing a national energy plan has met with more than 130 interest groups, from environmentalists and unions often at odds with Republicans to major Bush supporters given private sessions with Vice President Dick Cheney. The vice president, Cabinet secretaries and others on a special task force have solicited ideas behind closed doors, hoping the privacy would encourage a free exchange of ideas. The White House has declined to provide names of participants - even to Congress. But interviews with participants detail a massive outreach where diverse interests have met with task force executive director Andrew Lundquist. Cheney's time has been reserved for meetings with more select participants such as power wholesaler Enron Corp. and the Edison Electric Institute, both GOP donors. Houston-based Enron is the world's top buyer and seller of natural gas and electricity. "The way the task force is set up, they don't have the staff or time to have a huge host of companies come through the door. They have told us to work through our associations to the extent we can," said Don Duncan, vice president of government relations for Phillips Petroleum Co. Participants said the meetings, typically 20 minutes to 45 minutes, included about a dozen to 100 interest group members and a few task force members and staff. No details were disclosed. Instead, administration representatives summarized the nation's energy problems or listened as groups briefly offered background and proposals. Many sent detailed materials to the task force outlining their priorities. At a half-hour meeting in late March with White House strategist Karl Rove and Bush economic adviser Larry Lindsey, nuclear energy executives tried to make sure the two knew about the production records the industry has set over the past few years. At one point, Rove asked if anyone was looking to build a nuclear power plant. An executive with Exelon replied that his company was thinking about it, meeting participants said. Energy Secretary Spencer Abraham has attended several meetings, including one with Teamsters President James Hoffa and an hourlong session in California with Democratic Gov. Gray Davis

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### Enron Mentions

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The Suits Tell the Tale Cato's Regulation, 07/27/01 Wholesale-Energy Units Lifted Profit at Reliant, Peoples Energy Dow Jones Business News, 07/27/01 Enron Wants India to Buy Dabhol, Still Eyeing Options (Update2) Bloomberg, 07/27/01

Godbole panel-DPC meet makes little progress Business Standard, 07/28/01

INDIA: Enron's Dabhol rejects Indian offer on tariffs. Reuters English News Service, 07/27/01 Unamerican Activity? California Power Probe Gets Rough Dow Jones Energy Service, 07/27/01

India Dabhol Pwr Rejects States' Price Proposals -Report Dow Jones Asian Equities Report, 07/27/01

Venture capital chasing next big - and little - thing in energy Associated Press Newswires, 07/27/01

USA: Brazil moves to head off energy crunch, recession. Reuters English News Service, 07/27/01

Talking Stocks CNNfn: The Money Gang, 07/27/01

Buenos Aires Invents `Patacon' Currency to Pay Bills (Update1) Bloomberg, 07/27/01

The Suits Tell the Tale Gov. Davis deceived Californians about the energy crisis. By Jerry Taylor & Peter VanDoren. Jerry Taylor is director of=20 natural-resources studies at the Cato Institute <<http://www.cato.org>>. Peter VanDoren is=20 editor of Cato's Regulation. July 27, 2001 8:25 a.m. or at least nine months now, California Gov. Gray Davis has been screaming=20 bloody murder about how corporate power pirates out of Houston have=20 economically raped and pillaged the state of California, creating an=20 artificial electricity crisis out of thin deregulated air. The story didn't=20 appear to add up. But because the governor's office refused to release=20 information about how much the state paid to whom for electricity over the=20 past several months, who was to say?=20 Lawsuits finally pried that information out of Davis last week and =01\* lo = and=20 behold! =01\* "the biggest snakes on the planet" (Davis's words) were chargi=



ng=20 less than the publicly owned utilities of California itself and even less= =20 than the price charged by his right-hand man, David Freeman, head of the L.= A.=20 Department of Water & Power. And Davis turns out to have known it all along= . Until Davis coughed-up the data, the Left was in hog heaven, scoring point= =20 after point about how socialism =01\* at least in the electricity business = =01\* was=20 far preferable to capitalism. Alan Richardson, president of the American=20 Public Power Association, recently told an audience that, "California is a= =20 great example of municipal utilities that have =01( taken care of their=20 customers while investor-owned utilities have taken care of their=20 shareholders =01( Every customer of a private utility is seen as a profit= =20 center. With public power, every customer is seen as our owner and neighbor= . "=20 Anti-utility activist Harvey Wasserman wrote in The Nation that, "dereg=20 apologists are having a hard time explaining why two California power=20 companies were immune to the crisis: the Los Angeles Department of Water &= =20 Power and the Sacramento Municipal Utility District. Both are owned by the= =20 public =01( during the crisis, rates charged by both companies have been st= able." It turns out, however, that publicly owned utilities charged the state an= =20 average of \$344 for a megawatt of electricity during the first three months= =20 of the year. Private companies were meanwhile charging less than an average= =20 of \$250 per megawatt. And those Houston-based "snakes" =01\* Reliant, Dynerg= y,=20 and Enron =01\* were charging less than the publicly owned utilities, less t= han=20 the sainted and celebrated L.A. Department of Water & Power (\$292 per=20 megawatt), less than the Sacramento Municipal Utility District (\$330 per=20 megawatt), less than other investor-owned California-based power marketers,= =20 and less than the overall market average. Other more ambitious sellers=20 include those municipal "good neighbors" at Seattle's City Light Department= =20 (\$634 per megawatt), BC Hydro (\$498), and virtually every other socialist= =20 power entity that bellied up to the California wholesale power market. But that's not to say that the municipals did anything wrong. They had an= =20 obligation to local taxpayers to maximize their revenues. Moreover, it turn= s=20 out that the markups weren't all that great. The cost of producing=20 electricity at the margin was so high because of the run-up of natural gas= =20 costs; most of the asking price reflected the cost of spinning electrons ba= ck=20 at the plant. "It's insulting to ask for any money back. We weren't part of= =20 the problem, and we helped the state in a crisis," Peter Fletcher of the=20 Sacramento Municipal Utility District told theSan Francisco Chronicle. "And= =20 it's not like we're doing well." Another interesting revelation is how inept California state agents were wh= en=20 they tried to run a power system previously managed satisfactorily by the= =20 utilities. The state "called us and said, 'we're looking for power at \$500 = a=20 megawatt hour for a seven-hour period,'" Kate Hora of the Modesto Irrigatio= n=20 District told the Chronicle. "There was no negotiation. We just helped them= =20 out at the price they named." These are the business wizards that Davis wan= ts=20 to take over the whole system? It should go without saying that this doesn't help the governor's=20 price-gouging argument. The story Hora tells of how the state behaved with= =20 her utility is consistent with the stories related by the private marketers= .=20 The state asks for power and names a price. The company agrees. And several= =20 weeks later, Davis & Co. scream about "the gougers." The story Fletcher tel= ls=20 =01\* of prices mostly reflecting costs =01\* likewise belies Davis's content= ion that=20 greed explains all. If Sacramento's municipal utility found it hard to make= =20 any money even with sales of emergency power at \$330 a megawatt, what makes= =20 anyone think it was easier for Enron et al.? The Left's entire California story, it turns out, was built upon a=20 breathtaking series of gubernatorial falsehoods and demagoguery. If Davis a= nd=20 his duplicitous henchman, David Freeman, have an ounce of credibility left,= =20 it's only because the nation is too riveted on the Chandra Levy matter to p= ay=20 any attention to the bomb that went off in Sacramento last week.

#### Wholesale-Energy Units Lifted Profit at Reliant, Peoples Energy

07/27/2001 Dow Jones Business News (Copyright (c) 2001, Dow Jones & Company, Inc.)

Power companies Reliant Energy Inc. and Peoples Energy Corp. on Friday=20 reported higher quarterly profits and strong revenue, easily topping Wall= =20 Street forecasts.=20 The two utilities in their reports attributed the strong performance to=20 increased profitability at their wholesale-energy units. But both Reliant= =20 Energy and Peoples Energy said uncharacteristically warm weather during the= =20 period and weaker-than-expected natural-gas operations cut into profit. Houston-based Reliant Energy (REI) said net income rose 22% to \$273.7=20 million, or 93 cents a diluted share, compared with \$223.9 million, or 78= =20 cents a share, a year earlier.=20 Excluding nonrecurring items, the company earned \$247 million, or 84 cents = a=20 share, up from \$236 million a year earlier. The results exceeded analysts'= =20 expectations of 77 cents a share, according to Thomson Financial/First Call= .=20 The adjusted results excluded several extraordinary items, including the=20 effects from an accounting change, gains from early retirement of debt,=20 losses from the disposal of discontinued operations in Latin America, and a= =20 noncash charge related to the spinoff of 20% of



Reliant Resources Inc.=20 Revenue at the utilities holding company more than doubled to \$11.97 billion= n,=20 compared with \$5.76 billion a year earlier.=20 Earnings at Relia

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### Enron Mentions

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USA: UPDATE 1-PG&E opens bids to add 1.2 bcf of natgas in Calif. Reuters English News Service, 05/30/01

US FERC Plans Technical Conference On RTO 'Seams' Issue Dow Jones Energy Service, 05/30/01

UK Wind Pwr Co Appeals Proj Rejection In Landmark Case Dow Jones Energy Service, 05/30/01

India Govt Looks To Other States To Purchase Enron Power Dow Jones International News, 05/30/01

Official: Enron plant stops producing power after power pact canceled Associated Press Newswires, 05/30/01

INDIA: India says committed to resolve Enron dispute. Reuters English News Service, 05/30/01

USA: UPDATE 1-PG&E opens bids to add 1.2 bcf of natgas in Calif.

05/30/2001 Reuters English News Service (C) Reuters Limited 2001.

SAN FRANCISCO, May 30 (Reuters) - Pacific Gas & Electric Co., in an effort to determine interest in expanding its California natural gas pipeline system, said it was accepting bids for up to 1.2 billion cubic feet a day (bcfd) of gas transport capacity. The move by the company, a subsidiary of San Francisco-based PG&E Corp., responds to California's growing demand for natural gas to run new power plants. Gas suppliers and big industrial customers participating in the bidding round, called an open season, have until July 31 to submit offers stating how much pipeline capacity they are willing to purchase and the price they are willing to pay. Based on the results of this round, PG&E will decide whether to proceed with the planned 1.2 bcf expansion - enough to run seven 1,000 megawatt gas-fired power plants - or modify it to accommodate an even bigger volume of gas. As it stands, PG&E's open season is offering firm capacity on its Redwood, Baja, and Silverado pipelines. These lines transport gas from Malin, Oregon; Topock, Arizona, and California gas production to the company's local transmission system and other pipelines. PG&E's current intrastate pipeline system can transport more than 3 bcf of gas a day throughout Northern and Central California. Over the past year, utilization rates on many California pipelines have jumped from 75 percent to near full capacity, limiting deliveries into the state needed to drive gas-fired power plants. Demand for gas, which already accounts for more than a third of California's power generation, is expected to jump. Since April 1999, California has approved 14 major gas-fired projects with a combined generation capacity of more than 9,500 megawatts. Ten gas-fired plants, with a total generation capacity of more than 6,000 megawatts, are already under construction. Over the past three months plans to build or expand interstate lines carrying gas to California have been announced by Sempra Energy unit Southern California Gas Co., Enron unit Transwestern, Williams Cos' unit Kern River Transmission, El Paso Corp. units El Paso Natural Gas Co. and Mohave Pipeline Co., Questar Corp., Calpine Corp. and Kinder Morgan.

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US FERC Plans Technical Conference On RTO 'Seams' Issue

05/30/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

WASHINGTON -(Dow Jones)- The U.S. Federal Energy Regulatory Commission will hold a technical conference in June or July on the coordination of wholesale power transactions among regional transmission organizations, or RTOs, FERC Chairman Curt Hebert announced Wednesday. FERC is in the midst of implementing a sweeping order that directs the utilities it regulates to turn over their transmission assets to independent control by RTOs, which are slated to begin operating at the end of this year. The order aims to promote more liquid regional wholesale power markets by creating

independent power-grid operators, removing the remaining ability of vertically integrated utilities to use control of transmission to competitive benefit in power markets. In December, competitive power suppliers and industrial consumers petitioned the commission to convene a technical conference on what was termed the "seams" issue involving wholesale power transactions from one RTO-administered grid area to another. Unless the "seams" issue is addressed, "RTOs could soon resemble huge speed bumps which could not just slow down, but do permanent harm to the vehicle of competition," the petitioners warned. Addressing the "seams" issue is "absolutely crucial to the RTO process," Hebert said Wednesday, expressing the hope that the conference can be scheduled before July and allow FERC to "figure out the right way to do it." The groups that petitioned for the technical conference welcomed the decision to hold the technical conference. "It's overdue, but we appreciate the fact that it's coming about," said John Hughes, technical director at the Electricity Consumers Resource Council. ELCON represents large industrial electricity users. "Looking at the seams issues and addressing the seams issues successfully will address an awful lot of problems we see in terms of balkanized, dysfunctional markets," Hughes said. ELCON was joined in the petition by Enron Power Marketing Inc. (ENE), Reliant Energy Power Generation (REI) and Dynegy Inc. (DYN), and the Electric Power Supply Association. EPSA, which represents competitive power producers and marketers, is "thrilled" that FERC will address the issue, said spokesman Mark Stultz. Addressing the seams issue is "critical with regard to allowing RTOs to function and to enhance the movement of electricity across the country," Stultz said. "If you're moving toward a national grid, as the administration has proposed in its national energy policy, you want to make sure you don't have disconnects at the seams of these RTOs," he said. "The more standardized the business practices for the grid the better," said Stultz. In March, the commission sought comment on whether to hold the technical conference. At the time, Commissioner William Massey welcomed the move, noting that the lack of standardized procedures could pose "an impediment to trade." Massey called for FERC to shepherd an industrywide effort to develop consistent standards for information and terminology regarding scheduling and reservation of transmission capacity among RTOs - including the development of "generic interface procedures." FERC spurred a similar standardization process in the natural gas industry, which resulted in creation of a Gas Industry Standards Board, or GISB. GISB produced uniform communications protocols for reserving pipeline capacity and standardized business practices, Massey noted, expressing the desire for the electric industry to do the same. By Bryan Lee, Dow Jones Newswires, 202-862-6647, bryan.lee@dowjones.com

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UK Wind Pwr Co Appeals Proj Rejection In Landmark Case Of DOW JONES NEWSWIREs

05/30/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

Germana Canzi LONDON -(Dow Jones)- U.K. wind-power developer Ecogen Developments Ltd. said Wednesday it will challenge the legality of a government decision to reject its Humble Hill project after the Ministry of Defense said the turbines would interfere with surveillance radar. The case could be an important precedent in determining the viability of a wave of offshore wind projects sponsored by companies such as Royal/Dutch Shell (RD), Enron Corp. (ENE), Powergen PLC (PWG) and TXU Corp (TXU). In April, the Crown Estates granted an option for the building of up to 13 offshore power projects, which together could produce up to 1,500 megawatts of electricity to around one million households. The decision to halt the Humble Hill project took the wind power industry by surprise, given the strong support of wind energy by the U.K.

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#### Enron Mentions - 07/07/01 - 07/09/01

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INDIA: Enron India chief "optimistic" about Dabhol project. Reuters English News Service, 07/09/01

INDIA: Enron chief to discuss Dabhol with Indian officials. Reuters English News Service, 07/09/01

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Tough-talking energy adviser could head state power authority Associated Press Newswires, 07/08/01

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FOCUS ON ENERGY / As the clock ticks, rifts remain in Calif. electricity refund talks Houston Chronicle, 07/07/01

JUDGE URGES ON SETTLEMENTS FOR POWER OVERCHARGES Portland Oregonian, 07/07/01

Sustainability isn't simple The Seattle Times, 07/07/01

Campaign funds will pay for spots The San Francisco Chronicle, 07/07/01

OutFront Adam Smith, Save Us! How to solve California's power crisis: market pricing. BY Lynn Cook

07/09/2001 Forbes 058 Copyright 2001 Forbes Inc.

Power Surge | Here's a novel scheme to balance supply and demand for electricity in California. Hint: It's called market pricing. Californians have a chance to keep the lights on this summer: Let commercial customers take the power they would ordinarily use but decide not to, and sell it back to the grid at a profit. Such "negawatt" auctions are already being tested in Atlanta. Wal-Mart, say, could cool down its California stores by an extra three degrees during the nonpeak morning hours. In the afternoon, when temperatures and wholesale power prices soar, it could shut off air-conditioning and resell the power it would have consumed. Stores would be hot, but not unbearable. All Wal-Marts would get to remain open with cash registers operating instead of having to deal with scattershot closings and lost business because of blackouts. From steel fabrication plants to aluminum smelters that have already shuttered for the summer, heavy industry is itching to sell negawatts, says Marc Yacker, spokesman for the Electricity Consumers Resource Council representing industrial users. So why hasn't the Golden State seized a golden opportunity? Governor Gray Davis likes the idea, but not the proponents--Houston energy giants Enron and Reliant Energy--and any suggestion from Texas is, of course, anathema. Another little problem is that California's attorney general is on record favoring jail sentences for energy "profiteers." Let a big business like Wal-Mart make a spread on electricity? Horrors! Another hurdle: A multistate auction system of the sort that would rescue California would require overriding the federal Public Utility Holding Company Act, which prevents commercial and residential users from reselling juice to the grid. In Atlanta, where Georgia Power offers large industrial users a program called Daily Energy Credit, the utility was subject to approval only by a state commission, not the Feds, because it runs the negawatt program within its assigned borders and not across state lines. A bill pending in the U.S. House Energy & Air Quality subcommittee would have alleviated that. But in June the bill's sponsor, Representative Joe L. Barton, a Republican from Texas, yanked the relief package off the table, claiming House Minority leader Richard Gephardt, the Missouri Democrat, was planning to wreck the deal because it did not promote price caps. Gephardt denies the charge. A shame that it's so much harder to turn down the political heat than the central a/c.

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INDIA: Enron India chief "optimistic" about Dabhol project.

07/09/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW DELHI, July 9 (Reuters) - The chief executive of Enron Corp's Indian arm said on Monday he was optimistic about working through the company's payment dispute with a local utility. "There are a variety of options facing us with the project. We are just trying to work through those," Wade Cline told reporters in the Indian capital after a meeting with the country's finance secretary. "We are having good meetings with the ministry, so we are optimistic," Cline said. He added he had briefed the finance secretary ahead of Enron Corp Chairman Kenneth Lay's meeting with Finance Minister Yashwant Sinha. Lay is due to meet Sinha, the Indian power minister and senior officials in connection with the payment dispute between Enron's Dabhol Power Co and the Maharashtra State Electricity Board which has defaulted on payments of \$48 million to Dabhol. Enron's project is the largest direct foreign investment in India. Its first phase of 740 MW was completed in 1998, while a second phase adding another 1,444 MW was almost complete when its contractor stopped work because of the dispute.

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INDIA: Enron chief to discuss Dabhol with Indian officials.

07/09/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW DELHI, July 9 (Reuters) - Enron Corp Chairman Kenneth Lay is due to meet the Indian power minister and senior power ministry officials on Monday to discuss a dispute between the U.S. firm's Indian unit and a local utility, officials said. The firm's Dabhol Power Co and the Maharashtra State Electricity Board (MSEB) are locked in a payments dispute which provoked Enron to serve a preliminary termination notice to the utility, which in turn stopped buying power from Dabhol. "He is scheduled to meet Power Minister Suresh Prabhu at 5:25 p.m. (1155 GMT)," a federal power ministry official told Reuters. Lay was expected to discuss the future of the troubled Dabhol project, said the official who did not want to be identified. He said Lay would also meet senior officials in the federal power ministry before visiting Prabhu. MSEB, the sole buyer of Dabhol power, has defaulted on payments of \$48 million to Dabhol. Enron's project is the largest direct foreign investment in India. Its first phase of 740 MW was completed in 1998, while a second phase adding another 1,444 MW was almost complete when its contractor stopped work because of the dispute.

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Week in Review Desk; Section 4 The Nation: Look Sharp Trying to Run a Country Like a Corporation By DAVID E. SANGER

07/08/2001 The New York Times Page 1, Column 5 c. 2001 New York Times Company

WASHINGTON -- WHEN President Bush was sworn in nearly six months ago, Washington was awash with loose talk of a "C.E.O. presidency." The first president with an M.B.A. to his name, from Harvard Business School no less, would be the chairman of the board of the world's biggest conglomerate, his aides boasted, a leader who delegated to his cabinet of experienced C.E.O.'s. They said his administration would apply business discipline to a bloated government. And cabinet sessions do look a lot like the Business Roundtable, the organization of chief executives that, a few weeks ago, held part of its annual meeting in the East Room. Next to the president sits Dick Cheney, late of Halliburton, and Treasury Secretary Paul H. O'Neill, fresh from Alcoa. Donald H. Rumsfeld is also at the table, in his second run as defense secretary, after running G. D. Searle & Company. Lower level officials, too, look and sound like business folk. "We effectively are the C.E.O.'s of wholly owned subsidiaries of the Department of Defense," said Thomas E. White, who left Enron -- the Texas energy company that wields great influence here -- to become secretary of the army last month. But c

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### Organizational Changes from the EBS Office of the Chairman

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| Sender     | lara.leibman@enron.com                                                                                             |
| Recipients | ['linda.robertson@enron.com', 'mona.petrochko@enron.com', 'sue.nord@enron.com', 'scott.bolton@enron.com', 'ric...] |
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=09EBS Connected Newsletter =0904/20/01 05:21 PM =09=09=20 =09=09 To: All EBS Employees Worldwide =09=09 cc:=20 =09=09 Subject: Organizational Changes from the EBS Office of the Chairman

=20 =20

Market Close 4/20/01=20

59.99 -1.17

Bandwidth Intermediation (through 4/13/01)

YTD Transactions 679 Counterparties 69 LTD Transactions 988 Counterparties 128 Numbers above include Long Haul, Local Loop, IP, Storage, Advertising, DRA M and Satellite for North America, Europe and Asia.

April 20, 2001

#### UPDATE FROM EBS OFFICE OF THE CHAIRMAN

Since its inception just two years ago, Enron Broadband Services has made significant progress toward achieving our ambitious goals of being the leading provider of premium broadband content and the largest buyer and seller of bandwidth on a global basis. We are extremely proud of the company's accomplishments and equally optimistic about the future of EBS.

The market for bandwidth intermediation and risk management is developing more quickly than anticipated faster than the markets for natural gas or even electricity had developed. Global Trading and Risk Management has already executed more than 600 transactions this year, far exceeding the 321 total transactions executed in 2000. The Enron Intelligent Network (EIN), with its first-of-a-kind pooling point infrastructure, is in place to provide the physical backbone and switching platform to support EBS, emerging bandwidth and related trading operations.

Likewise, EBS has developed a superior technical and commercial platform to digitally deliver entertainment on-demand. While we have terminated our relationship with Blockbuster because of their inability to secure content, we remain confident that EBS will be successful in independently acquiring content commitments and developing distribution partnerships for this exciting new business.

EBS will continue to evolve as we build upon our presence in the bandwidth and network services market. While the market for broadband services in the U.S. and globally has undergone significant change in recent months, the demand for broadband services continues to grow dramatically and EBS has the skills and strategy required to be successful long term.

To better focus our efforts and respond to the market, we have made some organizational changes to enable us to effectively execute our strategy and efficiently grow EBS. These changes are outlined below and a current organizational chart is attached.

David Cox, formerly Managing Director of Content Origination, has been named Chief Commercial Officer, reporting to the EBS office of the chair. This new role will enable David to share his broad origination expertise with the various EBS commercial teams.

Digital Content Services, formerly Content Origination, is now led by Frank Bay with Rich DiMichele and Ed Smida. Rich will focus on the development of the content risk management business.

Stewart Seeligson is now leading an expanded Wholesale Origination unit combining media transport opportunities that Stewart has been developing in the broadcast industry and opportunities that Ted Seitz has been pursuing with traditional carriers, ISPs, and network service providers. This new origination team will focus on executing highly structured transactions with significant value in the wholesale market.

John Echols now leads the Enterprise Origination unit with Jim Crowder, Matt Harris and Brad Nebergall. Bryan Burnett also has joined the Enterprise team from Enron North America's Industrial Markets group. John's group will focus on intermediation opportunities with technology, financial, and corporate customers.

Dale Surbey has joined EBS from Enron North America to lead the Structuring group. Brad Richter will move to Jeff Donahue's Corporate Development team to pursue M&A and large, structured transaction opportunities.

Joe Edwards is leading the newly formed North American middle markets group, reporting to Paul Racicot.

Daryl Dunbar has joined EBS as a vice president in Engineering focusing on IP engineering. David Leatherwood and his team have moved to Enron Energy Services to develop outsourcing opportunities related to network engineering and construction.

We have established an impressive foundation from which to build our business and look forward to executing on the tremendous opportunities we see in this rapidly evolving market.

Click here to see the new organizational chart. =20

FLOOR MEETING WITH SKILLING Join Jeff Skilling at an EBS floor meeting next Tuesday as he answers=20 questions about our business and=20 discusses Enron's strategy. The floor meeting is designed to encourage op= en=20 communication and an=20 exchange of ideas. Date: Tuesday, April 24 Time: 1:30 p.m. Place: Near EB4423D If you wish to submit questions in advance, send them directly to Jeff by= =20 email or fax at 713-646-8381.

THANK YOU, EBS EMPLOYEES To show EBS employees their appreciation for all the hard work put forth th= is=20 quarter, Ken and Kevin=20 invite you to an afternoon of entertainment and recreation at Jillian's nex= t=20 Tuesday. Please join them at the=20 entertainment complex for fun, food and activities on April 24. Date: Tuesday, April 24 Time: 3:00 p.m.- 6:00 p.m. Place: Jillian's, 7620 Katy Freeway at Silber For those interested, a shuttle will be available. You can catch the shutt= le=20 to Jillian's outside the Enron=20 building on Andrews Street beginning at 2:30 p.m. If you have any question= s,=20 please contact Eddie Sera=20 at 3-0480.

EBS MARKET INTELLIGENCE ADDS NEW TOOLS Market Intelligence is pleased to announce the addition of Faulkner to the= =20 EBS family of research products=20 available to all EBS employees via wEBSource. Faulkner FACCTs is a fully= =20 searchable information service=20 that covers technology in the IT and communications industry segment. FACC= Ts=20 provides select vendor=20 company profiles, company timelines, market trends, product and service=20 profiles, standards information,=20 and company contact information. The Telecom Weekly, a part of FACCTs, is = an=20 outline of the week's=20 news and events shaping the telecom marketplace with "hot" web links. FACC= Ts=20 can be accessed by=20 selecting Faulkner from the Research menu of wEBSource. Click here to visi= t=20 the site now.

INTRODUCING IMPLEMENTATION LOGISTICS The Operations and Implementation group, formerly known as Customer=20 Engineering, has changed its name to=20 Implementation Logistics. "Our function and focus have not changed, just o= ur=20 name," said David Rollins, a=20 director of engineering in the group, "the name Implementation Logistics mo= re=20 clearly identifies the mission=20 and function of the group within Operations and Implementation."

In addition to the name change, the EC Reference - Customer Eng. database= =20 used for implementation=20 packages and AS-BUILT drawings is now known as EBS Implementation Logistics= . =20

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#### Enron Mentions

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Performance Reviews: Perilous Curves Ahead Grading employees via forced rankings is a valuable management tool, say many companies. A slew of employees beg to differ. Fortune Magazine, 05/28/01

UAE: Enron to pull out of Dolphin project Middle East Economic Digest, 05/18/01

Bush Energy Text Associated Press Newswires, 05/17/01

Williams Capital Group's Ellinghaus on Energy Policy: Comment Bloomberg, 05/17/01

Enron's Maurer on Brazil's Power Regulation Problems: Comment Bloomberg, 05/17/01

Enron to Provide Gas Prices to NGX, Drops Lawsuit (Update1) Bloomberg, 05/17/01

Venezuela to Award 11 Gas Tracts June 28-29, First Since 1975 Bloomberg, 05/17/01

USA: U.S. green groups pummel Bush energy plan. Reuters English News Service, 05/17/01

INDIA: Enron India unit lenders put off cancellation vote to Friday. Reuters English News Service, 05/17/01

UK: Global Coal website starts e-trading coal. Reuters English News Service, 05/17/01



CHINA: India tells Enron to renegotiate Dabhol contract. Reuters English News Service, 05/17/01

Common Cause Statement On Cheney Energy Panel's Report; Recommendations Seen As Payback For Big Time Donors U.S. Newswire, 05/17/01

FORTUNE Advisor/On The Job Performance Reviews: Perilous Curves Ahead Grading employees via forced rankings is a valuable management tool, say many companies. A slew of employees beg to differ. Matthew Boyle

05/28/2001 Fortune Magazine Time Inc. 187+ (Copyright 2001)

Sanaa Taraman taught at the University of Michigan at Dearborn shortly after getting her Ph.D. in industrial engineering, so she knows all about grading on a curve. But she never thought she'd be the victim of one. A 25-year Ford veteran and the mother of three, Taraman was told last December that she had received the rank of C, the lowest grade under Ford's new performance-evaluation system. Employees who get a C are not eligible for bonuses that year. Two C's in a row are grounds for dismissal. Those in the double-C group will "not necessarily" be fired, says Francine Romine, a Ford spokesperson. Taraman, 54, a senior technical specialist, says she had never before received a poor performance evaluation. She claims that her manager signed off on a B ranking after she successfully completed a demanding assembly-plant project, but that the ranking mysteriously changed to a C a week later. Now on medical leave to treat depression, Taraman joined eight other Ford employees in filing a class-action lawsuit in February, alleging that the auto giant's evaluation system discriminates against older workers. "I felt I was a scapegoat," she says. Romine maintains that Ford's ranking system "is fair and nondiscriminatory." In companies across the country, from General Electric to Hewlett-Packard, such grading systems--in which all employees are ranked against one another and grades are distributed along some sort of bell curve--are creating a firestorm of controversy. In the past 15 months employees have filed class-action suits against Microsoft and Conoco as well as Ford, claiming that the companies discriminate in assigning grades. In each case, a different group of disaffected employees is bringing the charges: older workers at Ford, blacks and women at Microsoft, U.S. citizens at Conoco. Forced ranking systems, also known as forced distribution or "rank and yank," have been around for decades. Adherents include several of FORTUNE's Most Admired Companies, like Cisco Systems, Intel, and GE (see sidebar). But thanks to the slowing economy and an increased focus on pay for performance, more companies--a quarter of the FORTUNE 500, by one estimate--have instituted such forced rankings or gotten tougher with their existing systems. For example, Enron recently expanded its ranking system to cover most U.S. employees, and last fall Hewlett-Packard decreed that a full 5% of its work force would receive HP's lowest grade, rather than the fuzzy 0 to 5% of years past. Proponents of forced rankings argue that they facilitate budgeting and guard against spineless managers who are too afraid to jettison poor performers. "Managers want to live in a Lake Wobegon, where all the children are above average, but that's not the truth," says Dick Grote, an HR consultant who has designed ranking systems for GE and Texas Instruments. Forced rankings, the thinking goes, force managers to be honest with workers about how they're doing. But critics say they compel managers to penalize a good but not great employee who's part of a superstar team. Conversely, a mediocre employee on a struggling unit can come out looking great. "In many cases, the lowest performer might not be that much lower than the highest," says Paul Spector, a professor of industrial psychology at the University of South Florida. Most companies guard against this problem by refraining from rigidly applying the distribution to smaller teams--but that means the spread has to be made up somewhere else. The result: Different managers spend hours haggling with one another to meet the overall distribution requirements. This horse-trading process can be frustrating and time-consuming, one Microsoft middle manager says. While Bill Zolna, a Microsoft spokesperson, denies that the company requires managers to assign a certain percentage of employees to each level, the middle manager says that there is unspoken pressure to do so. Another area of contention is the ranking criteria. In a manufacturing-based economy, it was easy to figure out who was up to snuff: Just see whether Joe is pumping out (or selling) more widgets than Bob. But today organizations use a slew of fuzzy qualitative criteria to evaluate employees. And while there's no doubt that teamwork and communication skills are vital, they are tough to gauge. After all, one manager's team player is another's sycophant. Enron's ranking criteria are "very subjective," admits Mark Palmer, a company spokesman, adding, "There aren't easy labels for what type of person someone is." There's also the danger that forced rankings can become a crutch for poor management. "Good managers should have the capability to make these difficult decisions without a system forcing it upon them," argues Chris Michalak, who designs such systems at Towers Perrin. Of course, one reason employees are up in arms about forced rankings is that they suspect--often correctly--that the rankings are a way for companies to more easily rationalize firings. In his latest message to GE shareholders, CEO Jack Welch said, "Not removing that bottom 10%...is not only a management failure but false kindness as well." This year Sun Microsystems will



use a forced-ranking system to identify its worst-performing 10%, who will be given 90 days to shape up, find another job inside Sun, or ship out. So is Sanaa Taraman's situation an anomaly or a taste of things to come? The latter, according to New York City employment lawyer Lorraine Ahlers-Mack. "There's going to be a lot of litigation surrounding this issue," she warns. Managers had better get ready. FEEDBACK: onthefjob@fortunemail.com [BOX] PLUS: FAT CEO PENSIONS | NEW OUTSOURCING DANGERS | INTELLECTUAL CAPITAL REVISITED [BOX] Making the Grade ENRON Divides employees into six categories: superior (5% of employees), excellent (30%), strong (30%), satisfactory (20%), needs improvement, and issues (combined, 15%). FORD Last year gave 10% of employees A's, 80% B's, and 10% C's (the lowest grade); will give only 5% C's this year. GENERAL ELECTRIC Divides employees into top (20%), middle (80%), and bottom (10%) categories. HEWLETT-PACKARD Uses a 1-to-5 scale, with 15% of employees getting 5's (the top grade) and 5% getting 1's; the percentage of 2's, 3's, and 4's varies. MICROSOFT Ranks employees from 1 to 5;

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### Enron Mentions

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Fortune Global 500 List: Enron No. 16 Fortune, July 23, 2001 THE CARNAGE GETS WORSE Profits at bellwether companies slid in the second quarter BusinessWeek, 07/30/01

Power-Market Bear Mauls Plans For New Generators In West Dow Jones Energy Service, 07/26/01 UK: Carrots and sticks to turn big business greener. Reuters English News Service, 07/26/01

JAPAN: UPDATE 1-Kobe Steel to raise 165 bln yen for power business. Reuters English News Service, 07/26/01

ENRON CANCELS MIAMI-DADE PLAN POWER PLANT BUILDER FAVORS DEERFIELD SITE South Florida Sun-Sentinel, 07/26/01

Rove's First Step Toward Shedding Stock Took 5 Months The Washington Post, 07/26/01

Insider Selling by Enron Execs Speaks Louder Than Their Words TheStreet.com, 07/20/01

Enron's Own Dot-Com Bubble Finally Popped TheStreet.com, 07/13/01

Fortune Global 500 List: Enron No. 16 Fortune, July 23, 2001  
[http://www.fortune.com/indexw.jhtml?channel=artcol.jhtml&doc\\_id=203281](http://www.fortune.com/indexw.jhtml?channel=artcol.jhtml&doc_id=203281)

News: Analysis & Commentary: FLASH PROFITS THE CARNAGE GETS WORSE Profits at bellwether companies slid in the second quarter By Pallavi Gogoi in Chicago, with bureau reports

07/30/2001 BusinessWeek 34 (Copyright 2001 McGraw-Hill, Inc.)

Welcome to the earnings recession. Economists may debate the health of the economy, but there's little doubt where Corporate America stands: Profits have shrunk for three consecutive quarters now. Higher energy costs, the gut-wrenching hangover from tech-spending excesses, and the strong dollar have all contributed to a slowing economy--and continue to take a heavy toll on earnings. That's despite seemingly strong revenue gains. Although overall sales rose 8% in the second quarter from the year before, BusinessWeek's flash profit survey of 90 bellwether companies shows that net income shriveled 34%. But on a closer look, sales weren't so hot either. Much of the jump stems from Enron Corp.'s 196% revenue gain. Barring that, overall sales were flat. DEPRESSED. Nor is the carnage over yet. First Call/Thomson Financial says earnings will drop 8% in the third quarter. Worse, recent earnings surprises have the Boston firm backing away from a projected 3.3% profit recovery in the fourth quarter. So far, 811 companies have warned of lower second-quarter earnings, up from 263 a year ago. "You don't switch from record earnings warnings to normal overnight," says Charles L. Hill, First Call's director of research. Few sectors escaped the bloodbath. Tech companies continued to lead the downturn: Intel Corp.'s net dropped 94% on depressed demand for chips, while Motorola Inc.'s \$759 million quarterly loss was one of the worst among the 90 companies. Carmakers and airlines didn't fare much better. General

Motors Corp.'s profits plunged 73% on weaker sales and losses from overseas units. ``The strong dollar is becoming an increased problem in the marketplace," says GM CFO John Devine. Among carriers, UAL Corp. was one of the worst performers, posting a \$292 million loss. Corporate travel cuts will force losses at most major carriers. The financial services sector was a mixed bag. Citigroup's net rose 9%, to \$3.7 billion, on higher global business growth. But venture capital investments in technology dealt Wells Fargo & Co. an \$87 million loss. There were few surprises among the quarter's star performers. Jack Welch will retire with his legacy as a master of strong and consistent earnings intact: General Electric Co. earnings rose 15%, to \$3.9 billion. Pharmaceuticals were also healthy. Pfizer Inc.'s net surged 56% to \$1.8 billion, and Johnson & Johnson's climbed 9%, to \$1.5 billion, on increased drug sales. Good thing. If the economy stays sick, we're all going to need plenty of painkillers.

Table: BusinessWeek's Flash Profits Survey (This table is not available electronically. Please see the July 30, 2001 issue.)  
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Power-Market Bear Mauls Plans For New Generators In West By Mark Golden Of DOW JONES NEWSWIREs

07/26/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- The crumbling price of electricity in the western U.S., attributed by many to federal price controls, has forced power plant developers to cancel projects, calling into question whether there will be enough electricity to meet demand in the Northwest this winter. The cancellations of peaking plants and temporary, oil-fired generators - high-cost units that provide power needed only when demand is highest - have cut projected generating capacity in the Northwest by up to 1,000 megawatts, about 3% of the combined peak demand of Washington, Oregon, Idaho and western Montana. "The price caps have added uncertainty," said Scott Simms, spokesman for Enron Corp. (ENE) unit Portland General Electric Co. "If we look forward to this winter and you see a diminished supply scenario, you can see why we have concerns about regional reliability. That could put us in a position of having rotating outages in the region." About two weeks after the Federal Energy Regulatory Commission imposed limits on western power prices on June 19, Portland General halted installation of a new 45-megawatt gas-fired peaking turbine at its existing Boardman power plant. The utility was developing the extra generation both to meet its customers' needs and to sell some output to other Northwest utilities left short of hydroelectric supplies due to this year's drought. A turbine that size could power about 45,000 homes. "You can directly attribute that to FERC price controls," Simms said. After the FERC order, at least two utilities in Washington State ended negotiations with NRG Energy (NRG) for supplies from new plants that NRG was ready to build in time for winter. Both utilities - Tacoma Power and Snohomish County Public Utility District - experienced significant supply shortages in the past 12 months, paid very high prices in the spot market and had to raise customer electric rates by as much as 50%. But both utilities told NRG, and later Dow Jones Newswires, that they had no reason to sign long-term contracts to guarantee new supplies, because the FERC had practically eliminated the financial risk of relying on the spot market. NRG, as a result, scuttled plans to build peaking plants in Washington that could have added 300 megawatts. FERC's price controls, as well as supply-demand fundamentals, have dramatically changed the economics of selling power into the West's open market in the past few months. The current western U.S. electricity price cap of \$98 a megawatt-hour covers the costs of generating power from easy-to-install but inefficient peaking turbines, but not the capital costs of buying and installing new peakers. In addition, the current price cap may soon be recalculated to a much lower level. The cap is based largely on natural gas prices, which have been cut in half since the cap was first formulated in June.

#### Not Everyone Blames FERC

The average monthly price for on-peak hours in the Northwest from August through March is \$60 a megawatt-hour - a fraction of what it was three months ago. Many in the western electricity industry think that's because FERC's price controls have kept prices artificially low. A smaller group thinks the market is appropriately signaling that not all the planned gas-fired plants are needed, because some power plants are already under construction and consumers are conserving electricity. Jim Kemp, a senior executive for the Canadian utility TransAlta's (TA.TO) merchant power group, TransAlta (TA.TO), for example, doesn't attribute the cancellation of projects to price controls. "I see it as due to demand-side control and new units," Kemp said. "The market is sending out a signal tha

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## Enron Mentions

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Enron Prepares To Become Easier to Read The Wall Street Journal, 08/28/01 The State PG&E's Power Bill May Go Up Energy: The PUC wants to shift some of the state's cost of buying electricity away from Edison. It also proposes a 12% rate hike for SDG&E. Los Angeles Times, 08/28/01

Enron Names Whalley, Frevert to Chairman's Office (Update1) Bloomberg, 08/28/01

USA: Enron names Greg Whalley president, COO. Reuters English News Service, 08/28/01 Enron Names Greg Whalley President, Oper Chief Dow Jones News Service, 08/28/01 INDIA PRESS: Fincl Cos Look For Enron Stake Buyers Dow Jones Asian Equities Report, 08/28/01 Enron denies seeking sanctions over Dabhol The Times of India, 08/28/01 Markets / Your Money Stocks Ease After Friday's Big Gains Markets: NYSE trading is light. Among commodities, natural gas prices see 18-month lows. Los Angeles Times, 08/28/01 Vignette Rises as eBay, Yahoo Fall Amid Seesaw Day for Tech Stocks The Wall Street Journal, 08/28/01 Enron works to shore up confidence Houston Chronicle, 08/28/01

Heard on the Street Enron Prepares To Become Easier to Read By Rebecca Smith and John Emshwiller Staff Reporters of The Wall Street Journal

08/28/2001 The Wall Street Journal C1 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Can a humbler, more-informative Enron refuel investor enthusiasm? That's the hope of Kenneth Lay, founder and chairman as well as the once-again chief executive of this Houston energy and trading company. Enron has been regarded as one of the nation's most innovative -- though bedevilingly complicated -- companies. Mr. Lay acknowledges that Enron, which grew into a colossus over the past decade with a hard-charging, in-your-face management style, has "lost some credibility" with the investment community. "I want to make sure we restore that credibility," he said in an interview last week. He promises fuller disclosures, and Enron has a lot riding on whether investors find them sufficient -- and soothing. Last summer, the company's stock price hit \$90 a share, giving Enron a dazzling price-to-earnings ratio exceeding 60. As of 4 p.m. in composite trading yesterday on the New York Stock Exchange, Enron was at \$37.76, up \$1.41, sporting a more-conventional P/E ratio of about 21 times this year's expected earnings. The stock slide has multiple causes, including uncertainty about trading profits, due to the slower economy and a drop in energy prices as well as mounting concerns about the difficulty that investors face in figuring out how the company's extremely complex operations make money. Layer on management turnover. Earlier this month, Enron lost its chief executive when Jeffrey Skilling, Mr. Lay's longtime lieutenant and handpicked successor, unexpectedly resigned after only about six months in the top job. The 47-year-old Mr. Skilling was widely credited with helping to build Enron into the nation's leading energy trader and personified the company's brash manner. During an investor conference call in April, for example, when a caller criticized Enron's schedule for releasing financial information, Mr. Skilling responded by calling him an "ah." Mr. Skilling, who is on a river rafting trip, couldn't be reached for comment but others at the company, including Mr. Lay, say it was an unfortunate word choice that continues to haunt the company. At the time, Mr. Skilling said he regretted if anyone was offended by his remark. Though Mr. Skilling initially said his resignation was strictly for personal reasons, he added in a later interview that his own feelings of failure over the plummeting stock price had contributed greatly to his early departure. The 59-year-old Mr. Lay resumed the chief executive's job that he had previously held for 15 years. Jeff Dietert, an analyst from Simmons & Co. International in Houston, figures that Enron's P/E is likely to be permanently lower, though still somewhat higher than the average for its peer group. Mr. Dietert views Dynegy as the premium energy stock, which will fetch the highest trading multiple. While Mr. Lay insists that Enron's overall operating and financial condition is very strong, the unexpected exit of Mr. Skilling has some wondering if "there isn't another shoe about to drop," says Carol Coale, an analyst at Prudential Securities. To lessen such concerns, Mr. Lay promises to address the longtime analyst and investor complaint that Enron doesn't provide enough information about its extremely complex operations, which include not only construction of natural-gas pipelines and power plants but the trading of an ever-expanding array of commodities. Nowadays, Enron

trades everything from telecommunication capacity to weather-linked derivative contracts. "I truly do not understand all their financial arrangements, and I've sent information on their deals to accountant friends and they don't understand them either," says Rebecca Followill, an analyst at Howard Weil, who refers to Enron's accounting methods as a "black box." Yet analysts long put out buy recommendations on Enron stock, in large part because the company has issued consistently strong earnings. In 2000, for example, the company reported net income rose 10% to \$979 million on revenue that more than doubled to \$100 billion. Assets over the past five years more than quadrupled to about \$65 billion. "When the stock price and earnings were going up so quickly, less attention was paid to the quality of earnings," says Zach Wagner, an analyst at Edward Jones in St. Louis. With the stock price down, "Enron has to show that they do have quality earnings. The only way to do that is to open up the books," he says. Mr. Lay says Enron will start putting out more detailed information on individual business segments and "give a better idea of the profitability of various businesses" such as its wholesale-services category where a lot of business activities gets lumped. In another blow to criticism, Chief Financial Officer Andrew Fastow as of July 31 quietly ended his ownership and management ties with certain limited partnerships. Over the past two years, Enron has placed billions of dollars of assets and millions of shares of its stock into complex transactions with these partnerships. Enron executives say the transactions were perfectly proper and that the company asked Mr. Fastow to take part in the deals, which were done to reduce the risk of fluctuating market prices. An Enron spokesman says Mr. Fastow has no comment on the matter. Yet some analysts say they have been concerned about having Enron's top financial executive in a fiduciary position at entities that, at least potentially, stood to gain if the company lost in the transactions -- and vice versa. Mr. Lay says the transactions involving Mr. Fastow had become a "lightning rod" for criticism so "we're better off not doing it." Of course, it's still a challenge trying to make sense of these transactions. Consider the following snippet from Enron's second-quarter report concerning some Fastow-related deals: "Enron has entered into agreements with entities formed in 2000, which included the obligation to deliver 12 million shares of Enron common stock in March 2005 and entered into derivative instruments which eliminated the contingent nature of existing restricted forward contracts executed in 2000. . . . In exchange, Enron received notes receivable from the Entities totaling approximately \$827.6 million. In addition, Enron entered into share settled costless collar arrangements with the Entities on the 12 million shares of Enron common stock. Such transactions will be accounted for as equity transactions when s

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Senate Panel Lashes Out at 2 Energy Firms Hearings: Lawmakers hold Enron and Mirant in contempt for refusing to help in pricing probe. Los Angeles Times, 06/29/01

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Duke Energy Agrees to Buy Mississippi Power Plant From Enron Bloomberg, 06/28/01

U.S. Power Suppliers' Second-Quarter Profits to Rise (Update1) Bloomberg, 06/28/01

National Desk; Section A California Cites Generators For Withholding Documents By LAURA M. HOLSON

06/29/2001 The New York Times Page 18, Column 5 c. 2001 New York Times Company

SACRAMENTO, June 28 -- California legislators turned up the heat on power generating companies today, citing two of them for not handing over documents necessary in the state's continuing hearings on the spike in electricity prices. A special legislative panel, called the Senate Select Committee to Investigate Market Manipulation, unanimously passed a contempt motion this afternoon saying that the Mirant Corporation, based in Atlanta, and the Enron Corporation, based in Houston, had failed to respond to a June 11 subpoena asking for documents. The motion comes as the committee is trying to follow the paper trails to determine if power generating companies willfully manipulated the supply of electricity here last year in an effort to drive up prices. Several state agencies are investigating similar charges. Other companies, including Reliant Energy and Dynegy Inc., complied with the committee's requests for thousands of documents related to power sales and bidding procedures. Several other companies, which include the Williams Companies, the Duke Energy Corporation, the AES Corporation and NRG Energy Inc., are expected to hand over documents in two weeks. California's two largest utilities have racked up \$14 billion in debt, forcing one to file for bankruptcy protection. Last week, three former employees of Duke Energy told the committee that they observed behavior that they believed was consistent with market manipulation. Duke denied the charge, saying there was no merit to the accusations. The chairman of the select committee, Joseph Dunn, a Democrat, said that if Enron and Mirant complied with the request by July 10, the contempt order would be expunged. "We were not seeking to find contempt but to obtain compliance," he said today. "Unfortunately, we had to find contempt." The documents were subpoenaed earlier this month by the Senate Rules Committee to obtain details on bidding, pricing and other aspects of power sales. The power companies have said that they have not complied because they have not been able to negotiate an acceptable confidentiality agreement. By seeking the contempt citations, the committee needs the full Senate to follow through. There are no set penalties, said Laurence Drivon, the committee's special counsel, adding that by law, "the Senate can take such action as it deems necessary and appropriate." Patrick Dorinson, a spokesman for Mirant, said the company was seeking assurances that any information it handed over, which it considered proprietary, not be made public. He said the company had been negotiating with the committee up until today and hoped to resolve its concerns in the next few days. For Enron's part, a representative of that company sent a letter to Mr. Dunn outlining its objections to turning over documents. Michael Kirby, a San Diego lawyer, wrote that the documents the committee wanted were outside the state and thus out of the jurisdiction of the California subpoena. He also wrote that the committee was asking the company to reproduce documents that other state regulatory agencies already have. He called the subpoena's orders "vague, unduly burdensome, often argumentative and beyond the scope and extent of both the subpoenaing party's legal and regulatory authority and subpoena power." Today's legislative action took place in an atmosphere of increasing attacks on the power generators. A poll by The Los Angeles Times this week found that 86 percent of Californians interviewed believed that power companies had manipulated the electricity market in the state. Duke Energy, based in North Carolina, opened a campaign this week to do something about this widespread public view, taking out full-page newspaper advertisements in California to defend itself against accusations that it cut production to drive up profits.

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California; Metro Desk Senate Panel Lashes Out at 2 Energy Firms Hearings: Lawmakers hold Enron and Mirant in contempt for refusing to help in pricing probe. CARL INGRAM TIMES STAFF WRITER

06/29/2001 Los Angeles Times Home Edition B-1 Copyright 2001 / The Times Mirror Company

SACRAMENTO -- Angered by the refusal of electricity wholesalers to surrender information about suspected price gouging, a Senate committee voted Thursday to hold two big energy companies in contempt of the Legislature. It was uncertain what punishment, if any, may be in store for Enron Corp. of Houston and Mirant Corp. of Atlanta. But committee

members said potential sanctions could include heavy fines and/or the jailing of corporate executives. "Jailing of an individual is an option and we intend to preserve all our options," warned state Sen. Joe Dunn (D-Santa Ana), chairman of the committee investigating whether the wholesalers had manipulated the market. "Could we impose, say, \$9 billion in fines?" Sen. Debra Bowen (D-Marina del Rey) asked rhetorically. Enron reacted angrily. "This is a shakedown," charged spokesman Mark Palmer. "And if this is a shakedown, we're going to protect our legal rights." Enron had further enraged the committee by sending a letter saying the legislative panel had no authority to conduct its investigation because wholesale prices were the "exclusive jurisdiction" of the Federal Energy Regulatory Commission. A spokesman for Mirant said the company intends to keep talking to the committee to reach an agreement. The bipartisan committee had been prepared to find eight generators--mostly out-of-state companies--in contempt for refusing to produce the subpoenaed records. But by the end of the four-hour hearing, companies that said they would cooperate--AES, Duke, Dynergy, NRG, Reliant and Williams--escaped a citation, at least temporarily. Though the committee found Enron and Mirant in contempt, its action is subject to ratification by the full Senate. Dunn said contempt citations are so rare there are few guidelines to follow in determining a punishment. He said it "could be anything that the Senate believes is necessary and reasonable." The finding of contempt for failure to obey a legislative subpoena is rarely used in California. Sources said it last was done in

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Message 1059 of 1299

### Electricity traders' tech habits get scrutiny

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This one is particularly amazing ...

Electricity traders' tech habits get scrutiny Posted at 10:23 p.m. PDT Sunday, June 10, 2001 BY JENNIFER BJORHUS

Mercury News

State officials investigating California's extraordinary energy prices are zeroing in on how energy traders use the technology tools of their profession -- from e-mail and specialized software to Internet energy data sites and online trading floors.

This technology may be key, they say, to helping traders acquire the intimate knowledge needed to manipulate California's troubled energy market. With minute-to-minute knowledge of market conditions, some traders went even further, two lawsuits charge, illegally coordinating bids and sending electricity prices to record-breaking levels.

The state Attorney General's Office has subpoenaed from power generators software used to formulate bidding strategies, names of employees providing computer support, communications with a prominent industry Web site and the name of firms that handle computer networks.

And a state Senate committee has hired an information technology consultant to help them look into how traders tracked patterns on the state's Internet-based spot market, among other things.

"Once you were knowledgeable about its operations, the opportunity to game it became pretty obvious," said Sen. Joe Dunn, D-Garden Grove, who chairs the committee.

Anti-trust laws

Working together, or colluding, to fix prices is illegal and violates state and federal anti-trust laws.

Sharing sensitive industry data, if it involved financial markets, would be considered insider trading and would be treated far differently, said Anjali Sheffrin, head of market analysis for the Independent System Operator, which manages the state's power grid.



The Securities and Exchange Commission polices the nation's stock markets, but wholesale energy trading goes largely unwatched by federal regulators.

San Diego attorney Mike Aguirre agreed with Sheffrin. Aguirre is part of a team of lawyers who have filed two lawsuits against leading power generators such as Dynegy, Duke Energy and Williams Energy Services.

``It's basically an embryonic kind of trading market that involves the sharing of inside information, and the only reason they're getting away with it is there's no SEC cop," he said.

Energy companies dismiss these charges as speculation.

``All of these 'What ifs?' " said Dynegy spokesman Steve Stengel. ``The fact of the matter is we've played by the rules, we've acted ethically, we haven't done anything wrong."

Energy companies say the way they use technology is all above board.

``That's something that we're proud of, that we have all of the tools to do the best possible job in the trading," said Paula Hall-Collins, spokeswoman for Tulsa-based Williams Co.

Not everyone is persuaded that energy companies actually conspired to hike prices.

Some public officials and energy industry players call the technology focus a red herring. California's energy problems are far more fundamental, they say, than click-happy energy traders with spreadsheets. The now-defunct California Power Exchange, for example, was something of a sitting duck, unable to freely shop around for the best electricity prices.

#### Wealth of data

Other experts believe the sheer wealth of data floating around -- from river flows to 30-day forecasts of power line outages -- gives traders an unfair advantage. ``That's exactly the issue," said Severin Borenstein, director of the University of California Energy Institute. ``The issue is whether all this information is actually doing more harm to competition than benefit to the efficiency of procuring and selling power."

The best illustration of this is a somewhat legendary Web site blunder.

In that incident, an energy industry association called the Western Systems Coordinating Council posted highly sensitive real-time data about transmission of extra-high voltage electricity in California.

Alarmed that such information could be used to game the market, the state's grid operator last October demanded that the trade group take the information off the site, which it did.

A former energy trader who spoke to the Mercury News on the condition that he not be identified, said: ``When you can calculate exactly what a market needs and where its surplus is going to come from, then you have the ability to essentially fix prices. It's like a linear equation. You know exactly what the end equation is going to be."

At issue are how traders employ the tools that, like the telephone and fax machine, are standard in trading electricity: software, data Web sites and Internet energy exchanges.

Dunn and other public officials acknowledge that it isn't clear how technology was used in suspected abuses. And no one has turned up slam-dunk evidence of collusion.

The ISO has done extensive studies that conclude traders drove up prices through gaming. The high prices have cost the state at least \$6.7 billion since May 2000.

``Energy traders trade information among themselves," the ISO's Sheffrin charged, comparing it to insider-trading. ``These traders are calling each other up all the time."

The former energy trader who talked to the Mercury News agreed energy traders as a very incestuous group.

They talk and e-mail every day. ``Sometimes many, many, many times a day," he said. ``Some of them have instant messaging." He said he believes it could amount to ``de facto collusion."

But proving collusion in court is extremely difficult.

The sticking point, said UC's Borenstein, is showing exactly what energy traders did with the information.



"These guys aren't actually sitting down in a room together," Borenstein said. "They sort of watched each other and said, 'Well, other firms are keeping capacity out and we will too.'"

The former energy trader said he doubted that investigators would prove collusion because traders will cover their tracks. "They're expunging hard-drive data as we speak," he said. "The documents are long gone."

#### Lawsuits

Two class-action lawsuits, filed on behalf of taxpayers by San Francisco and by Lt. Gov. Cruz Bustamante, accuse the energy companies of colluding to drive up prices. Neither lawsuit clearly documents how the energy companies engaged in secretive data-sharing.

The Bustamante suit, however, targets a new Internet site for wholesale energy trading launched last fall by heavy-hitter energy companies such as Duke and Reliant. The Atlanta-based Web site, IntercontinentalExchange, is one of at least a dozen such electronic trading floors that have popped up on the Internet in the last four years. None of these trading exchanges -- which analysts say are the wave of the future -- are regulated.

IntercontinentalExchange declined to comment since it is not a party to the suit.

The lawsuit charges the site "has several features that support collusive behavior amongst market participants."

One is that only approved traders have access to IntercontinentalExchange and those traders can pick who they want to trade with and shut other traders out. And more importantly, Aguirre said, the energy companies who own many of these Web exchanges get the tremendous benefit of having a record of all the trades.

"It gives them an enormous amount of market data that no one else has access to," he said. "It's a conduit for collusion."

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Contact Jennifer Bjorhus at [jbjorhus@sjmercury.com](mailto:jbjorhus@sjmercury.com) or (408) 920-5660.

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#### Message 1060 of 1299

### FW: Two Rulings Re: SDG&E's Motion For Implementation of MOU and

|            |                                                                                                                                                                                                                    |
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| File       | <a href="#">dasovich-j/all_documents/29039</a> .                                                                                                                                                                   |

On Friday I forwarded to you SDG&E's Motion to Implement its Memorandum of Understanding. The below Chief ALJ ruling calls for comments on the Motion by Friday the 27th. Please let me know as soon as possible if Enron is interested in commenting.

Jeanne Bennett -----Original Message----- From: Wong, John S. [<mailto:jsw@cpuc.ca.gov>] Sent: Monday, July 23, 2001 3:48 PM To: 'DavoodiKR@efaches.navfac.navy.mil'; 'mbrubaker@consultbai.com'; 'douglass@energyattorney.com'; 'christine.costa@sce.com'; 'uwuaregion5@earthlink.net'; 'chiefskip@aol.com'; 'mshames@ucan.org'; 'knelville@sempra.com'; 'tbrill@sempra.com'; 'jleslie@luce.com'; 'fmo@sdcity.sannet.gov'; 'riald@kindermorgan.com'; 'furanj@efawest.navfac.navy.mil'; 'mdjoseph@adamsbroadwell.com'; 'freedman@turn.org'; 'bfinkelstein@turn.org'; Farrar, Darwin; 'ek@a-klaw.com'; 'DVRONROCK@ADPLAW.COM'; 'epoole@adplaw.com'; 'jsqueri@gmssr.com'; 'jbennett@gmssr.com'; 'pbray@newpower.com'; 'jmalkin@orrick.com'; 'jguzman@nossaman.com'; 'cjw5@pge.com'; 'ssmyers@worldnet.att.net'; 'tsmegal@calwater.com'; 'bishop@jrwood.com'; 'cwrnccv@worldnet.att.net'; 'jweil@aglet.org'; 'tknox@klalawfirm.com'; 'jtachera@energy.state.ca.us'; 'rliebert@cfbf.com'; 'uwua273@aol.com'; 'rogerberliner@bcjlaw.com'; 'leslie.lawner@enron.com'; 'kswitzer@scwater.com'; 'cil@cd4.sannet.gov'; 'LVanWagenen@sempra.com'; 'jhay@sempra.com'; 'jskillman@prodigy.net'; 'fosterbc@sce.com'; 'jpeck@sempra.com'; Monson, Maurice; 'kilton@gralegal.com'; 'luluw@newsdata.com'; 'rbw@mrwassoc.com';

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'glsg@pge.com'; 'hwmoore@pcit.com'; 'margery.a.neis@us.pwcglobal.com'; 'natutt@duanemorris.com'; 'j3m9@pge.com'; 'epoole@adplaw.com'; 'derkp@newsdata.com'; 'luluw@newsdata.com'; 'tom.oneill@abnamro.com'; 'mmattes@nossaman.com'; 'RJP2@pge.com'; 'brb3@pge.com'; 'drp6@pge.com'; 'ell5@pge.com'; 'jyf1@pge.com'; 'mrh2@pge.com'; 'NXK2@pge.com'; 'rrh3@pge.com'; 'rtp1@pge.com'; 'alexm@calpine.com'; 'gtbl@dynegy.com'; 'joe.paul@dynegy.com'; 'honest@compuserve.com'; 'jon.jacobs@paconsulting.com'; 'emitchel@angnewspapers.com'; 'rbw@mrwassoc.com'; 'joeyoung@ebmud.com'; 'dmarcus@slip.net'; 'jeff@hmhresources.com'; 'ed@apx.com'; 'wendy@econinsights.com'; 'chrism@mid.org'; 'fwmonier@tid.org'; 'rmccann@cal.net'; 'blaising@braunlegal.com'; 'melanie\_gillette@rmiinc.com'; 'Slayman@energy.state.ca.us'; 'swchurchill@juno.com'; 'jdh@eslawfirm.com'; 'ddavie@hesinet.com'; 'karen@klindh.com'; 'cpeyton@sacbee.com'; 'thaines@smud.org'; 'huse@eesconsulting.com'; Stevens, Maria E.; Premo, Anne W.; Walwyn, Christine M.; Danforth, Christopher; Khoury, Dexter; Lafrenz, Donald J.; Fua, Faline; Yee, Helen W.; Lo, Jeanette; Wong, John S.; DeUlloa, Joseph R.; Halligan, Julie; Kajopaiye, Kayode; Malcolm, Kim; Lippi, Kimberly; Krannawitter, Laura L.; Serizawa, Linda; Vanko, Maria; Durgin, Pamela M.; Kinasian, Robert; Feraru, Robert T.; White, Rosalina; Casey, Sean F.; Linsey, Steve; Roscow, Steve; Ross, Steve; Pulsifer, Thomas

R.; Burns, Truman L.; Tapawan-Conway, Zenaida G.; 'nevillm@hdcdojnet.state.ca.us'; 'dwrlegal1@water.ca.gov'; Hartmann, Audra; 'mjaske@energy.state.ca.us'; 'randy.chinn@senate.ca.gov'; 'firmiyas@dof.ca.gov'; Campbell, Rod; 'rtavares@energy.state.ca.us'; 'mschwebs@energy.state.ca.us'; 'rpernell@energy.state.ca.us' Subject: Two Rulings Re: SDG&E's Motion For Implementation of MOU and Prop osed Settlement of Pending Writ of Review

Attached are two rulings pertaining to recent filings made by SDG&E in (A.00-11-038, A.00-11-056 and A.00-10-028) and in (A.00-10-045 and A.01-01-044).

SDG&E filed a motion on July 13, 2001 in A.00-10-045 and A.01-01-044 for implementation of the memorandum of understanding (MOU) that was signed by the California Dept. of Water Resources and by SDG&E/Se

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Message 1061 of 1299

#### FW: ACR Inviting Comment On DWR/CPUC Proposed Rate Agreement

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| File       | dasovich-j/all_documents/28900.                                                  |

Attached is an ACR issued today requesting comment on the Rate Agreement reached by the CPUC and DWR (which I will send under separate cover). The ACR highlights certain aspects of the Agreement and asks for parties to evaluate the effects of the Agreement and indicate what they believe the consequences of its adoption would be. Comments are due by August 1st.

The Agreement itself basically calls for DWR to set its revenue requirement based on "Bond Related Costs" and "Operating Expenses" and for the Commission to implement such revenue requirement. It is up to DWR to determine whether the revenue requirement is just and reasonable prior to submitting it to the Commission.

Please let me know if Enron is interested in Commenting on the Agreement.

Jeanne Bennett

-----Original Message-----

From: Wong, John S. [mailto:jsw@cpuc.ca.gov] Sent: Wednesday, July 18, 2001 10:11 AM Subject: ACR Inviting Comment On DWR/CPUC Proposed Rate Agreement

Attached is an assigned Commissioner ruling (ACR) inviting comment on the proposed rate agreement between the California Dept. of Water Resources and the California Public Utilities Commission. Interested parties may file comments with the Docket Office on or before August 1, 2001.

Please note that there are three attachments to the ACR. Attachment A, the proposed rate agreement, is being forwarded to you as a separate PDF document. Attachment B, the relevant Water Code sections, is contained in the body of the attached Word document. Attachment C is the two page letter from the DWR, the Dept. of Finance, and the Treasurer's Office to President Lynch dated July 2, 2001. Attachment C was previously distributed to the A.00-11-038 et al service list in the Chief ALJ's ruling dated July 5, 2001. Today's ACR and all three of the attachments can also be accessed at the CPUC's web site.

<<A0011038 Lynch Ruling.doc>>

John S. Wong CPUC - ALJ (415) 703-3130

- A0011038 Lynch Ruling.doc

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## Message 1062 of 1299

## State Board of Equalization Decision Stands in the Way of New Power

|            |                                                                            |
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Contact: Jean Munoz FOR IMMEDIATE RELEASE 916-447-8186  
June 21, 2001

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State Board of Equalization Decision Stands in the Way of New Power Supply Decision opposed by local governments, tax-payers

The State Board of Equalization voted 5-0 Wednesday to usurp local control over tax assessments of electrical corporations. undermining current local incentives to welcome and site desperately needed power supplies in California.

"This decision defies logic. creating yet one more barrier, and more uncertainty, for developers proposing to build desperately needed electricity generation in California," said Jan Smutny-Jones, Executive Director of the Independent Energy Producers Association.

The Board's action, if not found unconstitutional, removes many of the incentives local governments have in siting new power plants by shifting assessment authority from local governments to the state. potentially disrupting the traditional revenue flow to local communities.

This change was opposed by all the host local communities, the California Tax Assessors Association, the Kern County Tax Assessors, the Los Angeles Tax Assessors, and Cal-Tax.

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## Message 1063 of 1299

## SIGNIFICANT DEVELOPMENTS; Davis Staff Admit that DWR Costs for

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| File       | dasovich-j/all_documents/10411.                                         |

Please see the following important stories. It appears to be quickly slipping through Davis' fingers. May be useful to re-group a bit in light of the following events. In sum:

Most importantly, in today's Chronicle, it's reported that Davis' staff met with key Democrats yesterday and lowered the boom. DWR purchases likely to be about \$25 billion and rates may have to go up by 100%. (See attached story.) Apparently, one of the big reasons that 8X got held up yesterday is because Davis' own staff went to D leadership and said, "don't move 8X (a bill that Davis was said to support) because the \$10 billion cap on bonds won't work; they need much more." It appears that rate increases will now become part of the mix, whether Davis likes it or not. The staff alleged that they were conveying the information before Davis had been informed of the "bombshell." Davis was criticized for being at yet another fund-raiser yesterday while the situation significantly deteriorated in Sacramento. (See attached story.) Meanwhile, PG&E has sued--or may be about to sue--the State, saying they won't pay the QFs according to Davis' plan (which the PUC is supposed to implement on Tuesday). (See attached PG&E press release.) Finally, Mike Kahn has issued an opinion piece in yesterday's Chronicle, in which he attempts to lump together into one pile Republicans, market proponents, price gougers and Texans, and defending Davis and Lynch.

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\*\*\*\*\* Davis' Measured Plan To Fight the Darkness Michael Kahn

Friday, March 23, 2001 ,2001 San Francisco Chronicle URL:

[http://www.sfgate.com/cgi-bin/article.cgi?file=/chronicle/archive/2001/03/23/E\\_D103778.DTL](http://www.sfgate.com/cgi-bin/article.cgi?file=/chronicle/archive/2001/03/23/E_D103778.DTL) COMMENTS on Gov. Gray Davis' energy programs by apologists for former Gov. Pete Wilson bring to mind Robert Kennedy's admonition that it is better to light a candle than curse the darkness. Let's examine the darkness created by Wilson's energy deregulation scheme. The 1996 law he signed could not have been more wrong headed. -- Why did it hand energy price control over to the Federal Energy Regulatory Commission? -- Why did it free wholesale prices, while capping the price utilities could charge customers? -- Why did the former state Public Utilities Commission force utilities to sell off their fossil fuel power plants, leaving them vulnerable to predatory pricing by out-of-state merchant generators? -- Why did the Wilson-era PUC bar utilities from entering into contracts to ensure a long-term supply of cheap electricity? -- Most pointedly, why did California enter into deregulation without enough available generation to ensure a fair market based on balanced supply and demand? These are tough questions. It is not hard to understand why former proponents of the 1996 deregulation scheme would rather not answer them, preferring to bemoan the darkness and curse Davis' actions. The Wilson apologists jeer at plans for the state to purchase the power grid, though they surely know the value of a well-maintained, fully functioning electric transmission network. Bottlenecks in the grid impede the sharing of power between Northern and Southern California. This was a main reason Northern California experienced rolling blackouts in January while Southern California had plenty of power. The state's purchase of the grid will infuse new cash into the utilities, pulling them back from the brink of bankruptcy, while giving the state a tangible and valuable asset in exchange. And ownership of the grid will allow the state to modernize it, removing bottlenecks and upgrading technology - something the utilities have long failed at doing. The apologists ignore the state's strong record on energy conservation and Davis' actions to enhance these efforts. California now has the nation's second-best energy conservation record. The governor has budgeted \$404 million in new conservation measures and added an executive order offering 20 percent rebates to those who reduce their consumption 20 percent over last year. These measures will reduce commercial lighting, encourage residential and industrial efficiency and make state and commercial buildings more energy efficient. The apologists disregard the fact that the governor has also reversed a trend that had seen power plant construction in California drop to insignificance in the '80s and '90s. Since April 1999, the California Energy Commission has licensed nine major new power plants. Six are under construction. This is part of a streamlined, fast-track plant licensing process that aims to put an additional 20,000 megawatts on line by the summer of 2004, a nearly 50 percent increase in generation. And the apologists refuse to recognize that California is building the right sort of power plants - efficient, clean and environmentally friendly, with a strong bent toward renewable power sources. In fact, while some would go Texas' route and build plants that meet only the bare minimum of environmental requirements, California is continuing the effort that has made it the nation's leader in the use of clean, renewable power sources. Instead, the apologists engage in name calling, such as the charge leveled by former Wilson communications director Dan Schnur on this page that Loretta Lynch, the Davis appointee as PUC chair, is inexperienced and has failed to deal effectively with the energy emergency. Forget for a moment that of the 22 people who have served as PUC commissioners since 1980, only six had any energy expertise before their appointments. Forget for a moment that one of the principal architects of deregulation was Daniel Fessler, the UC Davis contract law professor with no special expertise in energy issues whom Gov. Wilson appointed as PUC president. Just consider this: It was the PUC under Lynch that freed the utilities to buy electricity on cheaper, forward contracts outside the Power Exchange. This corrected a huge Wilson-era PUC blunder that put utilities in an energy price straitjacket. The Lynch-led PUC also prohibited utilities from selling additional power plants, and it began the successful effort to make California's ISO (the Independent System Operator that runs the state's power grid) independent of the industry-connected officials who controlled it. Meanwhile, what sort of grand solutions have the apologists presented? Drill for oil in the Arctic National Wildlife Refuge in Alaska, build nuclear plants on closed military bases and encourage the construction of dirty Texas-style power plants in California. Drilling in the Arctic will not produce a watt of new power for California. Californians have long said they do not want the risks presented by new nuclear plants. And lax Texas pollution rules prompted the Dallas Morning News to charge in a Dec. 17 editorial that Texans are choking on the exhaust from power plants. Most disingenuously, the apologists would "let the market work," claiming that unfettered market forces will soon bring fair and balanced prices. But the market doesn't work now, as the Federal Energy Regulatory Commission has repeatedly admitted, most recently with its finding that generators overcharged the state in January. Unfortunately, for the most part the same commission had refused to clamp down on sky-high prices charged by generating companies. Look at New York's deregulated market, where there are no caps on retail electric prices. Market forces have done consumers there

little good. New Yorkers pay the highest prices for electricity in the country.

Message 1064 of 1299

**Re: \*\*\*\*\*Information required by FERC, Docket No. EL00-95-027, et**

|            |                                                                                   |
|------------|-----------------------------------------------------------------------------------|
| Sender     | alan.comnes@enron.com                                                             |
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Context of today's data request (2 articles):

US FERC To Compile Data On Calif DWR Power Contracts

04/13/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

WASHINGTON -(Dow Jones)- The U.S. Federal Energy Regulatory Commission issued an order late Thursday requiring 49 electricity providers to file information regarding contracts they have entered into with the California Department of Water Resources. The information, due by the close of business Monday, is being compiled on behalf of the House Government Reform Committee, which held hearings in California this week as part of its oversight investigation into the state's electricity-supply crisis. Rep. Dan Burton, R-Ind., the committee's chairman, requested the information from FERC to determine whether the commission's order Dec. 15 designed to move the state away from reliance on volatile spot markets for power supplies and into lower-cost long-term contracts has been effective. The state water department has been purchasing power for months on behalf of the state's two financially troubled utilities, spending more than \$4 billion at a rate of \$50 million daily. Edison International unit Southern California Edison (EIX) and PG&E Corp. unit Pacific Gas & Electric Co. have amassed more than \$13 billion in liabilities, because state-regulated retail rates don't allow them to pass through high-cost wholesale power purchases. PG&E filed for Chapter 11 bankruptcy protection on behalf of its utility unit a week ago. Monday, Edison entered into an agreement to sell the state its transmission lines in a bid to restore financial solvency. FERC's order Thursday requests information from 49 power suppliers on both short- and long-term contracts they may have entered into with the department since Dec. 15. FERC said it will treat the information as confidential, unless the supplier states otherwise. One Democratic official in Washington suggested the House panel is engaged in a partisan "bashing" effort targeting California Gov. Gray Davis, who has widely been touted as a presidential prospect for the 2004 election. Davis spokesman Steven Maviglio supported the official's assessment. "What a shock! Dan Burton is at it again," Maviglio said facetiously of Burton, who derived a reputation as a partisan foe of former U.S. President Bill Clinton with his many investigations into Clinton and his administration. "The bottom line is they're aiding and abetting the generators," Maviglio said of Burton's committee. The governor's spokesman also questioned whether the information FERC amasses under seal of confidentiality will remain private once turned over to the committee. The committee's offices were closed Friday, so no response was immediately available. -By Bryan Lee, Dow Jones Newswires, 202-862-6647, bryan.lee@dowjones.com

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Congressional Committee Members Question California Utility Officials Michelle Guido

04/12/2001 KRTBN Knight-Ridder Tribune Business News: San Jose Mercury News - California Copyright (C) 2001 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

Officials from California's two major utilities and two of its smaller power generators were in the hot seat in San Jose on Wednesday, fielding questions from federal lawmakers about their role in the state's power crisis. On Day 2 of a three-day swing through California, three Republican members of a U.S. House subcommittee on energy policy and three local Democratic representatives heard testimony from utility officials and from the chairman of the Federal Energy Regulatory Commission. The energy crisis is expected to bring rolling blackouts to California through the summer months and energy officials warned on Wednesday that the high prices consumers face here undoubtedly will spill over into neighboring states if FERC doesn't cap prices now. But FERC Chairman Curt L. Hebert Jr. reiterated what he said Tuesday at a western energy summit in Boise: He does not support price caps on electricity -- in California or any of the western states. "The



energy is going to go where the caps are not, and nine out of 11 western state governors have said they don't want price caps in their states," Hebert said. "A cap sends us in the wrong direction." Instead, he said, by May 1, FERC will unveil a plan to monitor energy prices and in some cases, might mitigate the price of energy sold on California's more expensive spot markets. He wouldn't elaborate, but made it clear those adjustments would not include price caps. Government Reform Committee Chairman Dan Burton of Indiana opened the hearing by saying the committee's mission was not to "point fingers." "We wanted to see if there were ways the federal government and the state government could work together to get past this crisis." At one point early in the hearing, demonstrators attempted to address the lawmakers. They were ushered out of the room by security personnel. Burton was joined by Republican representatives Doug Ose of Woodland and Steve Horn of Lakewood. Also participating in the hearings were Democratic representatives Zoe Lofgren and Michael Honda of San Jose and Barbara Lee of Oakland. The Democrats pushed strongly for FERC to consider price caps. "We need to gain control of this out-of-control market and gain control of the price gouging," Lofgren said. Honda concurred: "We believe that FERC has a responsibility and they've even said that rates are unjust and unreasonable. We need short-term caps." It was clear that Burton doesn't believe that price caps are the answer. In fact, on several occasions, he suggested that capping energy prices might result in even more blackouts as summer approaches. Lee suggested that some people believe the only way out of the crisis is some form of re-regulation. But Dede Hapner, vice president of regulatory relations for PG&E, said she wasn't sure that was the answer. "We still think a correctly structured market could work. It's certainly working in other states," Hapner said. "In retrospect, the way the deregulation market was structured was designed to fail." Today the hearings move to San Diego, where members will hear from representatives of generators that have been accused of overcharging California, including Reliant Energy, Sempra Energy and Williams Energy Services.

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| IEP News 7/16 |                                                                           |
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Today's IEP News... Condit appears to be taking attention away from electricity.

For more headlines please visit [www.rtumble.com](http://www.rtumble.com).

Thanks! ?Jean

?AP July 13, 2001, Friday, BC cycle, ?Domestic News, ?246 words, ?Judge says power companies likely owe California 'hundreds of millions,' but not billions, ?By JENNIFER COLEMAN, Associated Press (QUOTES SMUTNY)

Writer, ?SACRAMENTO, Calif. Los Angeles Times, July 16, 2001 Monday, Home Edition, Page 1, 1785 ??? ????words, THE NATION; ; Smog Feared in Power Buildup; Electricity: Bush ???administration's plan for up to 1,900 plants over 20 years poses a threat to ???air quality, especially in the Midwest and South, experts say., GARY ???POLAKOVIC, TIMES ENVIRONMENTAL WRITER

The New York Times, July 16, 2001, Monday, Late Edition - Final, Section A; ????Page 1; Column 6; National Desk, 1305 words, DROP IN FUEL PRICE MAY WEAKEN ????PUSH FOR ENERGY PLANS, By JOSEPH KAHN, WASHINGTON, July 15

The San Francisco Chronicle, JULY 16, 2001, MONDAY,, FINAL EDITION, NEWS,, ????Pg. A1, 1935 words, Municipal power firms cleaned up; ???Public producers ???charged state far more than private, Mark Martin, Lynda Gledhill, Sacramento



Contra Costa Times, July 15, 2001, Sunday, CC-ENERGY-RATES, 906 words, ???California Faces Possible Third Power Rate Hike

Contra Costa Times, July 15, 2001, Sunday, CC-UTILITY, 530 words, Many ???California Energy Consumers Cash In on Conservation, By Katie Oyan

Copley News Service, July 15, 2001, Sunday, State and regional, 1228 words, ???Controller Connell keeps heat on Davis, but could it cost her? ?????By ???Bill Ainsworth, SACRAMENTO

Los Angeles Times, July 15, 2001 Sunday, Home Edition, Page 1, 1899 words, ???The Bashers Are Back; The electricity crisis has given critics of California ???a new opening to predict catastrophe., JOEL KOTKIN

Sacramento Bee, July 15, 2001, Sunday, Pg. D3;, 174 words, Save energy, ???save cash, Loretta Kalb

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????????????????????????????????????????AP Online

????????????????????????????????????July 13, 2001; Friday

SECTION: Domestic, non-Washington, general news item

LENGTH: 248 words

HEADLINE: ?Judge: Calif Power Cos. Owe Refunds

BYLINE: JENNIFER COLEMAN

DATELINE: SACRAMENTO

BODY:

???An administrative judge mediating talks between California and energy companies says the generators likely owe the state "hundreds of millions of dollars" in refunds, far less than the \$8.9 billion California wants.

??Judge Curtis Wagner Jr., in a recommendation released Thursday, said that while California is due "vast sums" for overcharges, the state's major utilities, which have amassed crippling debts due to high wholesale prices, owe generators even more.

??Gov. Gray Davis and California officials who attended the 15-day talks pressed for \$8.9 billion in refunds, but Wagner said that amount can't be substantiated. ??"That very large refunds are due is clear," Wagner wrote, likely amounting to "hundreds of million of dollars, probably more than a billion dollars in an aggregate sum."

??The judge recommended a method for calculating refunds back to October; California's estimate was based on figures from May 1, 2000.

??The differences between what the state wants and what the sellers believe they owe should be decided in a trial-type, evidentiary hearing, Wagner said.

??Jan Smutny-Jones, executive director of the Independent Energy Producers, said the state's refund estimate was based on a "faulty analysis" and the judge was correct in lowering the amount.

??Davis said he hoped the Federal Energy Regulatory Commission would reject the lowered recommendation.

????????????????????????????????????The Associated Press

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????????????????????????????????July 13, 2001, Friday, BC cycle

SECTION: Domestic News

LENGTH: 246 words

HEADLINE: Judge says power companies likely owe California 'hundreds of millions,' but not billions

BYLINE: By JENNIFER COLEMAN, Associated Press Writer

DATELINE: SACRAMENTO, Calif.

BODY:

??An administrative judge mediating talks between California and energy companies says the generators likely owe the state "hundreds of millions of dollars" in refunds, far less than the \$8.9 billion California wants.

??Judge Curtis Wagner Jr., in a recommendation released Thursday, said that while California is due "vast sums" for overcharges, the state's major utilities, which have amassed crippling debts due to high wholesale prices, owe generators even more.

??Gov. Gray Davis and California officials who attended the 15-day talks pressed for \$8.9 billion in refunds, but Wagner said that amount can't be substantiated.

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??The judge recommended a method for calculating refunds back to October; California's estimate was based on figures from May 1, 2000.

??The differences between what the state wants and what the sellers believe they owe should be decided in a trial-type, evidentiary hearing, Wagner said.

??Jan Smutny-Jones, executive director of the Independent Energy Producers, said the state's refund estimate was based on a "faulty analysis" and the judge was correct in lowering the amount.

??Davis said he hoped the Federal Energy Regulatory Commission would reject the lowered recommendation.

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????????????????????????????????????July 16, 2001 Monday ?Home Edition

SECTION: Part A; Part 1; Page 1; Metro Desk

LENGTH: 1785 words

HEADLINE: THE NATION; ; Smog Feared in Power Buildup; Electricity: Bush administration's plan for up to 1,900 plants over 20 years poses a threat to air quality, especially in the Midwest and South, experts say.

BYLINE: GARY POLAKOVIC, TIMES ENVIRONMENTAL WRITER

BODY:

??The Bush administration's plans for a massive buildup of power plants nationwide could result in dirtier air in places where smog is already bad and getting worse--particularly in the Midwest and the South, air quality experts fear.

??Smog levels have been cut nationwide in the last 20 years, but the 1990s saw deteriorating air quality in places such as Columbus, Ohio, where the number of smoggy days jumped 78% during the decade, and Memphis, Tenn., where they doubled, according to figures from the federal Environmental Protection Agency.

??A large part of the deterioration is attributable to power plant emissions--a major contributor to ozone, which is colorless, and haze. Despite cleanup efforts, power plant emissions are up across much of the fast-growing South and in the Plains states.

??Meanwhile, generating plants running at peak capacity to produce electricity for California are sullyng Western skies too. Smokestack emissions are up from Washington state to Utah and Arizona to Montana, the EPA says.

??"The interior West has fantastic visibility, and power plants are one of the primary causes of visibility degradation," said Bruce Driver, executive director of the Land and Water Fund of the Rockies. "The emissions stand out like pouring red wine on white carpet. We have concerns about building new power plants in the West."

??The administration's energy plan calls for building up to 1,900 plants over the next two decades, increasing the nation's electrical generating capacity by at least half. That is equivalent to two new 300-megawatt plants a week--the fastest rate of expansion over such a long period since the end of World War II, according to the Department o

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## Energy Issues

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Please see the following articles:

Sac Bee, Fri, 7/20: PG&E announces deals with smaller suppliers  
 Sac Bee, Fri, 7/20: Dan Walters: Six months later, utility debts are still= =20 the toughest nut to crack=20 SD Union, Thurs, 7/19: California selling surplus power at fraction of cost= =20 it paid=20 SD Union, Thurs, 7/19: PUC reveals plan to transfer much of watchdog role= =20 SD Union, Thurs, 7/19: Variety of plans to help Edison find friends, foes= =20 SD Union, Thurs, 7/19: Baja is hoping energy squeeze can spark boom=20 SD Union, Thurs, 7/19: GOP pushes energy bill with billions in tax breaks,= =20 emphasis on coal, oil, nuclear power=20 LA Times, Fri, 7/20: Edison May Avert Bankruptcy Filing SF Chron, Fri, 7/20: Summer blackout seers missing the mark -- so far=20 Blackout visions only bad dreams=20 WHAT OUTAGES? State efforts paying off=20

SF Chron, Fri, 7/20: State advisers forced to sell energy stocks=20 CONFLICT: Holdings called unethical=20 SF Chron, Fri, 7/20: Democrats defy Davis with bill on PUC=20 Utilities panel would keep power over rates=20 SF Chron, Fri, 7/20: Developments in California's energy crisis=20 SF Chron, Fri, 7/20: Energy Secretary to speak at forum on California energ= y=20 crisis=20 SF Chron, Fri, 7/20: Energy secretary in S.F. to push Bush program=20 Abraham says supply is the key, not conservation=20 SF Chron, Fri, 7/20: More energy fallout=20 SF Chron, Fri, 7/20: Wilson says Davis ignored warnings about energy=20 Former governor defends himself=20 Mercury News, Fri, 7/20: California buzzing with power - but for how long? Individual.com (AP), Fri, 7/20: Western Utilities Appeal To Protect Their= =20 Customers California=20 Bail-Out by FERC Threatens to Increase Bills for Millions of Customers=20 NY Times, Fri, 7/20: Rate Proposal For Electricity In California=20 LA Times, Fri, 7/20: Edison Bailout Bills Remain Stalled

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PG&E announces deals with smaller suppliers

(Published July 20, 2001)=20 SAN FRANCISCO -- Two weeks after reaching a long-term agreement with a majo= r=20 electricity supplier, Pacific Gas and Electric Co. on Thursday announced=20 similar pacts with 130 smaller alternative energy companies.=20 The deals, which must be submitted to a federal bankruptcy judge for=20 approval, are expected to provide about 1,600 megawatts at 5.37 cents per= =20 kilowatt hour -- a price set by the Public Utilities Commission for long-te= rm=20 agreements sealed by July 15. The total is about two-thirds of the=20 electricity that the utility usually receives under contracts with=20 alternative energy suppliers.=20 The utility has promised to repay the 131 companies the \$740 million it owe= s=20 them when its plan goes into effect.=20 It owes an additional \$260 million to other small producers who have not=20 settled. Some of those companies are trying to get out of PG&E contracts.= =20 --Claire Cooper=20 County sues over bond sale Monterey County officials sued the county's investment adviser for selling= =20 them \$4.9 million in Pacific Gas and Electric Co. bonds as the utility was= =20 collapsing financially.=20 PG&E defaulted on the bonds, which came due March 26, although it has paid= =20 the county \$5,334 in interest, the county said in its lawsuit.=20 The lawsuit, filed in San Francisco Superior Court, says Banc of America=20 Securities sold the bonds to Monterey County on Dec. 11 even though the=20 county "was seeking a conservative, low risk investment."=20 At the time, the securities firm was aware that PG&E "was financially=20 unstable and its securities subject to potential default," the lawsuit says= .=20 BofA Securities said the PG&E bonds were "similar in risk to investment in = a=20 certificate of

deposit and less risky than an investment in treasury bonds, " the suit says. BofA Securities couldn't be reached for comment. --Dale Kasler

Dan Walters: Six months later, utility debts are still the toughest nut to crack

(Published July 20, 2001) When Gov. Gray Davis and other state politicians finally became engaged in the energy crisis last January -- a half-year late -- the state's major investor-owned utilities had already amassed more than \$13 billion in debt from runaway power costs and were out of credit. Davis and the Legislature launched a massive state power purchase program, a speed-up of new power plants, conservation subsidies and other actions, not all of which have been successful. But everyone involved knew that the utilities' debts, which had driven them to the brink of bankruptcy, would be the most complex and politically difficult aspect of the crisis. Six months later, that's still true. An administration team negotiated for weeks with Pacific Gas and Electric and Southern California Edison on schemes to retire their debts and bring them back to a creditworthy status. The talks with PG&E went nowhere, and three months ago, the huge San Francisco-based utility filed for bankruptcy protection. Davis, clearly concerned that Edison would follow, hammered out a deal with the smaller utility within hours. It was, by any standard, a sweet deal for Edison and its parent company, Edison International -- too sweet for just about everyone in the Legislature -- and immediately, efforts began to change it. Edison lobbyists worked the Legislature, and the utility cranked up a massive advertising and public relations campaign, to no apparent avail. And Davis, oddly, pulled back from the fray. The Democratic governor concentrated on another aspect of the crisis with greater political sex appeal: demanding that power generators, many of whom are PG&E and Edison creditors, be forced to repay many billions of dollars because, as he put it, they had gouged the state. Ultimately, Davis' campaign failed, although his strident advocacy did, apparently, arrest his decline in public opinion polls. Meanwhile, the Edison deal languished. With the Legislature now poised to leave Sacramento on a monthlong summer recess and a self-imposed deadline for enacting the Edison plan approaching, the Capitol is newly aflutter with efforts. "Complex" doesn't even begin to describe the situation. There are at least three alternative plans kicking around, none of which can be passed as written. Davis may be willing to accept almost anything that would save him from the embarrassment of another utility going to bankruptcy court on his watch, but currently backs a scheme ginned up by Assembly Democratic leader S. Edison, however, has split with Davis and now favors an alternative offered by Republicans and some moderate Democrats -- one that consumer advocates denounced as a corporate bailout. Meanwhile, liberal senators are pushing another version that Edison likes even less, but its critics among consumer activists like more. With both lawmakers and outside interest groups so widely scattered over what, if anything, should be done to rescue Edison, a consensus developed late Thursday to keep the vehicles alive with preliminary floor votes but to continue private negotiations through the monthlong legislative recess. The many-sided stalemate stems from both the rival plans' provisions -- farmers, for example, fear environmentalists' gaining authority through the state over Edison-owned watershed in the Sierra -- and the convoluted dynamics of the Capitol. Legislative leadership is very weak in the era of term limit

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#### Enron Mentions - 4/27/01

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Santa Clara County, Calif., Joins Lawsuit against Electric Suppliers San Jose Mercury News, 4/27/01

Huge increase in Calpine earnings / San Jose power supplier rakes in \$94.8 million San Francisco Chronicle, 4/27/01

Creek Seeks Hearing on Power Plant Plan South Florida Sun-Sentinel, 4/27/01

Oil People Energy Compass, 4/27/01

Venezuela Moving On Plans To Build Up Natural Gas Indus Dow Jones Energy Service, 4/27/01

Prospects dim for Enron's India power project. Energy Compass, 4/27/01

Report Out on Indian Power Project AP Online, 4/27/01

Enron, India in dispute over future of gas-fired power plant Associated Press Newswires, 4/27/01

Enron Offl Given Authority To End India Pwr Proj -Report Dow Jones International News, 4/27/01

German trade sees strong aluminium, copper demand. Reuters, 4/27/01

Enron India MD authorised to terminate PPA Business Standard, 4/27/01

Gas hub blues Energy Compass, 4/27/01

Might is right Energy Compass, 4/27/01

Venezuela Moving On Plans To Build Up Natural Gas Indus Bloomberg, 4/27/01

Enron Offl Given Authority To End India Pwr Proj -Report Bloomberg, 4/27/01

O'Brien and Bauman's Hot Stocks: YHOO ENE SFA YUM Bloomberg, 4/27/01

Santa Clara County, Calif., Joins Lawsuit against Electric Suppliers John Woolfolk 04/27/2001 KRTBN Knight-Ridder Tribune Business News: San Jose Mercury News - California Copyright (C) 2001 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

Santa Clara County agreed Thursday to join a lawsuit against power suppliers, alleging they conspired to raise prices and boost profits while subjecting consumers to higher bills and rolling blackouts. The county is the first to join the suit originally filed by San Francisco in January. The suit seeks refunds for consumers of more than \$1 billion in alleged excess electricity profits. "The San Francisco suit contains significant allegations of manipulation and collusion by the wholesalers, resulting in the disastrous consequences we're all familiar with," said lead deputy county counsel Alan Tieger. "We looked at the evidence on which those allegations were grounded and found they were indeed supported by the evidence, expert and otherwise." The suit names a dozen electricity generating and marketing companies, including Duke Energy and Enron Energy Marketing. Similar claims have been filed by three water districts in the San Diego area, and two class-action lawsuits by private attorneys on behalf of consumers are pending against power suppliers. The companies have vigorously denied the charges. "I don't think there will be any evidence of illegal activity by anyone," said Jan Smutny-Jones, executive director of the Independent Energy Producers Association, when asked about various government probes.

BUSINESS Huge increase in Calpine earnings / San Jose power supplier rakes in \$94.8 million Christian Berthelsen Chronicle Staff Writer

04/27/2001 The San Francisco Chronicle FINAL B.1 (Copyright 2001) Power producer Calpine Corp. announced a 424 percent increase in earnings yesterday, capping a series of huge first-quarter earnings announcements by companies that are profiting mightily during California's energy crisis. Calpine said it earned \$94.8 million in the first three months of the year, compared with \$18.1 million in the same period last year. That profit level, on \$1.2 billion in revenue, puts Calpine in league with industries such as computer sales and securities brokering in terms of median return on revenue, and far above the median annual return in the energy industry, which averages about 1 percent. Calpine's 30-cents-per-share earnings blew past the average analyst estimate of 24 cents per share compiled by Thomson Financial/ First Call. The San Jose power generator said last month that it expected to report earnings of 20 cents to 25 cents. Williams, a Tulsa, Okla., energy concern that markets electricity in California produced by AES, the Arlington, Va., generation company, reported first-quarter profit of \$378 million, more than double its results one year ago. (AES reported gains yesterday of 19 percent). Other energy companies with business in California -- including Reliant and Enron -- have reported huge gains in recent days. Calpine executives yesterday sought to distinguish themselves from other merchant energy companies in California, saying most of the electricity it sells here is under relatively low-cost contracts with the utilities, the state and other entities, and very little of it is sold in the spot market, where prices are often three times as high. "It is not our business strategy to play in the volatility of the market but to have long-term contracts," said Bill Highlander, the company's director of public relations. Calpine was not among the companies named in a report last month by the California Independent System Operator identifying power concerns that gouged California consumers. Calpine's stock was hit hard

earlier this month when it revealed that it had not set aside reserves to offset more than \$270 million in potentially bad debt owed by Pacific Gas & Electric Co., which filed for bankruptcy protection. But Calpine's stock was trading near the top of its 52-week high yesterday, ending up \$2.01, or 3.75 percent, to close at \$55.71. Ann Curtis, Calpine's chief financial officer, said in an interview yesterday that the company still expects to be paid by PG&E, since the power it provides under contract to the utilities and the state is much less expensive than if they voided the contract and sold the power on the spot market. "It makes sense and would be in the best interest of the utility and state to honor the contract," Curtis said. As it had last quarter, Calpine's announcement made no mention of runaway wholesale energy costs in California, which have severely damaged the state's leading utilities and are beginning to hurt the state government's finances. Rather, Calpine Chief Executive Officer Peter Cartwright, in a prepared statement, attributed the earnings growth to "the continued execution of Calpine's strategy to acquire and build low-cost generation facilities in key power markets throughout the U.S." More than half of the company's plants are in California. Overall, the supplier operates 44 plants nationwide that generate nearly 6,000 megawatts. Calpine is one of the darlings of the energy industry, viewed as a model for a "new" energy company because of its aggressive expansion plans and reliance on relatively clean, efficient generation. The company is relatively small in the industry, with a market capitalization of about \$16 billion, compared with about \$34 billion for an industry giant like Duke Energy of Charlotte, N.C. Calpine is in the midst of a program that is expected by 2005 to boost its electricity generation portfolio to 70,000 megawatts -- an amount equivalent to more than twice the energy California uses at this time of year -- from its current capacity of about 6,000. Lehman Bros. calls Calpine one of its "top picks" and maintains a strong buy rating on the company's stock.

CREEK SEEKS HEARING ON POWER PLANT PLAN DAVID FLESLER and JEREMY MILARSKY Staff Writers

04/27/2001 South Florida Sun-Sentinel Broward Metro 3B (Copyright 2001 by the Sun-Sentinel) Coconut Creek filed a legal petition with the state Thursday that could stall Enron Corp.'s plans for a power plant in Pompano Beach. Attorneys for the city requested an administrative hearing on the state's plans to issue an air permit for the plant. This could delay the company's plans by six months, if it doesn't thwart them altogether. Coconut Creek, which is downwind from the site, is a center of opposition to Enron. When Pompano Beach held public hearings on th

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World Business Briefing Asia: India: Power Dispute The New York Times, 05/31/01

World Watch The Wall Street Journal, 05/31/01

Spin Control: Spain Hits Turning Point At Windmill Parks --- Some Are Well Planned, Others Scar the Landscape --- EU Pride and Promises at Stake The Wall Street Journal Europe, 05/31/01

Struggling Enron plant in India stops production Houston Chronicle, 05/31/01

BP Doesn't Expect Lead Role In Saudi Gas Proj - Source Dow Jones Energy Service, 05/31/01

Regulators want state trade-off for caps / Davis asked to give up control of power lines The San Francisco Chronicle, 05/31/01

Plan would have biggest customers pay Edison's debt The San Francisco Chronicle, 05/31/01

INDIA'S MSEB DOUBTFUL OVER DABHOL'S 10 PCT TARIFF CUT PROPOSAL Asia Pulse, 05/31/01

India: Interest rate dichotomy growing wider Business Line (The Hindu), 05/31/01

India: Enron willing to continue project Business Line (The Hindu), 05/31/01

INDIA'S DABHOL SHUTS POWER PLANT, TO ISSUE TERMINATION NOTICE Asia Pulse, 05/31/01



That's right, double-click there, sir Techies, executives cross-pollinate as reverse mentoring gains ground The Globe and Mail, 05/31/01

Enron Willing To Continue India Power Project - Report Dow Jones International News, 05/31/01

Business/Financial Desk; Section W World Business Briefing Asia: India: Power Dispute By Saritha Rai (NYT)

05/31/2001 The New York Times Page 1, Column 1 c. 2001 New York Times Company

The Dabhol Power Company, the Enron Corporation's unit in India, stopped generating electricity at its \$3 billion power plant after its sole customer, the utility of the Indian state of Maharashtra, stopped buying power on Tuesday. The halt in power generation was the latest move in a months-long dispute that has cast doubt on the future of Dabhol's \$2.9 billion power project in India, the largest foreign investment ever in India. Jimmy Mogul, a spokesman for Enron, which owns 65 percent of Dabhol, said the company remained open to discussions in the dispute, which involves overdue payments for power. Dabhol had issued a preliminary termination notice on May 19 saying it was pulling out of the Indian project. Final termination requires a contractual six-month cooling-off period.

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International World Watch Compiled by David I. Oyama

05/31/2001 The Wall Street Journal A10 (Copyright (c) 2001, Dow Jones & Company, Inc.)

BRIEFLY: -- Japan's NEC said it will cut back a plan to expand chip-production capacity at its Shanghai, China, joint venture because of the global chip industry's downturn. -- Taiwan's Finance Ministry said the island's domestic banks will be allowed to open representative offices in China. It said the banks will be allowed to conduct market research in China, but they won't be able to establish branches. -- In an effort to placate creditors of Asia Pulp & Paper, part of Sinar Mas Group, the Indonesian Bank Restructuring Agency said it has "no present intention to immediately foreclose or liquidate" Sinar Mas assets that it has taken as security. -- Dabhol Power, a unit of U.S. energy company Enron, said the Maharashtra State Electricity Board, its only customer, has stopped ordering electricity from Dabhol's \$3 billion power plant. But Dabhol said that the plant remains operational according to its contractual obligations.

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Column One Spin Control: Spain Hits Turning Point At Windmill Parks --- Some Are Well Planned, Others Scar the Landscape --- EU Pride and Promises at Stake By Keith Johnson Staff Reporter

05/31/2001 The Wall Street Journal Europe 1 (Copyright (c) 2001, Dow Jones & Company, Inc.)

BARBATE, Spain -- The economy of this fishing community is as battered as its town hall, where dim lights flicker in the hallways and chips of paint flake off the walls. Up in his second-floor office, the mayor, Juan Manuel de Jesus, has an in-tray overflowing with troubles: a third of the town out of work; a desperately needed fishing treaty with Morocco; rising crime and drug abuse; and a big municipal budget deficit. But this morning, his thoughts revolve around a different irritant: windmills. "Look at this," he says, unfolding on his desk a map of the countryside surrounding Barbate. Large yellow and green splotches -- a military training zone and a swarm of natural parks -- hem in the seaside town, leaving just a pair of white slivers. "Those are the only areas open for development," he says. His finger stabs one of the white areas near the Atlantic coast. "And that's where they're putting the windmills -- the one place we could have built a hotel, a resort, something that would bring us some jobs." The mayor sees the windmills as a blight on the land, driving away tourists and crimping more lucrative projects. Local environmentalists fret that the installation, with its rows of steel towers and sharp metal blades, will play havoc with migrating birds and mar the coastline as they did in nearby Tarifa, a windsurfing mecca on the Strait of Gibraltar. Tilting at windmills is nothing new in the land of Don Quixote. But wind power doesn't have to be like this. At the opposite end of the country, more than 1,000 kilometers to the north in the green hills of Navarra, 28 steel windmills perch on a ridge over a landscape that resembles a nature reserve. Cows nap in the shade of the towers, and the narrow gravel access roads follow original grazing trails. Electricity is transformed in a nearby substation built to resemble the neighboring stone houses. The approach -- the result of close cooperation between business and government -- has won accolades from environmentalists and business leaders alike. Spain, the world's No. 3 producer of wind power, has become a battleground for two competing models of developing the business: the hodgepodge of unsightly wind parks seen in the south and the carefully planned and unobtrusive installations found up north. The conflict



is intensely local, with the country building enough new windmills to more than triple its wind-power capacity by 2005. But the model that prevails will have consequences far beyond the Iberian Peninsula. Anxious to clean up its environment and limit its dependence on imports of natural gas, the European Union has committed itself to generating 22% of its electricity from renewable energy sources by 2010. Yet less than 5% of the EU's electricity output now comes from windmills, thanks largely to poor execution and a brewing backlash. If Spain -- with its open spaces and relatively low population density -- can't sell the public on windmills, the EU will likely find it difficult to convince Europeans to accept more ambitious forms of alternative energy, such as biomass plants, which turn agricultural, animal and human waste into energy. The failure could also call into question the EU's commitment to the 1997 Kyoto global-warming treaty, which U.S. President George W. Bush has been roundly criticized in Europe for rejecting. Few expected this turn in events back in 1996, when the EU first set a more modest 2010 target. At the time, wind power looked like the fresh breeze of the future. Soon, the union's most green-minded states, led by Germany and Denmark, were busily building wind parks to the applause of environmental groups, which saw wind power as a clean alternative to nuclear power and coal-burning power plants. But early enthusiasm led to shortsighted projects, leaving the European landscape littered with inefficient wind parks. Germany, for example, quickly became the world's largest producer of wind power, with 6,113 megawatts of capacity installed at the end of last year. But the brea

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Message 1069 of 1299

#### FW: PG&E Advice Letter 2106-E

|            |                                 |
|------------|---------------------------------|
| Sender     | lgoldseth@svmg.org              |
| Recipients | ['lgoldseth@svmg.org']          |
| File       | dasovich-j/all_documents/11657. |

BLACKOUT BUSTERS, BUSINESS CONTINUITY AND ENERGY COMMITTEE MEMBERS: the following documents were submitted to the PUC as indicated below. Please open and review per Barbara Barkovich. Thanks. Laura

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Tuesday, April 24, 2001, Pacific Gas & Electric Company filed Advice Letter 2106-E with the CPUC.

Electric Interruptible Load Programs

<<2106-E AL.doc>> <<2106-E TS.doc>>

Advice 2106-E is being sent electronically to parties to R. 01-10-002.

Thank You, Nel Avendano (nco1@pge.com) Rates (415-973-3529)

- 2106-E AL.doc - 2106-E TS.doc

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Message 1070 of 1299

#### SCE Says No Changes to Rescue Deal and Can't Pay QFs

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | jmunoz@mcnallytemple.com                                                   |
| Recipients | ['andybrwn@earthlink.net', 'abb@eslawfirm.com', 'cabaker@duke-energy.com'] |
| File       | dasovich-j/all_documents/11316.                                            |

Edison Won't Accept Changes To Calif Rescue Deal -Exec ???? Updated: Thursday, April 19, 2001 05:40 PM?ET ?? ? By Jason Leopold

Of DOW JONES NEWSWIRES

NEW YORK (Dow Jones)--Edison International (EIX, news, msgs) unit Southern California Edison isn't willing to modify the rescue agreement it reached last week with the state in order to convince lawmakers to support the plan, a senior Edison International executive told Dow Jones Newswires Thursday.

On Wednesday, Gov. Gray Davis, in a meeting with Senate Democrats, said he was willing to consider amendments to the proposal, which has been criticized by Republicans and Democrats as a utility bailout at consumers' expense. The Edison executive, however, warned against tinkering.

"This has been negotiated to the hilt," the executive said. "The MOU, as negotiated is a balanced deal. The negotiated agreement we entered into with the governor is no different than the agreement in principle" reached in late February.

The terms of the deal, signed last week by Davis and Edison International Chief Executive John Bryson, call for the state to buy Southern California Edison's 12,000 miles of transmission lines for \$2.76 billion and allow the utility to issue bonds backed by ratepayers so it can recoup \$5.5 billion in unrecovered power costs.

The Edison executive said the memorandum of understanding is non-negotiable and should be accepted by legislators "as-is."

Senate President Pro Tem John Burton, however, told reporters Wednesday that many aspects of the Edison deal would have to be amended, particularly the securitization package. State Sen. Debra Bowen, D-Redondo Beach, chair of the Senate energy committee, agreed.

"It probably would take less time to list the things that don't have to be changed in the MOU," Bowen said Thursday. "If it's a take it or leave it proposal, it's a pretty simple choice for me."

If lawmakers don't pass legislation to implement the buyout by Aug. 15, the deadline set in the agreement, the utility could find itself dragged into involuntary bankruptcy proceedings by creditors, the executive said.

"I think we'll have big (problems)" if legislation isn't passed by Aug. 15, the executive said. "We got all these creditors out there, and no one knows how long they'll forbear."

#### Bankruptcy Would Worsen Crisis -Executive

Some lawmakers think ratepayers and taxpayers would be better off with Southern California Edison in bankruptcy.

"I still don't see how ratepayers could be any worse off with (SoCal Ed) in bankruptcy than they would with the governor's plan," Bowen said.

Sen. Joe Dunn, D-Santa Ana, said a filing would take the burden of the company's cash-flow crisis off of legislators.

"A Bankruptcy Court judge would make the decisions without political interference," said Dunn, who still wasn't convinced the state will benefit from the deal.

Moreover, lawmakers have said Davis' transmission-line buyout doesn't make as much sense now that PG&E Corp. (PCG, news, msgs) unit Pacific Gas & Electric has sought bankruptcy-law protection as an alternative to continuing negotiations with the state.

The Edison executive, however, warned that another utility bankruptcy would be a "black eye" for California.

"I think the practical questions are... what are the alternatives here?" the executive said. "Is the state going to allow another utility to go bankrupt and choose the path of years and years of litigation?"

If the utility winds up in bankruptcy, the executive said, "the crisis gets a lot worse, because there is not only a shortage of supply, but the power grid begins to decline."

At the same time, if the state were to become the owner of the utility's transmission lines and the power lines owned by Sempra Energy (SRE, news, msgs) unit San Diego Gas & Electric, a purchase it is now negotiating, it is almost guaranteed that a Bankruptcy Court judge would approve the sale of PG&E's power lines to the state as well, the executive said.

"If the state were to buy Edison's and SDG&E's lines, it would be the inevitable purchaser of PG&E's transmission lines," the executive said. "One of the first things a bankruptcy judge will look at is the sale of assets. And if the state purchased

Edison and SDG&E's lines, it would be in the strongest position to buy PG&E's system as well."

In addition, the Edison executive said, even without PG&E's transmission lines, the state would still have substantial control of the grid in Southern California, which has much better access to new generation sites being developed.

"Sixty-eight percent of all new generation capacity approved or in the process of being approved can link directly to Southern California Edison's transmission system," the executive said.

Lawmakers, however, remain skeptical.

"It's a deal that every Edison shareholder and creditor loves, because it's financed 100% by ratepayers," Bowen said. "But it's not in the best interest of the state or in the best interest of Edison's ratepayers."

SoCal Ed Can't Pay QFs Money Owed Due To Cash Crunch ???? Updated: Thursday, April 19, 2001 05:35 PM?ET ????

By Jason Leopold

Of DOW JONES NEWSWIRES

NEW YORK (Dow Jones)--Edison International (EIX, news, msgs) unit Southern California Edison is unlikely to pay more than \$900 million in past due power bills any time soon to the state's small independent power producers the utility buys electricity from because it "simply (doesn't) have the dollars to do that," a senior executive with Edison International told Dow Jones Newswires Thursday.

"We wish to pay them going back," the executive said. "But we simply don't have the dollars to do that."

The executive said utility officials are meeting with some of the owners of the so-called qualifying facilities on the issue of back payments and new contract prices.

Many of the state's QFs, gas-fired and renewable energy producers, have been off-line for several months due to SoCal Ed failing to pay its past due power bills to the companies.

The power producers said they owe millions to natural-gas suppliers who have refused to sell them the commodity until they pay their bills.

Last week, SoCal Ed paid the QFs \$206 million for power produced on a forward basis. PG&E Corp. (PCG, news, msgs), which recently filed for Chapter 11 bankruptcy protection because of \$8.9 billion in unrecovered power costs, paid the QFs \$34.6 million for forward power sales.

However, the QFs said the issue of past-due payments needs to be addressed before they return their plants to service. About 2,000 megawatts in QF generation remained off-line Thursday because of the back-payment issue. Last month, the loss of 3,000 MW in QF generation contributed to two days of statewide rolling blackouts.

The Edison executive said the company can only pay the QFs for power going forward, as ordered by state regulators last month, and the utility will pay all of its creditors once it's restored to financial stability.

California Regulators May Provide Some Relief

But the state's 688 QFs, which provides the state with one-third, or about 9,500 MW, of its total supply, may get some relief on the issue of back payments from the California Public Utilities Commission.

The commission voted unanimously Thursday to start an investigation into the reasons some QFs have remained off-line and whether they have violated their contractual obligations with the utilities, despite the fact that they have been paid on a forward basis.

Commission President Loretta Lynch said, "I do think...we need to take a hard look at whether utilities pay certain QFs that are on the brink

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## Enron Mentions

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| Sender     | ann.schmidt@enron.com           |
| Recipients | []                              |
| File       | dasovich-j/all_documents/12382. |

25 Leaders for a Dangerous Time Business Week, 05/14/01 USA: El Paso opens bids to expand Calif. natgas lines. Reuters English News Service, 05/11/01

Software Promises Bandwidth Broker In A Box Dow Jones Energy Service, 05/11/01

Sierra Pacific Resources Posts 1st-Quarter Loss, Blames Western Power Crisis Dow Jones Business News, 05/11/01

India Must Split Power Industry to End Debt Crisis (Update1) Bloomberg, 05/11/01

Interview: Enron Chairman Ken Lay Bloomberg TV, 05/10/01

BusinessWeek e.biz: Cover Story: The e.biz 25 25 Leaders for a Dangerous Time

05/14/2001 Business Week EB24 (Copyright 2001 McGraw-Hill, Inc.)

The Internet forced a revolution in the way companies are managed. For the CEOs of upstarts and Old Economy players alike, the focus has been on making decisions in a heartbeat, innovating fast, and looking for ways to tap the Net to reach new customers and streamline operations. Now we're in the midst of what experts say could be the biggest tech slowdown in 15 years. With the pressure on to cut costs and meet quarterly earnings expectations, what's a CEO to do? Ask our e.biz 25. These are the most influential people in e-business--everybody from empire builders like AOL Time Warner Chairman Steve Case to Monica Luechtefeld, executive vice-president of e-commerce at retailer Office Depot. Those two have wisely built bridges between the worlds of bricks and clicks. Their advice is bold: Don't just hunker down and try to wait it out. Invest, build, develop new products, and prepare for the upswing. Technology and the Internet may not be growing lickety-split, but they aren't going away. Says Jeffrey K. Skilling, CEO of Enron Corp., one of our 25: "A lot of people will pull back. They will be missing tremendous opportunities. Those with capital and talent should push forward and widen the lead." Doing this in the face of a trigger-happy Wall Street will require dynamic leadership and cast-iron stomachs. We've got that on our e.biz 25. These are the pioneers, the people with the new ideas, the out-of-box thinkers, and the survivors--especially the survivors--who will shape e-business for years to come. Some of our 25 have been on the list before. Michael Dell, CEO of Dell Computer Corp., for one. He's a pioneer who has used the Net to reach customers and revamp his supply chain. Now, in the midst of the downturn, Dell is turning up the heat on competitors by slashing prices ruthlessly. Thanks to his foundation of Net technologies, Dell can do this and still make a profit. The result could be a massive restructuring of the PC industry, with some of Dell's competitors losing market share at a gallop. Others land on the list because of their potential for shaking up the status quo. Example: Rick Belluzzo, Microsoft Corp.'s president. Microsoft has been ho-hum on the Net--until now. Belluzzo has turned Microsoft's MSN into the No. 2 portal on the Web, and now the company is committed to spending \$2 billion this year on research & development for its .Net strategy for supercharging the Web. It may well make the Net more useful--and easier to use. And Microsoft could leapfrog from laggard to leader. Then there are the folks whose future is very much in doubt--and that makes them even more important to watch. Squarely on the e.biz hot seat sits Jeff Bezos of e-tailer Amazon.com Inc. With the online superstore's revenue growth slowing and its \$15 stock off its peak by 85%, the man who scared the bejesus out of the nation's traditional retailers isn't so terrifying now. But he's still the trailblazer of e-tailing. Whether he fails miserably or triumphs in the end, how he fares will tell us much about the next episode in the Internet saga. "This is a good time to learn, to explore, to get ready," says Rosabeth M. Kanter, professor at Harvard Business School. Indeed, economic slumps have been launchpads for companies who know how to take advantage of them. The outfits that are likely to pick up momentum in this downturn are the companies that create or adopt new technology, experiment with new business models, and expand aggressively. That's certainly been true in the past. During the 1990-91 recession, EMC Corp. focused on high-end storage technologies and innovated its way through hard times. Chrysler retooled its design process and began farming out component manufacturing to partners--and was the only one of the Big Three to post a profit in 1992. Arrow Electronics bought smaller competitors and expanded in Europe, emerging as the No. 1 electronics distributor in the world.

“Slowdowns can be a great opportunity for companies that are prepared. It's time for the strong to get stronger, and for the relatively weak to get stronger, too,” says Orit Gadiesh, Chairman of consulting firm Bain & Co. The Internet's early winners focused on boosting sales. But during a downturn, that's not nearly enough. The Net can be used to supercharge every aspect of a company's operations, from market research and customer service to engineering collaboration and linking up suppliers. Consider e.biz 25 member Pradeep Sindhu, co-founder of Juniper Networks Inc. He used this wall-to-wall approach to make his four-year-old upstart the leader in high-end network routers. It was built from the ground up to capitalize on the Net. The company takes orders over the Web and automatically passes them to contract manufacturers who make and ship the products. This frees Juniper to concentrate on designing products that trounce the competition. The payoff: Juniper's operating margin hovers around 30%, nearly double the average in the hardware business. The most successful e-businesses don't just chase the latest hot idea. They figure out which technologies are really right for them. Gary M. Reiner, chief information officer at General Electric Co., one of our e.biz 25, turned up his nose when many industrial companies joined consortiums that set up public e-marketplaces. GE has instant economies of scale with its 11 different businesses, so it can reap huge savings by combining all their buying into the company's own private e-marketplace. GE expects to save \$600 million on procurement over the Web in 2001. Many established companies rapidly spun off independent Internet divisions, and for some--NBC, for example--that turned out to be a mistake. The latest thinking is that companies like retailer Office Depot got it right. It set up an independent organization, run by Luechtefeld, but its bricks and clicks are cemented together. For instance, customers who need something immediately can check online to see if the item is in stock at their local Office Depot. The company logged \$850 million in online sales last year, making it the No. 2 online retailer after Amazon.com In a downturn, charismatic leadership is more important than ever. With revenues sinking and stock options underwater, workers need reasons to believe. “You have to persuade people to stay with you for the ride,” says Haim Mendelson, a professor at the Stanford Graduate School of Business. While most companies are laying off, some, like Sun Microsystems Inc., pledge to do so only as a last resort. CEO Scott McNealy, one of our e.biz 25, believes layoffs break a social contract with employees. By holding back, “we're protecting the long-term shareholder value,” he says. For CEOs who have been the company's visionaries during the Net's go-go years, now is the time to buckle down and pay attention to operations. It's advice that Amazon's Bezos takes to heart. The company's goal is to post an operating profit--excluding special charges--in the fourth quarter. He's concentrating on operating efficiencies. And he's using Net technology to get there. Right now, Amazon is

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### Enron Mentions

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| Sender     | ann.schmidt@enron.com           |
| Recipients | []                              |
| File       | dasovich-j/all_documents/28899. |

Senate asked to hold Reliant in contempt over document release Associated Press Newswires, 07/18/01 Calif. Senate Panel Votes To Cite Reliant With Contempt Dow Jones Energy Service, 07/18/01

USA: UPDATE 1-Sempra looks to natgas lines to carry optic fiber. Reuters English News Service, 07/18/01

US GAO Demands Cheney Provide Data On Energy Meetings Dow Jones International News, 07/18/01 Investigative arm of Congress issues demand letter for energy meetings Associated Press Newswires, 07/18/01 Enron's Azurix blocks construction of Argentina-Uruguay gas pipeline - report AFX News, 07/18/01 Fitch Rts Marlin Water Trust II Sr Secured Notes Due 2003, `BBB' Business Wire, 07/18/01

Senate asked to hold Reliant in contempt over document release By DON THOMPSON Associated Press Writer

07/18/2001 Associated Press Newswires Copyright 2001. The Associated Press. All Rights Reserved.

SACRAMENTO (AP) - A Senate committee investigating possible price gouging in California's energy market voted unanimously Wednesday to ask the full Senate to find Houston-based Reliant Energy in contempt for failing to comply with a subpoena for documents. The decision came despite Reliant's last-ditch offer to turn over 10,000 documents under a contingent confidentiality agreement that the Senate Select Committee to Investigate Market Manipulation rejected. "I'm

not just trying to buy time," said Reliant attorney Charles J. Stevens. "We believe we have acted cooperatively. We believe we have a good-faith legal dispute." "It's clear you're trying to work with us. It's not contempt with contempt," agreed committee Chair Joseph Dunn, D-Santa Ana. By contrast, Sen. Steve Peace, D-Chula Vista, blasted Reliant's "shoddy behavior" before backing what he termed "a legally unprecedented step." If the full Senate imposes sanctions against Reliant, it will be the first time since 1929, when the Senate voted to jail reluctant witnesses during a committee investigation of price fixing and price gouging allegations involving cement sales to the state. There are no set penalties, said committee special counsel Laurence Drivon. By law, "the Senate can take such action as it deems necessary and appropriate." The contempt citation will be presented to the Senate Thursday, but will immediately be sent to the Rules Committee for another hearing before the full Senate acts, Dunn said. He said the committee had no choice but to seek the sanctions and likely force a court battle after it was unable to reach agreement with Reliant over the confidentiality of its documents. The committee voted 6-0 in favor of the contempt finding. "If we reach agreement on these issues, the process would be terminated immediately," Dunn said. In that light, the committee stepped back from its contempt vote last week against Enron Corp. after the company and committee moved closer to agreement over its release of thousands of documents stored in Texas. Enron sued the committee last week to stop the subpoena of its financial and electricity trading records. Among its objections are that only the Federal Energy Regulatory Commission has the authority to investigate wholesale markets. Reliant, like Enron, had argued the company's financial papers are outside the committee's jurisdiction because most of its operations and paperwork are outside California. Atlanta-based Mirant Inc. also at least temporarily avoided a contempt citation by agreeing to turn over subpoenaed documents. The committee will review both companies' compliance in 30 days.

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Calif. Senate Panel Votes To Cite Reliant With Contempt

07/18/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

LOS ANGELES -(Dow Jones)- A California Senate committee Wednesday voted to cite Reliant Energy (REI) with contempt because the company has refused to provide documents for an investigation into wholesale electricity prices in the state, said committee Chairman Joe Dunn, D-Santa Ana. The committee also voted to forward a contempt charge for Enron Corp (ENE) to the full Senate, where it will be voted on. If the charge is approved, the Senate will vote on punishment, which could include hefty fines or incarceration of executives. Talks between Enron and committee attorneys Monday seemed to indicate the company would agree to committee demands, but since then it has become clear the company doesn't plan to comply, Dunn said. "If you had asked two days ago I'd have said we are cautiously optimistic about Enron. Now I'm pessimistic about it. We felt they were indicating to us a willingness to do what the other generators were willing to do, but the bottom line is that they are not, despite their cooperative-sounding words. We are no closer to them coming into compliance than we were a week ago," Dunn said.

The Senate Select Committee to Investigate Market Manipulation is requesting that Reliant and Enron provide 16 kinds of documents related to market behavior, rent a depository for the documents, and sign the committee's version of a confidentiality agreement. Both generators have refused to meet those demands, Dunn said. The committee will drop its contempt charges at any time before a full Senate vote if either generator agrees to its requests. A report detailing Enron's contempt charge will be sent to the full Senate on Thursday for introduction, but is expected to be referred to the Senate Rules Committee for review before a floor vote. Dunn said he didn't know how long the report would be considered in the Rules Committee, but he will "certainly push them to do it as soon as possible." Enron spokesman Mark Palmer said the company "will continue to negotiate" with the committee. Legislators are scheduled to begin a monthlong break Friday, but aren't certain that will happen because they still need to pass a budget bill and are trying to approve a bill to rescue Edison International (EIX) unit Southern California Edison before leaving. Dunn said it would take a few days to prepare a report on Reliant's contempt charge. "We may not be able to forward that report to the Senate floor until the day we get back from recess," Dunn said. No one at Reliant could be immediately reached for comment. The committee originally was poised to cite seven other electricity generators for contempt, but all eventually agreed to provide the requested information. -By Jessica Berthold, Dow Jones Newswires; 310-962-2843; jessica.berthold@dowjones.com

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USA: UPDATE 1-Sempra looks to natgas lines to carry optic fiber.



07/18/2001 Reuters English News Service (C) Reuters Limited 2001.

SAN DIEGO, July 18 (Reuters) - A Sempra Energy unit said on Wednesday it has developed technology to connect thousands of miles of underused high-speed fiber-optic cable to buildings across the U.S. by inserting the cable directly into existing natural gas pipelines. Sempra said using its utility's gas lines - which hook up to buildings in cities throughout central and southern California - could tackle the telecommunications industry's "last mile" problem connecting end users to outlying fiber-optic cable networks without tearing up city streets. The surge in demand for high-speed Internet access has led telecommunications companies to pour billions of dollars into vast nationwide fiber-optic systems that carry data to computers, phones and screens faster than traditional copper wires. "Demand for broadband service in metropolitan areas is greater than ever," said Donald Felsing, group president of Sempra Energy. "The most significant obstacle to meeting that demand is the laying of fiber-optic cable under city stree

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### CMTA Tax: Friday meeting to discuss Windfall Profits Tax bills

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | pross@cmta.net                                                                                                     |
| Recipients | ['cabaker@duke-energy.com', 'ccoke@cmta.net', 'cmicheli@carpentersnodgrass.com', 'pross@cmta.net', 'kgough@cal...] |
| File       | dasovich-j/all_documents/11591.                                                                                    |

TO:????????? Cassandra Gough--Calpine ???????????????? Chris Micheli--Carpenter Snodgrass ???????????????? Carolyn Baker--Duke Energy ?????????????????? Anne Kelly--Duke Energy ?????????????????? David Parquet--Enron ?????????????????? Jeff Dasovitch--Enron ?????????????????? Tom Allen--Mirant ?????????????????? John Stout--Reliant Energy ?????????????????? Stephanie Newell--Reliant Energy ?????????????????? Fred Pownal--Kahl/Pownall Advocates

FROM:?? Carrie-Lee Coke

RE:????????? Friday, April 27 Meeting at 2:00 pm in the CMTA Conference room to discuss the Windfall Profits Tax ?????????????????? bills--SBX1 1 (Soto) and ABX1 128 (Corbett)

We are reserving the CMTA conference room for 2:00 pm on Friday, April 27 to meet to discuss the Windfall Profits Tax bills--SBX1 1 (Soto) and ABX1 128 (Corbett).? Please RSVP to Pam Ross at 916-498-3320 or pross@cmta.net if you are able to attend. . . . Thanks.

Message 1074 of 1299

### Enron Mentions

|            |                                 |
|------------|---------------------------------|
| Sender     | ann.schmidt@enron.com           |
| Recipients | []                              |
| File       | dasovich-j/all_documents/11452. |

New Book Uncovers The Secret to Turning Wild and Creative Ideas Into Multi-Million Dollar Innovation PR Newswire, 04/24/01

Enron India Eyes 1st Step To End Pwr Proj - Board Member Dow Jones Energy Service, 04/24/01

IT'S TV CO PICKS NCUBE CORP TO BE VIDEO-ON-DEMAND SERVER PROVIDER Asia Pulse, 04/24/01

INDIA'S MAHARASHTRA STATE NEEDS ONLY 300 MW OF ENRON POWER Asia Pulse, 04/24/01

India: Centre proposes panel to defuse Dabhol crisis Business Line (The Hindu), 04/24/01

Enron PPA to be renegotiated The Economic Times, 04/24/01



Enron directors mulling India deal Wednesday The Daily Deal, 04/24/01

No date set for electricity D-Day Government hopes deregulation will be ready by May, 2002, but deadline uncertain The Globe and Mail, 04/24/01

Milwaukee Journal Sentinel Street Smart Stock Analysis Column KRTBN Knight-Ridder Tribune Business News: The Milwaukee Journal Sentinel - Wisconsin, 04/24/01

UK: UPDATE 2-Saudi's Naimi to meet US Energy Secy on Friday. Reuters English News Service, 04/23/01

New Book Uncovers The Secret to Turning Wild and Creative Ideas Into Multi-Million Dollar Innovation

04/24/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

CHICAGO, April 24 /PRNewswire/ -- You're at your local grocery store or shopping mall when you spot it -- that one product that makes you say out loud, "Who came up with that idea and why didn't I think of it first?" As it happens, though, you may have thought of it. So why aren't you now reaping the benefits from its sales? Companies such as Bacardi, Coldwell Banker, Enron and Starbucks can tell you why. You were hit with a humorous bazooka. For many years companies have been touting their innovation, techniques and experiences, but as they can tell you, it takes dedication and perseverance to arrive at the point where innovation is a strategic part of any business. Innovation begins with a creative idea; however, without an environment that allows that idea to grow, nothing comes of it except frustrated comments like, "Why didn't I think of it first?" In his new book, Ban the Humorous Bazooka: (And Avoid Roadblocks and Speed Bumps along the Innovation Highway), innovation guru Mark Henry Sebell shares his experiences and case studies to show how and why ideas are quickly silenced. As the founder and president of Creative Realities, Inc., a Boston-based consulting firm specializing in innovation processes that dramatically increase the odds for successful outcomes, Sebell spells out what it takes to achieve real breakthroughs in innovation, in spite of the speed bumps (individual behaviors) and roadblocks (group behaviors and cultural norms) that impede progress. Sebell's impressive Who's Who client list has taken part in the book, allowing him to share stories from the front lines of innovation, humanizing the concepts and providing tangible and practical tools to make innovation work beyond any and all expectations. "... I now keep a toy bazooka prominently displayed in my office as a constant 'innovation reminder' that every idea, no matter how unconventional or implausible, has potential value and should always be encouraged," says Alex Perriello, president and CEO, Coldwell Banker Real Estate Corporation. Sebell defines a humorous bazooka as a funny, witty comment that, intentionally or unintentionally, shoots down another person's idea. In other words -- an innovation killer. In "Ban the Humorous Bazooka," readers examine the nine myths of innovation, bringing a greater awareness to the exciting and messy work that must be done in order to discover, nurture, launch and implement a great idea. Sebell also utilizes past and current client examples to provide the reader with the five phases of innovation essential to any creative and innovative pursuit. Starting with objective setting and then following the phases through discovery, invention, the greenhouse and implementation and launch, Sebell paints a thorough and motivating sequence of events. Sebell counts among his clients such firms as Compaq Computer, Walt Disney World Soup, Enron, PepsiCo, Citigroup, Starbucks and Dewar's Scotch. MAKE YOUR OPINION COUNT - Click Here <http://tbutton.prnewswire.com/prn/11690X71118673>

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Enron India Eyes 1st Step To End Pwr Proj - Board Member By Andrew Dowell Of DOW JONES NEWSWIRE

04/24/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- Enron Corp.'s (ENE) troubled Indian unit Dabhol Power Co. is mulling a preliminary move toward terminating its project in the state of Maharashtra in light of its inability to collect payment for power already delivered, a member of the company's board said Monday. Enron, however, plans to complete Phase II of the 2,184-megawatt power plant, said Don Sturmer, a vice president at Bechtel Enterprises (X.BTL) and member of the board at Dabhol Power, in which Bechtel owns a 10% stake. The company at its board meeting Wednesday in London will consider what's called a preliminary termination notice, the first of three steps that end in abandonment of the project, Sturmer said. Step two would be an official termination notice, and step three would be a notice that the company was

surrendering control of the project, said Sturmer, who called the first step "procedural." "We're nowhere near steps two and three yet," he said. "Whether we go forward with (a preliminary termination notice) will probably be decided at the board meeting on Wednesday." Issuing the preliminary termination notice could put Dabhol Power in a position to suspend deliveries as it negotiates its payment disputes with the Maharashtra state electricity board, or MSEB, Sturmer said. As reported, the electricity board intends to challenge those bills at the meeting Wednesday. A spokesman for Enron Corp., which with a 65% stake in Dabhol Power is the project's largest shareholder, wouldn't comment on topics for discussion at the upcoming meeting. Other shareholders include General Electric Co. (GE), which owns 10%, and the MSEB, which owns 15%. Dabhol Power is moving ahead to finish the second phase of the project, which is 95% complete, Sturmer said. Phase two will add two nominally rated 750-megawatt units to the existing 750-megawatt unit and add a liquefied natural gas terminal and regasification unit to allow the plant to shift from running on naphtha to running on gas. "The current plan is to continue construction...and having the entire facility commercially available by the end of this year," he said. Disputes Over Payments For Power Delivered To MESB

The controversial \$3-billion project, India's largest foreign investment, has been mired in financial disputes since the electricity board began missing payments last year. According to Sturmer, the board owes Dabhol Power \$48 million for power delivered in December and January. The board made a \$24 million payment for February, but has a \$31 million bill for March coming due Wednesday. Dabhol Power officials met Monday with lenders to update them on the dispute and to discuss steps the company might take in light of the missed payments. Dabhol Power officials weren't available Tuesday to comment on the outstanding payments. According to some news reports, Dabhol Power was seeking to secure its lenders' approval for a plan to terminate the project. A Dabhol Power executive and a banker, both involved in the talks, wouldn't confirm or deny the reports. John Ambler, spokesman for Enron's Global Assets Group, called the meeting a regular status update. The

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#### IEP News 5/1

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Today's IEP news:

The Associated Press State & Local Wire, May 1, 2001, Tuesday, BC cycle, 9:49 AM Eastern Time, State and Regional, 840 words, Lawmakers offer bills aimed at cutting natural gas prices, By JENNIFER COLEMAN, Associated Press Writer, SACRAMENTO (Quotes Smutny)

Los Angeles Times, May 1, 2001 Tuesday, Home Edition, Page 16, 1078 words, Davis Turns to Bankruptcy Court for Help in Plan to Buy Power Grid; Utility: He seeks support from panel representing creditors of PG&E. The firm has rebuffed state's offers., DAN MORAIN, RICHARD SIMON, TIMES STAFF WRITERS, SAN FRANCISCO

Los Angeles Times, May 1, 2001 Tuesday, Home Edition, Page 3, 429 words, California and the West; THE CALIFORNIA ENERGY CRISIS; ; Power Marketer Ordered by FERC to Refund \$8 Million; Energy: Williams Energy agrees to pay but admits no wrongdoing in taking plants offline., NANCY VOGEL, ROBERT J. LOPEZ, TIMES STAFF WRITERS

Los Angeles Times, May 1, 2001 Tuesday, Home Edition, Page 3, 699 words, California and the West; THE CALIFORNIA ENERGY CRISIS; Power Companies Step Up Lobbying, JULIE TAMAKI, MIGUEL BUSTILLO, TIMES STAFF WRITERS, SACRAMENTO

The New York Times, May 1, 2001, Tuesday, Late Edition - Final, Section A; Page 1; Column 5; National Desk, 2130 words, River's Power Aids California And Enriches the Northwest, By BLAINE HARDEN, GEORGE, Wash. (Great article!)

The Orange County Register, May 1, 2001, Tuesday, STATE AND REGIONAL NEWS, K4842, 378 words, Power supplier to pay state, By Kate Berry

San Jose Mercury News, May 1, 2001, Tuesday, STATE AND REGIONAL NEWS, K4846 K4846, 814 words, Williams Energy agrees to return \$8 million to state, By K4846 Brandon Bailey

San Jose Mercury News, May 1, 2001, Tuesday, DOMESTIC NEWS, K4844, 1017 K4844 words, Cheney says energy plan could prevent California crisis from K4844 spreading, By Jim Puzzanghera

The San Francisco Chronicle, MAY 1, 2001, TUESDAY,, FINAL EDITION, NEWS,, K4844 Pg. A1, 804 words, Feds want surcharge to pay utilities' debts; K4844 THE PLAN: K4844 Additional rate boost likely, cash would go to power suppliers, Carolyn Said

The Tribune (San Luis Obispo, CA), May 1, 2001, Tuesday, STATE AND REGIONAL K4844 NEWS, K3262, 699 words, Professor converts manure to electricity in effort K4844 to save money, By Jerry Bunin

The Washington Post, May 01, 2001, Tuesday, Final Edition, FINANCIAL; Pg. K4844 E03, 495 words, Energy Overcharge Case Settled; Williams to Pay Calif. \$8 K4844 Million After Probe Involving AES, Peter Behr, Washington Post Staff Writer

The Associated Press State & Local Wire, May 1, 2001, Tuesday, BC cycle, K4844 9:49 AM Eastern Time, State and Regional, 840 words, Lawmakers offer bills K4844 aimed at cutting natural gas prices, By JENNIFER COLEMAN, Associated Press K4844 Writer, SACRAMENTO

The Associated Press State & Local Wire, May 1, 2001, Tuesday, BC cycle, K4844 9:46 AM Eastern Time, State and Regional, 619 words, Developments in K4844 California's energy crisis, By The Associated Press

May 1, 2001, Tuesday, BC cycle

K4844 9:49 AM Eastern Time

SECTION: State and Regional

LENGTH: 840 words

HEADLINE: Lawmakers offer bills aimed at cutting natural gas prices

BYLINE: By JENNIFER COLEMAN, Associated Press Writer

DATELINE: SACRAMENTO

BODY:

??Gov. Gray Davis is relying on stringent conservation measures, increased electricity supply and quick Legislative authority to proceed with a \$12.5 billion revenue bond issue to head off blackouts this summer.

??Davis administration officials briefed lawmakers Monday on the governor's plan to rescue Southern California Edison by buying the utility's transmission lines.

??The extra financial details Davis' representatives gave Assembly Republicans include forecasts of the Department of Water Resources' summer power purchases - the same figures the state will use to find buyers for \$12.5 billion in bonds to pay for future power.

??Those forecasts, some Republicans said, count on too many things falling into place, including the assumption that all of the state's financially troubled alternative energy producers will be online.

??Though energy analysts have predicted skyrocketing energy costs for summer - up to \$1,500 per megawatt hour - the governor's plan calculates an average cost of \$195 per megawatt hour over June, July and August.

??That's because DWR cut long-term contracts covering a major part of the electricity needed during peak times, said Ron Nichols, senior managing director for Navigant Consulting Inc.

??Long-term contracts and conservation will minimize the effect of the expected high spot prices, Nichols said.

??In essence, Davis aides, much of the conservation will be spurred by sticker shock felt by consumers when they get their higher rates on their June bills. PG&E customers will see a 34 percent increase, Southern California Edison's will jump 32 and San Diego Gas and Electric rates will jump 44 percent.

??Davis' consultants predict the state can conserve up to 7,234 megawatts during peak demand - about 16 percent of a 45,000 megawatt load that summer weather can bring on. One megawatt is roughly enough power for 750 homes.

??Much of that conservation, 2,484 megawatts, will come from three different conservation programs through the California Independent System Operator, keeper of the state's power grid.

??Davis' "20/20" conservation plan is expected to cut another 2,200 megawatts of demand. The rest of the cuts come from the sticker shock of higher consumer rates and by estimating how much less power Californians are using this year compared to last year.

??"If we're wrong, there are certain reserves built in," said Susan Kennedy, deputy chief of staff and secretary of cabinet. Either the state borrows more or there will be blackouts, she added, and if the price of power goes higher than expectations, the state won't be able to afford it.

??By the end of 2002, Davis estimates, DWR will spend \$26.9 billion to buy power for customers of the three financially ailing utilities. Of that, \$12.5 billion will be paid for by revenue bonds that will add up to one cent per kilowatt hour to customer bills for 15 years.

??The Legislature approved the revenue bonds based on a formula that would set the amount of the issue. Now Davis' representatives say it's urgent that the Legislature approve a bill with a firm cap so they could begin the bond sale.

??"We need the unambiguous authority to sell bonds. We need it right now. We cannot afford any delays," Kennedy said.

??A bill putting a \$10 billion limit on the bonds stalled in the Assembly last week after Republicans refused to vote for it until they received more details about Davis' power buys and long-term contracts.

??Republicans wondered about the ability of the alternative generators to be online, a sentiment shared by the industry. Currently, about one-third are off-line now because PG&E and Edison owe them more than \$1 billion.

??The Public Utilities Commission ordered the utilities to pay those generators every other week starting April 1, but the large debts have the generators fighting to stay open, said Jan Smutny-Jones, executive director of the Independent Energy Producers.

??Davis' predictions aren't rosy, but realistic, said Joseph Fichera, a financial adviser for the governor. "It minimizes the risk of blackouts, but you can never eliminate it."

??Also Monday, an Assembly subcommittee unveiled four bills Monday designed to increase supplies of natural gas, including streamlining approvals for gas storage and new pipelines.

??After conducting hearings on the market, the subcommittee is recommending the state streamline the PUC's process to approve underground

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SJM to mobilise retired army officers Business Standard, 06/08/01

States cannot afford DPC power Business Standard, 06/08/01

Dabhol lenders to study pullout cost Business Standard, 06/08/01

Enron Introduces Price Hedging for Memory Chips Dow Jones Business News, 06/07/01

Calif Eyes Ending Access To Alternative Power Suppliers Dow Jones Energy Service, 06/07/01

Enron's Lenders Consider Closure of Indian Project (Update6) Bloomberg, 06/07/01

California Spending Less on Power, May Renegotiate, Reports Say Bloomberg, 06/07/01

Enron, DuPont Urge Bush to Salvage Environmental Pact (Update1) Bloomberg, 06/07/01

'Obsolete' Stock-Picking Tool Gives 52% Return: John Dorfman Bloomberg, 06/07/01

California to Utilize Lower Electricity Prices, Paper Reports Bloomberg, 06/07/01

SJM to mobilise retired army officers Our Political Bureau New Delhi

06/08/2001 Business Standard 2 Copyright (c) Business Standard

The Swadeshi Jagran Manch (SJM) would marshal a battery of retired army officials to raise the banner of revolt against the government's decision for privatisation of the defence sector. The SJM is expecting to mobilise support of retired senior army officials in order to drive home the point that the decision to privatise and allow FDI in defence production was "anti-national". These officials would lead the dharna from July 25 outside Parliament, sources in the SJM say. After its council meeting at Shimla, the SJM is preparing to launch a full-blown attack against the government for pursuing its policies of economic liberalisation and globalisation. "The decision to hold a three-day agitation during the monsoon session of Parliament is intended to convey the message that the SJM would continue its struggle," said a senior office-bearer. The Swadeshi faction within the Sangh Parivar appears buoyed by the fact that the council had adopted four resolutions which approved the SJM's struggle against the Enron project, WTO and the government's decision to privatise the defence productions. Sources in the SJM maintain that given the resolutions passed by the council, it was unlikely that the RSS leadership would intervene and ask the SJM to mend its ways. "In the Bangalore meeting with the RSS leadership, a broad consensus was evolved that all RSS-affiliated organisations were free to chalk out their own course of actions and the RSS would not intervene," they said. Obviously, the SJM has been bracing up for a confrontation with the government in major economic issues by putting up BMS founder and senior RSS leader Dattopant Thengadi in front to criticise the government.

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States cannot afford DPC power Santosh Tiwary & P Vaidyanathan Iyer NEW DELHI

06/08/2001 Business Standard 2 Copyright (c) Business Standard

The Centre's initiative towards facilitating sale of power from the Enron -promoted Dabhol project in Maharashtra to other states is likely to come a cropper. Sources told Business Standard that the states would in no way be able to purchase power from Dabhol Power Company (DPC) as it would be difficult to lower the tariff to Rs 3 per unit. "No state will be able to buy power from DPC at a rate above Rs 3 per unit considering the rate at which they are supplying power to the consumers at present," said a source in the Central Electricity Authority (CEA). Power minister Suresh Prabhu had only last week asked CEA to consult the power-deficient neighbouring states of Maharashtra seeking their views on the requirement and tariff at which they would be able to buy electricity from DPC. Sources said that states such as Gujarat, Madhya Pradesh and Goa, to which DPC could supply power, were not in a position to buy it at a cost which was more than what they spend at present. They pointed out that even after a considerable reduction in tariff, it was highly unlikely that DPC would sell power to these states at the rates affordable by them. As for the other states, transmission cost would only add up to the already high cost of Dabhol power. Hence, the proposition is almost ruled out, said sources. They said that the unit cost of power for all SEBs was around Rs 3 at present. Interestingly, the average tariff of all the SEBs was estimated to be 208 paise per unit in 1999-2000, at a 74 per cent tariff to cost ratio. In 1999-2000, the unit cost of power supply in Gujarat was 287.30 paise, and in Madhya Pradesh, it was 252.72 paise. Maharashtra had 254.36 paise per unit cost of power supply in 1999-2000. Sources said that the existing tariff structure and supply cost was a clear indication why third party sale had not been allowed by the states even though Section 43 of the Indian Electricity (Supply) Act, 1948 allowed such sale. They added that the chances of states allowing third-party sale by the independent power producers in the light of the DPC-MSEB controversy was remote. The Centre has asked the states to allow third-party sale from the IPPs.

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Dabhol lenders to study pullout cost Freny Patel MUMBAI

06/08/2001 Business Standard 1 Copyright (c) Business Standard

Lenders to the Dabhol Power project have mandated their engineer, Stone and Webster, to do a costing study on the implications of mothballing the second phase of the project. The issue is whether to close it now or wait till the civil work on the project is over. Enron has made it clear that it wants to pull out of the second phase unless issues relating to the power purchase agreement are resolved and the government of India makes a firm commitment on the offtake of power. IDBI executive director RS Agarwal, who was present at the two-day lenders' meeting in Singapore, told Business Standard that the institutional lenders will discuss the report of the engineers before deciding on a further course of action. The second phase is 92 per cent complete. Total completion would entail the finalisation of the power blocks and the LNG facility. Incidentally, the trial run of the first block of the second phase\_740 mw was to have taken place today, but failed to happen on account of the legal battle between DPC and MSEB. To date, more than \$1,570 million has been invested in the second phase. Stone & Webster's report will identify how much additional funds the lenders would have to plough in depending upon whether the project is shelved immediately or after completion of construction activity. It will also figure out the funds required to restart the project. "The legal position of the two parties - DPC and MSEB - has complicated the issue," said Agarwal. Foreign lenders are reportedly unconvinced about the Indian government's seriousness in resolving the issue. Lenders have expressed anxiety over the suspension of power offtake by the MSEB, as this has affected the \$50 million cash flow. The priority is for the two sides to resolve the issue through negotiations at the earliest. DPC ought to take the initiative as it is at the receiving end, said industry sources.

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Enron Introduces Price Hedging for Memory Chips By Bob Sechler

06/07/2001 Dow Jones Business News (Copyright (c) 2001, Dow Jones & Company, Inc.)

Dow Jones Newswires HOUSTON, Texas -- Dynamic random access memory chips, known as DRAM, have long been viewed as the pork bellies of the computer industry, commodities whose prices swing widely based on supply and demand. Enron Corp. (ENE) is taking the analogy a step further by enabling DRAM manufacturers and consumers, such as computer companies, to engage in the same price hedging strategies deployed in industries that depend on traditional commodities. Th

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#### Enron Mentions - 05/12/01 - 05/13/01

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As Final Exams Begin, Power Is a Big Question The New York Times, 05/13/01

British Telecom The Times of London, 05/12/01

Houston needs to think small about future technology Houston Chronicle, 05/13/01

Panel plots new course for area's future / Education, economics, quality of life top group's list of needed improvements Houston Chronicle, 05/13/01

MSEB not to pick up 15 pc in DPC after phase II completion Press Trust of India Limited, 05/13/01

Enron plans to pull out of Gulf gas project: MEED Agence France-Presse, 05/13/01

SMALL BUSINESS / Pleasure cruisin' / Yacht fleet owner offers customers what amounts to limo service on the lake Houston Chronicle, 05/13/01



More power to reform agenda The Economic Times, 05/13/01

India Power Min: New Power Deal With Enron Unit Possible Dow Jones International News, 05/12/01

India: Talks begin on Dabhol issue Business Line (The Hindu), 05/12/01

India to allow 3rd party sale if DPC, MSEB jointly approach Press Trust of India Limited, 05/12/01

DEFAZIO CALLS FOR STATE TO BUY PGE TO PROTECT RATES Portland Oregonian, 05/12/01

Congressman suggests state buy PGE Associated Press Newswires, 05/11/01

National Desk; Section 1 As Final Exams Begin, Power Is a Big Question By JODI WILGOREN

05/13/2001 The New York Times Page 16, Column 4 c. 2001 New York Times Company

For final exams, prepared students pack extra pens, calculators, bottled water, granola bars. And, at the University of California's Berkeley campus this year, a flashlight. As state officials and utilities struggle to maintain the power supply during California's continuing energy shortage, administrators and professors at the 31,000-student campus are planning for the possibility that rolling blackouts may disrupt exams, which began on Friday and run through next Saturday. "People here are used to interruptions," Sara Abbas, 21, a senior communications major, said with a shrug as she studied in a cafe near campus. "People walking in, people running around buck naked and whatnot. People have cut the power lines. They just reschedule." In an e-mail message sent Wednesday, the executive vice chancellor, Paul R. Gray, advised instructors to use "individual discretion to decide the disposition of their examinations once the exam has started." Among the options: delay the test until the lights return; postpone it until a Saturday; grade the incomplete test; or cancel the exam altogether. Professors are also encouraged to check a Web site to see if their exam rooms have windows. "In some classrooms," Mr. Gray noted, "students may have sufficient natural light." The rolling blackouts could hit most of the campuses of the University of California and California State University. The two systems are embroiled in a legal dispute with Enron Energy Services, a Houston-based company that, in February, cut short a four-year contract to provide electricity directly to the universities. For now, the two systems -- among the largest energy consumers in the state -- are being supplied by Pacific Gas and Electric and Southern California Edison. Though several medical centers and the Davis, Los Angeles and Riverside campuses of the University of California system are exempt from the blackouts, the rest of the campuses have been put on alert. At Berkeley, the warning from Mr. Gray only heightened pre-exam stress levels. "Stopping in the middle of a final would be detrimental to my grade because I save the hardest questions until the end," said Heidi West, 20, a sophomore majoring in political science. Aaron Chung, a senior studying cognitive science, said it would be unfair to grade half-finished exams because he often circled answers instinctively, planning to return later with more care. "The only thing I don't have a problem with is if the professors give everyone A's," Mr. Chung, 23, said. "You have to be under a lot of duress for that to happen." Gary L. Firestone, a biology professor, said he would move his 500-member class out into the sunshine and tell students to spread their blue books on the grass. But Jeff Good, a graduate student who teaches Introduction to Syntax and Semantics, said he would probably cancel the exam because the final counts for only 20 percent of the grade. That is what Michelle Chen, a junior linguistics major in Mr. Good's class, is hoping for. "I would love a blackout," Ms. Chen said. "I'm going to turn on my air-conditioner. My toaster, too."

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Business British Telecom Patience Wheatcroft

05/12/2001 The Times of London News International Final 4 55 (Copyright Times Newspapers Ltd, 2001)

BRITISH TELECOM has inflicted enough damage on itself in the past year. But others are still lining up to put the boot in. Hours after the company announced a Pounds 5.9 billion rights issue and the separation of cash-hungry BT Wireless, Moody's Investors Service lowered BT's credit rating. This thumbs-down will cost BT an extra Pounds 35 million a year on existing loans as well as making future working capital more expensive. The timing is odd. One of the two other main agencies presented with the same BT proposals maintained its rating and the other edged it down so little that change-of-rating clauses were not triggered. In the meantime, the market prices of BT debt have been rising. The Enron Cost of Credit, which measures the overall risk premium on BT borrowing, has halved since mid February. Such costly inconsistencies must focus more critical attention on the agencies, whose power has grown out of proportion to their accountability. Moody's verdict is, however, peanuts compared with the cost to BT of the whims of Stephen Byers and the



UK competition authorities. Moody's will no doubt be aghast to learn that Yell could be worth Pounds 1 billion less as a result. In 1996 the Monopolies and Mergers Commission found that BT's Yellow Pages had an 85 per cent monopoly of its market and made it sign undertakings to cut prices by 2 per cent a year in real terms. The Office of Fair Trading has reviewed this report; predictably, it has found that the enforced price cuts have kept competition down and kept Yell's market share up. The reasoning behind OFT advice that annual real price cuts should be doubled is closed to scrutiny until Mr Byers has a new BT undertaking. But it appears to argue that the market is still a monopoly, so Yell must be charging too much, so prices should fall further. The result, according to those formerly eager to buy Yell, is that a growth business has been turned into a stagnant one, losing all momentum. This sounds typical of the dead hand of UK regulation. It must strengthen the resolve of BT's new leaders to remodel what the authorities so hate to the greater advantage of shareholders.

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OUTLOOK Outlook Houston needs to think small about future technology WILLIAM DYLAN POWELL

05/13/2001 Houston Chronicle 2 STAR 4 (Copyright 2001)

OK, it's test time - sort of like a breakfast-time Rorschach test for Outlook readers. Here we go: What's the first thing that comes to mind when someone mentions Houston? Time's up. Your answers may have been energy, medicine or seemingly random acts of highway closure. But how about something very, very small? While Houston may not exactly be synonymous with all things tiny, we may want to start giving more mind share to the world of the miniature. As technology advances, Houston may owe a great deal to the study of small substances. Nanotechnology is the study of creating functional structures on a molecular scale (the prefix "nano" means one billionth, or 10 to the ninth power numerical

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### Enron Mentions

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Enron Would Accept Less Money in a Calif. Settlement (Update1) Bloomberg, 06/06/01

Business World: California's Ship of Fools The Wall Street Journal, 06/06/01

Commentary 'Hi, My Name Isn't Justice, Honey,' and Shame on Lockyer Los Angeles Times, 06/06/01

California Squeaks By The Wall Street Journal, 06/06/01

Top Bush Adviser Moves to Sell Stocks The Washington Post, 06/06/01

What Really Counts? EPS. Merrill Lynch Report, 06/06/01

India: MSEB unruffled amid power talk Business Line (The Hindu), 06/06/01

OMAN LNG STRIKES DEALS WITH INT'L ENERGY COS ON SPOT SALES Asia Pulse, 06/06/01

AES looks to recover Rs 209 cr Gridco dues Business Standard, 06/06/01

MSEB refuses DPC power at 90% PLF Business Standard, 06/06/01

MEXICO: Enron Corp. to sell energy in Mexico in 2002. Reuters English News Service, 06/05/01

US Democrats Seek Hearing On Cheney Energy Task Force Dow Jones Energy Service, 06/05/01

Enron Would Accept Less Money in a Calif. Settlement (Update1) 2001-06-06 01:57 (New York)

Enron Would Accept Less Money in a Calif. Settlement (Update1)

(Adds spokesman's comment in fourth to sixth paragraphs.)

Houston, June 6 (Bloomberg) -- Enron Corp. Chairman Kenneth Lay said the world's largest energy trader would accept less than 100 percent of the money it's owed for power sold to California if it could reach a settlement with the state. Lay, who spoke on PBS's "Frontline" television program, which aired nationwide this evening, refused to say how much of a "haircut" the company would accept. "I'm not going to negotiate with the governor through you," Lay said on the program. Enron is currently owed \$400 million to \$500 million by California power purchasers, he said. Most of that money is owed by PG&E Corp.'s Pacific Gas & Electric utility, which declared bankruptcy April 6, so it wouldn't be covered in a settlement with the state, spokesman Mark Palmer said after the broadcast, adding that there are currently no settlement talks going on between Enron and the state. Palmer said a settlement to the California power crisis would have to include issues beyond prices, such as long-term power contracts and retail electricity choice. "There would have to be a settlement of all the issues in the market before anyone would agree to take a haircut," he said. "For anyone to even talk settlement, we have to talk about structural issues." The "Frontline" broadcast also said Duke Energy Corp. has been in secret settlement negotiations with the state for six or seven weeks, which would require that all pending litigation against the company be dropped. The program, a joint production of PBS and the New York Times, said that Duke pledged political and public support for California Governor Gray Davis as part of the settlement. "I will not do anything that is unseemly or anything that will bleed California dry," Davis said, adding that he won't give up legal avenues. He said he gave Duke "high marks," though, for proposing a settlement in the first place. Davis has accused California's major generators and Enron - a state power marketer, but not a generator - of price gouging California consumers. Duke, which produces about 5 percent of the power used in California, recently admitted it charged \$3,800 a megawatt-hour for power sold to the state in January and February. That's 15 times above average levels in January. Shares of Houston-based Enron fell 79 cents to \$53.75. Shares of Charlotte-based Duke, the top U.S. utility owner, fell \$1.70 to \$42.50.

Business World: California's Ship of Fools By Holman W. Jenkins Jr.

06/06/2001 The Wall Street Journal A27 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Lamenting the politician's lot in "Profiles in Courage," John F. Kennedy wrote that "In no other occupation is it expected that a man will sacrifice honors, prestige and his chosen career on a single issue." Of course, no politician would last long if he didn't blow with the wind nine times out of 10. But on the tenth occasion even California has the right to expect some courage. We don't know what happens when an advanced economy like California's suffers day after day of blackouts. We may be about to find out. Modern office architecture becomes uninhabitable without air-conditioning and elevators. Old people and asthmatics may die in the heat. So may drivers at unlit traffic crossings. Steps could still be taken to lessen the blackouts, but voters wouldn't know the difference, and it's so much easier to cast blame. Gov. Gray Davis prates about a "war with Texas." And who knows what secret failures as a human being led Bill Lockyer, the attorney general, to threaten Enron's Ken Lay with homosexual rape in the California prison system. California has found itself singularly lacking in heroes in its hour of crisis. Mr. Lockyer and Mr. Davis harp on price, but the true problem is the unavailability of power at any price to meet the demand that exists under the current structure of retail rates. Both must know the solution they noisily advocate, federal price controls slapped across Western electricity markets, wouldn't bring power into existence to close the gap. Their proposal would simply saddle the feds with the dirty job of apportioning blackouts from California's mistakes across half a dozen other states. In California itself, municipal utilities in Santa Clara, Palo Alto and other towns have already announced they won't participate in rolling blackouts. The Los Angeles Department of Water and Power certainly isn't volunteering. Why should voters in other states? Why not just cut the lines and let California monopolize the darkness? A state review board in Washington has already vetoed a proposed plant rather than suffer local pollution for power destined for California. Mr. Davis knows this; he knows price controls would create a new problem without solving the shortages. Meanwhile, the specter nobody wants to talk about is the state of California itself headed for bankruptcy if it continues to be willing to pay any price to satisfy the demand of consumers shielded from the true cost of power. Mr. Davis's version of the Big Lie is that Texas is to blame. Texas companies account for just 12% of California's supply, having bought 7,000 of the 20,000 megawatts that local utilities were forced to sell under "deregulation." Being in the right place at the right time has always been profitable, but any windfall has been spread widely among suppliers of gas, pipeline capacity, storage and ancillary services. Take Enron: Its revenues quadrupled in the past year, but so did its costs, and profits are up only 31%. A leaked California memo names as two of the biggest "gougers" BC Hydro, owned by Canadian taxpayers, and the U.S. Bonneville Power Administration. Their sin was letting their reservoirs fill up overnight while meeting local needs with spot-market power, so they could sell their own production for higher prices to California during the day. These are precisely efforts that might stop if price controls were imposed across the West, making the

shortages worse, probably much worse. Northwestern smelters might be better off reclaiming the cheap hydro they've been passing on to California -- 3,000 megawatts, enough for two million homes. Farmers could resume irrigating. Seattle, Tacoma, Boise and other neighbors have all done what California has failed yet to do, hiking rates to curb demand. Rather than emulate them, Gov. Davis's peacock of an energy czar, David Freeman, babbles about "public power," the answer to a question nobody asked, the solution to a nonexistent problem. Prices of electricity and natural gas for future delivery are already falling as investors race to

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#### Enron Mentions

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COMMODITIES & AGRICULTURE - Soft commodity traders find the going hard. Financial Times, 07/03/01

GLOBAL INVESTING - Enron looks to make power play in continental Europe. Financial Times, 07/03/01

COMPANY BUYS SOME ASSETS FROM ENRON FOR \$120 MILLION The New York Times, 07/03/01

Crude Oil Transport Buys Plant, Pipelines from Houston-Based Energy Firm KRTBN Knight-Ridder Tribune Business News: Houston Chronicle - Texas, 07/03/01

Ads Brawl in a Never-Ending Political Season The New York Times, 07/03/01

JAPAN: S.Korea SAROK buys 10,000 tns of western aluminium. Reuters English News Service, 07/03/01

India: FIs, banks favour AES taking over Dabhol Business Line (The Hindu), 07/03/01

India: MSEB asked to prove confidentiality of Enron papers Business Line (The Hindu), 07/03/01

India: New power Bill set to free captive generation Business Line (The Hindu), 07/03/01

India Inc steps up social works, but ... The Economic Times, 07/03/01

Cheney raised Dabhol issue with Sonia The Times of India, 07/03/01

CM, Pawar flayed for contradicting views on Enron The Times of India, 07/03/01

INDIAN FIs READY TO TAKEOVER DABHOL POWER, BUT WILL NOT RUN IT Asia Pulse, 07/03/01

Three US firms in talks with Indian lenders to take over DPC Business Standard, 07/03/01

Selected details from state's unedited power contracts, at-a-glance Associated Press Newswires, 07/02/01

SMARTMONEY.COM: What Will the Second Half Bring? Dow Jones News Service, 07/02/01

USA: Duke denies using plant to sway Calif. power prices. Reuters English News Service, 07/02/01

State controller releases unedited power contracts Associated Press Newswires, 07/02/01

Oregon Lawmakers Pass Bill To Delay Elec Dereg 5 Months Dow Jones Energy Service, 07/02/01

COMMODITIES & AGRICULTURE - Soft commodity traders find the going hard. By ADRIENNE ROBERTS.

07/03/2001 Financial Times (c) 2001 Financial Times Limited . All Rights Reserved

Soft commodity traders find the going hard - Barriers to entry are daunting and the big incumbents are facing months of adaptation and belt tightening, says Adrienne Roberts. Profit margins in soft commodities trading are wafer-thin. "The margins are to be found between the wallpaper and the wall," said the head of a European trading business. "We are barely making a profit in cocoa, and we are one of the biggest participants in the market," said an executive at a leading London futures brokerage. Enron, the largest natural gas and electricity trading house in the US, announced recently that

it is closing its London-based cocoa, sugar and coffee brokerage business following an internal company review. Members of the industry think the brokerage, Rudolf Wolff, was failing to generate enough cash. "US companies tend to be much more aggressive on the kind of returns they want from each desk. I'm not surprised Enron decided to pack it in," said a US trader. Enron says it is continuing to look into other opportunities in the softs industry. Part of the problem is depressed markets, with low prices and thin volumes. "Coffee is at a 30-year low, cocoa is flat at this time of year - I would say it's extremely challenging unless you have critical mass," said the head of a London softs desk. "Merchants are the source of our income. If they're squeezed, they squeeze everyone." Business conditions have been particularly difficult, for merchants sourcing from Cote d'Ivoire, a major coffee producer and the world's largest cocoa grower. Political upheaval and industry restructuring have reduced the volumes of stock coming on to the physical market. "The only answer is greater efficiency; lower costs," said a manager at a leading soft commodities merchant. Customers found a way of cutting their brokerage costs late last year when the London International Financial Futures and Options Exchange took its commodity products electronic. Customers can now ask their brokers to provide them with trading screens, with uncomfortable effects on brokers' execution fees. A year ago, a client who wanted to buy 10 lots of coffee might telephone his broker, get some advice, hear the latest on the weather in Brazil or politics in Cote d'Ivoire, and have his trade executed by the broker. Now the client might connect directly to Liffe, put through his own trade electronically and receive the documentation via the web. He may not speak to his broker at all. Brokers earn a fee for providing the screens, but not as much as they would from execution. "Margins are under tremendous pressure in the futures business because of the move to electronic trading," said an executive at a London bank. "You're seeing the tip of the iceberg now. If electronic trading is having such a major effect on brokers in the softs market, what does it mean when metals and energy go electronic?" The execution and advice functions, once part of the same package, have been separated. The question of where these clients will go for advice and what they are prepared to pay for it has not yet been answered. "The key to this business is volume," said Brian de Clare at ABN Amro. "Your incremental cost is negligible - putting through 100,000 lots costs pretty much the same as 500,000 lots. High volumes, in conjunction with good service, will determine who's going to get the lion's share of the business and who won't." ABN Amro is one of the few participants in the industry that is expanding its softs business and recruiting. Brokers think more people will begin dropping out of the market and there will be consolidation among those in the industry. There are rumours that Truxo, which belongs to the Neumann group, is thinking of withdrawing from clearing customer business. Head counts have come down since the demise of the open outcry trading pit, but some businesses are looking to streamline further. Commodities brokers that trade on the floor might have from four to seven support staff to each trader. In the softs business "we're now starting to see that people who were in the office are not needed to the same degree because people have got their own screens", said one. There is not much relief in sight. For smaller brokers, the barriers to entry are increasingly daunting. For the big incumbents there may be many months of adaptation and belt tightening ahead. (c) Copyright Financial Times Ltd. All rights reserved. <http://www.ft.com>.

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GLOBAL INVESTING - Enron looks to make power play in continental Europe. By JULIE EARLE.

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Ten years ago Enron, the US energy giant, derived its profit purely from its home market and from a few projects in the UK. It operated pipelines and produced power. Today, the Houston-based company has recreated itself as a global energy merchant, selling and delivering gas and electricity, and its profits are increasingly produced offshore. Having consolidated its position in the UK, Enron is making a big push into continental Europe to capture the growth potential in deregulating energy markets. The company moved into the energy selling business with the deregulation in the US of gas in 1994 and electricity in 1996. It now has projects in more than 40 countries. The change in strategy, away from owning infrastructure and towards energy selling, has seen its earnings drift away from pipelines in the US towards a rapidly growing wholesale gas and power business. Enron does not release its revenue breakdown but it is clear from its volumes that the wholesale unit - which involves energy trading and marketing and risk management services - generates about 85 per cent of the company's profits. A third of the company's wholesale business come

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**VentureWire, Wednesday, November 22, 2000**

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=09?=09 ?=09' VentureWire' =09Wednesday, November 22, 2000=09? ?=09CONTENTS | COMPANIES | INVESTORS=09? ?=09 =09 =09 =09top stories =09 =09\* Benchmark Targets Israeli Firms With New \$200 Million Fund =09\* Former Swedish Prime Minister Joins Melody InteractiveBoard=20 =09\* Supply Chain Firm Qiva Raises \$12.6 Million First Round =09\* Optical Networking Developer Zaffire Names New CEO =09 =09Note to readers: =09VentureWire will be taking a break for Thanksgiving. =09The next issue will be published on Monday, November 27. =09 =09 =09 =09 =09The elite of the burgeoning optical communications industry =09will be in one place, under one roof Feb 11-14: =09Optix2001 in Pasadena, CA. =09 =09This unusual event combines leaders in academia and business =09exchanging the latest on trends, recent developments, and =09the future of optical technology. If you are a player in the =09field, this is a special opportunity to learn from the =09world's experts. =09 =09The brightest corporate stars such as Don Smith, President =09of Nortel are joined by renowned academics such as =09Kerry J. Vahala, Professor of Applied Physics at Cal Tech, =09to provide a breadth of knowledge and insider perspective =09unique to the industry. =09 =09Participation at this event is subject to approval and is =09limited to senior executives involved in the optical =09communications industry. For your registration pack link=20 to:[http://www.optix2001.com/optix\\_reg.html](http://www.optix2001.com/optix_reg.html) =09 =09 =09 =09new money =09 =09\* Art Selling Site Artland.com Raises \$4.5 Million Seed Round =09\* Display Firm Screen Technology Has \$3.5 Million Seed Round =20 =09\* Transportation Software Firm Exor Has \$4.9 Million Series A =09\* Digital Trading House Global e-Biz Receives Seed Funds =09\* Broadband Firm Primarion Raises \$38 Million Second Round =09\* Avanza, Swedish Online Broker, Raises \$9.9 Million =09\* IT Services Firm Allidex Gets \$3 Million, Announces Board=20 =09\* Semiconductor Firm Spirea Raises \$4 Million Second Round =09\* Training Firm Simulis Gets Equity Investment from GE Capital =09\* Voting App Firm VoteHere.net Raises \$10 Million Series C =09\* Wireless Tech Firm Time Domain Gets \$5 Million Third Round =09\* Metrics Firm Red Sheriff Raises \$20 Million Third Round =09\* Group Led by Memphis Angels Buys Stake in Fiber Optic Ring =09\* TheAgZone Secures Funding in \$5 Million Series B Round =09 =09 =09new products =09 =09\* Bayt.com Launches Middle Eastern Employment Marketplace =09\* Derivatives Service Firm Cygnifi Forms New Legal Service =09\* New Online Investment Forum InvestorTree Launches =09 =09 =09new deals =09 =09\* Wireless Game Distributor Boxerjam Partners with Indiqu =09\* Infineon Takes Equity Stake and Partners With Need2Buy.com =09 =09 =09new directors =09 =09\* e-Checking Firm Xign Taps Commerce One Exec for Board=20 =09\* ISO9.com Adds New Member to Its Board of Directors =09\* SME Appoints Investor to Board of Directors =09\* Veteran Newspaper Exec. Joins Jumptech Board =09 =09 =09new people =09 =09\* Linux Software Firm RidgeRun Names New CEO, Board Chairman =09\* Ex-President of Georgia Medical College Is CEO of beBetter=20 =09 =09 =09vc personnel =09 =09\* European B2B VC Firm B-business Partners Names New CEO =09 =09 =09TOP STORIES... NEW MONEY... NEW PRODUCTS... NEW DEALS... NEW DIRECTORS..= . NEW=20 PEOPLE... VC PERSONNEL =09 =09 =09 =09 =09 =09 =09COMMERCE UNPLUGGED =09 =09A new breed of smart phones and connected PDAs are enabling =09us to shop, even long after we've dropped. But the mobile =09shopper is a new breed of consumer, and the mobile value =09chain presents a host of new issues. Mobile Services, one of =09five expert panels at Technology Outlook 2000, will examine =09the promises and pitfalls of m-commerce, wireless advertising, =09and the role of location-based services. Come hear from: =09 =09Mark F. Bregman, CEO, AirMedia =09Bernard Desarnauts, CEO, ViaFone =09Paul Palmieri, VP & GM, Wireless Services, Advertising.com =09 =09Only at Technology Outlook 2000: =09The Future of Pervasive Computing =09December 4 and 5, San Francisco =09A VentureWire investment=20 conference.<http://technologicpartners.com/tp/conf/to2000/> =09 =09 =09top stories =09? =09Benchmark Targets Israeli Firms With New \$200 Million Fund =09?=09?=09MENLO PARK, Calif. (VENTUREWIRE) -- Benchmark Capital, an early= stage high ?technology venture capital firm, said it has formed a \$200 mill= ion fund that ?will be devoted to investments in Israeli technology compani= es. The company ?said it will manage the fund with a presence in Tel Aviv, = focusing on ?early-stage technology companies in Internet infrastructure an= d applications, ?communications, and software systems. Partners Mark Kremer= , the founder and ?chief executive officer of Broadbase; Arad Naveh, the fo= under and chief ?executive officer of Class Data; and Nachman Shelef, the f= ounder and ?president of NiceCom, will manage the new fund. ?=09<http://www.benchmark.com>?=09?=09Former Swedish



Prime Minister Joins Melody Interactive Board -- Melody Interactive Services, which provides end-user services for Web enabled wireless devices, said it named former Swedish Prime Minister Carl Bildt to its board of directors. Mr. Bildt currently serves as the UN Secretary General's Special Envoy to the Balkans. Mr. Bildt's nomination is a result of the funding Melody Interactive Services received from IT Provider, for whom Mr. Bildt acts as an advisor. The company is also backed by Capital Group International and Telenor Ventures. Melody Interactive Services provides WAP mail, and conversion technologies enabling WAP services from GSM phones. <http://www.melody.se>

Supply Chain Firm Qiva Raises \$12.6 Million First Round -- SAN FRANCISCO (VENTUREWIRE) -- Qiva, a provider of supply chain execution technology, said it raised \$12.6 million in its first round of funding. The round was led by Bessemer Venture Partners and included Market Partners and Aurora Investments. The company will use the funds to expand its software, sales and marketing. Joanna Strober, general partner at Bessemer Venture Partners, will join the company's board of directors. <http://www.qiva.com>

Optical Networking Developer Zaffire Names New CEO -- SAN JOSE, Calif. (VENTUREWIRE) -- Zaffire, a developer of optical networking products and technologies, said it appointed James Fultz as its chief executive officer, replacing company founder and former CEO Near Margalit, who will continue on as Zaffire's chairman of the board and chief technology officer. Mr. Fultz, the former executive vice president and chief sales and marketing officer for Antec, will also take a seat on the board of directors. Backers for Zaffire include Integral Capital Partners, Oppenheimer Funds, J.P. Morgan & Co., Seligman, Carlyle Internet Partners Europe, Azure Capital Partners, JTI Venture Partners, Kinetic Ventures, Octane Capital Management, Pilgrim Bay Hyper Partners, Kleiner Perkins Caufield & Byers, Bank of America Securities, and Morgan Stanley Dean Witter. <http://www.zaffire.com>

new money -- Art Selling Site Artland.com Raises \$4.5 Million Seed Round -- NEW YORK (VENTUREWIRE) -- Artland.com, a company that plans to sell prints of paintings and photographs from museums, archives, and artists, said it closed a \$4.5 million seed round of funding. Getty Images and previous investors Allen & Company and Mousse Partners Limited participated. The money will be used for corporate development. <http://www.artland.com>

Display Firm Screen Technology Has \$3.5 Million Seed Round -- LONDON (VENTUREWIRE) -- MTI,

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## "Plan B" Starting to Get Notice in Sacramento

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From the Dow Jones Newswire:

*SoCal Ed May Be Near Financial Solvency With 'Plan B' LOS ANGELES (Dow Jones)--Legislators in California are beginning to embrace an alternative energy plan, expected to be introduced as a bill this week, that would get the state out of the power buying business in as little as six months and restore Edison International's (EIX) Southern California Edison unit to financial solvency without requiring the utility to sell any of its assets to the state. If the plan wins the support of both houses of the Legislature, lawmakers hope it will also convince a bankruptcy court judge in San Francisco that it can be used to lift PG&E Corp.'s (PCG) Pacific Gas & Electric unit out of Chapter 11 bankruptcy protection. "Clearly this would be a positive development," said Paul Patterson, a utility analyst with Credit Suisse First Boston in New York. "It would offer a way to restore the utilities to financial viability. We've noticed over the weekend that the situation in the Assembly is improving." The proposal by Assemblyman Joe Nation, D-San Rafael and Assemblyman John Dutra, D-Fremont, has gained the interest of some members of the Assembly Republican Caucus, all of whom have resisted previous attempts at rescuing SoCal Ed from near bankruptcy. Consumer groups have been resistant to any form of what they call a utility "bailout." But a spokesman at The Utility Reform Network in San Francisco said the group is studying the 'Plan B' proposal. On Friday, a spokesman to Gov. Gray Davis said state Sen. Richard Polanco, the Senate Majority Leader, would introduce legislation this week enacting the agreement the governor reached with SoCal Ed exactly one month ago that would allow the utility to issue about \$3 billion in bonds to recoup its unrecovered power costs and sell its power lines to the state for \$2.76 billion to pay off its debt. But Nation and Dutra, members of the so-called 'Plan B' group, are looking to alter that agreement. "There are a lot of people who question the validity of buying the grid" from SoCal Ed," Nation, an economist by trade, said. "I think there is an understanding*

that the existing (memorandum of understanding) won't pass." One of the problems with having the state purchase the grid at this point is that there won't be enough funds available to maintain and upgrade the lines to improve the flow of electricity, according to several members of the Senate Budget Committee. "We're preparing for massive budget cuts this week because of this electricity crisis," the member of the Senate Budget Committee said. - - Plan Eliminates Purchase Of SoCal Ed's Power Lines Nation's proposal calls for the state to hold a five-year option to buy SoCal Ed's transmission lines for its book value price of \$1.2 billion, and eliminate a provision that would ease the regulation of the utility by the California Public Utilities Commission In exchange, SoCal Ed can securitize a larger portion of its \$5.5 billion in unrecovered power costs backed by a larger dedicated rate component. Moreover, the utility would sell the state additional power at a cost beyond the 10 years already agreed upon in the memorandum-of-understanding and additional power from other company sources. Nation also wants to set up a ratepayer revenue account to refund consumers if generators agree to accept less than 100 cents on the dollar. He said, however, he does not plan to include a provision in any legislation that states generators must take a "haircut" on money the companies claim they are owed by SoCal Ed. Republicans, including Assemblyman George Runner, R-Lancaster, and Assemblyman Keith Richman, R-Granada Hills, have been working closely with Nation and the 'Plan B' group. Jamie Fisfis, a spokesman for the Assembly Republican Caucus said the caucus is not yet ready to support the plan, but Republicans are "happy" they are being included in the discussions. "We have two criteria when we evaluate the plan," Fisfis said. "The plan has to keep power rates as low as possible and puts more supply into the grid." Steve Maviglio, Davis' press secretary, said the governor "has always said he's open to improvements" in the memorandum-of-understanding. "But it has to remain a balanced transaction," Maviglio said. Nation, a member of the Assembly since 2000, said the state would only have to spend a couple of weeks renegotiating the memorandum-of-understanding with Edison and that it could likely win a two-thirds majority vote in the Assembly shortly after that. Nation said he has had a number of conversations with Edison International executives on his proposal and "they have been generally receptive because they believe the agreement with the governor won't pass." A SoCal Ed spokesman was unavailable for comment. Lawmakers Seeking Quick Exit From Power Buying Business California has committed \$7.2 billion of its roughly \$8 billion general fund buying power since January on behalf of PG&E, SoCal Ed and Sempra Energy's (SRE) San Diego Gas & Electric unit. But several lawmakers and one of Davis' financial advisers said Sunday that the state wants to desperately get out of the power buying business soon because of the economic impact the energy spending will likely have on education, transportation and other state programs. "We are beginning to realize that if we don't get out of the business of buying electricity, we will be in the same boat as the utilities," said one state Senator who is also a member of the Senate Budget Committee. Nation agreed, saying "the best thing we can do for California is get out of this mess we're in. We need to get the DWR out of the business of buying power." Lawmakers Working To Keep SoCal Ed Out Of Bankruptcy A number of Democrats in the Assembly, who have said SoCal Ed may be better off in bankruptcy, now want to see the utility remain solvent, Nation said. "I think several months ago bankruptcy wouldn't have seemed like such a challenge," Nation said. Nation said he fears that if SoCal Ed were in a bankruptcy setting, the state's so-called qualifying facilities, renewable and gas fired power plants that contract directly with the utilities, may win the right to sell their cheap power on the open market. "If that happens, it will dramatically raise the risk to the state because we will be forced to buy that power," Nation said. "I think people understand what the risks are and that's a real danger." -By Jason Leopold; Dow Jones Newswires; 323-658-3874;

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#### Enron Mentions - 07/19/01

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Commodities Highlights: CSR: FY Outlook "Quite Positive" Dow Jones Commodities Service, 07/19/01 INDIA PRESS: Dabhol Challenges Commission's Jurisdiction Dow Jones Asian Equities Report, 07/19/01 Buy & Sell Looking for an S&P revival: Elliott & Page manager focuses on earnings growth National Post, 07/19/01 INDIA PRESS:AES CEO Bakke To Meet Power Minister Thursday Dow Jones Asian Equities Report,0 7/19/01 ASIA-PACIFIC - Enron writ highlights India contract concerns. Financial Times, 07/19/01 The State Aides Told to Sell Stock Ethics: Consultants hired for power crisis must dispose of shares in generating firms. Los Angeles Times, 07/19/01 Companies: European Companies The Wall Street Journal Europe, 07/19/01 Accounting Office Demands Energy Task Force Records New York Times, 07/19/01 California Power Consultants Must Sell Stocks, L.A. Times Says Bloomberg, 07/19/01

Commodities Highlights: CSR: FY Outlook "Quite Positive"



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Top Of The Day Australia's CSR: Outlook For Full Year "Quite Positive">A.CSR

-Australia's CSR Prefers Sale Of Sugar Ops Over Spin Off>A.CSR Australia's Sons Of Gwalia Posts 4Q Gold Output Of 98,449 Oz>A.SGW

Other News Argentina Govt Maintains 2001 Soy Output At 25.76M Tons>N/OSD China Drought Persists In 14.8 Mln Ha Of Cropland -Report>N/AGR E Caribbean Banana Indus To Have More Streamlined System>N/FRU NZ Enza: Regulator Complicates Forex-Losses Situation>N/FRU Cda Customs Confirms Dumping Of Hot-Rolled Steel Products>N/STC HK iSteelAsia Buys 0.23% Of AcrossAsia For HK\$22.55M>H.ISA Australian Agricultural Co IPO To Close Early, Strong Interest>A.FCL Australia's Anaconda Nickel Eyes Centaur Nickel Proj>A.ANL Argentina Inks Competition Accord With Rice Farmers>N/RCE Enron Shuts Singapore Metals Unit;Japan,UK To Cover Trade>ENE NZ Govt To Place Permanent Ban On European Beef Products>N/CTL NZ's Wrightson Welcomes New Owner; Eyes Dairy Alliance>A.WRT Malaysia PNB Chmn: Palmco Acquisition Important For Sime>P.PAL

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INDIA PRESS: Dabhol Challenges Commission's Jurisdiction

07/19/2001 Dow Jones Asian Equities Report (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW DELHI -(Dow Jones)- Dabhol Power Co. Wednesday appealed to the Supreme Court to challenge the jurisdiction of Maharashtra State Electricity Regulatory Commission, reports the Business Standard. Dabhol, the Indian unit of U.S. energy major Enron Corp. (ENE), is challenging the Commission's decisions on Dabhol's disputes with its sole buyer the Maharashtra State Electricity Board. The newspaper report quoted a Dabhol spokesman as saying the issue will come up for a hearing in several days. Dabhol's global lenders have also decided to appeal to the Supreme Court within a week over the same issue, the report added. Dabhol is the single largest foreign investment in India, worth \$2.9 billion. Its power plant in the western Indian state of Maharashtra has a capacity to generate 740 megawatts. The plant has stopped operations since May 29 after MSEB stopped drawing power from Dabhol saying its tariffs were "unaffordable." Newspaper Web site: [www.business-standard.com](http://www.business-standard.com) -By Himendra Kumar, Dow Jones Newswires; 91-11-461-9426; [himendra.kumar@dowjones.com](mailto:himendra.kumar@dowjones.com) -0- 19/07/01 04-31G

Financial Post Investing Buy & Sell Looking for an S&P revival: Elliott & Page manager focuses on earnings growth Sonita Horvitch Financial Post

07/19/2001 National Post National D03 (c) National Post 2001. All Rights Reserved.

Toronto-based Mark Schmeer, managing director of equities at money manager Elliott & Page, says the Standard & Poor's 500 index could generate a double-digit total return over the next 12 months as the U.S. economy grows about 2% to 3%. If this forecast is correct -- "by various measures the U.S. economy has bottomed" -- then this augurs well for growth stocks such as those in the technology sector, he says. "Growth stocks do well in a climate of accelerating economic growth and a rising stock market." This suggests, he says, that investors should consider revisiting the battered tech sector, "but not indiscriminately." While he is bullish on the outlook for the equity market over the next 12 months, Schmeer warns that there will continue to be volatility. Schmeer and his team have assembled a comprehensive corporate data base that is updated regularly. In stock selection, the Elliott & Page team uses both traditional fundamental analysis and proprietary models. These rank companies on their earnings growth momentum and their ability to generate positive earnings surprises and upwards earnings revisions by financial analysts. For the column, Schmeer is selecting stocks from a number of sectors. His tech pick: - BEA Systems Inc. (BEAS/NASDAQ), which closed recently at US\$24.52 and trades in a 52-week range of US\$89.50 to US\$20.19. The stock is substantially off its 52-week high and has declined more than the average tech stock, he notes, yet the company continues to deliver on earnings. BEA provides application and Web application servers for electronic commerce. Major products include BEA WebLogic, a software platform for e-commerce applications. Unlike many other tech companies, BEA has been keeping up its earnings growth rate and reporting

earnings in line with expectations and should continue to do so, Schmeer says. Earnings per share estimates are US42 cents for the fiscal year to January, 2002, and US64 cents for the fiscal year to January, 2003. This makes for an earnings growth rate of around 50%. The stock trades at a multiple of close to 60 times forward earnings. A specialist stock in the energy sector he likes is: - Enron Corp. (ENE/NYSE) US\$49.85 (US\$90.56- US\$42.35). Based in Houston, this company is a leader in the field of energy wholesaling. It procures energy and sells to major U.S. corporations such as Eli Lilly and Quaker Oats under long-term agreements. Enron has expanded into the electricity market as deregulation created price uncertainty for users, says Schmeer. The company has produced six consecutive quarters of positive earnings surprises and analysts have been revising their earnings estimates upward, he notes. Earnings per share estimates are US\$1.86 for 2001 and US\$2.25 for 2002. The stock trades at a P/E multiple close to this earnings growth outlook, which is desirable as many stocks in the S&P 500 index are trading well above their prospective growth rates, says Schmeer. He is generally cautious about energy producers and traditional energy services companies such as drillers. "Historically, these stocks mainly outperform when the market is going down and they are less likely to beat the market in a climate of economic acceleration." He has sold major U.S. energy services company, Schlumberger Ltd. (SLB/NYSE) US\$49.85 (US\$88.87-US\$48.05). Its earnings growth rate has been rapidly declining and the company may not meet consensus estimates for the third and fourth quarter this year, he says. Schmeer's picks in the consumer products sector include: - Johnson & Johnson (JNJ/NYSE) US\$54.91 (US\$54.98- US\$40.25). This health care products company has been reporting positive earnings surprises, he notes. "This is not a cheap stock, but you a

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### Conf Call

|            |                                                          |
|------------|----------------------------------------------------------|
| Sender     | joseph.alamo@enron.com                                   |
| Recipients | ['sandra.mccubbin@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/12204.                          |

I don't know whether you both or either of you are aware of this so please note the attached from Maureen:

----- Forwarded by Joseph Alamo/NA/Enron on 05/09/2001 09:33 AM -----

Maureen McVicker 05/09/2001 07:25 AM To: Joseph Alamo/NA/Enron@Enron cc:

Subject: Conf Call

Actually it's 11:00 am (CALIFORNIA TIME). I'm not positive, but I think Jeff and Sandi need to be on the call. I thought they would both be in Sacramento w/ Steve. If Jeff doesn't know for sure if he is supposed to be on the call, let me know and I will check with Steve.

Thanks.

----- Forwarded by Maureen McVicker/NA/Enron on 05/09/2001

09:22 AM -----

Maureen McVicker 05/08/2001 04:48 PM To: Emy Geraldo/Enron@EnronXGate cc:

Subject: Tomorrow's Conf Call

----- Forwarded by Maureen McVicker/NA/Enron on 05/08/2001

04:48 PM -----

Maureen McVicker 05/08/2001 04:11 PM To: Pam Metoyer/Enron@EnronXGate, Twanda Sweet/HOU/ECT@ECT, Marcia A Linton/NA/Enron@Enron cc: Steven J Kean/NA/Enron@Enron

Subject: Tomorrow's Conf Call

Here's the information regarding tomorrow's conference call.

DATE: Wednesday, May 9

TIME: 11:00 am (Pacific), 1:00 pm (Central)

CALL IN #: 888-422-7132

HOST CODE: 243663 (Steve Kean's use only)

PARTICIPANT CODE: 569189

ATTENDEES: Jeff Dasovich Steve Kean Sandi McCubbin Richard Sanders Jim Steffes Michael Tribolet Greg Whalley

Message 1084 of 1299

### VentureWire, Wednesday, May 23, 2001

|            |                                 |
|------------|---------------------------------|
| Sender     | venturewire@venturewire.com     |
| Recipients | [jdasovic@enron.com]            |
| File       | dasovich-j/all_documents/12940. |

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Sutphin, vice president of strategic= =20 development, told VentureWire. more>> =09=09UPCOMING EVENTS=20  
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of Aether Systems, will dis= cuss how=20 his company powers mobile and wireless data services for Charles Schwab,=20  
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raising \$1 million in a January seed funding and generating buz= z among=20 big telecom operators, optical signaling  
platform developer Optivera is=20 seeking a second round of \$10 million, according to company director, Meir= =20  
Burstin. more>> =09=09 =09=09Motorola Investing In Fewer Deals =09=09By Matthew Sheahan =09=09Motorola  
Ventures, the venture capital unit of Motorola, will be inve= sting in=20 fewer deals this year due to a shift in investment  
strategy, according to= =20 managing director Matthew I. more>> =09=09 =09=09Kagoo Networks Expanding To Europe  
=09=09By Amanda Briggs =09=09Kagoo Networks, a developer of applications for voice over IP networ= ks, is=20  
beefing up its sales staff and intends to open a new office in Europe as pa= rt=20 of its plan to attract global service  
providers and IP carriers, according = to=20 Opher Kahane, the company's co-founder, president and CEO. more>>  
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| Enron Mentions |                                 |
|----------------|---------------------------------|
| Sender         | ann.schmidt@enron.com           |
| Recipients     | []                              |
| File           | dasovich-j/all_documents/12845. |

California Blame Game Yields No Score --- Probes Reveal Little Evidence Suppliers Acted Illegally The Wall Street Journal, 05/22/01

Enron Unit Moves to End India Contract For Power The New York Times, 05/22/01

The State GOP Criticizes Davis' Choice of PR Aides Capitol: Legislative leaders call the pair political operatives who are too partisan to represent the state during energy crisis. Los Angeles Times, 05/22/01

BUSINESS DIGEST The New York Times, 05/22/01

World Watch The Wall Street Journal, 05/22/01

IN BRIEF / ENERGY Enron Withdraws from Qatar Project Los Angeles Times, 05/22/01

INDIA: UPDATE 1-Indian state spurred by Enron reopens power deals. Reuters English News Service, 05/22/01

INDIA: India utility may slap 4bln rupee fine on Enron unit. Reuters English News Service, 05/22/01

IXEurope creates a Storm in colocation M2 Presswire, 05/22/01

Power corrupts... The Economic Times, 05/22/01

The Godbole findings Business Standard, 05/22/01

SMARTMONEY.COM: Power Grab Dow Jones News Service, 05/22/01

Malaysian LNG Sales to India Threatened by Enron Power Dispute Bloomberg, 05/22/01

LEADER: India unplugged Financial Times; May 22, 2001

Enron pulls out of venture drilling in Qatar's waters Houston Chronicle, 05/22/01

Enron exploring commodity trading Houston Chronicle, 05/22/01

Plains Resources Gets New Officers Houston Chronicle, 05/22/01

Economy California Blame Game Yields No Score --- Probes Reveal Little Evidence Suppliers Acted Illegally By John R. Emshwiller Staff Reporter of The Wall Street Journal

05/22/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

LOS ANGELES -- California may be struggling to keep its lights on, but one thing there is no shortage of is accusations over who is to blame for an electricity crisis that has sent power prices skyrocketing. In recent days, top California officials have stepped up their rhetoric against a handful of merchant power companies, many of them Texas-based, that supply the state with much of its juice. Gov. Gray Davis says companies such as Reliant Energy Inc., of Houston, have engaged in "unconscionable price gouging." Loretta Lynch, president of the California Public Utilities Commission and a Davis appointee, proclaims that a "cartel" of electricity producers has created artificial shortages. Lt. Gov. Cruz Bustamante is backing a bill that would make energy price fixing a felony, and as a private citizen he is suing several major power producers in Los Angeles state court. About half a dozen investigations are being conducted by entities ranging from state legislative committees to the California attorney general's office. So far, these probes -- some of which have been under way for months -- haven't yet yielded either civil or criminal charges. While the energy suppliers are generating "unconscionable profits," the question remains "whether they are illegal profits," says California Attorney General Bill Lockyer, who has offered rewards of as much as hundreds of millions of dollars for information about lawbreaking in the energy business. Mr. Lockyer says he believes his office will eventually file civil charges against suppliers. He would very much like to add criminal counts. "I would love to personally escort [Enron Corp. Chairman Kenneth] Lay to an 8 x 10 cell that he could share with a tattooed dude who says 'Hi my name is Spike, honey,'" adds Mr. Lockyer. Houston-based Enron is a major energy-trading company. Like other such firms, Enron has denied wrongdoing in the California market. Mark Palmer, Enron's vice president for corporate communications, said Mr. Lockyer's comment about Mr. Lay "is so counterproductive that it doesn't merit a response." Investigators and academics say there is abundant evidence that individual firms have been exercising "market power." This term is used to denote efforts to influence wholesale-electricity prices, such as by withholding supplies. The California Independent System Operator, or ISO, which manages the state's electric transmission grid, estimates that by exercising market power, suppliers may have added about \$6.8 billion to the cost of electricity in the state since early last year. A single firm exercising such power isn't necessarily illegal, says Severin Borenstein, director of the University of California Energy Institute. If a company is a large supplier in the state and "you're not exercising market power, you are not doing your job" on behalf of shareholders, he says. Mr. Borenstein and others say that there are steps that should be taken against suppliers. They note that under federal power law, the Federal Energy Regulatory Commission can order refunds for wholesale prices that are above "just and reasonable" levels. So far, FERC has tentatively ordered California suppliers to make tens of millions of dollars of such refunds, as part of that



agency's ongoing inquiry into the California market. Critics of the suppliers and FERC say the refunds should be in the billions of dollars. The power industry, not surprisingly, says there is nothing to accusations of price manipulation or collusion. Executives point to a botched state-utility-deregulation plan that relies heavily on volatile spot-market purchases. Suppliers note that over the past decade, California didn't build enough new power plants to keep up with demand growth. The allegations of manipulation are "a lot of sound and fury and they won't produce anything," says Gary Ackerman, executive director of the Western Power Trading Forum, an industry trade group. Power generators also point to sharp increases in some of their costs, particularly natural gas, which is a major power-plant fuel. This rise in natural-gas prices also has set off a flurry of investigations over possible manipulation. One such case, involving El Paso Corp., Houston, is the subject of probes by federal and state officials. El Paso denies any wrongdoing. While power-industry officials say they have been cooperating with the investigations, law-enforcement officials say they have hit some roadblocks. For instance, Mr. Lockyer's office has gone to San Francisco state court to enforce subpoenas against Reliant, Houston-based Dynegy Inc., and Southern Co. and Mirant Corp., both of Atlanta, after the companies resisted turning over certain business documents they deemed confidential. Investigators have zeroed in on the increased frequency with which plants are going out of service for unscheduled outages. At times, several thousand fewer megawatts of capacity are available than a year ago. A thousand megawatts can power about one million homes. Generators say that this increased "forced outage" rate shows that tight supplies over the past year have required them to run plants, some of them more than 40 years old, for long periods without routine maintenance. This combination has produced more breakdowns. "Plants have been running flat out," says Tom Williams, a spokesman for Duke Energy Co., Charlotte, N.C., which says that its California power plants produced 50% more electricity in 2000 than in 1999. At the same time, during periods of lower demand, the number of unplanned outages often seems to rise enough to keep supplies tight, says Frank Wolak, a Stanford University professor and chairman of the ISO's market surveillance committee. "Clearly, something is going on here." However, he and others say that it is almost impossible to tell why a particular pipe failed or whether such a failure was a legitimate reason to reduce output. Some of the most intriguing evidence to date about forced outages surfaced in a federal case. FERC officials said an investigation had raised questions about whether two major power companies had taken plant

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#### Enron Mentions

|            |                                 |
|------------|---------------------------------|
| Sender     | ann.schmidt@enron.com           |
| Recipients | []                              |
| File       | dasovich-j/all_documents/11639. |

Indian State to Make Overdue Payments to Enron in Power Spat The Wall Street Journal, 04/26/01

ENRON UNIT TERMINATES INDIA POWER CONTRACT The New York Times, 04/26/01

Indian utility, Enron battle over bills Houston Chronicle, 04/26/01

Limited price controls ordered to ease West's power crisis%) Associated Press Newswires, 04/26/01

Indian State Offers to Review Enron Project, TV Channel Says Bloomberg, 04/26/01

INDIA: FACTBOX-History of Enron's Dabhol Indian power plant. Reuters English News Service, 04/26/01

INDIA: FACTBOX-Foreign firms exit as India fights Enron. Reuters English News Service, 04/26/01

India: Godbole panel may get mandate for renegotiation Business Line (The Hindu), 04/26/01

India: 'Structural adjustment' loans sought from IBRD Business Line (The Hindu), 04/26/01

US\$384 MLN LIABILITY FOR INDIAN GOVT IF ENRON PROJECT TERMINATED Asia Pulse, 04/26/01

State wants Enron to continue operations The Times of India, 04/26/01

Calif.'s energy woes draw diverse plans The Daily Deal, 04/26/01

Limited price controls ordered to ease West's power crisis Associated Press Newswires, 04/26/01

US FERC To Approve RTO To Oversee Pacific NW Pwr Grid Dow Jones Energy Service, 04/25/01

USA: El Paso nipping at Enron's bandwidth heels. Reuters English News Service, 04/25/01

International Indian State to Make Overdue Payments to Enron in Power Spat

04/26/2001 The Wall Street Journal A17 (Copyright (c) 2001, Dow Jones & Company, Inc.)

BOMBAY, India (AP) -- The Maharashtra state power utility said it will pay outstanding electricity bills for March as part of a dispute over tariffs with U.S. power company Enron Corp. "We will make the payment of 1.34 billion rupees [\$28.6 million] today for the March bill. The February bill of 1.1 billion rupees was already paid up last month," Krishna Rao, a member of the Maharashtra State Electricity Board, said yesterday. "As far as we are concerned, there are no more payments outstanding." A spokesman for Houston's Enron said it is now due \$48 million for nonpayment of electricity bills for December and January and is seeking to have the issue of outstanding payments resolved through arbitration. The state electricity board has said the December and January bills should be offset against a fine of four billion rupees that it had levied against Enron for nonsupply of power in that period. Meanwhile, the state's chief minister, Vilasrao Deshmukh, said a panel will be formed in two days to renegotiate a power-purchase agreement, or the rate at which the state buys power from Enron. Enron has been under fire from Bombay politicians, who say costs have increased sharply from the four cents per unit agreed on in 1995 for the two-year-old, 740-megawatt naphtha plant. Prices shot up to 15 cents a unit after the world-wide fluctuation of oil prices and depreciation of the rupee. Enron says a 1,444-megawatt liquefied natural-gas plant to be commissioned later this year will lower tariffs. Also yesterday, Indian newspapers reported that a proposal by the Enron board to issue a termination notice to the state electricity board had been temporarily shelved. The Enron spokesman said that to his knowledge no one had ever threatened to shut down the plant. India's largest foreign investment, the \$3 billion project has been in trouble since December, when the state government said it would review the price agreement with Dabhol Power Corp., Enron's Indian subsidiary.

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Business/Financial Desk; Section C COMPANY NEWS ENRON UNIT TERMINATES INDIA POWER CONTRACT  
Reuters

04/26/2001 The New York Times Page 4, Column 1 c. 2001 New York Times Company

The Enron Corporation's troubled Dabhol Power Company authorized the termination of a deal to sell power to the western Indian state of Maharashtra, the chairman of the state electricity board there said yesterday. The chairman, Vinay Bansal, said Dabhol authorized the managing director to issue a notice of termination on the contract to sell 740 megawatts of power in India. Dabhol, which is 65 percent owned by Enron, is involved in a payment dispute with the board and is facing a cash squeeze because the board has defaulted on payments worth 2.26 billion rupees (\$48.31 million). The decision gives the managing director of Dabhol permission to seek the end of the contract at any time, Mr. Bansal said.

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April 26, 2001 Houston Chronicle Indian utility, Enron battle over bills BOMBAY, India -- The Maharashtra state power utility said Wednesday it would pay outstanding electricity bills for March as part of an ongoing dispute over tariffs with Houston-based energy giant Enron Corp. Krishna Rao, member of the Maharashtra State Electricity Board, said the agency would pay 1.34 billion rupees, or \$28.5 million, for the March bill. The February bill of 1.1 billion rupees, or \$23.4 million, was paid last month, Rao said. "As far as we are concerned, there are no more payments outstanding," Rao said. An Enron spokesman confirmed receipt of the February dues, but said the company is also due \$48 million for nonpayment of electricity bills for December and January. The state electricity board has said the December and January bills should be offset against a fine of 4 billion rupees, or \$85.31 million, it had levied against Enron for nonsupply of power during that period. Meanwhile, the state's chief minister, Vilasrao Deshmukh, told reporters a committee would be formed in two days to renegotiate a power purchase agreement, or the rate at which the state buys power from Enron. Enron has been under fire from Bombay politicians who say its power charges are unaffordable. Politicians say costs have increased fourfold from 4 cents per unit agreed in 1995 for the 2-year-old naphtha plant. Houston-based Enron maintains that a larger liquefied natural gas plant to be commissioned later this year will lower tariffs.



Limited price controls ordered to ease West's power crisis%) By H. JOSEF HEBERT Associated Press Writer

04/26/2001 Associated Press Newswires Copyright 2001. The Associated Press. All Rights Reserved.

WASHINGTON (AP) - The Federal Energy Regulatory Commission has agreed to limit price controls on California's wholesale electricity markets. But Enron spokeswoman Karen Denne said price caps won't help the state's problems this summer and calls the FERC decision "unfortunate." Federal energy regulators directed limited price controls on California's wholesale electricity markets Wednesday, but the order fell short of the sweeping price caps California officials have wanted. FERC voted 2-1 to order that wholesale prices be capped in California when electricity reserves fall below 7.5 percent, triggering an emergency alert by the state's power grid managers. "Price caps will not help california's problem going into summer," Denne said. "They neither increase supply or decrease demand. What they will do is exacerbate the situation and create additional shortages." Denne pointed out that power emergencies, such as Wednesday's Stage 2 alert, are becoming routine in California, and will only become more common with summer's heat. That would mean price caps could be in effect most of the summer. California Gov. Gray Davis said earlier Wednesday that he had urged FERC to extend the price controls so they would take effect when a Stage 1 alert was declared by the California Independent System Operator. A Stage 1 alert means electricity reserves have fallen below 7 percent. After the order, however, Davis' spokesman Roger Salazar, said the governor would not comment until he had a chance to review it in detail. "All along we have been

Message 1087 of 1299

## Energy Issues

|            |                                                                                                    |
|------------|----------------------------------------------------------------------------------------------------|
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| File       | dasovich-j/all_documents/28811.                                                                    |

Please see the following articles:

Sac Bee, Tues, 7/17: Jones demands probe of state's energy buyers=20 Sac Bee, Tues, 7/17: Energy Digest: PG&E's managers will get bonuses SD Union, Tues, 7/17: Bush's top team launches blitz for his energy agenda= 20 SD Union, Tues, 7/17: Davis aide foresees an end to rate hikes=20 SD Union, Tues, 7/17: Bankruptcy judge lets PG&E pay managers \$17.5 million= 20 bonus=20 SD Union, Tues, 7/17: As power crisis eases, Davis sees a beneficial role f= or=20 deregulation=20 LA Times, Tues, 7/17: Churches Help Edison Aid the Poor SF Chron, Tues, 7/17: Consumers await word on rates=20 Report's delay, government bond issue raise questions about electricity pri= ce=20 increase=20 Mercury News, Tues, 7/17: Judge OKs bonuses for PG&E chiefs=20 OC Register, Tues, 7/17: Power of lies (Commentary)=20 LA Times, Tues, 7/17: THE NATION State Losing Ground in War on Dirty Air=20 Environment: Growth, lax enforcement are blamed for rising smog levels in some areas LA Times, Tues, 7/17: THE NATION In Support of Energy Plan, White House Bur= ns=20 Some Gas=20 Politics: Cheney, other Bush officials fan out to make what the president= 20 admits is a tough case LA Times, Tues, 7/17: The State Consultants' Stock Buys Questioned Energy:= 20 State official urges conflict of interest probe into purchases of shares in power firms. LA Times, Tues, 7/17: The State No Accord Near on Edison Rescue Legislature= :20 With Davis' proposal languishing and rival versions being crafted, the issue continues to be=20 divisive WSJ, Tues, 7/17: Taking Charge: Hurt by Deregulation Of Utilities,=20 California Gives Itself Lead Role

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Jones demands probe of state's energy buyers=20 By Amy Chance Bee Political Editor (Published July 17, 2001)=20 Secretary of State Bill Jones on Monday asked the state attorney general an= d=20 the Fair Political Practices Commission to investigate whether energy=20 consultants hired by the Davis administration violated state=20 conflict-of-interest law by holding stock in energy generators and utilitie= s=20 while buying electricity for the state.=20 Jones said recent reports that show several energy buyers held such stock,= 20 coupled with the fact that they failed to file reports of their financial= 20 holdings until last week, suggest that Gov. Gray Davis "hired them without= 20 any forethought and due diligence as to how they could personally and=20 financially benefit from being on the state

payroll." "This is either a miserable failure in executive management and leadership, or he and his administration have colluded in a blatant and possibly criminal conflict of interest," said Jones, a Republican seeking to challenge Davis in next year's governor's race. In particular, Jones pointed to a report filed by Vikram Budhraj, a consultant in the Department of Water Resources' energy resources scheduling division, who signed a \$6.2 million, 23-month contract with the state. Budhraj reported that he began working for the department on Jan. 25. On Jan. 17 and 22, Budhraj acquired stock in Edison International valued at between \$10,001 and \$100,000. He also bought stock in Dynegy, an energy generator, in the same value range. He disposed of all the stock on Jan. 29, noting on the form that he "divested holdings upon first opportunity after start of services." He also reported that he had received income of more than \$100,000 from Edison International as "a retainer to provide consulting services upon request." He noted that there was "none requested since the third quarter of 2000." Jones said the contract Budhraj signed with the state, however, was dated Jan. 17, showing that he "entered into a \$6.2 million contract with the state and the same day that Davis ordered a state of emergency and put the state into the power-buying business. Mr. Budhraj sold this stock within days and pocketed a significant profit." Davis spokesman Steven Maviglio said the contract was simply dated Jan. 17 "for administrative payroll purposes." He said Budhraj met with Davis on Jan. 25 and began work for the state on Jan. 29. "Any activity he had with Edison International was over and done with the minute he started his job," Maviglio said. "He said he called his broker and said, 'Sell everything.'" Budhraj also has a letter on file with the department that says he will do no business with Edison while employed by the state, Maviglio said. While he did participate in negotiating contracts with Dynegy, Maviglio said he did so "weeks and months after he had sold his stock." Administration lawyers are still looking at reports filed last week by other energy schedulers and traders that show they still hold stock with energy generators, particularly Calpine Corp. The lawyers are examining whether those consultants buy electricity as part of their jobs and whether they have done any trading with Calpine. "They may be in violation, for all we know," Maviglio said. Representatives of the FPPC and attorney general said they are reviewing Jones' request.

The Bee's Amy Chance can be reached at (916) 326-5535 or [achance@sacbee.com](mailto:achance@sacbee.com) or <mailto:achance@sacbee.com>.

Energy Digest: PG&E's managers will get bonuses

(Published July 17, 2001) SAN FRANCISCO -- A bankruptcy judge has approved executive bonuses at Pacific Gas and Electric Co., saying the 223 managers who will divide the \$17.5 million pool are not responsible for California's energy woes. For 23 of the senior executives, the plan provides bonuses equal to their base pay or, in the case of PG&E President and CEO Gordon Smith, \$630,000. The bonuses for other managers will average \$60,000. PG&E, in proposing the payments, said it was worried that senior employees would flee to more secure and lucrative jobs, which could hamper the utility's bankruptcy reorganization. Some consumer advocates opposed it, saying the utility's customers ultimately would pay for it. But U.S. Bankruptcy Judge Dennis Montali said he had been assured that no effort would be made to cover the cost with future rate increases. In his opinion, Montali said the bonus program was needed to prevent resignations that could damage PG&E, making it harder for creditors to collect. --Claire Cooper

Blackout image battled Aiming to dispel the notion that California is paralyzed by blackouts, a coalition of economic development agencies today will begin a national public relations campaign to improve the state's image. The \$150,000 campaign is called "The Power of California." Its goal is to convince the national media to create stories that show the state's economy hasn't been crippled by the energy crisis. "It's an effort on our part to fight back," said Wayne Schell, chief executive of the California Association for Local Economic Development. The campaign is funded by local and regional economic development groups, he said. Barbara Hayes, executive director of the Sacramento Area Commerce and Trade Organization, said she was recruiting companies in New York this spring and was besieged with questions about power blackouts. "The message that people outside California have is we are in the dark," she said. SACTO isn't aware of any companies that have refused to move here because of the energy crisis, but it's possible that some companies have stopped making inquiries about the region because of

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## VentureWire, Friday, May 18, 2001

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=09=09offer at:<http://secure.thestandard.com/subscribe/7JAT> =09=09 =09=09 =09=09 =09=09Standard Life Launches  
First VC Trust =09=09By Jonathan Shieber =09=09Standard Life Investments, the Edinburgh-based subsidiary of The  
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Scordo =09=09NFR Security, which develops information security products, plans to = double=20 its number of strategic  
partners, currently at 60 or 70, in the next twelve= =20 months, open several international offices, and become profitable  
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=09=09=01=07 Biotech Firm Metabolex Appoints President & COO =09=09 =09=09 =09=09vc fund news =09=09 =09=09=01=07 Suez Takes 18% Stake in Europatweb for \$116 Million=20 =09=09=01=07 Sun Capital Partners Closes \$200 Million Buyout Fund =09=09 =09=09 =09=09vc personnel =09=09 =09=09=01=07 Goldman Sachs Exec Joins iFormation as Managing Director =09=09 =09=09 =09=09vw corrections =09=09 =09=09=01=07 EYP Mission Critical =09=09 =09=09TOP STORIES... NEW MONEY... BAD NEWS... NEW PRODUCTS... M&A... NEW=20 DIRECTORS... NEW PEOPLE... VC FUND NEWS... VC PERSONNEL... VW CORRECTIONS =09=09 =09=09 =09=09top =09=09 =09=09 =09=09Hot New Development - Mobile Outlook, June 5 & 6, =09=09San Francisco Airport Marriott =09=09 =09=09Exciting, new speakers have just been added to Mobile =09=09Outlook. George Davis, vice chairman and president of =09=09Aether Systems, will discuss how his company powers =09=09mobile and wireless data services for Charles Schwab, =09=09National Discount Brokers, Allegiance Health Care, the =09=09U.S. Postal Service, Office Depot, Nissan, and more. =09=09 =09=09With industry leaders and trendsetters such as George =09=09Davis planning to be in attendance at Mobile Outlook, =09=09why aren't you? Mobile Outlook is less than 3 weeks away, =09=09so register online today:<http://www.mobile2001.net/register.asp> =09=09 =09=09 =09=09 =09=09top stories =09=09? =09=09Online Deliverer WhyRunOut.com Acquires Over 90% of PDQuick=20 =09=09mail? top =09=09 =09=09ALISO VIEJO, Calif. (VENTUREWIRE) -- WhyRunOut.com, an online provid= er of=20 neighborhood retail and delivery services in Southern California, said it= =20 acquired over 90% controlling interest in PDQuick, an online delivery servi= ce=20 of groceries and convenience products to customers in Southern California.= =20 Financial details of the all-cash transaction were undisclosed.=20 WhyRunOut.com's CEO Daniel A. Frahm said the company hired 10 former PDQuic= k=20 employees that were previously laid off but was planning on closing PDQuick= 's=20 Camarillo, Calif.-based headquarters. Prior to the acquisition PDQuick laid= =20 off all of its 30-person staff. PDQuick could not be reached for comment, b= ut=20 Mr. Frahm said PDQuick's CEO Dan Frederickson will not be working with the= =20 acquired company. The acquisition allows WhyRunOut.com to service Los Angel= es=20 and provide all of Southern California with delivery services. Mr. Frahm al= so=20 said WhyRunout.com approached PDQuick about the acquisition. At the end of= =20 April, PDQuick said it failed to r!aise additional capital and was looking= =20 for buyers. The company had also tried to align with the online delivery=20 service Kozmo, which folded in April. PDQuick had raised over \$35 million i= n=20 three rounds from Brand Equity Ventures, Corber, GE Capital, Graystone=20 Venture Partners, Portage Venture Partners, St. Paul Venture Capital, TH=20 Lee.Putnam Internet Partners, and William Blair Capital Partners.=20 WhyRunOut.com, which is currently profitable, has raised an

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**VentureWire, Friday, May 25, 2001**

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Less than 2 weeks, register today! Entrepreneurs and VC-backed company CEOs: Where can you obtain FREE detailed information on the latest quarter's venture funding by region, industry, round and stage of development? Where are there FREE tools and templates for writing a business plan and securing venture funding? And if you're a young tech company CEO, where can you hear other CEOs discuss the issues of the day? VISIT PricewaterhouseCooper's Entrepreneur Resource Center for this and more --><http://www.pwcerc.com> Slump Hurts New Vantage Group's Expansion Plans By Amanda Briggs New Vantage Group, which oversees the management of four angel investment clubs in and around Washington, has slowed its plans to set up investment groups across the country, according to founder and managing partner John May. more>> new money Biotech Firm BioMimetic Raises \$6.5 Million in Series A Israeli Routers Maker HyWire Gets \$5 Million First Round Software Firm Actimize Closes Round One with \$4 Million Streaming Ad Firm EyeWonder Raising \$6 Million Series B Web Security Firm WanWall Secures Funding from Intel Barcelona Design Raises \$11M Round Two, Led by Sequoia Memsic Closes Second Round at \$8.25M, Celtic House Leads Dentist Site Smile-on Closes Second Round with \$1.5M In-Depth Systems Gets \$600K from Marathon Oil in Round Two eMarketWorld Gets Debt Financing From The Palladin Group Answer Financial Takes Equity Stake in Vebnet PlanCentral Looking For Alliances, \$1 Million Second Round bad news Report: Terabeam Cuts Staff By 10% Blue Dolphin Lays Off 20%; Profitability Goal Pushed Back Dismissals at ShopForSchool.com as Site Looks to Sell Out m&a Vsource to Acquire NetCel360 for 19.9% of Common Stock Broadband Firm WideOpenWest Acquires Assets of Ameritech GourmetMarket.com Buys E-Mail Marketing Firm TargitMail new directors Asset Tracking Firm Fulcrum Adds Three to Board new people TeaLeaf Technology Appoints Ask Jeeves Exec to CEO GlobalLearningSystems Promotes Exec VP to President Italian Software Maker hi-flier Names cirlab! co-founder CEO TManage Appoints New President and CEO Business Intelligence Software Firm Coremetrics Names CEO vc fund news Bedrock's \$130 Million Fund Topped Out vc personnel Lloyds TSB Development Capital Adds Two to Staff Insight Capital Partners Makes Two New Appointments Willis Stein & Partners Appoints CSFB Director as Partner vw corrections Asera BlackHog Auxyn Bioscience Ventures TOP STORIES... NEW MONEY... BAD NEWS... M&A... NEW DIRECTORS... NEW= PEOPLE... VC FUND NEWS... VC PERSONNEL... VW CORRECTIONS top This year to date, over \$750 million has been invested in private equity deals in the financial services sector (source: VentureWire). In this age of liquidation preference provisions and retroactive repricings, that's a strong performance. Financial Services Outlook allows you a unique insight into where the investment strength in this market lies, and which private companies are leading the strongest sectors of the financial technology and solutions market. Register before June 19 and SAVE \$100:<http://www.financialservicesoutlook.com/register.asp> top stories= CyberSafe Lays Off 50% Due to Decreased Sales mail? top ISSAQUAH, Wash. (VENTUREWIRE) -- CyberSafe, a provider of electronic security technology and services, said it eliminated 84 positions, or over 50% of its staff, as a result of declining sales and unfavorable economic conditions. CyberSafe said the cuts were spread throughout various departments in all of its international offices, including London, Ottawa, and Singapore. The laid-off employees did receive severance. CyberSafe also said it would be concentrating on its intrusion detection software and electronic security consultancy businesses and not expanding its authentication software divisions. The company had no comment on profitability or about raising a new round. Eighty people remain with CyberSafe, which has raised \$100 million, including a \$20.7 million Series E round in January, from Accel Partners, Deutsche Bank, Financial Technology Ventures, First Data, Oak Investment Partners, and Polaris Venture Partners, among others. http://www.cybersafe.com BlueLight CEO Mark H. Goldstein Steps Down mail? top SAN FRANCISCO (VENTUREWIRE) -- BlueLight.com, an independent e-commerce site majority owned by Kmart, said Mark H. Goldstein has stepped down as chief executive officer. The company said he will now become the long-term Internet adviser for Kmart, in order to pursue other interests outside of BlueLight. Mr. Goldstein was one of the original



founders of BlueLight.com, which formed in December of 1999. On Wednesday the company announced it would lay off an undisclosed number of employees and begin to use more of Kmart's marketing and merchandising staff in order to become more efficient and reduce operating costs. When asked yesterday whether the cost cutting moves combined with Mr. Goldstein's departure meant BlueLight would be rolled into Kmart completely, BlueLight spokesperson Dave Karraker said, "Right now we're a private company. Is it possible there will be a buyback by Kmart? It is possible."

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Today's News....Thanks - Jean

Houston Chronicle, May 24, Stand up, Texas, against California's bullying ???By JONATHAN WILCOX, Commentary

Sacramento Bee, May 24, Davis to push backup diesel, By Chris Bowman

Contra Costa Times, May 24, 2001, Thursday, CC-ELECTRICITY, 874 words, ???California Official Cites Evidence of Electricity Price Manipulation, By ???Mike Taugher

Los Angeles Times, May 24, 2001 Thursday, Home Edition, Page 26, 1042 words ???, THE NATION; A SENATOR'S DECISION; Shift May Empower California, RICHARD ???SIMON, ELIZABETH SHOGREN, TIMES STAFF WRITERS, WASHINGTON

Los Angeles Times, May 24, 2001 Thursday, Home Edition, Page 16, 930 words, ???The Nation; ; Texas Firm's Chief Denies Driving Up Calif. Natural Gas ???Prices; Energy: At federal panel hearing, he says his company missed out on ???making more money from rapid hikes., RICARDO ALONSO-ZALDIVAR, TIMES STAFF ???WRITER, WASHINGTON

Los Angeles Times, May 24, 2001 Thursday, Home Edition, Page 1, 3167 words, ???CAMPAIGN 2001; A Rapid, Sometimes Bumpy, Rise; Assembly: People skills aided ???Villaraigosa, now running for mayor. But inexperience showed., RONE TEMPEST, ???TIMES STAFF WRITER, SACRAMENTO

Los Angeles Times, May 24, 2001 Thursday, Home Edition, Page 8, 331 words, ???The State; THE ENERGY CRISIS; Bush, Davis to Meet on President's Visit to ???State, DAN MORAIN, EDWIN CHEN, TIMES STAFF WRITERS

Los Angeles Times, May 24, 2001 Thursday, Home Edition, Page 8, 504 words, ???The State; THE ENERGY CRISIS; Reliant Offers to Slash Prices if Rules ???Waived; Pollution: The power firm tells officials that plants could produce ???more if not curtailed by air quality rules., NANCY VOGEL, TIMES STAFF WRITER ???, SACRAMENTO

Los Angeles Times, May 24, 2001 Thursday, Home Edition, Page 1, 520 words, ???Use of Diesel Generators Proposed to Bolster Grid; Energy: State says small ???backup systems, which lack pollution controls, could avert blackouts. ???Activists and air quality officials protest., GARY POLAKOVIC, TIMES STAFF ???WRITER

The San Francisco Chronicle, MAY 24, 2001, THURSDAY,, FINAL EDITION, NEWS,, ???Pg. A1, 888 words, Davis to order 1-hour notice of blackouts; ???Plan also ???in works to give law enforcement even earlier alerts, Lynda Gledhill, ???Sacramento

The San Francisco Chronicle, MAY 24, 2001, THURSDAY,, FINAL EDITION, NEWS,, ???Pg. A17, 1085 words, Californians angry across the board in energy crisis; ???Poll rates Bush worse than Davis, John Wildermuth

The Associated Press State & Local Wire, May 24, 2001, Thursday, BC cycle, ???3:07 AM Eastern Time, State and Regional, 431 words, Davis proposal for more ???diesel power draws environmental criticism, LOS ANGELES

May 23, 2001, 6:18PM

Stand up, Texas, against California's bullying By JONATHAN WILCOX

LADIES and gentlemen: May I present to you the Hon. Bill Lockyer, attorney general of the state of California, from the May 22 Wall Street Journal:

"I would love to personally escort (Enron Corp. Chairman Kenneth) Lay to an 8 x 10 cell that he could share with a tattooed dude who says, 'Hi, my name is Spike, honey.' "

When you stop gagging, join me in celebrating Lockyer's crude, lewd and unsubdued behavior. It has stripped away whatever veneer of respectability California officials had by virtue of the offices they hold and exposed them as braggarts and bullies of the first order. But they also wield enormous and destructive power -- and they intend to use it.

The sooner Texans realize this the better.

As citizens of the state that is home to much of the nation's energy production, the people of Texas are intimately familiar with the booms and busts of the oil and natural gas industries. Sometimes, prices are high, new supply is high and willing buyers can only sigh.

Other times, gluts occur, demand fluctuates, competition grows ruthless and revenues seep out like the last remnants of black crude from a stripper well.

These are the principles of American capitalism, free market forces and the give-and-take and push-pull that separate this nation's economic capacity from all others. It is a fundamentally fair system, it has served us remarkably well and every time we have tampered with it, it has been to our ultimate detriment.

Witness California's partial "deregulation" of its electricity market.

The Golden State, for all its vanity, pride and preening machismo, actually knows very little of tough times. Sure, we can handle the occasional spectacular episode, like an earthquake or wildfire. That's part of the thrill of living in California.

But when it comes to our economic expectations and their interrelationship with our desired lifestyle, we only know the California way: more, more often and with no end in sight.

And if we don't get what we want, when we want it, it's someone else's fault.

In that light, it is no surprise that we are saddled with our current governor, Gray Davis, and our current law enforcement chief, the aforementioned Lockyer.

Despite his frequent jittery appearances on national television, Davis is a politically shrewd man. He may not know which public policy choices are best for the state's future, but that's not his highest priority.

Item No. 1 on Davis' "To Do" list is to get re-elected next year. But this has been complicated by the state's year of energy woes, Davis' ineffectual response and the fact that California is a largely one-party state.

Of California's eight statewide elected offices, seven are held by Democrats, including Davis and Lockyer. You don't have to be a Delphic oracle to discern that if Davis gets tossed out, he will take more than a few of his political brethren with him.

So, as California tiptoes toward its long, hot summer of rolling blackouts and unprecedented electricity shortages, Davis is busy digging his personal bomb shelter. He's preparing for the big one, calculating that while the damage will be great, and the fallout potentially lethal, he and the other cockroaches, like Lockyer, will survive.

How will they do this? By finding some fall guys to take the rap.

Call it the Texas two-step: First, Davis declares "war" on Texas energy producers. Next, Lockyer says he expects to file civil charges against suppliers, with, he hopes, criminal counts to follow.

For a demonstration of how not to deal with Lockyer and other California aggressors, examine the rejoinder of Mark Palmer, Enron's vice president for corporate communications. Lockyer's comment about Lay, he said, "is so counterproductive that it doesn't merit a response."



Wilcox is a former speechwriter for California Gov. Pete Wi

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</table> <center> <a HREF="http://www.healthcareoutlook.com"> <img SRC="http://venturewire.com/ads/120x60ads/HOButton120x60.gif" border="0" ALT="healthcareoutlook"></a><br> <font face="verdana, arial, helvetica" size="-2" color="black">San Francisco Airport Marriott, Burlingame, CA<br>January 22, 2002</font> </center> <br> </td> </tr> <tr> <td> <br>

<font face="arial, geneva, helvetica" size="2" color="black"> Note to Readers: VentureWire newsletters will not be published on Thursday and Friday in observance of Thanksgiving. The next issue will be Monday, November 26. </font><br><br> <br><font face='arial,helvetica' color="#006699" size="2"><b>TOP MANAGEMENT</b></font><br> <a name="vwQNMOIQPIJx"></a> &#8226; <a href="#vwQNMOIQPIJ"><font face="verdana, arial, geneva, helvetica" size="2">Novalux Appoints Board Director Ian Jenks as Pres & CEO</font></a><br> <a name="vwNIJQPJPIJx"></a> &#8226; <a href="#vwNIJQPJPIJ"><font face="verdana, arial, geneva, helvetica" size="2">Healthcare Info Firm Resolution Names New President</font></a><br>

<br><font face='arial,helvetica' color="#006699" size="2"><b>BUSINESS DEVELOPMENT</b></font><br> <a name="vwNQKOPQPIJx"></a> &#8226; <a href="#vwNQKOPQPIJ"><font face="verdana, arial, geneva, helvetica" size="2">Xenon Names Celia Courchene as VP, Business Development </font></a><br>

<br><font face='arial,helvetica' color="#006699" size="2"><b>MARKETING & SALES</b></font><br> <a name="vwQLLIJMOIJx"></a> &#8226; <a href="#vwQLLIJMOIJ"><font face="verdana, arial, geneva, helvetica" size="2">Cereva Networks Hires Kurt Reiss as Marketing VP</font></a><br> <a name="vwQNOJHIOIJx"></a> &#8226; <a href="#vwQNOJHIOIJ"><font face="verdana, arial, geneva, helvetica" size="2">MontaVista Names Raymond Mak VP Sales for Asia Pacific</font></a><br> <a name="vwHHIJIKOIJx"></a> &#8226; <a href="#vwHHIJIKOIJ"><font face="verdana, arial, geneva, helvetica" size="2">Mitch Bishop Appointed VP of Marketing for TightLink</font></a><br>

<br><font face='arial,helvetica' color="#006699" size="2"><b>FINANCE</b></font><br> <a name="vwQLNPQLPIJx"></a> &#8226; <a href="#vwQLNPQLPIJ"><font face="verdana, arial, geneva, helvetica" size="2">ForwardVue Names Ashley Abbot as VP, Financial Engineering</font></a><br> <a name="vwNIPHKOOIJx"></a> &#8226; <a href="#vwNIPHKOOIJ"><font face="verdana, arial, geneva, helvetica" size="2">Gupta Adds Jeff Bailey as CFO, Anne O&#39;Callahan as Mkt Dir</font></a><br>

<br><font face='arial,helvetica' color="#006699" size="2"><b>TECHNOLOGY</b></font><br> <a name="vwLNNIMLOIJx"></a> &#8226; <a href="#vwLNNIMLOIJ"><font face="verdana, arial, geneva, helvetica" size="2">Pacific Edge Names Thomas Haug VP of Engineering</font></a><br> <a name="vwQHNHHPOIJx"></a> &

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**Enron Mentions - 04/23/01**

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World Watch The Wall Street Journal, 04/23/01

PG&E's Glynn Commits Chain of Errors Before Unit's Cash Crisis Bloomberg, 04/23/01

Massive power plant proposed Associated Press Newswires, 04/23/01

UK: UPDATE 1-Saudi Naimi to meet US Energy Secretary this week. Reuters English News Service, 04/23/01

INDIA: UPDATE 1-Enron's India unit, lenders to meet on payment row. Reuters English News Service, 04/23/01

INDIA: Promoters cut Indian power project capacity-paper. Reuters English News Service, 04/23/01

ONGC DISPUTES ENRON'S CLAIM ON MOON PROSPECT PROJECT AT TAPTI Asia Pulse, 04/23/01

Mangalore missive asks Baligar to set records straight The Times of India, 04/23/01

Government to change market rules in order to make electricity sector more competitive Expansion, 04/23/01

DPC seeks OK to exit power project Business Standard, 04/23/01

International World Watch Compiled by David I. Oyama

04/23/2001 The Wall Street Journal A15 (Copyright (c) 2001, Dow Jones & Company, Inc.)

ASIA/PACIFIC Kookmin Bank Formal Merger Expected The formal merger of South Korea's two largest retail banks, Kookmin Bank and Housing & Commercial Bank, will create the country's largest financial institution. But uncertainty over who will become president of the new entity, which also plans to list on the New York Stock Exchange in October, could still disrupt the merger process, officials involved in the deal say. The presidents of the two lenders are expected to sign a binding merger agreement today, creating a bank with combined assets of 161 trillion won (\$124 billion). Foreign investors will have a combined 60% stake. Goldman Sachs Group will hold a 9.95% interest, making it the largest shareholder of the merged bank, which will be called Kookmin Bank. The government will hold a 9.36% stake. Japan to Probe Polyester-Fiber Dumping Japan's government said it will begin an investigation into allegations that South Korean and Taiwanese makers were dumping certain types of polyester fiber on the Japanese market, marking the latest effort to protect some embattled Japanese industries. The finance and economy ministries said they received requests this year from five Japanese makers to impose antidumping duties on the Korean and Taiwanese imports, and have found enough evidence to embark on a formal inquiry. Dabhol Holders May Review India Project Shareholders of Dabhol Power, a unit of Enron of the U.S., will meet Wednesday in London to possibly discuss the future of Dabhol's 2,184-megawatt power project in India's Maharashtra state, an Enron India spokesman said Saturday. Enron has a 65% stake in the \$3 billion project; the Maharashtra State Electricity Board owns 15%, and General Electric and Bechtel of the U.S. each hold a 10% stake in Dabhol. BRIEFLY: -- Citing market weakness, Taiwan's Chunghwa Telecom again postponed a planned U.S. share offering, the latest setback in efforts to privatize the company. The decision likely means Chunghwa will have to reapply to Taiwan's security regulator for the U.S. share offering. -- Pakistan plans to sell a further 26% stake in Pakistan Telecommunications to a private investor; bids will be due by June 30. The government will keep a 62% stake. -- Taiwan's central bank cut the discount and secured-loans rates by 0.125 percentage point to 4.0% and 4.375%, respectively, its fifth rate reduction in as many months. -- Kawasaki Steel said Friday it will likely join in talks on a business link between NKK and the steel unit of Germany's ThyssenKrupp. NKK and Kawasaki, Japan's No. 2 and No. 3 steelmakers, last week said they plan to merge operations beginning in October 2002. -- Time Magazine apologized to its Muslim readers after demonstrators in India's Kashmir region last week protested an image of the prophet Muhammad in its April 16 issue and Malaysia pulled the issue from newsstands. The editor of Time's Asia edition said the image was an "unintentional affront

to the Islamic faith," which considers such images blasphemy.

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PG&E's Glynn Commits Chain of Errors Before Unit's Cash Crisis 2001-04-23 03:07 (New York)

PG&E's Glynn Commits Chain of Errors Before Unit's Cash Crisis

(Published in May issue of Bloomberg Markets.)

San Francisco, April 23 (Bloomberg) -- When Robert Glynn addressed PG&E Corp.'s shareholders for the first time as chief executive, he told them he saw only one way for the price of electricity to go in California: lower. "There is no product bought on a daily basis that has such a predictable downward price trajectory," he said at the 1998 annual meeting, held at San Francisco's Masonic Auditorium. Retail prices would drop 20 percent by 2001, he predicted. How wrong Glynn turned out to be. Since June 2000, wholesale prices in California have jumped sixfold. Utilities such as PG&E were barred from passing the increased costs on to customers when the state's electricity industry was deregulated in 1996. Glynn's misreading of the market was just one step in a chain of events that led him, in April, to steer the company's Pacific Gas & Electric Co. unit into Chapter 11 -- the biggest bankruptcy filing by a utility in U.S. history. Saying that electricity prices would fall, Glynn, 58, embraced deregulation -- the very same law that business leaders, politicians, and editorialists have recently condemned. With the help of proceeds from the asset sales required under deregulation, Glynn, who became CEO of PG&E in June 1997, pushed the San Francisco-based company into new markets. PG&E developed a nationwide energy sales and trading business and, through \$3.5 billion in acquisitions, became a power producer in New England and a natural gas provider in Texas.

#### PG&E Goes Up Against Enron

As PG&E expanded outside California, it butted heads with the likes of Enron Corp. -- and often came out on the losing end. Last year, PG&E sold its Texas natural gas business for \$840 million, less than half the price it had paid. The company also sold a unit that managed energy use for corporate customers after racking up more than \$120 million in losses. Some analysts and investors are fed up with Glynn's management. "He's put the company in some difficult situations," said Jeffrey Gildersleeve, an analyst at Argus Research who has a "hold" rating on the company's stock. "There has been a lot to swallow." PG&E's stock, which has traded as high as \$35.06 during Glynn's tenure, dropped to \$6.50 shortly after the bankruptcy filing. It closed last Friday at \$8.90, down 56 percent since the start of the year. Bond prices have also declined. Pacific Gas & Electric's 7.375 percent bonds due in 2005 have fallen to 65 cents on the dollar from about 90 cents last November. For 2000, the company had a net loss of \$3.36 billion after taking a \$4.11-billion charge for power-purchase costs. Revenue rose 26 percent to \$26.2 billion.

#### Early Proponent of Deregulation

Glynn was an early proponent of deregulation. He told legislators before the bill passed in 1996 that it would allow PG&E to raise cash to pay off debt as well as to expand outside the state. "Glynn, more than anyone else on earth, invented the idea that it was a good risk for utility shareholders to take," said California Senator Steve Peace, a Democrat who co-wrote the law. A native of Orange, New Jersey, Glynn joined Pacific Gas & Electric in 1984 after being with Long Island Lighting Co. and Woodward Clyde Consultants, an engineering company now owned by URS Corp. He became the utility's president in June 1995 and was named PG&E's president when the holding company was formed in Jan

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#### Enron Mentions

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USA: UPDATE 1-Enron CEO says stock hit because of high multiple. Reuters English News Service, 03/28/01

USA: ICE to offer Internet products trade off Colonial Pipeline. Reuters English News Service, 03/28/01

US FERC To Seek Input On Regional Pwr Grid Coordination Dow Jones Energy Service, 03/28/01

Top Enron executives reap bonuses for strong 2000 performance Associated Press Newswires, 03/28/01

USA: Enron CEO says stock hit because of high multiple. Reuters English News Service, 03/28/01

USA: Viacom nixes plan to spin off rest of Blockbuster. Reuters English News Service, 03/28/01

``Plumbers" for Today's Economy Dominate Online Investor Tournament Sponsored by Fast Angels; Eight Companies Work Behind-the-Scenes to Help World Act Faster and Smarter Business Wire, 03/28/01

NIGERIA: Nigeria will break up state power monopoly - minister. Reuters English News Service, 03/28/01

Enron's unit presents thermal power plan to Aomori gov. Kyodo News, 03/28/01

Regulators grant rate hike for utilities Rates could rise almost 50 percent under CPUC plan CBS MarketWatch.com, 03/27/01

Hefty payday for Enron's top execs \$7 mln bonus for chairman, \$5.6 mln to CEO for 2000 CBS MarketWatch.com, 03/27/01

USA: UPDATE 1-Enron CEO says stock hit because of high multiple. By C. Bryson Hull

03/28/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW ORLEANS, March 28 (Reuters) - Wall Street's stampede away from stocks with high price to earnings (PE) ratios is finally catching up with Enron Corp. and hurting its share price, the energy giant's top executive said on Wednesday. "I think the stock price dropped because of multiple compression," Enron President and Chief Executive Jeff Skilling told an audience of institutional investors at the Howard Weil Energy Conference in New Orleans. Enron currently trades at about 41 times earnings, a value Skilling said he considers "low and clearly sustainable moving forward." His comments came as Enron shares dropped as much as 5 percent Wednesday, before closing down \$2.36, or 3.9 percent, at \$58.10 in trading on the New York Stock Exchange. Enron's fall outpaced the less than one percent drop in the Standard & Poor's Utility Index. Skilling pointed to the wave of companies whose prices have dropped sharply in the last year because investors thought they were overvalued, with PE multiples above 30 times earnings range. "We kept our multiple and felt a little like the last duck in the pond and there was still a lot of ammo with the hunters," Skilling said. Enron's stock remained immune to the trend against high PE ratios until last week, when it dropped under \$60 for the first time since January 2000. It lost 8 percent over a two-day period, March 21-22, prompting Skilling to hold a conference call last Friday to assuage investors and analysts. One analyst said several Enron-specific issues have more to do with the recent decline in the company's share price than the broader market disregard for high PE ratio stock. "He is exactly right that high multiple stocks have sold off, and you see that particularly in the NASDAQ. Telecoms and the tech sector have been hit hard and Enron had a large part of its valuation in the telecom sector with broadband," Commerzbank securities analyst Andre Mead said. The market took that value out as telecoms weakened across the board and as some doubts arose about Enron's timing on its broadband initiative and other issues, he said. "The bottom line is there are some market dynamics at work for at least a portion of the sell-off, but a good deal of it is Enron-specific, because the market is valuing the broadband (part) less," Meade said. The fall in its shares last week followed a rapid string of negative news about Enron, including continuing word that India's Maharashtra State Electricity Board could not pay Enron for power from its Dabhol power plant; the termination of the broadband unit's marquee 20-year video deal with Blockbuster Inc. ; and false rumors of layoffs at the broadband unit. Enron has peaked at \$90.56 and touched a low of \$51.55 over the past 12 months.

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USA: ICE to offer Internet products trade off Colonial Pipeline.

03/28/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, March 28 (Reuters) - Internet-based IntercontinentalExchange (ICE) plans to offer trading in U.S. refined products off the Colonial Pipeline in the second quarter of this year, a company official said Wednesday. The Houston-to-New York Colonial Pipeline is the largest refined products pipeline in the United States, pumping a total of 2.35 million barrels per day of gasoline, heating oil, diesel and jet fuel. Refined oil prices for the nation's refining hub on the Gulf Coast are set by trade into the pipeline. ICE however would not elaborate on which products exactly it will trade. "That's



the plan, but we don't really have any further details," said a company official. With backing from major banks and energy groups, ICE (<https://www.intcx.com>) has become one of the most widely distributed online energy marketplaces, despite only launching trading last fall. It hosts a range of energy and precious metal 'over the counter' (OTC) contracts - those traded outside regular futures exchanges. Oil derivatives traded on ICE include crude oil, fuel oil, heating oil, jet fuel, gasoline and naphtha. But with an average of \$3.5 billion in daily trade volume, rival Enron Corp (ENE.N) subsidiary EnronOnline ([www.enrononline.com](http://www.enrononline.com)) has been the most successful online energy trading platform. While it does not currently offer trading of Colonial Pipeline products, an EnronOnline official did not rule out such a move in the future. "We have been making additions pretty much every month," the official said. "If we get demand for Colonial, I'm sure we'll add it. We're making large efforts to expand that product area." This week, EnronOnline launched trading in WTI crude options and spread trading in Light Louisiana Sweet/St. James, West Texas Sour/Midland and West Texas Intermediate/Midland crudes.

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US FERC To Seek Input On Regional Pwr Grid Coordination By Bryan Lee

03/28/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

OF DOW JONES NEWSWIRES

WASHINGTON -(Dow Jones)- The U.S. Federal Energy Regulatory Commission agreed Wednesday to seek comment on whether it should hold a technical conference on the coordination of wholesale power transactions among the regional transmission organizations, or RTOs, that it seeks to develop. FERC is in the midst of implementing a sweeping order that will direct the utilities it regulates to turn over control of their transmission assets to RTOs. The order aims to promote more liquid regional wholesale power markets by creating independent power-grid operators, removing the remaining ability of vertically integrated utilities to use control of transmission to competitive benefit in power markets. In December, competitive power suppliers and industrial consumers petitioned the commission to convene a technical conference on what was termed the "seams" issue involving wholesale power transactions from one RTO-administered grid area to another. "The transmission grid for electricity is interstate and inter-regional," said John Anderson, executive director of the Electricity Consumers Resource Council, or ELCON, which represents large industrial power users. "We must be sure that, first, RTOs coordinate transmission facilities of different utilities, but, second - and probably more important - we must ensure that transmission facilities coordinat

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#### VentureWire, Monday, June 4, 2001

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will be better off with their money back rather= =20 than risking losing it all. more>> =09=09UPCOMING EVENTS  
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Launches \$40.9M Early-Stage Fund=20 =09=09=01=07 Silicon Valley Bank Forms New Seed Capital Practice =09=09 =09=09 =09=09vw corrections =09=09 =09=09 =01=07 Accumedia =09=09 =09=09 TOP STORIES... NEW MONEY... BAD NEWS... NEW DEALS... NEW PRODUCTS...= M&A...=20 NEW PEOPLE... VC FUND NEWS... VW CORRECTIONS =09=09 =09=09 =09=09top =09=09 =09=09 =09=09When it comes to money, it's evolutionary. =09=09 =09=09Financial Services Outlook will host up to 50 innovative, =09=09technology-driven companies, who are altering the landscape =09=09from global markets to reinsurance, trade credit to risk =09=09management. =09=09 =09=09Financial Services Outlook =09=09July 31 =09=09The Marriott World Trade Center =09=09 =09=09Check out the latest industry updates and hear the =09=09best of the best give their views on market opportunities. =09=09Register before June 19 and SAVE=20 \$100:<http://www.financialservicesoutlook.com/register.asp> =09=09 =09=09 =09=09 =09=09 top stories=20 =09=09? =09=09Matrix Partners Raises \$1 Billion Fund =09=09 mail? top =09=09 =09=09 WALTHAM, Mass. (VENTUREWIRE) -- Matrix Partners, a Waltham, Mass.-ba= sed=20 early-stage venture capital firm, has closed on a fund of \$1 billion,=20 VentureWire has learned. The new fund is the firm's seventh. The firm=20 confirmed that it has raised the new fund but declined to make further=20 comment until making a formal announcement, which it plans to do this summe= r.=20 Matrix closed its last fund in 2000, Matrix Partners VI with \$530 million.= =20 The firm, which has nine partners and a satellite office in Palo Alto,=20 Calif., was founded in 1982. Matrix Partners backs companies in the=20 computing, Internet, networking equipment, semiconductor, software, and=20 storage sectors. The firm invests between \$100,000 and \$300,000 in seed=20 deals and invests up to \$10 million in early-stage rounds. According to=20 VentureWire data, Matrix is the twelfth venture capital firm to close a fun= d=20 this year with at least \$1 billion. Apax Partners raised a fund of about \$4= =20 billion to target Israeli and European companies, while ten other firms,=20 including Austin Ventures, Charles River Ventures, Greylock, and U.S. Ventu= re=20 Partners, closed funds closer to the \$1 billion mark. Atlas Venture came in= =20 just short with its \$950 million Fund VI in April. In all of last year,=20 eighteen VC firms closed \$1 billion funds. Matrix Partners portfolio=20 companies include Appian Communications, a Boxborough, Mass.-based develop= r=20 of optical networking technologies for communications carriers; Blue Dolphi= n=20 Group, a Wayland, Mass. e-mail-based subscription agent that recently cut 2= 0%=20 of its staff; Lexra, a San Jose, Calif.-based microprocessor developer; and= =20 Sunnyvale, Calif.-based RealChip Communications, which provides custom and= =20 standard chips for communications applications.=20 =09=09<http://www.matrixpartners.com> =09=09 =09=09 =09=09Atom Shockwave Says 'Game Over' to Some Staff =09=09 mail? top =09=09 =09=09 SAN FRANCISCO (VENTUREWIRE) -- AtomShockwave, an online entertainmen= t and=20 content distribution company, said it was restructuring the company and has= =20 terminated some of its staff. The company said an undisclosed number of=20 employees were let go on Friday. The company, which was formed by the=20 December 2000 merger of Atom Films and



Shockwave, would not comment on whether employees received severance packages. AtomShockwave said the cuts were part of an effort to help the company reach profitability sooner but did not say when profits were expected. The company, which raised \$22.9 million in March, said it will now focus more on syndication, advertising, sponsorship, and e-content, and less on content creation and development. AtomShockwave's backers include Allen & Co., Arts Alliance, Chase Capital Partners, Intel Capital, J.P. Morgan Entertainment Partners, Macromedia Ventures, Sequoia Capital, Trans Cosmos USA, Warner Bros. Online, WaterView Advisors, and individuals. <http://www.atomfilms.com>

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### VentureWire, Friday, June 1, 2001

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VentureWire Friday, June 01, 2001 CONTENTS| COMPANIES| INVESTORS| ADVERTISE| TELL A FRIEND= VentureWire = Index = VentureWire = today: 684.3 ? -0.32% = ? = top stories = = Optical Firm Solinet Systems Lands \$93 Million Round Two = American Express Funds to Focus On Later Stage = BioTech Fund Forward Ventures Closes At \$256 Million = Reuters Greenhouse II To Launch in June With New LPs = TODAY'S FEATURES = Boston Millennia Returns to Market = By Taran Provost = Boston Millennia Partners (BMP) is looking to speed up its pace of in vesting, and has plans to expand its life sciences staff, a partner at the firm told = VentureWire.more>> = UPCOMING EVENTS = June 26-27: San Francisco Enterprise Outlook 2001 = Already this year there have been almost 250 enterprise software deals (only 50 less than the same period last year). A total of \$2 billion has been invested in this industry over the past 5 months. Activity in this sector remains strong. Be sure to register for Enterprise Outlook so you too can stay on top of the latest opportunities! = Now more relevant than ever. RED HERRING. = Since its launch in 1993, RED HERRING has become the favored source of insider information for entrepreneurs, venture capitalists, investment bankers and senior executives = redefining the new technology-driven world of business. = From MEMs to biotech to the top 100 companies that still matter, RED HERRING gives you a unique perspective you won't find in conventional business publications. = Get a FREE TRIAL ISSUE of RED HERRING today! [http://www.redherring.com/service/circ/subs\\_ZP.html](http://www.redherring.com/service/circ/subs_ZP.html) = new money = Healthcare ASP DR2DR.com Raises \$2.3 Million Series A = Lodging Service Provider HubX Gets \$2 Million Series A = BigRecordPromoter Raises Round One = Biotech Firm ReVas Gets Seed Funds From Open Prairie = Redfern Photonics Raises \$28 Million in Round Two = Element K Raises \$18 Million in Series B Funding = Cardiac Monitoring Tech Firm CardioNet Raises \$13.5 Million = Cyber-Ark Signs Up Orama For \$2M Commitment in Second Round = Business Analysis Firm MetaEdge Gets \$5 Million Series B = Optical Fiber Grating Firm Indigo Photonics Gets \$5.7 M = eCommerce Industries Seals \$21M Third Round = HRPath Raises \$1.6 Million Series C = Rocket Network Receives \$9.3 Million in Round Three = Greenwich Technology Partners Gets \$9.75 Million Late Round = Hearing Device Firm InSonus Medical Has \$7 Million Round Two = bad news = Rich Media Distributor ElasticEdge Closes Down = Travel Tech Firm Unexplored.com Lays Off Employees = Free Storage Provider MySpace Ceases Operations = e-Privacy Firm Eprivex.com Seeks Seed Funds Or Else = new products = BlueTarp Launches First Product = Design, Building Software Provider Tririga Launches = m&a = Office Depot Acquires Officesupplies.com = Property Firm Risanamento Napoli To Buy Global Switch = Adressdirekt Acquires Adwyze International = Researchsummary.com Buys NavigateOne in Stock Deal = Wire One Technologies Acquires GeoVideo Networks Assets =

ObjectSoft to Merge with Golden Screens Interactive=20 =09=09=01=07 Applied Materials Buys Laser Cleaning Tech Co. Oramir =09=09 =09=09 =09=09new directors =09=09 =09=09=01=07 Protection Applications Firm MindMatters Adds to Board =09=09 =09=09 =09=09vc fund news =09=09 =09=09=01=07 BCI and Village Ventures to Form Fund for NY Capital Region =09=09=01=07 Innovatech Invests \$3 Million in VIMAC, Firms to Co-Invest =09=09 =09=09 =09=09vc personnel =09=09 =09=09=01=07 Royal Bank Capital Partners Adds Director to IT Fund =09=09 =09=09 =09=09vw corrections =09=09 =09=09=01=07 SpeedGreetings =09=09=01=07 American Fiber Systems =09=09=01=07 Southern Capitol Ventures =09=09 =09=09TOP STORIES... NEW MONEY... BAD NEWS... NEW PRODUCTS... M&A... NEW=20 DIRECTORS... VC FUND NEWS... VC PERSONNEL... VW CORRECTIONS =09=09 =09=09 =09=09top =09=09 =09=09 =09=09What do beige boxes have to do with data? =09=09Nothing, that's what. The future is wireless =09=09Palm pilots and cell phones and a huge =09=09percentage of research and development over =09=09the next few years will be devoted to figuring =09=09out how to tap into it. =09=09 =09=09Mobile Outlook is the convergence of hundreds of =09=09entrepreneurs and investors, all devoted to =09=09thinking outside the beige box. If you move data, =09=09you can't afford to miss it. =09=09 =09=09Mobile Outlook 2001. Register today:[http://www.mobile2001.net/register= r.asp](http://www.mobile2001.net/register=r.asp) =09=09 =09=09 =09=09 =09=09top stories=20 =09=09? =09=09Optical Firm Solinet Systems Lands \$93 Million Round Two=20 =09=09mail? top =09=09 =09=09OTTAWA (VENTUREWIRE) -- Solinet Systems, a developer of optical core= =20 networks, said it received CDN 144 million (\$93 million) from Altamira, Alt= a=20 Partners, Bessemer Venture Partners, New Enterprise Associates, U.S. Ventur= e=20 Partners (USVP), Worldview Technology Partners, and undisclosed optical and= =20 semiconductor component suppliers. New investors included round leader USVP= ,=20 along with Alta Partners, NEA, and the corporate investors. The remaining= =20 investors participated in the first round. Solinet said it would use the=20 funding to complete its product development, bring the product to market=20 later this year, and expand its research and development, operations, and= =20 marketing departments. Co-founder Madhu Krishnaswamy said the company expec= ts=20 to increase its 205 member staff to 270 by the end of the year. He said the= =20 company plans to become profitable by the second half of next year, and at= =20 that point decide whether to raise another round of funding or go public,= =20 depending on the IPO market. Steve Krausz, general partner at USVP, takes t= he=20 fifth seat on Solinet Systems' board of directors. The company has raised= =20 \$108 million to date.=20 =09=09<http://www.solinetsystems.com> =09=09 =09=09 =09=09American Express Funds to Focus On Later Stage =09=09mail? top =09=09 =09=09MINNEAPOLIS (VENTUREWIRE) -- Two American Express mutual funds that a= Iso back=20 startups and invest as a limited partner are focusing on later-stage=20 companies while slowing their overall pace of private investment. Senior=20 portfolio manager, Louis Giglio, told VentureWire that the funds, which he= =20 manages from Minneapolis, will also not invest in any additional VC funds= =20 this year, opting instead to hold capital in reserve for follow-on rounds i= n=20 portfolio companies. Mr. Giglio, who has been managing approximately \$6=20 billion as the senior portfolio manager for American Express's Innovations= =20 Fund (since April 2000) and Strategy Aggressive Fund (since November 2000),= =20 said that later-stage companies were more attractive this year for=20 investment. "I would rather invest in a concept that is closer to=20 commercialization than not," said Mr. Giglio. "I don't want to fund someone= =20 for three years and see a lot of red on the income statement. I want to see= =20 earnings at a reasonable point in time." The two funds will allocate no mor= e=20 than their usual 5% to venture capital investment with the pace of investme= nt=20 in startups s

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### Enron Mentions

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USA: INTERVIEW-El Paso had no reason to inflate price-chairman. Reuters English News Service, 05/21/01

Former TVA director signs as Enron lobbyist Associated Press Newswires, 05/21/01

'Enron's allegations will hurt foreign investment' The Times of India, 05/22/01

Re-negotiation best: Deshmukh; lenders' SOS to Centre The Times of India, 05/22/01

Enr-off and Enr-out Business Standard, 05/22/01

Dabhol: more heat than light Business Standard, 05/22/01

USA: Enron eyes entry into coffee, sugar, cocoa - trade. Reuters English News Service, 05/21/01

Enron to End Involvement in \$3.5 Billion Middle East Gas Project Dow Jones Business News, 05/21/01

Bush Energy Plan Stirs Pot, But Not Energy Prices Dow Jones Energy Service, 05/21/01

INDIA: India says optimistic about Enron settlement. Reuters English News Service, 05/21/01

UK: INTERVIEW-Axia starts trading German, Italian power. Reuters English News Service, 05/21/01

Brazil's Petrobras to Set Terms for Currency Risk on Gas Sales Bloomberg, 05/21/01

Enron Target of Protests Over Energy Policy and Higher Prices Bloomberg, 05/21/01

Enron Power Dispute May Cost India More Than \$3.6 Bln (Update3) Bloomberg, 05/21/01

Enron Withdraws From \$2 Bln Middle East-Gas Project (Update4) Bloomberg, 05/21/01

USA: INTERVIEW-El Paso had no reason to inflate price-chairman. By C. Bryson Hull

05/21/2001 Reuters English News Service (C) Reuters Limited 2001.

DALLAS, May 21 (Reuters) - El Paso Corp. had no incentive to inflate natural gas prices on its pipelines to California because it had hedged most of its gas to third parties before prices took off last year, the gas company's top executive said on Monday. The Houston-based company is currently fighting price-gouging claims brought to federal regulators by the California Public Utility Commission and that state's two largest investor-owned utilities, PG&E Corp.'s . Pacific Gas & Electric and Edison International's Southern California Edison. El Paso Chairman, President and Chief Executive Officer William Wise told Reuters he expects his company to be cleared once it makes its case to the U.S. Federal Energy Regulatory Commission in hearings this week. "The last piece we think is very elemental and so easy to understand is that we hedged our capacity into California. If we thought the gas prices were going to go up, we wouldn't have hedged it. We were hedging it because we thought prices would be flat or down," Wise said in his first interview on the topic since El Paso began fighting the accusations several months ago. Even SoCal Edison's main witness admitted during testimony last week that it would be irrational for a market manipulator to hedge like El Paso did, Wise said. Ninety percent of El Paso's gas was hedged to others in the period during which the company was alleged to have raised prices. On Monday, lawyers for El Paso continued fighting those accusations in proceedings before FERC Administrative Law Judge Curtis Wagner. The California trio alleges El Paso, California's largest natural gas supplier, withheld capacity on its four pipelines into the state from March through November 2000 in order to inflate prices. The CPUC alleges that cost Californians an additional \$3.7 billion. Even in the worst case, if Wagner substantiates the claims and orders El Paso to refund some of the money it made, Wise said the exposure will not be great. "I think in total last year, we didn't make more than \$100 million in California," Wise said during an interview following El Paso's annual shareholder's meeting in Dallas. The FERC already rejected a related accusation from the CPUC, which charged El Paso rigged bidding in a capacity auction for its main pipeline into California to favor a sister company. Wise said he was confident that El Paso would prove that it did not withhold pipeline capacity, as the company's accusers have alleged. The genesis of the complaints to FERC is a desire by the utilities and the CPUC to shift blame, Wise said. "They're attempting to deflect away from decades of bad policy and bad business decisions, both by the public utility commission and by the utilities in which they did not build power plants and they did not build natural gas infrastructure within the state," Wise said. The most glaring infrastructure problem is the limited capacity to move gas inside of California, especially from south to north. The utilities traditionally countered that by storing natural gas, but Wise said they made a critical mistake last year by selling stored gas at an arbitrated profit. "They depleted storage, and by the time they figured this out, they needed every bit of capacity just to serve the market and they had no capacity to refill storage," Wise said. "Economics 101 would tell you you're going to get prices spikes, and that's exactly what happened." ACQUISITIONS STILL ON RADAR Outside of California, Wise said that EL Paso will remain an active acquirer, given its track record of executing mergers and acquisitions like its recent \$24 billion purchase of Coastal Corp. "Do we buy an electric utility? Do we buy more (exploration and production)? The market should expect us to do merger and acquisition activity within the playing field that we have a demonstrated expertise in," Wise said. Asked whether he had any interest in hometown rival Enron Corp.'s Portland General utility, which is on the block again after

Enron's \$3 billion sale with Sierra Pacific Resources Corp. fell through last month, Wise answered: "The utility side of the business is not my favorite side of the business. The generation side of a utility could be interesting," Wise said.

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Former TVA director signs as Enron lobbyist

05/21/2001 Associated Press Newswires Copyright 2001. The Associated Press. All Rights Reserved.

KNOXVILLE, Tenn. (AP) - Johnny Hayes, a former Tennessee Valley Authority director, has been hired to lobby Congress for electric wholesaler Enron Corp., a potential TVA competitor. Hayes, who resigned from the three-member TVA board in January 1999 to become the top fund-raiser for Al Gore's presidential campaign, registered this month to lobby for Houston, Texas-based Enron, The Knoxville News-Sentinel's Washington bureau reported Sunday. Enron is one of the nation's largest energy companies, reporting \$101 billion in revenues last year compared to government-owned TVA's \$6.7 billion. Enron spokesman Eric Thode confirmed Hayes has been hired to work for the company, but refused to say his salary. Enron paid another lobbyist \$415,000 last year, records show. Hayes' salary at TVA was \$118,400 annually. Hayes, a former Tennessee economic and community development commissioner who lived in Gallatin, did not immediately return calls to The Associated Press for comment. Stephen Smith, executive director of the TVA watchdog and environmentalist group Southern Alliance for Clean Energy, said he is concerned about a TVA insider joining ranks with a potential TVA competitor. "As a board member for TVA, one knows where a lot of the skeletons are throughout the agency," Smith said. "What is always a concern is when you step out away from the organization, do you potentially now profit from that and turn it against consumers in the Valley?" Hayes was hired to lobby "on energy issues, TVA-related, kind of a host of issues that would affect that area and be related to energy," Thode said. The lobbying "may include TVA, but it would be a variety of things," he said. "We're looking at things, projects all over the nation at all times." TVA and Enron have done business before. TVA contracted with Enron to provide power during peak periods in the summers of 1998 and 1999. When Enron fai

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### Enron Mentions

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BANDWIDTH BEAT: Master Trading Agreement 3.0 Dow Jones Energy Service, 04/16/01

Sierra Pacific Shares Slump After Utility Suspends Dividend Dow Jones Business News, 04/16/01

Energy Traders Raise Ante In Power-hungry California Dow Jones Energy Service, 04/16/01

Independent Power Producers Expect to Meet or Exceed Forecasts Dow Jones Business News, 04/16/01

Seattle City Utility Racks Up \$92 Million in Power Purchases in March KRTBN Knight-Ridder Tribune Business News: The Seattle Times - Washington, 04/16/01

Sierra Pacific Shares Fall After Dividend Canceled (Update2) Bloomberg, 04/16/01

BANDWIDTH BEAT: Master Trading Agreement 3.0

04/16/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

. By Michael Rieke . A Dow Jones Newswires Column .

HOUSTON -(Dow Jones)- Carriers and trading companies worked for more than nine months last year, missed four deadlines and couldn't produce a master bandwidth trading agreement. Now they seem to be coming out with something new every other month or so. Since mid-December, two master trading agreements have been posted on the Competitive Telecommunications Association Web site, and there's a third one circulating. Who's behind it, however, is a mystery. The

first thing to understand in a discussion of master trading agreements for the bandwidth market is that few, if any, sources want to be quoted on the subject. Enron Corp. (ENE) and Williams Communications Group (WCG) are about the only companies willing to have their names attached to a trading contract. But it's safe to assume that at least El Paso Corp. (EPG), Utilicorp United Inc. (UCU) unit Aquila, Koch Industries and Reliant Energy Inc. (REI) worked with Enron on first contract. Universal Access Inc. (UAXS) and unnamed carriers are said to have worked with Williams on the second. The new contract is being referred to in the market as the "Universal Access" contract. "This is not a Universal Access contract," Pam Whitehead, vice president of global bandwidth markets for Universal Access, told Bandwidth Beat. Her company was one of about 10 carriers that worked on the third contract, she said. When asked for a copy of the third contract, Whitehead referred Bandwidth Beat to CompTel, saying she was sure the group had a copy. Another source, when asked for a copy of the third contract, said, "Why don't you talk to Pam? It's her document." Less Firm Or More Flexible?

The third contract is "less firm" than the other two contracts, people in the trading market said. But a person who worked on it described it in a way that makes it sound more flexible than the other two. "It does have a check box on the front that allows you to totally opt out of the firmness that's described (in the contract), said the source. "But if you don't check that box, it's completely firm." Firm contracts leave parties liable for damages if the terms aren't met, and trading companies say bandwidth has to be traded on a firm basis for the market to work. Carriers, on the other hand, say the best-efforts basis on which they've always done business should be fine for bandwidth trading as well. This split has frustrated attempts to create a common contract. But the whole debate over firm versus best-efforts is at least a little bogus. Despite traders' hard-line position, there's always room for flexibility in markets. When Enron buys natural gas, it doesn't always use a firm contract. If it's going to resell the gas under an interruptible - or best-efforts - contract, it doesn't need to buy with a firm contract. In the winter, when delivery of gas is crucial, 95% of the business is done with firm contracts, a veteran gas trader told Bandwidth Beat. In the summer, when delivery isn't so crucial, 75% of the business is done with firm contracts. Special Deals No One Talks About

When carriers say they've always done business on a best-efforts basis, they're not telling the whole truth either. Case in point are individual case basis, or ICB, contracts. ICB contracts aren't standardized. A buyer can get just about anything in an ICB deal, including firm delivery, but the buyer can't tell anyone about it. The arrangements are private and confidential. So who can get ICB contracts? It's determined by how much a buyer is spending, how much he knows about the market and how good he is at negotiating, Ron Harden, director and chief operating officer of PointOne Telecommunications in Austin, Texas, told Bandwidth Beat. "You can always get an ICB deal if you push them hard and ... if you know where the market is priced," he said. So energy traders don't always do business on a firm basis, and carriers don't always do business on a best-efforts basis. But there's no arguing that fact that trading with a firm contract makes any market, including the telecom market, more efficient. Buyers need to know when their crucial orders will be filled. Now let's go back to the fact that, at least on the carriers side of the argument, companies don't want their names associated with the effort to produce a standard trading agreement. The reluctance stems from internal and external concerns. Carriers' traditional sales staff fear bandwidth trading could cause them to lose customers and bonuses to their company's bandwidth trading desk. And carriers hoping to do business with both other carriers and trading companies don't want to endanger their relations with either group. But Jon Merriman, president and chief executive of RateXchange Corp. (RTX), has predicted that carriers won't always shy from being mentioned in connection with bandwidth trading. Sometime soon a telecom analyst will put a buy rating on a carrier that uses the bandwidth market to sell unused network capacity and increase its revenues, giving companies an incentive to open up, Merriman said. We'll see how long that takes. On the Web: <http://www.CompTel.org> -By Michael Rieke, Dow Jones Newswires; 713-547-9207; michael.rieke@wsj.com

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Sierra Pacific Shares Slump After Utility Suspends Dividend By Elena Molinari

04/16/2001 Dow Jones Business News (Copyright (c) 2001, Dow Jones & Company, Inc.)

Dow Jones Newswires NEW YORK --- Interpreting Sierra Pacific Resources' suspension of its dividend payment as a sign of poor financial health, investors sold off shares of the utility on Monday. At 4 p.m., shares of Sierra Pacific (SRP) were off \$1.21, or 8.3%, to \$13.29 after earlier falling by as much as 12% in New York Stock Exchange trading. Sierra Pacific, which owns two Nevada utilities, said last week it cancelled the dividend payment scheduled for May 1. The company cited high power costs and other fallout from the energy crisis afflicting the western part of the U.S. The move will save the



Reno, Nev.-based utility less than \$20 million, it said. The dividend policy will be reviewed at the next board meeting May 21, the company added. Sierra Pacific has paid a quarterly dividend of 25 cents a share in recent quarters. Caught between regulated retail electric prices and rising wholesale energy costs, Sierra Pacific's situation is similar to that of California utility PG&E Corp., which filed for bankruptcy protection on April 6. "The company's earnings in the past few quarters have been hurt severely by the high cost of wholesale electric power," said Barry Abramson, an analyst with UBS Warburg. "Even though the company has been allowed to gradually increase its retail electric rates each month, these rate hikes have not kept up with the cost of power." Sierra Pacific received relief in February when the Nevada Public Utilities Commission approved a 17 percent rate increase, equal to about \$300 million of add

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### VentureWire, Tuesday, June 5, 2001

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=09=09?=09 ?=09VentureWire =09Tuesday, June 05, 2001=09=09? ?=09CONTENTS | COMPANIES | INVESTORS | ADVERTISE | TELL A FRIEND=09VentureWire Index =09=09' VentureWire =09=09today: 665.1 ? -2.55%=09? ? =09=09 =09=09 =09=09top stories =09=09 =09=09 =01=07 William Blair Capital Partners Gets \$403M for Fund VII =09=09 =01=07 Vitesse Acquires Versatile Optical Networks for 10M Shares =09=09 =01=07 Guggenheim to Launch For-Profit Art Site with VC Backing =09=09 =01=07 Warburg Pincus Takes The Cobalt Group Private =09=09=20 =09=09 =09=09TODAY'S FEATURES=20 =09=09Patricof & Co.'s Early Stage Team Stays The Course =09=09By Amanda Briggs =09=09Michael Duran, a partner at venture firm Patricof & Co., has spent the last= couple of months looking at Series C deals, an unusual move because Mr. Duran= was hired last February to focus on early stage deals in the= telecommunications equipment and component sectors. more>> =09=09UPCOMING EVENTS =09=09July 31: New York City =09=09Financial Services Outlook =09=09There are about 1,000 e-finance startups operational right now, offering= services such as cash management, 401(K) brokering, and online banking.=20 However, the e-finance landscape is still largely undefined. Financial=20 Services Outlook will help define the future. Register before June 19 and= =20 SAVE \$100!=20 =09=09 =09=09 =09=09Outlook for the Venture Capital Market =09=09\* 20th Univ. of Michigan Growth Capital Symposium, June 19-20 =09=09\* Meet with LPs and GPs of successful funds. Interact with =09=09execs from life sciences, MEMS, Telematics & IT firms =09=09\* Outlooks include Kleiner Perkins Caufield & Byers, =09=09Draper Fisher Jurvetson, State of Michigan Pension Fund. =09=09\* Connect with the Center for Venture Capital and Private =09=09Equity Finance at the University of Michigan --- serving =09=09the institutional VC community for 20 years. =09=09\* Call 734-936-3528 or view the Center's website for=20 details:<http://www.umich.edu/~cvpumps> =09=09 =09=09 =09=09 =09=09 =09=09new money =09=09 =09=09 =01=07 Corporate Backed Integres Eyes First VC Round =09=09 =01=07 Optical Firm Calix Out of Hiding With \$158 Million =09=09 =01=07 Avaki Announces \$6M Series A, New Name, New CEO =09=09 =01=07 Content Management Developer Cytura Gets \$11M Round One =09=09 =01=07 Grass Valley Grabs \$36 Million In First Outside Round =09=09 =01=07 Electronics Design Tool Firm Atrenta Gets \$6.7M Series A =09=09 =01=07 Flat Panel Co. ClairVoyante Labs Gets \$4 M in Series A Funds =09=09 =01=07 Financial Tech Firm Mantas Closes First Round =20 =09=09=01=07 Lucent Takes Equity in Traffic Info Firm MetroCommute.com =09=09 =01=07 Delphi Display Systems Gets \$3 M Series A from Eaglestone=20 =09=09=01=07 Fabless Semiconductor Firm Banderacom Gets \$35M Round Two =09=09 =01=07 Optical Device Maker Optium Raises \$35.5 Million Round Two =09=09 =01=07 OSS Software Maker AP Engines Closes \$30 Million Round Two =09=09 =01=07 Software Maker Harmonic Closes Series B at \$15.2M =09=09 =01=07 Wireless Provider Bluefish Gets \$1.8 in Second Round Funds =09=09 =01=07 Information Software Firm Casimir Raises \$1.6M Second Round =09=09 =01=07 NxtPhase Raises \$25 Million in Round Three =09=09 =01=07 SafeRent Collects \$13.4 Million in Round Three =09=09 =01=07 HydroCision Gets \$2M from Oxford Bioscience, Closes Series E =09=09 =01=07 PC Management Tech Firm Connected Raises \$30M Series F =09=09 =01=07 Qpass Clears \$15 Million in Series F=20 =09=09=01=07 Web-Based Planning Software Adaytum Gets \$7.4 M Series F =09=09 =01=07 Naviant, Online Marketing Technology Firm, Gets \$15 Million =09=09 =09=09bad news =09=09 =09=09 =01=07 Report: MetaTV Co-Founder, CEO is Arrested=20 =09=09=01=07

AtomShockwave President Steps Down, Firm Closes Offices =09=09 =01=07 Site Monitoring Firm webHancer Cuts 10% of Staff =09=09 =01=07 Bitlocker.com to End Web Database Infrastructure Service =09=09 =09=09 =09=09new products =09=09 =09=09 =01=07 Telco Soma Networks to Launch with \$70 M Raised to Date =09=09 =01=07 Hardware Manufacturing Software Firm Bom.com Launches =09=09 =01=07 ForwardAction Launches to Help Sacramento Area Startups =09=09 =01=07 Biotech Firm Mycometrix Changes Name to Fluidigm =09=09 =01=07 Software Infrastructure Firm Gazoo Changes Name to Talaris =09=09 =01=07 GDX Changes Name of Six Affiliates=20 =09=09 =09=09 =09=09m&a =09=09 =09=09 =01=07 Schroder Ventures Acquires Market Place Media For \$28M Cash =09=09 =01=07 Progress Software Acquires Allegrix=20 =09=09=01=07 Mobile App Firm Everypath Buys Sitraka's Mobility Division =09=09 =09=09 =09=09new directors =09=09 =09=09 =01=07 NETdelivery Appoints CDP Sofinov Exec. as New Director =09=09 =01=07 Wall Street Global Appoints CML Executive to Board =09=09 =09=09 =09=09new people =09=09 =09=09 =01=07 Iris Labs CEO Joins Metera Networks as CEO =09=09 =01=07 MobileStar Appoints WorldCom Head as President & CEO =09=09 =01=07 World Wide Packets Adds Architel Systems Co-founder as Pres. =09=09 =09=09 =09=09vc fund news =09=09 =09=09 =01=07 Leader Capital's Next Joint Venture: Solvos Asia =09=09 =09=09 =09=09vw corrections =09=09 =09=09 =01=07 Bodha =09=09 =01=07 Silicon Alley Seed Investors =09=09 =09=09 TOP STORIES... NEW MONEY... BAD NEWS... NEW PRODUCTS... M&A... NEW=20 DIRECTORS... NEW PEOPLE... VC FUND NEWS... VW CORRECTIONS =09=09 =09=09 =09=09top =09=09 =09=09 =09=09Everyone's talking about collaboration-from collaborative =09=09e-commerce to collaborative manufacturing. Everyone's also =09=09trying to don the collaboration mantle as they vie for =09=09attention from customers and investors. =09=09 =09=09Enterprise Outlook will cut through the hype. Learn about =09=09fundamental technologies and issues that must be ironed out =09=09before businesses can work together. See which applications =09=09truly merit being called "collaborative." Discover how the =09=09supply chain takes on new power when companies can talk =09=09machine-to-machine, application-to-application, and =09=09person-to-person. =09=09 =09=09Register and reserve your place=20 today:<http://www.enterpriseoutlook.com/register.asp> =09=09 =09=09 =09=09 =09=09 top stories=20 =09=09? =09=09William Blair Capital Partners Gets \$403M for Fund VII =09=09 mail? top =09=09 =09=09 CHICAGO (VENTUREWIRE) -- William Blair Capital Partners, which makes=20 venture-capital and later-stage investments, including management buyouts a= nd=20 recapitalizations, announced it has closed \$402.86 million for WBCP VII, it= s=20 seventh fund. Managing Director David Chandler said it took the firm nine=20 months to raise the fund, which held its initial closing at the end of last=20 year. WBCP, which raised \$270 million in its previous fund, will continue t= o=20 invest in business and communications technology, healthcare, and business=20 and consumer services companies, said Mr. Chandler. He added that the compa= ny=20 will pursue co-investment opportunities with other venture capital firms.=20 Under the terms of the fund, he said the partners will receive 2% managemen= t=20 fees. Mr. Chandler said that WBCP VII has invested \$10 million each in two=20 companies so far: Clear Communications, a provider of network management=20 software for optical networks, and medical-device company NuVasive. The=20 company intends to invest between \$7 million and \$30 million in 20 to 30=20 companies during the life of the fund. Mr. Chandler commented that overall= ,=20 deal-flow has slowed tremendously because "many people are not happy with=20 valuations." He said WBCP is evaluating many deals it passed on months ago=20 that are returning at a much lower valuations. WBCP has raised over \$1=20 billion of committed capital in seven private equity funds and has invested=20 in over 140 companie

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Dabhol notice: Govt has till Monday to respond Business Standard, 04/06/01

Oregon Regulators: Elec Utils Will Be Able To Buy BPA Pwr Dow Jones Energy Service, 04/05/01

USA: US POWER-Success spells trouble for Calif. energy traders. Reuters English News Service, 04/05/01

UK Kickstarts Wind Pwr Development With 13 Seabed Leases Dow Jones Energy Service, 04/05/01



USA: US POWER-Trust the forecast? Energy trading desks do. Reuters English News Service, 04/05/01

USA: Ecuador to offer Oriente crude contract to Asia. Reuters English News Service, 04/05/01

Greenpeace Readies Action Against Companies Opposing Kyoto Plan Bloomberg, 04/05/01

Dabhol notice: Govt has till Monday to respond Santosh Tiwary NEW DELHI

04/06/2001 Business Standard 2 Copyright (c) Business Standard

With little time left to respond to the arbitration notice served on it by the Dabhol Power Company, the Union finance ministry has asked the law ministry and the Maharashtra government to advise the Centre on the counter-moves to be made. The Enron-promoted company had issued a notice of conciliation and arbitration for the non-payment of the December bill of MSEB of Rs 102 crore, which had the state government as well as the Centre's counter-guarantee. DPC has informed the Centre that it has to respond by 3.00 pm on Monday. Maharashtra government sources said, "Thursday and Friday are holidays on account of Moharrum and Mahavir Jayanti respectively. We will be able to work on the notice only on Saturday. The Centre too will be able to take action only on Monday as Saturday and Sunday are holidays." Finance ministry sources said that the law ministry had earlier informed the government that there was a case for Maharashtra seeking adjustment of "availability penalty" from DPC against the outstanding bills and the Centre was expected to fight it out in the international court of arbitration. They further said that the Centre will respond to the notice well in time. Sources also said that the Centre was contemplating the options through which a long-term solution to the payment wrangle could be achieved. The finance ministry was also firming up on its suggestion of the possibilities of a re-negotiation of the counter-guarantee for a discussion in the Cabinet, they pointed out. The Centre had made it clear earlier that it was interested in finding a long-term solution to the problem by not paying the December bill for which the GoI counter-guarantee was invoked by the DPC, till the penalty issue taken up by the MSEB was settled.

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Oregon Regulators: Elec Utils Will Be Able To Buy BPA Pwr

04/05/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

LOS ANGELES -(Dow Jones)- Oregon regulators Wednesday said that the state's electricity restructuring legislation will not prohibit Enron Corp (ENE) utility Portland General Electric and Scottish Power (SPI) unit PacifiCorp from buying cost-based power from Bonneville Power Association for their residential and small farm customers. BPA, the federal agency that markets electricity from dams on the Columbia and Snake Rivers, is scheduled to provide 259 megawatts of cost-based power to Portland General and 135 MW to PacifiCorp, starting Oct. 1, the effective date of the state's restructuring bill. The bill required the Oregon Public Utilities Commission to determine by May 1 whether certain bill provisions would require the utilities to restructure in such a way that they could not meet BPA eligibility requirements for cost-based power. "We've taken great care to make sure we didn't violate (BPA) standards. Even though BPA's rates are going up, this power will still provide benefits for residential customers," OPUC Chairman Ron Eachus said. -By Jessica Berthold, Dow Jones Newswires; 323-658-3872; jessica.berthold@dowjones.com

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USA: US POWER-Success spells trouble for Calif. energy traders. By C. Bryson Hull

04/05/2001 Reuters English News Service (C) Reuters Limited 2001.

HOUSTON, April 5 (Reuters) - In downtown Houston's booming energy district sit a few companies whose record earnings have made them fat targets for regulators and politicians under pressure to make someone pay for California's power crisis. High energy prices and shrewd trading have earned Houston companies Dynegy Inc. , Reliant Energy Inc. , El Paso Corp. and Enron Corp. huge profits, higher rankings on the Fortune 500 list and happy stockholders. But success has bred contempt and invited political and regulatory fire as California reels from blackouts and rising power rates in a crisis that is engulfing the U.S. West. The power companies' troubles, on both the state and federal level, could get worse if forecasts of a summer electricity shortfall become reality. "I don't think Dynegy, Reliant and Duke and those people are out of the woods yet. The regulatory policy is just not as mature yet," said Jerry Langdon, who served on the Federal Energy Regulatory Commission (FERC) from 1988 to 1993. "While those are unregulated entities, they are being treated like regulated entities." Langdon, a FERC appointee by President Ronald Reagan who is now in the natural gas industry,

points to FERC's recent order to 13 power providers to either justify high power prices in California or refund millions of dollars to state utilities. Dynegy and The Williams Cos. were hardest-hit, and are fighting refund orders of \$45.8 million and \$29.6 million, respectively. STATE TROUBLES FOR GENERATORS And that is just at the federal level. Democratic Gov. Gray Davis of California has already branded the power providers as "out-of-state profiteers," and other politicians and regulators are investigating anti-competitive practices and are proposing various sanctions. The latest volley came Wednesday, when a group of California state legislators proposed a windfall profits tax against power generators. Under the bill, California would set a limit on the amount of profit generators could make and would take any money earned above that level. The bill's sponsors took particular aim right at Houston's generators. "They have been gouging us, and it is time we gouged them. We're sick of paying these outrageous bills to those Texans," California Assemblyman Dion Aroner said. The generators are adamant they sold their power properly, at market prices they can justify. "We'll continue to justify our operations and we'll take the uproar for what it is. Will it get worse? It's hard to speculate," Reliant spokesman Richard Wheatley said. FEDERAL REGULATORY ENVIRONS FAVORABLE The saving grace for the generators may be the Bush Administration's clear hands-off approach to the California crisis, which it has declared a state issue. Bush and FERC Chairman Curtis Hebert both opposes price caps. And power producers could soon have two familiar and friendly faces on the FERC. Bush last week appointed former Texas Public Utility Commission chair Pat Wood III and Pennsylvania Public Utility Commissioner Nora Mead Brownell, both of whom oversaw their states' power deregulation efforts. "With the new appointments to FERC, I think it's pretty clear they are not going to interfere with California," said John Herrington, a former energy secretary in the Reagan administration who lives in California. But if fears of a summer power shortfall come true in California and west as expected, the Bush administration's stance could change, said former FERC chairman and Clinton administration deputy Energy Secretary Charles Curtis. "Those concerns will find a public expression, and they will likely be calls for regulatory intervention," Curtis

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Message 1100 of 1299

#### Sher Shops Alternative Edison Bailout Plan

|            |                                                                                    |
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| File       | dasovich-j/all_documents/28587.                                                    |

Folks: Please see highlighted sections. Anyone seen Byron's plan? Know where it's headed, etc.?

Best, Jeff \*\*\*\*\* Power purchase bills exceed \$7.5 billion  
Published Tuesday, July 10, 2001, in the San Jose Mercury News BY MARK GLADSTONE, NOAM LEVEY AND DION NISSENBAUM

Mercury News Sacramento Bureau

SACRAMENTO -- Six months after jumping into the electricity business, the Davis administration on Monday provided the first detailed glimpse of California's daily power purchases, showing more than \$5 billion in payments, much of it to government-owned utilities and private companies that state officials have branded as price gougers. The state spent an additional \$2.5 billion on a variety of contracts and other electricity services designed to stabilize the volatile energy markets, according to documents that the state agreed to release last week amid a legal dispute over public access to the data. In roughly the first five months of the year, the state shelled out \$1.2 billion to Atlanta-based Mirant, the most any company was paid for electricity, followed by \$1 billion to Powerex, the marketing arm of BC Hydro in British Columbia. It also paid \$331 million to the Los Angeles Department of Water and Power. The documents raise questions about some of the common assumptions that have arisen around the electricity crisis. For instance, almost 40 percent of the state's purchases have come from government-run power generators in California and elsewhere, but not Texas; some of the biggest suppliers are from the Northwest. Gov. Gray Davis, who has ambitions to run for the White House, has put much of the blame for the soaring costs of power on energy companies based in President Bush's home state. The figures are tucked inside 1,770 of pages of invoices that Davis has resisted divulging, saying disclosure would encourage suppliers to charge more. The state, which last month released information on its long-term electricity contracts worth \$43 billion, agreed Thursday to release the first quarter details. Short on explanation The figures were disclosed late Monday by the

California Department of Water Resources, which buys power for the state's financially strapped major utilities, and seem to buttress the administration's contention that the price of power is gradually dropping but offer little or no explanation for what prompted the decrease. In January, for instance, the average price for power on the spot market was \$321 a megawatt hour. It peaked in April at \$332 and dropped to \$271 in May. One megawatt powers about 750 homes. Davis spokesman Steve Maviglio said the price data supports the governor's assertions that California has been gouged. "The bad guys are clearly the out-of-state generators," Maviglio said. "There has been a significant shift of money out of California." But the documents fail to shed much light on whether, as the administration contends, the price drop was due to long-term power contracts negotiated by the state earlier this year. Critics contend that the Davis administration panicked and rushed into deals that commit the state to pay high prices for many years. Used for support Republican officials used the price information to bolster their attacks against Davis, a Democrat, for signing long-term contracts with power generators even as the price of power on the spot market was coming down, partly because of the declining price of natural gas used to fuel many plants. "It's more clear than ever that the long-term contracts are a bad deal," said Assemblyman Tony Strickland, R-Camarillo. "The governor's really hurt the ratepayers for the next five or 10 years." The newly released bills highlight the volatility of California's energy market, where the price per megawatt hour ranged from \$70 to \$1,000. On any given day, the records show, the prices from seller to seller varied widely, with some of the highest prices being charged by public utilities and companies outside Texas. On one day in February, for example, San Diego-based Sempra Energy was charging \$165 per megawatt hour, the Eugene Water and Electric Board was charging nearly \$500 and Duke Energy, a North Carolina company, was charging up to \$575. The state's daily spending peaked May 10 at \$102.4 million for all power, including the spot market and contracted power. The state began buying power in mid-January on behalf of the state's major utilities, which were unable to borrow money to buy power after amassing enormous debts for electricity. San Jose-based Calpine Corp., which is building several new power plants around California including one in South San Jose, did only \$29 million worth of business with the state in the first five months of the year, according to the figures. The state began buying power in mid-January when Pacific Gas & Electric Co. and Southern California Edison Co. were on the ropes financially. PG&E later went into bankruptcy. On Monday, state lawmakers took another shot at trying to cobble together a plan to rescue financially ailing Edison. While most concede that a rescue plan Davis worked out with Edison will not win the necessary support in the Legislature, lawmakers have created several working groups to come up with alternatives. Compromise plan On Monday, state Sen. Byron Sher, D-Redwood City, unveiled the latest compromise proposal that seeks to protect average ratepayers and small businesses from further rate increases and forces everyone else to help finance the Edison bailout. The "shared pain" proposal would force power producers, owed about \$1 billion, to take a 30 percent "haircut" and agree to forgive about \$300 million in Edison debts. Edison would be asked to swallow \$1.2 billion -- about a third of its debt. And big users would be asked to pay off the remaining \$2 billion in debts, possibly by paying higher prices for power. In exchange, large companies would be given the opportunity to buy power on the open market, a system that would allow many of them to sign cheap energy deals. Sher presented the proposal to Senate Democrats Monday afternoon, but it remains unclear how much support the framework will receive in the Legislature.

Contact Mark Gladstone at [mgladstone@sjmercury.com](mailto:mgladstone@sjmercury.com) or (916) 325-4314.

Message 1101 of 1299

### VentureWire, Thursday, May 31, 2001

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| Recipients | [jdasovic@enron.com]            |
| File       | dasovich-j/all_documents/13235. |

=09=09?=09 ?=09VentureWire =09Thursday, May 31, 2001=09=09? ?=09CONTENTS | COMPANIES | INVESTORS |  
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=01=07 Whitney & Co. to Spin Off International Offices =09=09 =01=07 Rho Ventures Closes Fund IV with \$435 Million  
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FEATURES=20 =09=09INVESTOR STRATEGY =09=09Millennium to Focus on New Investments =09=09By Amanda

Briggs After completing two new investments this year, Millennium Technology Ventures plans to spend more time over the next couple of quarters focusing on new deals. more>> UPCOMING EVENTS

July 31: New York City Financial Services Outlook Over \$750 million has been invested in private equity deals in the financial services sector (source: VentureWire). In this age of liquidation preferences and retroactive repricings, that's a very strong performance. Register for Financial Services Outlook before June 19 and SAVE \$100 Now more relevant than ever. RED HERRING. Since its launch in 1993, RED HERRING has become the favored source of insider information for entrepreneurs, venture capitalists, investment bankers and senior executives redefining the new technology-driven world of business. From MEMs to biotech to the top 100 companies that still matter, RED HERRING gives you a unique perspective you won't find in conventional business publications. Get a FREE TRIAL ISSUE of RED HERRING today! [http://www.redherring.com/service/circ/subs\\_ZP.html](http://www.redherring.com/service/circ/subs_ZP.html)

Biotech Firm Arexis Raises \$4.5 Million First Round

Speed Greetings Raises \$3M Series A

Tools for Health Secures \$1.7 Million in First Round

Vaccine Firm Remedyne Closes \$3.2M First Round

Antenna Tech Firm Fractus Gets \$4.3M Commitment

Biotech Firm OmniSonics Medical Gets \$21 Million Series B

Reservations Firm Xtime Gets Additional \$2.6M in Series B

French Therapy Firm Neurotech Clinches \$30M in Third Round

Atherotech Closes \$4.2M in Series C

Spirian Technologies Gets Funding from Silver Young Partners

Toppan Printing Makes \$5M Strategic Investment in E Ink

bad news

PaperExchange Shuts Down European Operations

new deals

Softbank and Scientia Health Group Form Scientia Japan

Nordic VCs Equitec Partners and IT Provider Form Alliance

Incyte and Iconix to Collaborate on Chemogenomic Product

new products

Managed Services Provider Cervalis Launches

Data Downlink Changes Name to Alacra

Bertelsmann Buys Ailing Digital Music Storage Firm MyPlay

IT Factory Plans More Acquisitions After NotesHouse Deal

TMP Worldwide Acquires Online Career Resource FlipDog.com

UsherPro, Season Ticket Networks Merge to Form New Company

BuildOnline Acquires iScraper Germany in Cash and Stock Deal

Metavante Acquires Online Bill Management Firm CyberBills

Outtask Acquires Upright Software, Terms Not Disclosed

CableNet Acquires Assets of B2B Commerce Firm wireConnect

Catenas Acquires Minority Stake in Endero

new directors

American Fiber Systems Adds John F. Malon to Board

Andes Networks Appoints Dataquest Founder to Board

Supply-Chain Software Maker Mezzia Appoints Director

Wireless Firm Commtag Appoints Phone.com Exec. to Board

Biz Tech Management Firm Enamics Appoints New Board Member

new people

Biotech Firm Enanta Names Spiros Jamas New President & CEO

Data & Analysis Firm Polaxis Names David Overskei as New CEO

Ardent Appoints Former Glaxo Wellcome Exec as Pres, CEO

vc fund news

MMC Capital Closes Technology Fund II at \$250M

vc personnel

Royal Bank Capital Partners Adds Two to Energy Fund Team

TOP STORIES... NEW MONEY... BAD NEWS... NEW DEALS... NEW PRODUCTS... M&A... NEW DIRECTORS... NEW PEOPLE... VC FUND NEWS... VC PERSONNEL

George Davis has led the evolution of Aether Systems' technology, which now powers mobile and wireless data services for Charles Schwab, National Discount Brokers, Allegiance Health Care, the United States Postal Service, Office Depot, and Nissan (among many others). Hear what he has to say about the latest market trends, technological advances, and investment opportunities in wireless at Mobile Outlook, June 5 & 6. Register today: <http://www.mobile2001.net/register.asp>

top stories?

Insight Capital Closes Fourth Fund With \$740 Million

mail? top NEW YORK (VENTUREWIRE) -- Insight Capital Partners, a venture capital firm focused on software companies, said it closed its fourth venture capital fund, Insight Capital Partners IV, with more than \$740 million. Managing director Scott Maxwell said the fund, originally targeted between \$700 million and \$750 million when Insight began fundraising last June, will make typical investments of \$20 million in expansion-stage enterprise software companies over the next three years, with about 15% of the investments made internationally. According to Mr. Maxwell between 30% and 40% of the fund's

capital came from new limited partners with the rest coming from returning LPs. The firm has no plans to deviate from its original model. "Software is the space we're founded on and the space that's thriving," said Mr. Maxwell. "We pick the absolute best ten or so software companies each year that will bring in the best revenues and spend an enormous amount of time on them." Insight IV has already invested in Enigma, ConnectCapital Holdings, Dorado Software, and Xchange. The firm's other managing directors include Jeff Horing, Jerry Murdock, Bill Doyle, Peter Sobiloff, and Deven Parekh. Insight Capital Partners closed its first \$15 million fund in June 1996, an \$81 million fund in July 1997, and its third fund at \$307 million in March 1999. Insight has approximately \$1.5 billion under management. <http://www.insightpartners.com> Whitney & Co. to Spin Off International Offices mail? top STAMFORD, Conn. (VENTUREWIRE) -- Whitney & Co., a Stamford, Conn.-based venture capital firm, will spin off its offices in Tokyo, Hong Kong, and London, VentureWire has learned. "They're closing all international offices," said a source close to the firm. The source said Whitney will contract with individuals in each office to oversee the existing portfolio companies. Earlier this month, Whitney announced closing its fifth fund at \$1.1 billion, short of its \$2 billion target. At the time, the firm said it would significantly reduce overseas personnel as well as lay off an undisclosed number of employees at its headquarter

Message 1102 of 1299

## RE: IEP Comments on EOB filing at FERC re: Price Caps

|            |                                                                                                                      |
|------------|----------------------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                              |
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| File       | dasovich-j/all_documents/1435.                                                                                       |

FYI. In case you're interested. ----- Forwarded by Jeff Dasovich/SFO/EES on 09/14/2000 03:10 PM

Andy Brown <ABB@eslawfirm.com> on 09/14/2000 12:14:02 PM To: "Steven Kelly" <steven@iepa.com>, William Hall <wfhall2@duke-energy.com>, Ward Scobee <wscobee@caithnessenergy.com>, Tony Wetzel <twetzel@thermoecotek.com>, Tom Heller <hellertj@apci.com>, Ted Cortopassi <TCortopassi@ogden-energy.com>, Steve Ponder <steve\_ponder@fpl.com>, Steve Iliff <siliff@riobravo-gm.com>, Roger Pelote <rpelote@energy.twc.com>, Robert Frees <freesrj@apci.com>, Pete Levitt <Pete@calwind.com>, Paula Soos <paula\_soos@ogden-energy.com>, Milton Schultz <bfpjv@c-zone.net>, Marty McFadden <marty\_mcfadden@ogden-energy.com>, Ken Hoffman <khoffman@caithnessenergy.com>, Jonathan Weisgall <jweisgall@aol.com>, Joe Ronan <joe@calpine.com>, Joe Greco <joe.greco@uaecorp.com>, Jeff Dasovich <jdasovic@enron.com>, Jack Pigott <jackp@calpine.com>, Hap Boyd <rboyd@enron.com>, Frank Misseldine <fmisseldine@caithnessenergy.com>, Ed Tomeo <ed.tomeo@uaecorp.com>, Ed Maddox <emaddox@seawestwindpower.com>, Duane Nelsen <dnelsen@gwfpower.com>, Doug Levitt <SDL@calwind.com>, Dean Gosselin <dean\_gosselin@fpl.com>, Curt Hatton <curt.hatton@gen.pge.com>, Cody Carter <cody.carter@williams.com>, Carolyn Baker <cabaker@duke-energy.com>, Bob Escalante <rescalante@riobravo-gm.com>, Bill Woods <billw@calpine.com>, Bill Carlson <william\_carlson@wastemanagement.com>, Nam Nguyen <nam.nguyen@powersrc.com>, Trond Aschehoug <taschehoug@thermoecotek.com>, Susan J Mara <Susan\_J\_Mara@enron.com>, Scott Noll <snoll@thermoecotek.com>, Rob Lamkin <rlamkin@seiworldwide.com>, Randy Hickok <rhickok@duke-energy.com>, Lynn Lednický <lale@dynegy.com>, Kent Fickett <kfickett@usgen.com>, Jim Willey <elliotts@earthlink.net>, Greg Blue <gtbl@dynegy.com>, Frank DeRosa <frank.derosa@gen.pge.com>, Eileen Koch <eileenk@calpine.com>, Dave Parquet <dparque@ect.enron.com>, Curtis Kebler <curtis\_i\_kebler@reliantenergy.com> cc: Jan Smutny-Jones <smutny@iepa.com>, Katie Kaplan <kaplan@iepa.com>, Andy Brown <ABB@eslawfirm.com>, Lois Rose <Loisr@iepa.com>, Douglas Kerner <DKK@eslawfirm.com> Subject: RE: IEP Comments on EOB filing at FERC re: Price Caps

All: Attached in RTF format is the current draft of the IEP intervention & protest in opposition to the EOB complaint at FERC.? Also below are the details for the conference call on Friday (at 10 am) to discuss this.? The filing will be made on



Monday the 18th.? We're looking for comments on angle/spin, tone, argument, etc.? There are still some holes that I will be filling in, most likely after the call.? Questions/comments can be sent to me and should CC Steven Kelly.? The cut-off for comments with be 10 am on Sunday, Sept. 17.? ABB ?

Andrew B. Brown Ellison, Schneider & Harris, LLP 2015 H Street Sacramento, CA? 95814 Phone: (916) 447-2166 Fax: (916) 447-3512 mailto:abb@eslawfirm.com

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-----Original Message-----

From: Steven Kelly [mailto:steven@iepa.com] Sent: Tuesday, September 12, 2000 8:53 AM To: William Hall; Ward Scobee; Tony Wetzel; Tom Heller; Ted Cortopassi; Steve Ponder; Steve Iliff; Roger Pelote; Robert Frees; Pete Levitt; Paula Soos; Milton Schultz; Marty McFadden; Ken Hoffman; Jonathan Weisgall; Joe Ronan; Joe Greco; Jeff Dasovich; Jack Pigott; Hap Boyd; Frank Misseldine; Ed Tomeo; Ed Maddox; Duane Nelsen; Doug Levitt; Dean Gosselin; Curt Hatton; Cody Carter; Carolyn Baker; Bob Escalante; Bill Woods; Bill Carlson; Nam Nguyen; Trond Aschehoug; Susan J Mara; Scott Noll; Rob Lamkin; Randy Hickok; Lynn Lednick; Kent Fickett; Jim Willey; Greg Blue; Frank DeRosa; Eileen Koch; Dave Parquet; Curtis Kebler Cc: Jan Smutny-Jones; Katie Kaplan; Andy Brown; Lois Rose Subject: IEP Comments on EOB filing at FERC re: Price Caps

In response to the email distributed last Friday regarding IEP's intervention in the EOB and CALPX price cap filings at FERC, IEP is proceeding to draft comments on the EOB filing.? Much of the filing will build off arguments used in the San Diego pleading as well as comments IEP made to the Congressional Subcommittee meetings in San Diego.? In addition, IEP has intervened for "party status" in the CALPX proceeding on price caps.? ? We plan to distribute comments on Thursday, convene a conference call Friday, Sept. 15 at 10:00 a.m. (PST). ? The Call-In Number is??? ??? ??? 800/205-3434 The Participant Code is????????? 111756 ? IEP is still interested in receiving Task Force commitments to assist in restructuring/transmission related matters.? While a number of companies have indicated verbally their interest in the EOB filing as well as others, we have yet to receive a written confirmation.? If you are interested, please respond to the Friday email soliciting funds.? Thanks. - 000918\_IEP\_Mo\_Interv\_EL00-104.doc

Message 1103 of 1299

#### Enron Mentions - 03/24/01 - 03/25/01

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| Sender     | ann.schmidt@enron.com           |
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| File       | dasovich-j/all_documents/10422. |

Coal Scores With Wager on Bush; Belief That Mineral Is Part of 'Balanced' Energy Policy Lifts Industry Outlook The Washington Post, 03/25/01

Energy trading floors represent ground zero in electricity crisis Associated Press Newswires, 03/25/01

India: Centre's interest liability on dues to Enron starts Business Line (The Hindu), 03/25/01

Victoria Station's pounds 250m facelift The Independent - London, 03/25/01

Standoff may delay renegotiation on Enron project The Times of India, 03/25/01

Deal to sell PGE may fall through Associated Press Newswires, 03/24/01

Govt clears FDI proposals worth Rs 683 crore The Economic Times, 03/24/01

Nigeria blames US firm for delay in power project: report Agence France-Presse, 03/24/01

Enron deal with Sierra likely a bust / Buyer of Portland General having trouble raising cash Houston Chronicle, 03/24/01

Market rebounds, but not stability Houston Chronicle, 03/24/01

Midwest to face high gas prices again / Supply of anti-smog component already one-quarter below last year Houston Chronicle, 03/24/01

COMPANY NEWS ENRON SALE OF UNIT TO SIERRA PACIFIC IS DOUBTED The New York Times, 03/24/01

Operators of California Power Grid Testify of System Abuses KRTBN Knight-Ridder Tribune Business News: The Orange County Register - California, 03/24/01

Santa Clara Plans for More Power / Generators to be built on existing plant sites The San Francisco Chronicle, 03/24/01

Calif. Crisis, M&A, Gas To Dominate Talk At Howard Weil Dow Jones News Service, 03/23/01

A Section Coal Scores With Wager on Bush; Belief That Mineral Is Part of 'Balanced' Energy Policy Lifts Industry Outlook Dan Morgan Washington Post Staff Writer

03/25/2001 The Washington Post FINAL A05 Copyright 2001, The Washington Post Co. All Rights Reserved

Few businesses placed as big a bet on Republicans in the last election as the coal industry, which gave 88 cents out of every dollar in campaign contributions to GOP candidates or organizations. Two months into the Bush administration, that wager has begun to pay off. President Bush has jettisoned a campaign promise to require coal-burning power plants to reduce emissions of carbon dioxide, after heeding industry warnings that such action could "kill coal." Now, industry officials who worked for this week's Environmental Protection Agency decision to revoke a Clinton administration crackdown on arsenic in drinking water are taking aim at more than two dozen pending rules regulating substances from coal mine dust and ozone to diesel particulates. In the GOP-controlled Congress, lobbyists for coal companies, railroads and electric utilities are mobilizing behind tax credits, subsidies and regulatory exemptions for coal-burning utilities. The emergence of coal from the political shadows is due in part to Bush's conviction that the mineral, which is used to generate half the nation's electricity, is crucial to preventing the spread of the California energy crisis. Coal "didn't have a very friendly forum in this town" during the Clinton administration, an environmental official said. The Clinton administration favored rigorous enforcement of clean air controls on emissions by coal-burning utilities and encouraged expansion of power plants using cleaner natural gas. The Bush administration, in a tilt back the other way, contends that an expansion of coal-generated power must be part of the "balanced" energy policy needed to provide ample electricity at reasonable prices. But coal's new strength also rests on the enhanced influence, in the aftermath of last year's election, of a network of interests, such as electric utilities and railroads, that strongly oppose lessening the country's dependence on coal. In late February, senior executives of coal, utility and railroad companies descended on Washington under the auspices of an informal group, the Coal-Based Generators, to lobby for legislation providing tax credits and other subsidies for utilities using experimental "clean coal" technologies. Among them were Irl Engelhardt, chairman of the Peabody Group, the nation's largest coal enterprise, whose holding company contributed \$250,000 to the Republican National Committee in July. Engelhardt himself served as an energy adviser to the Bush-Cheney transition team. Meanwhile, coal, rail and power companies such as Peabody Holdings Inc., Burlington Northern/Santa Fe, and Southern Co., provided funding last year to start Americans for Balanced Energy Choices, to develop grass-roots support for coal. "The market realities have changed, and the political dynamics have changed in Washington," said the group's president, Steve Miller, a Democrat who was Bill Clinton's campaign organizational chairman in Kentucky in 1992. "People have no idea of the environmental improvement the coal industry has made." To get that message across, Americans for Balanced Energy Choices has set up a Web site and prepared a media advertising budget of several million dollars to finance what Miller says will be "a longtime conversation with opinion leaders across the country." The purpose will be to counter the influence of environmental organizations. Separately, the Coalition for Affordable and Reliable Energy, made up largely of trade associations, has been set up to lobby in Washington and has begun running advertisements in Capitol Hill publications. Electric utilities and their executives and employees last year gave \$18.4 million to candidates and parties, of which \$12.4 million went to Republicans, according to the Center for Responsive Politics, a campaign research group. Southern Co., one of the nation's largest coal-burning power producers, opposes the Kyoto protocol, under which signatory nations, including the United States, agreed to reduce greenhouse gas emissions to 1990 levels. The Senate has never ratified the



agreement. Southern Co. is represented in Washington by the lobbying firm headed by former Republican National Committee chairman Haley Barbour, a close associate of Senate Majority Leader Trent Lott (R-Miss.). In the House, Rep. Joe Barton (R-Tex.), chairman of the subcommittee with jurisdiction over clean air and energy, has vowed that legislation containing such restrictions will "never" pass through his panel. Until Barton's northeast Texas district was reconfigured in 1994, it contained strip mines and coal-burning power plants belonging to Texas Utilities Co., the third largest electricity producer in the United States. Barton has continued to receive funds from its political action committee. The coal industry itself has made use of its own extensive network of connections. The Interior Department's newly appointed deputy secretary is J. Steven Griles, who has lobbied for coal and gas companies ranging from Pittston Coal Co. to Dominion Resources. The Bush-Cheney transition team was sprinkled with industry officials, including Engelhardt and Steven Chancellor, president and chief executive of Indiana-based Black Beauty Coal Co. Chancellor and his company were major Republican contributors, and he hosted a fundraiser in August at his home attended by former president George Bush and vice president Dan Quayle, according to the Indianapolis Star. West Virginia coal executive James "Buck" Harless raised more than \$100,000 for President Bush and chipped in \$100,000 to the Bush-Cheney Inaugural Fund, as did Peabody Holding Co. and Southern Co. The coal industry may enjoy even better connections in Congress. Along with Sen. Robert C. Byrd (D-W.Va.), Sen. Mitch McConnell (R-Ky.) has advanced legislation providing billions of dollars in tax credits for utilities, and indirectly benefiting contributors to GOP campaign committees he has headed.

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*Message 1104 of 1299***Enron Mentions**

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Enron Unit Must Honor Pact With California Schools (Update1) Bloomberg, 04/11/01

Judge orders Enron to deliver electricity to universities Associated Press Newswires, 04/11/01

WSJ.COM: Rumors? Firms Ponder How To Announce Layoffs Dow Jones News Service, 04/11/01

U.K. Wind Power Gears Up For The Great Leap Offshore Dow Jones Energy Service, 04/11/01

INDIA: Enron names Australian conciliator for India project. Reuters English News Service, 04/11/01

Chile's Enersis Weighs Building Electric Plants In Brazil Dow Jones International News, 04/11/01

U.A.E.'s Dolphin May Supply Natural Gas to India, Agency Says Bloomberg, 04/11/01

PG&E's Peter Darbee (Transcript of Interview) Bloomberg, 04/11/01

Enron Unit Must Honor Pact With California Schools (Update1) 2001-04-11 16:30 (New York)

Enron Unit Must Honor Pact With California Schools (Update1)

(Adds comment from judge, details of hearing starting in third paragraph.)

San Francisco, April 11 (Bloomberg) -- An Enron Corp. unit must provide electricity to California universities under an existing contract, U.S. District Judge Phyllis J. Hamilton ordered. Enron Energy Services Inc. had agreed to provide energy and related services to the University of California and California State University, said Douglas R. Young, a lawyer for the universities. The company cut off the schools on Feb. 1, and transferred the accounts to PG&E Corp. and Edison International utilities, Young said at a hearing today in San Francisco. The schools say they want to keep the contract with Enron, because it is more reliable than the utilities. Both utilities are burdened with billions in power-buying debt, and Pacific Gas & Electric Co. has filed for bankruptcy. The utilities' customers have been subjected to rolling blackouts amid power shortages in the state. "Enron did not have the right to return the university systems to the utilities," Hamilton said. She granted the universities' preliminary injunction, forcing Enron to honor the contract for now. Enron and the universities announced the four-year contract in 1998, valuing the agreement at \$300 million to \$500 million in electricity sales. Cal

State would save \$1.5 million a year through the contract, they said, and U.C. would save \$2.4 million.

#### The Switch

Enron lawyer A. William Urquhart said the company didn't cancel the contract; it just switched the source of supply to the utilities. Enron said it will file an immediate appeal with the 9th U.S. Circuit Court of Appeal in San Francisco. During the hearing, Urquhart said Enron had a "responsibility to its shareholders" to make financially prudent decisions. At most, the universities have suffered some economic damage, which would not entitle them to enforce the contract, Urquhart said. California Attorney General Bill Lockyer, who filed a "friend of the court" brief in the case, said that Enron's duty to its shareholders "seems to be to rip off California consumers." Enron is saying "we don't want to sell power at the prices we promised," Lockyer said. "We continue to believe that we're acting in the best interests of our clients," Enron Energy Services spokeswoman Peggy Mahoney said after the hearing.

#### Lawsuit

The universities sued Enron in March, seeking to enforce the four-year contract. The schools also said in court documents that buying from utilities would render obsolete new electricity meters that help them conserve. The universities have installed meters to collect data on consumption, helping them reduce power bills. Those \$1,500 meters can't be used on the "bundled" systems like the utilities' and would have to be removed, said Charles McFadden, spokesman for the University of California. Enron says that it has offered to continue to provide all campuses with the metering, billing and related services under the agreement. Judge Hamilton ordered the universities to post a \$1 million bond. The routine order assures Enron's losses will be paid, if the energy company prevails in the case.

Judge orders Enron to deliver electricity to universities By DAVID KRAVETS Associated Press Writer

04/11/2001 Associated Press Newswires Copyright 2001. The Associated Press. All Rights Reserved.

SAN FRANCISCO (AP) - Saying that Enron Energy Systems Inc. may be in breach of contract, a federal judge Wednesday ordered the Houston company to abide by its agreement to sell cheap power to the state's public universities. Enron was attempting to get out of delivering power for the final year of a four-year deal with the California State University and University of California systems. Enron, which buys power from producers and sells it on the market, said the contract would cost the energy concern \$12 million a month because of skyrocketing wholesale power prices. Enron said the state should free Enron from its obligation and taxpayers should pick up the tab. "It's our economic interest to provide a service with the least amount of dollars we can provide it for," Enron attorney A. William Urquhart said. He later described the case as being "all about money. It's all about money." Enron said it would file an emergency appeal to the 9th U.S. Circuit Court of Appeals in San Francisco to overturn U.S. District Judge Phyllis Hamilton's ruling in the suit brought by the state's two university systems. Appearing in federal court, state Attorney General Bill Lockyer argued that Enron wants out of the contract so it can engage in a "marketing game" with the universities' promised power and sell it on the open market for 10 times more than what the electricity cost Enron. He said lawmakers may have "left the keys in the car" when they approved California's failed energy deregulation scheme that has prompted the energy crisis, "But it is still theft to steal the car." The judge issued a temporary injunction against Enron, forcing it to continue providing service as the suit brought by the universities proceeds. When the judge issued the order, she also said there is a likelihood Enron will lose the suit. "I am persuaded, in the end, there is a very strong likelihood of success on the breach of contract claim," the judge said. UC's annual electric bill is about \$87 million and its natural gas bill is about \$26 million. CSU annually pays about \$40 million for electricity and \$20 million for natural gas. The case is UC Regents vs. Enron Energy Systems Inc., 01-1006.

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WSJ.COM: Rumors? Firms Ponder How To Announce Layoffs By Stephanie Miles

04/11/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

WSJ.com

NEW YORK -(Dow Jones)- When British technology publisher Future Network PLC announced a broad restructuring that would result in 350 layoffs, few employees were surprised. For a week, workers had been glued to an industry-gossip site. "Everybody was waiting, expecting to be fired," says Scott Laine, who was laid off from a job in sales for Revolution magazine, published by Future's U.S. subsidiary Imagine Media. Managers were watching the message boards, too. So,

when Future announced the restructuring in February, it sent a short companywide e-mail with the press release attached. The company also sent out two more detailed letters, from Future's chairman and chief executive respectively, explaining in more detail the circumstances surrounding the layoffs. But instead of beaming them electronically, the U.S. unit printed out color paper copies and placed them on employees' desks, in an effort to keep the note from being quickly posted online or cleanly photocopied. "Why make it easy?" says Nancy O'Neill, then president

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*Message 1105 of 1299***Enron Mentions**

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The State Lockyer Fires Earthy Attack at Energy Exec Los Angeles Times, 05/23/01

World Watch The Wall Street Journal, 05/23/01

Consumer rights cited in petition with Texas PUC Houston Chronicle, 05/23/01

Enron to meet with Indian officials Houston Chronicle, 05/23/01

New Cynet president to administer change Houston Chronicle, 05/23/01

Enron, Indian goverment talks on power dispute put off Associated Press Newswires, 05/23/01

Enron says Indian panel calls off power contract meeting, gives no explanation AFX News, 05/23/01

Enron, Maharashtra Power Dispute Negotiator Resigns (Update4) Bloomberg, 05/23/01

INDIA: Head of India state panel for Enron talks quits. Reuters English News Service, 05/23/01

India Enron Negotiator Offers To Resign After Criticism Dow Jones International News, 05/23/01

India Dabhol Pwr Co: Mtg With State Govt Panel Canceled Dow Jones Energy Service, 05/23/01

INDIA PRESS: Dabhol Row To Cause INR30B Loss To Lenders Dow Jones International News, 05/23/01

INDIAN CHIEF MINISTER URGES PANEL CHAIRMAN TO WITHDRAW RESIGNATION Asia Pulse, 05/23/01

India: MSEB to pay Dabhol bill 'under protest' Business Line (The Hindu), 05/23/01

US ENRON CORP PULLS OUT OF QATAR-UAE GAS PROJECT Asia Pulse, 05/23/01

Maharashtra may terminate DPC's services The Economic Times, 05/23/01

ASIA-PACIFIC: Enron may seek damages NEWS DIGEST Financial Times; May 23, 2001

Enron goes for valuation of businesses in India Business Standard, 05/23/01

SEC Task Force Says Investors Need More 'Soft' Data Dow Jones Business News, 05/22/01

BANDWIDTH BEAT: Video On Demand II May Have Happy Ending Dow Jones Energy Service, 05/22/01

USA: FERC sets Thursday conference on Calif natgas problems. Reuters English News Service, 05/22/01

Enron Hires Consultants to Value Business in India, Paper Says Bloomberg, 05/22/01

California; Metro Desk The State Lockyer Fires Earthy Attack at Energy Exec JENIFER WARREN TIMES STAFF WRITER

05/23/2001 Los Angeles Times Home Edition B-7 Copyright 2001 / The Times Mirror Company

SACRAMENTO -- In a dramatic escalation of energy crisis rhetoric, California Atty. Gen. Bill Lockyer this week suggested the chairman of a Houston-based power company should be locked in a prison cell with an amorous, tattooed inmate named Spike. Lockyer, who is investigating whether energy firms have manipulated prices on the wholesale electricity market, made the comment in an interview with the Wall Street Journal that appeared Tuesday. "I would love to personally escort [Enron Corp. Chairman Kenneth] Lay to an 8-by-10 cell that he could share with a tattooed dude who says, 'Hi my name is Spike, honey,' " Lockyer said. Enron spokesman Mark Palmer called the comment "counterproductive rhetoric" that "does not merit a response." But other industry representatives denounced the remark as "outrageous," especially because neither Lockyer's office nor any investigative panel has filed charges against Enron or other companies. "You'd expect that the state's chief legal counsel would file charges first and make public statements second," said Gary Ackerman of the Western Power Trading Forum, an association of energy producers and traders. "We're very disappointed with his choice of words, which don't exactly fit the profile of his office." In an interview Tuesday, Lockyer said he decided to "ratchet up" the commentary to "put [energy companies] on notice" that "we are not afraid of them and have the will to prosecute." "What I'm trying to do is let these economic buccaneers understand that if we catch them, they're going to be prosecuted," Lockyer said. "Just because they're multimillionaires and run big corporations, it doesn't provide them with immunity." The attorney general is investigating whether power company officials tried to maximize profits through illegal manipulation of prices on the wholesale energy market. Several panels, including a state Senate committee and the California Public Utilities Commission, are conducting similar probes. On Tuesday, Lockyer announced that three power companies have agreed to turn over documents subpoenaed months ago by his investigators. The attorney general went to court to obtain the documents after the companies failed to meet a March 19 deadline to hand them over. Lockyer said the forthcoming documents would help his office as it sifts through mountains of evidence in search of possible violations of antitrust or unfair business practice laws. "Evidence is accumulating that certainly infers illegal activity," Lockyer said. "But we need to make sure it's compelling and clear enough that you can convince a jury." Lockyer said he singled out Enron's chairman because the Houston company is the world's largest energy trader. At least one observer found Lockyer's comments refreshingly candid. Harry Snyder, a senior advocate of Consumers Union, said, "Let Lockyer be Lockyer." \* Times staff writer Dan Morain contributed to this story.

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International World Watch Compiled by David I. Oyama

05/23/2001 The Wall Street Journal A21 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Enron Unit Threatened With India Fine An Indian state utility is planning to impose a second penalty of four billion rupees (\$85 million) on U.S. energy company Enron's local unit, barely a week after Enron took its first step to pull out of the embattled power project. A Maharashtra State Electricity Board official said the fine on Dabhol Power would be for not meeting capacity targets within a stipulated period. Dabhol Power officials declined to comment. The MSEB earlier this year imposed a similar penalty on Dabhol, which it hasn't paid, saying its plant couldn't be ramped up to full capacity within three hours from a cold start.

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May 23, 2001, 4:38AM Consumer rights cited in petition with Texas PUC By LAURA GOLDBERG Copyright 2001 Houston Chronicle Residential consumers switching power companies under a pilot deregulation program aren't being properly informed of their rights, four consumer groups said Tuesday.

At issue is a document called "Your Rights as a Customer" that electric providers are required by the state Public Utility Commission to give consumers signing up to switch companies. The document must include information on a variety of topics, including filing complaints against providers, protection against unauthorized service switches, meter testing and privacy rights. Consumers Union, Texas Legal Services Center, Texas Ratepayers' Organization to Save Energy and the AARP Capital City Task Force for Deregulation of Electricity filed a petition Tuesday with the PUC. In it, they asked the PUC to require electric providers to fix their documents, to take any other action needed to clear up consumer confusion that may be occurring, and to develop a standard document format for providers to use. They also ask that the PUC's education campaign better inform consumers of their rights. Starting Jan. 1, when the Texas electricity market deregulates, all Texas consumers will be able to choose power providers. Before that, a limited number of consumers will be able to get power from new providers under the state's pilot program starting in July. Nearly 50,000 residential customers have signed up for the pilot, and thousands of slots are still open. That Texas consumers haven't had to shop

for electricity presents a challenge to start with, said Janee Briesemeister, senior policy analyst with Consumers Union Southwest Regional Office. "And when the information that is given to consumers is confusing, they're at a further disadvantage," she said, adding that the PUC said

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### Enron Mentions

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Enron and Exelon Unit Set Chicago Power Deal The Wall Street Journal, 06/07/01

World Watch The Wall Street Journal, 06/07/01

Enron Broadband invests in AP Engines Houston Chronicle, 06/07/01

Attempt to save Enron power project in India extended to third day Houston Chronicle, 06/07/01

Derwent Valley. : Grosvenor Place Pre-letting Dow Jones International News, 06/07/01

India Dabhol Pwr Lenders Mtg Ends "Positively" - Source Dow Jones Asian Equities Report, 06/07/01

INDIA: Private firms expect Enron India's woes to end. Reuters English News Service, 06/07/01

India IDBI Exec Leaves Dabhol Mtg Early; Reason Unknown Dow Jones International News, 06/07/01

INDIAN PM CONFIDENT OF RESOLVING ENRON DISAGREEMENT SOON Asia Pulse, 06/07/01

Walking the talk? The Daily Deal, 06/07/01

GM, Other U.S. Companies Blast Bush Move to Shield Steelmakers Bloomberg, 06/07/01

Pacific Hydro Bends With the Wind, Flows With Water (Update5) Bloomberg, 06/07/01

Council status quo for blacks Hispanic growth likely to affect white wards Chicago Tribune, 06/07/01

Enron Plans to Challenge Power Regulator's Order, Paper Says Bloomberg, 06/07/01

Since when does rape equal justice? Chicago Tribune, 06/07/01

PPA in force, claims DPC Business Standard, 06/07/01

Calif Eyes Ending Access To Alternative Power Suppliers Dow Jones Energy Service, 06/06/01

Enron and Exelon Unit Set Chicago Power Deal Dow Jones Newswires

06/07/2001 The Wall Street Journal A4 (Copyright (c) 2001, Dow Jones & Company, Inc.)

CHICAGO -- Enron Corp. and Exelon Corp.'s Commonwealth Edison Co. signed an agreement to supply power to the city of Chicago and 47 suburban communities, in the largest such deal since Illinois deregulated its electricity industry in 1997. Under the agreement, Enron will provide 60% of the 400 megawatts of power contracted annually while ComEd will provide the rest. Terms of the contract, expected to go into effect this year, weren't disclosed. The coalition of governments sent out requests for bids to the state's 13 registered electricity providers last summer in a bid to bring down power costs.

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International World Watch Compiled by David I. Oyama

06/07/2001 The Wall Street Journal A17 (Copyright (c) 2001, Dow Jones & Company, Inc.)

ASIA/PACIFIC Lenders to Enron Unit Continue Talks Foreign and Indian lenders are scheduled to meet again today in Singapore, after two days of talks with Dabhol Power, U.S. energy company Enron's Indian unit, ended in deadlock, according to R.M. Ganatara, general manager of the Industrial Development Bank of India. The talks are over the future direction of its \$2.9 billion power project near Bombay. "Something is being hammered out; there isn't a common meeting point yet. We will be looking toward a solution to end this crisis" at today's meeting, he said. But he said he wasn't "sure how and where the talks will end" concerning the project, which has been torn by a bitter dispute between Dabhol and the Maharashtra State Electricity Board over nonpayment of bills and power charges.

June 7, 2001, 12:09AM Briefs: Houston & state

Enron Broadband invests in AP Engines Enron Broadband Services, a division of Houston-based Enron Corp., took part in a \$30 million venture investment into Massachusetts-based tech firm AP Engines. Private equity fund Thomas Weisel Capital Partners led the round, while Atlas Venture, Bessemer Venture Partners and Commonwealth Capital Ventures, Lighthouse Capital Partners and Mentmore Venture Partners also participated in the round. AP Engines develops software that allows broadband Internet service providers, such as cable and telephone companies, to move a variety of data types, including, e-mail, voice, video-on-demand and video conferencing over their networks.

June 7, 2001, 9:58PM Houston Chronicle Attempt to save Enron power project in India extended to third day Bloomberg Business News SINGAPORE -- Indian banks that funded Dabhol Power Co., a unit of Enron Corp., and international lenders extended a meeting into a third day to try to save the \$3 billion power project from closure, bankers said Wednesday. Executives from Industrial Development Bank of India, or IDBI, other Indian banks and international lenders such as ABN Amro Holding NV decided to meet again today after initially planning a two-day meeting, the bankers said. The meeting was called to resolve a dispute related to power prices that has resulted in Dabhol and the Maharashtra State Electricity Board, its only customer, starting to terminate the project. The fate of Houston-based Enron's first investment in India is seen as a litmus test for future foreign involvement in infrastructure projects in the country. Indian banks have the most at stake. Unlike them, international lenders received government guarantees for about \$600 million they lent to the project. The Indian banks, which have given as much as \$1.4 billion in unsecured loans, are that concerned foreign creditors may call for a termination of the project and invoke their guarantees and are seeking ways to keep it alive. Lenders such as ABN Amro, Citibank N.A., a unit of Citigroup, Bank of America and Credit Suisse First Boston in April approved Dabhol's decision to begin termination of its power supply contract with the board. Foreign banks wouldn't comment on what solution they are seeking from the Indian lenders at the Singapore meeting.

Derwent Valley. : Grosvenor Place Pre-letting

06/07/2001 Dow Jones International News (Copyright (c) 2001, Dow Jones & Company, Inc.)

LONDON -(Dow Jones)- The company has, through one of its subsidiaries, pre-let further office space at 21 Grosvenor Place, SW1 to Enron Power Operations. Enron took 1,980 sq. m (21,300 sq. ft) earlier this year and is now taking an additional 1,170 sq. m (12,600 sq. ft), at GBP0.7m per annum. The rent payable equates to GBP55 per sq. ft, for a lease expiring in 2014, with reviews in 2004 and 2009. Refurbishment of this newly-let space will be incorporated into the current scheme, at an additional cost of GBP1m, with the work scheduled for completion at the end of 2001. ICV Edited News from Dow Jones

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India Dabhol Pwr Lenders Mtg Ends "Positively" - Source

06/07/2001 Dow Jones Asian Equities Report (Copyright (c) 2001, Dow Jones & Company, Inc.)

SINGAPORE (Dow Jones) A three-day meeting involving institutional domestic and foreign lenders to U.S. Enron Corp.'s (ENE) troubled Dabhol Power Co. project in India ended Thursday "positively," one of the lenders told Dow Jones Newswires. He added no further meetings were planned in Singapore. Dabhol, India's largest private power plant, was scheduled for commissioning in two phases. The project's first phase, a 740-megawatt power plant, has already been commissioned and 1,444-megawatt phase two is due to be completed later this year. The \$3 billion Dabhol project has been mired in financial disputes when its main customer, the Maharashtra State Electricity Board, has failed to pay several of its bills. Dabhol has come under fire because of the relatively high cost of its power. Critics object to Dabhol charging INR7.1 a kilowatt-hour for its power, compared with INR1.5/KWh charged by other suppliers. Enron Corp. (ENE) has a



65% controlling stake in the controversial 2,184-megawatt, \$3 billion Dabhol project, which supplies power to the State Electricity Board. MSEB has 15%, General Electric Co. (GE) has 10% and Bechtel (X.BTL) with 10% are the other shareholders in the project. A senior official with an Indian lender involved in the DPC project confirmed that the meeting's outcome was positive. "

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*Message 1107 of 1299***Enron Mentions**

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Calif Senate Committee Pushes Enron Contempt Cite Forward Dow Jones Energy Service, 07/11/01

Enron Sues To Block Calif From Forcing Document Release Dow Jones Energy Service, 07/11/01

Enron Corp. sues to block Senate from forcing document release Associated Press Newswires, 07/11/01

USA: Enron sues Calif. to block subpoena in price probe. Reuters English News Service, 07/11/01

Enron Sues California Senate; Panel Urges Contempt (Update2) Bloomberg, 07/11/01

CSU, UC reach tentative agreement with Enron to deliver electricity Associated Press Newswires, 07/11/01

Indian state orders probe into Enron's power dispute with government Associated Press Newswires, 07/11/01

Enron's Lay keen on speedy solution to Dabhol Power issue AFX News, 07/11/01

Enron Won't Rule Out Sale of Dabhol Gas Unit, Spokesman Says Bloomberg, 07/11/01

Calif Senate Committee Pushes Enron Contempt Cite Forward

07/11/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

LOS ANGELES -(Dow Jones)- A California Senate committee Wednesday voted to forward to the full Senate a contempt charge against Enron Corp (ENE) because the company refuses to provide certain financial documents for an investigation into wholesale power prices in the state. If Enron is deemed to be in contempt by the full Senate, the legislators will vote on punishments that could include fines against the company or incarceration for company executives. "When Enron decides it is so important to keep its information private, I can only assume there is much more there to find than I can imagine," said Sen. Steve Peace, D-El Cajon, a member of the Senate Select Committee to Investigate Market Manipulation. Enron filed a lawsuit Tuesday to stop the Senate's subpoena of financial records, saying the documents were outside of California's jurisdiction. The company is also likely to legally contest the contempt charge, an Enron attorney said during Wednesday's hearings.

The market manipulation committee will forward its contempt report to the full Senate by early next week, at the earliest, said Sen. Joe Dunn, D-Santa Ana, chair of the committee. If at any point between now and then Enron decides to comply with the committee's requests, the contempt charge will be dropped, Dunn said. The committee also voted not to recommend a contempt charge for Mirant Corp (MIR), which agreed to provide financial documents Wednesday morning shortly before the hearing. The documents sought by Dunn's committee include information on bidding and pricing behavior in the state's electricity markets. The committee originally was poised to cite eight electricity generators for contempt, but all except Enron have since agreed to provide the requested information. -By Jessica Berthold, Dow Jones Newswires; 323-658-3872; jessica.berthold@dowjones.com

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Enron Sues To Block Calif From Forcing Document Release

07/11/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)



SACRAMENTO (AP)--Enron Corp. (ENE) is suing California officials to stop a Senate subpoena of its financial records in a dispute over alleged overcharges for its electricity sales to California. "They've sent two things to Texas - our money and these documents, and they saying we can't get either one back," said Laurence Drivon, special legal counsel to the California Senate Select Committee to Investigate Market Manipulation. The suit came hours before the committee will consider asking the full Senate to cite the Houston-based company for contempt Wednesday. The other subject of possible sanctions, Atlanta-based Mirant Inc., appears to be cooperating, Drivon said. Committee chairman Joe Dunn, a Santa Ana Democrat, said the committee's investigation will continue despite Enron's "pure act of intimidation. We're not going to back down." Enron's suit said the company's financial papers are outside the committee's jurisdiction because most of its operations and paperwork are outside California. That shouldn't matter, Drivon said, citing last year's successful out-of-state documents during the investigation into the activities of former Insurance Commissioner Chuck Quackenbush. Previous investigations have included documents subpoenaed from other nations, he said. Companies doing business in California cannot claim immunity from its laws or oversight, Drivon and Dunn said. Houston-based Reliant Energy made the same argument but then agreed to turn over 1,800 documents.

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Enron Corp. sues to block Senate from forcing document release By DON THOMPSON Associated Press Writer

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SACRAMENTO (AP) - Enron Corp. is suing state officials to stop a Senate subpoena of its financial records in a dispute over alleged overcharges for its electricity sales to California. "They've sent two things to Texas - our money and these documents, and they're saying we can't get either one back," said Laurence Drivon, special legal counsel to the Senate Select Committee to Investigate Market Manipulation. The suit came hours before the committee will consider asking the full Senate to cite the Houston-based company for contempt Wednesday. The other subject of possible sanctions, Atlanta-based Mirant Inc., is cooperating, Drivon said. Mirant spokesman Pat Dorinson said the company has turned over 159,000 pages of documents that were being transferred to a repository in Sacramento to comply with the subpoena. The company and the committee reached an agreement last night on the confidentiality concerns, Dorinson said. Committee chairman Joe Dunn, a Santa Ana Democrat, said the committee's investigation will continue despite Enron's "pure act of intimidation. We're not going to back down." Enron's suit, filed in Sacramento Superior Court, said the company's financial papers are outside the committee's jurisdiction because most of its operations and paperwork are outside California. That shouldn't matter, Drivon said, citing last year's successful subpoena of out-of-state documents during the investigation into the activities of former Insurance Commissioner Chuck Quackenbush. Previous investigations have included documents subpoenaed from other nations, he said. Companies doing business in California cannot claim immunity from its laws or oversight, Drivon and Dunn said. Houston-based Reliant Energy made the same argument but then agreed to turn over 1,800 documents. Enron's suit also says Dunn's committee has not given the company a fair hearing, and the committee has not followed due-process protections before seeking sanctions. Not so, said Dunn and Drivon, adding that they negotiated with generators to give them time to comply with the subpoenas. Proof of that, they said, comes in the decision to give Williams, AES, Reliant, Dynegy, Duke and NRG an extra week past Tuesday's deadline to turn over documents subpoenaed last month. In a letter to Dunn, Steven J. Kean, an Enron executive vice president, said several municipal districts were profiting from the power crisis. "Yet, remarkably, the committee has inexplicably chosen not to include these market participants in its investigations." Enron officials are concerned the purpose of the investigation, Kean said, is to "create a convenient political scapegoat to shoulder the blame for California's policy mistakes and changes in market fundamentals." However, Enron has agreed to turn over some "non-confidential" documents at the Wednesday hearing, Kean said. The committee is on the verge of asking the full Senate to impose sanctions for the first

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Message 1108 of 1299

## Energy Issues

|            |                                                                                                    |
|------------|----------------------------------------------------------------------------------------------------|
| Sender     | miyung.buster@enron.com                                                                            |
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| File       | dasovich-j/all_documents/29177.                                                                    |

Please see the following articles:

Sac Bee, Fri, 7/27: Hopes dim for a quick Edison deal SD Union, Fri, 7/27: Sempra's trading unit generates a windfall LA Times, Fri, 7/27: Smog Rules May Be Eased LA Times, Fri, 7/27: Federal Caps Didn't Deter Higher Prices SF Chron, Fri, 7/27: Calpine profits double on skyrocketing sales Escalating power prices inspire plant building program SF Chron, Fri, 7/27: Generators continue to set high electricity prices SF Chron, Fri, 7/27: THE ENERGY CRUNCH Environmental suit against power plant Expansion called danger to slough OC Register, Fri, 7/27: Let's make a real deal with Edison (Editorial) LA Times, Fri, 7/27: California Sempra Continues Improved Results LA Times, Fri, 7/27: California Calpine Doubles Earnings, Beats Forecasts Energy: San Jose-based company credits higher electricity prices in California and sales from new plants LA Times, Fri, 7/27: Cap No Bar to Higher Prices Power: Cal-ISO study says suppliers continued to charge as much as five times more than the U.S.-imposed limits WSJ, Fri, 7/27: Calpine Net Soars On Added Plants; Sempra Profit Rises

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Hopes dim for a quick Edison deal By Kevin Yamamura Bee Capitol Bureau (Published July 27, 2001) The Assembly will not return this week to consider a plan to save California's second-largest utility from bankruptcy, all but ending hopes that legislation would reach Gov. Gray Davis by a mid-August deadline. A group of legislators and Davis staffers has worked this week on an agreement that would restore Southern California Edison's credit and relieve the state of having to purchase energy for the utility. Assembly leaders, who convened the group, set an ambitious schedule that would have led to a vote today had they reached consensus and been able to recall enough of the 80 Assembly members from summer recess destinations. But the newly formed plan, which would issue \$2.9 billion in consumer-backed bonds in exchange for several Edison concessions, remains too rough for a vote, said Paul Hefner, a spokesman for Assembly Speaker Robert Hertzberg, D-Sherman Oaks. Hefner was quick to note that Hertzberg has the Assembly "on call" for the scheduled monthlong break and is prepared to ask members to return if a deal comes in the next three weeks. But staff and lawmakers said earlier that organizing a mass return after today would prove nearly impossible because Assembly members are expected to travel throughout the state and beyond. Davis set an Aug. 15 deadline in his original Edison deal and recently said he could call a special session forcing legislators to return if they do not authorize a plan by then. His spokesman, Steven Maviglio, said Thursday the governor is not ruling out that idea but is waiting to see what comes of further legislative discussions. "It's pretty clear that everyone's working pretty hard to form a consensus, but they're just not there," Maviglio said. "The governor is optimistic about the Aug. 15 date." Even so, Edison does not expect a solution by then. Company officials stated earlier this week that they would wait for a political deal at least until lawmakers return Aug. 20.

The Bee's Kevin Yamamura can be reached at (916) 326-5542 or [kyamamura@sacbee.com](mailto:kyamamura@sacbee.com) <<mailto:kyamamura@sacbee.com>>.

Sempra's trading unit generates a windfall

\ objattph By Craig D. Rose UNION-TRIBUNE STAFF WRITER July 27, 2001 Sempra Energy, the parent company of SDG&E, reported a 25 percent surge in profit to \$137 million last quarter but said yesterday it lost money on the sale of electricity under a long-term contract to California. On the other hand, Sempra said its largest source of profits was its energy trading unit, a middleman that earned \$69 million during the quarter buying and selling energy produced by others. The results underscore the transformation of relatively simple utility companies into diversified energy holding companies that have learned to profit in new ways from the deregulation of electricity and the turmoil in energy markets. The surprising announcement -- that a company lost money selling power during California's run-up in electricity prices -- was explained by Sempra as an intentional consequence of the long-term contract it signed with the state to provide power. Stephen Baum, chairman and chief executive officer of Sempra, said the company agreed to provide a steep discount to California during the summer months but would recoup the losses later in the 10-year deal. California sought long-term electricity purchase contracts so it could reduce its purchases in daily and near-term power markets, where prices reached record levels. Critics say Gov. Gray Davis rushed into long-term deals because of concerns about getting through next year's election. They also say the contracts will saddle customers with higher costs for years. The governor has acknowledged that long-term contracts might cause consumers to pay relatively high prices for electricity in later years, but he maintains it is a fair price to pay for lowering prices that were devastating the state economy. Michael Shames, executive director of the Utility Consumers' Action Network in San Diego, said the steep discount Sempra provided to the state on power this summer raised questions about the governor's proposal to help San Diego Gas & Electric Co. clear a

debt of \$750 million. SDG&E says it is owed that money for power purchases on behalf of its customers. In a media conference last month, Davis said the agreement would eliminate the threat of a possible balloon payment for consumers, who he said might have faced the so-called balancing account debt as early as next year. Shames says the proposal, which took the form of a memorandum of understanding, or MOU, is costly for consumers and a bonanza for Sempra. He said the relatively cheap power provided by Sempra this summer "makes the MOU sound like more of a hidden payback to Sempra than a real relief plan for local ratepayers." Shames said he will release an analysis of the state's Sempra plan next week. The state Public Utilities Commission is expected to rule on the plan in August. A Sempra spokesman said there is no connection between discount power and the tentative agreement to clear the \$750 million debt. Doug Kline, the Sempra spokesman, said the power contract with the state was signed in early May and the agreement on the balancing account was reached in mid-June. Sempra Energy Trading, meanwhile, said only 10 percent of its \$69 million profit was earned from sales of energy in the western region, which includes California. The trading operation earned \$40 million in profit during the comparable period last year. California's Independent System Operator, which manages most of the state power grid, and other investigators have said trading and bidding strategies were tools used by energy companies to raise prices during the California power crisis. Though Sempra earned money on trading, its wholesale power generating business lost \$9 million during the quarter. Baum said the discounts on electricity provided the state were the prime cause of the loss for Sempra Energy Resources but added that a plant outage also contributed. Sempra Energy Resources, which co-owns a generating plant near Las Vegas with Reliant Energy, earned \$2 million during the second quarter last year. Baum added that Sempra's long-term contract with the state -- under which it will provide up to 1,900 megawatts -- has allowed its wholesale business to p

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Message 1109 of 1299

**Re: URGENT - ACTION - Meeting Notice = 3/11/01**

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | vicki.sharp@enron.com                                                                                              |
| Recipients | ['tom.riley@enron.com', 'douglas.huth@enron.com', 'dan.leff@enron.com', 'richard.shapiro@enron.com', 'donna.te...] |
| File       | dasovich-j/notes_inbox/5010.                                                                                       |

UC/CSU has brought an action in Federal Court in Oakland seeking to have its physical delivery service returned to direct access. Would the regulatory affairs team I am copying on this letter decide who the point person should be for us to communicate with. We would hope that you could participate in the call or we could debrief you afterwards. Thanks.

Dan Leff 03/10/2001 05:56 AM To: Donna Teal/HOU/EES@EES cc: Vicki Sharp/HOU/EES@EES, Tom Riley/Western Region/The Bentley Company@Exchange, Douglas Huth/HOU/EES@EES, Peggy Mahoney/HOU/EES@EES, Marty Sunde/HOU/EES@EES, Evan Hughes/HOU/EES@EES, Jeff Messina/HOU/EES@EES, Mike D Smith/HOU/EES@EES  
Subject: Re: URGENT - ACTION - Meeting Notice = 3/11/01

Mike Smith needs to be involved in all of this communication

Thank you - Dan

Donna Teal 03/09/2001 10:48 PM To: Vicki Sharp/HOU/EES@EES, Tom Riley/Western Region/The Bentley Company@Exchange, Douglas Huth/HOU/EES@EES, Peggy Mahoney/HOU/EES@EES, Marty Sunde/HOU/EES@EES, Dan Leff/HOU/EES@EES, Evan Hughes/HOU/EES@EES cc: Jeff Messina/HOU/EES@EES Subject: URGENT - ACTION - Meeting Notice = 3/11/01

Please plan to attend this meeting; Tom and Doug, please call in.

Date: Sunday, March 11 Time: 1:00 - 5:00 pm Location: EB872 Topic: UC/CSU Host: Jeff Messina Dial In No.: 1-800-991-9019 Passcode: 6 0 6 9 9 6 3

Conference call phone number 800-766-1863 - - confirmation no. 3702121

If you have any questions, please call Jeff Messina at 281-361-9185.

Regards, Donna for Jeff Messina

## Contact Information

Name Office No. Pager No. Home No. Cell No. V. Sharpe 713-853-7413 713-472-8072 713-822-3048 T. Riley 925-543-3703 888-937-4479 925-254-6416 510-928-9292 D. Huth 925-543-3709 888-797-9446 925-362-0008 925-381-7205 P. Mahoney 713-345-7034 713-667-8511 713-504-4338 M. Sunde 713-853-7797 888-753-9478 713-355-9138 713-553-1582 D. Leff 713-853-7903 713-688-1622 281-650-1199 E. Hughes 713-345-3311 713-444-3125 J. Messina 713-853-9293 888-395-3127 281-361-9185 713-504-9031

## Message 1110 of 1299

## Enron Mentions - 11/19/01

|            |                        |
|------------|------------------------|
| Sender     | m..schmidt@enron.com   |
| Recipients |                        |
| File       | dasovich-j/inbox/1729. |

Headed For A Fall ; Companies issued special zero-coupon bonds, assuming th= ey'd never have to pay them off. Now shareholders could be on the hook for = a \$65 billion tab. Fortune Magazine, 11/26/01 Manager's Journal: What Enron Did Right The Wall Street Journal, 11/19/01 J.P. Morgan Wins (by Not Losing as Much) The Wall Street Journal, 11/19/01 German Bank Is in Talks With Enron To Buy a Unit The New York Times, 11/19/01 Bond Boom Isn't Likely to Lift Economy As Corporations Swap Old Debt for Ne= w The Wall Street Journal, 11/19/01 Preview / WEEK OF NOV. 19-25 Investors Looking for Answers in Enron Filing Los Angeles Times, 11/19/01 COMPANIES & FINANCE INTERNATIONAL - Dynegy bid faces long wait. Financial Times, 11/19/01 Russia Fund Surges Amid Global Woes The Wall Street Journal, 11/19/01 Wessex Water The Financial News, 11/19/01 India BSES:Dabhol Pwr Proj Due Diligence Done Jan -Report Emerging Markets Report, 11/19/01 India Dabhol Pwr: No Termination Notice Until Crt Verdict Dow Jones International News, 11/19/01 Fears raised on Enron deal: \$15.6-billion rescue bid National Post, 11/19/01 Blackout in the power sector Business Standard, 11/19/01

Features/Toxic Bonds Headed For A Fall ; Companies issued special zero-coupon bonds, assuming th= ey'd never have to pay them off. Now shareholders could be on the hook for = a \$65 billion tab. Janice Revell

11/26/2001 Fortune Magazine Time Inc. 131 (Copyright 2001)

It was an irresistible proposition: Borrow billions of dollars, pay no inte= rest, reap millions in tax breaks, and then wait for the debt to simply dis= appear. That was the promise of zero-coupon convertible bonds, and companie= s from Enron to Merrill Lynch binged on what seemed like free money.=20 But, of course, there was a catch: For this scenario to play out, a company= 's stock price had to rise sharply--and quickly. That's because investors b= ought the bonds in the hope of converting them into equity--if the stock ta= nked, the bonds would no longer be worth converting. So to make them more a= ttractive to buyers, companies had to build in an escape hatch: If the stoc= k price failed to rise sufficiently, investors could "put" (that is, sell) = the bonds back to the company--in many cases, after just one year. And that's exactly what's about to happen--to the tune of some \$65 billion = over the next three years. Stock prices have fallen so far that for at leas= t half of these special hybrids, the prospect of conversion is now absurd. = It simply won't happen. So bondholders are looking to get their money back = the first chance they can. And because of the put feature, that is possible= . Suddenly companies like Tyco, Comcast, and dozens more are on the hook fo= r billions of dollars in debt and interest they thought they'd never have t= o pay.=20 That could be very bad news for shareholders of these companies. After all,= they're the ones who are going to be picking up the tab when all that debt= comes due. Huge chunks of cash will disappear from balance sheets to repay= bondholders. Companies without enough cash-- and the majority fall into th= is camp--are likely to face skyrocketing interest charges when they borrow = money anew. That means sharply reduced earnings. Especially at risk are inv= estors in companies with poor credit ratings--prime candidates for killer r= efinancing costs. Some companies may even be forced to issue stock to pay o= ff the debt, creating significant shareholder dilution, especially at curre= nt depressed prices. To make matters worse, this is happening at a time whe= n the economy is barreling downhill and corporate profits are already shrin= king. "This is a ticking time bomb," warns Margaret Patel, manager of the P= ioneer High Yield Bond fund, a top-performing junk fund.=20 The seeds of this mess were sown in

mid-2000, when the stock market started to falter. Companies in search of capital balked at the thought of selling stock while their share prices were struggling. Zero-coupon convertible bonds presented an attractive alternative because companies didn't have to make cash interest payments on the bonds (hence the name "zero"). Instead issuers offered an up-front discount--for instance, investors would buy a bond for \$700 and collect \$1,000 when it matured. Companies also gave investors the right to convert the bonds into a fixed number of common shares. But the bonds were structured so that conversion would make sense only if the stock price rose significantly--in many cases, by more than 50%. With that protective feature (called the conversion premium), zeros took off. Corporate issuers would pay no interest, and once their stock prices had climbed back to acceptable levels, the debt would be swept away into equity. "If the bonds are converted, it's a home run for everybody," says Jonathan Cohen, vice president of convertible-bond analysis at Deutsche Bank. That four-bagger, of course, depends entirely on the stock price rising. If it doesn't, the bondholders, armed with that handy put feature, can simply sell the bonds back to the company. Great for bondholders, but not so hot for the company or its shareholders. But, hey, what are the odds of that happening? "CFOs and CEOs believe that their stock will just continue to go up," says Cohen. "They don't worry about the bond getting put." If all this seems a little complicated, that's because it is. A real-life example should help. California-based electric utility Calpine issued \$1 billion in zeros in April to refinance existing debt. At the time, the company's stock was trading at about \$55 a share--severely undervalued in the opinion of company management. "We really didn't want to sell equity at that point," says Bob Kelly, Calpine's senior vice president of finance. So the company instead opted to sell zeros, setting the conversion premium at a hefty 37%. Still, with no cash interest payments and a stock price that had to rise significantly to make conversion worthwhile, the bonds weren't exactly a screaming buy for investors. So Calpine added the put feature: Investors could sell the bonds back to the company after one year at the full purchase price, eliminating any downside risk. Things haven't exactly worked out as management had hoped. The stock has since plummeted to \$25, and it now has to triple before conversion makes sense. So it's looking as though Calpine will be liable for the \$1 billion in borrowed money when investors get the chance to put the bonds this April. There's also the refinancing cost. According to Kelly, Calpine's borrowing rate could run in the neighborhood of 8.5%--an extra \$85 million per year in cash. "Obviously, nobody plans for their stock to go down," Kelly says. "I don't think there was one person around who thought the bond would be put." Calpine's potential costs are particularly high because its credit rating is straddling junk. "If you are a borderline investment-grade company, a financing of this nature is not necessarily the most appropriate thing in the world," notes Anand Iyer, head of global convertible research at Morgan Stanley. The problem is, there are a slew of companies with far worse credit ratings out there: Jeff Seidel, Credit Suisse First Boston's head of convertible-bond research, estimates that about half of all zeros outstanding fall into the junk category. And others are at risk of having their ratings downgraded before the put date. Today, with junk yielding as much as 5 1/2 percentage points above bonds rated investment grade, refinancing can be a pretty proposition. Contract manufacturer Solectron is one that could well get hit by the high price of junk. It has \$845 million in zeros that it will probably have to

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### Power Update -- FERC member won't oppose SoCalEd power grid sale

|            |                                                                                      |
|------------|--------------------------------------------------------------------------------------|
| Sender     | miyung.buster@enron.com                                                              |
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| File       | dasovich-j/all_documents/12047.                                                      |

This story appeared on <http://www.individual.com> May 4, 2001

[B] POWER UPDATE/ FERC member won't oppose SoCalEd power grid sale

(BridgeNews) May 3, 0758 GMT/1658 JT

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TOP STORIES:

FERC Comm. Breathitt says won't oppose SoCalEd power grid sale

Santa Fe, N.M., May 2 (BridgeNews) - Linda Breathitt, a member of the Federal Energy Regulatory Commission (FERC), said Wednesday in an interview with BridgeNews that she won't oppose a proposed sale of the transmission grid of Southern California Edison to the state of California. "I'm not saying the governor (Gray Davis) can't go forward with what he thinks is an important part of the solution," she said.

( Story .19326 )

Duke Energy: Will pay "once" to end Calif. power price probes

Santa Fe, N.M., May 2 (BridgeNews) - Duke Energy North America said Wednesday it will build new generation in California, sell power on a long-term basis, forgive some unpaid bills by state utilities and repay alleged overcharges for wholesale power if all investigations into alleged price-gouging by state and federal authorities are resolved at the same time. Duke admitted no wrongdoing.

( Story .21691 )

US Press: Duke Energy seeks deal with Calif. governor

New York, May 2 (BridgeNews) - The Los Angeles Times and the New York Times reported Wednesday that Duke Energy has asked Calif. Gov. Gray Davis to end all state investigations against alleged gouging of power prices by producers in exchange for "possible monetary concessions" by the company.

( Story .16061 )

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OF INTEREST:

--ASIA/PACIFIC--

Taiwan to accept bids for new power plants around May-end

Taipei, May 3 (BridgeNews) - Taiwan authorities plans to open a new round of bidding around the end of May for independent power producers (IPPs) to generate a total of 4,200 megawatts (MW) of electricity commencing in 2007-2009, an official at the Energy Commission under the Ministry of Economic Affairs (MOEA) said Thursday. The invitation for IPP projects will be the fourth of its kind.

( Story .10571 )

--AMERICAS--

AGA Review: Jun down on higher-than-expected storage report

New York, May 2 (BridgeNews) - NYMEX Jun Henry Hub natural gas continued its downward slide following a report by the American Gas Association that U.S. natural gas stocks increased by 102 billion cubic feet for the week ended Friday, about 10-15 bcf above most expectations. At 1407 ET, Jun was holding at \$4.48 per MMBtu.

( Story .1955 )

Northeast real time power steady ahead of warm weather

Toms River, N.J., May 2 (BridgeNews) - Real time power prices in the Northeast U.S. were fairly steady early Tuesday, while some traders said the market is poised for possible price spikes due to warm weather moving in for the next two days.

( Story .17746 )

FULL: NRG Energy in pact to buy Duke's 77% stake in McClain plant

New York, May 2 (BridgeNews) - RG Energy Inc. agreed to buy Duke Energy North America's 77% interest in the McClain County, Okla. natural gas-fired power plant. The Oklahoma Municipal Power Authority owns the remaining 23% interest.

--Bill Belina, BridgeNews

( Story .16903 )



PG&E: Baja natgas pipe capacity to be cut 30% for work in June

New York, May 2 (BridgeNews) - A hydrotest and relocation of a pressure limiting station will reduce capacity on the Baja portion of Pacific Gas & Electric's California Gas Transmission system by 30% from June 10 through 3= 0. ,

Baja capacity will be reduced by 339 MMcf/d from a normal 1,140 MMcf/d.

( Story .16696 )

AGA Preview: US natgas stocks seen up 85-90 bcf

New York, May 1 (BridgeNews) - The American Gas Association (AGA) is expected to report Wednesday that U.S. natural gas stocks are up anywhere from 85 to 90 billion cubic feet (bcf) for the week ended Friday. The range of estimates was fairly narrow this week, with one forecast high of 100 bcf and a low of 70 bcf, according to an informal survey of brokers, analysts and traders. The AGA will release the storage data at 1400 ET.

( Story .1856 )

--EUROPE--

UK BG's Rough gas storage facility to be shut in May 3-19

London, May 2 (BridgeNews) - U.K. gas major BG will carry out planned maintenance on it's North Sea Rough Storage Facility from tomorrow May 3, as BG spokeswoman told BridgeNews Wednesday. "The 100% outage (injection and withdrawal) will as expected take place between 0600BST May 3 to 0600BST May 19," BG spokeswoman said.

( Story .14893 )

Czech power firm CEZ sees 2001 net profit at about 7 bln koruna

Prague, May 2 (BridgeNews) - The dominant Czech power utility CEZ a.s. expects to post a consolidated net profit of about 7 billion koruna for the full year of 2001, CEZ financial officer Petr Voboril said Wednesday. Earlier the company had said its consolidated net profit would amount to the=20 equivalent of 7.0-8.0 billion koruna according to international accounting standards.

( Story .14432, .12727 )

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.1884 US/Canada Spot Natural Gas

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.8587 .8600 TVA Forwards (AM/PM)

## OTHER

.1873 US Nuclear Plants Operating Status  
.2029 BRIDGE CALENDAR: US POWER: Key events to watch  
.2030 US Utility Deregulation Digest  
.1704 US Utility M&A Digest

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IPE - Media://Chart:IPE:/symbol=3DGB@NGP.1 NYMEX ELECTRICITY

Palo Verde electricity - Media://Chart:PaloVerde:/symbol=3DUS@VK.1

COB electricity- Media://Chart:COB:/symbol=3DUS@OW.1

Cinergy electricity - Media://Chart:Cinergy:/symbol=3DUS@CN.1

Entergy electricity - Media://Chart:Entergy:/symbol=3DUS@NT.1

PJM electricity - Media://Chart:PJM:/symbol=3DUS@QJ.1

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## Bridge News

Send comments to Internet address: [energy@bridge.com](mailto:energy@bridge.com)

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Message 1112 of 1299

**FW: Daily Electric Power News - 11-28-00**

|            |                                                                                       |
|------------|---------------------------------------------------------------------------------------|
| Sender     | mday@gmsr.com                                                                         |
| Recipients | ['jdasovic@enron.com', 'smara@enron.com', 'smccubbi@enron.com', 'mpetroch@enron.com'] |
| File       | dasovich-j/all_documents/3996.                                                        |

FYI

-----Original Message-----

From: Counihan, Rick [mailto:rick.counihan@greenmountain.com] Sent: Wednesday, November 29, 2000 9:04 AM To: 'ARM List Serve'; 'Bennett, Jeanne'; 'Douglass, Dan'; 'Day, Mike' Subject: FW: Daily Electric Power News - 11-28-00

see duke offer below

-----Original Message-----

From: Oneill, Karen Sent: Tuesday, November 28, 2000 9:07 PM To: New Markets (#770); Management Team (#710); California (#790) Subject: FW: Daily Electric Power News - 11-28-00

Note an interesting item far down on the newsletter about Duke Power offering to manage all of SDG&E's load for the next five years for a fixed price of 6 cents/kWh.

-----Original Message-----

From: news@mail.energycentral.com [mailto:news@mail.energycentral.com] Sent: Monday, November 27, 2000 6:40 PM To: oneill@gmer.com Subject: Daily Electric Power News - 11-28-00

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**ENERGY CENTRAL ELECTRIC POWER NEWS FOR 11/28/00 - 53 NEW ITEMS**

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LineSoft announces LD-StructureCalc, an advanced and easy-to-use single pole structural analysis tool for joint use for utilities, communications companies, and municipalities. Technicians use LD-StructureCalc's advanced calculation capabilities to accurately determine pole, guy, and anchor loads. Once identified, load percentages can be attributed to the various owners of wires and equipment on the pole. Users in the office or field enter structure, conductor, and equipment information on a laptop and analyze poles on the spot. Sag and tension calculations are performed in real time and for multiple load cases. LD-StructureCalc can model a variety of remedies to correct any overload condition. LD-StructureCalc is an affordable standalone analysis tool complete with pre-defined databases that ensure NESC and GO95 code compliance. Contact Greg Berry at 1-800-928-3274, extension 240 to schedule an on-line demo, or ask about limited-time introductory offers.

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COMPETITION & DEREGULATION

FERC CHAIR WANTS EARNINGS JUSTIFICATION INFO; FEINSTEIN TO WORK FOR CONGRESSIONAL REFUND AUTHORITY Three days after the Federal Energy Regulatory Commission hearing November 14 in San Diego on California's "broken" electricity market, the agency's chair, James Hoecker, gave a writing assignment to generators, marketers and other players in the state's market. - (California Energy Markets, LENGTH=1008 words) --> NEWS SUBSCRIBERS can access this article for free! [ ] 55-1: You can request 2 FREE samples of CALIFORNIA ENERGY MARKETS

POWER ALERTS HAMPERING CALIFORNIA POWER MARKET AS PROBLEMS CONTINUE Serious troubles continue for the deregulated electric markets on both the West and East Coasts. - (Utility Spotlight, LENGTH=1460 words) --> NEWS SUBSCRIBERS can access this article for free! [ ] 55-18: You can request a 4 week FREE trial to Utility Spotlight

MASSEY: FERC HAS ROLE TO PLAY IN POTENTIAL FOR MARKET POWER ABUSES With the California experience in mind, Federal Energy Regulatory Commissioner William Massey told the Energy Bar Association last week that FERC has a role to play in exercising vigilance over the potential for market power abuses. - (Utility Spotlight, LENGTH=431 words) --> NEWS SUBSCRIBERS can access this article for free! [ ] 55-18: You can request a 4 week FREE trial to Utility Spotlight

MAKE UTILITIES GO AFTER THE REFUNDS, PEACE SAYS Trying another legal angle to refund consumers for this past summer's price spikes, Senator Steve Peace (D-El Cajon) told California Public Utilities Commission president Loretta Lynch in a November 17 letter that regulators should require utilities to demand money from wholesale generators. - (California Energy Markets, LENGTH=249 words) --> NEWS SUBSCRIBERS can access this article for free! [ ] 55-1: You can request 2 FREE samples of CALIFORNIA ENERGY MARKETS

FERC MUST DO MORE, RESPONDENTS TO PROPOSED CALIF. ORDER SAY FERC must "go further" than it already has in its actions to address market power and mitigate excessive prices in California, Energy Secretary Bill Richardson told the federal commissioners in documents filed before the Thanksgiving break. - (Megawatt Daily, LENGTH=812 words) --> NEWS SUBSCRIBERS can access this article for free! [ ] 55-10: You can request a sample issue of Megawatt Daily

MIDAMERICAN ENERGY IS FIRST TO BECOME REGISTERED S RETAIL ELECTRIC SUPPLIER IN SOUTHWEST OHIO MidAmerican Energy Company is the first energy company to become registered as a Certified Retail Electric Supplier in the Cincinnati Gas & Electric Company territory. - (PR Newswire, LENGTH=452 words) --> NEWS SUBSCRIBERS can access this article for free!

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ACQUISITIONS

BRAZIL : SIX COMPANIES STRUGGLE FOR CESP PARANA There are six foreign companies interested in acquiring electric power generating company Cesp Parana to be tendered in the beginning of December 2000 for a minimum price estimated at R\$1.739bil. - (Screaming Media - context, LENGTH=249 words) --> NEWS SUBSCRIBERS can access this article for free!

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RATES

PG&E CO. PROPOSES HU

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### PennFuture's Green Power Update

|            |                               |
|------------|-------------------------------|
| Sender     | pennfuture@pennfuture.org     |
| Recipients | ['pennfuture@pennfuture.org'] |
| File       | dasovich-j/inbox/44.          |

Giant Wind Blade Gives Pennsylvanians a Sneak Peak at New Clean Energy Choice Coming this Fall

As a more than 100-foot-long wind power blade arrived by truck in front of Philadelphia's City Hall Thursday morning, the Mid-Atlantic Renewable Energy Coalition (MAREC) held a press conference to announce the near completion of Mill Run, the largest wind farm in the East, which will help power Pennsylvania homes and businesses by this fall.

Sitting atop Laurel Mountain in Fayette County, Mill Run will generate enough Green-e certified clean electricity to power over 5,000 homes. The wind farm's output is already available to large business and commercial customers. One of the first local institutions to put their money on home-grown wind is Carnegie Mellon University, who recently announced the largest retail wind purchase in the United States and plans to buy 5 percent of its electricity from Green-e certified wind power generated at Mill Run beginning this year.

While generating electricity with no emissions and requiring no fuel, the wind farm is also bringing jobs and tax revenue to a rural area, as well as providing lease payments to the farm owner who profits from an additional "crop." The wind turbines actually use very little land, and farming and other agricultural activities can continue right up to the base of the turbines.

Mill Run is one of a growing number of new wind projects that are under development in Pennsylvania. Two other wind farms are scheduled for construction in Somerset and Wayne Counties, and are expected to begin commercial operation in late 2001 or early 2002. And at least four additional wind farms are in development and may provide as much as 108 MW in 2002 or 2003. All told, as much as 266 MW of new wind energy alone is likely to be ready to serve Pennsylvania by 2003. This is enough clean energy to power at least 66,500 average Pennsylvania households with 100 percent wind.

The energy produced at Mill Run is being sold for the next twenty years to wholesaler Exelon Power Team, who in turn sells it to Community Energy, Inc. - a local retailer specializing in new wind energy. More information about the Mill Run site is available on the Atlantic Renewable Energy website at <http://www.atlantic-renewable.com>. If interested in purchasing wind energy, contact John Halley of CEI at (610) 254-9800, or sign up at [www.newwindenergy.com](http://www.newwindenergy.com).

See the attached document for a photo of the giant wind blade!

Pittsburghers Anticipate Tremendous Opportunity to Buy Green Power and Still Save \$

A golden opportunity lies just around the bend for Pittsburgh area residents and businesses to buy renewable energy and still save money. Currently, customers who switch to renewable energy products pay not just the price of the product, but also an added "regulatory stranded cost charge" of up to 3.39 cents per kWh. This charge was imposed after the electricity industry opened to competition, and is supposed to enable utilities (in this case Duquesne) to recover uneconomic investments in nuclear power made when it was a regulated monopoly. Without the collection of stranded cost charges, Duquesne may have gone bankrupt.

The good news is that charge will be eliminated early in 2002, slashing consumers' electricity rates across by as much as 27 percent. Even if buying renewable energy is not the lowest cost option, consumers will be able to invest some of their savings in switching to renewable energy, and still pay less than what they're paying now. For example, once the stranded cost charge is removed, a residential customer could buy one of the five renewable products presently available in the Duquesne territory and still save from 1 cent to 2 cents per kWh. That's equal to savings of over \$100 a year! Buying renewable energy is one the best things that any home or business can do to clean our environment and ensure a more

sustainable future, and avoids an amount of pollution equal to planting 950 trees, not driving 20,000 miles, or taking 1.7 cars off the road! Pittsburgh area residents will be some of the first in the country to enjoy the elimination of the stranded cost charge.

See the attached document to view a complete listing of Green-e certified renewable energy products currently available in Pennsylvania!

#### The European Commission Evaluates the External Costs of Energy Production

The European Commission (EC) recently reported that the cost of generating electricity from coal is up to 120 times more expensive than wind, and 10 times more expensive than generating from solar photovoltaics. In a study quantifying what would happen to the cost of generating electricity from various fuel sources if environmental damage, health damage and other external costs were taken into account, the EC concluded that the cost to generate electricity from coal or oil would double, while the cost of production from natural gas would increase by 30 percent.

This is the first research project of its kind to calculate financial costs of socio-economic damages resulting from different fuel sources for the entire continent. The report concludes that the cost of environmental and health damage could be addressed by either taxing damaging fuels and technologies, or by encouraging or subsidizing cleaner technologies that avoid socio-environmental costs.

Since taxation on a continental level is difficult to achieve, the Commission has agreed to encourage renewables. In February, it published guidelines on state aid for environmental protection, which explicitly said, "Member States may grant operating aid to new plants producing renewable energy that will be calculated on the basis of the external costs avoided."

To conduct the study, the EC contributed 10 million Eurodollars to analyze 20 research projects from the past decade, and all member states of the European Union participated, as well as the United States. The EC will build on the results of this analysis with its recent launch of the NEWEXT (new elements for the assessment of external costs from energy technologies) research project, which will study additional elements for the evaluation of external costs, including the monetary valuation of mortality risk, evaluation of acidification and eutrophication on the ecosystem and biodiversity, and effects of major accidents in non-nuclear fuel chains, such as oil spills. For more information about the project, visit their website at <http://externe.jrc.es/>.

#### Mid-Atlantic Renewable Energy Coalition Preps for Major Campaign

The Mid-Atlantic Renewable Energy Coalition (MAREC) is gearing up to hit the airwaves to tout the terrific benefits of renewable energy. A coalition of clean energy advocates, renewable energy businesses and government officials, MAREC is developing a mass media campaign designed to increase consumer demand for renewable energy. Because Pennsylvania has the most vibrant renewable energy market in the Mid-Atlantic, the first year of the campaign will focus on reaching audiences in the greater metropolitan Pittsburgh and Philadelphia regions. MAREC is currently working with a consultant to develop the messages and images that will inform people about the benefits of green power and motivate people to take action, as well as raising funds and developing outreach efforts that will kick off in Pennsylvania this fall. Be on the lookout for the debut of this exciting new campaign! For more information about MAREC, contact Peter Adels at (215) 569-9695, or [adels@pennfuture.org](mailto:adels@pennfuture.org).

#### Renewable Energy Bills Await Hearings

In March, members of the renewable energy caucus introduced four bills in the Pennsylvania House of Representatives, which provide incentives, tax credits, and funding for renewable energy and energy efficiency. If passed, this package of b

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**Enron Mentions - 02/16/2001**

|                   |                                                                                  |
|-------------------|----------------------------------------------------------------------------------|
| <b>Sender</b>     | henry.means@enron.com                                                            |
| <b>Recipients</b> | ['steven.kean@enron.com', 'mark.palmer@enron.com', 'meredith.philipp@enron.com'] |
| <b>File</b>       | dasovich-j/all_documents/9204.                                                   |

Power Politics: Energy Crisis Offers Clues to the Workings Of Bush=20 Administration --- Cheney Does Heavy Lifting And Bush Rides Agenda; Taste f= or=20 Horse-Trading --- `A Lot of Pain in the West' The Wall Street Journal, 02/16/2001

Generators: No Plans To Build Peaking-Power Plants In Calif Dow Jones, 02/16/2001

Developments in California's Electricity Crisis Associated Press Newswires, 02/16/2001

Bush Pushes Energy Plan in Mexico Trade: President Wants to Cut Hemispheric= =20 Barriers for Oil, Gas and Electricity But it May Be a Hard Sell South of th= e=20 Border Los Angeles Times, 02/16/2001

Enron Corp. to Increase Investment in Argentina, Cronista Says Bloomberg News, 02/16/2001

Petrobras, Repsol Plan \$300-Mln Bolivian Pipeline, Valor Says Bloomberg News, 02/16/2001=20

Governor of Buenos Aires Shoots for the Presidency, the People's Discontent= =20 His Ammunition The Wall Street Journal, 02/16/2001

`Terms of Reference of Godbole Panel Must Include DPC Review' The Times of India, 02/16/2001

Indian Trade Unions Urge Government to Take Over Enron Project Asia Pulse, 02/16/2001

India: Enough is Enough for Enron Corp? Business Line (The Hindu), 02/16/2001

MSEB Tightening Screws on Power Thefts, Defaulters The Times of India, 02/16/2001

India State Pays Bills to Enron, But Electricity Crunch Persists=20 International Herald Tribune, 02/16/2001

Universal Signs Video-on-Demand Deal=20 The Industry Standard, 02/16/2001

California Questions Dominate Industry Conference Reuters, 02/15/2001

Judge in Court Challenge to Gov. Gray Davis Steps Down=20 Associated Press, 02/15/2001=20

Calpine Says California Must Address Debt to Traders=20 Bloomberg News, 02/15/2001

Enron Saga Spills Over Into Cyberspace Hindustan Times, 02/15/2001

Williams' EnergyNewsLive.com Features Top Energy Newsmakers=20 PR Newswire, 02/15/2001=20

Electric Deregulation Trial Run Begins Associated Press Newswires, 02/15/2001

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Power Politics: Energy Crisis Offers Clues to the Workings Of Bush=20 Administration --- Cheney Does Heavy Lifting And Bush Rides Agenda; Taste f= or=20 Horse-Trading --- `A Lot of Pain in the West' By Jeanne Cummings Staff Reporter of The Wall Street Journal

02/16/2001 The Wall Street Journal=20 A1 (Copyright (c) 2001, Dow Jones & Company, Inc.)=20

WASHINGTON -- George W. Bush had barely celebrated his belated presidential= =20 victory when he was hit by the energy crisis in the West.=20

In a series of telephone calls to Mr. Bush's Texas ranch before Christmas,= =20 Utah Gov. Michael Leavitt spent hours raising the alarm with the=20 president-elect's top aides. A supply squeeze had sent utility bills soarin= g=20 not just in California but in neighboring states as well, with the prospect= =20 of bigger spikes in the months ahead.

How Mr. Bush went on to handle the crisis, the first big challenge of his= =20 presidency, offers some early clues to how his White House will function. H= e=20 has leaned heavily on Vice President Dick Cheney to handle the details. Tha= t=20 allowed Mr. Bush to stick doggedly to his chosen public message -- and=20 shielded the president from some difficult policy choices. Even Mr. Leavitt= =20 never insisted on speaking directly to the new president, who was busy nami= ng=20 his cabinet.=20

Mr. Bush bent his free-market, limited-government principles to accommodate= a=20 crisis, but so far by only a little: He offered a single two-week extension= =20 of Mr. Clinton's executive order directing suppliers to sell power to nearl= y=20 bankrupt California utilities. While turning to national issues, Mr. Bush= =20 remained open to a state-level problem, offering his former gubernatorial= =20 colleagues a sensitive ear.=20

And he worked hard to use unexpected events to help buttress his arguments= =20 for his policy agenda. Just as he has used the economic slowdown to garner= =20 support for his tax-cut agenda, he hopes to use the Western energy crisis t= o=20 win political support in Congress for his controversial agenda of expanding= =20 exploration into environmentally sensitive areas in Alaska and the Rocky=20 Mountains.=20

Such exploration might not yield energy for years, or yield much power at= =20 all, especially of the sort California needs. But it's a pet project of a= =20 White House where the president and vice president are both veterans of the= =20 oil industry. Winning the necessary support for exploration is part of the= =20 challenge of drafting a comprehensive energy bill, which a team of top aide= s,=20 led by Mr. Cheney, is working to produce within 45 to 60 days.=20

The energy problem has shadowed Mr. Bush throughout the first month of his= =20 presidency. It commanded his private attention every day of his first week = in=20 office, even as he was publicly unveiling education-reform proposals. More= =20 recently, he has received regular briefings from Mr. Cheney, who is=20 consulting key members of Congress and energy experts. The matter will move= =20 front and center today when the president makes his first foreign visit, to= =20 Mexico, where he is expected to discuss expanded natural-gas exploration an= d=20 trade with Mexican President Vicente Fox Quesada. At the same time, Mr.=20 Cheney will be back in Washington convening the first working meeting of th= e=20 various cabinet secretaries whose departments will be affected by a nationa= l=20 energy bill.=20

Some top Republicans believe the energy crisis could cast an even larger=20 cloud over Mr. Bush's first year than the softening economy -- especially i= f=20 the continuing supply squeeze leaves Western consumers facing new price=20 increases this summer, as widely predicted. "We recognize that this is a=20 challenge we will be faced with at least through the summer. We're obviousl= y=20 monitoring it very closely," says Energy Secretary Spencer Abraham.=20

The problem has its roots in California's 1996 energy-deregulation bill,=20 signed by former GOP Gov. Pete Wilson. As part of the negotiations over the= =20 bill, the state's utilities agreed to buy power on short-term contracts,=20 making them vulnerable to wholesale-price swings. The law also capped=20 consumer bills, which meant rising fuel costs couldn't be passed along to t= he=20 users.=20

The situation became critical last year when natural-gas prices spiked upwa= rd=20 at the same time that hot summer weather and a booming economy increased=20 usage and low rainfall depleted the region's hydroelectric power. Californi= a=20 soon began gobbling up any available power in the Western region's electric= =20 grid, which drove wholesale rates sky-high and wound up increasing the=20 utility bills of consumers in neighboring states. Idaho residents, for=20 instance, saw their bills rise by 25%, while California users still benefit= ed=20 from retail-price caps.=20

So Gov. Leavitt wasn't the only Western governor trying to get the new=20 president to focus on the issue. Wyoming Gov. Jim Geringer raised it on Jan= .=20 9, when he and Mr. Bush were standing together in the pasture parking lot o= f=20 the Bush ranch, awaiting the arrival of other Republican governors invited = to=20 a Bush-sponsored barbecue. The issue was also discussed later among all the= =20 governors, but only in broad terms, participants say.=20

Three days later, Clinton administration officials convened the first meeti= ng=20 of all the parties involved in the California crisis. To provide a voice fo= r=20 Mr. Bush's team, Clinton aides invited the president-elect's friend and=20 fellow Texan Kenneth Lay, head of Houston-based Enron Corp. As the largest=



*Message 1115 of 1299***Search Committee for New Dean Announced; Dean Tyson to Step Down in**

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| <b>File</b>       | dasovich-j/deleted_items/818.      |

Haas NewsWire October 22, 2001

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Search Committee for New Dean Announced; Dean Tyson to Step Down in December 2001 Haas School Evacuation: Preparing for Next Time Haas Students Tutor at Skyline High School Ganesh Iyer Named 2002-2003 Schwabacher Fellow Dan Sullivan and Pat Riegg Recognized with Chancellor's Outstanding Staff Award Faculty News New Staff Haas in the News Happening at Haas Haas Celebrations

**SEARCH COMMITTEE FOR NEW DEAN ANNOUNCED; DEAN TYSON TO STEP DOWN IN DECEMBER 2001**

Vice Provost Jan de Vries has announced the members of the search committee for the new dean at the Haas School. A memorandum was distributed to the Haas community via e-mail on Friday afternoon.

The memorandum included an incorrect date for Dean Tyson's departure from Haas. She will resign her position as dean at the end of December 2001 as she had planned. Ben Hermalin, associate dean for academic affairs, will be interim dean from January 1, 2002 until a new dean is in place.

The committee responsible for conducting a search and making recommendations for the next dean of the Haas School has been named. The members are:

Barbara Horst Broque, assistant dean for planning, Haas School of Business Barry Eichengreen, professor , Department of Economics Hans Grande, MBA 02, MBA student and president of the Haas School MBA Association Robert D. Haas, BA 64, chairman, Levi Strauss & Co. Herma Hill Kay, professor, Boalt Hall School of Law David J. Vogel, the George Quist Professor of Business Ethics, Haas School James A. Wilcox, the Kruttschnitt Family Professor of Financial Institutions, Haas School Janet L. Yellen, the Eugene E. and Catherine M. Trefethen Professor of Business Administration, Haas School

Professor Mark Lemley of the Boalt Hall School of Law will serve as chair of the committee. Another alumni member of the search committee is likely to be announced soon, according to officials.

The committee will consult with the school community for both suggestions and views on candidates. De Vries, who is vice provost for academic affairs and faculty welfare, formed the committee after consultation with various campus constituencies.

**HAAS SCHOOL EVACUATION: PREPARING FOR NEXT TIME**

The Haas School was evacuated and the school was closed for classes and business last Wednesday afternoon after receiving a report of an unknown substance on several items of mail in an office in the faculty building. Both UC Police and a hazardous materials team were called in to conduct field tests and secure the scene. Officials reported that the substance was not hazardous. The event gave school officials a chance to witness the Haas emergency plan in action.

"Overall the emergency plan was very effective, but there are some issues to be addressed," said Jay Stowsky, associate dean for school affairs and initiatives. "We need to make sure that all of the faculty, staff, and students know what to do in case of an emergency."

The Haas School administration has an official emergency plan. All faculty and staff are responsible for familiarizing themselves with the procedures outlined in building emergency plan. The full emergency plan can be downloaded at <<http://www.haas.berkeley.edu/haas/emrginf2.html>>. Haas Facilities Manager Edward Madera is working on a one-page emergency preparedness fact sheet for faculty, staff, and students to have on hand for reference.

In the meantime, it is important to remember a few simple rules for evacuating the building:

+ Stay calm, do not rush, and do not panic. + Safely stop your work. + Gather your personal belongings if it is safe to do so. (Take prescription medications, your home and car keys, and your wallet with you if at all possible; it may be hours before you are allowed back in the building.) + If safe, close your office door and window, but do not lock them. + Use the nearest safe stairs and proceed to the nearest exit. Do not use the elevator. + Proceed to the designated Emergency Assembly Area (EAA): +From the faculty building, evacuate to Gayley Plaza located directly in front of the Haas School. +From the student services building, evacuate to the Boalt Hall parking lot. +From Cheit Hall, evacuate west of Cheit Hall between Minor Hall (the optometry building) and the Women's Faculty Club. + Wait for any instructions from emergency responders. + Do not re-enter the building or work area until you have been instructed to do so by the emergency responders. + If you are told to leave the area and later on want information on the status of the Haas School, visit the Haas web page at <<http://haas.berkeley.edu/>>.

For the latest instructions campus-wide emergency preparedness visit the UC Berkeley Office of Emergency Preparedness site at <<http://public-safety.berkeley.edu/oepweb/>>. This site also has information on mail handling procedures.

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#### HAAS STUDENT TUTOR AT SKYLINE HIGH SCHOOL

Lending a hand to high school students, even in a small way, can make a world of difference. The Haas School's outreach program Young Entrepreneurs at Haas (YEP) has done just this for years, and now the MBA students are adding to this outreach by tutoring at Skyline High School in Oakland.

Every Monday (the class-free day of the week), Haas MBA students travel to Skyline High School to tutor students in math, English, and career planning as part of the MBA Education Club. The tutoring takes place during the Skyline lunch hours.

The tutoring program started last year after J.P. Tennant, MBA 01 and former emergency relief teacher at Skyline, organized a small group of students to give some of their time to help Oakland students with academics. This year the MBA Education Club has continued the tutoring program at Skyline and needs more volunteers.

"If we get more support from Haas students we will expand the program to Berkeley High this year," said Doug Buzbee, MBA 02, the tutoring program coordinator. "Without greater involvement from students though, we may have difficulty sustaining the current program at Skyline, let alone expanding into Berkeley."

Skyline High School students, teachers, and administrators alike appreciate the tutoring provided by Haas MBA students. Jim Delbridge, a 10th grade math teacher, provides his classroom during lunch hours so that students can get help from Haas volunteers. The level of help needed is basic - reading, algebra, analytical geometry, and some calculus - but Skyline students benefit and genuinely appreciate the help.

"Tutoring at Skyline is obviously rewarding unto itself," says MBA student Jon Metzler. "But as a Haas student, it's also a way to keep connected with the local community, which I think lends perspective to what we do at Haas."

If students are interested in becoming a Haas tutor, please contact Doug Buzbee at [buzbee@haas.berkeley.edu](mailto:buzbee@haas.berkeley.edu).

In addition to the Education Club's tutoring initiative at Skyline, eight Young Entrepreneur Program mentors meet twice a month here at Haas with fifteen Skyline students. These Skyline students are part of the 84 students involved in the Haas-based Young Entrepreneurs Program this year. The 2001 YEP class members hail from over 20 schools across the Oakland, Berkeley, and West Contra Costa school districts. YEP, which was founded in 1989, teaches basic business skills to 9th and 10th graders and is supported by more than forty Haas MBA volunteer mentors/business coaches.

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#### GANESH IYER NAMED 2002-2003 SCHWABACHER FELLOW

Ganesh Iyer, assistant professor in the marketing group, was selected as the Schwabacher Fellow for 2002-03. The fellowship is the highest

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**FW: POWER: California Department of Water Resources -- Fitch**

|            |                                                                                  |
|------------|----------------------------------------------------------------------------------|
| Sender     | f..calger@enron.com                                                              |
| Recipients | ['tracy.ngo@enron.com', 'michael.mcdonald@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/deleted_items/137.                                                    |

Chris Calger 503-464-3735

FYI -----Original Message----- From: Jon Cartwright [mailto:JCartwright@FI.RJF.com] Sent: Friday, August 24, 2001 1:23 PM To: 'RJF Energy-Gram (E-mail)' Subject: POWER: California Department of Water Resources -- Fitch Teleconference: 24 Aug 2001 8:29 AM

Fitch-NY-August 24, 2001:

On Wednesday, August 29 at 3 p.m. (EDT), Fitch will host a teleconference to address frequently asked questions about the legal structure and creditworthiness of the California Department of Water Resource's (DWR) Power Fund.

In addition, the teleconference will address any issues related to pending matters at the California Public Utilities Commission that could affect the ability of the DWR Power Fund to issue bonds. Fitch analysts Donna DiDonato and Steven Fetter will host the call.

Participants in the U.S. and Canada should call 1-888-542-8839 five minutes prior to the 3 p.m. (EDT) start time. International participants should call 1-706-634-1731. The identification number for the call is 1673543 (California Department of Water Resources).

A replay of the teleconference will be available two hours after the conclusion of the call until 5 p.m. on Sept. 5, 2001. To access the replay, participants in the U.S. or Canada should call 1-800-642-1687 while international participants should call 1-706-645-9291.

Contact: Donna DiDonato 1-212-908-0637 or Steven Fetter 1-212- 908-0555, New York.

Media Relations: James Jockle-212-908-0547, New York.

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**RE: California Republican Party**

|            |                                                        |
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| Recipients | ['paul.kaufman@enron.com', 'ginger.dernehl@enron.com'] |
| File       | dasovich-j/sent_items/786.                             |

Oops. It's Shawn, not Sean. And here's what I got.

Shawn Steele 323-951-9000 (law office) 818-841-5210 (Rep. Party HQ)

-----Original Message-----

From: Dernehl, Ginger Sent: Thursday, October 25, 2001 12:35 PM To: Dasovich, Jeff; Kaufman, Paul Subject: RE: California Republican Party

I found it already. Thanks!

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: Dasovich, Jeff Sent: Thursday, October 25, 2001 12:31 PM To: Kaufman, Paul; Dernehl, Ginger Subject: RE: California Republican Party

His name is Sean Steele. I'll have his number pronto.

-----Original Message-----

From: Kaufman, Paul Sent: Thursday, October 25, 2001 12:10 PM To: Dernehl, Ginger Cc: Dasovich, Jeff Subject: RE: California Republican Party

You're guess is as good as mine. Jeff?

-----Original Message-----

From: Dernehl, Ginger Sent: Thursday, October 25, 2001 9:43 AM To: Kaufman, Paul Subject: RE: California Republican Party

Who is the chairman? Maybe I can find the number on their internet site.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: Kaufman, Paul Sent: Thursday, October 25, 2001 11:20 AM To: Dernehl, Ginger Subject: California Republican Party

Rick asked me to send him the phone number for the Chairman of the California Republican Party. I don't have his phone number, but I do have the number of Tiffany A. Gharagozlou (Deputy Finance Director). Her number is 818.841.5210.

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Message 1118 of 1299

## UC Berkeley and the Haas School Respond to the National Tragedy

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| Sender     | haasnews@haas.berkeley.edu         |
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Haas NewsWire September 17, 2001

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UC BERKELEY AND THE HAAS SCHOOL RESPOND TO THE NATIONAL TRAGEDY Nearly a week after the terrorist attacks on America, the Haas School community has expressed its sadness, shock, and concern in a series of events on campus with more to follow.

As of Monday, the Haas School was waiting for definitive word on whether or not any Haas alumni or students were missing or confirmed dead in these attacks. The Haas NewsWire will report on any losses when official confirmation is available. In addition, alumni and students have been using the Haas e-mail mailing lists to account for alumni in New York City and Washington DC.

Dean Tyson has opened two previously scheduled MBA student lunches to the entire Haas community so that everyone can join her to discuss how last week's tragedy has touched their lives and the Haas School community. The first lunch will be on Tuesday, September 18, and the second on Wednesday, September 19. Both lunches will be held at 12:45 in the Haas courtyard.

Tyson was stranded for most of last week in New York City, where she had traveled on school business. In her absence, Ben Hermalin, associate dean of academic affairs, called for an informal gathering for faculty, students, and staff to provide a forum for discussion and support on the day of the attacks. In addition, some classes and events were canceled that day, and students, faculty, and staff gathered in the Bank of America Forum to watch the news unfold on television and to discuss the implications of these sad events.

On the central campus, Chancellor Robert Berdahl called for a moment of silence on Friday, September 14, at noon as the campanile bells tolled, marking the national day of mourning. On September 17, a well-attended campus-wide memorial service for the victims of the attacks was held on Memorial Glade.

In the coming days, the information below regarding blood drives, contributions, and activities may be of help.

+ According to central campus, there are no more appointments available at the on-campus blood drives scheduled for this week. The local chapter of the American Red Cross also reports their supplies are at capacity but they emphasize that the need for blood will be ongoing. At this time they are asking that you wait until next Friday, September 21, to register to give blood. Normally they take walk-ins at the donation center at 6230 Claremont Ave., but under the current circumstances they ask that you register in advance by phoning: 1-800-GIVE LIFE.

+ The Berkeley campus has created this site, <http://www.berkeley.edu/news/specupdates/index.html>, for updates on events and building closures on campus.

+ Last Friday evening, the MBA students put together an impromptu fundraising barbecue for the Red Cross, which raised just over \$2,300. If you missed the opportunity to give on Friday, visit the Red Cross site at <http://www.redcross.org/>.

+ The site at <http://www.finebrand.com/statuses>, which the Haas School recommended as a resource to find missing friends in the Haas community, has been shut down. The federal government site, <http://www.firstgov.gov/featured/usgresponse.html>, has links to many survivor registries. A group of Berkeley students also created a site with links to many of the sites for survivor registries, donations, and of companies affected by the attack: <http://safe.millennium.berkeley.edu/>.

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#### HAAS IN THE NEWS

Peter Sealey, adjunct professor and co-director of the Center for Marketing and Technology, was quoted in the in the Los Angeles Times on September 14 discussing what is inappropriate advertising in the aftermath of national disasters. Read the full story here: <http://latimes.com/templates/misc/printstory.jsp?slug=la%2D000073994sep14>.

Terrance Odean, assistant professor in Finance, was quoted by the San Jose Mercury News on September 14 in the story "Advise to investor: stay calm." Read more here: <http://www0.mercurycenter.com/business/center1/invest0914.htm>.

The Los Angeles Times featured Janet Yellen, the Eugene E. and Catherine M. Trefethen Professor of Business Administration and Haas Economic Analysis and Policy Group, on September 14 in an article commenting on the impact of Tuesday's tragedy on the economy. Read the article here: <http://latimes.com/templates/misc/printstory.jsp?slug=la%2D000073998sep14>.

On September 13 the Los Angeles Times featured Peter Sealey in an article discussing the losses in advertising for many companies whose commercials and ads have been interrupted by the coverage of Tuesday's attack. Read more here: <http://latimes.com/templates/misc/printstory.jsp?slug=la%2D000073835sep13>.

The Chicago Tribune quoted Terrance Odean on September 13 in an article titled "There's only 1 sure thing for investors: Uncertainty." Read the full story here: <http://www.chicagotribune.com/business/printedition/chi-0109130257sep13.story>

Ken Rosen, the California State Professor of Real Estate and Urban Economics and chairman of the Fisher Center for Real Estate and Urban Economics, was quoted in the Globe and Mail on September 13 discussing the impact that the destruction of the World Trade Center had on projected buildings and structural design.

Priya Raghubir, assistant professor in the Haas Marketing Group, appeared in the Kentucky Gleaner on September 12 commenting on the spending habits of men versus women.

Terrance Odean, was quoted in the Los Angeles Times on September 12 in an article on the future of the US stock market. Read the article here: <http://latimes.com/templates/misc/printstory.jsp?slug=la%2D091201invest>.

The Wall Street Journal featured an article about the Berkeley-Columbia Executive MBA program on September 11 titled "Business Schools Expand MBAs for Executives."

Dow Jones Newswires quoted Abby Scott, director of Haas Career Services, in the article "Wall Street Cuts Back on Campus Recruiting, MBA Hires" on September 7, which discussed the difficulty of getting a job offer for MBAs.

## HAPPENING AT HAAS

C4C Bowling Night 1st fundraiser of the academic year September 19, 2001 9:00 p.m. to 11:30 p.m. For more information, contact Wendy Hsu at 510-524-3502 or email at [whsu@haas.berkeley.edu](mailto:whsu@haas.berkeley.edu).

Berkeley Entrepreneurs Forum The Window Cracks Open: IPOs in the 2001 Market Thursday, September 20, 2001 6:30 p.m. to 9:00 p.m. Arthur Andersen Auditorium, Haas School of Business Price \$35 pre-registration, \$45 at door; Deadline Tuesday, September 18, Office/Department Register by fax, (510) 642-4110, or phone, 510-642-4255, or Room F450 at the Haas School of Business. Beverages and hors d'oeuvres will be served. Attire: Business casual For more information, contact Kathryn Thorpe, 510-642-4255, email: [thorpe@haas.berkeley.edu](mailto:thorpe@haas.berkeley.edu) or visit <http://www.haas.berkeley.edu/groups/lester/sep01.html>.

Joint Finance-Real Estate Seminar "Option Exercise Games: An Application to the Equilibrium Investment Strategies of Firms" by Steven Grenadier, Stanford University Thursday, September 20, 2001 4:15 p.m. to 5:45 p.m. Room C110, Cheit Hall For more information, contact June Wong at [june@haas.berkeley.edu](mailto:june@haas.berkeley.edu).

The 5th Annual Knowledge Forum New Patterns of Management in the Knowledge Economy: The Fifth Annual UC Berkeley Forum on Knowledge and the Firm Friday, September 21, 2001 Arthur Andersen Auditorium at the Haas School of Business Register for Forum at [conference@haas.berkeley.edu](mailto:conference@haas.berkeley.edu) For more information, contact, Catt Olazabal at 510-642-4041 or visit <http://groups.haas.berkel>

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Message 1119 of 1299**Meetings in Sacramento**

|            |                                                                                                                                                                                                                |
|------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sender     | <a href="mailto:jeff.dasovich@enron.com">jeff.dasovich@enron.com</a>                                                                                                                                           |
| Recipients | [' <a href="mailto:paul.kaufman@enron.com">paul.kaufman@enron.com</a> ', ' <a href="mailto:susan.landwehr@enron.com">susan.landwehr@enron.com</a> ', ' <a href="mailto:skean@enron.com">skean@enron.com</a> '] |
| File       | <a href="#">dasovich-j/sent/4424.</a>                                                                                                                                                                          |

FYI. Karen, can you forward along to Marathon. Thanks.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 05/01/2001 05:47 PM -----

=09Rosalee Fleming =0905/01/2001 05:45 PM =09=09=20 =09=09 To: Jeff Dasovich/NA/Enron@Enron =09=09 cc: Janel Guerrero/Corp/Enron@Enron, Richard Shapiro/NA/Enron@Enron =09=09 Subject: Meetings in Sacramento

THURSDAY, MAY 3, 2001

8:00 a.m. - Meeting with David Freeman to your suite at the Hyatt Regency=20 10:00 w/Steve Kean Contact: Robin at 916-322-6988 Sedan to take you to the Capitol=20

10:30 a.m. - Meeting with Jim Brulte Capitol =01) Room 305 in the restored section Contact: Susan Mahea=20 916-445-3688 =20 11:00 a.m. - Meeting with Senator John Burton Room 205 Scheduler: Linda 916-445-1412

12:00 noon - Possible lunch with Assembly Member David Cox Scheduler: Cheyene =01) 916-319-2005

1:00 p.m. - Meeting with House Speaker Robert Hertzberg 916-319-2040

2:00 p.m. - Meeting with John Campbell Room 2174 Contact: Matt Back 916-319-2535

Depart for San Francisco

Bev Hanson is

---

*Message 1120 of 1299***EES SAP Reference Material**

|                   |                              |
|-------------------|------------------------------|
| <b>Sender</b>     | murthy.rao@enron.com         |
| <b>Recipients</b> | [ees_employees@enron.com]    |
| <b>File</b>       | dasovich-j/administrative/3. |

Please do not reply to this message!!! Your response will be distributed to ALL EES Employees, including EES Executives. For your convenience, we have provided a detailed listing of contact information of the EES SAP Team.

A Message from your EES SAP Team,

As you already know, the legacy MSA system for EES is scheduled to go away on July 1, 2000 with the implementation of SAP. In order to smooth the transition, the EES SAP Team will start distributing key information to every employee at EES through Lotus Notes. With this in mind, attached below are several files that will help ease the transition to SAP. Please keep this e-mail for future reference.

For these and other helpful documents, please visit the Apollo website ( <http://sap.enron.com/> ) or our EES SAP website ( <http://inet.ees.enron.com/vision/comm/sap/> ) both of which will be updated with any changes going forward.

For questions, please contact the EES SAP Finance Support Staff:

Kem Miller 713-853-6965 Chip Brenner 713-345-8793 Murthy Rao 713-853-4246 COE - Help Desk 713-345-4SAP (713-345-4727)

For other SAP related questions, please contact the EES SAP Site Managers: Bobby Mahendra (Finance) - 713-345-8467 Daler Wade (HR) - 713-853-5585

We look forward to a smooth transition to SAP. Please review the attachments below.

ATTACHMENTS (this information is valid as of 6/25/00. Any updates to this information will be posted to the respective websites):

- 1) The following attachment contain a list of all MSA RC's and their corresponding SAP Cost Centers. In SAP the Company Code is 4 digits with a "0" preface, e.g. "985" is now "0985" . Please note that after "Go Live" July 1, 2000, MSA RC's will be replaced with SAP Cost Centers.
- 2) The following attachment relates to common expense coding.
- 3) For some SAP accounts, a functional area and/or a material number is required for specific tracking purposes.
- 4) A SAP Employee Expense Report
- 5) Accounts Payable requires you to fill out a SAP Invoice Coding Sheet when sending an invoice for payment in place of the current Invoice Stamp.
- 6) Useful only for people who code expenses or time to "E" Work Orders, the following is the conversion list of all MSA "E" Work Orders to SAP Stat Orders.
- 7) A detailed SAP Chart of Accounts.
- 8) Useful only for people who code expenses or time to "S" Work Orders. the following is the conversion list of all MSA "S" and "J" Work Orders to SAP WBS Elements (Projects).



Message 1121 of 1299

**Re: Q2 for Patten Case**

|            |                              |
|------------|------------------------------|
| Sender     | jeff.dasovich@enron.com      |
| Recipients | ['kkupiecki@arpartners.com'] |
| File       | dasovich-j/sent/312.         |

Agreed 100%--call me an engineer.

Kimberly Kupiecki <kkupiecki@arpartners.com> on 09/18/2000 11:41:52 AM To: jdasovic@enron.com cc: Subject: Re: Q2 for Patten Case

Hi Jeff,

I think we got the jist, even if the numbers aren't perfect - guess I am still and engineer, estimations work well for me.

At 08:44 AM 9/18/00, jdasovic@enron.com wrote:

*No, I don't think I'd make a better accountant. But I did ask a few questions of my accountant brother-in-law. You did a great job. I don't know how much time I'll have, but I'll see if I can throw in a bit of text and raise the issues. See you tonite. Kimberly Kupiecki <kkupiecki@arpartners.com> on 09/18/2000 09:53:30 AM To: jdasovic@enron.com cc: dwindham@uclink4.berkeley.edu, jjackson@haas.berkeley.edu, jcjal02@aol.com Subject: Re: Q2 for Patten Case Hi Jeff, I guess you would make a better accountant than me. Your analysis sounds right. Feel free to make changes as fit. My apologies for missing out on these items. At 06:18 PM 9/17/00, jdasovic@enron.com wrote: >Hey, nice spreadsheet. Two minor questions: > >1) Isn't the provision for taxes on the income statement actually the taxes >on the 'income' they made from using the sales method (equal to 46%), >rather than what they pay will actually pay the IRS under the installment >method? I think the notes show how instead of paying the 4.1\$ based on >their recognized income, they pay some itty bitty amount based on >installment. If so, I think they actually get a 46% tax break on the 1 >million and change that they lose using a cash basis. Still a loss, just >not so big. Anyway, I'm not sure if I'm thinking straight on this, but >that's how I read the numbers. > >2) Does the balance sheet have to change a little? For example, does >shareholder equity change since the income that goes to retained earnings >is now a loss, rather than a gain? Also, if revenue is recognized on a >cash basis and is now much smaller, there needs to be another liability to >equal out the decrease in revenues with the still large notes receivables >on the asset side (as you note in the answer the notes recievables stays >the same). Seems like they might need a liability like "deferred profits" >or some such thing, such that the ["deferred profits" + revenues >(recognized on cash basis)] = notes receivables. > >Anyway, I may not have this right, but thought I'd bring it up to see what >you think. > >Best, >Jeff Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801*

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 1122 of 1299

**Pac Rim Trip PRICE REDUCTION!**

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | ktsanes@haas.berkeley.edu                                                                                           |
| Recipients | ['mba03@haas.berkeley.edu', 'exectours@earthlink.net', 'mlynarz@haas.berkeley.edu', 'owner-mba02@haas.berkeley...'] |
| File       | dasovich-j/inbox/843.                                                                                               |

Greetings from the Pac Rim Club!

We've been able to get a discount of \$100 on the tour price from Executive Tours, lowering the price of the Pac Rim tour to \$2,085 for double occupanc= y and \$2,455 for single occupancy. (This discount is dependent on having a minimum of 10 participants on the trip.) The new lower prices apply to new sign-ups as well as to those currently registered for the trip. In the event the tour does not get a minimum of ten participants, anyone who registers may request and will receive a full refund of their deposit. Along with these new price cuts, the deadline for registration has been extended to Friday,

November 2nd. If you are interested in participating in the Pac Rim trip, please contact Richard Price a.s.ap. by phone at (800) 521-0070 or (714) 897-0074, or by email at [rextours@earthlink.net](mailto:rextours@earthlink.net). For more information about the Pac Rim trip, please visit our website: <http://groups.haas.berkeley.edu/pacrim/Pacrim.htm> Please feel free to contact me as well if you have questions. -- Home Home: (510) 525-2880, Cell Phone: (510) 504-9999 ~ William Ktsanes

Discover Southeast Asia! -- Thailand, Cambodia, Vietnam & Singapore

Haas Pacific Rim Trip 2002

More information about the trip on the Haas Pac Rim Club web site:

<http://groups.haas.berkeley.edu/pacrim/Pacrim.htm>

Information about the Haas Pac Rim Club:

<http://groups.haas.berkeley.edu/pacrim/index.htm>

This year's trip is going to be fantastic!!

Itinerary

Bangkok, Thailand offers incredible temples, outstanding cuisine, fantastic shopping and the friendliest people you've ever met. Thailand is called the Land of a Thousand Smiles for good reason.

Siem Reap (Angkor), Cambodia: The magnificent temples of Angkor have only recently opened to tourism after years of civil war and unrest. Now is a perfect time to visit these timeless wonders before they are marred by the rapid growth in tourism.

Ho Chi Minh City (Saigon), Vietnam: This is the most vibrant and dynamic country in Southeast Asia. Saigon is sophisticated, exciting and endlessly fascinating, from its glorious French colonial architecture to its modern club scene and nightlife.

Nha Trang, Vietnam: Endless white sand beaches, warm sunshine, tropical breezes. Need we say more?

Singapore: We will only have one overnight in Singapore as a result of the airline schedule. But what a great city to spend a night! Discover Little India, Arab Street, pubs along Boat Quay or sample Malay cuisine at a hawkers stand.

Details

NEW Low Prices: \* \$2,085 Per-Person, Double Occupancy \$2,455 Per-Person, Single Occupancy

Including round-trip airfare from San Francisco on Singapore Airlines. \* The Early-Registration Discount applies to participants who register for the tour and submit their deposit on or before November 2, 2001. After October 19, 2001, the tour prices increase by \$50 per-person.

More Information Registration has begun! If you'd like to join us or for more information, call 1-800-521-0070 or (714) 897-0074. Presented by the Pacific Rim Club and Executive Tours International.

---

Message 1123 of 1299

#### CERA Conference Call: FERC's Order for California Market: Bold

|            |                                                                                    |
|------------|------------------------------------------------------------------------------------|
| Sender     | margaret.carson@enron.com                                                          |
| Recipients | ['james.steffes@enron.com', 'scott.kauffman@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/3197.                                                     |

This upcoming call and Q AND A may be of interest. Margaret ----- Forwarded by Margaret Carson/Corp/Enron on 11/08/2000 08:19 AM -----

webmaster@cera.com on 11/07/2000 09:04:48 PM To: Margaret.Carson@enron.com cc:

Subject: CERA Conference Call: FERC's Order for California Market: Bold Decision of Insufficient Action? - CERA Conference Call

\*\*\*\*\* CERA Conference Call: Sent Tue, November 07, 2000  
\*\*\*\*\*

Title: CERA Conference Call: FERC's Order for California Market: Bold Decision of Insufficient Action? Author: E-Mail  
Category: Conference Call Product Line: Western Energy , North American Power , URL:  
<http://www.cera.com/cfm/track/eprofile.cfm?u=3014&m=1412> ,  
<http://www.cera.com/cfm/track/eprofile.cfm?u=3014&m=1413> ,

Alternative URLs: Western Energy Members: [http://www.cera.com/client/ce/cc/110700\\_16/ce\\_cc\\_110700\\_16\\_ab.html](http://www.cera.com/client/ce/cc/110700_16/ce_cc_110700_16_ab.html) N.  
American Electric Power Members: [http://www.cera.com/client/nap/cc/110700\\_16/nap\\_cc\\_110700\\_16\\_ab.html](http://www.cera.com/client/nap/cc/110700_16/nap_cc_110700_16_ab.html)

\*\*\*\*\* North American Electric Power and Western Energy  
Conference Call A Cambridge Energy Research Associates Conference Call

TOPIC FERC'S ORDER FOR THE CALIFORNIA MARKET: BOLD DECISION OR INSUFFICIENT ACTION?

\* A FERC Vote for Market Solutions \* Where is the Relief for Retail Customers? \* What's Next for California and Western  
Wholesale Markets? \* Implications for the Broader North American Power Market

FORMAT At the time listed below, our speakers will address this topic for approximately 30 minutes, followed by an open  
question and answer period.

SPEAKERS Larry Makovich, CERA Senior Director, North American Electric Power Mike Zenker, CERA Director, Western  
Energy

TIME 1:00 P.M. Eastern, Monday, November 13, 2000

ELIGIBILITY Clients eligible to participate in this conference call are those who subscribe to the North American Electric  
Power Retainer Advisory Service or the Western Energy Retainer Advisory Service.

TO ENROLL To enroll, please contact Ms. Kari Paakaula via fax at (617) 497-0423, or enroll via e-mail at  
[kpaakaula@cera.com](mailto:kpaakaula@cera.com) before 4:00 P.M., Friday, November 10, 2000.

AUDIO For the audio portion of the call, please call in on one of the following numbers approximately five (5) minutes  
before the call:

Within the United States: 1-800-946-0741 Outside the United States: (719) 457-2649 Confirmation Code: 640107 Title of  
the call: CERA Call

TECHNICAL ASSISTANCE U.S. callers: If you are experiencing difficulties during the call, you may signal for technical  
assistance by pressing \*0 (star, zero) on your telephone keypad

International callers: Please re-dial and ask the operator for assistance before giving the confirmation code.

A recording of this call (audio only) will be available until December 13, 2000. To access this recording, please call  
1-888-203-1112 (within the U.S.) or (719) 457-0820 (outside the U.S.). Please use confirmation number 640107 to access  
the call.

\*\*\*\*\* \*\* For more information, please contact Kari Paakaula via e-mail at  
[kpaakaula@cera.com](mailto:kpaakaula@cera.com) or via telephone at (617) 441-1362.

\*\*end\*\*

Follow URL for HTML version of this message only.

\*\*\*\*\* Account Changes To edit your personal account  
information, including your e-mail address, etc. go to: <http://eprofile.cera.com/cfm/edit/account.cfm>

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Message 1124 of 1299

## Dynegy and NRG Energy Announce Long-term Agreement With California

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                         |
| Recipients | ['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/all_documents/9702.                                                  |

----- Forwarded by Jeff Dasovich/NA/Enron on 03/06/2001 04:24 PM -----

Jean Munoz <jmunoz@mcnallytemple.com> 03/06/2001 02:36 PM

To: Katie Kaplan <kaplan@iepa.com>, "Andy Brown (E-mail)" <ABB@eslawfirm.com>, "B Brown Andy (E-mail)" <andybrwn@earthlink.net>, "Baker Carolyn (E-mail)" <cabaker@duke-energy.com>, "Bob Escalante (E-mail)" <rescalante@riobravo-gm.com>, "Bob Weisenmiller (E-mail)" <rbw@mrwassoc.com>, "Curtis Kebler (E-mail)" <curtis\_l\_kebler@reliantenergy.com>, "Douglas Kerner (E-mail)" <DKK@eslawfirm.com>, "Greg Blue (E-mail)" <gtbl@dynegy.com>, "Jan Smutny-Jones (E-mail)" <smutny@iepa.com>, "Jeff Dasovich (E-mail)" <Jeff.Dasovich@enron.com>, "Joe Ronan (E-mail)" <joer@calpine.com>, "John Larrea (E-mail)" <john.g.larrea@williams.com>, "John Stout (E-mail)" <John\_H\_Stout@reliantenergy.com>, "Julee Malinowski-Ball (E-mail)" <jmball@ns.net>, "Kassandra Gough (E-mail)" <kgough@calpine.com>, "kent Palmerton (E-mail)" <kent.palmerton@williams.com>, "Kristin Vellandi (E-mail)" <kvellandi@pstrategies.com>, "Lynn Lednický (E-mail)" <lale@dynegy.com>, "Marty Wilson (E-mail)" <mwilson@pstrategies.com>, "McNally Ray (E-mail)" <rmcnally@mcnallytemple.com>, "Nam Nguyen" (E-mail)" <nam.nguyen@powersrc.com>, "Norton Kelli (E-mail)" <knorton@mcnallytemple.com>, "Paula Hall-Collins (E-mail)" <paula.hall-collins@williams.com>, "Pigott Jack (E-mail)" <jackp@calpine.com>, "Richard Hyde (E-mail)" <rwhyde@duke-energy.com>, "Rob Lamkin (E-mail)" <rllamkin@seiworlwide.com>, "Roger Pelote (E-mail)" <roger.pelote@williams.com>, "Stephanie-Newell (E-mail)" <stephanie-newell@reliantenergy.com>, "Sue Mara (E-mail)" <smara@enron.com>, "Theo Pahos (E-mail)" <tpahos@ppallc.com>, "Tom Ross (E-mail)" <tross@mcnallytemple.com>, "Carol H Hudson (E-mail)" <Chudson@iepa.com>, steven kelly <steven@iepa.com>, <danielle.quan-hill@mirant.com>, "Anne Kelly (E-mail)" <kelly@hnks.com>, "Chuck Cole (E-mail)" <ccole@advocation-inc.com>, "Delany Hunter (E-mail)" <dhunter@smithandkempton.com>, "DJ Smith (E-mail)" <djsmith@smithandkempton.com>, "Hedy Govenar (E-mail)" <hgovenar@acom2.com>, <mmoretti@mccabeandcompany.net>, "Maureen OHaren (E-mail)" <Oharen@hmot.com>, "Mike Monagan (E-mail)" <mrmnagan@aol.com>, "Phil Isenberg (E-mail)" <isenberg@hmot.com>, "Robert Ross (E-mail)" <robbiz@cwo.com>, "Ron Tom (E-mail)" <Rtom@govadv.com>, "Scott Govenar (E-mail)" <sgovenar@govadv.com>, "Susan McCabe (E-mail)" <sfmccabe@mindspring.com>, <rtemple@mcnallytemple.com>, <twillia@duke-energy.com> cc: Subject: More IEP news 3/6

More IEP news for today .... thanks! Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

March 6, 2001, Tuesday 02:30 PM Eastern Time

DISTRIBUTION: Business Editors

LENGTH: 1190 words

HEADLINE: Dynegy and NRG Energy Announce Long-term Agreement With California Department of Water Resources

DATELINE: HOUSTON & MINNEAPOLIS, March 6, 2001

BODY:

Dynegy Inc. (NYSE:DYN) and NRG Energy, Inc. (NYSE:NRG) today announced that their affiliates, El Segundo Power LLC, Long Beach Generation LLC and Cabrillo I LLC, have entered into an agreement with the California Department of Water Resources (DWR) to provide the state with up to 2,300 megawatts (MW) of energy through 2004.

Under the terms of the agreement which begins today, Dynegy and NRG's affiliates will provide 1,000 MW to DWR for the balance of 2001, and beginning January 1, 2002 will provide up to 2,300 MW. Financial and other terms of the transaction were not disclosed.

"Since last summer, Dynegy and NRG have continued to produce all the power the state has requested. We have worked diligently with the DWR to capture the value of our in-state generation, balanced with California's long-term energy needs," said Steve Bergstrom, president and chief operating officer of Dynegy Inc.

Craig A. Mataczynski, president and chief executive officer of NRG North America, said, "Today's announcement solidifies our commitment to eliminating uncertainty for our respective shareholders and restoring price stability and future reliability to the California electricity market."

Dynegy Inc. is a leading provider of energy and communications solutions to customers in North America, the United Kingdom and Continental Europe. The company's leadership position extends across the entire convergence value chain, from power generation and wholesale and direct commercial and industrial marketing and trading of power, natural gas, coal emission allowances, weather derivatives, and broadband to transportation, gathering and processing of natural gas liquids. For more information on Dynegy visit our web site at [www.dynegy.com](http://www.dynegy.com).

NRG Energy is a leading global energy company primarily engaged in the acquisition, development, construction, ownership and operation of power generation facilities. NRG owns all or a portion of 66 power generation projects and its net ownership interest in these projects is 16,704 MW. The company's operations utilize such diverse fuel sources as natural gas, oil, coal and coal seam methane, biomass, landfill gas, and hydro, as well as refuse-derived fuel. More information on NRG Energy is available at [www.nrgenergy.com](http://www.nrgenergy.com).

Certain statements included in this news release are intended as "forward-looking statements" under the Private Securities Litigation Reform Act of 1995. These statements include assumptions, expectations, predictions, intentions or beliefs about future events. Dynegy and NRG caution that actual future results may vary materially from those expressed or implied in any forward-looking statements. Some of the key factors that could cause actual results to vary from those Dynegy and NRG expect include changes in commodity prices for energy or communications products or services; the timing and extent of deregulation of energy markets in the U.S.; general capital market conditions; the effectiveness of Dynegy's and NRG's risk management policies and procedures; the liquidity and competitiveness of wholesale trading markets for energy commodities, including the impact of electronic or online trading in these markets; operational factors affecting Dynegy's and NRG's power generation or Dynegy's midstream natural gas facilities; and uncertainties regarding environmental regulations or litigation and other legal or regulatory developments affecting Dynegy's and NRG's businesses. More information about the risks and uncertainties relating to these forward-looking statements are found in Dynegy's and NRG's SEC filings, which are available free of charge on the SEC's web site at <http://www.sec.gov>.

CONTACT: NRG Energy, Inc., Minneapolis Media: Meredith Moore 612/373-8892 or Dynegy Inc. John Sousa 713/767-5800 or Analysts: Rick Huckle, NRG Energy 612/313-8900 or Margaret Nollen, Dynegy Inc. 713/507-6466

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PR Newswire

March 6, 2001, Tuesday 2:29 PM Eastern Time

SECTION: FINANCIAL NEWS

DISTRIBUTION: TO BUSINESS AND ENERGY EDITORS

LENGTH: 683 words

HEADLINE: Dynegy and NRG Energy Announce Long-Term Agreement With California Department Of Water Resources

DATELINE: HOUSTON and MINNEAPOLIS, March 6

BODY:

Dynegy Inc. (NYSE: DYN) and NRG Energy, Inc. (NYSE: NRG) today announced that their affiliates, El Segui

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### Masters of Financial Engineering Degree Offered by the Haas School

**Sender** owner-eveningmba@haas.berkeley.edu

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Haas NewsWire November 13, 2000 \*\*The next Haas NewsWire will be issued on November 27. In December, the Haas NewsWire will be issued on December 4 and December 11. We will resume regular publication on January 15, 2001.\*\*

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Masters of Financial Engineering Degree Offered by the Haas School = Second Annual Nation-Wide Social Venture Business Plan Competition Launches = The Second E-Business Seminar Series: "Stuck in The Bozo Filter" = Patricia Of Gives Second Business Faculty Research Dialogue = The Future of Communications Networking from the President Of Bell Labs = New Staff = Haas in the News = Happening at Haas = Haas Celebrations

MASTERS OF FINANCIAL ENGINEERING DEGREE OFFERED BY THE HAAS SCHOOL = As many in the Haas community have heard, the Haas School has established a new one-year Masters of Financial Engineering (MFE) degree program aimed at preparing candidates with superior analytical skills for a growing niche of quantitative finance careers. Berkeley's MFE is the first such degree program in the US offered entirely under the auspices of a business school.

Taught by finance faculty from UC Berkeley's Haas School and UCLA's Anderson School of Management, the MFE Program will prepare students for jobs as risk managers, investment bankers, asset managers, derivatives traders, and developers of specialized securities at the world's leading commercial and investment banks, insurance companies, and corporate and public treasury departments.

"Haas is training a new generation of financial engineers who will be in strong demand in the modern finance marketplace," said Haas School Dean Laurie Tyson. "The program will also offer students the distinct advantage of being part of a world-class business school with its first-rate career services, practical internships, and alumni network."

The inaugural MFE class, the Class of '02, will begin taking courses at the Haas School on the Berkeley campus in April 2001 and will graduate in March 2002. Forty-five MFE students have been admitted into the first class. It is the first US program to offer its students a three-month internship at a top financial firm as part of the learning experience. Its leading-edge curriculum will balance teaching the latest financial theory with practical applications of financial modeling concepts.

The MFE program is taught by Haas School faculty Jonathan Berk, Greg Duffee, Nils Hakansson, Dwight Jaffee, Hayne Leland, Richard Lyons, Terry Marsh, John O'Brien, Mark Rubinstein, Miguel Simon-Cantillo, Domingo Tavella, and Nancy Wallace, as well as Francis Longstaff and Rossen Valkanov from UCLA's Anderson School of Management.

"We're seeing tremendous interest among talented individuals coming from technical backgrounds, such as nuclear physicists, mathematicians, and engineers who are in narrow jobs and are keen to transition to a brand new



career where opportunities are abundant and continue to grow," says MFE=20 Executive Director John O'Brien. O'Brien came to Haas after having served as=20 managing director at Credit Suisse Asset Management (CSAM), a multi-billion=20 dollar asset management company.=20

Students will have the option of earning both an MBA and MFE degree=20 concurrently from the Haas School over two years. The MFE program will be as=20 self-sufficient program funded by student fees and industry sponsorships. The=20 tuition for the MFE degree is \$32,000. Students in the concurrent degree will=20 pay the MFE fee in addition to regular MBA fees.

Founding sponsors include some of the world's top financial firms, namely A=20 IG=20 Inc., Barclays Global Investors, BARRA Inc., Gifford Fong Associates, Goldman=20 Sachs and Co., KMV LLC, MBIA Inc., Morgan Stanley Dean Witter, Quantal=20 International Inc., and The Dean Witter Foundation. Sponsoring firms will be=20 accepting interns from the programs.

For further information on the MFE visit the MFE web site at=20 <http://www.haas.berkeley.edu/MFE>.=20

SECOND ANNUAL NATION-WIDE SOCIAL VENTURE BUSINESS PLAN COMPETITION LAUNCHES=20 On November 20, the second Haas Social Venture Business Plan Competition will=20 launch with an event in the Wells Fargo room at 6:00 p.m. The event will=20 include information about social ventures and rules for the competition. It=20 will be followed by a reception to allow potential teams to network.=20

Prior to the launch, a special Rules Forum will take place featuring seven=20 entrepreneurs, venture capitalists, and philanthropists who are highly=20 experienced at implementing and growing businesses with dual bottom lines,=20 who will assess the competition's judging criteria. They will make=20 recommendations to ensure that the social impact claimed in the business=20 plans is genuinely attributable to the business' operations and that the=20 method of quantification of that nonmarket impact is valid.=20

Last year's inaugural competition exceeded all expectations, drawing=20 sixty-six teams representing MBA students from 23 of the nation's top=20 business schools to submit plans. Fourteen thousand dollars was distributed=20 among the top three plans, including a ten thousand dollar first prize. In=20 addition, these three teams won the opportunity to have their plans reviewed=20 by a group of 150 "socially responsible" angel investors, called the=20 Investors' Circle. One of the teams, Visible Hand, a web-based facilitator=20 of "best practice" development initiatives in the third world, has received=20 \$500,000 in seed funding.=20

The winner from last year was easyDiabetes, which provides a centralized,=20 Internet-based diabetes data management system that minimizes the costs of=20 medical complications associated with the current diabetes information=20 management systems. In Year 5 its revenues are projected at \$26M, and its=20 cumulative cost savings to society are projected at \$96M. The runner-up was=20 Ripple Effects, an interactive software program that helps troubled teenagers=20 develop social skills. Ripple Effect projects revenues by Year 3 at \$10M,=20 and direct quantifiable social impact in Year 3 at \$17M, based on reduction=20 in school absentee rates and social skills curriculum expenditures, and on=20 tax revenues from statistically increased wage potential among customers of=20 the product.=20

The entry criteria for the competition are: each team must have at least one=20 current MBA student from any accredited graduate school of business in the=20 US=20 (not just Haas); the plans must be for businesses that incorporate a social=20 or environmental bottom line into their regular operations and their mission=20 and plans must be for an original, innovative idea for a startup business=20 that is profitable and has a quantifiable social or environmental bottom line.

The schedule for the competition is=20

Monday, January 22, 2001, Registration, executive summaries due=20 Monday, January 29, Notification of admission to first round of judging=20 Tuesday, February 20, First round plans due=20 Tuesday, March 6, Notification of eight finalists=20 Friday, March 30, Final plans due=20 Friday-Saturday, April 13-14, Final Round Event and Awards Ceremony=20

For more information on the competition, please visit=20 <http://groups.haas.berkeley.edu/socialventure/>.



THE SECOND E-BUSINESS SEMINAR SERIES: "STUCK IN THE BOZO FILTER" The next Fisher Center for the Strategic Use of Information Technology=20 E-Business Executive Seminar features Tom Gable, chairman and CEO of the=20 Gable Group, who will address

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### Enron Mentions

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With Enron Stock Trading at Book Value, Some See Company as a Takeover Target The Wall Street Journal, 10/31/01 STOCK MARKETS LONDON STOCK EXCHANGE - Shell hurt by Enron bid talk. Financial Times, 10/31/01 OBSERVER - No show - AVENUE OF THE AMERICAS. Financial Times, 10/31/01 COMPANIES & FINANCE THE AMERICAS - Rumours of broader inquiry hit Enron. Financial Times, 10/31/01 WORLD STOCK MARKETS - Wall St suffers as confidence index hits low. Financial Times, 10/31/01 Waiting for Balance Sheets Amid Enron's Debacle: David Wilson Bloomberg, 10/31/01

The Art of Trading TheStreet.com, 10/31/01

S&P Analyst Todd Shipman on Enron Corp.: Credit Rating Comment Bloomberg, 10/31/01

Enron Fails to Get Funds From Institutional Investor, WSJ Says Bloomberg, 10/31/01

Takeover Talk Can't Halt Enron Stock Plunge. The Oil Daily, 10/31/01 Big volume, big drop for Enron shares Houston Chronicle, 10/31/01 The One-Eyed Man New York Times, 10/31/01 After the bubble - Tuesday The Daily Deal, 10/31/01 PGE's financial loss first in years Associated Press Newswires, 10/31/01 'Enron buy-out offer highly over-priced' The Times of India, 10/31/01 Indian lenders to Dabhol to meet power secretary today Business Standard, 10/31/01 Enron Queried by SEC on Debt, Partnership in 1998 (Update1) Bloomberg, 10/31/01

Enron Probe Is Moved to SEC's Head Office From Texas (Correct) Bloomberg, 10/31/01

USA: NYMEX plans to start OTC natgas clearing services. Reuters English News Service, 10/30/01 USA: UPDATE 3-Enron shares plunge 19 percent, hit 1992 levels. Reuters English News Service, 10/30/01 Enron's stock continues tumbling after investigation reportedly moves to Washington Associated Press Newswires, 10/30/01

Heard on the Street With Enron Stock Trading at Book Value, Some See Company as a Takeover Target By John R. Emshwiller and Rebecca Smith Staff Reporters of The Wall Street Journal

10/31/2001 The Wall Street Journal C1 (Copyright (c) 2001, Dow Jones & Company, Inc.)

With growing revenue, a dominant position in major energy-trading markets and a depressed stock price, Enron Corp. would logically be prime takeover bait. But in the topsy-turvy world of Enron, what constitutes logic anymore? Takeover speculation has swirled around Wall Street and the energy markets in recent days as Enron shares have plummeted by about two-thirds to their lowest level in a decade, a selloff sparked by a loss of investor confidence in the Houston energy-trading company following big third-quarter write-downs and the disclosure of a Securities and Exchange Commission inquiry into transactions involving its former chief financial officer. Among the names bandied about as potential buyers of all or at least a substantial chunk of Enron are General Electric's GE Capital unit, Warren Buffett's Berkshire Hathaway and Royal Dutch Shell. GE and Berkshire had no comment. A spokesman for Shell couldn't be reached. Meanwhile, Enron has approached at least one major institutional investor, seeking a capital infusion, according to a person familiar with the matter. But Enron was turned down because of uncertainties over its financial condition, this person says. While Enron shares, which are trading at about book value, look cheap by historical standards and even compared with two weeks ago, it isn't clear whether history is much guide when evaluating Enron these days, say analysts and others. Even fans of the stock have long complained about difficulty understanding how Enron operates because of its enormously complex financial structure and relatively sparse disclosure. For years while Enron's stock price was soaring,

much of Wall Street didn't seem to care about such issues. Now with Enron's stock dropping, that lack of understanding is haunting the company. "How bad could Enron get? That's really the question," says Prudential Securities analyst Carole Coale. Yesterday, Ms. Coale reduced her price target for Enron shares to \$9 and maintained the "sell" recommendation she recently put on the stock. At 4 p.m. yesterday in New York Stock Exchange composite trading, Enron shares were down \$2.65, or 19%, to \$11.16, down from nearly \$85 a year ago. "When a business like this starts a down cycle, they've got to stop it and stabilize before anyone will be willing to have a really intelligent conversation with them," says Peter J. Solomon, head of Peter J. Solomon Co., an investment-banking boutique. An Enron spokesman says the company won't comment on takeover speculation; nor will it comment on whether it had approached potential investors about a possible capital infusion. However, the continued plunge in Enron shares and turmoil surrounding the company are a significant "overreaction in the marketplace. Our core businesses are strong," he says. The company has said that it is taking steps to restore investor confidence. For example, Enron is trying to negotiate a new credit line with its major banks. Late yesterday, Enron's bankers were putting the final touches on a new credit line of more than \$1 billion, according to people familiar with the discussions. Analysts and other observers say that one uncertainty surrounding Enron is the condition of its vast energy-trading operation. As the nation's biggest energy trader, Enron is a principal in one-quarter of all electricity and natural-gas trades. Enron's EnronOnline Internet-based trading platform has transacted more than \$884 billion of trades since it was created in November 1999 and does about \$4 billion a day in transactions. One worry is that Enron's trading partners, edgy about the turmoil swirling around the company, will start demanding much tougher credit terms from the Houston company or simply cut back doing business. Such a trend, if it picked up enough momentum, could have troubling consequences for Enron. "We are all in suspense . . . It all depends on how the market reacts," says Susan Abbott, a managing director at Moody's Investors Service. On Monday, Moody's downgraded Enron's long-term debt. There were some warning signs of unease among trading partners even before the company's third-quarter earnings release set the stage for the huge drop in the stock price. About six to seven weeks ago, Entergy Corp. became worried about its level of exposure in Enron-related deals, says Wayne Leonard, chairman and chief executive officer of the big New Orleans energy company. Since then, Entergy has cut its Enron exposure to about \$10 million to \$20 million from \$90 million to \$100 million, he says. Mr. Leonard didn't specify what prompted the worries, which appear to have arisen after the surprise August announcement by Jeffrey Skilling that he was resigning as Enron president and chief executive. Mr. Skilling cited personal reasons as well as his concerns over the falling stock price. While the Enron spokesman says the company doesn't comment on specific trading arrangements, he adds that Entergy is one of his company's smaller trading partners. He says major trading partners are doing business with Enron on "essentially the same terms and conditions" and that overall "our trading operations are as strong as ever." The company spokesman adds that a few smaller trading partners in Europe are seeking revised credit terms from Enron. "We are working to put together credit terms, which they are more comfortable with," says the spokesman, who declines to be more specific. In an effort to bolster its liquidity and position in the marketplace, Enron last week drew down some \$3 billion, accounting for the bulk of its existing credit lines. While it used most of that money to buy its outstanding commercial paper, a short-term corporate IOU, the company retained about \$1 billion of the borrowings as cash. A friendly takeover of all or part of Enron would be likelier than a hostile one. Among the most obv

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#### VentureWire, Wednesday, June 7, 2000

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VENTUREWIRE --- Wednesday, June 7, 2000

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===== Top Stories =====

o H&Q Asia Pacific Closes New \$750 Million Fund

PALO ALTO, Calif. -- H&Q Asia Pacific, a private equity investment company, said it closed its third fund, Asia Pacific Growth Fund III. At \$750 million, the fund is the company's largest. It will focus on Internet infrastructure investment opportunities in the Asia Pacific region. Telephone 650-838-8037.

o CacheFlow Acquires Springbank Networks For \$180 Million

SUNNYVALE, Calif. -- CacheFlow, a publicly traded company which provides technology to accelerate and manage the flow of online information, said it acquired Springbank Networks of Palo Alto, Calif. The stock transaction is valued at \$180 million. Springbank will be integrated into CacheFlow and all employees of Springbank will relocate to CacheFlow headquarters. No management changes were announced. Springbank Networks has received financing from Sequoia Capital. <http://www.cacheflow.com/>

o FatBrain Spinoff MightyWords Raises \$36 Million First Round

SANTA CLARA, Calif. -- MightyWords, formerly an online publishing subsidiary of publicly traded FatBrain.com, said it received \$36 million in funding in its first round of institutional funding. The round was led by Barnes & Noble.com, which contributed \$20 million in exchange for a 30% stake in the firm. Vulcan Ventures contributed an additional \$10 million and \$6 million was raised from other investors including APV Technology Partners, Highland Capital Partners, and Millennium Technology Ventures. Vulcan Ventures will hold a 15% stake, Millennium Technology Ventures 4%, and both Highland Capital Partners and APV Technology Partners will hold 1.5% of the company. FatBrain.com will retain 23% of the company. Chris MacAskill, chief executive officer of MightyWords and founder and CEO of FatBrain, will serve as chairman of the MightyWords board of directors. Two representatives of Barnes & Noble.com, one representative from Vulcan Ventures, and one representative from Millennium Technology Ventures will take seats on the company's board of directors. Dennis Capo

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#### Enron Mentions - 10-06-01 - 10-07-01

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THE NATION States Taking the Initiative to Fight Global Warming Environment= : Unhappy with Bush's policies, local officials work to slow climate change= . Los Angeles Times, 10/07/01 Many stuck in anti-terror dragnet/Future uncertain for Houston man, 23, hel= d and cleared in attacks Houston Chronicle, 10/07/01

Enron Close to 5-Yr Contract With Equity Office, Crain's Says Bloomberg, 10/07/01

Enron Reaches a Deal to Sell Oregon Utility for \$1.9 Billion The New York Times, 10/06/01 IN BRIEF / ENERGY Northwest in Talks to Buy Portland GE Los Angeles Times, 10/06/01 Enron talks utility sale in Oregon / Northwest Natural Gas is second possib= le buyer Houston Chronicle, 10/06/01 COMPANIES & FINANCE INTERNATIONAL - Northwest may buy Enron asset. Financial Times (U.K. edition), 10/06/01 NW Natural Gas in talks for Portland General The Daily Deal, 10/06/01 NW NATURAL WEIGHING PURCHASE OF PGE The Columbian, 10/06/01 Enron to Announce Sale of Portland General on Monday, NYT Says Bloomberg, 10/06/01

PUC RIGHTLY OPEN TO RECONSIDERING Portland Oregonian, 10/06/01 Civil rights advocates worry about detaining immigrants Associated Press Newswires, 10/06/01 India: LNG: Ministry willing to pare charter hire rates for Dabhol Business Line (The Hindu), 10/06/01 Gun found in car at Millard North Omaha World-Herald, 10/06/01 POWER GIANT BUYS ISLAND IN SEARCH FOR GAS PIPELINE South Florida Sun-Sentinel, 10/06/01 DIESEL BAN MAY SWAY OPPONENTS OF POWER PLANT South Florida Sun-Sentinel, 10/06/01 Enron Offshoot Leads Texas Complaints for Unauthorized Electric Accounts KRTBN Knight-Ridder Tribune Business News: Fort Worth Star-Telegram - Texas= , 10/06/01

National Desk THE NATION States Taking the Initiative to Fight Global Warming Environment= : Unhappy with Bush's policies, local officials work to slow climate change= . GARY POLAKOVIC TIMES ENVIRONMENTAL WRITER

10/07/2001 Los Angeles Times Home Edition A-40 Copyright 2001 / The Times Mirror Company

More than two dozen U.S. states and cities, no longer waiting for the Bush = administration to seize the initiative against global warming, have begun t= aking steps to reduce emissions that scientists say are heating the planet.= =20 From Vermont to Oregon, state and local governments are calling for broader= use of energy-saving devices, more energy-efficient building standards, cl= eaner-burning power plants and more investment in such renewable energy sou= rces as wind and solar power--all to help reduce greenhouse gases that trap= the sun's energy near the Earth's surface. Many of the strategies being promoted mimic those endorsed in July by 180 n= ations as part of an international campaign against global warming that the= Bush administration declined to join.=20 In August, six New England states and five eastern Canadian provinces signe= d a pact to reduce greenhouse gas emissions. Under the agreement, the signa= tories pledged to cut emissions to 1990 levels by 2010 and by 10% below tha= t level by 2020. Those cuts are to be followed by even deeper reductions. I= t is the most ambitious goal set by state governments and it was supported = by three Republican governors, two Democrats and one Independent from Massa= chusetts, Connecticut, Rhode Island, New Hampshire, Vermont and Maine.=20 No single state or region can make a substantial reduction in the gases tha= t contribute to global warming. Moreover, much of the success of state and = local efforts relies on voluntary compliance from industry.=20 Still, advocates of state and local initiatives are confident that there is= enough public support to ensure broad cooperation in the private sector.= =20 "Public demand for action on climate change increased when the United State= s was not a part of the [international] agreement. It had a powerful impact= on the thinking of all kinds of people, including governors and heads of l= arge companies," said Tom Peterson, director of domestic policy for the Cen= ter for Clean Air Policy in Washington.=20 The center was created in 1985 by a bipartisan group of governors to promot= e economical solutions to air pollution.=20 "This is a way [for states] to distinguish themselves from the Bush adminis= tration," California Resources Secretary Mary Nichols said. "A lot of pract= ical, moderate people are recognizing climate change is a reality, not a th= eory, and they need to take it into account and help move the direction of = the world by doing something about it."=20 California was an early leader in reducing dependence on fossil fuels that = release greenhouse gases. Today, 12% of its electrical power comes from ren= ewable sources, more than any other state.=20 President Bush has sent mixed signals concerning global warming. Shortly af= ter he took office, he reneged on a campaign promise to cut emissions of ca= rbon dioxide, the most abundant greenhouse gas. He said he rejected the int= ernational accord, outlined in Kyoto, Japan, in 1997 and ratified last summ= er, because it would cost U.S. jobs and did not immediately impose limits o= n emissions from developing countries, including India and China.=20 Last spring, Bush announced the formation of a task force of Cabinet member= s to formulate U.S. policy. The work of the task force was slowed by disagr= eements among its members and by the Sept. 11 terrorist attacks.=20 In the meantime, several

members of Congress, including Sens. James M. Jeffords (I-Vt.), John McCain (R-Ariz.) and Joseph I. Lieberman (D-Conn.), have begun formulating policy. McCain and Lieberman announced in August that they would develop legislation to cap greenhouse emissions and reduce them using a market-based trading mechanism. But that bill, too, has been delayed as Congress grapples with the enormous fallout from the attacks on the World Trade Center and the Pentagon. Meanwhile, officials of several states say they are making measurable progress. In New Jersey, officials say they are on track to cut greenhouse gases by 3.5% below 1990 levels by 2005. The plan relies on capturing emissions from methane--which traps 20 times more heat than carbon dioxide--from landfills, securing voluntary reductions from various industries and preserving open space and trees, which can absorb carbon dioxide from the atmosphere, said Amy Collings, spokeswoman for the state Department of Environmental Protection. New York Gov. George Pataki in June announced a series of measures to improve energy efficiency and trim greenhouse gases. Specifically, the Republican governor ordered state buildings to get 20% of their electricity from renewable sources, such as solar or wind power, by 2010. In the Northwest, Seattle City Light, the local electric utility, will offset any carbon dioxide emissions from power generation with wider use of clean-fueled vehicles and other measures. In Oregon, more than 20,000 people have signed up for the "Blue Sky Program" by paying an extra \$3 per month on their utility bills to ensure that Pacific Power and Light purchases electricity from sources that don't contribute to global warming, said Tim Honadel, sustainability coordinator for Gov. John Kitzhaber. The California Legislature has established a registry to track greenhouse gas production. It gives businesses interested in reducing their emissions a place to record their progress. Such progress will be rewarded when the state, as anticipated, begins to regulate greenhouse gas emissions. There are growing indications that businesses, large and small, do want to cooperate, if only to ensure that they have a hand in crafting policies and regulations many see as inevitable. A group of Fortune 500 companies joined with the Philadelphia-based Pew Charitable Trusts to study and develop ma

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*Message 1129 of 1299***AZ Superior Court Order**

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On Monday, November 27, the Arizona Superior Court issued a judgment to CV 97-03748 (consolidated) TEP vs. ACC. The judgment is against the Arizona Corporation Commission on all consolidated rules and CC&N complaints filed by the coops and pertaining to all CC&N decisions insofar as the Commission's Electric Competition Rules and Decisions enacted and issued pursuant to those rules are invalid for failure to provide for the Commission ascertaining the fair value of the property of public service corporations under Article 15& 14 of the Arizona Constitution and certain rules are invalid for lack of Attorney General certification.

It was further ordered that the coops demonstrated as a matter of law that the Commission's rules and CC&N decisions are unlawful and unconstitutional under the Arizona Constitution. Commission Decisions 59942, 61071(Emergency Rules), 61272 (Emergency Rules made permanent) and 61969 and all Electric Competition Rules enacted under those decisions are vacated and set aside as unlawful and unconstitutional. All competitive CC&N's and tariffs approved under those decisions are also vacated and set aside as unlawful and unconstitutional.

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*Message 1130 of 1299***RE: Proposal AREM response to UDC Joint Filing - Implementation of**

|            |                                                                                                             |
|------------|-------------------------------------------------------------------------------------------------------------|
| Sender     | aweller@sel.com                                                                                             |
| Recipients | ['jsmollon@newwestenergy.com', 'arem@electric.com', 'douglass@energyattorney.com; Jeff.Dasovich@enron.com'] |
| File       | dasovich-j/deleted_items/2094.                                                                              |



I would agree that we may need to conference on this. I agree with some of the points that Janie brings up and would like to discuss with the group...I am available most of the day if we have a conference call.

Andrea Weller Market Strategist Strategic Energy, LLC Office: (714) 573-1014 Cell: (949) 230-3404 aweller@sel.com

-----Original Message-----

From: jsmollon@newwestenergy.com [mailto:jsmollon@newwestenergy.com] Sent: Tuesday, November 27, 2001 11:21 AM To: arem@electric.com Cc: douglass@energyattorney.com; Jeff.Dasovich@enron.com Subject: Proposal AREM response to UDC Joint Filing - Implementation of Su spension DA

I have had an opportunity to talk to most of you regarding the attached proposal. I apologize I ran out of time yesterday and didn't catch everyone.

NWE would like to propose a slightly different take on our AREM filing having had a chance to think more about it. I wanted to run it by everyone to get your thoughts before submitting a redline. If you feel this warrants a conference call I will gladly set one up for today. Time is of the essence and would appreciate your feedback as soon as possible. If we all agree, I would like to get the re-write with everyone's blessing to Dan by tomorrow at 8:00 am. or sooner.  
<<arm-puc-plan.doc>> Proposal Benefits

1. We look more reasonable and agree to much of what UDCs are proposing. 2. Accommodates most, if not all, of ESP and customer concerns. 3. Strong argument for avoiding any contract review. Our verification proposal could backfire; PUC could accept our approach, but add details which goes toward ESPs submitting contracts to the PUC for review and validation Thank you, Janie Mollon Manager, Legislative and Regulatory Affairs Office: 602-629-7758 FAX: 602-629-7772 Mobile: 602-625-3892

---

Message 1131 of 1299

#### Enron EHS Contact on California Environmental Issues

|            |                                 |
|------------|---------------------------------|
| Sender     | maureen.mcvicker@enron.com      |
| Recipients | ['adriana.domingues@enron.com'] |
| File       | dasovich-j/notes_inbox/4872.    |

F.Y.I.

----- Forwarded by Maureen McVicker/NA/Enron on 03/19/2001 02:47 PM -----

Jeffrey Keeler 03/16/2001 10:50 AM

To: Maureen McVicker/NA/Enron@Enron cc: Subject: Enron EHS Contact on California Environmental Issues

Maureen -- Please forward to the Enron public affairs group. Thanks!

---

To: Enron Public Affairs

From: Michael F. Terraso, Vice President, Environment, Health and Safety & Chief Environmental Officer Jeff Keeler, Director, Environmental Strategies

Environmental regulations and policies have and will continue to play a significant role in the current California "energy crisis" situation. It is a high priority of the Enron Environment, Health and Safety (EHS) organization to ensure that environmental issues are given serious consideration as part of Enron's efforts to capitalize on opportunities and manage risks related to the California crisis.

To that end, we have asked Mary Schoen, Manager, Environmental Strategies, to serve as the EHS organization's key contact for commercial, government affairs, EHS and public affairs personnel on environmental issues related to the California crisis situation. As the primary interface with these groups, Mary will coordinate the numerous resources of the entire EHS department in support of Enron's activities, including:



Providing timely intelligence and analysis about environmental policy developments that affect Enron markets; Reviewing legislation/regulation, coordinating environmental policy advocacy strategies and providing input into overall Enron advocacy efforts; Providing assistance on environmental permitting, due diligence, and other technical services.

Mary's contact information:

San Francisco Office: 415-782-7803 phone 415-782-7845 fax

Houston Office: 713-345-7402 phone 713-646-8160 fax

Cell Phone: 713-907-4582

---

Message 1132 of 1299

### Re: Master Purchase and Sale Agreement

|            |                              |
|------------|------------------------------|
| Sender     | jeff.dasovich@enron.com      |
| Recipients | ['stevebowen@earthlink.net'] |
| File       | dasovich-j/sent/610.         |

Steve:

Here's a word version of the MSA. Sorry for the delay. Could you make changes in strike-out-underline format and email back to me when you're done? Thanks a million.

Best, Jeff ----- Forwarded by Jeff Dasovich/NA/Enron on 10/11/2000 04:56 PM -----

Donald Lassere@ENRON COMMUNICATIONS 10/11/2000 03:58 PM

To: Jeff Dasovich/NA/Enron@ENRON cc: Subject: Re: Master Purchase and Sale Agreement

Jeff,

Attached is "a" word version of the Master Purchase and Sale Agreement. Although it says "sample" it is identical to the version that we are currently using. If you have any questions, please call me on 713-853-6341.

Best regards,

Donald ----- Forwarded by Donald Lassere/Enron Communications on 10/14/00 03:57 PM

---

Marie Heard 10/11/00 02:01 PM

To: Donald Lassere/Enron Communications@Enron Communications cc: Subject: Re: Master Purchase and Sale Agreement

Here it is!

Marie Heard Senior Legal Specialist Enron Broadband Services Phone: (713) 853-3907 Fax: (713) 646-8537  
Marie\_Heard@Enron.net

Donald Lassere 10/11/00 09:25 AM

To: Marie Heard/Enron Communications@Enron Communications cc: Subject: Re: Master Purchase and Sale Agreement

Marie,

Do we have a MS-Word version of the Master Bandwidth Purchase and Sale Agreement? If we do, could you send it to me? Thanks.

Donald

Marie Heard 10/11/00 08:56 AM

To: Donald Lassere/Enron Communications@Enron Communications cc: Cynthia Harkness/Enron Communications@Enron Communications Subject: Master Purchase and Sale Agreement

Donald,

Attached is the latest form Master Bandwidth Purchase and Sale Agreement. If you need copies of any of our documents in the future, just give me a call and I can send them to you.

Marie

Marie Heard Senior Legal Specialist Enron Broadband Services Phone: (713) 853-3907 Fax: (713) 646-8537  
Marie\_Heard@Enron.net

----- Forwarded by Marie Heard/Enron Communications on 10/11/00 08:59 AM -----

Cynthia Harkness 10/10/00 06:37 PM

To: Marie Heard/Enron Communications@Enron Communications cc: Subject:

Could you take care of this??? Thanks!

Cynthia ----- Forwarded by Cynthia Harkness/Enron Communications on 10/10/00 06:39 PM

Donald Lassere 10/13/00 04:17 PM

To: Cynthia Harkness/Enron Communications@Enron Communications cc: Subject:

Cynthia,

I have come by your office several times and continue to miss you. So, I have to result to the "dreaded e-mail" :) Could you send me the latest version of the Master P&S Agreement? Many thanks.

Regards,

Donald

PS: When you get a minute, give me a call so that we can chat. x36341

Message 1133 of 1299

## Re: CA Quarterly Fee Statement

|            |                                                                                  |
|------------|----------------------------------------------------------------------------------|
| Sender     | sue.nord@enron.com                                                               |
| Recipients | ['mona.petrochko@enron.com', 'margo.reyna@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/8018.                                                   |

Thanks very much for following up on this, Margo. I'm now scheduled to meet with Kristina Mordaunt on Tuesday to talk about compliance.

Margo Reyna 12/29/2000 08:55 AM

To: Jeff Dasovich/NA/Enron@Enron, Sue Nord/NA/Enron@Enron, Mona L Petrochko/NA/Enron@Enron cc: Subject: CA Quarterly Fee Statement

All,

With Dick Anderson's assistance, we've tracked down the appropriate person to handle the filing of the CA Quarterly Fee Statement that Jeff sent to me last week. I have forwarded a copy of the form to Steve Batchelder (see e-mail from Dick below) via interoffice mail and left him a voicemail message indicating that the form is on its way and that Dick indicated Steve is the appropriate person to handle it. I have asked Steve to call me when he receives the form.

Thanks!

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 12/29/2000 08:51 AM -----

Richard Anderson@ENRON COMMUNICATIONS 12/29/2000 03:44 AM

To: Margo Reyna/NA/Enron@Enron cc: David DeGabriele/Enron Communications@Enron Communications, Steven Batchelder/Enron Communications@Enron Communications, Scott Bolton/Enron Communications@Enron Communications Subject: Re: A new fax has arrived from 7138537297

Margo,

The attached form is in regards to an assessment by the California PUC on all entities regulated by the PUC to recover the costs of running the PUC. The concept is that the regulated utilities, rather than the taxpayers, should pay for the operation of the PUC. This fee is only assessed on intrastate revenues, thus, we should only report the California intrastate receipts of Enron Telecommunications, Inc. Since this fee is not a tax, Accounting is responsible for completing this report, according to the July 2000 agreement between Jim Ginty (Tax), Scott Bolton (Regulatory Affairs), Steve McCarrel (Legal) and Carolyn Barrett (Accounting). It is my understanding that Steven Batchelder is the person in Accounting tasked with completing these reports.

Thank you for asking, Richard D. Anderson Director of Taxes Enron Broadband Services, Inc. 713-345-7729 (Houston office 1/8 through 1/10, no voice mail) 503-886-0335 (Portland office and voice mail) 503-880-5249 (cellular) 503-425-6005 (fax) richard\_anderson@enron.net

Right Fax 12/28/00 01:07 PM

To: Richard Anderson/Enron Communications@Enron Communications cc: Subject: A new fax has arrived from 7138537297

A new fax has arrived from 7138537297

Time: 12/28/00 1:07:08 PM Received from remote ID: 7138537297 Inbound user ID RICHARD\_ANDERSON, routing code 6005 Result: (0/0/0) Successful Receive Page record: 1 - 2 Elapsed time: 01:14 on channel 2

Message 1134 of 1299

## VANCOUVER, B.C. OFFSITE MEETING OCTOBER 16TH THROUGH OCTOBER 17TH

|            |                                                            |
|------------|------------------------------------------------------------|
| Sender     | tracy.cooper@enron.com                                     |
| Recipients | ['marchris.robinson@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/2276.                             |

Tracy J. Cooper Please note my name has changed from McLaughlin to Cooper Enron Broadband Services Government Affairs (503) 886-0396

----- Forwarded by Tracy Cooper/Enron Communications on 10/11/00 05:01 AM -----

Tracy Cooper 10/10/00 04:45 PM

To: Michael.Grimes@enron.com cc: Subject: VANCOUVER, B.C. OFFSITE MEETING OCTOBER 16TH THROUGH OCTOBER 17TH - MONDAY/TUESDAY -- AGENDA ATTACHED

Tracy J. Cooper Please note my name has changed from McLaughlin to Cooper Enron Broadband Services Government Affairs (503) 886-0396

----- Forwarded by Tracy Cooper/Enron Communications on 10/10/00 04:50 PM -----

Tracy Cooper 10/10/00 02:38 PM

To: Geoffrey Allen/Enron Communications@Enron Communications, Scott Bolton/Enron Communications@Enron Communications, Corbin Barnes/Enron Communications@Enron Communications, Mike Dahlke/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Jeff Dasovich/SFO/EES@EES, Joe Edwards/Enron Communications@Enron Communications, Wayne Gardner/Enron Communications@Enron Communications, Jan Haizman, Barbara A Hueter/DUB/EES@EES, Susan M Landwehr/HOU/EES@EES, Corbin Barnes/Enron Communications@Enron Communications, Ed Smida/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Michael Harris/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Gia Maisashvili/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, David Merrill/ENRON\_DEVELOPMENT, Michelle Hicks/Enron Communications@Enron Communications, John Neslage/ENRON\_DEVELOPMENT, Sue Nord/NA/Enron@Enron, Margo Reyna/NA/Enron@Enron, Marchris Robinson/HOU/EES@EES, Mark Schroeder/LON/ECT@ECT, Richard Shapiro/NA/Enron, Jane Wilson/ENRON\_DEVELOPMENT, Xi Xi/Enron Communications@Enron Communications, Michelle Hicks/Enron Communications@Enron Communications cc: Beverley Ashcroft/LON/ECT@ECT, Amy Fabian/Corp/Enron@ENRON, June Fernandes/ENRON\_DEVELOPMENT, Angela Wilson/HOU/EES@EES, Marcia A Linton/NA/Enron@Enron, Joseph Alamo/SFO/EES@EES, JoAnne Garner/Enron Communications@Enron Communications, Ginger Dernehl/NA/Enron@Enron Subject: VANCOUVER, B.C. OFFSITE MEETING OCTOBER 16TH THROUGH OCTOBER 17TH - MONDAY/TUESDAY -- AGENDA ATTACHED

Hi everyone!

Attached is the final agenda for Vancouver -- also is the final rooming list with confirmation numbers. The Hotel Waterfront is located at 900 Canada Place Way, Vancouver, B.C. (604) 691-1991 (phone) and fax is (604) 691-1999. The hotel is approximately half an hour (cab ride) from the airport. Cabs are the recommended mode of transportation because the hotel shuttle bus does not run very frequently and it often takes an hour to get to the hotel.

The meetings will take place in Ballroom A on both days (see ppt presentation for meeting times) there will be signs in the lobby which indicate where the Ballroom is located.

We will be serving breakfast and lunch Monday and only breakfast on Tuesday.

Attached are a few web sites if you are interested in any extracurricular activities. The Canucks are Vancouver's hockey team and they are playing the Toronto Maple Leafs Monday, October 16th. The writer's fest is taking place on Granville Island (approx. half an hour walk or a 10 minute cab ride) from the hotel -- see attached website for details.

Any questions, please call or email! I look forward to seeing you in Vancouver!

<http://www.writersfest.bc.ca>

<http://www.thehotelwaterfront.com>

<http://www.canucks.com>

<http://www.granvilleisland.com>

Tracy J. Cooper Please note my name has changed from McLaughlin to Cooper Enron Broadband Services Government Affairs (503) 886-0396

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Message 1135 of 1299

### ISO To Participate in Super Peak Market

|            |                                                                          |
|------------|--------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                  |
| Recipients | ['mary.hain@enron.com', 'joe.hartsoe@enron.com', 'tim.belden@enron.com'] |
| File       | dasovich-j/all_documents/828.                                            |

----- Forwarded by Jeff Dasovich/SFO/EES on 08/29/2000 10:32

AM -----

Gary Ackerman <foothi19@idt.net> on 08/26/2000 04:21:58 PM Please respond to foothi19@idt.net To: Bill Ross <billr@calpine.com>, Bob Anderson <Robert\_Anderson@apses.com>, Carolyn Baker <cabaker@duke-energy.com>, Corby Gardin <jcgardin@newwestenergy.com>, Curtis Kebler <Curtis\_L\_Kebler@reliantenergy.com>, Denice Cazalet <dcazalet@apx.com>, Gene Waas <glwaas@calpx.com>, Greg Blue <gtbl@dynegy.com>, Jack Pigott <jackp@calpine.com>, Ken Czarnecki <Ken\_J\_Czarnecki@calpx.com>, Kent Wheatland <KEWH@dynegy.com>, "Klemstine, Barbara A(F56661)" <barbara\_klemstine@apses.com>, Randy Hickok <rjhickok@duke-energy.com>, Rob Lamkin <rlamkin@seiworldwide.com>, Rob Nichol <rsnichol@newwestenergy.com>, robert berry <berry@apx.com>, Roger Pelote <rpelote@energy.twc.com>, Sue Mara <smara@enron.com>, curt hatton <curt.Hatton@gen.pge.com>, Jeff Dasovich <jdasovic@enron.com>, Dan Douglass <douglass@arterhadden.com>, Al Parsons <alp@ncpa.com>, Bob Reilley <rreilley@coral-energy.com>, Brian Jobson <bjobson@smud.org>, Dave Nuttall <dn@ui.com>, Edmond Chang <echang@wapa.gov>, Ken Lackey <Kenneth\_Lackey@EdisonMission.com>, Linda Hamilton <lhamilton@avistaenergy.com>, Mark Tallman <mark.tallman@pacificorp.com>, "Richard H. Counihan" <counihan@greenmountain.com>, Sheryl Lambertson <sslambertson@pplmt.com>, Steve Fisher <stephen\_fisher@transalta.com>, Steve Ponder <steve\_ponder@fpl.com>, Tom Breckon <tom@ncpa.com>, "Wolfe, Don - PGSO-5" <dwolfe@bpa.gov>, Chuck Goligoski <cgoligoski@avistaenergy.com>, Elaine Walsh <Elaine@citizenspower.com>, Duane Nelsen <dnelsen@gwfpower.com>, Reggie Howard <rhoward@reliantenergy.com>, Tim Belden <tbelden@ect.enron.com>, Dave Francis <DFRA@dynegy.com> cc: Subject: ISO To Participate in Super Peak Market

Folks,

Late Friday afternoon Ziad called me. The ISO Governing Board earlier the same day turned down the ISO management's request to force SCs to place 95% of their scheduled load in the DA market. That leaves the ISO little choice but to venture into the energy markets to procure power to cover their peak hours on hot days.

Terry gave Ziad the OK to proceed with placing both the APX and California PX screens for this new product/matching-service. I am working with the two vendors and the ISO to make this happen quickly. We anticipate that the market will open on Tuesday, September 5, or earlier.

Key people who you may need to contact: ISO - Ziad Alaywan 916-351-2140 (Nancy Traweek and Jim McIntosh are also in the loop) PX - Ken Czarnecki 626-537-3123 PX - John Yurkanin 626-537-3124 APX - Denice Cazalet 408-517-2123 APX - Michael Heinrich 408-517-2159

Please feel free to contact me with your questions. Several of you have not had the opportunity to attend the pre-design meetings we had at the California PX and APX a few weeks ago, nor were you aware of the joint WPTF/ISO meeting held last week. But in essence, what this product/matching-service will allow you to do is post bids to sell, or buy a 6-hour block of capacity at a firm energy price across the hours of HE13 to HE18. You can bid at COB, Mead, PV, SP15 or NP15. You can utilize either the CalPX or APX to post your bids, because the ISO will be watching both screens. The block sizes are (supposed to be) 25MW. The seller is responsible for arranging transmission to the delivery point, and the buyer (e.g., ISO) is responsible for arranging transmission service from the delivery point. The ISO will make its purchase decisions for the day-of at or before 8:00 a.m. The ISO will send out a general notice when it needs offers to sell on the super-peak market. I expect that bids for either buy or sell will be able to be posted at any time, 24 hours. The screens should allow parties to post buy or sell bids at least 60 days forward of the trade day.

You are not limited to a price cap in these markets, but the ISO as a buyer has the right to not purchase at prices above it's price cap.

I think WPTF members should be very proud that we were able to quickly work together, and with the ISO to create this market. I have no doubt the ISO will be offering bids to purchase starting Sept 5, and going forward 60 days. However, who among you will be willing and able to post bids to sell?

gba

Message 1136 of 1299

**RE: PG&E OFO Forum on August 29**

|                   |                                                                                        |
|-------------------|----------------------------------------------------------------------------------------|
| <b>Sender</b>     | todb@metretekfl.com                                                                    |
| <b>Recipients</b> | ['agoldberg@lgl.twc.com', 'abb@eslawfirm.com', 'rrs5@pge.com', 'ahuertas@enron.co.uk'] |
| <b>File</b>       | dasovich-j/all_documents/773.                                                          |

PowerSpring will be unable to attend the OFO Forum scheduled for August 29, and would like to submit the following item for inclusion in the next meeting. Additionally, PowerSpring suggests the OFO Forum meet on a quarterly basis.

Issue: During pro-forma tariff discussions on I.99.07.003 Gas Settlement Agreement, PowerSpring lobbied for customer choice of daily nominating and balancing for Core Aggregated customers if the customer had installed Automatic Meter Reading equipment provided by executing the Meter Add-On Tariff. Additionally, this AMR data would be used for OFO/EFO purposes. PG&E contended that the Settlement did not contemplate the use of this data for these purposes and that the issue should be addressed in the OFO Forum.

PowerSpring requests that this issue be included on the agenda for the next OFO Forum.

Tod Bradley PowerSpring, Inc. Office: (760) 944-1999 Cellular: (714) 305-9237 mailto: tod\_bradley@powerspring.com

-----Original Message-----

From: Stoner, Ronald [mailto:RRS5@pge.com] Sent: Wednesday, August 23, 2000 4:58 PM To: 'abb@eslawfirm.com'; 'agoldberg@lgl.twc.com'; 'ahuertas@enron.co.uk'; 'alan\_reid@pancanadian.ca'; 'andy.bettwy@swgas.com'; 'anikat@greenlining.org'; 'ascott@sdge.com'; 'askaff@energy-law-group.com'; 'atrowbridge@dbsr.com'; 'bbrunel@SMUD.org'; 'bcherry@sempra.com'; 'bcope@ci.redding.ca.us'; 'bcragg@gmssr.com'; 'bdahncke@pcenergy.com'; 'bdingwall@unitedgas.com'; 'benledene@aec.ca'; 'bfolsom@avistacorp.com'; 'bgailiar@enron.com'; 'bjeider@ci.burbank.ca.us'; 'bmcc@mccarthy.com'; 'bpedersen@igservice.com'; 'bradb@calpine.com'; 'bradylaw@pacbell.net'; 'burkee@cts.com'; 'bwood@energy.state.ca.us'; 'cabaker@duke-energy.com'; 'candjenterprises@home.com'; 'catherine.sullivan@southernenergy.com'; 'cbaker@ns.net'; 'cdoering@reconcorp.com'; 'ceyap@earthlink.net'; 'cgoodman@bellatlantic.net'; 'chilen@llgm.com'; 'chj@aelaw.com'; 'cholmes@energy.state.ca.us'; 'chris.king@utility.com'; 'clower@earthlink.net'; 'cmkehrrein@ems-ca.com'; 'cottlli@sf.whitecase.com'; 'craigc@calpine.com'; 'cushnice@sce.com'; 'cyowell@ziagroup.com'; 'dalbers@avistacorp.com'; 'davef@abag.ca.gov'; 'david.bayless@utility.com'; Thomas, Dan (CGT Mgr); 'dhanson@alra.com'; 'dhayes@alra.com'; 'difellman@earthlink.net'; 'douglass@arterhadden.com'; 'dsloan@pge-nw.com'; 'ecrem@ix.netcom.com'; 'ed@clfp.com'; 'edf@cpuc.ca.gov'; 'eke@aelaw.com'; 'eklinkner@ci.pasadena.ca.us'; 'epoole@adplaw.com'; 'eric@gcnet.org'; 'ewo@jmbm.com'; 'exe3@pge.com'; 'fergusonM@epenergy.com'; 'fogelmanm@steefel.com'; 'frazier@bull.som.yale.edu'; Lindh, Frank (Law); 'furutanj@efawest.navfac.navy.mil'; 'gac@mrwassoc.com'; 'garyb@abag.ca.gov'; 'ghinners@reliantenergy.com'; Bellenger, Geoffrey; 'gnstillwagon@tid.org'; 'gpickering@idahopower.com'; 'grant\_kolling@city.palo-alto.ca.us'; 'gregs@mid.org'; 'gsullivan@sempra.com'; 'gtbl@dynegy.com'; 'gworster@txuenergy.com'; 'gwright@sempra.com'; 'hankd@calpine.com'; 'haorndorff@aeraenergy.com'; 'hgleason@energyamerica.com'; 'iep@iepa.com'; 'igsinc@ix.netcom.com'; 'inggm@sce.com'; 'jaime.ramirez@swgas.com'; 'jamesauld@aec.ca'; 'jbennett@gmssr.com'; 'jattermole@pcenergy.com'; 'jdasovic@enron.com'; 'jerry@abag.ca.gov'; 'jlawcet@enron.com'; 'jgopal@energy.state.ca.us'; 'jharrigan@socalgas.com'; 'jkarp@sf.whitecase.com'; 'jleslie@luce.com'; 'jlinam@socalgas.com'; 'jmackay@unitedgas.com'; 'jmct@gmssr.com'; 'jmpa@dynegy.com'; 'jnm@cpuc.ca.gov'; 'jogg@jhenergy.com'; 'john.walley@swgas.com'; 'johnj@bcjlaw.com'; 'jond@qstr.com'; 'joseh@lif.org'; 'jsqueri@gmssr.com'; 'jsteffen@iid.com'; 'jsuwara@sempra.com'; 'jtachera@energy.state.ca.us'; 'jthomson@penn.com'; 'jurewiji@sce.com'; 'jvaccaro@sdge.com'; 'jweil@aglet.org'; 'jyoung@igservice.com'; 'karen@klindh.com'; 'katie\_elder@rmiinc.com'; 'kbhensman@aeraenergy.com'; 'keith.brown@swgas.com'; 'keith-sappenfield@reliantenergy.com'; 'kfyip@seiworldwide.com'; 'kirk.t.morgan@wgp.twc.com'; 'kmagrude@enron.com'; 'kmccrea@sablax.com'; 'kmills@cbbf.com'; 'kpooles@adamsbroadwell.com'; 'kschellin@mtpower.com'; 'lacoupa@sf.whitecase.com'; 'lindseyhowdowning@dwt.com'; 'ljhubbard@sempra.com'; 'llorenz@socalgas.com'; 'lmh@eslawfirm.com'; 'lsaffil@flash.net'; 'lynn.g.dahlberg@wgp.twc.com'; 'mar.toe@att.net'; 'marcel@turn.org';

'mark.c.moench@wgp.twc.com'; 'mbaldwin@igservice.com'; 'mcclintocke@epenergy.com'; 'mconnk@epenergy.com'; 'mcdonough\_sandra@pcp.ca'; 'mday@gmssr.com'; 'mdjoseph@adamsbroadwell.com'; 'mflorio@turn.org'; 'mharris@rcgroup.com'; 'michael.alexander@sce.com'; 'michael\_r\_soland@oxy.com'; 'michael-briggs@reliantenergy.com'; 'mike.huk@gov.ab.ca'; 'mjaske@energy.state.ca.us'; 'mpa@aelaw.com'; 'mpocino@rcgroup.com'; 'mrokose@energyamerica.com'; 'mstout@sempira-slms.com'; 'mtran@energy.state.ca.us'; 'napedersen@jonesday.com'; 'nge@value.net'; 'office@mccarthy.com'; 'oro@cpuc.ca.gov'; 'oshirock@pacbell.net'; 'paul.macavoy@yale.edu'; 'paulamirault@aec.ca'; 'pcervin@br-inc.com'; Golden, Patrick (Law); 'phansch@gj.com'; 'phildavies@aec.ca'; 'pjpowerlaw@aol.com'; 'pkeeler@br-inc.com'; 'plg@cpuc.ca.gov'; 'pmoritzburke@cera.com'; 'porterdk@sce.com'; 'pstohr@dbsr.com'; 'raveen\_maan@city.palo-alto.ca.us'; 'rbetonte@socalgas.com'; 'rbw@mrwassoc.com'; 'rcooper@usg.com'; 'rczahar@aol.com'; 'regaffairs@sf.whitecase.com'; 'rfoss@coral-energy.com'; 'rglostein@orrick.com'; 'rhc@mrwassoc.com'; 'richard.jordan@swgas.com'; 'rick.counihan@greenmountain.com'; 'rishikawa@socalgas.com'; Litteneker, Randall (Law); 'rliebert@cfbf.com'; 'rmccann@cal.net'; 'rmp@cpuc.ca.gov'; 'robertg@greenlining.org'; 'rochmanm@spurr.org'; 'roger\_tisdale@oxy.com'; 'ron\_oechsler@rmiinc.com'; 'ronknecht@aol.com'; 'rpelote@energy.twc.com'; 'rpetti@ladwp.com'; 'rpuves@sdge.com'; Stoner, Ronald; 'rshively@enerdynamics.com'; 'rtask@reliantenergy.com'; 'salleyoo@dwt.com'; 'sbs@cpuc.ca.gov'; 'scarter@nrdc.org'; 'schohn@SMUD.org'; 'sedgar@socalgas.com'; 'simonsen@rmi.net'; 'skatz@sempratrading.com'; 'slins@ci.glendale.ca.us'; 'smcfadden@igservice.com'; 'sneiman483@aol.com'; 'spb1@cwclaw.com'; 'sscott3@enron.com'; 'steve.huhman@southernenergy.com'; 'stomashe@energy.state.ca.us'; 'stringham@capp.ca'; 'swatson@socalgas.com'; Frank, Steven (Law); 'tbushman@cellnet.com'; 'tdickers@westerngas.com'; 'tgary@pcenergy.com'; 'thamilton@enron.com'; 'thompson@wrightlaw.com'; 'tlewis@unitedgas.com'; 'toca@utility-savings.com'; 'tod\_bradley@powerspring.com'; 'tom.roth@et.pge.com'; 'tomb@crossborderenergy.com'; 'tsolberg@spurr.org'; 'tsurak@socalgas.com'; 'tturner@ziagroup.com'; Berkovitz, Trista; 'vhconsult@earthlink.net'; 'ward@phaser.com'; 'whited@paceresources.com'

Subject: PG&E OFO Forum on August 29

<< File: Agenda for 8-29-2000 OFO Forum.doc >>

----- From: Stoner, Ronald[SMTP:RRS5@PGE.COM] Sent: Wednesday, August 23, 2000 5:57:34 PM To: 'abb@eslawfirm.com'; 'agoldberg@lgl.twc.com'; 'ahuertas@enron.co.uk';

'alan\_reid@pancanadian.ca'; 'andy.bettwy@swgas.com'; 'anikat@greenlining.org'; 'ascott@sdge.com'; 'askaff@energy-law-group.com'; 'atrowbridge@dbsr.com'; 'bbrunel@SMUD.org'; 'bcherry@sempira.com'; 'bcope@ci.redding.ca.us'; 'bcragg@gmssr.com'; 'bdahncke@pcenergy.com'; 'bdingwall@unitedgas.com'; 'benledene@aec.ca'; 'bfolsom@avistacorp.com'; 'bgaillar@enron.com'; 'bjeider@ci.burbank.ca.us'; 'bmcc@mccarthy.com'; 'bpedersen@igservice.com'; 'bradb@calpine.com'; 'bradylaw@pacbell.net'; 'burkee@cts.com'; 'bwood@energy.state.ca.us'; 'cabaker@duke-energy.com'; 'candjenterprises@home.com'; 'catherine.sullivan@southernenergy.com'; 'cbaker@ns.net'; 'cdoering@reconcorp.com'; 'ceyap@earthlink.net'; 'cgoodman@bellatlantic.net'; 'chilen@llgm.com'; 'chj@aelaw.com'; 'cholmes@energy.state.ca.us'; 'chris.king@utility.com'; 'clower@earthlink.net'; 'cmkehrrein@ems-ca.com'; 'cottlli@sf.whitecase.com'; 'craigc@calpine.c'

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## Recession Risk is Rising, According to Research by Professor

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Haas NewsWire October 16, 2000

CONTENTS Recession Risk is Rising, According to Research by Professor Kenneth Rosen FCC Commissioner to Speak at Workshop on "Regulating on the Technological Edge" Thomas Siebel Inaugurates Second Year of Fisher Center Seminar Series Former Oracle President and COO Ray Lane Predicts the Future for Dot-Coms Dean Emeritus Earl "Budd" Cheit Honored by Cal Performances New Faces at Haas Haas in the News Happening at Haas Haas Celebrations



RECESSION RISK IS RISING, ACCORDING TO RESEARCH BY PROFESSOR KENNETH ROSEN The risk that the US economy is headed for a recession is rising, according to new research by Prof. Kenneth Rosen, co-chair of the Fisher Center for Real Estate and Urban Economies at the Haas School, and his co-author Amanda Howard, senior analyst at the consulting firm RCG. Rosen and Howard based their conclusion on a study of eight leading economic indicators.

"While advancements in technology have enabled notable productivity improvements, those gains are over-stated," say the authors about the argument that increased productivity levels will continue to ward off a recession. "The US sits on the high end of an economic seesaw, held up by a series of related -- and increasingly less sturdy -- imbalances."

High oil prices, a tight labor market, and a potentially weaker dollar will encourage price and wage inflation, and potentially even higher interest rates, say the authors. At the same time, likely declines in foreign investment and venture capital funding would encourage the stock market bubble to burst and thus reduce consumer spending.

As the technology sector continues to contract and without venture capital funding to support the large percentage of unprofitable Internet businesses, a substantial number of jobs will be lost, argue Howard and Rosen. Under these circumstances, the record level of private sector debt and the negative personal savings rate would become increasingly problematic.

"It is the interaction of all of these imbalances that make the risk of a recession so great," conclude the authors.

FCC COMMISSIONER TO SPEAK AT WORKSHOP ON "REGULATING ON THE TECHNOLOGICAL EDGE" Federal Communications Commissioner Michael K. Powell will give the keynote address to the "Regulating on the Technological Edge" workshop on Friday, October 20, at 4:00 p.m. in the Arthur Andersen Auditorium. All faculty, students, staff, and alumni are invited to attend this speech.

Powell has served as a commissioner since 1997. Prior to joining the FCC, Powell was chief of staff to the Antitrust Division of the Department of Justice. He earned his JD from Georgetown University and clerked for a judge on United States Court of Appeals before he joined the Washington DC law firm of O'Melveny & Meyers LLP. In his practice he focused on regulatory matters involving telecommunications, antitrust, and employment law.

This speech is the only event in the workshop series that is open to the public. The regulation workshop is an invitation-only event for academics, regulators, and industry leaders geared towards addressing the issue of regulation of emerging technologies. For more information, contact Anita Patterson at 510-642-4233.

THOMAS SIEBEL INAUGURATES SECOND YEAR OF FISHER CENTER SEMINAR SERIES The founder of one of the fastest growing companies in America, Thomas Siebel, chairman and CEO of Siebel Systems, is coming to Haas to share the secrets of his success with the Haas community on Tuesday, October 31, as the first speaker in this year's Fisher Center E-Commerce Executives Seminar series.

All students, faculty, staff, and alumni are invited to attend the seminar, which takes place Tuesday, October 31, from 12:30 p.m. to 2:00 p.m. in the Wells Fargo Room. Seats will be given on a first-come, first-served basis.

Siebel Systems provides an integrated set of e-business application software that enables multi-channel sales, marketing, and customer service systems to be deployed over the Web, call centers, the field, resellers, retail, and dealer networks. Siebel Systems has grown from \$50,000 in revenues in 1994 to \$791 million in 1999.

Siebel was recognized as one of the top 25 managers in the world by BusinessWeek in January 2000 and Siebel Systems was named the fastest growing company in 1999 by Fortune magazine. Siebel has authored two books on selling. His current book Cyber Rules, which details his business principles, was published in April 1999.

Siebel began his career as employee number 50 at Oracle, after earning his bachelor's in History, a master's in Computer Science, and an MBA from the University of Illinois. In 1990, he left Oracle and became CEO of Cayenne Systems, which he renamed Gain Technology and merged with Sybase. In 1993 he founded Siebel Systems.

FORMER ORACLE PRESIDENT AND COO RAY LANE PREDICTS THE FUTURE FOR DOT-COMS Raymond J. Lane, former president of Oracle Corporation and new general partner at the Silicon Valley venture capital firm Kleiner Perkins Caufield & Byers (KPCB), will give his vision of the future of the New Economy to the Haas community on Friday, November 3, at 4:00 p.m. This event is the first of the 2000-2001 Business Faculty Research Dialogue: Shakeout in Cyberspace: What's Next for the Dot Coms. The event is open to the entire Haas School community.

Since his change in positions, Lane has been quoted extensively that he believes the venture business is going to shift from just funding companies to playing an even larger role in building those companies. He told the Associated Press that KPCB will help to create the survivors in the impending dot-com shakeout.

Lane has stated that the changes at Oracle announced by founder Larry Ellison sped up his departure, which he announced just before the July 4th weekend. Lane left Oracle with no severance package and had to give up \$300 million in unvested stock options. Lane originally joined Oracle as president of Oracle USA after working as a senior partner in the consulting firm of Booz Allen & Hamilton.

Lane has also stressed that his leaving Oracle was part of trying to create balance in his life, noting that the KPCB offices are just 5 minutes from his house. In addition, Lane and his wife have an 18-month-old son at home and a second child due in November. More information on Lane can be found at <http://www.kpcb.com/>.

The Business Faculty Research Dialogues will be sponsored again this year by the Clausen Center for International Business and Policy and California Management Review.

Lane will speak in the Haas School's Arthur Andersen Auditorium at 4:00 p.m. on Friday November 3. There will be a reception at 5:00 p.m. following the lecture in the School's Bank of America Forum. Please contact Meredith LaCorte in the dean's office to reserve a space at either the lecture or the reception.? She can be reached at 510-643-2027 or in email at [lacorte@haas.berkeley.edu](mailto:lacorte@haas.berkeley.edu).

DEAN EMERITUS EARL "BUDD" CHEIT HONORED BY CAL PERFORMANCES Earl F. Cheit, dean emeritus of the Haas School, was honored with a gala celebration at the Cal Performances Season opening in September. Cheit is the founding chair of Cal Performances. Cheit's involvement with Cal Performances began in the early 70s when he served on the Committee for Arts and Lectures, the organization that became Cal Performances.? Now that his term has ended he is stepping down as chair, but will continue to serve on the Board of Trustees.

Cheit served as the Haas School dean from 1976 to 1982.? Among his many achievements was establishing awards for outstanding teaching to faculty selected and presented by students. The first awa

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Message 1138 of 1299

| Enron Mentions |                                |
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Enron Troubles Only the Tip of the Iceberg? TheStreet.com, 10/26/2001

Under the Radar: Enron's Flickering Bulb TheStreet.com, 10/26/2001

DJ Enron Unit,New England Market Downplay Report Of Default Dow Jones, 10/26/2001

Enron Lawsuit Over Microsoft Broadband Agreement May Block MSN Bloomberg, 10/26/01

Enron Executives Sent Requests for Details of Affiliate Profits Bloomberg, 10/26/01

Enron Still Target in California Amid Other Problems (Update1) Bloomberg, 10/26/01

Enron Bonds Fall as Company Taps \$3 Bln Credit Line (Update5) Bloomberg, 10/26/01

Keller Rohrbach L.L.P. Investigates Potential Claims on Behalf of Enron Corp. -- ENE -- Employees and Former Employees Business Wire, 10/26/01

Enron Troubles Only the Tip of the Iceberg? By Peter Eavis <<mailto:peavis@thestreet.com>> Senior Columnist TheStreet.com 10/26/2001 05:23 PM EDT URL: <<http://www.thestreet.com/markets/detox/10003083.html>>

Dealings with a related party have tarnished Enron's (ENE:NYSE - news - commentary) reputation and crushed its stock, but it looks like that case is far from unique. The battered energy trader has done business with at least 15 other related entities, according to documents supplied by lawyers for people suing Enron. Moreover, Enron's new CFO, who has been portrayed by bulls as opposing the related-party dealings of his predecessor, serves on 12 of these entities. And Enron board members are listed as having directorships and other roles at a Houston-based related entity called ES Power 3. The extent of Enron's dealings with these companies, or the value of its holdings in them, couldn't be immediately determined. But the existence of these partnerships could feed investors' fears that Enron has billions of dollars of liabilities that don't show up on its balance sheet. If that's so, the company's financial strength and growth prospects could be much less than has generally been assumed on Wall Street, where the company was long treated with kid gloves. Enron didn't immediately respond to questions seeking details about ES Power or about the role of the chief financial officer, Jeff McMahon, in the various entities. Enron's board members couldn't immediately be reached for comment. Ten Long Days Enron's previous CFO, Andrew Fastow, was replaced by McMahon Wednesday after investors criticized Fastow's role in a partnership called LJM, which had done complex hedging transactions with Enron. As details of this deal and two others emerged, Enron stock cratered. The turmoil that resulted in Fastow's departure began two weeks ago, when Enron reported third-quarter earnings that met estimates. However, the company failed to disclose in its earnings press release a \$1.2 billion charge to equity related to unwinding the LJM transactions. Since then, investors and analysts have been calling with increasing vehemence for the company to divulge full details of its business dealings with other related entities. Enron stock sank 6% Friday, meaning it has lost 56% of its value in just two weeks. Enron's End Run? New financial chief's involvement in Enron business partners Enron-Related Entity Creation Date McMahon Involved?

ECT Strategic Value Corp. 4/18/1985 Yes JILP-LP Inc. 9/27/1995 Yes ECT Investments Inc. 3/1/1996 Yes Kenobe Inc. 11/8/1996 Yes Enserco LLC 1/7/1997 Yes Obi-1 Holdings LLC 1/7/1997 Yes Oilfield Business Investments 1/7/1997 Yes HGK Enterprises LP Inc. 7/29/1997 Yes ECT Eocene Enterprises III Inc. 2/20/1998 Yes Jedi Capital II LLC 9/4/1998 Yes E.C.T. Coal Company No. 12/31/1998 Yes ES Power 3 LLC 1/7/1999 Yes Enserco Inc. 3/25/1999 No LJM Management LLC 7/2/1999 No Blue Heron I LLC 9/17/1999 No Whitewing Management LLC 2/28/2000 No Jedi Capital II LLC 4/16/2001 No Source: Detox However, Enron has yet to break out a full list of related entities. The company has said nothing publicly about McMahon's participation in related entities, nor has it mentioned that its board members were directors or senior officers in ES Power 3. (Nor has it explained the extensive use of Star Wars-related names by the related-party companies.) It's not immediately clear what ES Power 3 is or does. So far, subpoenas issued by lawyers suing Enron have determined the names of senior officers of ES Power 3 and its formation date, January 1999. Among ES Power 3's senior executives are Enron CEO Ken Lay, listed as a director, and McMahon and Fastow, listed as executive vice presidents. A raft of external directors are named as ES Power 3 directors, including Comdisco CEO Norman Blake and Ronnie Chan, chairman of the Hong Kong-based Hang Lung Group. A Comdisco spokeswoman says Blake isn't commenting on matters concerning Enron and a call to the Hang Lung group wasn't immediately returned. Demands, Demands Rating agencies Moody's, Fitch and S&P recently put Enron's credit rating on review for a possible downgrade after an LJM deal that led to the \$1.2 billion hit to equity. Enron still has a rating three notches above investment grade. But its bonds trade with a yield generally seen on subinvestment grade, or junk, bonds, suggesting the market believes downgrades are likely. If Enron's rating drops below investment grade, it must find cash or issue stock to pay off at least \$3.4 billion in off-balance sheet obligations. In addition, many of its swap agreements contain provisions that demand immediate cash settlement if its rating goes below investment grade. Friday, the company drew down \$3 billion from credit lines to pay off commercial paper obligations. Raising cash in the CP market could be tough when investors are jittery about Enron's condition. This week, a number of energy market players reduced exposure to Enron. However, in a Friday press release, CEO Lay said that Enron was the "market-maker of choice in wholesale gas and power markets." He added: "It is evident that our customers view Enron as the major liquidity source of the global energy markets." McMahon reportedly objected to Fastow's role in LJM, allegedly believing it posed Fastow with a conflict of interests. But he will need to convince investors that the 12 entities he's connected to don't do the same. Enron has said that its board fully approved of the LJM deals that Fastow was involved in. Now, board members will have to comment on their own roles in a related entity.

Under The Radar: Enron's Flickering Bulb By Christopher Edmonds <mailto:cedmonds@thetstreet.com> Special to TheStreet.com 10/26/2001 05:08 PM EDT URL: <<http://www.thetstreet.com/comment/chrisedmonds/10003075.html>>

While the bulb at Enron (ENE:NYSE - news - commentary) may not have burnt out, it's clearly flickering. To date, investors aren't sure whether Chairman and CEO Ken Lay is up to the task of re-energizing the company he once built to greatness.

What's happened at the Houston energy giant-turned-dwarf could've been imagined with any number of ne'er-do-well companies during the well-chronicled bubble. But this is Enron. As one longtime Enron bull and shareholder said, "I never had to worry about Enron's ability to survive until this week. I still find it hard to believe." Peter Eavis has done an exceptional job of chronicling Enron's adventures for some time. If you'd listened to him earlier this year, you'd have profited from his knowledge. His reporting on Enron's partnership shenanigans to the departure of Chief Financial Officer Andrew Fastow has been outstanding. The rumors -- from a pending bankruptcy to a Justice Department investigation -- are, for now, just that. And, Enron did not single-handedly cause the California power crisis, nor is Royal Dutch/Shell (RD:NYSE - news - commentary) about to make a bid to buy the company. Sources do tell me that head-count reductions are likely through employee buyout offers and the company is set to refocus on

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*Message 1139 of 1299***Enron Mentions**

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A Day of Terror: Energy Firms Act to Protect Their Systems The Wall Street Journal, 09/12/01 A Day of Terror: Attacks in U.S. Spur Rise in Energy Prices --- Some Suspect the Terrorism Has Origins in Mideast, Fear Supply Disruption The Wall Street Journal, 09/12/01 Enron Starts U.S. Gas and Power Trading After Attacks (Update1) Bloomberg, 09/12/01

Enron Will Resume Mkt-Making In N. Amer Gas, Power Dow Jones News Service, 09/12/01

Houston Workers Quickly Head Out of Towers, Big Companies Close Down KRTBN Knight-Ridder Tribune Business News: Houston Chronicle - Texas, 09/12/01 Energy Cos Reviewing S Asia Ops Security After US Attack Dow Jones Energy Service, 09/12/01 Enron India/Precautions -4:Holds Dabhol Controlling Stake Emerging Markets Report, 09/12/01 'Stir against proposed power tariff hike' The Times of India, 09/12/01 Nymex: Conference Call Tue To Consider Reopening Dow Jones Energy Service, 09/11/01 Bandwidth-Trading Operations Shut Down After Terrorist Attacks in U.S. Dow Jones Business News, 09/11/01 Analyst: 'Fear, Short Covering' Seen In Natural Gas Dow Jones Energy Service, 09/11/01 Power Trading Ceases as Utilities Step Up Security After Attacks Dow Jones Business News, 09/11/01 INDIA: Enron's Indian unit finds it hard to repay debt. Reuters English News Service, 09/11/01 USA: U.S. power trading ceases after attacks. Reuters English News Service, 09/11/01 El Paso, Dynegy Among Texas Companies Evacuated (Update1) Bloomberg, 09/11/01

Enron, El Paso Shut Down Energy Trading After Attacks (Update1) Bloomberg, 09/11/01

A Day of Terror: Energy Firms Act to Protect Their Systems By Wall Street Journal staff reporters Rebecca Smith, John Emshwiller and Alexei Barrionuevo

09/12/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Energy companies that control the nation's electricity and natural-gas supplies as well as big oil companies went on heightened alert to safeguard the system from possible attack. Across the country, utility emergency control centers came to life and extra security patrols were initiated. But with thousands of miles of pipelines and transmission lines, it was largely a symbolic effort. With energy markets suspended and trading floors closed in New York and Houston, the biggest impact was financial. In California, grid officials were preparing to order plants to operate today according to work schedules submitted for yesterday's market day. Enron Corp., Dynegy Inc. and Reliant Energy Inc. largely shut down their headquarters offices in Houston, except for essential personnel. However, they said they were maintaining normal deliveries of electricity and gas to customers. "We have a skeleton crew on the trading floor but I don't think anyone is focused on trading today," a Reliant spokesman said. The Nuclear Regulatory Commission ordered the nation's 104 nuclear reactors to implement heightened security plans although many utilities that own generating plants already had done so. Exelon Corp. put its 17 reactors at 10 plant sites on alert voluntarily -- and largely vacated its 60- plus story headquarters office tower in downtown Chicago. "We sent everybody home we could," said Don Kirchoffner, head of communications for the firm that owns the old Commonwealth Edison and Philadelphia Electric utilities. "At our plants,

we've doubled the security." Nuclear power plant containment buildings, where radioactive materials are housed, are "hardened" against war-time or terrorist attack. They are designed to withstand accidental air crashes and hurricanes, as well, and have concrete walls up to four feet thick that lie outside heavy steel liners, often an inch thick. Nevertheless, critics always have feared that terrorists might be able to get inside the plants and cause mayhem. Edison International said it has asked the California Highway Patrol to monitor traffic along Interstate 5, which lies a short distance from its San Onofre nuclear plant south of Los Angeles that's operated by its Southern California Edison unit. Like companies everywhere, Tulsa-based Williams Cos. started the day by locating its top three levels of management. Then the energy company traced employee travel to determine whether any employees might have been in lower Manhattan or at the Pentagon at the time of the terrorist attacks. "We still don't know for sure," Williams spokesman Jim Gipson said. In the wake of the attacks, oil companies said they heightened security measures at refineries but no company reported a curtailment in the production of gasoline or other refined products. BP PLC, Shell Oil Co., Chevron Corp., Valero Energy Corp. and Phillips Petroleum Co. all said that their facilities were operating normally. A spokesman for Valero, San Antonio, said the company instructed refinery managers in a morning conference call to restrict the flow of "outsiders" into its plants. Phillips Petroleum, Bartlesville, Okla., instituted a travel ban for overseas U.S. workers. "We have just said, 'stay where you are for now,'" a Phillips spokeswoman said. Kinder Morgan Inc., Houston, shut down a petroleum-products storage facility in New York Harbor that feeds Northeast refineries and gas stations. The 6.6 million-barrel facility stores and transfers gasoline, jet fuel and diesel.

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A Day of Terror: Attacks in U.S. Spur Rise in Energy Prices --- Some Suspect the Terrorism Has Origins in Mideast, Fear Supply Disruption By Alexei Barrionuevo Staff Reporter of The Wall Street Journal

09/12/2001 The Wall Street Journal A2 (Copyright (c) 2001, Dow Jones & Company, Inc.)

Energy prices soared on fears the terrorist attacks might have originated in the Middle East and that potential U.S. retaliatory action could disrupt oil supplies. The price of the U.S. benchmark West Texas Intermediate yesterday rose to as high as \$31 a barrel for both October and November delivery following the attacks, up from \$27.63 for the October price Monday. The attacks shuttered commodity trading at least through today at the New York Mercantile Exchange, which operates in a World Financial Center building next door to the World Trade Center. Gasoline pump prices also began shooting up in locations nationwide in the wake of the attacks. By lunchtime, workers reported seeing stations posting prices of \$2.09 a gallon in Lansing, Mich. Consumers in Tulsa, Okla., also reported prices that had spiked by more than 20 cents a gallon at several stations. Across the country, people lined up at gasoline stations to top off their tanks, apparently concerned about gasoline supplies. Exxon Mobil Corp., one of the country's largest gasoline retailers, advised against it. The company said it had "ample supplies" of gasoline and urged consumers to "maintain normal buying habits to avoid artificial run-outs." In a statement, BP PLC said "for today, we are holding the line on prices." Trucks lined up several deep at Valero Energy Corp.'s Benicia, Calif., gasoline pick-up terminal. Valero was the only refining company in the San Francisco Bay Area that kept open its terminal, said Greg Kaneb, a Valero vice president. Other companies apparently closed theirs for security reasons, later reopening them after lunch. As a result, wholesale prices for several refiners shot up as much as 20 cents a gallon, Mr. Kaneb said. "There's going to be a public reaction that's going to create some uncertainty," said Jeff Pillon, energy analyst at the Michigan Public Service Commission. "We've seen a lot of volatility. For things to jump around would not be surprising." Should oil prices continue to climb, members of the Organization of Petroleum Exporting Countries appeared ready to step in and boost production. Ali Rodriguez, OPEC's secretary general, said the organizat

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Message 1140 of 1299

#### VentureWire, Tuesday, September 19, 2000

|            |                                |
|------------|--------------------------------|
| Sender     | venturewire@venturewire.com    |
| Recipients | ['jdasovic@enron.com']         |
| File       | dasovich-j/all_documents/1560. |



VENTUREWIRE --- Tuesday, September 19, 2000

Private Company Business News ----- Published Daily by Technologic Partners ----- <http://technologicpartners.com>

Top Stories:

o Pseudo.com Shuts Down, Lays Off All 175 Employees o Broadbase Acquires Servicesoft in Deal Worth \$645 Million o Tech Consultant Enfrastructure Raises \$100 Million Round One o Former Baan Chief Coleman is New CEO of RightWorks o U.K.-Based Interregnum Launches \$105 Million IT Fund o Infrastructure Firm Q9 Networks Has \$26.5 Million Series A

||||| Advertisement |||||

Looking to join a hot startup destined for market dominance? Bessemer Venture Partners invites you to meet the hiring managers, founders and investors of 50 top, venture-backed companies in Internet infrastructure, optical networking, communications and wireless at an exclusive career fair on September 27th in Silicon Valley. Plus, you can receive a free, autographed copy of Bruce Schneier's \_Secrets and Lies: Digital Security in a Networked World.\_ Details at <http://www.bvp.com/jobs/jobfair.htm>

|||||

Also in This Issue:

New Money: o Lending Industry Tech Firm, Appro, Has \$22 Million Round One o Darwin Networks Closes Series B Funding for \$91 Million o IPG Photonics Raises \$75 Million in Second Round of Funding o Net Business Services Firm Habama Has \$12 Million Round One o Outsourced Services Firm Ledgent Launches With \$12.5 Million o Wireless Software Firm m@gic4 Raises \$12.8 Million Round One o ASP Captivo Raises \$1 Million in Seed Round o B2B Developer Neuport Closes First Round with \$5.5 Million o Entertainment Web Site funBug.com Raises \$3 Million Series A o Industrial Resource Site eFilter Has \$3 Million Seed Round o Market Researcher DiscoverWhy Gets \$5.6 Million Round One o Micro Display Firm MicroEmissive Gets \$2.1 Million Round One o Net Marketing Firm Wheelhouse Raises \$52 Million Round Two o Networking Firm Acrossworld Gets \$2.5 Million in First Round o Online Quality Manager Launches With \$5 Million First Round o Personalization Software Firm APT Has \$4 Million Round One o Supply Chain Manager Mezzia Has \$3.5 Million First Round o Wireless Internet Provider Gets \$1.4 Million Seed Round o E-commerce Hub Skulogix Receives \$31 Million in Second Round o Internet Machines Raises \$30 Million Second Round o Onehealthbank.com Raises \$42 Million in Series B Funding o Outsourcer Everdream Raises \$50 Million in Series C Round o Web Storage Site StorageWay Raises \$36 Million in Round B o B2B Currency Exchange Site Currenex Raises \$16 Million o B2B Market BarterNet Raises \$21.4 Million Series B o Financial Risk Analysis Firm RiskMetrics Lands \$21.8 Million o Internet CRM Firm Neteos Raises \$6 Million in Second Round o Latest Everypath Funding Disclosed as \$10 Million o Search Software Developer PurpleYogi Raises \$15.3 Million o ASP ProTier Raises \$5.75 Million in Second Round of Funding o ICG Invests \$20 Million in BuyMedia's Third Round o IP Contact Center Tech Firm CosmoCom Secures \$40 Million o Network Tech Firm Nishan Systems Raises \$50 Million Third o Software Switches Firm ipVerse Has \$21.8 Million Third Round o Comsor Puts \$10 Million in Orsus's \$20 Million Third Round o Internet Program Guide Yack Secures \$10.2 Million Third Round o Online Management and Consulting Firm Raises \$6.7 Million o Web Catalog Service Firm Viveca Has \$14.5 Million Round One o Wireless Data Firm MobileSys Secures \$36 Million Third Round o Broadband Firm Charter Invests \$5 Million in Video Firm Diva o Business Service Firm Portera Gets \$35 Million Fourth Round o ESP Media Gets \$8.1 Million From Intasys and Microcell o iPass Secures \$30 Million in Series F Round Financing o Net Procurement Firm Nitorum Receives \$6 Million Investment o Network Access Firm Mapletree Secures \$15 Million o Phoenetic Audio Search Firm Fast-Talk Secures \$2 Million o Interlink Networks Completes a \$5 Million Round of Financing

New Products: o New Incubator inOvate Launches with Three Portfolio Firms o Onyx, Softbank, and Prime Create Japanese Onyx Subsidiary o IT Services Firm J3 Changes Name to Impact Innovations Group o Group Buyer of Verizon Affiliates Now Called MainStream PCS o Digital Rights Manager ASPSecure Renamed TrustData Solutions

M&A: o Optical Solutions Acquires Network Plaform Apps Firm Ziga o Symposium Acquires Customer Profiling Service WeFusion.com o Review Site ConsumerSearch.com Acquires Product ReviewNet

New Directors: o Ask Jeeves President on Board of Auction Site Bidder's Edge o CRM & Automated Marketing Firm Unica Names IBM Exec to Board o Hudson Williams Names Ex-Thomson Global President to Board o Networking Firm Looking Glass Adds Allegiance CEO to Board o CEO of Stockton Equities Named to TeamLinux Board o Plumbing, HVAC Site SupplySpot Names Nomaco Exec To Board

New People: o Euro Network Service Firm CityReach Names Ex-IBM VP Its CEO o Employee Benefits Firm RewardsPlus Names Ex-Insweb Exec CEO

VC Fund News: o Israeli Investment Fund East West Ventures Announces Launch

VC Personnel: o Oracle Exec Karen White Joins Pequot Capital As Principal o General Partner at Weiss, Peck & Greer Joins Sprout Group

VW Corrections: o Global Factory o NewsMarket o Screen4Me.com

||||||| Advertisement |||||

"Structuring Effective Private Equity Partnerships" is a Harvard Business School Executive Education course that brings together venture capitalists, institutional investors, fund managers, and corporate executives in Silicon Valley, November 8-10, 2000. HBS Professors Paul Gompers, Felda Hardyman, and Josh Lerner focus participants on best Practice strategies for establishing successful venture funds.

For more information and to apply, visit: <http://www.exed.hbs.edu/vw>

|||||||

===== Top Stories =====

o Pseudo.com Shuts Down, Lays Off All 175 Employees

NEW YORK -- Pseudo Programs, operator of an Internet television network, said it ceased operations after efforts to raise additional funding or sell the company fell through. The company engaged in talks with possible buyers up to the last minute, even putting off informing its employees for an hour and a half, but when those failed, CEO David Bohrman made the announcement to Pseudo's 175 employees at a meeting yesterday afternoon, according to the company's former senior vice president of corporate communications, Jeanne Meyer. VentureWire reported last week that Mr. Bohrman was seeking additional funding and considering selling the company. Ms. Meyer said Pseudo is still seeking a buyer. In June, Pseudo eliminated 16% of its workforce, about 58 jobs, and reassigned 30 others to new production positions in an attempt to recreate itself as a continuous live broadcast network. In May, the company raised a \$14 million round of funding led by Defosses International, a media unit backed by LVMH Luis Vuitton Moet Hennesy. Intel Capital participated along with FD5 S.A., Prospect Street Ventures, and Tribune Ventures. Pseudo has received additional backing from investors including Sycamore Ventures, Big Wave Ventures, and Winfield Capital. <http://www.pseudo.com/>

o Broadbase Acquires Servicesoft in Deal Worth \$645 Million

MENLO PARK, Calif. -- Broadbase Software, a provider of analytic and marketing automation applications, said it will acquire Servicesoft, a provider of Internet customer service software, in a deal worth approximately \$645 million. Broad

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Message 1141 of 1299

### VentureWire, Wednesday, October 4, 2000

|            |                                |
|------------|--------------------------------|
| Sender     | venturewire@venturewire.com    |
| Recipients | ['jdasovic@enron.com']         |
| File       | dasovich-j/all_documents/2038. |

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VENTUREWIRE --- Wednesday, October 4, 2000

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Private Company Business News ----- Published Daily by Technologic Partners ----- <http://technologicpartners.com>

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## Top Stories:

o Optical System Developer Maple Has Over \$50 Million Series B o Beauty ASP Makeover Networks Names Former Revlon Exec CEO o Silicon Valley Bank Launches First Direct Investment Fund o Latin Portal SportsYA! Cuts 25% of Staff, Raises \$10 Million o Ex-Arthur Andersen Partner Joins ECO Outlook as President/COO o Gameplay.com Buys Pixel Broadband Studios for \$50 Million

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Q: What do boo.com, den.net, and violet.com all have in common? A: They never called VentureWorx.

Will your company be the next casualty in the dot-com shakeout?

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Don't let your company become another statistic.

VentureWorx is shaping the future of management consulting. Call 704.377.4100 or visit us online at <http://www.ventureworx.com> to discover how.

|||||||

## Also in This Issue:

New Money: o CRM Firm Allmystuff Raises \$10 Million in Series A o Entertainment Site SRSwowcast Raises \$6 Million Series A o B2B Service Firm for Music Industry Adds \$5 Million Seed o Dais and SmallHill Merge to Form Quivox; Raise First Round o Edge Technologies Receives \$3.8 Million Private Placement o Entertainment App Firm Starlight Gets \$750,000 in Series A o Newtek Capital Takes 50% of Starphire in Round One Funding o \$25 Million for Excess Consumer Goods B2B RetailExchange.com o E-Commerce Firm Aimed at Latin America Fiera Sells 13% Stake o Silicon Access Raises \$56 Million in Third Round o Wireless Access Firm BridgeWave Gets \$26.5 Million Series C o WaveSplitter Technologies Completes \$51 Million F Round o CRM Vendor Respond UK Gets \$5.9 Million from Interregnum, 3i o Educational Tools Firm Co-nect Gets \$7 Million, New CEO o Shopping Site MyOnlyCatalog.com Gets \$8 Million Round Three o E-Business Security Firm Solsoft Raises \$9 Million o Job Fair Company MyJobs.com Gets \$1.54 Million Interim Funds o Amadeus Invests \$2.6 Million in LeatherXchange o Lycos Invests in Media Software Company Wonderhorse.com o Protege Adds \$5 Million From Sal. Oppenheim jr. & CIE o Tellme Networks Confirms \$125 Million Funding

New Products: o GNAC Changes Name To Certainty Solutions, Names New CEO o Interpersonal Communication Tech Provider Commtag Founded o Travel Writer's Web Site Travel Intelligence Launches

M&A: o Sensory To Acquire Speech Technology Firm Fluent o ShareMax Acquires Freight Forwarding Firm CargoStream o U.K.-Based Easi to Buy Canadian Travel Firm Coventus o Xilinx Acquires Fabless Semiconductor Firm RocketChips

New Directors: o Voice Over Broadband Provider Woodwind Adds Three To Board o Cyota Taps Former Citigroup Exec as Chairman of the Board o Former Schwab Exec Joins Board of Finance Site Pure Markets o InstallShield Exec Joins Board of ASP Firm Thinter.net

New People: o Event Planning Software Maker Certain Names CEO, President o Ex-PRWT ComServ Exec Joins Braxtel as Chairman and CEO o Interstar Tech Names Ex-Omtool Exec as President and CEO o NetScaler Names Exodus Co-Founder President and CEO o 3D Graphic Firm Hypercosm Names Ex-IVN CEO As President, CEO

VC Fund News: o New \$20 Million Fund Targets Emerging Imaging Technology

VC Personnel: o Boston Ventures Management Names New Managing Director o Pivotal Asset Promotes Kevin Linker to General Partner o Ex-PaeTec Exec Joins Camelot Ventures' Technology Team o NewSpring Names Former Maxwell Systems Chairman as Partner

VW Corrections: o Promia o Drivewire

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Imagine the power of knowing today what will happen tomorrow. Most e-business performance metrics give you a rear view of where your business has been. But isn't knowing how today's strategies and decisions will impact tomorrow's economic performance of your e-business considerably more valuable? If you've already invested in an e-commerce platform or data warehouse, read our white paper to learn how impact analytics from I-Impact can leverage that investment in ways you never thought possible @ i-impact.com. 800-877-8899.

<http://www.adz.net/i-impact/vwire.html>

|||||

===== Top Stories =====

o Optical System Developer Maple Has Over \$50 Million Series B

SAN JOSE, Calif. -- Maple Optical Systems, which develops optical systems, said it raised over \$50 million in its Series B round of funding. The latest round brings the company's funding to over \$60 million. New investor Texas Pacific Group led the round, which included new investors Amerindo Investment Advisors, Aurora Networks, McQuillian Ventures, Siemens AG, and Technology Crossover Ventures. Previous investor Raza Foundries, which invested \$9 million in the company's initial funding, also invested in this round. The company will use the funding for sales and marketing, developing a research and development facility, and for manufacturing. Maple Optical Systems, formerly Maple Networks, develops multi-service optical systems that enable carriers to provision, scale, and manage bandwidth.

<http://www.mapleoptical.com/>

o Beauty ASP Makeover Networks Names Former Revlon Exec CEO

SAN MATEO, Calif. -- Makeover Networks, an application service provider for the beauty, fashion, and accessory industries, said it named George R. Cannon as its president and CEO. Mr. Cannon most recently served as president and general manager of Revlon's South American, Central American, and Caribbean markets. Makeover Networks is backed by Draper Richards and Venture Management Associates. <http://www.makeoverstudio.com/>

o Silicon Valley Bank Launches First Direct Investment Fund

SANTA CLARA, Calif. -- Publicly-traded Silicon Valley Bancshares, parent company of Silicon Valley Bank, said its first direct equity fund Silicon Valley BancVentures had a first close at \$42 million. The fund expects to have a final close in excess of \$50 million in mid-November. The fund will invest \$250,000 to \$1 million in technology and life sciences companies and will co-invest with other venture capitalists. The investment managers are Greg Becker, Aaron Gershenberg, and Doug Hamilton in Menlo Park, Calif. and Jim Maynard in Boston. <http://www.svb.com/>

o Latin Portal SportsYA! Cuts 25% of Staff, Raises \$10 Million

MIAMI -- SportsYA!, a sports portal aimed at Latin America, Spain, and the U.S. Hispanic market, said it that it cut its staff by 25%, laying off 50 of its 200 employees. Part of the cuts will come from duplications resulting from SportsYA!'s recent acquisition of Element 7. SportsYA! also said it raised \$10 million in fourth round financing from previous investors IMG/Chase Sports Capital, Chase Capital Partners, Flatiron Partners, and Ventech. The company will invest the money in its Latin American operations. The funds will also be used for sales and marketing. The company intends to open new offices in New York and Los Angeles. <http://www.sportsya.com/>

o Ex-Arthur Andersen Partner Joins ECOOutlook as President/COO

HOUSTON -- ECOOutlook.com, an online business services company that provides a link between organizations for automated business information exchange, said it

Message 1142 of 1299

## Enron Mentions

|            |                                |
|------------|--------------------------------|
| Sender     | m..schmidt@enron.com           |
| Recipients | []                             |
| File       | dasovich-j/deleted_items/1874. |

Enron Shares Fall on Concern Over CFO's Partnerships (Update4) Bloomberg, 10/19/01

USA: UPDATE 1-Enron stock sustains further heavy losses. Reuters English News Service, 10/19/01 Enron Corp. Cut to 'Hold' at A.G. Edwards Bloomberg, 10/19/01

BANDWIDTH BEAT: Enron Broadband Unit Takes A Beating Dow Jones Energy Service, 10/19/01 Dynegy Chief: Bandwidth Growth Won't Wait For Trading Dow Jones Energy Service, 10/19/01 UK: Jobs in base metals down but definitely not out. Reuters English News Service, 10/19/01 New Power Hldg Sees Meeting 3Q Loss Estimate Dow Jones News Service, 10/19/01

Enron Shares Fall on Concern Over CFO's Partnerships (Update4) 2001-10-19 16:24 (New York)

Enron Shares Fall on Concern Over CFO's Partnerships (Update4)

(Updates with Chief Financial Officer Fastow didn't immediately return a call for comment in fifth paragraph.)

Houston, Oct. 19 (Bloomberg) -- Enron Corp.'s shares have fallen 26 percent in the past three days on concern the biggest energy trader's dealings with partnerships run by its chief financial officer contributed to investment losses.

Enron's stock dropped 10 percent today. Enron's board cost the company at least \$35 million by allowing Chief Financial Officer Andrew Fastow to manage LJM Cayman and LJM2 Co-Investment, partnerships that bought Enron assets, a shareholder alleged Wednesday in a lawsuit.

The lawsuit came the day after Enron reported \$1.01 billion in third-quarter losses from failed investments. The Wall Street Journal reported \$35 million of the losses were connected with the two limited partnerships. Enron also reduced shareholders' equity by \$1.2 billion when it bought back 55 million shares from the partnerships, the paper reported yesterday.

"It looks sleazy," said Roger Hamilton, a manager at John Hancock's Value funds, which own 600,000 shares. "If you are someone who invests in a company's management, it's almost time to punt with Enron."

Enron spokeswoman Karen Denne didn't return calls or written requests seeking comment. Fastow didn't immediately return a telephone call for comment.

Fastow and a handful of associates made more than \$7 million last year in management fees and about \$4 million in capital increases on an investment of about \$3 million in one of the partnerships, the Journal reported today.

Buying Enron Assets

Fastow is involved in 17 other similar companies and partnerships that appear to have ties to Houston-based Enron, based on filings with the Texas secretary of state.

The foreign business corporations and limited liability companies have directors, officers or managers whose address is listed as 1400 Smith Street in Houston, Enron's corporate address, according to Texas records.

Fastow is listed as a director, officer or managing member in each one. At least one of the companies bought and sold Enron assets, including foreign power plants.

Whitewing Management, which lists Fastow as its managing member, received \$807 million from the sale of Enron debt last year.

Under the terms of the debt sale, Whitewing is allowed to use the proceeds to buy power plants from Enron or make other "permitted investments." Whitewing has bought 14 Enron plants or companies since 1999 and sold four.

Enron's Denne has not responded to written requests about Fastow's role at Whitewing or whether he used his knowledge of the value of Enron assets to benefit outside investors or company executives at Enron's expense.

Shares of Enron fell \$2.95 to \$26.05. They have fallen 69 percent this year.

--Russell Hubbard in the Princeton newsroom, 609-750-4651 or rhubbard2@bloomberg.net, and Jim Kennett in Houston, (713) 353-4871 or jkennett@bloomberg.net/pjm/alp/pjm

USA: UPDATE 1-Enron stock sustains further heavy losses.

10/19/2001 Reuters English News Service (C) Reuters Limited 2001.

(New first paragraph, adds additional analyst comment) By Andrew Kelly HOUSTON, Oct 19 (Reuters) - Enron Corp. stock sustained further heavy losses on Friday as investor confidence in the former Wall Street favorite was rocked by reports about the company's relationship with a limited partnership that was run until recently by Enron's chief financial officer. The energy giant's stock closed down \$2.95 or 10.2 percent at \$26.05 per share, making a cumulative loss of 27 percent for a week in which Enron reported a third-quarter loss of \$638 million, its first quarterly loss in over four years. Analysts said confidence was shaken by several articles in the Wall Street Journal this week alleging possible conflicts of interest on the part of Chief Financial Officer Andrew Fastow, who until recently ran a limited partnership that bought assets worth hundreds of millions of dollars from Enron. "I don't think this thing passes the smell test," said one analyst who spoke on condition of anonymity. "I think the CFO should be out of there right now. In the interest of the stockholders, that CFO should be gone," he said. Enron has rejected the suggestion that there was anything improper about the arrangements, but Fastow severed his ties with the LJM2 partnership earlier this year to allay concerns raised by investors and analysts about his dual responsibilities. POOR JUDGMENT? Analysts said that at the very least, the arrangement showed poor judgment by senior managers at Enron, which recently pledged to be more open with investors and analysts following a series of high-profile stumbles that culminated with the shock resignation of new chief executive officer Jeff Skilling in August. "For a company that had a lot of question marks around it already, these questions about financial dealings are really worrisome for investors," said Commerzbank Securities analyst Andre Meade. "It points to poor decision-making on behalf of the board and top management at Enron," he said. Enron, North America's biggest buyer and seller of natural gas and electricity, was one of Wall Street's high flyers last year, when its stock posted a gain of 87 percent. The stock's ascent was driven by enthusiasm for the company's plans to build a broadband telecommunications business and the success of its EnronOnline Internet energy trading platform. This year Enron's shares have fallen 69 percent as sentiment toward broadband and the Internet soured, Skilling resigned after only six months as CEO, and the company's Dabhol power plant project in India became mired in a payments dispute. Moody's Investors Service said earlier this week that it had placed all of Enron's long-term debt obligations on review for a possible downgrade after Enron took \$1.01 billion in write-downs and charges that substantially reduced valuations for several non-core businesses, including broadband and water services. Some of Enron's financing arrangements require the company to maintain investment grade credit ratings. Analysts said Enron's credibility has been severely damaged and the recent reports about the LJM2 partnership had raised concerns that more unpleasant surprises may lie ahead. "What don't we know that went on at that company? Where's the credibility?" asked one frustrated analyst. "We don't know if it's limited to this," he said.

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Enron Corp. Cut to 'Hold' at A.G. Edwards 2001-10-19 16:27 (New York)

Princeton, New Jersey, Oct. 19 (Bloomberg Data) -- Enron Corp. (ENE US) was downgraded to ``hold" from ``buy" by analyst Michael C Heim at A.G. Edwards & Sons Inc.

BANDWIDTH BEAT: Enron Broadband Unit Takes A Beating By Michael Rieke

10/19/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

A Dow Jones Newswires Column

HOUSTON -(Dow Jones)- Early last year, Enron Corp.'s (ENE) hype and s

## Message 1143 of 1299

## Registration

|            |                         |
|------------|-------------------------|
| Sender     | jeff.dasovich@enron.com |
| Recipients | [tj@haas.berkeley.edu]  |
| File       | dasovich-j/sent/996.    |

My apologies. I've been meaning to come in, but figured that at some point the Telebears on the Web would work. But no luck. Here are the courses that I'd like to register for. SID: 84054310G1.

Competitive Strategy (E210): #09250 Corporate Finance (E234): #09301 Securities Markets (E233): #09292 Internet Strategy (E262B): #09373 Pricing (E296-10): ??? Speaking for Management (E291B-1)---I believe that Diane has already listed me for this one.

Please let me know that you've received so that I don't delay anything any longer. And thanks so much for your help. If there's anything else that you need, please don't hesitate to let me know.

Best, Jeff

## Message 1144 of 1299

## Global Government Affairs Dept. Conf. Call

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | ginger.dernehl@enron.com                                                        |
| Recipients | [daniel.allegretti@enron.com', 'joseph.alamo@enron.com', 'joe.allen@enron.com'] |
| File       | dasovich-j/deleted_items/483.                                                   |

I have rescheduled the Global Government Affairs Conference call to Thursday, July 26 @ 4:00 PM (CDT). This call was originally scheduled for this past Friday, July 20. See details below:

Date: Thursday, July 26

Time: 4:00 PM (CDT)

Number: 1-800-283-1805 (domestic) 703-736-7385 (international) (there is no pass code for this call)

Also, there are a limited number of lines for this call. For those in the bigger offices, please try and gather in a conference room to take this call.

Thanks and please don't hesitate to call me if you have any questions.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

## Message 1145 of 1299

## REMINDER: Global Govn't Affrs Conf. Call

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | ginger.dernehl@enron.com                                                        |
| Recipients | [daniel.allegretti@enron.com', 'joseph.alamo@enron.com', 'joe.allen@enron.com'] |
| File       | dasovich-j/deleted_items/247.                                                   |

Yes, there is a scheduled Government Affairs conference call today.

The dial information is:

Date: Friday, August 17

Time: 10:30 AM (CDT)

Number: 1-800-283-1805 (domestic) 703-736-7385 (int'l)

Location: EB 4701 (for those in Houston)

Also, as a reminder, the remaining calls for the end of the year are listed below. Same dial information above will be used for these calls.

Friday, September 14 Friday, October 12 Friday, November 16 Friday, December 14

Please make sure to mark your calendars with these dates.

Thanks and please call if ;you have any questions.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 1146 of 1299

| Out of Office Notification |                                                                                                                    |
|----------------------------|--------------------------------------------------------------------------------------------------------------------|
| Sender                     | april.hrach@enron.com                                                                                              |
| Recipients                 | ['mollie.gustafson@enron.com', 'christopher.calger@enron.com', 'pbray@newpower.com', 'rob.bakondy@enron.com', ...] |
| File                       | dasovich-j/notes_inbox/3140.                                                                                       |

Hey Everybody-

I will be leaving Tues., May 22 at noon to fly to Arizona for my sister's high school graduation. (sniff, sniff I am so proud.) I will be out the rest of the week and returning to work Tues., May 29, after the Monday Holiday. Jennifer Lind will be holding down my side of the fort while I am out. Please feel free to contact her if you need anything. She is at 415-782-7818.

Even though I will be swimming and lounging around the pool soaking up the beautiful Arizona sun please do not hesitate to page me if you have any emergencies that require my immediate assistance.

Cheers, April Hrach Administrative Coordinator Pager: 888-463-2072 Phone: 415-782-7825 Fax: 415-782-7851

Message 1147 of 1299

| Ontario Meeting (June 7-9) |                                                                                                                     |
|----------------------------|---------------------------------------------------------------------------------------------------------------------|
| Sender                     | ginger.dernehl@enron.com                                                                                            |
| Recipients                 | ['government.guests@enron.com', 'ray.alvarez@scbbs-bo.com', 'jean.dressler@enron.com', 'terri.miller@enron.com...'] |
| File                       | dasovich-j/all_documents/572.                                                                                       |

Below, in the attachment, you will find your confirmation # for your overnight stay in Ontario. If the dates for your stay are incorrect, please call me and I will make the necessary changes with the hotel. There are two hotels listed, so please make sure you note which hotel your reservation is at. The two hotel addresses are:

Queen's Landing Inn (Main Hotel) The Prince of Wales Hotel 155 Byron Street 6 Picton Street Niagara-on-the-Lake, ON L0S 1J0 Niagara-on-the-Lake, ON L0S 1J0 905-468-2195 phone# 905-468-2195 phone# 905-468-2227 guest fax# 905-468-5521 guest fax#

Next week, Cindy Derecskey & myself will be forwarding more detailed information about the activities, location of the meetings, directions, maps and agenda items.

Have a great weekend and we'll be in touch with each of you again next week.

gngr

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Message 1148 of 1299

### Information for Energy Meeting on Thursday

|            |                                                             |
|------------|-------------------------------------------------------------|
| Sender     | maureen.mcvicker@enron.com                                  |
| Recipients | ['Steven J Kean/NA/Enron@Enron', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/3387.                                |

Here's Karen's email to emoses.

----- Forwarded by Maureen McVicker/NA/Enron on 05/14/2001

02:42 PM -----

Karen Denne 05/12/2001 06:44 PM To: emoses@mayor.lacity.org cc: Steven J Kean/NA/Enron@Enron

Subject: Information for Energy Meeting on Thursday

Eric -- Attached is the letter and invitation list for the meeting on Thursday with the Mayor and Enron Chairman Ken Lay. We will fax the invitations as soon as I hear Monday morning from Kevin Sharer's office whether he is amenable to hosting the meeting. I do not have contact information for Selim Zihlka, so if you could call or email me with that information, I'll make sure he receives an invitation.

Please call me if you have any questions.

Thank you for your assistance with this meeting.

Regards,

Karen Denne Vice President Public Relations Enron Corp. 713-853-9757 - work 713-853-6790 - fax 713-907-7906 - cell 281-861-7017 - home

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Message 1149 of 1299

### Conference Call Confirmation

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | joseph.alamo@enron.com                                                                                              |
| Recipients | ['schub@socrates.berkeley.edu', 'steven.kean@enron.com', 'maureen.mcvicker@enron.com', 'jeff.dasovich@enron.co...'] |
| File       | dasovich-j/notes_inbox/3532.                                                                                        |

Please consider this notice & confirmation of a conference call, per Jeff Dasovich and Steve Kean, with Laura Tyson and Marybeth Shubert, Berkeley Business School, as noted below:

Date: Wednesday, May 8th Time: 1:30 PM PDT/3:30 PM Central Call-in: 1-888-476-3752 Code No.: 735045 Jeff only (as host): 780468

Thanks in advance for your participation,

Joseph Alamo Sr. Administrative Assistant Government Affairs - The Americas San Francisco CA (415) 782-7841

Marybeth Schubert <schub@socrates.berkeley.edu> on 05/08/2001 06:25:37 PM To: joseph.alamo@enron.com cc:

Subject: conference call with Steve Cain and Jeff Dasovitch

Joseph:



Laura Tyson and I will be available for a conference call with Steve Cain and Jeff Dasovitch tomorrow afternoon at 1:30 pacific. Dean Tyson will be at the Westin William Penn Hotel: 412-281-7100. I will be at 505-820-6721. I'd appreciate it if you would coordinate details with Jeff. Marybeth

Message 1150 of 1299

#### CAISO NOTICE: San Francisco Study Group Members and Cal-ISO Market

|            |                        |
|------------|------------------------|
| Sender     | lgoldseth@svmg.org     |
| Recipients | ['lgoldseth@svmg.org'] |
| File       | dasovich-j/inbox/290.  |

SVMG Energy Committee Members and Electric Infrastructure Team - FYI \*\*\*\*\*

Market Participants:

San Francisco Study Group Members and Cal-ISO Market Participants,

A meeting of the San Francisco Study Group has been scheduled for Tuesday October 9, 2001. This meeting is being held to discuss both the status of various transmission and generation projects in the San Francisco Area, as well as the initiation of new transmission system studies related to the San Francisco Area. The meeting will be held in Conference room 300 on the third floor of PG&E's 77 Beale Street building in San Francisco. The meeting is scheduled from 10 AM to 3 PM. Lunch will not be provided. The draft meeting agenda is attached.

<<Meeting Agenda-Oct9thRev.doc>>

If you have questions regarding the meeting, please contact Larry Tobias at 916-608-5763 or ltobias@caiso.com.

Thanks

Larry Tobias California ISO Senior Grid Planning Engineer Email LTobias@caiso.com Phone (916) 608-5763 FAX (916) 351-2272 Pager (916) 522-6552

Message 1151 of 1299

#### SVMG Media Training Workshop with Tripp Frohlichstein, April 26 &

|            |                              |
|------------|------------------------------|
| Sender     | mwero@svmg.org               |
| Recipients | ['mwero@svmg.org']           |
| File       | dasovich-j/notes_inbox/4823. |

Hello,

You are invited to take part in our annual Media Training Workshop, featuring Tripp Frohlichstein of Media Masters. He is a "master" at teaching this program and has done a great job at informing - as well as entertaining - previous workshop attendees. This year's workshop, helpful to both beginner and experienced professionals who currently work, or desire to work with the media, is being held at Cadence Design Systems on April 26th and 27th, 2001, and is co-sponsored by the San Jose Silicon Valley Chamber of Commerce

The registration fee for this event varies from \$100.00 to \$250.00.

Please see the attached registration form or click on our "press hat" icon on the SVMG home page at [www.svmg.org](http://www.svmg.org), for more information and a further description on this exciting program.

Please contact Michelle or myself for more information.

Best regards,

Michael Wero Associate, Communications Silicon Valley Manufacturing Group 408-501-7862 - p 408-501-7861 - f

Michelle Montague-Bruno Director, Communications Silicon Valley Manufacturing Group 408-501-7853 - p 408-501-7861  
- f mmontague-bruno@svmg.org

- media\_train\_2001\_workshop.doc

Message 1152 of 1299

#### CADER'S DG 2001 CONFERENCE

|            |                                      |
|------------|--------------------------------------|
| Sender     | jgopal@energy.state.ca.us            |
| Recipients | ['undisclosed-recipients@enron.com'] |
| File       | dasovich-j/inbox/723.                |

!! CADER'S DG 2001 CONFERENCE !! CADER's 3rd Annual International Symposium "Distributed Generation: Opportunities and Obstacles" will be held as scheduled on November 1-2, 2001 at the Catamaran Resort Hotel in San Diego. Registration at the regular rates is still available. If you haven't registered yet, do so now. You should be there to network and mingle with some 250 fellow dg enthusiasts. Twenty-three sponsors will be showing you the latest in distributed energy resource technologies. Over fifty speakers will provide you the latest and greatest in recent developments in financing, DG initiatives, deployment and commercialization issues, control & communication, standards and codes and more..... with a focus on case studies. For the latest information on the Agenda, and registration details, please see [www.cader.org](http://www.cader.org) To facilitate your planning, San Diego's gorgeous Catamaran Resort Hotel has graciously extended the special rate deadline. Contact the hotel at 800-422-8386 or <http://www.catamaranresort.com/cad1030.html> Call Jairam Gopal (916) 654-4880 or Michael Theroux (530) 823-7300 ext. 203 or Betsie Brown (858) 794-7355 if you have any questions.

Message 1153 of 1299

#### California Team Daily Conf. Call (New Call Scheduled)

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | ginger.dernehl@enron.com                                                                                           |
| Recipients | ['jeff.dasovich@enron.com', 'marcia.linton@enron.com', 'sandra.mccubbin@enron.com', 'paul.kaufman@enron.com', ...] |
| File       | dasovich-j/notes_inbox/5246.                                                                                       |

There has been a change in the time of above referenced call. Please make note of this and place on your calendars.

"Highlighted portion indicates change"

Date: Daily

Time: 1:30pm CST

Number: 1-800-998-2462 passcode 5010418

Thanks and please call if you have any questions.

gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 02/22/2001 08:51 AM -----

Ginger Dernehl 02/16/2001 02:16 PM

To: Jeff Dasovich/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, Paul Kaufman/PDX/ECT@ECT, James D Steffes/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Leslie Lawner/NA/Enron@Enron, bhansen@lhom.com, hgovenar@govadv.com cc: Joseph Alamo/NA/Enron@Enron, Lysa Akin/PDX/ECT@ECT, Marcia A Linton/NA/Enron@Enron, Rubena Buerger/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, (bcc: Ginger

Dernehl/NA/Enron) Subject: California Team Daily Conf. Call (New Call Scheduled)

Rick Shapiro has scheduled a daily conference call for the above listed individuals to discuss the clarity of Enron's message and purpose. This call will take place every week day at 10:00am CST, beginning Tuesday, February 20th. Please see below for details:

Date: Daily (beginning Tuesday, February 20)

Time: 10:00am CST

Number: 1-800-998-2462 passcode 5010418

Thanks and please call with questions.

gngr 713-853-7751

Message 1154 of 1299

### Enron Image 2000 Video is Here

|            |                                |
|------------|--------------------------------|
| Sender     | public.relations@enron.com     |
| Recipients | [executive.list@enron.com]     |
| File       | dasovich-j/all_documents/2108. |

Enron's Image 2000 Video is Now Available

We think you will like Enron's new corporate image video, which can be used for employees, customers, suppliers, government officials, and other audiences who want to know about Enron. The video features Ken Lay, Jeff Skilling and Joe Sutton who discuss four key business initiatives: broadband; wholesale energy; energy outsourcing services and EnronOnline. The look and feel represents our people, culture and new branding.

MooreSource has a large supply of standard VHS (also known as NTSC) copies, which is the format used in the U.S. and some international locations, and copies in PAL, which is the format used in the U.K. and in most European locations. There also are special PAL formats (PAL-M and PAL-N) available for locations in South America.

You may use the order form below or, for those of you who prefer to order electronically, you may do so from MooreSource using the following item numbers. If you aren't familiar with MooreSource, please go to <http://home.enron.com:84/imgctr/> and click on the MooreSource button. Instructions for ordering will be provided there. If you have questions about using MooreSource, contact Michael Shea at 713/853-5418.

Order a copy today.

Item # Description Price 43162 Image Video-VHS \$4.25 43163 Image Video-PAL \$8.25 43164 Image Video-PAL/M \$15.00 43165 Image Video-PAL/N \$15.00

Message 1155 of 1299

### FW: CADER'S DG 2001 CONFERENCE

|            |                            |
|------------|----------------------------|
| Sender     | jeff.dasovich@enron.com    |
| Recipients | [mary.schoen@enron.com]    |
| File       | dasovich-j/sent_items/731. |

Greetings. In case Martin's interested...

Best, Jeff -----Original Message----- From: Jairam Gopal [mailto:Jgopal@energy.state.ca.us] Sent: Tuesday, October 23, 2001 12:15 PM To: undisclosed-recipients Subject: CADER'S DG 2001 CONFERENCE

!! CADER'S DG 2001 CONFERENCE !!

CADER's 3rd Annual International Symposium "Distributed Generation: Opportunities and Obstacles" will be held as scheduled on November 1-2, 2001 at the Catamaran Resort Hotel in San Diego.

Registration at the regular rates is still available. If you haven't registered yet, do so now. You should be there to network and mingle with some 250 fellow dg enthusiasts.

Twenty-three sponsors will be showing you the latest in distributed energy resource technologies. Over fifty speakers will provide you the latest and greatest in recent developments in financing, DG initiatives, deployment and commercialization issues, control & communication, standards and codes and more..... with a focus on case studies.

For the latest information on the Agenda, and registration details, please see [www.cader.org](http://www.cader.org) <<http://www.cader.org/>>

To facilitate your planning, San Diego's gorgeous Catamaran Resort Hotel has graciously extended the special rate deadline. Contact the hotel at 800-422-8386 or <<http://www.catamaranresort.com/cad1030.html>>

Call Jairam Gopal (916) 654-4880 or Michael Theroux (530) 823-7300 ext. 203 or Betsie Brown (858) 794-7355 if you have any questions.

---

Message 1156 of 1299

## Re: Conference Call Confirmation

|            |                                                                                         |
|------------|-----------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                 |
| Recipients | ['schub@socrates.berkeley.edu', 'maureen.mcvicker@enron.com', 'joseph.alamo@enron.com'] |
| File       | dasovich-j/sent/4468.                                                                   |

Marybeth:

My apologies, but Steve's going to be in a meeting with the Governor from about 1:30 to 3 PM today and then is likely on a plane directly thereafter returning to Houston. Likely best to try to arrange the call for tomorrow, if that works with Laura. I'll check Steve's schedule and forward the information to you.

Best, Jeff

Joseph Alamo 05/08/2001 07:44 PM

To: Jeff Dasovich/NA/Enron, Steven J Kean/NA/Enron@Enron, schub@socrates.berkeley.edu cc: Maureen McVicker/NA/Enron Subject: Conference Call Confirmation

Please consider this notice & confirmation of a conference call, per Jeff Dasovich and Steve Kean, with Laura Tyson and Marybeth Shubert, Berkeley Business School, as noted below:

Date: Wednesday, May 8th Time: 1:30 PM PDT/3:30 PM Central Call-in: 1-888-476-3752 Code No.: 735045 Jeff only (as host): 780468

Thanks in advance for your participation,

Joseph Alamo Sr. Administrative Assistant Government Affairs - The Americas San Francisco CA (415) 782-7841

Marybeth Schubert <schub@socrates.berkeley.edu> on 05/08/2001 06:25:37 PM To: joseph.alamo@enron.com cc:

Subject: conference call with Steve Cain and Jeff Dasovitch

Joseph:

Laura Tyson and I will be available for a conference call with Steve Cain and Jeff Dasovitch tomorrow afternoon at 1:30 pacific. Dean Tyson will be at the Westin William Penn Hotel: 412-281-7100. I will be at 505-820-6721. I'd appreciate it if you would coordinate details with Jeff. Marybeth

---

Message 1157 of 1299

**CGT Gas Accord II Team**

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | frl3@pge.com                                                                                                        |
| Recipients | ['ldb4@pge.com', 'd2mr@pge.com', 'askaff@energy-law-group.com', 'aamirali@caiso.com', 'bcc3@pge.com', 'alex.su...'] |
| File       | dasovich-j/all_documents/8144.                                                                                      |

CONFIDENTIAL SETTLEMENT DOCUMENT PER CPUC RULE 51

ALL INTERESTED PARTIES:

This is a reminder that PG&E will hold the first Gas Accord II Workshop of the new year on Wednesday and Thursday, January 10 and 11. The workshop will be held at PG&E headquarters in San Francisco, 77 Beale Street, in Conference Room 300.

Our objective for this workshop is to review and explain PG&E's comprehensive settlement proposal, which was distributed by e-mail on December 21, 2000, to those parties who have explicitly agreed to abide by CPUC Rule 51.

If you did not receive a copy of the December 21 transmittal and would like one, please complete the attached Rule 51 form and return it by e-mail to Frank Lindh (frl3@pge.com) and Geoff Bellenger (gjb2@pge.com), or by FAX to Geoff at 415-973-0881.

Because we will be discussing the substance of PG&E's settlement proposal at next week's workshop, any party who wishes to attend will be required to have completed the Rule 51 form. (Please note, if you received our December 21 transmittal, then that means PG&E has your Rule 51 form on file, so there is no need to fill it out again.)

Also attached below is a proposed Agenda for next week's workshop. We will start the sessions at 9:30 a.m. on Wednesday and at 9:00 a.m. on Thursday. We will provide coffee and juice in the morning, and lunch each day.

If you do plan to attend next week's workshop, we request that you please confirm your attendance, so that we can get a headcount for the food and drink orders. Please e-mail a response to Darcy Morrison (D2Mr@pge.com), or telephone Darcy at (415) 973-6644.

We look forward to seeing you next week and having a productive discussion.

Frank Lindh Ray Williams 415-973-2776 415-973-3634 frl3@pge.com rdw0@pge.com

<<Gas Accord II Information Form.doc>> <<Agenda 1-10&11-01 Workshop.doc>>

- Gas Accord II Information Form.doc - Agenda 1-10&11-01 Workshop.doc

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Message 1158 of 1299

**Electronic Mail Retention**

|            |                                                       |
|------------|-------------------------------------------------------|
| Sender     | susan.mara@enron.com                                  |
| Recipients | ['robert.frank@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/deleted_items/445.                         |

Can you help me with this? I can never get Sanders to respond. Could you try to get an answer for me?

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/26/2001 01:39 PM -----

Susan J Mara 07/25/2001 01:38 PM To: Richard B Sanders/Enron@EnronXGate cc: James D Steffes/Enron@EnronXGate, Richard Shapiro/Enron@EnronXGate, Joseph Alamo/NA/Enron@Enron Subject: Electronic Mail Retention

Richard,

Several months ago, I was notified by you that my e-mails were being collected. Therefore, I kept doing what I've been doing all along since I joined Enron -- saving those emails I need for my job and deleting others. Given this new notice from you, I am confused about what to do. I do not have enough guidance. I get hundreds of emails every day. I respond to many of them. Do I save all email receipts and responses? Do I save a subset? What is the basis for saving some and deleting others? Can't my trash file and my e-mail system just be stored by IT centrally in Houston? Please respond.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/25/2001 01:31 PM -----

Mark Haedicke and Richard Sanders Sent by: Enron Announcements 07/25/2001 01:19 PM To: Individuals Exempted from Retention Policy cc: Subject: Electronic Mail Retention

This is a reminder that due to the various proceedings ongoing in California, please do not delete any email or electronic data that relates to the Company's past, current or future business in California. Deletion of such data could subject both you and the Company to allegations of deliberate destruction of evidence, contempt of court, and civil and criminal penalties. To preserve such data, please have your assistant create a folder entitled "California Data" and move all emails and other data to that folder. Thank you for your cooperation. If you have any questions, please contact Richard Sanders at x35587 or Mark Haedicke at x36544.

---

Message 1159 of 1299

#### Re: TAR&L MEETING - 2/26

|            |                                                                                  |
|------------|----------------------------------------------------------------------------------|
| Sender     | xi.xi@enron.com                                                                  |
| Recipients | ['alisa.christensen@enron.com', 'beth.wapner@enron.com', 'ban.sharma@enron.com'] |
| File       | dasovich-j/all_documents/9361.                                                   |

All, I recently completely a compilation of licenses and fees in Excel for all the countries which we currently have a authorizations to carry out some form of telecommunications business. Jan also thought this might be interesting for you to see and asked me to pass this on.

Angie Buis 02/22/01 10:30 AM

To: Beverley Ashcroft/LON/ECT@ECT, Alisa Christensen/Enron Communications@Enron Communications, Beth Wapner/Enron Communications@Enron Communications, Carolyn Barrett/Enron Communications@Enron Communications, Cynthia Harkness/Enron Communications@Enron Communications, David DeGabriele/Enron Communications@Enron Communications, Derenda Plunkett/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Richard Anderson/Enron Communications@Enron Communications, Gerry Willis/Enron Communications@Enron Communications, James Ginty/Enron Communications@Enron Communications, Jan Haizmann/LON/ECT@ECT, Jane Wilson/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Jeff Dasovich/NA/Enron@ENRON, Lara Leibman/Enron Communications@Enron Communications, Malini Mallikarjun/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Michael Grimes/AP/Enron@Enron, Michelle Hicks/Enron Communications@Enron Communications, Mike Dahlke/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Paul Racicot/Enron Communications@Enron Communications, Rajen Shah/LON/ECT@ECT, Robbi Rossi/Enron Communications@Enron Communications, Sue Nord/NA/Enron@Enron, Xi Xi/Enron Communications@Enron Communications, Ban Sharma/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT cc: Wayne Gardner/Enron Communications@Enron Communications, Kathleen Noble/Enron Communications@Enron Communications, Susan E Moore/Enron Communications@Enron Communications Subject: TAR&L MEETING - 2/26

The next TAR&L teleconference will take place Monday, February 26 at 8:00 a.m. in EB 14C1. The dial-in numbers are listed below:

International dial-in: 505-766-5458 Passcode: 696319

Host & Domestic dial-in: 877-233-7845 Passcode: 696319

Host Passcode: 474582

Breakfast will be provided.

If I have missed someone or have added someone who should have been removed, please let me know.

Thank you.

Angie Buis Sr. Admin Asst. EBS Tax 713-853-7097 work 713-416-4720 cellular EB 4629a

---

Message 1160 of 1299

### Utilagent Now Provides 20% Electricity Savings for California

|            |                                                                  |
|------------|------------------------------------------------------------------|
| Sender     | gavin.dillingham@enron.com                                       |
| Recipients | ["nicholas.o'day@enron.com", 'filuntz@aol.com', 'liz@luntz.com'] |
| File       | dasovich-j/all_documents/1180.                                   |

Utilagent Now Provides 20% Electricity Savings for California Residences.

? 09/06/2000 PR Newswire

(Copyright (c) 2000, PR Newswire) ?

? PISMO BEACH, Calif., Sept. 6 /PRNewswire/ -- Utilagent, a California based utility services company, announced that it now provides a 20% electricity savings for all PG&E, Edison, and SDG&E residential accounts throughout California. The savings come directly from the actual cost of the electricity and is deducted from the "electric energy" charges as shown on one's utility bill. "California residents have seen their electricity bills skyrocket instead of decline and view this deregulation process as a confusing, dismal failure", says Robert Kramb, manager of Utilagent. "In addition, except for microscopic print found on electricity bills, regarding alternative suppliers, little has been done by the Public Utilities Commission and utility companies to educate Californian's about their purchase options. Utilagent has simply decided to take the guesswork out of the process." ?

Utilagent provides Californian's with an on-line approach for the 20% savings. Their web site <http://www.electricityderegulation.com> uses a one-page, one-minute, sign-up form where a resident enters their utility information and payment option. The entire process is done on-line, and there are no fees (either switching or cancellation), no deposits, and no long-term contracts. "Utilagent scours the utility market place for the best programs that provide the best utility savings for the most people, and we are pleased to promote Utility.com as the ESP (electric service provider) in California. Those signing up through Utilagent receive their same electricity and utility services as they have in the past, but pay 20% less for their electric energy, the way electricity deregulation is meant to be", claims Kramb. For further information visit <http://www.electricityderegulation.com> , or contact: Robert Kramb, Manager of Utilagent, 805-773-8777, fax, 801-409-5954, or e-mail, [robert@utilagent.com](mailto:robert@utilagent.com) This release was issued through DigitalWork.com - Your Business Workshop. For more information, visit <http://www.digitalwork.com> .

/CONTACT: Robert Kramb, Manager of Utilagent, 805-773-8777, fax, 801-409-5954, or e-mail, [robert@utilagent.com](mailto:robert@utilagent.com)/08:02 EDT

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Message 1161 of 1299

**Re: CGT Gas Accord II Team**

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | mflorio@turn.org                                                                                                  |
| Recipients | [askaff@energy-law-group.com', 'ddr0@pge.com', 'aamirali@caiso.com', 'alex.sugaoka@uaecorp.com', 'frl3@pge.co...] |
| File       | dasovich-j/all_documents/8174.                                                                                    |

Once again I implore you to put at stop to this madness and hold any further "Gas Accord II" settlement discussions in abeyance until the current electricity crisis has abated. There is neither the time nor the mental capacity to deal with all of these issues at the same time. For God's sake, STOP IT!!! Mike Florio

At 12:49 PM 1/4/2001 -0800, Lindh, Frank (Law) wrote:

*CONFIDENTIAL SETTLEMENT DOCUMENT PER CPUC RULE 51 ALL INTERESTED PARTIES: This is a reminder that PG&E will hold the first Gas Accord II Workshop of the new year on Wednesday and Thursday, January 10 and 11. The workshop will be held at PG&E headquarters in San Francisco, 77 Beale Street, in Conference Room 300. Our objective for this workshop is to review and explain PG&E's comprehensive settlement proposal, which was distributed by e-mail on December 21, 2000, to those parties who have explicitly agreed to abide by CPUC Rule 51. If you did not receive a copy of the December 21 transmittal and would like one, please complete the attached Rule 51 form and return it by e-mail to Frank Lindh (frl3@pge.com) and Geoff Bellenger (gjb2@pge.com), or by FAX to Geoff at 415-973-0881. Because we will be discussing the substance of PG&E's settlement proposal at next week's workshop, any party who wishes to attend will be required to have completed the Rule 51 form. (Please note, if you received our December 21 transmittal, then that means PG&E has your Rule 51 form on file, so there is no need to fill it out again.) Also attached below is a proposed Agenda for next week's workshop. We will start the sessions at 9:30 a.m. on Wednesday and at 9:00 a.m. on Thursday. We will provide coffee and juice in the morning, and lunch each day. If you do plan to attend next week's workshop, we request that you please confirm your attendance, so that we can get a headcount for the food and drink orders. Please e-mail a response to Darcy Morrison (D2Mr@pge.com), or telephone Darcy at (415) 973-6644. We look forward to seeing you next week and having a productive discussion. Frank Lindh Ray Williams 415-973-2776 415-973-3634 frl3@pge.com rdw0@pge.com <<Gas Accord II Information Form.doc>> <<Agenda 1-10&11-01 Workshop.doc>>*

Message 1162 of 1299

**RE: Proposal AREM response to UDC Joint Filing - Implementation of**

|            |                                                                                                            |
|------------|------------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                    |
| Recipients | [bill.chen@aesmail.com', 'jsmollon@newwestenergy.com', 'arem@electric.com', 'douglass@energyattorney.com'] |
| File       | dasovich-j/sent_items/2322.                                                                                |

Apologies just got back. Can't make the call, but concur that we ought to stay where we were. Not that the proposal doesn't merit discussion, but it raises many issues and we're down to the wire. So I concur with Bill and Aaron. Perhaps we should try to regroup first thing in the AM?

Best, Jeff

-----Original Message-----

From: Bill Chen [mailto:Bill.chen@aesmail.com] Sent: Tuesday, November 27, 2001 6:00 PM To: 'jsmollon@newwestenergy.com'; arem@electric.com Cc: douglass@energyattorney.com; Dasovich, Jeff Subject: RE: Proposal AREM response to UDC Joint Filing - Implementation of Suspension DA

All,

Unfortunately, Aaron and I will not be able to make this call. However, we wanted to let the group know that we are strongly opposed to New West's proposal and urge the group to adopt the position we agreed to during last week's call, i.e., oppose the UDCs' proposal for a DASR cut-off date, for the reasons outlined in Dan's most recent draft.

Thanks.

Bill 925.287.4703

-----Original Message-----

From: jsmollon@newwestenergy.com [mailto:jsmollon@newwestenergy.com] Sent: Tuesday, November 27, 2001 11:21 AM To: arem@electric.com Cc: douglass@energyattorney.com; Jeff.Dasovich@enron.com Subject: Proposal AREM response to UDC Joint Filing - Implementation of Su spension DA

I have had an opportunity to talk to most of you regarding the attached proposal. I apologize I ran out of time yesterday and didn't catch everyone.

NWE would like to propose a slightly different take on our AREM filing having had a chance to think more about it. I wanted to run it by everyone to get your thoughts before submitting a redline. If you feel this warrants a conference call I will gladly set one up for today. Time is of the essence and would appreciate your feedback as soon as possible. If we all agree, I would like to get the re-write with everyone's blessing to Dan by tomorrow at 8:00 am. or sooner.

<<arm-puc-plan.doc>> Proposal Benefits

1. We look more reasonable and agree to much of what UDCs are proposing. 2. Accommodates most, if not all, of ESP and customer concerns. 3. Strong argument for avoiding any contract review. Our verification proposal could backfire; PUC could accept our approach, but add details which goes toward ESPs submitting contracts to the PUC for review and validation Thank you, Janie Mollon Manager, Legislative and Regulatory Affairs Office: 602-629-7758 FAX: 602-629-7772 Mobile: 602-625-3892

Message 1163 of 1299

### Gas Accord II: Workshop 10/25-10/26

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | frl3@pge.com                                                                                                        |
| Recipients | ['ldb4@pge.com', 'd2mr@pge.com', 'askaff@energy-law-group.com', 'aamirali@caiso.com', 'bcc3@pge.com', 'alex.su...'] |
| File       | dasovich-j/all_documents/2575.                                                                                      |

Confidential Settlement Document Under CPUC Rule 51

PARTIES:

This is a reminder that we have a Gas Accord II Settlement Workshop next week on Wednesday and Thursday, October 25 and 26. The workshop on Wednesday will start at 9:30 a.m. and end around 3:30 p.m. We will provide lunch this day. On Thursday, we would like to start at 9:00 a.m. and end around noon. The Workshop is at PG&E's headquarters, Conference Room 300, 77 Beale Street, San Francisco.

Please respond, to let us know whether you will attend next week's workshop, so that we can get a head-count for lunch on Wednesday. Please RSVP to Darcy Morrison at D2mr@pge.com, or by telephone at (415) 973-6644.

Attached below is our proposed agenda. The topics include: balancing, transaction information, open-season rules, PG&E core procurement, and core aggregation.

Also on the Wednesday agenda, we have set aside some time for a feedback discussion with you. We are looking for your thoughts on the material we have presented in the Workshops to-date, topics for our final Workshop on November 7 and 8, issues you may wish to have addressed at that workshop, and any process suggestions.

Looking ahead, our initial thinking for the November 7 and 8 Workshop includes the following topics: \* A more comprehensive supply/demand/pipeline capacity forecast and the implications on facility needs, including under cold weather conditions. \* Further explanation of the Supply Reliability options discussed at the September 27 Workshop. \* More detail on the Capital Expenditure forecasts. \* Additional analysis of the Direct Connect to Backbone and Local Transmission rate design options. \* Continue the feedback discussion.

Please be reminded that we would like everyone involved in the Gas Accord II Settlement to fill out our information form, including initials indicating agreement to abide by CPUC Rule 51. If you have not previously provided us with a form, please fill out the attached blank form and return it by e-mail to Geoff Bellenger at gjb2@pge.com, or send it by FAX to 415-973-0881.

We look forward to seeing you at next week's Workshop. Please call or E-mail us if you have any questions or suggestions.

Frank Lindh Ray Williams Attorney Director 415-973-2776 415-973-3634 frl3@pge.com rdw0@pge.com

Attachments

<<Agenda 10-25&26-00 Workshop.doc>> <<Gas Accord II Information Form.doc>> <<CPUC Rule 51.doc>>

- Agenda 10-25&26-00 Workshop.doc - Gas Accord II Information Form.doc - CPUC Rule 51.doc

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Message 1164 of 1299

| RE: ICSC Information |                                                |
|----------------------|------------------------------------------------|
| Sender               | jeff.dasovich@enron.com                        |
| Recipients           | ['Jeff', 'Dasovich', 'joseph.alamo@enron.com'] |
| File                 | dasovich-j/sent_items/1367.                    |

Thanks very much for your help on this.

-----Original Message-----

From: Alamo, Joseph Sent: Thu 10/4/2001 5:47 PM To: 'Ashley Kasischke/HOU/EES@EES' Cc: Dasovich, Jeff Subject: RE: ICSC Information

Ashley,

I got the faxes! Thanks so much and I will make sure Jeff receives all the info!

Thanks again for all your help,

Joseph Alamo Sr. Administrative Assistant Global Government Affairs ph. (415) 782-7841 fax (415) 782-7854 e-mail: joseph.alamo@enron.com

-----Original Message-----

From: Kasischke, Ashley On Behalf Of Ashley Kasischke/HOU/EES@EES Sent: Thursday, October 04, 2001 1:13 PM To: Alamo, Joseph Cc: Malone, Laurie; Glasin, Shirleen Subject: RE: ICSC Information

I just sent you a fax of the information which I currently have in my possession regarding the ICSC Law Conference. I have a call into Shirleen Glasin (the individual here in Houston who is putting together the PowerPoint Presentation for Laurie) to see if there has been any discussions regarding Jeff's portion of the presentation; i.e., whether there would only be one PowerPoint Presentation prepared wherein Laurie would present her portion of the discussion and then Jeff would pick up and finish with the deregulation portion of the discussion,, or if there would be two separate presentations prepared all together. I have scheduled a meeting between Laurie and Shirleen for next Wednesday, October 10, 2001 at 2:00 p.m. (CST) to discuss the presentation(s). It would probably be beneficial for Jeff to attend this meeting via telephone if he is available to do so.

From: Joseph Alamo/ENRON@enronXgate on 10/04/2001 02:01 PM To: "Ashley Kasischke/HOU/EES@EES" <IMCEANOTES-Ashley+20Kasischke\_HOU\_EES+40EES@ENRON.com>@SMTP@enronXgate cc:

Subject: RE: ICSC Information

no worries! I can call her...as a matter of fact, I did but hung up because I had to take another call!

You're so kind!

Thanks,

Joseph Alamo Sr. Administrative Assistant Global Government Affairs ph. (415) 782-7841 fax (415) 782-7854 e-mail: joseph.alamo@enron.com

-----Original Message-----

From: Kasischke, Ashley On Behalf Of Ashley Kasischke/HOU/EES@EES Sent: Thursday, October 04, 2001 11:58 AM  
To: Alamo, Joseph Cc: Dasovich, Jeff Subject: ICSC Information

I have not forgot about you . . . I have placed a call to Jennifer Degnan asking her to forward me the forms which you would need to fill out (trying to save you some trouble since you have just kind of been thrown into this). I will fax them as soon as I get them. I have already received a copy of the hotel reservations form from ICSC travel.

Message 1165 of 1299

#### GOVERNOR DAVIS APPOINTS DIRECTOR TO THE OFFICE OF RATEPAYER

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                        |
| Recipients | ['susan.mara@enron.com', 'steven.kean@enron.com', 'sandra.mccubbin@enron.com'] |
| File       | dasovich-j/sent/3830.                                                          |

They must have realized that Loretta could use some PR help... ----- Forwarded by Jeff Dasovich/NA/Enron on 03/21/2001 06:28 PM -----

Susan J Mara 03/21/2001 06:15 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: GOVERNOR DAVIS APPOINTS DIRECTOR TO THE OFFICE OF RATEPAYER ADVOC ATEs

Great. ORA gets a PR person

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/21/2001 04:15 PM -----

"Beiser, Megan" <Megan.Beiser@edelman.com> 03/21/2001 03:43 PM

To: cc: Subject: GOVERNOR DAVIS APPOINTS DIRECTOR TO THE OFFICE OF RATEPAYER ADVOC ATEs

A01:079 FOR IMMEDIATE RELEASE 03/21/2001 GOVERNOR DAVIS APPOINTS DIRECTOR TO THE OFFICE OF RATEPAYER ADVOCATES SACRAMENTO Governor Gray Davis today announced the appointment of Regina Ann Birdsell as Director of the Office of Ratepayer Advocates, Public Utilities Commission. The Office of Ratepayer Advocates (ORA) was established in September 1996 after the Legislature passed and the Governor signed SB 960. The legislation directs that an independent advocacy division be established to represent public utility customers in commission proceedings. Ms. Birdsell, 45, of Glendale, is a consultant to the Center on Philanthropy and Public Policy (School of Policy, Planning and Development) at the University of Southern California, a position she has held since January 2001. Prior to that, she served as Vice President for Winner and Associates, a management consulting and public affairs firm with emphasis on organizational and communication problems for high profile corporate clients. Ms. Birdsell was the executive director for the New Los Angeles Marketing Partnership from 1995 to 1999. From 1991 to 1995, she was Director of Public Affairs for the Children's Hospital Los Angeles. Ms. Birdsell served the California Attorney General's Office as Press Secretary from 1990 to 1991. She was the producer for The Parenting Network for Warner Brothers in 1989 and a coordinating producer for KABC-TV Eyewitness News from 1982 to 1988. Ms. Birdsell earned a bachelor of arts degree and a master of social works degree from the University of Southern California. The role of ORA is to obtain the lowest possible rate for service consistent with reliable and safe service levels. This charge covers all the industries regulated by the PUC except for transportation, telecommunications, electricity, gas and water. Ms. Birdsell will receive a salary of \$101,220. This position requires Senate confirmation. Megan Beiser Assistant Account Executive Edelman Public Relations Worldwide, Sacramento Phone: (916) 442-2331 Fax: (916) 447-8509

Message 1166 of 1299

**Golf - November Direct Report Meeting**

|                   |                                                                                                                    |
|-------------------|--------------------------------------------------------------------------------------------------------------------|
| <b>Sender</b>     | ginger.dernehl@enron.com                                                                                           |
| <b>Recipients</b> | ['rubena.buerger@enron.com', 'robert.hemstock@enron.com', 'ginger.dernehl@enron.com', 'd..steffes@enron.com', ...] |
| <b>File</b>       | dasovich-j/deleted_items/1967.                                                                                     |

Howdy Golfers,

Tee times have been arranged on the East Course (18 holes of golf) at the Broadmoor for Thursday, November 8 (tee times: 1:40pm & 1:48pm). The price for playing this course is actually \$90; slightly cheaper than what is indicated below. I have arranged for each of your golf charges to be charged to your individual rooms. Please refer to the list below for additional charges such as, clubs & shoe charges. I'm hoping to finalize all the activity choices by the end of the week, so please confirm by COB tomorrow Thursday, October 18 that your activity choice will remain golf.

Thanks!

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: Dernehl, Ginger Sent: Monday, October 15, 2001 4:39 PM To: Steffes, James D.; Yoho, Lisa; Nord, Sue; Migden, Janine; Montovano, Steve; Hemstock, Robert; Kaufman, Paul; Ryall, Jean; Kingerski, Harry; Ibrahim, Amr; Dasovich, Jeff; Nicolay, Christi L.; Novosel, Sarah; Linnell, Elizabeth; Petrochko, Mona L. Cc: Dernehl, Ginger; Shapiro, Richard; Noske, Linda J.; Warner, Geriann; Sullivan, Lora; Knight, Laurie; Bellas, Kirsten; Sietzema, Linda; Hunter, Bevin; Buerger, Rubena; Stransky, Joan; Alamo, Joseph; Hawkins, Bernadette; Perez, Carmen Subject: November Direct Report Meeting Changes

There are several changes to the Direct Report meeting in November.

First, the meeting will now conclude by 12:00 (noon) on Friday, November 9.

Second, the activities portion of the trip will not be sponsored by Enron....each individual will be responsible (personally) for payment of activity of choice. Most individuals either chose golf or horseback riding.....below is an estimate as to how much these activities will cost.

Golf: Green Fees (East/West Course) \$155.00/18 holes (Includes golf cart, use of practice balls, club care & storage)  
(East/West Course) \$85.00/9 holes (includes - same as above)

(Mountain Course) \$95.00/18 holes (includes - same as above) (Mountain Course) \$50.00/9 holes (includes - same as above) Rentals: Golf clubs with sleeve of balls \$55.00 Golf Shoes \$20.00

Horseback riding: 1hour \$25.00/person 1hour pkg \$35.00/person (pkg includes shuttle ride to stables) 2hour \$40.00/person 2hour pkg \$50.00/person (pkg includes shuttle ride to stables)

mini ride (group only) \$15.00/approximately 20 minutes

If you have an interest in the spa services that are available, please let me know and I will fax the spa list to you.

Please let me know ASAP which activity you choose so I can make the necessary arrangements.

Thanks and please call me if you have any questions.

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

Message 1167 of 1299

**Re: SDG&E Credits**

|                   |                                |
|-------------------|--------------------------------|
| <b>Sender</b>     | marianne.castano@enron.com     |
| <b>Recipients</b> | [jeff.dasovich@enron.com]      |
| <b>File</b>       | dasovich-j/all_documents/1950. |

FYI...we're talking \$11K. MLC

----- Forwarded by Marianne Castano/HOU/EES on 10/02/2000

08:57 AM -----

Enron Energy Services

From: Karen A Cordova 09/29/2000 04:16 PM Phone No: 713.853.3150 713.646.8860 - FAX No.

To: Marianne Castano/HOU/EES@EES cc: Subject: Re: SDG&E Credits

Diann called and said the amount was approx. \$11,000.

KC

Enron Energy Services

From: Marianne Castano 09/28/2000 02:25 PM

To: Karen A Cordova/HOU/EES@EES cc: Jeff Dasovich/NA/Enron@Enron Subject: Re: SDG&E Credits

Can you find out the answer to Jeff's question? MLC

----- Forwarded by Marianne Castano/HOU/EES on 09/28/2000

02:26 PM ----- From: Jeff Dasovich@ENRON on 09/28/2000 12:52 PM To: Marianne Castano/HOU/EES@EES cc: Subject: Re: SDG&E Credits

Can't wait for the bullets to start to fly. Do we know what the total \$ amount is to EES (if they were to book the entire credit to Enron)? Thanks.

Marianne Castano@EES 09/28/2000 12:39 PM

To: Dennis Benevides/HOU/EES@EES cc: Jeff Dasovich/NA/Enron@Enron, Karen A Cordova/HOU/EES@EES, Diann Huddleson/HOU/EES@EES Subject: Re: SDG&E Credits

Dennis: Just wanted to bring this item to your attention. We've researched the terms of our residential agreements and have noted that they are silent as to the issue of credits/refunds. I've asked Jeff and Mike Day, our regulatory counsel in CA, for their input on whether we should refund these credits back to our residential customers.

Notwithstanding the fact that the language of the original decision allowing the credits does not address direct access customers, Jeff and Mike recommend, given the current climate in California, that we take action to refund these credits to our residential customers.

Just want to make sure you're "on board" with this before we direct CSC to refund the credit back to our residential accounts...Marianne

.

Enron Energy Services

From: Karen A Cordova 09/21/2000 05:00 PM Phone No: 713.853.3150 713.646.8860 - FAX No.

To: Marianne Castano/HOU/EES@EES cc: Subject: SDG&E Credits

Diane Huddelston called Lori Pinder about an issue; Here it is:

Due to the merger btw SDG&G & Sempra Energy (about a year or less ago), a savings was realized. The CPUC said these savings must be passed on to customers 1 time per year, in September. They are called Annual Merger Credits.

Pursuant to all commercial contracts, Enron is entitled to keep the savings (per Diane). What about the residential customer accounts?

Enron keeps the savings or should the residential customer receive?

Who could handle this issue for Diane?

Thanks, KC

---

*Message 1168 of 1299*

### RE: CA RPS proposal & potential impact

|            |                                                                         |
|------------|-------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                 |
| Recipients | [Jeff, 'Dasovich', 'stacey.bolton@enron.com', 'jesse.bryson@enron.com'] |
| File       | dasovich-j/sent_items/1894.                                             |

Let's look some more. I don't think there's anything that would disqualify any plants. -----Original Message----- From: Bolton, Stacey Sent: Tuesday, August 28, 2001 5:57 PM To: Bryson, Jesse Cc: Dasovich, Jeff Subject: RE: CA RPS proposal & potential impact

I should have copied you on my original email. My apologies. I'm copying in Jeff Dasovich to get his read on potentially changing this requirement. Jeff, what are your thoughts for affecting this language? Stacey Bolton Environmental Strategies Enron Corp 713-853-9916 direct 713-303-2632 cell sbolton@enron.com <mailto:sbolton@enron.com>

-----Original Message-----

From: Bryson, Jesse Sent: Tuesday, August 28, 2001 5:48 PM To: Bolton, Stacey Subject: FW: CA RPS proposal & potential impact

Stacey, It occurred to me that I should have copied you in on this email to Elliot. We may want to see if we can change the language on this point. Let me know what you think.

Jesse

-----Original Message-----

From: Bryson, Jesse Sent: Tuesday, August 28, 2001 3:42 PM To: 'emainzer@home.com' Subject: FW: CA RPS proposal & potential impact

Elliot-

Take a close look at the language in this bill regarding the RPS. On page 7, lines 29-33, the bill states that all power must be under a direct contract to a retail seller. While this does provide us potential opportunities for scheduling and commodity management as Stacey pointed out, it also prevents merchant plants from qualifying as renewable. This would eliminate our service customers such as Delano, Wheelabrator, and Shasta. The link to the bill itself is:

<[http://info.sen.ca.gov/cgi-bin/postquery?bill\\_number=sbx2\\_78&sess=CUR&house=S&site=sen](http://info.sen.ca.gov/cgi-bin/postquery?bill_number=sbx2_78&sess=CUR&house=S&site=sen)>

What do you think? Do you read it the same way?

-----Original Message-----

From: Mainzer, Elliot Sent: Tuesday, August 28, 2001 2:35 PM To: Bryson, Jesse Subject: FW: CA RPS proposal & potential impact

-----Original Message-----

From: Bolton, Stacey Sent: Tuesday, August 28, 2001 2:21 PM To: Belden, Tim; Richter, Jeff; Mainzer, Elliot; Ring, Richard; Hammond, Pearce; Steffes, James D.; Dasovich, Jeff; Mara, Susan; Keene, Patrick Cc: Terraso, Michael; Keeler,



Jeff; Schoen, Mary Subject: CA RPS proposal & potential impact All - Wanted to make you aware of a couple of bills before the CA legislature that would place a renewable purchase obligation on all retail sellers in California if enacted. The attached document provides a comparative analysis of both bills (which are quite similar in language) and the resulting commercial implications. One bill in particular has momentum in that it is attached to the SCE bailout. Jeff Dasovich and Sue Mara have their finger on the "pulse" on the movement of these bills, so as far as status please contact them.

Regards, Stacey Bolton Environmental Strategies Enron Corp 713-853-9916 direct 713-303-2632 cell sbolton@enron.com <mailto:sbolton@enron.com>

Message 1169 of 1299

### CGT Gas Accord II Team

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | jeffery.fawcett@enron.com                                                      |
| Recipients | ['steven.harris@enron.com', 'mbaldwin@igservice.com', 'susan.scott@enron.com'] |
| File       | dasovich-j/notes_inbox/5910.                                                   |

I don't think the "sensitivity classes" are having the desired effect on Keith....

----- Forwarded by Jeffery Fawcett/ET&S/Enron on 01/04/2001

06:09 PM -----

"Keith McCrea" <KMCCREA@SABLAW.COM> on 01/04/2001 06:01:45 PM To: <alfredo.huertas@enron.com>, <bgaillar@enron.com>, <jdasovic@enron.com>, <jfawcett@enron.com>, <kpurbhoo@enron.com>, <susan.scott@enron.com>, <thamilo@enron.com> cc:

Subject: Re: CGT Gas Accord II Team

The meetings next week conflict with workshops scheduled by the CPUC on interruptible customer issues and it is doubtful that anyone from CMTA will be in attendance. Suggest that meetings on Gas Accord be postponed till Feb when hopefully we will have a better idea whether PG&E still exists.

"Lindh, Frank (Law)" <FRL3@pge.com> 1/4/01 3:49:37 PM >>>

CONFIDENTIAL SETTLEMENT DOCUMENT PER CPUC RULE 51

ALL INTERESTED PARTIES:

This is a reminder that PG&E will hold the first Gas Accord II Workshop of the new year on Wednesday and Thursday, January 10 and 11. The workshop will be held at PG&E headquarters in San Francisco, 77 Beale Street, in Conference Room 300.

Our objective for this workshop is to review and explain PG&E's comprehensive settlement proposal, which was distributed by e-mail on December 21, 2000, to those parties who have explicitly agreed to abide by CPUC Rule 51.

If you did not receive a copy of the December 21 transmittal and would like one, please complete the attached Rule 51 form and return it by e-mail to Frank Lindh (frl3@pge.com) and Geoff Bellenger (gjb2@pge.com), or by FAX to Geoff at 415-973-0881.

Because we will be discussing the substance of PG&E's settlement proposal at next week's workshop, any party who wishes to attend will be required to have completed the Rule 51 form. (Please note, if you received our December 21 transmittal, then that means PG&E has your Rule 51 form on file, so there is no need to fill it out again.)

Also attached below is a proposed Agenda for next week's workshop. We will start the sessions at 9:30 a.m. on Wednesday and at 9:00 a.m. on Thursday. We will provide coffee and juice in the morning, and lunch each day.

If you do plan to attend next week's workshop, we request that you please confirm your attendance, so that we can get a headcount for the food and drink orders. Please e-mail a response to Darcy Morrison (D2Mr@pge.com), or telephone Darcy at (415) 973-6644.

We look forward to seeing you next week and having a productive discussion.

Frank Lindh Ray Williams 415-973-2776 415-973-3634 frl3@pge.com rdw0@pge.com

<<Gas Accord II Information Form.doc>> <<Agenda 1-10&11-01 Workshop.doc>>

The information contained in this message from Sutherland Asbill & Brennan LLP and any attachments is confidential and intended only for the named recipient(s). If you have received this message in error, you are prohibited from copying, distributing or using the information. Please contact the sender immediately by return email and delete the original message.

Message 1170 of 1299

### Registration Results: Round One

|            |                                |
|------------|--------------------------------|
| Sender     | allison@haas.berkeley.edu      |
| Recipients | [eveningmba@haas.berkeley.edu] |
| File       | dasovich-j/mba_program/22.     |

Please disregard if you are not taking electives in the spring semester.

\*\*\*\*\*

We have reviewed TeleBEARS enrollments from last week's deadline and corrected your schedule in TeleBEARS to reflect the courses that you are now registered for. Please check TeleBEARS to confirm your schedule and review wait lists below.

So what's next?

1. CHECK InfoBEARS to see what you got into. You can call 510-642-9400 or go to [bearlink.berkeley.edu](http://bearlink.berkeley.edu) and use your SID and PIN to review your schedule. You can call any time of day. Use TeleBEARS for changes.
2. DROP the extra "back-ups" that you don't need by November 19 (Friday). Use TeleBEARS (510-642-3400), or call the Drop Hotline with the course control numbers of the course(s) you want to drop at 510-642-3535. Both options open 7-8 a.m. or 7 p.m. to midnight, Monday through Friday.
3. ADD extra classes if you like, by November 19 (Friday). You must use TeleBEARS during open hours to add a class. Call 510-642-3400 or go to [bearlink.berkeley.edu](http://bearlink.berkeley.edu) 7-8 a.m. or 7 p.m. to midnight, Monday through Friday.
4. We will confirm your schedule by the middle of next week. Course materials will be ordered for you based on your November 19 enrollment.

We have not completed registration for one-unit classes. I will be finalizing those enrollments this week. If you are depending on those units, be sure to sign up for a back-up just in case you don't get in to all of the one-unit courses you requested.

As always, please call or e-mail us if you have questions.

#### Oversubscribed Class Wait Lists (As of Friday, November 12)

Below are the wait lists for classes that were oversubscribed. To see if you got into the class, check InfoBEARS. Note: you are not listed below if you were not registered by the November 12 deadline listed in the registration materials. Remember, the TeleBEARS wait list number is incorrect. Positions on the wait lists are determined by seniority=0F-which we cannot adjust in TeleBEARS.

We are in the process of adding some of you to wait lists in TeleBEARS. If you are not listed there but are listed below, don't worry. The lists below are accurate.

E222: Financial Info Analysis 1 GATES, KIMBERLY 2 REILLY, KEVIN 3 ZHANG, LEI 4 KING, MICHAEL 5 LUCAS, NADINE 6 JOSHI, SUHAS 7 LIU, MICHAEL 8 SPARKS, JEREMY 9 CRAIB, BETSY 10 MOTOLA, ALEXANDER 11 KUNDU, SUMIT 12 TATLOW, KEVIN 13 GOMEZ, STEVEN 14 TAKETA, DAWN 15 MYERS, DAVID 16 BOURDON, GARY

E259-2: Leading Change 1 HOFFMAN, LAURA 2 MYERS, DAVID 3 ROY, INDRAJIT 4 SINHA, PRAKASH 5 LUCAS, NADINE 6 IDNANI, NARESH 7 BRAUN, RUSSELL 8 STACY, ANGELA 9 ALLAVARPU, SAI 10 JOSHI, SUHAS 11 REDDY, JAYARAMI 12 WINCKLER, SONJA 13 GORDON, JUSTIN 14 KAZI, AIAZ 15 SAMA, ANIL 16 YARAK, JOSEPH

E262B: New Venture Finance 1 PIESCO, CHRISTINE 2 MAZZARA, GWENDALINE

E296-3: Foundations of E-Business 1 FONTANA, MARCELLO 2 SAMA, ANIL 3 KAZI, AIAZ 4 DASOVICH, JEFFREY

E296-7: New Venture Finance 1 PIESCO, CHRISTINE 2 ANAND, VINAY 3 LAKHANI, VINOD 4 NUCCI, JAMES 5 GOMEZ, STEVEN 6 MALTZ, JEFFREY 7 PATEL, SANGITA 8 RAMARAO, RAVIKUMAR 9 DREESSEN, DAVID 10 TRAN, HUE 11 NUGEHALLY, MEGHAMALA 12 MURDTER, NALINI 13 CLAY, DOUGLAS 14 MOTOLA, ALEXANDER

These wait list numbers OVERRIDE the wait list numbers given out by TeleBEARS.

---

Message 1171 of 1299

#### RE: Conference Call Advisory for SUNDAY, September 9th

|            |                               |
|------------|-------------------------------|
| Sender     | jeff.dasovich@enron.com       |
| Recipients | ['richard.shapiro@enron.com'] |
| File       | dasovich-j/sent_items/26.     |

I'm starting to get concerned about this. A) I didn't pick the time. B) I talked to Sue on Friday and she will be out of Church at 10 AM PDT and on the call shortly thereafter. Sue seemed more concerned about having a call at all then on the time. If she expressed a view that the time was set up so that she couldn't be on the call, I'd like to discuss, since that didn't factor in at all.

As you know, having gone through Sandi, I'm extremely sensitive to inter-group relations. If you feel there are issues that we should discuss, I'd really like to do it. I react very strongly to any view that I am intentionally doing anything to get in Sue's---or others---way. From my perspective, I feel strongly that I haven't behaved that way, and don't in any way intend to. I simply have no desire to "compete" with colleagues, Sue in particular. There aren't enough people to do all the work, and there's plenty of tasks, recognition, blame, etc. to go around.

These are extremely challenging times and we won't get anywhere unless it's truly a team effort. I know that the SF office has a history of challenges with respect to California leadership. I have no interest in returning to the very un-teamlike atmosphere that existed previously, particularly since the atmosphere has changed so positively in the past few months. For a variety of reasons, I have been asked to take on alot of tasks over the past year. I've tried very hard to perform well, while at the same time working hard with Paul and Sue to advance a significantly more healthy, inclusive, open and collegial working environment in California and the West.

I care alot of course about your perceptions, and if you have the preception that relations in the office is becoming an issue, I'd like to confront it head on. And if Sue is expressing any concerns about how things are going generally---which she expresses to me from time to time---I'd like to sit down with you and Sue to discuss, if you think that would be useful.

Forgive the lengthy note, but having just gotten through the experience with Sandi, I'm not anxious to repeat, in any shape or form.

Talk to you at noon your time.

Best, Jeff

-----Original Message-----

From: Shapiro, Richard Sent: Saturday, September 08, 2001 10:44 AM To: Dasovich, Jeff Subject: FW: Conference Call Advisory for SUNDAY, September 9th Importance: High

Why did you schedule this so Sue Mara could'nt be on? You snake....

-----Original Message-----

From: Alamo, Joseph Sent: Fri 9/7/2001 6:56 PM To: Sanders, Richard B.; Kaufman, Paul; Steffes, James D.; Shapiro, Richard; Mara, Susan; 'sgovenar@govadv.com'; 'hgovenar@govadv.com'; 'bhansen@lhom.com' Cc: Dasovich, Jeff; 'lang1@lhom.com'; Tracy, Lysa; Dernehl, Ginger; McVicker, Maureen; Noske, Linda J. Subject: Conference Call Advisory for SUNDAY, September 9th

\* Start Date/Time: 09/09/01 SUNDAY 10:00 AM PDT/12:00 PM CDT

HOST INFORMATION:

\* Conference Host: JEFF DASOVICH \* HOST CODE: 876420 \* Toll Free Dial In Number: (888) 422-7124

PARTICIPANT INFORMATION:

All Participants should use the following information to reach the conference call: \* PARTICIPANT CODE: 998729 \* Toll Free Dial In Number: (888) 422-7124

Joseph Alamo Sr. Administrative Assistant Global Government Affairs ph. (415) 782-7841 fax (415) 782-7854 e-mail: joseph.alamo@enron.com

Message 1172 of 1299

## RE: Pac Tel - CPUC Customer Switch Complaint

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                             |
| Recipients | ['susan.mara@enron.com', 'geoff.pollard@enron.com', 'b.smith@enron.com', 'd..steffes@enron.com', 'diann.huddle...'] |
| File       | dasovich-j/sent_items/2325.                                                                                         |

Thanks, Geoff. May make sense to loop back with the woman at the PUC who contacted Jim originally about this account. Jim's been in contact with her before about some confusion with a UC account. Jim was out yesterday and today, but I think that he'll be in tomorrow. He may want to make the contact. Jim, thoughts?

Best, Jeff

-----Original Message-----

From: Pollard, Geoff Sent: Tuesday, November 27, 2001 6:36 PM To: Dasovich, Jeff; Frazier, Lamar; Steffes, James D. Cc: Mara, Susan; Smith, Mike B; Huddleson, Diann; Hughes, Evan; Fite, Rebecca; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

All, I spoke with the customer, Mike Benson. He is not angry, but he would like his accounts returned to bundled service. He understands that we are implementing a large contract with SBC Corp Real Estate, and that it is possible more of his accounts are inadvertently on the list. He knows to contact me directly with future issues. I submitted the deal sheet to de-DASR the 2 accounts he identified to Samantha Fite a few moments ago. I have also notified the SBC contracts manager of the situation. Let me know if there are any questions or concerns. Geoff Geoff Pollard Service Manager Enron Energy Services 925-543-3763

-----Original Message-----

From: Pollard, Geoff Sent: Monday, November 26, 2001 10:02 AM To: 'Jeff Dasovich/ENRON@enronXgate@ENRON@EES'; Frazier, Lamar; James D Steffes/ENRON@enronXgate Cc: Susan J Mara/ENRON@enronXgate; Smith, Mike B; Huddleson, Diann; Evan Hughes/ENRON@enronxgate; Rebecca Fite/ENRON@enronxgate; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

Yes, I will keep you all posted. I placed a call to the customer at 7:30 this morning, but have not heard back from them yet.

Geoff

-----Original Message-----

From: Jeff Dasovich/ENRON@enronXgate@ENRON@EES Sent: Monday, November 26, 2001 10:00 AM To: Frazier,Lamar; James D Steffes/ENRON@enronXgate; Pollard, Geoff Cc: Susan J Mara/ENRON@enronXgate; Smith,Mike B; Huddleson,Diann; Evan Hughes/ENRON@enronxgate; Rebecca Fite/ENRON@enronxgate; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

Thanks, Lamar. Geoff, could you let us know how it goes with the customer and if this a mix-up on the customer's end. Thanks very much.

Best, Jeff

-----Original Message-----

From: Frazier, Lamar Sent: Monday, November 26, 2001 9:32 AM To: Steffes, James D.; Pollard, Geoff Cc: Dasovich, Jeff; Mara, Susan; Smith, Mike B; Huddleson, Diann; Hughes, Evan; Fite, Rebecca; Riley, Tom Subject: Re: Pac Tel - CPUC Customer Switch Complaint

Geoff Pollard is the SM for Pac Tel.

From: James D Steffes/ENRON@enronXgate on 11/21/2001 04:01 PM To: Lamar Frazier/HOU/EES@EES cc: Jeff Dasovich/ENRON@enronXgate, Susan J Mara/ENRON@enronXgate, Mike B Smith/ENRON@enronXgate, Diann Huddleson/HOU/EES@EES, Evan Hughes/ENRON@enronxgate, Rebecca Fite/ENRON@enronxgate Subject: Pac Tel - CPUC Customer Switch Complaint

I received a call late today from the CPUC (Joyce @ 415-703-2199). Someone from Pac Tel called and said that his service was switched without authorization - Mike Benson with Payphone group @707-253-8892 or 707-292-1766.

Lamar -- who is the client rep for Pac Tel? Can they get into Pac Tel and try and find out if we have done something inappropriate? We need to call this guy back by Monday EOB. Please let Jeff Dasovich know so he can call Joyce back - I'll be out on vacation next week.

Jim

Message 1173 of 1299

## RE: Pac Tel - CPUC Customer Switch Complaint

|            |                                                                                                           |
|------------|-----------------------------------------------------------------------------------------------------------|
| Sender     | diann.huddleson@enron.com                                                                                 |
| Recipients | ['geoff.pollard@enron.com', 'jeff.dasovich@enron.com', 'd..steffes@enron.com', 'lamar.frazier@enron.com'] |
| File       | dasovich-j/inbox/946.                                                                                     |

Geoff, weren't we directed by Ken Lear to DASR these accounts? Is he aware that Mike Benson has requested we deDASR them? Are there other accounts that we have DASRed that shouldn't have been?

From: Geoff Pollard/Western Region/The Bentley Company@Exchange on 11/27/2001 06:36 PM To: Jeff Dasovich/ENRON@enronXgate@ENRON@EES, Lamar Frazier/HOU/EES@EES, James D Steffes/ENRON@enronXgate cc: Susan J Mara/ENRON@enronXgate, Mike B Smith/ENRON@enronXgate, Diann Huddleson/HOU/EES@EES, Evan Hughes/ENRON@enronxgate, Rebecca Fite/ENRON@enronxgate, Tom Riley/Western Region/The Bentley Company@Exchange Subject: RE: Pac Tel - CPUC Customer Switch Complaint

All, I spoke with the customer, Mike Benson. He is not angry, but he would like his accounts returned to bundled service. He understands that we are implementing a large contract with SBC Corp Real Estate, and that it is possible more of his accounts are inadvertently on the list. He knows to contact me directly with future issues. I submitted the deal sheet to de-DASR the 2 accounts he identified to Samantha Fite a few moments ago. I have also notified the SBC contracts

manager of the situation. Let me know if there are any questions or concerns. Geoff Geoff Pollard Service Manager Enron Energy Services 925-543-3763

-----Original Message-----

From: Pollard, Geoff Sent: Monday, November 26, 2001 10:02 AM To: 'Jeff Dasovich/ENRON@enronXgate@ENRON@EES'; Frazier,Lamar; James D Steffes/ENRON@enronXgate Cc: Susan J Mara/ENRON@enronXgate; Smith,Mike B; Huddleson,Diann; Evan Hughes/ENRON@enronxgate; Rebecca Fite/ENRON@enronxgate; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

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From: James D Steffes/ENRON@enronXgate on 11/21/2001 04:01 PM To: Lamar Frazier/HOU/EES@EES cc: Jeff Dasovich/ENRON@enronXgate, Susan J Mara/ENRON@enronXgate, Mike B Smith/ENRON@enronXgate, Diann Huddleson/HOU/EES@EES, Evan Hughes/ENRON@enronxgate, Rebecca Fite/ENRON@enronxgate Subject: Pac Tel - CPUC Customer Switch Complaint

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Lamar -- who is the client rep for Pac Tel? Can they get into Pac Tel and try and find out if we have done something inappropriate? We need to call this guy back by Monday EOB. Please let Jeff Dasovich know so he can call Joyce back - I'll be out on vacation next week.

Jim

---

Message 1174 of 1299

#### A99-06-041 Joint Motion for Adoption of Settlement and Joint Peti

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | mona.petrochko@enron.com                                                                                           |
| Recipients | ['james.wood@enron.com', 'west.ga@enron.com', 'edward.hamb@enron.com', 'harry.kingerski@enron.com', 'martin.we...] |
| File       | dasovich-j/notes_inbox/535.                                                                                        |

Enron, as part of our alliance, ARM, has entered into a settlement w/ SDG&E, ORA, DGS and the Golden State Cooperative on Direct Access Service Fees. These are fees that the utility could assess on either DA customers or ESPs providing service to DA customers. This settlement has been filed with the CPUC. IT HAS NOT BEEN ADOPTED YET. I

will notify all if, and when, that happens.

SDG&E went particularly "hog-wild" on the number of fees proposed as well as the level of the fees. By our settlement, I believe, conservatively, we have eliminated about \$100 of additional charges per customer per year.

We have agreed that no fees will be assessed for services that the utility provides as part of its market facilitation function through 2002. This is in keeping with the fact that the utility is currently recovering those costs through distribution rates as part of a settlement in a separate proceeding (376). Those functions include MSP and MDMA certification, DASR processing, EDI acceptance testing, ESP and EDI agreement processing, credit establishments and on-going credit checks, processing meter change information, providing customer data.

#### POTENTIAL NEW CHARGES:

##### Special Services:

Where we ASK the utility to perform functions for us (researching data, providing administrative support, non-standard processing of information (ie. manual vs. EDI)) there will be a charge. They must specify to us that the service that we are requesting will result in a fee being assessed and what the charge will be. We must agree to the terms before the service is provided. This means we must be very clear in our communications with the utility on special requests.

##### Exception Fees:

This is where we fail to meet our obligation to the utility and they assess, essentially, a penalty. Examples include missed appointment meets, late payments, failure to provide usage data by 11th business day causing utility to estimate data, causing a rebill for failure to provide valid usage data. (More detailed description is contained within the attached documents.) We have negotiated that there be a .5% deadband before any fee is assessed for estimating data. We have negotiated that, to the extent the utility is responsible for causing US to rebill, we can accumulate banking credits to use against any charges that the utility would assess us. It provides some reciprocity.

We do have a dispute resolution process. However, if we need an internal briefing on the settlement so folks are comfortable about how it will work, I would be happy to assist with that.

Please contact me with any questions.

----- Forwarded by Mona L Petrochko/SFO/EES on 09/20/2000

07:03 PM -----

"Delaney, Laurie" <LDelaney@sempra.com> on 09/14/2000 03:02:49 PM To: "sfc@cpuc.ca.gov" <sfc@cpuc.ca.gov>, "jbennett@gmssr.com" <jbennett@gmssr.com>, "abb@eslawfirm.com" <abb@eslawfirm.com>, "rmccann@cal.net" <rmccann@cal.net>, "athomas@newenergy.com" <athomas@newenergy.com>, "msw@cpuc.ca.gov" <msw@cpuc.ca.gov>, "mpetroch@enron.com" <mpetroch@enron.com> cc: "Thompson, Vicki L." <VThompson@sempra.com>, "Szymanski, Paul" <PSzymanski@sempra.com> Subject: A99-06-041 Joint Motion for Adoption of Settlement and Joint Peti tion to set Aside Submission & Reopen the Record for Purposes of Admittin g a Late Filed Exhibit

- ld2d-#75429-1.DOC - ld2d-#75426-1.DOC - ld2d-#75427-1.DOC - ld2d-#75428-1.DOC

Message 1175 of 1299

### Caifornia GOP Calls for Emergency Legsilative Session to Address

|            |                                |
|------------|--------------------------------|
| Sender     | jeff.dasovich@enron.com        |
| Recipients | ['mday@gmssr.com']             |
| File       | dasovich-j/all_documents/9665. |

-- FOR IMMEDIATE RELEASE CONTACT: James Fisfis March 5, 2001 (916) 319-2071



GOP MOVES NATURAL GAS TO FRONT BURNER Assembly Republicans join together once again to request Davis to call=20 special session.

(SACRAMENTO) =01) Assembly Republicans united Monday in asking Governor Gra= y=20 Davis to call a special session of the California legislature to deal with= =20 skyrocketing natural gas prices.

=01&Families and businesses are reeling every month from extraordinary gas= =20 prices. Pardon the expression, but the natural gas crisis no longer belong= s=20 on California=01,s back burner,=018 said Assembly Republican leader Bill Ca= mpbell=20 (R =01) Villa Park).

Assembly Republicans unanimously signed a letter to Governor Gray Davis=20 asking for him to convene a special session of the legislature to deal with= =20 California=01,s skyrocketing natural gas bills. Republicans delivered the= =20 letter to Davis this morning.

=01&A special session is both a symbolic and a practical necessity. It tel= ls=20 Californians that we care about their skyrocketing gas bills. It tells=20 businesses everywhere that California is going to provide for its future=20 energy needs,=018 said Campbell. =01&Practically speaking, a special sessi= on also=20 allow us to pass legislation which can take effect immediately.=018

Republicans believe the electricity and natural gas crises are inextricably= =20 linked.

=01&California=01,s natural gas crisis is completely intertwined with its= =20 electricity crisis,=018 said Campbell.

=01&Any plan to deal with our elect= ricity=20 crisis must have a natural gas component or Californians are going to pay= =20 unacceptably high prices for both.=018

Assembly Republicans believe the natural gas crisis has many fronts, all of= =20 which could be addressed comprehensively by a special session.

=01&Natural gas issues include pipeline capacity, storage, exploration,=20 alternative fuels and conservation,=018 said Campbell. =01&A special sessi= on lets=20 us put together a comprehensive solution.=018

=01&The private sector has the expertise and the capital to deal with these= =20 issues if government would just get out of the way. Republicans believe th= at=20 a legislative solution to the natural gas crisis should leave the resources= =20 and primary decision-making to the private sector,=018 said Campbell.

# # # ----- Forwarded by Jeff Dasovich/NA/Enron on 03/05/2001 05:44 PM -----

=09Susan J Mara =0903/05/2001 05:14 PM =09=09=20 =09=09 To: Jeff Dasovich/NA/Enron@Enron =09=09 cc:=20 =09=09 Subject: Today's Assembly GOP press conference - materials

in case you didn't see this

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/05/2001 03:12 PM -----

=09"Costigan, Richard" <Richard.Costigan@asm.ca.gov> =0903/05/2001 02:51 PM =09=09=20 =09=09 To:=20 =09=09 cc:=20 =09=09 Subject: Today's Assembly GOP press conference - materials

<<press release.doc>> <<Natgastps - rep legislation.doc>> <<Republican Energy Address.doc>> <<QA.doc>> <<DOE powerpoint.ppt>>

Attached are documents that were part of today's Assembly GOP press conference on the pending natural gas crisis. If you have any questions, please call me.

Thanks,

RSC

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly (916) 319-2071

- press release.doc - Natgastps - rep legislation.doc - Republican Energy Address.doc - QA.doc - DOE powerpoint.ppt

Message 1176 of 1299

| Re: Ken    |                                                                                           |
|------------|-------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                   |
| Recipients | [Janel Guerrero/Corp/Enron@Enron, 'susan.mara@enron.com', 'Hgovernor@govadv.com', 'Jeff'] |
| File       | dasovich-j/sent/3605.                                                                     |

Let it go. Ken is PR, and PR only. There are also calls where substance is discussed. Ken can't do that.

Susan J Mara 03/12/2001 06:38 PM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Re: Ken

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/12/2001 04:38 PM -----

Paul Kaufman@ECT 03/12/2001 04:21 PM

To: Susan J Mara/NA/Enron@ENRON cc: Janel Guerrero/Corp/Enron@Enron Subject: Re: Ken

O.K. Just received Janel's call re: Sue's concerns with utilizing Ken for PR calls.

Here are my thoughts:

(1) There are three, and only three, purposes for spending money on the IEP, ARM and Direct Access Coalition efforts and thus three, and only three reasons, for covering the IEP, ARM, and Direct Access Coalition calls. The three reasons are:

(a) to find out what these various Coalitions are doing; (b) to try and influence what they are doing so their activities advance our interests; and (c) to coordinate what they are doing with what we are doing so we aren't wasting time, money or opportunities.

If these purposes are not being met, then let's stop wasting our time and money on these efforts (and the associated phone calls).

(2) From my standpoint, to meet these four purposes we need to have:

(a) somebody on the calls consistently that can advance our interests and answer questions when asked; (b) somebody on the call that knows what we are doing in our national, California, and New York efforts; (c) somebody preparing an email explaining what was discussed on the calls; and (d) Janel coordinating what happens on the calls with what is going on in our national, California, and New York efforts.

(3) The only question given the above is: "who can meet our purposes in participating in the IEP, ARM and Direct Access Coalition efforts." Originally I thought Ken was the person, because Ken is a PR person that we can count on (because we are paying him) to participate regularly in the calls and e-mail reports. (4) Given Sue's concerns, I certainly don't object to Sue handling the calls. However, we need to be consistent in our participation or be satisfied with inconsistent coverage. It makes no sense to me to have Ken assigned sporadically to participate in calls that Sue can't participate in due to a conflict. California is moving too quickly and too unpredictably for sporadic participation to provide any value.

Susan J Mara@ENRON 03/12/2001 03:22 PM To: Paul Kaufman/PDX/ECT@ECT cc: Hgovernor@govadv.com, Janel Guerrero/Corp/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Sandra McCubbin/NA/Enron@Enron, sgovernor@govadv.com Subject: Re: Ken

That's fine. Just realize that I try to cover the same calls. There is also someone from ARM's PR firm, Edelman, covering the IEP calls.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854

Paul Kaufman@ECT 03/12/2001 02:50 PM

To: Jeff Dasovich, Susan J Mara/NA/Enron@ENRON, Sandra McCubbin/NA/Enron@Enron, Hgovernor@govadv.com, sgovernor@govadv.com cc: Richard Shapiro/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron Subject: Ken

I just spoke with Janel and we concluded that we need to better coordinate our use of Ken's time. We agreed that it would be a good idea for Ken to cover the IEP and Direct Access Coalition calls, meetings, etc. and report back to us about any conclusions reached.

All future assignments for Ken should be coordinated through Janel.

---

Message 1177 of 1299

#### Article: Bids Made For Broke NorthPoint

|            |                                |
|------------|--------------------------------|
| Sender     | jeff.dasovich@enron.com        |
| Recipients | ['psellers@haas.berkeley.edu'] |
| File       | dasovich-j/all_documents/9714. |

FYI. xoxoxoxoxo ----- Forwarded by Jeff Dasovich/NA/Enron on 03/06/2001 05:40 PM -----

Margo Reyna 03/06/2001 05:05 PM

To: Sue Nord/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Mona L Petrochko/NA/Enron@Enron, Barbara A Hueter/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Marchris Robinson/NA/Enron@Enron, Ricardo Charvel/NA/Enron@Enron, Stephen D Burns/Corp/Enron@ENRON, Xi Xi/Enron Communications@Enron Communications, Allison Navin/Corp/Enron@ENRON, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Eric Benson/NA/Enron@ENRON, Karen Huang/Enron Communications@Enron Communications, Matthew Jachimiak/HOU/ECT@ECT, William Patrick Lewis/HOU/ECT@ECT, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT cc: Subject: Article: Bids Made For Broke NorthPoint

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 03/06/2001 05:00 PM -----

djcustomclips@djinteractive.com 03/06/2001 04:58 PM Please respond to nobody

To: 123363@WCTOPICS.djnr.com cc: Subject: Telecom Services: Broadband Services: Bids Made For Broke NorthPoint  
Bids Made For Broke NorthPoint Dick Kelsey, Newsbytes

03/06/2001 Newsbytes News Network (c) Copyright 2001 Post-Newsweek Business Information, Inc. All rights reserved. EMERYVILLE, CALIFORNIA, U.S.A., 2001 MAR 6 (NB). Bidding started today on bankrupt broadband services provider Northpoint Communications Group [NASDAQ:NPNTQ], more than three months after Verizon Communications [NYSE:VZ] killed the companies' merger plan. Northpoint did not identify bidders or discuss the amount of bids received, citing a "quiet period" that precludes disclosure of such details. "It is our hope to sell the company as a whole, but we cannot speculate on the outcome of this structured sale process," Northpoint Communications President and CEO Liz Fetter said in a news release. Bidding is scheduled to close on March 20 and the winning bid will be submitted to bankruptcy court the next day, Northpoint said. Emeryville, Calif.-based Northpoint filed for Chapter 11 bankruptcy protection on Jan. 16, six weeks after Verizon scuttled the companies' plans to merge. Northpoint has since sued Verizon for \$1 billion in damages over cancellation of the merger. Verizon on Nov. 29 pulled out of the \$800 million merger agreement, citing Northpoint's deteriorating financial condition. The companies intended to merge their digital subscriber line (DSL) businesses into a national broadband company. Northpoint spokesman Marvin Wamble told Newsbytes that the company currently employs 1,065 people, down from its peak level of 1,800 workers last year. Northpoint Communications is on the Web at <http://www.northpoint.net> Verizon can be found at <http://www.verizon.com> Reported by Newsbytes.com, <http://www.newsbytes.com> . 16:22 CST Reposted 16:23 CST

Press Contacts: Marvin Wamble, Northpoint, 510-450-7432, e-mail: mwamble@northpoint.net /WIRES ONLINE, LEGAL, TELECOM, BUSINESS/NORTHPOINT/PHOTO

Folder Name: Telecom Services: Broadband Services Relevance Score on Scale of 100: 83

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 1178 of 1299

## RE: Fresno sub Project

|            |                                                                                                   |
|------------|---------------------------------------------------------------------------------------------------|
| Sender     | andrew.wu@enron.com                                                                               |
| Recipients | ['Richard Crevelt/Western Region/The Bentley Company@Exchange', 'Tom', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/csu_fresno/10.                                                                         |

I just had a good conversation with Dirk and told him you were unavailable til Weds but that I would work with him and Rob on Mon and Tue, so forewarned is forearmed or something like that....

Wu

----- Forwarded by Andrew Wu/HOU/EES on 03/10/2000 05:56 PM

From: Dirk vanUlden/Western Region/The Bentley Company@Exchange on 03/10/2000 07:46 PM CST To: Jeff Dasovich/SFO/EES@EES cc: Richard Crevelt/Western Region/The Bentley Company@Exchange, Tom Riley/Western Region/The Bentley Company@Exchange, Rob Cone/Western Region/The Bentley Company@Exchange, Geoff Pollard/Western Region/The Bentley Company@Exchange, Andrew Wu/HOU/EES@EES, Douglas Huth/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, James Trudeau/SFO/EES@EES Subject: RE: Fresno sub Project

Jeff - would you have any time Monday PM? We are having marathon meetings here until 1 PM. thanks,

Dirk A.van Ulden Director, Account and Facility Management San Ramon District (925) 543-3879 Fax (925) 543-3550  
Dirk\_vanUlden@enron.com

-----Original Message-----

From: Dasovich,Jeff Sent: Thursday, March 09, 2000 6:30 PM To: vanUlden, Dirk Cc: Crevelt, Richard; Riley, Tom; Cone, Rob; Pollard, Geoff; Wu,Andrew; Huth,Douglas; Kaufman,Paul; Trudeau,James Subject: RE: Fresno sub Project

Be happy to discuss. I'm in Portland and traveling tomorrow. Monday would be better, but if it is urgent to discuss on Friday, just let me know and I can re-arrange my schedule.

From: Dirk vanUlden/Western Region/The Bentley Company@Exchange on 03/09/2000 08:11 PM CST To: Jeff Dasovich/SFO/EES@EES cc: Richard Crevelt/Western Region/The Bentley Company@Exchange, Tom Riley/Western Region/The Bentley Company@Exchange, Rob Cone/Western Region/The Bentley Company@Exchange, Geoff Pollard/Western Region/The Bentley Company@Exchange, Andrew Wu/HOU/EES@EES, Douglas Huth/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, James Trudeau/SFO/EES@EES Subject: RE: Fresno sub Project

Jeff - This has been a textbook "nice guys finish last" experience for over one year. The project is slipping away from us as is our reputation. We need to devise an aggressive plan immediately to get those recalcitrants at PG&E and their mouthpieces to understand that Enron means business. Our record with the UC/CSU contract is already marginal, and by kowtowing to those utility-types we will blow it altogether.

Unless I am missing a bigger picture issue, you need to tell me how we can escalate this issue to the highest level at PG&E and the CPUC. I can't imagine a \$42 billion outfit being afraid of a bunch of wire and pipe guys. As a former PG&E manager I know who was given attention and it wasn't the meek. I am inclined to go with a recommendation by Jim

Trudeau that we start raising hell. CSU Fresno is ready to escalate to Sacramento (read President Welty, Chancellor Reed, Gov. Davis) upon our command. We need a parallel effort. Tom Riley and I would like to discuss with you on Friday.

Dirk A.van Ulden Director, Account and Facility Management San Ramon District (925) 543-3879 Fax (925) 543-3550  
Dirk\_vanUlden@enron.com

-----Original Message-----

From: Dasovich,Jeff Sent: Wednesday, March 08, 2000 10:38 AM To: vanUlden, Dirk Cc: Crevelt, Richard; Riley, Tom; Cone, Rob; Pollard, Geoff; Wu,Andrew; Huth,Douglas Subject: Re: Fresno sub Project

I have some ideas. We should discuss. But let's be clear on thing, there's no single, silver bullet. Please let me know when you'd like to discuss the situation. I think that if there was a case where we could break a log jam, this one's it, due to the client's background, knowledge and savvy. But it will be nonetheless quite difficult. I hope I didn't come on too strong on the call yesterday--feedback's appreciated. Andy, please call me when you get a chance. Best, Jeff

Message 1179 of 1299

#### FW: Confirmation Letter \*-VPKQBE-\*

|            |                                |
|------------|--------------------------------|
| Sender     | eldon@interx.net               |
| Recipients | [jdasovic@enron.com]           |
| File       | dasovich-j/all_documents/8808. |

Prentice told me last night that you were very busy, so I took care of making the reservation on Alaska Airlines and paying for the fare. When you get a chance, just send me the \$545 minus my share of the rental car we picked up at Burbank and anything else we might owe. When are we going out for a practice round?

-----Original Message-----

From: Alaska Airlines [mailto:Alaska.IT@alaskaair.com] Sent: Thursday, February 01, 2001 11:00 PM To: eldon@interx.net Subject: Confirmation Letter \*-VPKQBE-\*

Thank you for choosing Alaska Airlines / Horizon Air! Questions? This is an auto-generated email. If you have any questions, simply call 1-800-ALASKAAIR (1-800-252-7522) for Alaska Airlines, or 1-800-547-9308 for Horizon Air. Confirmation Code: VPK QBE Name Ticket Number Base / Tax / Total

DASOVICH/JEFFREY MR 0272135010686 \$470.00 / 75.05 / 545.05 Seats: 23C, 27B, 11D SELLERS/PRENTICE MS 0272135010687 \$470.00 / 75.05 / 545.05 Seats: 24C, 27C, 11F ITINERARY March 26, 2001 Alaska Airlines #262 Depart: San Francisco, CA at 8:00 AM Arrive: Mazatlan, Mexico at 1:47 PM

April 01, 2001 Alaska Airlines #211 Depart: Mazatlan, Mexico at 2:27 PM Arrive: Los Angeles, CA at 4:13 PM

April 01, 2001 Alaska Airlines #291 Depart: Los Angeles, CA at 7:34 PM Arrive: San Francisco, CA at 8:48 PM

REMINDERS AND RESTRICTIONS This electronic ticket is not transferable. This ticket is valid for travel on Alaska Airlines flights 1 - 799 and/or Horizon Air flights 2000 - 2999 and is non-refundable. If you choose to change your itinerary, any fare increases and a change fee will be collected at that time. PAYMENT INFORMATION A total of US\$1090.10 was charged to the American Express xxxxxxxxxx4003 held by ELDON SELLERS on 02/01/01. This document is your receipt. BAGGAGE On Alaska Airlines there is a limit of two carry-on items per passenger which includes purses, briefcases and laptop computers. Each of these items must measure less than 9" high, 14" wide and 22" long. Please stow items under the seat in front of you and save the shared overhead compartment for smaller items. AT THE AIRPORT When you arrive at the airport, you may check in at an Instant Travel Machine, the ticket counter or gate to receive your boarding pass. Baggage may be checked at the ticket counter, or, where available, via an Instant Travel Machine or at curbside. Please have this document or your confirmation code available. Check in at an Instant Travel Machine and we will add 500 bonus miles to your Alaska Airlines' Mileage Plan account. It's fast and easy! For locations and to learn more visit <http://www2.alaskaair.com/it/IT.asp>.

Reserved seats will be held for you until 20 minutes before departure time (40 minutes for international flights). To accommodate everyone wishing to travel on your flight, you must be in your confirmed seat at least 10 minutes before scheduled departure (30 minutes for international flights). This will ensure that your reservations are not canceled. Picture identification, such as a drivers license or passport, is required to board the aircraft. For Canada and Mexico, proof of citizenship is required. CHANGE OF PLANS We're available 24 hours a day to assist you; simply give us a call at 1-800-ALASKAAIR (1-800-252-7522) for Alaska Airlines or at 1-800-547-9308 for Horizon Air. (If calling from Mexico, precede these telephone numbers with 001.) For all changes please refer to your confirmation code. Refunds for qualifying tickets may be obtained by calling the appropriate toll-free number listed above or by applying at any ticket counter location. Please review U.S. Department of Transportation Consumer Notices regarding your consumer rights and limitations of liability at: <http://www2.alaskaair.com/help/faqs/ConsumerNotices.asp> or simply obtain a copy when checking in.

Message 1180 of 1299

## Re: FW: Paths of influence

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | fred.kelly@enron.com                                                                                               |
| Recipients | ['jeff.dasovich@enron.com', 'james.wright@enron.com', 'thomas.bennett@enron.com', 'chris.holmes@enron.com', 'j...] |
| File       | dasovich-j/notes_inbox/3491.                                                                                       |

Dirk/Jay - thanks for the quick response. I want to insure we have accurately portrayed the situation to you both (the real duration of our requests, and the real response time of the utilities). Don't want anyone to walk into a response of "..... we've only had that request for XX days.....". We do need help though if we want to achieve our aggressive schedule.

We are falling behind our target schedule due to a lack of pulse meter contact installations. How hard would it be to get informal org charts for the metering side of SCE, SDGE, and PGE (just simple bob works for jim who works for tom who reports to bill), and....., to identify who (within Enron/CEC/ISO) has the relationship(s) with those groups?

The execution side of the boxter effort asked Jay who they could talk to to insure we were working "smart" in California with respect to getting interval meters modified to include pulse contacts. The execution team wants to insure that we aren't standing in the wrong long line. We want to know who we could/should call to express our "appreciation" for all their cooperation, and to insure they knew our aggressive timetable. How many times have you/we heard "..... oh....., that's what you are doing....., if someone had just called me....., I could have.....".

The request for "contacts" (and to know the metering org chart inside each of these three utilities) was so we could attempt to penetrate those three org's (SCE, SDGE, PG&E) at the optimum level. Additionally - if we have acct mgmt folks that have relationships - we want to leverage those.

Tom - can you provide to those listed above the short exec summary of what we have requested from SDGE, SCE, PGE, and....., what their response has been (use the attached XLS chart). Help characterize when we officially made request, so that we provide an accurate perception of the three utility's responses.

Thx

From: Dirk vanUlden/Western Region/The Bentley Company@Exchange on 05/10/2001 11:53 AM To: Jeff Dasovich/NA/Enron@Enron cc: Chris Holmes/HOU/EES@EES, James Wright/Western Region/The Bentley Company@Exchange, Fred Kelly/HOU/EES@EES Subject: FW: Paths of influence

Jeff, we are rolling out a CEC/CALISO curtailment initiative in California that provides major benefits to our customers. Before the program can be implemented, customer facilities need to be equipped with a pulse generating meter (a modified version of a regular meter). As we are no longer the MSP we now have to rely on the UDCs to install these meters. We fully expect to pay for these installations but we are getting major push back in SCE and PG&E territory with respect to scheduling these installations. If we were to go by PG&E's schedule (12 weeks), the summer will be over and most benefits will be lost.



We are under the impression that Enron is plain dirt in the eyes of the UDC employees, and we are being singled out by the rank and file folks as the major culprit for the energy crisis. However primitive that opinion is, we are stuck with it. Please note Jay Ferry's contention below.

Is there a way for you to nudge some UDC executives and ask them to instruct their field crews to start cooperating? We could use the help.

Dirk A. van Ulden Director, Account Services Enron Energy Services, Northwest Region (925) 543-3879 2-way pager 877-680-9472 Fax (925) 543-3550 dirk\_vanulden@enron.com

-----Original Message-----

From: Ferry, Jay Sent: Thursday, May 10, 2001 7:32 AM To: vanUlden, Dirk Subject: Paths of influence

Dirk,

We have been working with Mike Connaly and his boss, Mel Calais, at SCE to expedite deployment of pulse meters. Do you know the chain of command there and if there is anyone higher that we could call if work continues to move along at a snail's pace. Please call me (713-646-7086) or respond by e-mail, if you can't reach me.

Thanks, j

Message 1181 of 1299

**Re: FW: FELLOW SIGNATORIES TO THE COMPREHENSIVE SETTLEMENT - ALTRA**

|            |                                                                                                     |
|------------|-----------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                             |
| Recipients | ['susan.mara@enron.com', 'sandra.mccubbin@enron.com', 'mday@gmssr.com', 'mona.petrochko@enron.com'] |
| File       | dasovich-j/all_documents/1194.                                                                      |

Thanks. We're on the same page. Already notified folks. But given the witch hunt, figured we'd sit back and let things run their course.

MBD <MDay@GMSSR.com> on 09/07/2000 12:03:27 PM

To: Jeff Dasovich/SFO/EES@EES cc: Mona L Petrochko/SFO/EES@EES, Sandra McCubbin/SFO/EES@EES, Susan J Mara/SFO/EES@EES

Subject: FW: FELLOW SIGNATORIES TO THE COMPREHENSIVE SETTLEMENT - ALTRA

Jeff, this sounds like an opportunity for Enron on line. We should bide our time for now, but tell the guys in the server farms to gear up. Mike -----Original Message----- From: Angeles, Zenee G. - TPZGA [mailto:ZAngeles@sempra.com] Sent: Wednesday, September 06, 2000 5:27 PM To: Alexander, Michael@sce; Amirault, Paul@AEC; Bayless, David@Utility; Beach, Thomas@Crossborder; Burkholder, John@cts/whb; Chancellor, Craig@Calpine; Counihan, Rick@Green Mountain; Dasovich, Jeff@Enron; Day, Michael@GMSSR; Dingwall, Brian@UEM; Elsesser, Evelyn@aelaw; Johnson, Pamela@REMAC; Jun, Christine@aelaw; Karp, Joseph@Whitecase; Keeler, Paul@BR; Leslie, John@Luce; McCrea, Keith@CIG/CM; Paul, Joe@Dynergy; Pocta, Mark@ORA; Porter, Doug@SCE; Rochman, Michael@CUB; Rochman, Michael@SPURR; Scott, Susan@TW; Worster, Gerard@TXU; Zaiontz, Jean@BP Cc: Sullivan, Glen J.; Lorenz, Lad - TPLPL; Suwara, J.- TPJUS; Betonte, Robert - TP2RSB; Follett, B. David - TPDBF Subject: GIR: FELLOW SIGNATORIES TO THE COMPREHENSIVE SETTLEMENT - ALTRA Importance: High Sensitivity: Confidential

Dear fellow signatories to the Comprehensive Settlement:

On Friday of last week, SoCalGas and PG&E informed ALJ Biren that Altra had definitively declined to offer the electronic trading services that both the already-approved PG&E settlement and the pending SoCalGas/SDG&E Comprehensive Settlement contemplated would be provided specifically by Altra for at least an initial period. Both SoCalGas and PG&E sent a letter and email to the full service list yesterday (Tues, 9/5) informing parties of this development.



SoCalGas believes that some modification to the Comprehensive Settlement is necessary to take this development into account, and that we then need to file the modification as soon as possible with the Commission. The ALJ has indicated to us that some formal filing with the Commission in response to this development will be necessary.

We want to work with the signatories to the Comprehensive Settlement to reach a consensus as soon as possible. Our goal is to cause little or no delay in the processing of a decision on the Comprehensive Settlement.

What SoCalGas has in mind is modifying the settlement to remove the specific naming of Altra and to insert language saying that SoCalGas will select and contract with a third-party provider for a specified period of time, without identifying in the settlement who that will be. We also need to consider whether we should address in the revision to the settlement how we will handle the possibility that the third-party provider will not be ready to operate by the April 1, 2001 date the settlement provides for the monthly imbalance trading, OFO day imbalance chip trading, and storage rights trading. SoCalGas is looking at interim arrangements that it could provide in-house starting April 1, 2001, until the third-party provider could begin service. We also might consider what would happen if no third party provider can be found.

To avoid any claims that we have not complied with the settlement rules, today we mailed and emailed to the full service list a notice of a settlement conference for Wednesday of next week. We want to file something with the Commission very promptly thereafter.

Please feel free to contact Glen Sullivan at 619-699-5027, Lad Lorenz at 213-244-3820, Bob Betonte at 213-244-3832, or June Suwara at 213-244-3504 on this subject.

For those of you who have not heard, Brian Cherry has submitted his resignation from Sempra Energy's Regulatory Affairs Dept. and will be going to work shortly for PG&E in a similar capacity.

---

Message 1182 of 1299

**Re: PLAN: SUNDAY 5PM IN SF AT JEFF'S OFFICE**

|            |                                                                                                                  |
|------------|------------------------------------------------------------------------------------------------------------------|
| Sender     | dennis.sidbury@prudential.com                                                                                    |
| Recipients | ['cvavrek@dtus.com', 'jeff.dasovich@enron.com', 'Dennis Sidbury/PAMG/Prudential@Prudential', 'pbukowski@acex.... |
| File       | dasovich-j/mba__quant/17.                                                                                        |

Here's my stab at the problem set....

(See attached file: Tp#1\_1.xls)(See attached file: TP#1\_2.xls)(See attached file: Tp#1\_3.xls)

Carolyn Vavrek <cvavrek@dtus.com> Friday April 14, 2000 06:10 PM To: pbukowski@acex.com  
Jeff.Dasovich@enron.com cc: Dennis Sidbury/PAMG/Prudential@Prudential shawne@harmony.com Subject: PLAN:  
SUNDAY 5PM IN SF AT JEFF'S OFFICE

Just got off the phone with Jeff Hope this works for all

FULL TEAM: Sunday 5pm Enron office 101 California Street Suite 1950 Jeff's work #782-7822 Jeff's pager  
#888-916-7184 enter on California street side, ring buzzer, guard will answer, Jeff will be in lobby waiting or have guard  
call his office

JEFF, DENNIS, CAROLYN: Sunday 9:30am - 11:30am (Yikes!) Jeff's office blah, blah, blah

Carolyn's contact info cell: 415-613-8967 home: 415-285-7385

see you on Sunday

---

Reply Separator

Subject: Re: E204 - Group assignment Author: Jeff.Dasovich@enron.com at Internet-USA Date: 4/14/2000 4:35 PM

Yes, based on previous notes, I'd assumed we were trying for Saturday or Sunday evening. Seems like folks had landed on Sunday. I have a "family thing" that I need to do from noon to 4 pm on Sunday (or I will be a social outcast for the rest of my life)--apologies. So anytime before 11:45 AM or after about 4:45 on Sunday works great for me. Hope that's not a problem.

Best, Jeff

Patrick Bukowski <pbukowski@acex.com> on 04/14/2000 10:45:00 AM

Please respond to pbukowski@acex.com

To: Dennis Sidbury <dennis.sidbury@prudential.com> cc: Carolyn Vavrek <cvavrek@dtus.com>, Jeff.Dasovich@enron.com, shawne@harmony.com Subject: Re: E204 - Group assignment

Hey guys,

I think we got our wires crossed. I was talking to Jeff and Shawne last night about meeting at Jeff's office either Sunday morning or late afternoon. I'm willing to go anywhere, anytime, but I don't think this will work for Jeff.

Pat

Dennis Sidbury wrote:

*I House - 2:00pm - Sunday. Works for me. Carolyn Vavrek <cvavrek@dtus.com> Wednesday April 12, 2000 01:45 PM To: pbukowski@acex.com Jeff.Dasovich@enron.com sidbury@haas.berkeley.edu shawne@harmony.com cc: (bcc: Dennis Sidbury/PAMG/Prudential) Subject: Re[2]: E204 - Group assignment I agree with one correction: Dennis, Jeff and I will all lead 1 AND*

3.

*Perhaps the three of us can get together before Sunday or on Sunday am before we meet with Pat and Shawne to work though both those problems. Jeff and Dennis: sound reasonable? All: time to meet on Sunday? Place? Suggestion: I-House in Berkeley at 2pm - Carolyn* *Reply Separator*

*Subject: RE: E204 - Group assignment Author: shawne@harmony.com at Internet-USA Date: 4/12/2000 2:46 PM Sorry, I've been out of the discussion. Carolyn, Dennis and myself talked yesterday and felt that it would be useful if we all worked on the problems*

*in the following way: Problem #1: Carolyn and Jeff Problem #2: Pat and Shawne Problem #3: Dennis Where the people named "take lead" on the problems. We try to identify*

any

*questions that we will have by class time tomorrow and ask the professor questions as needed. On Sunday, we meet and finish up and loose details. Does this work for everyone? -- Shawne -----Original Message----- From: Patrick Bukowski [mailto:pbukowski@acex.com] Sent: Wednesday, April 12, 2000 11:13 AM To: Jeff.Dasovich@enron.com Cc: cvavrek@dtus.com; bukowski@haas.Berkeley.EDU; shawne@harmony.com Subject: Re: E204 - Group assignment I'm available for either 6:30 or 8:30. I'd also like to attend the job*

fair.

*Pat Jeff.Dasovich@enron.com wrote: > Did we plant to meet after the jobs fair, or before, or both? I'm*

flying

*> in from Houston and can likely make it to Haas by 6:30. Carolyn, sorry for > the bother, but could you leaveme a voice mail at 415.782.7822 and let*

me

*> know what time so I can zip right over from the airport. Thanks. > > Best, > Jeff*

- Tp#1\_1.xls - TP#1\_2.xls - Tp#1\_3.xls

Message 1183 of 1299

**GIR: FELLOW SIGNATORIES TO THE COMPREHENSIVE SETTLEMENT - ALTRA**

|                   |                                                                                                                  |
|-------------------|------------------------------------------------------------------------------------------------------------------|
| <b>Sender</b>     | jeff.dasovich@enron.com                                                                                          |
| <b>Recipients</b> | [julie.gomez@enron.com', 'Sullivan', 'Lad - TPLPL', 'chris.foster@enron.com', 'timothy.hamilton@enron.com', '... |
| <b>File</b>       | dasovich-j/all_documents/1164.                                                                                   |

FYI. Under the settlement with SoCal, PG&E and countless others, Altra was going to provide the platform for the (unregulated) secondary markets in intrastate storage, capacity and imbalance trading rights. Altra declined and SoCal and PG&E will now look for someone else to provide the service. ----- Forwarded by Jeff Dasovich/SFO/EES on 09/06/2000 08:52 PM -----

"Angeles, Zene G. - TPZGA" <ZAngeles@sempra.com> on 09/06/2000 07:27:23 PM To: "Alexander, Michael@sce" <alexanms@sce.com>, "Amirault, Paul@AEC" <paulamirault@aec.ca>, "Bayless, David@Utility" <david.bayless@utility.com>, "Beach, Thomas@Crossborder" <tomb@crossborderenergy.com>, "Burkholder, John@cts/whb" <burkee@cts.com>, "Chancellor, Craig@Calpine" <craigc@calpine.com>, "Counihan, Rick@Green Mountain" <rick.counihan@greenmountain.com>, "Dasovich, Jeff@Enron" <jdasovic@enron.com>, "Day, Michael@GMSSR" <mday@gmssr.com>, "Dingwall, Brian@UEM" <bdingwall@unitedgas.com>, "Elsesser, Evelyn@aelaw" <eke@aelaw.com>, "Johnson, Pamela@REMAC" <johnson\_pamela@lacoe.edu>, "Jun, Christine@aelaw" <chj@aelaw.com>, "Karp, Joseph@Whitecase" <karpjos@sf.whitecase.com>, "Keeler, Paul@BR" <pkeeler@br-inc.com>, "Leslie, John@Luce" <jleslie@luce.com>, "McCrea, Keith@CIG/CM" <kmccrea@sablaw.com>, "Paul, Joe@Dynergy" <6266273191@messaging.sprintpcs.com>, "Pocta, Mark@ORA" <rmp@cpuc.ca.gov>, "Porter, Doug@SCE" <porterdk@sce.com>, "Rochman, Michael@CUB" <rochmanm@cubjpa.org>, "Rochman, Michael@SPURR" <rochmanm@spurr.org>, "Scott, Susan@TW" <sscott3@enron.com>, "Worster, Gerard@TXU" <gworster@txuenergy.com>, "Zaiontz, Jean@BP" <zaiontj@bp.com> cc: "Sullivan, Glen J." <GSullivan@sempra.com>, "Lorenz, Lad - TPLPL" <LLorenz@socalgas.com>, "Suwara, J. - TPJUS" <JSuwara@sempra.com>, "Betonte, Robert - TP2RSB" <RBetonte@socalgas.com>, "Follett, B. David - TPDBF" <DFollett@sempra.com> Subject: GIR: FELLOW SIGNATORIES TO THE COMPREHENSIVE SETTLEMENT - ALTRA

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Please feel free to contact Glen Sullivan at 619-699-5027, Lad Lorenz at 213-244-3820, Bob Betonte at 213-244-3832, or June Suwara at 213-244-3504 on this subject.?

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---

Message 1184 of 1299

**Re: Placed a call to TR Daily --**

|            |                            |
|------------|----------------------------|
| Sender     | jeff.dasovich@enron.com    |
| Recipients | ['tracy.cooper@enron.com'] |
| File       | dasovich-j/sent/2983.      |

most indebted.

Tracy Cooper@ENRON COMMUNICATIONS 01/24/2001 10:25 AM

To: Jeff Dasovich/NA/Enron@ENRON cc: Barbara A Hueter/NA/Enron@ENRON, Donald Lassere/Enron Communications@Enron Communications, Gia Maisashvili/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT@ENRON, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT@ENRON, Lara Leibman/Enron Communications@Enron Communications, Marchris Robinson/NA/Enron@ENRON, Margo Reyna/NA/Enron@Enron, Matthew Jachimiak/HOU/ECT@ECT@ENRON, Mona L Petrochko/NA/Enron@ENRON, Ricardo Charvel/NA/Enron@ENRON, Scott Bolton/Enron Communications@Enron Communications, Stephen D Burns/Corp/Enron@ENRON, Sue Nord/NA/Enron@ENRON, Susan M Landwehr/NA/Enron@ENRON, William Patrick Lewis/HOU/ECT@ECT@ENRON, Xi Xi/Enron Communications@Enron Communications Subject: Placed a call to TR Daily --

Hi everyone

Just placed a call with TR Daily, problem should be fixed shortly -- sorry about the spamming!!s

Tracy J. Cooper Please note my name has changed from McLaughlin to Cooper Enron Broadband Services Government Affairs (503) 886-0396

Jeff Dasovich@ENRON Sent by: Jeff Dasovich@ENRON 01/24/01 08:07 AM

To: Margo Reyna/NA/Enron@Enron cc: Barbara A Hueter/NA/Enron@ENRON, Donald Lassere/Enron Communications@Enron Communications, Gia Maisashvili/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Lara Leibman/Enron Communications@Enron Communications, Marchris Robinson/NA/Enron@ENRON, Matthew Jachimiak/HOU/ECT@ECT, Mona L Petrochko/NA/Enron@ENRON, Ricardo Charvel/NA/Enron@ENRON, Scott Bolton/Enron Communications@Enron Communications, Stephen D Burns/Corp/Enron@ENRON, Sue Nord/NA/Enron@ENRON, Susan M Landwehr/NA/Enron@ENRON, Tracy Cooper/Enron Communications@Enron Communications, William Patrick Lewis/HOU/ECT@ECT, Xi Xi/Enron Communications@Enron Communications Subject: Re: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

Dear Gang: I don't know about you folks, but I woke up to over 100 emails from Telecom Reports today. It seems to border on spam at this point. Is anyone else having this experience? The info is very valuable, but I'm wondering if there's a way to get, say, 3 emails a day rather than the 50 or more I'm currently receiving.

Wondering if the lights will stay on today, Jeff

Margo Reyna 01/24/2001 09:20 AM

To: Sue Nord/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Tracy Cooper/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Donald

Lassere/Enron Communications@Enron Communications, Mona L Petrochko/NA/Enron@Enron, Barbara A Hueter/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Marchris Robinson/NA/Enron@Enron, Ricardo Charvel/NA/Enron@Enron, Stephen D Burns/Corp/Enron@ENRON, Xi Xi/Enron Communications@Enron Communications, Matthew Jachimiak/HOU/ECT@ECT, William Patrick Lewis/HOU/ECT@ECT, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Gia Maisashvili/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT cc: Subject: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 01/24/2001 09:19 AM -----

djcustomclips@djinteractive.com 01/23/2001 05:56 PM Please respond to nobody

To: 123363@WCTOPICS.djnr.com cc: Subject: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

USA: Senators renew high-speed Internet tax credit bill.

01/23/2001 Reuters English News Service (C) Reuters Limited 2001. WASHINGTON, Jan 23 (Reuters) - A bill that would encourage businesses to bring high-speed Internet access to underserved areas was reintroduced in the Senate on Tuesday, with the hopes that President Bush would include the item in his budget. Computers equipped with a "broadband" or high-speed Internet connection can download information at a rate of up to 1.5 megabits per second, or about 25 times faster than a standard, dial-up connection. While broadband access is currently available in many business districts and affluent residential neighborhoods, the service has not yet spread to less affluent or more sparsely populated areas. The bill would provide a five-year, 10 percent tax credit to Internet companies that extend broadband service to rural or underserved urban areas. Companies who build "next generation" networks, with download speeds of up to 22 megabits per second, would receive a 20 percent, five-year credit. The bill was introduced by Republican senators Olympia Snowe of Maine and Orrin Hatch of Utah, and Democrats Jay Rockefeller of West Virginia and John Kerry of Massachusetts. It was co-sponsored by 32 other senators. The 36 senators sent a letter to President Bush urging him to include the bill in his initial budget proposal. The bill attracted the support of 59 senators and 115 House members last year, the letter claimed.

Folder Name: Telecom Services: Broadband Services Relevance Score on Scale of 100: 83

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 1185 of 1299

### Caifornia GOP Calls for Emergency Legisilative Session to Address

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                         |
| Recipients | ['susan.scott@enron.com', 'drew.foosum@enron.com', 'jeffery.fawcett@enron.com'] |
| File       | dasovich-j/all_documents/9756.                                                  |

FYI. ----- Forwarded by Jeff Dasovich/NA/Enron on 03/07/2001 06:58 PM -----

=09Jeff Dasovich =09Sent by: Jeff Dasovich =0903/05/2001 05:50 PM =09=09=20 =09=09 To: Alan Comnes/PDX/ECT@ECT, Angela Schwarz/HOU/EES@EES, Beverly=20 Aden/HOU/EES@EES, Bill Votaw/HOU/EES@EES, Brenda Barreda/HOU/EES@EES, Carol= =20 Moffett/HOU/EES@EES, Cathy Corbin/HOU/EES@EES, Chris H Foster/HOU/ECT@ECT,= =20 Christina Liscano/HOU/EES@EES, Christopher F Calger/PDX/ECT@ECT, Craig H=20 Sutter/HOU/EES@EES, Dan Leff/HOU/EES@EES, Debora

Whitehead/HOU/EES@EES,=20 Dennis Benevides/HOU/EES@EES, Don Black/HOU/EES@EES, Dorothy=20 Youngblood/HOU/ECT@ECT, Douglas Huth/HOU/EES@EES, Edward=20 Sacks/Corp/Enron@ENRON, Eric Melvin/HOU/EES@EES, Erika Dupre/HOU/EES@EES,= 20 Evan Hughes/HOU/EES@EES, Fran Deltoro/HOU/EES@EES, Frank W=20 Vickers/HOU/ECT@ECT, Gayle W Muench/HOU/EES@EES, Ginger=20 Dernehl/NA/Enron@ENRON, Gordon Savage/HOU/EES@EES, Harold G=20 Buchanan/HOU/EES@EES, Harry Kingerski/NA/Enron@ENRON, Iris Waser/HOU/EES@EE= S,=20 James D Steffes/NA/Enron@ENRON, James W Lewis/HOU/EES@EES, James=20 Wright/Western Region/The Bentley Company@Exchange, Jeff Messina/HOU/EES@EE= S,=20 Jeremy Blachman/HOU/EES@EES, Jess Hewitt/HOU/EES@EES, Joe=20 Hartsoe/Corp/Enron@ENRON, Karen Denne/Corp/Enron@ENRON, Kathy=20 Bass/HOU/EES@EES, Kathy Dodgen/HOU/EES@EES, Ken Gustafson/HOU/EES@EES, Kevi= n=20 Hughes/HOU/EES@EES, Leasa Lopez/HOU/EES@EES, Leticia Botello/HOU/EES@EES,= 20 Mark S Muller/HOU/EES@EES, Marsha Suggs/HOU/EES@EES, Marty Sunde/HOU/EES@EE= S,=20 Meredith M Eggleston/HOU/EES@EES, Michael Etringer/HOU/ECT@ECT, Michael=20 Mann/HOU/EES@EES, Michelle D Cisneros/HOU/ECT@ECT, mpalmer@enron.com, Neil= 20 Bresnan/HOU/EES@EES, Neil Hong/HOU/EES@EES, Paul Kaufman/PDX/ECT@ECT, Paula= 20 Warren/HOU/EES@EES, Richard L Zdunkewicz/HOU/EES@EES, Richard=20 Leibert/HOU/EES@EES, Richard Shapiro/NA/Enron@ENRON, Rita=20 Hennessy/NA/Enron@ENRON, Robert Badeer/HOU/ECT@ECT, Roger Yang/SFO/EES@EES,= 20 Rosalinda Tijerina/HOU/EES@EES, Sandra McCubbin/NA/Enron@ENRON, Sarah=20 Novosel/Corp/Enron@ENRON, Scott Gahn/HOU/EES@EES, Scott Stoness/HOU/EES@EES= ,=20 Sharon Dick/HOU/EES@EES, skean@enron.com, Susan J Mara/NA/Enron@ENRON, Tany= a=20 Leslie/HOU/EES@EES, Tasha Lair/HOU/EES@EES, Ted Murphy/HOU/ECT@ECT, Terri= 20 Greenlee/NA/Enron@ENRON, Tim Belden/HOU/ECT@ECT, Tony Spruiell/HOU/EES@EES,= 20 Vicki Sharp/HOU/EES@EES, Vladimir Gorny/HOU/ECT@ECT, Wanda Curry/HOU/EES@EE= S,=20 William S Bradford/HOU/ECT@ECT, Kathryn Corbally/Corp/Enron@ENRON, Jubran= 20 Whalan/HOU/EES@EES, triley@enron.com, Richard B Sanders/HOU/ECT@ECT, Robert= C=20 Williams/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Greg Wolfe/HOU/ECT@ECT, James= 20 Wright/Western Region/The Bentley Company@Exchange, Dirk vanUlden/Western= 20 Region/The Bentley Company@Exchange, Steve Walker/SFO/EES@EES, Jennifer=20 Rudolph/HOU/EES@EES, Martin Wenzel/SFO/HOU/EES@EES, Douglas=20 Condon/SFO/EES@EES, wgang@enron.com, Scott Govenar <sgovenar@govadv.com>,= 20 Hedy Govenar <hgovenar@govadv.com> @ ENRON, jklauber@llgm.com, Mike D=20 Smith/HOU/EES@EES, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT =09=09 cc:=20 =09=09 Subject: Caifornia GOP Calls for Emergency Legisilative Session to Ad= dress=20 Natural Gas=20

FYI. As if we weren't having enough fun with electricity.... Note last paragraph of press release calling on government to "get out of t= he=20 way" and "let the private sector solve the problems in the gas market."

Jeff

FOR IMMEDIATE RELEASE CONTACT: James Fisfis March 5, 2001 (916) 319-2071

GOP MOVES NATURAL GAS TO FRONT BURNER Assembly Republicans join together once again to request Davis to call=20 special session.

(SACRAMENTO) =01) Assembly Republicans united Monday in asking Governor Gra= y=20 Davis to call a special session of the California legislature to deal with= 20 skyrocketing natural gas prices.

=01&Families and businesses are reeling every month from extraordinary gas= 20 prices. Pardon the expression, but the natural gas crisis no longer belong= s=20 on California=01,s back burner,=018 said Assembly Republican leader Bill Ca= mpbell=20 (R =01) Villa Park).

Assembly Republicans unanimously signed a letter to Governor Gray Davis=20 asking for him to convene a special session of the legislature to deal with= 20 California=01,s skyrocketing natural gas bills. Republicans delivered the= 20 letter to Davis this morning.

=01&A special session is both a symbolic and a practical necessity. It tel= ls=20 Californians that we care about their skyrocketing gas bills. It tells=20 businesses everywhere that California is going to provide for its future=20 energy needs,=018 said Campbell. =01&Practically speaking, a special sessi= on also=20 allow us to pass legislation which can



take effect immediately.=018

Republicans believe the electricity and natural gas crises are inextricably= =20 linked.

=01&California=01,s natural gas crisis is completely intertwined with its= =20 electricity crisis,=018 said Campbell.

=01&Any plan to deal with our elect= ricity=20 crisis must have a natural gas component or Californians are going to pay= =20 unacceptably high prices for both.=018

Assembly Republicans believe the natural gas crisis has many fronts, all of= =20 which could be addressed comprehensively by a special session.

=01&Natural gas issues include pipeline capacity, storage, exploration,=20 alternative fuels and conservation,=018 said Campbell. =01&A special sessi= on lets=20 us put together a comprehensive solution.=018

=01&The private sector has the expertise and the capital to deal with these= =20 issues if government would just get out of the way. Republicans believe th= at=20 a legislative solution to the natural gas crisis should leave the resources= =20 and primary decision-making to the private sector,=018 said Campbell.

# # # ----- Forwarded by Jeff Dasovich/NA/Enron on 03/05/2001 05:44 PM -----

=09Susan J Mara =0903/05/2001 05:14 PM =09=09=20 =09=09 To: Jeff Dasovich/NA/Enron@Enron =09=09 cc:=20 =09=09 Subject: Today's Assembly GOP press conference - materials

in case you didn't see this

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 03/05/2001 03:12 PM -----

=09"Costigan, Richard" <Richard.Costigan@asm.ca.gov> =0903/05/2001 02:51 PM =09=09=20 =09=09 To:=20 =09=09 cc:=20 =09=09 Subject: Today's Assembly GOP press conference - materials

<<press release.doc>> <<Natgastps - rep legislation.doc>> <<Republican Energy Address.doc>> <<QA.doc>> <<DOE powerpoint.ppt>>

Attached are documents that were part of today's Assembly GOP press conference on the pending natural gas crisis. If you have any questions, please call me.

Thanks,

RSC

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly (916) 319-2071  
- press release.doc - Natgastps - rep legislation.doc - Republican Energy Address.doc - QA.doc - DOE powerpoint.ppt

Message 1186 of 1299

## RE: Pac Tel - CPUC Customer Switch Complaint

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | d..steffes@enron.com                                                                                               |
| Recipients | ['susan.mara@enron.com', 'geoff.pollard@enron.com', 'jeff.dasovich@enron.com', 'b.smith@enron.com', 'diann.hud...] |
| File       | dasovich-j/inbox/945.                                                                                              |

Thanks Geoff for following up.

I do have a few questions before getting back to my contact at the CPUC.

1.You said that we "inadvertently" DASRd this account. Not sure if this is viewed as a slam. Did PacTel give EES the account number? Why shouldn't this account be on our switch list? Does he have the right to override "headquarters"? Before we de-DASR the account, let's make sure that he has the authority to say "no".



2.If SBC gave us the wrong account number, how do we know that there are not more wrong account numbers? Can we ask PacTel to confirm that all accounts are authorized to be switched?

I don't think this is a big problem, but in the earlier situation with UC/CSU, the "local" customer was wrong - he did not have the authority to override central. I just want to make sure. Also, do we have evidence that the switch request for this account came from PacTel? I may need this when I call the CPUC.

Jim

-----Original Message-----

From: Dasovich, Jeff Sent: Tue 11/27/2001 6:40 PM To: Pollard, Geoff; Frazier, Lamar; Steffes, James D. Cc: Mara, Susan; Smith, Mike B; Huddleson, Diann; Hughes, Evan; Fite, Rebecca; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

Thanks, Geoff. May make sense to loop back with the woman at the PUC who contacted Jim originally about this account. Jim's been in contact with her before about some confusion with a UC account. Jim was out yesterday and today, but I think that he'll be in tomorrow. He may want to make the contact. Jim, thoughts?

Best, Jeff

-----Original Message-----

From: Pollard, Geoff Sent: Tuesday, November 27, 2001 6:36 PM To: Dasovich, Jeff; Frazier, Lamar; Steffes, James D. Cc: Mara, Susan; Smith, Mike B; Huddleson, Diann; Hughes, Evan; Fite, Rebecca; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

All, I spoke with the customer, Mike Benson. He is not angry, but he would like his accounts returned to bundled service. He understands that we are implementing a large contract with SBC Corp Real Estate, and that it is possible more of his accounts are inadvertently on the list. He knows to contact me directly with future issues. I submitted the deal sheet to de-DASR the 2 accounts he identified to Samantha Fite a few moments ago.

I have also notified the SBC contracts manager of the situation. Let me know if there are any questions or concerns. Geoff  
Geoff Pollard Service Manager Enron Energy Services 925-543-3763

-----Original Message-----

From: Pollard, Geoff Sent: Monday, November 26, 2001 10:02 AM To: 'Jeff Dasovich/ENRON@enronXgate@ENRON@EES'; Frazier,Lamar; James D Steffes/ENRON@enronXgate Cc: Susan J Mara/ENRON@enronXgate; Smith,Mike B; Huddleson,Diann; Evan Hughes/ENRON@enronxgate; Rebecca Fite/ENRON@enronxgate; Riley, Tom

Subject: RE: Pac Tel - CPUC Customer Switch Complaint

Yes, I will keep you all posted. I placed a call to the customer at 7:30 this morning, but have not heard back from them yet.

Geoff

-----Original Message-----

From: Jeff Dasovich/ENRON@enronXgate@ENRON@EES Sent: Monday, November 26, 2001 10:00 AM To: Frazier,Lamar; James D Steffes/ENRON@enronXgate; Pollard, Geoff Cc: Susan J Mara/ENRON@enronXgate; Smith,Mike B; Huddleson,Diann; Evan Hughes/ENRON@enronxgate; Rebecca Fite/ENRON@enronxgate; Riley, Tom

Subject: RE: Pac Tel - CPUC Customer Switch Complaint

Thanks, Lamar. Geoff, could you let us know how it goes with the customer and if this a mix-up on the customer's end. Thanks very much.

Best, Jeff

-----Original Message-----

From: Frazier, Lamar Sent: Monday, November 26, 2001 9:32 AM To: Steffes, James D.; Pollard, Geoff Cc: Dasovich, Jeff; Mara, Susan; Smith, Mike B; Huddleson, Diann; Hughes, Evan; Fite, Rebecca; Riley, Tom Subject: Re: Pac Tel -

CPUC Customer Switch Complaint

Geoff Pollard is the SM for Pac Tel.

From: James D Steffes/ENRON@enronXgate on 11/21/2001 04:01 PM To: Lamar Frazier/HOU/EES@EES cc: Jeff Dasovich/ENRON@enronXgate, Susan J Mara/ENRON@enronXgate, Mike B Smith/ENRON@enronXgate, Diann Huddleson/HOU/EES@EES, Evan Hughes/ENRON@enronxgate, Rebecca Fite/ENRON@enronxgate

Subject: Pac Tel - CPUC Customer Switch Complaint

I received a call late today from the CPUC (Joyce @ 415-703-2199). Someone from Pac Tel called and said that his service was switched without authorization - Mike Benson with Payphone group @707-253-8892 or 707-292-1766.

Lamar -- who is the client rep for Pac Tel? Can they get into Pac Tel and try and find out if we have done something inappropriate? We need to call this guy back by Monday EOB. Please let Jeff Dasovich know so he can call Joyce back - I'll be out on vacation next week.

Jim

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Message 1187 of 1299

### Haas Ranks Fourth Again in US News Undergraduate Rankings

|            |                                    |
|------------|------------------------------------|
| Sender     | haasnews@haas.berkeley.edu         |
| Recipients | ['haasnewswire@haas.berkeley.edu'] |
| File       | dasovich-j/deleted_items/1761.     |

Haas NewsWire September 10, 2001

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CONTENTS \* Haas Ranks Fourth Again in US News Undergraduate Rankings \* Arun Sarin and John Gage to Speak at the Leading Edge Conference \* The Second of Six New Faculty Profiles: Chris Hennessy Joins the Finance Group \* Haas in the News \* Happening at Haas \* Haas Celebrations

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**HAAS RANKS FOURTH AGAIN IN US NEWS UNDERGRADUATE RANKINGS** The Haas School of Business ranked fourth for the second year in a row in the 2001 US News & World Report survey of undergraduate business school programs published today, September 10. In fact, the six top schools earned the same ranks they did last year.

The top ten programs and their scores (5.0 being the highest):

1. University of Pennsylvania (Wharton) 4.8 2. Massachusetts Institute of Technology (Sloan) 4.6 2. University of Michigan-Ann Arbor 4.6 4. University of California-Berkeley (Haas) 4.5 5. University of North Carolina-Chapel Hill (Kenan-Flagler) 4.3 5. University of Texas-Austin (McCombs) 4.3 7. Carnegie Mellon University 4.2 7. University of Virginia (McIntire) 4.2 9. Indiana University-Bloomington (Kelley) 4.1 9. New York University (Stern) 4.1 9. University of Illinois-Urbana-Champaign 4.1

"Once again, we are extremely pleased that the Haas undergraduate program is ranked among the top 4 undergraduate business programs by US News & World Report along with such esteemed institutions as Wharton, MIT, and Michigan," said Dan Himelstein, director of the Haas undergraduate program.

There are 350 accredited schools that offer undergraduate degrees in business, 48% of which responded to this survey. US News asked deans and senior faculty to rate the quality of all programs they are familiar with on a scale of 1 (marginal) to 5 (distinguished).

"This top-four ranking of the Haas undergraduate program means that US News & World Report recently ranked three Haas degree programs in the top ten -- Undergraduate, MBA, and Evening MBA," said Andy Shogan, associate dean of academic programs. "This is a tribute to the overall excellence of the Haas School's students, faculty, staff." The MBA program ranked 7th and the Evening MBA program ranked 8th in March of 2001.

US News also ranked several school-wide specialties or particular strengths of business programs. Here is how the Haas School fared this year:

3rd in Marketing (4th in 2000) 4th in Finance (4th in 2000) 5th in Management (3rd in 2000) 5th in E-commerce (5th in 2000) 7th in Entrepreneurship (8th in 2000) 8th in International Business (6th in 2000) 9th in Accounting (not ranked in 2000) 9th in Production/Operations Management (not ranked in 2000) 11th in Management Information Technology (not ranked in 2000) 13th in Supply Chain Management/Logistics (not ranked in 2000)

Any school that offered any courses in a particular specialty was eligible to be ranked in that area. Deans and senior faculty of business schools nominated up to 10 of the best programs in each specialty area.

For a complete listing of the rankings, visit <http://www.usnews.com/usnews/edu/college/rankings/rankindex.htm>.

ARUN SARIN AND JOHN GAGE TO SPEAK AT THE LEADING EDGE CONFERENCE The future of high tech comes to Haas in two weeks with the 4th Annual Leading Edge Technology Conference, "@ the intersection of business, technology, and leadership," which takes place on September 21 and 22.

The student-run Leading Edge Technology Conference sold out the last two years in a row and demand for this year's conference is expected to be just as high. Ticket sales are open to Haas MBA students and faculty, UC Berkeley students and faculty, alumni, and business community members. The price is \$75 for general admission. Students currently enrolled at UC Berkeley are eligible for a discounted admission price of \$50.

Please visit the conference's official website at [www.TheLeadingEdge.org](http://www.TheLeadingEdge.org) for the latest updates on ticketing and for the conference schedule.

The conference starts off on Friday, September 21, with a special evening recruiting reception for Leading Edge sponsors. Various industry players who are a vital part of the technology industry have sponsored the conference. They include, Fortune, Business 2.0, JP Morgan, Accenture, New York Stock Exchange, Broadview, Hewlett-Packard, BEA Systems Inc., and the UC Berkeley Management of Technology program.

On Saturday, September 22, the day begins with the Technology Futurists Forum, a chance to hear what some of the leading thinkers in Silicon Valley see as the next big thing for high tech. Forum participants include Bob Bauer, manager of the Advanced Systems Development Laboratory at Xerox PARC; John Gage, chief researcher and director of the Science Office at Sun Microsystems; and Robert Mittman, director of the Institute of the Future. Ned Desmond, editor and president of Business 2.0, will moderate.

Arun Sarin, MBA 78, MS 78, CEO of Accel-KKR Telecom, will give a keynote speech on the world of telecomm. Sarin is the former CEO of InfoSpace, Inc., and of the US and Asia Pacific regions of Vodafone. Keynote speaker Brian Bogosian, president and CEO of Visto Corporation, will also share his vision of technology.

After the forum, three sessions of panel discussion scheduled throughout the day will cover a broad range of topics led by some of the most outspoken and respected luminaries in their respective industries today. Topics include:

+Nanotechnology: Big Things In Small Packages? +New Frontiers: Technology in Developing Countries +Fuel Cells and a Hydrogen Economy: The Future of Energy or a Hindenburg-esque Flop? +MicroMechanical Systems (MEMS): The Giant Impact of Microscopic Devices +Energy Technology +May Day! May Day! Who Owns the Internet Anymore? +Venture Capital: Changes and New Directions +The Future of Wireless Networks: Connect Anywhere? +New High Score: The Expanding Business of Electronic Games +Technology Valuation & Strategy: Post-Bubble +Free Ain't Cheap Enough: Getting Physicians to use Information Technology +E-Learning: Can E-Learning Live Up to its Hype of Transforming Skill Acquisition in the Corporate Classroom? +Media Convergence: When Will it Really be Available to the Masses? +Data Storage: Startups and VCs on the Hype versus the Real Opportunity +Birth, Life, Death, and the Afterlife in Biotechnology

Participants will also be able to see innovation in action at the EdgeXpo Technology Fair, which will provide hands-on access to some of the newest technologies on the market today. The gadgets include the wireless technology currently being used at Giants games; MEMS technology; and interactive webcast technology. The current exhibitors list for EdgeXpo are:

+C Technologies +Candescent Technologies +Identix +Motorola +Motion Sense +Wideray +Xora, Inc.

Participants are encouraged to bring their handhelds to the event because the conference will be using WideRay's patented wireless technology to broadcast conference details to attendees.

THE SECOND OF SIX NEW FACULTY PROFILES: CHRIS HENNESSY JOINS FINANCE GROUP Christopher Hennessy joined the Finance faculty this fall fresh from Princeton University where he received his Ph.D. and served as a lecturer in Fall 2000. His research interests include how businesses are financed and how that affects decision making.

In his dissertation Hennessy discussed the way in which the choice of financing for a business (debt, equity, convertible debt, or equity warrants) affects investment policy. "I deal with two issues, the amount of investment and the riskiness of investment," says Hennessy. Businesses with higher

Message 1188 of 1299

#### Enron Mentions - 02/13/2001

|            |                                                                                  |
|------------|----------------------------------------------------------------------------------|
| Sender     | henry.means@enron.com                                                            |
| Recipients | ['steven.kean@enron.com', 'mark.palmer@enron.com', 'meredith.philipp@enron.com'] |
| File       | dasovich-j/all_documents/9084.                                                   |

Energy marketers make the money, get the blame POWER CRUNCH: But probes likely to find it's all legal in deregulation era The News Tribune, 02/13/2001

Enron Announces Dividends PR Newswire, 02/13/2001

EOG Resources, Inc. Declares Increase of 14 Percent on Quarterly Dividend On Common Stock PR Newswire, 02/13/2001

EOG Resources, Inc. Declares Dividends on Preferred Stock PR Newswire, 02/13/2001

Azurix says to end dispute with Argentine province Reuters, 02/13/2001

USA: US Stockpile awards 3,400 tonnes lead to 3 firms. Reuters English News Service, 02/13/2001

Marathon Oil in race for Enron stake in oil fields The Financial Express, 02/13/2001

Front Page Energy marketers make the money, get the blame POWER CRUNCH: But probes likely to find it's all legal in deregulation era Les Blumenthal The News Tribune

02/13/2001 The News Tribune Tacoma, WA South Sound A1 (Copyright 2001)

WASHINGTON - Their names may not appear on your electric bill, but they are the largest energy marketers in the nation, and they're cashing in on the skyrocketing electric rates in the Northwest.

As ratepayers throughout the West are socked with double-digit increases in their bills, regulators throughout the region are looking into suspicions that this new breed of energy companies has manipulated the overheated market to maximize profits. So far, there is no evidence they are doing anything illegal.

California Gov. Gray Davis has called them pirates and plunderers. The San Francisco city attorney has filed a \$1 billion lawsuit against them, saying they are playing with "marked cards" and looking to make a "quick buck" at the expense of consumers. The Federal Energy Regulatory Commission is investigating, as are state regulators in Washington, Oregon and California.

"Based on hints of manipulated energy supplies and allegations of price manipulation, I think we owe it to Washington utilities and consumers to make sure the soaring prices are not the result of illegal practices," Washington Attorney General Christine Gregoire said in announcing her office's antitrust division would investigate.

The power marketers, though, say they've done nothing wrong. The real problem, they say, is there simply isn't enough power being generated to meet demand.

The players include Enron Corp., Dynegy Inc., and Reliant Energy, all of Houston; Duke Energy of Charlotte, N.C.; Southern Energy of Atlanta; AES Inc. of Arlington, Va., and Calpine Corp. of San Jose, Calif.

Enron's profits were up 34 percent in last year's fourth quarter. Duke's fourth-quarter revenues doubled; Dynegy's earnings more than doubled in the fourth quarter.

"When we hear about these stunning profit increases, I think we need to investigate," Gregoire said.

Corporate raider Charles Hurwitz also could profit handsomely. His Maxxam Inc. owns Kaiser Aluminum Corp., which has shut down its Washington mills and, under a special contract provision, is reselling power on the open market for much more than it paid the Bonneville Power Administration, the federal agency that sells hydropower generated at dams along the Columbia and Snake rivers. Hurwitz could make half a billion dollars before the contracts expire this fall.

And the holding companies of two huge California utilities on the edge of bankruptcy have made billions of dollars off the West Coast electricity market through a financial juggling act. Audits by outside auditors hired by state regulators showed Southern California Edison and Pacific Gas & Electric turned over billions to their holding companies, money that could have been used to ease the cash crunch they now face.

The utilities say they were engaged in accepted business practices when they transferred the money, which the parent companies used for such things as stockholder dividends and stock buybacks.

"Is it capitalism or profiteering?" said Ed Mosey, a BPA spokesman. "The very complexity of these markets allows these companies to hide in the grass."

A few years ago, the energy industry was tightly regulated and utilities and generators were allowed to recover their costs and make a decent return on their investment.

But beginning with the deregulation of wholesale electricity markets in 1992, energy marketers, generators, independent power producers and others became major players. Regulated utilities opened computer-driven trading rooms as they scrambled to find the cheapest electricity available.

Now electricity is sold on spot and longer-term markets, traded for electricity available in other parts of the country or even swapped for natural gas.

"Power can pass through three or four hands before you even buy it," Tacoma Power Superintendent Steve Klein said.

The latest jolts in the Northwest market began last summer when California experienced severe shortages and prices soared.

Because the entire West Coast is connected by one power grid, the rate shocks were felt in the Northwest and grew even more as California's problems deepened and a winter drought prompted fears of a near-record low runoff in the Columbia and Snake rivers.

Some called it a "perfect storm" scenario, and BPA saw the price it paid for power in January grow sixfold over the previous year.

"We will buy from anyone who will sell to us at a reasonable price, but the problem is finding a reasonable price," said BPA Administrator Steve Wright. "The marketers are recovering a substantial amount of money."

The same companies making money in California are making money in the Northwest. "These are for-profit companies," said Mark Crisson, who heads Tacoma Power. "These folks don't answer to a (state regulatory) commission and they don't answer to ratepayers. They answer to their stockholders and I've seen no effort by them to minimize prices."

Critics say the energy marketers have manipulated the market by shutting down generating facilities in California in an effort to restrict the supply and drive prices up.

According to some utility executives, generating plants are usually off-line 5 percent of the time because of unforeseen problems and that an off-line average of 10 percent to 15 percent would be considered high. During some months, certain California generating plants have been off-line 30 percent to 50 percent of the time.

"We are seeing abnormal rates," Crisson said.

Asked whether he thought the companies were manipulating, or gaming, the market, Crisson said, "I would stop short of accusing them of that, but there is something funny going on."

The California generators and marketers say the outages have been the result of running aging plants hard in an effort to supply power in a tight market.

"We think these allegations are a little unfair," said Randy Wheelless, a spokesman for Duke Energy, which operates four power plants in California. Despite several investigations, Wheelless said, his and other companies have always been cleared.

"We're trying to feed the market, not manipulate it," he said. "There isn't any one single person or company to blame. The remedy is to get more generation on line."

Enron doesn't own any power plants in California but sells and trades energy throughout the West. Spokesman Mark Palmer agreed that the key to solving the current crisis is adding more generation and truly deregulating the California market so there is real competition. "Everyone is scrambling for power," he said. - - \* Staff writer Les Blumenthal covers Northwest issues in Congress. Reach him at 1-202-383-0008 or lblumenthal@mcclatchydc.com.

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Message 1189 of 1299

### Berkeley and Columbia Announce Joint Executive MBA Program

|            |                                    |
|------------|------------------------------------|
| Sender     | haasnews@haas.berkeley.edu         |
| Recipients | ['haasnewswire@haas.berkeley.edu'] |
| File       | dasovich-j/inbox/840.              |

Haas NewsWire October 29, 2001

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\*\* UC Berkeley Business Plan Competition kicks off tonight at 6:00 p.m. in the Arthur Andersen Auditorium. \*\*

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CONTENTS \* Berkeley and Columbia Announce Joint Executive MBA Program \* Undergraduates Compete in Investment Banking Case Finals on Tuesday, October 30 \* Learn The Secrets Of Post-Bubble Marketing With Louis Stern Thursday, November 1 \* Top Haas Economists Offer Their Forecast for the US Economy November 9 \* Intel CEO to Speak at Research Dialogue on November 14 \* Alumni and Friends Invited to Travel Abroad with MBA Students \* The Final Tests are in: Substance Found at Haas Not Hazardous \* Haas in the News \* Happening at Haas \* Haas Celebrations

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BERKELEY AND COLUMBIA ANNOUNCE JOINT EXECUTIVE MBA PROGRAM The Haas School and Columbia Business School are jointly launching their new Berkeley-Columbia Executive MBA program this fall. The new program is being marketed by both schools across the nation starting this week.

The Berkeley Columbia EMBA blends the distinctive strengths of the two schools: Wall Street and Silicon Valley, New York and California. Aimed at a select group of high-level executives, the new program will enroll its first class in June 2002.

The marketing launch of the EMBA program, which was originally scheduled for the week of September 11 was delayed due to the terrorist attacks in New York and Washington, is commencing now and will continue into spring 2002. The EBMA program places a major emphasis on drawing applicants from the west coast. Information sessions for prospective applicants across the nation start on November 7 and will continue through February.

Information sessions will be held throughout California and western states as well as New York, east coast states, and the Midwest. Upcoming information sessions in California include: Berkeley, Nov. 7, 6:00 to 7:30 pm Los Angeles, Nov. 28, 5:00 to 6:30 pm Oakland, Nov. 29, 5:00 to 6:30 pm San Francisco, Nov. 30, 8:00 to 9:00 am San Jose, Dec. 4, 5:00 to 6:30 pm Sacramento, Dec. 11, 8:00 to 9:00 am Orange County, Dec. 13, 8:00 to 9:30 am San Diego, Dec. 14, 8:00 to 9:30 am



For more detailed information on these and other events, please go to the web site at:  
<http://web.haas.berkeley.edu/embaadmissions/events/index.cfm>.

The EMBA curriculum will offer participants fresh insights into the complex forces of global, financial, technological and entrepreneurial changes that are transforming the business world. It leverages the schools' locations in two of the world's most important business centers - New York City and the San Francisco/Silicon Valley area.

"In today's turbulent business environment, executives must possess outstanding management skills and a keen understanding of the rapidly changing nature of the economy and business world," said Haas School Dean Laura Tyson. "This unique educational partnership will develop leaders with the requisite vision and skills for success."

Designed to accommodate the busy executive, the Berkeley-Columbia EMBA features a convenient schedule of 15 weeks of instruction over 19 months alternating between New York and Berkeley. The bi-coastal curriculum, taught by the faculty of these two premier institutions, will offer broad, general management courses with a strategic perspective, including a series of cutting-edge electives in areas such as IT strategy and international finance.

Companies sponsoring promising executives in the Berkeley-Columbia EMBA will see immediate benefits from the program, as participants are encouraged to apply cutting-edge concepts to their workplace.

In addition to receiving MBA degrees from both Columbia Business School and UC Berkeley, participants will benefit from a lifetime membership in the global professional networks of both schools that includes over 50,000 alumni.

To learn more about the Berkeley-Columbia EMBA program, please visit the web site at [www.berkeley.columbia.edu](http://www.berkeley.columbia.edu).

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UNDERGRADUATES COMPETE IN INVESTMENT BANKING CASE FINALS ON TUESDAY, OCTOBER 30 Haas undergraduates have a chance to tackle real-world problems with creative solutions every year in the Investment Banking Case Competition. The Haas School's undergraduate program office and Goldman, Sachs & Co. are hosting the final event for the fourth annual case competition on Tuesday, October 30, from 6:00 p.m. to 9:30 p.m. in the Arthur Andersen Auditorium. The finals are free and open to the entire UC Berkeley community.

Each year this competition showcases one of Goldman Sachs' recent high-profile transactions to give interested students an opportunity to demonstrate and further develop their knowledge and skill base. This year's case focuses on the recent sale of Cobalt Networks to Sun Microsystems.

Over 30 teams submitted cases to the competition. The final four were chosen on Friday, October 23. Each of the finalist teams will make a short presentation followed by questions from a panel of judges, which will include company management, investment bankers, members of the investment community, and Haas faculty. The winner will be announced, followed by the judges' critique of the presentations, and a discussion of what actually happened during the sale of Cobalt Networks. There will be time allotted for questions from the audience. A reception will follow the event in the Helzel Boardroom.

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LEARN THE SECRETS OF POST-BUBBLE MARKETING WITH LOUIS STERN THURSDAY, NOVEMBER 1 Kellogg School of Management Professor Louis Stern will share his vision of "21st Century Marketing" at the second annual David Aaker Distinguished Lecture Series in Marketing on Thursday, Nov. 1, at 5 p.m. in the Wells Fargo Room. Seating will be on a first-come, first-served basis.

Last year a standing-room-only crowd heard Prof. Emeritus David Aaker, one of the world's leading authorities on branding, lecture on "Brand Leadership" as the inaugural lecture in this series.

Stern is the John D. Gray Distinguished Professor of Marketing.

"Perspectives about how to use the Internet and the web must be re-assessed in light of the hard lessons learned over the past several years during the irrational exuberance era," says Stern. He focuses on issues related to designing and managing marketing channels in his research. In the lecture, he will address changes to marketing strategies and tactics that are required in order to find the right paths to profitability in the post-Internet-bubble era.

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TOP HAAS ECONOMISTS OFFER THEIR FORECAST FOR THE US ECONOMY NOVEMBER 9 One of the many benefits of attending the Haas School and UC Berkeley is the chance to hear some of the nation's foremost economists comment on the current economy. On Friday, November 9, 2001, at 4:00 p.m., Dean Laura Tyson invites Haas students to



a forum on the US economy.

"Economic Outlook Forum 2001" will examine economic conditions in the United States in the wake of the events of September 11 and the ongoing war on terrorism. Speaking at the event will be Profs. Severin Borenstein, Jerry Engel, Rich Lyons, Ken Rosen, Hal Varian, and Janet Yellen. Dean Tyson and Associate Dean for Academic Affairs Ben Hermalin will moderate. Yellen, Lyons, and Rosen will give an overview of domestic and global macroeconomic conditions. Borenstein will speak on energy and airlines, Engel will speak on venture capital, and Varian will speak on technology.

Tickets are available in the degree program offices. They will be distributed on a first-come, first-served basis. Standing-room-only tickets will be available the day of the event.

INTEL C

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### Electric Restructuring: E Source Teleconference Examines Ways to

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| File       | dasovich-j/all_documents/1718.                                                            |

#### E Source Teleconference Examines Ways to Solve California Power Crisis

09/25/2000 PR Newswire (Copyright (c) 2000, PR Newswire) BOULDER, Colo., Sept. 25 /PRNewswire/ -- In a teleconference held Friday afternoon, September 22, 2000, by E Source(TM), industry analysts proposed several solutions to remedy the imperfections in California's electric market and discussed ways that those lessons could be applied in other states that are considering restructuring their electric markets. No single "silver bullet" solution emerged from the panelists. Rather, they said that solving the California power situation would require a combination of supply, demand, pricing, and regulatory solutions. "It is important that we mend, not end, electric restructuring," said Ralph Cavanagh, co-director of the energy program at the Natural Resources Defense Council (NRDC). "Restructuring is a process, not an event," added Becky Kilbourne, director of market development for the California Power Exchange (CalPX). Bill LeBlanc, vice president of retail consulting at E Source, made this point: "It is very difficult to have an open market and a regulated market at the same time. And now, as additional regulations are being added to California's still-opening electric market, new and unpredictable market distortions are likely. Price volatility -- both upward and downward -- characterizes open markets. In a world of price volatility, customers need to have access to a rich portfolio of creative pricing options. Those who want price stability can pay a premium for it. Those willing to play in the dynamic, real-time pricing market will need load management capabilities that allow them to shed load quickly when prices spike." Specific solutions discussed by the panelists included: Supply Solutions

Chris Seiple, director of supply-side consulting for RDI(TM), opined that this summer's price spikes were principally the result of insufficient power plant construction in California as its electric demand grew during the 1990s. "The electricity market requires quick responses to changes in conditions and therefore it is a policy imperative that permitting of power plants be achieved more swiftly in California," said Seiple. He noted that electric demand in the western United States has grown by 14 percent during the second half of the 1990s, but generating capacity has grown by only 2 percent. Roughly 3,600 megawatts (MW) of new generation is currently under construction and is scheduled to come online next year. An additional 800 MW of capacity now under construction is slated to come online in 2002, while another 6,000 MW of capacity is in the advanced development stage, with varying in-service dates. A further 20,000 MW of capacity is in early-development stage, he added. However, Seiple cautioned that delays in construction, a possible shortfall of turbines, and the power-development process itself could cause a recurrence of this summer's price spikes by 2002. Not all supply solutions should be fossil-based, said NRDC's Cavanagh, who pointed out that the state of California is adding additional cost-effective renewables that will come online in the near future. These new resources will add to the thousands of megawatts of non-fossil generation capacity that have been installed over the past 20 years. Distributed Solutions In addition to wider use of renewable generation, several panelists agreed that increased deployment of cost-effective

energy efficiency measures would serve to dampen future electric price spikes. Consumers also need to be reminded on a regular basis about the importance of wise energy use. "What California and the West need most urgently now is more of what has worked best to relieve strained power grids in recent years: investments in energy efficiency and renewable energy resources, which together have delivered more than 15,000 megawatts to California alone over the past two decades," Cavanagh added. "We need more distributed energy resources and energy efficiency measures to cut future price spikes," said Michael Shames, executive director of the Utility Consumers' Action Network (UCAN). He added that many large commercial customers in California are now considering self-generating their electricity, because they cannot tolerate sharp price swings and they are dissatisfied with the risk-management options they have today. Regulatory and Legal Solutions Kilbourne of the CalPX advocated limited wholesale price caps and an improved interface between wholesale and retail electric markets. She also echoed other panelists when she noted that regulatory disincentives in California caused many energy service providers (ESPs) to exit that market, leaving customers with little or no alternative when prices began rising. Having a larger number of ESPs and a broader range of retail offerings in the market could help avert future price spikes, she said. Ron Davis, director of the E Source Strategic Distribution Management Series, remarked: "The still-regulated distribution companies in California are being held responsible for protecting their retail consumers against the high prices in the state's wholesale power market. But by design, they lack the tools and incentives necessary to keep the power prices they pass on to consumers low and stable. And now, SDG&E is subject to another rate cap. Extending SDG&E's performance-based ratemaking (PBR) to the commodity side of the business, much like was done to allow natural gas services to share in the savings from securing lower cost supplies, is a better solution to help insulate customers from price volatility in the future." Looking Forward UCAN's Shames concluded that "San Diego's experience is a sobering and instructive harbinger of deregulatory turmoil that will hit other regions throughout the country." E Source believes that price volatility will be part of life in retail electric and gas markets that are going through restructuring. Retailers and consumers alike need to protect themselves with hedging investments, load management capabilities, energy efficiency upgrades, and other measures. E Source believes that regulators, lawmakers, ESPs, consumers, commercial customers, and other participants in the restructuring of retail electric and gas markets should closely follow and implement the lessons from the still- evolving California market. E Source and RDI are trademarks of Financial Times Energy, Inc., which is headquartered in Boulder, Colorado. FT Energy is a leading provider of objective information and analysis on restructuring electric and gas markets, wholesale power trends, fuel prices and projections, and other vital knowledge about the electric and gas businesses. If you would like to speak with any of the people quoted in this release, please contact Jim Keener at 720-548-5624.

/CONTACT: Jim Keener of E Source, 720-548-5624, [jkeener@ftenergy.com](mailto:jkeener@ftenergy.com)/ 14:00 EDT

Folder Name: Electric Restructuring Relevance Score on Scale of 100: 79

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at [custom.news@bis.dowjones.com](mailto:custom.news@bis.dowjones.com) or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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#### WPTF Friday More on That Later Burrito

|            |                                |
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THE FRIDAY BURRITO=20

Plan to be spontaneous - tomorrow.=20

No Burrito next week.? I'll be in Phoenix with the other WPTF geeks enjoyin= g=20 perfect weather, a little golf, and party time.? Those of you not attending= =20 our general meeting in Old Town Scottsdale (shame on you), please hold down=



generated= =20 by the California Procurement Adjustment, as determined by the [PUC] pursua= nt=20 to Section 360.5."? The media was reporting a \$10 billion bond bailout for= =20 the utilities, but I don't see how they derived that number.=20

Currently, PG&E and SCE are accumulating a bill for their net short positio= n=20 of \$1.2 billion per month.? The average system load is 30,000 to 33,000 MWs= ,=20 and the average purchase price for the spot energy being purchased is aroun= d=20 40?/kWh.? Assuming that long-term contracts would price the power at, say, = 8? /kWh, and at least half the net short position could be covered utilizing= =20 long-term contracts, the monthly cost for the net short position would be= =20 around \$720 million, and the annual figure would be \$8.6 billion.? Let's=20 allocate the annual cost of \$8.6 billion over the energy consumed above the= =20 "baseline" quantity.? I have heard that 78% of the energy consumed by=20 customers of the three IOUs is above the baseline quantity.? We'll assume= =20 that 66%, or 2/3, of the energy consumed is above 130% of the baseline=20 consumption level.? The annual energy delivered by the ISO is roughly 210= =20 TWh, and, therefore, 2/3 of that is 140 TWh.? The average cost per=20 "applicable" kWh of uplift in a customer's bill would be 6.1?/kWh, thereby= =20 roughly doubling the current generation component of the current frozen=20 rates.=20

Of course, the additional revenue collection isn't expected to keep up with= =20 the cost of the net short position. Electricity costs will fall off as gas= =20 prices ease, and more supply comes on line.? However, it is breathtaking to= =20 observe that for the kWh that are bearing the uplift, the ?/kWh rate increa= se=20 for residential customers is about 50%, and blended with the 130% of baseli= ne=20 energy, the rate increase is about 35%.? That's a lot of math to get to the= =20 same percent increase the utilities were claiming they needed to satisfy th= e=20 revenue shortfall!? A thirty- percent increase in my PG&E electric bill wou= ld=20 add between \$50 to \$80 to the monthly tab.? I am beginning to wonder why we= =20 Californians are making such a fuss.? Falling interest rates on my=20 variable-rate home mortgage will probably boost my after-tax income \$300 to= =20 \$400 per month. Hell, I gladly would pay a higher electric bill pl

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#### Enron Mentions

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USA: Enron shares in stay in doldrums after downgrade. Reuters English News Service, 10/29/01 USA: US companies' credit quality to worsen-Moody's. Reuters English News Service, 10/29/01

Enron's Lenders to Demand Harsher Terms, Analysts Say (Update1) Bloomberg, 10/29/01

USA: Enron shares drop despite further triage attempts. Reuters English News Service, 10/29/01

USA: Enron says in talks with banks for new credit line. Reuters English News Service, 10/29/01 USA: UPDATE 1-Enron says in talks with banks for new credit line. Reuters English News Service, 10/29/01 POWER POINTS:Enron May Have To Rethink Asset-Light Focus Dow Jones Energy Service, 10/29/01 OFFICIAL CORRECTION Enron long-term ratings downgraded to Baa2 - Moody's AFX News, 10/29/01 USA: Moody's cuts Enron to 2 notches above "junk". Reuters English News Service, 10/29/01 UK: Europe energy firms wary of Enron on credit worries. Reuters English News Service, 10/29/01 BANDWIDTH BEAT: Enron Puts Spotlight Back On Broadband Dow Jones Energy Service, 10/29/01

USA: Enron shares in stay in doldrums after downgrade.

10/29/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, Oct 29 (Reuters) - Enron Corp.'s share price hovered above seven-year lows touched in earlier trade Monday after Moody's Investor Service cut the credit status of its senior unsecured debt of North America's largest energy trader to two ratings above junk status. Enron, the largest electricity and natural gas trader in North America, also on Monday said it was in talks with banks to expand its credit lines to ease financial concerns that have sent its stock slumping more than 50 percent in the past two weeks. Enron shares were down \$1.40, or 9.03 percent, to \$14.10 on the New York Stock Exchange, after earlier in the session trading below \$14 for the first time since December 1994. Moody's also warned that it could cut the debt rating again, now downgraded to Baa2, as well as its rating for the Enron's

commercial paper. Enron's credit-worthiness will have a direct affect on its day-to-day trading operations and its trading partners' perception of making good on trades. With a credit rating hovering above junk status, the cost of doing business will soar as trading partners look for increased collateral to back trades. Last week Enron shares lost almost \$14 billion in market value as a series of piecemeal disclosures about the company's involvement in complex partnerships began to trickle out. Investors have fled Enron's stock in droves following disclosures that the company did off-the-balance sheet transactions with two limited partnerships run by former chief financial officer Andrew Fastow in deals the U.S. Securities and Exchange Commission is now looking into for possible conflict of interest. Enron compensated its partners in this off-balance sheet structure with the promise of Enron shares, if the value of private investments in several of its units fell below a certain level. Many industry observers see Enron's request for additional credit, after the company tapped its banks for \$3.3 billion last week, as a sign a weakness. "We are not of the opinion that drawing down all of one's backup bank lines is a demonstration of financial strength, but instead ... it's an act of desperation," said Carol Levenson, an analyst with independent research firm gimmecredit.com.

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USA: US companies' credit quality to worsen-Moody's. By Jonathan Stempel

10/29/2001 Reuters English News Service (C) Reuters Limited 2001.

NEW YORK, Oct 29 (Reuters) - U.S. corporate credit quality is likely to grow much worse before it gets better, a leading credit rating agency said in a report issued on Monday. Moody's Investors Service said that in the third quarter, it put on review for downgrade its credit ratings for 122 U.S. companies. At the same time, it put on review for upgrade its ratings for just 22 companies. That 5.5-to-1 ratio is far greater than the 1.3-to-1 ratio in the second quarter. In dollar terms, the situation looks more dire. Moody's warned it may downgrade \$543 billion of debt, dwarfing the \$66 billion Moody's said it may upgrade by 8.2-to-1. "Particularly in light of September 11, the fourth quarter will be particularly weak for credit rating changes," said John Puchalla, Moody's senior economist. "A wide excess of rating reviews for downgrade over upgrades in the third quarter suggests credit deterioration will persist at least into early next year." Rating reviews are significant because, unlike actual rating changes, they are not a "lagging" indicator, and suggest the future direction of corporate credit. Moody's normally wraps up its reviews within three months. U.S. corporate credit quality is falling for many reasons. These include the weakening U.S. economy, an inability of marginal companies to raise cash, debt-financed merger activity and fallout from the Sept. 11 attacks on such industries as airlines, insurance, and travel. For example, Moody's in July warned it may cut Comcast Corp.'s ratings after the Philadelphia-based company bid \$44.5 billion for AT&T Corp.'s cable TV operations. Then last month, Moody's warned it may cut Chicago-based Boeing Co.'s ratings because of the attacks' potential impact on demand for commercial airplanes. In the third quarter, Moody's warned it may cut its ratings of 54 speculative-grade, or "junk"-rated, companies, and raise the ratings of just 11. For investment-grade companies, the gap was even more yawning: 68-to-11. And in the fourth quarter? Through Friday, Moody's warned it may downgrade 47 companies and raise a mere four. On Monday, it downgraded embattled energy trading giant Enron Corp., and put all of its ratings on review for another downgrade. Puchalla, however, said the decline could slow next year, in part because interest rates are low and companies are managing their balance sheets more conservatively. "Lower borrowing costs and slowing debt growth should reduce debt servicing costs, and fiscal stimulus from the federal government should boost business revenues," he said. "That is a positive for credit quality." The third quarter was the 14th in a row when corporate rating downgrades outpaced upgrades. The record is 19 quarters, set between 1988 and 1993.

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Enron's Lenders to Demand Harsher Terms, Analysts Say (Update1) 2001-10-29 12:16 (New York)

Enron's Lenders to Demand Harsher Terms, Analysts Say (Update1)

(Updates with analyst comment in fifth paragraph.)

Houston, Oct. 29 (Bloomberg) -- Enron Corp., which can't get low-interest, short-term loans, faces skeptical lenders who will demand increasingly harsher terms as the largest energy trader tries to get cash in the bank, credit analysts said.

"Anyone providing new funding is going to be nervous," said Sean Egan, managing director at Egan-Jones Ratings Co.

"It's likely that lenders are going to demand collateral."

Enron is trying to get \$1 billion to \$2 billion in loans from Citigroup Inc., J.P. Morgan Chase & Co. and other banks to calm investors after a 52 percent drop in the company's stock since Oct. 17, the Wall Street Journal reported. The company needs cash every day to settle commodities transactions and to keep trading partners.

The company on Thursday tapped \$3.3 billion in bank credit lines last week to pay off about \$2 billion in commercial paper, or short-term corporate loans. A week ago, the Enron said the U.S. Securities and Exchange Commission had began an inquiry into related-party transactions. They cost the company \$35 million and \$1.2 billion in lost shareholder equity.

``Banks are in the driver's seat, and Enron is a little desperate," said

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### VentureWire, Thursday, October 26, 2000

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VENTUREWIRE --- Thursday, October 26, 2000

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Private Company Business News ----- Published Daily by Technologic Partners ----- <http://technologicpartners.com>

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Top Stories:

o Transaction Systems Buys MessagingDirect for \$53.2 Million o Microsystems Accelerator Ardesta Formed With \$100 Million o Optical Networking Firm Gets CEO, \$13.25 Million First Round o Ex-London Times Editor Named Chairman of News Site NewsMax

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Also in This Issue:

New Money: o Mobile Network Provider WaterCove Gets \$10 Million Round One o Broadband Delivery Software Firm HarmonyCom Gets \$25 Million o Business Services Firm Primordial Gets \$5 Million Round One o eCompany Secures \$5.5 Million in First Round of Funding o Fiber Optic Firm Holocom Raises \$8.35 Million in Series A o Jet Network Operator eBizJets Has \$10 Million in First Round o Net Security Firm Apletix Raises \$6.25 Million Round One o Networking Firm VxTel Closes \$62 Million Third Round o Search Software Maker Verb Gets \$2 Million, Part of Series A o E-Commerce Services Firm Nescrow Closes First Round o E-Mail Delivery Tech Firm Raises \$800,000, Part of Series A o Sony Takes More Equity in Flat Panel Developer Candescant o Venture Strategy Puts \$1.5 Million in Stealth Inventory Firm o Motorola Puts \$11 Million Round Two in Media Spinoff FID o Primedia Takes Majority Stake in WeddingNetwork.com o Action Sports Web Site Swell.com Gets \$8 Million Series B o B2G Portal eFederal Partners With DCVentureNet o BidPath Raises \$4.5 Million in Series B Round o Brazilian Incubator Ideia.com Raises \$4.2 Million Round Two o Construction Software Firm Omware Gets \$2 Million Mezzanine o Fresh Food Site Freshnex.com Gets \$7.5 Million in Series B o German Fund TecVenture Partners Invests In Two Startups o Oingo Raises \$5.45 Million in Second Round of Funding o Auto Web Site Overboost.com Raises Second Round Funding o CRM Software Firm Dryken Secures \$5.7 Million in



Financing o Customer Conversion Firm Angara Gets \$6 Million Series C o Bentley Takes Equity in Workplace Infrastructure Project.net o NetCompliance Lands Funding From European Fund NeSBIC

New Products: o Business Communications Service Firm GoBeam Launches o Radiology Software Firm Riptide Changes Name to Avreo o Network Flight Recorder Changes Name to NFR Security

New Deals: o GTR Group Takes Equity Stake in Swapit.Com as Part of Deal

M&A: o Services Provider eHotHouse to Acquire InSys Technology o VeriSign Acquires Domain Marketplace GreatDomains.com o BabyPressConference.com Acquires Urbanbaby.com o DWL Acquires Canadian Web Collaboration Firm IPMeeting.com o Investment Firms Customer Dialogue, Asset Sciences to Merge o Vicinity Acquires Site Tech Firm NetCreate Systems

New Directors: o Former Ask Jeeves Exec Joins Board of Certainty Solutions o Ex-Andersen Exec Joins Compliance B2B Compliant's Board o RTS Wireless CEO Now Board Chair, COO Named President

New People: o Fomer Compaq China Exec Named CEO of Linux Firm Coventive o Ardesta Media Appoints Detroit News Columnist as President o Fabless Chip Supplier ClearLogic Board Chairman Named CEO o Microelectronics App Firm Promotes Its VP To President Post

VC Fund News: o New Fund, FA Technology Ventures, Launches

VC Personnel: o Ex-NBC Exec Joins Polaris As Chief Marketing Officer o NMVP Hires Former Motorola Director as Managing Director

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===== Top Stories =====

o Transaction Systems Buys MessagingDirect for \$53.2 Million

OMAHA, Neb. -- Publicly-traded Transaction Systems Architects, a provider of electronic payment and e-commerce software, said it acquired MessagingDirect, a software developer of electronic bill delivery and secure Internet messaging applications, for 3.3 million shares of stock valued at approximately \$53.2 million. MessagingDirect is backed by Angel Investors, Sendmail, and Yorkton Securities. <http://www.tsainc.com/> <http://www.messagingdirect.com/>

o Microsystems Accelerator Ardesta Formed With \$100 Million

ANN ARBOR, Mich. -- Ardesta, formerly known as MEMS Tech, said it is creating an industry accelerator for microsystems technology with its recent close of a \$100 million funding round. The company said the round was raised from Lurie Investments, Avalon Portfolio, the Ralph Wilson Equity Fund, JFM Investments, Masco Capita, Avalon Technology, and Ardesta management. The company said it will use the funds to acquire new microsystems technology, invest in companies to commercialize the technology, and create distribution channels for the end products. The company said it will invest in startups and early-stage companies and provide business and technical resources necessary for their development. Microsystems, super-miniaturized machines, are used in wireless, biomedical testing and treatment and industrial components. Telephone 313-874-8572

o Optical Networking Firm Gets CEO, \$13.25 Million First Round

SANTA CLARA, Calif. -- Sparkolor, a developer of optical networking components and modules, said it appointed Mukesh Patel as its new chief executive officer. Mr. Patel was the co-founder of Smart Modular Technologies prior to joining



Sparkolor. The company also completed its first round of funding for a total of \$13.25 million. Investors participating in this round include Optical Capital Group and New Enterprise Associates. The funds will enable Sparkolor to bring their first products to market and to develop its infrastructure. <http://www.sparkolor.com/>

o Ex-London Times Editor Named Chairman of News Site NewsMax

WEST PALM BEACH, Fla. -- NewsMax.com, a news coverage Web site, said William Rees-Mogg, former editor of the Times of London, was named chairman of the board. Mr. Rees-Mogg, who will oversee five directors, is now a columnist for the Times and chairman of Pickering & Chatto Publishers, a London-based book publisher. After serving as editor for the Times for 14 years, Mr. Rees-Mogg was vice chairman of the board of governors for the BBC from 1981 until 1986. NewsMax is funded by Menlo Capital and Taib Bank. <http://www.newsmax.com/>

===== New Money =====

o Mobile Network Provider WaterCove Gets \$10 Million Round One

BURLINGTON, Mass. -- WaterCove Networks, a provider of data ne

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#### Enron Mentions

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| Recipients | []                       |
| File       | dasovich-j/inbox/1592.   |

US Power, Gas Companies Restrict Dealings With Enron Dow Jones Energy Service, 11/08/01 USA: Enron provides financing data, restates earnings. Reuters English News Service, 11/08/01 Enron Thinks Ex-CFO Got More Than \$30M Thru Partnerships Dow Jones Corporate Filings Alert, 11/08/01 Dynegy confirms in talks with Enron over possible tie-up AFX News, 11/08/01 USA: Dynegy says in talks with Enron over possible deal. Reuters English News Service, 11/08/01 U.S. Stocks Open Higher on Retail Sales Data, European Rate Cuts Dow Jones Business News, 11/08/01 Dynegy/Enron Talks -4: Follows SEC Inquiry Launch Dow Jones News Service, 11/08/01 Dynegy Confirms Discussions With Enron Business Wire, 11/08/01 USA: UPDATE 1-Before the Bell - Dynegy flat, Enron slips. Reuters English News Service, 11/08/01 FERC 'Watching With Interest' Enron's Woes, Chairman Says Dow Jones Energy Service, 11/08/01 Ripples From Enron's Troubles Hit Its Trading Partners Dow Jones Energy Service, 11/08/01 Enron in Talks With Dynegy; to Restate Earnings (Update8) Bloomberg, 11/08/01

Fitch Comment on Wessex Water Ratings Following Enron Downgrade Bloomberg, 11/08/01

NewPower 3rd-Qtr Loss Narrows After Adding Customers (Update2) Bloomberg, 11/08/001

Dynegy May Offer at Least \$8 Bln to Acquire Enron (Update5) Bloomberg, 11/08/01

Enron Bonds Gain as Dynegy Considers \$8 Bln Buyout (Update1) Bloomberg, 11/08/01

Enron Confirms Dynegy Talks TheStreet.com, 11/08/01

Stocks Surge On Rate Cuts, Jobless Numbers TheStreet.com, 11/08/01

Some Glamour Stocks That Are Ugly Down Deep RealMoney.com, 11/08/01

Top Of The News Enron Trades Itself Forbes.com, 11/08/01

US Power, Gas Companies Restrict Dealings With Enron By Jon Kamp, Kristen McNamara and Mark Golden Of DOW JONES NEWSWIRES

11/08/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.) (This article was originally published Wednesday.)

NEW YORK -(Dow Jones)- Trading companies in Enron Corp.'s (ENE) key North American power and gas markets are restricting their dealings with the ailing Houston-based giant, people at those companies said Wednesday. Concerns have mounted because Enron, which accounts for about a quarter of the trade in the country's power and gas markets and which makes a market for those commodities on its Internet-based system EnronOnline, has seen its share price fall by about 75% and its credit ratings downgraded since mid-October due to uncertainties about its extremely complex financial structure. "We've restricted our business with them," said Mike Smith, chief financial officer for Mirant Corp. (MIR) unit Mirant Americas Group, a Top 10 trader of power and gas in the U.S. Smith wouldn't be more specific, but his comments echoed those of others in the business. "Our exposure to Enron is insignificant compared with the previous exposure," said Al Butkus, spokesman for Aquila Inc. (ILA), a Top 5 U.S. power and gas trader. Tractebel Energy Marketing, the North American subsidiary of the Belgian company Tractebel S.A., has limited the term of transactions with Enron to three years or less, a person at the company said. And a power broker said some medium sized western utilities have stopped trading with Enron even for near-term delivery. Enron didn't return calls seeking comment. The Wall Street Journal reported Wednesday that Enron was in talks for a capital infusion and possible acquisition by competitor Dynegy Inc. (DYN). Also, Enron said Thursday it was restating its financial statements from 1997 through the second quarter of 2001, saying its financial and audit reports are unreliable for all those periods. The company fired its treasurer and general counsel. Key Markets

Enron's ability to transact in its core markets - North American wholesale gas and power - is essential if the company maintain the earnings and cash flow needed to emerge from its current credit crisis, Wall Street analysts and ratings agencies have said. Standard & Poor's and Moody's Investors Service downgraded Enron's credit to within two steps of junk-bond status last week and have it on watch for further downgrade. Enron still has its supporters. Exelon Corp. (EXC) is monitoring its own risk management, but hasn't changed its relationship with Enron, said Chief Financial Officer Ruth Ann M. Gillis.

"We haven't changed our relationship," Gillis said. Enron is a very important factor in the vitality of the wholesale energy markets, she said. They're still the "largest, best" of the companies out there, she said. Likewise, a trading floor manager at one energy company said Enron called earlier in the week and asked that the company increase its trading on EnronOnline. The company's EOL volumes had fallen, but it honored Enron's request out of respect for Enron's still market-making power. PPL Corp. (PPL) moved to mitigate its exposure to Enron following the downgrades, a person in the marketing organization at PPL EnergyPlus said. "Enron would not be a first choice to do long-term transactions," the person said. "For shorter terms, deals, they wouldn't be considered equally with everyone else. There's just too much risk there." Since Enron's troubles began several weeks ago, energy trading partners had stood by the company in ways that stock and bond traders hadn't. Until this week, "business as usual" was an almost constant refrain. Energy companies' immediate exposure to Enron was limited to a maximum of seven weeks of receivables, and Enron was paying its bills. But for some of those companies, business as usual also meant not changing value-at-risk formulas, even though the formulas were generating ever lower allowable volumes of business with Enron as the company's credit quality deteriorated, one risk manager said Wednesday. Lower value-at-risk limits got most trading companies to flatten their portfolios by taking positions to offset currently profitable long-term positions with Enron. PPL, for example, is still following its credit policy and as a result has limited its dealings with Enron, which has seen its credit quality fall, the person at PPL EnergyPlus said. "We've taken a look at our book," the person said. "Based on the events of this and last week, we've taken some action to mitigate the risk based on their ratings downgrade." Trading companies constantly evaluate their counterparties' credit and adjust their dealings accordingly, but rarely have been required to address problems on the scale of Enron's recent difficulties. "It certainly ranks just behind California," the person at PPL said. Enron Claims Trading Normal

An Enron spokesman, reached later, said the company continues to see a normal range of transactions, including long-term deals. "We've not seen closing out of positions," spokesman Eric Thode said. Susan Abbott, a managing director in corporate finance at Moody's, said the ratings agency wasn't aware of significant changes in trading companies' dealings with Enron. The agency continues to watch for new restrictions, in particular margin calls, which could quickly strain Enron's liquidity. A drop in new business with Enron isn't as much of a concern, she said. "If you're restricting new business with the company, what you're doing is moving the company out of the market in an orderly way," Abbott said. PPL is shying away from doing deals with Enron and is limiting the dollar amount and terms of the deals it will do with the company, but hasn't yet imposed margin calls or required additional collateral, the person in the marketing organization

said. "Neither the credit thresholds nor our exposure threshold have been breached," the person said. PPL said it's limiting exposure to Enron for shorter-term deals too, the person said. "Their liquidity just isn't there anymore," the person said. No large company can afford to

Message 1195 of 1299

**VentureWire, Tuesday, September 12, 2000**

|            |                                |
|------------|--------------------------------|
| Sender     | venturewire@venturewire.com    |
| Recipients | ['jdasovic@enron.com']         |
| File       | dasovich-j/all_documents/1345. |

VENTUREWIRE --- Tuesday, September 12, 2000

Private Company Business News ----- Published Daily by Technologic Partners ----- <http://technologicpartners.com>

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New Products: o Info, Resource Site for Minority Businesses Announces Launch o Online Business Info Provider RhondaWorks Launches o Gilat-To-Home Becomes StarBand Communications o Local Busines App Firm Dbusiness.com

Now LocalBusiness.com

M&A: o Contact Center Firm !hey Software Merges with icontract.com o Tech Licensing Firm UVentures Buys Datamonitor's QX Health o BarterNet Acquires Majority Interest in BXI Exchange

New Directors: o Supply Chain B2B SupplyLinks Adds Curry to Board o Former FCC Director Joins Hispanic Sports' Board o Money Management Services Provider eBalance Adds to Board o ARM Holdings COO Joins NCipher Board of Directors

New People: o Mobilestop Hires Former Ericsson Exec. As President, CEO o DailyShopper Network Names Ex-L.A. Times VP President & COO o XML App Firm Vordel Names Former Siemens Exec as CEO o Former Internet Capital Group Exec Named CEO of XYAN.com o Authentication Provider BioNetrix Names Ex-Previo Chief CEO o Newmediary.com Hires Former Adsmart CEO as President, CEO o U.K. Internet Graphics Firm ZY.com Appoints New CEO o Virtue Names Freshmarketing.net Co-Founder as President

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Size does matter when it comes to bandwidth. In the online economy, the bigger the pipe the better. Which is why The Wall Street Journal Technology Summit is featuring keynotes by CEOs of three companies that help the Internet handle more data in less time:

--David Huber of Corvis, the optical communications startup that recently set a Wall Street record for new issues by companies without revenues, raising \$1.1 billion in its IPO at a market capitalization of \$11 billion. --Scott Kriens of Juniper Networks, the young maker of high-speed Internet equipment whose shares have risen tenfold since IPO. --David Peterschmidt of Inktomi, the network-caching company with revenue growth of more than 25% for 10 consecutive quarters.

Register today at <http://info.wsj.com/techsummit/>

|||||

===== Top Stories =====

o Internet Network Frim Interxion Raises \$173 Million Series B

AMSTERDAM -- Interxion Holding, which provides carrier neutral Internet exchange centers, raised EUR 200 million (\$173 million) in a Series B financing round. New investors, including GS Capital Partners 2000 and Whitehall Real Estate Funds, both sponsored by Goldman Sachs; DLJ Real Estate Capital Partners II; CSFB Private Equity; CSFB Real Estate Investment Banking; CSFB Technology Group; Enron Broadband Services, a subsidiary of Enron; Continuum Group; and Aman Ventures participated in the round. Previous investors including Baker Communications Fund, Navis Partners V, Morgan Stanley Dean Witter, and Bear Stearns Merchant Banking also contributed. The company said it will use the capital to continue to develop its Internet exchange centers across Europe and new service offerings and to increase staffing. <http://www.interxion.com/>

o Government Rejects One Argument in Napster Appeal

NEW YORK -- The United States Copyright Office and the Department of Justice have rejected one facet of Napster's defense that claims it is protected by the Home Audio Recording Act. Record labels and music industry organizations have charged Napster, operator of a site for sharing copyrighted music files in MP3 format, with copyright infringement. In an advisory brief filed with the United States District Court for the Northern District of California, the Copyright Office stated the "Audio Home Recording Act does not protect Napster from the plaintiff's claims of copyright infringement." The U.S. Copyright Office and the Justice Department argue that the Audio Home Recording Act addresses a different phenomenon, specifically the use of DAT recorders used for home taping. "We have great respect for the Department of Justice, but in this instance we believe their position is incorrect," said Napster's attorney David Boies. In a statement Mr. Boies also noted that the government did not address Napster's liability and the precedents cited in Napster's appeal. A&M

Records and other record labels, the Recording Industry Association of America, and the National Music Publishers Association have filed the suit against Napster. The company is backed by Hummer Winblad

Message 1196 of 1299

### FW: Resumes of Mystery Witnesses

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | jbennett@gmssr.com                                                                                                 |
| Recipients | ['sstoness@enron.com', 'jdasovic@enron.com', 'smara@enron.com', 'harry.kingerski@enron.com', 'leslie.lawner@en...] |
| File       | dasovich-j/all_documents/11370.                                                                                    |

Attached are the resumes of the three witnesses that the commission intends to call next week (Tuesday) to testify on the rate design proposals put in by all the parties. The idea is that these witnesses will not submit anything in writing. They will just testify on the stand and then be subject to cross examination.

-----Original Message-----

Subject:

George Sterzinger EER Consulting 1400-16th St NW Washington DC 20036 <<short res2.doc>>

Peter Bradford PO Box 497 Peru VT 05152 <<calif.resume.4.01.doc>>

<<vita014.pdf>> Severin Borenstein

- short res2.doc - calif.resume.4.01.doc - vita014.pdf

Message 1197 of 1299

### Global Industries Case

|            |                                                                                                          |
|------------|----------------------------------------------------------------------------------------------------------|
| Sender     | kkupiecki@arpartners.com                                                                                 |
| Recipients | ['jdasovic@enron.com', 'dwindham@uclink4.berkeley.edu', 'jjackson@haas.berkeley.edu', 'jcjal02@aol.com'] |
| File       | dasovich-j/notes_inbox/1884.                                                                             |

Hello Jeff,

Please see attached, my attempt at questions 1 and 2 of the next case. Feel free to use the set up in question 1 to answer question 3. 1 and 3 are very similar - 1 compares what Global Industries does compared to German GAAP, 3 compares it to US GAAP. There is not much information on German GAAP so I used a little artistic licence.

Let me know if any of this doesn't make sense - I am a little cloudy right now with this cold.

Cheers,

- Case 26-1 Global Industries.doc

Kimberly Kupiecki Director A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

## Message 1198 of 1299

## Getting it together

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | kkupiecki@arpartners.com                                                   |
| Recipients | ['jkelly@fairisaac.com', 'tedchin@hotmail.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/2203.                                               |

Hey team,

If anyone has any parts of the project, please send them to me. We are still missing the following:

1. CAPM - complete analysis - there were some missing portions to the one Chris sent over
2. Sensitivity analysis - the numbers
3. Paragraph on cash flow
4. Final Executive summary
5. Exhibit G (elasticity) - needs to be finished and discussion of sensitivity analysis in exhibit A

Let's get together at the break and crank this out since we are running out of time.

See you in class

Kimberly Kupiecki Director A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

## Message 1199 of 1299

## Spring 2000 Schedules

|            |                                  |
|------------|----------------------------------|
| Sender     | allison@haas.berkeley.edu        |
| Recipients | ['eveningmba@haas.berkeley.edu'] |
| File       | dasovich-j/all_documents/255.    |

We are now finished with the Spring 2000 schedules. If you call InfoBEARS at 510-642-9400, you should be able to access your spring schedule. Alternatively, you can go to InfoBEARS via [bearlink.berkeley.edu](http://bearlink.berkeley.edu) If you have problems, let me know. DISREGARD waitlist numbers in InfoBEARS. I will send waitlist numbers tomorrow that are correct.

If you wish to make further modifications to your schedule, you may do so beginning January 18, 2000.

Shawn

Shawn Allison, Associate Director Evening MBA Program, Haas School of Business University of California, Berkeley Tel (510) 643-0435 Fax (510) 643-5902

## Message 1200 of 1299

## Re: Finance Project

|            |                             |
|------------|-----------------------------|
| Sender     | kkupiecki@arpartners.com    |
| Recipients | ['jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/959. |

Hi Jeff,

Thanks for thinking of me, I will do my best, I think it is up to me now.

I will let you know if Jackie responds to my note.

At 06:30 PM 10/12/00, you wrote:

Hi Kim: Any luck with Jackie re: getting together to start the project? And if there's anything else I can do re: your meeting on Monday, don't hesitate. Leave me a voicemail and let me know how the meeting goes. I'll be in Vancouver with the EBS gang Monday/Tuesday, and if all goes well maybe I can chat up some folks while I'm there. Best, Jeff

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 1201 of 1299

**FW: R0105047 Ruling of Assigned Commissioner & ALJ Setting Prehea**

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | jbennett@gmssr.com                                                             |
| Recipients | ['harry.kingerski@enron.com', 'jdasovic@enron.com', 'leslie.lawner@enron.com'] |
| File       | dasovich-j/all_documents/27763.                                                |

Attached is an Assigned Commissioner's Ruling establishing a prehearing conference in the baseline proceeding and calling for optional PHC statements. The prehearing conference is scheduled for Friday, June 21st. I will be unable to attend as I will be out of town, but can get someone else to cover it, if Enron is interested in participating in the proceeding. Let me know as soon as possible.

Jeanne

Subject: R0105047 Ruling of Assigned Commissioner & ALJ Setting Prehearing Conference mailed 6/11/01

<<CPUC01-#99940-v1-R0105047\_Allen\_Ruling\_.doc>>

Note: Check Proceeding Website and June 13, 2001 Daily Calendar.

- CPUC01-#99940-v1-R0105047\_Allen\_Ruling\_.doc

Message 1202 of 1299

**FW: Bilas PD**

|            |                                |
|------------|--------------------------------|
| Sender     | mday@gmssr.com                 |
| Recipients | ['jdasovic@enron.com']         |
| File       | dasovich-j/all_documents/4094. |

Here is your chance to land a broadside on the issue of the gas PD. Why don't you call O'Donnell.

-----Original Message-----

From: Arthur O'Donnell [mailto:aod@newsdata.com] Sent: Wednesday, November 29, 2000 1:44 PM To: mday@gmssr.com Subject: Bilas PD

Mike, I cannot find a phone number for you, but wanted to see if you had a comment on the Bilas PD in the gas industry restructuring case. Is there some element of the comprehensive settlement worth fighting for? Do you see any of the issues gravitating to the Semptra OII?

Any response appreciated. Thursday is deadline day. 415-824-3222

Thanks, Arthur O'Donnell California Energy Markets (415) 824-3222, (415) 824-3223 [fax]



Message 1203 of 1299

**Re: Next Case - Global Industries**

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                           |
| Recipients | ['christine.piesco@oracle.com', 'kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu', 'jcjal02@aol.com...] |
| File       | dasovich-j/all_documents/3666.                                                                                    |

No problem.

Kimberly Kupiecki <kkupiecki@arpartners.com> 11/20/2000 01:02 PM

To: dwindham@uclink4.berkeley.edu, jjackson@haas.berkeley.edu, jdasovic@enron.com, jcjal02@aol.com, christine.piesco@oracle.com cc: Subject: Next Case - Global Industries

Hello Gang,

I am leaving town Wed, not to return until Monday. So I will work on the next case tonight (early questions) and send what I have to the team.

According to our schedule, I am supposed to be coordinating this case. Jeff - can I switch this one with the Daimler-Chrysler case (assigned to you)?

Kimberly Kupiecki Director A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 1204 of 1299

**Re: Study?**

|            |                             |
|------------|-----------------------------|
| Sender     | kkupiecki@arpartners.com    |
| Recipients | ['jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/960. |

Hi Jeff,

Thanks for the note. I have sent Jackie a note on the finance project too.

I will keep you posted.

At 06:46 PM 10/12/00, you wrote:

*Greetings: Well, there's a finance midterm coming up and some of us have discussed getting together the weekend before for a study session. I just grabbed an old list from last year so apologies if I've included folks who ain't even in finance, or if I've left some folks off. Sorry to those who received in error, and please forward to anyone else who might be interested. Anyway, anyone interested? Hope all is well with all. Best, Jeff*

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

Message 1205 of 1299

**REMINDER-Performance Management process in progress**

|            |                               |
|------------|-------------------------------|
| Sender     | perfmgmt@ect.enron.com        |
| Recipients | ['jeff.dasovich@enron.com']   |
| File       | dasovich-j/all_documents/102. |

The 1999 Year End Performance Management process has begun and the Performance Management System is available for your use. You will access the Performance Management System by clicking here <http://pep.enron.com> and following the steps to log in to the Performance Management System.

Any questions should be directed to the Performance Management Hotline at the following numbers:

In Houston: 713-853-4777, Option 4; In Calgary: 403-974-6724; In London: +44-171-316-6777

To log on to the Performance Management System, enter your User ID and password provided below. Once you have logged on, you will be immediately prompted to change to a secure password.

Your User ID & Password are:

User ID: JEFFREYDASOVICH6637

Password: WELCOME

---

*Message 1206 of 1299*

**RE: Meeting with John White reminder**

|                   |                             |
|-------------------|-----------------------------|
| <b>Sender</b>     | jeff.dasovich@enron.com     |
| <b>Recipients</b> | ['joseph.alamo@enron.com']  |
| <b>File</b>       | dasovich-j/sent_items/1886. |

Thanks very much. FYI. Steffes is coming to Sacramento tomorrow. I'll be bringing him back to SF in the PM and he'll be in the office on Thursday and at least part of Friday.

Best, Jeff

PS The meeting's been switched to 2 PM.

-----Original Message-----

From: Alamo, Joseph Sent: Tue 8/28/2001 8:15 PM To: Dasovich, Jeff Cc: Subject: Meeting with John White reminder

Subject: Meeting w/John White Date: Wed., August 29 Time: 1:00 p.m. Location: 1100 - 11th Street (between K & L Sts) Suite 311 Sacramento CA

Contact: "Marilyn" @ 916.447-7983

Joseph Alamo Sr. Administrative Assistant Global Government Affairs ph. (415) 782-7841 fax (415) 782-7854 e-mail: joseph.alamo@enron.com

---

*Message 1207 of 1299*

**Re:**

|                   |                             |
|-------------------|-----------------------------|
| <b>Sender</b>     | steve.montovano@enron.com   |
| <b>Recipients</b> | ['jeff.dasovich@enron.com'] |
| <b>File</b>       | dasovich-j/personal/10.     |

Jeff - Page me - 888 916-7186, call me - cell phone 973 714-4630, home phone 614 792-6030. By the way I made my flight. That's the good news. The bad news is we sat on the runway for 2 f#@king hours because of t-storms in the east. Hope your trip went better. Don't hesitate to reach out for me today. On Wednesday I am traveling to Houston for PRC meetings and scheduel will be tight. Steve

Jeff Dasovich on 06/12/2000 05:03:44 PM To: Steve Montovano/DUB/EES@EES cc: Subject:

Greetings:

Great to see you last week. Hope you got out of there in a reasonable amount of time. I'd like to talk to you for a few minutes between now and close-of-business Wednesday. Very confidential matter--would like to tap your insights, get your feedback, and seek a bit of wisdom. That work in your schedule?

Best, Jeff

Message 1208 of 1299

| Re:        |                             |
|------------|-----------------------------|
| Sender     | susan.landwehr@enron.com    |
| Recipients | ['jeff.dasovich@enron.com'] |
| File       | dasovich-j/eci/54.          |

Jeff--my number changed last August, so it should be changed on your lists.....#612-339-4599 (office) #612-929-7669 (home) #1-888-916-2264 (pager)

I am traveling tonight and will be crazy tomorrow so if you could leave me the info via voice mail I'd appreciate it. As I think I said in my message to you, I haven't been totally enthusiastic about anybody that I've interviewed in Chicago yet, so I wondered if the firm that you are using in California has an office in Chicago and if so, do they have a telecom/communications practice?

Thanks a bunch.

Jeff Dasovich on 04/08/2000 07:08:18 PM To: Susan M Landwehr/HOU/EES@EES cc: Subject:

Hi Sue: Believe it or not. I am alive. Can get you the info on the outside legal counsel I have. Can you call me Monday morning, since your new phone number is NOWHERE to be found. Best, Jeff

Message 1209 of 1299

| SVMG Energy Committee Meeting |                               |
|-------------------------------|-------------------------------|
| Sender                        | lgoldseth@svmg.org            |
| Recipients                    | ['lgoldseth@svmg.org']        |
| File                          | dasovich-j/deleted_items/255. |

Good Afternoon Liaison Representatives and Energy Committee Members,

The next meeting of the SVMG Energy Committee is scheduled for Wednesday, August 22 at 3:00pm. We will be hosted by Exodus, located at 2831 Mission College Blvd. in Santa Clara, Training Room MC1.

We expect an informative and thought provoking presentation from Tal Finney, Senior Policy Advisor to Governor Gray Davis. We hope to gain a more intimate understanding of energy policy activities in Sacramento as well to influence future activity by relaying the needs and concerns of Bay Area business. This is a great opportunity. We hope to see you there.

Please remember to confirm your attendance by replying to this e-mail or calling 408-501-7870. Thank you very much and have a pleasant week.

Regards,

Laura M. Goldseth Associate, SVMG Energy Programs Tel: 408-501-7870 Fax: 408-501-7861

## Message 1210 of 1299

| Re: Docs   |                                                                                                      |
|------------|------------------------------------------------------------------------------------------------------|
| Sender     | kkupiecki@arpartners.com                                                                             |
| Recipients | ['jkelly@fairisaac.com', 'cfair@worldnet.att.net', 'tedchin@hotmail.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/2226.                                                                         |

Hi Jeff,

I am going to call this done and print it all out.

Thanks for refining the docs.

At 12:12 AM 12/5/00, Jeff.Dasovich@enron.com wrote:

*Ok. Here they are. On exhibit A, I didn't touch numbers are exhibit #s. Also, I deleted CAPM, since we ain't got anything yet. And I deleted the part that said "ticket sales taxes don't matter much," because now that we have the numbers they could matter, cuz it's really tight between bond payments and tax revs. Anyway, that's it. I checked and doubled checked the numbers and exhibit #s in the exec sum, but you may want to give one last peek. Thanks SO much for pulling it together. Best, Jeff(See attached file: Finance exec sum 1204.doc)(See attached file: Exhibit A\_assumptions and model.doc)*

Kimberly Kupiecki Director A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

## Message 1211 of 1299

| Re: Even the best laid plans... |                                                                                                |
|---------------------------------|------------------------------------------------------------------------------------------------|
| Sender                          | kkupiecki@arpartners.com                                                                       |
| Recipients                      | ['jdasovic@enron.com', 'jcja@chevron.com', 'jcjal02@aol.com', 'dwindham@uclink4.berkeley.edu'] |
| File                            | dasovich-j/all_documents/1522.                                                                 |

Hi Jeff,

Actually, I totally agree with the analysis. The company is within the bounds of the accounting rules. It is up to the analysts to figure out the details.

At 09:10 AM 9/17/00, jdasovic@enron.com wrote:

*Greetings. Here's the case with 1,3 and 4 compiled. I took some editorial license with 1 and 4--hope I didn't butcher what you were conveying Jimmie and Dylan. Check it out. Still need to determine if folks are comfortable with my conclusion in #3, i.e., look, the biz model and the info provided in the 10K may be crap, but from a strictly technical perspective, Patten's justified in using the sales as opposed to the installment method. Let me know. Kim's up and running on #2. Best, Jeff (See attached file: Patten case 1and3and4.doc)*

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

## Message 1212 of 1299

| California Power Crisis |                              |
|-------------------------|------------------------------|
| Sender                  | maureen.mcvicker@enron.com   |
| Recipients              | ['jeff.dasovich@enron.com']  |
| File                    | dasovich-j/notes_inbox/3388. |

Here's the email address that Steve meant to send to you. emoses@mayor.lacity.org

I also attached what Steve sent to him. Steve said to mention that he took out the part about "here's what the skeptics would say and here's what to say".

I will also copy you on Karen Denne's email.

----- Forwarded by Maureen McVicker/NA/Enron on 05/14/2001

02:38 PM -----

Steven J Kean 05/12/2001 06:43 PM To: emoses@mayor.lacity.org cc:

Subject: California Power Crisis

Attached is the document I mentioned. You will get a separate e-mail from Karen Denne which will include the invitation and the invited for the Thursday meeting.

My contact information:

Steven J Kean EVP and Chief of Staff Enron Corp 713.853.1586 skean@enron.com pager: 888.906.9761 Asst Maureen McVicker 713.853.1808

I will be in Japan most of next week, but my office can reach me. Thanks

Message 1213 of 1299

#### Conference Call 4/12/01

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | caletc@ix.netcom.com                                                                                               |
| Recipients | ['sgovenar@govadv.com', 'abb@eslawfirm.com', 'steven@iepa.com', 'smutny@iepa.com', 'smccabe@mccabeandcompany.n...] |
| File       | dasovich-j/notes_inbox/4379.                                                                                       |

Julee Malinowski-Ball is out of town till Monday April 16, 2001. However, the IEP company lobbyist conference call is scheduled for April 12, 2001 at 2:00 PM. Julee thinks someone should lead the call and that it extremely important and valuable for everyone to touch base before we get bogged down again with hearings next week. On the agenda should definitely be a discussion of AB 60x lobbying strategy and update, SB 28x update and the proposed changes to SB 6x (heard from Brian Kelly, he submitted language on the eminent domain provisions of the bill).

Call In Date ~ April 12, 2001

Call In Time ~ 2:00 PM

Call In Number ~ (800) 403-2013

Code ~ 207814

If you have any questions, please call me or email me.

Thank you,

Karen Baker (916) 552-7070 kebaker@ns.net

Julee Malinowski-Ball Senior Associate Edson + Modisette 916-552-7070 FAX-552-7075 jmball@ns.net FAX-552-7075 jmball@ns.net

## Message 1214 of 1299

| # in San Ramon |                                             |
|----------------|---------------------------------------------|
| Sender         | elizabeth.moore@enron.com                   |
| Recipients     | [ca.team@enron.com', 'eric.team@enron.com'] |
| File           | dasovich-j/all_documents/9650.              |

Team, Eric is in the San Ramon this week and will be there throughout the week. He returns back to Houston on Friday the 9th ( but will not in IAH office ) - flies back to San Ramon on Sunday the 11th through the 15th. Will be in office in Houston on Friday the 16th. Returns to San Ramon on Sunday the 18th and back in Houston on Friday the 23rd. (but not in IAH office)

Please page him at 888 766 4103 or by cell 713 851 8285. His phone number in San Ramon is 925 - 543 - 3847 ( but DO NOT leave Voice Mail ). You can always contact me if you have any questions.

Thanks, Elizabeth

----- Forwarded by Elizabeth Moore/HOU/EES on 03/05/2001

01:39 PM -----

Eric Letke 03/05/2001 12:37 PM To: Elizabeth Moore/HOU/EES@EES cc: Subject: # in San Ramon

The phone where I sit when I am in San Ramon is 925-543-3847 is anyone wants to try and get ahold of me. Please tell them not to leave voice mail and page me if I do not answer. Thanx.

## Message 1215 of 1299

| PG&E OFO Forum on August 29 |                                                                       |
|-----------------------------|-----------------------------------------------------------------------|
| Sender                      | rrs5@pge.com                                                          |
| Recipients                  | [ahuertas@enron.co.uk', 'agoldberg@lgl.twc.com', 'abb@eslawfirm.com'] |
| File                        | dasovich-j/all_documents/740.                                         |

PARTIES in I.99-07-003

This is a reminder that PG&E is holding the first Gas OFO Forum on Tuesday, August 29, 2000. Attached is our proposed agenda for this meeting. We will have extra copies of both the July 31, 2000 OFO Report and the March 7, 2000 Balancing Report available at the meeting.

The Forum will be held in San Francisco at PG&E's Pacific Energy Center, 851 Howard Street (between 4th and 5th Streets). There are a number of parking lots in the area, including a very large lot also between 4th and 5th Streets with entrances on 5th Street and Mission Street. The meeting will start at 9:30 a.m. and end around 4:00 p.m. A continental breakfast will be available at 9:00 a.m. We will also provide lunch.

Please RSVP to Belinda Bates at bdb9@pge.com or 415-973-6626, if you have not already done so. We look forward to seeing you next week.

Ron Stoner Randy Litteneker 415-973-3606 415-973-2179

<<Agenda for 8-29-2000 OFO Forum>>

- Agenda for 8-29-2000 OFO Forum.doc

## Message 1216 of 1299

## Re: FW: Bilas PD

|            |                                        |
|------------|----------------------------------------|
| Sender     | jeff.dasovich@enron.com                |
| Recipients | ['aod@newsdata.com', 'mday@gmssr.com'] |
| File       | dasovich-j/sent/1204.                  |

Greetings Art. Had a great time at the conference. Thanks for inviting me. I have a comment about the proposed decision if you'd like it. Let me know. What time do you need it? And can I just email it to you? It'll be quite brief and to the point.

Best, Jeff

MBD <MDay@GMSSR.com> 11/30/2000 12:44 PM

To: "'Jeff Dasovich Enron SF'" <jdasovic@enron.com> cc: Subject: FW: Bilas PD

-----Original Message-----

From: Arthur O'Donnell [mailto:aod@newsdata.com] Sent: Wednesday, November 29, 2000 1:44 PM To: mday@gmssr.com Subject: Bilas PD

Mike, I cannot find a phone number for you, but wanted to see if you had a comment on the Bilas PD in the gas industry restructuring case. Is there some element of the comprehensive settlement worth fighting for? Do you see any of the issues gravitating to the Semptra Oil?

Any response appreciated. Thursday is deadline day. 415-824-3222

Thanks, Arthur O'Donnell California Energy Markets (415) 824-3222, (415) 824-3223 [fax]

## Message 1217 of 1299

## Group Think - take aways

|            |                                                                                   |
|------------|-----------------------------------------------------------------------------------|
| Sender     | kkupiecki@arpartners.com                                                          |
| Recipients | ['jkelly@fairisaac.com', 'mendelso@haas.berkeley.edu', 'jeff_dasovich@enron.com'] |
| File       | dasovich-j/all_documents/354.                                                     |

Hello, find attached:

1. wine case.xls for those in Udpa's accounting class - cost data and Q1/Q2 2. EMI case.xls for the marketing case - it has marketing data summarized

See you in class!

At 10:56 AM 2/11/00 -0600, Jeff\_Dasovich@enron.com wrote:

*Ok, looks like the Orbit Room can't handle the size of our group so there's been a proposed change of venue for Saturday's meeting. If anyone has alternative suggestions, feel free to propose. Accounting discussion 10AM-11AM (for Tues/Thurs folks) Marketing discussion 11AM-Noon (for all) Meet at my office. 101 California Street (one block from the cable car turnaround) Suite 1950 Enter at the California Street entrance Buzz at the door; guard will let you in Guard will know to enable elevator to get you to the 19th floor I'll keep the door to the office ajar so that folks can enter easily once on 19th floor Sound reasonable? Did I miss anything.*

- Wine case.xls - EMI case.xls

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801



## Message 1218 of 1299

## Re: FW: Finance project

|            |                                |
|------------|--------------------------------|
| Sender     | jeff.dasovich@enron.com        |
| Recipients | ['jkelly@fairisaac.com']       |
| File       | dasovich-j/all_documents/2387. |

Beautiful. Tuesday it is. Have a great weekend.

Jacqueline Kelly <JKelly@Fairisaac.com> 10/13/2000 02:03 PM

To: "Jeff Dasovich (E-mail)" <dasovich@haas.berkeley.edu> cc: Subject: FW: Finance project

Kupiecki sent me an e-mail this morning about getting together for our project soon. How does Tuesday at break sound?

-----Original Message-----

From: Jacqueline Kelly Sent: Friday, October 13, 2000 10:41 AM To: 'Kimberly Kupiecki' Subject: RE: Finance project

Sounds good to me!

Do you want to try to read the case on our own and meet during the break on Tuesday to discuss?

Let me know what you think!

-JACKIE

-----Original Message-----

From: Kimberly Kupiecki [mailto:kkupiecki@arpartners.com] Sent: Friday, October 13, 2000 10:15 AM To: JKelly@fairisaac.com Subject: Finance project

Hi Kelly,

What do you think about the idea of getting our group together to talk about the finance project soon? If we wait too long, it will sneak up on us.

Cheers,

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

## Message 1219 of 1299

## Re: California

|            |                                |
|------------|--------------------------------|
| Sender     | jeff.dasovich@enron.com        |
| Recipients | ['scott_pleus@enron.net']      |
| File       | dasovich-j/all_documents/1885. |

Hi Scott:

Thanks for the note. Hope things are well. I'd like to call the El Paso person if that works for you. Yep, moratorium's still in place (at least to build your own---you can always get someone who previously received authority to do it for you). I'll keep you posted.

Best, Jeff

Scott\_Pleus@enron.net 09/28/2000 11:17 AM

To: jdasovic@enron.com cc: Subject: California

If you are still trying to pull utilities and such together to approach the California regulatory bodies, El Paso would be interested in joining the effort. I work with Bryan Neskora and Bruce Northcutt with El Paso Global Networks. El Paso is trying to install fiber along their pipeline ROW starting in Los Angeles through Phoenix, Tucson, El Paso, Houston. I believe they are having difficulties on the regulatory side. Bryan gave me the following name in the regulatory group:

Kim Corley 713-420-5610 Houston

Bryan said to feel free to give her a call. Hope this helps.

I also understand we still haven't received permitting build. Is moratorium still in place?

Scott Pleus Enron Broadband Services scott\_pleus@enron.net 713-853-6577 Office 281-300-8286 Wireless

---

Message 1220 of 1299

**DAF APPROVAL-local loop with Level 3-San Diego-EBS is buying DS-3,**

|            |                                |
|------------|--------------------------------|
| Sender     | donald.lassere@enron.com       |
| Recipients | ['jeff.dasovich@enron.com']    |
| File       | dasovich-j/all_documents/1850. |

Jeff,

Give me a call on this one. Thanks!

Donald ----- Forwarded by Donald Lassere/Enron Communications on 10/01/00 12:01 PM

---

Amy Heffernan 09/25/00 04:42 PM

To: Tanya Rohauer/HOU/ECT@ECT, Donald Lassere/Enron Communications@Enron Communications, Melissa White/Enron Communications@Enron Communications, Rich Hall/Enron Communications@Enron Communications, Gregg Simmons/Enron Communications@Enron Communications, Debra Bailey/Enron Communications@Enron Communications, Phil Markwart/Enron Communications@Enron Communications, Moe Barbarawi/Enron Communications@Enron Communications, Mark Friedman/Enron Communications@Enron Communications, Brad Richter/Enron Communications@Enron Communications cc: Molly LaFuze/Enron Communications, Joe Edwards/Enron Communications@Enron Communications, Neil Carpino/Enron Communications@Enron Communications Subject: DAF APPROVAL-local loop with Level 3-San Diego-EBS is buying DS-3, 1 yr, (will be sold to Broadband Delivery Group-EBS)

Please let me know if you approve of this deal. Thank you!

Amy Degeyter Heffernan Office: 713.853.7646 Enron Broadband Services Cell: 713.962.1520 Trading Support  
Fax:713.646.3271 amy\_degeyter@enron.net

---

Message 1221 of 1299

**Re: California**

|            |                           |
|------------|---------------------------|
| Sender     | jeff.dasovich@enron.com   |
| Recipients | ['tom.chapman@enron.com'] |
| File       | dasovich-j/sent/35.       |

been on vacation. i'm back. would you like me to call?

Tom Chapman@ECT 08/21/2000 07:19 PM To: Jeff Dasovich/SFO/EES@EES cc: Subject: California

Jeff-

This is a guy from South Carolina who works with a bunch of industrial customers there. At the last GridSouth meeting, he cornered Joe Connor and I and asked us about California and the price spikes there. I told him a bunch of reasons why the price spikes happened, but it appears that he wants more information.

I would appreciate it if you would call him or if you could find someone else out there in CA to give him a call. He is not super sophisticated, but he is the representative of some big clients, so I try to keep him happy. [I think he represents Michelin and Nucor steel--two huge energy users in South Carolina.]

Thank you very much.

Tom Chapman ----- Forwarded by Tom Chapman/HOU/ECT on 08/21/2000 07:16 PM -----

"Bob Knight" <bknight@brettpr.com> on 08/21/2000 12:54:30 PM To: <tom.chapman@enron.com> cc: Subject: California  
Tom

Do you have a contact in California that I can continue my questioning about the situation out there?

Bob Knight Brett Public Relations 864-239-0616 Greenville 803-765-1955 Columbia 803-608-4207 mobile

- Bob Knight.vcf

---

Message 1222 of 1299

#### EveMBA Student-To-Student Job Fair 11/27 & 11/28

|            |                                |
|------------|--------------------------------|
| Sender     | morel@haas.berkeley.edu        |
| Recipients | [eveningmba@haas.berkeley.edu] |
| File       | dasovich-j/inbox/1651.         |

#### STUDENT TO STUDENT (STS) AND HAAS ALUMNI JOB FAIR

When: 11/27 and 11/28 from 6:00 to 8:30 Where: B of A forum

If you or someone in your company has current openings that you think your peers in the Evening MBA program and Haas MBA alumni would be interested in, please plan on participating.

You can use this opportunity to earn a finders fee, if your company pays for employee referrals. The job fair will be held on both Tuesday and Wednesday nights. Ideally we would like you to participate both nights, if you can only attend one night that will be OK. If you will be in class, I will set up your table and you can come during the break and be available to answer questions. Other companies will be at their tables from 6-8:30.

There is no charge. You or your companies' representative will staff the information table, disseminate company literature along with a list of current openings and be available to answer questions about the jobs/company.

If you are interested in hosting a table, please send all inquiries to John Morel at morel@haas.berkeley.edu or give me a call (510) 642-7731. The deadline for signing up is 11/21 at 12:00 noon.

John Morel Associate Director of Career Services for Evening and Weekend MBA and MBA Alumni Ph# 510-642-7731  
Fax # 510-642-9387 morel@haas.berkeley.edu

## Message 1223 of 1299

**FW: FERC RTO Workshop the week of October 15, 2001 will be made**

|            |                                                                                                                  |
|------------|------------------------------------------------------------------------------------------------------------------|
| Sender     | bernadette.hawkins@enron.com                                                                                     |
| Recipients | [pat.radford@enron.com', 'karen.denne@enron.com', 'pr <.palmer@enron.com', 'leslie.hiltabrand@enron.com', 'ri... |
| File       | dasovich-j/inbox/505.                                                                                            |

FYI

-----Original Message-----

From: Cooney, Carolyn Sent: Monday, October 08, 2001 8:39 AM To: Hawkins, Bernadette; Prizont, Karina; Van Norden, Mike Subject: FW: FERC RTO Workshop the week of October 15, 2001 will be made available via Internet and Phone Bridge Only

-----Original Message-----

From: Capitol Connection [mailto:capcon@gmu.edu] Sent: Sunday, October 07, 2001 8:43 PM Subject: FERC RTO Workshop the week of October 15, 2001 will be made available via Internet and Phone Bridge Only

The Federal Energy Regulatory Commission (FERC) is holding a series of commissioner-led workshops (RM01-12-000) on Electricity Market Design and Structure to be held October 15 through October 19, 2001, beginning at 10:00 a.m. ET each day.

The Capitol Connection, George Mason University Television, will make available this series of FERC RTO workshops via the Internet and Phone Bridge Only. Pricing and further broadcast details on this workshop series will be available early this week on our website at [www.capitolconnection.org](http://www.capitolconnection.org) by clicking on the FERC link on the sidebar.

If you have any further questions, please contact our office at [capcon@gmu.edu](mailto:capcon@gmu.edu) or 703-993-3100.

Thank you,

The Capitol Connection George Mason University Television [capcon@gmu.edu](mailto:capcon@gmu.edu) PH: 703-993-3100 FAX: 703-993-3115 [www.capitolconnection.org](http://www.capitolconnection.org)

## Message 1224 of 1299

**Reminder and/or Invitation to Meeting and/or Conference Call RE:**

|            |                                                                                                 |
|------------|-------------------------------------------------------------------------------------------------|
| Sender     | joseph.alamo@enron.com                                                                          |
| Recipients | ['Jeff Dasovich/SFO/EES@EES', 'Marcia A Linton/HOU/EES@EES', 'Joan', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/distributed_generation/26.                                                           |

and Your Host Code is: 306218 ----- Forwarded by Joseph Alamo/SFO/EES on 03/20/2000 01:34 PM

Joseph Alamo 03/20/2000 01:34 PM To: James D Steffes/HOU/EES@EES, Robert Frank/HOU/EES@EES, Steve Montovano/DUB/EES@EES, Bruno Gaillard/SFO/EES@EES, Susan J Mara/SFO/EES@EES, Harry Kingerski/HOU/EES@EES, Tom Hoatson/HOU/EES@EES, Pamela Lesh/Enron@Gateway, Susan M Landwehr/HOU/EES@EES, Kerry Stroup/DUB/EES@EES cc: Jeff Dasovich/SFO/EES@EES, Marcia A Linton/HOU/EES@EES, Joan Stransky/Corp/Enron@ENRON Subject: Reminder and/or Invitation to Meeting and/or Conference Call RE: Utility Participation in DG Market

On behalf of Host Jeff Dasovich, please consider this reminder of a meeting & conference call on the above-referenced topic, to be held in Houston TX this Thursday, March 23rd at 10:00 AM CST/8:00 AM PST. It is currently scheduled to be held on the 47th Floor in Conference Room "47C1."

For those of you who would like to participate by telephone, the toll-free call-in information is as follows:

Dial-in Number: 800-589-6988 Participant Code: 755409

Thanks in advance for your participation. If you have any questions, please do not hesitate to contact me at 415-782-7841 or Jeff directly at 415-782.7822.

Joseph Alamo Senior Administrative Assistant SF CA Government Affairs

Message 1225 of 1299

### Daily Agenda 6-5

|            |                              |
|------------|------------------------------|
| Sender     | richard.costigan@asm.ca.gov  |
| Recipients | []                           |
| File       | dasovich-j/notes_inbox/2689. |

Daily Agenda Tuesday, June 5, 2001

Today's events... \* 11:30 a.m., SACRAMENTO Sen. Betty Karnette holds news conference to discuss efforts to keep big-rig trucks off roads that are too small to accommodate them, Capitol, room 1190. Contact: Ted Muhlhauser, 916-445-6447. \* 3 p.m., LODI Republican gubernatorial candidate William Simon meets with Lodi Police Chief Jerry Adams, 230 W. Elm Street, followed by meeting with director of Lodi Municipal Utility District at 4:15, 1331 S. Ham Lane. Contact: Jeff Flint, 916-441-3734.

In the news... \* SacBee, Weintraub: Jones offers weak challenge to Davis so far. [http://www.sacbee.com/voices/news/voices05\\_20010605.html](http://www.sacbee.com/voices/news/voices05_20010605.html) \* SacBee, Walters: Squabbling and economic uncertainties darken state budget negotiations. [http://www.capitolalert.com/news/capalert03\\_20010605.html](http://www.capitolalert.com/news/capalert03_20010605.html) \* LA Times, Ingram, Bustillo: Panel OKs subpoenas for energy companies. <http://www.latimes.com/news/state/20010605/t000046846.html> \* SF Chronicle, Salladay: Privacy measures advancing to defeat. <http://www.sfgate.com/cgi-bin/article.cgi?f=/c/a/2001/06/05/MN7201.DTL>

In committee... \* 2001-02 STATE BUDGET. Conference Committee on Senate Bill No. 75. Upon call of the Chair, room 4203. (Squawk Box 99.7)

Today on the floor... \* Assembly session at 9:00am. (Squawk Box 89.7, Assembly TV, CH. 7) \* Senate session at 10:00am. (Squawk Box 99.1, Senate TV, CH. 5)

Richard Costigan, III Chief of Staff Office of the Assembly Republican Leader California State Assembly Phone:(916) 319-2005

Message 1226 of 1299

### San Francisco's Outlook Migration

|            |                                                                                   |
|------------|-----------------------------------------------------------------------------------|
| Sender     | april.hrach@enron.com                                                             |
| Recipients | ['rob.bakondy@enron.com', 'victor.browner@enron.com', 'kelly.brodbeck@enron.com'] |
| File       | dasovich-j/deleted_items/518.                                                     |

Hey All-

Please read the following email and let me know if you have any questions.

Thanks, April Hrach Administrative Coordinator Phone: 415-782-7825 Fax: 415-782-7851 ----- Forwarded by April Hrach/SF/ECT on 07/19/2001 01:55 PM -----

Wilma Blesman/ENRON@enronXgate 07/19/2001 12:41 PM To: April Hrach/SF/ECT@ECT, Gary Bode/ENRON@enronxgate, Dalak Malik/ENRON@enronxgate, Deborah Kelly/ENRON@enronxgate, Christina

Albers/ENRON@enronXgate, Jason Chumley/ENRON@enronXgate cc: Cyndi Wulfson/ENRON@enronXgate Subject: San Francisco's Outlook Migration

April,

My plans are to visit your office the week of July 30th. We have 20 people that need to be migrated. I would like to migrate 10 people on Monday and 10 people on Tuesday. Migrations are done at night, therefore, Tuesday and Wednesday morning I will configure everyone's Outlook. The rest of the time I'll be training everyone and setting everything up to best fit people's needs.

A copy of the NA Email Retention / Policy is attached.

However, due to legal issues we are currently experiencing with the San Francisco office, this will not go into affect yet. We will not purge anyone's Lotus Notes mailboxes. Notes will be available to you for referencing.

Only 30 days worth of information will be transferred from Notes to Outlook. Once on Outlook, we will still hold off on purging. Nevertheless, when the legal issues clear, we will reinforce our policy.

Thank you for your time,

Wilma Bleshman Enron Networks 713-853-1562

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Message 1227 of 1299

#### Who To See For Izio Infopier Support

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | owner-eveningmba@haas.berkeley.edu                                                                                 |
| Recipients | ['ugstaff@haas.berkeley.edu', 'eveningmba@haas.berkeley.edu', 'mba01@haas.berkeley.edu', 'evstaff@haas.berkele...] |
| File       | dasovich-j/notes_inbox/5341.                                                                                       |

Many of you are using Izio Infopier, the learning management software used in a pilot we are conducting this semester.? As with any pilot study, we are in a "discovery" phase and we will encounter bugs and process issues that require correction.? For example, regarding accounts or access to courses, some persons may still have some related issues to resolve.? Because of this, some problem routing bottlenecks have occurred, which have introduced delays in service in resolving those problems.? HCS wants to ensure the fastest response possible for you, our customers.

Here are your (most efficient) support options:

- 1) FOR FASTEST SERVICE AND ACCESS TO THE FIRST-AVAILABLE PERSON, CONTACT THE HCS HELP DESK (510) 642-0434, <mailto:helpdesk@haas.berkeley.edu>, or at <https://helpdesk.haas.berkeley.edu>.
- 2) SEE YOUR GRADUATE STUDENT INSTRUCTOR OR TEACHING ASSISTANT FOR THE COURSE.
- 3) SEE PHIL MAHONEY, KRISTINA VERA, PAZ MELENDEZ, OR JESSE PARAISO IN THE STUDENT COMPUTING GROUP, S300A, S300B, S300S.

Haas Computing Services appreciates your participation, cooperation, and patience in this pilot of Izio.? We are working with you and with the Izio application service provider to resolve issues and to continually improve both the product and the user experience as we move forward.

Best, Zane

---

Zane Cooper Chief Technology Officer and Director of Computing and Information Services Walter A. Haas School of Business U. C. Berkeley (510) 642-4436???????? (510) 642-4769 FAX

---

## Message 1228 of 1299

**FW: Conference Call re: California's PUC's Decision to Suspend DA**

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                             |
| Recipients | ['Sharon', 'Jeff; Dick', 'jblachma@enron.com'; Dasovich', 'd..steffes@enron.com', 'harry.kingerski@enron.com', ...] |
| File       | dasovich-j/sent_items/247.                                                                                          |

FYI: On the call today with Jeremy Blachman & Co. today, we decided to the do the following:

Sue will make sure that EES legal (Mike Smith) reviews ARMs petition to modify the Commission's order suspending DA. Sue will send Jeremy a one-page summary of the petition and Jeremy will use it to solicit participation from Enron customers (i.e., see if any are willing to sign the petition). Jeff will work with Karen Denne to start drafting a couple of one-page letters that customers would sign and send to Legislators in the event Davis is successful in calling them back in October to work on energy matters.

Let us know if you have any questions.

Best, Jeff -----Original Message----- From: Alamo, Joseph Sent: Monday, September 24, 2001 12:36 PM To: 'aschwarz@enron.com'; 'lfrazier@enron.com'; 'david\_cox@enron.net'; 'gmuench@enron.com'; 'mmann@enron.com'; Shapiro, Richard; Mara, Susan Cc: 'jblachma@enron.com'; Dasovich, Jeff; Dick, Sharon Subject: Conference Call re: California's PUC's Decision to Suspend DA Importance: High

Please be advised that you are cordially invited to participate in a conference call on the above-referenced topic, as noted below:

Date: TODAY, Monday September 24 Call Time: 1:30 PM PDT/3:30 CDT Call-in: (800) 998-2462 Passcode: 5558930

Please note: if any technical difficulties during call, dial \*0 for operator assistance.

Joseph Alamo Sr. Administrative Assistant Global Government Affairs ph. (415) 782-7841 fax (415) 782-7854 e-mail: joseph.alamo@enron.com

## Message 1229 of 1299

**PG&E: 3d Qtr. OFO Report**

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | frl3@pge.com                                                                                                       |
| Recipients | ['alan_reid@pancanadian.ca', 'd2mr@pge.com', 'agoldberg@lgl.twc.com', 'abb@eslawfirm.com', 'rrs5@pge.com', 'bc...] |
| File       | dasovich-j/notes_inbox/1279.                                                                                       |

Gas OII/OFO Settlement Parties:

Attached please find PG&E's OFO Report for the Third Quarter 2000. This is provided to you in accordance with the Operational Flow Order ("OFO") Settlement Agreement between PG&E and many other parties, filed in the CPUC's Gas Strategy OII 99-07-003, and approved by the CPUC by Decision 00-02-050. Section C.1.f. of that Agreement requires PG&E to prepare a Quarterly OFO Report concerning the number and causes of OFO events within the prior three months.

The attachments consist of the Report (in Word) and two Appendices (in Excel). Should you have any trouble opening either document, please contact my secretary, Darcy Morrison, at telephone (415) 973-6644, or e-mail her at D2Mr@pge.com.

At the OFO Forum on August 29, 2000, the parties decided not to hold another Forum meeting to discuss this Third Quarter 2000 OFO Report, unless there were other significant developments. Based on the results shown in the attached Report, we see no current need for an OFO Forum meeting in the near term. We suggest evaluating the events of the final



quarter of 2000 to determine whether or not to hold a Forum meeting in early 2001.

If you have any questions on this report, please call Rich Hall at (415) 972-5115.

Frank Lindh Attorney Pacific Gas and Electric Company 415-973-2776 frl3@pge.com

Attachments

<<OFO Report 3rd QTR.doc>> <<3QTR 2000 - Appdx A.xls>> <<Appdx B 3rd Qtr 2000 Report win 95.xls>>

- OFO Report 3rd QTR.doc - 3QTR 2000 - Appdx A.xls - Appdx B 3rd Qtr 2000 Report win 95.xls

Message 1230 of 1299

## Re: May California Journal Ad

|            |                                                                                                            |
|------------|------------------------------------------------------------------------------------------------------------|
| Sender     | andybrwn@earthlink.net                                                                                     |
| Recipients | ['cabaker@duke-energy.com', 'jmunoz@mcnallytemple.com', 'abb@eslawfirm.com', 'rescalante@riobravo-gm.com'] |
| File       | dasovich-j/notes_inbox/4539.                                                                               |

suggest you note that rainfall is off in CA and elsewhere in the west ...? =20 idea is to push regional nature of the power market & fact that drought in= =20 West will lead to no imports ...=20

Jean Munoz wrote: Below is copy for May's California Journal Ad.? We are=20 currently working on graphics.=20

Please respond with comments and suggested changes no later than 10am Frida= y=20 morning to ensure that we meet our deadline.=20

Thanks,=20 Jean=20

--=20 Jean Munoz=20 McNally Temple Associates, Inc.=20 916-447-8186=20 916-447-6326 (fx)=20

You Have the Power=20

?? California is facing a serious shortage of electricity this summer.=20

?? No major power plants have been built in California for ten years. This= =20 year?s below-normal rainfall threatens hydroelectric supplies. And as=20 temperatures climb, so does demand.=20

?? We?re doing all we can to help. We?re working 24/7 to keep our power=20 plants running and speed construction of new facilities.=20

?? You can help by conserving electricity at home and work, and by urging= =20 your neighbors to do the same. You have the power to make a difference =01.= just=20 by flipping a switch.=20

?? We?re all in this together. We?re all part of the solution.=20

[Graphic:? a finger flipping the switch off]=20 ?=20

To learn more about ending California?s energy crisis, call 916-448-9499=20 and ask for a free copy of our report "Powerful Ideas." Or visit our web si= te=20 at www.turnonthetruth.com.=20 ?--=20 Andrew Brown=20 Sacramento, CA=20 andybrwn@earthlink.net=20 ?

Message 1231 of 1299

**Holiday Contact Numbers For Your Reference**

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | wanda.curry@enron.com                                                          |
| Recipients | [evan.hughes@enron.com', 'scott.stoness@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/7927.                                                 |

The attachment

----- Forwarded by Wanda Curry/HOU/EES on 12/22/2000 09:32

AM -----

Wanda Curry 12/22/2000 09:32 AM

To: Jeff Dasovich/NA/Enron@Enron cc: Scott Stoness/HOU/EES@EES, Evan Hughes/HOU/EES@EES Subject: Holiday Contact Numbers For Your Reference

Attached is the EES contact list for next week. I will be calling in for the meeting next week, but Scott Stoness and Evan Hughes will be facilitating the meeting for me. Should the time of the call conflict with your need to prepare or attend the CPUC meetings next week, please call Evan Hughes (713-345-3311). Evan will be in the office all next week.

I am also trying to collect the contact numbers for Rick Buy, Mark Palmer and Mark Koenig and will forward them to you in a separate notice.

Thanks, Wanda Curry ----- Forwarded by Wanda Curry/HOU/EES on 12/22/2000 09:28 AM

-----

Enron Energy Services

From: Carol Moffett 12/20/2000 03:43 PM Phone No: 713-853-6658 Phone 888-782-3518 Pager EB 810a

To: Sunde Direct Reports, Karen Owens/HOU/EES@EES, Judy G Smith/HOU/EES@EES, Vivian B Metzger/HOU/EES@EES, Anita Llamas-Granado/HOU/EES@EES cc: Direct Reports' Assistants, Esmeralda Hinojosa/HOU/EES@EES Subject: Holiday Contact Numbers For Your Reference

Attached for your reference (and use if an emergency arises) is a report with the contact phone numbers for:

Marty's direct report team and assistants; Risk Management's direct report team and assistants' Dan's direct report team and assistants; G9 and assistants.

Thanks to Esmeralda for putting this information together for us.

Message 1232 of 1299

**Financial Times**

|            |                                                           |
|------------|-----------------------------------------------------------|
| Sender     | allison@haas.berkeley.edu                                 |
| Recipients | [e201b-2@haas.berkeley.edu', 'e201b-1@haas.berkeley.edu'] |
| File       | dasovich-j/all_documents/204.                             |

Hi all,

I hope the Financial Times has been working with you to get the paper delivered to you. For those of you who are still having trouble, I have arranged for 20 papers a day to come to the Evening MBA Program office as a work-around for the rest of the term. We will keep a few days worth as space allows.

Please follow a couple of ground rules so that this will work for everyone: \*Please be considerate and only take a paper if you are sure that you did not receive one at home. Do not take one just because you left yours at home. If you want to

review the paper at Haas before class, please use the Web or the Long Library copies. \*In the event of a delivery problem, please call or e-mail the Financial Times (see below), unless they have just told you that they cannot get the paper to you. In this case, ask FT to mail the paper to you instead of reluctantly trying to get a carrier to go to your house. \*Be patient if you come to the office and we have run out of papers. We will try to increase the number of back-ups if necessary. \*When you come to the office to pick up a paper we will have a list for you to record the missed delivery. Please help us to track the problems.

We received our first papers today and have last Friday's as well.

For contacting the Financial Times in the event of problems or address changes, please ask for Gayle at: FT Education [fteducation@etcddata.com] or (800) 628-8088.

I hope this is helpful to those of you who have had severe problems with the paper.

Have a great SHORT week and a happy Thanksgiving.

-Shawn

---

Shawn Allison, Associate Director Evening MBA Program, Haas School of Business University of California, Berkeley Tel (510) 643-0435 Fax (510) 643-5902

---

Message 1233 of 1299

### Re: Global Photon Systems, Inc.

|            |                                                        |
|------------|--------------------------------------------------------|
| Sender     | ethan.schultz@enron.com                                |
| Recipients | ['brian.spector@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/600.                          |

Brian/Jeff

I reviewed the articles on Global Photon for more detail, and found references to the following contracts:

6/7/00 \$100 million contract with Alcatel to build a fully integrated submarine and terrestrial Dense Wavelength Division Multiplexing network in California (a 2000 km network called the Global West Network)

4/19/99 Tyco International Ltd.'s Tyco Submarine Systems Ltd. unit signed a \$93 million supply contract for Global West, a five segment fiber optic undersea cable system that will connect major cities along the California coast. TYC said an operations, administration and maintenance contract will bring another \$50 million, and two optional segments could increase the value by an add'l \$25 million

The permits obtained to begin the project are referenced in a press release on the company website. There is no other supporting evidence of these contracts or any other, nor further mention of Global Photon's Global West Network project.

--ES

Ethan Schultz Analyst Enron Broadband Services - Bandwidth Origination 713-853-4373 713-646-8795 (Fax)  
713-582-0637 (Cellular)

Brian Spector 06/20/00 12:03 AM

To: Ethan Schultz/Enron Communications, Jeff Dasovich/SFO/EES@EES cc: Subject: Re: Global Photon Systems, Inc.

Ethan,

Thanks for the research. My cursory review of the articles turned up one interesting fact: they claim that GP has signed a \$100 mm contract with Alcatel - a euro telecom company. Please: Re-review the articles to see if that is correct and any other contracts you can find. Try to double check the press releases by looking at alcatel's published financials if any.

This is a pretty low priority thing. Try to have it done by Friday afternoon.

Thanks,

Brian

PS: How is it going with Matt J?

Message 1234 of 1299

### Nevada Governor To Decide On Deregulation By Next Week

|            |                                                                                           |
|------------|-------------------------------------------------------------------------------------------|
| Sender     | miyung.buster@enron.com                                                                   |
| Recipients | ['steven.kean@enron.com', 'nicholas.o'day@enron.com', 'filuntz@aol.com', 'liz@luntz.com'] |
| File       | dasovich-j/all_documents/1724.                                                            |

Dow Jones Energy Service Nevada Governor To Decide On Deregulation By Next Week ? 09/25/2000 Dow Jones Energy Service (Copyright (c) 2000, Dow Jones&Company, Inc.)

LOS ANGELES -(Dow Jones)- Nevada governor Kenny Guinn will decide by early next week on whether to implement electricity deregulation by November, as recommended by the state's Public Utilities Commission, a spokesman for the governor said Monday.

Deregulation was set to become law March 1, 2000, but was stalled due to a lawsuit brought by Sierra Pacific Resources (SRP) Co. unit Nevada power that challenged deregulation as unconstitutional. Nevada Power withdrew the lawsuit after the state approved a \$110 million rate increase for the utility's customers.

Guinn's spokesman would not say why the governor was considering a delay in deregulation.

"All those details will be discussed when the decision is announced," said spokesman Jack Finn.

The PUC's proposed deregulation schedule calls for competition to begin with large commercial customers on Nov. 1, 2000, followed by medium commercial customers April 1, 2001, and residential customers Sept. 1, 2001.

By Jessica Berthold, Dow Jones Newswires; 323-658-3872;jessica.berthold@dowjones.com

Folder Name: Utilities, Electric: Deregulation Relevance Score on Scale of 100:

97 \_\_\_\_\_ To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 1235 of 1299

### California: A midcourse assessment of the campaign "conf. call"

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | ginger.dernehl@enron.com                                                                                            |
| Recipients | ['susan.mara@enron.com', 'jeff.dasovich@enron.com', 'lora.sullivan@enron.com', 'mark.palmer@enron.com', 'cindy...'] |
| File       | dasovich-j/notes_inbox/4805.                                                                                        |

The above referenced call has been scheduled as follows, please mark your calendars:

Date: Thursday, March 22

Time: 11:00am - 12:30pm (CST)

Number: 1-800-283-1805

Location: The War Room (EB4701)

The agenda for the call will be as follows:

1) The Strategy of the campaign ...so far 2)Where we're winning?? 3) Where we're losing 4) What we're doing right 5) What we're doing wrong 6) What we're not doing 7) Where we go from here

Lora - Please have Tom Briggs participate on behalf of Linda. Thanks

gngr 713-853-7751 ----- Forwarded by Ginger Dernehl/NA/Enron on 03/21/2001 11:14 AM -----

Ginger Dernehl 03/20/2001 03:01 PM

To: Jeff Dasovich/NA/Enron@Enron, Susan J Mara/NA/Enron@ENRON, Mark Palmer/Corp/Enron@ENRON, Linda Robertson/NA/Enron@ENRON, Paul Kaufman/PDX/ECT@ECT, Steven J Kean/NA/Enron@Enron, James D Steffes/NA/Enron@Enron, Janel Guerrero/Corp/Enron@Enron cc: Joseph Alamo/NA/Enron@Enron, Cindy Derecskey/Corp/Enron@Enron, Lora Sullivan/Corp/Enron@ENRON, Lysa Akin/PDX/ECT@ECT, Maureen McVicker/NA/Enron@Enron, Marcia A Linton/NA/Enron@Enron, Linda J Noske/HOU/ECT@ECT Subject: Conf. Call re: California

Rick would like to schedule a 90 minute conference call regarding "California: A midcourse assessment of the campaign". Please respond "ASAP" which dates/times listed below will work best with your schedules.

Thursday, March 22 11:00am-12:30pm (CST)

Friday, March 23 10:30am - 12:00pm (CST) 12:00pm - 1:30pm (CST) 3:30pm - 5:00pm (CST)

gngr 713-853-7751

---

Message 1236 of 1299

#### GA II Feb. 7 Meeting: Resent

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | frl3@pge.com                                                                                                      |
| Recipients | ['d2mr@pge.com', 'aamirali@caiso.com', 'alex.sugaoka@uaecorp.com', 'rdw0@pge.com', 'gjb2@pge.com', 'adonnely@...] |
| File       | dasovich-j/all_documents/8723.                                                                                    |

CONFIDENTIAL SETTLEMENT DOCUMENT PER CPUC RULE 51

All Parties -

We are re-sending this message from yesterday, regarding the February 7 meeting. I apparently did something wrong with the addressing, and many of the messages were "returned to sender."

I am re-sending it, just to be sure that everyone receives notice of the February 7 meeting.

Thank you.

Frank Lindh Pacific Gas and Electric Company (415) 973-2776

CONFIDENTIAL SETTLEMENT DOCUMENT PER CPUC RULE 51

INTERESTED PARTIES:

Based on discussions with a number of parties, we have determined that there is general support for a one-day informational Gas Accord II Workshop on Wednesday, February 7, 2001.

Accordingly, PG&E will host an informational meeting on February 7, in San Francisco. We have shortened the workshop, from two days to one very full day, and will focus on the major issues and proposals. Attached is our suggested agenda with topics listed by their associated section in our December 2000 comprehensive Settlement Proposal.

The February 7 Workshop will start at 9:00 a.m. and end around 5:00 p.m. We will be meeting at PG&E headquarters, in Conference Room 300, 77 Beale Street, San Francisco. We will not be providing lunch at this workshop due to spending restrictions. However, we hope to provide coffee and water.

At this point, we also would request that all parties to reserve February 21 and 22, 2001, on their calendars, for the next workshop and feedback discussion on PG&E's December 2000 Settlement Proposal.

We look forward to meeting with those of you who can attend on February 7. Also, we continue to be available at any Party's request to meet individually to go over the December Settlement Proposal in detail. Please feel free to contact either of us, and we can make the necessary arrangements.

Frank Lindh Ray Williams 415-973-2776 415-973-3634 frl3@pge.com rdw0@pge.com

<<Agenda 2-7-01 GA II Workshop.doc>>

- Agenda 2-7-01 GA II Workshop.doc

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Message 1237 of 1299

**RE: Proposal AREM response to UDC Joint Filing - Implementation o f**

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | jsmollon@newwestenergy.com                                                                                         |
| Recipients | ['rschlanert@electric.com', 'jsmollon@newwestenergy.com', 'arem@electric.com', 'douglass@energyattorney.com; J...] |
| File       | dasovich-j/deleted_items/2092.                                                                                     |

how about 4:00 p.m. conference call?

-----Original Message-----

From: Rebecca Schlanert [mailto:RSchlanert@electric.com] Sent: Tuesday, November 27, 2001 2:33 PM To: 'jsmollon@newwestenergy.com'; arem@electric.com Cc: douglass@energyattorney.com; Jeff.Dasovich@enron.com Subject: RE: Proposal AREM response to UDC Joint Filing - Implementation o f Su spension DA

I would be open to this as well.

Rebecca

-----Original Message----- From: jsmollon@newwestenergy.com [SMTP:jsmollon@newwestenergy.com] Sent: Tuesday, November 27, 2001 11:21 AM To: arem@electric.com Cc: douglass@energyattorney.com; Jeff.Dasovich@enron.com Subject: Proposal AREM response to UDC Joint Filing - Implementation of Su spension DA I have had an opportunity to talk to most of you regarding the attached proposal. I apologize I ran out of time yesterday and didn't catch everyone. NWE would like to propose a slightly different take on our AREM filing having had a chance to think more about it. I wanted to run it by everyone to get your thoughts before submitting a redline. If you feel this warrants a conference call I will gladly set one up for today. Time is of the essence and would appreciate your feedback as soon as possible. If we all agree, I would like to get the re-write with everyone's blessing to Dan by tomorrow at 8:00 am. or sooner. <<arm-puc-plan.doc>> Proposal Benefits 1. We look more reasonable and agree to much of what UDCs are proposing. 2. Accommodates most, if not all, of ESP and customer concerns. 3. Strong argument for avoiding any contract review. Our verification proposal could backfire; PUC could accept our approach, but add details which goes toward ESPs submitting contracts to the PUC for review and validation Thank you, Janie Mollon Manager, Legislative and Regulatory Affairs Office: 602-629-7758 FAX: 602-629-7772 Mobile: 602-625-3892 << File: arm-puc-plan.doc >>

Message 1238 of 1299

**Important Notice - Inter-SC Trades with Adjustment Bid Update**

|                   |                                                                                                                    |
|-------------------|--------------------------------------------------------------------------------------------------------------------|
| <b>Sender</b>     | cleo_center@calpx.com                                                                                              |
| <b>Recipients</b> | ['_product_development@calpx.com', 'market_participant_cd2@calpx.com', 'dean_t_isa@calpx.com', 'market_partici...] |
| <b>File</b>       | dasovich-j/all_documents/1525.                                                                                     |

**Trade Application**

The final version of the trade application for the launch of State 6.7 will be posted behind the Participants only section in the folder entitled "Inter-SC Trades" on Monday, September 18th. We anticipate this will be the final version of the trade application prior to launch. We will send a market message when the trade application is ready for download.

**Market Simulation**

This is our final week of market simulation. As of late Friday afternoon, we had not been given any information regarding additional testing with the ISO direct, however they have made the emmunlator available to us to turn schedules around.

NOTE: If you have not taken the opportunity to test your systems against the trade application during previous market simulation days, we encourage you to test with the trade application being posted today sometime this week.

**Inter-SC Resource**

All Inter-SC Resources must be entered into PowerBase prior to 5:00 PM on Friday, September 22, 2000. Please forward all requests for resources to Steven Sweet at stsweet@calpx.com prior to Friday. Steven can be reached at (626) 537-3264.

**DATA FREEZE**

In preparation for the launch of Stage 6.7, there will be a data freeze effective September 24th through October 11th. To ensure the stability of our system, we will not be able to effect any changes to your resources during that time. If you have any questions regarding the freeze, you can contact me at (626) 537-3263.

**Conference Call**

We will have a conference call on Wednesday, September 27, 2000 to discuss launch status and to review the changeover schedule for the new environment. Call information is as follows:

Date: Wednesday, September 27, 2000

Time: 1:00 PM

Duration: 1/2 hour

Phone #: (888) 452-9851

Passcode: Release 6.7

Leader: Cleo Center

Materials for the call will be forwarded to you for your review prior to the call.

We look forward to your participation and to a smooth and successful launch.

We appreciate your continued support.

Thank you.



Message 1239 of 1299

**Governor Davis Announces Principles of Agreement with SCE**

|            |                                                                                |
|------------|--------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                        |
| Recipients | [angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/sent/3367.                                                          |

----- Forwarded by Jeff Dasovich/NA/Enron on 02/23/2001 04:53 PM -----

Jean Munoz &lt;jmunoz@mcnallytemple.com&gt; 02/23/2001 04:18 PM

To: IEP &lt;jmunoz@mcnallytemple.com&gt; cc: Subject: Governor Davis Announces Principles of Agreement with SCE

Jan will be responding to the attached remarks by Governor Davis during the IEP press call at 3:00 PST. Call in # is 1-800-374-2393, Pass code: Independent Energy Producers.

Thanks, Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

PR01:065 FOR IMMEDIATE RELEASE 02/23/2001 02:05 PM

GOVERNOR DAVIS ANNOUNCES PRINCIPLES OF AGREEMENT WITH SOUTHERN CALIFORNIA EDISON  
LOS ANGELES

Governor Gray Davis today announced an agreement in principle with Southern California Edison to keep the utility solvent.

"This is the framework of a good, balanced deal," said Governor Davis. "It's not a final deal. There's a lot of work to be done. But we're making progress.

"This is a complex transaction with a lot of moving parts. With these terms in place, I'm confident we'll be able to hammer out a final agreement shortly."

The State has agreed to purchase the utility's transmission lines for an estimated \$2.76 billion (2.3 times estimated book value) and allow Edison to issue bonds for a substantial portion of its undercollection.

In exchange, Southern California Edison has agreed to:

- \* Make payments from its parent company, Edison International, to the utility of approximately \$420 million; \*
- Commit the entire output of the parent company's Sunrise Mission power project at low "cost-based" rates for 10 years (a value to ratepayers of \$500 million over the next two years); \*
- Provide cost-based rates from the generating facilities they own for another 10 years; \*
- Conservation easements on 20,000 acres of watershed lands for 99 years; and \*
- Drop their pending litigation against the Public Utilities Commission that would have resulted in immediate higher electric rates for consumers if they had prevailed in court.

Negotiations will continue during the next several days with the utility.

###

Message 1240 of 1299

**E291B-1 Speaking for Management**

|            |                                                                                      |
|------------|--------------------------------------------------------------------------------------|
| Sender     | tj@haas.berkeley.edu                                                                 |
| Recipients | [cummins@haas.berkeley.edu', 'sonnen@haas.berkeley.edu', 'brodie@haas.berkeley.edu'] |
| File       | dasovich-j/notes_inbox/5737.                                                         |

Hi,

This is from Bill Sonnenschein, the instructor for E291B-1 Speaking for Management.

Hello all.

And welcome in advance.

I want to pass on some information to you to prepare you for the first class session. Class will meet on February 3 & 24, 2001, from 9:00 a.m. to 6:00 p.m. The time is very short for a speech course. I am asking you to prepare a little before the first session, to assure you get as much as you can out of the course.

Please come to the first day of class with a prepared persuasive speech (a speech that moves the audience to action). The speech should be three to five minutes in length, and on a topic you feel very strongly about. I do not care if the topic concerns business. It could be political, social, moral, or even spiritual. The most important thing is that you believe strongly in the message. Leaders must learn to speak "from the heart." The focus of the course will be on speaking in a business context, but it is important to speak with feeling first, and learn to transfer that skill to a business context. I do not care if you write the speech out, or create an outline and rehearse giving the speech extemporaneously. The idea is to be prepared. I will talk about delivering from a manuscript as well as the advantages of extemporaneous speaking as part of one lecture.

You may also want to buy a blank video tape. You will not need it till the second Saturday, and even then using it will be optional. Videotaping speeches is an excellent learning tool, but can be counter-productive if students get too nervous doing it. I never use tape the first class session, and you choose if you want to be taped the second session.

If you have any questions, please feel free to call me at 510-336-1239, or e-mail me at [sonnen@haas.berkeley.edu](mailto:sonnen@haas.berkeley.edu).

Thanks. I am looking forward to working with you.

Bill

---

William Sonnenschein Communications Group Faculty Haas School of Business University of California, Berkeley  
510-643-8005 (Office) or 510-336-1239 (Home)

---

*Message 1241 of 1299*

## RE: Pac Tel - CPUC Customer Switch Complaint

|            |                                                                          |
|------------|--------------------------------------------------------------------------|
| Sender     | <a href="mailto:jeff.dasovich@enron.com">jeff.dasovich@enron.com</a>     |
| Recipients | [ <a href="mailto:geoff.pollard@enron.com">geoff.pollard@enron.com</a> ] |
| File       | <a href="#">dasovich-j/sent_items/2305</a> .                             |

Thanks very much.

-----Original Message-----

From: Pollard, Geoff Sent: Monday, November 26, 2001 12:02 PM To: Dasovich, Jeff; Frazier, Lamar; Steffes, James D.  
Cc: Mara, Susan; Smith, Mike B; Huddleson, Diann; Hughes, Evan; Fite, Rebecca; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

Yes, I will keep you all posted. I placed a call to the customer at 7:30 this morning, but have not heard back from them yet.

Geoff

-----Original Message-----

From: Jeff Dasovich/ENRON@enronXgate@ENRON@EES Sent: Monday, November 26, 2001 10:00 AM To: Frazier,Lamar; James D Steffes/ENRON@enronXgate; Pollard, Geoff Cc: Susan J Mara/ENRON@enronXgate; Smith,Mike B; Huddleson,Diann; Evan Hughes/ENRON@enronxgate; Rebecca Fite/ENRON@enronxgate; Riley, Tom Subject: RE: Pac Tel - CPUC Customer Switch Complaint

Thanks, Lamar. Geoff, could you let us know how it goes with the customer and if this a mix-up on the customer's end. Thanks very much.

Best, Jeff

-----Original Message-----

From: Frazier, Lamar Sent: Monday, November 26, 2001 9:32 AM To: Steffes, James D.; Pollard, Geoff Cc: Dasovich, Jeff; Mara, Susan; Smith, Mike B; Huddleson, Diann; Hughes, Evan; Fite, Rebecca; Riley, Tom Subject: Re: Pac Tel - CPUC Customer Switch Complaint

Geoff Pollard is the SM for Pac Tel.

From: James D Steffes/ENRON@enronXgate on 11/21/2001 04:01 PM To: Lamar Frazier/HOU/EES@EES cc: Jeff Dasovich/ENRON@enronXgate, Susan J Mara/ENRON@enronXgate, Mike B Smith/ENRON@enronXgate, Diann Huddleson/HOU/EES@EES, Evan Hughes/ENRON@enronxgate, Rebecca Fite/ENRON@enronxgate Subject: Pac Tel - CPUC Customer Switch Complaint

I received a call late today from the CPUC (Joyce @ 415-703-2199). Someone from Pac Tel called and said that his service was switched without authorization - Mike Benson with Payphone group @707-253-8892 or 707-292-1766.

Lamar -- who is the client rep for Pac Tel? Can they get into Pac Tel and try and find out if we have done something inappropriate? We need to call this guy back by Monday EOB. Please let Jeff Dasovich know so he can call Joyce back - I'll be out on vacation next week.

Jim

Message 1242 of 1299

## Re: Electronic Copy of Bios of EBS Management

|            |                             |
|------------|-----------------------------|
| Sender     | tracy.mclaughlin@enron.com  |
| Recipients | ['jeff.dasovich@enron.com'] |
| File       | dasovich-j/eci/41.          |

Here you go!

Tracy J. McLaughlin Enron Broadband Services Government Affairs Coordinator (503) 886-0396

----- Forwarded by Tracy McLaughlin/Enron Communications on 05/02/00 10:34 AM

Kris Caldwell 05/02/00 10:20 AM

To: Tracy McLaughlin/Enron Communications@Enron Communications cc: Subject: Re: Electronic Copy of Bios of EBS Management

Tracy,

I'm doing just swell thank you. I'm attaching the most recent list that I have.....of course, this is always to be viewed as a living document since things change so quickly in terms of personnel here. Don't know that they need every single name on the attached list, so feel free to cut and paste as needed. thks,

Kris Caldwell Enron Communications, Inc. Public Relations Manager (503) 886-0269

Tracy McLaughlin 05/02/00 09:12 AM

To: Kris Caldwell/Enron Communications@Enron Communications cc: Subject: Electronic Copy of Bios of EBS Management

Hey KC

What's up? How are you today? Kris, can u help me out with this bio question -- do we have them in a database? Or do you have the readily available version? If so, would you mind terribly forwarding to me and/or Jeff Dasovich at the address below -- I know that we have the hard copy available and where to get that, but I don't know where the e version is. thanks KC

T.:)

Tracy J. McLaughlin Enron Broadband Services Government Affairs Coordinator (503) 886-0396

----- Forwarded by Tracy McLaughlin/Enron Communications on 05/02/00 09:14 AM

Jeff Dasovich@EES 05/01/00 04:44 PM

To: Tracy McLaughlin/Enron Communications@Enron Communications, Sue Nord/HOU/EES@EES, Scott\_Bolton@enron.net @ ENRON cc: Subject: Electronic Copy of Bios of EBS Management

Tracy:

My apologies, but I don't seem to have the final, electronic version of the bios of EBS management that we included in the California filing (Scott did the last version to ensure accuracy--the filed version reads "As of March 1, 2000.") Ms Nord needs an electronic copy. Might you have one that you could pass along to her (and to me)? As always, many thanks.

Jeff

Message 1243 of 1299

### California PUC Orders

|            |                                                                                                          |
|------------|----------------------------------------------------------------------------------------------------------|
| Sender     | eric.letke@enron.com                                                                                     |
| Recipients | ['harry.kingerski@enron.com', 'scott.gahn@enron.com', 'greg.sharp@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/notes_inbox/4643.                                                                             |

Is there any language that tells us that the surcharges are not applicable to future DA customers? Obviously it should not since they would be paying for generation twice but the other surcharge did apply. Please let me know ASAP.

----- Forwarded by Eric Letke/DUB/EES on 03/29/2001 07:17 PM

From: Harry Kingerski@ENRON on 03/28/2001 03:41 PM To: Vicki Sharp/HOU/EES@EES, Mike D Smith/HOU/EES@EES, Don Black/HOU/EES@EES, James W Lewis/HOU/EES@EES, Scott Stoness/HOU/EES@EES, Eric Letke/DUB/EES@EES, Scott Gahn/HOU/EES@EES, Janet R Dietrich/HOU/EES@EES, Tamara Johnson/HOU/EES@EES cc: James D Steffes/NA/Enron@Enron, Jennifer Thome/NA/Enron@Enron Subject: California PUC Orders

Orders the CPUC voted out yesterday:

1) March 27 decision on California Procurement Adjustment:

- CPUC01-#93704-v1-D0103081\_A0011038\_et\_al\_.doc This tells the utilities to start paying DWR an amount per kwh equal to the utilities' average cost of generation for all power provided by DWR, and asks for additional comment on how the California Procurement Adjustment is calculated.

2) March 27 decision on rate increase is not yet available but is largely unchanged from proposed decision:

[http://www.cpuc.ca.gov/cyberdocs/tcquickstart.asp?DOC\\_ID=93630&docType=LEGAL\\_P](http://www.cpuc.ca.gov/cyberdocs/tcquickstart.asp?DOC_ID=93630&docType=LEGAL_P) ROCEED This is the order that allows the rate increase to take effect.

3) March 27 decision on rate design is not yet available but also is not likely to change from proposed decision:

[http://www.cpuc.ca.gov/cyberdocs/tcquickstart.asp?DOC\\_ID=93589&docType=LEGAL\\_P](http://www.cpuc.ca.gov/cyberdocs/tcquickstart.asp?DOC_ID=93589&docType=LEGAL_P) ROCEED This is the order that says the rate increase will not be a uniform across the board increase, but rather will achieve conservation and equity goals.

Regarding the rate increase of 3 cents, it is effective yesterday but the Commission did not describe exactly how it will be implemented. For example, they could a) allow a 3 cent surcharge until the rate design phase is complete, and then switch over to the new rate design around, say, May 15; or b) allow a 3 cent surcharge to be billed and then retroactively adjust the billing based on the new rate design, once it is known.

---

Message 1244 of 1299

## RE: Auction of Default Supplier Obligation

|            |                                                     |
|------------|-----------------------------------------------------|
| Sender     | james.steffes@enron.com                             |
| Recipients | ['steve.kean@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/all_documents/1984.                      |

Jeff --

Can you try and call Seabron today to discuss. See if his understanding helps with California issues.

Jim

----- Forwarded by James D Steffes/NA/Enron on 10/02/2000 02:49 PM -----

"Seabron Adamson" <seabron.adamson@frontier-economics.com> 10/02/2000 09:43 AM

To: <James.D.Steffes@enron.com> cc: Subject: RE: Auction of Default Supplier Obligation

Jim:

*Have you ever seen a model for a bid process like this? Any auctions (in any commodity) that would work? We are trying to get back to key policy makers mid-day on Monday.*

Yes, there are numerous default service auction models in operation or proposed, both in electricity and other utilities. The government of New South Wales in Australia is implementing a model similar to this. In Georgia, I think they recently had an auction to serve customers served by a gas retailer that went bust. Similar mechanisms have been used for years in the telecoms business for serving specific client bases, such as rural customers. Examples have been in Chile, and even in the U.S. (auctions for "universal service obligations").

We proposed a model for "third-party" default service standard supply for Ontario (working for Aleck Dadson of Enron Canada). This allowed the standard supply provider to meet its obligation by competitive means, including holding an auction. The idea was to provide customers hedging in a framework that allowed for competition in default service.

Let me know if you want a briefing or further info. I'll be in the office until 4:00 or so (I'm then heading to the airport for Portland). My office number is (617) 354-0060, or (617) 513-5904 (mobile).

Seab

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (617) 354-0060 and permanently delete the original and any copy of any e-mail and any printout thereof.

## Message 1245 of 1299

## Re: Q2 for Patten Case

|            |                                                                                             |
|------------|---------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                     |
| Recipients | ['jjackson@haas.berkeley.edu', 'kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu'] |
| File       | dasovich-j/sent/307.                                                                        |

No, I don't think I'd make a better accountant. But I did ask a few questions of my accountant brother-in-law. You did a great job. I don't know how much time I'll have, but I'll see if I can throw in a bit of text and raise the issues. See you tonite.

Kimberly Kupiecki <kkupiecki@arpartners.com> on 09/18/2000 09:53:30 AM To: jdasovic@enron.com cc: dwindham@uclink4.berkeley.edu, jjackson@haas.berkeley.edu, jcjal02@aol.com Subject: Re: Q2 for Patten Case

Hi Jeff,

I guess you would make a better accountant than me. Your analysis sounds right. Feel free to make changes as fit.

My apologies for missing out on these items.

At 06:18 PM 9/17/00, jdasovic@enron.com wrote:

*Hey, nice spreadsheet. Two minor questions: 1) Isn't the provision for taxes on the income statement actually the taxes on the 'income' they made from using the sales method (equal to 46%), rather than what they pay will actually pay the IRS under the installment method? I think the notes show how instead of paying the 4.1\$ based on their recognized income, they pay some itty bitty amount based on installment. If so, I think they actually get a 46% tax break on the 1 million and change that they lose using a cash basis. Still a loss, just not so big. Anyway, I'm not sure if I'm thinking straight on this, but that's how I read the numbers. 2) Does the balance sheet have to change a little? For example, does shareholder equity change since the income that goes to retained earnings is now a loss, rather than a gain? Also, if revenue is recognized on a cash basis and is now much smaller, there needs to be another liability to equal out the decrease in revenues with the still large notes receivables on the asset side (as you note in the answer the notes recievables stays the same). Seems like they might need a liability like "deferred profits" or some such thing, such that the ["deferred profits" + revenues (recognized on cash basis)] = notes receivables. Anyway, I may not have this right, but thought I'd bring it up to see what you think. Best, Jeff*

Kimberly Kupiecki Senior Account Executive A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

## Message 1246 of 1299

## RE: Retail Energy Foresight--FREE Trial Issue

|            |                             |
|------------|-----------------------------|
| Sender     | jeff.dasovich@enron.com     |
| Recipients | ['susan.mara@enron.com']    |
| File       | dasovich-j/sent_items/2207. |

oh joy.

-----Original Message-----

From: Mara, Susan Sent: Thursday, November 08, 2001 1:58 PM To: Dasovich, Jeff Subject: RE: Retail Energy Foresight--FREE Trial Issue

This is where Julie works now

-----Original Message-----

From: Dasovich, Jeff Sent: Thursday, November 08, 2001 11:57 AM To: Mara, Susan Subject: FW: Retail Energy Foresight--FREE Trial Issue

FYI.

-----Original Message-----

From: Foresight [mailto:foresight@xenergy.com] Sent: Thursday, November 08, 2001 1:40 PM To: foresight@xenergy.com Subject: Retail Energy Foresight--FREE Trial Issue

Dear Colleague:

Need information on retail energy markets?

Retail Energy Foresight, a bimonthly publication with switch rate predictions and thoughtful analysis, is what you need to understand today's volatile retail energy markets.

Download FREE trial issues from XENERGY's web site at <http://www.xenergy.com/foresight>

Every issue of Retail Energy Foresight presents:

--> Switch rates by utility service territory and customer class from around the nation;

--> Predictions of switch rates for Pennsylvania, Illinois, and other markets;

--> An intimate look at markets and related topics; in the August/September issue, read about Market Backwaters and potential for revival;

--> All of the above served up with our own brand of humor to make retail energy markets actually fun to read about.

Take a look at what Retail Energy Foresight has to offer. We think you'll agree it's a valuable and unique analysis publication, and hope that you're tempted to subscribe. To do so, print out and fax back the order form on the last page of any issue (from our Web site) or call me at 781.273.5700 x387.

Regards,

Susan Weber Editor - Retail Energy Foresight [sweber@xenergy.com](mailto:sweber@xenergy.com) Tel. 781.273.5700 x387 Fax 781.273.9368

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If you would like to have your e-mail address removed from this mailing list, please reply with "remove name" in the subject field.

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Message 1247 of 1299

## XMS - Expense Management System

|            |                                                                                  |
|------------|----------------------------------------------------------------------------------|
| Sender     | <a href="mailto:enron.announcements@enron.com">enron.announcements@enron.com</a> |
| Recipients | [ <a href="mailto:enron.employees@enron.com">enron.employees@enron.com</a> ]     |
| File       | <a href="#">dasovich-j/notes_inbox/6108</a> .                                    |

Concur Technologies=01, Expense Management System (XMS) is now available to= all=20 Enron Corp (Co 0011) employees. You can prepare your expense report, send = it=20 for approval, and transmit it for payment using the Intranet. It is far mo= re=20 user-friendly than the previous Excel-based form and efficiently integrates= =20 with the SAP accounting system. We are excited about this new system and= =20 encourage you to start using it.

To access the system go to the Enron Home Page and type <http://xms.enron.co>= m=20 in the address field.

LOGON ID Enter your personnel number (P number). HR information is loaded=20 automatically into XMS, but an incomplete load may mean that some people's= =20 IDs are not updated. If your P number doesn't work, try using your first= =20 initial and last name (lower case). If you can't log in to the system, go = to=20 the IT Central web page from the Enron home page and select Services>Securi= ty=20 Requests>eRequest or call (713) 853-5536.



PASSWORD The first time you log in, the password is upper case ENRON. The system will guide you through confirming your personal information and changing your password. The Enron Code of Ethics prohibits the sharing of passwords and logging on as another person. Please observe Enron's policy. If you have forgotten your password, call the Resolution Center at (713) 853-1411.

TRAINING Go to the IT Central web page. Select Services>Training. Click on "Schedules" in the North America column, and go to the XMS Workshop schedule to choose your class. If no classes are listed, call the training department and place your request at (713) 853-1816. Those in outlying locations and those who prefer on-line training can use LEAP by signing on to isc.enron.com and clicking on "training and education," then LEAP (shown as a link). Use xms (lower case) as the User ID and Password.

DOCUMENTATION Step by Step documentation is also available from IT Central web page. Select Services>Training. Click on "Documentation" in the North America column and choose XMS User's Guide from the list.

APPLICATION SUPPORT SERVICES Call the ISC help desk at (713) 345-4SAP (4727). Do not call Accounts Payable with questions about how to use the system or with issues regarding electronic pre-populated data.

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Message 1248 of 1299

#### Information on ISO conference call to discuss its rate

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                         |
| Recipients | ['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/sent/3561.                                                           |

----- Forwarded by Jeff Dasovich/NA/Enron on 03/08/2001 12:12 PM -----

"Katie Kaplan" <kaplan@iepa.com> 03/08/2001 12:17 PM

To: <Jeff.Dasovich@enron.com> cc: Subject: RE: FW: CAISO Notice - Draft Market Stabilization Plan

ISO Market Participants: The ISO has developed a market stabilization plan, designed to stabilize operations and control costs in California, to be implemented in the next two months. It would remain in place for the near term (through Summer, 2001 and beyond) and includes changes to existing ISO practices as well as an expansion of the ISO's responsibilities. Because of the need to move quickly so that the plan can be implemented by this summer, we will be unable to hold a full stakeholder review process. But, we do want to discuss the plan with you so that you can understand the proposal and the reasoning behind it. The ISO will post this plan on the ISO web site at <http://www.caiso.com/stakeholders/> , by COB tomorrow. In addition, we will host a conference call from 10:00 a.m. to 2:00 p.m. PST this Friday, March 9, to discuss the plan with you and clarify any outstanding issues. We then plan to request the Board's approval for this plan on March 15th in order to be able to implement the plan by summer. The call information is as follows: Market Stabilization Conference Call Friday, March 9, 10:00 a.m. - 2:00 p.m. PST Call-In Number: 877-381-6005 Conference ID #: 760357 Leader Name: Byron Woertz Following the call, you may submit any comments on the plan to us by close of business on Tuesday, March 13. You may send your comments to [bwoertz@caiso.com](mailto:bwoertz@caiso.com). We will do our best to summarize your comments and present them to the Board at their March 15 meeting. In addition, there will be a public comment period on the 15th. Please contact me if you have any further questions. Byron B. Woertz, Jr. Director, Client Relations (916) 608-7066

Katie Kaplan Manager of State Policy Affairs Independent Energy Producers Association (916) 448-9499

-----Original Message-----

From: Jeff.Dasovich@enron.com [mailto:Jeff.Dasovich@enron.com] Sent: Thursday, March 08, 2001 8:42 AM To: Katie Kaplan Subject: Re: FW: CAISO Notice - Draft Market Stabilization Plan

Katie: Thanks so much for the info. Do you have the call-in number for the ISO call today?

Best, Jeff

---

Message 1249 of 1299

**REMINDER: Come Meet the Recruitment Center Account Managers on**

|            |                                                                                                                     |
|------------|---------------------------------------------------------------------------------------------------------------------|
| Sender     | sfalbie@msn.com                                                                                                     |
| Recipients | ['eveningmba@haas.berkeley.edu', 'friedfel@haas.berkeley.edu', 'rwong@haas.berkeley.edu', 'rowe@haas.berkeley....'] |
| File       | dasovich-j/inbox/973.                                                                                               |

This is just a friendly reminder for the following event (and if you plan to attend, please respond to me directly): Who are these so called account managers, Rich, Jenny and Mark? What do they do? How can we leverage off their expertise and they, ours? Do they have specific company contacts? Where can they be found? Will the ubiquitous pizza be served to entice you to attend? Strong possibility. Will I have to sign up on Bear Tracks? No. How can attending benefit me? It's up to you.

To answer these questions and many more, we will be scheduling during -

Thu, Dec. 6 during the break as well in the Career Center Conference Room (S420)

an informational session with the account managers.

Here's a description that Rich Wong, the financial services account manager prepared:

"The Haas Career Center staff includes 3 account managers that can be a valuable resource to those that are exploring job or career direction changes. Their role is to be the primary liaison for recruiters in their specific industry sectors, being the one-stop shop point person for companies interested in connecting with Haas MBA students. They cover a full spectrum of responsibilities from the logistics of setting up presentations and interviews to establishing contacts and providing strategic guidance to recruiters (including both hiring managers as well as University Recruiting reps within human resource departments). Through this activity, they gain insights into their company/industry focus that they are happy to share with Haas students, John Morel, and the other career advisors in the Haas Career Center."

Feel free to contact them regarding questions on companies and industries that they represent. Conversely, please provide them with any valuable contacts that you have in current/former employers that might help them aid your schoolmates to find employment opportunities. They are located in the Recruitment Center (S330 by the ATM machine) and their contact information is as follows:

Mark Friedfeld - Financial Services (Investment and Commercial Banking, Real Estate, Venture Capital)  
friedfel@haas.berkeley.edu/510-642-6588

Jenny Rowe - Consulting, Consumer Products, Healthcare/Biotech/Medical Devices, Educations, Not-for-Profit  
rowe@haas.berkeley.edu/510-643-4212

Rich Wong - Technology, Entertainment - rwong@haas.berkeley.edu/510-643-4211

Regards, Albert Demery demery@haas.berkeley.edu

---

Message 1250 of 1299

**Re: Comments on ACR re SCE's MOU**

|            |                                                                                                        |
|------------|--------------------------------------------------------------------------------------------------------|
| Sender     | james.steffes@enron.com                                                                                |
| Recipients | ['james_d_steffes@enron.com', 'jdasovic@enron.com', 'harry.kingerski@enron.com', 'jbennett@gmssr.com'] |
| File       | dasovich-j/all_documents/12105.                                                                        |

Team --

My initial response is that this is not a key issue for Enron (given everything else). I'd rather simply know how the process is to work going forward, than make a big case either way.

Jim

JBennett <JBennett@GMSSR.com> on 05/07/2001 11:15:58 AM To: "Harry Kingerski (E-mail)" <Harry.Kingerski@enron.com>, "Jeff Dasovich (E-mail)" <jdasovic@enron.com>, "Jim Steffes (E-mail)" <James\_D\_Steffes@enron.com>, "Lelie Lawner (E-mail)" <Leslie.Lawner@enron.com>, "Lelie Lawner (E-mail)" <Leslie.Lawner@enron.com>, "Robert Neustaedter (E-mail)" <Robert.Neustaedter@enron.com>, "Scott Stoness (E-mail)" <sstoness@enron.com>, "Tamara Johnson (E-mail)" <tjohnso8@enron.com> cc:

Subject: Comments on ACR re SCE's MOU

About ten days ago, I sent the attached E-mail containing an Assigned Cmmr.'s Ruling pertaining to the SCE MOU. The ACR set forth a "model" for determining revenue requirements for SCE's retained generation. On Friday, SCE, as directed, filed comments on the Ruling. Comments from other parties are due this Friday, the 11th.

Of primary importance is that SCE used its comments to promote the methodology for recovery of retained generation costs it had set forth in Advice 1534-E-A (forwarded to you last week). This method provides for an annual rate true-up mechanism and trigger mechanism. Such mechanisms allow for rate increases (or decreases) with the filing of an advice letter.

If we are opposed to such trigger / true-up mechanisms we need to submit comments on Friday and/or a protest of the Advice Filing (also due on the 11th).

Jeanne Bennett

-----Original Message----- From: JBennett Sent: Friday, April 27, 2001 4:25 PM To: Harry Kingerski (E-mail); Jeff Dasovich (E-mail); Robert Neustaedter (E-mail); Scott Stoness (E-mail); Sue Mara (E-mail); Tamara Johnson (E-mail) Cc: MDay Subject: FW: Com Lynch & ALJ DeUlloa's Ruling mailed 4/27/01 (A.00-11-038 et a l.) Attached is an Assigned Cmmr.' ruling issued this afternoon pertaining to SCE's Memorandum of Understanding with the Governor. The ruling is soliciting comments on the appropriate manner of regulating utility retained generation. The Ruling sets forth a specific model and asks parties to comment thereon. Comments are due May 11, 2001. <<CPUC01-#96386-v1-A0011038\_ET\_AL\_LYN\_JRD\_RULING\_.doc>>

- CPUC01-#96386-v1-A0011038\_ET\_AL\_LYN\_JRD\_RULING\_.doc

---

Message 1251 of 1299

| fuel storage tanks |                                                                                    |
|--------------------|------------------------------------------------------------------------------------|
| Sender             | margaret.huson@enron.com                                                           |
| Recipients         | ['david.loosley@enron.com', 'janel.guerrero@enron.com', 'jeff.dasovich@enron.com'] |
| File               | dasovich-j/deleted_items/454.                                                      |

#### Diesel Fuel Storage Tanks in Los Angeles

I pieced together some initial information on the prospect of installing diesel fuel storage tanks in the Los Angeles area. Much depends on the location of the storage facility as well as on the type (i.e. above or below ground) and size of the facility. Listed below are a few agencies that have a hand in overseeing fuel storage tanks.

Fire Department The Fire Department requires permits and review of plans for fuel storage facilities. One of three permits applies - division 4, division 5 or special permit - depending on the facility (above ground, below ground, quantity stored, area of storage facilities, etc). The permit paperwork looks quite comprehensive including a range of information from ownership to geological/groundwater measurements. However, once the application is complete, the Los Angeles Fire Department said they usually turn the permit around in a day. The proper fire department to contact depends on the location of the site. [LAFD - 213-485-7543]

Los Angeles County Industrial Waste permits are only required for tanks that discharge waste, so for storage, no permit is required. However, the County approves fuel storage for either a spill containment plan or double walled + leak sensor construction. Underground storage of hazardous materials is of concern to the County, but it is unclear where the fire department leaves off and the county picks up. In cities where the fire department does not process permits for fuel storage, the County plays a larger role. [LA County Environmental Programs - 626-458-3517]

California EPA License/permit processes seem to have been passed down to local levels, though I believe that EPA has installation and/or engineering requirements for fuel tanks. I was not able to reach a contact, but I was advised to speak with the Engineering Unit - 916-341-5775.

Zoning & Building Requirements Zoning restrictions exist in Los Angeles and building permits are required as in any facility. Narrowing the location or locations under consideration for the tanks will help the information search.

My initial impression is that this is a comprehensive process, but not necessarily any worse than other cities. The process is unlikely to change - for better or worse - any time real soon.

Please contact me with any questions or if you need more in-depth information - x5-2431 or Margaret.Huson@enron.com.

Regards, Maggy Huson Government Affairs

---

Message 1252 of 1299

**RE: Mendocino**

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | afinch@iasco.com                                                                                                   |
| Recipients | ['jeff.dasovich@enron.com', 'cwfinch@flash.net', 'scatena@enron.com', 'pat.scatena@intel.com', 'jeff_walker@i2...] |
| File       | dasovich-j/deleted_items/656.                                                                                      |

Please respond to Hello all,

I made a reservation at Cleone Gardens Inn, just across the street from the ranch. I reserved a room for Pat, Cal and myself, but was unsure what other reservations to make for the rest of the group because some of you are still tentative and I'm not sure who is bringing SOs/dates.

The inn has one room called the Blue Iris room with two double beds that might work for Jeff W. and Jeff D. if going up single; most of their other rooms have a queen or king bed (the Meadow View king room sounded nice for a couple if we have any going up). Both of those are still available for the weekend we are planning to be there. I think there may be some cottages available also for multiple people, but I'm not sure what the configurations of those are. A full breakfast can be ordered from some of the rooms for \$14.00 extra. They serve breakfast at 8:00 a.m. Pat, Cal and I have a suite with a small kitchen, so we may also be able to host some minimal meals/snacks/drinks.

The phone number of Cleone Gardens is 1-800-400-2189. Their website, which has pictures and descriptions of their rooms, is cleonegardensinn.com. If the Cleone Gardens Inn does not have the room configuration you want, Lari's website (horse-vacations.com) has links to numerous other hotels and B&Bs.

Tally ho!

Amy

-----Original Message-----

From: Jeff\_Walker@i2.com [mailto:Jeff\_Walker@i2.com] Sent: Sunday, July 08, 2001 7:10 PM To: Scatena, Pat Cc: 1gr8coach@home.com; afinch@iasco.com; cwfinch@flash.net; Jeff.Dasovich@enron.com; Jeff Walker (E-mail); Kari Ontko (E-mail); Lori Hom (E-mail); 'Madeleine Todd'; Nora McGee (E-mail); pmurray@ccac-art.edu Subject: RE: Mendocino Hi All: Madeleine was kind about me not keeping up with personal emails .... I am putting the Mendocino dates on my calendar. I would like to ride both days. I would also like to stay where everyone will be happiest ;) Howard's Creek is great, but I agree with Pat, that we just won't have the time to enjoy the place (or breakfast). BTW - Are any non-riders coming?? Jeff. ~~~~~ Jeff Walker Office: (650) 632-7648 i2

Technologies Cell: (650) 868-7585 ~~~~~

Message 1253 of 1299

### Gas Accord II: Next Steps

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | frl3@pge.com                                                                                                       |
| Recipients | ['ldb4@pge.com', 'askaff@energy-law-group.com', 'mak9@pge.com', 'bcc3@pge.com', 'alex.sugaoka@uaecorp.com', 'r...] |
| File       | dasovich-j/all_documents/1574.                                                                                     |

Confidential Settlement Document CPUC Rule 51

ALL PARTIES:

Thanks to the many parties who attended our Gas Accord II kick-off meeting on September 14. We thought it was a good start toward a collaborative settlement process. This e-mail summarizes the next steps identified at the meeting.

First, the list of the issues identified by the parties is being sent by a separate e-mail transmittal today to those parties who have agreed to abide by Rule 51. We are continuing to assemble the issues list, and would like any more issues that parties wish to raise sent to us by this Friday, September 22. This is not to limit issues, but rather to build our workshop presentations and discussions, and ultimately our settlement proposal. If you are not on the Rule 51 list and wish to be added, please complete the Mailing List Information form below. Also attached is a copy of CPUC Rule 51.

Second, attached is an updated schedule for the Gas Accord II workshops. Please note, the November workshop has been moved to November 7-8 (which is Tuesday and Wednesday), instead of the week following as we had originally proposed. We request that you please hold the attached dates on your calendars if you plan to be active in the settlement discussions.

Based on the issues list, we suggest the following topics for the first three workshops:

\* September 27: Reliability, for both facilities and supply. \* October 11-12: Market, cost and rate data. \* November 8-9: Market operations, including core issues, balancing, open season rules, and information disclosure.

Please let us know if this workshop plan does not work for you.

Third, PG&E will provide a basic set of market data and preliminary cost data to all of the Rule 51 parties in advance of the October 11-12 Workshop. This will help parties to identify and analyze their issues. After seeing this data, to the extent there are other information requests, please send them to Frank Lindh (e-mail to frl3@pge.com or Fax to 415-973-5520).

Again thank you for your participation in the Gas Accord II Settlement Process. We look forward to our upcoming workshops and discussions. Please feel free to call us if you have questions.

Frank Lindh Ray Williams 415-973-2776 415-973-3634 frl3@pge.com rdw0@pge.com

Attachments

<<Mailing List Information>> <<CPUC Rule 51>> <<Gas Accord II Settlement Schedule>>

- Mailing List Information.doc - CPUC Rule 51.doc - Gas Accord II Settlement Schedule.doc

Message 1254 of 1299

### Telecommunications Regulations: U.S.: Harris, Wiltshire Names New

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | margo.reyna@enron.com                                                      |
| Recipients | ['sue.nord@enron.com', 'scott.bolton@enron.com', 'lara.leibman@enron.com'] |
| File       | dasovich-j/notes_inbox/2223.                                               |

Kent Bressie and his firm handled EBS's Louisiana license, among other items.

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 12/05/2000 08:55 AM -----

djcustomclips@djinteractive.com 12/04/2000 05:53 PM Please respond to nobody

To: 243648@WCTOPICS.djnr.com cc: Subject: Telecommunications Regulations: U.S.: Harris, Wiltshire Names New Partners

Harris, Wiltshire Names New Partners

12/04/2000 Satellite News (c) 2000 Phillips Business Information, Inc. Harris, Wiltshire&Grannis LLP, a Washington communications and information technology law firm, has promoted Karen Gulick, Kent Bressie and Jonathan Mirsky to partner, effective Jan. 1. The firm, which emphasizes emerging technology and international issues, has grown rapidly partly due to its hiring of FCC attorneys. A prime example is Gulick, who joined the firm as "of counsel" on her departure from the FCC last year. She advises clients on domestic and international regulatory and legal matters, focusing on wireless telecommunications. Gulick concluded her FCC career as legal advisor to Commissioner Gloria Tristani and took a key role in spectrum issues and emerging technology, as well as international telecommunications matters. Bressie specializes in proceedings before U.S. and foreign regulators and in international proceedings and negotiations. He also advises companies on legal and policy problems associated with emerging technologies and international business. Mirsky advises telecommunications service providers, investors, lenders and investment banks on communications and regulation. He has worked on acquisitions and sales of FCC-regulated communications companies and on their debt and lending arrangements, as well as on spectrum leasing. The law firm's managing partner is Scott Blake Harris, once chief of the FCC International Bureau.

Folder Name: Telecommunications Regulations: U.S. Relevance Score on Scale of 100: 72

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 1255 of 1299

### Re: Agro - Q3,4

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                           |
| Recipients | ['christine.piesco@oracle.com', 'kkupiecki@arpartners.com', 'dwindham@uclink4.berkeley.edu', 'jcjal02@aol.com...] |
| File       | dasovich-j/all_documents/3643.                                                                                    |

I'm adding my two cents. Here's 3, but not 4. Few things.

1) I considered that everything was "material." That reasonable?

2) Dylan, I struggled with the ban on preservatives, but ultimately decided it was unusual, not extraordinary, since the book sez that any write down of inventory is unusual, as opposed to extra. But a case for extra can still, be made I think.

3) I did not include the 1994 litigation expense associated with the ban, since it seems to me that it's merely an expense that they would have taken in 1994, as opposed to a "potential litigation outcome" that they'd make an allowance for---I could be wrong, though.

4) Finally, I assumed that the depreciation-related gain was already included in the 1995 "income from continuing operations" number, and consequently included it as a footnote on my spreadsheet, rather than make it an explicit line item in the income statement.

I'll look at Kim's #4 and if I have any comments, I'll add them to hers and circulate.

Best, Jeff

Kimberly Kupiecki <kkupiecki@arpartners.com> 11/18/2000 06:54 PM

To: dwindham@uclink4.berkeley.edu cc: jjackson@haas.berkeley.edu, jdasovic@enron.com, jcjal02@aol.com, christine.piesco@oracle.com Subject: Agro - Q3,4

Questions

1. Litigation - how should we account for the 1994 bill of 500,000 in 1994 - I assume this was not accounted for in the 1994 income statement - we could include a note on pro forma numbers for the 1994 statement or we could just include this cost in 1995 - I am including it in the 1995 recalculated income statement, but I don't think this is totally accurate.

Thoughts anyone?

2. In the text, page 354, Other gains or losses from the sale or abandonment of PP&E used in a business is not supposed to be reported under extraordinary items. This means the two sites Agro sold for \$750,000 (after tax gain) should not be counted under extraordinary items. In this case - we could 1) assume this is accounted for already in the 9.5 million number given to us or 2) add it in after "income from continuing operations" and before "discontinued operations." I went with option 2.

Let me know if you have any issues with this treatment.

3. Are we supposed to do anything with the 30,411,380 of retained earnings? I did not include pay out of dividends in the income statement.

Cheers, - Agro.doc - Agro.xls

Kimberly Kupiecki Director A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

---

Message 1256 of 1299

#### Reminder: MEET THE RECRUITMENT CENTER ACCOUNT MANAGERS

|            |                                |
|------------|--------------------------------|
| Sender     | sfalbie@msn.com                |
| Recipients | [eveningmba@haas.berkeley.edu] |
| File       | dasovich-j/deleted_items/2064. |

Hi everyone,

Hope you're having a nice Thanksgiving break. Just a friendly reminder on the following (again, if you plan to attend, please respond to me directly and indicate which evening):

Fellow Evening Haasians,

Who are these so called account managers, Rich, Jenny and Mark? What do they do? How can we leverage off their expertise and they, ours? Do they have specific company contacts? Where can they be found? Will the ubiquitous pizza be served to entice you to attend? Strong possibility. Will I have to sign up on Bear Tracks? No. How can attending benefit me? It's up to you.



To answer these questions and many more, we will be scheduling during -

Mon, Nov. 26 during the break (i.e., 7:30 - 8:15) in C125 and Thu, Dec. 6 during the break as well in the Career Center Conference Room (S420)

an informational session with the account managers.

Here's a description that Rich Wong, the financial services account manager prepared:

"The Haas Career Center staff includes 3 account managers that can be a valuable resource to those that are exploring job or career direction changes. Their role is to be the primary liaison for recruiters in their specific industry sectors, being the one-stop shop point person for companies interested in connecting with Haas MBA students. They cover a full spectrum of responsibilities from the logistics of setting up presentations and interviews to establishing contacts and providing strategic guidance to recruiters (including both hiring managers as well as University Recruiting reps within human resource departments). Through this activity, they gain insights into their company/industry focus that they are happy to share with Haas students, John Morel, and the other career advisors in the Haas Career Center."

Feel free to contact them regarding questions on companies and industries that they represent. Conversely, please provide them with any valuable contacts that you have in current/former employers that might help them aid your schoolmates to find employment opportunities. They are located in the Recruitment Center (S330 by the ATM machine) and their contact information is as follows:

Mark Friedfeld - Financial Services (Investment and Commercial Banking, Real Estate, Venture Capital)  
friedfel@haas.berkeley.edu/510-642-6588

Jenny Rowe - Consulting, Consumer Products, Healthcare/Biotech/Medical Devices, Educations, Not-for-Profit  
rowe@haas.berkeley.edu/510-643-4212

Rich Wong - Technology, Entertainment - rwong@haas.berkeley.edu/510-643-4211

If you plan to attend, please respond to me directly and indicate which evening.

Best regards, Albert Demery demery@haas.berkeley.edu

---

Message 1257 of 1299

## Governor Davis Announces Recovery Plan for State's Utilities

|            |                                                                                 |
|------------|---------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                         |
| Recipients | ['angela.schwarz@enron.com', 'beverly.aden@enron.com', 'alan.comnes@enron.com'] |
| File       | dasovich-j/sent/3276.                                                           |

----- Forwarded by Jeff Dasovich/NA/Enron on 02/16/2001 09:16 PM -----

Jean Munoz <jmunoz@mcnallytemple.com> 02/16/2001 04:56 PM

To: IEP <jmunoz@mcnallytemple.com> cc: Subject: Governor Davis Announces Recovery Plan for State's Utilities

Below is a copy of Governor's press release. Jan will be responding during the IEP media tele-conference today at 4pm PST. Call in number 1-800-374-2393, pass code: Independent Energy Producers.

Thanks, Jean

-- Jean Munoz McNally Temple Associates, Inc. 916-447-8186 916-447-6326 (fx)

---

PR01: 057 FOR IMMEDIATE RELEASE 02/16/2001 2:20 pm

GOVERNOR DAVIS ANNOUNCES RECOVERY PLAN FOR STATE'S UTILITIES

SACRAMENTO

Governor Gray Davis today unveiled the framework of a recovery plan for the California's investor-owned utilities that includes the purchase of their power lines and targeted revenue from the existing rate structure to help pay their back debt.

"Today we have begun serious negotiations with the utilities on a balanced recovery plan," said Governor Davis. "This is a balanced business transaction. It provides real benefits of real value to consumers and allows the utilities to get back on their feet."

Elements of the plan include:

\* State purchase of the transmission grid owned by the state's three investor-owned utilities; \* Benefits to ratepayers and taxpayers including:

1. A significant contribution by the parent companies to their utility subsidiaries to satisfy their creditors and return to financial viability; 2. The extension of cost-based rates from the utilities generating facilities from five to 10 years and a ban on their sale; 3. Conservation easements on utility-owned land in prime watershed areas; and 4. Dismissal of all pending litigation.

The Governor's plan directs the Public Utilities Commission to establish a "dedicated rate component" from the existing rate structure (not a new charge on consumer bills). This would allow the utilities to make payments to their creditors, including banks, generators, and renewable energy producers. Utilities would be allowed to sell revenue bonds secured by the dedicated rate component.

Governor Davis said he is working closely with the legislative leadership on legislative components necessary to carry out negotiations.

Governor Davis also noted that he sent a letter to President George W. Bush thanking him for his order today to expedite the review and licensing of new power generation facilities in California.

"I am extremely gratified that President Bush has acted to put the federal government on the same path as I have in California to cut red tape and get new power plants on line," said the Governor.

###

Message 1258 of 1299

### Come Meet the Recruitment Center Account Managers

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | sfalbie@msn.com                                                                                                   |
| Recipients | ['eveningmba@haas.berkeley.edu', 'friedfel@haas.berkeley.edu', 'rwong@haas.berkeley.edu', 'rowe@haas.berkeley.... |
| File       | dasovich-j/inbox/870.                                                                                             |

Fellow Evening Haasians,

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friedfel@haas.berkeley.edu/510-642-6588

Jenny Rowe - Consulting, Consumer Products, Healthcare/Biotech/Medical Devices, Educations, Not-for-Profit  
rowe@haas.berkeley.edu/510-643-4212

Rich Wong - Technology, Entertainment - rwong@haas.berkeley.edu/510-643-4211

If you plan to attend, please respond to me directly and indicate which evening.

Furthermore, by a unanimous vote of the EvMBAA, Jon Bain will be your new Career Center Liaison starting Spr02. Many of you already have had the pleasure of interacting with Jon in your classes, as well as in John Morel's Life-Work Balance seminars, which Jon helped organize.

Best regards, Albert Demery demery@haas.berkeley.edu

---

Message 1259 of 1299

### April Signature Interactive Events

|            |                                 |
|------------|---------------------------------|
| Sender     | events@schwab.com               |
| Recipients | ['jdasovic@enron.com']          |
| File       | dasovich-j/all_documents/11311. |

---

#### Signature Interactive Events

#### UPCOMING EVENTS

Simple Options Strategies for Today's Market Thursday, April 26 4:30 p.m. ET, 1:30 p.m. PT

In today's uncertain market, a new approach may be what you need.

Schwab invites you to a Signature Services options trading=20 seminar featuring Jim Bittman, Senior Instructor of the Options=20 Institute, Tony Saliba, renowned options trader and derivatives=20 pioneer, and Gregory Miller, Senior Vice President of Schwab=20 Options.

Learn more about simple options strategies =0F- what they are, when=20 to deploy them, and how to get started.

Don't miss this opportunity to ask questions and interact=20 directly with options experts and see how Schwab can help support=20 your options trading needs.

To register for the online seminar and to submit questions prior=20 to the event, log on to:

<http://schwab.ed10.net/ud/AY7Q/A7FV/V12M/VU/42KGY>,=20 select 'Signature Events,' and then click on 'Simple Options=20 Strategies for Today's Market' to:.

=0F=07 Register for the event.=20

=0F=07 View instructions on how to participate.=20

=0F=07 Email questions before or during an event.=20

=0F=07 Download RealPlayer 8 or Windows Media Player.=20

Check out other Schwab online events:=20 <http://schwab.ed10.net/ud/AY7Q/XT4U/V12M/JY/42KGY>

Options carry a high level of risk and are not suitable for all=20 investors. Certain requirements must be met to trade options=20 through Schwab. Please read the options disclosure document=20 titled "Characteristics and Risks of Standardized Options"=20 before considering any option transaction. Call your local=20 Schwab office or write to Charles Schwab & Co., Inc. at 101=20 Montgomery Street, San Francisco, CA 94104 for a current copy.

To change your email address, log on here: <http://schwab.ed10.net/ud/AY7Q/ZBKH/V12M/ZH/42KGY>

You will be taken to the page that will allow you to update your=20 email address securely. For your protection, we are unable to=20 accept instructions to change your email address sent in reply to=20 this message.=20

To unsubscribe from the Signature Events emails, log on below, go=20 to the bottom of the page, click on Unsubscribe, then click on=20 Finish.=20 <http://schwab.ed10.net/ud/AY7Q/EW1W/V12M/E4/42KGY>

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[IMAGE]

---

Message 1260 of 1299

**RE: Mendocino**

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | pat.scatena@intel.com                                                                                              |
| Recipients | ['jeff.dasovich@enron.com', 'cwfinch@flash.net', 'afinch@iasco.com', 'jeff_walker@i2.com', '1gr8coach@home.com...] |
| File       | dasovich-j/deleted_items/654.                                                                                      |

correction following further discussion with Amy: i have booked the blue iris room (apologies to the Jeffs) and Amy has booked a separate room for herself and Cal (i think the meadow view room). -----Original Message----- From: Amy Gustafson Finch [mailto:afinch@iasco.com] Sent: Wednesday, July 11, 2001 7:49 AM To: Jeff\_Walker@i2.com; 'Scatena, Pat' Cc: 1gr8coach@home.com; cwfinch@flash.net; Jeff.Dasovich@enron.com; 'Jeff Walker (E-mail)'; 'Kari Ontko (E-mail)'; 'Lori Hom (E-mail)'; 'Madeleine Todd'; 'Nora McGee (E-mail)'; pmurray@ccac-art.edu Subject: RE: Mendocino Hello all,

I made a reservation at Cleone Gardens Inn, just across the street from the ranch. I reserved a room for Pat, Cal and myself, but was unsure what other reservations to make for the rest of the group because some of you are still tentative and I'm not sure who is bringing SOs/dates.

The inn has one room called the Blue Iris room with two double beds that might work for Jeff W. and Jeff D. if going up single; most of their other rooms have a queen or king bed (the Meadow View king room sounded nice for a couple if we have any going up). Both of those are still available for the weekend we are planning to be there. I think there may be some cottages available also for multiple people, but I'm not sure what the configurations of those are. A full breakfast can be ordered from some of the rooms for \$14.00 extra. They serve breakfast at 8:00 a.m. Pat, Cal and I have a suite with a

small kitchen, so we may also be able to host some minimal meals/snacks/drinks.

The phone number of Cleone Gardens is 1-800-400-2189. Their website, which has pictures and descriptions of their rooms, is cleonegardensinn.com. If the Cleone Gardens Inn does not have the room configuration you want, Lari's website (horse-vacations.com) has links to numerous other hotels and B&Bs.

Tally ho!

Amy

-----Original Message-----

From: Jeff\_Walker@i2.com [mailto:Jeff\_Walker@i2.com] Sent: Sunday, July 08, 2001 7:10 PM To: Scatena, Pat Cc: 1gr8coach@home.com; afinch@iasco.com; cwfinch@flash.net; Jeff.Dasovich@enron.com; Jeff Walker (E-mail); Kari Ontko (E-mail); Lori Hom (E-mail); 'Madeleine Todd'; Nora McGee (E-mail); pmurray@ccac-art.edu Subject: RE: Mendocino Hi All: Madeleine was kind about me not keeping up with personal emails .... I am putting the Mendocino dates on my calendar. I would like to ride both days. I would also like to stay where everyone will be happiest ;) Howard's Creek is great, but I agree with Pat, that we just won't have the time to enjoy the place (or breakfast). BTW - Are any non-riders coming?? Jeff. ~~~~~ Jeff Walker Office: (650) 632-7648 i2 Technologies Cell: (650) 868-7585 ~~~~~

Message 1261 of 1299

#### FYI - CWA Urges FCC to Set 'Open Access' Broadband Policy

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | margo.reyna@enron.com                                                      |
| Recipients | ['sue.nord@enron.com', 'scott.bolton@enron.com', 'lara.leibman@enron.com'] |
| File       | dasovich-j/all_documents/4160.                                             |

----- Forwarded by Margo Reyna/NA/Enron on 12/01/2000 04:11 PM -----

djcustomclips@djinteractive.com 12/01/2000 03:29 PM Please respond to nobody

To: 123363@WCTOPICS.djnr.com cc: Subject: Telecom Services: Broadband Services: CWA Urges FCC to Set 'Open Access' Broadband Policy

#### CWA Urges FCC to Set 'Open Access' Broadband Policy

12/01/2000 PR Newswire (Copyright (c) 2000, PR Newswire) WASHINGTON, Dec. 1 /PRNewswire/ -- The Communications Workers of America told the Federal Communications Commission that an "open access" broadband cable policy is the best way to stimulate competition and promote the growth of jobs and the industry. Such a national policy framework is necessary, CWA said in its filing to the FCC, to ensure that fair competition, innovation and growth continue as broadband networks further advance. CWA called on the FCC to establish a national policy that would treat all providers of broadband Internet access as common carriers, and therefore subject to the interconnection, non-discrimination and unbundling requirements of federal communications law. CWA pointed out that a strong legal basis already exists for considering cable modem service a "telecommunications service" and therefore subject to the obligations of common carriers. This policy would not necessarily lead to regulatory oversight of the wholesale pricing of cable modem service, but it would remedy the current situation whereby the same service, broadband Internet access, is regulated differently depending on whether access is provided over cable or telephone lines, CWA stressed. This current disparate treatment "serves to favor one technology over another in the marketplace, which runs counter to the mandates of the Telecommunications Act," the union added. Open access cable also would provide real benefits to consumers, by giving consumers access to new and diverse sources of information, products and services. This will only result in greater consumer demand for broadband transport services, fueling both network investment and job growth, CWA noted. "The open architecture of the Internet has fostered an explosion in democratic communications," an achievement the Commission must preserve "as we transition to the ever-widening possibilities of broadband," the union stressed. However, "this openness is threatened by a closed cable Internet access network which would give preferable treatment to

affiliated Internet service providers of cable operators," CWA cautioned. The FCC should act quickly to establish rules that will protect an open Internet, not rely on market forces and vague voluntary agreements by cable providers to open access at some future date, CWA said.

/CONTACT: Jeff Miller or Candice Johnson, of CWA Communications, 202-434-1168/ 16:15 EST

Folder Name: Telecom Services: Broadband Services Relevance Score on Scale of 100: 90

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at custom.news@bis.dowjones.com or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 1262 of 1299

**Re: Angelides Investor Memo - Timetable Update -- says CPUC vote**

|            |                                                                                                           |
|------------|-----------------------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                                   |
| Recipients | ['susan.mara@enron.com', 'karen.denne@enron.com', 'harry.kingerski@enron.com', 'james.steffes@enron.com'] |
| File       | dasovich-j/sent_items/847.                                                                                |

Thanks, Sue. FYI--this new schedule was discussed a lot last week, and apparently was a big part of the meeting that occurred with Davis' people and Angelides last Thursday nite. It was a move to buy time to try and get a comprehensive settlement in place in the legislature (i.e., core/noncore).

In addition to buying time to save Direct Access, it also gives Angelides more time to get the bonds lined up, which seems to be an increasingly challenging task---there's growing speculation that the issuance will be much more difficult than Angelides has thus far let on.

That said, I need to check around, but there is some chance that the plan/agreement is that the PUC decisions would go out well in advance of August (with effective date being August), which would then provide enough time to let the expedited "appeals process" under (SB37?) run its course in time for the issuance in Sept/Oct. In short, we'll need to remain vigilant energized because there's a chance that the decisions to which Angelides refers in the memo could be up at the Commission sooner rather than later. This is what I was hearing last Friday, but perhaps things have changed and now there's more time. I'll check and report back.

Finally, simultaneous with those actions, folks are supposed to be putting the core/noncore agreement into legislative language. I'll report back as soon as I have more information on that.

Best, Jeff

Susan J Mara 07/03/2001 11:27 AM To: Michael Tribolet/ENRON@enronXgate, James D Steffes/NA/Enron@Enron, Richard Shapiro/NA/Enron@Enron, Harry Kingerski/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Paul Kaufman/Enron@EnronXGate, Karen Denne/Corp/Enron@ENRON cc: Subject: Angelides Investor Memo - Timetable Update -- says CPUC vote not needed until mid August

The memo to investors says that a new law will take effect on Aug 13 that puts in place shortened appeal times at the CPUC. The memo says that the CPUC does not need to act on the key issues, including suspension of DA, until Aug 13 or later. It also says the bonds are now to be sold in Sept-Oct. The memo states that the CPUC, Governor, Treasurer, etc. have agreed with the new timetable.

Sue Mara Enron Corp. Tel: (415) 782-7802 Fax:(415) 782-7854 ----- Forwarded by Susan J Mara/NA/Enron on 07/03/2001 09:20 AM -----

"Manuel, Erica" <Erica.Manuel@edelman.com> 07/03/2001 08:38 AM To: "Allen, Stevan" <stevan.allen@edelman.com>, AReM <arem@electric.com>, "Douglas Oglesby (E-mail) (E-mail)" <doao@chevron.com>, "Fairchild, Tracy"

<tracy.fairchild@edelman.com>, "Jeffrey Hanson (E-mail) (E-mail)" <jeff.hanson@phaser.com>, "Joseph Alamo (E-mail) (E-mail)" <jalamo@enron.com>, Megan Beiser <megan.beiser@edelman.com>, "Robert Morgan' (E-mail)" <rmorgan@newenergy.com>, "Warner, Jami" <jami.warner@edelman.com> cc: Subject: FW: Investor Memo - Timetable Update

I just received this document from Angelides' office - it's a memo outlining a revised timetable for the PUC actions required for the bond sale. FYI. EM.

-----Original Message-----

From: Philip Angelides, Calif State Treasurer [mailto:philip\_angelides@treasurer.ca.gov] Sent: Tuesday, July 03, 2001 7:38 AM To: FITZPATRICK, Charles Subject: Investor Memo - Timetable Update

Please note the update regarding the State of California DWR Power Bonds provided in the attached memo.

<<Investor Memo -- Timetable Update 7-2-01.pdf>>

If you have any questions, please contact Charles Fitzpatrick at (800) 900-3873.

- Investor Memo -- Timetable Update 7-2-01.pdf

Message 1263 of 1299

## Re: Label Calculation

|            |                                                                                          |
|------------|------------------------------------------------------------------------------------------|
| Sender     | stacey.bolton@enron.com                                                                  |
| Recipients | [djohnson@energy.state.ca.us', 'rgrow@energy.state.ca.us', 'cholmes@energy.state.ca.us'] |
| File       | dasovich-j/notes_inbox/3.                                                                |

Bob:

We appreciate your counsel's review of our proposal, and will proceed either with your recommendation below (2 product labels - one for commercial customers receiving 100% renewable energy and the other label for our larger users comprised of a percentage renewable and fossil fuels) or, as was discussed with Drake Johnson, distributing one aggregated label with a percentage renewable resources and fossil fuel.

Thank you for taking into account our timing constraints and responding to our request so promptly.

Best regards, Stacey Bolton Manager, Environmental Strategies Enron 713-853-9916

"Robert Grow" <Rgrow@energy.state.ca.us> on 08/18/2000 11:15:28 AM To: <sbolton@enron.com> cc: <Cholmes@energy.state.ca.us>, <DJohnson@energy.state.ca.us>, <Kgriffin@energy.state.ca.us>, <Mjones@energy.state.ca.us> Subject: Re: Label Calculation

Stacey:

Our counsel has reviewed your proposal. We find that it doesn't meet our regulations, but it appears to represent a good faith effort to comply. We cannot give official approval to labeling that is not in accord with the regs, but counsel says we will not consider any sanction or punitive action in this case.

The problem with your proposal is that the product is represented by two labels, not one. You could consider splitting the product into multiple products, only one of which is 100% renewable. Even so, we think consumers should be able to understand the product as you have described it.

I hope this response is timely for your September billing.

Bob Grow Program Manager Power Source Disclosure CA Energy Commission (916) 654-5180

"Stacey Bolton" <sbolton@enron.com> 08/15/00 04:58PM >>>

Bob:



Pursuant to our phone discussion today, outlined below is Enron Energy Service's (EESI) proposed label calculation for review by your counsel. EESI's product is a 100% renewable product for the first 5,000 kilowatt hours per month. (The renewable energy in this product may exceed the 5,000 kwh per month depending upon available renewable supply and the level at which the customer credit is set.) For any customer that exceeds 5,000 kilowatt hours of renewable energy per month, the remainder of their product would be comprised of the California System Mix. Because the percentage of renewable energy that the end use customer receives is dependent upon their size, (i.e. smaller commercial customer might actually be receiving 100% renewable energy whereas larger customers might be receiving only a little more renewable energy than is contained in the CA system mix), this makes the label calculation difficult. It is EESI's proposal to have two separate labels for this one product. The first label (label A) would be 100% renewable energy (representing the first 5,000 kwhs per month). The second label (label B) would be the California System Mix. EESI would explain to customers that depending upon the customer size, some customers would be receiving "label A", provided they are 5000 kwhs per month in usage or less. For those customers that exceed 5,000 kwhs per month, the power they receive would look closer to "label b" (the California System Mix).

EESI is under a tight deadline and is intending to notify customers of this product in the September billing. We would like to confirm with your counsel if this arrangement is agreeable to the CEC and meets the standards set forth in SB 1305. Please feel free to contact me with any questions regarding the label calculation.

We greatly appreciate your assistance in this endeavor.

Sincerely, Stacey Bolton Manager, Environmental Strategies Enron 713-853-9916

---

Message 1264 of 1299

#### FW: Message 5 - expense reports

|            |                                                                                    |
|------------|------------------------------------------------------------------------------------|
| Sender     | ginger.dernehl@enron.com                                                           |
| Recipients | ['steve.montovano@enron.com', 'paul.kaufman@enron.com', 'jeff.dasovich@enron.com'] |
| File       | dasovich-j/inbox/1091.                                                             |

FYI

Ginger Dernehl Administrative Coordinator Global Government Affairs Phone# 713-853-7751 Fax# 713-646-8160

-----Original Message-----

From: Linnell, Elizabeth Sent: Friday, December 21, 2001 10:51 AM To: Dernehl, Ginger; Glenn, Laura; Lilienthal, Sybille; Killey, Sharon; Hiltabrand, Leslie Subject: FW: Message 5 - expense reports

Please forward to your existing groups. Thanks! -----Original Message----- From: Linnell, Elizabeth Sent: Thursday, December 20, 2001 5:31 PM To: Subject: Message 5 - expense reports

I'm not going to attach the old messages because the file is getting so big. Ginger, Laura, Sybille, Sharon and Leslie - Please forward this message to your existing groups.

I know that lots of you are frustrated by the expense process, and I've spent the afternoon tracking things down and participated in some conversations this afternoon that answered a few of our questions. However, it seems like things change as the whole process evolves, so bear with me - I'm sending it to you as I learn it.

- The expense run that was processed on Friday afternoon for outstanding expenses had some error in it, and the expenses weren't paid. Apparently, the error detection systems didn't kick in, so until people started calling to say that they didn't receive their payments the problem wasn't caught. I wasn't given a good answer for why this happened. But - here is what's happening now:

- The current outstanding expense reports and voided expense checks up to \$5,000 will be reprocessed tomorrow. The bank takes two business days to process, so direct deposit funds will be available on Thursday and checks will be mailed as usual (presumably also Thursday). Direct deposits will continue if you had them set up before, whether or not you have

been laid off.

- If you have more than \$5,000 submitted in pre-petition expenses, there is a manual process to get you a payment for \$5,000. This will also take two business days to process. Payments to people with outstanding expenses over the \$5,000 but under the \$15,000 per employee cap have not yet been released, and outstanding balances of over \$15,000 are also still at issue. I'll get back to affected individuals with more info about this issue as I learn it. These thresholds also apply to cases where a check was issued and then voided. Because of the cap, if you can identify any outstanding medical claims, not your co-pay, it might help to get some of this cleared up. As I mentioned in an earlier message, we've filed with the court to ask that expenses be excluded from the cap, and the issue is on the court's calendar for January 7 (but we might not get a ruling that day).

- There are expense reports in the system that have not been fully processed - either they weren't completely entered or the approval was not granted. The XMS team is working to identify these reports and find out who should authorize them for payment. I'll do my best to get hold of that list and get any of ours completed and processed.

- And lastly, the instructions I got yesterday for the reimbursement of things like November cellular bills was wrong for severed employees. Please use the attached form to claim the expense. Once you've filled out the form, please feel free to fax it to me (713-646-8160) with any necessary backup and we'll get it into the system. Don't worry about the coding, we'll handle that part, but it would be helpful if you know what your P number is/was.

I'm sorry this has been so frustrating for everyone! I can't make any promises, but this is the latest information I have and I'll continue to update you as I learn things.

Take care, Elizabeth

---

Message 1265 of 1299

#### Article: Sagging Telecommunications Sector Leads Nasdaq Down

|            |                              |
|------------|------------------------------|
| Sender     | jeff.dasovich@enron.com      |
| Recipients | [psellers@haas.berkeley.edu] |
| File       | dasovich-j/sent/3935.        |

----- Forwarded by Jeff Dasovich/NA/Enron on 04/03/2001 12:06 PM -----

Margo Reyna 04/03/2001 11:48 AM

To: Sue Nord/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Mona L Petrochko/NA/Enron@Enron, Barbara A Hueter/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Marchris Robinson/NA/Enron@Enron, Ricardo Charvel/NA/Enron@Enron, Stephen D Burns/Corp/Enron@ENRON, Xi Xi/Enron Communications@Enron Communications, Allison Navin/Corp/Enron@ENRON, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Eric Benson/NA/Enron@ENRON, Karen Huang/Enron Communications@Enron Communications, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Carmen Perez/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, William Patrick Lewis/HOU/ECT@ECT cc: Subject: Article: Sagging Telecommunications Sector Leads Nasdaq Down

Sagging Telecommunications Sector Leads Nasdaq Down By Johnathan Burns

04/03/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones&Company, Inc.) NEW YORK -(Dow Jones)- The telecommunications sector led the Nasdaq Composite Index down Tuesday, as investors worrying about the earnings season and a slowdown in carrier spending hammered many stocks to new lows. The selloff of telecommunications carriers and equipment makers was widespread, with all of the big-name companies trading negatively. Shares of optical component maker JDS Uniphase Corp. (JDSU) earlier hit a 52-week low, recently trading down 11% to \$14.88. Optical systems market leader Nortel Networks Corp. (NT) also hit a 52-week low, recently trading down 7% to \$13. The day's

biggest loser in the equipment space was optical systems maker Ciena Corp. (CIEN), which hit a new low and was recently trading down 16.5% to \$35.50. The bloodshed was so widespread that a host of other equipment companies also hit new lows: Lucent Technologies Inc. (LU) recently traded down 11% to \$7.88 while Corvis Corp. (CORV) was recently down 14.4% to \$5.19. A rash of earnings warnings by software companies like Redback Networks Inc. (RBAK) and fiber optic equipment maker Harmonic Inc. (HLIT) after the bell Monday, coupled with continued funding concerns for start-up phone companies, served as a one-two punch for the sector. Start-up phone company Winstar Communications Inc. (WCII) recently traded down almost 54% to 41 cents, while peers Teligent Inc. (TGNT) dropped 31% to 28 cents and XO Communications Inc. fell 38% to \$3.22. Investors have become increasingly nervous that those companies will face bankruptcy, as the capital markets have dried up. Even well-funded carriers weren't exempt from Tuesday's selling pressure. Shares of Qwest Communications International Inc. (Q) barely stayed above its 52-week low of \$32.13, recently dropping 6.2% to \$33.50, while shares of AT&T Corp. (T) were off 5.1% to \$20 and WorldCom Inc. (WCOM) fell 6.4% to \$17.50. -By Johnathan Burns, Dow Jones Newswires; 201-938-2020; johnathan.burns@dowjones.com

Folder Name: Telecom Technology: Fiber Optics Relevance Score on Scale of 100: 65

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Message 1266 of 1299

#### Telecommunications Regulations: U.S.: FCC May Phase Out Phone Fees

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | margo.reyna@enron.com                                                      |
| Recipients | ['sue.nord@enron.com', 'tracy.cooper@enron.com', 'scott.bolton@enron.com'] |
| File       | dasovich-j/all_documents/4195.                                             |

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 12/04/2000 08:47 AM -----

djcustomclips@djinteractive.com 12/04/2000 08:34 AM Please respond to nobody

To: 243648@WCTOPICS.djnr.com cc: Subject: Telecommunications Regulations: U.S.: FCC May Phase Out Phone Fees Paid by Local Telephone ...

FCC May Phase Out Phone Fees Paid by Local Telephone Companies

12/04/2000 Dow Jones Business News (Copyright (c) 2000, Dow Jones&Company, Inc.) WASHINGTON -- In a boost for the Baby Bells, the head of the Federal Communications Commission said he hopes his agency soon will approve a plan to gradually eliminate the billions of dollars of fees local telephone companies pay each other to complete calls, The Wall Street Journal reported on Monday. FCC Chairman William Kennard is circulating among the other four commissioners a plan to phase out the fees over three years. He said details are being negotiated, but the plan would set a formula to determine if call traffic -- and therefore the fees -- is going disproportionately from some local phone companies to others, in particular those carrying many calls to an Internet services provider. The phaseout plan would cap temporarily the number of calls one phone company must pay when another completes calls from the first company's customers, the Journal reported. After the phaseout period, the fees would be eliminated. Companies competing with the Bells that carry a lot of traffic to Internet services providers include Pac-West Telecomm Inc., Stockton, Calif., and Focal Communications Corp., of Chicago. Baby Bells would prefer an immediate elimination of the fees, since the Bells pay a disproportionate amount of them, but officials say they could live with the fees being phased out. Mr. Kennard told the Journal that the plan to eliminate the fees was prompted by the explosion of competitive local phone companies living off the fees by carrying calls to Internet services providers. States would be given flexibility in adopting the fee elimination, if the FCC approves it, he said. They wouldn't be obligated to accept it if they already had a fee system that worked well. Originally, the fees,

known as reciprocal compensation, were adopted at the behest of the Bells and other incumbents. They were supposed to benefit the incumbent phone companies, because customers of competing local phone companies were calling their customers and therefore increasing the traffic on the incumbent's phone network, the Journal reported. But then competing phone companies were set up, and their business included serving Internet services providers, which accept calls but don't make them. Under the fee system, that one-way traffic tends to work against the Baby Bells. The competing companies have said that if the fees were cut, it would cause a hike in Internet access costs, because they would have to charge more to carry the calls. Mr. Kennard said he hopes for a decision on the plan before year end. Copyright (c) 2000 Dow Jones&Company, Inc. All Rights Reserved.

Folder Name: Telecommunications Regulations: U.S. Relevance Score on Scale of 100: 68

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Message 1267 of 1299

| RE: FW: Urgent/Confidential to ALL ON 'BLIND' LIST: Speaker(s) Ne |                                                                                      |
|-------------------------------------------------------------------|--------------------------------------------------------------------------------------|
| Sender                                                            | susan.mara@enron.com                                                                 |
| Recipients                                                        | ['sandra.mccubbin@enron.com', 'mona.petrochko@enron.com', 'jeff.dasovich@enron.com'] |
| File                                                              | dasovich-j/all_documents/1767.                                                       |

----- Forwarded by Susan J Mara/SFO/EES on 09/26/2000 11:20

AM -----

MBD <MDay@GMSSR.com> on 09/26/2000 12:14:23 PM To: "Susan J Mara" <smara@enron.com> cc: Subject: RE: FW: Urgent/Confidential to ALL ON 'BLIND' LIST: Speaker(s) Ne ede d to brief Governor's Office

Now that I know that Anthony and George Cluff are organizing the event, I would stay far, far away. Maybe it would be good for them to talk to Gray Davis, just to clear up this energy thing for him.

-----Original Message-----

From: Susan J Mara [mailto:smara@enron.com] Sent: Tuesday, September 26, 2000 9:16 AM To: MBD Cc: 'Jeff Dasovich Enron SF'; Mona L Petrochko; Sandra McCubbin Subject: Re: FW: Urgent/Confidential to ALL ON 'BLIND' LIST: Speaker(s) Neede d to brief Governor's Office

I certainly don't see why this is confidential. Distribution wheeling has been "my baby" at Enron for years but I don't see Anthony Mazy contributing anything to the effort. We don't need a big conference, or 150 people, or the Governor. We just need the CPUC and the FERC to say "Stop the Madness and Open the System." So, I won't be participating. Thanks for asking.

MBD <MDay@GMSSR.com> on 09/25/2000 05:43:49 PM

To: "Jeff Dasovich Enron SF" <jdasovic@ees.enron.com>, Mona L Petrochko/SFO/EES@EES, Susan J Mara/SFO/EES@EES, Sandra McCubbin/SFO/EES@EES

cc:

Subject: FW: Urgent/Confidential to ALL ON 'BLIND' LIST: Speaker(s) Neede d to brief Governor's Office

Here is something you don't see every day. An invitation to talk to Gray Davis (maybe) about distribution wheeling. Has Enron got a candidate to offer? I would act quickly. Mike Day

-----Original Message-----

From: Mazy, Anthony [mailto:am1@cpuc.ca.gov] Sent: Friday, September 22, 2000 9:01 PM Subject: Urgent/Confidential to ALL ON 'BLIND' LIST: Speaker(s) Needed to brief Governor's Office Importance: High Sensitivity: Confidential

To all persons BCC'd:

There is an urgent need to identify at least one, and possibly two, persons to sit on a discussion panel to discuss Distribution Wheeling\* at a conference October 21-22, at UC Berkeley. The conference/symposium will be limited to approximately 150 persons, to allow close and interactive Q&A between panelists and the key audience of California's executive, legislative, and regulatory officers, and their key staff. We have been told that Governor Davis himself is expected to participate.

Please respond ASAP, nominating one individual per message (suitable for public viewing), identifying the individual together with that person's relevant interests and affiliations. Add approximately 1/4- to 1/2 page of details of the person's issue, point-of-view, or proposal, together with their relevant qualifications to address such.

If there are any questions, please call me at my office number and leave a message or reply to this e-mail. Due to the urgency of this need, and the short turn-around requested, you are welcomed to call me at home, 925-855-0554, from 7:00 AM to 9:00 PM Sat-Sun, or 5:30 to 7:30 AM Mon-Fri, Pacific time.

\*Distribution Wheeling is the practice of relieving certain local, distribution-level energy transactions from some or all of the regulations, including tariff responsibilities, pertaining to interstate transmission transactions. This issue has been addressed at some length in the CPUC proceeding R.99-10-025.

For quick reference, a copy of ORA's testimony in that proceeding (which, admittedly, does not equally cover all possible interpretations of DW) is provided for your convenience.

Anthony Mazy, P.E. Utilities Engineer Office of Ratepayer Advocates CALIFORNIA PUBLIC UTILITIES COMMISSION  
San Francisco

V: (415) 703-3036 FAX: (415) 703-1981

<<Mazy, Anthony.vcf>> <<ORA DG OIR Apr12 rev2 Ch2 only for distribution.doc>>

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Message 1268 of 1299

**FW: Draft and Alternate Decisions re PX Credit and Suspension of**

|            |                                                                                                                   |
|------------|-------------------------------------------------------------------------------------------------------------------|
| Sender     | robert.williams@enron.com                                                                                         |
| Recipients | ['james.steffes@enron.com', 'jeff.dasovich@enron.com', 'Mike; Sanders', 'Vicki; Smith', 'Richard B.', 'MDay'; ... |
| File       | dasovich-j/notes_inbox/12463.                                                                                     |

-----Original Message-----

From: Williams, Robert C. Sent: Tuesday, June 19, 2001 12:18 PM To: 'JBennett <JBennett@GMSSR.com>@ENRON'; Kingerski, Harry; 'Jeff Dasovich (E-mail)'; 'Jim Steffes (E-mail)'; Smith, Martin; 'Sue Mara (E-mail)'; Frank, Robert Cc: 'MDay'; Sharp, Vicki; Smith, Mike; Sanders, Richard B. Subject: RE: Draft and Alternate Decisions re PX Credit and Suspension of Direct Access

The language relating to negative CTC we need taken out of the Bilas draft begins on page 9 with the paragraph beginning with "We note . . ." through the first two sentences of the next paragraph to the sentence beginning "As proclaimed . . ."

-----Original Message-----

From: JBennett <JBennett@GMSSR.com>@ENRON  
[mailto:IMCEANOTES-JBennett+20+3CJBennett+40GMSSR+2Ecom+3E+40ENRON@ENRON.com] Sent: Monday, June 18, 2001 3:22 PM To: Kingerski, Harry; Jeff Dasovich (E-mail); Jim Steffes (E-mail); Smith, Martin; Williams, Robert C.; Sue Mara (E-mail); Frank, Robert Cc: MDay Subject: Draft and Alternate Decisions re PX Credit and Suspension of Direct Access Importance: High

On Friday, June 15th, a Draft Decision (by ALJ Barnett) and an Alternate Decision (by Commissioner Bilas) were released addressing the suspension of the PX credit and the suspension of direct access. In short, both the Draft and the Alternate granted SCE's Petition to suspend payment of the PX credit as of January 5, 2001. The Draft Decision continues by invoking Section 80110 of the Water Code (enacted under ABX1 1) and suspending new Direct Access transactions as of July 1, 2001. The Alternate does not suspend direct access but requests comments on how the Commission can accommodate the concerns of DWR with respect to continuation of direct access (besides suspension) without violating Section 80110.

#### Barnett Draft Decision

The Barnett draft goes through an illustration of the PX credit with the intent of showing that during the rate freeze period "should a direct access customer pay less than the PX energy price to its ESP, the direct access customer is being subsidized by the public utility and, perhaps the utility's ratepayers." The decision goes on to say, that "we note in the stipulation between SCE, Enron and WPTF, there is no mention of a cash refund to direct access customers -- the reference is to a credit." There is no provision in the stipulation which would require SCE to make a cash payment in lieu of a credit. "Utility cash which is in short supply, should be conserved to provide reliable service, not subsidize direct access." The draft decision continues by suspending DA as of July 1, 2001 and applying the order to PG&E as well.

#### Bilas Alternate

The Bilas Alternate goes through a similar analysis with respect to the PX credit payments (without as much verbiage as to the subsidization of DA customers). Bilas also makes it clear that while payment of cash is suspended, "SCE must continue to track and accrue credits for DA customers."

With respect to the suspension of direct access, the Bilas Alternate holds off. It appends a letter from DWR to the Commission as to its concerns about the impact of the continuation of Direct Access on the issuance of the bonds and asks parties to comment thereon. It is letter, DWR has set forth what it believes will be required in the way of exit fees by DA customers to allow the issuance of long term bonds with investment grade.

In addition, Bilas is looking for comments on getting away from the PX credit and going to a bottoms up calculation of DA customer bills.

#### Comments

Comments on Both the Draft and Alternate are due on Monday the 25th.

Comments on moving to a bottoms up approach are due on July 6th.

Copies of the decisions have been faxed to Sue Mara in SF and Jim Steffes in Houston. They are also available on the commission's web site under the "currently open for comment" section. If anyone would like me to fax them a copy directly, let me know.

Jeanne Bennett

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Message 1269 of 1299

#### FW: Assigned Commissioner's Ruling Requiring That Direct Access C

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | michele.sorensen@enron.com                                                                                         |
| Recipients | ['susan.mara@enron.com', 'Joe E.', 'jeff.dasovich@enron.com', 'Guzman', 'Daniel', 'Thompson', 'Jo-Linda', 'Ger...] |
| File       | dasovich-j/inbox/912.                                                                                              |

----- Forwarded by Michele Sorensen/HOU/EES on 11/21/2001 11:17 AM -----

Enron Energy Services From: Michele Sorensen 11/21/2001 10:48 AM Phone No: 562 901 3807 Office 714 813-0742 Cell 888 578 8404 Pager



To: Lamar Frazier/HOU/EES@EES, Susan J Mara/SFO/EES@EES, Jeff Dasovich/SFO/EES@EES cc: Mike D Smith/HOU/EES@EES Subject: FW: Assigned Commissioner's Ruling Requiring That Direct Access C ontr acts And Agreements Be submitted in A.98-07-003 et al.

I received a call from Jack in the Box this morning regarding Commissioner Wood's ruling requiring that copies of Direct Access Contracts be submitted by 12-3-01. They would like to know what our position is regarding this ruling? Are we submitting them? If we are submitting the contracts, are we deleting the names or specific information? What are our thoughts on the risks of being "uncooperative".

Steve Brigandi at JBX would like a response by early next week.

See the note below. Please call to discuss.

Thanks, Michele ----- Forwarded by Michele Sorensen/HOU/EES on 11/21/2001 10:22 AM

-----  
"Steve Brigandi" <steve.brigandi@jackinthebox.com>@jackinthebox.com on 11/21/2001 09:54:08 AM To: msorensen@enron.com cc: Subject: FW: Assigned Commissioner's Ruling Requiring That Direct Access C ontr acts And Agreements Be submitted in A.98-07-003 et al.

----- Forwarded by Steve Brigandi/CSC/FMI on 11/21/2001

09:53 AM -----

"Mattes, Martin" <MMattes@nossaman.com> on 11/19/2001 08:09:45 PM To: "Steve Brigandi (E-mail)" cc: "Thompson, Jo-Linda" , "Gerald, Daniel" , "Guzman, Joe E."

Subject: FW: Assigned Commissioner's Ruling Requiring That Direct Access C ontr acts And Agreements Be submitted in A.98-07-003 et al.

Steve -- The attached ruling by Commissioner Wood -- just received late today -- puts Jack in the Box at significant risk of being placed in a category of "uncooperative" direct access customers whom the CPUC might seek to deprive of the entitlement to their direct access contracts -- unless Jack provides a copy of its contract (initially under seal) for consideration as evidence in the CPUC proceeding. The "protection" contemplated by the Assigned Commissioner is comparable to that accorded utility documents submitted to the CPUC, which are protected unless and until the Commission or a presiding Commissioner or ALJ decides public disclosure is warranted. An earlier ruling indicated a willingness to allow redaction of customer identifying information and that would be easier to make effective if the contract were to be submitted by our ESP (is it Enron?) rather than by us. Maybe we should try to get the ALJ or the Assigned Commissioner to agree that if an ESP submits a customer's contract (with identifying information redacted) and includes the customer's name on a list of all customers whose contracts have been submitted, then the customer need not do so.

Is confidentiality important to Jack in the Box? If so, what information in the contract would need to be redacted to provide adequate confidentiality protection (e.g., addresses, phone numbers, etc.)? Is Jack's ESP willing to cooperate in seeking a solution such as I've suggested above?

I'm leaving town Wednesday at noon and will be in hearing in LA Monday through Thursday of next week. But I'll be checking e-mail and voice mail regularly.

Regards,

Marty

-----Original Message----- From: Keller, Kris [mailto:k47@cpuc.ca.gov] Sent: Monday, November 19, 2001 4:47 PM To: Service List Subject: Assigned Commissioner's Ruling Requiring That Direct Access Contr acts And Agreements Be submitted in A.98-07-003 et al. <<CPUC01-#110768-v1-A9807003\_et\_al\_Wood\_Ruling\_.doc>>

(See attached file: CPUC01-#110768-v1-A9807003\_et\_al\_Wood\_Ruling\_.doc)

- CPUC01-#110768-v1-A9807003\_et\_al\_Wood\_Ruling\_.doc



Message 1270 of 1299

**Gas Accord II: 9/14 Mtg. Reminder**

|            |                                                                                                                    |
|------------|--------------------------------------------------------------------------------------------------------------------|
| Sender     | frl3@pge.com                                                                                                       |
| Recipients | ['d2mr@pge.com', 'agoldberg@lgl.twc.com', 'abb@eslawfirm.com', 'ahuertas@enron.co.uk', 'rdw0@pge.com', 'gjb2@p...] |
| File       | dasovich-j/all_documents/1282.                                                                                     |

Confidential Settlement Document Under CPUC Rule 51

**PARTIES:**

This is a reminder that PG&E is initiating "Gas Accord II" settlement discussions under CPUC Rule 51, at a meeting to be held in San Francisco on Thursday, September 14. We plan to start at 9:30 a.m. and end around 3:30 p.m. We will provide lunch. The meeting is now at PG&E headquarters in Conference Room A, 245 Market Street (on the ground floor), and not at the PG&E Energy Center as first announced.

Our objectives for this first meeting are to develop a list of all the major issues that parties would like to have addressed, and also to agree on a process for resolving the issues. Attached is our proposed agenda for this kick-off meeting.

You can also help us prepare for this meeting and make it a success by providing us a list of the issues you would like to have addressed in Gas Accord II. We would like to put together a preliminary list of issues for discussion at the meeting. The following issues were deferred to Gas Accord II as part of the PG&E's Comprehensive Gas OII Settlement:

\* o4.1 Develop Clear Procedures for Allocating Firm Capacity, i.e. Open-Season Procedures \* o4.2 Transmission Interconnection Policy, Terms and Conditions \* o4.4 Local Transmission Reliability, Design Standards and Curtailment Provisions \* o4.5 Mechanisms to Reduce Costs to Noncore Customers Connecting To or Close To PG&E's Backbone Transmission Facilities, including "Direct Connect" issues \* o2.6 Costs and Rates for Utility Core Procurement Services, including cost allocations and brokerage fee

Additionally, the OFO Forum recommended the issue of adding more storage to support balancing be made part of Gas Accord II.

Please provide us with your own preliminary list of issues by midday, Wednesday, September 13. We will compile all the identified issues into a single list and distribute them at the meeting as a first step in building a working issues list.

Also, please note that we are continuing to compile our new Gas Accord II mailing list. We will maintain two lists: one for general notices of meetings and settlement conferences, and another for those who have expressly agreed to abide by the terms of CPUC Rule 51 (attached). Since Rule 51 protects the confidentiality of settlement negotiations, those on this list will be able to receive settlement documents and other related settlement materials. Everyone on the Rule 51 list will be automatically included on the general notice list. If you have not already done so, please complete and return the attached form so we can put you on the appropriate lists and include your up-to-date information.

Please send your list of issues, as well as mailing list information, by e-mail to Geoff Bellenger at gjb2@pge.com, and to Frank Lindh at frl3@pge.com, or by FAX to Geoff Bellenger at 415-973-0881.

Next, we have attached a list of our suggested dates for Gas Accord II workshops and meetings. We would like to agree on these dates at our September 14 meeting. Our prior settlement experience suggests that setting aside dates early makes it easier on all parties to make necessary arrangements.

Lastly, we will send by separate e-mail transmittal, for your information, the original Gas Accord Settlement, the OFO Settlement, and the OII Settlement. Each settlement expires as of December 31, 2002, or March 31, 2003, for certain provisions which relate to storage. We believe these settlements form the foundation for our Gas Accord II settlement discussions.

We look forward to meeting with you and starting the Gas Accord II settlement process. Please call or e-mail us if you have any questions or concerns.

Best regards,

Frank Lindh Ray Williams Attorney Director 415-973-2776 415-973-3634 frl3@pge.com rdw0@pge.com

<<Agenda 9-14-00 All-Party>> <<Proposed GA II Meeting Schedule>> <<Mailing List Information.doc>> <<CPUC Rule 51>>

- Agenda 9-14-00 All-Party.doc - Proposed GA II Meeting Schedule.doc - Mailing List Information.doc - CPUC Rule 51.doc

Message 1271 of 1299

### Get Ken Fisher's Stock Market report Free.

|            |                                      |
|------------|--------------------------------------|
| Sender     | thestreet@offers2.mail-thestreet.com |
| Recipients | ['jdasovic@enron.com']               |
| File       | dasovich-j/inbox/990.                |

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Dear Investor:

My name is Ken Fisher. I write the "Portfolio Strategy" Column for Forbes magazine and serve as Chairman and Chief Investment Officer of Fisher Investments, Inc. My firm manages over \$7.5 billion for institutions and high-net-worth individuals.

I recognize you may not be considering doing anything differently with your investments right now. Regardless, I'd like to send you a kit of useful insights you can't get anywhere else free and without obligation.

As soon as you fill out the online-request form, I'll email you the latest version of my Quarterly Report. It's designed to be interesting to investors whether they are interested in the full service we specialize in or not. The report, which I update with my latest thinking, highlights my viewpoint on:

- Which stocks to select for investment now
- The right balance between equities, fixed income securities and cash in this volatile market
- The role mutual funds play in the portfolios of high-net-worth individuals
- The impact of the Federal Reserve's actions on your investment strategy

Fisher Investments' latest private Quarterly Report normally is given, along with their investment results, only to our clients. Each one has at least \$500,000 in our care. After you have requested the Report, you will have the chance to review my Seminar on Money Management. I strongly encourage you to visit the Seminar. It reveals the strengths and weaknesses of management options available to people like yourself.

The reason I'm offering you this extensive intellectual capital at my expense: I've found educating high-net-worth investors is good for our investment management business, whether any individual becomes a client or not.

Some, for whom our outstanding client service and strong results are attractive, become clients. Others simply listen, learn and use our advice to inform their own management. But they tell their friends, some of whom prefer to have the details taken care of for them.

Whichever group you fall into, please allow me to give you the benefit of my firm's original research and my thinking. I'm certain you'll find it interesting and useful. And, of course, FREE and without obligation.

Thanks for your attention. I look forward to hearing from you.

Sincerely,

Kenneth L. Fisher Chairman and Chief Investment Officer

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Message 1272 of 1299

## NASA SAYS SATELLITE INTERNET SYSTEM COULD HAVE EARTH ROLE

|            |                                                                                                                                                                                                              |
|------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Sender     | <a href="mailto:margo.reyna@enron.com">margo.reyna@enron.com</a>                                                                                                                                             |
| Recipients | <a href="mailto:[sue.nord@enron.com]">[sue.nord@enron.com]</a> , <a href="mailto:[tracy.cooper@enron.com]">tracy.cooper@enron.com</a> , <a href="mailto:[scott.bolton@enron.com]">scott.bolton@enron.com</a> |
| File       | <a href="#">dasovich-j/all_documents/4291.</a>                                                                                                                                                               |

FYI...

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 12/05/2000 01:13 PM -----

[djcustomclips@djinteractive.com](mailto:djcustomclips@djinteractive.com) 12/05/2000 11:32 AM Please respond to nobody

To: [170626@WCTOPICS.djnr.com](mailto:170626@WCTOPICS.djnr.com) cc: Subject: Telecom Services: Satellites, Broadband Services: NASA SAYS SATELLITE INTERNET SYSTEM COULD ...

### NASA SAYS SATELLITE INTERNET SYSTEM COULD HAVE EARTH ROLE

12/04/2000 Satellite Week (c) Copyright 2000 Warren Communications News, Inc. All Rights Reserved. NASA-Veridian Internet-based satellite control project could have implications beyond space industry, and much sooner than 10-year time frame for system's launch, developers say. NASA and Veridian have developed Internet-based virtual private network and firewall that allows engineers on ground to control functions in space, freeing astronauts for other jobs. It was demonstrated Nov. 2 at Johnson Space Center in Houston. Ground industries, including banking, have expressed interest in implementing version of system for their use. Such a system "depends on what they want to do. It depends on the robustness of the controls," said James Light, Veridian deputy dir. of space and network systems. He told us "we could roll out a security solution within 3 months." System could save time and money across the board, said Phillip Paulsen, project mgr. for NASA Glenn Research Center in Cleveland. Among those interested in new technology, "satellite vendors are very interested because they look at it as a way to reduce time to build" and validate spacecraft, Paulsen said. System also would allow problems to be detected earlier, giving engineers opportunity to fix them before launch. He said data from Goddard-supplied module that communicated with active satellite in test were "extremely good." Paulsen said Veridian supplied its own money for project from its internal development fund. Company developed virtual private network (VPN) that acts as firewall that protects user as well as data by setting up encrypted 2-way communication. Authentication validates user name and password and uses biometric technology that takes thumbprint and body temperature. System

"can detect if someone attempts to break in or if someone on the inside attempts to do something they shouldn't do," Paulsen said. Employees would need thumbprint to access system, and users could leave desk and others with less access couldn't send commands on active user's log-in. System also can detect hacking attempts by finding IP addresses and locations of hackers. During demonstration, "we brought one of our professional hackers to show some security layers," Light said. Probes also came from Europe, Japan and U. of Cincinnati. "We could see how deep they got and they didn't get any information from the probe," Light said. System also was set up to provide electronic certificates that grant access for specific times, denying access to people if they try to log on out of time. Secure Missions Operations Control Center (SMOCC) has database built in with information on which individuals have access and extent of access. System also can prioritize access, giving it at specific time to one researcher and denying it at same time to another. It's configured so that "worst thing" unauthorized user can do is "run a controlled experiment," Paulsen said. Security system leaves no traces of software used to run it; if a researcher had computer stolen, thief could not access experiments.

Folder Name: Telecom Services: Satellites, Broadband Services Relevance Score on Scale of 100: 75

To review or revise your folder, visit Dow Jones CustomClips or contact Dow Jones Customer Service by e-mail at [custom.news@bis.dowjones.com](mailto:custom.news@bis.dowjones.com) or by phone at 800-369-7466. (Outside the U.S. and Canada, call 609-452-1511 or contact your local sales representative.)

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Message 1273 of 1299

#### RE: IT's ALEADY BEEN CIRCULATED to customers

|            |                                                                                                        |
|------------|--------------------------------------------------------------------------------------------------------|
| Sender     | c..williams@enron.com                                                                                  |
| Recipients | ['vicki.sharp@enron.com', 'susan.mara@enron.com', 'michael.mann@enron.com', 'lamar.frazier@enron.com'] |
| File       | dasovich-j/deleted_items/1721.                                                                         |

Sue, let's you, Mike, and I talk to Ed Duncan about revising the Brief. I don't think it matters that a draft went to some customers.

-----Original Message-----

From: Mara, Susan Sent: Thursday, September 13, 2001 11:49 AM To: Williams, Robert C. Cc: Mann, Michael; Sharp, Vicki; Frazier, Lamar; Schwarz, Angela; Keeney, Kevin; Blachman, Jeremy; Steffes, James D.; Dasovich, Jeff; Kaufman, Paul; Sharp, Vicki; Smith, Mike Subject: IT's ALEADY BEEN CIRCULATED to customers Importance: High

Bob, AS you can see from the e-mail I sent you, I believe it has already been circulated to customers -- by today, if not yesterday. This is the same draft that you received from me on Monday. Bob, we have to move fast -- we have to be prepared to file within a few hours of any CPUC action. Believe me, chaos will begin if the CPUC votes for retroactive DA suspension

Others, Given Bob's request, please do not circulate to any more of our customers until further notice.

Sue -----Original Message----- From: Williams, Robert C. Sent: Thursday, September 13, 2001 9:05 AM To: Mara, Susan Cc: Sharp, Vicki; Smith, Mike Subject: RE: Preparing for Legal Action against a retroactive DA suspension

Sue, there are some statements in the brief that would be contrary to positions we would take in arbitration on ouu unwind rights. For now, please don't circulate to any customers. I will take a look at the language more closely.

-----Original Message-----

From: Mara, Susan Sent: Wednesday, September 12, 2001 6:17 PM To: Mann, Michael; Sharp, Greg; Frazier, Lamar; Schwarz, Angela; Keeney, Kevin Cc: Blachman, Jeremy; Steffes, James D.; Dasovich, Jeff; Kaufman, Paul; Williams, Robert C. Subject: Preparing for Legal Action against a retroactive DA suspension Importance: High

As of this point in time, the CPUC is NOT expected to vote tomorrow. The CPUC has not said when a new meeting would be held. Although we continue to keep the pressure on, the CPUC vote could be for DA suspension as of July 1. We need

to be prepared to take immediate legal action in that event. Here is the plan and what we'd like from customers.

Within a few hours of a CPUC vote, we plan to file at the CPUC for an emergency stay and request for rehearing. As part of that filing, we would need to include all of the points we would raise in the court and declarations from each individual aggrieved party. The declarations would be held completely confidential by the attorney, transmitted directly through our outside attorney and would be filed under protective seal at the Commission. The attorneys are preparing a pro-forma declaration that each party can use to prepare their own. I will e-mail that as soon as I have it. The draft court case is attached. It will form the basis for our CPUC filing. We would expect the CPUC to ignore the filing. If the Commission failed to act on our request by the next regularly scheduled meeting, we would file in court immediately. We would use the same declarations and much of the same filing info in the court case. To the extent we have customers on our filings, we have a much better shot at winning. I have gotten agreements from a number of other ESPs who will join with us. They are: APSES, Strategic Energy, AES/New Energy, American Utility Network, and perhaps Commonwealth. Each of these, in turn, is working to get some of their customers to sign on. I am working with UC's attorney to see if they will join. Our strategy is similar if the Legislature enacts a law with a retroactive date. The major differences are that we would go directly to court and we would have to wait until the bill was signed by the Governor. Some of our ESP and customer friends would likely drop off at that point, because they have less financial harm from an Aug 25 date. If you have customers interested in signing on, please let me know. The customer may contact me or the attorneys directly. Here is contact info: Sue Mara, Enron Government Affairs, (415) 782-7802 Dan Douglass, outside attorney (formerly with Arter & Hadden), preparing CPUC filing (818) 596-2201 Ed Duncan, Arter & Hadden, preparing court case (818) 596-2291

<< File: Joint Petition Sept 10 Draft.doc >>

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Message 1274 of 1299

[Fwd: Information Update on Perix]

|            |                                                                           |
|------------|---------------------------------------------------------------------------|
| Sender     | charryl@pacbell.net                                                       |
| Recipients | [joellising@ca.slr.com, 'clintonsmor@aol.com', 'jeff_dasovich@enron.com'] |
| File       | dasovich-j/all_documents/8971.                                            |

----- Original Message -----

Subject: Information Update on Perix Date: Mon, 05 Feb 2001 20:02:33 -0500 (EST) From: MarkRsea@aol.com To: ROB-GRETCHEN-DAVIS@email.msn.com, moryak@worldnet.att.net, anchoraweigh@caltel.com, zaverukha@worldnet.att.net, akoola@juno.com, KKKobe@kh.rim.or.jp, MNJC@home.com, SUMMITEERS@worldnet.net, lgo2c@aol.com, JOJOLA7@aol.com, charryl@pacbell.net, sakae\_yamamoto@ccgate.apl.com, skuwada\_ilms@msn.com, SAUTNERS@pacbell.net, CAPTPWF@aol.com, jimbo@pacifier.com, CatRsea@aol.com, merahma@boracap.i-next.net, SeaBaggg@aol.com, ICEAXXE@aol.com, cregan@juno.com, jules@shasta.com, LADAIR@directcon.net, ADAIR6@prodigy.net, jer@oregon.uoregon.edu

Good day all: I want to update you on some events regarding Perix. I have tried to contact them today via telephone, web site and email and I'm not having any luck. I presently don't know if they are in business or been bought out by another firm or what. The Web Site I tried: perixindustries.com connects me to another firm SRS Consulting. Email address: perixgroup@aol.com gives the following error "This is not a known member" Telephone number 714-923-2612 and fax number 714-923-2601 are continuously busy. If you have the correct contact numbers, please let me know.

Some history: Oct 4, 2000, Chairman of the Board for Perix Industries, Mr. James E. Reinmuth stated in an email, "I will personally commit to the preparation of a Perix newsletter within the next 60 days which summarizes the results of negotiations with several potential joint venture partners, and our plans for Year 2001." I have received no information. Mr. Reinmuth's letter was in direct response to the concern raised by several shareholders on the lack of information on our investment. If anyone has received the newsletter, please email me and I'll forward a check to you to mail me a copy.

Nov 8, 2000: Letter sent to Perix Industries by attorney Zachary A. Wright of Short, Cressman & Burgess, PLLC on behalf of myself requesting financial information of Perix. As per Mr. Wright, I quote the following, which was sent to Perix in the letter: QUOTE California corporations are required by law to make certain information available to shareholders. First, an

annual report must be provided to shareholders within 120 days of the end of the corporation's fiscal year, unless this requirement is waived by the corporation's bylaws. Cal.CorpCode 1501(a). Even if the requirement is waived, the corporation must provide a year-end financial report to a shareholder within (30) days of the shareholder's request for it. Cal.CorpCode 1501(c). This year-end financial report must contain a balance sheet and an income statement, as well as a statement of changes in financial position for the fiscal year. It must be accompanied by a report of the corporation's independent accountants or, of there is no such report, a certificate signed by an authorized officer of the corporation that the statements were prepared accurately and completely from the books and records of the corporation. Second, California law requires that corporations make available to shareholders "accounting books and records" of the corporation, as well as the minutes of any proceedings of shareholders, the board of directors or committees of the board of the corporation. Cal.CorpCode 1601. This definition encompasses all books of account, accounting journals, share registers or duplicate share registers. We hereby demand that you copy and mail to us the information that must be made available to Mr. Remijan under California law no later than thirty (30) days from the date of this letter. UNQUOTE My attorney or I have not received any word or information from Perix regarding this request for financial information. Mr Wright advises that I could file a lawsuit for a writ of mandamus or other order to obtain this information from Perix. California law Cal.Corp.Code 1603 and other applicable law also provides for payment of all costs and attorneys' fees by the corporation in the event that the shareholder is required to file suit to obtain the information.

If anyone has further information about whether Perix is still in business, I would appreciate an email. Something tells me that it doesn't look good for us. I hope that I am wrong. Thanks and best regards, Mark Remijan MarkRsea@aol.com 206-782-3278

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Message 1275 of 1299

## RE: CEC Report on Natural Gas Supplies Adopted

|            |                             |
|------------|-----------------------------|
| Sender     | stephanie.miller@enron.com  |
| Recipients | ['jeff.dasovich@enron.com'] |
| File       | dasovich-j/inbox/488.       |

Thanks!

-----Original Message-----

From: Dasovich, Jeff Sent: Friday, October 05, 2001 11:46 AM To: Tycholiz, Barry; Miller, Stephanie; Dyer, Laird; Belden, Tim Subject: FW: CEC Report on Natural Gas Supplies Adopted

FYI.

-----Original Message-----

From: Schoen, Mary Sent: Thursday, October 04, 2001 11:58 AM To: Parquet, David; Wehn, Samuel; Comnes, Alan; Swain, Steve; Brodbeck, Kelly Cc: Keeler, Jeff; Dasovich, Jeff; Mara, Susan Subject: CEC Report on Natural Gas Supplies Adopted

The CEC just approved a report drafted by staff that states there will be adequate natural gas supply this winter for electricity generation needs. It does qualify this statement by discussing where potential bottlenecks in delivery might occur and recommends actions to address the bottlenecks. See below for a link to the report.

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

For immediate release: October 3, 2001 Contact: Claudia Chandler : 916-654-4989

Energy Commission Report Projects Improved Natural Gas Supplies For the State

Sacramento -While current natural gas prices in California have dropped to approximately half of 2000's average price, the specter remains of last December, when tight supplies caused prices to spike to 25 times their present rates. Now, as winter approaches, industry watchers wonder if the State has enough of the clean-burning fuel for the upcoming heating season, even as new gas-fired electricity generators come on line.



The Natural Gas Infrastructure Issues Report , adopted today by a 4-to-0 vote of the California Energy Commission, gives a qualified "yes" to the question of adequate supplies this winter. It identifies sufficient storage as a critical factor, and notes that utilities have substantially increased natural gas storage, largely because conservation and efficiency have dampened summer electricity demand.

Nearly 85 percent of the natural gas used by Californians comes by pipeline from gas fields located outside the State. Since California typically uses more natural gas in the winter than interstate pipelines can provide, additional supplies must be set aside in summer months to help balance supply and demand. For this reason, the report recommends that the Energy Commission continuously assess storage levels and monitor infrastructure improvements throughout the year.

The newly adopted report points out that California's natural gas supply system was designed years ago to provide enough gas for winter's peak heating demand. An increasing reliance on natural gas for generating electricity, however, has strained the system and revised old patterns of consumption.

"This report helps Californians understand what we have to do to assure that we have a reliable and reasonably priced electricity and natural gas system in the future," said Energy Commissioner Michal (spelling correct) Moore, Presiding Member of the Electricity and Natural Gas Committee that developed the document.

To help resolve possible supply problems, the document analyzes not only natural gas storage requirements but the interstate pipelines that bring the fuel from distant gas fields to the California border. These pipelines can deliver slightly more natural gas than intra-state gas pipelines ? those within our State's borders ? can receive. As a result, there are bottlenecks in getting some supplies to gas consumers that the report says must be improved.

Pacific Gas and Electric Company (PG&E) and Southern California Gas Company (SoCal Gas) are improving and expanding their intra-state pipeline systems to help eliminate these constraints. According to the report, planned expansions of the interstate pipeline network should increase natural gas delivery to the State beginning next year, and additional improvements to the natural gas system should help prevent higher-than-normal prices that plagued California last winter.

Natural gas supplies in North America appear to be sufficient to meet demand in California and the rest of the United States for the next 50 years. The report recommends that the Energy Commission continue to monitor drilling rig activity and production levels for the long-term outlook. It also suggests that the Energy Commission, along with the Public Utilities Commission, should find ways to encourage and increase the in-state supply of natural gas.

The just adopted Natural Gas Infrastructure Issues Report can be found on the Energy Commission's Web Site at:

[www.energy.ca.gov/contracts](http://www.energy.ca.gov/contracts) <<http://www.energy.ca.gov/contracts>>

Or report is attached:

<< File: Gas Infrastructure Report.pdf >>

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Message 1276 of 1299

## Re: SCE Advice Filing on PX Credit -- Protest

|            |                                                                                           |
|------------|-------------------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                                   |
| Recipients | ['Sue Mara (E-mail)', 'llawner@enron.com', 'Jeff Dasovich (E-mail)'] <jdasovic@enron.com> |
| File       | dasovich-j/all_documents/11354.                                                           |

----- Forwarded by Jeff Dasovich/NA/Enron on 04/20/2001 04:28 PM -----

Jeff Dasovich Sent by: Jeff Dasovich 04/20/2001 04:25 PM

To: Scott Stoness/HOU/EES@EES cc: Harry Kingerski/NA/Enron@ENRON, JBennett <JBennett@GMSSR.com>, Leslie Lawner/HOU/EES@EES, Tamara Johnson/HOU/EES@EES, Susan J Mara/NA/Enron@ENRON, MDay@GMSSR.com  
Subject: Re: SCE Advice Filing on PX Credit -- Protest



Looks good, Scott. One thing: I admit I'm not a lawyer, so someone needs to show me the precise language in AB 1890 that 1) requires the credit (which, I believe was created by the PUC, not the legislature) to be based on market and 2) requires DA customers to be indifferent to be from DA suppliers.

Mike Day: Do you concur with Scott's interpretation in AB 1890?

Like your arguments, Scott. Just want to clarify that we're on solid legal ground before putting the arguments forward in a brief and/or protest.

Best, Jeff

Scott Stoness@EES 04/20/2001 10:46 AM

To: JBennett <JBennett@GMSSR.com> @ ENRON cc: Harry Kingerski/NA/Enron@Enron, Tamara Johnson/HOU/EES@EES, Leslie Lawner/HOU/EES@EES, Jeff Dasovich/NA/Enron@Enron Subject: Re: SCE Advice Filing on PX Credit -- Protest

We should protest this issue and argue that nothing should change but that the Px credit should be based on DJ-NP15 and DJ-SP15 rather than the defunct Px because AB1890 requires it to be based on market (not costs). Changing to procured energy is inconsistent with the law AB1890 which requires DA customers to be indifferent to buying from DA suppliers. And since DA suppliers face costs close to DJ-NP15/SP15, that is the only appropriate available method.

Further, the issue of how to calculate Px is interrelated to whether DA customers should be charged the generation surcharges (\$10 +\$30). DA customers should be given market based Px credits (based on DJNP15/SP15) because its the law. There are 2 possible interpretations resulting from the combination of AB1890 and the new law. The DA customers should get a market based Px credit and not pay any surcharge. The DA customers should get a market based Px credit and pay the \$30 + \$10 surcharges Interpretation 1 results in DA customers getting lower rates than all other customers. It seems unlikely that the legislation would have this intent. Interpretation 2 results in DA customers getting the same rate as all other customers until the end of AB1890. This seems like the likely interpretation since otherwise the new legislation would have repealed AB1890. Thus given that the DA customers are being held indifferent to frozen rates plus \$40, they should get a Px market based credit plus pay the surcharge until the rate freeze ends.

Once the Px credit ends (Mar 2002), the surcharge should end because the law (AB1890) no longer requires them to be held at frozen rates and because: Any customer that is being served by a supplier other than DWR and the utility is not causing any costs for DWR or the utility therefore they should not be charged for them.

In the event that Px credit is not set based on market value (if the courts interpret the law differently than Enron) then there should be no generation surcharge for DA customers.

This is the same argument we should make in our brief on rate setting Scott

JBennett <JBennett@GMSSR.com> on 04/20/2001 09:03:06 AM To: "Harry Kingerski (E-mail)" <Harry.Kingerski@enron.com>, "Robert Neustaedter (E-mail)" <Robert.Neustaedter@enron.com>, "Scott Stoness (E-mail)" <sstoness@enron.com>, "Tamara Johnson (Business Fax)" <IMCEAFAX-Tamara+20Johnson+40+2B1+20+28713+29+20345-7374@GMSSR.com> cc: "Jeff Dasovich (E-mail)" <jdasovic@enron.com>, "Sue Mara (E-mail)" <smara@enron.com> Subject: SCE Advice Filing on PX Credit -- Protest

As you are aware, SCE made an advice filing on April 5th to eradicate the PX Rate Schedule and Replace it with Schedule PE --Procured Energy. As part of the filing, SCE proposes to set "on an interim basis" the cost of energy procurement, for bundled service customers for billing purposes and in the calculation of the energy credit for direct access customers equal to the Generation rate component of the Customer's otherwise applicable tariff.

Two primary issues arise from SCE's statement. First what does "interim basis" mean -- how long will this be in effect. It starts on January 19th, but it is unclear as to when it would end. Second, and most important, is what is meant by the Generation rate component. While there is not much explanation in the April 5 advice letter, in a subsequent advice letter filed on April 11 (1533-E), SCE set forth "Rate Schedule Specific Generation Related Rates" which range between five and nine cents.

I have forwarded both the referenced advice letters to you earlier. We need to protest the change in the PX credit by Wednesday, April 25th. All thoughts on the matter are welcome.

Jeanne

Message 1277 of 1299

## RE: CEC Report on Natural Gas Supplies Adopted

|            |                             |
|------------|-----------------------------|
| Sender     | m..landwehr@enron.com       |
| Recipients | ['jeff.dasovich@enron.com'] |
| File       | dasovich-j/inbox/655.       |

ok so now that I read this email my last reply sounds just a bit air headed. As will this comment...didn't know our friend Racicot was doing that. Is he doing it on contract or was he named to some committee by W?

-----Original Message-----

From: Dasovich, Jeff Sent: Wednesday, October 17, 2001 7:09 PM To: Landwehr, Susan M. Subject: FW: CEC Report on Natural Gas Supplies Adopted

Hey infrastructure team mate. I'm forwarding you some infrastructure stuff from the West. Heard Marc Racicot's going to be negotiating timber trade with Canada. That's something, huh?

Best, Jeff

-----Original Message-----

From: Schoen, Mary Sent: Thursday, October 04, 2001 11:58 AM To: Parquet, David; Wehn, Samuel; Comnes, Alan; Swain, Steve; Brodbeck, Kelly Cc: Keeler, Jeff; Dasovich, Jeff; Mara, Susan Subject: CEC Report on Natural Gas Supplies Adopted

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[www.energy.ca.gov/contracts](http://www.energy.ca.gov/contracts) <<http://www.energy.ca.gov/contracts>>

Or report is attached:

<< File: Gas Infrastructure Report.pdf >>

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Message 1278 of 1299

#### Telecom Services: Broadband Services: FCC'S 5TH SET OF OPEN ACCESS

|            |                                                                            |
|------------|----------------------------------------------------------------------------|
| Sender     | margo.reyna@enron.com                                                      |
| Recipients | ['sue.nord@enron.com', 'tracy.cooper@enron.com', 'scott.bolton@enron.com'] |
| File       | dasovich-j/all_documents/4300.                                             |

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 12/05/2000 02:51 PM -----

djcustomclips@djinteractive.com 12/05/2000 10:09 AM Please respond to nobody

To: 123363@WCTOPICS.djnr.com cc: Subject: Telecom Services: Broadband Services: FCC'S 5TH SET OF OPEN ACCESS COMMENTS LOOKS FAMILIAR

FCC'S 5TH SET OF OPEN ACCESS COMMENTS LOOKS FAMILIAR

12/04/2000 Communications Daily (c) Copyright 2000 Warren Communications News, Inc. All Rights Reserved. Familiar lines were drawn in comments on FCC's inquiry into broadband access (00-185). "Four times in two years the Commission has investigated the questions of whether or how it should regulate cable operators that offer cable Internet services," AT&T began its filing, and many participants appeared to have drawn liberally from their previous remarks. AT&T and Comcast were joined by predictable group including Competition Policy Institute and Information Technology Industry Council in opposing access rules, citing growing competition from other broadband providers and existing access agreements with ISPs. Consumer groups and OpenNet Coalition took other side, questioning commitments cable has made so far. In war that has featured creative semantics for years, CompTel rolled out new weapon, calling for "minimum cable open access rules" that would require full unbundling of cable transmission platforms for telecom as well as ISP service. In filing that chided FCC for its inaction and "inadequate" step in ordering inquiry rather than rulemaking, consumer groups led by Consumers Union asked FCC to ignore recent federal court decision in Broward County, Fla.,

which struck down local access ordinance. Groups said ruling was "fundamentally flawed and does not bind the Commissions's First Amendment analysis. It is not supported by law or fact, and unlikely to be adopted by other courts." They said absence of open access has already allowed "harm" to set in as corporate actors make business plans and cement technology decisions through purchase and installation of equipment and infrastructure. Open access plans that have been announced have "not occurred because the marketplace is forcing that outcome," the groups said, but because various regulatory agencies "have been involved in unnecessary and time-consuming proceedings while the FCC remained on the sidelines." Opponents of open access warned of consequences should FCC begin access rulemaking. Comcast said rulemaking "would enmesh the Commission in extraordinarily complex matters that would require years of rulemaking and a mis-allocation of govt. resources that should be deployed in true competition-enhancing efforts." AT&T said enhanced regulation of broadband services isn't necessary because of competitive alternatives to cable broadband, including DSL, wireless services and satellite services. It also highlighted Canada's efforts to require open access to broadband cable, which AT&T said have been "mired in complex proceedings ever since, and despite these proceedings, Canada is no closer than is the United States to the development of the arrangements required for multiple ISPs to access customers over cable systems." Both operators celebrated cable's foray into open access. Noting its recent agreement with Juno, Comcast said it "expects to forge business relationships with other Internet service providers, and is already taking steps necessary to prepare for such developments." Meanwhile, cable companies dismissed lightly USTA's petition to require them to pay into telephone universal service fund on revenue from cable Internet services. FCC "ought not to concern itself with the petition," Comcast said, devoting less than page to topic in its 45-page filing. It said USTA's petition is based on assessment that cable Internet is telecom service, which is far from settled: "That, of course, is the open question." Even if cable Internet is telecom, Comcast said, there would be "no universal service issue that requires Commission clarification." It said FCC's policy has been not to apply universal service requirements to ISPs that "self-provide" underlying telecom service. OPASTCO disagreed, saying requiring universal service contributions would "be consistent with the Commission's commitment to competitive and technological neutrality." It said allowing cable companies to escape contributing increases burden on other industries. -- Terry Lane, Sasha Samberg-Champion

Folder Name: Telecom Services: Broadband Services Relevance Score on Scale of 100: 89

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Message 1279 of 1299

## RE: CEC Report on Natural Gas Supplies Adopted

|            |                                                                              |
|------------|------------------------------------------------------------------------------|
| Sender     | jeff.dasovich@enron.com                                                      |
| Recipients | ['Susan', 'Keeler', 'Jeff; Mara', 'm..landwehr@enron.com', 'Jeff; Dasovich'] |
| File       | dasovich-j/sent_items/1145.                                                  |

apparently named by W himself as THE negotiator...

-----Original Message-----

From: Landwehr, Susan M. Sent: Wed 10/17/2001 9:38 PM To: Dasovich, Jeff Cc: Subject: RE: CEC Report on Natural Gas Supplies Adopted

ok so now that I read this email my last reply sounds just a bit air headed. As will this comment...didn't know our friend Racicot was doing that. Is he doing it on contract or was he named to some committee by W?

-----Original Message-----

From: Dasovich, Jeff Sent: Wednesday, October 17, 2001 7:09 PM To: Landwehr, Susan M. Subject: FW: CEC Report on Natural Gas Supplies Adopted

Hey infrastructure team mate. I'm forwarding you some infrastructure stuff from the West. Heard Marc Racicot's going to be negotiating timber trade with Canada. That's something, huh?

Best, Jeff

-----Original Message-----

From: Schoen, Mary Sent: Thursday, October 04, 2001 11:58 AM To: Parquet, David; Wehn, Samuel; Comnes, Alan; Swain, Steve; Brodbeck, Kelly Cc: Keeler, Jeff; Dasovich, Jeff; Mara, Susan Subject: CEC Report on Natural Gas Supplies Adopted

The CEC just approved a report drafted by staff that states there will be adequate natural gas supply this winter for electricity generation needs. It does qualify this statement by discussing where potential bottlenecks in delivery might occur and recommends actions to address the bottlenecks. See below for a link to the report.

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

For immediate release: October 3, 2001 Contact: Claudia Chandler : 916-654-4989

Energy Commission Report Projects Improved Natural Gas Supplies For the State

Sacramento -While current natural gas prices in California have dropped to approximately half of 2000's average price, the specter remains of last December, when tight supplies caused prices to spike to 25 times their present rates. Now, as winter approaches, industry watchers wonder if the State has enough of the clean-burning fuel for the upcoming heating season, even as new gas-fired electricity generators come on line.

The Natural Gas Infrastructure Issues Report , adopted today by a 4-to-0 vote of the California Energy Commission, gives a qualified "yes" to the question of adequate supplies this winter. It identifies sufficient storage as a critical factor, and notes that utilities have substantially increased natural gas storage, largely because conservation and efficiency have dampened summer electricity demand.

Nearly 85 percent of the natural gas used by Californians comes by pipeline from gas fields located outside the State. Since California typically uses more natural gas in the winter than interstate pipelines can provide, additional supplies must be set aside in summer months to help balance supply and demand. For this reason, the report recommends that the Energy Commission continuously assess storage levels and monitor infrastructure improvements throughout the year.

The newly adopted report points out that California's natural gas supply system was designed years ago to provide enough gas for winter's peak heating demand. An increasing reliance on natural gas for generating electricity, however, has strained the system and revised old patterns of consumption.

"This report helps Californians understand what we have to do to assure that we have a reliable and reasonably priced electricity and natural gas system in the future," said Energy Commissioner Michal (spelling correct) Moore, Presiding Member of the Electricity and Natural Gas Committee that developed the document.

To help resolve possible supply problems, the document analyzes not only natural gas storage requirements but the interstate pipelines that bring the fuel from distant gas fields to the California border. These pipelines can deliver slightly more natural gas than intra-state gas pipelines ? those within our State's borders ? can receive. As a result, there are bottlenecks in getting some supplies to gas consumers that the report says must be improved.

Pacific Gas and Electric Company (PG&E) and Southern California Gas Company (SoCal Gas) are improving and expanding their intra-state pipeline systems to help eliminate these constraints. According to the report, planned expansions of the interstate pipeline network should increase natural gas delivery to the State beginning next year, and additional improvements to the natural gas system should help prevent higher-than-normal prices that plagued California last winter.

Natural gas supplies in North America appear to be sufficient to meet demand in California and the rest of the United States for the next 50 years. The report recommends that the Energy Commission continue to monitor drilling rig activity and production levels for the long-term outlook. It also suggests that the Energy Commission, along with the Public Utilities Commission, should find ways to encourage and increase the in-state supply of natural gas.

The just adopted Natural Gas Infrastructure Issues Report can be found on the Energy Commission's Web Site at:

[www.energy.ca.gov/contracts](http://www.energy.ca.gov/contracts) <<<http://www.energy.ca.gov/contracts>>>

Or report is attached:

<< File: Gas Infrastructure Report.pdf >>

Message 1280 of 1299

**Re: Telecom Services: Broadband Services: USA: Senators renew**

|            |                                |
|------------|--------------------------------|
| Sender     | sue.nord@enron.com             |
| Recipients | [jeff.dasovich@enron.com]      |
| File       | dasovich-j/all_documents/8558. |

It wouldn't be a club worth joining if you weren't in it.

Jeff Dasovich Sent by: Jeff Dasovich 01/24/2001 10:34 AM

To: Sue Nord/NA/Enron@Enron cc: Subject: Re: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

It's fun and games every day (can't wait to catch up---you will howl (or cry, not sure which)). Miss you guys terribly. Don't throw me out of the club for being AWOL, please. Hope to see you soon.

Best, Jeff

Sue Nord 01/24/2001 10:19 AM

To: Jeff Dasovich/NA/Enron@Enron cc: Subject: Re: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

I had the same experience. (As if my inbox wasn't in sorry enough shape as it is). I'll ask Margo to check with them to be sure the problem is corrected.

Hope you're having fun....

Jeff Dasovich Sent by: Jeff Dasovich 01/24/2001 10:07 AM

To: Margo Reyna/NA/Enron@Enron cc: Barbara A Hueter/NA/Enron@ENRON, Donald Lassere/Enron Communications@Enron Communications, Gia Maisashvili/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Lara Leibman/Enron Communications@Enron Communications, Marchris Robinson/NA/Enron@ENRON, Matthew Jachimciak/HOU/ECT@ECT, Mona L Petrochko/NA/Enron@ENRON, Ricardo Charvel/NA/Enron@ENRON, Scott Bolton/Enron Communications@Enron Communications, Stephen D Burns/Corp/Enron@ENRON, Sue Nord/NA/Enron@ENRON, Susan M Landwehr/NA/Enron@ENRON, Tracy Cooper/Enron Communications@Enron Communications, William Patrick Lewis/HOU/ECT@ECT, Xi Xi/Enron Communications@Enron Communications Subject: Re: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

Dear Gang: I don't know about you folks, but I woke up to over 100 emails from Telecom Reports today. It seems to border on spam at this point. Is anyone else having this experience? The info is very valuable, but I'm wondering if there's a way to get, say, 3 emails a day rather than the 50 or more I'm currently receiving.

Wondering if the lights will stay on today, Jeff

Margo Reyna 01/24/2001 09:20 AM

To: Sue Nord/NA/Enron@Enron, Scott Bolton/Enron Communications@Enron Communications, Tracy Cooper/Enron Communications@Enron Communications, Lara Leibman/Enron Communications@Enron Communications, Donald Lassere/Enron Communications@Enron Communications, Mona L Petrochko/NA/Enron@Enron, Barbara A Hueter/NA/Enron@Enron, Jeff Dasovich/NA/Enron@Enron, Susan M Landwehr/NA/Enron@Enron, Marchris



Robinson/NA/Enron@Enron, Ricardo Charvel/NA/Enron@Enron, Stephen D Burns/Corp/Enron@ENRON, Xi Xi/Enron Communications@Enron Communications, Matthew Jachimiak/HOU/ECT@ECT, William Patrick Lewis/HOU/ECT@ECT, John Neslage/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Gia Maisashvili/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT cc: Subject: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

Margo Reyna Regulatory Analyst Enron Corp., Government Affairs Phone: 713-853-9191

----- Forwarded by Margo Reyna/NA/Enron on 01/24/2001 09:19 AM -----

djcustomclips@djinteractive.com 01/23/2001 05:56 PM Please respond to nobody

To: 123363@WCTOPICS.djnr.com cc: Subject: Telecom Services: Broadband Services: USA: Senators renew high-speed Internet tax credit ...

USA: Senators renew high-speed Internet tax credit bill.

01/23/2001 Reuters English News Service (C) Reuters Limited 2001. WASHINGTON, Jan 23 (Reuters) - A bill that would encourage businesses to bring high-speed Internet access to underserved areas was reintroduced in the Senate on Tuesday, with the hopes that President Bush would include the item in his budget. Computers equipped with a "broadband" or high-speed Internet connection can download information at a rate of up to 1.5 megabits per second, or about 25 times faster than a standard, dial-up connection. While broadband access is currently available in many business districts and affluent residential neighborhoods, the service has not yet spread to less affluent or more sparsely populated areas. The bill would provide a five-year, 10 percent tax credit to Internet companies that extend broadband service to rural or underserved urban areas. Companies who build "next generation" networks, with download speeds of up to 22 megabits per second, would receive a 20 percent, five-year credit. The bill was introduced by Republican senators Olympia Snowe of Maine and Orrin Hatch of Utah, and Democrats Jay Rockefeller of West Virginia and John Kerry of Massachusetts. It was co-sponsored by 32 other senators. The 36 senators sent a letter to President Bush urging him to include the bill in his initial budget proposal. The bill attracted the support of 59 senators and 115 House members last year, the letter claimed.

Folder Name: Telecom Services: Broadband Services Relevance Score on Scale of 100: 83

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| Environmental Strategy Meeting |                                                                                                                   |
|--------------------------------|-------------------------------------------------------------------------------------------------------------------|
| Sender                         | stacey.bolton@enron.com                                                                                           |
| Recipients                     | ['Michael Terraso/OTS/Enron@ENRON', 'Jeffrey Keeler/Corp/Enron@ENRON', 'heather.mitchell@enron.com', 'richard.... |
| File                           | dasovich-j/all_documents/1465.                                                                                    |

Below is a confirmation list of attendees for tomorrow's meeting in 40c2. For those of you connecting by conference call, the number: 800-991-9019 passcode: 6017616

Look forward to seeing everyone at 9:00 a.m. tomorrow.

Stacey

----- Forwarded by Stacey Bolton/HOU/EES on 09/14/2000 07:08

PM -----



Enron Energy Services

From: Stacey Bolton 09/12/2000 03:50 PM Phone No: 713-853-9916

To: Richard Ring/HOU/EES@EES, Heather Mitchell/HOU/EES@EES, George Phillips/HOU/EES@EES, Bruce N Stram/HOU/EES@EES, Bill Votaw/HOU/EES@EES, William Gang/HOU/EES@EES, Mark Harada/HOU/EES@EES, John Massey/HOU/ECT@ECT, Janel Guerrero, Edward D Baughman/HOU/ECT@ECT, Mike Curry/HOU/ECT@ECT, Zachary Sampson/NA/Enron@ENRON, Elliot Mainzer/PDX/ECT@ECT, Doug Gilbert-Smith/Corp/Enron@ENRON, Chris H Foster/HOU/ECT@ECT, Kellie Metcalf/Corp/Enron@ENRON, Robert Anderson/PDX/ECT@ECT, Scott Affelt/HOU/ECT@ECT, Greg Woulfe/HOU/ECT@ECT, Kevin McGowan/Corp/Enron@ENRON, Vince Middleton/HOU/ECT@ECT, Marcello Minotti/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Idel Metzger/SA/Enron@Enron, Ricardo Szlejf/SA/Enron@Enron, Al Pollard/HOU/EES@EES, KMagrud@enron.com, jbadum@enron.com, Treichel@enron.com, Hap Boyd/EWC/Enron@Enron, Adam Umanoff/EWC/Enron@ENRON, Bob Gates/EWC/Enron@ENRON, Michael Miller@enron, Dan Badger/LON/ECT@ECT, Jeff Ghilardi/EWC/Enron@ENRON, Marc Phillips/OTS/Enron@ENRON, Susan Worthen/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Gavin Dillingham/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Rob Bradley/Corp/Enron@ENRON, Jeff Dasovich/SFO/EES@EES, Frank Rishe/HOU/EES@EES, Tom Chapman/HOU/ECT@ECT cc: Michael Terraso/OTS/Enron@ENRON, Jeffrey Keeler/Corp/Enron@ENRON, Michael Payne/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, cmckalip@yahoo.com Subject: Environmental Strategy Meeting

Wanted to send a brief reminder of the meeting on Friday (agenda below). I've heard from half of you. If you haven't had a chance to respond, please know if you can attend the meeting, and attach a brief description of what you do. The meeting is scheduled in 40C2. Look forward to a great discussion on Friday.

Thanks, Stacey ----- Forwarded by Stacey Bolton/HOU/EES on 09/12/2000 07:26 AM -----

Enron Energy Services

From: Stacey Bolton 08/24/2000 06:38 PM Phone No: 713-853-9916

To: Richard Ring/HOU/EES@EES, Heather Mitchell/HOU/EES@EES, George Phillips/HOU/EES@EES, Bruce N Stram/HOU/EES@EES, Bill Votaw/HOU/EES@EES, William Gang/HOU/EES@EES, Mark Harada/HOU/EES@EES, John Massey/HOU/ECT@ECT, Janel Guerrero, Edward D Baughman/HOU/ECT@ECT, Mike Curry/HOU/ECT@ECT, Zachary Sampson/NA/Enron@ENRON, Elliot Mainzer/PDX/ECT@ECT, Doug Gilbert-Smith/Corp/Enron@ENRON, Chris H Foster/HOU/ECT@ECT, Kellie Metcalf/Corp/Enron@ENRON, Robert Anderson/PDX/ECT@ECT, Scott Affelt/HOU/ECT@ECT, Greg Woulfe/HOU/ECT@ECT, Kevin McGowan/Corp/Enron@ENRON, Vince Middleton/HOU/ECT@ECT, Marcello Minotti/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Idel Metzger/SA/Enron@Enron, Ricardo Szlejf/SA/Enron@Enron, Al Pollard/HOU/EES@EES, KMagrud@enron.com, jbadum@enron.com, Treichel@enron.com, Hap Boyd/EWC/Enron@Enron, Adam Umanoff/EWC/Enron@ENRON, Bob Gates/EWC/Enron@ENRON, Michael Miller@enron, Dan Badger/LON/ECT@ECT, Jeff Ghilardi/EWC/Enron@ENRON, Marc Phillips/OTS/Enron@ENRON, Susan Worthen/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Gavin Dillingham/ENRON\_DEVELOPMENT@ENRON\_DEVELOPMENT, Rob Bradley/Corp/Enron@ENRON, Jeff Dasovich/SFO/EES@EES, Frank Rishe/HOU/EES@EES, Tom Chapman/HOU/ECT@ECT cc: Richard Shapiro/HOU/EES@EES, James D Steffes/HOU/EES@EES, Jeffrey Keeler/Corp/Enron@ENRON, Daniel Allegretti/HOU/EES@EES, Mary Schoen/NA/Enron@Enron Subject: Environmental Strategy Meeting

The Environmental Strategies group invites you to attend a company-wide, Enron Environmental Strategy Meeting on September 15th from 9-2 (including lunch & snacks). The purpose of the meeting is to start an internal dialogue about the growing environmental market and ways in which Enron can capture associated business opportunities. As many of you are aware, the environmental market is quickly changing and expanding with a growing correlation between energy efficiency, renewable energy, air emissions, and new technology developments. Given our vast industry expertise and comprehensive service, Enron has a significant advantage to meet these market demands, which present both wholesale and retail opportunities.

For those of you that can attend, please RSVP by sending in a short description of what you do, and any suggestions to the below tentative agenda by Friday, September 8th. I'll circulate these descriptions to those who have RSVPd along with

a finalized agenda. The location is TBD.

If you have any questions, please feel free to contact me at 3-9916. Stacey Bolton

TENTATIVE AGENDA Introductions Brief introductions including what you do for Enron and its related environmental issues Update on what each of the Enron groups are doing related to environmental market opportunities State of the Environmental Market, updates on: Size of the market Emission and Green Premiums Customer demand for environmental products Mandates and Incentive Funds Credit trading programs Utility and competitors renewable product offerings Governments' efforts to "go green" Current and pending air regulatory compliance issues Concepts for discussion Upcoming bids/commercial partnering opportunities Trading Renewable Credits and Emissions Nationwide/Worldwide Regulatory issues - Hot spots Launching Environmental Product Offerings Potential products: -synthetic green energy product -100% wind green credits -new regulatory/compliance/risk management products -bundled environmental performance improvement products

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### Enron Mentions

|            |                                |
|------------|--------------------------------|
| Sender     | m..schmidt@enron.com           |
| Recipients | []                             |
| File       | dasovich-j/deleted_items/1883. |

COMPANIES & FINANCE INTERNATIONAL - Enron to axe 500 in attempt to boost profits. Financial Times (U.K. edition), 10/11/01 Houston Chronicle Jim Barlow Column KRTBN Knight-Ridder Tribune Business News: Houston Chronicle - Texas, 10/11/01 India: Greenfield Shipping rejects German bailout offer Business Line (The Hindu), 10/11/01 CM rejects NCP plea for probe into Enron dispute The Times of India, 10/11/01

Former Enron Broadband Services Asia CEO Joins Droplets Board Bloomberg, 10/11/01

AEP Puts Wholesale Operation Behind Growth Targets Dow Jones Energy Service, 10/10/01

COMPANIES & FINANCE INTERNATIONAL - Enron to axe 500 in attempt to boost profits. By JULIE EARLE.

10/11/2001 Financial Times (U.K. edition) (c) 2001 Financial Times Limited . All Rights Reserved

Enron, the US energy group and trader, yesterday confirmed it would cut 500 jobs, or 10 per cent of its European workforce, in an attempt to improve profits. Ken Lay, Enron's chairman, is under pressure to restore the company's share price, which has slid more than 60 per cent in the past 12 months. The cuts, flagged last week, will scale back operations Mr Lay had previously said would be critical to the company's future growth. John Sherriff, Enron Europe's president, said business continued to grow in Europe in terms of traded volumes and numbers of transactions, but the company was "seeking ways to do more with less in order to maintain earnings growth". Enron Europe has 5000 employees. Mr Sherriff said the headcount would be cut by between 5 and 10 per cent, and the company hoped to achieve this through voluntary severance. Gordon Howald, an energy analyst at Credit Lyonnais Securities in New York, said Enron had been criticised over its strategy to increase cash flows. "They are trying to slash their workforce and are selling Portland General Electric. This is good timing. When financials are under pressure, it probably makes good sense," he said, adding there had been rumours of US job cuts, outside of the previously announced Broadband division job cuts in July. Enron yesterday denied there were further job cuts planned in the US. Last week Enron said it had agreed to sell the electricity utility Portland General Electric to Northwest Natural Gas for \$1.8bn, a disposal it had been planning for some time. Enron shares closed \$1.81, or 5.4 per cent, higher at \$35.20 in New York yesterday. (c) Copyright Financial Times Ltd. All rights reserved. <http://www.ft.com>.

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Houston Chronicle Jim Barlow Column Jim Barlow

10/11/2001 KRTBN Knight-Ridder Tribune Business News: Houston Chronicle - Texas Copyright (C) 2001 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

In college, they call it grading on the curve. In business, it's known as forced ranking. In both cases, regardless of performance, someone's going to fail. The practices reward those who perform better than their peers. That's the American way. But they also can punish those doing good work -- just not as good as others. In college, grading on the curve means failing a course despite learning the material and either being forced to repeat it or flunking out. In business, forced ranking means that every year some arbitrary number -- often 10 percent -- get put on notice that they must improve. Or sometimes they get fired. Traditionally, business has used competency-based evaluations of employees. That is, can they do the work? Forced ranking sets up a totem pole. Everyone has a place on that pole, from the top to the bottom. And the pole gets chopped off from the bottom. About 20 percent of American companies use forced ranking, according to an article on the subject in the Harvard Management Update, a newsletter from the publishing arm of the business school. Some companies used forced ranking only for top managers. Others use the system for all managers, or all exempt employees who are not on hourly wages. Some of the most admired companies use the process -- General Electric, for example. Here in Houston, Enron uses a five-point scale with 15 percent in the bottom ranking. Proponents of forced ranking say it makes managers confront a perennial problem: that of low-performing managers and employees. Not only do the low performers cause problems now. If they neither improve nor leave, they block promotion for people who might do a better job. Productivity and morale sag. Fewer top people want to join the company. The best performers leave. In what seems to be the endless American cycle of hiring and layoffs, forced ranking also gives managers some objective criteria to use when it's once again time to let people go. But forced ranking also can raise the usual cries of discrimination that any ranking system brings. At Microsoft, an African-American plaintiff sued, claiming his low ranking came because of his race. At Ford Motor Co., which has dropped forced ranking, the charges of discrimination came from middle-aged white males. Forced ranking has provided a much-needed boost at some companies -- ones that have not confronted performance problems of managers over the years. Still, after a few cycles of forced ranking, companies must decide what's next. So you've weeded out the slackers. You've helped those who needed help to improve their performance. Overall, the company is doing a much better job of getting the products or services out the door. Inevitably, companies will reach a point of diminishing returns. If every manager or exempt employee is at least competent at his or her job, is it really worth it to rate and arbitrarily fire 10 percent or so of them every year? Sure, that's going to keep everyone on their toes as they scramble to keep their jobs. But it may not be all that good in encouraging teamwork. And, as France's army found in World War I, the practice of decimation -- arbitrarily shooting 10 percent of your own troops to encourage the others to fight harder -- does not tend to raise morale. Forced ranking also seems to me to be based on the wrong premise -- that is, that companies need to be filled with high-performance people from top to bottom to succeed. That may not necessarily be true. Every organization really needs a mix of people. For example, organizations need a leavening of malcontents. They stir up things, get people thinking, challenge assumptions. Yet an organization composed of nothing but malcontents won't work. Sure, every company needs top performers. They are the yeast that causes the organization to rise. But companies also need the steady and the sturdy and people with limited imagination to take care of the millions of details that must be faced every day. It's the equivalent of taking out the trash. It's not inspiring work, but unless it gets done, it gets smelly. Comments? Telephone 713-220-2000 and touch code 1000. Send e-mail to jim.barlow-chron.com.

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India: Greenfield Shipping rejects German bailout offer

10/11/2001 Business Line (The Hindu) Fin. Times Info Ltd-Asia Africa Intel Wire. Business Line (The Hindu) Copyright (C) 2001 Kasturi & Sons Ltd. All Rights Res'd

NEW DELHI, Oct. 10 IN a fresh twist to the crisis facing the \$220-million LNG shipping deal for Dabhol Power Company, German-based KG Finance Group has made a proposal to the promoters of Greenfield Shipping Company to bail out the project. "The promoters of Greenfield Shipping Company, however, rejected the proposal ab initio," sources familiar with the developments told Business Line. The bailout proposal was made by the German agency during discussions held in London recently between the representatives of the three promoters (Mitsui O.S.K. Lines, SCI and Atlantic Commercial Inc) and the len

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**Power Online Newsletter**

|                   |                                 |
|-------------------|---------------------------------|
| <b>Sender</b>     | mynews@bouncedmail.vertical.net |
| <b>Recipients</b> | [jeff.dasovich@enron.com]       |
| <b>File</b>       | dasovich-j/all_documents/820.   |

Power Online Newsletter -- <http://www.poweronline.com> Volume 3 Issue 81 Monday, August 28, 2000

Welcome to this issue of Power Online's (<http://www.poweronline.com>) electronic newsletter brought to you by VerticalNet. We've got some big shows coming up for the power generation industry. Texas A&M University Turbomachinery Laboratory is sponsoring the 29th Turbomachinery Symposium Sept. 18-21 at the George R. Brown Convention Center in Houston. For registration info, check out the story in Power Online's Latest Headlines, and don't forget to visit the lab's new Power Online Storefront. All kinds of shows are scheduled for October, including Powersystems World 2000, Oct. 1-5, in Boston. For more info on that show and others, check out Power Online's Events Calendar (under Resources on the home page). Until next time, take care. ACM

\*\*\*\*\* 3M SOLUTIONS \*\*\*\*\*

In response to customer requests, 3M has introduced a web-based version of its popular 3M Service Life Software. This software offers an easy method for estimating the service life of 3M gas and vapor respirator cartridges--for many organic as well as some inorganic contaminants. See <http://www.poweronline.com/ecommcneters/3m.html> for more details.

\*\*\*\*\* FEATURED ARTICLES selected by April C. Murelio \*\*\*\*

1) Innovation for fuel cell plates slashes cycle time, cuts costs 2) Logical Output by Tim Sharp: Is distributed generation the end for big power? 3) RJM offers NOx reduction technology video 4) News and Analysis

1) Innovation for fuel cell plates slashes cycle time, cuts costs Thermoset leaders Ferromatik Milacron North America, Apex Plastic Technologies, and Premix/Quantum recently collaborated on an injection molding ?first? that cuts the cost and production time for a key component used in fuel cells, said Taras Konowal, president of Apex. <http://www.poweronline.com/read/nl20000825/208525>

2) Logical Output by Tim Sharp: Is distributed generation the end for big power? You've seen it coming, guys, now haven't you? I mean ABB with its neat shift downscale to systems under 10 MW isn't the only kid on the block to have noticed distributed generation. <http://www.poweronline.com/read/nl20000825/208526>

3) RJM offers NOx reduction technology video To better serve its customers, RJM Corporation (Norwalk, CT) recently released a comprehensive video on the NOx reduction technologies it offers for coal-, oil- and gas-fired burners used by utilities and industrial plants. <http://www.poweronline.com/read/nl20000825/208527>

4) News and Analysis Visit the Power Online News and Analysis page for the latest industry headlines and feature articles. <http://www.poweronline.com/read/nl19991209/40575>

\*\*\*\*\* EDITOR'S CHOICE PRODUCTS \*\*\*\*\*

1) AC Drive 2) SureTrak 3.0 3) FTA Retrofit System 4) Product Showcase

1) AC Drive The Altivar 28 AC drive allows retrofitting to existing ALTIVAR 18 AC drives without re-drilling boltholes or new programming. The compact, easily installed and programmed drives provide low-cost motor control solutions for industrial and commercial users. They are best suited for applications in material handling, packaging, HVAC and pumps.

-- Square D/Schneider Electric, Knightdale, NC <http://www.poweronline.com/read/nl20000825/207593>

2) SureTrak 3.0 SureTrak Project Manager is the perfect combination of ease-of-use, power and affordability. It is ideal for resource planning and control on small-to medium-sized projects and for people who have only a few hours each week to

update and manage their projects.

-- Primavera Systems, Inc., Bala Cynwyd, PA <http://www.poweronline.com/read/nl20000825/208528>

3) FTA Retrofit System Waters Equipment Co. has introduced an FTA Retrofit System designed for users of steam and water analysis equipment (such as power plants) who need secondary temperature control or better temperature control than their existing system provides.

-- Waters Equipment Co., Lansdale, PA <http://www.poweronline.com/read/nl20000825/207595>

4) Product Showcase Power Online and its editor, April C. Murelio, select some of the best new products in the industry and present them to you in our Product Showcase. <http://www.poweronline.com/read/nl19991209/40576>

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<http://shop.microsoft.com/store/home/homepage.asp>.

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1) Book Selection -- Simulation of Industrial Processes for Control Engineers 2) Career Center @ Power Online 3) Off Lease Equipment

1) Book Selection -- Simulation of Industrial Processes for Control Engineers Author: Philip J. Thomas Computer simulation is the key to comprehending and controlling the full-scale industrial plant used in the chemical, oil, gas and electrical power industries. Shows how to use the laws of physics and chemistry to produce the equations to simulate dynamically all the most important unit operations found in process and power plant. Retail price \$99.95 Our Price \$84.99 You Save: 14.96 <http://www.poweronline.com/read/nl20000825/32566>

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Message 1284 of 1299

### Power Online Newsletter

|            |                                 |
|------------|---------------------------------|
| Sender     | mynews@bouncedmail.vertical.net |
| Recipients | [jeff.dasovich@enron.com]       |
| File       | dasovich-j/all_documents/1267.  |

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Power Online Newsletter -- <http://www.poweronline.com> Volume 3 Issue 84 Friday, September 08, 2000

Welcome to this issue of Power Online's (<http://www.poweronline.com>) electronic newsletter. David Wojick's new Power Vision adds some interesting growth to his NOx issue tree, and considering the EPA's plan for even tougher regulations, it certainly is worth tuning into the discussion. For those of you who have had trouble downloading or getting to the tree in the past, have no fear. We've worked it out, so you should click on the link and be taken directly into the tree. Cathy Swirbul adds another part to her series on fuel cells, with "Fuel cell reliability versus grid-delivered central station power" in Power Online's Features & Case Studies section. So check it all out, and until next time, take care. ACM

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\*\*\*\*\* FEATURED ARTICLES selected by April C. Murelio \*\*\*\*

1) Chinese power company awards control system contract to Westinghouse 2) Spiroflow helps optimize fuel cell technology for UK power supply 3) Industry groups slam climate change assessment 4) News and Analysis

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1) Chinese power company awards control system contract to Westinghouse Beijing Datang Power Generation recently awarded Shanghai Westinghouse Control Systems the contract for an Ovation Control & Information System for Tuoketuo power plant in Inner Mongolia, China. <http://www.poweronline.com/read/nl20000907/212490>

2) Spiroflow helps optimize fuel cell technology for UK power supply National Power recently developed a revolutionary, large-scale electricity storage technology-Regenesys-that could change the way power systems of the future are planned and operated. At the heart of this new process, said Philip Johnson, general manager of Regenesys, lies a fuel cell created using equipment developed by Spiroflow, an international powder handling company.  
<http://www.poweronline.com/read/nl20000907/212491>

3) Industry groups slam climate change assessment Led by the Climate Change Coalition, a group of 15 major trade associations jointly submitted comments on a draft report by the U.S. National Assessment of Climate Change (NACC), calling it flawed and questioning much of the data used to generate "Climate Change Impacts on the United States."  
<http://www.poweronline.com/read/nl20000907/212492>

4) News and Analysis Visit the Power Online News and Analysis page for the latest industry headlines and feature articles.  
<http://www.poweronline.com/read/nl19991209/40575>

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\*\*\*\*\* 3M SOLUTIONS \*\*\*\*\*



The use of powered and supplied air respirator systems can increase worker productivity, comfort and morale, according to 3M, a leader in PPE. That's because workers have fewer eye & face injuries, and suffer less heat stress. 3M's "Build Your Own" positive pressure system software is available at: <http://www.poweronline.com/welcome/3mecc>

\*\*\*\*\* EDITOR'S CHOICE PRODUCTS \*\*\*\*\*

1) Expansion Joints for Gas Turbine and Combined Cycle Systems 2) Digital Control Units 3) Comverge Distributed Connection 4) Product Showcase

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1) Expansion Joints for Gas Turbine and Combined Cycle Systems This multi-layer fabric expansion joint, COMBINE-X, is designed to meet market requirements with regard to the following:

-- KE-Burgmann A.S./Expansion Joints Div., Denmark <http://www.poweronline.com/read/nl20000907/212496>

2) Digital Control Units The Comverge Load Management System is a powerful Microsoft Windows -based software package installed on a dedicated desktop personal computer which serves as the master station for Direct Load Control. Up to 4 million individual devices, with unique addresses, can be controlled with the Load Management System.

-- Comverge Technologies, Inc., Florham Park, NJ <http://www.poweronline.com/read/nl20000907/212497>

3) Comverge Distributed Connection The Comverge Distributed Connection is a Cellular Digital Packet Data (CDPD) meter reading system. Comverge Technologies provides a cost-effective means of using the high-quality, widely-deployed CDPD network to read interval data from your valued Commercial and Industrial customers.

-- Comverge Technologies, Florham Park, NJ <http://www.poweronline.com/read/nl20000907/212498>

4) Product Showcase Power Online and its editor, April C. Murelio, select some of the best new products in the industry and present them to you in our Product Showcase. <http://www.poweronline.com/read/nl19991209/40576>

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\*\*\*\*\* INSIDE POWER ONLINE \*\*\*\*\*

1) Research Selection -- The U.S. Power Report 2) Career Center @ Power Online 3) Off Lease Equipment

1) Research Selection -- The U.S. Power Report From The Saringa Group The U.S. Power Report provides an executive briefing for industry, government, financial and investment markets and all leading user groups. The report, presented as a bound set of white papers, forms a blueprint document setting forth the necessary framework for integration and implementation of commercial 'best practices' and identification of key technologies necessary for leveraging performance over the next 3 to 5 years. Our Price \$995.00 Buy Now and receive FREE Shipping!! (U.S. orders only) <http://www.poweronline.com/read/nl20000906/83500>

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### Enron Mentions

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| Recipients | []                            |
| File       | dasovich-j/deleted_items/385. |

Fort Peck Indians File \$3 Million Suit Against Northern Border Pipeline PR Newswire, 08/01/01 USA: Scramble for Caribs tankers forces rates skywards. Reuters English News Service, 08/01/01

GERMANY: Frankfurt power bourse admits three new members. Reuters English News Service, 08/01/01

US West Daily Power Prices Flat Despite System Hiccups Dow Jones Energy Service, 08/01/01 US Exim set to move SC on Dabhol row The Times of India, 08/01/01

Fort Peck Indians File \$3 Million Suit Against Northern Border Pipeline

08/01/2001 PR Newswire (Copyright (c) 2001, PR Newswire)

Outcome Could Have National Implications POPLAR, Mont., Aug. 1 /PRNewswire/ -- In a move that could have significant national implications, the Fort Peck Assiniboine and Sioux Tribal Nation has filed suit in the Fort Peck Tribal Court against Northern Border Pipeline Company, a unit of Northern Border Partners, L.P. (NYSE: NBP), to collect more than \$3 million in back taxes. Northern Border, a partnership of Enron (NYSE: ENE), Williams Energy Partners (NYSE: WEG) and TransCanada Pipelines (NYSE: TRP), owns and operates a natural gas pipeline and compression station on the 2.3 million-acre Ft. Peck Reservation in northeast Montana. The 1,214-mile large diameter natural gas line, which has 15 compressor stations stretches from the vast Western Canadian Sedimentary Basin near Monchy, Saskatchewan to Manhattan, Ill. It has a delivery capacity of 2.3 billion cubic feet per day (Bcf/d). Northern Border's gross investment in 1999 was listed at \$2.4 billion. Tribal Chairman Arlyn Headdress said Northern Border officials "negotiated with us for two years" before the Tribes gave permission to begin construction to cross their land in 1980. "From the pipeline completion until recently, Northern Border honored all of its obligations. In fact, the lease has been fully paid, but the company has refused to honor its tax obligations for the past two years," Headdress said. "We have tried repeatedly to negotiate a resolution of all issues, but have failed." Headdress said he is "baffled" by the pipeline company's refusal to work out a settlement of the tribal taxes. "We have had a great relationship since 1980. In fact, Northern Border contracted us to help build the pipeline and compressor stations that are on and just off of the reservation. Yet now, they refuse to deal reasonably. Northern Border's lease to use our tribal homelands expires in 2011, and its payment of tribal taxes is the major value the Tribes receive from the Company. If these taxes are not paid, the Tribes would have little reason to renew the lease when it expires." Headdress said the tax that Northern Border is refusing to pay represents approximately 25 percent of the Tribes' total annual revenue. The value of the tax until the lease ends is approximately \$13.8 million. The

Northern Border suit is the second court action taken by the Tribes to collect back taxes. Currently before the 9th Circuit Court of Appeals is a suit against Burlington Northern Santa Fe Corp. (NYSE: BNI) which operates 80 miles of railway on the reservation. The suit seeks to collect approximately \$1.2 million in taxes a year. Tribal attorney Reid Peyton Chambers of the Washington, D.C. law firm Sonosky, Chambers, Sachse, Endreson & Perry, said the outcome of these suits could establish a precedent for commercial operations on reservations across the country. "For the past 30 years, Congress and the executive branch have encouraged tribes to govern their own reservations and become economically self-sufficient," Chambers said. "An important part of that process involves the right of the tribes to assess reasonable taxes on non-Indian businesses operating within the boundaries of their reservations. Yet, today we are seeing court rulings that some companies interpret as setting aside these rights. Clearly, much more decisive and definitive action is needed if the tribes are to meet the goal of self-sufficiency desired by Congress and the President." Under current law, tribes are allowed to collect taxes on non-Indian businesses if any of four conditions exist. "If there is a consensual relationship with contracts and agreements over time, if a company's activities threaten public safety and welfare, if the enterprise's activity is on trust land, or if Congress has authorized the tax, the tribes are legally entitled to assess and collect taxes," Chambers said. "For both Northern Border and Burlington Northern Santa Fe, these conditions exist." Headdress said the suit was filed in Tribal Court because the courts have held that issues concerning Native Americans that occur on tribal land should first be heard in Tribal Court. The Ft. Peck Assiniboiné Sioux Tribal Nation consists of two related Indian tribes that have existed before Columbus came to America. The tribes settled on the Ft. Peck Reservation in the early 1870's and today have approximately 11,000 members. The reservation has a two-year college, health care center and industrial park along with cattle and buffalo ranching operations. Only a small part of their revenues come from gaming operations because of their isolated location. CONTACT: Peggy Striegel Public Relations Representative Ft. Peck Assiniboiné and Sioux Tribal Nation Phone: 1-800-663-1136 E-mail: [ps@striegela.com](mailto:ps@striegela.com) MAKE YOUR OPINION COUNT - Click Here <http://tbutton.prnewswire.com/prn/11690X84217276>

/CONTACT: Peggy Striegel, Public Relations Representative for Ft. Peck Assiniboiné and Sioux Tribal Nation, +1-800-663-1136, or [ps@striegela.com](mailto:ps@striegela.com)/ 11:21 EDT Copyright ? 2000 Dow Jones & Company, Inc. All Rights Reserved.

USA: Scramble for Caribs tankers forces rates skywards.

08/01/2001 Reuters English News Service (C) Reuters Limited 2001.

LONDON, Aug 1 (Reuters) - The cost of transporting crude from Mexico and Venezuela to the U.S. is spiralling rapidly skywards as cargo owners scramble to lock in tankers from a fast-dwindling fleet, brokers said on Wednesday. "You won't find a ship available now until August 12, so the ship owners are getting very bullish on rates," said one U.S. broker. He pegged the upcoast trade on Aframaxes (70,000 tonners) at W165 (\$1.17 per barrel), but other brokers said W170-180 was likely today. This represents a rise of at least 29 cents per barrel in the course of a week. "People are fixing further and further out, say two to three weeks, just to secure tonnage," said a broker. "If you're in the chartering department of an oil major it's embarrassing to pay too much, but it's even more embarrassing to be caught without a ship for your cargo," he added. The market has gained as much as 10 points a day since last Wednesday when it stood at W125 (\$0.88 per barrel), brokers said. Oslo brokers reported on Wednesday morning that Enron had paid W165 for the 70,000 tonner Nordgulf, loading in the Caribbean in the first week of August. Valero paid W167 for the Aegean Pride, loading August 13 in Mexico. There has so far been little knock-on effect on the smaller Panamax ships (50,000 tonners), which have laboured around W130 since demand slackened off during the U.S. Independence day holidays. Clean tanker trades are also moving upwards, with brokers pegging the 30,000 tonne upcoast trade at "W265 and rising" (\$10.34 per tonne).

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GERMANY: Frankfurt power bourse admits three new members.

08/01/2001 Reuters English News Service (C) Reuters Limited 2001.

FRANKFURT, August 1 (Reuters) - Frankfurt-based European Energy Exchange (EEX) said on Wednesday three new participants had joined the bourse. "The Dutch company Nuon Energie and the Swiss-based company TXU Europe Energy Trading have been admitted to trade on the spot market," EEX said in a statement. "Enron Europe Xchange Trading

## Message 1286 of 1299

## Upcoming case Teltronica

|            |                                                                 |
|------------|-----------------------------------------------------------------|
| Sender     | kkupiecki@arpartners.com                                        |
| Recipients | ['jjackson@haas.berkeley.edu', 'dwindham@uclink4.berkeley.edu'] |
| File       | dasovich-j/all_documents/2821.                                  |

Hey there team,

Now that the mid term is over, I actually read Chapter 20 - confusing stuff. Just to clarify, the SF group will take the first three questions and the east bay group will take the last two?

Also, we need to make a correction to the original assignments, some of these have dates and some refer to the case chapters, please see clarification below:

I will do my best to have something coherent for the SF group by Thursday or Friday for the Ch 20 case.

*Christine--11.6--Teltronica*

Case 20-1, due 11/6

*Dylan--11.13--Nutra*

Case 22-1, due 11/13

*Kim--11.1--Agro Feed*

Case 11-1, due 11/20

*Jeff--11.27--Global Industries*

Case 26-1, due 11/27

*Jimmie--12.4--Daimler-Benz*

Case27-1, due 12/4

Kimberly Kupiecki Director, Infrastructure Business Unit A&R Partners kkupiecki@arpartners.com (650) 762 2800 main (650) 762 2825 direct fax (650) 762 2801

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THE FUTURE OF ENERGY Fuel cell technology and renewables are being developed to meet consumer demand for more sustainable energy sources. Which are most valuable and cost effective? How have these new technologies been implemented in corporate campuses? What direction will the future of energy take? Hear responses to these questions from leading scientists and energy managers.

BIOMIMICRY "Biomimicry", coined by best-selling author, Janine Benyus, is created from the Greek bios, (life), and mimesis, (imitation). Nature becomes a model for designs and processes which can provide for more efficient, adaptable, creative and resilient enterprise. Nature is viewed as a mentor we can learn from, and as a measure of our innovations: what works, what is appropriate, what lasts.

CLIMATE NEUTRALITY Global climate change has emerged on the environmental radar screen as a potentially devastating consequence of economic and industrial expansion. Today there is perhaps greater interest in the inventorying of greenhouse gas emissions by corporations than there has ever been for a voluntary environmental initiative. Hear how companies have successfully addressed this topic with initiatives such as emissions trading, climate neutral certification and increased resource efficiency.

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THE FOUR SEASONS OF BUSINESS Spring is a time of planting many varieties of seeds. Summer's climate encourages rapid growth of these new organisms. Fall is the season for the development of a select few of those organisms creating more elaborate interconnections. And winter is the time for reflection and creative destruction and renewal, opening space

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**IMPLEMENTATION OF SUSTAINABILITY INITIATIVES** There is no shortage of theoretical solutions to current questions of environmental and social sustainability for business. But what happens when organizations move toward implementation? Hear practical case studies and stories

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Message 1288 of 1299

### Enron Mentions

|            |                        |
|------------|------------------------|
| Sender     | m..schmidt@enron.com   |
| Recipients | []                     |
| File       | dasovich-j/inbox/1512. |

Under the Radar: Enron's Only White Knight Is Itself TheStreet.com, 11/02/01 BANDWIDTH BEAT: Playing '20 Questions' With Enron Execs Dow Jones Energy Service, 11/02/01 USA: Stung Californians not crowing at Enron's troubles. Reuters English News Service, 11/02/01 Enron Portland Genl Sale Seen Going Smoothly This Time Dow Jones Energy Service, 11/02/01 Nymex/Lowers Costs -2: Retroactive To Thurs Transactions Dow Jones Commodities Service, 11/02/01

Under the Radar: Enron's Only White Knight Is Itself By Christopher Edmonds <mailto:cedmonds@thestreet.com> Special to TheStreet.com 11/02/2001 03:15 PM EST URL: <<http://www.thestreet.com/comment/chriedmonds/10003396.html>>

There is no suitor-in-waiting for Enron (ENE:NYSE - news - commentary) .=20 Despite a speculation-filled week, Warren Buffett's Berkshire Hathaway (BRK= A:NYSE - news - commentary) probably isn't waiting in the wings to gobble up the troubled energy giant. The risk profile doesn't fit Royal Dutch Shell= (RD:NYSE - news - commentary) , and it's unlikely General Electric (GE:NYSE= E - news - commentary) is ready to jump at the chance to rescue the Houston= energy firm from its troubles with the SEC and disgruntled investors. ?And= while the recent slide in Enron's stock price might seem to make it an attractive target, it's implausible that an Enron competitor would step up to = the plate and make an offer to acquire its troubled peer. ?"We do not believe there is a high probability of a bailout offer at a price significantly = above the current price, as there is too much uncertainty about the capital= structure and shareholder lawsuits," says Jeff Dietert, independent power = analyst at Simmons & Co., a Houston energy investment firm and a member of = the TSC Energy Roundtable. ?Many metrics suggest the stock is inexpensive. = Merrill Lynch analyst Donato Eassey recently calculated Enron's asset value= to be between \$16 and \$24 per share, which may make Enron's current price = of less than \$12 look cheap. But in nearly the same breath, Eassey downgraded Enron stock to neutral from "accumulate." Merrill Lynch has provided banking services for Enron. ?"While we have not altered our view of Enron's fundamentals or its ability to weather this long-term storm, from a practical= standpoint we believe noise surrounding the SEC's move to a formal investment will outweigh any [earnings] analysis or net asset value calculation= ," Eassey told clients in a report Thursday. ?For Buffett: Intriguing But . = ..?Reports that famed value investor Warren Buffett is looking at Enron may= be correct. He is an opportunistic investor and has an interest in the power business. And, Berkshire's ownership of

Mid-American Energy provides a platform for an Enron deal. However, interest and action are two different things. While Buffett has said he wants additional power holdings, he seems more focused on the traditional, regulated utilities rather than the more aggressive opportunities represented by Enron. Buffett's track record shows he craves certainty and that is something Enron can't provide, especially now. There are also pragmatic issues. If Enron considered a deal, it would have to be one that was both rich and immediate, something Buffett can't offer. Constrained by the Public Utility Holding Company Act, or PUHCA, Berkshire might not be able to purchase Enron until the sale of Portland General, the Oregon utility, is completed sometime next year. The Enron culture could also keep Buffett away. Enron is well known for its employee stock option program that made millions of dollars for people like ex-CEO Jeffrey Skilling while creating little value for shareholders. Buffett is a tireless critic of such shenanigans. Buffett also generally looks for companies with a management team committed to remaining in place, and Ken Lay has no desire to remain at the helm of Enron for the long haul, and future leadership is uncertain. And while Buffett still may take a look, price could be the ultimate stumbling block. "I think he understands the derivative trading business better than most," says Robert Hagstrom, portfolio manager of the Legg Mason Focus Trust and author of *The Essential Buffett: Timeless Principles for the New Economy*. "I wouldn't be surprised if it's caught his eye, but I don't think he would get his price. He won't pay a premium for Enron." As for Buffett, he won't comment on anything, let alone rumors like this. Shell: Burned Out on Gas? Another rumored suitor is Royal Dutch Shell (RD: NYSE - news - commentary). Speculation has escalated to the point of suggesting that Shell and Enron have signed a confidentiality agreement to allow for exchange of privileged financial data. A Shell spokeswoman in London would not comment on the speculation. An Enron spokesman also declined to comment. Shell wants to expand its gas business and in its bid for Barrett Resources, showed it will pay a premium for the right assets. But Enron is more an energy trading company than an exploration and production company. Shell's problems growing both its Coral trading subsidiary and its Tejas Gas unit -- a costly acquisition -- probably would make it shy away from going there again, Dietert says. Shell and Enron are very different companies, he adds. "Culturally, it's a tough deal to imagine." GE Capital: Enlightened Investor? The final name bandied about is GE Capital. This one is more difficult to figure, but an investment in Enron by the finance unit of General Electric isn't out of the question. However, sources tell me an outright bid is unlikely. "They are a potential investor," says Dietert. "If push comes to shove, Enron would be willing to issue 30% to 40% more equity rather than face bankruptcy. And, GE Capital could participate in such a deal." However, any move is just speculation at this point. And General Electric won't comment on speculation. Even if an offer for Enron emerged, price would clearly be an issue. Current uncertainty suggests any offer would be well below a price Enron would consider reasonable. Hence, while a bid for Enron isn't out of the question, it's likely Enron will stand to fight its current battles alone. **BANDWIDTH BEAT: Playing '20 Questions' With Enron Execs** By Michael Rieke 11/02/2001 Dow Jones Energy Service (Copyright (c) 2001, Dow Jones & Company, Inc.) A Dow Jones Newswires Column **HOUSTON** - (Dow Jones) - Since Enron Corp. (ENE) is such a hot topic these days, here's a suggestion for a new game. If you worked for the Securities and Exchange Commission, with its subpoena powers, what questions would you ask in your current investigation of Enron? You could even break it down into categories, like the game show "Jeopardy." The first category is Enron trading counterparties run by Enron executives. How many of those counterparties were run by Enron employees such as former Chief Financial Officer Andrew Fastow and Michael Kopper, a former managing director of Enron's Global Equity Markets Group? We know that Fastow ran two private investment companies that Enron traded with - LJM Cayman and LJM2 Cayman. Kopper ran one called Chewco Investments. What does LJM stand for? (If you know that answer to that one, you're ahead of an Enron spokeswoman who told Bandwidth Beat that she didn't know what the letters stood for.) Sometimes companies use letters that are actually initials of investors names. Are any of the investors in the LJM partnerships an Enron executive whose last name starts with L, J or M? (The Enron spokeswoman hasn't called back with an answer to that one either.) Who was meant to profit and who was meant to lose in Enron's complicated financial transactions?



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## Enron Mentions - 02/15/2001

|            |                                                                                  |
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| Sender     | henry.means@enron.com                                                            |
| Recipients | ['steven.kean@enron.com', 'mark.palmer@enron.com', 'meredith.philipp@enron.com'] |
| File       | dasovich-j/all_documents/9182.                                                   |

Enron CEO: Calif. Law To Delay Portland General Sale Dow Jones News Service, 02/15/2001

Crt Postpones Hearing On CalPX Back-Billing Suppliers Dow Jones Energy Service, 02/15/2001 =20 Judge Resets Enron Hearing, Cites Expected Federal Decision Bloomberg News, 02/15/2001

Texas Pilot Project for Electricity Competition Begins Today Knight-Ridder Tribune, 02/15/2001

Oil Majors Seek Details on Saudi Gas Projects Reuters, 02/15/2001

Houston Roundup Chemical Business NewsBase, 02/15/2001

USA: INTERVIEW-NYMEX Head Says No Regrets Over Online Strategy Reuters, 02/15/2001 =20 Macerich Puts Two Shopping Centers Up For Sale Dow Jones News Service, 02/15/2001

USA: NY Gold Drops to 17-Mth Low Amid Hedging, 1999 low eyed Reuters, 02/15/2001

Enron Does Not Rule Out Combined-Cycle Power Plant (La empresa no renuncia = al=20 cicle combinado)=20 Expansion, 02/14/2001

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Enron CEO: Calif. Law To Delay Portland General Sale By Christina Cheddar Of DOW JONES NEWSWIRE

02/15/2001 Dow Jones News Service=20

NEW YORK -(Dow Jones)- Enron Corp. (ENE) Chief Executive Kenneth Lay said a= =20 California law has had the unintended effect of delaying Enron's sale of it= s=20 Portland General unit to Sierra Pacific Resources (SRP).=20

At the end of January, California legislators ordered the state's utilities= =20 not to sell power plants before January 2006. The new law might prevent=20 Sierra Pacific Power, a unit of Sierra Pacific Resources, from selling its= =20 power plants because it serves 40,000 customers in California's Lake Tahoe= =20 area.

Sierra Pacific was trying to sell the assets to finance its acquisition of= =20 Portland General, Lay said. Sierra Pacific is attempting to get a=20 clarification of the legislation from California authorities, he said.=20

Lay's confidence level regarding the company's ability to close the Portlan= d=20 General sale remains "pretty high, but it's not 98 percent," he said.=20

Lay said the delayed sale will not hurt the company's earnings performance.= =20 In fact, Lay expects Portland General to add to its earnings.=20 Lay was speaking at the UBS Warburg Energy Conference here Thursday.=20

When asked if credit risks in California could affect Enron's earnings, Lay= =20 responded there is no scenario in the state that would make the company=20 unable to reach its \$1.70 to \$1.75 a share earnings estimate for 2001.=20

Lay explained that the company is taking measures to mitigate its credit=20 risk. California's two largest utilities, Southern California Edison Co. an= d=20 Pacific Gas and Electric Co., have been heading toward insolvency after=20 purchasing power in the state's deregulated markets at higher prices than t= he=20 utilities could charge their customers.=20

Most of Enron's credit risk in California comes from the selling of gas and= =20 electric power in the state through its wholesale services operation.=20

"There's quite a mess out there, and we hope that eventually, that mess wil= l=20 get worked out," Lay said.=20



During his presentation, Lay also discussed the success of EnronOnline. He said EnronOnline has reduced the average cost per trading transaction by 75% as well as help the company increase its trading volumes. Enron, of Houston, trades a variety of commodities, including gas, electric, pulp and paper, and broadband capacity through EnronOnline.

-By Christina Cheddar, Dow Jones Newswires; 201-938-5166; christina.cheddar@dowjones.com

Crt Postpones Hearing On CalPX Back-Billing Suppliers

02/15/2001 Dow Jones Energy Service

LOS ANGELES -(Dow Jones)- A U.S. District Court Judge has postponed until Tuesday hearing arguments in a case involving Enron Corp.'s (ENE) request that the California Power Exchange not be able to charge the company for electricity bills defaulted on by the state's two largest utilities, a spokesperson for the CalPX said Thursday.

The judge also extended until Tuesday a temporary order barring the CalPX from billing Enron for the utilities' defaults until the case is heard.

Other power marketers and generators have similar lawsuits filed in federal court and with the Federal Energy Regulatory Commission.

At issue is a "chargeback" insurance mechanism that is meant to maintain participants' confidence in the exchange. Under the mechanism, defaults by CalPX debtors are proportionally "charged back" to creditors based on their level of participation in the exchange in the three months prior to the default.

Sources close to the case said they believed the court was waiting for action from the FERC before continuing with the case. However, this couldn't be immediately confirmed.

FERC has received a complaint about chargebacks from nine power suppliers.

Judge Resets Enron Hearing, Cites Expected Federal Decision Bloomberg News, 02/15/2001

Judge Resets Enron Hearing, Cites Expected Federal Decision

Los Angeles, Feb. 15 (Bloomberg) -- A federal judge rescheduled a hearing on whether California's power market should be kept from billing its members, mostly energy suppliers, because utilities owned by PG&E Corp. and Edison International have defaulted on payments.

U.S. District Judge Carlos Moreno continued the hearing to Feb. 20 at 4 p.m. A temporary order issued last week to prevent the California Power Exchange electricity market from billing members such as Enron Corp. will be extended until the hearing.

PG&E and Edison International have defaulted on at least \$789 million in debts; under exchange rules, all members can be charged when one defaults.

Enron sued in Los Angeles federal court Jan. 31. Other generators -- Avista Corp., Enova Corp.'s San Diego Gas & Electric, Sempra Energy, British Columbia Hydro & Power Authority's Powerex Corp. and ScottishPower Plc also went to court. Moreno indicated last week he will consolidate all of the claims into Enron's complaint.

Moreno extended his order to give the Federal Energy Regulatory Commission more time to issue its own ruling on whether the Power Exchange can charge all its members when one defaults. Nine generators filed their complaint with the agency Feb. 8.

--Joyzelle Davis in Los Angeles (213) 617-3855, or joydavis@bloomberg.net, through the San Francisco newsroom/gcb

Texas Pilot Project for Electricity Competition Begins Today Terry Maxon

02/15/2001 KRTBN Knight-Ridder Tribune Business News: The Dallas Morning News - Texas Copyright (C) 2001 KRTBN Knight Ridder Tribune Business News; Source: World Reporter (TM)

So, you're mad about your electricity bill and wish you could change to another electricity company? Starting Thursday, a lot of Texans can tell their current electric company to get lost, and the customers probably will lower

their electric rates as well.

The state is kicking off a pilot program to see how competition in its=20 electricity markets will work. Thursday is the first day that 19 companies= =20 will be allowed to begin signing up customers.=20

June 1 is the first day that these power companies can begin providing=20 electricity to customers who decide to switch. The three and a half months= =20 until then will be used to market their services and sign up customers.=20

The limited test will allow 5 percent of all utility customers to pick thei= r=20 electricity company -- either their current company or one of many others= =20 that have signed up to sell electricity in Texas.=20

The test is a dress rehearsal fo

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### Enron Mentions

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Enron Asks Citigroup for \$750 Mln Loan, People Say (Update1) Bloomberg, 10/23/01

Enron Corp. Cut to 'Reduce' at Edward Jones Bloomberg, 10/23/01

Enron CFO: Company Has Sufficient Liquidity Dow Jones News Service, 10/23/01 Enron says shareholders' 'best interests' were sought in all LJM dealings AFX News, 10/23/01 US class action suit filed against Enron for misleading statements AFX News, 10/23/01 Word of SEC probe puts Enron into deep dive: Problems mount National Post, 10/23/01 City - SEC inquiry sparks Enron share fall. The Daily Telegraphm 10/23/01 Shares of Enron Plummet 21% Energy: SEC requests information from company on series of unusual financial deals tied to executive. Los Angeles Times, 10/23/01

Enron Asks Citigroup for \$750 Mln Loan, People Say (Update1) 2001-10-23 10:11 (New York)

Enron Asks Citigroup for \$750 Mln Loan, People Say (Update1)

(Adds comment from CFO Fastow in fourth paragraph, Enron's short-term borrowing rates in seventh paragraph.)

New York, Oct. 23 (Bloomberg) -- Enron Corp., the biggest energy trader, has asked Citigroup Inc. to arrange a \$750 million loan, ensuring access to credit if the embattled company is cut off from money markets, say people familiar with the matter.

Enron's shares and bonds plunged yesterday after the company said the Securities and Exchange Commission was probing its finances. The Houston-based business, whose stock has fallen 75 percent this year amid concerns about failed investments, depends on a \$3 billion commercial paper, or short-term debt, program to finance day-to-day operations.

Earlier this month, Moody's Investors Service placed all \$13 billion of the company's long-term debt securities on watch for possible downgrade. As a second-tier commercial paper borrower, any drop in its rating may cut off Enron from the commercial paper market and raise the costs of short-term debt.

"We understand that our credit rating is critical to both the capital markets and our counterparties," Enron's Chief Financial Officer Andrew Fastow said on a conference call today. He said Enron has \$3.5 billion available on bank credit lines, giving it enough cash to operate normally.

Enron shares rose as much as 12.6 percent during the call to \$23.25. They pared the gain to \$21.80, up \$1.15.

Dan Noonan, a spokesman for Citigroup's Citibank NA unit, declined to comment. Mark Palmer, a spokesman for Enron, declined to comment.

Commercial Paper Rates

Enron was paying 3.15 percent to issue commercial paper until Oct. 31, which is as much as 15 basis points more than companies with the same "A2/P2" short-term credit ratings that are not on credit watch. Enron's short-term debt is not on review for a possible downgrade.

Enron has previously turned to Citigroup for finance and advice. In 1999, Citigroup's Salomon Smith Barney unit advised the company on its \$1.45 billion acquisition of three natural gas-fired power plants from Cogen Technologies Inc. Citibank, along with J.P. Morgan Chase & Co., this year arranged a \$1.75 billion loan.

Earlier this week, an investor sued Enron, saying two partnerships cost the company \$35 million and Fastow's leadership of them was a conflict of interest.

The SEC has asked Enron about partnerships and affiliated companies headed by Fastow. Dismantling some of the partnerships would cost Enron or its shareholders as much as \$3 billion, Ray Niles, a Salomon Smith Barney analyst, wrote in a report to investors.

Enron created partnerships and affiliated companies to buy and sell assets such as power plants to lower the debt on its books.

Investors said they were concerned that Enron may be forced to dismantle the affiliated companies by paying off the owners in cash or stock. Chief Executive Ken Lay said last week he may have to "unravel" agreements that created the companies if Enron's debt ratings fall too far.

--Mark Lake in the New York newsroom (212) 893-5989 or

Enron Corp. Cut to 'Reduce' at Edward Jones 2001-10-23 11:42 (New York)

Princeton, New Jersey, Oct. 23 (Bloomberg Data) -- Enron Corp. (ENE US) was downgraded to "reduce" from "accumulate" by analyst Zach Wagner at Edward Jones.

--Michael O. Donohue in Princeton, New Jersey, (+1)609-279-3756.

Enron CFO: Company Has Sufficient Liquidity By Christina Cheddar Of DOW JONES NEWSWIRES

10/23/2001 Dow Jones News Service (Copyright (c) 2001, Dow Jones & Company, Inc.)

NEW YORK -(Dow Jones)- Enron Corp. (ENE) Chairman and Chief Executive Kenneth Lay said the company had procedures in place to avoid conflicts of interest in dealings between Enron and partnerships that were set up and run by its chief financial officer, Andrew Fastow. Last week, the Securities and Exchange Commission asked the Houston energy trading company to provide additional information about the partnerships, which Enron said were off-balance sheet financing vehicles used to hedge against fluctuations in the market. In a conference call held Monday to discuss investor concerns about the SEC investigation and related matters, Lay said there was a "Chinese wall" in place to protect the interest of Enron shareholders. The procedures were "rigorously followed," Lay said. In previous filings with the SEC, Enron said the terms of the transactions with the partnerships were "reasonable compared to those which could have been negotiated with unrelated third parties." Fastow resigned from the partnerships, which were known as LJM Cayman LP and LJM2 Co-Investments LP in late July. The company also is involved in other off-balance sheet financing vehicles, including Marlin Water Trust II and Whitewing. During the conference call, investors said they were frustrated by the complex nature of the trusts, and asked for more information. Lay said the company would be providing a list of "Frequently Asked Questions" on its Web site later Tuesday that may provide more details. After Enron disclosed the SEC investigation Monday, the company's stock sunk to its lowest level in 52 weeks, \$19.67. Enron shares were recently trading up 47 cents, or 2.3%, at \$21.12, in brisk volume that has already surpassed its average daily turnover of 6.3 million shares. Lay said he was "extremely disappointed" in the current stock price. "Our businesses are performing very well and we are continuing to conduct business," he said.

During the conference call, Enron officials declined to specify Fastow's role in the partnership, citing the ongoing SEC investigation and a derivative lawsuit filed against Enron that alleges its board breached its fiduciary duties by allowing Fastow to create and run the partnerships. Enron officials also addressed concerns that investors had about the potential need to issue additional Enron stock. Under certain circumstances, for example, if both Enron's stock and credit rating fall to certain levels, the company would need to issue additional shares to the partnerships, diluting the holdings of current shareholders. Enron officials declined to say how much dilution would occur under a "worst-case scenario." However, the

officials said they doubted there would be a need to issue the additional stock because the company plans to work with the credit-rating agencies to prevent such an event. Moody's put Enron on watch for a downgrade of its long-term debt last week after the company announced a \$1 billion third-quarter write-off that produced a \$618 million loss. According to Lay, Enron's debt rating would need to fall several notches to below investment grade in order to trigger the need to issue more stock. "We are committed to maintaining our ratings," Lay said. "Moody's said they would work with us," he added. Furthermore, Fastow said, Enron expects to have "sufficient liquidit

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Blowback Forbes, 11-12-01

Enron Shares Rise, Rebounding From Nine-Year Low (Update1) 2001-10-31 11:56 (New York)

Enron Shares Rise as Analysts Cite Bargain-Hunting, Financing Speculation Dow Jones Business News, 10/31/01

Enron trades higher after heavy losses CBS.MarketWatch.com, 10/31/01

USA: U.S. tech stocks up, blue chips shed gains. Reuters English News Service, 10/31/01 US West Pwr Lower On New-Month Positions Despite Gas Rise Dow Jones Energy Service, 10/31/01 UK: Enron close to exiting Indian LNG shipping deal. Reuters English News Service, 10/31/01 Mariner Energy to Sell Stake in Aconcagua Field for \$51 Million Bloomberg, 10/31/01

Blowback Daniel Fisher, Forbes Magazine </forbes>, 11.12.01

Did Enron use partnerships to artificially boost earnings? Lawyers are rubbing their hands. If the truth sets you free, the top echelon at Enron Corp., present and past, should be feeling positively footloose these days. Just in time to get shackled by a slew of shareholder suits.

Private securities lawyers and the Securities & Exchange Commission are looking into the Houston energy trading firm's complex relationships with outside partnerships it used to hedge against fluctuations in the value of its investments. Where Enron sees 21st-century financial engineering, lawyers see possible earnings inflation. (Chairman Kenneth Lay says Enron is cooperating with the SEC inquiry.)

One partnership, run by Enron Chief Financial Officer Andrew Fastow, added \$236 million in revenue in the first quarter of 2001, boosting Enron's \$425 million in net income in that period. The partnership's contribution plunged to \$5 million in the second quarter ended June 30, but investors only found out Aug. 14--when Enron filed its quarterly 10-Q with the SEC. Oddly enough, that was the day Chief Executive Jeffrey Skilling unexpectedly resigned.

Expect class-action lawyers to go after the profits Skilling and other insiders made by selling \$660 million in stock when shares were flying high. (They're down 78% from August 2000.) Since Skilling left, Enron has taken a \$1.2 billion hit to shareholders' equity to unwind partnerships.

"They certainly misled the market as to the size of [partnership losses]," says Thomas Shapiro, one of several lawyers filing shareholder suits against Enron. Who knows what will emerge from some of the other partnerships?

Enron Shares Rise, Rebounding From Nine-Year Low (Update1) 2001-10-31 11:56 (New York)

Enron Shares Rise, Rebounding From Nine-Year Low (Update1)

(Adds analyst comment in sixth paragraph.)

Houston, Oct. 31 (Bloomberg) -- Enron Corp. shares rose as much as 19 percent, one day after falling to their lowest level in more than nine years, amid speculation the company may be a takeover target.

Shares of the top energy trader rose \$1.58, or 14 percent, to \$12.74 in midday trading of 19.9 million shares, compared with the three-month daily average of 10.4 million shares. Earlier, the shares hit \$13.25.

Shares of Houston-based Enron have fallen 84 percent this year. They have lost more than half their value this month amid a U.S. Securities and Exchange Commission inquiry into partnerships headed by Andrew Fastow, Enron's former chief financial officer. Fastow was ousted last week in an attempt to restore confidence in the stock.

"There are rumors out there that they are a potential takeover target, but I think it's very unlikely that anyone will buy them out at this point," said Zach Wagner, an analyst at Edward Jones & Co. "There are too many uncertainties."

Enron is more likely to get a large cash infusion from an investor, Wagner said. He has a "reduce" rating on Enron shares. He doesn't own the stock.

The Wall Street Journal today said General Electric Co.'s GE Capital, Warren Buffett's Berkshire Hathaway Inc. and Royal Dutch Petroleum Co. are "among the names bandied about" as potential buyers for all or part of Enron.

--Margot Habiby in the Dallas newsroom (214) 954-9452

Enron Shares Rise as Analysts Cite Bargain-Hunting, Financing Speculation By Christina Cheddar

10/31/2001 Dow Jones Business News (Copyright (c) 2001, Dow Jones & Company, Inc.)

Dow Jones Newswires NEW YORK -- After losing nearly two-thirds of their value over the past two weeks, Enron Corp. shares regained some lost ground Wednesday. Bargain-hunting and speculation were said to be behind the buying, with some suggesting that Enron is nearing a deal for additional financing, while others are said to be mulling the possibility the company may be acquired. In afternoon trading on New York Stock Exchange, Enron shares (ENE) were up \$1.49, or 13%, to \$12.65 on volume of 24.9 million shares. Earlier, the stock traded as high as \$13.25. Enron, which typically trades an average of 10 million shares a day, was again one of the most actively traded stocks on the Big Board. On Tuesday, Enron shares set a 52-week low of \$10.90, which was the stock's lowest level in a decade. Commerzbank Securities analyst Andre Meade attributed the jump in Enron's stock to investors attracted by its low price. Those buyers, he said, are hoping not to be hit by the "double swords" hanging over the Houston energy trader -- a Securities and Exchange Commission investigation of the financial dealings of its former Chief Financial Officer Andrew Fastow, with an off-balance sheet financing vehicle and the possibility of another credit-rating downgrade by Moody's, which could trigger the need to issue additional stock and thereby dilute the holdings of existing investors. In addition, there is speculation "through the Houston circuit" that Enron may be close to securing additional financing, said Prudential Securities analyst Carol Coale. If the speculation proves true, the financing would help Enron to shore up its financial condition and improve confidence among investors as well as its business partners. Investors also may be placing their bets on the belief that Enron shares have eroded enough in value to make the company a takeover candidate. A report in The Wall Street Journal Wednesday said several companies including General Electric Co.'s (GE) GE Capital unit, Warren Buffett's Berkshire Hathaway Inc. (BRKA, BRKB) and Royal Dutch/Shell Group (RD) have been named as potential buyers for Enron. Ms. Coale said the takeover speculation was "unwarranted" and has surfaced each time Enron shares faltered. "It would be very unusual ... for a company to be interested in a takeover (of Enron) given the uncertainty of the SEC inquiry. Why add that uncertainty to your portfolio?" she said. Furthermore, Ms. Coale said, it might be difficult for a company such as Shell to clear regulatory hurdles because it already operates a substantial energy trading business. Commerzbank's Mr. Meade also discounted the takeover speculation. He likened such a deal to the acquisition of a financial-service company. "You are buying a human-capital-based business. You have to make sure you're not going to lose all your people," he said. "It's a trickier acquisition." But not everyone thinks the takeover speculation is implausible. Roger Hamilton, an analyst at John Hancock Value Funds, said Shell and Enron are "neighbors", and Shell has looked at Enron "on and off." Still, he said that if there is a buyer for Enron, the company would want to do it sooner rather than later in order not to risk damaging Enron's leading market position. Some marketwatchers said at least some of the pressure on Enron shares in recent trading sessions has come from mutual funds liquidating their positions to avoid having the company's name appear among their holdings in their annual reports. Despite the rise in Enron shares Wednesday, there remains a significant amount of uncertainty about the stock. In addition to

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**VentureWire, Wednesday, August 23, 2000**

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VENTUREWIRE --- Wednesday, August 23, 2000

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o BlueStream Ventures Raises \$250 Million for First Fund

MINNEAPOLIS -- BlueStream Ventures said it raised \$250 million for a new venture capital fund. More than one-third of the fund's capital was provided by infrastructure industry executives. The fund is focusing on next-generation infrastructure and networking technology companies in the U.S. BlueStream hopes to complete a second closing in the fall that will increase the fund to \$300 million. BlueStream hopes to invest in about 20 companies over the next two years, with earlier-stage investments of \$3 million to \$5 million and later-stage investments of \$5 million to \$10 million. BlueStream recently invested \$10 million in the Series B financing of Santa Clara, Calif.-based Metro-Optix, an optical technology firm. Telephone 651-292-8900.

o VCs Rescue Drkoop.com With \$20 Million, Clear Out Management

AUSTIN, Texas -- Publicly traded drkoop.com, which provides users with health information online, said it received \$20 million in funding from a group of investors including Prime Ventures, JF Shea Ventures, Cramer-Rosenthal-McGlynn, and RMC Capital. The company was on the verge of running out of cash. The leadership of Prime Ventures also took over the top management posts at drkoop.com. Richard M. Rosenblatt replaced Donald Hackett as the company's chief executive officer. Edward A. Cespedes was named president and Stephen Plutsky now serves as chief financial officer. Dr. C. Everett Koop, former U.S. Surgeon General and a founder of the company, will continue to serve as chairman of the board. <http://www.drkoop.com/>

o Online Bill Payment Rivals Paytrust and PayMyBills.com Merge

PASADENA, Calif. -- Paytrust, a service that enables consumers to receive, review, pay, and organize all of their bills online, said it entered into a definitive purchase agreement for an all-stock acquisition of personal bill management services company PayMyBills.com. The companies did not disclose financial terms of the deal. Both co-founders of Paytrust, CEO Edward G. McLaughlin and chairman and president Flint Lane, will retain their positions in the newly



combined company. Pay

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### Sea Power & Associates Win Haas Social Venture Competition

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Haas NewsWire=20 April 16, 2001

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SEA POWER & ASSOCIATES WIN HAAS SOCIAL VENTURE COMPETITION Sea Power &=20 Associates, which converts ocean wave energy into electricity, emerged as t= he=20 grand-prize winner of the second annual Haas Social Venture Competition on= =20 Saturday, April 14. The nationwide competition is organized entirely by Haa= s=20 MBA students.

To compete successfully, participating teams had to demonstrate sustainable= =20 profit potential, have a quantifiable social or environmental bottom line= =20 incorporated into its mission, and show a demonstrably greater impact of it= s=20 social return on investment (SROI) than existing firms in the industry.=20

Sea Power & Associates, which won the \$10,000 first prize, aims to provide= =20 renewable energy for the emerging economies of the island communities in th= e=20 Pacific as well as Hawaii, thus offering a cost-competitive non-polluting= =20 alternative to diesel generation.=20

"Electricity generated from ocean wave energy will reduce the greenhouse ga= s=20 emissions that contribute to global warming," said Mirko Previsic, CEO of S= ea=20 Power & Associates, whose patented system consists of a buoy driven by the= =20 up-and-down motion of the waves, which converts the ocean wave energy into= =20 electricity. "For each yard of coastline in Northern California we could=20 power 20 American homes."

Aprotea Biochips, which has developed technology to provide a rapid and=20 easy-to-use protein measurement system to enhance drug discovery, won a=20 \$2,000 prize for best management team. The team includes individuals with= =20 extensive experience in business, law, biology, biochemistry, and=20 engineering, and has the winning combination of deep domain experience,=20 passion for the business, and the wherewithal to execute.=20

Prisma Microfinance, Inc., garnered a \$2,000 prize for best SROI analysis.= =20 The venture provides micro loans to entrepreneurs in the developing world.= =20 Its business plan quantified a positive social impact in terms of job=20 creation, income generation, and community development.

In addition to the cash prizes, all three winners will have their plans=20 circulated in the Investors' Circle, a national network of 150 social=20 investors. Business schools represented on this year's winning teams includ= e=20 Haas, University of Washington, and Thunderbird.

"The competition is a lens that broadens our view of the bottom line," said= =20 Jerome Engel, executive director of the Haas School's Lester Center for=20 Entrepreneurship & Innovation, who advised the organizing committee of Haas= =20 MBA students. "It includes social and environmental values as well as=20 shareholder value."

In its second year, the competition attracted 33 participating teams from 1= 5=20 business schools, including Cornell, Columbia, Kellogg, Michigan, Stanford,= =20 and Yale for its nationwide contest of social ventures. All teams were judg=

ed=20 by a group of 17 leading social venture investors, venture capitalists, and= =20 social venture practitioners.

Several participants in last year's competition have made great strides=20 toward becoming sustainable businesses. Ripple Effects and Xtracycle, who= =20 shared last year's second prize, are in business. Ripple Effects develops= =20 award-winning learning software, while Xtracycle sells super-cargo size=20 sport-utility bicycles.

WILLIAM HAMBRECHT TO RECEIVE LESTER CENTER LIFETIME ACHIEVEMENT AWARD=20 William Hambrecht, the legendary investment banker who brought us Apple=20 Computer, Genentech, and the OpenIPO, is the 2001 recipient of the Lester= =20 Center Lifetime Achievement Award at UC Berkeley's Haas School of Business.= =20

The award will be presented by the Lester Center for Entrepreneurship &=20 Innovation at the UC Berkeley Entrepreneurs Forum on Thursday, April 26, in= =20 Arthur Andersen Auditorium.

Hambrecht is best known as the co-founder of the firm Hambrecht & Quist who= se=20 west-coast style investment banking helped launch some of Silicon Valley's= =20 greatest success stories. In 1981, the firm managed the initial public=20 offerings of Apple, Genentech, and People Express. By 1997, Hambrecht & Qui= st=20 had worked with over 700 companies, including Adobe Systems, Advanced Fiber= =20 Communications, Apollo Computer, Convergent Technologies, Evans & Sutherlan= d,=20 Read-Rite, Sybase, VLSI Technologies, and Xilinx.=20

In 1996, Hambrecht & Quist managed the IPO of Boston Beer, maker of Samuel= =20 Adams Boston Lager, that inspired Hambrecht to brainstorm the possibility o= f=20 IPOs that are open to the public. Boston Beer CEO Jim Koch insisted on maki= ng=20 25 percent of the IPO shares available to his market, the people who drank= =20 his beer. The idea meant taking a significant portion of the shares away fr= om=20 institutional investors, the industry's mainstay. In addition, opening the= =20 IPO to individuals required shipping six-packs to the stores with little=20 forms attached that allowed consumers to make a bid to buy a piece of Bosto= n=20 Beer.

However, the new approach demonstrated its business potential when the \$10= =20 million IPO in 1996 was oversubscribed by \$30 million - all from individual= =20 investors. The question was how to streamline the process. Answer: the=20 Internet.

In 1997, Bill Hambrecht decided to start a new firm WR Hambrecht + Co. that= =20 uses the Internet to create an open system for all investors -- from=20 individual consumers to the largest institutional investors -- to have equa= l=20 opportunities to make bids for IPO stocks, thus the name OpenIPO. OpenIPOs= =20 are not only open to small investors but are built on a Dutch auction model= =20 where the investors, not the investment bank, set the price.=20

WR Hambrecht + Co.'s most recent IPO included Peet's Coffee and Tea, a smal= l=20 Berkeley coffeehouse. Peet's was the 5th Internet-based public stock offeri= ng=20 led by WR Hambrecht & Co. in the past 3 years.

In awarding the Lifetime Achievement Award, the Lester Center for=20 Entrepreneurship and Innovation is able to bring outstanding innovators and= =20 entrepreneurs to the Berkeley campus. The Lester Center hopes that this kin= d=20 of interaction among academics, students, and practitioners will foster=20 entrepreneurial success for individuals and the community as a whole.

Previous winners of the Lester Center Lifetime Achievement Award include: = =20 +Gordon Moore, one of the original founders of Intel, in 2000;=20

+Arthur Rock, the original venture capitalist behind Silicon Valley's very= =20 first semiconductor company, Fairchild Semiconductor, and Intel, in 1999; a= nd=20

+Dr. Alejandro Zaffaroni who founded Alza Corp. and a series of other biote= ch=20 companies, in 1998.

SIX TEAMS ADVANCE TO FINAL ROUND OF UC BERKELEY BUSINESS PLAN COMPETITION = =20 The Haas School of Business today announced the selection of six teams to= =20 compete in the final round of the UC Berkeley Business Plan Competition. Th= e=20 finalist teams have developed ideas ranging from biotech to medical devices= =20 to software and wireless technology. They will compete for more than? \$90,0= 00=20 in cash and prizes, including a \$50,

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**Enron Mentions - 02/14/2001**

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California and the West Panel OKs Bills on State Purchase of Power Grid Energy Los Angeles Times, 02/14/2001

California Legislature's Power Advisers Exert an Interest in Outcome Knight-Ridder, 02/14/2001

NewPower posts quarterly loss Reuters, 02/14/2001

GERMANY: INTERVIEW-Enron lauds Germany's open power market resolve. Reuters English News Service, 02/14/2001

GERMANY: German gas market regulation inevitable-Aquila. Reuters English News Service, 02/14/2001

UK: Goldman, Morgan Stanley top energy derivative trade. Reuters English News Service, 02/14/2001

Italy's ENI signs MoU to build power plant in Nigeria Agence France-Presse, 02/14/2001

Qatar, UAE Dolphin Gas Proj Deal Expected In Mar - Enron Dow Jones Energy Service, 02/14/2001

Dallas-Based Blockbuster's Net Loss Widens in Quarter Knight-Ridder, 02/14/2001

DEMAND A DEAL Blockbuster pacts for PPV, VOD rights to U pix Daily Variety, 02/14/2001

Mirant of US plans power plant bid. Business Times (Singapore), 02/14/2001

FEDERAL POWER MIN GIVES PRESENTATION TO INDIAN CABINET Asia Pulse, 02/14/2001

ASIA-PACIFIC: No let-up for Indian electricity Financial Times, 02/14/2001

Cabinet okays Navy land transfer to Andamans The Times of India, 02/14/2001

Equity dilution, not divestment in Maruti The Times of India, 02/14/2001

Power reforms and regulations Business Standard, 02/14/2001

DPC not to invoke central guarantee Business Standard, 02/14/2001

Enron saga: Powered by govt generosity The Times of India, 02/14/2001

Centre signs power sector reforms MoU with Haryana Business Standard, 02/14/2001

India: Enron review panel to begin sittings today The Hindu, 02/14/2001

Macerich Announces Year-End Results PR Newswire, 02/14/2001

Racing friend of the Queen to be US ambassador The Daily Telegraph, 02/14/2001

USA: INTERVIEW - Enron business model almost limitless-Skilling. Reuters English News Service, 02/13/2001

Contracts save electricity costs, but college natural gas bills soar Associated Press Newswires, 02/13/2001

Edison Says Banks Mulling Request to Delay Remedies (Update1) Bloomberg News, 02/13/2001

Acegas listed on February 28 and aims for telecoms market Il Sole 24 Ore - Italy, 02/13/2001

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Metro Desk California and the West Panel OKs Bills on State Purchase of Power Grid Energy: Senate measures would authorize takeover of transmission lines and construction of generating plants. Backers say the plan is not a bailout of utilities. CARL INGRAM MITCHELL LANDSBERG; JENIFER WARREN TIMES STAFF WRITERS

02/14/2001 Los Angeles Times Home Edition A-3 Copyright 2001 / The Times Mirror Company

SACRAMENTO -- Nudging government toward an expanded role in the energy business, a Senate committee Tuesday approved two far-reaching bills paving the way for the state to buy California's sprawling electrical transmission grid and build and operate its own power plants.

The legislation aims to protect California from the crisis it faces today, a nightmare of supply shortages and sky-high power prices, said the bills' author, Senate leader John L. Burton (D-San Francisco).

"What we're trying to do here is give the state some influence and control over its own destiny," Burton said. "The idea is to provide affordable, reliable energy at times we need it most."

One of the bills authorizes Gov. Gray Davis to negotiate with California's beleaguered utilities about a state takeover of the transmission system, a transaction that could help them avoid bankruptcy. By paying anywhere from \$3 billion to \$9 billion for the 32,000 miles of electric wires, the state would provide the utilities with cash to help relieve their mushrooming debt.

"Some would call it a bailout," Burton said. "I would prefer to call it an infusion of capital."

Davis prefers the term buyout and said any state takeover of the grid "should be a moneymaker." Talking with reporters after a speech in Los Angeles, Davis said he hopes to announce a proposal Friday under which the state would receive the transmission system, a financial stake in the utility companies and some other asset--possibly some of the utilities' hydroelectric facilities--in exchange for billions of dollars in state cash.

"We will insist upon receiving commensurate, equivalent value for any value we confer on the utilities," Davis said.

The governor added that the utilities' parent companies--which have received, among other assets, billions of dollars in tax overpayments from Southern California Edison and Pacific Gas & Electric--should help bring the utilities back to fiscal health.

Tuesday marked the 29th straight day in which California endured a Stage 3 power alert, with energy reserves critically low on the grid serving most of the state. Grid operators came closer than usual to triggering rotating blackouts, but by the evening hours of peak demand, officials at the California Independent System Operator were optimistic that conservation and power purchases would help them dodge outages.

Cal-ISO spokesman Patrick Dorinson blamed the power shortfall on a cold snap that boosted electricity consumption and on the shutdown of power plants capable of generating one-third of the state's winter peak demand.

Four years after electric utilities were partially deregulated in California, the state is caught in a tangle of skyrocketing energy prices, booming demand and short supplies. Battered by debt, the state's largest investor-owned utilities lack the cash and credit to buy power themselves, forcing the state to step into the electricity market.

For more than three weeks, the state Department of Water Resources has spent an average of \$45 million a day purchasing power, as negotiators work to nail down long-term power contracts under a \$10-billion program authorized by the Legislature.

Davis maintains that in recent weeks the state has made major progress toward solving the electricity crisis. Officials have signed four "very good contracts" with electricity providers, begun an \$800-million conservation program and embarked upon an aggressive drive to get power plants built, he said.

In other developments Tuesday, the precarious financial condition of Edison and PG&E remained a top concern of utility-watchers as a grace period granted by banks that are owed money by Edison expired.

"We are now on a daily involuntary-bankruptcy filing watch," said Steven Fleishman, a utility analyst with Merrill Lynch & Co. "We believe that creditors will wait to see what plan the [governor] proposes, but time is short."

Edison formally asked a group of 23 banks for an extension of a 30-day period of forbearance on a \$230-million default, Ted Craver, Edison International's chief financial officer, said in a conference call with debt holders. The banks had not yet responded, he said.

Several electricity generators have said they are willing to wait for the utility debt-relief plan that Davis and legislators have promised in the coming days, the governor's spokesman, Steve Maviglio, said Tuesday. "They have signaled to us that they have patience," he said.

Most of the action in the Capitol on Tuesday centered on Burton's two bills, both of which cleared the Senate Energy Committee and will go next to the Appropriations Committee. A third measure, SB 5X by Sen. Byron Sher (D-Stanford), which would provide \$1.2 billion in taxpayer subsidies to consumers, government entities and businesses to help pay for conservation measures, also passed.

Burton said his bill paving the way for the purchase of the transmission grid, SB 3

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**VentureWire, Thursday, October 5, 2000**

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VENTUREWIRE --- Thursday, October 5, 2000

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Top Stories:

o Broadcom Buys Chip Maker Element 14 for About \$640 Million o Sony Broadband Launches Incubator 550 Digital Media Ventures o Business Incubator GameChange Launches with \$100 Million o \$200 Million First Close For \$300 Million New Polish Fund o Productopia Review and Advice Site Closes Down o Optical Networking Firm CyOptics Secures \$57 Million

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New Products: o Feld Group Spins Off Software Management Firm Contrado o Charity ASP CoreMatter Launches Service, eGiving Workplace o Job Site Wayfair.com Prepares to Launch on Monday o Network Storage Services Firm Pyxsys Launches

New Deals: o Amazon.com Forms Alliance with Photography Service Ofoto

M&A: o WatchGuard Buys Security Software Firm Qiave for \$66 Million o Peopleclick Acquires Net Sourcing Technology Firm Claybrooke

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===== Top Stories =====

o Broadcom Buys Chip Maker Element 14 for About \$640 Million

IRVINE, Calif. -- Broadcom, a publicly traded company which provides integrated circuits for broadband communications, said it will acquire Cambridge, U.K.-based Element 14, which develops digital subscriber line chipsets, software, and communications processor technology, for 2.65 million shares of stock, or about \$640 million, in an all-stock transaction. Following the acquisition, Broadcom will establish a new DSL business unit to be headed by Stan Boland, Element 14's president and CEO. Element 14 is backed by Bessemer Venture Partners, Atlas Venture, Amadeus Capital Partners, NIF Ventures, TTP Ventures, and Sofinnova Venture Partners. <http://www.broadcom.com/> <http://www.element-14.com/>

o Sony Broadband Launches Incubator 550 Digital Media Ventures

NEW YORK -- Sony Broadband Entertainment said it formed a subsidiary, 550 Digital Media Ventures, that will incubate, fund, and acquire digital media companies. Sony has contributed several hundred million to the venture. Working with Sony Corp. of America (SCA), Sony Music Entertainment (SME), and Sony Pictures Entertainment (SPE), 550 Digital Media Ventures will develop and manage a network of digital media companies. Initially, the network will consist of about 35 companies. 550 Digital Media Ventures will focus on broadband services, wireless, personal broadcasting, e-mail and direct marketing, digital asset management, e-commerce facilitation, and professional Internet services. 550 Digital Media Ventures will target companies based in the U.S. Howard Stringer, chairman and CEO of SCA and president of SBE, will be chairman of 550 Digital Media Ventures. Fred Ehrlich will serve as president and CEO of the new subsidiary, and continue to act as president of new technology and business development for SME. The company will be headquartered in New York, with offices in San Francisco, Los Angeles, and London. <http://www.550dmv.com/>

o Business Incubator GameChange Launches with \$100 Million

PALO ALTO, Calif. -- Andersen Consulting's venture capital unit AC Ventures and Softbank Venture Capital said they have launched GameChange, a network of incubators and seed investment centers, with investments totaling up to \$100 million. GameChange opened its first incubation center in Palo Alto, and will establish a total of ten incubation centers in



areas with high technology development and focus on technology companies in high-growth markets such as Internet commerce, software, and infrastructure. AC Ventures and Softbank will provide services to portfolio companies of GameChange, which will also work with companies independently. The new firm will invest up to \$2 million in its companies and will incubate them for an average of six months. Barry W. Carter and Scott Killips of AC Ventures and Rex Golding and Gary E. Rieschel of Softbank will sit on the company's board of directors. GameChange's founding managing directors are Par Arvidsson, a former partner with consulting firm Strategic Decisions Group, and Mark Lockareff, former vice president of corporate development with Excite@Home. <http://www.gamech>

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### VentureWire, Wednesday, September 13, 2000

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o New Enterprise Associates Closes Tenth Fund with \$2 Billion o James Martin & Co., Now Headstrong, Raises \$191 Million o Microsoft Acquires MongoMusic for \$65 Million in Stock o Gabriel Venture Partners Raising New \$300 Million Fund o AOL Invests in Handheld Device Maker for Teens, Cybiko o Broadband Services Firm Has \$45 Million, Part of Round One

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New Products: o Consulting Firm McKinsey Launches Mercosur Accelerator o B2B for Funeral Services Industry Funeral Exchange Launches o Businesses Collaboration Firm Parlano Launches

New Deals: o Cable & Wireless Inks \$350 Million Contract With Tellium

M&A: o Accrue Buys Tantau's InfoCharger Technology for \$37 Million o eRealty.com Buys Half of Net Real Estate Transaction Firm o Data Critical Buys Cardiology Monitoring Firm for \$9 Million o Mobile Service Company Corrigo Acquires invata o Pioneer Behavioral Health To Acquire TherapyRightNow.com

New Directors: o Time Warner CTO Joins Board of Digital Imaging Firm QBeo o Centric Software Names Former Oracle VP to Board o Knovel Names Ex-Oxford University Press USA CEO to Board o Collaborative Commerce Firm Question.com Adds Two to Board o CRM Software Firm Synchrony Adds Two New Board Members o Marketing Firm Alistia Adds Two Investors to Board o Online Benefits Management Firm DoctorQuality Adds to Board o Streaming Software Provider TeVeo Elects New Board Member o SupplyLinks Names Ex-Consolidated Freightways CEO to Board

New People: o Web Page Builder Bigstep Taps Ex-Wells Fargo VP for CEO o Epipeline Names Former Annuncio VP as President and COO o Narus Appoints Its President and COO Mark Stone To CEO Post o Net Recruiter BrassRing Names New President and CEO

VC Fund News: o JatoTech Ventures Announces New \$55 Million Technology Fund o Freedom Hill Capital Launches \$50 Million Telecomm Fund o Polish Incubator e-Katalyst Launches With \$7 Million Fund

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For more information and registration, go to: <http://tpsite.com/tp/conf/ho2000/default.html>

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===== Top Stories =====

o New Enterprise Associates Closes Tenth Fund with \$2 Billion

MENLO PARK, Calif. -- Venture capital firm New Enterprise Associates (NEA) raised its tenth fund for \$2 billion, according to a posting on the firm's Web site. The firm expects the fund to officially close this week. Investors in the new fund include the California State Teachers' Retirement System, Harbourvest Partners, and General Motors. According to the NEA posting, which links to a story on Red Herring, the VC firm will distribute the new fund over three years, making investments of between \$100,000 and \$55 million. <http://www.nea.com/>

o James Martin & Co., Now Headstrong, Raises \$191 Million

NEW YORK -- Internet services firm james martin & co. said it received \$191 million in funding and has become Headstrong, a provider of digital strategy services. Welsh Carson Anderson & Stowe invested \$173 million and H&Q Asia Pacific invested \$18 million. Bruce Anderson, Scott Mackesey, and Rob Minicucci from Welsh Carson Anderson & Stowe, and Ed Davis of H&Q will sit on the company's board of directors. The company will use the funding for training, sales and marketing, technology acquisition, and forming strategic partnerships. Headstrong's services include activity in sectors such as digital strategy, channels, relationships, intelligence and business ecosystem integration.

<http://www.headstrong.com/>

o Microsoft Acquires MongoMusic for \$65 Million in Stock

REDMOND, Wash. -- Microsoft said it acquired Menlo Park, California-based MongoMusic, which provides online music technology. A source close to MongoMusic confirmed that the acquisition was made in an all-stock transaction valued at \$65 million. Microsoft will completely absorb MongoMusic and will retain all of the company's employees and move them to Redmond, Washington. MongoMusic's Web site will continue to operate for an undetermined amount of time. MongoMusic received its backing from Angel Investors, Argus Capital, Draper Richards, Nokia Ventures, and Sony Music Entertainment. <http://www.microsoft.com/> <http://www.mongomusic.com/>

o Gabriel Venture Partners Raising New \$300 Million Fund

TYSON'S CORNER, Va. -- Gabriel Venture Partners said it is raising a new \$300 million venture capital fund. The fund, the firm's second, will make early-stage investments of be

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September e.Bulletin

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Schwab Signature Services e.Bulletin - September 2000

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Welcome to the September Edition of the Schwab Signature Services e.Bulletin.

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Dreaming of an Overseas Retirement?

Many Americans dream of retiring to an exotic locale overseas. The dream can come true for those "expats" who plan their retirement wisely. Here's a look at retiring abroad, with links to valuable online resources and a guide to some of the decisions you'll make on such issues as health, taxes, voting status and Internet access.

Read the full article <http://schwab.ed4.net/go/1sigserv2t/sept/retire/>

Internet Scams

Pump and dump. Virtual stocks. Pyramid schemes. These are just a few of the online frauds, scams and swindles that tempt the unwary investor. Remember, if an alleged investment sounds too good to be true, it probably isn't legitimate. Another hint: beware of an e-mail that announces that you're on the "friends and family" list of an IPO you've never heard of. Protect yourself from these deceptions, and others, by reading this article, which describes each scam and also refers you to links at the SEC and other regulators for more information.

Read the full article: <http://schwab.ed4.net/go/1sigserv3t/sept/internet/>

#### Is Trading Stocks "Just Like Gambling?"

There are certain parallels between investing in stocks and gambling on games such as roulette and blackjack. But it's important to know where these similarities end, and how the practices of an astute investor are much different than those of a casino gambler. This article explains how the Las Vegas odds favor the house, and why gambling is not the same as intelligent, long-term investing.

Read the full article: <http://schwab.ed4.net/go/1sigserv4t/sept/investing/>

#### Election 2000 - An Investor's Guide

The Presidential campaign is heading into its stretch run, and the Republican and Democratic candidates have staked out positions on the issues that most concern investors. Where do they differ - and where do they agree? This analysis from the Schwab Washington Research Group\* summarizes where the candidates stand on taxes, the Federal budget, health care, education, and retirement savings. If you think there's hardly any difference between the two platforms, you're in for a surprise.

\*Schwab's Washington Research Group and Technical Analysis Group are part of Capital Markets & Trading, a division of Charles Schwab & Co., Inc.

Read the full article: <http://schwab.ed4.net/go/1sigserv5t/sept/election/>

#### Financial Services: The Urge of the Merge?

The once staid world of financial services appears to be undergoing tremendous change, as commercial banks, insurers, brokers and others grapple with new technologies and deregulation. Recent legislation by Congress was expected to trigger a wave of cross-industry mergers and acquisitions. Yet this feeding frenzy has been slow to begin, due to Y2K concerns, rising interest rates and lower stock prices. What's the outlook now for a convergence? Will bankers gobble insurers, or vice versa? Where are some of the opportunities for investors? Read this analysis from the Washington Research Group.\*

\*Schwab's Washington Research Group and Technical Analysis Group are part of Capital Markets & Trading, a division of Charles Schwab & Co., Inc.

Read the full article: <http://schwab.ed4.net/go/1sigserv6t/sept/mergers/>

#### Come Walk the Boards

Check out our new streamlined message boards at <http://schwab.ed4.net/go/1sigserv7t/sept/boards/>. Since July, we've added eight boards on popular topics such as mortgages and margin investing. If you haven't registered, do so today!

#### After Hours Trading Becomes Extended Hours Trading

Here's an update on new trading times and policies: - Pre-Market session: Order entry begins at 7:45am ET, Execution between 8:00am - 9:15am ET - After Hours session extended: Order entry begins at 4:05pm ET, Execution between 4:15pm - 8:00pm ET - Ability to trade odd and mixed lots - Most Listed and Nasdaq securities are available

Remember that Extended Hours Trading poses certain risks and may not be for everyone. Schwab reserves the right to change or modify hours of operation for extended hours trading at any time.

To learn more go to <http://schwab.ed4.net/go/1sigserv8t/sept/extendedhrs/>

Due to limited liquidity in extended hours trading sessions, there are no assurances that an investor's stock order will be executed.

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**Decimalization: What is It?**

Decimalization is the process of converting the pricing of equities from fractions to decimals. Currently, U.S. markets quote and price stocks (and their underlying options) in fractions, while most foreign markets use decimal pricing. The conversion process will take place gradually, with the first phase on August 28.

To find out more about this conversion and how it might affect your trades and investments, check out <http://schwab.ed4.net/go/1sigserv9t/sept/decimal/>

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**Price Alerts: Faster Than Ever**

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**Just Say "Trade": Expanded Speech Recognition on Schwab by Phone(TM)**

We recently added the capability to place trade orders using speech recognition on Schwab by Phone. Just call in, and the system will prompt you to speak key words that allow you to get quotes, place, review or modify trade orders, and review account balances.

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To try Schwab by Phone, call 1-800-435-8804 and press 1 for Quotes or press 2 for Trades. Telebroker, our touch- tone service is also

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| Enron Mentions |                                 |
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Democrats Prepare to Duel Bush Over Energy Price Caps in West The Wall Street Journal, 06/01/01

Electricity Trading Is Target of State Probe Regulation: A special Senate panel is investigating alleged price manipulation of power transactions. Los Angeles Times, 06/01/01

Companies Rush to Purchase Their Indian Units, Boosting Share Prices of Concerns With Foreign Ties The Wall Street Journal, 06/01/01

Exxon, Shell Poised to Win Saudi Deals --- They Appear Favored To Lead Key Projects In Coveted Gas Sector The Wall Street Journal, 06/01/01

NEW PACKAGE TO RESOLVE DPC, INDIA'S MSEB SITUATION: OFFICIAL Asia Pulse, 06/01/01

GLOBAL INVESTING: Betting on better times for utilities Financial Times; Jun 1, 2001

INTERNATIONAL ECONOMY, MIDDLE EAST & AFRICA: Hopefuls await details of Saudi gas deal Financial Times; Jun 1, 2001

FITCH PLACES INDIA ON NEGATIVE RATING OUTLOOK ON FISCAL CONCERNS Asia Pulse, 06/01/01

Thomas E. White becomes Secretary of the Army M2 Presswire, 06/01/01

Some light at last! The Economic Times, 06/01/01

Calif. investigations focus on whether out-of state wholesalers manipulated energy prices Associated Press Newswires, 06/01/01

California Lawmakers Eye Billing Businesses for Edison Rescue Dow Jones Business News, 05/31/01

Construction of power plant in DeSoto County is underway Associated Press Newswires, 05/31/01

Politics & Policy Democrats Prepare to Duel Bush Over Energy Price Caps in West By John Harwood and Jeanne Cummings Staff Reporters of The Wall Street Journal

06/01/2001 The Wall Street Journal A16 (Copyright (c) 2001, Dow Jones & Company, Inc.)

WASHINGTON -- If you talk to economists, many will say President Bush is on solid ground in opposing caps on soaring electricity prices in California and elsewhere. But if you talk to voters, many will suggest he has political problems. And now that Democrats control the U.S. Senate, they are poised to make those problems a lot worse. Mr. Bush got a taste of what is coming in his widely touted showdown with California Gov. Gray Davis in Los Angeles this week. The Republican president repeated his familiar argument that capping wholesale electricity prices would do nothing to curb demand or increase the supply of power for California. But the Democrats' Mr. Davis, fortified by polls showing that 70% of Californians favor price caps, managed to get equal billing during Mr. Bush's visit for his argument that they are needed to keep the state from slipping into recession and threatening the national economy in the process. Because Sen. Jim Jeffords of Vermont left the Republican Party last week and changed control of the Senate, Democrats now have a more effective national platform to press the same arguments -- and to threaten Mr. Bush's political standing beyond the already hostile turf of California. The incoming chairman of the Senate Energy and Natural Resources Committee, Democratic Sen. Jeff Bingaman of New Mexico, says he plans to move soon on legislation capping prices for California and other Western states, a bill that has attracted some GOP support as well. "I think it's clear to anybody that the prices being charged for wholesale power are excessive," said Sen. Bingaman, in an interview while he was heading toward California on a fact-finding mission. "I don't believe it's going to be adequate to get us through this summer, to just continue saying that eventually supply will come into line with demand and the problems will be resolved." Meantime, the incoming chairman of the Permanent Subcommittee on Investigations, Democratic Sen. Carl Levin of Michigan, plans to investigate the role of oil companies in higher gas prices. "This is the manipulation of prices, and we've got to investigate it because our people in Michigan are absolutely furious," Sen. Levin says. Just as Republicans once used the machinery of Congress to probe then-President Clinton's problems, Democrats see ripe opportunities for embarrassing an ex-oilman president with strong links to Texas energy-producing companies that are profiting from today's supply squeeze. During the 2000 presidential campaign, five of the major companies now supplying power to California -- Duke Energy Corp., Dynegy Inc., Enron Corp., Reliant Energy Inc., and Williams Cos. -- gave some \$3.6 million to Mr. Bush and the GOP, more than triple the amount donated to Democrats. Three of those companies are based in Mr. Bush's home state of Texas, which only adds to the political tensions. The Democratic offensive has the GOP worried. Price caps amount to "terrible policy, but good politics," frets Republican pollster Neil Newhouse. Mr. Bush now faces "a difficult job" overcoming the Democratic arguments for caps, he adds, because "control of the Senate has given them a megaphone on issues that they just didn't have before." That doesn't necessarily mean Mr. Bush ultimately will suffer grave damage. As congressional Republicans learned to their chagrin in battles with Mr. Clinton, the presidential bully pulpit remains the most potent weapon in American politics for framing policy debates. Even with that advantage, though, the Clinton administration found that the initial appeal of arguments on issues such as tobacco regulation and prescription drugs faded under sustained counterattack by Republicans and affected industries. And so far, polls are showing that Mr. Davis also is paying a political price in California for the crisis. Still, Mr. Davis, who faces re-election next year and may later seek the 2004 Democratic presidential nomination, believes he can limit the damage by emphasizing his efforts to expand supply and spotlighting the actions of energy companies in Texas and elsewhere. On CNN's "Larry King Live" this week, he complained that "money sucked out of this state" amounts to "a massive transfer of wealth" from Californians to the industry. Whatever the political ramifications, they aren't limited to California. Consumers in Washington, Idaho and Montana that are serviced by the same electric grid have seen 30% increases in their utility rates. That is why Mr. Davis, with support from some GOP governors in the West, is asking the Federal Energy Regulatory Commission to impose short-term wholesale price caps to help protect electricity consumers from soaring rates until new power plants approved for construction in California increase supply enough to bring prices down through market forces. California Democratic Sen. Dianne Feinstein and Oregon Republican Sen. Gordon Smith are offering legislation to accomplish that in the

committee that Mr. Bingaman now will chair. As a matter of policy, most economists probably would agree with Mr. Bush's free-market position on price caps, though that sentiment is hardly unanimous. As he met with the president this week, Mr. Davis released a letter from 10 prominent economists backing price caps as a temporary remedy for a market "not characterized by effective competition." One of the signatories was Alfred Kahn, architect of airline deregulation under President Carter. But Bush economic advisers, heeding the free-market arguments that have held the high ground in regulatory policy debates since the Reagan era, insist that such caps would distort the energy market and be difficult to abandon even when market conditions turn more favorable for consumers. "Price caps do nothing to reduce demand, and they do nothing to increase supply," Mr. Bush said in California this week. Mr. Davis says the Federal Energy Regulatory Commission is obliged under law to assure "just and reasonable" prices, and he says he will sue the agency to force it to act despite the dismissal earlier this week of a similar lawsuit filed by California's Democratic legislati

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### Social Venture Competition Expands into New National Partnership

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| Sender     | haasnews@haas.berkeley.edu         |
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Haas NewsWire September 4, 2001

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**SOCIAL VENTURE COMPETITION EXPANDS INTO NEW NATIONAL PARTNERSHIP** The Haas School of Business and Columbia Business School have formed a joint partnership with The Goldman Sachs Foundation to expand the Haas Social Venture Competition into the National Social Venture Competition. The competition invites aspiring entrepreneurs to develop plans for businesses that have a clear, quantifiable social return as well as a healthy financial bottom line.

The National Social Venture Competition originated in 1999 as a student-organized social venture competition at the Haas School of Business. In the past few years, the competition has attracted more than 100 teams from business schools across the United States and Europe. The new partnership with Columbia Business School and The Goldman Sachs Foundation will expand the competition's reach and scale.

The Goldman Sachs Foundation will underwrite the competition with a gift of \$1.5 million to help build a national platform for social entrepreneurship. "This innovative program is an important milestone in the social enterprise field and presents a unique opportunity to advocate high quality entrepreneurship education on a national scale," said Stephanie Bell-Rose, president of The Goldman Sachs Foundation. "The program underscores the Foundation's mission of supporting educational excellence by encouraging outstanding students to develop the tools that help them become the global leaders of tomorrow."

"The National Social Venture Competition reflects the growing commitment of business leaders and entrepreneurs to foster profitable activities that address major social challenges, such as protecting the environment, preventing disease, and improving educational outcomes," said Laura Tyson, dean of the Haas School of Business. "Haas MBA students have done an outstanding job in launching a business plan competition to promote socially responsible business ventures. Our new partnership with Columbia University's business school and The Goldman Sachs Foundation will increase public awareness of these issues and encourage business students to employ the tools of business to create positive social change."



Throughout the year, the entrepreneurship centers of the two business schools will coordinate with The Goldman Sachs Foundation to organize and promote national events in the San Francisco Bay Area and New York. The Eugene M. Lang Center for Entrepreneurship at Columbia Business School will host an inaugural symposium on October 5 in New York City. The symposium will feature a public dialogue with leaders in the social entrepreneurship arena to explore the growing demand and marketplace expectations for social ventures.

Throughout the year, both schools will host additional events to encourage participation and evaluate submissions. Mentoring workshops will take place at Columbia Business School and the Haas School with prominent investors and alumni helping teams to perfect their business plans and presentations. The teams' executive summaries are due on January 18, 2002.

The 2001/2002 national competition finals, hosted by the Haas School's Lester Center for Entrepreneurship and Innovation, will take place at UC Berkeley on April 5-6, 2002.

"This unique and powerful partnership reflects Columbia's commitment to supporting entrepreneurship as a vehicle for social change," remarked Meyer Feldberg, dean of Columbia Business School. "Tomorrow's business leaders must grasp more than convention; they must also be prepared to develop and steer businesses of all sizes and types through a global economy that demands consideration not only of profit and shareholder value, but also of broader human interests."

Teams in this year's competition can look to past participants in the Haas Social Venture Competition for inspiration in launching social ventures. Previous participants who have gone on to establish businesses include:

+ Sea Power & Associates ([www.seapower.cc](http://www.seapower.cc)), winner of the 2001 Haas Social Venture Competition, harnesses ocean wave power to produce electricity for coastal communities in the Pacific.

+Aprotea ([www.aprotea.com](http://www.aprotea.com)) makes biochips to enhance drug discovery and won a prize for best management team in 2001.

+Prisma Microfinance ([www.prismamicrofinance.com](http://www.prismamicrofinance.com)) provides investor-funded micro-loans in developing countries and won a prize for the best analysis of its social return on investment.

+Ripple Effects ([www.rippleeffects.com](http://www.rippleeffects.com)), a winner of the 2000 competition, has already won nine major national product awards for its learning software.

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BLUE MARTINI CEO ZWEBEN TO GIVE KEYNOTE AT 2001 KNOWLEDGE FORUM The fifth annual UC Berkeley Forum on Knowledge and the Firm will explore "New Patterns of Management in the Knowledge Economy" in the Arthur Andersen Auditorium on September 21. Leading thinkers and practitioners in the field of knowledge management will discuss the new patterns of management that are emerging as companies experiment and adapt different ways to beat their competition.

The Knowledge Forum is organized annually by the Institute of Management, Organization, and Innovation (IMIO) at the Haas School. This event is open to faculty, students, staff, alumni, and members of the public. The registration fee will be waived for faculty and UC Berkeley students. Students need to register by September 14.

The keynote address will be given by Monte Zweben, chairman, president, and CEO of Blue Martini Software, which helps companies understand, target, and interact with their customers and business partners. Prior to founding Blue Martini, Zweben was vice president and general manager of PeopleSoft's manufacturing industry unit. In 1992 he co-founded Red Pepper Software Company, and was CEO, president, and chairman.

Dean Laura Tyson will give the opening remarks, followed by three sessions of panelists featuring Ikujiro Nonaka, Xerox Distinguished Professor in Knowledge; David Teece, Mitsubishi Bank Professor of International Business and Finance and director of IMIO; Susan DeSanti, director, Office of Policy Planning, FTC; Seiji Horibuchi, president, VIZ Communications (Pokeman USA); and Saburo Kobayashi, general manager, Corporate Planning, Honda.

For registration information, please visit <http://groups.haas.berkeley.edu/imio/knowledge/index2001.htm>.

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MICHAEL KATZ TO SERVE AS DEPUTY ASSISTANT ATTORNEY GENERAL FOR ECONOMIC ANALYSIS Michael Katz, the Edward J. and Mollie Arnold Professor of Business Administration, has been appointed the deputy assistant attorney general for economic analysis in the Antitrust Division of the Department of Justice. As deputy assistant attorney



general, Katz will supervise all economic analysis within the Antitrust Division and direct the division's Economic Analysis Group.

"Like the stereotypical economist, I look at Michael's appointment from two perspectives," says Ben Hermalin, associate